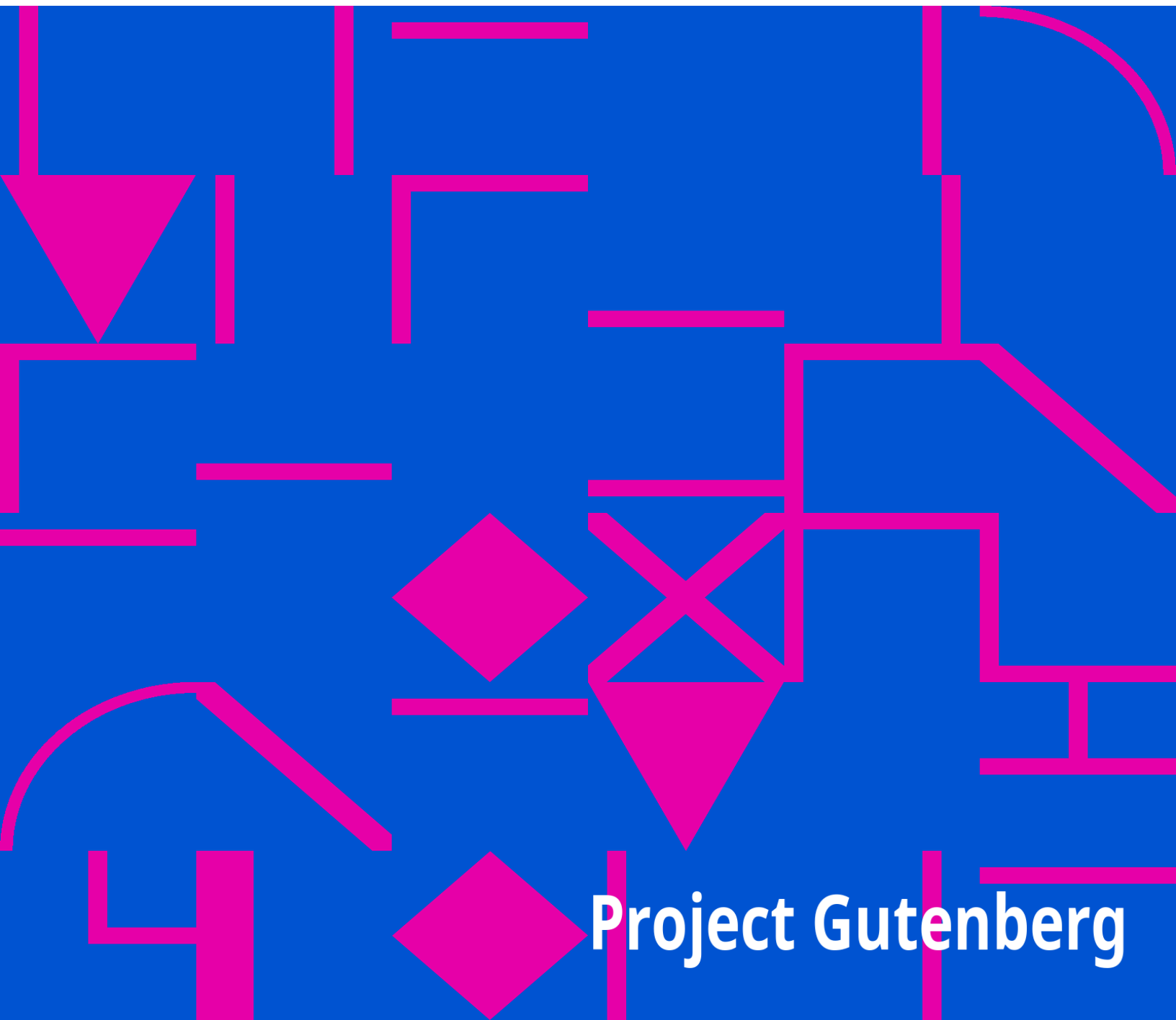


The History of Rome (Volumes 1-5)

Theodor Mommsen

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Theodor Mommsen



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THE HISTORY OF ROME

by

THEODOR MOMMSEN

Translated with the Sanction of the Author

by

William Purdie Dickson, D.D., LL.D.

Professor of Divinity in the University of Glasgow

A New Edition Revised Throughout and Embodying Recent Additions

DEDICATIONS

The First Volume of the original bears the inscription:—

To My Friend

MORIZ HAUPT of Berlin

The Second:—

To My Dear Associates

FERDINAND HITZIG of Zurich

and

KARL LUDWIG of Vienna 1852, 1853, 1854

And the Third:—

Dedicated with Old and Loyal Affection to

OTTO JAHN of Bonn

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THE HISTORY OF ROME: BOOK I

The Period Anterior to the Abolition of the Monarchy

Preparer's Note

This work contains many literal citations of and references to foreign words, sounds, and alphabetic symbols drawn from many languages, including Gothic and Phoenician, but chiefly Latin and Greek. This English Gutenberg edition, constrained to the characters of 7-bit ASCII code, adopts the following orthographic conventions:

1) Except for Greek, all literally cited non-English words that do not refer to texts cited as academic references, words that in the source manuscript appear italicized, are rendered with a single preceding, and a single following dash; thus, -xxxx-.

2) Greek words, first transliterated into Roman alphabetic equivalents, are rendered with a preceding and a following double-dash; thus, —xxxx—. Note that in some cases the root word itself is a compound form such as xxx-xxxx, and is rendered as —xxx-xxx—

3) Simple unideographic references to vocalic sounds, single letters, or alphabetic diphthongs; and prefixes, suffixes, and syllabic references are represented by a single preceding dash; thus, -x, or -xxx.

4) (Especially for the complex discussion of alphabetic evolution in Ch. XIV: Measuring and Writing). Ideographic references, meaning pointers to the form of representation itself rather than to its content, are represented as -"id:xxxx"-. "id:" stands for "ideograph", and indicates that the reader should form a picture based on the following "xxxx"; which may be a single symbol, a word, or an attempt at a picture composed of ASCII characters. E. g. —"id:GAMMA gamma"— indicates an uppercase Greek gamma-form followed by the form in lowercase. Some such exotic parsing as this is necessary to explain alphabetic development because a single symbol may have been used for a number of sounds in a number of languages, or even for a number of sounds in the same language at different times. Thus, -"id:GAMMA gamma" might very well refer to a Phoenician construct that

in appearance resembles the form that eventually stabilized as an uppercase Greek "gamma" juxtaposed to one of lowercase. Also, a construct such as —"id:E" indicates a symbol that with ASCII resembles most closely a Roman uppercase "E", but, in fact, is actually drawn more crudely.

5) Dr. Mommsen has given his dates in terms of Roman usage, A.U.C.; that is, from the founding of Rome, conventionally taken to be 753 B. C. The preparer of this document has appended to the end of this combined text (Books I-V) a table of conversion between the two systems.

PREFACE BY THE TRANSLATOR

When the first portion of this translation appeared in 1861, it was accompanied by a Preface, for which I was indebted to the kindness of the late Dr. Schmitz, introducing to the English reader the work of an author whose name and merits, though already known to scholars, were far less widely familiar than they are now. After thirty-three years such an introduction is no longer needed, but none the less gratefully do I recall how much the book owed at the outset to Dr. Schmitz's friendly offices.

The following extracts from my own "Prefatory Note" dated "December 1861" state the circumstances under which I undertook the translation, and give some explanations as to its method and aims:—

"In requesting English scholars to receive with indulgence this first portion of a translation of Dr. Mommsen's 'Romische Geschichte,' I am somewhat in the position of Albinus; who, when appealing to his readers to pardon the imperfections of the Roman History which he had written in indifferent Greek, was met by Cato with the rejoinder that he was not compelled to write at all—that, if the Amphictyonic Council had laid their commands on him, the case would have been different—but that it was quite out of place to ask the indulgence of his readers when his task had been self-imposed. I may state, however, that I did not undertake this task, until I had sought to ascertain whether it was likely to be taken up by any one more qualified to do justice to it. When Dr. Mommsen's work

accidentally came into my hands some years after its first appearance, and revived my interest in studies which I had long laid aside for others more strictly professional, I had little doubt that its merits would have already attracted sufficient attention amidst the learned leisure of Oxford to induce some of her great scholars to clothe it in an English dress. But it appeared on inquiry that, while there was a great desire to see it translated, and the purpose of translating it had been entertained in more quarters than one, the projects had from various causes miscarried. Mr. George Robertson published an excellent translation (to which, so far as it goes, I desire to acknowledge my obligations) of the introductory chapters on the early inhabitants of Italy; but other studies and engagements did not permit him to proceed with it. I accordingly requested and obtained Dr. Mommsen's permission to translate his work.

"The translation has been prepared from the third edition of the original, published in the spring of the present year at Berlin. The sheets have been transmitted to Dr. Mommsen, who has kindly communicated to me such suggestions as occurred to him. I have thus been enabled, more especially in the first volume, to correct those passages where I had misapprehended or failed to express the author's meaning, and to incorporate in the English work various additions and corrections which do not appear in the original.

"In executing the translation I have endeavoured to follow the original as closely as is consistent with a due regard to the difference of idiom. Many of our translations from the German are so literal as to reproduce the very order of the German sentence, so that they are, if not altogether unintelligible to the English reader, at least far from readable, while others deviate so entirely from the form of the original as to be no longer translations in the proper sense of the term. I have sought to pursue a middle course between a mere literal translation, which would be repulsive, and a loose paraphrase, which would be in the case of such a work

peculiarly unsatisfactory. Those who are most conversant with the difficulties of such a task will probably be the most willing to show forbearance towards the shortcomings of my performance, and in particular towards the too numerous traces of the German idiom, which, on glancing over the sheets, I find it still to retain.

"The reader may perhaps be startled by the occurrence now and then of modes of expression more familiar and colloquial than is usually the case in historical works. This, however, is a characteristic feature of the original, to which in fact it owes not a little of its charm. Dr. Mommsen often uses expressions that are not to be found in the dictionary, and he freely takes advantage of the unlimited facilities afforded by the German language for the coinage or the combination of words. I have not unfrequently, in deference to his wishes, used such combinations as 'Carthagino-Sicilian,' 'Romano-Hellenic,' although less congenial to our English idiom, for the sake of avoiding longer periphrases.

"In Dr. Mommsen's book, as in every other German work that has occasion to touch on abstract matters, there occur sentences couched in a peculiar terminology and not very susceptible of translation. There are one or two sentences of this sort, more especially in the chapter on Religion in the 1st volume, and in the critique of Euripides as to which I am not very confident that I have seized or succeeded in expressing the meaning. In these cases I have translated literally.

"In the spelling of proper names I have generally adopted the Latin orthography as more familiar to scholars in this country, except in cases where the spelling adopted by Dr. Mommsen is marked by any special peculiarity. At the same time entire uniformity in this respect has not been aimed at.

"I have ventured in various instances to break up the paragraphs of the original and to furnish them with additional marginal headings, and have carried out more fully the notation of the years B.C. on the margin.

"It is due to Dr. Schmitz, who has kindly encouraged me in this undertaking, that I should state that I alone am responsible for the execution of the translation. Whatever may be thought of it in other respects, I venture to hope that it may convey to the English reader a tolerably accurate impression of the contents and general spirit of the book."

In a new Library edition, which appeared in 1868, I incorporated all the additions and alterations which were introduced in the fourth edition of the German, some of which were of considerable importance; and I took the opportunity of revising the translation, so as to make the rendering more accurate and consistent.

Since that time no change has been made, except the issue in 1870 of an Index. But, as Dr. Mommsen was good enough some time ago to send to me a copy in which he had taken the trouble to mark the alterations introduced in the more recent editions of the original, I thought it due to him and to the favour with which the translation had been received that I should subject it to such a fresh revision as should bring it into conformity with the last form (eighth edition) of the German, on which, as I learn from him, he hardly contemplates further change. As compared with the first English edition, the more considerable alterations of addition, omission, or substitution amount, I should think, to well-nigh a hundred pages. I have corrected various errors in renderings, names, and dates (though not without some misgiving that others may have escaped notice or been incurred afresh); and I have still further broken up the text into paragraphs and added marginal headings.

The Index, which was not issued for the German book till nine years after the English translation was published, has now been greatly enlarged from

its more recent German form, and has been, at the expenditure of no small labour, adapted to the altered paging of the English. I have also prepared, as an accompaniment to it, a collation of pagings, which will materially facilitate the finding of references made to the original or to the previous English editions.

I have had much reason to be gratified by the favour with which my translation has been received on the part alike of Dr. Mommsen himself and of the numerous English scholars who have made it the basis of their references to his work.⁽¹⁾ I trust that in the altered form and new dress, for which the book is indebted to the printers, it may still further meet the convenience of the reader.

September 1894.

Notes for Preface

1. It has, I believe, been largely in use at Oxford for the last thirty years; but it has not apparently had the good fortune to have come to the knowledge of the writer of an article on "Roman History" published in the *Encyclopedia Britannica* in 1886, which at least makes no mention of its existence, or yet of Mr. Baring-Gould, who in his *Tragedy of the Caesars* (vol. 1. p. 104f.) has presented Dr. Mommsen's well-known "character" of Caesar in an independent version. His rendering is often more spirited than accurate. While in several cases important words, clauses, or even sentences, are omitted, in others the meaning is loosely or imperfectly conveyed—e.g. in "Hellenistic" for "Hellenic"; "success" for "plenitude of power"; "attempts" or "operations" for "achievements"; "prompt to recover"

for "ready to strike"; "swashbuckler" for "brilliant"; "many" for "unyielding"; "accessible to all" for "complaisant towards every one"; "smallest fibre" for "Inmost core"; "ideas" for "ideals"; "unstained with blood" for "as bloodless as possible"; "described" for "apprehended"; "purity" for "clearness"; "smug" for "plain" (or homely); "avoid" for "avert"; "taking his dark course" for "stealing towards his aim by paths of darkness"; "rose" for "transformed himself"; "checked everything like a praetorian domination" for "allowed no hierarchy of marshals or government of praetorians to come into existence"; and in one case the meaning is exactly reversed, when "never sought to soothe, where he could not cure, intractable evils" stands for "never disdained at least to mitigate by palliatives evils that were incurable."

INTRODUCTORY NOTE BY DR. MOMMSEN

The Varronian computation by years of the City is retained in the text; the figures on the margin indicate the corresponding year before the birth of Christ.

In calculating the corresponding years, the year 1 of the City has been assumed as identical with the year 753 B.C., and with Olymp. 6, 4; although, if we take into account the circumstance that the Roman solar year began with the 1st day of March, and the Greek with the 1st day of July, the year 1 of the City would, according to more exact calculation, correspond to the last ten months of 753 and the first two months of 752 B.C., and to the last four months of Ol. 6, 3 and the first eight of Ol. 6, 4.

The Roman and Greek money has uniformly been commuted on the basis of assuming the libral as and sestertius, and the denarius and Attic drachma, respectively as equal, and taking for all sums above 100 denarii the present value in gold, and for all sums under 100 denarii the present value in silver, of the corresponding weight. The Roman pound (=327.45 grammes) of gold, equal to 4000 sesterces, has thus, according to the ratio of gold to silver 1:15.5, been reckoned at 304 1/2 Prussian thalers [about 43 pounds sterling], and the denarius, according to the value of silver, at 7 Prussian groschen [about 8d.](1)

Kiepert's map will give a clearer idea of the military consolidation of Italy than can be conveyed by any description.

1. I have deemed it, in general, sufficient to give the value of the Roman money approximately in round numbers, assuming for that purpose 100 sesterces as equivalent to 1 pound sterling.—TR.

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BOOK FIRST

The Period Anterior to the Abolition of the Monarchy

—Ta palaiotera saphos men eurein dia chronou pleithos adunata ein ek de tekmeirion on epi makrotaton skopounti moi pisteusai xumbainei ou megala nomizo genesthai oute kata tous polemous oute es ta alla.—

Thucydides.

CHAPTER I

Introduction

Ancient History

The Mediterranean Sea with its various branches, penetrating far into the great Continent, forms the largest gulf of the ocean, and, alternately narrowed by islands or projections of the land and expanding to considerable breadth, at once separates and connects the three divisions of the Old World. The shores of this inland sea were in ancient times peopled by various nations belonging in an ethnographical and philological point of view to different races, but constituting in their historical aspect one whole. This historic whole has been usually, but not very appropriately, entitled the history of the ancient world. It is in reality the history of civilization among the Mediterranean nations; and, as it passes before us in its successive stages, it presents four great phases of development—the history of the Coptic or Egyptian stock dwelling on the southern shore, the history of the Aramaean or Syrian nation which occupied the east coast and extended into the interior of Asia as far as the Euphrates and Tigris, and the histories of the twin-peoples, the Hellenes and Italians, who received as their heritage the countries on the European shore. Each of these histories was in its

earlier stages connected with other regions and with other cycles of historical evolution; but each soon entered on its own distinctive career. The surrounding nations of alien or even of kindred extraction—the Berbers and Negroes of Africa, the Arabs, Persians, and Indians of Asia, the Celts and Germans of Europe—came into manifold contact with the peoples inhabiting the borders of the Mediterranean, but they neither imparted unto them nor received from them any influences exercising decisive effect on their respective destinies. So far, therefore, as cycles of culture admit of demarcation at all, the cycle which has its culminating points denoted by the names Thebes, Carthage, Athens, and Rome, may be regarded as an unity. The four nations represented by these names, after each of them had attained in a path of its own a peculiar and noble civilization, mingled with one another in the most varied relations of reciprocal intercourse, and skilfully elaborated and richly developed all the elements of human nature. At length their cycle was accomplished. New peoples who hitherto had only laved the territories of the states of the Mediterranean, as waves lave the beach, overflowed both its shores, severed the history of its south coast from that of the north, and transferred the centre of civilization from the Mediterranean to the Atlantic Ocean. The distinction between ancient and modern history, therefore, is no mere accident, nor yet a mere matter of chronological convenience. What is called modern history is in reality the formation of a new cycle of culture, connected in several stages of its development with the perishing or perished civilization of the Mediterranean states, as this was connected with the primitive civilization of the Indo-Germanic stock, but destined, like the earlier cycle, to traverse an orbit of its own. It too is destined to experience in full measure the vicissitudes of national weal and woe, the periods of growth, of maturity, and of age, the blessedness of creative effort in religion, polity, and art, the comfort of enjoying the material and intellectual acquisitions which it has won, perhaps also, some day, the decay of productive power in the satiety

of contentment with the goal attained. And yet this goal will only be temporary: the grandest system of civilization has its orbit, and may complete its course but not so the human race, to which, just when it seems to have reached its goal, the old task is ever set anew with a wider range and with a deeper meaning.

Italy

Our aim is to exhibit the last act of this great historical drama, to relate the ancient history of the central peninsula projecting from the northern continent into the Mediterranean. It is formed by the mountain-system of the Apennines branching off in a southern direction from the western Alps. The Apennines take in the first instance a south-eastern course between the broader gulf of the Mediterranean on the west, and the narrow one on the east; and in the close vicinity of the latter they attain their greatest elevation, which, however, scarce reaches the line of perpetual snow, in the Abruzzi. From the Abruzzi the chain continues in a southern direction, at first undivided and of considerable height; after a depression which forms a hill-country, it splits into a somewhat flattened succession of heights towards the south-east and a more rugged chain towards the south, and in both directions terminates in the formation of narrow peninsulas.

The flat country on the north, extending between the Alps and the Apennines as far down as the Abruzzi, does not belong geographically, nor until a very late period even historically, to the southern land of mountain and hill, the Italy whose history is here to engage our attention. It was not till the seventh century of the city that the coast-district from Sinigaglia to Rimini, and not till the eighth that the basin of the Po, became incorporated with Italy. The ancient boundary of Italy on the north was not the Alps but the Apennines. This mountain-system nowhere rises abruptly into a

precipitous chain, but, spreading broadly over the land and enclosing many valleys and table-lands connected by easy passes, presents conditions which well adapt it to become the settlement of man. Still more suitable in this respect are the adjacent slopes and the coast-districts on the east, south, and west. On the east coast the plain of Apulia, shut in towards the north by the mountain-block of the Abruzzi and only broken by the steep isolated ridge of Garganus, stretches in a uniform level with but a scanty development of coast and stream. On the south coast, between the two peninsulas in which the Apennines terminate, extensive lowlands, poorly provided with harbours but well watered and fertile, adjoin the hill-country of the interior. The west coast presents a far-stretching domain intersected by considerable streams, in particular by the Tiber, and shaped by the action of the waves and of the once numerous volcanoes into manifold variety of hill and valley, harbour and island. Here the regions of Etruria, Latium, and Campania form the very flower of the land of Italy. South of Campania, the land in front of the mountains gradually diminishes, and the Tyrrhenian Sea almost washes their base. Moreover, as the Peloponnesus is attached to Greece, so the island of Sicily is attached to Italy—the largest and fairest isle of the Mediterranean, having a mountainous and partly desert interior, but girt, especially on the east and south, by a broad belt of the finest coast-land, mainly the result of volcanic action. Geographically the Sicilian mountains are a continuation of the Apennines, hardly interrupted by the narrow "rent"—Pegion—of the straits; and in its historical relations Sicily was in earlier times quite as decidedly a part of Italy as the Peloponnesus was of Greece, a field for the struggles of the same races, and the seat of a similar superior civilization.

The Italian peninsula resembles the Grecian in the temperate climate and wholesome air that prevail on the hills of moderate height, and on the whole, also, in the valleys and plains. In development of coast it is inferior; it wants, in particular, the island-studded sea which made the Hellenes a

seafaring nation. Italy on the other hand excels its neighbour in the rich alluvial plains and the fertile and grassy mountain-slopes, which are requisite for agriculture and the rearing of cattle. Like Greece, it is a noble land which calls forth and rewards the energies of man, opening up alike for restless adventure the way to distant lands and for quiet exertion modes of peaceful gain at home.

But, while the Grecian peninsula is turned towards the east, the Italian is turned towards the west. As the coasts of Epirus and Acarnania had but a subordinate importance in the case of Hellas, so had the Apulian and Messapian coasts in that of Italy; and, while the regions on which the historical development of Greece has been mainly dependent—Attica and Macedonia—look to the east, Etruria, Latium, and Campania look to the west. In this way the two peninsulas, so close neighbours and almost sisters, stand as it were averted from each other. Although the naked eye can discern from Otranto the Acroceraunian mountains, the Italians and Hellenes came into earlier and closer contact on every other pathway rather than on the nearest across the Adriatic Sea. In their instance, as has happened so often, the historical vocation of the nations was prefigured in the relations of the ground which they occupied; the two great stocks, on which the civilization of the ancient world grew, threw their shadow as well as their seed, the one towards the east, the other towards the west.

Italian History

We intend here to relate the history of Italy, not simply the history of the city of Rome. Although, in the formal sense of political law, it was the civic community of Rome which gained the sovereignty first of Italy and then of the world, such a view cannot be held to express the higher and real meaning of history. What has been called the subjugation of Italy by the

Romans appears rather, when viewed in its true light, as the consolidation into an united state of the whole Italian stock—a stock of which the Romans were doubtless the most powerful branch, but still were only a branch.

The history of Italy falls into two main sections: (1) its internal history down to its union under the leadership of the Latin stock, and (2) the history of its sovereignty over the world. Under the first section, which will occupy the first two books, we shall have to set forth the settlement of the Italian stock in the peninsula; the imperilling of its national and political existence, and its partial subjugation, by nations of other descent and older civilization, Greeks and Etruscans; the revolt of the Italians against the strangers, and the annihilation or subjection of the latter; finally, the struggles between the two chief Italian stocks, the Latins and the Samnites, for the hegemony of the peninsula, and the victory of the Latins at the end of the fourth century before the birth of Christ—or of the fifth century of the city. The second section opens with the Punic wars; it embraces the rapid extension of the dominion of Rome up to and beyond the natural boundaries of Italy, the long status quo of the imperial period, and the collapse of the mighty empire. These events will be narrated in the third and following books.

Notes for Book I Chapter I

1. The dates as hereafter inserted in the text are years of the City (A.U.C.); those in the margin give the corresponding years B.C.

CHAPTER II

The Earliest Migrations into Italy

Primitive Races of Italy

We have no information, not even a tradition, concerning the first migration of the human race into Italy. It was the universal belief of antiquity that in Italy, as well as elsewhere, the first population had sprung from the soil. We leave it to the province of the naturalist to decide the question of the origin of different races, and of the influence of climate in producing their diversities. In a historical point of view it is neither possible, nor is it of any importance, to determine whether the oldest recorded population of a country were autochthones or immigrants. But it is incumbent on the historical inquirer to bring to light the successive strata of population in the country of which he treats, in order to trace, from as remote an epoch as possible, the gradual progress of civilization to more perfect forms, and the suppression of races less capable of, or less advanced in, culture by nations of higher standing.

Italy is singularly poor in memorials of the primitive period, and presents in this respect a remarkable contrast to other fields of civilization. The results of German archaeological research lead to the conclusion that in

England, France, the North of Germany and Scandinavia, before the settlement of the Indo-Germans in those lands, there must have dwelt, or rather roamed, a people, perhaps of Mongolian race, gaining their subsistence by hunting and fishing, making their implements of stone, clay, or bones, adorning themselves with the teeth of animals and with amber, but unacquainted with agriculture and the use of the metals. In India, in like manner, the Indo-Germanic settlers were preceded by a dark-coloured population less susceptible of culture. But in Italy we neither meet with fragments of a supplanted nation, such as the Finns and Lapps in the Celto-Germanic domain and the black tribes in the Indian mountains; nor have any remains of an extinct primitive people been hitherto pointed out there, such as appear to be revealed in the peculiarly-formed skeletons, the places of assembling, and the burial mounds of what is called the stone-period of Germanic antiquity. Nothing has hitherto been brought to light to warrant the supposition that mankind existed in Italy at a period anterior to the knowledge of agriculture and of the smelting of the metals; and if the human race ever within the bounds of Italy really occupied the level of that primitive stage of culture which we are accustomed to call the savage state, every trace of such a fact has disappeared.

Individual tribes, or in other words, races or stocks, are the constituent elements of the earliest history. Among the stocks which in later times we meet with in Italy, the immigration of some, of the Hellenes for instance, and the denationalization of others, such as the Bruttians and the inhabitants of the Sabine territory, are historically attested. Setting aside both these classes, there remain a number of stocks whose wanderings can no longer be traced by means of historical testimony, but only by a priori inference, and whose nationality cannot be shown to have undergone any radical change from external causes. To establish the national individuality of these is the first aim of our inquiry. In such an inquiry, had we nothing to fall back upon but the chaotic mass of names of tribes and the confusion of

what professes to be historical tradition, the task might well be abandoned as hopeless. The conventionally received tradition, which assumes the name of history, is composed of a few serviceable notices by civilized travellers, and a mass of mostly worthless legends, which have usually been combined with little discrimination of the true character either of legend or of history. But there is another source of tradition to which we may resort, and which yields information fragmentary but authentic; we mean the indigenous languages of the stocks settled in Italy from time immemorial. These languages, which have grown with the growth of the peoples themselves, have had the stamp of their process of growth impressed upon them too deeply to be wholly effaced by subsequent civilization. One only of the Italian languages is known to us completely; but the remains which have been preserved of several of the others are sufficient to afford a basis for historical inquiry regarding the existence, and the degrees, of family relationship among the several languages and peoples.

In this way philological research teaches us to distinguish three primitive Italian stocks, the Iapygian, the Etruscan, and that which we shall call the Italian. The last is divided into two main branches,—the Latin branch, and that to which the dialects of the Umbri, Marsi, Volsci, and Samnites belong.

Iapygians

As to the Iapygian stock, we have but little information. At the southeastern extremity of Italy, in the Messapian or Calabrian peninsula, inscriptions in a peculiar extinct language⁽¹⁾ have been found in considerable numbers; undoubtedly remains of the dialect of the Iapygians, who are very distinctly pronounced by tradition also to have been different from the Latin and Samnite stocks. Statements deserving of credit and numerous indications lead to the conclusion that the same language and the

same stock were indigenous also in Apulia. What we at present know of this people suffices to show clearly that they were distinct from the other Italians, but does not suffice to determine what position should be assigned to them and to their language in the history of the human race. The inscriptions have not yet been, and it is scarcely to be expected that they ever will be, deciphered. The genitive forms, -aihi- and -ihi-, corresponding to the Sanscrit -asya- and the Greek —οιο—, appear to indicate that the dialect belongs to the Indo-Germanic family. Other indications, such as the use of the aspirated consonants and the avoiding of the letters m and t as terminal sounds, show that this Iapygian dialect was essentially different from the Italian and corresponded in some respects to the Greek dialects. The supposition of an especially close affinity between the Iapygian nation and the Hellenes finds further support in the frequent occurrence of the names of Greek divinities in the inscriptions, and in the surprising facility with which that people became Hellenized, presenting a striking contrast to the shyness in this respect of the other Italian nations. Apulia, which in the time of Timaeus (400) was still described as a barbarous land, had in the sixth century of the city become a province thoroughly Greek, although no direct colonization from Greece had taken place; and even among the ruder stock of the Messapii there are various indications of a similar tendency. With the recognition of such a general family relationship or peculiar affinity between the Iapygians and Hellenes (a recognition, however, which by no means goes so far as to warrant our taking the Iapygian language to be a rude dialect of Greek), investigation must rest content, at least in the meantime, until some more precise and better assured result be attainable.

(2) The lack of information, however, is not much felt; for this race, already on the decline at the period when our history begins, comes before us only when it is giving way and disappearing. The character of the Iapygian people, little capable of resistance, easily merging into other nationalities, agrees well with the hypothesis, to which their geographical position adds

probability, that they were the oldest immigrants or the historical autochthones of Italy. There can be no doubt that all the primitive migrations of nations took place by land; especially such as were directed towards Italy, the coast of which was accessible by sea only to skilful sailors and on that account was still in Homer's time wholly unknown to the Hellenes. But if the earlier settlers came over the Apennines, then, as the geologist infers the origin of mountains from their stratification, the historical inquirer may hazard the conjecture that the stocks pushed furthest towards the south were the oldest inhabitants of Italy; and it is just at its extreme south-eastern verge that we meet with the Iapygian nation.

Italians

The middle of the peninsula was inhabited, as far back as trustworthy tradition reaches, by two peoples or rather two branches of the same people, whose position in the Indo-Germanic family admits of being determined with greater precision than that of the Iapygian nation. We may with propriety call this people the Italian, since upon it rests the historical significance of the peninsula. It is divided into the two branch-stocks of the Latins and the Umbrians; the latter including their southern offshoots, the Marsians and Samnites, and the colonies sent forth by the Samnites in historical times. The philological analysis of the idioms of these stocks has shown that they together constitute a link in the Indo-Germanic chain of languages, and that the epoch in which they still formed an unity is a comparatively late one. In their system of sounds there appears the peculiar spirant -f, in the use of which they agree with the Etruscans, but decidedly differ from all Hellenic and Helleno-barbaric races as well as from the Sanscrit itself. The aspirates, again, which are retained by the Greeks throughout, and the harsher of them also by the Etruscans, were originally foreign to the Italians, and are represented among them by one of their

elements—either by the media, or by the breathing alone -f or -h. The finer spirants, -s, -w, -j, which the Greeks dispense with as much as possible, have been retained in the Italian languages almost unimpaired, and have been in some instances still further developed. The throwing back of the accent and the consequent destruction of terminations are common to the Italians with some Greek stocks and with the Etruscans; but among the Italians this was done to a greater extent than among the former, and to a lesser extent than among the latter. The excessive disorder of the terminations in the Umbrian certainly had no foundation in the original spirit of the language, but was a corruption of later date, which appeared in a similar although weaker tendency also at Rome. Accordingly in the Italian languages short vowels are regularly dropped in the final sound, long ones frequently: the concluding consonants, on the other hand, have been tenaciously retained in the Latin and still more so in the Samnite; while the Umbrian drops even these. In connection with this we find that the middle voice has left but slight traces in the Italian languages, and a peculiar passive formed by the addition of -r takes its place; and further that the majority of the tenses are formed by composition with the roots -es and -fu, while the richer terminational system of the Greeks along with the augment enables them in great part to dispense with auxiliary verbs. While the Italian languages, like the Aeolic dialect, gave up the dual, they retained universally the ablative which the Greeks lost, and in great part also the locative. The rigorous logic of the Italians appears to have taken offence at the splitting of the idea of plurality into that of duality and of multitude; while they have continued with much precision to express the relations of words by inflections. A feature peculiarly Italian, and unknown even to the Sanscrit, is the mode of imparting a substantive character to the verb by gerunds and supines,—a process carried out more completely here than in any other language.

Relation of the Italians to the Greeks

These examples selected from a great abundance of analogous phenomena suffice to establish the individuality of the Italian stock as distinguished from the other members of the Indo-Germanic family, and at the same time show it to be linguistically the nearest relative, as it is geographically the next neighbour, of the Greek. The Greek and the Italian are brothers; the Celt, the German, and the Slavonian are their cousins. The essential unity of all the Italian as of all the Greek dialects and stocks must have dawned early and clearly on the consciousness of the two great nations themselves; for we find in the Roman language a very ancient word of enigmatical origin, -Grai-us-or -Graicus-, which is applied to every Greek, and in like manner amongst the Greeks the analogous appellation —Opikos — which is applied to all the Latin and Samnite stocks known to the Greeks in earlier times, but never to the Iapygians or Etruscans.

Relation of the Latins to the Umbro-Samnites

Among the languages of the Italian stock, again, the Latin stands in marked contrast with the Umbro-Samnite dialects. It is true that of these only two, the Umbrian and the Samnite or Oscan, are in some degree known to us, and these even in a manner extremely defective and uncertain. Of the rest some, such as the Marsian and the Volscian, have reached us in fragments too scanty to enable us to form any conception of their individual peculiarities or to classify the varieties of dialect themselves with certainty and precision, while others, like the Sabine, have, with the exception of a few traces preserved as dialectic peculiarities in provincial Latin, completely disappeared. A conjoint view, however, of the facts of language and of history leaves no doubt that all these dialects belonged to the Umbro-

Samnite branch of the great Italian stock, and that this branch, although much more closely related to Latin than to Greek, was very decidedly distinct from the Latin. In the pronoun and other cases frequently the Samnite and Umbrian used -p where the Roman used -q, as -pis- for -quis-; just as languages otherwise closely related are found to differ; for instance, -p is peculiar to the Celtic in Brittany and Wales, -k to the Gaelic and Erse. Among the vowel sounds the diphthongs in Latin, and in the northern dialects generally, appear very much destroyed, whereas in the southern Italian dialects they have suffered little; and connected with this is the fact, that in composition the Roman weakens the radical vowel otherwise so strictly preserved,—a modification which does not take place in the kindred group of languages. The genitive of words in -a is in this group as among the Greeks -as, among the Romans in the matured language -ae; that of words in -us is in the Samnite -eis, in the Umbrian -es, among the Romans -ei; the locative disappeared more and more from the language of the latter, while it continued in full use in the other Italian dialects; the dative plural in -bus is extant only in Latin. The Umbro-Samnite infinitive in -um is foreign to the Romans; while the Osco-Umbrian future formed from the root -es after the Greek fashion (-her-est- like —leg-so—) has almost, perhaps altogether, disappeared in Latin, and its place is supplied by the optative of the simple verb or by analogous formations from -fuo-(-amabo-). In many of these instances, however—in the forms of the cases, for example—the differences only exist in the two languages when fully formed, while at the outset they coincide. It thus appears that, while the Italian language holds an independent position by the side of the Greek, the Latin dialect within it bears a relation to the Umbro-Samnite somewhat similar to that of the Ionic to the Doric; and the differences of the Oscan and Umbrian and kindred dialects may be compared with the differences between the Dorism of Sicily and the Dorism of Sparta.

Each of these linguistic phenomena is the result and the attestation of an historical event. With perfect certainty they guide us to the conclusion, that from the common cradle of peoples and languages there issued a stock which embraced in common the ancestors of the Greeks and the Italians; that from this, at a subsequent period, the Italians branched off; and that these again divided into the western and eastern stocks, while at a still later date the eastern became subdivided into Umbrians and Oscans.

When and where these separations took place, language of course cannot tell; and scarce may adventurous thought attempt to grope its conjectural way along the course of those revolutions, the earliest of which undoubtedly took place long before that migration which brought the ancestors of the Italians across the Apennines. On the other hand the comparison of languages, when conducted with accuracy and caution, may give us an approximate idea of the degree of culture which the people had reached when these separations took place, and so furnish us with the beginnings of history, which is nothing but the development of civilization. For language, especially in the period of its formation, is the true image and organ of the degree of civilization attained; its archives preserve evidence of the great revolutions in arts and in manners, and from its records the future will not fail to draw information as to those times regarding which the voice of direct tradition is dumb.

Indo-Germanic Culture

During the period when the Indo-Germanic nations which are now separated still formed one stock speaking the same language, they attained a certain stage of culture, and they had a vocabulary corresponding to it. This vocabulary the several nations carried along with them, in its conventionally established use, as a common dowry and a foundation for

further structures of their own. In it we find not merely the simplest terms denoting existence, actions, perceptions, such as -sum-, -do-, -pater-, the original echo of the impression which the external world made on the mind of man, but also a number of words indicative of culture (not only as respects their roots, but in a form stamped upon them by custom) which are the common property of the Indo-Germanic family, and which cannot be explained either on the principle of an uniform development in the several languages, or on the supposition of their having subsequently borrowed one from another. In this way we possess evidence of the development of pastoral life at that remote epoch in the unalterably fixed names of domestic animals; the Sanscrit -gaus- is the Latin -bos-, the Greek —bous—; Sanscrit -avis- is the Latin -ovis-, Greek —ois—; Sanscrit -asvas-, Latin -equus-, Greek —ippos—; Sanscrit -hansas-, Latin -anser-, Greek —chein—; Sanscrit -atis-, Latin -anas-, Greek —neissa—; in like manner -pecus-, -sus-, -porcus-, -taurus-, -canis-, are Sanscrit words. Even at this remote period accordingly the stock, on which from the days of Homer down to our own time the intellectual development of mankind has been dependent, had already advanced beyond the lowest stage of civilization, the hunting and fishing epoch, and had attained at least comparative fixity of abode. On the other hand, we have as yet no certain proofs of the existence of agriculture at this period. Language rather favours the negative view. Of the Latin-Greek names of grain none occurs in Sanscrit with the single exception of —zea—, which philologically represents the Sanscrit -yavas-, but denotes in the Indian barley, in Greek spelt. It must indeed be granted that this diversity in the names of cultivated plants, which so strongly contrasts with the essential agreement in the appellations of domestic animals, does not absolutely preclude the supposition of a common original agriculture. In the circumstances of primitive times transport and acclimatizing are more difficult in the case of plants than of animals; and the cultivation of rice among the Indians, that of wheat and spelt among the Greeks and Romans,

and that of rye and oats among the Germans and Celts, may all be traceable to a common system of primitive tillage. On the other hand the name of one cereal common to the Greeks and Indians only proves, at the most, that before the separation of the stocks they gathered and ate the grains of barley and spelt growing wild in Mesopotamia,(3) not that they already cultivated grain. While, however, we reach no decisive result in this way, a further light is thrown on the subject by our observing that a number of the most important words bearing on this province of culture occur certainly in Sanscrit, but all of them in a more general signification. -Agras-among the Indians denotes a level surface in general; -kurnu-, anything pounded; -aritrām-, oar and ship; -venas-, that which is pleasant in general, particularly a pleasant drink. The words are thus very ancient; but their more definite application to the field (-ager-), to the grain to be ground (-granum-), to the implement which furrows the soil as the ship furrows the surface of the sea (-aratrum-), to the juice of the grape (-vinum-), had not yet taken place when the earliest division of the stocks occurred, and it is not to be wondered at that their subsequent applications came to be in some instances very different, and that, for example, the corn intended to be ground, as well as the mill for grinding it (Gothic -quairinus-, Lithuanian -girnōs-, (4)) received their names from the Sanscrit -kurnu-. We may accordingly assume it as probable, that the primeval Indo-Germanic people were not yet acquainted with agriculture, and as certain, that, if they were so, it played but a very subordinate part in their economy; for had it at that time held the place which it afterwards held among the Greeks and Romans, it would have left a deeper impression upon the language.

On the other hand the building of houses and huts by the Indo-Germans is attested by the Sanscrit -dam(as)-, Latin -domus-, Greek —domos—; Sanscrit -veśas-, Latin -vicus-, Greek —oikos—; Sanscrit -dvaras-, Latin -fores-, Greek —thura—; further, the building of oar-boats by the names of the boat, Sanscrit -naus-, Latin -navis-, Greek —naus—, and of the oar,

Sanskrit -aritrām-, Greek —eretmos—, Latin -remus-, -tri-res-mis-; and the use of waggons and the breaking in of animals for draught and transport by the Sanskrit -akshas- (axle and cart), Latin -axis-, Greek —axon—, —am-axa—; Sanskrit -iugam-, Latin -iugum-, Greek —zugon—. The words that denote clothing- Sanskrit -vastra-, Latin -vestis-, Greek —esthes—; as well as those that denote sewing and spinning-Sanskrit -siv-, Latin -suo-; Sanskrit -nah-, Latin -neo-, Greek —netho—, are alike in all Indo-Germanic languages. This cannot, however, be equally affirmed of the higher art of weaving.(5) The knowledge of the use of fire in preparing food, and of salt for seasoning it, is a primeval heritage of the Indo-Germanic nations; and the same may be affirmed regarding the knowledge of the earliest metals employed as implements or ornaments by man. At least the names of copper (-aes-) and silver (-argentum-), perhaps also of gold, are met with in Sanskrit, and these names can scarcely have originated before man had learned to separate and to utilize the ores; the Sanskrit -asis-, Latin -ensis-, points in fact to the primeval use of metallic weapons.

No less do we find extending back into those times the fundamental ideas on which the development of all Indo-Germanic states ultimately rests; the relative position of husband and wife, the arrangement in clans, the priesthood of the father of the household and the absence of a special sacerdotal class as well as of all distinctions of caste in general, slavery as a legitimate institution, the days of publicly dispensing justice at the new and full moon. On the other hand the positive organization of the body politic, the decision of the questions between regal sovereignty and the sovereignty of the community, between the hereditary privilege of royal and noble houses and the unconditional legal equality of the citizens, belong altogether to a later age.

Even the elements of science and religion show traces of a community of origin. The numbers are the same up to one hundred (Sanskrit -satam-, -

ekasatam-, Latin -centum-, Greek —e-katon—, Gothic -hund-); and the moon receives her name in all languages from the fact that men measure time by her (-mensis-). The idea of Deity itself (Sanskrit -devas-, Latin -deus-, Greek —theos—), and many of the oldest conceptions of religion and of natural symbolism, belong to the common inheritance of the nations. The conception, for example, of heaven as the father and of earth as the mother of being, the festal expeditions of the gods who proceed from place to place in their own chariots along carefully levelled paths, the shadowy continuation of the soul's existence after death, are fundamental ideas of the Indian as well as of the Greek and Roman mythologies. Several of the gods of the Ganges coincide even in name with those worshipped on the Ilissus and the Tiber:—thus the Uranus of the Greeks is the Varunas, their Zeus, Jovis pater, Diespiter is the Djaus pita of the Vedas. An unexpected light has been thrown on various enigmatical forms in the Hellenic mythology by recent researches regarding the earlier divinities of India. The hoary mysterious forms of the Erinnyes are no Hellenic invention; they were immigrants along with the oldest settlers from the East. The divine greyhound Sarama, who guards for the Lord of heaven the golden herd of stars and sunbeams and collects for him the nourishing rain-clouds as the cows of heaven to the milking, and who moreover faithfully conducts the pious dead into the world of the blessed, becomes in the hands of the Greeks the son of Sarama, Sarameyas, or Hermeias; and the enigmatical Hellenic story of the stealing of the cattle of Helios, which is beyond doubt connected with the Roman legend about Cacus, is now seen to be a last echo (with the meaning no longer understood) of that old fanciful and significant conception of nature.

Graeco-Italian Culture

The task, however, of determining the degree of culture which the Indo-Germans had attained before the separation of the stocks properly belongs to the general history of the ancient world. It is on the other hand the special task of Italian history to ascertain, so far as it is possible, what was the state of the Graeco-Italian nation when the Hellenes and the Italians parted. Nor is this a superfluous labour; we reach by means of it the stage at which Italian civilization commenced, the starting-point of the national history.

Agriculture

While it is probable that the Indo-Germans led a pastoral life and were acquainted with the cereals, if at all, only in their wild state, all indications point to the conclusion that the Graeco-Italians were a grain-cultivating, perhaps even a vine-cultivating, people. The evidence of this is not simply the knowledge of agriculture itself common to both, for this does not upon the whole warrant the inference of community of origin in the peoples who may exhibit it. An historical connection between the Indo-Germanic agriculture and that of the Chinese, Aramaean, and Egyptian stocks can hardly be disputed; and yet these stocks are either alien to the Indo-Germans, or at any rate became separated from them at a time when agriculture was certainly still unknown. The truth is, that the more advanced races in ancient times were, as at the present day, constantly exchanging the implements and the plants employed in cultivation; and when the annals of China refer the origin of Chinese agriculture to the introduction of five species of grain that took place under a particular king in a particular year, the story undoubtedly depicts correctly, at least in a general way, the relations subsisting in the earliest epochs of civilization. A common knowledge of agriculture, like a common knowledge of the alphabet, of war chariots, of purple, and other implements and ornaments, far more frequently warrants the inference of an ancient intercourse between nations

than of their original unity. But as regards the Greeks and Italians, whose mutual relations are comparatively well known, the hypothesis that agriculture as well as writing and coinage first came to Italy by means of the Hellenes may be characterized as wholly inadmissible. On the other hand, the existence of a most intimate connection between the agriculture of the one country and that of the other is attested by their possessing in common all the oldest expressions relating to it; -ager-, —agros—; -aro aratrum-, —aroo arotron—; -ligo-alongside of —lachaino—; -hortus-, —chortos—; -hordeum-, —krithei—; -miliun-, —melinei—; -rapa-, —raphanis—; -malva-, —malachei—; -vinum-, —oinos—. It is likewise attested by the agreement of Greek and Italian agriculture in the form of the plough, which appears of the same shape on the old Attic and the old Roman monuments; in the choice of the most ancient kinds of grain, millet, barley, spelt; in the custom of cutting the ears with the sickle and having them trodden out by cattle on the smooth-beaten threshing-floor; lastly, in the mode of preparing the grain -puls- —poltos—, -pinso- —ptisso—, -mola- —mulei—; for baking was of more recent origin, and on that account dough or pap was always used in the Roman ritual instead of bread. That the culture of the vine too in Italy was anterior to the earliest Greek immigration, is shown by the appellation "wine-land" (—Oinotria—), which appears to reach back to the oldest visits of Greek voyagers. It would thus appear that the transition from pastoral life to agriculture, or, to speak more correctly, the combination of agriculture with the earlier pastoral economy, must have taken place after the Indians had departed from the common cradle of the nations, but before the Hellenes and Italians dissolved their ancient communion. Moreover, at the time when agriculture originated, the Hellenes and Italians appear to have been united as one national whole not merely with each other, but with other members of the great family; at least, it is a fact, that the most important of those terms of cultivation, while they are foreign to the Asiatic members of the Indo-

Germanic family, are used by the Romans and Greeks in common with the Celtic as well as the Germanic, Slavonic, and Lithuanian stocks.(6)

The distinction between the common inheritance of the nations and their own subsequent acquisitions in manners and in language is still far from having been wrought out in all the variety of its details and gradations. The investigation of languages with this view has scarcely begun, and history still in the main derives its representation of primitive times, not from the rich mine of language, but from what must be called for the most part the rubbish-heap of tradition. For the present, therefore, it must suffice to indicate the differences between the culture of the Indo-Germanic family in its oldest undivided form, and the culture of that epoch when the Graeco-Italians still lived together. The task of discriminating the results of culture which are common to the European members of this family, but foreign to its Asiatic members, from those which the several European groups, such as the Graeco-Italian and the Germano-Slavonic, have wrought out for themselves, can only be accomplished, if at all, after greater progress has been made in linguistic and historical inquiries. But there can be no doubt that, with the Graeco-Italians as with all other nations, agriculture became and in the mind of the people remained the germ and core of their national and of their private life. The house and the fixed hearth, which the husbandman constructs instead of the light hut and shifting fireplace of the shepherd, are represented in the spiritual domain and idealized in the goddess Vesta or —Estia— almost the only divinity not Indo-Germanic yet from the first common to both nations. One of the oldest legends of the Italian stock ascribes to king Italus, or, as the Italians must have pronounced the word, Vitalus or Vitulus, the introduction of the change from a pastoral to an agricultural life, and shrewdly connects with it the original Italian legislation. We have simply another version of the same belief in the legend of the Samnite stock which makes the ox the leader of their primitive colonies, and in the oldest Latin national names which designate the people

as reapers (-Siculi-, perhaps also -Sicani-), or as field-labourers (-Opsci-). It is one of the characteristic incongruities which attach to the so-called legend of the origin of Rome, that it represents a pastoral and hunting people as founding a city. Legend and faith, laws and manners, among the Italians as among the Hellenes are throughout associated with agriculture. (7)

Cultivation of the soil cannot be conceived without some measurement of it, however rude. Accordingly, the measures of surface and the mode of setting off boundaries rest, like agriculture itself, on a like basis among both peoples. The Oscan and Umbrian -vorsus- of one hundred square feet corresponds exactly with the Greek —plethron—. The principle of marking off boundaries was also the same. The land-measurer adjusted his position with reference to one of the cardinal points, and proceeded to draw in the first place two lines, one from north to south, and another from east to west, his station being at their point of intersection (-templum-, —temenos— from —temno—); then he drew at certain fixed distances lines parallel to these, and by this process produced a series of rectangular pieces of ground, the corners of which were marked by boundary posts (-termini-, in Sicilian inscriptions -termones-, usually —oroi—). This mode of defining boundaries, which is probably also Etruscan but is hardly of Etruscan origin, we find among the Romans, Umbrians, Samnites, and also in very ancient records of the Tarentine Heracleots, who are as little likely to have borrowed it from the Italians as the Italians from the Tarentines: it is an ancient possession common to all. A peculiar characteristic of the Romans, on the other hand, was their rigid carrying out of the principle of the square; even where the sea or a river formed a natural boundary, they did not accept it, but wound up their allocation of the land with the last complete square.

Other Features of Their Economy

It is not solely in agriculture, however, that the especially close relationship of the Greeks and Italians appears; it is unmistakably manifest also in the other provinces of man's earliest activity. The Greek house, as described by Homer, differs little from the model which was always adhered to in Italy. The essential portion, which originally formed the whole interior accommodation of the Latin house, was the -atrium-, that is, the "blackened" chamber, with the household altar, the marriage bed, the table for meals, and the hearth; and precisely similar is the Homeric —megaron—, with its household altar and hearth and smoke-begrimed roof. We cannot say the same of ship-building. The boat with oars was an old common possession of the Indo-Germans; but the advance to the use of sailing vessels can scarcely be considered to have taken place during the Graeco-Italian period, for we find no nautical terms originally common to the Greeks and Italians except such as are also general among the Indo-Germanic family. On the other hand the primitive Italian custom of the husbandmen having common midday meals, the origin of which the myth connects with the introduction of agriculture, is compared by Aristotle with the Cretan Syssitia; and the earliest Romans further agreed with the Cretans and Laconians in taking their meals not, as was afterwards the custom among both peoples, in a reclining, but in a sitting posture. The mode of kindling fire by the friction of two pieces of wood of different kinds is common to all peoples; but it is certainly no mere accident that the Greeks and Italians agree in the appellations which they give to the two portions of the touch-wood, "the rubber" (—trypanon—, -terebra-), and the "under-layer" (—storeus—, —eschara—, -tabula-, probably from -tendere-, —tetamai—). In like manner the dress of the two peoples is essentially identical, for the -tunica- quite corresponds with the —chiton—, and the -toga- is nothing but a fuller —himation—. Even as regards weapons of war, liable as they are to frequent change, the two peoples have this much at least in common, that their two principal weapons of attack were the javelin

and the bow,—a fact which is clearly expressed, as far as Rome is concerned, in the earliest names for warriors (-pilumni—arquites-),(8) and is in keeping with the oldest mode of fighting which was not properly adapted to a close struggle. Thus, in the language and manners of Greeks and Italians, all that relates to the material foundations of human existence may be traced back to the same primary elements; the oldest problems which the world proposes to man had been jointly solved by the two peoples at a time when they still formed one nation.

Difference of the Italian and the Greek Character

It was otherwise in the mental domain. The great problem of man—how to live in conscious harmony with himself, with his neighbour, and with the whole to which he belongs—admits of as many solutions as there are provinces in our Father's kingdom; and it is in this, and not in the material sphere, that individuals and nations display their divergences of character. The exciting causes which gave rise to this intrinsic contrast must have been in the Graeco-Italian period as yet wanting; it was not until the Hellenes and Italians had separated that that deep-seated diversity of mental character became manifest, the effects of which continue to the present day. The family and the state, religion and art, received in Italy and in Greece respectively a development so peculiar and so thoroughly national, that the common basis, on which in these respects also the two peoples rested, has been so overgrown as to be almost concealed from our view. That Hellenic character, which sacrificed the whole to its individual elements, the nation to the township, and the township to the citizen; which sought its ideal of life in the beautiful and the good, and, but too often, in the enjoyment of idleness; which attained its political development by intensifying the original individuality of the several cantons, and at length produced the internal dissolution of even local authority; which in its view of religion

first invested the gods with human attributes, and then denied their existence; which allowed full play to the limbs in the sports of the naked youth, and gave free scope to thought in all its grandeur and in all its awfulness;—and that Roman character, which solemnly bound the son to reverence the father, the citizen to reverence the ruler, and all to reverence the gods; which required nothing and honoured nothing but the useful act, and compelled every citizen to fill up every moment of his brief life with unceasing work; which made it a duty even in the boy modestly to cover the body; which deemed every one a bad citizen who wished to be different from his fellows; which regarded the state as all in all, and a desire for the state's extension as the only aspiration not liable to censure,—who can in thought trace back these sharply-marked contrasts to that original unity which embraced them both, prepared the way for their development, and at length produced them? It would be foolish presumption to desire to lift this veil; we shall only endeavour to indicate in brief outline the beginnings of Italian nationality and its connections with an earlier period—to direct the guesses of the discerning reader rather than to express them.

The Family and the State

All that may be called the patriarchal element in the state rested in Greece and Italy on the same foundations. Under this head comes especially the moral and decorous arrangement of social life,(9) which enjoined monogamy on the husband and visited with heavy penalties the infidelity of the wife, and which recognized the equality of the sexes and the sanctity of marriage in the high position which it assigned to the mother within the domestic circle. On the other hand the rigorous development of the marital and still more of the paternal authority, regardless of the natural rights of persons as such, was a feature foreign to the Greeks and peculiarly Italian; it was in Italy alone that moral subjection became transformed into legal

slavery. In the same way the principle of the slave being completely destitute of legal rights—a principle involved in the very nature of slavery—was maintained by the Romans with merciless rigour and carried out to all its consequences; whereas among the Greeks alleviations of its harshness were early introduced both in practice and in legislation, the marriage of slaves, for example, being recognized as a legal relation.

On the household was based the clan, that is, the community of the descendants of the same progenitor; and out of the clan among the Greeks as well as the Italians arose the state. But while under the weaker political development of Greece the clan-bond maintained itself as a corporate power in contradistinction to that of the state far even into historical times, the state in Italy made its appearance at once complete, in so far as in presence of its authority the clans were quite neutralized and it exhibited an association not of clans, but of citizens. Conversely, again, the individual attained, in presence of the clan, an inward independence and freedom of personal development far earlier and more completely in Greece than in Rome—a fact reflected with great clearness in the Greek and Roman proper names, which, originally similar, came to assume very different forms. In the more ancient Greek names the name of the clan was very frequently added in an adjective form to that of the individual; while, conversely, Roman scholars were aware that their ancestors bore originally only one name, the later -praenomen-. But while in Greece the adjectival clan-name early disappeared, it became, among the Italians generally and not merely among the Romans, the principal name; and the distinctive individual name, the -praenomen-, became subordinate. It seems as if the small and ever diminishing number and the meaningless character of the Italian, and particularly of the Roman, individual names, compared with the luxuriant and poetical fulness of those of the Greeks, were intended to illustrate the truth that it was characteristic of the one nation to reduce all to a level, of the other to promote the free development of personality. The association in

communities of families under patriarchal chiefs, which we may conceive to have prevailed in the Graeco-Italian period, may appear different enough from the later forms of Italian and Hellenic polities; yet it must have already contained the germs out of which the future laws of both nations were moulded. The "laws of king Italus," which were still applied in the time of Aristotle, may denote the institutions essentially common to both. These laws must have provided for the maintenance of peace and the execution of justice within the community, for military organization and martial law in reference to its external relations, for its government by a patriarchal chief, for a council of elders, for assemblies of the freemen capable of bearing arms, and for some sort of constitution. Judicial procedure (-crimen-, —krinein—, expiation (-poena-, —poinai—), retaliation (-talio-, —talao—, —tleinai—, are Graeco-Italian ideas. The stern law of debt, by which the debtor was directly responsible with his person for the repayment of what he had received, is common to the Italians, for example, with the Tarentine Heracleots. The fundamental ideas of the Roman constitution—a king, a senate, and an assembly entitled simply to ratify or to reject the proposals which the king and senate should submit to it—are scarcely anywhere expressed so distinctly as in Aristotle's account of the earlier constitution of Crete. The germs of larger state-confederacies in the political fraternizing or even amalgamation of several previously independent stocks (symmarchy, synoikismos) are in like manner common to both nations. The more stress is to be laid on this fact of the common foundations of Hellenic and Italian polity, that it is not found to extend to the other Indo-Germanic stocks; the organization of the Germanic community, for example, by no means starts, like that of the Greeks and Romans, from an elective monarchy. But how different the polities were that were constructed on this common basis in Italy and Greece, and how completely the whole course of their political development belongs to each as its distinctive property,(10) it will be the business of the sequel to show.

Religion

It is the same in religion. In Italy, as in Hellas, there lies at the foundation of the popular faith the same common treasure of symbolic and allegorical views of nature: on this rests that general analogy between the Roman and the Greek world of gods and of spirits, which was to become of so much importance in later stages of development. In many of their particular conceptions also,—in the already mentioned forms of Zeus-Diovis and Hestia-Vesta, in the idea of the holy space (—temenos—, -templum-), in various offerings and ceremonies—the two modes of worship do not by mere accident coincide. Yet in Hellas, as in Italy, they assumed a shape so thoroughly national and peculiar, that but little even of the ancient common inheritance was preserved in a recognizable form, and that little was for the most part misunderstood or not understood at all. It could not be otherwise; for, just as in the peoples themselves the great contrasts, which during the Graeco-Italian period had lain side by side undeveloped, were after their division distinctly evolved, so in their religion also a separation took place between the idea and the image, which had hitherto been but one whole in the soul. Those old tillers of the ground, when the clouds were driving along the sky, probably expressed to themselves the phenomenon by saying that the hound of the gods was driving together the startled cows of the herd. The Greek forgot that the cows were really the clouds, and converted the son of the hound of the gods—a form devised merely for the particular purposes of that conception—into the adroit messenger of the gods ready for every service. When the thunder rolled among the mountains, he saw Zeus brandishing his bolts on Olympus; when the blue sky again smiled upon him, he gazed into the bright eye of Athenaëa, the daughter of Zeus; and so powerful over him was the influence of the forms which he had thus created, that he soon saw nothing in them but human beings invested and illumined with the splendour of nature's power, and freely formed and

transformed them according to the laws of beauty. It was in another fashion, but not less strongly, that the deeply implanted religious feeling of the Italian race manifested itself; it held firmly by the idea and did not suffer the form to obscure it. As the Greek, when he sacrificed, raised his eyes to heaven, so the Roman veiled his head; for the prayer of the former was contemplation, that of the latter reflection. Throughout the whole of nature he adored the spiritual and the universal. To everything existing, to the man and to the tree, to the state and to the store-room, was assigned a spirit which came into being with it and perished along with it, the counterpart of the natural phenomenon in the spiritual domain; to the man the male Genius, to the woman the female Juno, to the boundary Terminus, to the forest Silvanus, to the circling year Vertumnus, and so on to every object after its kind. In occupations the very steps of the process were spiritualized: thus, for example, in the prayer for the husbandman there was invoked the spirit of fallowing, of ploughing, of furrowing, sowing, covering-in, harrowing, and so forth down to that of the in-bringing, up-storing, and opening of the granaries. In like manner marriage, birth, and every other natural event were endowed with a sacred life. The larger the sphere embraced in the abstraction, the higher rose the god and the reverence paid by man. Thus Jupiter and Juno are the abstractions of manhood and womanhood; Dea Dia or Ceres, the creative power; Minerva, the power of memory; Dea Bona, or among the Samnites Dea Cupra, the good deity. While to the Greek everything assumed a concrete and corporeal shape, the Roman could only make use of abstract, completely transparent formulae; and while the Greek for the most part threw aside the old legendary treasures of primitive times, because they embodied the idea in too transparent a form, the Roman could still less retain them, because the sacred conceptions seemed to him dimmed even by the lightest veil of allegory. Not a trace has been preserved among the Romans even of the oldest and most generally diffused myths, such as that current among the

Indians, the Greeks, and even the Semites, regarding a great flood and its survivor, the common ancestor of the present human race. Their gods could not marry and beget children, like those of the Hellenes; they did not walk about unseen among mortals; and they needed no nectar. But that they, nevertheless, in their spirituality—which only appears tame to dull apprehension—gained a powerful hold on men's minds, a hold more powerful perhaps than that of the gods of Hellas created after the image of man, would be attested, even if history were silent on the subject, by the Roman designation of faith (the word and the idea alike foreign to the Hellenes), -Religio-, that is to say, "that which binds." As India and Iran developed from one and the same inherited store, the former, the richly varied forms of its sacred epics, the latter, the abstractions of the Zend-Avesta; so in the Greek mythology the person is predominant, in the Roman the idea, in the former freedom, in the latter necessity.

Art

Lastly, what holds good of real life is true also of its counterfeit in jest and play, which everywhere, and especially in the earliest period of full and simple existence, do not exclude the serious, but veil it. The simplest elements of art are in Latium and Hellas quite the same; the decorous armed dance, the "leap" (-triumpus-, —thriambos—, —di-thyrambos—); the masquerade of the "full people" (—satyroi—, -satura-), who, wrapped in the skins of sheep and goats, wound up the festival with their jokes; lastly, the pipe, which with suitable strains accompanied and regulated the solemn as well as the merry dance. Nowhere, perhaps, does the especially close relationship of the Hellenes and Italians come to light so clearly as here; and yet in no other direction did the two nations manifest greater divergence as they became developed. The training of youth remained in Latium strictly confined to the narrow limits of domestic education; in Greece the

yearning after a varied yet harmonious training of mind and body created the sciences of Gymnastics and Paideia, which were cherished by the nation and by individuals as their highest good. Latium in the poverty of its artistic development stands almost on a level with uncivilized peoples; Hellas developed with incredible rapidity out of its religious conceptions the myth and the worshipped idol, and out of these that marvellous world of poetry and sculpture, the like of which history has not again to show. In Latium no other influences were powerful in public and private life but prudence, riches, and strength; it was reserved for the Hellenes to feel the blissful ascendancy of beauty, to minister to the fair boy-friend with an enthusiasm half sensuous, half ideal, and to reanimate their lost courage with the war-songs of the divine singer.

Thus the two nations in which the civilization of antiquity culminated stand side by side, as different in development as they were in origin identical. The points in which the Hellenes excel the Italians are more universally intelligible and reflect a more brilliant lustre; but the deep feeling in each individual that he was only a part of the community, a rare devotedness and power of self-sacrifice for the common weal, an earnest faith in its own gods, form the rich treasure of the Italian nation. Both nations underwent a one-sided, and therefore each a complete, development; it is only a pitiful narrow-mindedness that will object to the Athenian that he did not know how to mould his state like the Fabii and the Valerii, or to the Roman that he did not learn to carve like Pheidias and to write like Aristophanes. It was in fact the most peculiar and the best feature in the character of the Greek people, that rendered it impossible for them to advance from national to political unity without at the same time exchanging their polity for despotism. The ideal world of beauty was all in all to the Greeks, and compensated them to some extent for what they wanted in reality. Wherever in Hellas a tendency towards national union appeared, it was based not on elements directly political, but on games and

art: the contests at Olympia, the poems of Homer, the tragedies of Euripides, were the only bonds that held Hellas together. Resolutely, on the other hand, the Italian surrendered his own personal will for the sake of freedom, and learned to obey his father that he might know how to obey the state. Amidst this subjection individual development might be marred, and the germs of fairest promise in man might be arrested in the bud; the Italian gained in their stead a feeling of fatherland and of patriotism such as the Greek never knew, and alone among all the civilized nations of antiquity succeeded in working out national unity in connection with a constitution based on self-government—a national unity, which at last placed in his hands the mastery not only over the divided Hellenic stock, but over the whole known world.

Notes for Book I Chapter II

1. Some of the epitaphs may give us an idea of its sound; as -theotoras artahiaihi bennarrihino- and -dasiihonas platorrihi bollihi-.

2. The hypothesis has been put forward of an affinity between the Iapygian language and the modern Albanian; based, however, on points of linguistic comparison that are but little satisfactory in any case, and least of all where a fact of such importance is involved. Should this relationship be confirmed, and should the Albanians on the other hand—a race also Indo-Germanic and on a par with the Hellenic and Italian races—be really a remnant of that Hellene-barbaric nationality traces of which occur throughout all Greece and especially in the northern provinces, the nation that preceded the Hellenes would be demonstrated as identical with that which preceded the Italians. Still the inference would not immediately

follow that the Iapygian immigration to Italy had taken place across the Adriatic Sea.

3. Barley, wheat, and spelt were found growing together in a wild state on the right bank of the Euphrates, north-west from Anah (Alph. de Candolle, *Geographie botanique raisonnee*, ii. p. 934). The growth of barley and wheat in a wild state in Mesopotamia had already been mentioned by the Babylonian historian Berosus (ap. Georg. Syncell. p. 50 Bonn.).

4. Scotch -quern-. Mr. Robertson.

5. If the Latin -vicio-, -vimen-, belong to the same root as our weave (German -weben-) and kindred words, the word must still, when the Greeks and Italians separated, have had the general meaning "to plait," and it cannot have been until a later period, and probably in different regions independently of each other, that it assumed that of "weaving." The cultivation of flax, old as it is, does not reach back to this period, for the Indians, though well acquainted with the flax-plant, up to the present day use it only for the preparation of linseed-oil. Hemp probably became known to the Italians at a still later period than flax; at least -cannabis- looks quite like a borrowed word of later date.

6. Thus -aro-, -aratrum- reappear in the old German -aran- (to plough, dialectically -eren-), -erida-, in Slavonian -orati-, -oradlo-, in Lithuanian -arti-, -arimnas-, in Celtic -ar-, -aradar-. Thus alongside of -ligo- stands our rake (German -rechen-), of -hortus- our garden (German -garten-), of -mola- our mill (German -muhle-, Slavonic -mlyn-, Lithuanian -malunas-, Celtic -malin-).

With all these facts before us, we cannot allow that there ever was a time when the Greeks in all Hellenic cantons subsisted by purely pastoral husbandry. If it was the possession of cattle, and not of land, which in

Greece as in Italy formed the basis and the standard of all private property, the reason of this was not that agriculture was of later introduction, but that it was at first conducted on the system of joint possession. Of course a purely agricultural economy cannot have existed anywhere before the separation of the stocks; on the contrary, pastoral husbandry was (more or less according to locality) combined with it to an extent relatively greater than was the case in later times.

7. Nothing is more significant in this respect than the close connection of agriculture with marriage and the foundation of cities during the earliest epoch of culture. Thus the gods in Italy immediately concerned with marriage are Ceres and (or?) Tellus (Plutarch, *Romul.* 22; Servius on *Aen.* iv. 166; Rossbach, *Rom. Ehe*, 257, 301), in Greece Demeter (Plutarch, *Conjug. Praec.* init.); in old Greek formulas the procreation of children is called —arotos—(ii. *The Family and the State*, note); indeed the oldest Roman form of marriage, -*confarreatio*-, derives its name and its ceremony from the cultivation of corn. The use of the plough in the founding of cities is well known.

8. Among the oldest names of weapons on both sides scarcely any can be shown to be certainly related; -*lancea*-, although doubtless connected with -*logchei*-, is, as a Roman word, recent, and perhaps borrowed from the Germans or Spaniards.

9. Even in details this agreement appears; e.g., in the designation of lawful wedlock as "marriage concluded for the obtaining of lawful children" (—*gauos epi paidon gneision aroto*—, -*matrimonium liberorum quaerendorum causa*-).

10. Only we must, of course, not forget that like pre-existing conditions lead everywhere to like institutions. For instance, nothing is more certain than that the Roman plebeians were a growth originating within the Roman

commonwealth, and yet they everywhere find their counterpart where a body of -metoeci- has arisen alongside of a body of burgesses. As a matter of course, chance also plays in such cases its provoking game.

CHAPTER III

The Settlements of the Latins

Indo-Germanic Migrations

The home of the Indo-Germanic stock lay in the western portion of central Asia; from this it spread partly in a south-eastern direction over India, partly in a northwestern over Europe. It is difficult to determine the primitive seat of the Indo-Germans more precisely: it must, however, at any rate have been inland and remote from the sea, as there is no name for the sea common to the Asiatic and European branches. Many indications point more particularly to the regions of the Euphrates; so that, singularly enough, the primitive seats of the two most important civilized stocks, —the Indo-Germanic and the Aramaean,—almost coincide as regards locality. This circumstance gives support to the hypothesis that these races also were originally connected, although, if there was such a connection, it certainly must have been anterior to all traceable development of culture and language. We cannot define more exactly their original locality, nor are we able to accompany the individual stocks in the course of their migrations. The European branch probably lingered in Persia and Armenia for some considerable time after the departure of the Indians; for, according to all

appearance, that region has been the cradle of agriculture and of the culture of the vine. Barley, spelt, and wheat are indigenous in Mesopotamia, and the vine to the south of the Caucasus and of the Caspian Sea: there too the plum, the walnut, and others of the more easily transplanted fruit trees are native. It is worthy of notice that the name for the sea is common to most of the European stocks—Latins, Celts, Germans, and Slavonians; they must probably therefore before their separation have reached the coast of the Black Sea or of the Caspian. By what route from those regions the Italians reached the chain of the Alps, and where in particular they were settled while still united with the Hellenes alone, are questions that can only be answered when the problem is solved by what route—whether from Asia Minor or from the regions of the Danube—the Hellenes arrived in Greece. It may at all events be regarded as certain that the Italians, like the Indians, migrated into their peninsula from the north.(1)

The advance of the Umbro-Sabellian stock along the central mountain-ridge of Italy, in a direction from north to south, can still be clearly traced; indeed its last phases belong to purely historical times. Less is known regarding the route which the Latin migration followed. Probably it proceeded in a similar direction along the west coast, long, in all likelihood, before the first Sabellian stocks began to move. The stream only overflows the heights when the lower grounds are already occupied; and only through the supposition that there were Latin stocks already settled on the coast are we able to explain why the Sabellians should have contented themselves with the rougher mountain districts, from which they afterwards issued and intruded, wherever it was possible, between the Latin tribes.

Extension of the Latins in Italy

It is well known that a Latin stock inhabited the country from the left bank of the Tiber to the Volscian mountains; but these mountains themselves, which appear to have been neglected on occasion of the first immigration when the plains of Latium and Campania still lay open to the settlers, were, as the Volscian inscriptions show, occupied by a stock more nearly related to the Sabellians than to the Latins. On the other hand, Latins probably dwelt in Campania before the Greek and Samnite immigrations; for the Italian names Novla or Nola (newtown), Campani Capua, Volturnus (from -volvere-, like -Iuturna- from -iuvare-), Opsci (labourers), are demonstrably older than the Samnite invasion, and show that, at the time when Cumae was founded by the Greeks, an Italian and probably Latin stock, the Ausones, were in possession of Campania. The primitive inhabitants of the districts which the Lucani and Bruttii subsequently occupied, the Itali proper (inhabitants of the land of oxen), are associated by the best observers not with the Iapygian, but with the Italian stock; and there is nothing to hinder our regarding them as belonging to its Latin branch, although the Hellenizing of these districts which took place even before the commencement of the political development of Italy, and their subsequent inundation by Samnite hordes, have in this instance totally obliterated the traces of the older nationality. Very ancient legends bring the similarly extinct stock of the Siculi into relation with Rome. For instance, the earliest historian of Italy Antiochus of Syracuse tells us that a man named Sikelos came a fugitive from Rome to Morges king of Italia (i. e. the Bruttian peninsula). Such stories appear to be founded on the identity of race recognized by the narrators as subsisting between the Siculi (of whom there were some still in Italy in the time of Thucydides) and the Latins. The striking affinity of certain dialectic peculiarities of Sicilian Greek with the Latin is probably to be explained rather by the old commercial connections subsisting between Rome and the Sicilian Greeks, than by the ancient identity of the languages of the Siculi and the Romans. According to all

indications, however, not only Latium, but probably also the Campanian and Lucanian districts, the Italia proper between the gulfs of Tarentum and Laus, and the eastern half of Sicily were in primitive times inhabited by different branches of the Latin nation.

Destinies very dissimilar awaited these different branches. Those settled in Sicily, Magna Graecia, and Campania came into contact with the Greeks at a period when they were unable to offer resistance to their civilization, and were either completely Hellenized, as in the case of Sicily, or at any rate so weakened that they succumbed without marked resistance to the fresh energy of the Sabine tribes. In this way the Siculi, the Itali and Morgetes, and the Ausonians never came to play an active part in the history of the peninsula. It was otherwise with Latium, where no Greek colonies were founded, and the inhabitants after hard struggles were successful in maintaining their ground against the Sabines as well as against their northern neighbours. Let us cast a glance at this district, which was destined more than any other to influence the fortunes of the ancient world.

Latium

The plain of Latium must have been in primeval times the scene of the grandest conflicts of nature, while the slowly formative agency of water deposited, and the eruptions of mighty volcanoes upheaved, the successive strata of that soil on which was to be decided the question to what people the sovereignty of the world should belong. Latium is bounded on the east by the mountains of the Sabines and Aequi which form part of the Apennines; and on the south by the Volscian range rising to the height of 4000 feet, which is separated from the main chain of the Apennines by the ancient territory of the Hernici, the tableland of the Sacco (Trerus, a tributary of the Liris), and stretching in a westerly direction terminates in

the promontory of Terracina. On the west its boundary is the sea, which on this part of the coast forms but few and indifferent harbours. On the north it imperceptibly merges into the broad hill-land of Etruria. The region thus enclosed forms a magnificent plain traversed by the Tiber, the "mountain-stream" which issues from the Umbrian, and by the Anio, which rises in the Sabine mountains. Hills here and there emerge, like islands, from the plain; some of them steep limestone cliffs, such as that of Soracte in the north-east, and that of the Circeian promontory on the south-west, as well as the similar though lower height of the Janiculum near Rome; others volcanic elevations, whose extinct craters had become converted into lakes which in some cases still exist; the most important of these is the Alban range, which, free on every side, stands forth from the plain between the Volscian chain and the river Tiber.

Here settled the stock which is known to history under the name of the Latins, or, as they were subsequently called by way of distinction from the Latin communities beyond the bounds of Latium, the "Old Latins" (-prisci Latini-). But the territory occupied by them, the district of Latium, was only a small portion of the central plain of Italy. All the country north of the Tiber was to the Latins a foreign and even hostile domain, with whose inhabitants no lasting alliance, no public peace, was possible, and such armistices as were concluded appear always to have been for a limited period. The Tiber formed the northern boundary from early times; and neither in history nor in the more reliable traditions has any reminiscence been preserved as to the period or occasion of the establishment of a frontier line so important in its results. We find, at the time when our history begins, the flat and marshy tracts to the south of the Alban range in the hands of Umbro-Sabellian stocks, the Rutuli and Volsci; Ardea and Velitrae are no longer in the number of originally Latin towns. Only the central portion of that region between the Tiber, the spurs of the Apennines, the Alban Mount, and the sea—a district of about 700 square miles, not much

larger than the present canton of Zurich—was Latium proper, the "plain,"(2) as it appears to the eye of the observer from the heights of Monte Cavo. Though the country is a plain, it is not monotonously flat. With the exception of the sea-beach which is sandy and formed in part by the accumulations of the Tiber, the level is everywhere broken by hills of tufa moderate in height though often somewhat steep, and by deep fissures of the ground. These alternating elevations and depressions of the surface lead to the formation of lakes in winter; and the exhalations proceeding in the heat of summer from the putrescent organic substances which they contain engender that noxious fever-laden atmosphere, which in ancient times tainted the district as it taints it at the present day. It is a mistake to suppose that these miasmata were first occasioned by the neglect of cultivation, which was the result of the misgovernment in the last century of the Republic and under the Papacy. Their cause lies rather in the want of natural outlets for the water; and it operates now as it operated thousands of years ago. It is true, however, that the malaria may to a certain extent be banished by thoroughness of tillage—a fact which has not yet received its full explanation, but may be partly accounted for by the circumstance that the working of the surface accelerates the drying up of the stagnant waters. It must always remain a remarkable phenomenon, that a dense agricultural population should have arisen in regions where no healthy population can at present subsist, and where the traveller is unwilling to tarry even for a single night, such as the plain of Latium and the lowlands of Sybaris and Metapontum. We must bear in mind that man in a low stage of civilization has generally a quicker perception of what nature demands, and a greater readiness in conforming to her requirements; perhaps, also, a more elastic physical constitution, which accommodates itself more readily to the conditions of the soil where he dwells. In Sardinia agriculture is prosecuted under physical conditions precisely similar even at the present day; the pestilential atmosphere exists, but the peasant avoids its injurious effects by

caution in reference to clothing, food, and the choice of his hours of labour. In fact, nothing is so certain a protection against the "aria cattiva" as wearing the fleece of animals and keeping a blazing fire; which explains why the Roman countryman went constantly clothed in heavy woollen stuffs, and never allowed the fire on his hearth to be extinguished. In other respects the district must have appeared attractive to an immigrant agricultural people: the soil is easily laboured with mattock and hoe and is productive even without being manured, although, tried by an Italian standard, it does not yield any extraordinary return: wheat yields on an average about five-fold.⁽³⁾ Good water is not abundant; the higher and more sacred on that account was the esteem in which every fresh spring was held by the inhabitants.

Latin Settlements

No accounts have been preserved of the mode in which the settlements of the Latins took place in the district which has since borne their name; and we are left to gather what we can almost exclusively from a posteriori inference regarding them. Some knowledge may, however, in this way be gained, or at any rate some conjectures that wear an aspect of probability.

Clan-Villages

The Roman territory was divided in the earliest times into a number of clan-districts, which were subsequently employed in the formation of the earliest "rural wards" (-tribus rusticae-). Tradition informs us as to the -tribus Claudia-, that it originated from the settlement of the Claudian clansmen on the Anio; and that the other districts of the earliest division originated in a similar manner is indicated quite as certainly by their names.

These names are not, like those of the districts added at a later period, derived from the localities, but are formed without exception from the names of clans; and the clans who thus gave their names to the wards of the original Roman territory are, so far as they have not become entirely extinct (as is the case with the -Camilii-, -Galerii-, -Lemonii-, -Pollii-, -Pupinii-, -Voltinii-), the very oldest patrician families of Rome, the -Aemilii-, -Cornelii-, -Fabii-, -Horatii-, -Menenii-, -Papirii-, -Romilii-, -Sergii-, -Voturii-. It is worthy of remark, that not one of these clans can be shown to have taken up its settlement in Rome only at a later epoch. Every Italian, and doubtless also every Hellenic, canton must, like the Roman, have been divided into a number of groups associated at once by locality and by clanship; such a clan-settlement is the "house" (—oikia—) of the Greeks, from which very frequently the —komai— and —demoi— originated among them, like the *tribus* in Rome. The corresponding Italian terms "house" -*vicus*-or "district" (-*pagus*-, from -*pangere*-) indicate, in like manner, the joint settlement of the members of a clan, and thence come by an easily understood transition to signify in common use hamlet or village. As each household had its own portion of land, so the clan-household or village had a clan-land belonging to it, which, as will afterwards be shown, was managed up to a comparatively late period after the analogy of household—land, that is, on the system of joint-possession. Whether it was in Latium itself that the clan-households became developed into clan-villages, or whether the Latins were already associated in clans when they immigrated into Latium, are questions which we are just as little able to answer as we are to determine what was the form assumed by the management on joint account, which such an arrangement required,(4) or how far, in addition to the original ground of common ancestry, the clan may have been based on the incorporation or co-ordination from without of individuals not related to it by blood.

Cantons

These clanships, however, were from the beginning regarded not as independent societies, but as the integral parts of a political community (-civitas-, -populus-). This first presents itself as an aggregate of a number of clan-villages of the same stock, language, and manners, bound to mutual observance of law and mutual legal redress and to united action in aggression and defence. A fixed local centre was quite as necessary in the case of such a canton as in that of a clanship; but as the members of the clan, or in other words the constituent elements of the canton, dwelt in their villages, the centre of the canton cannot have been a place of joint settlement in the strict sense—a town. It must, on the contrary, have been simply a place of common assembly, containing the seat of justice and the common sanctuary of the canton, where the members of the canton met every eighth day for purposes of intercourse and amusement, and where, in case of war, they obtained for themselves and their cattle a safer shelter from the invading enemy than in the villages: in ordinary circumstances this place of meeting was not at all or but scantily inhabited. Ancient places of refuge, of a kind quite similar, may still be recognized at the present day on the tops of several of the hills in the highlands of east Switzerland. Such a place was called in Italy "height" (-capitolium-, like —akra—, the mountain-top), or "stronghold" (-arx-, from -arcere-); it was not a town at first, but it became the nucleus of one, as houses naturally gathered round the stronghold and were afterwards surrounded with the "ring" (-urbs-, connected with -urvus-, -rurvus-, perhaps also with -orbis-). The stronghold and town were visibly distinguished from each other by the number of gates, of which the stronghold has as few as possible, and the town many, the former ordinarily but one, the latter at least three. Such fortresses were the bases of that cantonal constitution which prevailed in Italy anterior to the existence of towns: a constitution, the nature of which may still be

recognized with some degree of clearness in those provinces of Italy which did not until a late period reach, and in some cases have not yet fully reached, the stage of aggregation in towns, such as the land of the Marsi and the small cantons of the Abruzzi. The country of the Aequiculi, who even in the imperial period dwelt not in towns, but in numerous open hamlets, presents a number of ancient ring-walls, which, regarded as "deserted towns" with their solitary temples, excited the astonishment of the Roman as well as of modern archaeologists, who have fancied that they could find accommodation there, the former for their "primitive inhabitants" (-aborigines-), the latter for their Pelasgians. We shall certainly be nearer the truth in recognizing these structures not as walled towns, but as places of refuge for the inhabitants of the district, such as were doubtless found in more ancient times over all Italy, although constructed in less artistic style. It was natural that at the period when the stocks that had made the transition to urban life were surrounding their towns with stone walls, those districts whose inhabitants continued to dwell in open hamlets should replace the earthen ramparts and palisades of their strongholds with buildings of stone. When peace came to be securely established throughout the land and such fortresses were no longer needed, these places of refuge were abandoned and soon became a riddle to after generations.

Localities of the Oldest Cantons

These cantons accordingly, having their rendezvous in some stronghold, and including a certain number of clanships, form the primitive political unities with which Italian history begins. At what period, and to what extent, such cantons were formed in Latium, cannot be determined with precision; nor is it a matter of special historical interest. The isolated Alban range, that natural stronghold of Latium, which offered to settlers the most

wholesome air, the freshest springs, and the most secure position, would doubtless be first occupied by the new comers.

Alba

Here accordingly, along the narrow plateau above Palazzuola, between the Alban lake (-Lago di Castello-) and the Alban mount (-Monte Cavo-), extended the town of Alba, which was universally regarded as the primitive seat of the Latin stock, and the mother-city of Rome as well as of all the other Old Latin communities; here, too, on the slopes lay the very ancient Latin canton-centres of Lanuvium, Aricia, and Tusculum. Here are found some of those primitive works of masonry, which usually mark the beginnings of civilization and seem to stand as a witness to posterity that in reality Pallas Athena when she does appear, comes into the world full grown. Such is the escarpment of the wall of rock below Alba in the direction of Palazzuola, whereby the place, which is rendered naturally inaccessible by the steep declivities of Monte Cavo on the south, is rendered equally unapproachable on the north, and only the two narrow approaches on the east and west, which are capable of being easily defended, are left open for traffic. Such, above all, is the large subterranean tunnel cut—so that a man can stand upright within it—through the hard wall of lava, 6000 feet thick, by which the waters of the lake formed in the old crater of the Alban Mount were reduced to their present level and a considerable space was gained for tillage on the mountain itself.

The summits of the last offshoots of the Sabine range form natural fastnesses of the Latin plain; and the canton-strongholds there gave rise at a later period to the considerable towns of Tibur and Praeneste. Labici too, Gabii, and Nomentum in the plain between the Alban and Sabine hills and the Tiber, Rome on the Tiber, Laurentum and Lavinium on the coast, were

all more or less ancient centres of Latin colonization, not to speak of many others less famous and in some cases almost forgotten.

The Latin League

All these cantons were in primitive times politically sovereign, and each of them was governed by its prince with the co-operation of the council of elders and the assembly of warriors. Nevertheless the feeling of fellowship based on community of descent and of language not only pervaded the whole of them, but manifested itself in an important religious and political institution—the perpetual league of the collective Latin cantons. The presidency belonged originally, according to the universal Italian as well as Hellenic usage, to that canton within whose bounds lay the meeting-place of the league; in this case it was the canton of Alba, which, as we have said, was generally regarded as the oldest and most eminent of the Latin cantons. The communities entitled to participate in the league were in the beginning thirty—a number which we find occurring with singular frequency as the sum of the constituent parts of a commonwealth in Greece and Italy. What cantons originally made up the number of the thirty old Latin communities or, as with reference to the metropolitan rights of Alba they are also called, the thirty Alban colonies, tradition has not recorded, and we can no longer ascertain. The rendezvous of this union was, like the Pamboeotia and the Panionia among the similar confederacies of the Greeks, the "Latin festival" (-feriae Latinae-), at which, on the "Mount of Alba" (-Mons Albanus-, -Monte Cavo-), upon a day annually appointed by the chief magistrate for the purpose, an ox was offered in sacrifice by the assembled Latin stock to the "Latin god" (-Jupiter Latiaris-). Each community taking part in the ceremony had to contribute to the sacrificial feast its fixed proportion of cattle, milk, and cheese, and to receive in return a portion of the roasted victim. These usages continued down to a late period, and are well known:

respecting the more important legal bearings of this association we can do little else than institute conjectures.

From the most ancient times there were held, in connection with the religious festival on the Mount of Alba, assemblies of the representatives of the several communities at the neighbouring Latin seat of justice at the source of the Ferentina (near Marino). Indeed such a confederacy cannot be conceived to exist without having a certain power of superintendence over the associated body, and without possessing a system of law binding on all. Tradition records, and we may well believe, that the league exercised jurisdiction in reference to violations of federal law, and that it could in such cases pronounce even sentence of death. The later communion of legal rights and, in some sense, of marriage that subsisted among the Latin communities may perhaps be regarded as an integral part of the primitive law of the league, so that any Latin man could beget lawful children with any Latin woman and acquire landed property and carry on trade in any part of Latium. The league may have also provided a federal tribunal of arbitration for the mutual disputes of the cantons; on the other hand, there is no proof that the league imposed any limitation on the sovereign right of each community to make peace or war. In like manner there can be no doubt that the constitution of the league implied the possibility of its waging defensive or even aggressive war in its own name; in which case, of course, it would be necessary to have a federal commander-in-chief. But we have no reason to suppose that in such an event each community was compelled by law to furnish a contingent for the army, or that, conversely, any one was interdicted from undertaking a war on its own account even against a member of the league. There are, however, indications that during the Latin festival, just as was the case during the festivals of the Hellenic leagues, "a truce of God" was observed throughout all Latium;(5) and probably on that occasion even tribes at feud granted safe-conducts to each other.

It is still less in our power to define the range of the privileges of the presiding canton; only we may safely affirm that there is no reason for recognizing in the Alban presidency a real political hegemony over Latium, and that possibly, nay probably, it had no more significance in Latium than the honorary presidency of Elis had in Greece.(6) On the whole it is probable that the extent of this Latin league, and the amount of its jurisdiction, were somewhat unsettled and fluctuating; yet it remained throughout not an accidental aggregate of various communities more or less alien to each other, but the just and necessary expression of the relationship of the Latin stock. The Latin league may not have at all times included all Latin communities, but it never at any rate granted the privilege of membership to any that were not Latin. Its counterpart in Greece was not the Delphic Amphictyony, but the Boeotian or Aetolian confederacy.

These very general outlines must suffice: any attempt to draw the lines more sharply would only falsify the picture. The manifold play of mutual attraction and repulsion among those earliest political atoms, the cantons, passed away in Latium without witnesses competent to tell the tale. We must now be content to realise the one great abiding fact that they possessed a common centre, to which they did not sacrifice their individual independence, but by means of which they cherished and increased the feeling of their belonging collectively to the same nation. By such a common possession the way was prepared for their advance from that cantonal individuality, with which the history of every people necessarily begins, to the national union with which the history of every people ends or at any rate ought to end.

1. I. II. Italians

2. Like -latus- (side) and —platus— (flat); it denotes therefore the flat country in contrast to the Sabine mountain-land, just as Campania, the "plain," forms the contrast to Samnium. Latus, formerly -stlatus-, has no connection with Latium.

3. A French statist, Dureau de la Malle (-Econ. Pol. des Romains-, ii. 226), compares with the Roman Campagna the district of Limagne in Auvergne, which is likewise a wide, much intersected, and uneven plain, with a superficial soil of decomposed lava and ashes—the remains of extinct volcanoes. The population, at least 2500 to the square league, is one of the densest to be found in purely agricultural districts: property is subdivided to an extraordinary extent. Tillage is carried on almost entirely by manual labour, with spade, hoe, or mattock; only in exceptional cases a light plough is substituted drawn by two cows, the wife of the peasant not unfrequently taking the place of one of them in the yoke. The team serves at once to furnish milk and to till the land. They have two harvests in the year, corn and vegetables; there is no fallow. The average yearly rent for an arpent of arable land is 100 francs. If instead Of such an arrangement this same land were to be divided among six or seven large landholders, and a system of management by stewards and day labourers were to supersede the husbandry of the small proprietors, in a hundred years the Limagne would doubtless be as waste, forsaken, and miserable as the Campagna di Roma is at the present day.

4. In Slavonia, where the patriarchal economy is retained up to the present day, the whole family, often to the number of fifty or even a hundred persons, remains together in the same house under the orders of the house-father (Gospodar) chosen by the whole family for life. The property of the household, which consists chiefly in cattle, is administered by the

house-father; the surplus is distributed according to the family-branches. Private acquisitions by industry and trade remain separate property. Instances of quitting the household occur, in the case even of men, e. g. by marrying into a stranger household (Csaplovies, -Slavonien-, i. 106, 179). —Under such circumstances, which are probably not very widely different from the earliest Roman conditions, the household approximates in character to the community.

5. The Latin festival is expressly called "armistice" (-indutiae-, Macrob. Sat. i. 16; —ekecheipiai—, Dionys. iv. 49); and a war was not allowed to be begun during its continuance (Macrob. l. c.)

6. The assertion often made in ancient and modern times, that Alba once ruled over Latium under the forms of a symmachy, nowhere finds on closer investigation sufficient support. All history begins not with the union, but with the disunion of a nation; and it is very improbable that the problem of the union of Latium, which Rome finally solved after some centuries of conflict, should have been already solved at an earlier period by Alba. It deserves to be remarked too that Rome never asserted in the capacity of heiress of Alba any claims of sovereignty proper over the Latin communities, but contented herself with an honorary presidency; which no doubt, when it became combined with material power, afforded a handle for her pretensions of hegemony. Testimonies, strictly so called, can scarcely be adduced on such a question; and least of all do such passages as Festus -v. praetor-, p. 241, and Dionys. iii. 10, suffice to stamp Alba as a Latin Athens.

CHAPTER IV

The Beginnings of Rome

Ramnes

About fourteen miles up from the mouth of the river Tiber hills of moderate elevation rise on both banks of the stream, higher on the right, lower on the left bank. With the latter group there has been closely associated for at least two thousand five hundred years the name of the Romans. We are unable, of course, to tell how or when that name arose; this much only is certain, that in the oldest form of it known to us the inhabitants of the canton are called not Romans, but Ramnians (Ramnes); and this shifting of sound, which frequently occurs in the older period of a language, but fell very early into abeyance in Latin,(1) is an expressive testimony to the immemorial antiquity of the name. Its derivation cannot be given with certainty; possibly "Ramnes" may mean "the people on the stream."

Titius, Luceres

But they were not the only dwellers on the hills by the bank of the Tiber. In the earliest division of the burgesses of Rome a trace has been preserved of the fact that that body arose out of the amalgamation of three cantons once probably independent, the Ramnians, Titians, and Luceres, into a single commonwealth—in other words, out of such a —synoikismos— as that from which Athens arose in Attica.(2) The great antiquity of this threefold division of the community(3) is perhaps best evinced by the fact that the Romans, in matters especially of constitutional law, regularly used the forms -tribuere- ("to divide into three") and -tribus- ("a third") in the general sense of "to divide" and "a part," and the latter expression (-tribus-), like our "quarter," early lost its original signification of number. After the union each of these three communities—once separate, but now forming subdivisions of a single community—still possessed its third of the common domain, and had its proportional representation in the burgess-force and in the council of the elders. In ritual also, the number divisible by three of the members of almost all the oldest colleges—of the Vestal Virgins, the Salii, the Arval Brethren, the Luperci, the Augurs— probably had reference to that three-fold partition. These three elements into which the primitive body of burgesses in Rome was divided have had theories of the most extravagant absurdity engrafted upon them. The irrational opinion that the Roman nation was a mongrel people finds its support in that division, and its advocates have striven by various means to represent the three great Italian races as elements entering into the composition of the primitive Rome, and to transform a people which has exhibited in language, polity, and religion, a pure and national development such as few have equalled, into a confused aggregate of Etruscan and Sabine, Hellenic and, forsooth! even Pelasgian fragments.

Setting aside self-contradictory and unfounded hypotheses, we may sum up in a few words all that can be said respecting the nationality of the component elements of the primitive Roman commonwealth. That the

Ramnians were a Latin stock cannot be doubted, for they gave their name to the new Roman commonwealth and therefore must have substantially determined the nationality of the united community. Respecting the origin of the Luceres nothing can be affirmed, except that there is no difficulty in the way of our assigning them, like the Ramnians, to the Latin stock. The second of these communities, on the other hand, is with one consent derived from Sabina; and this view can at least be traced to a tradition preserved in the Titian brotherhood, which represented that priestly college as having been instituted, on occasion of the Tities being admitted into the collective community, for the preservation of their distinctive Sabine ritual. It may be, therefore, that at a period very remote, when the Latin and Sabellian stocks were beyond question far less sharply contrasted in language, manners, and customs than were the Roman and the Samnite of a later age, a Sabellian community entered into a Latin canton-union; and, as in the older and more credible traditions without exception the Tities take precedence of the Ramnians, it is probable that the intruding Tities compelled the older Ramnians to accept the —synoikismos—. A mixture of different nationalities certainly therefore took place; but it hardly exercised an influence greater than the migration, for example, which occurred some centuries afterwards of the Sabine Attus Clauzus or Appius Claudius and his clansmen and clients to Rome. The earlier admission of the Tities among the Ramnians does not entitle us to class the community among mongrel peoples any more than does that subsequent reception of the Claudii among the Romans. With the exception, perhaps, of isolated national institutions handed down in connection with ritual, the existence of Sabellian elements can nowhere be pointed out in Rome; and the Latin language in particular furnishes absolutely no support to any such hypothesis.(4) It would in fact be more than surprising, if the Latin nation should have had its nationality in any sensible degree affected by the insertion of a single community from a stock so very closely related to it; and, besides, it must not be forgotten

that at the time when the Tides settled beside the Ramnians, Latin nationality rested on Latium as its basis, and not on Rome. The new tripartite Roman commonwealth was, notwithstanding some incidental elements which were originally Sabellian, just what the community of the Ramnians had previously been—a portion of the Latin nation.

Rome the Emporium of Latium

Long, in all probability, before an urban settlement arose on the Tiber, these Ramnians, Titians, and Luceres, at first separate, afterwards united, had their stronghold on the Roman hills, and tilled their fields from the surrounding villages. The "wolf-festival" (Lupercalia) which the gens of the Quinctii celebrated on the Palatine hill, was probably a tradition from these primitive times—a festival of husbandmen and shepherds, which more than any other preserved the homely pastimes of patriarchal simplicity, and, singularly enough, maintained itself longer than all the other heathen festivals in Christian Rome,

Character of Its Site

From these settlements the later Rome arose. The founding of a city in the strict sense, such as the legend assumes, is of course to be reckoned altogether out of the question: Rome was not built in a day. But the serious consideration of the historian may well be directed to the inquiry, in what way Rome can have so early attained the prominent political position which it held in Latium—so different from what the physical character of the locality would have led us to anticipate. The site of Rome is less healthy and less fertile than that of most of the old Latin towns. Neither the vine nor the fig succeed well in the immediate environs, and there is a want of

springs yielding a good supply of water; for neither the otherwise excellent fountain of the Camenae before the Porta Capena, nor the Capitoline well, afterwards enclosed within the Tullianum, furnish it in any abundance. Another disadvantage arises from the frequency with which the river overflows its banks. Its very slight fall renders it unable to carry off the water, which during the rainy season descends in large quantities from the mountains, with sufficient rapidity to the sea, and in consequence it floods the low-lying lands and the valleys that open between the hills, and converts them into swamps. For a settler the locality was anything but attractive. In antiquity itself an opinion was expressed that the first body of immigrant cultivators could scarce have spontaneously resorted in search of a suitable settlement to that unhealthy and unfruitful spot in a region otherwise so highly favoured, and that it must have been necessity, or rather some special motive, which led to the establishment of a city there. Even the legend betrays its sense of the strangeness of the fact: the story of the foundation of Rome by refugees from Alba under the leadership of the sons of an Alban prince, Romulus and Remus, is nothing but a naive attempt of primitive quasi-history to explain the singular circumstance of the place having arisen on a site so unfavourable, and to connect at the same time the origin of Rome with the general metropolis of Latium. Such tales, which profess to be historical but are merely improvised explanations of no very ingenious character, it is the first duty of history to dismiss; but it may perhaps be allowed to go a step further, and after weighing the special relations of the locality to propose a positive conjecture not regarding the way in which the place originated, but regarding the circumstances which occasioned its rapid and surprising prosperity and led to its occupying its peculiar position in Latium.

Earliest Limits of the Roman Territory

Let us notice first of all the earliest boundaries of the Roman territory. Towards the east the towns of Antemnae, Fidenae, Caenina, and Gabii lie in the immediate neighbourhood, some of them not five miles distant from the Servian ring-wall; and the boundary of the canton must have been in the close vicinity of the city gates. On the south we find at a distance of fourteen miles the powerful communities of Tusculum and Alba; and the Roman territory appears not to have extended in this direction beyond the - Fossa Cluilia-, five miles from Rome. In like manner, towards the south-west, the boundary betwixt Rome and Lavinium was at the sixth milestone. While in a landward direction the Roman canton was thus everywhere confined within the narrowest possible limits, from the earliest times, on the other hand, it extended without hindrance on both banks of the Tiber towards the sea. Between Rome and the coast there occurs no locality that is mentioned as an ancient canton-centre, and no trace of any ancient canton-boundary. The legend indeed, which has its definite explanation of the origin of everything, professes to tell us that the Roman possessions on the right bank of the Tiber, the "seven hamlets" (-septem pagi-), and the important salt-works at its mouth, were taken by king Romulus from the Veientes, and that king Ancus fortified on the right bank the -tete de pont-, the "mount of Janus" (-Janiculum-), and founded on the left the Roman Peiraeus, the seaport at the river's "mouth" (-Ostia-). But in fact we have evidence more trustworthy than that of legend, that the possessions on the Etruscan bank of the Tiber must have belonged to the original territory of Rome; for in this very quarter, at the fourth milestone on the later road to the port, lay the grove of the creative goddess (-Dea Dia-), the primitive chief seat of the Arval festival and Arval brotherhood of Rome. Indeed from time immemorial the clan of the Romilii, once the chief probably of all the Roman clans, was settled in this very quarter; the Janiculum formed a part of the city itself, and Ostia was a burgess colony or, in other words, a suburb.

The Tiber and Its Traffic

This cannot have been the result of mere accident. The Tiber was the natural highway for the traffic of Latium; and its mouth, on a coast scantily provided with harbours, became necessarily the anchorage of seafarers. Moreover, the Tiber formed from very ancient times the frontier defence of the Latin stock against their northern neighbours. There was no place better fitted for an emporium of the Latin river and sea traffic, and for a maritime frontier fortress of Latium, than Rome. It combined the advantages of a strong position and of immediate vicinity to the river; it commanded both banks of the stream down to its mouth; it was so situated as to be equally convenient for the river navigator descending the Tiber or the Anio, and for the seafarer with vessels of so moderate a size as those which were then used; and it afforded greater protection from pirates than places situated immediately on the coast. That Rome was indebted, if not for its origin, at any rate for its importance, to these commercial and strategical advantages of its position, there are accordingly numerous further indications, which are of very different weight from the statements of quasi-historical romances. Thence arose its very ancient relations with Caere, which was to Etruria what Rome was to Latium, and accordingly became Rome's most intimate neighbour and commercial ally. Thence arose the unusual importance of the bridge over the Tiber, and of bridge-building generally in the Roman commonwealth. Thence came the galley in the city arms; thence, too, the very ancient Roman port-duties on the exports and imports of Ostia, which were from the first levied only on what was to be exposed for sale (-promercale-), not on what was for the shipper's own use (-usuarium-), and which were therefore in reality a tax upon commerce. Thence, to anticipate, the comparatively early occurrence in Rome of coined money, and of commercial treaties with transmarine states. In this sense, then, certainly Rome may have been, as the legend assumes, a

creation rather than a growth, and the youngest rather than the oldest among the Latin cities. Beyond doubt the country was already in some degree cultivated, and the Alban range as well as various other heights of the Campagna were occupied by strongholds, when the Latin frontier emporium arose on the Tiber. Whether it was a resolution of the Latin confederacy, or the clear-sighted genius of some unknown founder, or the natural development of traffic, that called the city of Rome into being, it is vain even to surmise.

Early Urban Character of Rome

But in connection with this view of the position of Rome as the emporium of Latium another observation suggests itself. At the time when history begins to dawn on us, Rome appears, in contradistinction to the league of the Latin communities, as a compact urban unity. The Latin habit of dwelling in open villages, and of using the common stronghold only for festivals and assemblies or in case of special need, was subjected to restriction at a far earlier period, probably, in the canton of Rome than anywhere else in Latium. The Roman did not cease to manage his farm in person, or to regard it as his proper home; but the unwholesome atmosphere of the Campagna could not but induce him to take up his abode as much as possible on the more airy and salubrious city hills; and by the side of the cultivators of the soil there must have been a numerous non-agricultural population, partly foreigners, partly native, settled there from very early times. This to some extent accounts for the dense population of the old Roman territory, which may be estimated at the utmost at 115 square miles, partly of marshy or sandy soil, and which, even under the earliest constitution of the city, furnished a force of 3300 freemen; so that it must have numbered at least 10,000 free inhabitants. But further, every one acquainted with the Romans and their history is aware that it is their urban

and mercantile character which forms the basis of whatever is peculiar in their public and private life, and that the distinction between them and the other Latins and Italians in general is pre-eminently the distinction between citizen and rustic. Rome, indeed, was not a mercantile city like Corinth or Carthage; for Latium was an essentially agricultural region, and Rome was in the first instance, and continued to be, pre-eminently a Latin city. But the distinction between Rome and the mass of the other Latin towns must certainly be traced back to its commercial position, and to the type of character produced by that position in its citizens. If Rome was the emporium of the Latin districts, we can readily understand how, along with and in addition to Latin husbandry, an urban life should have attained vigorous and rapid development there and thus have laid the foundation for its distinctive career.

It is far more important and more practicable to follow out the course of this mercantile and strategical growth of the city of Rome, than to attempt the useless task of chemically analysing the insignificant and but little diversified communities of primitive times. This urban development may still be so far recognized in the traditions regarding the successive circumvallations and fortifications of Rome, the formation of which necessarily kept pace with the growth of the Roman commonwealth in importance as a city.

The Palatine City

The town, which in the course of centuries grew up as Rome, in its original form embraced according to trustworthy testimony only the Palatine, or "square Rome" (-Roma quadrata-), as it was called in later times from the irregularly quadrangular form of the Palatine hill. The gates and walls that enclosed this original city remained visible down to the

period of the empire: the sites of two of the former, the Porta Romana near S. Giorgio in Velabro, and the Porta Mugionis at the Arch of Titus, are still known to us, and the Palatine ring-wall is described by Tacitus from his own observation at least on the sides looking towards the Aventine and Caelian. Many traces indicate that this was the centre and original seat of the urban settlement. On the Palatine was to be found the sacred symbol of that settlement, the "outfit-vault" (-mundus-) as it was called, in which the first settlers deposited a sufficiency of everything necessary for a household and added a clod of their dear native earth. There, too, was situated the building in which all the curies assembled for religious and other purposes, each at its own hearth (-curiae veteres-). There stood the meetinghouse of the "Leapers" (-curia Saliorum-) in which also the sacred shields of Mars were preserved, the sanctuary of the "Wolves" (-Lupercal-), and the dwelling of the priest of Jupiter. On and near this hill the legend of the founding of the city placed the scenes of its leading incidents, and the straw-covered house of Romulus, the shepherd's hut of his foster-father Faustulus, the sacred fig-tree towards which the cradle with the twins had floated, the cornelian cherry-tree that sprang from the shaft of the spear which the founder of the city had hurled from the Aventine over the valley of the Circus into this enclosure, and other such sacred relics were pointed out to the believer. Temples in the proper sense of the term were still at this time unknown, and accordingly the Palatine has nothing of that sort to show belonging to the primitive age. The public assemblies of the community were early transferred to another locality, so that their original site is unknown; only it may be conjectured that the free space round the -mundus-, afterwards called the -area Apollinis-, was the primitive place of assembly for the burgesses and the senate, and the stage erected over the -mundus- itself the primitive seat of justice of the Roman community.

The Seven Mounts

The "festival of the Seven Mounts" (-septimontium-), again, has preserved the memory of the more extended settlement which gradually formed round the Palatine. Suburbs grew up one after another, each protected by its own separate though weaker circumvallation and joined to the original ring-wall of the Palatine, as in ten districts the outer dikes are joined on to the main dike. The "Seven Rings" were, the Palatine itself; the Cermalus, the slope of the Palatine in the direction of the morass that extended between it and the Capitol towards the river (-velabrum-); the Velia, the ridge which connected the Palatine with the Esquiline, but in subsequent times was almost wholly obliterated by the buildings of the empire; the Fagutal, the Oppius, and the Cispius, the three summits of the Esquiline; lastly, the Sucusa, or Subura, a fortress constructed outside of the earthen rampart which protected the new town on the Carinae, in the depression between the Esquiline and the Quirinal beneath S. Pietro in Vincoli. These additions, manifestly the results of a gradual growth, clearly reveal to a certain extent the earliest history of the Palatine Rome, especially when we compare with them the Servian arrangement of districts which was afterwards formed on the basis of this earliest division.

Oldest Settlements in the Palatine and Suburan Regions

The Palatine was the original seat of the Roman community, the oldest and originally the only ring-wall. The urban settlement, however, began at Rome as well as elsewhere not within, but under the protection of, the stronghold; and the oldest settlements with which we are acquainted, and which afterwards formed the first and second regions in the Servian division of the city, lay in a circle round the Palatine. These included the settlement on the declivity of the Cermalus with the "street of the Tuscans"—a name in which there may have been preserved a reminiscence of the commercial intercourse between the Caerites and Romans already

perhaps carried on with vigour in the Palatine city—and the settlement on the Velia; both of which subsequently along with the stronghold-hill itself constituted one region in the Servian city. Further, there were the component elements of the subsequent second region—the suburb on the Caelian, which probably embraced only its extreme point above the Colosseum; that on the Carinae, the spur which projects from the Esquiline towards the Palatine; and, lastly, the valley and outwork of the Subura, from which the whole region received its name. These two regions jointly constituted the incipient city; and the Suburan district of it, which extended at the base of the stronghold, nearly from the Arch of Constantine to S. Pietro in Vincoli, and over the valley beneath, appears to have been more considerable and perhaps older than the settlements incorporated by the Servian arrangement in the Palatine district, because in the order of the regions the former takes precedence of the latter. A remarkable memorial of the distinction between these two portions of the city was preserved in one of the oldest sacred customs of the later Rome, the sacrifice of the October horse yearly offered in the -Campus Martius-: down to a late period a struggle took place at this festival for the horse's head between the men of the Subura and those of the Via Sacra, and according as victory lay with the former or with the latter, the head was nailed either to the Mamilian Tower (site unknown) in the Subura, or to the king's palace under the Palatine. It was the two halves of the old city that thus competed with each other on equal terms. At that time, accordingly, the Esquiliae (which name strictly used is exclusive of the Carinae) were in reality what they were called, the "outer buildings" (-exquiliae-, like -inquilinus-, from -colere-) or suburb: this became the third region in the later city division, and it was always held in inferior consideration as compared with the Suburan and Palatine regions. Other neighbouring heights also, such as the Capitol and the Aventine, may probably have been occupied by the community of the Seven Mounts; the "bridge of piles" in particular (-pons sublicius-), thrown over

the natural pier of the island in the Tiber, must have existed even then—the pontifical college alone is sufficient evidence of this—and the -tete de pont- on the Etruscan bank, the height of the Janiculum, would not be left unoccupied; but the community had not as yet brought either within the circuit of its fortifications. The regulation which was adhered to as a ritual rule down to the latest times, that the bridge should be composed simply of wood without iron, manifestly shows that in its original practical use it was to be merely a flying bridge, which must be capable of being easily at any time broken off or burnt. We recognize in this circumstance how insecure for a long time and liable to interruption was the command of the passage of the river on the part of the Roman community.

No relation is discoverable between the urban settlements thus gradually formed and the three communities into which from an immemorially early period the Roman commonwealth was in political law divided. As the Ramnes, Tities, and Luceres appear to have been communities originally independent, they must have had their settlements originally apart; but they certainly did not dwell in separate circumvallations on the Seven Hills, and all fictions to this effect in ancient or modern times must be consigned by the intelligent inquirer to the same fate with the charming tale of Tarpeia and the battle of the Palatine. On the contrary each of the three tribes of Ramnes, Tities, and Luceres must have been distributed throughout the two regions of the oldest city, the Subura and Palatine, and the suburban region as well: with this may be connected the fact, that afterwards not only in the Suburan and Palatine, but in each of the regions subsequently added to the city, there were three pairs of Argean chapels. The Palatine city of the Seven Mounts may have had a history of its own; no other tradition of it has survived than simply that of its having once existed. But as the leaves of the forest make room for the new growth of spring, although they fall unseen by human eyes, so has this unknown city of the Seven Mounts made room for the Rome of history.

The Hill-Romans on the Quirinal

But the Palatine city was not the only one that in ancient times existed within the circle afterwards enclosed by the Servian walls; opposite to it, in its immediate vicinity, there lay a second city on the Quirinal. The "old stronghold" (-Capitolium vetus-) with a sanctuary of Jupiter, Juno, and Minerva, and a temple of the goddess of Fidelity in which state treaties were publicly deposited, forms the evident counterpart of the later Capitol with its temple to Jupiter, Juno, and Minerva, and with its shrine of Fides Romana likewise destined as it were for a repository of international law, and furnishes a sure proof that the Quirinal also was once the centre of an independent commonwealth. The same fact may be inferred from the double worship of Mars on the Palatine and the Quirinal; for Mars was the type of the warrior and the oldest chief divinity of the burgess communities of Italy. With this is connected the further circumstance that his ministers, the two primitive colleges of the "Leapers" (-Salii-) and of the "Wolves" (-Luperci-) existed in the later Rome in duplicate: by the side of the Salii of the Palatine there were also Salii of the Quirinal; by the side of the Quinctian Luperci of the Palatine there was a Fabian guild of Luperci, which in all probability had their sanctuary on the Quirinal.(5)

All these indications, which even in themselves are of great weight, become more significant when we recollect that the accurately known circuit of the Palatine city of the Seven Mounts excluded the Quirinal, and that afterwards in the Servian Rome, while the first three regions corresponded to the former Palatine city, a fourth region was formed out of the Quirinal along with the neighbouring Viminal. Thus, too, we discover an explanation of the reason why the strong outwork of the Subura was constructed beyond the city wall in the valley between the Esquiline and Quirinal; it was at that point, in fact, that the two territories came into

contact, and the Palatine Romans, after having taken possession of the low ground, were under the necessity of constructing a stronghold for protection against those of the Quirinal.

Lastly, even the name has not been lost by which the men of the Quirinal distinguished themselves from their Palatine neighbours. As the Palatine city took the name of "the Seven Mounts," its citizens called themselves the "mount-men" (-montani-), and the term "mount," while applied to the other heights belonging to the city, was above all associated with the Palatine; so the Quirinal height—although not lower, but on the contrary somewhat higher, than the former—as well as the adjacent Viminal never in the strict use of the language received any other name than "hill" (collis). In the ritual records, indeed, the Quirinal was not unfrequently designated as the "hill" without further addition. In like manner the gate leading out from this height was usually called the "hill-gate" (-porta collina-); the priests of Mars settled there were called those "of the hill" (-Salii collini-) in contrast to those of the Palatium (-Salii Palatini-) and the fourth Servian region formed out of this district was termed the hill-region (-tribus collina-)(6) The name of Romans primarily associated with the locality was probably appropriated by these "Hill-men" as well as by those of the "Mounts;" and the former perhaps designated themselves as "Romans of the Hill" (-Romani collini-). That a diversity of race may have lain at the foundation of this distinction between the two neighbouring cities is possible; but evidence sufficient to warrant our pronouncing a community established on Latin soil to be of alien lineage is, in the case of the Quirinal community, totally wanting.(7)

Relations between the Palatine and Quirinal Communities

Thus the site of the Roman commonwealth was still at this period occupied by the Mount-Romans of the Palatine and the Hill-Romans of the Quirinal as two separate communities confronting each other and doubtless in many respects at feud, in some degree resembling the Montigiani and the Trasteverini in modern Rome. That the community of the Seven Mounts early attained a great preponderance over that of the Quirinal may with certainty be inferred both from the greater extent of its newer portions and suburbs, and from the position of inferiority in which the former Hill-Romans were obliged to acquiesce under the later Servian arrangement. But even within the Palatine city there was hardly a true and complete amalgamation of the different constituent elements of the settlement. We have already mentioned how the Subura and the Palatine annually contended for the horse's head; the several Mounts also, and even the several curies (there was as yet no common hearth for the city, but the various hearths of the curies subsisted side by side, although in the same locality) probably felt themselves to be as yet more separated than united; and Rome as a whole was probably rather an aggregate of urban settlements than a single city. It appears from many indications that the houses of the old and powerful families were constructed somewhat after the manner of fortresses and were rendered capable of defence—a precaution, it may be presumed, not unnecessary. It was the magnificent structure ascribed to king Servius Tullius that first surrounded not merely those two cities of the Palatine and Quirinal, but also the heights of the Capitol and the Aventine which were not comprehended within their enclosure, with a single great ring-wall, and thereby created the new Rome—the Rome of history. But ere this mighty work was undertaken, the relations of Rome to the surrounding country had beyond doubt undergone a complete revolution. As the period, during which the husbandman guided his plough on the seven hills of Rome just as on the other hills of Latium, and the usually unoccupied places of refuge on particular summits alone presented the germs of a more

permanent settlement, corresponds to the earliest epoch of the Latin stock without trace of traffic or achievement; as thereafter the flourishing settlement on the Palatine and in the "Seven Rings" was coincident with the occupation of the mouths of the Tiber by the Roman community, and with the progress of the Latins to a more stirring and freer intercourse, to an urban civilization in Rome more especially, and perhaps also to a more consolidated political union in the individual states as well as in the confederacy; so the Servian wall, which was the foundation of a single great city, was connected with the epoch at which the city of Rome was able to contend for, and at length to achieve, the sovereignty of the Latin league.

Notes for Book I Chapter IV

1. A similar change of sound is exhibited in the case of the following formations, all of them of a very ancient kind: -pars—portio-, -Mars- -Mors-, -farreum- ancient form for -horreum-, -Fabii- -Fovii-, -Valerius- -Volesus-, -vacuus- -vacivus-.

2. The —synoikismos— did not necessarily involve an actual settlement together at one spot; but while each resided as formerly on his own land, there was thenceforth only one council-hall and court-house for the whole (Thucyd. ii. 15; Herodot. i. 170).

3. We might even, looking to the Attic —trittus— and the Umbrian -trifo-, raise the question whether a triple division of the community was not a fundamental principle of the Graeco-Italians: in that case the triple division of the Roman community would not be referable to the amalgamation of several once independent tribes. But, in order to the establishment of a hypothesis so much at variance with tradition, such a

threefold division would require to present itself more generally throughout the Graeco-Italian field than seems to be the case, and to appear uniformly everywhere as the ground-scheme. The Umbrians may possibly have adopted the word -tribus- only when they came under the influence of Roman rule; it cannot with certainty be traced in Oscan.

4. Although the older opinion, that Latin is to be viewed as a mixed language made up of Greek and non-Greek elements, has been now abandoned on all sides, judicious inquirers even (e. g. Schwegler, R. G. i. 184, 193) still seek to discover in Latin a mixture of two nearly related Italian dialects. But we ask in vain for the linguistic or historical facts which render such an hypothesis necessary. When a language presents the appearance of being an intermediate link between two others, every philologist knows that the phenomenon may quite as probably depend, and more frequently does depend, on organic development than on external intermixture.

5. That the Quinctian Luperci had precedence in rank over the Fabian is evident from the circumstance that the fabulists attribute the Quinctii to Romulus, the Fabii to Remus (Ovid, *Fast.* ii. 373 seq.; *Vict. De Orig.* 22). That the Fabii belonged to the Hill-Romans is shown by the sacrifice of their -gens- on the Quirinal (*Liv.* v. 46, 52), whether that sacrifice may or may not have been connected with the Lupercalia.

Moreover, the Lupercus of the former college is called in inscriptions (Orelli, 2253) -Lupercus Quinctialis vetus-; and the -praenomen-Kaeso, which was most probably connected with the Lupercal worship (see *Rom. Forschungen*, i. 17), is found exclusively among the Quinctii and Fabii: the form commonly occurring in authors, -Lupercus Quinctilius- and -Quinctilianus-, is therefore a misnomer, and the college belonged not to the comparatively recent Quinctilii, but to the far older Quinctii. When, again,

the Quinctii (Liv. i. 30), or Quinctilii (Dion. iii. 29), are named among the Alban clans, the latter reading is here to be preferred, and the Quinctii are to be regarded rather as an old Roman -gens-.

6. Although the name "Hill of Quirinus" was afterwards ordinarily used to designate the height where the Hill-Romans had their abode, we need not at all on that account regard the name "Quirites" as having been originally reserved for the burgesses on the Quirinal. For, as has been shown, all the earliest indications point, as regards these, to the name -Collini-; while it is indisputably certain that the name Quirites denoted from the first, as well as subsequently, simply the full burgess, and had no connection with the distinction between montani and collini (comp. chap. v. infra). The later designation of the Quirinal rests on the circumstance that, while the -Mars quirinus-, the spear-bearing god of Death, was originally worshipped as well on the Palatine as on the Quirinal—as indeed the oldest inscriptions found at what was afterwards called the Temple of Quirinus designate this divinity simply as Mars,—at a later period for the sake of distinction the god of the Mount-Romans more especially was called Mars, the god of the Hill Romans more especially Quirinus.

When the Quirinal is called -collis agonalis-, "hill of sacrifice," it is so designated merely as the centre of the religious rites of the Hill-Romans.

7. The evidence alleged for this (comp. e. g. Schwegler, S. G. i. 480) mainly rests on an etymologico-historical hypothesis started by Varro and as usual unanimously echoed by later writers, that the Latin -quiris- and -quirinus- are akin to the name of the Sabine town -Cures-, and that the Quirinal hill accordingly had been peopled from -Cures-. Even if the linguistic affinity of these words were more assured, there would be little warrant for deducing from it such a historical inference. That the old sanctuaries on this eminence (where, besides, there was also a "Collis

Latiaris") were Sabine, has been asserted, but has not been proved. Mars quirinus, Sol, Salus, Flora, Semo Sancus or Deus fidius were doubtless Sabine, but they were also Latin, divinities, formed evidently during the epoch when Latins and Sabines still lived undivided. If a name like that of Semo Sancus (which moreover occurs in connection with the Tiber-island) is especially associated with the sacred places of the Quirinal which afterwards diminished in its importance (comp. the Porta Sanqualis deriving its name therefrom), every unbiassed inquirer will recognize in such a circumstance only a proof of the high antiquity of that worship, not a proof of its derivation from a neighbouring land. In so speaking we do not mean to deny that it is possible that old distinctions of race may have co-operated in producing this state of things; but if such was the case, they have, so far as we are concerned, totally disappeared, and the views current among our contemporaries as to the Sabine element in the constitution of Rome are only fitted seriously to warn us against such baseless speculations leading to no result.

CHAPTER V

The Original Constitution of Rome

The Roman House

Father and mother, sons and daughters, home and homestead, servants and chattels—such are the natural elements constituting the household in all cases, where polygamy has not obliterated the distinctive position of the mother. But the nations that have been most susceptible of culture have diverged widely from each other in their conception and treatment of the natural distinctions which the household thus presents. By some they have been apprehended and wrought out more profoundly, by others more superficially; by some more under their moral, by others more under their legal aspects. None has equalled the Roman in the simple but inexorable embodiment in law of the principles pointed out by nature herself.

The House-father and His Household

The family formed an unity. It consisted of the free man who upon his father's death had become his own master, and the spouse whom the priests by the ceremony of the sacred salted cake (-confarreatio-) had solemnly

wedded to share with him water and fire, with their son and sons' sons and the lawful wives of these, and their unmarried daughters and sons' daughters, along with all goods and substance pertaining to any of its members. The children of daughters on the other hand were excluded, because, if born in wedlock, they belonged to the family of the husband; and if begotten out of wedlock, they had no place in a family at all. To the Roman citizen a house of his own and the blessing of children appeared the end and essence of life. The death of the individual was not an evil, for it was a matter of necessity; but the extinction of a household or of a clan was injurious to the community itself, which in the earliest times therefore opened up to the childless the means of avoiding such a fatality by their adopting the children of others as their own.

The Roman family from the first contained within it the conditions of a higher culture in the moral adjustment of the mutual relations of its members. Man alone could be head of a family. Woman did not indeed occupy a position inferior to man in the acquiring of property and money; on the contrary the daughter inherited an equal share with her brother, and the mother an equal share with her children. But woman always and necessarily belonged to the household, not to the community; and in the household itself she necessarily held a position of domestic subjection—the daughter to her father, the wife to her husband,(1) the fatherless unmarried woman to her nearest male relatives; it was by these, and not by the king, that in case of need woman was called to account. Within the house, however, woman was not servant but mistress. Exempted from the tasks of corn-grinding and cooking which according to Roman ideas belonged to the menials, the Roman housewife devoted herself in the main to the superintendence of her maid-servants, and to the accompanying labours of the distaff, which was to woman what the plough was to man.(2) In like manner, the moral obligations of parents towards their children were fully and deeply felt by the Roman nation; and it was reckoned a heinous offence

if a father neglected or corrupted his child, or if he even squandered his property to his child's disadvantage.

In a legal point of view, however, the family was absolutely guided and governed by the single all-powerful will of the "father of the household" (-pater familias-). In relation to him all in the household were destitute of legal rights—the wife and the child no less than the bullock or the slave. As the virgin became by the free choice of her husband his wedded wife, so it rested with his own free will to rear or not to rear the child which she bore to him. This maxim was not suggested by indifference to the possession of a family; on the contrary, the conviction that the founding of a house and the begetting of children were a moral necessity and a public duty had a deep and earnest hold of the Roman mind. Perhaps the only instance of support accorded on the part of the community in Rome is the enactment that aid should be given to the father who had three children presented to him at a birth; while their ideas regarding exposure are indicated by the prohibition of it so far as concerned all the sons—deformed births excepted—and at least the first daughter. Injurious, however, to the public weal as exposure might appear, the prohibition of it soon changed its form from that of legal punishment into that of religious curse; for the father was, above all, thoroughly and absolutely master in his household. The father of the household not only maintained the strictest discipline over its members, but he had the right and duty of exercising judicial authority over them and of punishing them as he deemed fit in life and limb. The grown-up son might establish a separate household or, as the Romans expressed it, maintain his "own cattle" (-peculium-) assigned to him by his father; but in law all that the son acquired, whether by his own labour or by gift from a stranger, whether in his father's household or in his own, remained the father's property. So long as the father lived, the persons legally subject to him could never hold property of their own, and therefore could not alienate unless by him so empowered, or yet bequeath. In this respect wife and child

stood quite on the same level with the slave, who was not unfrequently allowed to manage a household of his own, and who was likewise entitled to alienate when commissioned by his master. Indeed a father might convey his son as well as his slave in property to a third person: if the purchaser was a foreigner, the son became his slave; if he was a Roman, the son, while as a Roman he could not become a Roman's slave, stood at least to his purchaser in a slave's stead (-in mancipii causa-). The paternal and marital power was subject to a legal restriction, besides the one already mentioned on the right Of exposure, only in so far as some of the worst abuses were visited by legal punishment as well as by religious curse. Thus these penalties fell upon the man who sold his wife or married son; and it was a matter of family usage that in the exercise of domestic jurisdiction the father, and still more the husband, should not pronounce sentence on child or wife without having previously consulted the nearest blood-relatives, his wife's as well as his own. But the latter arrangement involved no legal diminution of power, for the blood-relatives called in to the domestic judgment had not to judge, but simply to advise the father of the household in judging.

But not only was the power of the master of the house substantially unlimited and responsible to no one on earth; it was also, as long as he lived, unchangeable and indestructible. According to the Greek as well as Germanic laws the grown-up son, who was practically independent of his father, was also independent legally; but the power of the Roman father could not be dissolved during his life either by age or by insanity, or even by his own free will, excepting only that the person of the holder of the power might change, for the child might certainly pass by way of adoption into the power of another father, and the daughter might pass by a lawful marriage out of the hand of her father into the hand of her husband and, leaving her own -gens- and the protection of her own god to enter into the -gens- of her husband and the protection of his god, became thenceforth

subject to him as she had hitherto been to her father. According to Roman law it was made easier for the slave to obtain release from his master than for the son to obtain release from his father; the manumission of the former was permitted at an early period, and by simple forms; the release of the latter was only rendered possible at a much later date, and by very circuitous means. Indeed, if a master sold his slave and a father his son and the purchaser released both, the slave obtained his freedom, but the son by the release simply reverted into his father's power as before. Thus the inexorable consistency with which the Romans carried out their conception of the paternal and marital power converted it into a real right of property.

Closely, however, as the power of the master of the household over wife and child approximated to his proprietary power over slaves and cattle, the members of the family were nevertheless separated by a broad line of distinction, not merely in fact but in law, from the family property. The power of the house-master—even apart from the fact that it appeared in operation only within the house—was of a transient, and in some degree of a representative, character. Wife and child did not exist merely for the house-father's sake in the sense in which property exists only for the proprietor, or in which the subjects of an absolute state exist only for the king; they were the objects indeed of a legal right on his part, but they had at the same time capacities of right of their own; they were not things, but persons. Their rights were dormant in respect of exercise, simply because the unity of the household demanded that it should be governed by a single representative; but when the master of the household died, his sons at once came forward as its masters and now obtained on their own account over the women and children and property the rights hitherto exercised over these by the father. On the other hand the death of the master occasioned no change in the legal position of the slave.

Family and Clan (-Gens-)

So strongly was the unity of the family realized, that even the death of the master of the house did not entirely dissolve it. The descendants, who were rendered by that occurrence independent, regarded themselves as still in many respects an unity; a principle which was made use of in arranging the succession of heirs and in many other relations, but especially in regulating the position of the widow and unmarried daughters. As according to the older Roman view a woman was not capable of having power either over others or over herself, the power over her, or, as it was in this case more mildly expressed, the "guardianship" (-tutela-) remained with the house to which she belonged, and was now exercised in the room of the deceased house-master by the whole of the nearest male members of the family; ordinarily, therefore, by sons over their mother and by brothers over their sisters. In this sense the family, once founded, endured unchanged till the male stock of its founder died out; only the bond of connection must of course have become practically more lax from generation to generation, until at length it became impossible to prove the original unity. On this, and on this alone, rested the distinction between family and clan, or, according to the Roman expression, between -agnati- and -gentiles-. Both denoted the male stock; but the family embraced only those individuals who, mounting up from generation to generation, were able to set forth the successive steps of their descent from a common progenitor; the clan (-gens-) on the other hand comprehended also those who were merely able to lay claim to such descent from a common ancestor, but could no longer point out fully the intermediate links so as to establish the degree of their relationship. This is very clearly expressed in the Roman names: when they speak of "Quintus, son of Quintus, grandson of Quintus and so on, the Quintian," the family reaches as far as the ascendants are designated individually, and where the family terminates the clan is introduced supplementary, indicating

derivation from the common ancestor who has bequeathed to all his descendants the name of the "children of Quintus."

Dependents of the Household

To these strictly closed unities—the family or household united under the control of a living master, and the clan which originated out of the breaking-up of such households—there further belonged the dependents or "listeners" (-clientes-, from -cluere-). This term denoted not the guests, that is, the members of other similar circles who were temporarily sojourning in another household than their own, and as little the slaves, who were looked upon in law as the property of the household and not as members of it, but those individuals who, while they were not free burgesses of any commonwealth, yet lived within one in a condition of protected freedom. These included refugees who had found a reception with a foreign protector, and those slaves in respect of whom their master had for the time being waived the exercise of his rights, and so conferred on them practical freedom. This relation had not the distinctive character of a strict relation -de jure-, like that of a man to his guest: the client remained a man non-free, in whose case good faith and use and wont alleviated the condition of non-freedom. Hence the "listeners" of the household (-clientes-) together with the slaves strictly so called formed the "body of servants" (-familia-) dependent on the will of the "burgess" (-patronus-, like -patricius-). Hence according to original right the burgess was entitled partially or wholly to resume the property of the client, to reduce him on emergency once more to the state of slavery, to inflict even capital punishment on him; and it was simply in virtue of a distinction -de facto-, that these patrimonial rights were not asserted with the same rigour against the client as against the actual slave, and that on the other hand the moral obligation of the master to provide for his own people and to protect them acquired a greater

importance in the case of the client, who was practically in a more free position, than in the case of the slave. Especially must the -de facto-freedom of the client have approximated to freedom -de jure- in those cases where the relation had subsisted for several generations: when the releaser and the released had themselves died, the -dominium- over the descendants of the released person could not be without flagrant impiety claimed by the heirs at law of the releaser; and thus there was gradually formed within the household itself a class of persons in dependent freedom, who were different alike from the slaves and from the members of the -gens- entitled in the eye of the law to full and equal rights.

The Roman Community

On this Roman household was based the Roman state, as respected both its constituent elements and its form. The community of the Roman people arose out of the junction (in whatever way brought about) of such ancient clanships as the Romilii, Voltinii, Fabii, etc.; the Roman domain comprehended the united lands of those clans.⁽³⁾ Whoever belonged to one of these clans was a burgess of Rome. Every marriage concluded in the usual forms within this circle was valid as a true Roman marriage, and conferred burgess-rights on the children begotten of it. Whoever was begotten in an illegal marriage, or out of marriage, was excluded from the membership of the community. On this account the Roman burgesses assumed the name of the "father's children" (-patricii-), inasmuch as they alone in the eye of the law had a father. The clans with all the families that they contained were incorporated with the state just as they stood. The spheres of the household and the clan continued to subsist within the state; but the position which a man held in these did not affect his relations towards the state. The son was subject to the father within the household, but in political duties and rights he stood on a footing of equality. The

position of the protected dependents was naturally so far changed that the freedmen and clients of every patron received on his account toleration in the community at large; they continued indeed to be immediately dependent on the protection of the family to which they belonged, but the very nature of the case implied that the clients of members of the community could not be wholly excluded from its worship and its festivals, although, of course, they were not capable of the proper rights or liable to the proper duties of burgesses. This remark applies still more to the case of the protected dependents of the community at large. The state thus consisted, like the household, of persons properly belonging to it and of dependents—of "burgesses" and of "inmates" or —metoeci—.

The King

As the clans resting upon a family basis were the constituent elements of the state, so the form of the body-politic was modelled after the family both generally and in detail. The household was provided by nature herself with a head in the person of the father with whom it originated, and with whom it perished. But in the community of the people, which was designed to be imperishable, there was no natural master; not at least in that of Rome, which was composed of free and equal husbandmen and could not boast of a nobility by the grace of God. Accordingly one from its own ranks became its "leader" (-rex-) and lord in the household of the Roman community; as indeed at a later period there were to be found in or near to his dwelling the always blazing hearth and the well-barred store-chamber of the community, the Roman Vestas and the Roman Penates—indications of the visible unity of that supreme household which included all Rome. The regal office began at once and by right, when the position had become vacant and the successor had been designated; but the community did not owe full obedience to the king until he had convoked the assembly of freemen

capable of bearing arms and had formally challenged its allegiance. Then he possessed in its entirety that power over the community which belonged to the house-father in his household; and, like him, he ruled for life. He held intercourse with the gods of the community, whom he consulted and appeased (-auspicia publica-), and he nominated all the priests and priestesses. The agreements which he concluded in name of the community with foreigners were binding upon the whole people; although in other instances no member of the community was bound by an agreement with a non-member. His "command" (-imperium-) was all-powerful in peace and in war, on which account "messengers" (-lictores-, from -licere-, to summon) preceded him with axes and rods on all occasions when he appeared officially. He alone had the right of publicly addressing the burgesses, and it was he who kept the keys of the public treasury. He had the same right as a father had to exercise discipline and jurisdiction. He inflicted penalties for breaches of order, and, in particular, flogging for military offences. He sat in judgment in all private and in all criminal processes, and decided absolutely regarding life and death as well as regarding freedom; he might hand over one burgess to fill the place of a slave to another; he might even order a burgess to be sold into actual slavery or, in other words, into banishment. When he had pronounced sentence of death, he was entitled, but not obliged, to allow an appeal to the people for pardon. He called out the people for service in war and commanded the army; but with these high functions he was no less bound, when an alarm of fire was raised, to appear in person at the scene of the burning.

As the house-master was not simply the greatest but the only power in the house, so the king was not merely the first but the only holder of power in the state. He might indeed form colleges of men of skill composed of those specially conversant with the rules of sacred or of public law, and call upon them for their advice; he might, to facilitate his exercise of power,

entrust to others particular functions, such as the making communications to the burgesses, the command in war, the decision of processes of minor importance, the inquisition of crimes; he might in particular, if he was compelled to quit the bounds of the city, leave behind him a "city-warden" (-praefectus urbi-) with the full powers of an -alter ego-; but all official power existing by the side of the king's was derived from the latter, and every official held his office by the king's appointment and during the king's pleasure. All the officials of the earliest period, the extraordinary city-warden as well as the "leaders of division" (-tribuni-, from -tribus-, part) of the infantry (-milites-) and of the cavalry (-celeres-) were merely commissioned by the king, and not magistrates in the subsequent sense of the term. The regal power had not and could not have any external check imposed upon it by law: the master of the community had no judge of his acts within the community, any more than the housefather had a judge within his household. Death alone terminated his power. The choice of the new king lay with the council of elders, to which in case of a vacancy the interim-kingship (-interregnum-) passed. A formal cooperation in the election of king pertained to the burgesses only after his nomination; -de jure- the kingly office was based on the permanent college of the Fathers (-patres-), which by means of the interim holder of the power installed the new king for life. Thus "the august blessing of the gods, under which renowned Rome was founded," was transmitted from its first regal recipient in constant succession to those that followed him, and the unity of the state was preserved unchanged notwithstanding the personal change of the holders of power.

This unity of the Roman people, represented in the field of religion by the Roman Diovis, was in the field of law represented by the prince, and therefore his costume was the same as that of the supreme god; the chariot even in the city, where every one else went on foot, the ivory sceptre with the eagle, the vermilion-painted face, the chaplet of oaken leaves in gold,

belonged alike to the Roman god and to the Roman king. It would be a great error, however, to regard the Roman constitution on that account as a theocracy: among the Italians the ideas of god and king never faded away into each other, as they did in Egypt and the East. The king was not the god of the people; it were much more correct to designate him as the proprietor of the state. Accordingly the Romans knew nothing of special divine grace granted to a particular family, or of any other sort of mystical charm by which a king should be made of different stuff from other men: noble descent and relationship with earlier rulers were recommendations, but were not necessary conditions; the office might be lawfully filled by any Roman come to years of discretion and sound in body and mind.⁽⁴⁾ The king was thus simply an ordinary burgess, whom merit or fortune, and the primary necessity of having one as master in every house, had placed as master over his equals—a husbandman set over husbandmen, a warrior set over warriors. As the son absolutely obeyed his father and yet did not esteem himself inferior, so the burgess submitted to his ruler without precisely accounting him his better. This constituted the moral and practical limitation of the regal power. The king might, it is true, do much that was inconsistent with equity without exactly breaking the law of the land: he might diminish his fellow-combatants' share of the spoil; he might impose exorbitant task-works or otherwise by his imposts unreasonably encroach upon the property of the burgess; but if he did so, he forgot that his plenary power came not from God, but under God's consent from the people, whose representative he was; and who was there to protect him, if the people should in return forget the oath of allegiance which they had sworn? The legal limitation, again, of the king's power lay in the principle that he was entitled only to execute the law, not to alter it. Every deviation from the law had to receive the previous approval of the assembly of the people and the council of elders; if it was not so approved, it was a null and tyrannical act carrying no legal effect. Thus the power of the king in Rome was, both

morally and legally, at bottom altogether different from the sovereignty of the present day; and there is no counterpart at all in modern life either to the Roman household or to the Roman state.

The Community

The division of the body of burgesses was based on the "wardship," -curia- (probably related to -curare- = -coerare-, —koiranos—); ten wardships formed the community; every wardship furnished a hundred men to the infantry (hence -mil-es-, like -equ-es-, the thousand-walker), ten horsemen and ten councillors. When communities combined, each of course appeared as a part (-tribus-) of the whole community (-tota-in Umbrian and Oscan), and the original unit became multiplied by the number of such parts. This division had reference primarily to the personal composition of the burgess-body, but it was applied also to the domain so far as the latter was apportioned at all. That the curies had their lands as well as the tribes, admits of the less doubt, since among the few names of the Roman curies that have been handed down to us we find along with some apparently derived from -gentes-, e. g. -Faucia-, others certainly of local origin, e. g. -Veliensis-; each one of them embraced, in this primitive period of joint possession of land, a number of clan-lands, of which we have already spoken.(5)

We find this constitution under its simplest form(6) in the scheme of the Latin or burgess communities that subsequently sprang up under the influence of Rome; these had uniformly the number of a hundred councillors (-centumviri-). But the same normal numbers make their appearance throughout in the earliest tradition regarding the tripartite Rome, which assigns to it thirty curies, three hundred horsemen, three hundred senators, three thousand foot-soldiers.

Nothing is more certain than that this earliest constitutional scheme did not originate in Rome; it was a primitive institution common to all the Latins, and perhaps reached back to a period anterior to the separation of the stocks. The Roman constitutional tradition quite deserving of credit in such matters, while it accounts historically for the other divisions of the burgesses, makes the division into curies alone originate with the origin of the city; and in entire harmony with that view not only does the curial constitution present itself in Rome, but in the recently discovered scheme of the organization of the Latin communities it appears as an essential part of the Latin municipal system.

The essence of this scheme was, and remained, the distribution into curies. The tribes ("parts") cannot have been an element of essential importance for the simple reason that their occurrence at all was, not less than their number, the result of accident; where there were tribes, they certainly had no other significance than that of preserving the remembrance of an epoch when such "parts" had themselves been wholes.⁽⁷⁾ There is no tradition that the individual tribes had special presiding magistrates or special assemblies of their own; and it is highly probable that in the interest of the unity of the commonwealth the tribes which had joined together to form it were never in reality allowed to have such institutions. Even in the army, it is true, the infantry had as many pairs of leaders as there were tribes; but each of these pairs of military tribunes did not command the contingent of a tribe; on the contrary each individual war-tribune, as well as all in conjunction, exercised command over the whole infantry. The clans were distributed among the several curies; their limits and those of the household were furnished by nature. That the legislative power interfered in these groups by way of modification, that it subdivided the large clan and counted it as two, or joined several weak ones together, there is no indication at all in Roman tradition; at any rate this took place only in a way so limited that the fundamental character of affinity belonging to the clan

was not thereby altered. We may not therefore conceive the number of the clans, and still less that of the households, as a legally fixed one; if the -curia- had to furnish a hundred men on foot and ten horsemen, it is not affirmed by tradition, nor is it credible, that one horseman was taken from each clan and one foot-soldier from each house. The only member that discharged functions in the oldest constitutional organization was the -curia-. Of these there were ten, or, where there were several tribes, ten to each tribe. Such a "wardship" was a real corporate unity, the members of which assembled at least for holding common festivals. Each wardship was under the charge of a special warden (-curio-), and had a priest of its own (-flamen curialis-); beyond doubt also levies and valuations took place according to curies, and in judicial matters the burgesses met by curies and voted by curies. This organization, however, cannot have been introduced primarily with a view to voting, for in that case they would certainly have made the number of subdivisions uneven.

Equality of the Burgesses

Sternly defined as was the contrast between burgess and non-burgess, the equality of rights within the burgess-body was complete. No people has ever perhaps equalled that of Rome in the inexorable rigour with which it has carried out these principles, the one as fully as the other. The strictness of the Roman distinction between burgesses and non-burgesses is nowhere perhaps brought out with such clearness as in the treatment of the primitive institution of honorary citizenship, which was originally designed to mediate between the two. When a stranger was, by resolution of the community, adopted into the circle of the burgesses, he might surrender his previous citizenship, in which case he passed over wholly into the new community; but he might also combine his former citizenship with that which had just been granted to him. Such was the primitive custom, and

such it always remained in Hellas, where in later ages the same person not unfrequently held the freedom of several communities at the same time. But the greater vividness with which the conception of the community as such was realized in Latium could not tolerate the idea that a man might simultaneously belong in the character of a burgess to two communities; and accordingly, when the newly-chosen burgess did not intend to surrender his previous franchise, it attached to the nominal honorary citizenship no further meaning than that of an obligation to befriend and protect the guest (-jus hospitii-), such as had always been recognized as incumbent in reference to foreigners. But this rigorous retention of barriers against those that were without was accompanied by an absolute banishment of all difference of rights among the members included in the burgess community of Rome. We have already mentioned that the distinctions existing in the household, which of course could not be set aside, were at least ignored in the community; the son who as such was subject in property to his father might thus, in the character of a burgess, come to have command over his father as master. There were no class-privileges: the fact that the Titii took precedence of the Ramnes, and both ranked before the Luceres, did not affect their equality in all legal rights. The burgess cavalry, which at this period was used for single combat in front of the line on horseback or even on foot, and was rather a select or reserve corps than a special arm of the service, and which accordingly contained by far the wealthiest, best-armed, and best-trained men, was naturally held in higher estimation than the burgess infantry; but this was a distinction purely -de facto-, and admittance to the cavalry was doubtless conceded to any patrician. It was simply and solely the constitutional subdivision of the burgess-body that gave rise to distinctions recognized by the law; otherwise the legal equality of all the members of the community was carried out even in their external appearance. Dress indeed served to distinguish the president of the community from its members, the grown-up man under obligation of

military service from the boy not yet capable of enrolment; but otherwise the rich and the noble as well as the poor and low-born were only allowed to appear in public in the like simple wrapper (-toga-) of white woollen stuff. This complete equality of rights among the burgesses had beyond doubt its original basis in the Indo-Germanic type of constitution; but in the precision with which it was thus apprehended and embodied it formed one of the most characteristic and influential peculiarities of the Latin nation. And in connection with this we may recall the fact that in Italy we do not meet with any race of earlier settlers less capable of culture, that had become subject to the Latin immigrants.(8) They had no conquered race to deal with, and therefore no such condition of things as that which gave rise to the Indian system of caste, to the nobility of Thessaly and Sparta and perhaps of Hellas generally, and probably also to the Germanic distinction of ranks.

Burdens of the Burgesses

The maintenance of the state economy devolved, of course, upon the burgesses. The most important function of the burgess was his service in the army; for the burgesses had the right and duty of bearing arms. The burgesses were at the same time the "body of warriors" (-populus-, related to -populari-, to lay waste): in the old litanies it is upon the "spear-armed body of warriors" (-pilumnus poplus-) that the blessing of Mars is invoked; and even the designation with which the king addresses them, that of Quirites,(9) is taken as signifying "warrior." We have already stated how the army of aggression, the "gathering" (-legio-), was formed. In the tripartite Roman community it consisted of three "hundreds" (-centuriae-) of horsemen (-celeres-, "the swift," or -flexuntes-, "the wheelers") under the three leaders-of-division of the horsemen (-tribuni celerum-)(10) and three "thousands" of footmen (-milties-) under the three leaders-of-division of the

infantry (-tribuni militum-), the latter were probably from the first the flower of the general levy. To these there may perhaps have been added a number of light-armed men, archers especially, fighting outside of the ranks.(11) The general was regularly the king himself. Besides service in war, other personal burdens might devolve upon the burgesses; such as the obligation of undertaking the king's commissions in peace and in war,(12) and the task-work of tilling the king's lands or of constructing public buildings. How heavily in particular the burden of building the walls of the city pressed upon the community, is evidenced by the fact that the ring-walls retained the name of "tasks" (-moenia-). There was no regular direct taxation, nor was there any direct regular expenditure on the part of the state. Taxation was not needed for defraying the burdens of the community, since the state gave no recompense for serving in the army, for task-work, or for public service generally; so far as there was any such recompense at all, it was given to the person who performed the service either by the district primarily concerned in it, or by the person who could not or would not himself serve. The victims needed for the public service of the gods were procured by a tax on actions at law; the defeated party in an ordinary process paid down to the state a cattle-fine (-sacramentum-) proportioned to the value of the object in dispute. There is no mention of any regular presents to the king on the part of the burgesses. On the other hand there flowed into the royal coffers the port-duties,(13) as well as the income from the domains—in particular, the pasture tribute (-scriptura-) from the cattle driven out upon the common pasture, and the quotas of produce (-vectigalia-) which those enjoying the use of the lands of the state had to pay instead of rent. To this was added the produce of cattle-fines and confiscations and the gains of war. In cases of need a contribution (-tributum-) was imposed, which was looked upon, however, as a forced loan and was repaid when the times improved; whether it fell upon the burgesses

generally, or only upon the —metoeci—, cannot be determined; the latter supposition is, however, the more probable.

The king managed the finances. The property of the state, however, was not identified with the private property of the king; which, judging from the statements regarding the extensive landed possessions of the last Roman royal house, the Tarquins, must have been considerable. The ground won by arms, in particular, appears to have been constantly regarded as property of the state. Whether and how far the king was restricted by use and wont in the administration of the public property, can no longer be ascertained; only the subsequent course of things shows that the burgesses can never have been consulted regarding it, whereas it was probably the custom to consult the senate in the imposition of the -tributum- and in the distribution of the lands won in war.

Rights of the Burgesses

The Roman burgesses, however, do not merely come into view as furnishing contributions and rendering service; they also bore a part in the public government. For this purpose all the members of the community (with the exception of the women, and the children still incapable of bearing arms)—in other words, the "spearmen" (-quirites-) as in addressing them they were designated—assembled at the seat of justice, when the king convoked them for the purpose of making a communication (-conventio-, -contio-) or formally bade them meet (-comitia-) for the third week (-in trinum noundinum-), to consult them by curies. He appointed such formal assemblies of the community to be held regularly twice a year, on the 24th of March and the 24th of May, and as often besides as seemed to him necessary. The burgesses, however, were always summoned not to speak, but to hear; not to ask questions, but to answer. No one spoke in the

assembly but the king, or he to whom the king saw fit to grant liberty of speech; and the speaking of the burgesses consisted of a simple answer to the question of the king, without discussion, without reasons, without conditions, without breaking up the question even into parts. Nevertheless the Roman burgess-community, like the Germanic and not improbably the primitive Indo-Germanic communities in general, was the real and ultimate basis of the political idea of sovereignty. But in the ordinary course of things this sovereignty was dormant, or only had its expression in the fact that the burgess-body voluntarily bound itself to render allegiance to its president. For that purpose the king, after he had entered on his office, addressed to the assembled curies the question whether they would be true and loyal to him and would according to use and wont acknowledge himself as well as his messengers (-lictors-); a question, which undoubtedly might no more be answered in the negative than the parallel homage in the case of a hereditary monarchy might be refused.

It was in thorough consistency with constitutional principles that the burgesses, just as being the sovereign power, should not on ordinary occasions take part in the course of public business. So long as public action was confined to the carrying into execution of the existing legal arrangements, the power which was, properly speaking, sovereign in the state could not and might not interfere: the laws governed, not the lawgiver. But it was different where a change of the existing legal arrangements or even a mere deviation from them in a particular case was necessary; and here accordingly, under the Roman constitution, the burgesses emerge without exception as actors; so that each act of the sovereign authority is accomplished by the co-operation of the burgesses and the king or -interrex-. As the legal relation between ruler and ruled was itself sanctioned after the manner of a contract by oral question and answer, so every sovereign act of the community was accomplished by means of a question (-rogatio-), which the king addressed to the burgesses, and to which the

majority of the curies gave an affirmative answer. In this case their consent might undoubtedly be refused. Among the Romans, therefore, law was not primarily, as we conceive it, a command addressed by the sovereign to the whole members of the community, but primarily a contract concluded between the constitutive powers of the state by address and counter-address. (14) Such a legislative contract was -de jure- requisite in all cases which involved a deviation from the ordinary consistency of the legal system. In the ordinary course of law any one might without restriction give away his property to whom he would, but only upon condition of its immediate transfer: that the property should continue for the time being with the owner, and at his death pass over to another, was a legal impossibility—unless the community should allow it; a permission which in this case the burgesses could grant not only when assembled in their curies, but also when drawn up for battle. This was the origin of testaments. In the ordinary course of law the freeman could not lose or surrender the inalienable blessing of freedom, and therefore one who was subject to no housemaster could not subject himself to another in the place of a son—unless the community should grant him leave to do so. This was the -abrogatio-. In the ordinary course of law burgess-rights could only be acquired by birth and could never be lost—unless the community should confer the patriciate or allow its surrender; neither of which acts, doubtless, could be validly done originally without a decree of the curies. In the ordinary course of law the criminal whose crime deserved death, when once the king or his deputy had pronounced sentence according to judgment and justice, was inexorably executed; for the king could only judge, not pardon—unless the condemned burgess appealed to the mercy of the community and the judge allowed him the opportunity of pleading for pardon. This was the beginning of the -provocatio-, which for that reason was especially permitted not to the transgressor who had refused to plead guilty and had been convicted, but to him who confessed his crime and urged reasons in palliation of it. In the

ordinary course of law the perpetual treaty concluded with a neighbouring state might not be broken—unless the burgesses deemed themselves released from it on account of injuries inflicted on them. Hence it was necessary that they should be consulted when an aggressive war was contemplated, but not on occasion of a defensive war, where the other state had broken the treaty, nor on the conclusion of peace; it appears, however, that the question was in such a case addressed not to the usual assembly of the burgesses, but to the army. Thus, in general, it was necessary to consult the burgesses whenever the king meditated any innovation, any change of the existing public law; and in so far the right of legislation was from antiquity not a right of the king, but a right of the king and the community. In these and all similar cases the king could not act with legal effect without the cooperation of the community; the man whom the king alone declared a patrician remained as before a non-burgess, and the invalid act could only carry consequences possibly -de facto-, not -de jure-. Thus far the assembly of the community, however restricted and bound at its emergence, was yet from antiquity a constituent element of the Roman commonwealth, and was in law superior to, rather than co-ordinate with, the king.

The Senate

But by the side of the king and of the burgess-assembly there appears in the earliest constitution of the community a third original power, not destined for acting like the former or for resolving like the latter, and yet co-ordinate with both and within its own rightful sphere placed over both. This was the council of elders or -senatus-. Beyond doubt it had its origin in the clan-constitution: the old tradition that in the original Rome the senate was composed of all the heads of households is correct in state-law to this extent, that each of the clans of the later Rome which had not merely migrated thither at a more recent date referred its origin to one of those

household-fathers of the primitive city as its ancestor and patriarch. If, as is probable, there was once in Rome or at any rate in Latium a time when, like the state itself, each of its ultimate constituents, that is to say each clan, had virtually a monarchical organization and was under the rule of an elder—whether raised to that position by the choice of the clansmen or of his predecessor, or in virtue of hereditary succession—the senate of that time was nothing but the collective body of these clan-elders, and accordingly an institution independent of the king and of the burgess-assembly; in contradistinction to the latter, which was directly composed of the whole body of the burgesses, it was in some measure a representative assembly of persons acting for the people. Certainly that stage of independence when each clan was virtually a state was surmounted in the Latin stock at an immemorially early period, and the first and perhaps most difficult step towards developing the community out of the clan-organization—the setting aside of the clan-elders—had possibly been taken in Latium long before the foundation of Rome; the Roman clan, as we know it, is without any visible head, and no one of the living clansmen is especially called to represent the common patriarch from whom all the clansmen descend or profess to descend so that even inheritance and guardianship, when they fall by death to the clan, devolve on the clan-members as a whole. Nevertheless the original character of the council of elders bequeathed many and important legal consequences to the Roman senate. To express the matter briefly, the position of the senate as something other and more than a mere state-council—than an assemblage of a number of trusty men whose advice the king found it fitting to obtain—hinged entirely on the fact that it was once an assembly, like that described by Homer, of the princes and rulers of the people sitting for deliberation in a circle round the king. So long as the senate was formed by the aggregate of the heads of clans, the number of the members cannot have been a fixed one, since that of the clans was not so; but in the earliest, perhaps even in pre-Roman, times the number of the

members of the council of elders for the community had been fixed without respect to the number of the then existing clans at a hundred, so that the amalgamation of the three primitive communities had in state-law the necessary consequence of an increase of the seats in the senate to what was thenceforth the fixed normal number of three hundred. Moreover the senators were at all times called to sit for life; and if at a later period the lifelong tenure subsisted more -de facto- than -de jure-, and the revisions of the senatorial list that took place from time to time afforded an opportunity to remove the unworthy or the unacceptable senator, it can be shown that this arrangement only arose in the course of time. The selection of the senators certainly, after there were no longer heads of clans, lay with the king; but in this selection during the earlier epoch, so long as the people retained a vivid sense of the individuality of the clans, it was probably the rule that, when a senator died, the king should call another experienced and aged man of the same clanship to fill his place. It was only, we may surmise, when the community became more thoroughly amalgamated and inwardly united, that this usage was departed from and the selection of the senators was left entirely to the free judgment of the king, so that he was only regarded as failing in his duty when he omitted to fill up vacancies.

Prerogatives of the Senate. The -Interregnum-

The prerogatives of this council of elders were based on the view that the rule over the community composed of clans rightfully belonged to the collective clan-elders, although in accordance with the monarchical principle of the Romans, which already found so stern an expression in the household, that rule could only be exercised for the time being by one of these elders, namely the king. Every member of the senate accordingly was as such, not in practice but in prerogative, likewise king of the community; and therefore his insignia, though inferior to those of the king, were of a

similar character: he wore the red shoe like the king; only that of the king was higher and more handsome than that of the senator. On this ground, moreover, as was already mentioned, the royal power in the Roman community could never be left vacant. When the king died, the elders at once took his place and exercised the prerogatives of regal power. According to the immutable principle however that only one can be master at a time, even now it was only one of them that ruled, and such an "interim king" (-interrex-) was distinguished from the king nominated for life simply in respect to the duration, not in respect to the plenitude, of his authority. The duration of the office of -interrex- was fixed for the individual holders at not more than five days; it circulated accordingly among the senators on the footing that, until the royal office was again permanently filled up, the temporary holder at the expiry of that term nominated a successor to himself, likewise for five days, agreeably to the order of succession fixed by lot. There was not, as may readily be conceived, any declaration of allegiance to the -interrex- on the part of the community. Nevertheless the -interrex- was entitled and bound not merely to perform all the official acts otherwise pertaining to the king, but even to nominate a king for life— with the single exception, that this latter right was not vested in the first who held the office, presumably because the first was regarded as defectively appointed inasmuch as he was not nominated by his predecessor. Thus this assembly of elders was the ultimate holder of the ruling power (-imperium-) and the divine protection (-auspicia-) of the Roman commonwealth, and furnished the guarantee for the uninterrupted continuance of that commonwealth and of its monarchical—though not hereditarily monarchical—organization. If therefore this senate subsequently seemed to the Greeks to be an assembly of kings, this was only what was to be expected; it had in fact been such originally.

The Senate and the Resolutions of the Community: -Patrum Auctoritas-

But it was not merely in so far as the idea of a perpetual kingdom found its living expression in this assembly, that it was an essential member of the Roman constitution. The council of elders, indeed, had no title to interfere with the official functions of the king. The latter doubtless, in the event of his being unable personally to lead the army or to decide a legal dispute, took his deputies at all times from the senate; for which reason subsequently the highest posts of command were regularly bestowed on senators alone, and senators were likewise employed by preference as jurymen. But the senate, in its collective capacity, was never consulted in the leading of the army or in the administration of justice; and therefore there was no right of military command and no jurisdiction vested in the senate of the later Rome. On the other hand the council of elders was held as called to the guardianship of the existing constitution against encroachments by the king and the burgesses. On the senate devolved the duty of examining every resolution adopted by the burgesses at the suggestion of the king, and of refusing to confirm it if it seemed to violate existing rights; or, which was the same thing, in all cases where a resolution of the community was constitutionally requisite—as on every alteration of the constitution, on the reception of new burgesses, on the declaration of an aggressive war—the council of elders had a right of veto. This may not indeed be regarded in the light of legislation pertaining jointly to the burgesses and the senate, somewhat in the same way as to the two chambers in the constitutional state of the present day; the senate was not so much law-maker as law-guardian, and could only cancel a decree when the community seemed to have exceeded its competence—to have violated by its decree existing obligations towards the gods or towards foreign states or organic institutions of the community. But still it was a matter of the greatest importance that—to take an example—when the Roman king had proposed a declaration of war and the burgesses had converted it into a decree, and when the satisfaction which the foreign community seemed

bound to furnish had been demanded in vain, the Roman envoy invoked the gods as witnesses of the wrong and concluded with the words, "But on these matters we shall consult the elders at home how we may obtain our rights;" it was only when the council of elders had declared its consent, that the war now decreed by the burgesses and approved by the senate was formally declared. Certainly it was neither the design nor the effect of this rule to occasion a constant interference of the senate with the resolutions of the burgesses, and by such guardianship to divest them of their sovereign power; but, as in the event of a vacancy in the supreme office the senate secured the continuance of the constitution, we find it here also as the shield of legal order in opposition even to the supreme power—the community.

The Senate As State-Council

With this arrangement was probably connected the apparently very ancient usage, in virtue of which the king previously submitted to the senate the proposals that were to be brought before the burgesses, and caused all its members one after another to give their opinion on the subject. As the senate had the right of cancelling the resolution adopted, it was natural for the king to assure himself beforehand that no opposition was to be apprehended from that quarter; as indeed in general, on the one hand, it was in accordance with Roman habits not to decide matters of importance without having taken counsel with other men, and on the other hand the senate was called, in virtue of its very composition, to act as a state-council to the ruler of the community. It was from this usage of giving counsel, far more than from the prerogatives which we have previously described, that the subsequent extensive powers of the senate were developed; but it was in its origin insignificant and really amounted only to the prerogative of the senators to answer, when they were asked a question. It may have been usual to ask the previous opinion of the senate in affairs of importance

which were neither judicial nor military, as, for instance—apart from the proposals to be submitted to the assembly of the people—in the imposition of task-works and taxes, in the summoning of the burgesses to war-service, and in the disposal of the conquered territory; but such a previous consultation, though usual, was not legally necessary. The king convoked the senate when he pleased, and laid before it his questions; no senator might declare his opinion unasked, still less might the senate meet without being summoned, except in the single case of its meeting on occasion of a vacancy to settle the order of succession in the office of -interrex-. That the king was moreover at liberty to call in and consult other men whom he trusted alongside of, and at the same time with, the senators, is in a high degree probable. The advice, accordingly, was not a command; the king might omit to comply with it, while the senate had no other means for giving practical effect to its views except the already-mentioned right of cassation, which was far from being universally applicable. "I have chosen you, not that ye may be my guides, but that ye may do my bidding:" these words, which a later author puts into the mouth of king Romulus, certainly express with substantial correctness the position of the senate in this respect.

The Original Constitution of Rome

Let us now sum up the results. Sovereignty, as conceived by the Romans, was inherent in the community of burgesses; but the burgess-body was never entitled to act alone, and was only entitled to co-operate in action, when there was to be a departure from existing rules. By its side stood the assembly of the elders of the community appointed for life, virtually a college of magistrates with regal power, called in the event of a vacancy in the royal office to administer it by means of their own members until it should be once more definitively filled, and entitled to overturn the illegal

decrees of the community. The royal power itself was, as Sallust says, at once absolute and limited by the laws (-imperium legitimum-); absolute, in so far as the king's command, whether righteous or not, must in the first instance be unconditionally obeyed; limited, in so far as a command contravening established usage and not sanctioned by the true sovereign—the people—carried no permanent legal consequences. The oldest constitution of Rome was thus in some measure constitutional monarchy inverted. In that form of government the king is regarded as the possessor and vehicle of the plenary power of the state, and accordingly acts of grace, for example, proceed solely from him, while the administration of the state belongs to the representatives of the people and to the executive responsible to them. In the Roman constitution the community of the people exercised very much the same functions as belong to the king in England: the right of pardon, which in England is a prerogative of the crown, was in Rome a prerogative of the community; while all government was vested in the president of the state.

If, in conclusion, we inquire as to the relation of the state itself to its individual members, we find the Roman polity equally remote from the laxity of a mere defensive combination and from the modern idea of an absolute omnipotence of the state. The community doubtless exercised power over the person of the burgess in the imposition of public burdens, and in the punishment of offences and crimes; but any special law inflicting, or threatening to inflict, punishment on an individual on account of acts not universally recognized as penal always appeared to the Romans, even when there was no flaw in point of form, an arbitrary and unjust proceeding. Far more restricted still was the power of the community in respect of the rights of property and the rights of family which were coincident, rather than merely connected, with these; in Rome the household was not absolutely annihilated and the community aggrandized at its expense, as was the case in the police organization of Lycurgus. It was

one of the most undeniable as well as one of the most remarkable principles of the primitive constitution of Rome, that the state might imprison or hang the burgess, but might not take away from him his son or his field or even lay permanent taxation on him. In these and similar things the community itself was restricted from encroaching on the burgess, nor was this restriction merely ideal; it found its expression and its practical application in the constitutional veto of the senate, which was certainly entitled and bound to annul any resolution of the community contravening such an original right. No community was so all-powerful within its own sphere as the Roman; but in no community did the burgess who conducted himself un-blameably live in an equally absolute security from the risk of encroachment on the part either of his fellow-burgesses or of the state itself.

These were the principles on which the community of Rome governed itself—a free people, understanding the duty of obedience, clearly disowning all mystical priestly delusion, absolutely equal in the eye of the law and one with another, bearing the sharply-defined impress of a nationality of their own, while at the same time (as will be afterwards shown) they wisely as well as magnanimously opened their gates wide for intercourse with other lands. This constitution was neither manufactured nor borrowed; it grew up amidst and along with the Roman people. It was based, of course, upon the earlier constitutions—the Italian, the Graeco-Italian, and the Indo-Germanic; but a long succession of phases of political development must have intervened between such constitutions as the poems of Homer and the Germania of Tacitus delineate and the oldest organization of the Roman community. In the acclamation of the Hellenic and in the shield-striking of the Germanic assemblies there was involved an expression of the sovereign power of the community; but a wide interval separated forms such as these from the organized jurisdiction and the regulated declaration of opinion of the Latin assembly of curies. It is possible, moreover, that as the Roman kings certainly borrowed the purple

mantle and the ivory sceptre from the Greeks (not from the Etruscans), the twelve lictors also and various other external arrangements were introduced from abroad. But that the development of the Roman constitutional law belonged decidedly to Rome or, at any rate, to Latium, and that the borrowed elements in it are but small and unimportant, is clearly demonstrated by the fact that all its ideas are uniformly expressed by words of Latin coinage. This constitution practically established for all time the fundamental conceptions of the Roman state; for, as long as there existed a Roman community, in spite of changes of form it was always held that the magistrate had absolute command, that the council of elders was the highest authority in the state, and that every exceptional resolution required the sanction of the sovereign or, in other words, of the community of the people.

Notes for Book I Chapter V

1. This was not merely the case under the old religious marriage (-matrimonium confarreatione-); the civil marriage also (-matrimonium consensu-), although not in itself giving to the husband proprietary power over his wife, opened up the way for his acquiring this proprietary power, inasmuch as the legal ideas of "formal delivery" (-coemptio-), and "prescription" (-usus-), were applied without ceremony to such a marriage. Till he acquired it, and in particular therefore during the period which elapsed before the completion of the prescription, the wife was (just as in the later marriage by -causae probatio-, until that took place), not -uxor-, but -pro uxore-. Down to the period when Roman jurisprudence became a completed system the principle maintained its ground, that the wife who was not in her husband's power was not a married wife, but only passed as such (-uxor tantummodo habetur-. Cicero, Top. 3, 14).

2. The following epitaph, although belonging to a much later period, is not unworthy to have a place here. It is the stone that speaks:—

-Hospes, quod deico, paullum est. Asta ac pellige. Heic est sepulcrum haud pulcrum pulcrae feminae, Nomen parentes nominarunt Claudiam, Suo mareitum corde dilexit sovo, Gnatos duos creavit, horum alterum In terra linoit, alium sub terra locat; Sermone lepido, tum autem incessu commodo, Domum servavit, lanam fecit. Dixi. Abei.-

(Corp. Inscr. Lat. 1007.)

Still more characteristic, perhaps, is the introduction of wool-spinning among purely moral qualities; which is no very unusual occurrence in Roman epitaphs. Orelli, 4639: -optima et pulcherrima, lanifica pia pudica frugi casta domiseda-. Orelli, 4861: -modestia probitate pudicitia obsequio lanificio diligentia fide par similisque ceteris probeis femina fuit-. Epitaph of Turia, i. 30: domestica bona pudicitiae, opsequi, comitatis, facilitatis, lanificiis [tuis adsiduitatis, religionis] sine superstitione, ornatus non conspiciendi, cultus modici.

3. I. III. Clan-villages

4. Dionysius affirms (v. 25) that lameness excluded from the supreme magistracy. That Roman citizenship was a condition for the regal office as well as for the consulate, is so very self-evident as to make it scarcely worth while to repudiate expressly the fictions respecting the Burgess of Cures.

5. I. III. Clan-villages

6. Even in Rome, where the simple constitution of ten curies otherwise early disappeared, we still discover one practical application of it, and that singularly enough in the very same formality which we have other reasons for regarding as the oldest of all those that are mentioned in our legal traditions, the -confarreatio-. It seems scarcely doubtful that the ten witnesses in that ceremony had the same relation to the constitution of ten curies the thirty lictors had to the constitution of thirty curies.

7. This is implied in their very name. The "part" (-tribus-) is, as jurists know, simply that which has once been or may hereafter come to be a whole, and so has no real standing of its own in the present.

8. I. II. Primitive Races of Italy

9. -Quiris-, -quiritis-, or -quirinus- is interpreted by the ancients as "lance-bearer," from -quiris- or -curis- = lance and -ire-, and so far in their view agrees with -samnis-, -samnitis- and -sabinus-, which also among the ancients was derived from —saunion—, spear. This etymology, which associates the word with -arquites-, -milites-, -pedites-, -equites-, -velites—those respectively who go with the bow, in bodies of a thousand, on foot, on horseback, without armour in their mere over-garment—may be incorrect, but it is bound up with the Roman conception of a burgess. So too Juno quiritis, (Mars) quirinus, Janus quirinus, are conceived as divinities that hurl the spear; and, employed in reference to men, -quiris- is the warrior, that is, the full burgess. With this view the -usus loquendi- coincides. Where the locality was to be referred to, "Quirites" was never used, but always "Rome" and "Romans" (-urbs Roma-, -populus-, -civis-, -ager Romanus-), because the term -quiris- had as little of a local meaning as -civis- or -miles-. For the same reason these designations could not be combined; they did not say -civis quiris-, because both denoted, though from different points of view, the same legal conception. On the other hand the solemn announcement of the funeral of a burgess ran in the words "this warrior has departed in death" (-ollus quiris leto datus-); and in like manner the king addressed the assembled community by this name, and, when he sat in judgment, gave sentence according to the law of the warrior-freemen (-ex iure quiritorium-, quite similar to the later -ex iure civili-). The phrase -populus Romanus-, -quirites- (-populus Romanus quiritorium-is not sufficiently attested), thus means "the community and the individual burgesses," and therefore in an old formula (Liv. i. 32) to the -populus Romanus- are opposed the -prisci Latini-, to the -quirites- the -homines prisci Latini- (Becker, Handb. ii. 20 seq.)

In the face of these facts nothing but ignorance of language and of history can still adhere to the idea that the Roman community was once confronted by a Quirite community of a similar kind, and that after their incorporation

the name of the newly received community supplanted in ritual and legal phraseology that of the receiver.—Comp. iv. The Hill-Romans On The Quirinal, note.

10. Among the eight ritual institutions of Numa, Dionysius (ii. 64) after naming the Curiones and Flamines, specifies as the third the leaders of the horsemen (—oi eigemones ton Kelerion—). According to the Praenestine calendar a festival was celebrated at the Comitium on the 19th March [adstantibus pon]tificibus et trib(unis) celer(um). Valerius Antias (in Dionys. i. 13, comp. iii. 41) assigns to the earliest Roman cavalry a leader, Celer, and three centurions; whereas in the treatise *De viris ill.* i, Celer himself is termed -centurio-. Moreover Brutus is affirmed to have been -tribunus celerum- at the expulsion of the kings (Liv. i. 59), and according to Dionysius (iv. 71) to have even by virtue of this office made the proposal to banish the Tarquins. And, lastly, Pomponius (Dig. i. 2, 2, 15, 19) and Lydus in a similar way, partly perhaps borrowing from him (*De Mag.* i. 14, 37), identify the -tribunus celerum- with the Celer of Antias, the -magister equitum- of the dictator under the republic, and the -Praefectus praetorio- of the empire.

Of these—the only statements which are extant regarding the -tribuni celerum- —the last mentioned not only proceeds from late and quite untrustworthy authorities, but is inconsistent with the meaning of the term, which can only signify "divisional leaders of horsemen," and above all the master of the horse of the republican period, who was nominated only on extraordinary occasions and was in later times no longer nominated at all, cannot possibly have been identical with the magistracy that was required for the annual festival of the 19th March and was consequently a standing office. Laying aside, as we necessarily must, the account of Pomponius, which has evidently arisen solely out of the anecdote of Brutus dressed up with ever-increasing ignorance as history, we reach the simple result that

the -tribuni celerum- entirely correspond in number and character to the -tribuni militum-, and that they were the leaders-of-division of the horsemen, consequently quite distinct from the -magister equitum-.

11. This is indicated by the evidently very old forms -velites-and -arquites-and by the subsequent organization of the legion.

12. I. V. The King

13. I. IV. The Tibur and Its Traffic

14. -Lex- ("that which binds," related to -legare-, "to bind to something") denotes, as is well known, a contract in general, along, however, with the connotation of a contract whose terms the proposer dictates and the other party simply accepts or declines; as was usually the case, e. g. with public -licitationes-. In the -lex publica populi Romani- the proposer was the king, the acceptor the people; the limited co-operation of the latter was thus significantly indicated in the very language.

CHAPTER VI

The Non-Burgesses and the Reformed Constitution

Amalgamation of the Palatine and Quirinal Cities

The history of every nation, and of Italy more especially, is a — synoikismos— on a great scale. Rome, in the earliest form in which we have any knowledge of it, was already triune, and similar incorporations only ceased when the spirit of Roman vigour had wholly died away. Apart from that primitive process of amalgamation of the Ramnes, Titules, and Luceres, of which hardly anything beyond the bare fact is known, the earliest act of incorporation of this sort was that by which the Hill-burgesses became merged in the Palatine Rome. The organization of the two communities, when they were about to be amalgamated, may be conceived to have been substantially similar; and in solving the problem of union they would have to choose between the alternatives of retaining duplicate institutions or of abolishing one set of these and extending the other to the whole united community. They adopted the former course with respect to all sanctuaries and priesthoods. Thenceforth the Roman community had its two guilds of Salii and two of Luperci, and as it had two forms of Mars, it had also two priests for that divinity—the Palatine priest, who afterwards

usually took the designation of priest of Mars, and the Colline, who was termed priest of Quirinus. It is likely, although it can no longer be proved, that all the old Latin priesthoods of Rome—the Augurs, Pontifices, Vestals, and Fetials—originated in the same way from a combination of the priestly colleges of the Palatine and Quirinal communities. In the division into local regions the town on the Quirinal hill was added as a fourth region to the three belonging to the Palatine city, viz. the Suburan, Palatine, and suburban (-Esquiliae-). In the case of the original —synoikismos— the annexed community was recognized after the union as at least a tribe (part) of the new burgess-body, and thus had in some sense a continued political existence; but this course was not followed in the case of the Hill-Romans or in any of the later processes of annexation. After the union the Roman community continued to be divided as formerly into three tribes, each containing ten wardships (-curiae-); and the Hill-Romans—whether they were or were not previously distributed into tribes of their own—must have been inserted into the existing tribes and wardships. This insertion was probably so arranged that, while each tribe and wardship received its assigned proportion of the new burgesses, the new burgesses in these divisions were not amalgamated completely with the old; the tribes henceforth presented two ranks: the Tities, Ramnes, and Luceres being respectively subdivided into first and second (-prioris-, -posteriores-). With this division was connected in all probability that arrangement of the organic institutions of the community in pairs, which meets us everywhere. The three pairs of Sacred Virgins are expressly described as representatives of the three tribes with their first and second ranks; and it may be conjectured that the pair of Lares worshipped in each street had a similar origin. This arrangement is especially apparent in the army: after the union each half-tribe of the tripartite community furnished a hundred horsemen, and the Roman burgess cavalry was thus raised to six "hundreds," and the number of its captains probably from three to six. There is no tradition of

any corresponding increase to the infantry; but to this origin we may refer the subsequent custom of calling out the legions regularly two by two, and this doubling of the levy probably led to the rule of having not three, as was perhaps originally the case, but six leaders-of-division to command the legion. It is certain that no corresponding increase of seats in the senate took place: on the contrary, the primitive number of three hundred senators remained the normal number down to the seventh century; with which it is quite compatible that a number of the more prominent men of the newly annexed community may have been received into the senate of the Palatine city. The same course was followed with the magistracies: a single king presided over the united community, and there was no change as to his principal deputies, particularly the warden of the city. It thus appears that the ritual institutions of the Hill-city were continued, and that the doubled burgess-body was required to furnish a military force of double the numerical strength; but in other respects the incorporation of the Quirinal city into the Palatine was really a subordination of the former to the latter. If we have rightly assumed that the contrast between the Palatine old and the Quirinal new burgesses was identical with the contrast between the first and second Tities, Ramnes, and Luceres, it was thus the -gentes-of the Quirinal city that formed the "second" or the "lesser." The distinction, however, was certainly more an honorary than a legal precedence. At the taking of the vote in the senate the senators taken from the old clans were asked before those of the "lesser." In like manner the Colline region ranked as inferior even to the suburban (Esquiline) region of the Palatine city; the priest of the Quirinal Mars as inferior to the priest of the Palatine Mars; the Quirinal Salii and Luperci as inferior to those of the Palatine. It thus appears that the —synoikismos—, by which the Palatine community incorporated that of the Quirinal, marked an intermediate stage between the earliest —synoikismos— by which the Tities, Ramnes, and Luceres became blended, and all those that took place afterwards. The annexed community was no

longer allowed to form a separate tribe in the new whole, but it was permitted to furnish at least a distinct portion of each tribe; and its ritual institutions were not only allowed to subsist—as was afterwards done in other cases, after the capture of Alba for example—but were elevated into institutions of the united community, a course which was not pursued in any subsequent instance.

Dependents and Guests

This amalgamation of two substantially similar commonwealths produced rather an increase in the size than a change in the intrinsic character of the existing community. A second process of incorporation, which was carried out far more gradually and had far deeper effects, may be traced back, so far as the first steps in it are concerned, to this epoch; we refer to the amalgamation of the burgesses and the —*metoeci*—. At all times there existed side by side with the burgesses in the Roman community persons who were protected, the "listeners" (*-clientes-*), as they were called from their being dependents on the several burgess-households, or the "multitude" (*-plebes-*, from *-pleo-*, *-plenus-*), as they were termed negatively with reference to their want of political rights.⁽¹⁾ The elements of this intermediate stage between the freeman and the slave were, as has been shown⁽²⁾ already in existence in the Roman household: but in the community this class necessarily acquired greater importance *-de facto-* and *-de jure-*, and that from two reasons. In the first place the community might itself possess half-free clients as well as slaves; especially after the conquest of a town and the breaking up of its commonwealth it might often appear to the conquering community advisable not to sell the mass of the burgesses formally as slaves, but to allow them the continued possession of freedom *-de facto-*, so that in the capacity as it were of freedmen of the community they entered into relations of clientship whether to the clans, or to the king.

In the second place by means of the community and its power over the individual burgesses, there was given the possibility of protecting the clients against an abusive exercise of the -dominium- still subsisting in law. At an immemorially early period there was introduced into Roman law the principle on which rested the whole legal position of the —metoeci—, that, when a master on occasion of a public legal act—such as in the making of a testament, in an action at law, or in the census—expressly or tacitly surrendered his -dominium-, neither he himself nor his lawful successors should ever have power arbitrarily to recall that resignation or reassert a claim to the person of the freedman himself or of his descendants. The clients and their posterity did not by virtue of their position possess either the rights of burgesses or those of guests: for to constitute a burgess a formal bestowal of the privilege was requisite on the part of the community, while the relation of guest presumed the holding of burgess-rights in a community which had a treaty with Rome. What they did obtain was a legally protected possession of freedom, while they continued to be -de jure- non-free. Accordingly for a lengthened period their relations in all matters of property seem to have been, like those of slaves, regarded in law as relations of the patron, so that it was necessary that the latter should represent them in processes at law; in connection with which the patron might levy contributions from them in case of need, and call them to account before him criminally. By degrees, however, the body of —metoeci— outgrew these fetters; they began to acquire and to alienate in their own name, and to claim and obtain legal redress from the Roman burgess-tribunals without the formal intervention of their patron.

In matters of marriage and inheritance, equality of rights with the burgesses was far sooner conceded to foreigners(3) than to those who were strictly non-free and belonged to no community; but the latter could not well be prohibited from contracting marriages in their own circle and from forming the legal relations arising out of marriage—those of marital and

paternal power, of -agnatio- and -gentilitas- of heritage and of tutelage—after the model of the corresponding relations among the burgesses.

Similar consequences to some extent were produced by the exercise of the -ius hospitii-, in so far as by virtue of it foreigners settled permanently in Rome and established a domestic position there. In this respect the most liberal principles must have prevailed in Rome from primitive times. The Roman law knew no distinctions of quality in inheritance and no locking up of estates. It allowed on the one hand to every man capable of making a disposition the entirely unlimited disposal of his property during his lifetime; and on the other hand, so far as we know, to every one who was at all entitled to have dealings with Roman burgesses, even to the foreigner and the client, the unlimited right of acquiring moveable, and (from the time when immoveables could be held as private property at all) within certain limits also immoveable, estate in Rome. Rome was in fact a commercial city, which was indebted for the commencement of its importance to international commerce, and which with a noble liberality granted the privilege of settlement to every child of an unequal marriage, to every manumitted slave, and to every stranger who surrendering his rights in his native land emigrated to Rome.

Class of —Metoeci— Subsisting by the Side of the Community

At first, therefore, the burgesses were in reality the protectors, the non-burgesses were the protected; but in Rome as in all communities which freely admit settlement but do not throw open the rights of citizenship, it soon became a matter of increasing difficulty to harmonize this relation -de jure- with the actual state of things. The flourishing of commerce, the full equality of private rights guaranteed to all Latins by the Latin league (including even the acquisition of landed property), the greater frequency of

manumissions as prosperity increased, necessarily occasioned even in peace a disproportionate increase of the number of —metoeci—. That number was further augmented by the greater part of the population of the neighbouring towns subdued by force of arms and incorporated with Rome; which, whether it removed to the city or remained in its old home now reduced to the rank of a village, ordinarily exchanged its native burgess-rights for those of a Roman —metoikos—. Moreover the burdens of war fell exclusively on the old burgesses and were constantly thinning the ranks of their patrician descendants, while the —metoeci— shared in the results of victory without having to pay for it with their blood.

Under such circumstances the only wonder is that the Roman patriciate did not disappear much more rapidly than it actually did. The fact of its still continuing for a prolonged period a numerous community can scarcely be accounted for by the bestowal of Roman burgess-rights on several distinguished foreign clans, which after emigrating from their homes or after the conquest of their cities received the Roman franchise—for such grants appear to have occurred but sparingly from the first, and to have become always the more rare as the franchise increased in value. A cause of greater influence, in all likelihood, was the introduction of the civil marriage, by which a child begotten of patrician parents living together as married persons, although without -confarreatio-, acquired full burgess-rights equally with the child of a -confarreatio- marriage. It is at least probable that the civil marriage, which already existed in Rome before the Twelve Tables but was certainly not an original institution, was introduced for the purpose of preventing the disappearance of the patriciate.(4) To this connection belong also the measures which were already in the earliest times adopted with a view to maintain a numerous posterity in the several households.(5)

Nevertheless the number of the —metoeci— was of necessity constantly on the increase and liable to no diminution, while that of the burgesses was at the utmost perhaps not decreasing; and in consequence the —metoeci— necessarily acquired by imperceptible degrees another and a freer position. The non-burgesses were no longer merely emancipated slaves or strangers needing protection; their ranks included the former burgesses of the Latin communities vanquished in war, and more especially the Latin settlers who lived in Rome not by the favour of the king or of any other burgess, but by federal right. Legally unrestricted in the acquiring of property, they gained money and estate in their new home, and bequeathed, like the burgesses, their homesteads to their children and children's children. The vexatious relation of dependence on particular burgess-households became gradually relaxed. If the liberated slave or the immigrant stranger still held an entirely isolated position in the state, such was no longer the case with his children, still less with his grandchildren, and this very circumstance of itself rendered their relations to the patron of less moment. While in earlier times the client was exclusively left dependent for legal protection on the intervention of the patron, the more the state became consolidated and the importance of the clanships and households in consequence diminished, the more frequently must the individual client have obtained justice and redress of injury, even without the intervention of his patron, from the king. A great number of the non-burgesses, particularly the members of the dissolved Latin communities, had, as we have already said, probably from the outset not any place as clients of the royal or other great clans, and obeyed the king nearly in the same manner as did the burgesses. The king, whose sovereignty over the burgesses was in truth ultimately dependent on the good-will of those obeying, must have welcomed the means of forming out of his own -proteges- essentially dependent on him a body bound to him by closer ties.

Plebs

Thus there grew up by the side of the burgesses a second community in Rome: out of the clients arose the Plebs. This change of name is significant. In law there was no difference between the client and the plebeian, the "dependent" and the "man of the multitude;" but in fact there was a very important one, for the former term brought into prominence the relation of dependence on a member of the politically privileged class; the latter suggested merely the want of political rights. As the feeling of special dependence diminished, that of political inferiority forced itself on the thoughts of the free —*metoeci*—; and it was only the sovereignty of the king ruling equally over all that prevented the outbreak of political conflict between the privileged and the non-privileged classes.

The Servian Constitution

The first step, however, towards the amalgamation of the two portions of the people scarcely took place in the revolutionary way which their antagonism appeared to foreshadow. The reform of the constitution, which bears the name of king Servius Tullius, is indeed, as to its historical origin, involved in the same darkness with all the events of a period respecting which we learn whatever we know not by means of historical tradition, but solely by means of inference from the institutions of later times. But its character testifies that it cannot have been a change demanded by the plebeians, for the new constitution assigned to them duties alone, and not rights. It must rather have owed its origin either to the wisdom of one of the Roman kings, or to the urgency of the burgesses that they should be delivered from exclusive liability to burdens, and that the non-burgesses should be made to share on the one hand in taxation—that is, in the

obligation to make advances to the state (the -tributum-)—and rendering task-work, and on the other hand in the levy. Both were comprehended in the Servian constitution, but they hardly took place at the same time. The bringing in of the non-burgesses presumably arose out of the economic burdens; these were early extended to such as were "possessed of means" (-locupletes-) or "settled people" (-adsidui-, freeholders), and only those wholly without means, the "children-producers" (-proletarii-, -capite censi-) remained free from them. Thereupon followed the politically more important step of bringing in the non-burgesses to military duty. This was thenceforth laid not upon the burgesses as such, but upon the possessors of land, the -tribules-, whether they might be burgesses or mere —metoeci—; service in the army was changed from a personal burden into a burden on property. The details of the arrangement were as follow.

The Five Classes

Every freeholder from the eighteenth to the sixtieth year of his age, including children in the household of freeholder fathers, without distinction of birth, was under obligation of service, so that even the manumitted slave had to serve, if in an exceptional case he had come into possession of landed property. The Latins also possessing land—others from without were not allowed to acquire Roman soil—were called in to service, so far as they had, as was beyond doubt the case with most of them, taken up their abode on Roman territory. The body of men liable to serve was distributed, according to the size of their portions of land, into those bound to full service or the possessors of a full hide,(6) who were obliged to appear in complete armour and in so far formed pre-eminently the war army (-classis-), and the four following ranks of smaller landholders—the possessors respectively of three fourths, of a half, of a quarter, or of an eighth of a whole farm—from whom was required fulfilment of service, but

not equipment in complete armour, and they thus had a position below the full rate (-infra classem-). As the land happened to be at that time apportioned, almost the half of the farms were full hides, while each of the classes possessing respectively three-fourths, the half, and the quarter of a hide, amounted to scarcely an eighth of the freeholders, and those again holding an eighth of a hide amounted to fully an eighth. It was accordingly laid down as a rule that in the case of the infantry the levy should be in the proportion of eighty holders of a full hide, twenty from each of the three next ranks, and twenty-eight from the last.

Cavalry

The cavalry was similarly dealt with. The number of divisions in it was tripled, and the only difference in this case was that the six divisions already existing with the old names (-Tities-, -Ramnes-, -Luceres- -primi- and -secundi-) were left to the patricians, while the twelve new divisions were formed chiefly from the non-burgesses. The reason for this difference is probably to be sought in the fact that at that period the infantry were formed anew for each campaign and discharged on their return home, whereas the cavalry with their horses were on military grounds kept together also in time of peace, and held their regular drills, which continued to subsist as festivals of the Roman equites down to the latest times.(7) Accordingly the squadrons once constituted were allowed, even under this reform, to keep their ancient names. In order to make the cavalry accessible to every burgess, the unmarried women and orphans under age, so far as they had possession of land, were bound instead of personal service to provide the horses for particular troopers (each trooper had two of them), and to furnish them with fodder. On the whole there was one horseman to nine foot-soldiers; but in actual service the horsemen were used more sparingly.

The non-freeholders (-adcensi-, people standing at the side of the list of those owing military service) had to supply the army with workmen and musicians as well as with a number of substitutes who marched with the army unarmed (-velati-), and, when vacancies occurred in the field, took their places in the ranks equipped with the weapons of the sick or of the fallen.

Levy-Districts

To facilitate the levying of the infantry, the city was distributed into four "parts" (-tribus-); by which the old triple division was superseded, at least so far as concerned its local significance. These were the Palatine, which comprehended the height of that name along with the Velia; the Suburan, to which the street so named, the Carinae, and the Caelian belonged; the Esquiline; and the Colline, formed by the Quirinal and Viminal, the "hills" as contrasted with the "mounts" of the Capitol and Palatine. We have already spoken of the formation of these regions(8) and shown how they originated out of the ancient double city of the Palatine and the Quirinal. By what process it came to pass that every freeholder burgess belonged to one of those city-districts, we cannot tell; but this was now the case; and that the four regions were nearly on an equality in point of numbers, is evident from their being equally drawn upon in the levy. This division, which had primary reference to the soil alone and applied only inferentially to those who possessed it, was merely for administrative purposes, and in particular never had any religious significance attached to it; for the fact that in each of the city-districts there were six chapels of the enigmatical Argei no more confers upon them the character of ritual districts than the erection of an altar to the Lares in each street implies such a character in the streets.

Each of these four levy-districts had to furnish approximately the fourth part not only of the force as a whole, but of each of its military subdivisions, so that each legion and each century numbered an equal proportion of conscripts from each region, in order to merge all distinctions of a gentile and local nature in the one common levy of the community and, especially through the powerful levelling influence of the military spirit, to blend the —metoeci— and the burgesses into one people.

Organization of the Army

In a military point of view, the male population capable of bearing arms was divided into a first and second levy, the former of which, the "juniors" from the commencement of the eighteenth to the completion of the forty-sixth year, were especially employed for service in the field, while the "seniors" guarded the walls at home. The military unit came to be in the infantry the now doubled legion(9)—a phalanx, arranged and armed completely in the old Doric style, of 6000 men who, six file deep, formed a front of 1000 heavy-armed soldiers; to which were attached 2400 "unarmed".(10) The four first ranks of the phalanx, the -classis-, were formed by the fully-armed hoplites of those possessing a full hide; in the fifth and sixth were placed the less completely equipped farmers of the second and third division; the two last divisions were annexed as rear ranks to the phalanx or fought by its side as light-armed troops. Provision was made for readily supplying the accidental gaps which were so injurious to the phalanx. Thus there served in it 84 centuries or 8400 men, of whom 6000 were hoplites, 4000 of the first division, 1000 from each of the two following, and 2400 light-armed, of whom 1000 belonged to the fourth, and 1200 to the fifth division; approximately each levy-district furnished to the phalanx 2100, and to each century 25 men. This phalanx was the army destined for the field, while a like force of troops was reckoned for the

seniors who remained behind to defend the city. In this way the normal amount of the infantry came to 16,800 men, 80 centuries of the first division, 20 from each of the three following, and 28 from the last division—not taking into account the two centuries of substitutes or those of the workmen or the musicians. To all these fell to be added the cavalry, which consisted of 1800 horse; often when the army took the field, however, only the third part of the whole number was attached to it. The normal amount of the Roman army of the first and second levy rose accordingly to close upon 20,000 men: which number must beyond doubt have corresponded on the whole to the effective strength of the Roman population capable of arms, as it stood at the time when this new organization was introduced. As the population increased the number of centuries was not augmented, but the several divisions were strengthened by persons added, without altogether losing sight, however, of the fundamental number. Indeed the Roman corporations in general, closed as to numbers, very frequently evaded the limit imposed upon them by admitting supernumerary members.

Census

This new organization of the army was accompanied by a more careful supervision of landed property on the part of the state. It was now either ordained for the first time or, if not, at any rate defined more carefully, that a land-register should be established, in which the several proprietors of land should have their fields with all their appurtenances, servitudes, slaves, beasts of draught and of burden, duly recorded. Every act of alienation, which did not take place publicly and before witnesses, was declared null; and a revision of the register of landed property, which was at the same time the levy-roll, was directed to be made every fourth year. The -mancipatio- and the -census- thus arose out of the Servian military organization.

Political Effects of the Servian Military Organization

It is evident at a glance that this whole institution was from the outset of a military nature. In the whole detailed scheme we do not encounter a single feature suggestive of any destination of the centuries to other than purely military purposes; and this alone must, with every one accustomed to consider such matters, form a sufficient reason for pronouncing its application to political objects a later innovation. If, as is probable, in the earliest period every one who had passed his sixtieth year was excluded from the centuries, this has no meaning, so far as they were intended from the first to form a representation of the burgess-community similar to and parallel with the curies. Although, however, the organization of the centuries was introduced merely to enlarge the military resources of the burgesses by the inclusion of the —metoeci— and, in so far, there is no greater error than to exhibit the Servian organization as the introduction of a timocracy in Rome—yet the new obligation imposed upon the inhabitants to bear arms exercised in its consequences a material influence on their political position. He who is obliged to become a soldier must also, so long as the state is not rotten, have it in his power to become an officer; beyond question plebeians also could now be nominated in Rome as centurions and as military tribunes. Although, moreover, the institution of the centuries was not intended to curtail the political privileges exclusively possessed by the burgesses as hitherto represented in the curies, yet it was inevitable that those rights, which the burgesses hitherto had exercised not as the assembly of curies, but as the burgess-levy, should pass over to the new centuries of burgesses and —metoeci—. Henceforward, accordingly, it was the centuries whose consent the king had to ask before beginning an aggressive war.⁽¹¹⁾ It is important, on account of the subsequent course of development, to note these first steps towards the centuries taking part in public affairs; but the centuries came to acquire such rights at first more in

the way of natural sequence than of direct design, and subsequently to the Servian reform, as before, the assembly of the curies was regarded as the proper burgess-community, whose homage bound the whole people in allegiance to the king. By the side of these new landowning full-burgesses stood the domiciled foreigners from the allied Latium, as participating in the public burdens, tribute and task-works (hence -municipes-); while the burgesses not domiciled, who were beyond the pale of the tribes, and had not the right to serve in war and vote, came into view only as "owing tribute" (-aerarii-).

In this way, while hitherto there had been distinguished only two classes of members of the community, burgesses and clients, there were now established those three political classes, which exercised a dominant influence over the constitutional law of Rome for many centuries.

Time and Occasion of the Reform

When and how this new military organization of the Roman community came into existence, can only be conjectured. It presupposes the existence of the four regions; in other words, the Servian wall must have been erected before the reform took place. But the territory of the city must also have considerably exceeded its original limits, when it could furnish 8000 holders of full hides and as many who held lesser portions, or sons of such holders. We are not acquainted with the superficial extent of the normal Roman farm; but it is not possible to estimate it as under twenty -jugera-. (12) If we reckon as a minimum 10,000 full hides, this would imply a superficies of 190 square miles of arable land; and on this calculation, if we make a very moderate allowance for pasture, the space occupied by houses, and ground not capable of culture, the territory, at the period when this reform was carried out, must have had at least an extent of 420 square

miles, probably an extent still more considerable. If we follow tradition, we must assume a number of 84,000 burgesses who were freeholders and capable of bearing arms; for such, we are told, were the numbers ascertained by Servius at the first census. A glance at the map, however, shows that this number must be fabulous; it is not even a genuine tradition, but a conjectural calculation, by which the 16,800 capable of bearing arms who constituted the normal strength of the infantry appeared to yield, on an average of five persons to each family, the number of 84,000 burgesses, and this number was confounded with that of those capable of bearing arms. But even according to the more moderate estimates laid down above, with a territory of some 16,000 hides containing a population of nearly 20,000 capable of bearing arms and at least three times that number of women, children, and old men, persons who had no land, and slaves, it is necessary to assume not merely that the region between the Tiber and Anio had been acquired, but that the Alban territory had also been conquered, before the Servian constitution was established; a result with which tradition agrees. What were the numerical proportions of patricians and plebeians originally in the army, cannot be ascertained.

Upon the whole it is plain that this Servian institution did not originate in a conflict between the orders. On the contrary, it bears the stamp of a reforming legislator like the constitutions of Lycurgus, Solon, and Zaleucus; and it has evidently been produced under Greek influence. Particular analogies may be deceptive, such as the coincidence noticed by the ancients that in Corinth also widows and orphans were charged with the provision of horses for the cavalry; but the adoption of the armour and arrangements of the Greek hoplite system was certainly no accidental coincidence. Now if we consider the fact that it was in the second century of the city that the Greek states in Lower Italy advanced from the pure clan-constitution to a modified one, which placed the preponderance in the hands of the landholders, we shall recognize in that movement the impulse which called

forth in Rome the Servian reform—a change of constitution resting in the main on the same fundamental idea, and only directed into a somewhat different course by the strictly monarchical form of the Roman state.(13)

Notes for Book I Chapter VI

1. I. V. Dependents of the Household

2. -Habuit plebem in clientelas principium descriptam-. Cicero, de Rep. ii. 9.

3. I. III. The Latin League

4. The enactments of the Twelve Tables respecting -usus- show clearly that they found the civil marriage already in existence. In like manner the high antiquity of the civil marriage is clearly evident from the fact that it, equally with the religious marriage, necessarily involved the marital power (v. The House-father and His Household), and only differed from the religious marriage as respected the manner in which that power was acquired. The religious marriage itself was held as the proprietary and legally necessary form of acquiring a wife; whereas, in the case of civil marriage, one of the general forms of acquiring property used on other occasions—delivery on the part of a person entitled to give away, or prescription—was requisite in order to lay the foundation of a valid marital power.

5. I. V. The House-father and His Household.

6. -Hufe-, hide, as much as can be properly tilled with one plough, called in Scotland a plough-gate.

7. For the same reason, when the levy was enlarged after the admission of the Hill-Romans, the equites were doubled, while in the infantry force instead of the single "gathering" (-legio-) two legions were called out (vi. Amalgamation of the Palatine and Quirinal Cities).

8. I. IV. Oldest Settlements In the Palatine and Suburan Regions

9. I. V. Burdens of the Burgesses

10. -velites-, see v. Burdens of the Burgesses, note

11. I. V. Rights of the Burgesses

12. Even about 480, allotments of land of seven -jugera- appeared to those that received them small (Val. Max. iii. 3, 5; Colum. i, praef. 14; i. 3, ii; Plin. H. N. xviii. 3, 18: fourteen -jugera-, Victor, 33; Plutarch, Apophth. Reg. et Imp. p. 235 Dubner, in accordance with which Plutarch, Crass. 2, is to be corrected).

A comparison of the Germanic proportions gives the same result. The -jugerum- and the -morgen- [nearly $\frac{5}{8}$ of an English acre], both originally measures rather of labour than of surface, may be looked upon as originally identical. As the German hide consisted ordinarily of 30, but not unfrequently of 20 or 40 -morgen-, and the homestead frequently, at least among the Anglo-Saxons, amounted to a tenth of the hide, it will appear, taking into account the diversity of climate and the size of the Roman -heredium- of 2 -jugera-, that the hypothesis of a Roman hide of 20 -jugera- is not unsuitable to the circumstances of the case. It is to be regretted certainly that on this very point tradition leaves us without precise information.

13. The analogy also between the so-called Servian constitution and the treatment of the Attic —metoeci— deserves to be particularly noticed. Athens, like Rome, opened her gates at a comparatively early period to the —metoeci—, and afterwards summoned them also to share the burdens of the state. We cannot suppose that any direct connection existed in this instance between Athens and Rome; but the coincidence serves all the more distinctly to show how the same causes—urban centralization and urban development—everywhere and of necessity produce similar effects.

CHAPTER VII

The Hegemony of Rome in Latium

Extension of the Roman Territory

The brave and impassioned Italian race doubtless never lacked feuds among themselves and with their neighbours: as the country flourished and civilization advanced, feuds must have become gradually changed into war and raids for pillage into conquest, and political powers must have begun to assume shape. No Italian Homer, however, has preserved for us a picture of these earliest frays and plundering excursions, in which the character of nations is moulded and expressed like the mind of the man in the sports and enterprises of the boy; nor does historical tradition enable us to form a judgment, with even approximate accuracy, as to the outward development of power and the comparative resources of the several Latin cantons. It is only in the case of Rome, at the utmost, that we can trace in some degree the extension of its power and of its territory. The earliest demonstrable boundaries of the united Roman community have been already stated;(1) in the landward direction they were on an average just about five miles distant from the capital of the canton, and it was only toward the coast that they extended as far as the mouth of the Tiber (-Ostia-), at a distance of

somewhat more than fourteen miles from Rome. "The new city," says Strabo, in his description of the primitive Rome, "was surrounded by larger and smaller tribes, some of whom dwelt in independent villages and were not subordinate to any national union." It seems to have been at the expense of these neighbours of kindred lineage in the first instance that the earliest extensions of the Roman territory took place.

Territory on the Anio—Alba

The Latin communities situated on the upper Tiber and between the Tiber and the Anio-Antemnae, Crustumerium, Ficulnea, Medullia, Caenina, Corniculum, Cameria, Collatia,—were those which pressed most closely and sorely on Rome, and they appear to have forfeited their independence in very early times to the arms of the Romans. The only community that subsequently appears as independent in this district was Nomentum; which perhaps saved its freedom by alliance with Rome. The possession of Fidenae, the -tete de pont- of the Etruscans on the left bank of the Tiber, was contested between the Latins and the Etruscans—in other words, between the Romans and Veientes—with varying results. The struggle with Gabii, which held the plain between the Anio and the Alban hills, was for a long period equally balanced: down to late times the Sabine dress was deemed synonymous with that of war, and Sabine ground the prototype of hostile soil.(2) By these conquests the Roman territory was probably extended to about 190 square miles. Another very early achievement of the Roman arms was preserved, although in a legendary dress, in the memory of posterity with greater vividness than those obsolete struggles: Alba, the ancient sacred metropolis of Latium, was conquered and destroyed by Roman troops. How the collision arose, and how it was decided, tradition does not tell: the battle of the three Roman with the three Alban brothers born at one birth is nothing but a personification of the struggle between

two powerful and closely related cantons, of which the Roman at least was triune. We know nothing at all beyond the naked fact of the subjugation and destruction of Alba by Rome.(3)

It is not improbable, although wholly a matter of conjecture, that, at the same period when Rome was establishing herself on the Anio and on the Alban hills, Praeneste, which appears at a later date as mistress of eight neighbouring townships, Tibur, and others of the Latin communities were similarly occupied in enlarging their territory and laying the foundations of their subsequent far from inconsiderable power.

Treatment of the Earliest Acquisitions

We feel the want of accurate information as to the legal character and legal effects of these early Latin conquests, still more than we miss the records of the wars in which they were won. Upon the whole it is not to be doubted that they were treated in accordance with the system of incorporation, out of which the tripartite community of Rome had arisen; excepting that the cantons who were compelled by arms to enter the combination did not, like the primitive three, preserve some sort of relative independence as separate regions in the new united community, but became so entirely merged in the general whole as to be no longer traced.(4) However far the power of a Latin canton might extend, in the earliest times it tolerated no political centre except the proper capital; and still less founded independent settlements, such as the Phoenicians and the Greeks established, thereby creating in their colonies clients for the time being and future rivals to the mother city. In this respect, the treatment which Ostia experienced from Rome deserves special notice: the Romans could not and did not wish to prevent the rise -de facto- of a town at that spot, but they allowed the place no political independence, and accordingly they did not

bestow on those who settled there any local burgess-rights, but merely allowed them to retain, if they already possessed, the general burgess-rights of Rome.(5) This principle also determined the fate of the weaker cantons, which by force of arms or by voluntary submission became subject to a stronger. The stronghold of the canton was razed, its domain was added to the domain of the conquerors, and a new home was instituted for the inhabitants as well as for their gods in the capital of the victorious canton. This must not be understood absolutely to imply a formal transportation of the conquered inhabitants to the new capital, such as was the rule at the founding of cities in the East. The towns of Latium at this time can have been little more than the strongholds and weekly markets of the husbandmen: it was sufficient in general that the market and the seat of justice should be transferred to the new capital. That even the temples often remained at the old spot is shown in the instances of Alba and of Caenina, towns which must still after their destruction have retained some semblance of existence in connection with religion. Even where the strength of the place that was razed rendered it really necessary to remove the inhabitants, they would be frequently settled, with a view to the cultivation of the soil, in the open hamlets of their old domain. That the conquered, however, were not unfrequently compelled either as a whole or in part to settle in their new capital, is proved, more satisfactorily than all the several stories from the legendary period of Latium could prove it, by the maxim of Roman state-law, that only he who had extended the boundaries of the territory was entitled to advance the wall of the city (the -pomerium-). Of course the conquered, whether transferred or not, were ordinarily compelled to occupy the legal position of clients;(6) but particular individuals or clans occasionally had burgess-rights or, in other words, the patriciate conferred upon them. In the time of the empire there were still recognized Alban clans which were introduced among the burgesses of Rome after the fall of their native seat; amongst these were the Julii, Servilii, Quinctilii, Cloelii,

Geganii, Curiatii, Metilii: the memory of their descent was preserved by their Alban family shrines, among which the sanctuary of the -gens- of the Julii at Bovillae again rose under the empire into great repute.

This centralizing process, by which several small communities became absorbed in a larger one, of course was far from being an idea specially Roman. Not only did the development of Latium and of the Sabellian stocks hinge upon the distinction between national centralization and cantonal independence; the case was the same with the development of the Hellenes. Rome in Latium and Athens in Attica arose out of a like amalgamation of many cantons into one state; and the wise Thales suggested a similar fusion to the hard-pressed league of the Ionic cities as the only means of saving their nationality. But Rome adhered to this principle of unity with more consistency, earnestness, and success than any other Italian canton; and just as the prominent position of Athens in Hellas was the effect of her early centralization, so Rome was indebted for her greatness solely to the same system, in her case far more energetically applied,

The Hegemony of Rome over Latium—Alba

While the conquests of Rome in Latium may be mainly regarded as direct extensions of her territory and people presenting the same general features, a further and special significance attached to the conquest of Alba. It was not merely the problematical size and presumed riches of Alba that led tradition to assign a prominence so peculiar to its capture. Alba was regarded as the metropolis of the Latin confederacy, and had the right of presiding among the thirty communities that belonged to it. The destruction of Alba, of course, no more dissolved the league itself than the destruction of Thebes dissolved the Boeotian confederacy;(7) but, in entire consistency with the strict application of the -ius privatum- which was characteristic of

the Latin laws of war, Rome now claimed the presidency of the league as the heir-at-law of Alba. What sort of crises, if any, preceded or followed the acknowledgment of this claim, we cannot tell. Upon the whole the hegemony of Rome over Latium appears to have been speedily and generally recognized, although particular communities, such as Labici and above all Gabii, may for a time have declined to own it. Even at that time Rome was probably a maritime power in contrast to the Latin "land," a city in contrast to the Latin villages, and a single state in contrast to the Latin confederacy; even at that time it was only in conjunction with and by means of Rome that the Latins could defend their coasts against Carthaginians, Hellenes, and Etruscans, and maintain and extend their landward frontier in opposition to their restless neighbours of the Sabellian stock. Whether the accession to her material resources which Rome obtained by the subjugation of Alba was greater than the increase of her power obtained by the capture of Antemnae or Collatia, cannot be ascertained: it is quite possible that it was not by the conquest of Alba that Rome was first constituted the most powerful community in Latium; she may have been so long before; but she did gain in consequence of that event the presidency at the Latin festival, which became the basis of the future hegemony of the Roman community over the whole Latin confederacy. It is important to indicate as definitely as possible the nature of a relation so influential.

Relation of Rome to Latium

The form of the Roman hegemony over Latium was, in general, that of an alliance on equal terms between the Roman community on the one hand and the Latin confederacy on the other, establishing a perpetual peace throughout the whole domain and a perpetual league for offence and defence. "There shall be peace between the Romans and all communities of the Latins, as long as heaven and earth endure; they shall not wage war with

each other, nor call enemies into the land, nor grant passage to enemies: help shall be rendered by all in concert to any community assailed, and whatever is won in joint warfare shall be equally distributed." The stipulated equality of rights in trade and exchange, in commercial credit and in inheritance, tended, by the manifold relations of business intercourse to which it led, still further to interweave the interests of communities already connected by the ties of similar language and manners, and in this way produced an effect somewhat similar to that of the abolition of customs-restrictions in our own day. Each community certainly retained in form its own law: down to the time of the Social war Latin law was not necessarily identical with Roman: we find, for example, that the enforcing of betrothal by action at law, which was abolished at an early period in Rome, continued to subsist in the Latin communities. But the simple and purely national development of Latin law, and the endeavour to maintain as far as possible uniformity of rights, led at length to the result, that the law of private relations was in matter and form substantially the same throughout all Latium. This uniformity of rights comes most distinctly into view in the rules laid down regarding the loss and recovery of freedom on the part of the individual burgess. According to an ancient and venerable maxim of law among the Latin stock no burgess could become a slave in the state wherein he had been free, or suffer the loss of his burgess-rights while he remained within it: if he was to be punished with the loss of freedom and of burgess-rights (which was the same thing), it was necessary that he should be expelled from the state and should enter on the condition of slavery among strangers. This maxim of law was now extended to the whole territory of the league; no member of any of the federal states might live as a slave within the bounds of the league. Applications of this principle are seen in the enactment embodied in the Twelve Tables, that the insolvent debtor, in the event of his creditor wishing to sell him, must be sold beyond the boundary of the Tiber, in other words, beyond the territory of the league;

and in the clause of the second treaty between Rome and Carthage, that an ally of Rome who might be taken prisoner by the Carthaginians should be free so soon as he entered a Roman seaport. Although there did not probably subsist a general intercommunion of marriage within the league, yet, as has been already remarked(8) intermarriage between the different communities frequently occurred. Each Latin could primarily exercise political rights only where he was enrolled as a burgess; but on the other hand it was implied in an equality of private rights, that any Latin could take up his abode in any place within the Latin bounds; or, to use the phraseology of the present day, there existed, side by side with the special burgess-rights of the individual communities, a general right of settlement co-extensive with the confederacy; and, after the plebeian was acknowledged in Rome as a burgess, this right became converted as regards Rome into full freedom of settlement. It is easy to understand how this should have turned materially to the advantage of the capital, which alone in Latium offered the means of urban intercourse, urban acquisition, and urban enjoyments; and how the number of —*metoeci*— in Rome should have increased with remarkable rapidity, after the Latin land came to live in perpetual peace with Rome.

In constitution and administration the several communities not only remained independent and sovereign, so far as the federal obligations did not interfere, but, what was of more importance, the league of the thirty communities as such retained its autonomy in contradistinction to Rome. When we are assured that the position of Alba towards the federal communities was a position superior to that of Rome, and that on the fall of Alba these communities attained autonomy, this may well have been the case, in so far as Alba was essentially a member of the league, while Rome from the first had rather the position of a separate state confronting the league than of a member included in it; but, just as the states of the confederation of the Rhine were formally sovereign, while those of the

German empire had a master, the presidency of Alba may have been in reality an honorary right(9) like that of the German emperors, and the protectorate of Rome from the first a supremacy like that of Napoleon. In fact Alba appears to have exercised the right of presiding in the federal council, while Rome allowed the Latin deputies to hold their consultations by themselves under the guidance, as it appears, of a president selected from their own number, and contented herself with the honorary presidency at the federal festival where sacrifice was offered for Rome and Latium, and with the erection of a second federal sanctuary in Rome—the temple of Diana on the Aventine—so that thenceforth sacrifice was offered both on Roman soil for Rome and Latium, and on Latin soil for Latium and Rome. With equal deference to the interests of the league the Romans in the treaty with Latium bound themselves not to enter into a separate alliance with any Latin community—a stipulation which very clearly reveals the apprehensions entertained, doubtless not without reason, by the confederacy with reference to the powerful community taking the lead. The position of Rome not within, but alongside of Latium, is most clearly apparent in the arrangements for warfare. The fighting force of the league was composed, as the later mode of making the levy incontrovertibly shows, of two masses of equal strength, a Roman and a Latin. The supreme command lay once for all with the Roman generals; year by year the Latin contingent had to appear before the gates of Rome, and there saluted the elected commander by acclamation as its general, after the Romans commissioned by the Latin federal council to take the auspices had thereby assured themselves of the contentment of the gods with the choice that had been made. Whatever land or property was acquired in the wars of the league was apportioned among its members according to the judgment of the Romans. That the Romano-Latin federation was represented as regards its external relations solely by Rome, cannot with certainty be maintained. The federal agreement did not prohibit either Rome or Latium from undertaking an aggressive war on their

own behoof; and if a war was waged by the league, whether pursuant to a resolution of its own or in consequence of a hostile attack, the Latin federal council may have been legally entitled to take part in the conduct as well as in the termination of the war. Practically indeed Rome must have possessed the hegemony even then, for, wherever a single state and a federation enter into a permanent connection with each other, the preponderance usually falls to the side of the former.

Extension of the Roman Territory after the Fall of Alba—Hernici—Rutulii and Volscii

The steps by which after the fall of Alba Rome—now mistress of a territory comparatively considerable, and presumably the leading power in the Latin confederacy—extended still further her direct and indirect dominion, can no longer be traced. There was no lack of feuds with the Etruscans and with the Veientes in particular, chiefly respecting the possession of Fidenae; but it does not appear that the Romans were successful in acquiring permanent mastery over that Etruscan outpost, which was situated on the Latin bank of the river not much more than five miles from Rome, or in dislodging the Veientes from that formidable basis of offensive operations. On the other hand they maintained apparently undisputed possession of the Janiculum and of both banks of the mouth of the Tiber. As regards the Sabines and Aequi Rome appears in a more advantageous position; the connection which afterwards became so intimate with the more distant Hernici must have had at least its beginning under the monarchy, and the united Latins and Hernici enclosed on two sides and held in check their eastern neighbours. But on the south frontier the territory of the Rutuli and still more that of the Volsci were scenes of perpetual war. The earliest extension of the Latin land took place in this direction, and it is here that we first encounter those communities founded by Rome and

Latium on the enemy's soil and constituted as autonomous members of the Latin confederacy—the Latin colonies, as they were called—the oldest of which appear to reach back to the regal period. How far, however, the territory reduced under the power of the Romans extended at the close of the monarchy, can by no means be determined. Of feuds with the neighbouring Latin and Volscian communities the Roman annals of the regal period recount more than enough; but only a few detached notices, such as that perhaps of the capture of Suessa in the Pomptine plain, can be held to contain a nucleus of historical fact. That the regal period laid not only the political foundations of Rome, but the foundations also of her external power, cannot be doubted; the position of the city of Rome as contradistinguished from, rather than forming part of, the league of Latin states is already decidedly marked at the beginning of the republic, and enables us to perceive that an energetic development of external power must have taken place in Rome during the time of the kings. Certainly great deeds, uncommon achievements have in this case passed into oblivion; but the splendour of them lingers over the regal period of Rome, especially over the royal house of the Tarquins, like a distant evening twilight in which outlines disappear.

Enlargement of the City of Rome—Servian Wall

While the Latin stock was thus tending towards union under the leadership of Rome and was at the same time extending its territory on the east and south, Rome itself, by the favour of fortune and the energy of its citizens, had been converted from a stirring commercial and rural town into the powerful capital of a flourishing country. The remodelling of the Roman military system and the political reform of which it contained the germ, known to us by the name of the Servian constitution, stand in intimate connection with this internal change in the character of the Roman

community. But externally also the character of the city cannot but have changed with the influx of ampler resources, with the rising requirements of its position, and with the extension of its political horizon. The amalgamation of the adjoining community on the Quirinal with that on the Palatine must have been already accomplished when the Servian reform, as it is called, took place; and after this reform had united and consolidated the military strength of the community, the burgesses could no longer rest content with entrenching the several hills, as one after another they were filled with buildings, and with possibly also keeping the island in the Tiber and the height on the opposite bank occupied so that they might command the course of the river. The capital of Latium required another and more complete system of defence; they proceeded to construct the Servian wall. The new continuous city-wall began at the river below the Aventine, and included that hill, on which there have been brought to light recently (1855) at two different places, the one on the western slope towards the river, the other on the opposite eastern slope, colossal remains of those primitive fortifications—portions of wall as high as the walls of Alatri and Ferentino, built of large square hewn blocks of tufo in courses of unequal height—emerging as it were from the tomb to testify to the might of an epoch, whose buildings subsist imperishably in these walls of rock, and whose intellectual achievements will continue to exercise an influence more lasting even than these. The ring-wall further embraced the Caelian and the whole space of the Esquiline, Viminal, and Quirinal, where a structure likewise but recently brought to light on a great scale (1862)—on the outside composed of blocks of peperino and protected by a moat in front, on the inside forming a huge earthen rampart sloped towards the city and imposing even at the present day—supplied the want of natural means of defence. From thence it ran to the Capitoline, the steep declivity of which towards the Campus Martius served as part of the city-wall, and it again abutted on the river above the island in the Tiber. The Tiber island with the

bridge of piles and the Janiculum did not belong strictly to the city, but the latter height was probably a fortified outwork. Hitherto the Palatine had been the stronghold, but now this hill was left open to be built upon by the growing city; and on the other hand upon the Tarpeian Hill, standing free on every side, and from its moderate extent easily defensible, there was constructed the new "stronghold" (-arx-, -capitolium-(10)), containing the stronghold-spring, the carefully enclosed "well-house" (-tullianum-), the treasury (-aerarium-), the prison, and the most ancient place of assemblage for the burgesses (-area Capitolina-), where still in after times the regular announcements of the changes of the moon continued to be made. Private dwellings of a permanent kind, on the other hand, were not tolerated in earlier times on the stronghold-hill;(11) and the space between the two summits of the hill, the sanctuary of the evil god (-Ve-diovis-), or as it was termed in the later Hellenizing epoch, the Asylum, was covered with wood and presumably intended for the reception of the husbandmen and their herds, when inundation or war drove them from the plain. The Capitol was in reality as well as in name the Acropolis of Rome, an independent castle capable of being defended even after the city had fallen: its gate lay probably towards what was afterwards the Forum.(12) The Aventine seems to have been fortified in a similar style, although less strongly, and to have been preserved free from permanent occupation. With this is connected the fact, that for purposes strictly urban, such as the distribution of the introduced water, the inhabitants of Rome were divided into the inhabitants of the city proper (-montani-), and those of the districts situated within the general ring-wall, but yet not reckoned as strictly belonging to the city (-pagani Aventinensis-, -Ianiculenses-, -collegia Capitolinorum et Mercurialium-).(13) The space enclosed by the new city wall thus embraced, in addition to the former Palatine and Quirinal cities, the two federal strongholds of the Capitol and the Aventine, and also the Janiculum; (14) the Palatine, as the oldest and proper city, was enclosed by the other

heights along which the wall was carried, as if encircled with a wreath, and the two castles occupied the middle.

The work, however, was not complete so long as the ground, protected by so laborious exertions from outward foes, was not also reclaimed from the dominion of the water, which permanently occupied the valley between the Palatine and the Capitol, so that there was perhaps even a ferry there, and which converted the valleys between the Capitol and the Velia and between the Palatine and the Aventine into marshes. The subterranean drains still existing at the present day, composed of magnificent square blocks, which excited the astonishment of posterity as a marvellous work of regal Rome, must rather be reckoned to belong to the following epoch, for travertine is the material employed and we have many accounts of new structures of the kind in the times of the republic; but the scheme itself belongs beyond doubt to the regal period, although presumably to a later epoch than the designing of the Servian wall and the Capitoline stronghold. The spots thus drained or dried supplied large open spaces such as were needed by the new enlarged city. The assembling-place of the community, which had hitherto been the Area Capitolina at the stronghold itself, was now transferred to the flat space, where the ground fell from the stronghold towards the city (-comitium-), and which stretched thence between the Palatine and the Carinae, in the direction of the Velia. At that side of the -comitium- which adjoined the stronghold, and upon the stronghold-wall which arose above the -comitium- in the fashion of a balcony, the members of the senate and the guests of the city had the place of honour assigned to them on occasion of festivals and assemblies of the people; and at the place of assembly itself was erected the senate-house, which afterwards bore the name of the Curia Hostilia. The platform for the judgment-seat (-tribunal-), and the stage whence the burgesses were addressed (the later rostra), were likewise erected on the -comitium- itself. Its prolongation in the direction of the Velia became the new market (-forum Romanum-). At the end of the

latter, beneath the Palatine, rose the community-house, which included the official dwelling of the king (-regia-) and the common hearth of the city, the rotunda forming the temple of Vesta; at no great distance, on the south side of the Forum, there was erected a second round building connected with the former, the store-room of the community or temple of the Penates, which still stands at the present day as the porch of the church Santi Cosma e Damiano. It is a feature significant of the new city now united in a way very different from the settlement of the "seven mounts," that, over and above the hearths of the thirty curies which the Palatine Rome had been content with associating in one building, the Servian Rome presented this general and single hearth for the city at large.(15) Along the two longer sides of the Forum butchers' shops and other traders' stalls were arranged. In the valley between the Palatine and Aventine a "ring" was staked off for races; this became the Circus. The cattle-market was laid out immediately adjoining the river, and this soon became one of the most densely peopled quarters of Rome. Temples and sanctuaries arose on all the summits, above all the federal sanctuary of Diana on the Aventine,(16) and on the summit of the stronghold the far-seen temple of Father Diovis, who had given to his people all this glory, and who now, when the Romans were triumphing over the surrounding nations, triumphed along with them over the subject gods of the vanquished.

The names of the men, at whose bidding these great buildings of the city arose, are almost as completely lost in oblivion as those of the leaders in the earliest battles and victories of Rome. Tradition indeed assigns the different works to different kings—the senate-house to Tullus Hostilius, the Janiculum and the wooden bridge to Ancus Marcius, the great Cloaca, the Circus, and the temple of Jupiter to the elder Tarquinius, the temple of Diana and the ring-wall to Servius Tullius. Some of these statements may perhaps be correct; and it is apparently not the result of accident that the building of the new ring-wall is associated both as to date and author with

the new organization of the army, which in fact bore special reference to the regular defence of the city walls. But upon the whole we must be content to learn from this tradition—what is indeed evident of itself—that this second creation of Rome stood in intimate connection with the commencement of her hegemony over Latium and with the remodelling of her burgess-army, and that, while it originated in one and the same great conception, its execution was not the work either of a single man or of a single generation. It is impossible to doubt that Hellenic influences exercised a powerful effect on this remodelling of the Roman community, but it is equally impossible to demonstrate the mode or the degree of their operation. It has already been observed that the Servian military constitution is essentially of an Hellenic type;(17) and it will be afterwards shown that the games of the Circus were organized on an Hellenic model. The new -regia-with the city hearth was quite a Greek —prytaneion—, and the round temple of Vesta, looking towards the east and not so much as consecrated by the augurs, was constructed in no respect according to Italian, but wholly in accordance with Hellenic, ritual. With these facts before us, the statement of tradition appears not at all incredible that the Ionian confederacy in Asia Minor to some extent served as a model for the Romano-Latin league, and that the new federal sanctuary on the Aventine was for that reason constructed in imitation of the Artemision at Ephesus.

Notes for Book I Chapter VII

1. I. IV. Earliest Limits of the Roman Territory

2. The formulae of accursing for Gabii and Fidenae are quite as characteristic (Macrob. Sat. iii. 9). It cannot, however, be proved and is

extremely improbable that, as respects these towns, there was an actual historical accursing of the ground on which they were built, such as really took place at Veii, Carthage, and Fregellae. It may be conjectured that old accursing formularies were applied to those two hated towns, and were considered by later antiquaries as historical documents.

3. But there seems to be no good ground for the doubt recently expressed in a quarter deserving of respect as to the destruction of Alba having really been the act of Rome. It is true, indeed, that the account of the destruction of Alba is in its details a series of improbabilities and impossibilities; but that is true of every historical fact inwoven into legend. To the question as to the attitude of the rest of Latium towards the struggle between Rome and Alba, we are unable to give an answer; but the question itself rests on a false assumption, for it is not proved that the constitution of the Latin league absolutely prohibited a separate war between two Latin communities (I. III. The Latin League). Still less is the fact that a number of Alban families were received into the burgess-union of Rome inconsistent with the destruction of Alba by the Romans. Why may there not have been a Roman party in Alba just as there was in Capua? The circumstance, however, of Rome claiming to be in a religious and political point of view the heir-at-law of Alba may be regarded as decisive of the matter; for such a claim could not be based on the migration of individual clans to Rome, but could only be based, as it actually was, on the conquest of the town.

4. I. VI. Amalgamation of the Palatine and Quirinal Cities

5. Hence was developed the conception, in political law, of the maritime colony or colony of burgesses (-colonia civium Romanorum-), that is, of a community separate in fact, but not independent or possessing a will of its own in law; a community which merged in the capital as the -peculium- of

the son merged in the property of the father, and which as a standing garrison was exempt from serving in the legion.

6. To this the enactment of the Twelve Tables undoubtedly has reference: -Nex[i mancipiique] forti sanatique idem ius esto-, that is, in dealings of private law the "sound" and the "recovered" shall be on a footing of equality. The Latin allies cannot be here referred to, because their legal position was defined by federal treaties, and the law of the Twelve Tables treated only of the law of Rome. The -sanates- were the -Latini prisci cives Romani-, or in other words, the communities of Latium compelled by the Romans to enter the plebeiate.

7. The community of Bovillae appears even to have been formed out of part of the Alban domain, and to have been admitted in room of Alba among the autonomous Latin towns. Its Alban origin is attested by its having been the seat of worship for the Julian gens and by the name -Albani Longani Bovillenses- (Orelli-Henzen, 119, 2252, 6019); its autonomy by Dionysius, v. 61, and Cicero, pro Plancio, 9, 23.

8. I. III. The Latin League

9. I. III. The Latin League

10. Both names, although afterwards employed as local names (-capitolium- being applied to the summit of the stronghold-hill that lay next to the river, -arx- to that next to the Quirinal), were originally appellatives, corresponding exactly to the Greek —akra— and —koruphei— every Latin town had its -capitolium-as well as Rome. The local name of the Roman stronghold-hill was -mons Tarpeius-.

11. The enactment -ne quis patricius in arce aut capitolio habitaret- probably prohibited only the conversion of the ground into private property,

not the construction of dwelling-houses. Comp. Becker, Top. p. 386.

12. For the chief thoroughfare, the -Via Sacra-, led from that quarter to the stronghold; and the bending in towards the gate may still be clearly recognized in the turn which this makes to the left at the arch of Severus. The gate itself must have disappeared under the huge structures which were raised in after ages on the Clivus. The so-called gate at the steepest part of the Capitoline Mount, which is known by the name of Janualis or Saturnia, or the "open," and which had to stand always open in times of war, evidently had merely a religious significance, and never was a real gate.

13. Four such guilds are mentioned (1) the -Capitolini- (Cicero, ad Q. fr. ii. 5, 2), with -magistri- of their own (Henzen, 6010, 6011), and annual games (Liv. v. 50; comp. Corp. Inscr. Lat. i. n. 805); (2) the -Mercuriales- (Liv. ii. 27; Cicero, l. c.; Preller, Myth. p. 597) likewise with -magistri- (Henzen, 6010), the guild from the valley of the Circus, where the temple of Mercury stood; (3) the -pagani Aventinenses- likewise with -magistri- (Henzen, 6010); and (4) the -pagani pagi Ianiculensis- likewise with -magistri- (C. I. L. i. n. 801, 802). It is certainly not accidental that these four guilds, the only ones of the sort that occur in Rome, belong to the very two hills excluded from the four local tribes but enclosed by the Servian wall, the Capitol and the Aventine, and the Janiculum belonging to the same fortification; and connected with this is the further fact that the expression -montani paganive- is employed as a designation of the whole inhabitants in connection with the city (comp. besides the well-known passage, Cic. de Domo, 28, 74, especially the law as to the city aqueducts in Festus, v. sifus, p. 340; [-mon]tani paganive si[fis aquam dividunto-]). The -montani-, properly the inhabitants of the three regions of the Palatine town (iv. The Hill-Romans On the Quirinal), appear to be here put -a potiori- for the whole population of the four regions of the city proper. The -pagani- are,

undoubtedly, the residents of the Aventine and Janiculum not included in the tribes, and the analogous -collegia- of the Capitol and the Circus valley.

14. The "Seven-hill-city" in the proper and religious sense was and continued to be the narrower Old-Rome of the Palatine (iv. The Palatine City). Certainly the Servian Rome also regarded itself, at least as early as the time of Cicero (comp. e. g. Cic. ad Att. vi. 5, 2; Plutarch, Q. Rom. 69), as "Seven-hill-city," probably because the festival of the Septimontium, which was celebrated with great zeal even under the Empire, began to be regarded as a festival for the city generally; but there was hardly any definite agreement reached as to which of the heights embraced by the Servian ring-wall belonged to the "seven." The enumeration of the Seven Mounts familiar to us, viz. Palatine, Aventine, Caelian, Esquiline, Viminal, Quirinal, Capitoline, is not given by any ancient author. It is put together from the traditional narrative of the gradual rise of the city (Jordan, Topographie, ii. 206 seq.), and the Janiculum is passed over in it, simply because otherwise the number would come out as eight. The earliest authority that enumerates the Seven Mounts (-montes-) of Rome is the description of the city from the age of Constantine the Great. It names as such the Palatine, Aventine, Caelian, Esquiline, Tarpeian, Vatican, and Janiculum,—where the Quirinal and Viminal are, evidently as -colles-, omitted, and in their stead two "-montes-" are introduced from the right bank of the Tiber, including even the Vatican which lay outside of the Servian wall. Other still later lists are given by Servius (ad Aen. vi. 783), the Berne Scholia to Virgil's Georgics (ii. 535), and Lydus (de Mens. p. 118, Bekker).

15. Both the situation of the two temples, and the express testimony of Dionysius, ii. 65, that the temple of Vesta lay outside of the Roma quadrata, prove that these structures were connected with the foundation not of the Palatine, but of the second (Servian) city. Posterity reckoned this -regia-

with the temple of Vesta as a scheme of Numa; but the cause which gave rise to that hypothesis is too manifest to allow of our attaching any weight to it.

16. I. VII. Relation of Rome to Latium

17. I. VI. Time and Occasion of the Reform

CHAPTER VIII

The Umbro-Sabellian Stocks—Beginnings of the Samnites

Umbro-Sabellian Migration

The migration of the Umbrian stocks appears to have begun at a period later than that of the Latins. Like the Latin, it moved in a southerly direction, but it kept more in the centre of the peninsula and towards the east coast. It is painful to speak of it; for our information regarding it comes to us like the sound of bells from a town that has been sunk in the sea. The Umbrian people extended according to Herodotus as far as the Alps, and it is not improbable that in very ancient times they occupied the whole of Northern Italy, to the point where the settlements of the Illyrian stocks began on the east, and those of the Ligurians on the west. As to the latter, there are traditions of their conflicts with the Umbrians, and we may perhaps draw an inference regarding their extension in very early times towards the south from isolated names, such as that of the island of Ilva (Elba) compared with the Ligurian Ilvates. To this period of Umbrian greatness the evidently Italian names of the most ancient settlements in the valley of the Po, Atria (black-town), and Spina (thorn-town), probably owe their origin, as well as the numerous traces of Umbrians in southern Etruria

(such as the river Umbro, Camars the old name of Clusium, Castrum Amerinum). Such indications of an Italian population having preceded the Etruscan especially occur in the most southern portion of Etruria, the district between the Ciminian Forest (below Viterbo) and the Tiber. In Falerii, the town of Etruria nearest to the frontier of Umbria and the Sabine country, according to the testimony of Strabo a language was spoken different from the Etruscan, and inscriptions bearing out that statement have recently been brought to light there, the alphabet and language of which, while presenting points of contact with the Etruscan, exhibit a general resemblance to the Latin.(1) The local worship also presents traces of a Sabellian character; and a similar inference is suggested by the primitive relations subsisting in sacred as well as other matters between Caere and Rome. It is probable that the Etruscans wrested those southern districts from the Umbrians at a period considerably subsequent to their occupation of the country on the north of the Ciminian Forest, and that an Umbrian population maintained itself there even after the Tuscan conquest. In this fact we may presumably find the ultimate explanation of the surprising rapidity with which the southern portion of Etruria became Latinized, as compared with the tenacious retention of the Etruscan language and manners in northern Etruria, after the Roman conquest. That the Umbrians were after obstinate struggles driven back from the north and west into the narrow mountainous country between the two arms of the Apennines which they subsequently held, is clearly indicated by the very fact of their geographical position, just as the position of the inhabitants of the Grisons and that of the Basques at the present day indicates the similar fate that has befallen them. Tradition also has to report that the Tuscans wrested from the Umbrians three hundred towns; and, what is of more importance as evidence, in the national prayers of the Umbrian Iguvini, which we still possess, along with other stocks the Tuscans especially are cursed as public foes.

In consequence, as may be presumed, of this pressure exerted upon them from the north, the Umbrians advanced towards the south, keeping in general upon the heights, because they found the plains already occupied by Latin stocks, but beyond doubt frequently making inroads and encroachments on the territory of the kindred race, and intermingling with them the more readily, that the distinction in language and habits could not have been at all so marked then as we find it afterwards. To the class of such inroads belongs the tradition of the irruption of the Reatini and Sabines into Latium and their conflicts with the Romans; similar phenomena were probably repeated all along the west coast. Upon the whole the Sabines maintained their footing in the mountains, as in the district bordering on Latium which has since been called by their name, and so too in the Volscian land, presumably because the Latin population did not extend thither or was there less dense; while on the other hand the well-peopled plains were better able to offer resistance to the invaders, although they were not in all cases able or desirous to prevent isolated bands from gaining a footing, such as the Titii and afterwards the Claudii in Rome.(2) In this way the stocks here became variously mingled, a state of things which serves to explain the numerous relations that subsisted between the Volscians and Latins, and how it happened that their district, as well as Sabina, afterwards became so early and speedily Latinized.

Samnites

The chief branch, however, of the Umbrian stock threw itself eastward from Sabina into the mountains of the Abruzzi, and the adjacent hill-country to the south of them. Here, as on the west coast, they occupied the mountainous districts, whose thinly scattered population gave way before the immigrants or submitted to their yoke; while in the plain along the Apulian coast the ancient native population, the Iapygians, upon the whole

maintained their ground, although involved in constant feuds, especially on the northern frontier about Luceria and Arpi. When these migrations took place, cannot of course be determined; but it was presumably about the time when kings ruled in Rome. Tradition reports that the Sabines, pressed by the Umbrians, vowed a *-ver sacrum-*, that is, swore that they would give up and send beyond their bounds the sons and daughters born in the year of war, so soon as these should reach maturity, that the gods might at their pleasure destroy them or bestow upon them new abodes in other lands. One band was led by the ox of Mars; these were the Safini or Samnites, who in the first instance established themselves on the mountains adjoining the river Sagrus, and at a later period proceeded to occupy the beautiful plain on the east of the Matese chain, near the sources of the Tifernus. Both in their old and in their new territory they named their place of public assembly—which in the one case was situated near Agnone, in the other near Bojano—from the ox which led them Bovianum. A second band was led by the woodpecker of Mars; these were the Picentes, "the woodpecker-people," who took possession of what is now the March of Ancona. A third band was led by the wolf (*-hirpus-*) into the region of Beneventum; these were the Hirpini. In a similar manner the other small tribes branched off from the common stock—the Praetuttii near Teramo; the Vestini on the Gran Sasso; the Marrucini near Chieti; the Frentani on the frontier of Apulia; the Paeligni on the Majella mountains; and lastly the Marsi on the Fucine lake, coming in contact with the Volscians and Latins. All of these tribes retained, as these legends clearly show, a vivid sense of their relationship and of their having come forth from the Sabine land. While the Umbrians succumbed in the unequal struggle and the western offshoots of the same stock became amalgamated with the Latin or Hellenic population, the Sabellian tribes prospered in the seclusion of their distant mountain land, equally remote from collision with the Etruscans, the Latins, and the Greeks. There was little or no development of an urban life amongst them;

their geographical position almost wholly precluded them from engaging in commercial intercourse, and the mountain-tops and strongholds sufficed for the necessities of defence, while the husbandmen continued to dwell in open hamlets or wherever each found the well-spring and the forest or pasture that he desired. In such circumstances their constitution remained stationary; like the similarly situated Arcadians in Greece, their communities never became incorporated into a single state; at the utmost they only formed confederacies more or less loosely connected. In the Abruzzi especially, the strict seclusion of the mountain valleys seems to have debarred the several cantons from intercourse either with each other or with the outer world. They maintained but little connection with each other and continued to live in complete isolation from the rest of Italy; and in consequence, notwithstanding the bravery of their inhabitants, they exercised less influence than any other portion of the Italian nation on the development of the history of the peninsula.

Their Political Development

On the other hand the Samnite people decidedly exhibited the highest political development among the eastern Italian stock, as the Latin nation did among the western. From an early period, perhaps from its first immigration, a comparatively strong political bond held together the Samnite nation, and gave to it the strength which subsequently enabled it to contend with Rome on equal terms for the first place in Italy. We are as ignorant of the time and manner of the formation of the bond, as we are of its federal constitution; but it is clear that in Samnium no single community was preponderant, and still less was there any town to serve as a central rallying point and bond of union for the Samnite stock, such as Rome was for the Latins. The strength of the land lay in its -communes- of husbandmen, and authority was vested in the assembly formed of their

representatives; it was this assembly which in case of need nominated a federal commander-in-chief. In consequence of its constitution the policy of this confederacy was not aggressive like the Roman, but was limited to the defence of its own bounds; only where the state forms a unity is power so concentrated and passion so strong, that the extension of territory can be systematically pursued. Accordingly the whole history of the two nations is prefigured in their diametrically opposite systems of colonization. Whatever the Romans gained, was a gain to the state: the conquests of the Samnites were achieved by bands of volunteers who went forth in search of plunder and, whether they prospered or were unfortunate, were left to their own resources by their native home. The conquests, however, which the Samnites made on the coasts of the Tyrrhenian and Ionic seas, belong to a later age; during the regal period in Rome they seem to have been only gaining possession of the settlements in which we afterwards find them. As a single incident in the series of movements among the neighbouring peoples caused by this Samnite settlement may be mentioned the surprise of Cumae by Tyrrhenians from the Upper Sea, Umbrians, and Daunians in the year 230. If we may give credit to the accounts of the matter which present certainly a considerable colouring of romance, it would appear that in this instance, as was often the case in such expeditions, the intruders and those whom they supplanted combined to form one army, the Etruscans joining with their Umbrian enemies, and these again joined by the Iapygians whom the Umbrian settlers had driven towards the south. Nevertheless the undertaking proved a failure: on this occasion at least the Hellenic superiority in the art of war, and the bravery of the tyrant Aristodemus, succeeded in repelling the barbarian assault on the beautiful seaport.

1. In the alphabet the *-id:r* especially deserves notice, being of the Latin (*-id:R*) and not of the Etruscan form (*-id:D*), and also the *-id:z* (*—id:XI*); it can only be derived from the primitive Latin, and must very faithfully represent it. The language likewise has close affinity with the oldest Latin; *-Marci Acarcelini he cupa-*, that is, *-Marcius Acarcelinius heic cubat-*: *-Menerva A. Cotena La. f...zenatuo sentem..dedet cuando..cuncaptum-*, that is, *-Minervae A(ulus?) Cotena La(rtis) f(ilius) de senatus sententia dedit quando (perhaps=olim) conceptum-*. At the same time with these and similar inscriptions there have been found some others in a different character and language, undoubtedly Etruscan.

2. I. IV. Tities, Luceres

CHAPTER IX

The Etruscans

Etruscan Nationality

The Etruscan people, or Ras,(1) as they called themselves, present a most striking contrast to the Latin and Sabellian Italians as well as to the Greeks. They were distinguished from these nations by their very bodily structure: instead of the slender and symmetrical proportions of the Greeks and Italians, the sculptures of the Etruscans exhibit only short sturdy figures with large head and thick arms. Their manners and customs also, so far as we are acquainted with them, point to a deep and original diversity from the Graeco-Italian stocks. The religion of the Tuscans in particular, presenting a gloomy fantastic character and delighting in the mystical handling of numbers and in wild and horrible speculations and practices, is equally remote from the clear rationalism of the Romans and the genial image-worship of the Hellenes. The conclusion which these facts suggest is confirmed by the most important and authoritative evidence of nationality, the evidence of language. The remains of the Etruscan tongue which have reached us, numerous as they are and presenting as they do various data to aid in deciphering it, occupy a position of isolation so complete, that not

only has no one hitherto succeeded in interpreting these remains, but no one has been able even to determine precisely the place of Etruscan in the classification of languages. Two periods in the development of the language may be clearly distinguished. In the older period the vocalization of the language was completely carried out, and the collision of two consonants was almost without exception avoided.(2) By throwing off the vocal and consonantal terminations, and by the weakening or rejection of the vowels, this soft and melodious language was gradually changed in character, and became intolerably harsh and rugged.(3) They changed for example -ramu*af- into -ram*a-, Tarquinius into -Tarchnaf-, Minerva into -Menrva-, Menelaos, Polydeukes, Alexandros, into -Menle-, -Pultuke-, -Elchsentre-. The indistinct and rugged nature of their pronunciation is shown most clearly by the fact that at a very early period the Etruscans made no distinction of -o from -u, -b from -p, -c from -g, -d from -t. At the same time the accent was, as in Latin and in the more rugged Greek dialects, uniformly thrown back upon the initial syllable. The aspirate consonants were treated in a similar fashion; while the Italians rejected them with the exception of the aspirated -b or the -f, and the Greeks, reversing the case, rejected this sound and retained the others —theta, —phi, —chi, the Etruscans allowed the softest and most pleasing of them, the —phi, to drop entirely except in words borrowed from other languages, but made use of the other three to an extraordinary extent, even where they had no proper place; Thetis for example became -Thethis-, Telephus -Thelaphe-, Odysseus -Utuze- or -Uthuze-. Of the few terminations and words, whose meaning has been ascertained, the greater part are far remote from all Graeco-Italian analogies; such as, all the numerals; the termination -al employed as a designation of descent, frequently of descent from the mother, e. g. -Cania-, which on a bilingual inscription of Chiusi is translated by -Cainnia natus-; and the termination -sa in the names of women, used to indicate the clan into which they have married, e. g. -Lecnesa- denoting the spouse of a -

Licinius-. So -cela- or -clan- with the inflection -clensi- means son; -se(—chi)- daughter; -ril- year; the god Hermes becomes -Turms-, Aphrodite -Turan-, Hephaestos -Sethlans-, Bakchos -Fufluns-. Alongside of these strange forms and sounds there certainly occur isolated analogies between the Etruscan and the Italian languages. Proper names are formed, substantially, after the general Italian system. The frequent gentile termination -enas or -ena(4) recurs in the termination -enus which is likewise of frequent occurrence in Italian, especially in Sabellian clan-names; thus the Etruscan names -Maecenas- and -Spurinna- correspond closely to the Roman -Maecius- and -Spurius-. A number of names of divinities, which occur as Etruscan on Etruscan monuments or in authors, have in their roots, and to some extent even in their terminations, a form so thoroughly Latin, that, if these names were really originally Etruscan, the two languages must have been closely related; such as -Usil- (sun and dawn, connected with -ausum-, -aurum-, -aurora-, -sol-), -Minerva-(-menervare-) -Lasa- (-lascivus-), -Neptunus-, -Voltumna-. As these analogies, however, may have had their origin only in the subsequent political and religious relations between the Etruscans and Latins, and in the accommodations and borrowings to which these relations gave rise, they do not invalidate the conclusion to which we are led by the other observed phenomena, that the Tuscan language differed at least as widely from all the Graeco-Italian dialects as did the language of the Celts or of the Slavonians. So at least it sounded to the Roman ear; "Tuscan and Gallic" were the languages of barbarians, "Oscan and Volscian" were but rustic dialects.

But, while the Etruscans differed thus widely from the Graeco-Italian family of languages, no one has yet succeeded in connecting them with any other known race. All sorts of dialects have been examined with a view to discover affinity with the Etruscan, sometimes by simple interrogation, sometimes by torture, but all without exception in vain. The geographical position of the Basque nation would naturally suggest it for comparison; but

even in the Basque language no analogies of a decisive character have been brought forward. As little do the scanty remains of the Ligurian language which have reached our time, consisting of local and personal names, indicate any connection with the Tuscans. Even the extinct nation which has constructed those enigmatical sepulchral towers, called -Nuraghe-, by thousands in the islands of the Tuscan Sea, especially in Sardinia, cannot well be connected with the Etruscans, for not a single structure of the same character is to be met with in Etruscan territory. The utmost we can say is that several traces, that seem tolerably trustworthy, point to the conclusion that the Etruscans may be on the whole numbered with the Indo-Germans. Thus -mi- in the beginning of many of the older inscriptions is certainly —emi—, —eimi—, and the genitive form of consonantal stems veneruf -rafuvuf-is exactly reproduced in old Latin, corresponding to the old Sanscrit termination -as. In like manner the name of the Etruscan Zeus, -Tina-or -Tinia-, is probably connected with the Sanscrit -dina-, meaning day, as —Zan— is connected with the synonymous -diwan-. But, even granting this, the Etruscan people appears withal scarcely less isolated "The Etruscans," Dionysius said long ago, "are like no other nation in language and manners;" and we have nothing to add to his statement.

Home of the Etruscans

It is equally difficult to determine from what quarter the Etruscans migrated into Italy; nor is much lost through our inability to answer the question, for this migration belonged at any rate to the infancy of the people, and their historical development began and ended in Italy. No question, however, has been handled with greater zeal than this, in accordance with the principle which induces antiquaries especially to inquire into what is neither capable of being known nor worth the knowing—to inquire "who was Hecuba's mother," as the emperor Tiberius professed

to do. As the oldest and most important Etruscan towns lay far inland—in fact we find not a single Etruscan town of any note immediately on the coast except Populonia, which we know for certain was not one of the old twelve cities—and the movement of the Etruscans in historical times was from north to south, it seems probable that they migrated into the peninsula by land. Indeed the low stage of civilization, in which we find them at first, would ill accord with the hypothesis of immigration by sea. Nations even in the earliest times crossed a strait as they would a stream; but to land on the west coast of Italy was a very different matter. We must therefore seek for the earlier home of the Etruscans to the west or north of Italy. It is not wholly improbable that the Etruscans may have come into Italy over the Raetian Alps; for the oldest traceable settlers in the Grisons and Tyrol, the Raeti, spoke Etruscan down to historical times, and their name sounds similar to that of the Ras. These may no doubt have been a remnant of the Etruscan settlements on the Po; but it is at least quite as likely that they may have been a portion of the people which remained behind in its earlier abode.

Story of Their Lydian Origin

In glaring contradiction to this simple and natural view stands the story that the Etruscans were Lydians who had emigrated from Asia. It is very ancient: it occurs even in Herodotus; and it reappears in later writers with innumerable changes and additions, although several intelligent inquirers, such as Dionysius, emphatically declared their disbelief in it, and pointed to the fact that there was not the slightest apparent similarity between the Lydians and Etruscans in religion, laws, manners, or language. It is possible that an isolated band of pirates from Asia Minor may have reached Etruria, and that their adventure may have given rise to such tales; but more probably the whole story rests on a mere verbal mistake. The Italian

Etruscans or the -Turs-ennae- (for this appears to be the original form and the basis of the Greek —Turs-einnoi—, —Turreinoi—, of the Umbrian -Turs-ci-, and of the two Roman forms -Tusci-, -Etrusci-) nearly coincide in name with the Lydian people of the —Torreiboι— or perhaps also —Turreinoi—, so named from the town —Turra—, This manifestly accidental resemblance in name seems to be in reality the only foundation for that hypothesis—not rendered more trustworthy by its great antiquity—and for all the pile of crude historical speculations that has been reared upon it. By connecting the ancient maritime commerce of the Etruscans with the piracy of the Lydians, and then by confounding (Thucydides is the first who has demonstrably done so) the Torrhebian pirates, whether rightly or wrongly, with the bucaneeering Pelasgians who roamed and plundered on every sea, there has been produced one of the most mischievous complications of historical tradition. The term Tyrrhenians denotes sometimes the Lydian Torrhebi—as is the case in the earliest sources, such as the Homeric hymns; sometimes under the form Tyrrheno-Pelasgians or simply that of Tyrrhenians, the Pelasgian nation; sometimes, in fine, the Italian Etruscans, although the latter never came into lasting contact with the Pelasgians or Torrhebians, or were at all connected with them by common descent.

Settlements of the Etruscans in Italy

It is, on the other hand, a matter of historical interest to determine what were the oldest traceable abodes of the Etruscans, and what were their further movements when they issued thence. Various circumstances attest that before the great Celtic invasion they dwelt in the district to the north of the Po, being conterminous on the east along the Adige with the Veneti of Illyrian (Albanian?) descent, on the west with the Ligurians. This is proved in particular by the already-mentioned rugged Etruscan dialect, which was still spoken in the time of Livy by the inhabitants of the Raetian Alps, and

by the fact that Mantua remained Tuscan down to a late period. To the south of the Po and at the mouths of that river Etruscans and Umbrians were mingled, the former as the dominant, the latter as the older race, which had founded the old commercial towns of Atria and Spina, while the Tuscans appear to have been the founders of Felsina (Bologna) and Ravenna. A long time elapsed ere the Celts crossed the Po; hence the Etruscans and Umbrians left deeper traces of their existence on the right bank of the river than they had done on the left, which they had to abandon at an early period. All the regions, however, to the north of the Apennines passed too rapidly out of the hands of one nation into those of another to permit the formation of any continuous national development there.

Etruria

Far more important in an historical point of view was the great settlement of the Tuscans in the land which still bears their name. Although Ligurians or Umbrians were probably at one time⁽⁵⁾ settled there, the traces of them have been almost wholly effaced by the Etruscan occupation and civilization. In this region, which extends along the coast from Pisae to Tarquinii and is shut in on the east by the Apennines, the Etruscan nationality found its permanent abode and maintained itself with great tenacity down to the time of the empire. The northern boundary of the proper Tuscan territory was formed by the Arnus; the region north from the Arnus as far as the mouth of the Macra and the Apennines was a debateable border land in the possession sometimes of Ligurians, sometimes of Etruscans, and for this reason larger settlements were not successful there. The southern boundary was probably formed at first by the Ciminian Forest, a chain of hills south of Viterbo, and at a later period by the Tiber. We have already⁽⁶⁾ noticed the fact that the territory between the Ciminian range and the Tiber with the towns of Sutrium, Nepete, Falerii, Veii, and

Caere appears not to have been taken possession of by the Etruscans till a period considerably later than the more northern districts, possibly not earlier than in the second century of Rome, and that the original Italian population must have maintained its ground in this region, especially in Falerii, although in a relation of dependence.

Relations of the Etruscans to Latium

From the time at which the river Tiber became the line of demarcation between Etruria on the one side and Umbria and Latium on the other, peaceful relations probably upon the whole prevailed in that quarter, and no essential change seems to have taken place in the boundary line, at least so far as concerned the Latin frontier. Vividly as the Romans were impressed by the feeling that the Etruscan was a foreigner, while the Latin was their countryman, they yet seem to have stood in much less fear of attack or of danger from the right bank of the river than, for example, from their kinsmen in Gabii and Alba; and this was natural, for they were protected in that direction not merely by the broad stream which formed a natural boundary, but also by the circumstance, so momentous in its bearing on the mercantile and political development of Rome, that none of the more powerful Etruscan towns lay immediately on the river, as did Rome on the Latin bank. The Veientes were the nearest to the Tiber, and it was with them that Rome and Latium came most frequently into serious conflict, especially for the possession of Fidenae, which served the Veientes as a sort of -tete de pont- on the left bank just as the Janiculum served the Romans on the right, and which was sometimes in the hands of the Latins, sometimes in those of the Etruscans. The relations of Rome with the somewhat more distant Caere were on the whole far more peaceful and friendly than those which we usually find subsisting between neighbours in early times. There are doubtless vague legends, reaching back to times of

distant antiquity, about conflicts between Latium and Caere; Mezentius the king of Caere, for instance, is asserted to have obtained great victories over the Latins, and to have imposed upon them a wine-tax; but evidence much more definite than that which attests a former state of feud is supplied by tradition as to an especially close connection between the two ancient centres of commercial and maritime intercourse in Latium and Etruria. Sure traces of any advance of the Etruscans beyond the Tiber, by land, are altogether wanting. It is true that Etruscans are named in the first ranks of the great barbarian host, which Aristodemus annihilated in 230 under the walls of Cumae;(7) but, even if we regard this account as deserving credit in all its details, it only shows that the Etruscans had taken part in a great plundering expedition. It is far more important to observe that south of the Tiber no Etruscan settlement can be pointed out as having owed its origin to founders who came by land; and that no indication whatever is discernible of any serious pressure by the Etruscans upon the Latin nation. The possession of the Janiculum and of both banks of the mouth of the Tiber remained, so far as we can see, undisputed in the hands of the Romans. As to the migrations of bodies of Etruscans to Rome, we find an isolated statement drawn from Tuscan annals, that a Tuscan band, led by Caelius Vivenna of Volsinii and after his death by his faithful companion Mastarna, was conducted by the latter to Rome. This may be trustworthy, although the derivation of the name of the Caelian Mount from this Caelius is evidently a philological invention, and even the addition that this Mastarna became king in Rome under the name of Servius Tullius is certainly nothing but an improbable conjecture of the archaeologists who busied themselves with legendary parallels. The name of the "Tuscan quarter" at the foot of the Palatine(8) points further to Etruscan settlements in Rome.

The Tarquins

It can hardly, moreover, be doubted that the last regal family which ruled over Rome, that of the Tarquins, was of Etruscan origin, whether it belonged to Tarquinii, as the legend asserts, or to Caere, where the family tomb of the Tarchnas has recently been discovered. The female name Tanaquil or Tanchvil interwoven with the legend, while it is not Latin, is common in Etruria. But the traditional story—according to which Tarquin was the son of a Greek who had migrated from Corinth to Tarquinii, and came to settle in Rome as a —*metoikos*— is neither history nor legend, and the historical chain of events is manifestly in this instance not confused merely, but completely torn asunder. If anything more can be deduced from this tradition beyond the bare and at bottom indifferent fact that at last a family of Tuscan descent swayed the regal sceptre in Rome, it can only be held as implying that this dominion of a man of Tuscan origin ought not to be viewed either as a dominion of the Tuscans or of any one Tuscan community over Rome, or conversely as the dominion of Rome over southern Etruria. There is, in fact, no sufficient ground either for the one hypothesis or for the other. The history of the Tarquins had its arena in Latium, not in Etruria; and Etruria, so far as we can see, during the whole regal period exercised no influence of any essential moment on either the language or customs of Rome, and did not at all interrupt the regular development of the Roman state or of the Latin league.

The cause of this comparatively passive attitude of Etruria towards the neighbouring land of Latium is probably to be sought partly in the struggles of the Etruscans with the Celts on the Po, which presumably the Celts did not cross until after the expulsion of the kings from Rome, and partly in the tendency of the Etruscan people towards seafaring and the acquisition of supremacy on the sea and seaboard—a tendency decidedly exhibited in their settlements in Campania, and of which we shall speak more fully in the next chapter.

The Etruscan Constitution

The Tuscan constitution, like the Greek and Latin, was based on the gradual transition of the community to an urban life. The early direction of the national energies towards navigation, trade, and manufactures appears to have called into existence urban commonwealths, in the strict sense of the term, earlier in Etruria than elsewhere in Italy. Caere is the first of all the Italian towns that is mentioned in Greek records. On the other hand we find that the Etruscans had on the whole less of the ability and the disposition for war than the Romans and Sabellians: the un-Italian custom of employing mercenaries for fighting occurs among the Etruscans at a very early period. The oldest constitution of the communities must in its general outlines have resembled that of Rome. Kings or Lucumones ruled, possessing similar insignia and probably therefore a similar plenitude of power with the Roman kings. A strict line of demarcation separated the nobles from the common people. The resemblance in the clan-organization is attested by the analogy of the system of names; only, among the Etruscans, descent on the mother's side received much more consideration than in Roman law. The constitution of their league appears to have been very lax. It did not embrace the whole nation; the northern and the Campanian Etruscans were associated in confederacies of their own, just in the same way as the communities of Etruria proper. Each of these leagues consisted of twelve communities, which recognized a metropolis, especially for purposes of worship, and a federal head or rather a high priest, but appear to have been substantially equal in respect of rights; while some of them at least were so powerful that neither could a hegemony establish itself, nor could the central authority attain consolidation. In Etruria proper Volsinii was the metropolis; of the rest of its twelve towns we know by trustworthy tradition only Perusia, Vetulonium, Volci, and Tarquinii. It was, however, quite as unusual for the Etruscans really to act in concert, as it was

for the Latin confederacy to do otherwise. Wars were ordinarily carried on by a single community, which endeavoured to interest in its cause such of its neighbours as it could; and when an exceptional case occurred in which war was resolved on by the league, individual towns very frequently kept aloof from it. The Etruscan confederations appear to have been from the first—still more than the other Italian leagues formed on a similar basis of national affinity—deficient in a firm and paramount central authority.

Notes for Book I Chapter IX

1. -Ras-ennac-, with the gentile termination mentioned below.
2. To this period belong e. g. inscriptions on the clay vases of

umaramlisia(—"id:theta")ipurenaie(—"id:theta")eeraisieepanamine
(—"id:theta")unastavhelefu- or -mi ramu(—"id:theta")af kaiufinaia-.

3. We may form some idea of the sound which the language now had from the commencement of the great inscription of Perugia; -eulat tanna laresul ameva(—"id:chi")r lautn vel(—"id:theta")inase stlaafunas slele(—"id:theta")caru-.

4. Such as Maecenas, Porsena, Vivenna, Caecina, Spurinna. The vowel in the penult is originally long, but in consequence of the throwing back of the accent upon the initial syllable is frequently shortened and even rejected. Thus we find Porse(n)na as well as Porsena, and Ceicne as well as Caecina.

5. I. VIII. Umbro-Sabellian Migration

6. I. VIII. Their Political Development

7. I. VIII. Their Political Development

8. I. IV. Oldest Settlements in the Palatine and Suburan Regions

CHAPTER X

The Hellenes in Italy—Maritime Supremacy of the Tuscans and Carthaginians

Relations of Italy with Other Lands

In the history of the nations of antiquity a gradual dawn ushered in the day; and in their case too the dawn was in the east. While the Italian peninsula still lay enveloped in the dim twilight of morning, the regions of the eastern basin of the Mediterranean had already emerged into the full light of a varied and richly developed civilization. It falls to the lot of most nations in the early stages of their development to be taught and trained by some rival sister-nation; and such was destined to be in an eminent degree the lot of the peoples of Italy. The circumstances of its geographical position, however, prevented this influence from being brought to bear upon the peninsula by land. No trace is to be found of any resort in early times to the difficult route by land between Italy and Greece. There were in all probability from time immemorial tracks for purposes of traffic, leading from Italy to the lands beyond the Alps; the oldest route of the amber trade from the Baltic joined the Mediterranean at the mouth of the Po—on which account the delta of the Po appears in Greek legend as the home of amber—

and this route was joined by another leading across the peninsula over the Apennines to Pisae; but from these regions no elements of civilization could come to the Italians. It was the seafaring nations of the east that brought to Italy whatever foreign culture reached it in early times.

Phoenicians in Italy

The oldest civilized nation on the shores of the Mediterranean, the Egyptians, were not a seafaring people, and therefore exercised no influence on Italy. But the same may be with almost equal truth affirmed of the Phoenicians. It is true that, issuing from their narrow home on the extreme eastern verge of the Mediterranean, they were the first of all known races to venture forth in floating houses on the bosom of the deep, at first for the purpose of fishing and dredging, but soon also for the prosecution of trade. They were the first to open up maritime commerce; and at an incredibly early period they traversed the Mediterranean even to its furthest extremity in the west. Maritime stations of the Phoenicians appear on almost all its coasts earlier than those of the Hellenes: in Hellas itself, in Crete and Cyprus, in Egypt, Libya, and Spain, and likewise on the western Italian main. Thucydides tells us that all around Sicily, before the Greeks came thither or at least before they had established themselves there in any considerable numbers, the Phoenicians had set up their factories on the headlands and islets, not with a view to gain territory, but for the sake of trading with the natives. But it was otherwise in the case of continental Italy. No sure proof has hitherto been given of the existence of any Phoenician settlement there excepting one, a Punic factory at Caere, the memory of which has been preserved partly by the appellation -Punicum- given to a little village on the Caerite coast, partly by the other name of the town of Caere itself, -Agylla-, which is not, as idle fiction asserts, of Pelasgic origin, but is a Phoenician word signifying the "round town"—

precisely the appearance which Caere presents when seen from the sea. That this station and any similar establishments which may have elsewhere existed on the coasts of Italy were neither of much importance nor of long standing, is evident from their having disappeared almost without leaving a trace. We have not the smallest reason to think them older than the Hellenic settlements of a similar kind on the same coasts. An evidence of no slight weight that Latium at least first became acquainted with the men of Canaan through the medium of the Hellenes is furnished by the Latin appellation "Poeni," which is borrowed from the Greek. All the oldest relations, indeed, of the Italians to the civilization of the east point decidedly towards Greece; and the rise of the Phoenician factory at Caere may be very well explained, without resorting to the pre-Hellenic period, by the subsequent well-known relations between the commercial state of Caere and Carthage. In fact, when we recall the circumstance that the earliest navigation was and continued to be essentially of a coasting character, it is plain that scarcely any country on the Mediterranean lay so remote from the Phoenicians as the Italian mainland. They could only reach it either from the west coast of Greece or from Sicily; and it may well be believed that the seamanship of the Hellenes became developed early enough to anticipate the Phoenicians in braving the dangers of the Adriatic and of the Tyrrhene seas. There is no ground therefore for the assumption that any direct influence was originally exercised by the Phoenicians over the Italians. To the subsequent relations between the Phoenicians holding the supremacy of the western Mediterranean and the Italians inhabiting the shores of the Tyrrhene sea our narrative will return in the sequel.

Greeks in Italy—Home of the Greek Immigrants

To all appearance, therefore, the Hellenic mariners were the first among the inhabitants of the eastern basin of the Mediterranean to navigate the

coasts of Italy. Of the important questions however as to the region from which, and as to the period at which, the Greek seafarers came thither, only the former admits of being answered with some degree of precision and fulness. The Aeolian and Ionian coast of Asia Minor was the region where Hellenic maritime traffic first became developed on a large scale, and whence issued the Greeks who explored the interior of the Black Sea on the one hand and the coasts of Italy on the other. The name of the Ionian Sea, which was retained by the waters intervening between Epirus and Sicily, and that of the Ionian gulf, the term by which the Greeks in earlier times designated the Adriatic Sea, are memorials of the fact that the southern and eastern coasts of Italy were once discovered by seafarers from Ionia. The oldest Greek settlement in Italy, Kyme, was, as its name and legend tell, founded by the town of the same name on the Anatolian coast. According to trustworthy Hellenic tradition, the Phocaeans of Asia Minor were the first of the Hellenes to traverse the more remote western sea. Other Greeks soon followed in the paths which those of Asia Minor had opened up; Ionians from Naxos and from Chalcis in Euboea, Achaeans, Locrians, Rhodians, Corinthians, Megarians, Messenians, Spartans. After the discovery of America the civilized nations of Europe vied with one another in sending out expeditions and forming settlements there; and the new settlers when located amidst barbarians recognized their common character and common interests as civilized Europeans more strongly than they had done in their former home. So it was with the new discovery of the Greeks. The privilege of navigating the western waters and settling on the western land was not the exclusive property of a single Greek province or of a single Greek stock, but a common good for the whole Hellenic nation; and, just as in the formation of the new North American world, English and French, Dutch and German settlements became mingled and blended, Greek Sicily and "Great Greece" became peopled by a mixture of all sorts of Hellenic races often so amalgamated as to be no longer distinguishable. Leaving out of

account some settlements occupying a more isolated position—such as that of the Locrians with its offsets Hipponium and Medama, and the settlement of the Phocaeans which was not founded till towards the close of this period, Hyele (Velia, Elea)—we may distinguish in a general view three leading groups. The original Ionian group, comprehended under the name of the Chalcidian towns, included in Italy Cumae with the other Greek settlements at Vesuvius and Rhegium, and in Sicily Zankle (afterwards Messana), Naxos, Catana, Leontini, and Himera. The Achaean group embraced Sybaris and the greater part of the cities of Magna Graecia. The Dorian group comprehended Syracuse, Gela, Agrigentum, and the majority of the Sicilian colonies, while in Italy nothing belonged to it but Taras (Tarentum) and its offset Heraclea. On the whole the preponderance lay with the immigrants who belonged to the more ancient Hellenic influx, that of the Ionians and the stocks settled in the Peloponnesus before the Doric immigration. Among the Dorians only the communities with a mixed population, such as Corinth and Megara, took a special part, whereas the purely Doric provinces had but a subordinate share in the movement. This result was naturally to be expected, for the Ionians were from ancient times a trading and sea-faring people, while it was only at a comparatively late period that the Dorian stocks descended from their inland mountains to the seaboard, and they always kept aloof from maritime commerce. The different groups of immigrants are very clearly distinguishable, especially by their monetary standards. The Phocaean settlers coined according to the Babylonian standard which prevailed in Asia. The Chalcidian towns followed in the earliest times the Aeginetan, in other words, that which originally prevailed throughout all European Greece, and more especially the modification of it which is found occurring in Euboea. The Achaean communities coined by the Corinthian standard; and lastly the Doric colonies followed that which Solon introduced in Attica in the year of Rome 160, with the exception of Tarentum and Heraclea, which in their

principal pieces adopted rather the standard of their Achaean neighbours than that of the Dorians in Sicily.

Time of the Greek Immigration

The dates of the earlier voyages and settlements will probably always remain enveloped in darkness. We may still, however, distinctly recognize a certain order of sequence. In the oldest Greek document, which belongs, like the earliest intercourse with the west, to the Ionians of Asia Minor—the Homeric poems—the horizon scarcely extends beyond the eastern basin of the Mediterranean. Sailors driven by storms into the western sea might have brought to Asia Minor accounts of the existence of a western land and possibly also of its whirlpools and island-mountains vomiting fire: but in the age of the Homeric poetry there was an utter want of trustworthy information respecting Sicily and Italy, even in that Greek land which was the earliest to enter into intercourse with the west; and the story-tellers and poets of the east could without fear of contradiction fill the vacant realms of the west, as those of the west in their turn filled the fabulous east, with their castles in the air. In the poems of Hesiod the outlines of Italy and Sicily appear better defined; there is some acquaintance with the native names of tribes, mountains, and cities in both countries; but Italy is still regarded as a group of islands. On the other hand, in all the literature subsequent to Hesiod, Sicily and even the whole coast of Italy appear as known, at least in a general sense, to the Hellenes. The order of succession of the Greek settlements may in like manner be ascertained with some degree of precision. Thucydides evidently regarded Cumae as the earliest settlement of note in the west; and certainly he was not mistaken. It is true that many a landing-place lay nearer at hand for the Greek mariner, but none were so well protected from storms and from barbarians as the island of Ischia, upon which the town was originally situated; and that such were the prevailing

considerations that led to this settlement, is evident from the very position which was subsequently selected for it on the mainland—the steep but well-protected cliff, which still bears to the present day the venerable name of the Anatolian mother-city. Nowhere in Italy, accordingly, were the scenes of the legends of Asia Minor so vividly and tenaciously localized as in the district of Cumae, where the earliest voyagers to the west, full of those legends of western wonders, first stepped upon the fabled land and left the traces of that world of story, which they believed that they were treading, in the rocks of the Sirens and the lake of Avernus leading to the lower world. On the supposition, moreover, that it was in Cumae that the Greeks first became the neighbours of the Italians, it is easy to explain why the name of that Italian stock which was settled immediately around Cumae, the name of Opicans, came to be employed by them for centuries afterwards to designate the Italians collectively. There is a further credible tradition, that a considerable interval elapsed between the settlement at Cumae and the main Hellenic immigration into Lower Italy and Sicily, and that in this immigration Ionians from Chalcis and from Naxos took the lead. Naxos in Sicily is said to have been the oldest of all the Greek towns founded by strict colonization in Italy or Sicily; the Achaean and Dorian colonizations followed, but not until a later period.

It appears, however, to be quite impossible to fix the dates of this series of events with even approximate accuracy. The founding of the Achaean city of Sybaris in 33, and that of the Dorian city Tarentum in 46, are probably the most ancient dates in Italian history, the correctness, or at least approximation to correctness, of which may be looked upon as established. But how far beyond that epoch the sending forth of the earlier Ionian colonies reached back, is quite as uncertain as is the age which gave birth to the poems of Hesiod or even of Homer. If Herodotus is correct in the period which he assigns to Homer, the Greeks were still unacquainted with Italy a century before the foundation of Rome. The date thus assigned however,

like all other statements respecting the Homeric age, is matter not of testimony, but of inference; and any one who carefully weighs the history of the Italian alphabets as well as the remarkable fact that the Italians had become acquainted with the Greek people before the name "Hellenes" had emerged for the race, and the Italians borrowed their designation for the Hellenes from the stock of the -Grai- or -Graeci- that early fell into abeyance in Hellas,(1) will be inclined to carry back the earliest intercourse of the Italians with the Greeks to an age considerably more remote.

Character of the Greek Immigration

The history of the Italian and Sicilian Greeks forms no part of the history of Italy; the Hellenic colonists of the west always retained the closest connection with their original home and participated in the national festivals and privileges of Hellenes. But it is of importance even as bearing on Italy, that we should indicate the diversities of character that prevailed in the Greek settlements there, and at least exhibit some of the leading features which enabled the Greek colonization to exercise so varied an influence on Italy.

The League of the Achaean Cities

Of all the Greek settlements, that which retained most thoroughly its distinctive character and was least affected by influences from without was the settlement which gave birth to the league of the Achaean cities, composed of the towns of Siris, Pandosia, Metabus or Metapontum, Sybaris with its offsets Posidonia and Laus, Croton, Caulonia, Temesa, Terina, and Pyxus. These colonists, taken as a whole, belonged to a Greek stock which steadfastly adhered to its own peculiar dialect, having closest affinity with

the Doric, and for long retained no less steadfastly the old national Hellenic mode of writing, instead of adopting the more recent alphabet which had elsewhere come into general use; and which preserved its own nationality, as distinguished alike from the barbarians and from other Greeks, by the firm bond of a federal constitution. The language of Polybius regarding the Achaean symmarchy in the Peloponnesus may be applied also to these Italian Achaeans; "Not only did they live in federal and friendly communion, but they made use of like laws, like weights, measures, and coins, as well as of the same magistrates, councillors, and judges."

This league of the Achaean cities was strictly a colonization. The cities had no harbours—Croton alone had a paltry roadstead—and they had no commerce of their own; the Sybarite prided himself on growing gray between the bridges of his lagoon-city, and Milesians and Etruscans bought and sold for him. These Achaean Greeks, however, were not merely in possession of a narrow belt along the coast, but ruled from sea to sea in the "land of wine" and "of oxen" (—Oinotria—, —Italia—) or the "great Hellas;" the native agricultural population was compelled to farm their lands and to pay to them tribute in the character of clients or even of serfs. Sybaris—in its time the largest city in Italy—exercised dominion over four barbarian tribes and five-and-twenty townships, and was able to found Laus and Posidonia on the other sea. The exceedingly fertile low grounds of the Crathis and Bradanus yielded a superabundant produce to the Sybarites and Metapontines—it was there perhaps that grain was first cultivated for exportation. The height of prosperity which these states in an incredibly short time attained is strikingly attested by the only surviving works of art of these Italian Achaeans, their coins of chaste antequely beautiful workmanship—the earliest monuments of art and writing in Italy which we possess, as it can be shown that they had already begun to be coined in 174. These coins show that the Achaeans of the west did not simply participate in the noble development of plastic art that was at this very time taking

place in the motherland, but were even superior in technical skill. For, while the silver pieces which were in use about that time in Greece proper and among the Dorians in Italy were thick, often stamped only on one side, and in general without inscription, the Italian Achaeans with great and independent skill struck from two similar dies partly cut in relief, partly sunk, large thin silver coins always furnished with inscriptions, and displaying the advanced organization of a civilized state in the mode of impression, by which they were carefully protected from the process of counterfeiting usual in that age—the plating of inferior metal with thin silver-foil.

Nevertheless this rapid bloom bore no fruit. Even Greeks speedily lost all elasticity of body and of mind in a life of indolence, in which their energies were never tried either by vigorous resistance on the part of the natives or by hard labour of their own. None of the brilliant names in Greek art or literature shed glory on the Italian Achaeans, while Sicily could claim ever so many of them, and even in Italy the Chalcidian Rhegium could produce its Ibycus and the Doric Tarentum its Archytas. With this people, among whom the spit was for ever turning on the hearth, nothing flourished from the outset but boxing. The rigid aristocracy which early gained the helm in the several communities, and which found in case of need a sure reserve of support in the federal power, prevented the rise of tyrants; but the danger to be apprehended was that the government of the best might be converted into a government of the few, especially if the privileged families in the different communities should combine to assist each other in carrying out their designs. Such was the predominant aim in the combination of mutually pledged "friends" which bore the name of Pythagoras. It enjoined the principle that the ruling class should be "honoured like gods," and that the subject class should be "held in subservience like beasts," and by such theory and practice provoked a formidable reaction, which terminated in the annihilation of the Pythagorean "friends" and the renewal of the ancient

federal constitution. But frantic party feuds, insurrections en masse of the slaves, social abuses of all sorts, attempts to supply in practice an impracticable state-philosophy, in short, all the evils of demoralized civilization never ceased to rage in the Achaean communities, till under the accumulated pressure their political power utterly broke down.

It is no matter of wonder therefore that the Achaeans settled in Italy exercised less influence on its civilization than the other Greek settlements. An agricultural people, they had less occasion than those engaged in commerce to extend their influence beyond their political bounds. Within their own dominions they enslaved the native population and crushed the germs of their national development as Italians, while they refused to open up to them by means of complete Hellenization a new career. In this way the Greek characteristics, which were able elsewhere to retain a vigorous vitality notwithstanding all political misfortunes, disappeared more rapidly, more completely, and more ingloriously in Sybaris and Metapontum, in Croton and Posidonia, than in any other region; and the bilingual mongrel peoples, that arose in subsequent times out of the remains of the native Italians and Achaeans and the more recent immigrants of Sabellian descent, never attained any real prosperity. This catastrophe, however, belongs in point of time to the succeeding period.

Iono-Dorian Towns

The settlements of the other Greeks were of a different character, and exercised a very different effect upon Italy. They by no means despised agriculture and the acquisition of territory; it was not the wont of the Hellenes, at least when they had reached their full vigour, to rest content after the manner of the Phoenicians with a fortified factory in the midst of a barbarian land. But all their cities were founded primarily and especially for

the sake of trade, and accordingly, altogether differing from those of the Achaeans, they were uniformly established beside the best harbours and lading-places. These cities were very various in their origin and in the occasion and period of their respective foundations; but there subsisted between them a certain fellowship, as in the common use by all of these towns of certain modern forms of the alphabet,(2) and in the very Dorism of their language, which made its way at an early date even into those towns that, like Cumae for example,(3) originally spoke the soft Ionic dialect. These settlements were of very various degrees of importance in their bearing on the development of Italy: it is sufficient at present to mention those which exercised a decided influence over the destinies of the Italian races, the Doric Tarentum and the Ionic Cumae.

Tarentum

Of all the Hellenic settlements in Italy, Tarentum was destined to play the most brilliant part. The excellent harbour, the only good one on the whole southern coast, rendered the city the natural emporium for the traffic of the south of Italy, and for some portion even of the commerce of the Adriatic. The rich fisheries of its gulf, the production and manufacture of its excellent wool, and the dyeing of it with the purple juice of the Tarentine -murex-, which rivalled that of Tyre—both branches of industry introduced there from Miletus in Asia Minor—employed thousands of hands, and added to the carrying trade a traffic of export. The coins struck at Tarentum in greater quantity than anywhere else in Grecian Italy, and struck pretty numerous even in gold, furnish to us a significant attestation of the lively and widely extended commerce of the Tarentines. At this epoch, when Tarentum was still contending with Sybaris for the first place among the Greek cities of Lower Italy, its extensive commercial connections must have been already forming; but the Tarentines seem never to have steadily and successfully

directed their efforts to a substantial extension of their territory after the manner of the Achaean cities.

Greek Cities Near Vesuvius

While the most easterly of the Greek settlements in Italy thus rapidly rose into splendour, those which lay furthest to the north, in the neighbourhood of Vesuvius, attained a more moderate prosperity. There the Cumaeans had crossed from the fertile island of Aenaria (Ischia) to the mainland, and had built a second home on a hill close by the sea, from whence they founded the seaport of Dicaearchia (afterwards Puteoli) and, moreover, the "new city" Neapolis. They lived, like the Chalcidian cities generally in Italy and Sicily, in conformity with the laws which Charondas of Catana (about 100) had established, under a constitution democratic but modified by a high census, which placed the power in the hands of a council of members selected from the wealthiest men—a constitution which proved lasting and kept these cities free, upon the whole, from the tyranny alike of usurpers and of the mob. We know little as to the external relations of these Campanian Greeks. They remained, whether from necessity or from choice, confined to a district of even narrower limits than the Tarentines; and issuing from it not for purposes of conquest and oppression, but for the holding of peaceful commercial intercourse with the natives, they created the means of a prosperous existence for themselves, and at the same time took the foremost place among the missionaries of Greek civilization in Italy.

Relations of the Adriatic Regions to the Greeks

While on the one side of the straits of Rhegium the whole southern coast of the mainland and its western coast as far as Vesuvius, and on the other the larger eastern half of the island of Sicily, were Greek territory, the west coast of Italy northward of Vesuvius and the whole of the east coast were in a position essentially different. No Greek settlements arose on the Italian seaboard of the Adriatic; and with this we may evidently connect the comparatively small number and subordinate importance of the Greek colonies planted on the opposite Illyrian shore and on the numerous adjacent islands. Two considerable mercantile towns, Epidamnus or Dyrrachium (now Durazzo, 127), and Apollonia (near Avlona, about 167), were founded upon the portion of this coast nearest to Greece during the regal period of Rome; but no old Greek colony can be pointed out further to the north, with the exception perhaps of the insignificant settlement at Black Corcyra (Curzola, about 174?). No adequate explanation has yet been given why the Greek colonization developed itself in this direction to so meagre an extent. Nature herself appeared to direct the Hellenes thither, and in fact from the earliest times there existed a regular traffic to that region from Corinth and still more from the settlement at Corcyra (Corfu) founded not long after Rome (about 44); a traffic, which had as its emporia on the Italian coast the towns of Spina and Atria, situated at the mouth of the Po. The storms of the Adriatic, the inhospitable character at least of the Illyrian coasts, and the barbarism of the natives are manifestly not in themselves sufficient to explain this fact. But it was a circumstance fraught with the most momentous consequences for Italy, that the elements of civilization which came from the east did not exert their influence on its eastern provinces directly, but reached them only through the medium of those that lay to the west. The Adriatic commerce carried on by Corinth and Corcyra was shared by the most easterly mercantile city of Magna Graecia, the Doric Tarentum, which by the possession of Hydrus (Otranto) had the command, on the Italian side, of the entrance of the Adriatic. Since, with the

exception of the ports at the mouth of the Po, there were in those times no emporia worthy of mention along the whole east coast—the rise of Ancona belongs to a far later period, and later still the rise of Brundisium—it may well be conceived that the mariners of Epidamnus and Apollonia frequently discharged their cargoes at Tarentum. The Tarentines had also much intercourse with Apulia by land; all the Greek civilization to be met with in the south-east of Italy owed its existence to them. That civilization, however, was during the present period only in its infancy; it was not until a later epoch that the Hellenism of Apulia was developed.

Relations of the Western Italians to the Greeks

It cannot be doubted, on the other hand, that the west coast of Italy northward of Vesuvius was frequented in very early times by the Hellenes, and that there were Hellenic factories on its promontories and islands. Probably the earliest evidence of such voyages is the localizing of the legend of Odysseus on the coasts of the Tyrrhene Sea.(4) When men discovered the isles of Aeolus in the Lipari islands, when they pointed out at the Lacinian cape the isle of Calypso, at the cape of Misenum that of the Sirens, at the cape of Circeii that of Circe, when they recognized in the steep promontory of Terracina the towering burial-mound of Elpenor, when the Laestrygonians were provided with haunts near Caieta and Formiae, when the two sons of Ulysses and Circe, Agrius, that is the "wild," and Latinus, were made to rule over the Tyrrhenians in the "inmost recess of the holy islands," or, according to a more recent version, Latinus was called the son of Ulysses and Circe, and Auson the son of Ulysses and Calypso—we recognize in these legends ancient sailors' tales of the seafarers of Ionia, who thought of their native home as they traversed the Tyrrhene Sea. The same noble vividness of feeling, which pervades the Ionic poem of the voyages of Odysseus, is discernible in this fresh localization of the same

legend at Cumae itself and throughout the regions frequented by the Cumaean mariners.

Other traces of these very ancient voyages are to be found in the Greek name of the island Aethalia (Ilva, Elba), which appears to have been (after Aenaria) one of the places earliest occupied by Greeks, perhaps also in that of the seaport Telamon in Etruria; and further in the two townships on the Caerite coast, Pyrgi (near S. Severa) and Alsium (near Palo), the Greek origin of which is indicated beyond possibility of mistake not only by their names, but also by the peculiar architecture of the walls of Pyrgi, which differs essentially in character from that of the walls of Caere and the Etruscan cities generally. Aethalia, the "fire-island," with its rich mines of copper and especially of iron, probably sustained the chief part in this commerce, and there in all likelihood the foreigners had their central settlement and seat of traffic with the natives; the more especially as they could not have found the means of smelting the ores on the small and not well-wooded island without intercourse with the mainland. The silver mines of Populonia also on the headland opposite to Elba were perhaps already known to the Greeks and wrought by them.

If, as was undoubtedly the case, the foreigners, ever in those times intent on piracy and plunder as well as trade, did not fail, when opportunity offered, to levy contributions on the natives and to carry them off as slaves, the natives on their part exercised the right of retaliation; and that the Latins and Tyrrhenes retaliated with greater energy and better fortune than their neighbours in the south of Italy, is attested not merely by the legends to that effect, but by the actual results. In these regions the Italians succeeded in resisting the foreigners and in retaining, or at any rate soon resuming, the mastery not merely of their own mercantile cities and mercantile ports, but also of their own sea. The same Hellenic invasion which crushed and denationalized the races of the south of Italy, directed the energies of the

peoples of Central Italy—very much indeed against the will of their instructors—towards navigation and the founding of towns. It must have been in this quarter that the Italians first exchanged the raft and the boat for the oared galley of the Phoenicians and Greeks. Here too we first encounter great mercantile cities, particularly Caere in southern Etruria and Rome on the Tiber, which, if we may judge from their Italian names as well as from their being situated at some distance from the sea, were—like the exactly similar commercial towns at the mouth of the Po, Spina and Atria, and Ariminum further to the south—certainly not Greek, but Italian foundations. It is not in our power, as may easily be supposed, to exhibit the historical course of this earliest reaction of Italian nationality against foreign aggression; but we can still recognize the fact, which was of the greatest importance as bearing upon the further development of Italy, that this reaction took a different course in Latium and in southern Etruria from that which it exhibited in the properly Tuscan and adjoining provinces.

Hellenes and Latins

Legend itself contrasts in a significant manner the Latin with the "wild Tyrrhenian," and the peaceful beach at the mouth of the Tiber with the inhospitable shore of the Volsci. This cannot mean that Greek colonization was tolerated in some of the provinces of Central Italy, but not permitted in others. Northward of Vesuvius there existed no independent Greek community at all in historical times; if Pyrgi once was such, it must have already reverted, before the period at which our tradition begins, into the hands of the Italians or in other words of the Caerites. But in southern Etruria, in Latium, and likewise on the east coast, peaceful intercourse with the foreign merchants was protected and encouraged; and such was not the case elsewhere. The position of Caere was especially remarkable. "The Caerites," says Strabo, "were held in much repute among the Hellenes for

their bravery and integrity, and because, powerful though they were, they abstained from robbery." It is not piracy that is thus referred to, for in this the merchant of Caere must have indulged like every other. But Caere was a sort of free port for Phoenicians as well as Greeks. We have already mentioned the Phoenician station—subsequently called Punicum—and the two Hellenic stations of Pyrgi and Alsium.⁽⁵⁾ It was these ports that the Caerites refrained from robbing, and it was beyond doubt through this tolerant attitude that Caere, which possessed but a wretched roadstead and had no mines in its neighbourhood, early attained so great prosperity and acquired, in reference to the earliest Greek commerce, an importance even greater than the cities of the Italians destined by nature as emporia at the mouths of the Tiber and Po. The cities we have just named are those which appear as holding primitive religious intercourse with Greece. The first of all barbarians to present gifts to the Olympian Zeus was the Tuscan king Arimnus, perhaps a ruler of Ariminum. Spina and Caere had their special treasuries in the temple of the Delphic Apollo, like other communities that had regular dealings with the shrine; and the sanctuary at Delphi, as well as the Cumaean oracle, is interwoven with the earliest traditions of Caere and of Rome. These cities, where the Italians held peaceful sway and carried on friendly traffic with the foreign merchant, became preeminently wealthy and powerful, and were genuine marts not only for Hellenic merchandise, but also for the germs of Hellenic civilization.

Hellenes and Etruscans—Etruscan Maritime Power

Matters stood on a different footing with the "wild Tyrrhenians." The same causes, which in the province of Latium, and in the districts on the right bank of the Tiber and along the lower course of the Po that were perhaps rather subject to Etruscan supremacy than strictly Etruscan, had led to the emancipation of the natives from the maritime power of the foreigner,

led in Etruria proper to the development of piracy and maritime ascendancy, in consequence possibly of the difference of national character disposing the people to violence and pillage, or it may be for other reasons with which we are not acquainted. The Etruscans were not content with dislodging the Greeks from Aethalia and Populonia; even the individual trader was apparently not tolerated by them, and soon Etruscan privateers roamed over the sea far and wide, and rendered the name of the Tyrrhenians a terror to the Greeks. It was not without reason that the Greeks reckoned the grapnel as an Etruscan invention, and called the western sea of Italy the sea of the Tuscans. The rapidity with which these wild corsairs multiplied and the violence of their proceedings in the Tyrrhene Sea in particular, are very clearly shown by their establishment on the Latin and Campanian coasts. The Latins indeed maintained their ground in Latium proper, and the Greeks at Vesuvius; but between them and by their side the Etruscans held sway in Antium and in Surrentum. The Volscians became clients of the Etruscans; their forests contributed the keels for the Etruscan galleys; and seeing that the piracy of the Antiates was only terminated by the Roman occupation, it is easy to understand why the coast of the southern Volscians bore among Greek mariners the name of the Laestrygonians. The high promontory of Sorrento with the cliff of Capri which is still more precipitous but destitute of any harbour—a station thoroughly adapted for corsairs on the watch, commanding a prospect of the Tyrrhene Sea between the bays of Naples and Salerno—was early occupied by the Etruscans. They are affirmed even to have founded a "league of twelve towns" of their own in Campania, and communities speaking Etruscan still existed in its inland districts in times quite historical. These settlements were probably indirect results of the maritime dominion of the Etruscans in the Campanian sea, and of their rivalry with the Cumaeans at Vesuvius.

Etruscan Commerce

The Etruscans however by no means confined themselves to robbery and pillage. The peaceful intercourse which they held with Greek towns is attested by the gold and silver coins which, at least from the year 200, were struck by the Etruscan cities, and in particular by Populonia, after a Greek model and a Greek standard. The circumstance, moreover, that these coins are modelled not upon those of Magna Graecia, but rather upon those of Attica and even Asia Minor, is perhaps an indication of the hostile attitude in which the Etruscans stood towards the Italian Greeks. For commerce they in fact enjoyed the most favourable position, far more advantageous than that of the inhabitants of Latium. Inhabiting the country from sea to sea, they commanded the great Italian free ports on the western waters, the mouths of the Po and the Venice of that time on the eastern sea, and the land route which from ancient times led from Pisa on the Tyrrhene Sea to Spina on the Adriatic, while in the south of Italy they commanded the rich plains of Capua and Nola. They were the holders of the most important Italian articles of export, the iron of Aethalia, the copper of Volaterrae and Campania, the silver of Populonia, and even the amber which was brought to them from the Baltic.(6) Under the protection of their piracy, which constituted as it were a rude navigation act, their own commerce could not fail to flourish. It need not surprise us to find Etruscan and Milesian merchants competing in the market of Sybaris, nor need we be astonished to learn that the combination of privateering and commerce on a great scale generated the unbounded and senseless luxury, in which the vigour of Etruria early wasted away.

Rivalry between the Phoenicians and Hellenes

While in Italy the Etruscans and, although in a lesser degree, the Latins thus stood opposed to the Hellenes, warding them off and partly treating them as enemies, this antagonism to some extent necessarily affected the

rivalry which then above all dominated the commerce and navigation of the Mediterranean—the rivalry between the Phoenicians and Hellenes. This is not the place to set forth in detail how, during the regal period of Rome, these two great nations contended for supremacy on all the shores of the Mediterranean, in Greece even and Asia Minor, in Crete and Cyprus, on the African, Spanish, and Celtic coasts. This struggle did not take place directly on Italian soil, but its effects were deeply and permanently felt in Italy. The fresh energies and more universal endowments of the younger competitor had at first the advantage everywhere. Not only did the Hellenes rid themselves of the Phoenician factories in their own European and Asiatic homes, but they dislodged the Phoenicians also from Crete and Cyprus, gained a footing in Egypt and Cyrene, and possessed themselves of Lower Italy and the larger eastern half of the island of Sicily. On all hands the small trading stations of the Phoenicians gave way before the more energetic colonization of the Greeks. Selinus (126) and Agrigentum (174) were founded in western Sicily; the more remote western sea was traversed, Massilia was built on the Celtic coast (about 150), and the shores of Spain were explored, by the bold Phocaeans from Asia Minor. But about the middle of the second century the progress of Hellenic colonization was suddenly arrested; and there is no doubt that the cause of this arrest was the contemporary rapid rise of Carthage, the most powerful of the Phoenician cities in Libya—a rise manifestly due to the danger with which Hellenic aggression threatened the whole Phoenician race. If the nation which had opened up maritime commerce on the Mediterranean had been already dislodged by its younger rival from the sole command of the western half, from the possession of both lines of communication between the eastern and western basins of the Mediterranean, and from the monopoly of the carrying trade between east and west, the sovereignty at least of the seas to the west of Sardinia and Sicily might still be saved for the Orientals; and to its maintenance Carthage applied all the tenacious and circumspect energy

peculiar to the Aramaean race. Phoenician colonization and Phoenician resistance assumed an entirely different character. The earlier Phoenician settlements, such as those in Sicily described by Thucydides, were mercantile factories: Carthage subdued extensive territories with numerous subjects and powerful fortresses. Hitherto the Phoenician settlements had stood isolated in opposition to the Greeks; now the powerful Libyan city centralized within its sphere the whole warlike resources of those akin to it in race with a vigour to which the history of the Greeks can produce nothing parallel.

Phoenicians and Italians in Opposition to the Hellenes

Perhaps the element in this reaction which exercised the most momentous influence in the sequel was the close relation into which the weaker Phoenicians entered with the natives of Sicily and Italy in order to resist the Hellenes. When the Cnidians and Rhodians made an attempt about 175 to establish themselves at Lilybaeum, the centre of the Phoenician settlements in Sicily, they were expelled by the natives—the Elymi of Segeste—in concert with the Phoenicians. When the Phocaeans settled about 217 at Alalia (Aleria) in Corsica opposite to Caere, there appeared for the purpose of expelling them a combined fleet of Etruscans and Carthaginians, numbering a hundred and twenty sail; and although in the naval battle that ensued—one of the earliest known in history—the fleet of the Phocaeans, which was only half as strong, claimed the victory, the Carthaginians and Etruscans gained the object which they had in view in the attack; the Phocaeans abandoned Corsica, and preferred to settle at Hyde (Velia) on the less exposed coast of Lucania. A treaty between Etruria and Carthage not only established regulations regarding the import of goods and the giving due effect to rights, but included also an alliance-in-arms (—*summachia*—), the serious import of which is shown by that very battle of

Alalia. It is a significant indication of the position of the Caerites, that they stoned the Phocaeans in the market at Caere and then sent an embassy to the Delphic Apollo to atone for the crime.

Latium did not join in these hostilities against the Hellenes; on the contrary, we find friendly relations subsisting in very ancient times between the Romans and the Phocaeans in Velia as well as in Massilia, and the Ardeates are even said to have founded in concert with the Zacynthians a colony in Spain, the later Saguntum. Much less, however, did the Latins range themselves on the side of the Hellenes: the neutrality of their position in this respect is attested by the close relations maintained between Caere and Rome, as well as by the traces of ancient intercourse between the Latins and the Carthaginians. It was through the medium of the Hellenes that the Cannanite race became known to the Romans, for, as we have already seen, (7) they always designated it by its Greek name; but the fact that they did not borrow from the Greeks either the name for the city of Carthage(8) or the national name of the -Afri-, (9) and the circumstance that among the earlier Romans Tyrian wares were designated by the adjective -Sarranus-, (10) which in like manner precludes the idea of Greek intervention, demonstrate—what the treaties of a later period concur in proving—the direct commercial intercourse anciently subsisting between Latium and Carthage.

The combined power of the Italians and Phoenicians actually succeeded in substantially retaining the western half of the Mediterranean in their hands. The northwestern portion of Sicily, with the important ports of Soluntum and Panormus on the north coast, and Motya at the point which looks towards Africa, remained in the direct or indirect possession of the Carthaginians. About the age of Cyrus and Croesus, just when the wise Bias was endeavouring to induce the Ionians to emigrate in a body from Asia Minor and settle in Sardinia (about 200), the Carthaginian general Malchus

anticipated them, and subdued a considerable portion of that important island by force of arms; half a century later, the whole coast of Sardinia appears in the undisputed possession of the Carthaginian community. Corsica on the other hand, with the towns of Alalia and Nicaea, fell to the Etruscans, and the natives paid to these tribute of the products of their poor island, pitch, wax, and honey. In the Adriatic sea, moreover, the allied Etruscans and Carthaginians ruled, as in the waters to the west of Sicily and Sardinia. The Greeks, indeed, did not give up the struggle. Those Rhodians and Cnidians, who had been driven out of Lilybaeum, established themselves on the islands between Sicily and Italy and founded there the town of Lipara (175). Massilia flourished in spite of its isolation, and soon monopolized the trade of the region from Nice to the Pyrenees. At the Pyrenees themselves Rhoda (now Rosas) was established as an offset from Lipara, and it is affirmed that Zacynthians settled in Saguntum, and even that Greek dynasts ruled at Tingis (Tangiers) in Mauretania. But the Hellenes no longer gained ground; after the foundation of Agrigentum they did not succeed in acquiring any important additions of territory on the Adriatic or on the western sea, and they remained excluded from the Spanish waters as well as from the Atlantic Ocean. Every year the Liparaeans had their conflicts with the Tuscan "sea-robbers," and the Carthaginians with the Massiliots, the Cyrenaeans, and above all with the Sicilian Greeks; but no results of permanent moment were on either side achieved, and the issue of struggles which lasted for centuries was, on the whole, the simple maintenance of the -status quo-.

Thus Italy was—if but indirectly—indebted to the Phoenicians for the exemption of at least her central and northern provinces from colonization, and for the counter-development of a national maritime power there, especially in Etruria. But there are not wanting indications that the Phoenicians already found it worth while to manifest that jealousy which is usually associated with naval domination, if not in reference to their Latin

allies, at any rate in reference to their Etruscan confederates, whose naval power was greater. The statement as to the Carthaginians having prohibited the sending forth of an Etruscan colony to the Canary islands, whether true or false, reveals the existence of a rivalry of interests in the matter.

Notes for Book I Chapter X

1. Whether the name of Graeci was originally associated with the interior of Epirus and the region of Dodona, or pertained rather to the Aetolians who perhaps earlier reached the western sea, may be left an open question; it must at a remote period have belonged to a prominent stock or aggregate of stocks of Greece proper and have passed over from these to the nation as a whole. In the *Eoai* of Hesiod it appears as the older collective name for the nation, although it is manifest that it is intentionally thrust aside and subordinated to that of Hellenes. The latter does not occur in Homer, but, in addition to Hesiod, it is found in Archilochus about the year 50, and it may very well have come into use considerably earlier (Duncker, *Gesch. d. Alt.* iii. 18, 556). Already before this period, therefore, the Italians were so widely acquainted with the Greeks that that name, which early fell into abeyance in Hellas, was retained by them as a collective name for the Greek nation, even when the latter itself adopted other modes of self-designation. It was withal only natural that foreigners should have attained to an earlier and clearer consciousness of the fact that the Hellenic stocks belonged to one race than the latter themselves, and that hence the collective designation should have become more definitely fixed among the former than with the latter—not the less, that it was not taken directly from the well-known Hellenes who dwelt the nearest to them. It is difficult to see how we can reconcile with this fact the statement that a century before the

foundation of Rome Italy was still quite unknown to the Greeks of Asia Minor. We shall speak of the alphabet below; its history yields entirely similar results. It may perhaps be characterized as a rash step to reject the statement of Herodotus respecting the age of Homer on the strength of such considerations; but is there no rashness in following implicitly the guidance of tradition in questions of this kind?

2. Thus the three old Oriental forms of the —"id:i" (—"id:S"), —"id:l" (—"id:Λ") and —"id:r" (—"id:P"), for which as apt to be confounded with the forms of the —"id:s", —"id:g", and —"id:p" the signs —"id:I") —"id:L" —"id:R") were early proposed to be substituted, remained either in exclusive or in very preponderant use among the Achaean colonies, while the other Greeks of Italy and Sicily without distinction of race used exclusively or at any rate chiefly the more recent forms.

3. E. g. the inscription on an earthen vase of Cumae runs thus:—
Tataies emi lequthos Fos d' an me klephsei thuphlos estai—.

4. Among Greek writers this Tyrrhene legend of Odysseus makes its earliest appearance in the Theogony of Hesiod, in one of its more recent sections, and thereafter in authors of the period shortly before Alexander, Ephorus (from whom the so-called Scymnus drew his materials), and the writer known as Scylax. The first of these sources belongs to an age when Italy was still regarded by the Greeks as a group of islands, and is certainly therefore very old; so that the origin of these legends may, on the whole, be confidently placed in the regal period of Rome.

5. I. X. Phoenicians in Italy, I. X. Relations of the Western Italians to the Greeks

6. I. X. Relations of Italy with Other Lands

7. I. X. Phoenicians in Italy

8. The Phoenician name was Karthada; the Greek, Karchedon; the Roman, Cartago.

9. The name -Afri-, already current in the days of Ennius and Cato (comp. -Scipio Africanus-), is certainly not Greek, and is most probably cognate with that of the Hebrews.

10. The adjective -Sarranus- was from early times applied by the Romans to the Tyrian purple and the Tyrian flute; and -Sarranus- was in use also as a surname, at least from the time of the war with Hannibal. -Sarra-, which occurs in Ennius and Plautus as the name of the city, was perhaps formed from -Sarranus-, not directly from the native name -Sor-. The Greek form, -Tyrus-, -Tyrius-, seems not to occur in any Roman author anterior to Afranius (ap. Fest. p. 355 M.). Compare Movers, *Phon.* ii. x, 174.

CHAPTER XI

Law and Justice

Modern Character of Italian Culture

History, as such, cannot reproduce the life of a people in the infinite variety of its details; it must be content with exhibiting the development of that life as a whole. The doings and dealings, the thoughts and imaginings of the individual, however strongly they may reflect the characteristics of the national mind, form no part of history. Nevertheless it seems necessary to make some attempt to indicate—only in the most general outlines—the features of individual life in the case of those earlier ages which are, so far as history is concerned, all but lost in oblivion; for it is in this field of research alone that we acquire some idea of the breadth of the gulf which separates our modes of thinking and feeling from those of the civilized nations of antiquity. Tradition, with its confused mass of national names and its dim legends, resembles withered leaves which with difficulty we recognize to have once been green. Instead of threading that dreary maze and attempting to classify those shreds of humanity, the Chones and Oenotrians, the Siculi and the Pelasgi, it will be more to the purpose to inquire how the real life of the people in ancient Italy expressed itself in

their law, and their ideal life in religion; how they farmed and how they traded; and whence the several nations derived the art of writing and other elements of culture. Scanty as our knowledge in this respect is in reference to the Roman people and still more so in reference to the Sabellians and Etruscans, even the slight and very defective information which is attainable will enable the mind to associate with these names some more or less clear glimpse of the once living reality. The chief result of such a view (as we may here mention by way of anticipation) may be summed up in saying that fewer traces comparatively of the primitive state of things have been preserved in the case of the Italians, and of the Romans in particular, than in the case of any other Indo-Germanic race. The bow and arrow, the war-chariot, the incapacity of women to hold property, the acquiring of wives by purchase, the primitive form of burial, blood-revenge, the clan-constitution conflicting with the authority of the community, a vivid natural symbolism—all these, and numerous phenomena of a kindred character, must be presumed to have lain at the foundation of civilization in Italy as well as elsewhere; but at the epoch when that civilization comes clearly into view they have already wholly disappeared, and only the comparison of kindred races informs us that such things once existed. In this respect Italian history begins at a far later stage of civilization than e.g. the Greek or the Germanic, and from the first it exhibits a comparatively modern character.

The laws of most of the Italian stocks are lost in oblivion. Some information regarding the law of the Latin land alone has survived in Roman tradition.

Jurisdiction

All jurisdiction was vested in the community or, in other words, in the king, who administered justice or "command" (-ius-) on the "days of

utterance" (-dies fasti-) at the "judgment platform" (-tribunal-) in the place of public assembly, sitting on the "chariot-seat" (-sella curulis-);(1) by his side stood his "messengers" (-lictiores-), and before him the person accused or the "parties" (-rei-). No doubt in the case of slaves the decision lay primarily with the master, and in the case of women with the father, husband, or nearest male relative;(2) but slaves and women were not primarily reckoned as members of the community. Over sons and grandsons who were -in potestate- the power of the -pater familias- subsisted concurrently with the royal jurisdiction; that power, however, was not a jurisdiction in the proper sense of the term, but simply a consequence of the father's inherent right of property in his children. We find no traces of any jurisdiction appertaining to the clans as such, or of any judicature at all that did not derive its authority from the king. As regards the right of self-redress and in particular the avenging of blood, we still find perhaps in legends an echo of the original principle that a murderer, or any one who should illegally protect a murderer, might justifiably be slain by the kinsmen of the person murdered; but these very legends characterize this principle as objectionable,(3) and from their statements blood-revenge would appear to have been very early suppressed in Rome through the energetic assertion of the authority of the community. In like manner we perceive in the earliest Roman law no trace of that influence which under the oldest Germanic institutions the comrades of the accused and the people present were entitled to exercise over the pronouncing of judgment; nor do we find in the former any evidence of the usage so frequent in the latter, by which the mere will and power to maintain a claim with arms in hand were treated as judicially necessary or at any rate admissible.

Crimes

Judicial procedure took the form of a public or a private process, according as the king interposed of his own motion or only when appealed to by the injured party. The former course was taken only in cases which involved a breach of the public peace. First of all, therefore, it was applicable in the case of public treason or communion with the public enemy (-proditio-), and in that of violent rebellion against the magistracy (-perduellio-). But the public peace was also broken by the foul murderer (-parricida-), the sodomite, the violator of a maiden's or matron's chastity, the incendiary, the false witness, by those, moreover, who with evil spells conjured away the harvest, or who without due title cut the corn by night in the field entrusted to the protection of the gods and of the people; all of these were therefore dealt with as though they had been guilty of high treason. The king opened and conducted the process, and pronounced sentence after conferring with the senators whom he had called in to advise with him. He was at liberty, however, after he had initiated the process, to commit the further handling and the adjudication of the matter to deputies who were, as a rule, taken from the senate. The later extraordinary deputies, the two men for adjudicating on rebellion (-duoviri perduellionis-) and the later standing deputies the "trackers of murder" (-quaestores parricidii-) whose primary duty was to search out and arrest murderers, and who therefore exercised in some measure police functions, do not belong to the regal period, but may probably have sprung out of, or been suggested by, certain of its institutions. Imprisonment while the case was undergoing investigation was the rule; the accused might, however, be released on bail. Torture to compel confession was only applied to slaves. Every one convicted of having broken the public peace expiated his offence with his life. The modes of inflicting capital punishment were various: the false witness, for example, was hurled from the stronghold-rock; the harvest-thief was hanged; the incendiary was burnt. The king could not grant pardon, for that power was vested in the community alone; but the king might grant or

refuse to the condemned permission to appeal for mercy (-provocatio-). In addition to this, the law recognized an intervention of the gods in favour of the condemned criminal. He who had made a genuflection before the priest of Jupiter might not be scourged on the same day; any one under fetters who set foot in his house had to be released from his bonds; and the life of a criminal was spared, if on his way to execution he accidentally met one of the sacred virgins of Vesta.

Punishment of Offenses against Order

The king inflicted at his discretion fines payable to the state for trespasses against order and for police offences; they consisted in a definite number (hence the name -multa-) of cattle or sheep. It was in his power also to pronounce sentence of scourging.

Law of Private Offenses

In all other cases, where the individual alone was injured and not the public peace, the state only interposed upon the appeal of the party injured, who caused his opponent, or in case of need by laying violent hands on him compelled him, to appear personally along with himself before the king. When both parties had appeared and the plaintiff had orally stated his demand, while the defendant had in similar fashion refused to comply with it, the king might either investigate the cause himself or have it disposed of by a deputy acting in his name. The regular form of satisfaction for such an injury was a compromise arranged between the injurer and the injured; the state only interfered supplementarily, when the aggressor did not satisfy the party aggrieved by an adequate expiation (-poena-), when any one had his property detained or his just demand was not fulfilled.

Theft

Under what circumstances during this epoch theft was regarded as at all expiable, and what in such an event the person injured was entitled to demand from the thief, cannot be ascertained. But the injured party with reason demanded heavier compensation from a thief caught in the very act than from one detected afterwards, since the feeling of exasperation which had to be appeased was more vehement in the case of the former than in that of the latter. If the theft appeared incapable of expiation, or if the thief was not in a position to pay the value demanded by the injured party and approved by the judge, he was by the judge assigned as a bondsman to the person from whom he had stolen.

Injuries

In cases of damage (-iniuria-) to person or to property, where the injury was not of a very serious description, the aggrieved party was probably obliged unconditionally to accept compensation; if, on the other hand, any member was lost in consequence of it, the maimed person could demand eye for eye and tooth for tooth.

Property

Since the arable land among the Romans was long cultivated upon the system of joint possession and was not distributed until a comparatively late age, the idea of property was primarily associated not with immoveable estate, but with "estate in slaves and cattle" (-familia pecuniaque-). It was not the right of the stronger that was regarded as the foundation of a title to

it; on the contrary, all property was considered as conferred by the community upon the individual burgess for his exclusive possession and use; and therefore it was only the burgess, and such as the community accounted in this respect as equal to burgesses, that were capable of holding property. All property passed freely from hand to hand. The Roman law made no substantial distinction between moveable and immoveable estate (from the time that the latter was regarded as private property at all), and recognized no absolute vested interest of children or other relatives in the paternal or family property. Nevertheless it was not in the power of the father arbitrarily to deprive his children of their right of inheritance, because he could neither dissolve the paternal power nor execute a testament except with consent of the whole community, which might be, and certainly under such circumstances often was, refused. In his lifetime no doubt the father might make dispositions disadvantageous to his children; for the law was sparing of personal restrictions on the proprietor and allowed, upon the whole, every grown-up man freely to dispose of his property. The regulation, however, under which he who alienated his hereditary property and deprived his children of it was placed by order of the magistrate under guardianship like a lunatic, was probably as ancient as the period when the arable land was first divided and thereby private property generally acquired greater importance for the commonwealth. In this way the two antagonistic principles—the unlimited right of the owner to dispose of his own, and the preservation of the family property unbroken—were as far as possible harmonized in the Roman law. Permanent restrictions on property were in no case allowed, with the exception of servitudes such as those indispensable in husbandry. Heritable leases and ground-rents charged upon property could not legally exist. The law as little recognized mortgaging; but the same purpose was served by the immediate delivery of the property in pledge to the creditor as if he were its purchaser, who thereupon gave his word of honour (-fiducia-) that he would not

alienate the object pledged until the payment fell due, and would restore it to his debtor when the sum advanced had been repaid.

Contracts

Contracts concluded between the state and a burgess, particularly the obligation given by those who became sureties for a payment to the state (-*praevides*-, -*praedes*-), were valid without further formality. On the other hand, contracts between private persons under ordinary circumstances gave no claim for legal aid on the part of the state. The only protection of the creditor was the debtor's word of honour which was held in high esteem after the wont of merchants, and possibly also, in those frequent cases where an oath had been added, the fear of the gods who avenged perjury. The only contracts legally actionable were those of betrothal (the effect of which was that the father, in the event of his failing to give the promised bride, had to furnish satisfaction and compensation), of purchase (-*mancipatio*-), and of loan (-*nexum*-). A purchase was held to be legally concluded when the seller delivered the article purchased into the hand of the buyer (-*mancipare*-) and the buyer at the same time paid to the seller the stipulated price in presence of witnesses. This was done, after copper superseded sheep and cattle as the regular standard of value, by weighing out the stipulated quantity of copper in a balance adjusted by a neutral person.⁽⁴⁾ These conditions having been complied with, the seller had to answer for his being the owner, and in addition seller and purchaser had to fulfil every stipulation specially agreed on; the party failing to do so made reparation to the other, just as if he had deprived him of the article in question. But a purchase only founded an action in the event of its being a transaction for ready money: a purchase on credit neither gave nor took away the right of property, and constituted no ground of action. A loan was negotiated in a similar way; the creditor weighed over to the debtor in

presence of witnesses the stipulated quantity of copper under the obligation (-nexum-) of repayment. In addition to the capital the debtor had to pay interest, which under ordinary circumstances probably amounted to ten per cent per annum.⁽⁵⁾ The repayment of the loan took place, when the time came, with similar forms.

Private Process

If a debtor to the state did not fulfil his obligations, he was without further ceremony sold with all that he had; the simple demand on the part of the state was sufficient to establish the debt. If on the other hand a private person informed the king of any violation of his property (-vindiciae-) or if repayment of the loan received did not duly take place, the procedure depended on whether the facts relating to the cause needed to be established, which was ordinarily the case with actions as to property, or were already clearly apparent, which in the case of actions as to loans could easily be accomplished according to the current rules of law by means of the witnesses. The establishment of the facts assumed the form of a wager, in which each party made a deposit (-sacramentum-) against the contingency of his being worsted; in important causes when the value involved was greater than ten oxen, a deposit of five oxen, in causes of less amount, a deposit of five sheep. The judge then decided who had gained the wager, whereupon the deposit of the losing party fell to the priests for behoof of the public sacrifices. The party who lost the wager and allowed thirty days to elapse without giving due satisfaction to his opponent, and the party whose obligation to pay was established from the first—consequently, as a rule, the debtor who had got a loan and had not witnesses to attest its repayment—became liable to proceedings in execution "by laying on of hands" (-manus iniectio-); the plaintiff seized him wherever he found him, and brought him to the bar of the judge simply to satisfy the acknowledged

debt. The party seized was not allowed to defend himself; a third person might indeed intercede for him and represent this act of violence as unwarranted (-vindex-), in which case the proceedings were stayed; but such an intercession rendered the intercessor personally responsible, for which reason the proletarian could not be intercessor for the tribute-paying burgess. If neither satisfaction nor intercession took place, the king adjudged the party seized to his creditor, so that the latter could lead him away and keep him like a slave. After the expiry of sixty days during which the debtor had been three times exposed in the market-place and proclamation had been made to ascertain whether any one would have compassion upon him, if these steps were without effect, his creditors had the right to put him to death and to divide his carcase, or to sell him with his children and his effects into foreign slavery, or to keep him at home in a slave's stead; for such an one could not by the Roman law, so long as he remained within the bounds of the Roman community, become completely a slave.(6) Thus the Roman community protected every man's estate and effects with unrelenting rigour as well from the thief and the injurer, as from the unauthorized possessor and the insolvent debtor.

Guardianship

Protection was in like manner provided for the estate of persons not capable of bearing arms and therefore not capable of protecting their own property, such as minors and lunatics, and above all for that of women; in these cases the nearest heirs were called to undertake the guardianship.

Law of Inheritance

After a man's death his property fell to the nearest heirs: in the division all who were equal in proximity of relationship—women included—shared alike, and the widow along with her children was admitted to her proportional share. A dispensation from the legal order of succession could only be granted by the assembly of the people; previous to which the consent of the priests had to be obtained on account of the ritual obligations attaching to succession. Such dispensations appear nevertheless to have become at an early period very frequent. In the event of a dispensation not being procured, the want of it might be in some measure remedied by means of the completely free control which every one had over his property during his lifetime. His whole property was transferred to a friend, who distributed it after death according to the wishes of the deceased.

Manumission

Manumission was unknown to the law of very early times. The owner might indeed refrain from exercising his proprietary rights; but this did not cancel the existing impossibility of master and slave coming under mutual obligations; still less did it enable the slave to acquire, in relation to the community, the rights of a guest or of a burgess. Accordingly manumission must have been at first simply -de facto-, not -de jure-; and the master cannot have been debarred from the possibility of again at pleasure treating the freedman as a slave. But there was a departure from this principle in cases where the master came under obligation not merely towards the slave, but towards the community, to leave him in possession of freedom. There was no special legal form, however, for thus binding the master—the best proof that there was at first no such thing as a manumission,—but those methods were employed for this object which the law otherwise presented, testament, action, or census. If the master had either declared his slave free when executing his last will in the assembly of the people, or had allowed

his slave to claim freedom in his own presence before a judge or to get his name inscribed in the valuation-roll, the freedman was regarded not indeed as a burgess, but as personally free in relation to his former master and his heirs, and was accordingly looked upon at first as a client, and in later times as a plebeian.(7)

The emancipation of a son encountered greater difficulties than that of a slave; for while the relation of master to slave was accidental and therefore capable of being dissolved at will, the father could never cease to be father. Accordingly in later times the son was obliged, in order to get free from the father, first to enter into slavery and then to be set free out of this latter state; but in the period now before us no emancipation of sons can have as yet existed.

Clients and Foreigners

Such were the laws under which burgesses and clients lived in Rome. Between these two classes, so far as we can see, there subsisted from the beginning complete equality of private rights. The foreigner on the other hand, if he had not submitted to a Roman patron and thus lived as a client, was beyond the pale of the law both in person and in property. Whatever the Roman burgess took from him was as rightfully acquired as was the shellfish, belonging to nobody, which was picked up by the sea-shore; but in the case of ground lying beyond the Roman bounds, while the Roman burgess might take practical possession, he could not be regarded as in a legal sense its proprietor; for the individual burgess was not entitled to advance the bounds of the community. The case was different in war: whatever the soldier who was fighting in the ranks of the levy gained, whether moveable or immoveable property, fell not to him, but to the state,

and accordingly here too it depended upon the state whether it would advance or contract its bounds.

Exceptions from these general rules were created by special state-treaties, which secured certain rights to the members of foreign communities within the Roman state. In particular, the perpetual league between Rome and Latium declared all contracts between Romans and Latins to be valid in law, and at the same time instituted in their case an accelerated civil process before sworn "recoverers" (-recipitatores-). As, contrary to Roman usage, which in other instances committed the decision to a single judge, these always sat in plural number and that number uneven, they are probably to be conceived as a court for the cognizance of commercial dealings, composed of arbiters from both nations and an umpire. They sat in judgment at the place where the contract was entered into, and were obliged to have the process terminated at latest in ten days. The forms, under which the dealings between Romans and Latins were conducted, were of course the general forms which regulated the mutual dealings of patricians and plebeians; for the -mancipatio- and the -nexum- were originally not at all formal acts, but the significant expression of legal ideas which held a sway at least as extensive as the range of the Latin language.

Dealings with countries strictly foreign were carried on in a different fashion and by means of other forms. In very early times treaties as to commerce and legal redress must have been entered into with the Caerites and other friendly peoples, and must have formed the basis of the international private law (-ius gentium-), which gradually became developed in Rome alongside of the law of the land. An indication of the formation of such a law is found in the remarkable -mutuum-, "the exchange" (from -mutare- like -dividuus-)—a form of loan, which was not based like the -nexum- upon a binding declaration of the debtor expressly emitted before witnesses, but upon the mere transit of the money from one

hand to another, and which as evidently originated in dealings with foreigners as the -nexum- in business dealings at home. It is accordingly a significant fact that the word reappears in Sicilian Greek as —moiton—; and with this is to be connected the reappearance of the Latin -carcer- in the Sicilian —karkaron—. Since it is philologically certain that both words were originally Latin, their occurrence in the local dialect of Sicily becomes an important testimony to the frequency of the dealings of Latin traders in the island, which led to their borrowing money there and becoming liable to that imprisonment for debt, which was everywhere in the earlier systems of law the consequence of the non-repayment of a loan. Conversely, the name of the Syracusan prison, "stone-quarries" or —latomiaí—, was transferred at an early period to the enlarged Roman state-prison, the -lautumiae-.

Character of the Roman Law

We have derived our outline of these institutions mainly from the earliest record of the Roman common law prepared about half a century after the abolition of the monarchy; and their existence in the regal period, while doubtful perhaps as to particular points of detail, cannot be doubted in the main. Surveying them as a whole, we recognize the law of a far-advanced agricultural and mercantile city, marked alike by its liberality and its consistency. In its case the conventional language of symbols, such as e. g. the Germanic laws exhibit, has already quite disappeared. There is no doubt that such a symbolic language must have existed at one time among the Italians. Remarkable instances of it are to be found in the form of searching a house, wherein the searcher must, according to the Roman as well as the Germanic custom, appear without upper garment merely in his shirt; and especially in the primitive Latin formula for declaring war, in which we meet with two symbols occurring at least also among the Celts and the Germans—the "pure herb" (-herba pura-, Franconian -chrene chruda-) as a

symbol of the native soil, and the singed bloody staff as a sign of commencing war. But with a few exceptions, in which reasons of religion protected the ancient usages—to which class the -confarreatio- as well as the declaration of war by the college of Fetiales belonged—the Roman law, as we know it, uniformly and on principle rejects the symbol, and requires in all cases neither more nor less than the full and pure expression of will. The delivery of an article, the summons to bear witness, the conclusion of marriage, were complete as soon as the parties had in an intelligible manner declared their purpose; it was usual, indeed, to deliver the article into the hand of the new owner, to pull the person summoned as a witness by the ear, to veil the bride's head and to lead her in solemn procession to her husband's house; but all these primitive practices were already, under the oldest national law of the Romans, customs legally worthless. In a way entirely analogous to the setting aside of allegory and along with it of personification in religion, every sort of symbolism was on principle expelled from their law. In like manner that earliest state of things presented to us by the Hellenic as well as the Germanic institutions, wherein the power of the community still contends with the authority of the smaller associations of clans or cantons that are merged in it, is in Roman law wholly superseded; there is no alliance for the vindication of rights within the state, to supplement the state's imperfect aid, by mutual offence and defence; nor is there any serious trace of vengeance for bloodshed, or of the family property restricting the individual's power of disposal. Such institutions must probably at one time have existed among the Italians; traces of them may perhaps be found in particular institutions of ritual, e. g. in the expiatory goat, which the involuntary homicide was obliged to give to the nearest of kin to the slain; but even at the earliest period of Rome which we can conceive this stage had long been transcended. The clan and the family doubtless were not annihilated in the Roman community; but the theoretical as well as the practical omnipotence of the state in its own

sphere was no more limited by them than by the freedom which the state granted and guaranteed to the burgess. The ultimate foundation of law was in all cases the state; freedom was simply another expression for the right of citizenship in its widest sense; all property was based on express or tacit transference by the community to the individual; a contract was valid only so far as the community by its representatives attested it, a testament only so far as the community confirmed it. The provinces of public and private law were definitely and clearly discriminated: the former having reference to crimes against the state, which immediately called for the judgment of the state and always involved capital punishment; the latter having reference to offences against a fellow-burgess or a guest, which were mainly disposed of in the way of compromise by expiation or satisfaction made to the party injured, and were never punished with the forfeit of life, but, at most, with the loss of freedom. The greatest liberality in the permission of commerce and the most rigorous procedure in execution went hand in hand; just as in commercial states at the present day the universal right to draw bills of exchange appears in conjunction with a strict procedure in regard to them. The burgess and the client stood in their dealings on a footing of entire equality; state-treaties conceded a comprehensive equality of rights also to the guest; women were placed completely on a level in point of legal capacity with men, although restricted in action; the boy had scarcely grown up when he received at once the most comprehensive powers in the disposal of his estate, and every one who could dispose at all was as sovereign in his own sphere as was the state in public affairs. A feature eminently characteristic was the system of credit. There did not exist any credit on landed security, but instead of a debt on mortgage the step which constitutes at present the final stage in mortgage-procedure—the delivery of the property from the debtor to the creditor—took place at once. On the other hand personal credit was guaranteed in the most summary, not to say extravagant fashion; for the

lawgiver entitled the creditor to treat his insolvent debtor like a thief, and granted to him in entire legislative earnest what Shylock, half in jest, stipulated for from his mortal enemy, guarding indeed by special clauses the point as to the cutting off too much more carefully than did the Jew. The law could not have more clearly expressed its design, which was to establish at once an independent agriculture free of debt and a mercantile credit, and to suppress with stringent energy all merely nominal ownership and all breaches of fidelity. If we further take into consideration the right of settlement recognized at an early date as belonging to all the Latins,(8) and the validity which was likewise early pronounced to belong to civil marriage,(9) we shall perceive that this state, which made the highest demands on its burgesses and carried the idea of subordinating the individual to the interest of the whole further than any state before or since has done, only did and only could do so by itself removing the barriers to intercourse and unshackling liberty quite as much as it subjected it to restriction. In permission or in prohibition the law was always absolute. As the foreigner who had none to intercede for him was like the hunted deer, so the guest was on a footing of equality with the burgess. A contract did not ordinarily furnish a ground of action, but where the right of the creditor was acknowledged, it was so all-powerful that there was no deliverance for the poor debtor, and no humane or equitable consideration was shown towards him. It seemed as if the law found a pleasure in presenting on all sides its sharpest spikes, in drawing the most extreme consequences, in forcibly obtruding on the bluntest understanding the tyrannic nature of the idea of right. The poetical form and the genial symbolism, which so pleasingly prevail in the Germanic legal ordinances, were foreign to the Roman; in his law all was clear and precise; no symbol was employed, no institution was superfluous. It was not cruel; everything necessary was performed without much ceremony, even the punishment of death; that a free man could not be tortured was a primitive maxim of Roman law, to obtain which other

peoples have had to struggle for thousands of years. Yet this law was frightful in its inexorable severity, which we cannot suppose to have been very greatly mitigated by humanity in practice, for it was really the law of the people; more terrible than Venetian -piombi- and chambers of torture was that series of living entombments which the poor man saw yawning before him in the debtors' towers of the rich. But the greatness of Rome was involved in, and was based upon, the fact that the Roman people ordained for itself and endured a system of law, in which the eternal principles of freedom and of subordination, of property and of legal redress, reigned and still at the present day reign unadulterated and unmodified.

Notes for Book I Chapter XI

1. This "chariot-seat"—philologically no other explanation can well be given (comp. Servius ad Aen. i. 16)—is most simply explained by supposing that the king alone was entitled to ride in a chariot within the city (v. The King)—whence originated the privilege subsequently accorded to the chief magistrate on solemn occasions—and that originally, so long as there was no elevated tribunal, he gave judgment, at the comitium or wherever else he wished, from the chariot-seat.

2. I. V. The Housefather and His Household

3. The story of the death of king Tatius, as given by Plutarch (Rom. 23, 24), viz. that kinsmen of Tatius had killed envoys from Laurentum; that Tatius had refused the complaint of the kinsmen of the slain for redress; that they then put Tatius to death; that Romulus acquitted the murderers of Tatius, on the ground that murder had been expiated by murder; but that, in consequence of the penal judgments of the gods that simultaneously fell

upon Rome and Laurentum, the perpetrators of both murders were in the sequel subjected to righteous punishment—this story looks quite like a historical version of the abolition of blood-revenge, just as the introduction of the -provocatio- lies at the foundation of the myth of the Horatii. The versions of the same story that occur elsewhere certainly present considerable variations, but they seem to be confused or dressed up.

4. The -mancipatio- in its developed form must have been more recent than the Servian reform, as the selection of mancipable objects, which had for its aim the fixing of agricultural property, shows, and as even tradition must have assumed, for it makes Servius the inventor of the balance. But in its origin the -mancipatio- must be far more ancient; for it primarily applies only to objects which are acquired by grasping with the hand, and must therefore in its earliest form have belonged to the epoch when property consisted essentially in slaves and cattle (-familia pecuniaque-). The enumeration of those objects which had to be acquired by -mancipatio-, falls accordingly to be ranked as a Servian innovation; the -mancipatio- itself, and consequently the use also of the balance and of copper, are older. Beyond doubt -mancipatio- was originally the universal form of purchase, and occurred in the case of all articles even after the Servian reform; it was only a misunderstanding of later ages which put upon the rule, that certain articles had to be transferred by -mancipatio-, the construction that these articles only and no others could be so transferred.

5. Viz. for the year of ten months one twelfth part of the capital (-uncia-), which amounts to $8 \frac{1}{3}$ per cent for the year of ten, and 10 per cent for the year of twelve, months.

6. I. VII. Relation of Rome to Latium

7. I. VI. Dependents and Guests.

8. I. VII. Relation of Rome to Latium

9. I. VI. Class of —Metoeci— Subsisting by the Side of the Community

CHAPTER XII

Religion

Roman Religion

The Roman world of gods, as we have already indicated,(1) was a higher counterpart, an ideal reflection, of the earthly Rome, in which the little and the great were alike repeated with painstaking exactness. The state and the clan, the individual phenomenon of nature as well as the individual mental operation, every man, every place and object, every act even falling within the sphere of Roman law, reappeared in the Roman world of gods; and, as earthly things come and go in perpetual flux, the circle of the gods underwent a corresponding fluctuation. The tutelary spirit, which presided over the individual act, lasted no longer than that act itself: the tutelary spirit of the individual man lived and died with the man; and eternal duration belonged to divinities of this sort only in so far as similar acts and similarly constituted men and therefore spirits of a similar kind were ever coming into existence afresh. As the Roman gods ruled over the Roman community, so every foreign community was presided over by its own gods; but sharp as was the distinction between the burgess and non-burgess, between the Roman and the foreign god, both foreign men and foreign

divinities could be admitted by resolution of the community to the freedom of Rome, and when the citizens of a conquered city were transported to Rome, the gods of that city were also invited to take up their new abode there.

Oldest Table of Roman Festivals

We obtain information regarding the original cycle of the gods, as it stood in Rome previous to any contact with the Greeks, from the list of the public and duly named festival-days (-feriae publicae-) of the Roman community, which is preserved in its calendar and is beyond all question the oldest document which has reached us from Roman antiquity. The first place in it is occupied by the gods Jupiter and Mars along with the duplicate of the latter, Quirinus. To Jupiter all the days of full moon (-idus-) are sacred, besides all the wine-festivals and various other days to be mentioned afterwards; the 21st May (-agonalia-) is dedicated to his counterpart, the "bad Jovis" (-Ve-diovis-). To Mars belongs the new-year of the 1st March, and generally the great warrior-festival in this month which derived its very name from the god; this festival, introduced by the horse-racing (-equirria-) on the 27th February, had during March its principal solemnities on the days of the shield-forging (-equirria- or -Mamuralia-, March 14), of the armed dance at the Comitium (-quinquatrus-, March 19), and of the consecration of trumpets (-tubilustrium-, March 23). As, when a war was to be waged, it began with this festival, so after the close of the campaign in autumn there followed a further festival of Mars, that of the consecration of arms (-armilustrium-, October 19). Lastly, to the second Mars, Quirinus, the 17th February was appropriated (-Quirinalia-). Among the other festivals those which related to the culture of corn and wine hold the first place, while the pastoral feasts play a subordinate part. To this class belongs especially the great series of spring-festivals in April, in the course

of which sacrifices were offered on the 15th to Tellus, the nourishing earth (-fordicidia-, sacrifice of the pregnant cow), on the 19th to Ceres, the goddess of germination and growth (-Cerialia-) on the 21st to Pales, the fecundating goddess of the flocks (-Parilia-), on the 23rd to Jupiter, as the protector of the vines and of the vats of the previous year's vintage which were first opened on this day (-Vinalia-), and on the 25th to the bad enemy of the crops, rust (-Robigus-: -Robigalia-). So after the completion of the work of the fields and the fortunate ingathering of their produce double festivals were celebrated in honour of the god and goddess of inbringing and harvest, Censu (from -condere-) and Ops; the first, immediately after the completion of cutting (August 21, -Consualia-; August 25, -Opiconsiva-); and the second, in the middle of winter, when the blessings of the granary are especially manifest (December 15, -Consualia-; December 19, -Opalia-); between these two latter days the thoughtfulness of the old arrangers of the festivals inserted that of seed-sowing (Saturnalia from -Saeturnus- or -Saturnus-, December 17). In like manner the festival of must or of healing (-meditrinalia-, October 11), so called because a healing virtue was attributed to the fresh must, was dedicated to Jovis as the wine-god after the completion of the vintage; the original reference of the third wine-feast (-Vinalia-, August 19) is not clear. To these festivals were added at the close of the year the wolf-festival (-Lupercalia-, February 17) of the shepherds in honour of the good god, Faunus, and the boundary-stone festival (-Terminalia-, February 23) of the husbandmen, as also the summer grove-festival of two days (-Lucaria-, July 19, 21) which may have had reference to the forest-gods (-Silvani-), the fountain-festival (-Fontinalia-, October 13), and the festival of the shortest day, which brings in the new sun (-An-geronalia-, -Divalia-, December 21).

Of not less importance—as was to be expected in the case of the port of Latium—were the mariner-festivals of the divinities of the sea (-

Neptunalia-, July 23), of the harbour (-Portunalia-, August 17), and of the Tiber stream (-Voturnalia-, August 27).

Handicraft and art, on the other hand, are represented in this cycle of the gods only by the god of fire and of smith's work, Vulcanus, to whom besides the day named after him (-Volcanalia-, August 23) the second festival of the consecration of trumpets was dedicated (-tubilustrium-, May 23), and eventually also by the festival of Carmentis (-Carmentalia- January 11, 15), who probably was adored originally as the goddess of spells and of song and only inferentially as protectress of births.

Domestic and family life in general were represented by the festival of the goddess of the house and of the spirits of the storechamber, Vesta and the Penates (-Vestalia-, June 9); the festival of the goddess of birth(2) (-Matralia-, June 11); the festival of the blessing of children, dedicated to Liber and Libera (-Liberalia-, March 17), the festival of departed spirits (-Feralia-, February 21), and the three days' ghost-celebration (-Lemuria-May 9, 11, 13); while those having reference to civil relations were the two—otherwise to us somewhat obscure—festivals of the king's flight (-Regifugium-, February 24) and of the people's flight (-Poplifugia-, July 5), of which at least the last day was devoted to Jupiter, and the festival of the Seven Mounts (-Agonia- or -Septimontium-, December 11). A special day (-agonia-, January 9) was also consecrated to Janus, the god of beginning. The real nature of some other days—that of Furrina (July 25), and that of the Larentalia devoted to Jupiter and Acca Larentia, perhaps a feast of the Lares (December 23)—is no longer known.

This table is complete for the immoveable public festivals; and—although by the side of these standing festal days there certainly occurred from the earliest times changeable and occasional festivals—this document, in what it says as well as in what it omits, opens up to us an insight into a

primitive age otherwise almost wholly lost to us. The union of the Old Roman community and the Hill-Romans had indeed already taken place when this table of festivals was formed, for we find in it Quirinus alongside of Mars; but, when this festival-list was drawn up, the Capitoline temple was not yet in existence, for Juno and Minerva are absent; nor was the temple of Diana erected on the Aventine; nor was any notion of worship borrowed from the Greeks.

Mars and Jupiter

The central object not only of Roman but of Italian worship generally in that epoch when the Italian stock still dwelt by itself in the peninsula was, according to all indications, the god Maurs or Mars, the killing god,⁽³⁾ preeminently regarded as the divine champion of the burgesses, hurling the spear, protecting the flock, and overthrowing the foe. Each community of course possessed its own Mars, and deemed him to be the strongest and holiest of all; and accordingly every "-ver sacrum-" setting out to found a new community marched under the protection of its own Mars. To Mars was dedicated the first month not only in the Roman calendar of the months, which in no other instance takes notice of the gods, but also probably in all the other Latin and Sabellian calendars: among the Roman proper names, which in like manner contain no allusion to any gods, Marcus, Mamercus, and Mamurius appear in prevailing use from very early times; with Mars and his sacred woodpecker was connected the oldest Italian prophecy; the wolf, the animal sacred to Mars, was the badge of the Roman burgesses, and such sacred national legends as the Roman imagination was able to produce referred exclusively to the god Mars and to his duplicate Quirinus. In the list of festivals certainly Father Diovis—a purer and more civil than military reflection of the character of the Roman community—occupies a larger space than Mars, just as the priest of Jupiter

has precedence over the two priests of the god of war; but the latter still plays a very prominent part in the list, and it is even quite likely that, when this arrangement of festivals was established, Jovis stood by the side of Mars like Ahuramazda by the side of Mithra, and that the worship of the warlike Roman community still really centred at this time in the martial god of death and his March festival, while it was not the "care-destroyer" afterwards introduced by the Greeks, but Father Jovis himself, who was regarded as the god of the heart-gladdening wine.

Nature of the Roman Gods

It is no part of our present task to consider the Roman deities in detail; but it is important, even in an historical point of view, to call attention to the peculiar character at once of shallowness and of fervour that marked the Roman faith. Abstraction and personification lay at the root of the Roman as well as of the Hellenic mythology: the Hellenic as well as the Roman god was originally suggested by some natural phenomenon or some mental conception, and to the Roman just as to the Greek every divinity appeared a person. This is evident from their apprehending the individual gods as male or female; from their style of appeal to an unknown deity,—"Be thou god or goddess, man or woman;" and from the deeply cherished belief that the name of the proper tutelary spirit of the community ought to remain for ever unpronounced, lest an enemy should come to learn it and calling the god by his name should entice him beyond the bounds. A remnant of this strongly sensuous mode of apprehension clung to Mars in particular, the oldest and most national form of divinity in Italy. But while abstraction, which lies at the foundation of every religion, elsewhere endeavoured to rise to wider and more enlarged conceptions and to penetrate ever more deeply into the essence of things, the forms of the Roman faith remained at, or sank to, a singularly low level of conception and of insight. While in the case of the

Greek every influential motive speedily expanded into a group of forms and gathered around it a circle of legends and ideas, in the case of the Roman the fundamental thought remained stationary in its original naked rigidity. The religion of Rome had nothing of its own presenting even a remote resemblance to the religion of Apollo investing earthly morality with a halo of glory, to the divine intoxication of Dionysus, or to the Chthonian and mystical worships with their profound and hidden meanings. It had indeed its "bad god" (-Ve-diovis-), its apparitions and ghosts (-lemures-), and afterwards its deities of foul air, of fever, of diseases, perhaps even of theft (-laverna-); but it was unable to excite that mysterious awe after which the human heart has always a longing, or thoroughly to embody the incomprehensible and even the malignant elements in nature and in man, which must not be wanting in religion if it would reflect man as a whole. In the religion of Rome there was hardly anything secret except possibly the names of the gods of the city, the Penates; the real character, moreover, even of these gods was manifest to every one.

The national Roman theology sought on all hands to form distinct conceptions of important phenomena and qualities, to express them in its terminology, and to classify them systematically—in the first instance, according to that division of persons and things which also formed the basis of private law—that it might thus be able in due fashion to invoke the gods individually or by classes, and to point out (-indigitare-) to the multitude the modes of appropriate invocation. Of such notions, the products of outward abstraction—of the homeliest simplicity, sometimes venerable, sometimes ridiculous—Roman theology was in substance made up. Conceptions such as sowing (-saeturnus-) and field-labour (-ops-) ground (-tellus-) and boundary-stone (-terminus-), were among the oldest and most sacred of Roman divinities. Perhaps the most peculiar of all the forms of deity in Rome, and probably the only one for whose worship there was devised an effigy peculiarly Italian, was the double-headed lanus; and yet it was simply

suggestive of the idea so characteristic of the scrupulous spirit of Roman religion, that at the commencement of every act the "spirit of opening" should first be invoked, while it above all betokened the deep conviction that it was as indispensable to combine the Roman gods in sets as it was necessary that the more personal gods of the Hellenes should stand singly and apart.(4) Of all the worships of Rome that which perhaps had the deepest hold was the worship of the tutelary spirits that presided in and over the household and the storechamber: these were in public worship Vesta and the Penates, in family worship the gods of forest and field, the Silvani, and above all the gods of the household in its strict sense, the Lases or Lares, to whom their share of the family meal was regularly assigned, and before whom it was, even in the time of Cato the Elder, the first duty of the father of the household on returning home to perform his devotions. In the ranking of the gods, however, these spirits of the house and of the field occupied the lowest rather than the highest place; it was—and it could not be otherwise with a religion which renounced all attempts to idealize—not the broadest and most general, but the simplest and most individual abstraction, in which the pious heart found most nourishment.

This indifference to ideal elements in the Roman religion was accompanied by a practical and utilitarian tendency, as is clearly enough apparent in the table of festivals which has been already explained. Increase of substance and of prosperity by husbandry and the rearing of flocks and herds, by seafaring and commerce—this was what the Roman desired from his gods; and it very well accords with this view, that the god of good faith (-deus fidius-), the goddess of chance and good luck (-fors fortuna-), and the god of traffic (-mercurius-), all originating out of their daily dealings, although not occurring in that ancient table of festivals, appear very early as adored far and near by the Romans. Strict frugality and mercantile speculation were rooted in the Roman character too deeply not to find their thorough reflection in its divine counterpart.

Spirits

Respecting the world of spirits little can be said. The departed souls of mortal men, the "good" (-manes-) continued to exist as shades haunting the spot where the body reposed (-dii inferi-), and received meat and drink from the survivors. But they dwelt in the depths beneath, and there was no bridge that led from the lower world either to men ruling on earth or upward to the gods above. The hero-worship of the Greeks was wholly foreign to the Romans, and the late origin and poor invention of the legend as to the foundation of Rome are shown by the thoroughly unRoman transformation of king Romulus into the god Quirinus. Numa, the oldest and most venerable name in Roman tradition, never received the honours of a god in Rome as Theseus did in Athens.

Priests

The most ancient priesthoods in the community bore reference to Mars; especially the priest of the god of the community, nominated for life, "the kindler of Mars" (-flamen Martialis-) as he was designated from presenting burnt-offerings, and the twelve "leapers" (-salii-), a band of young men who in March performed the war-dance in honour of Mars and accompanied it by song. We have already explained(5) how the amalgamation of the Hill-community with that of the Palatine gave rise to the duplication of the Roman Mars, and thereby to the introduction of a second priest of Mars—the -flamen Quirinalis- —and a second guild of dancers—the -salii collini-.

To these were added other public worships (some of which probably had an origin far earlier than that of Rome), for which either single priests were appointed—as those of Carmentis, of Vulcanus, of the god of the harbour

and the river—or the celebration of which was committed to particular colleges or clans in name of the people. Such a college was probably that of the twelve "field-brethren" (-fratres arvales-) who invoked the "creative goddess" (-dea dia-) in May to bless the growth of the seed; although it is very doubtful whether they already at this period enjoyed that peculiar consideration which we find subsequently accorded to them in the time of the empire. These were accompanied by the Titian brotherhood, which had to preserve and to attend to the distinctive -cultus- of the Roman Sabines,(6) and by the thirty "curial kindlers" (-flamines curiales-), instituted for the hearth of the thirty curies. The "wolf festival" (-lupercalia-) already mentioned was celebrated for the protection of the flocks and herds in honour of the "favourable god" (-faunus-) by the Quinctian clan and the Fabii who were associated with them after the admission of the Hill-Romans, in the month of February—a genuine shepherds' carnival, in which the "Wolves" (-luperci-) jumped about naked with a girdle of goatskin, and whipped with thongs those whom they met. In like manner the community may be conceived as represented and participating in the case of other gentile worships.

To this earliest worship of the Roman community new rites were gradually added. The most important of these worships had reference to the city as newly united and virtually founded afresh by the construction of the great wall and stronghold. In it the highest and best lovis of the Capitol—that is, the genius of the Roman people—was placed at the head of all the Roman divinities, and his "kindler" thenceforth appointed, the -flamen Dialis-, formed in conjunction with the two priests of Mars the sacred triad of high-priests. Contemporaneously began the -cultus- of the new single city-hearth—Vesta—and the kindred -cultus- of the Penates of the community.(7) Six chaste virgins, daughters as it were of the household of the Roman people, attended to that pious service, and had to maintain the wholesome fire of the common hearth always blazing as an example(8) and

an omen to the burgesses. This worship, half-domestic, half-public, was the most sacred of all in Rome, and it accordingly was the latest of all the heathen worships there to give way before the ban of Christianity. The Aventine, moreover, was assigned to Diana as the representative of the Latin confederacy,(9) but for that very reason no special Roman priesthood was appointed for her; and the community gradually became accustomed to render definite homage to numerous other deified abstractions by means of general festivals or by representative priesthoods specially destined for their service; in particular instances—such as those of the goddess of flowers (-Flora-) and of fruits (-Pomona-)—it appointed also special -flamines-, so that the number of these was at length fifteen. But among them they carefully distinguished those three "great kindlers" (-flamines maiores-), who down to the latest times could only be taken from the ranks of the old burgesses, just as the old incorporations of the Palatine and Quirinal -Salii- always asserted precedence over all the other colleges of priests. Thus the necessary and stated observances due to the gods of the community were entrusted once for all by the state to fixed colleges or regular ministers; and the expense of sacrifices, which was presumably not inconsiderable, was covered partly by the assignation of certain lands to particular temples, partly by the fines.(10)

It cannot be doubted that the public worship of the other Latin, and presumably also of the Sabellian, communities was essentially similar in character. At any rate it can be shown that the Flamines, Salii, Luperci, and Vestales were institutions not special to Rome, but general among the Latins, and at least the first three colleges appear to have been formed in the kindred communities independently of the Roman model.

Lastly, as the state made arrangements for the cycle of its gods, so each burgess might make similar arrangements within his individual sphere, and

might not only present sacrifices, but might also consecrate set places and ministers, to his own divinities.

Colleges of Sacred Lore

There was thus enough of priesthood and of priests in Rome. Those, however, who had business with a god resorted to the god, and not to the priest. Every suppliant and inquirer addressed himself directly to the divinity—the community of course by the king as its mouthpiece, just as the -curia- by the -curio- and the -equites- by their colonels; no intervention of a priest was allowed to conceal or to obscure this original and simple relation. But it was no easy matter to hold converse with a god. The god had his own way of speaking, which was intelligible only to the man acquainted with it; but one who did rightly understand it knew not only how to ascertain, but also how to manage, the will of the god, and even in case of need to overreach or to constrain him. It was natural, therefore, that the worshipper of the god should regularly consult such men of skill and listen to their advice; and thence arose the corporations or colleges of men specially skilled in religious lore, a thoroughly national Italian institution, which had a far more important influence on political development than the individual priests and priesthoods. These colleges have been often, but erroneously, confounded with the priesthoods. The priesthoods were charged with the worship of a specific divinity; the skilled colleges, on the other hand, were charged with the preservation of traditional rules regarding those more general religious observances, the proper fulfilment of which implied a certain amount of knowledge and rendered it necessary that the state in its own interest should provide for the faithful transmission of that knowledge. These close corporations supplying their own vacancies, of course from the ranks of the burgesses, became in this way the depositaries of skilled arts and sciences.

Augurs—Pontifices

Under the Roman constitution and that of the Latin communities in general there were originally but two such colleges; that of the augurs and that of the Pontifices.(11)

The six "bird-carriers" (-augures-) were skilled in interpreting the language of the gods from the flight of birds; an art which was prosecuted with great earnestness and reduced to a quasi-scientific system. The six "bridge-builders" (-Pontifices-) derived their name from their function, as sacred as it was politically important, of conducting the building and demolition of the bridge over the Tiber. They were the Roman engineers, who understood the mystery of measures and numbers; whence there devolved upon them also the duty of managing the calendar of the state, of proclaiming to the people the time of new and full moon and the days of festivals, and of seeing that every religious and every judicial act took place on the right day. As they had thus an especial supervision of all religious observances, it was to them in case of need—on occasion of marriage, testament, and -adrogatio- —that the preliminary question was addressed, whether the business proposed did not in any respect offend against divine law; and it was they who fixed and promulgated the general exoteric precepts of ritual, which were known under the name of the "royal laws." Thus they acquired (although not probably to the full extent till after the abolition of the monarchy) the general oversight of Roman worship and of whatever was connected with it—and what was there that was not so connected? They themselves described the sum of their knowledge as "the science of things divine and human." In fact the rudiments of spiritual and temporal jurisprudence as well as of historical recording proceeded from this college. For all writing of history was associated with the calendar and the book of annals; and, as from the organization of the Roman courts of

law no tradition could originate in these courts themselves, it was necessary that the knowledge of legal principles and procedure should be traditionally preserved in the college of the Pontifices, which alone was competent to give an opinion respecting court-days and questions of religious law.

Fetiales

By the side of these two oldest and most eminent corporations of men versed in spiritual lore may be to some extent ranked the college of the twenty state-heralds (-fetiales-, of uncertain derivation), destined as a living repository to preserve traditionally the remembrance of the treaties concluded with neighbouring communities, to pronounce an authoritative opinion on alleged infractions of treaty-rights, and in case of need to attempt reconciliation or declare war. They had precisely the same position with reference to international, as the Pontifices had with reference to religious, law; and were therefore, like the latter, entitled to point out the law, although not to administer it.

But in however high repute these colleges were, and important and comprehensive as were the functions assigned to them, it was never forgotten—least of all in the case of those which held the highest position—that their duty was not to command, but to tender skilled advice, not directly to obtain the answer of the gods, but to explain the answer when obtained to the inquirer. Thus the highest of the priests was not merely inferior in rank to the king, but might not even give advice to him unasked. It was the province of the king to determine whether and when he would take an observation of birds; the "bird-seer" simply stood beside him and interpreted to him, when necessary, the language of the messengers of heaven. In like manner the Fetialis and the Pontifex could not interfere in matters of international or common law except when those concerned

therewith desired it. The Romans, notwithstanding all their zeal for religion, adhered with unbending strictness to the principle that the priest ought to remain completely powerless in the state and—excluded from all command—ought like any other burgess to render obedience to the humblest magistrate.

Character of the -Cultus-

The Latin worship was grounded essentially on man's enjoyment of earthly pleasures, and only in a subordinate degree on his fear of the wild forces of nature; it consisted pre-eminently therefore in expressions of joy, in lays and songs, in games and dances, and above all in banquets. In Italy, as everywhere among agricultural tribes whose ordinary food consists of vegetables, the slaughter of cattle was at once a household feast and an act of worship: a pig was the most acceptable offering to the gods, just because it was the usual roast for a feast. But all extravagance of expense as well as all excess of rejoicing was inconsistent with the solid character of the Romans. Frugality in relation to the gods was one of the most prominent traits of the primitive Latin worship; and the free play of imagination was repressed with iron severity by the moral self-discipline which the nation maintained. In consequence the Latins remained strangers to the excesses which grow out of unrestrained indulgence. At the very core of the Latin religion there lay that profound moral impulse which leads men to bring earthly guilt and earthly punishment into relation with the world of the gods, and to view the former as a crime against the gods, and the latter as its expiation. The execution of the criminal condemned to death was as much an expiatory sacrifice offered to the divinity as was the killing of an enemy in just war; the thief who by night stole the fruits of the field paid the penalty to Ceres on the gallows just as the enemy paid it to mother earth and the good spirits on the field of battle. The profound and fearful idea of

substitution also meets us here: when the gods of the community were angry and nobody could be laid hold of as definitely guilty, they might be appeased by one who voluntarily gave himself up (-devovere se-); noxious chasms in the ground were closed, and battles half lost were converted into victories, when a brave burgess threw himself as an expiatory offering into the abyss or upon the foe. The "sacred spring" was based on a similar view; all the offspring whether of cattle or of men within a specified period were presented to the gods. If acts of this nature are to be called human sacrifices, then such sacrifices belonged to the essence of the Latin faith; but we are bound to add that, far back as our view reaches into the past, this immolation, so far as life was concerned, was limited to the guilty who had been convicted before a civil tribunal, or to the innocent who voluntarily chose to die. Human sacrifices of a different description run counter to the fundamental idea of a sacrificial act, and, wherever they occur among the Indo-Germanic stocks at least, are based on later degeneracy and barbarism. They never gained admission among the Romans; hardly in a single instance were superstition and despair induced, even in times of extreme distress, to seek an extraordinary deliverance through means so revolting. Of belief in ghosts, fear of enchantments, or dealing in mysteries, comparatively slight traces are to be found among the Romans. Oracles and prophecy never acquired the importance in Italy which they obtained in Greece, and never were able to exercise a serious control over private or public life. But on the other hand the Latin religion sank into an incredible insipidity and dulness, and early became shrivelled into an anxious and dreary round of ceremonies. The god of the Italian was, as we have already said, above all things an instrument for helping him to the attainment of very substantial earthly aims; this turn was given to the religious views of the Italian by his tendency towards the palpable and the real, and is no less distinctly apparent in the saint-worship of the modern inhabitants of Italy. The gods confronted man just as a creditor confronted his debtor; each of

them had a duly acquired right to certain performances and payments; and as the number of the gods was as great as the number of the incidents in earthly life, and the neglect or wrong performance of the worship of each god revenged itself in the corresponding incident, it was a laborious and difficult task even to gain a knowledge of a man's religious obligations, and the priests who were skilled in the law of divine things and pointed out its requirements—the -Pontifices- —could not fail to attain an extraordinary influence. The upright man fulfilled the requirements of sacred ritual with the same mercantile punctuality with which he met his earthly obligations, and at times did more than was due, if the god had done so on his part. Man even dealt in speculation with his god; a vow was in reality as in name a formal contract between the god and the man, by which the latter promised to the former for a certain service to be rendered a certain equivalent return; and the Roman legal principle that no contract could be concluded by deputy was not the least important of the reasons on account of which all priestly mediation remained excluded from the religious concerns of man in Latium. Nay, as the Roman merchant was entitled, without injury to his conventional rectitude, to fulfil his contract merely in the letter, so in dealing with the gods, according to the teaching of Roman theology, the copy of an object was given and received instead of the object itself. They presented to the lord of the sky heads of onions and poppies, that he might launch his lightnings at these rather than at the heads of men. In payment of the offering annually demanded by father Tiber, thirty puppets plaited of rushes were annually thrown into the stream.(12) The ideas of divine mercy and placability were in these instances inseparably mixed up with a pious cunning, which tried to delude and to pacify so formidable a master by means of a sham satisfaction. The Roman fear of the gods accordingly exercised powerful influence over the minds of the multitude; but it was by no means that sense of awe in the presence of an all-controlling nature or of an almighty God, that lies at the foundation of the views of pantheism and

monotheism respectively; on the contrary, it was of a very earthly character, and scarcely different in any material respect from the trembling with which the Roman debtor approached his just, but very strict and very powerful creditor. It is plain that such a religion was fitted rather to stifle than to foster artistic and speculative views. When the Greek had clothed the simple thoughts of primitive times with human flesh and blood, the ideas of the gods so formed not only became the elements of plastic and poetic art, but acquired also that universality and elasticity which are the profoundest characteristics of human nature and for this very reason are essential to all religions that aspire to rule the world. Through such means the simple view of nature became expanded into the conception of a cosmogony, the homely moral notion became enlarged into a principle of universal humanity; and for a long period the Greek religion was enabled to embrace within it the physical and metaphysical views—the whole ideal development of the nation—and to expand in depth and breadth with the increase of its contents, until imagination and speculation rent asunder the vessel which had nursed them. But in Latium the embodiment of the conceptions of deity continued so wholly transparent that it afforded no opportunity for the training either of artist or poet, and the Latin religion always held a distant and even hostile attitude towards art. As the god was not and could not be caught else than the spiritualization of an earthly phenomenon, this same earthly counterpart naturally formed his place of abode (-templum-) and his image; walls and effigies made by the hands of men seemed only to obscure and to embarrass the spiritual conception. Accordingly the original Roman worship had no images of the gods or houses set apart for them; and although the god was at an early period worshipped in Latium, probably in imitation of the Greeks, by means of an image, and had a little chapel (-aedicula-) built for him, such a figurative representation was reckoned contrary to the laws of Numa and was generally regarded as an impure and foreign innovation. The Roman religion could exhibit no image of a god

peculiar to it, with the exception, perhaps, of the double-headed Janus; and Varro even in his time derided the desire of the multitude for puppets and effigies. The utter want of productive power in the Roman religion was likewise the ultimate cause of the thorough poverty which always marked Roman poetry and still more Roman speculation.

The same distinctive character was manifest, moreover, in the domain of its practical use. The practical gain which accrued to the Roman community from their religion was a code of moral law gradually developed by the priests, and the -Pontifices- in particular, which on the one hand supplied the place of police regulations at a time when the state was still far from providing any direct police-guardianship for its citizens, and on the other hand brought to the bar of the gods and visited with divine penalties the breach of moral obligations. To the regulations of the former class belonged the religious inculcation of a due observance of holidays and of a cultivation of the fields and vineyards according to the rules of good husbandry—which we shall have occasion to notice more fully in the sequel—as well as the worship of the heath or of the Lares which was connected with considerations of sanitary police,(13) and above all the practice of burning the bodies of the dead, adopted among the Romans at a singularly early period, far earlier than among the Greeks—a practice implying a rational conception of life and of death, which was foreign to primitive times and is even foreign to ourselves at the present day. It must be reckoned no small achievement that the national religion of the Latins was able to carry out these and similar improvements. But the civilizing effect of this law was still more important. If a husband sold his wife, or a father sold his married son; if a child struck his father, or a daughter-in-law her father-in-law; if a patron violated his obligation to keep faith with his guest or dependent; if an unjust neighbour displaced a boundary-stone, or the thief laid hands by night on the grain entrusted to the common good faith; the burden of the curse of the gods lay thenceforth on the head of the

offender. Not that the person thus accursed (-sacer-) was outlawed; such an outlawry, inconsistent in its nature with all civil order, was only an exceptional occurrence—an aggravation of the religious curse in Rome at the time of the quarrels between the orders. It was not the province of the individual burgess, or even of the wholly powerless priest, to carry into effect such a divine curse. Primarily the person thus accursed became liable to the divine penal judgment, not to human caprice; and the pious popular faith, on which that curse was based, must have had power even over natures frivolous and wicked. But the banning was not confined to this; the king was in reality entitled and bound to carry the ban into execution, and, after the fact, on which the law set its curse, had been according to his conscientious conviction established, to slay the person under ban, as it were, as a victim offered up to the injured deity (-supplicium-), and thus to purify the community from the crime of the individual. If the crime was of a minor nature, for the slaying of the guilty there was substituted a ransom through the presenting of a sacrificial victim or of similar gifts. Thus the whole criminal law rested as to its ultimate basis on the religious idea of expiation.

But religion performed no higher service in Latium than the furtherance of civil order and morality by such means as these. In this field Hellas had an unspeakable advantage over Latium; it owed to its religion not merely its whole intellectual development, but also its national union, so far as such an union was attained at all; the oracles and festivals of the gods, Delphi and Olympia, and the Muses, daughters of faith, were the centres round which revolved all that was great in Hellenic life and all in it that was the common heritage of the nation. And yet even here Latium had, as compared with Hellas, its own advantages. The Latin religion, reduced as it was to the level of ordinary perception, was completely intelligible to every one and accessible in common to all; and therefore the Roman community preserved the equality of its citizens, while Hellas, where religion rose to the level of

the highest thought, had from the earliest times to endure all the blessing and curse of an aristocracy of intellect. The Latin religion like every other had its origin in the effort of faith to fathom the infinite; it is only to a superficial view, which is deceived as to the depth of the stream because it is clear, that its transparent spirit-world can appear to be shallow. This fervid faith disappeared with the progress of time as necessarily as the dew of morning disappears before the rising sun, and thus the Latin religion came subsequently to wither; but the Latins preserved their simplicity of belief longer than most peoples and longer especially than the Greeks. As colours are effects of light and at the same time dim it, so art and science are not merely the creations but also the destroyers of faith; and, much as this process at once of development and of destruction is swayed by necessity, by the same law of nature certain results have been reserved to the epoch of early simplicity—results which subsequent epochs make vain endeavours to attain. The mighty intellectual development of the Hellenes, which created their religious and literary unity (ever imperfect as that unity was), was the very thing that made it impossible for them to attain to a genuine political union; they sacrificed thereby the simplicity, the flexibility, the self-devotion, the power of amalgamation, which constitute the conditions of any such union. It is time therefore to desist from that childish view of history which believes that it can commend the Greeks only at the expense of the Romans, or the Romans only at the expense of the Greeks; and, as we allow the oak to hold its own beside the rose, so should we abstain from praising or censuring the two noblest organizations which antiquity has produced, and comprehend the truth that their distinctive excellences have a necessary connection with their respective defects. The deepest and ultimate reason of the diversity between the two nations lay beyond doubt in the fact that Latium did not, and that Hellas did, during the season of growth come into contact with the East. No people on earth was great enough by its own efforts to create either the marvel of

Hellenic or at a later period the marvel of Christian culture; history has produced these most brilliant results only where the ideas of Aramaic religion have sunk into an Indo-Germanic soil. But if for this reason Hellas is the prototype of purely human, Latium is not less for all time the prototype of national development; and it is the duty of us their successors to honour both and to learn from both.

Foreign Worships

Such was the nature and such the influence of the Roman religion in its pure, unhampered, and thoroughly national development. Its national character was not infringed by the fact that, from the earliest times, modes and systems of worship were introduced from abroad; no more than the bestowal of the rights of citizenship on individual foreigners denationalized the Roman state. An exchange of gods as well as of goods with the Latins in older time must have been a matter of course; the transplantation to Rome of gods and worships belonging to less cognate races is more remarkable. Of the distinctive Sabine worship maintained by the Titians we have already spoken.⁽¹⁴⁾ Whether any conceptions of the gods were borrowed from Etruria is more doubtful: for the Lases, the older designation of the genii (from -lascivus-), and Minerva the goddess of memory (-mens-, -menervare-), which it is customary to describe as originally Etruscan, were on the contrary, judging from philological grounds, indigenous to Latium. It is at any rate certain, and in keeping with all that we otherwise know of Roman intercourse that the Greek worship received earlier and more extensive attention in Rome than any other of foreign origin. The Greek oracles furnished the earliest occasion of its introduction. The language of the Roman gods was on the whole confined to Yea and Nay or at the most to the making their will known by the method of casting lots, which appears in its origin Italian;⁽¹⁵⁾ while from very ancient times—although not

apparently until the impulse was received from the East—the more talkative gods of the Greeks imparted actual utterances of prophecy. The Romans made efforts, even at an early period, to treasure up such counsels, and copies of the leaves of the soothsaying priestess of Apollo, the Cumaean Sibyl, were accordingly a highly valued gift on the part of their Greek guest-friends from Campania. For the reading and interpretation of the fortune-telling book a special college, inferior in rank only to the augurs and Pontifices, was instituted in early times, consisting of two men of lore (-duoviri sacris faciundis-), who were furnished at the expense of the state with two slaves acquainted with the Greek language. To these custodiers of oracles the people resorted in cases of doubt, when an act of worship was needed in order to avoid some impending evil and they did not know to which of the gods or with what rites it was to be performed. But Romans in search of advice early betook themselves also to the Delphic Apollo himself. Besides the legends relating to such an intercourse already mentioned,(16) it is attested partly by the reception of the word -thesaurus- so closely connected with the Delphic oracle into all the Italian languages with which we are acquainted, and partly by the oldest Roman form of the name of Apollo, -Aperta-, the "opener," an etymologizing alteration of the Doric Apellon, the antiquity of which is betrayed by its very barbarism. The Greek Herakles was naturalized in Italy as Herclus, Hercoles, Hercules, at an early period and under a peculiar conception of his character, apparently in the first instance as the god of gains of adventure and of any extraordinary increase of wealth; for which reason the general was wont to present the tenth of the spoil which he had procured, and the merchant the tenth of the substance which he had obtained, to Hercules at the chief altar (-ara maxima-) in the cattle-market. Accordingly he became the god of mercantile covenants generally, which in early times were frequently concluded at this altar and confirmed by oath, and in so far was identified with the old Latin god of good faith (-deus fidius-). The worship of

Hercules was from an early date among the most widely diffused; he was, to use the words of an ancient author, adored in every hamlet of Italy, and altars were everywhere erected to him in the streets of the cities and along the country roads. The gods also of the mariner, Castor and Polydeukes or, in Roman form, Pollux, the god of traffic Hermes—the Roman Mercurius—and the god of healing, Asklapios or Aesculapius, became early known to the Romans, although their public worship only began at a later period. The name of the festival of the "good goddess" (-bona dea-) -damium-, corresponding to the Greek —damion— or —deimion—, may likewise reach back as far as this epoch. It must be the result also of ancient borrowing, that the old -Liber pater- of the Romans was afterwards conceived as "father deliverer" and identified with the wine-god of the Greeks, the "releaser" (-Lyaeos-), and that the Roman god of the lower regions was called the "dispenser of riches" (-Pluto- - -Dis pater-), while his spouse Persephone became converted at once by change of the initial sound and by transference of the idea into the Roman Proserpina, that is, "germinatrix." Even the goddess of the Romano-Latin league, Diana of the Aventine, seems to have been copied from the federal goddess of the Ionians of Asia Minor, the Ephesian Artemis; at least her carved image in the Roman temple was formed after the Ephesian type.(17) It was in this way alone, through the myths of Apollo, Dionysus, Pluto, Herakles, and Artemis, which were early pervaded by Oriental ideas, that the Aramaic religion exercised at this period a remote and indirect influence on Italy. We clearly perceive from these facts that the introduction of the Greek religion was especially due to commercial intercourse, and that it was traders and mariners who primarily brought the Greek gods to Italy.

These individual cases however of derivation from abroad were but of secondary moment, while the remains of the natural symbolism of primeval times, of which the legend of the oxen of Cacus may perhaps be a specimen,(18) had virtually disappeared. In all its leading features the

Roman religion was an organic creation of the people among whom we find it.

Religion of the Sabellians

The Sabellian and Umbrian worship, judging from the little we know of it, rested upon quite the same fundamental views as the Latin with local variations of colour and form. That it was different from the Latin is very distinctly apparent from the founding of a special college at Rome for the preservation of the Sabine rites;(19) but that very fact affords an instructive illustration of the nature of the difference. Observation of the flight of birds was with both stocks the regular mode of consulting the gods; but the Tities observed different birds from the Ramnian augurs. Similar relations present themselves, wherever we have opportunity of comparing them. Both stocks in common regarded the gods as abstractions of the earthly and as of an impersonal nature; they differed in expression and ritual. It was natural that these diversities should appear of importance to the worshippers of those days; we are no longer able to apprehend what was the characteristic distinction, if any really existed.

Religion of the Etruscans

But the remains of the sacred ritual of the Etruscans that have reached us are marked by a different spirit. Their prevailing characteristics are a gloomy and withal tiresome mysticism, ringing the changes on numbers, soothsaying, and that solemn enthroning of pure absurdity which at all times finds its own circle of devotees. We are far from knowing the Etruscan worship in such completeness and purity as we know the Latin; and it is not improbable—indeed it cannot well be doubted—that several of

its features were only imported into it by the minute subtlety of a later period, and that the gloomy and fantastic principles, which were most alien to the Latin worship, are those that have been especially handed down to us by tradition. But enough still remains to show that the mysticism and barbarism of this worship had their foundation in the essential character of the Etruscan people.

With our very unsatisfactory knowledge we cannot grasp the intrinsic contrast subsisting between the Etruscan conceptions of deity and the Italian; but it is clear that the most prominent among the Etruscan gods were the malignant and the mischievous; as indeed their worship was cruel, and included in particular the sacrifice of their captives; thus at Caere they slaughtered the Phocaeans, and at Traquinii the Roman prisoners. Instead of a tranquil world of departed "good spirits" ruling peacefully in the realms beneath, such as the Latins had conceived, the Etruscan religion presented a veritable hell, in which the poor souls were doomed to be tortured by mallets and serpents, and to which they were conveyed by the conductor of the dead, a savage semi-brutal figure of an old man with wings and a large hammer—a figure which afterwards served in the gladiatorial games at Rome as a model for the costume of the man who removed the corpses of the slain from the arena. So fixed was the association of torture with this condition of the shades, that there was even provided a redemption from it, which after certain mysterious offerings transferred the poor soul to the society of the gods above. It is remarkable that, in order to people their lower world, the Etruscans early borrowed from the Greeks their gloomiest notions, such as the doctrine of Acheron and Charon, which play an important part in the Etruscan discipline.

But the Etruscan occupied himself above all in the interpretation of signs and portents. The Romans heard the voice of the gods in nature; but their bird-seer understood only the signs in their simplicity, and knew only in

general whether the occurrence boded good or ill. Disturbances of the ordinary course of nature were regarded by him as boding evil, and put a stop to the business in hand, as when for example a storm of thunder and lightning dispersed the comitia; and he probably sought to get rid of them, as, for example, in the case of monstrous births, which were put to death as speedily as possible. But beyond the Tiber matters were carried much further. The profound Etruscan read off to the believer his future fortunes in detail from the lightning and from the entrails of animals offered in sacrifice; and the more singular the language of the gods, the more startling the portent or prodigy, the more confidently did he declare what they foretold and the means by which it was possible to avert the mischief. Thus arose the lore of lightning, the art of inspecting entrails, the interpretation of prodigies—all of them, and the science of lightning especially, devised with the hair-splitting subtlety which characterizes the mind in pursuit of absurdities. A dwarf called Tages with the figure of a child but with gray hairs, who had been ploughed up by a peasant in a field near Tarquinii—we might almost fancy that practices at once so childish and so drivelling had sought to present in this figure a caricature of themselves—betrayed the secret of this lore to the Etruscans, and then straightway died. His disciples and successors taught what gods were in the habit of hurling the lightning; how the lightning of each god might be recognized by its colour and the quarter of the heavens whence it came; whether the lightning boded a permanent state of things or a single event; and in the latter case whether the event was one unalterably fixed, or whether it could be up to a certain limit artificially postponed: how they might convey the lightning away when it struck, or compel the threatening lightning to strike, and various marvellous arts of the like kind, with which there was incidentally conjoined no small desire of pocketing fees. How deeply repugnant this jugglery was to the Roman character is shown by the fact that, even when people came at a later period to employ the Etruscan lore in Rome, no

attempt was made to naturalize it; during our present period the Romans were probably still content with their own, and with the Greek oracles.

The Etruscan religion occupied a higher level than the Roman, in so far as it developed at least the rudiments of what was wholly wanting among the Romans—a speculation veiled under religious forms. Over the world and its gods there ruled the veiled gods (-Dii involuti-), consulted by the Etruscan Jupiter himself; that world moreover was finite, and, as it had come into being, so was it again to pass away after the expiry of a definite period of time, whose sections were the -saecula-. Respecting the intellectual value which may once have belonged to this Etruscan cosmogony and philosophy, it is difficult to form a judgment; they appear however to have been from the very first characterized by a dull fatalism and an insipid play upon number.

Notes for Book I Chapter XII

1. I. II. Religion

2. This was, to all appearance, the original nature of the "morning-mother" or -Mater matuta-; in connection with which we may recall the circumstance that, as the names Lucius and especially -Manius- show, the morning hour was reckoned as lucky for birth. -Mater matuta-probably became a goddess of sea and harbour only at a later epoch under the influence of the myth of Leucothea; the fact that the goddess was chiefly worshipped by women tells against the view that she was originally a harbour-goddess.

3. From -Maurs-, which is the oldest form handed down by tradition, there have been developed by different treatment of the -u -Mars-, -Mavors-, -Mors-; the transition to -o (similar to -Paula-, -Pola-, and the like) appears also in the double form Mar-Mor (comp. -Ma-murius-) alongside of -Mar-Mor- and -Ma-Mers-.

4. The facts, that gates and doors and the morning (-ianus matutinus-) were sacred to Ianus, and that he was always invoked before any other god and was even represented in the series of coins before Jupiter and the other gods, indicate unmistakeably that he was the abstraction of opening and beginning. The double-head looking both ways was connected with the gate that opened both ways. To make him god of the sun and of the year is the less justifiable, because the month that bears his name was originally the eleventh, not the first; that month seems rather to have derived its name from the circumstance, that at this season after the rest of the middle of winter the cycle of the labours of the field began afresh. It was, however, a matter of course that the opening of the year should also be included in the sphere of Ianus, especially after Ianuarius came to be placed at its head.

5. I. IV. Titius and Lucius

6. I. VI. Amalgamation of the Palatine and Quirinal Cities

7. I. VII. Servian Wall

8. I. III. Latium

9. I. VII. Relation of Rome to Latium

10. I. V. Burdens of the Burgesses, I. XI. Crimes

11. The clearest evidence of this is the fact, that in the communities organized on the Latin scheme augurs and Pontifices occur everywhere (e.

g. Cic. de Lege Agr. ii. 35, 96, and numerous inscriptions), as does likewise the -pater patratus- of the Fetiales in Laurentum (Orelli, 2276), but the other colleges do not. The former, therefore, stand on the same footing with the constitution of ten curies and the Flamines, Salii, and Luperci, as very ancient heirlooms of the Latin stock; whereas the Duoviri -sacris faciundis-, and the other colleges, like the thirty curies and the Servian tribes and centuries, originated in, and remained therefore confined to, Rome. But in the case of the second college—the pontifices—the influence of Rome probably led to the introduction of that name into the general Latin scheme instead of some earlier—perhaps more than one—designation; or—a hypothesis which philologically has much in its favour— -pons- originally signified not "bridge," but "way" generally, and -pontifex- therefore meant "constructor of ways."

The statements regarding the original number of the augurs in particular vary. The view that it was necessary for the number to be an odd one is refuted by Cicero (de Lege Agr. ii. 35, 96); and Livy (x. 6) does not say so, but only states that the number of Roman augurs had to be divisible by three, and so must have had an odd number as its basis. According to Livy (l. c.) the number was six down to the Ogulnian law, and the same is virtually affirmed by Cicero (de Rep. ii. 9, 14) when he represents Romulus as instituting four, and Numa two, augural stalls. On the number of the pontifices comp. Staatsrecht, ii. 20.

12. It is only an unreflecting misconception that can discover in this usage a reminiscence of ancient human sacrifices.

13. I. XII. Nature of the Roman Gods

14. I. XII. Priests

15. -Sors- from -serere-, to place in row. The -sortes- were probably small wooden tablets arranged upon a string, which when thrown formed figures of various kinds; an arrangement which puts one in mind of the Runic characters.

16. I. X. Hellenes and Latins

17. I. VII. Servian Wall

18. I. II. Indo-Germanic Culture

19. I. IV. Titius and Lucius

CHAPTER XIII

Agriculture, Trade, and Commerce

Agriculture and commerce are so intimately bound up with the constitution and the external history of states, that the former must frequently be noticed in the course of describing the latter. We shall here endeavour to supplement the detached notices which we have already given, by exhibiting a summary view of Italian and particularly of Roman economics.

Agriculture

It has been already observed(1) that the transition from a pastoral to an agricultural economy preceded the immigration of the Italians into the peninsula. Agriculture continued to be the main support of all the communities in Italy, of the Sabellians and Etruscans no less than of the Latins. There were no purely pastoral tribes in Italy during historical times, although of course the various races everywhere combined pastoral husbandry, to a greater or less extent according to the nature of the locality, with the cultivation of the soil. The beautiful custom of commencing the formation of new cities by tracing a furrow with the plough along the line

of the future ring-wall shows how deeply rooted was the feeling that every commonwealth is dependent on agriculture. In the case of Rome in particular—and it is only in its case that we can speak of agrarian relations with any sort of certainty—the Servian reform shows very clearly not only that the agricultural class originally preponderated in the state, but also that an effort was made permanently to maintain the collective body of freeholders as the pith and marrow of the community. When in the course of time a large portion of the landed property in Rome had passed into the hands of non-burgesses and thus the rights and duties of burgesses were no longer bound up with freehold property, the reformed constitution obviated this incongruous state of things, and the perils which it threatened, not merely temporarily but permanently, by treating the members of the community without reference to their political position once for all according to their freeholding, and imposing the common burden of war-service on the freeholders—a step which in the natural course of things could not but be followed by the concession of public rights. The whole policy of Roman war and conquest rested, like the constitution itself, on the basis of the freehold system; as the freeholder alone was of value in the state, the aim of war was to increase the number of its freehold members. The vanquished community was either compelled to merge entirely into the yeomanry of Rome, or, if not reduced to this extremity, it was required, not to pay a war-contribution or a fixed tribute, but to cede a portion, usually a third part, of its domain, which was thereupon regularly occupied by Roman farms. Many nations have gained victories and made conquests as the Romans did; but none has equalled the Roman in thus making the ground he had won his own by the sweat of his brow, and in securing by the ploughshare what had been gained by the lance. That which is gained by war may be wrested from the grasp by war again, but it is not so with the conquests made by the plough; while the Romans lost many battles, they scarcely ever on making peace ceded Roman soil, and for this result they

were indebted to the tenacity with which the farmers clung to their fields and homesteads. The strength of man and of the state lies in their dominion over the soil; the greatness of Rome was built on the most extensive and immediate mastery of her citizens over her soil, and on the compact unity of the body which thus acquired so firm a hold.

System of Joint Cultivation

We have already indicated⁽²⁾ that in the earliest times the arable land was cultivated in common, probably by the several clans; each clan tilled its own land, and thereafter distributed the produce among the several households belonging to it. There exists indeed an intimate connection between the system of joint tillage and the clan form of society, and even subsequently in Rome joint residence and joint management were of very frequent occurrence in the case of co-proprietors.⁽³⁾ Even the traditions of Roman law furnish the information that wealth consisted at first in cattle and the usufruct of the soil, and that it was not till later that land came to be distributed among the burgesses as their own special property.⁽⁴⁾ Better evidence that such was the case is afforded by the earliest designation of wealth as "cattle-stock" or "slave-and-cattle-stock" (-pecunia-, -familia pecuniaque-), and of the separate possessions of the children of the household and of slaves as "small cattle" (-peculium-) also by the earliest form of acquiring property through laying hold of it with the hand (-mancipatio-), which was only appropriate to the case of moveable articles; ⁽⁵⁾ and above all by the earliest measure of "land of one's own" (-heredium-, from -herus-lord), consisting of two -jugera- (about an acre and a quarter), which can only have applied to garden-ground, and not to the hide.⁽⁶⁾ When and how the distribution of the arable land took place, can no longer be ascertained. This much only is certain, that the oldest form of the constitution was based not on freehold settlement, but on clanship as a

substitute for it, whereas the Servian constitution presupposes the distribution of the land. It is evident from the same constitution that the great bulk of the landed property consisted of middle-sized farms, which provided work and subsistence for a family and admitted of the keeping of cattle for tillage as well as of the application of the plough. The ordinary extent of such a Roman full hide has not been ascertained with precision, but can scarcely, as has already been shown,(7) be estimated at less than twenty -jugera-(12 1/2 acres nearly).

Culture of Grain

Their husbandry was mainly occupied with the culture of the cereals. The usual grain was spelt (-far-);(8) but different kinds of pulse, roots, and vegetables were also diligently cultivated.

Culture of the Vine

That the culture of the vine was not introduced for the first time into Italy by Greek settlers,(9) is shown by the list of the festivals of the Roman community which reaches back to a time preceding the Greeks, and which presents three wine-festivals to be celebrated in honour of "father Jovis," not in honour of the wine-god of more recent times who was borrowed from the Greeks, the "father deliverer." The very ancient legend which represents Mezentius king of Caere as levying a wine-tax from the Latins or the Rutuli, and the various versions of the widely-spread Italian story which affirms that the Celts were induced to cross the Alps in consequence of their coming to the knowledge of the noble fruits of Italy, especially of the grape and of wine, are indications of the pride of the Latins in their glorious vine, the envy of all their neighbours. A careful system of vine-husbandry was

early and generally inculcated by the Latin priests. In Rome the vintage did not begin until the supreme priest of the community, the -flamen- of Jupiter, had granted permission for it and had himself made a beginning; in like manner a Tusculan ordinance forbade the sale of new wine, until the priest had proclaimed the festival of opening the casks. The early prevalence of the culture of the vine is likewise attested not only by the general adoption of wine-libations in the sacrificial ritual, but also by the precept of the Roman priests promulgated as a law of king Numa, that men should present in libation to the gods no wine obtained from uncut grapes; just as, to introduce the beneficial practice of drying the grain, they prohibited the offering of grain undried.

Culture of the Olive

The culture of the olive was of later introduction, and certainly was first brought to Italy by the Greeks.(10) The olive is said to have been first planted on the shores of the western Mediterranean towards the close of the second century of the city; and this view accords with the fact that the olive-branch and the olive occupy in the Roman ritual a place very subordinate to the juice of the vine. The esteem in which both noble trees were held by the Romans is shown by the vine and the olive-tree which were planted in the middle of the Forum, not far from the Curtian lake.

The Fig

The principal fruit-tree planted was the nutritious fig, which was probably a native of Italy. The legend of the origin of Rome wove its threads most closely around the old fig-trees, several of which stood near to and in the Roman Forum.(11)

Management of the Farm

It was the farmer and his sons who guided the plough, and performed generally the labours of husbandry: it is not probable that slaves or free day-labourers were regularly employed in the work of the ordinary farm. The plough was drawn by the ox or by the cow; horses, asses, and mules served as beasts of burden. The rearing of cattle for the sake of meat or of milk did not exist at all as a distinct branch of husbandry, or was prosecuted only to a very limited extent, at least on the land which remained the property of the clan; but, in addition to the smaller cattle which were driven out together to the common pasture, swine and poultry, particularly geese, were kept at the farm-yard. As a general rule, there was no end of ploughing and re-ploughing: a field was reckoned imperfectly tilled, in which the furrows were not drawn so close that harrowing could be dispensed with; but the management was more earnest than intelligent, and no improvement took place in the defective plough or in the imperfect processes of reaping and of threshing. This result is probably attributable rather to the scanty development of rational mechanics than to the obstinate clinging of the farmers to use and wont; for mere kindly attachment to the system of tillage transmitted with the patrimonial soil was far from influencing the practical Italian, and obvious improvements in agriculture, such as the cultivation of fodder-plants and the irrigation of meadows, may have been early adopted from neighbouring peoples or independently developed—Roman literature itself in fact began with the discussion of the theory of agriculture. Welcome rest followed diligent and judicious labour; and here too religion asserted her right to soothe the toils of life even to the humble by pauses for recreation and for freer human movement and intercourse. Every eighth day (-nonae-), and therefore on an average four times a month, the farmer went to town to buy and sell and transact his other business. But rest from labour, in the strict sense, took place only on the several festival days, and

especially in the holiday-month after the completion of the winter sowing (-feriae sementivae-): during these set times the plough rested by command of the gods, and not the farmer only, but also his slave and his ox, reposed in holiday idleness.

Such, probably, was the way in which the ordinary Roman farm was cultivated in the earliest times. The next heirs had no protection against bad management except the right of having the spendthrift who squandered his inherited estate placed under wardship as if he were a lunatic.⁽¹²⁾ Women moreover were in substance divested of their personal right of disposal, and, if they married, a member of the same clan was ordinarily assigned as husband, in order to retain the estate within the clan. The law sought to check the overburdening of landed property with debt partly by ordaining, in the case of a debt secured over the land, the provisional transference of the ownership of the object pledged from the debtor to the creditor, partly, in the case of a simple loan, by the rigour of the proceedings in execution which speedily led to actual bankruptcy; the latter means however, as the sequel will show, attained its object but very imperfectly. No restriction was imposed by law on the free divisibility of property. Desirable as it might be that co-heirs should remain in the undivided possession of their heritage, even the oldest law was careful to keep the power of dissolving such a partnership open at any time to any partner; it was good that brethren should dwell together in peace, but to compel them to do so was foreign to the liberal spirit of Roman law. The Servian constitution moreover shows that even in the regal period of Rome there were not wanting cottagers and garden-proprietors, with whom the mattock took the place of the plough. It was left to custom and the sound sense of the population to prevent excessive subdivision of the soil; and that their confidence in this respect was not misplaced and the landed estates ordinarily remained entire, is proved by the universal Roman custom of designating them by permanent individual names. The community exercised only an indirect influence in

the matter by the sending forth of colonies, which regularly led to the establishment of a number of new full hides, and frequently doubtless also to the suppression of a number of cottage holdings, the small landholders being sent forth as colonists.

Landed Proprietors

It is far more difficult to perceive how matters stood with landed property on a larger scale. The fact that such larger properties existed to no inconsiderable extent, cannot be doubted from the early development of the *-equites-*, and may be easily explained partly by the distribution of the *clan-*lands, which of itself could not but call into existence a class of larger landowners in consequence of the necessary inequality in the numbers of the persons belonging to the several clans and participating in the distribution, and partly by the abundant influx of mercantile capital to Rome. But farming on a large scale in the proper sense, implying a considerable establishment of slaves, such as we afterwards meet with at Rome, cannot be supposed to have existed during this period. On the contrary, to this period we must refer the ancient definition, which represents the senators as called fathers from the fields which they parcelled out among the common people as a father among his children; and originally the landowner must have distributed that portion of his land which he was unable to farm in person, or even his whole estate, into little parcels among his dependents to be cultivated by them, as is the general practice in Italy at the present day. The recipient might be the house-child or slave of the granter; if he was a free man, his position was that which subsequently went by the name of "occupancy on sufferance" (*-precarium-*). The recipient retained his occupancy during the pleasure of the granter, and had no legal means of protecting himself in possession against him; on the contrary, the granter could eject him at any time when he pleased. The

relation did not necessarily involve any payment on the part of the person who had the usufruct of the soil to its proprietor; but such a payment beyond doubt frequently took place and may, as a rule, have consisted in the delivery of a portion of the produce. The relation in this case approximated to the lease of subsequent times, but remained always distinguished from it partly by the absence of a fixed term for its expiry, partly by its non-actionable character on either side and the legal protection of the claim for rent depending entirely on the lessor's right of ejection. It is plain that it was essentially a relation based on mutual fidelity, which could not subsist without the help of the powerful sanction of custom consecrated by religion; and this was not wanting. The institution of clientship, altogether of a moral-religious nature, beyond doubt rested fundamentally on this assignation of the profits of the soil. Nor was the introduction of such an assignation dependent on the abolition of the system of common tillage; for, just as after this abolition the individual, so previous to it the clan might grant to dependents a joint use of its lands; and beyond doubt with this very state of things was connected the fact that the Roman clientship was not personal, but that from the outset the client along with his clan entrusted himself for protection and fealty to the patron and his clan. This earliest form of Roman landholding serves to explain how there sprang from the great landlords in Rome a landed, and not an urban, nobility. As the pernicious institution of middlemen remained foreign to the Romans, the Roman landlord found himself not much less chained to his land than was the tenant and the farmer; he inspected and took part in everything himself, and the wealthy Roman esteemed it his highest praise to be reckoned a good landlord. His house was in the country; in the city he had only a lodging for the purpose of attending to his business there, and perhaps of breathing the purer air that prevailed there during the hot season. Above all, however, these arrangements furnished a moral basis for the relation between the upper class and the common people, and so materially lessened its dangers.

The free tenants-on-sufferance, sprung from families of decayed farmers, dependents, and freedmen, formed the great bulk of the proletariat,(13) and were not much more dependent on the landlord than the petty leaseholder inevitably is with reference to the great proprietor. The slaves tilling the fields for a master were beyond doubt far less numerous than the free tenants. In all cases where an immigrant nation has not at once reduced to slavery a population -en masse-, slaves seem to have existed at first only to a very limited amount, and consequently free labourers seem to have played a very different part in the state from that in which they subsequently appear. In Greece "day-labourers" (—theites—) in various instances during the earlier period occupy the place of the slaves of a later age, and in some communities, among the Locrians for instance, there was no slavery down to historical times. Even the slave, moreover, was ordinarily of Italian descent; the Volscian, Sabine, or Etruscan war-captive must have stood in a different relation towards his master from the Syrian and the Celt of later times. Besides as a tenant he had in fact, though not in law, land and cattle, wife and child, as the landlord had, and after manumission was introduced(14) there was a possibility, not remote, of working out his freedom. If such then was the footing on which landholding on a large scale stood in the earliest times, it was far from being an open sore in the commonwealth; on the contrary, it was of most material service to it. Not only did it provide subsistence, although scantier upon the whole, for as many families in proportion as the intermediate and smaller properties; but the landlords moreover, occupying a comparatively elevated and free position, supplied the community with its natural leaders and rulers, while the agricultural and unpropertied tenants-on-sufferance furnished the genuine material for the Roman policy of colonization, without which it never would have succeeded; for while the state may furnish land to him who has none, it cannot impart to one who knows nothing of agriculture the spirit and the energy to wield the plough.

Pastoral Husbandry

Ground under pasture was not affected by the distribution of the land. The state, and not the clanship, was regarded as the owner of the common pastures. It made use of them in part for its own flocks and herds, which were intended for sacrifice and other purposes and were always kept up by means of the cattle-fines; and it gave to the possessors of cattle the privilege of driving them out upon the common pasture for a moderate payment (-scriptura-). The right of pasturage on the public domains may have originally borne some relation -de facto- to the possession of land, but no connection -de jure- can ever have subsisted in Rome between the particular hides of land and a definite proportional use of the common pasture; because property could be acquired even by the —metoikos—, but the right to use the common pasture was only granted exceptionally to the —metoikos— by the royal favour. At this period, however, the public land seems to have held but a subordinate place in the national economy generally, for the original common pasturage was not perhaps very extensive, and the conquered territory was probably for the most part distributed immediately as arable land among the clans or at a later period among individuals.

Handicrafts

While agriculture was the chief and most extensively prosecuted occupation in Rome, other branches of industry did not fail to accompany it, as might be expected from the early development of urban life in that emporium of the Latins. In fact eight guilds of craftsmen were numbered among the institutions of king Numa, that is, among the institutions that had existed in Rome from time immemorial. These were the flute-blowers, the

goldsmiths, the coppersmiths, the carpenters, the fullers, the dyers, the potters, and the shoemakers—a list which would substantially exhaust the class of tradesmen working to order on account of others in the very early times, when the baking of bread and the professional art of healing were not yet known and wool was spun into clothing by the women of the household themselves. It is remarkable that there appears no special guild of workers in iron. This affords a fresh confirmation of the fact that the manufacture of iron was of comparatively late introduction in Latium; and on this account in matters of ritual down to the latest times copper alone might be used, e.g. for the sacred plough and the shear-knife of the priests. These bodies of craftsmen must have been of great importance in early times for the urban life of Rome and for its position towards the Latin land—an importance not to be measured by the depressed condition of Roman handicraft in later times, when it was injuriously affected by the multitude of artisan-slaves working for their master or on his account, and by the increased import of articles of luxury. The oldest lays of Rome celebrated not only the mighty war-god Mamers, but also the skilled armourer Mamurius, who understood the art of forging for his fellow-burgesses shields similar to the divine model shield that had fallen from heaven; Volcanus the god of fire and of the forge already appears in the primitive list of Roman festivals.⁽¹⁵⁾ Thus in the earliest Rome, as everywhere, the arts of forging and of wielding the ploughshare and the sword went hand in hand, and there was nothing of that arrogant contempt for handicrafts which we afterwards meet with there. After the Servian organization, however, imposed the duty of serving in the army exclusively on the freeholders, the industrial classes were excluded not by any law, but practically in consequence of their general want of a freehold qualification, from the privilege of bearing arms, except in the case of special subdivisions chosen from the carpenters, coppersmiths, and certain classes of musicians and attached with a military organization to the army; and this may perhaps have been the origin of the subsequent habit of

depreciating the manual arts and of the position of political inferiority assigned to them. The institution of guilds doubtless had the same object as the colleges of priests that resembled them in name; the men of skill associated themselves in order more permanently and securely to preserve the tradition of their art. That there was some mode of excluding unskilled persons is probable; but no traces are to be met with either of monopolizing tendencies or of protective steps against inferior manufactures. There is no aspect, however, of the life of the Roman people respecting which our information is so scanty as that of the Roman trades.

Inland Commerce of the Italians

Italian commerce must, it is obvious, have been limited in the earliest epoch to the mutual dealings of the Italians themselves. Fairs (-mercatus-), which must be distinguished from the usual weekly markets (-nundinae-) were of great antiquity in Latium. Probably they were at first associated with international gatherings and festivals, and so perhaps were connected in Rome with the festival at the federal temple on the Aventine; the Latins, who came for this purpose to Rome every year on the 13th August, may have embraced at the same time the opportunity of transacting their business in Rome and of purchasing what they needed there. A similar and perhaps still greater importance belonged in the case of Etruria to the annual general assembly at the temple of Voltumna (perhaps near Montefiascone) in the territory of Volsinii; it served at the same time as a fair and was regularly frequented by Roman traders. But the most important of all the Italian fairs was that which was held at Soracte in the grove of Feronia, a situation than which none could be found more favourable for the exchange of commodities among the three great nations. That high isolated mountain, which appears to have been set down by nature herself in the midst of the plain of the Tiber as a goal for the traveller, lay on the

boundary which separated the Etruscan and Sabine lands (to the latter of which it appears mostly to have belonged), and it was likewise easily accessible from Latium and Umbria. Roman merchants regularly made their appearance there, and the wrongs of which they complained gave rise to many a quarrel with the Sabines.

Beyond doubt dealings of barter and traffic were carried on at these fairs long before the first Greek or Phoenician vessel entered the western sea. When bad harvests had occurred, different districts supplied each other at these fairs with grain; there, too, they exchanged cattle, slaves, metals, and whatever other articles were deemed needful or desirable in those primitive times. Oxen and sheep formed the oldest medium of exchange, ten sheep being reckoned equivalent to one ox. The recognition of these objects as universal legal representatives of value or in other words as money, as well as the scale of proportion between the large and smaller cattle, may be traced back—as the recurrence of both especially among the Germans shows—not merely to the Graeco-Italian period, but beyond this even to the epoch of a purely pastoral economy.(16) In Italy, where metal in considerable quantity was everywhere required especially for agricultural purposes and for armour, but few of its provinces themselves produced the requisite metals, copper (-aes-) very early made its appearance alongside of cattle as a second medium of exchange; and so the Latins, who were poor in copper, designated valuation itself as "coppering" (-aestimatio-). This establishment of copper as a general equivalent recognized throughout the whole peninsula, as well as the simplest numeral signs of Italian invention to be mentioned more particularly below(17) and the Italian duodecimal system, may be regarded as traces of this earliest international intercourse of the Italian peoples while they still had the peninsula to themselves.

Transmarine Traffic of the Italians

We have already indicated generally the nature of the influence exercised by transmarine commerce on the Italians who continued independent. The Sabellian stocks remained almost wholly unaffected by it. They were in possession of but a small and inhospitable belt of coast, and received whatever reached them from foreign nations—the alphabet for instance—only through the medium of the Tuscans or Latins; a circumstance which accounts for their want of urban development. The intercourse of Tarentum with the Apulians and Messapians appears to have been at this epoch still unimportant. It was otherwise along the west coast. In Campania the Greeks and Italians dwelt peacefully side by side, and in Latium, and still more in Etruria, an extensive and regular exchange of commodities took place. What were the earliest articles of import, may be inferred partly from the objects found in the primitive tombs, particularly those at Caere, partly from indications preserved in the language and institutions of the Romans, partly and chiefly from the stimulus given to Italian industry; for of course they bought foreign manufactures for a considerable time before they began to imitate them. We cannot determine how far the development of handicrafts had advanced before the separation of the stocks, or what progress it thereafter made while Italy remained left to its own resources; it is uncertain how far the Italian fullers, dyers, tanners, and potters received their impulse from Greece or Phoenicia or had their own independent development. But certainly the trade of the goldsmiths, which existed in Rome from time immemorial, can only have arisen after transmarine commerce had begun and ornaments of gold had to some extent found sale among the inhabitants of the peninsula. We find, accordingly, in the oldest sepulchral chambers of Caere and Vulci in Etruria and of Praeneste in Latium, plates of gold with winged lions stamped upon them, and similar ornaments of Babylonian manufacture. It may be a question in reference to the particular object found, whether it has been introduced from abroad or is a native imitation; but on the whole it admits of no doubt that all the west

coast of Italy in early times imported metallic wares from the East. It will be shown still more clearly in the sequel, when we come to speak of the exercise of art, that architecture and modelling in clay and metal received a powerful stimulus in very early times through Greek influence, or, in other words, that the oldest tools and the oldest models came from Greece. In the sepulchral chambers just mentioned, besides the gold ornaments, there were deposited vessels of bluish enamel or greenish clay, which, judging from the materials and style as well as from the hieroglyphics impressed upon them, were of Egyptian origin;(18) perfume-vases of Oriental alabaster, several of them in the form of Isis; ostrich-eggs with painted or carved sphinxes and griffins; beads of glass and amber. These last may have come by the land-route from the north; but the other objects prove the import of perfumes and articles of ornament of all sorts from the East. Thence came linen and purple, ivory and frankincense, as is proved by the early use of linen fillets, of the purple dress and ivory sceptre for the king, and of frankincense in sacrifice, as well as by the very ancient borrowed names for them (—linon—, -linum-; —porphura—, -purpura-; —skeiptron—, —skipon—, -scipio-; perhaps also —elephas—, -ebur-; —thuos—, -thus-). Of similar significance is the derivation of a number of words relating to articles used in eating and drinking, particularly the names of oil,(19) of jugs (—amphoreus—, -amp(h)ora-, -ampulla-, —krateir—, -cratera-), of feasting (—komazo—, -comissari-), of a dainty dish (—opsonion—, -opsonium-) of dough (—maza—, -massa-), and various names of cakes (—glukons—, -lucuns-; —plakons—, -placenta-; —turons—, -turunda-); while conversely the Latin names for dishes (-patina-, —patanei—) and for lard (-arvina-, —arbinei—) have found admission into Sicilian Greek. The later custom of placing in the tomb beside the dead Attic, Corcyrean, and Campanian vases proves, what these testimonies from language likewise show, the early market for Greek pottery in Italy. That Greek leather-work made its way into Latium at least in the shape of armour is apparent from

the application of the Greek word for leather —skutos— to signify among the Latins a shield (-scutum-; like -lorica-, from -lorum-). Finally, we deduce a similar inference from the numerous nautical terms borrowed from the Greek (although it is remarkable that the chief technical expressions in navigation—the terms for the sail, mast, and yard—are pure Latin forms);(20) and from the recurrence in Latin of the Greek designations for a letter (—epistolei—, -epistula-), a token (-tessera-, from —tessara—(21)), a balance (—stateir—, -statera-), and earnest-money (—arrabon—, -arrabo-, -arra-); and conversely from the adoption of Italian law-terms in Sicilian Greek,(22) as well as from the exchange of the proportions and names of coins, weights, and measures, which we shall notice in the sequel. The character of barbarism which all these borrowed terms obviously present, and especially the characteristic formation of the nominative from the accusative (-placenta- = —plakounta—; -ampora- = —amphorea—; -statera- = —stateira—), constitute the clearest evidence of their great antiquity. The worship of the god of traffic (-Mercurius-) also appears to have been from the first influenced by Greek conceptions; and his annual festival seems even to have been fixed on the ides of May, because the Hellenic poets celebrated him as the son of the beautiful Maia.

Commerce, in Latium Passive, in Etruria Active

It thus appears that Italy in very ancient times derived its articles of luxury, just as imperial Rome did, from the East, before it attempted to manufacture for itself after the models which it imported. In exchange it had nothing to offer except its raw produce, consisting especially of its copper, silver, and iron, but including also slaves and timber for shipbuilding, amber from the Baltic, and, in the event of bad harvests occurring abroad, its grain. From this state of things as to the commodities in demand and the equivalents to be offered in return, we have already

explained why Italian traffic assumed in Latium a form so differing from that which it presented in Etruria. The Latins, who were deficient in all the chief articles of export, could carry on only a passive traffic, and were obliged even in the earliest times to procure the copper of which they had need from the Etruscans in exchange for cattle or slaves—we have already mentioned the very ancient practice of selling the latter on the right bank of the Tiber.(23) On the other hand the Tuscan balance of trade must have been necessarily favourable in Caere as in Populonia, in Capua as in Spina. Hence the rapid development of prosperity in these regions and their powerful commercial position; whereas Latium remained preeminently an agricultural country. The same contrast recurs in all their individual relations. The oldest tombs constructed and furnished in the Greek fashion, but with an extravagance to which the Greeks were strangers, are to be found at Caere, while—with the exception of Praeneste, which appears to have occupied a peculiar position and to have been very intimately connected with Falerii and southern Etruria—the Latin land exhibits only slight ornaments for the dead of foreign origin, and not a single tomb of luxury proper belonging to the earlier times; there as among the Sabellians a simple turf ordinarily sufficed as a covering for the dead. The most ancient coins, of a time not much later than those of Magna Graecia, belong to Etruria, and to Populonia in particular: during the whole regal period Latium had to be content with copper by weight, and had not even introduced foreign coins, for the instances are extremely rare in which such coins (e.g. one of Posidonia) have been found there. In architecture, plastic art, and embossing, the same stimulants acted on Etruria and on Latium, but it was only in the case of the former that capital was everywhere brought to bear on them and led to their being pursued extensively and with growing technical skill. The commodities were upon the whole the same, which were bought, sold, and manufactured in Latium and in Etruria; but the southern land was far inferior to its northern neighbours in the energy with

which its commerce was plied. The contrast between them in this respect is shown in the fact that the articles of luxury manufactured after Greek models in Etruria found a market in Latium, particularly at Praeneste, and even in Greece itself, while Latium hardly ever exported anything of the kind.

Etrusco-Attic, and Latino-Sicilian Commerce

A distinction not less remarkable between the commerce of the Latins and that of the Etruscans appears in their respective routes or lines of traffic. As to the earliest commerce of the Etruscans in the Adriatic we can hardly do more than express the conjecture that it was directed from Spina and Atria chiefly to Corcyra. We have already mentioned⁽²⁴⁾ that the western Etruscans ventured boldly into the eastern seas, and trafficked not merely with Sicily, but also with Greece proper. An ancient intercourse with Attica is indicated by the Attic clay vases, which are so numerous in the more recent Etruscan tombs, and had been perhaps even at this time introduced for other purposes than the already-mentioned decoration of tombs, while conversely Tyrrhenian bronze candlesticks and gold cups were articles early in request in Attica. Still more definitely is such an intercourse indicated by the coins. The silver pieces of Populonia were struck after the pattern of a very old silver piece stamped on one side with the Gorgoneion, on the other merely presenting an incuse square, which has been found at Athens and on the old amber-route in the district of Posen, and which was in all probability the very coin struck by order of Solon in Athens. We have mentioned already that the Etruscans had also dealings, and perhaps after the development of the Etrusco-Carthaginian maritime alliance their principal dealings, with the Carthaginians. It is a remarkable circumstance that in the oldest tombs of Caere, besides native vessels of bronze and silver, there have been found chiefly Oriental articles, which may certainly have come

from Greek merchants, but more probably were introduced by Phoenician traders. We must not, however, attribute too great importance to this Phoenician trade, and in particular we must not overlook the fact that the alphabet, as well as the other influences that stimulated and matured native culture, were brought to Etruria by the Greeks, and not by the Phoenicians.

Latin commerce assumed a different direction. Rarely as we have opportunity of instituting comparisons between the Romans and the Etruscans as regards the reception of Hellenic elements, the cases in which such comparisons can be instituted exhibit the two nations as completely independent of each other. This is most clearly apparent in the case of the alphabet. The Greek alphabet brought to the Etruscans from the Chalcidico-Doric colonies in Sicily or Campania varies not immaterially from that which the Latins derived from the same quarter, so that, although both peoples have drawn from the same source, they have done so at different times and different places. The same phenomenon appears in particular words: the Roman Pollux and the Tuscan Pultuke are independent corruptions of the Greek Polydeukes; the Tuscan Utuze or Uthuze is formed from Odysseus, the Roman Ulixes is an exact reproduction of the form of the name usual in Sicily; in like manner the Tuscan Aivas corresponds to the old Greek form of this name, the Roman Ajax to a secondary form that was probably also Sicilian; the Roman Aperta or Apello and the Samnite Appellun have sprung from the Doric Apellon, the Tuscan Apulu from Apollon. Thus the language and writing of Latium indicate that the direction of Latin commerce was exclusively towards the Cumaeans and Siceliots. Every other trace which has survived from so remote an age leads to the same conclusion: such as, the coin of Posidonia found in Latium; the purchase of grain, when a failure of the harvest occurred in Rome, from the Volscians, Cumaeans, and Siceliots (and, as was natural, from the Etruscans as well); above all, the relations subsisting between the Latin and Sicilian monetary systems. As the local Dorico-Chalcidian designation of silver coin

—nomos—, and the Sicilian measure —eimina—, were transferred with the same meaning to Latium as -nummus- and -hemina-, so conversely the Italian designations of weight, -libra-, -triens-, -quadrans-, -sextans-, -uncia-, which arose in Latium for the measurement of the copper which was used by weight instead of money, had found their way into the common speech of Sicily in the third century of the city under the corrupt and hybrid forms, —litra—, —trias—, —tetras—, —exas—, —ougkia—. Indeed, among all the Greek systems of weights and moneys, the Sicilian alone was brought into a determinate relation to the Italian copper-system; not only was the value of silver set down conventionally and perhaps legally as two hundred and fifty times that of copper, but the equivalent on this computation of a Sicilian pound of copper ($1/120$ th of the Attic talent, $2/3$ of the Roman pound) was in very early times struck, especially at Syracuse, as a silver coin (—litra argurion—, i.e. "copper-pound in silver"). Accordingly it cannot be doubted that Italian bars of copper circulated also in Sicily instead of money; and this exactly harmonizes with the hypothesis that the commerce of the Latins with Sicily was a passive commerce, in consequence of which Latin money was drained away thither. Other proofs of ancient intercourse between Sicily and Italy, especially the adoption in the Sicilian dialect of the Italian expressions for a commercial loan, a prison, and a dish, and the converse reception of Sicilian terms in Italy, have been already mentioned.(25) We meet also with several, though less definite, traces of an ancient intercourse of the Latins with the Chalcidian cities in Lower Italy, Cumae and Neapolis, and with the Phocaeans in Velia and Massilia. That it was however far less active than that with the Siceliots is shown by the well-known fact that all the Greek words which made their way in earlier times to Latium exhibit Doric forms—we need only recall -Aesculapius-, -Latona-, -Aperta-, -machina-. Had their dealings with the originally Ionian cities, such as Cumae(26) and the Phocaean settlements, been even merely on a similar scale with those which they had with the

Sicilian Dorians, Ionic forms would at least have made their appearance along with the others; although certainly Dorism early penetrated even into these Ionic colonies themselves, and their dialect varied greatly. While all the facts thus combine to attest the stirring traffic of the Latins with the Greeks of the western main generally, and especially with the Sicilians, there hardly occurred any immediate intercourse with the Asiatic Phoenicians, and the intercourse with those of Africa, which is sufficiently attested by statements of authors and by articles found, can only have occupied a secondary position as affecting the state of culture in Latium; in particular it is significant that—if we leave out of account some local names—there is an utter absence of any evidence from language as to ancient intercourse between the Latins and the nations speaking the Aramaic tongue.(27)

If we further inquire how this traffic was mainly carried on, whether by Italian merchants abroad or by foreign merchants in Italy, the former supposition has all the probabilities in its favour, at least so far as Latium is concerned. It is scarcely conceivable that those Latin terms denoting the substitute for money and the commercial loan could have found their way into general use in the language of the inhabitants of Sicily through the mere resort of Sicilian merchants to Ostia and their receipt of copper in exchange for ornaments. Lastly, in regard to the persons and classes by whom this traffic was carried on in Italy, no special superior class of merchants distinct from and independent of the class of landed proprietors developed itself in Rome. The reason of this surprising phenomenon was, that the wholesale commerce of Latium was from the beginning in the hands of the large landed proprietors—a hypothesis which is not so singular as it seems. It was natural that in a country intersected by several navigable rivers the great landholder, who was paid by his tenants their quotas of produce in kind, should come at an early period to possess barks; and there is evidence that such was the case. The transmarine traffic conducted on the

trader's own account must therefore have fallen into the hands of the great landholder, seeing that he alone possessed the vessels for it and—in his produce—the articles for export.(28) In fact the distinction between a landed and a moneyed aristocracy was unknown to the Romans of earlier times; the great landholders were at the same time the speculators and the capitalists. In the case of a very energetic commerce such a combination certainly could not have been maintained; but, as the previous representation shows, while there was a comparatively vigorous traffic in Rome in consequence of the trade of the Latin land being there concentrated, Rome was by no means essentially a commercial city like Caere or Tarentum, but was and continued to be the centre of an agricultural community.

Notes for Book I Chapter XIII

1. I. II. Agriculture

2. I. III. Clan Villages, I. V. The Community

3. The system which we meet with in the case of the Germanic joint tillage, combining a partition of the land in property among the clansmen with its joint cultivation by the clan, can hardly ever have existed in Italy. Had each clansman been regarded in Italy, as among the Germans, in the light of proprietor of a particular spot in each portion of the collective domain that was marked off for tillage, the separate husbandry of later times would probably have set out from a minute subdivision of hides. But the very opposite was the case; the individual names of the Roman hides (-fundus Cornelianus-) show clearly that the Roman proprietor owned from the beginning a possession not broken up but united.

4. Cicero (de Rep. ii. 9, 14, comp. Plutarch, Q. Rom. 15) states: -Tum (in the time of Romulus) erat res in pecore et locorum possessionibus, ex quo pecuniosi et locupletes vocabantur—(Numa) primum agros, quos bello Romulus ceperat, divisit viritim civibus-. In like manner Dionysius represents Romulus as dividing the land into thirty curial districts, and Numa as establishing boundary-stones and introducing the festival of the Terminalia (i. 7, ii. 74; and thence Plutarch, -Numa-, 16).

5. I. XI. Contracts

6. Since this assertion still continues to be disputed, we shall let the numbers speak for themselves. The Roman writers on agriculture of the later republic and the imperial period reckon on an average five -modii- of wheat as sufficient to sow a -jugerum-, and the produce as fivefold. The produce of a -heredium- accordingly (even when, without taking into view the space occupied by the dwelling-house and farm-yard, we regard it as entirely arable land, and make no account of years of fallow) amounts to fifty, or deducting the seed forty, modii. For an adult hard-working slave Cato (c. 56) reckons fifty-one -modii- of wheat as the annual consumption. These data enable any one to answer for himself the question whether a Roman family could or could not subsist on the produce of a -heredium-. The attempted proof to the contrary is based on the ground that the slave of later times subsisted more exclusively on corn than the free farmer of the earlier epoch, and that the assumption of a fivefold return is one too low for this earlier epoch; both assumptions are probably correct, but for both there is a limit. Doubtless the subsidiary produce yielded by the arable land itself and by the common pasture, such as figs, vegetables, milk, flesh (especially as derived from the old and zealously pursued rearing of swine), and the like, are specially to be taken into account for the older period; but the older Roman pastoral husbandry, though not unimportant, was withal of subordinate importance, and the chief subsistence of the people was always

notoriously grain. We may, moreover, on account of the thoroughness of the earlier cultivation obtain a very considerable increase, especially of the gross produce—and beyond doubt the farmers of this period drew a larger produce from their lands than the great landholders of the later republic and the empire obtained (iii. Latium); but moderation must be exercised in forming such estimates, because we have to deal with a question of averages and with a mode of husbandry conducted neither methodically nor with large capital. The assumption of a tenfold instead of a fivefold return will be the utmost limit, and yet it is far from sufficing. In no case can the enormous deficit, which is left even according to those estimates between the produce of the -heredium- and the requirements of the household, be covered by mere superiority of cultivation. In fact the counter-proof can only be regarded as successful, when it shall have produced a methodical calculation based on rural economics, according to which among a population chiefly subsisting on vegetables the produce of a piece of land of an acre and a quarter proves sufficient on an average for the subsistence of a family.

It is indeed asserted that instances occur even in historical times of colonies founded with allotments of two -jugera-; but the only instance of the kind (Liv. iv. 47) is that of the colony of Labici in the year 336—an instance, which will certainly not be reckoned (by such scholars as are worth the arguing with) to belong to the class of traditions that are trustworthy in their historical details, and which is beset by other very serious difficulties (see book ii. ch. 5, note). It is no doubt true that in the non-colonial assignation of land to the burgesses collectively (-adsignatio viritana-) sometimes only a few -jugera- were granted (as e. g. Liv. viii. ii, 21). In these cases however it was the intention not to create new farms with the allotments, but rather, as a rule, to add to the existing farms new parcels from the conquered lands (comp. C. I. L. i. p. 88). At any rate, any supposition is better than a hypothesis which requires us to believe as it

were in a miraculous multiplication of the food of the Roman household. The Roman farmers were far less modest in their requirements than their historiographers; they themselves conceived that they could not subsist even on allotments of seven -jugera- or a produce of one hundred and forty -modii-.

7. I. VI. Time and Occasion of the Reform

8. Perhaps the latest, although probably not the last, attempt to prove that a Latin farmer's family might have subsisted on two -jugera- of land, finds its chief support in the argument that Varro (de R. R. i. 44, i) reckons the seed requisite for the -jugerum- at five -modii- of wheat but ten -modii- of spelt, and estimates the produce as corresponding to this, whence it is inferred that the cultivation of spelt yielded a produce, if not double, at least considerably higher than that of wheat. But the converse is more correct, and the nominally higher quantity sown and reaped is simply to be explained by the fact that the Romans garnered and sowed the wheat already shelled, but the spelt still in the husk (Pliny, H. N. xviii. 7, 61), which in this case was not separated from the fruit by threshing. For the same reason spelt is at the present day sown twice as thickly as wheat, and gives a produce twice as great by measure, but less after deduction of the husks. According to Wurtemberg estimates furnished to me by G. Hanssen, the average produce of the Wurtemberg -morgen- is reckoned in the case of wheat (with a sowing of $\frac{1}{4}$ to $\frac{1}{2}$ -scheffel-) at 3 -scheffel- of the medium weight of 275 lbs. (= 825 lbs.); in the case of spelt (with a sowing of $\frac{1}{2}$ to $1\frac{1}{2}$ -scheffel-) at least 7 -scheffel- of the medium weight of 150 lbs. (= 1050 lbs.), which are reduced by shelling to about 4 -scheffel-. Thus spelt compared with wheat yields in the gross more than double, with equally good soil perhaps triple the crop, but—by specific weight—before the shelling not much above, after shelling (as "kernel") less than, the half. It was not by mistake, as has been asserted, but because it was fitting in

computations of this sort to start from estimates of a like nature handed down to us, that the calculation instituted above was based on wheat; it may stand, because, when transferred to spelt, it does not essentially differ and the produce rather falls than rises. Spelt is less nice as to soil and climate, and exposed to fewer risks than wheat; but the latter yields on the whole, especially when we take into account the not inconsiderable expenses of shelling, a higher net produce (on an average of fifty years in the district of Frankenthal in Rhenish Bavaria the -malter- of wheat stands at 11 -gulden- 3 krz., the -malter- of spelt at 4 -gulden- 30 krz.), and, as in South Germany, where the soil admits, the growing of wheat is preferred and generally with the progress of cultivation comes to supersede that of spelt, so the analogous transition of Italian agriculture from the culture of spelt to that of wheat was undeniably a progress.

9. I. II. Agriculture

10. -Oleum- and -oliva- are derived from —elaion—, —elaia—, and -amurca- (oil-less) from —amorgei—.

11. But there is no proper authority for the statement that the fig-tree which stood in front of the temple of Saturn was cut down in the year 260 (Plin. H. N. xv. 18, 77); the date CCLX. is wanting in all good manuscripts, and has been interpolated, probably with reference to Liv. ii. 21.

12. I. XI. Property

13. I. VI. Class of —Metoeci— Subsisting by the Side of the Community

14. I. XI. Guardianship

15. I. XII. Oldest Table of Roman Festivals

16. The comparative legal value of sheep and oxen, as is well known, is proved by the fact that, when the cattle-fines were converted into money-fines, the sheep was rated at ten, and the ox at a hundred asses (Festus, v. -peculatus-, p. 237, comp. pp. 34, 144; Gell. xi. i; Plutarch, Poplicola, ii). By a similar adjustment the Icelandic law makes twelve rams equivalent to a cow; only in this as in other instances the Germanic law has substituted the duodecimal for the older decimal system.

It is well known that the term denoting cattle was transferred to denote money both among the Latins (-pecunia-) and among the Germans (English fee).

17. I. XIV. Decimal System

18. There has lately been found at Praeneste a silver mixing-jug, with a Phoenician and a hieroglyphic inscription (Mon. dell Inst. x. plate 32), which directly proves that such Egyptian wares as come to light in Italy have found their way thither through the medium of the Phoenicians.

19. comp. I. XIII. Culture of the Olive

20. -Velum- is certainly of Latin origin; so is -malus-, especially as that term denotes not merely the mast, but the tree in general: -antenna- likewise may come from —ana— (-anhelare-, -antestari-), and -tendere- = -supertensa-. Of Greek origin, on the other hand, are -gubenare-, to steer (—kubernan—); -ancora-, anchor (—agkura—); -prora-, ship's bow (—prora—); -aplustre-, ship's stern (—aphlaston—); -anquina-, the rope fastening the yards (—agkoina—); -nausea-, sea-sickness (—nausia—). The four chief winds of the ancients- -aquilo-, the "eagle-wind," the north-easterly Tramontana; -voltumus- (of uncertain derivation, perhaps the "vulture-wind"), the south-easterly; -auster- the "scorching" southwest wind, the Sirocco; -favonius-, the "favourable" north-west wind blowing from the

Tyrrhene Sea—have indigenous names bearing no reference to navigation; but all the other Latin names for winds are Greek (such as -eurus-, -notus-), or translations from the Greek (e.g. -solanus- = —apelioteis—, -Africus- = —lips—).

21. This meant in the first instance the tokens used in the service of the camp, the —xuleiphia kata phulakein brachea teleos echonta charakteira— (Polyb. vi. 35, 7); the four -vigiliae- of the night-service gave name to the tokens generally. The fourfold division of the night for the service of watching is Greek as well as Roman; the military science of the Greeks may well have exercised an influence—possibly through Pyrrhus (Liv. xxxv. 14)—in the organization of the measures for security in the Roman camp. The employment of the non-Doric form speaks for the comparatively late date at which the word was taken over.

22. I. XI. Character of the Roman Law

23. I. VII. Relation of Rome to Latium

24. I. X. Etruscan Commerce

25. I. XI. Clients and Foreigners, I. XIII. Commerce, in Latium Passive, in Etruria Active

26. I. X. Greek Cities Near Vesuvius

27. If we leave out of view -Sarranus-, -Afer-, and other local designations (I. X. Phoenicians and Italians in Opposition to the Hellenes), the Latin language appears not to possess a single word immediately derived in early times from the Phoenician. The very few words from Phoenician roots which occur in it, such as -arrabo- or -arra- and perhaps also -murra-, -nardus-, and the like, are plainly borrowed proximately from

the Greek, which has a considerable number of such words of Oriental extraction as indications of its primitive intercourse with the Aramaeans. That —*elephas*— and *-ebur-* should have come from the same Phoenician original with or without the addition of the article, and thus have been each formed independently, is a linguistic impossibility, as the Phoenician article is in reality *-ha-*, and is not so employed; besides the Oriental primitive word has not as yet been found. The same holds true of the enigmatical word *-thesaurus-*; whether it may have been originally Greek or borrowed by the Greeks from the Phoenician or Persian, it is at any rate, as a Latin word, derived from the Greek, as the very retaining of its aspiration proves (xii. Foreign Worships).

28. Quintus Claudius, in a law issued shortly before 534, prohibited the senators from having sea-going vessels holding more than 300 *-amphorae-* (1 amph. = nearly 6 gallons): *-id satis habitum ad fructus ex agris vectandos; quaestus omnis patribus indecorus visus-* (Liv. xxi. 63). It was thus an ancient usage, and was still permitted, that the senators should possess sea-going vessels for the transport of the produce of their estates: on the other hand, transmarine mercantile speculation (*-quaestus-*, traffic, fitting-out of vessels, &c.) on their part was prohibited. It is a curious fact that the ancient Greeks as well as the Romans expressed the tonnage of their sea-going ships constantly in *amphorae*; the reason evidently being, that Greece as well as Italy exported wine at a comparatively early period, and on a larger scale than any other bulky article.

CHAPTER XIV

Measuring and Writing

The art of measuring brings the world into subjection to man; the art of writing prevents his knowledge from perishing along with himself; together they make man—what nature has not made him—all-powerful and eternal. It is the privilege and duty of history to trace the course of national progress along these paths also.

Italian Measures

Measurement necessarily presupposes the development of the several ideas of units of time, of space, and of weight, and of a whole consisting of equal parts, or in other words of number and of a numeral system. The most obvious bases presented by nature for this purpose are, in reference to time, the periodic returns of the sun and moon, or the day and the month; in reference to space, the length of the human foot, which is more easily applied in measuring than the arm; in reference to gravity, the burden which a man is able to poise (-librare-) on his hand while he holds his arm stretched out, or the "weight" (-libra-). As a basis for the notion of a whole made up of equal parts, nothing so readily suggests itself as the hand with

its five, or the hands with their ten, fingers; upon this rests the decimal system. We have already observed that these elements of all numeration and measuring reach back not merely beyond the separation of the Greek and Latin stocks, but even to the most remote primeval times. The antiquity in particular of the measurement of time by the moon is demonstrated by language;(1) even the mode of reckoning the days that elapse between the several phases of the moon, not forward from the phase on which it had entered last, but backward from that which was next to be expected, is at least older than the separation of the Greeks and Latins.

Decimal System

The most definite evidence of the antiquity and original exclusive use of the decimal system among the Indo-Germans is furnished by the well-known agreement of all Indo-Germanic languages in respect to the numerals as far as a hundred inclusive.(2) In the case of Italy the decimal system pervaded all the earliest arrangements: it may be sufficient to recall the number ten so usual in the case of witnesses, securities, envoys, and magistrates, the legal equivalence of one ox and ten sheep, the partition of the canton into ten curies and the pervading application generally of the decurial system, the -limitatio-, the tenth in offerings and in agriculture, decimation, and the praenomen -Decimus-. Among the applications of this most ancient decimal system in the sphere of measuring and of writing, the remarkable Italian ciphers claim a primary place. When the Greeks and Italians separated, there were still evidently no conventional signs of number. On the other hand we find the three oldest and most indispensable numerals, one, five, and ten, represented by three signs—I, V or Λ, X, manifestly imitations of the outstretched finger, and the open hand single and double—which were not derived either from the Hellenes or the Phoenicians, but were common to the Romans, Sabellians, and Etruscans.

They were the first steps towards the formation of a national Italian writing, and at the same time evidences of the liveliness of that earlier inland intercourse among the Italians which preceded their transmarine commerce. (3) Which of the Italian stocks invented, and which of them borrowed, these signs, can of course no longer be ascertained. Other traces of the pure decimal system occur but sparingly in this field; among them are the -versus-, the Sabellian measure of surface of 100 square feet,(4) and the Roman year of 10 months.

The Duodecimal System

Otherwise generally in the case of those Italian measures, which were not connected with Greek standards and were probably developed by the Italians before they came into contact with the Greeks, there prevailed the partition of the "whole" (-as-) into twelve "units" (-unciae-). The very earliest Latin priesthoods, the colleges of the Salii and Arvales,(5) as well as the leagues of the Etruscan cities, were organized on the basis of the number twelve. The same number predominated in the Roman system of weights and in the measures of length, where the pound (-libra-) and the foot (-pes-) were usually subdivided into twelve parts; the unit of the Roman measures of surface was the "driving" (-actus-) of 120 square feet, a combination of the decimal and duodecimal systems.(6) Similar arrangements as to the measures of capacity may have passed into oblivion.

If we inquire into the basis of the duodecimal system and consider how it can have happened that, in addition to ten, twelve should have been so early and universally singled out from the equal series of numbers, we shall probably be able to find no other source to which it can be referred than a comparison of the solar and lunar periods. Still more than the double hand of ten fingers did the solar cycle of nearly twelve lunar periods first suggest

to man the profound conception of an unit composed of equal units, and thereby originate the idea of a system of numbers, the first step towards mathematical thought. The consistent duodecimal development of this idea appears to have belonged to the Italian nation, and to have preceded the first contact with the Greeks.

Hellenic Measures in Italy

But when at length the Hellenic trader had opened up the route to the west coast of Italy, the measures of surface remained unaffected, but the measures of length, of weight, and above all of capacity—in other words those definite standards without which barter and traffic are impossible—experienced the effects of the new international intercourse. The oldest Roman foot has disappeared; that which we know, and which was in use at a very early period among the Romans, was borrowed from Greece, and was, in addition to its new Roman subdivision into twelfths, divided after the Greek fashion into four hand-breadths (-palmus-) and sixteen finger-breadths (-digitus-). Further, the Roman weights were brought into a fixed proportional relation to the Attic system, which prevailed throughout Sicily but not in Cumae—another significant proof that the Latin traffic was chiefly directed to the island; four Roman pounds were assumed as equal to three Attic -minae-, or rather the Roman pound was assumed as equal to one and a half of the Sicilian -litrae- or half-minae.(7) But the most singular and chequered aspect is presented by the Roman measures of capacity, as regards both their names and their proportions. Their names have come from the Greek terms either by corruption (-amphora-, -modius- after —medimnos—, -congius- from —choeus—, -hemina-, -cyathus-) or by translation (-acetabulum—from —ozubaphon—); while conversely —zesteis— is a corruption of -sextarius-. All the measures are not identical, but those in most common use are so; among liquid measures the -congius- or -

chus-, the -sextarius-, and the -cyathus-, the two last also for dry goods; the Roman -amphora- was equalized in water-weight to the Attic talent, and at the same time stood to the Greek —metretes— in the fixed ratio of 3:2, and to the Greek —medimnos— of 2:1. To one who can decipher the significance of such records, these names and numerical proportions fully reveal the activity and importance of the intercourse between the Sicilians and the Latins. The Greek numeral signs were not adopted; but the Roman probably availed himself of the Greek alphabet, when it reached him, to form ciphers for 50 and 1000, perhaps also for 100, out of the signs for the three aspirated letters which he had no use for. In Etruria the sign for 100 at least appears to have been obtained in a similar way. Afterwards, as usually happens, the systems of notation among the two neighbouring nations became assimilated by the adoption in substance of the Roman system in Etruria.

The Italian Calendar before the Period of Greek Influence in Italy

In like manner the Roman calendar—and probably that of the Italians generally—began with an independent development of its own, but subsequently came under the influence of the Greeks. In the division of time the returns of sunrise and sunset, and of the new and full moon, most directly arrest the attention of man; and accordingly the day and the month, determined not by cyclic calculation but by direct observation, were long the exclusive measures of time. Down to a late age sunrise and sunset were proclaimed in the Roman market-place by the public crier, and in like manner it may be presumed that in earlier times, at each of the four phases of the moon, the number of days that would elapse from that phase until the next was proclaimed by the priests. The mode of reckoning therefore in Latium—and the like mode, it may be presumed, was in use not merely among the Sabellians, but also among the Etruscans—was by days, which,

as already mentioned, were counted not forward from the phase that had last occurred, but backward from that which was next expected; by lunar weeks, which varied in length between 7 and 8 days, the average length being $7 \frac{3}{8}$; and by lunar months which in like manner were sometimes of 29, sometimes of 30 days, the average duration of the synodical month being 29 days 12 hours 44 minutes. For some time the day continued to be among the Italians the smallest, and the month the largest, division of time. It was not until afterwards that they began to distribute day and night respectively into four portions, and it was much later still when they began to employ the division into hours; which explains why even stocks otherwise closely related differed in their mode of fixing the commencement of day, the Romans placing it at midnight, the Sabellians and the Etruscans at noon. No calendar of the year had, at least when the Greeks separated from the Italians, as yet been organized, for the names for the year and its divisions in the two languages have been formed quite independently of each other. Nevertheless the Italians appear to have already in the pre-Hellenic period advanced, if not to the arrangement of a fixed calendar, at any rate to the institution of two larger units of time. The simplifying of the reckoning according to lunar months by the application of the decimal system, which was usual among the Romans, and the designation of a term of ten months as a "ring" (-annus-) or complete year, bear in them all the traces of a high antiquity. Later, but still at a period very early and undoubtedly previous to the operation of Greek influences, the duodecimal system (as we have already stated) was developed in Italy, and, as it derived its very origin from the observation of the fact that the solar period was equal to twelve lunar periods, it was certainly applied in the first instance to the reckoning of time. This view accords with the fact that the individual names of the months—which can only have originated after the month was viewed as part of a solar year—particularly those of March and of May, were similar among the different branches of the Italian stock,

while there was no similarity between the Italian names and the Greek. It is not improbable therefore that the problem of laying down a practical calendar which should correspond at once to the moon and the sun—a problem which may be compared in some sense to the quadrature of the circle, and the solution of which was only recognized as impossible and abandoned after the lapse of many centuries—had already employed the minds of men in Italy before the epoch at which their contact with the Greeks began; these purely national attempts to solve it, however, have passed into oblivion.

The Oldest Italo-Greek Calendar

What we know of the oldest calendar of Rome and of some other Latin cities—as to the Sabellian and Etruscan measurement of time we have no traditional information—is decidedly based on the oldest Greek arrangement of the year, which was intended to answer both to the phases of the moon and to the seasons of the solar year, constructed on the assumption of a lunar period of $29 \frac{1}{2}$ days and a solar period of $12 \frac{1}{2}$ lunar months or $368 \frac{3}{4}$ days, and on the regular alternation of a full month or month of thirty days with a hollow month or month of twenty-nine days and of a year of twelve with a year of thirteen months, but at the same time maintained in some sort of harmony with the actual celestial phenomena by arbitrary curtailments and intercalations. It is possible that this Greek arrangement of the year in the first instance came into use among the Latins without undergoing any alteration; but the oldest form of the Roman year which can be historically recognized varied from its model, not indeed in the cyclical result nor yet in the alternation of years of twelve with years of thirteen months, but materially in the designation and in the measuring off of the individual months. The Roman year began with the beginning of spring; the first month in it and the only one which bears the name of a god,

was named from Mars (-Martius-), the three following from sprouting (-aprilis-) growing (-maius-), and thriving (-iunius-), the fifth onward to the tenth from their ordinal numbers (-quintilis-, -sextilis-, -september-, -october-, -november-, -december), the eleventh from commencing (-ianuarius-),(8) with reference presumably to the renewal of agricultural operations that followed midwinter and the season of rest, the twelfth, and in an ordinary year the last, from cleansing (-februarius-). To this series recurring in regular succession there was added in the intercalary year a nameless "labour-month" (-mercedonius-) at the close of the year, viz. after February. And, as the Roman calendar was independent as respected the names of the months which were probably taken from the old national ones, it was also independent as regarded their duration. Instead of the four years of the Greek cycle, each composed of six months of 30 and six of 29 days and an intercalary month inserted every second year alternately of 29 and 30 days ($354 + 384 + 354 + 383 = 1475$ days), the Roman calendar substituted four years, each containing four months—the first, third, fifth, and eighth—of 31 days and seven of 29 days, with a February of 28 days during three years and of 29 in the fourth, and an intercalary month of 27 days inserted every second year ($355 + 383 + 355 + 382 = 1475$ days). In like manner this calendar departed from the original division of the month into four weeks, sometimes of 7, sometimes of 8 days; it made the eight-day-week run on through the years without regard to the other relations of the calendar, as our Sundays do, and placed the weekly market on the day with which it began (-noundinae-). Along with this it once for all fixed the first quarter in the months of 31 days on the seventh, in those of 29 on the fifth day, and the full moon in the former on the fifteenth, in the latter on the thirteenth day. As the course of the months was thus permanently arranged, it was henceforth necessary to proclaim only the number of days lying between the new moon and the first quarter; thence the day of the newmoon received the name of "proclamation-day" (-kalendae-). The first

day of the second section of the month, uniformly of 8 days, was—in conformity with the Roman custom of reckoning, which included the -terminus ad quem- —designated as "nine-day" (-nonae-). The day of the full moon retained the old name of -idus- (perhaps "dividing-day"). The motive lying at the bottom of this strange remodelling of the calendar seems chiefly to have been a belief in the salutary virtue of odd numbers;(9) and while in general it is based on the oldest form of the Greek year, its variations from that form distinctly exhibit the influence of the doctrines of Pythagoras, which were then paramount in Lower Italy, and which especially turned upon a mystic view of numbers. But the consequence was that this Roman calendar, clearly as it bears traces of the desire that it should harmonize with the course both of sun and moon, in reality by no means so corresponded with the lunar course as did at least on the whole its Greek model, while, like the oldest Greek cycle, it could only follow the solar seasons by means of frequent arbitrary excisions, and did in all probability follow them but very imperfectly, for it is scarcely likely that the calendar would be handled with greater skill than was manifested in its original arrangement. The retention moreover of the reckoning by months or—which is the same thing—by years of ten months implies a tacit, but not to be misunderstood, confession of the irregularity and untrustworthiness of the oldest Roman solar year. This Roman calendar may be regarded, at least in its essential features, as that generally current among the Latins. When we consider how generally the beginning of the year and the names of the months are liable to change, minor variations in the numbering and designations are quite compatible with the hypothesis of a common basis; and with such a calendar-system, which practically was irrespective of the lunar course, the Latins might easily come to have their months of arbitrary length, possibly marked off by annual festivals—as in the case of the Alban months, which varied between 16 and 36 days. It would appear probable therefore that the Greek —trieteris— had early been

introduced from Lower Italy at least into Latium and perhaps also among the other Italian stocks, and had thereafter been subjected in the calendars of the several cities to further subordinate alterations.

For the measuring of periods of more than one year the regnal years of the kings might have been employed: but it is doubtful whether that method of dating, which was in use in the East, occurred in Greece or Italy during earlier times. On the other hand the intercalary period recurring every four years, and the census and lustration of the community connected with it, appear to have suggested a reckoning by -lustra- similar in plan to the Greek reckoning by Olympiads—a method, however, which early lost its chronological significance in consequence of the irregularity that now prevailed as to the due holding of the census at the right time.

Introduction of Hellenic Alphabets into Italy

The art of expressing sounds by written signs was of later origin than the art of measurement. The Italians did not any more than the Hellenes develop such an art of themselves, although we may discover attempts at such a development in the Italian numeral signs,⁽¹⁰⁾ and possibly also in the primitive Italian custom—formed independently of Hellenic influence—of drawing lots by means of wooden tablets. The difficulty which must have attended the first individualizing of sounds—occurring as they do in so great a variety of combinations—is best demonstrated by the fact that a single alphabet propagated from people to people and from generation to generation has sufficed, and still suffices, for the whole of Aramaic, Indian, Graeco-Roman, and modern civilization; and this most important product of the human intellect was the joint creation of the Aramaeans and the Indo-Germans. The Semitic family of languages, in which the vowel has a subordinate character and never can begin a word, facilitates on that very

account the individualizing of the consonants; and it was among the Semites accordingly that the first alphabet—in which the vowels were still wanting—was invented. It was the Indians and Greeks who first independently of each other and by very divergent methods created, out of the Aramaean consonantal writing brought to them by commerce, a complete alphabet by the addition of the vowels—which was effected by the application of four letters, which the Greeks did not use as consonantal signs, for the four vowels -a -e -i -o, and by the formation of a new sign for -u—in other words by the introduction of the syllable into writing instead of the mere consonant, or, as Palamedes says in Euripides,

—Ta teis ge leitheis pharmak orthosas monos
Aphona kai phonounta, sullabas te theis,
Ezeupon anthropoisi grammat eidenai.—

This Aramaeo-Hellenic alphabet was accordingly brought to the Italians through the medium, doubtless, of the Italian Hellenes; not, however, through the agricultural colonies of Magna Graecia, but through the merchants possibly of Cumae or Tarentum, by whom it would be brought in the first instance to the very ancient emporia of international traffic in Latium and Etruria—to Rome and Caere. The alphabet received by the Italians was by no means the oldest Hellenic one; it had already experienced several modifications, particularly the addition of the three letters —"id:xi", —"id:phi", —"id:chi" and the alteration of the signs for —"id:iota", —"id:gamma", —"id:lambda".(11) We have already observed(12) that the Etruscan and Latin alphabets were not derived the one from the other, but both directly from the Greek; in fact the Greek alphabet came to Etruria in a form materially different from that which reached Latium. The Etruscan alphabet has a double sign -s (sigma -"id:s" and san -"id:sh") and only a single -k,(13) and of the -r only the older form -"id:P"; the Latin has, so far as we know, only a single -s, but a double sign for -k

(kappa -"id:k" and koppa -"id:q") and of the -r almost solely the more recent form -"id:R". The oldest Etruscan writing shows no knowledge of lines, and winds like the coiling of a snake; the more recent employs parallel broken-off lines from right to left: the Latin writing, as far as our monuments reach back, exhibits only the latter form of parallel lines, which originally perhaps may have run at pleasure from left to right or from right to left, but subsequently ran among the Romans in the former, and among the Faliscans in the latter direction. The model alphabet brought to Etruria must notwithstanding its comparatively remodelled character reach back to an epoch very ancient, though not positively to be determined; for, as the two sibilants sigma and san were always used by the Etruscans as different sounds side by side, the Greek alphabet which came to Etruria must doubtless still have possessed both of them in this way as living signs of sound; but among all the monuments of the Greek language known to us not one presents sigma and san in simultaneous use.

The Latin alphabet certainly, as we know it, bears on the whole a more recent character; and it is not improbable that the Latins did not simply receive the alphabet once for all, as was the case in Etruria, but in consequence of their lively intercourse with their Greek neighbours kept pace for a considerable period with the alphabet in use among these, and followed its variations. We find, for instance, that the forms -"id:ΛΛ", -"id:P",⁽¹⁴⁾ and -"id:SIGMA" were not unknown to the Romans, but were superseded in common use by the later forms -"id:ΛΛ", -"id:R", and -"id:S"—a circumstance which can only be explained by supposing that the Latins employed for a considerable period the Greek alphabet as such in writing either their mother-tongue or Greek. It is dangerous therefore to draw from the more recent character of the Greek alphabet which we meet with in Rome, as compared with the older character of that brought to Etruria, the inference that writing was practised earlier in Etruria than in Rome.

The powerful impression produced by the acquisition of the treasure of letters on those who received them, and the vividness with which they realized the power that slumbered in those humble signs, are illustrated by a remarkable vase from a sepulchral chamber of Caere built before the invention of the arch, which exhibits the old Greek model alphabet as it came to Etruria, and also an Etruscan syllabarium formed from it, which may be compared to that of Palamedes—evidently a sacred relic of the introduction and acclimatization of alphabetic writing in Etruria.

Development of Alphabets in Italy

Not less important for history than the derivation of the alphabet is the further course of its development on Italian soil: perhaps it is even of more importance; for by means of it a gleam of light is thrown upon the inland commerce of Italy, which is involved in far greater darkness than the commerce with foreigners on its coasts. In the earliest epoch of Etruscan writing, when the alphabet was used without material alteration as it had been introduced, its use appears to have been restricted to the Etruscans on the Po and in what is now Tuscany. In course of time this alphabet, manifestly diffusing itself from Atria and Spina, reached southward along the east coast as far as the Abruzzi, northward to the Veneti and subsequently even to the Celts at the foot of, among, and indeed beyond the Alps, so that its last offshoots reached as far as the Tyrol and Styria. The more recent epoch starts with a reform of the alphabet, the chief features of which were the introduction of writing in broken-off lines, the suppression of the *-id:o*, which was no longer distinguished in pronunciation from the *-id:u*, and the introduction of a new letter *-id:f* for which the alphabet as received by them had no corresponding sign. This reform evidently arose among the western Etruscans, and while it did not find reception beyond the Apennines, became naturalized among all the Sabellian tribes, and

especially among the Umbrians. In its further course the alphabet experienced various fortunes in connection with the several stocks, the Etruscans on the Arno and around Capua, the Umbrians and the Samnites; frequently the mediae were entirely or partially lost, while elsewhere again new vowels and consonants were developed. But that West-Etruscan reform of the alphabet was not merely as old as the oldest tombs found in Etruria; it was considerably older, for the syllabarium just mentioned as found probably in one of these tombs already presents the reformed alphabet in an essentially modified and modernized shape; and, as the reformed alphabet itself is relatively recent as compared with the primitive one, the mind almost fails in the effort to reach back to the time when that alphabet came to Italy. While the Etruscans thus appear as the instruments in diffusing the alphabet in the north, east, and south of the peninsula, the Latin alphabet on the other hand was confined to Latium, and maintained its ground, upon the whole, there with but few alterations; only the letters *-id:gamma* - *-id:kappa* and *-id:zeta* - *-id:sigma* gradually became coincident in sound, the consequence of which was, that in each case one of the homophonous signs (*-id:kappa* - *-id:zeta*) disappeared from writing. In Rome it can be shown that these were already laid aside before the end of the fourth century of the city,(15) and the whole monumental and literary tradition that has reached us knows nothing of them, with a single exception.(16) Now when we consider that in the oldest abbreviations the distinction between *-id:gamma* - *-id:c* and *-id:kappa* - *-id:k* is still regularly maintained;(17) that the period, accordingly, when the sounds became in pronunciation coincident, and before that again the period during which the abbreviations became fixed, lies beyond the beginning of the Samnite wars; and lastly, that a considerable interval must necessarily have elapsed between the introduction of writing and the establishment of a conventional system of abbreviation; we must, both as regards Etruria and Latium, carry back the commencement of the art of writing to an epoch which more closely

approximates to the first incidence of the Egyptian Sirius-period within historical times, the year 1321 B.C., than to the year 776, with which the chronology of the Olympiads began in Greece.(18) The high antiquity of the art of writing in Rome is evinced otherwise by numerous and plain indications. The existence of documents of the regal period is sufficiently attested; such was the special treaty between Rome and Gabii, which was concluded by a king Tarquinius and probably not by the last of that name, and which, written on the skin of the bullock sacrificed on the occasion, was preserved in the temple of Sancus on the Quirinal, which was rich in antiquities and probably escaped the conflagration of the Gauls; and such was the alliance which king Servius Tullius concluded with Latium, and which Dionysius saw on a copper tablet in the temple of Diana on the Aventine. What he saw, however, was probably a copy restored after the fire with the help of a Latin exemplar, for it was not likely that engraving on metal was practised as early as the time of the kings. The charters of foundation of the imperial period still refer to the charter founding this temple as the oldest document of the kind in Rome and the common model for all. But even then they scratched (-exarare-, -scribere-, akin to -scrobes- (19)) or painted (-linere-, thence -littera-) on leaves (-folium-), inner bark (-liber-), or wooden tablets (-tabula-, -album-), afterwards also on leather and linen. The sacred records of the Samnites as well as of the priesthood of Anagnia were inscribed on linen rolls, and so were the oldest lists of the Roman magistrates preserved in the temple of the goddess of recollection (-Iuno moneta-) on the Capitol. It is scarcely necessary to recall further proofs in the primitive marking of the pastured cattle (-scriptura-), in the mode of addressing the senate, "fathers and enrolled" (-patres conscripti-), and in the great antiquity of the books of oracles, the clan-registers, and the Alban and Roman calendars. When Roman tradition speaks of halls in the Forum, where the boys and girls of quality were taught to read and write, already in the earliest times of the republic, the statement may be, but is not

necessarily to be deemed, an invention. We have been deprived of information as to the early Roman history, not in consequence of the want of a knowledge of writing, or even perhaps of the lack of documents, but in consequence of the incapacity of the historians of the succeeding age, which was called to investigate the history, to work out the materials furnished by the archives, and of the perversity which led them to desire for the earliest epoch a delineation of motives and of characters, accounts of battles and narratives of revolutions, and while engaged in inventing these, to neglect what the extant written tradition would not have refused to yield to the serious and self-denying inquirer.

Results

The history of Italian writing thus furnishes in the first place a confirmation of the weak and indirect influence exercised by the Hellenic character over the Sabellians as compared with the more western peoples. The fact that the former received their alphabet from the Etruscans and not from the Romans is probably to be explained by supposing that they already possessed it before they entered upon their migration along the ridge of the Apennines, and that therefore the Sabines as well as Samnites carried it along with them from the mother-land to their new abodes. On the other hand this history of writing contains a salutary warning against the adoption of the hypothesis, originated by the later Roman culture in its devotedness to Etruscan mysticism and antiquarian trifling, and patiently repeated by modern and even very recent inquirers, that Roman civilization derived its germ and its pith from Etruria. If this were the truth, some trace of it ought to be more especially apparent in this field; but on the contrary the germ of the Latin art of writing was Greek, and its development was so national, that it did not even adopt the very desirable Etruscan sign for "id:f".(20) Indeed, where there is an appearance of borrowing, as in the numeral signs,

it is on the part of the Etruscans, who took over from the Romans at least the sign for 50.

Corruption of Language and Writing

Lastly it is a significant fact, that among all the Italian stocks the development of the Greek alphabet primarily consisted in a process of corruption. Thus the *-mediae-* disappeared in the whole of the Etruscan dialects, while the Umbrians lost *-id:gamma* and *-id:d*, the Samnites *-id:d*, and the Romans *-id:gamma*; and among the latter *-id:d* also threatened to amalgamate with *-id:r*. In like manner among the Etruscans *-id:o* and *-id:u* early coalesced, and even among the Latins we meet with a tendency to the same corruption. Nearly the converse occurred in the case of the sibilants; for while the Etruscan retained the three signs *-id:z*, *-id:s*, *-id:sh*, and the Umbrian rejected the last but developed two new sibilants in its room, the Samnite and the Faliscan confined themselves like the Greek to *-id:s* and *-id:z*, and the Roman of later times even to *-id:s* alone. It is plain that the more delicate distinctions of sound were duly felt by the introducers of the alphabet, men of culture and masters of two languages; but after the national writing became wholly detached from the Hellenic mother-alphabet, the *-mediae-* and their *-tenues-* gradually came to coincide, and the sibilants and vowels were thrown into disorder—transpositions or rather destructions of sound, of which the first in particular is entirely foreign to the Greek. The destruction of the forms of flexion and derivation went hand in hand with this corruption of sounds. The cause of this barbarization was thus, upon the whole, simply the necessary process of corruption which is continuously eating away every language, where its progress is not stemmed by literature and reason; only in this case indications of what has elsewhere passed away without leaving a trace have been preserved in the writing of sounds. The circumstance that this

barbarizing process affected the Etruscans more strongly than any other of the Italian stocks adds to the numerous proofs of their inferior capacity for culture. The fact on the other hand that, among the Italians, the Umbrians apparently were the most affected by a similar corruption of language, the Romans less so, the southern Sabellians least of all, probably finds its explanation, at least in part, in the more lively intercourse maintained by the former with the Etruscans, and by the latter with the Greeks.

Notes for Book I Chapter XIV

1. I. II. Indo-Germanic Culture

2. I. II. Indo-Germanic Culture

3. I. XII. Inland Commerce of the Italians

4. I. II. Agriculture

5. I. XII. Priests

6. Originally both the -actus-, "riving," and its still more frequently occurring duplicate, the -jugerum-, "yoking," were, like the German "morgen," not measures of surface, but measures of labour; the latter denoting the day's work, the former the half-day's work, with reference to the sharp division of the day especially in Italy by the ploughman's rest at noon.

7. I. XIII. Etrusco-Attic and Latino-Sicilian Commerce

8. I. XII. Nature of the Roman Gods

9. From the same cause all the festival-days are odd, as well those recurring every month (-kalendae- on the 1st. -nonae- on the 5th or 7th, -idus- on the 13th or 15th), as also, with but two exceptions, those of the 45 annual festivals mentioned above (xii. Oldest Table Of Roman Festivals). This is carried so far, that in the case of festivals of several days the intervening even days were dropped out, and so, for example, that of Carmentis was celebrated on Jan. 11, 15, that of the Grove-festival (-Lucaria-) on July 19, 21, and that of the Ghosts-festival on May 9, 11, and 13.

10. I. XIV. Decimal System

11. The history of the alphabet among the Hellenes turns essentially on the fact that—assuming the primitive alphabet of 23 letters, that is to say, the Phoenician alphabet vocalized and enlarged by the addition of the -"id:u" —proposals of very various kinds were made to supplement and improve it, and each of these proposals has a history of its own. The most important of these, which it is interesting to keep in view as bearing on the history of Italian writing, are the following:—I. The introduction of special signs for the sounds —"id:xi" —"id:phi" —"id:chi". This proposal is so old that all the Greek alphabets—with the single exception of that of the islands Thera, Melos, and Crete—and all alphabets derived from the Greek without exception, exhibit its influence. At first probably the aim was to append the signs —"id:CHI" = —"id:xi iota", —"id:PHI" = —"id:phi iota", and —"id:PSI"= —"id:chi iota" to the close of the alphabet, and in this shape it was adopted on the mainland of Hellas—with the exception of Athens and Corinth—and also among the Sicilian and Italian Greeks. The Greeks of Asia Minor on the other hand, and those of the islands of the Archipelago, and also the Corinthians on the mainland appear, when this proposal reached them, to have already had in use for the sound —"id:xi iota" the fifteenth sign of the Phoenician alphabet —"id:XI" (Samech); accordingly

of the three new signs they adopted the —"id:PHI" for —"id:phi iota", but employed the —"id:CHI" not for —"id:xi iota", but for —"id:chi iota". The third sign originally invented for —"id:chi iota" was probably allowed in most instances to drop; only on the mainland of Asia Minor it was retained, but received the value of —"id:psi iota". The mode of writing adopted in Asia Minor was followed also by Athens; only in its case not merely the —"id:psi iota", but the —"id:xi iota" also, was not received and in their room the two consonants continued to be written as before.—II. Equally early, if not still earlier, an effort was made to obviate the confusion that might so easily occur between the forms for —"id:iota S" and for —"id:s E"; for all the Greek alphabets known to us bear traces of the endeavour to distinguish them otherwise and more precisely. Already in very early times two such proposals of change must have been made, each of which found a field for its diffusion. In the one case they employed for the sibilant—for which the Phoenician alphabet furnished two signs, the fourteenth (—"id:/\") for —"id:sh" and the eighteenth (—"id:E") for —"id:s" —not the latter, which was in sound the more suitable, but the former; and such was in earlier times the mode of writing in the eastern islands, in Corinth and Corcyra, and among the Italian Achaeans. In the other case they substituted for the sign of —"id:i" the simple stroke —"id:I", which was by far the more usual, and at no very late date became at least so far general that the broken —"id:iota S" everywhere disappeared, although individual communities retained the —"id:s" in the form —"id:/\" alongside of the —"id:I".—III. Of later date is the substitution of —"id:V" for —"id:/\" (—"id:lambda") which might readily be confounded with —"id:GAMMA gamma". This we meet with in Athens and Boeotia, while Corinth and the communities dependent on Corinth attained the same object by giving to the —"id:gamma" the semicircular form —"id:C" instead of the hook-shape.—IV. The forms for —"id:p" —"id:P (with broken-loop)" and —"id:r" —"id:P", likewise very liable to be confounded, were distinguished by

transforming the latter into —"id:R"; which more recent form was not used by the Greeks of Asia Minor, the Cretans, the Italian Achaeans, and a few other districts, but on the other hand greatly preponderated both in Greece proper and in Magna Graecia and Sicily. Still the older form of the —"id:r" —"id:P" did not so early and so completely disappear there as the older form of the —"id:l"; this alteration therefore beyond doubt is to be placed later.—V. The differentiating of the long and short -e and the long and short -o remained in the earlier times confined to the Greeks of Asia Minor and of the islands of the Aegean Sea.

All these technical improvements are of a like nature and from a historical point of view of like value, in so far as each of them arose at a definite time and at a definite place and thereafter took its own mode of diffusion and found its special development. The excellent investigation of Kirchhoff (-Studien zur Geschichte des griechischen Alphabets-), which has thrown a clear light on the previously so obscure history of the Hellenic alphabet, and has also furnished essential data for the earliest relations between the Hellenes and Italians—establishing, in particular, incontrovertibly the previously uncertain home of the Etruscan alphabet—is affected by a certain one-sidedness in so far as it lays proportionally too great stress on a single one of these proposals. If systems are here to be distinguished at all, we may not divide the alphabets into two classes according to the value of the —"id:X" as —"id:zeta" or as —"id:chi", but we shall have to distinguish the alphabet of 23 from that of 25 or 26 letters, and perhaps further in this latter case to distinguish the Ionic of Asia Minor, from which the later common alphabet proceeded, from the common Greek of earlier times. In dealing, however, with the different proposals for the modification of the alphabet the several districts followed an essentially eclectic course, so that one was received here and another there; and it is just in this respect that the history of the Greek alphabet is so instructive, because it shows how particular groups of the Greek lands exchanged

improvements in handicraft and art, while others exhibited no such reciprocity. As to Italy in particular we have already called attention to the remarkable contrast between the Achaean agricultural towns and the Chalcidic and Doric colonies of a more mercantile character (x. Iono-Dorian Towns); in the former the primitive forms were throughout retained, in the latter the improved forms were adopted, even those which coming from different quarters were somewhat inconsistent, such as the —"id:C" —"id:gamma" alongside of the —"id:V" —"id:l". The Italian alphabets proceed, as Kirchhoff has shown, wholly from the alphabet of the Italian Greeks and in fact from the Chalcidico-Doric; but that the Etruscans and Latins received their alphabet not the one from the other but both directly from the Greeks, is placed beyond doubt especially by the different form of the —"id:r". For, while of the four modifications of the alphabet above described which concern the Italian Greeks (the fifth was confined to Asia Minor) the first three were already carried out before the alphabet passed to the Etruscans and Latins, the differentiation of —"id:p" and —"id:r" had not yet taken place when it came to Etruria, but on the other hand had at least begun when the Latins received it; for which reason the Etruscans do not at all know the form —"id:R" for —"id:r", whereas among the Faliscans and the Latins, with the single exception of the Dressel vase (xiv. Note 14), the younger form is met with exclusively.

12. I. XIII. Etrusco-Attic and Latino-Sicilian Commerce

13. That the Etruscans always were without the koppa, seems not doubtful; for not only is no sure trace of it to be met with elsewhere, but it is wanting in the model alphabet of the Galassi vase. The attempt to show its presence in the syllabarium of the latter is at any rate mistaken, for the syllabarium can and does only take notice of the Etruscan letters that were afterwards in common use, and to these the koppa notoriously did not belong; moreover the sign placed at the close cannot well from its position

have any other value than that of the -f, which was in fact the last letter in the Etruscan alphabet, and which could not be omitted in a syllabarium exhibiting the variations of that alphabet from its model. It is certainly surprising that the koppa should be absent from the Greek alphabet that came to Etruria, when it otherwise so long maintained its place in the Chalcidico-Doric ; but this may well have been a local peculiarity of the town whose alphabet first reached Etruria. Caprice and accident have at all times had a share in determining whether a sign becoming superfluous shall be retained or dropped from the alphabet; thus the Attic alphabet lost the eighteenth Phoenician sign, but retained the others which had disappeared from the -u.

14. The golden bracelet of Praeneste recently brought to light (Mitth. der rom. Inst. 1887), far the oldest of the intelligible monuments of the Latin language and Latin writing, shows the older form of the -"id:m"; the enigmatic clay vase from the Quirinal (published by Dressel in the *Annali dell Instituto*, 1880) shows the older form of the -"id:r".

15. At this period we shall have to place that recorded form of the Twelve Tables, which subsequently lay before the Roman philologues, and of which we possess fragments. Beyond doubt the code was at its very origin committed to writing; but that those scholars themselves referred their text not to the original exemplar, but to an official document written down after the Gallic conflagration, is proved by the story of the Tables having undergone reproduction at that time. This enables us easily to explain how their text by no means exhibited the oldest orthography, which was not unknown to them; even apart from the consideration that in the case of such a written document, employed, moreover, for the purpose of being committed to memory by the young, a philologically exact transmission cannot possibly be assumed.

16. This is the inscription of the bracelet of Praeneste which has been mentioned at xiv, note 14. On the other hand even on the Ficoroni cista -"id:C" has the later form of -"id:K".

17. Thus -"id:C" represents -Gaius-; -"id:CN" -Gnaeus-; while -"id:K" stands for -Kaeso-. With the more recent abbreviations of course this is not the case; in these -"id:gamma" is represented not by -"id:C", but by -"id:G" (-GAL- -Galeria-), —"id:kappa", as a rule, by -"id:C" (-C- -centum- -COS- -consul; -COL -Collina-), or before -"id:a" by -"id:K" (-KAR- -karmetalia-; -MERK- -merkatus-). For they expressed for a time the sound —k before the vowels -e -i -o and before all consonants by -"id:C", before -a on the other hand by -"id:K", before -u by the old sign of the koppa -"id:Q".

18. If this view is correct, the origin of the Homeric poems (though of course not exactly that of the redaction in which we now have them) must have been far anterior to the age which Herodotus assigns for the flourishing of Homer (100 before Rome); for the introduction of the Hellenic alphabet into Italy, as well as the beginning of intercourse at all between Hellas and Italy, belongs only to the post-Homeric period.

19. Just as the old Saxon -writan- signifies properly to tear, thence to write.

20. The enigma as to how the Latins came to employ the Greek sign corresponding to -v for the -f quite different in sound, has been solved by the bracelet of Praeneste (xiv. Developments Of Alphabets in Italy, note) with its -fhefhaked- for -fecit-, and thereby at the same time the derivation of the Latin alphabet from the Chalcidian colonies of Lower Italy has been confirmed. For in a Boeotian inscription belonging to the same alphabet we find in the word -fhekadamoe-(Gustav Meyer, Griech. Grammatik, sec. 244, ap. fin.) the same combination of sound, and an aspirated v might certainly approximate in sound to the Latin -f.

20. -Ratio Tuscanica,: cavum aedium Tuscanicum.-

21. When Varro (ap. Augustin. De Civ. Dei, iv. 31; comp. Plutarch Num. 8) affirms that the Romans for more than one hundred and seventy years worshipped the gods without images, he is evidently thinking of this primitive piece of carving, which, according to the conventional chronology, was dedicated between 176 and 219, and, beyond doubt, was the first statue of the gods, the consecration of which was mentioned in the authorities which Varro had before him. Comp, above, XIV. Development of Alphabets in Italy.

22. I. XIII. Handicrafts

23. I. XII. Nature of the Roman Gods

24. I. XII. Pontifices

Chapter XV

Art

Artistic Endowment of the Italians

Poetry is impassioned language, and its modulation is melody. While in this sense no people is without poetry and music, some nations have received a pre-eminent endowment of poetic gifts. The Italian nation, however, was not and is not one of these. The Italian is deficient in the passion of the heart, in the longing to idealize what is human and to confer humanity on what is lifeless, which form the very essence of poetic art. His acuteness of perception and his graceful versatility enabled him to excel in irony and in the vein of tale-telling which we find in Horace and Boccaccio, in the humorous pleasantries of love and song which are presented in Catullus and in the good popular songs of Naples, above all in the lower comedy and in farce. Italian soil gave birth in ancient times to burlesque tragedy, and in modern times to mock-heroic poetry. In rhetoric and histrionic art especially no other nation equalled or equals the Italians. But in the more perfect kinds of art they have hardly advanced beyond dexterity of execution, and no epoch of their literature has produced a true epos or a genuine drama. The very highest literary works that have been successfully

produced in Italy, divine poems like Dante's *Commedia*, and historical treatises such as those of Sallust and Macchiavelli, of Tacitus and Colletta, are pervaded by a passion more rhetorical than spontaneous. Even in music, both in ancient and modern times, really creative talent has been far less conspicuous than the accomplishment which speedily assumes the character of virtuosoship, and enthrones in the room of genuine and genial art a hollow and heart-withering idol. The field of the inward in art—so far as we may in the case of art distinguish an inward and an outward at all—is not that which has fallen to the Italian as his special province; the power of beauty, to have its full effect upon him, must be placed not ideally before his mind, but sensuously before his eyes. Accordingly he is thoroughly at home in architecture, painting, and sculpture; in these he was during the epoch of ancient culture the best disciple of the Hellenes, and in modern times he has become the master of all nations.

Dance, Music, and Song in Latium

From the defectiveness of our traditional information it is not possible to trace the development of artistic ideas among the several groups of nations in Italy; and in particular we are no longer in a position to speak of the poetry of Italy; we can only speak of that of Latium. Latin poetry, like that of every other nation, began in the lyrical form, or, to speak more correctly, sprang out of those primitive festal rejoicings, in which dance, music, and song were still inseparably blended. It is remarkable, however, that in the most ancient religious usages dancing, and next to dancing instrumental music, were far more prominent than song. In the great procession, with which the Roman festival of victory was opened, the chief place, next to the images of the gods and the champions, was assigned to the dancers grave and merry. The grave dancers were arranged in three groups of men, youths, and boys, all clad in red tunics with copper belts, with swords and short

lances, the men being moreover furnished with helmets, and generally in full armed attire. The merry dancers were divided into two companies—"the sheep" in sheep-skins with a party-coloured over-garment, and "the goats" naked down to the waist, with a buck's skin thrown over them. In like manner the "leapers" (-salii-) were perhaps the most ancient and sacred of all the priesthoods,(1) and dancers (-ludii-, -ludiones-) were indispensable in all public processions, and particularly at funeral solemnities; so that dancing became even in ancient times a common trade. But, wherever the dancers made their appearance, there appeared also the musicians or—which was in the earliest times the same thing—the pipers. They too were never wanting at a sacrifice, at a marriage, or at a funeral; and by the side of the primitive public priesthood of the "leapers" there was ranged, of equal antiquity although of far inferior rank, the guild of the "pipers" (-collegium tibicinum-(2)), whose true character as strolling musicians is evinced by their ancient privilege—maintained even in spite of the strictness of Roman police—of wandering through the streets at their annual festival, wearing masks and full of sweet wine. While dancing thus presents itself as an honourable function and music as one subordinate but still necessary, so that public corporations were instituted for both of them, poetry appears more as a matter incidental and, in some measure, indifferent, whether it may have come into existence on its own account or to serve as an accompaniment to the movements of the dancers.

Religious Chants

The earliest chant, in the view of the Romans, was that which the leaves sang to themselves in the green solitude of the forest. The whispers and pipings of the "favourable spirit" (-faunus-, from -favere-) in the grove were reproduced for men, by those who had the gift of listening to him, in rhythmically measured language (-casmēn-, afterwards -carmen-, from -

canere-). Of a kindred nature to these soothsaying songs of inspired men and women (-vates-) were the incantations properly so called, the formulae for conjuring away diseases and other troubles, and the evil spells by which they prevented rain and called down lightning or even enticed the seed from one field to another; only in these instances, probably from the outset, formulae of mere sounds appear side by side with formulae of words.(3) More firmly rooted in tradition and equally ancient were the religious litanies which were sung and danced by the Salii and other priesthoods; the only one of which that has come down to us, a dance-chant of the Arval Brethren in honour of Mars probably composed to be sung in alternate parts, deserves a place here.

-Enos, Lases, iuvate!

Ne velue rue, Marmar, sins incurrere in pleores!

Satur fu, fere Mars! limen sali! sta! berber!

Semunis alternei advocapit conctos!

Enos, Marmar, iuvato!

Triumpe!-

Which may be thus interpreted:

To the gods:

-Nos, Lares, iuvate!

Ne veluem (= malam luem) ruem (= ruinam), Mamers,
sinas incurrere in plures!

Satur esto, fere Mars!

To the individual brethren:

In limen insili! sta! verbera (limen?)!

To all the brethren:

Semones alterni advocate cunctos!

To the god:
Nos, Mamers, iuvato!

To the individual brethren:
Tripudia!-(4)

The Latin of this chant and of kindred fragments of the Salian songs, which were regarded even by the philologues of the Augustan age as the oldest documents of their mother-tongue, is related to the Latin of the Twelve Tables somewhat as the language of the Nibelungen is related to the language of Luther; and we may perhaps compare these venerable litanies, as respects both language and contents, with the Indian Vedas.

Panegyrics and Lampoons

Lyrical panegyrics and lampoons belonged to a later epoch. We might infer from the national character of the Italians that satirical songs must have abounded in Latium in ancient times, even if their prevalence had not been attested by the very ancient measures of police directed against them. But the panegyrical chants became of more importance. When a burgess was borne to burial, the bier was followed by a female relative or friend, who, accompanied by a piper, sang his dirge (-nenia-). In like manner at banquets boys, who according to the fashion of those days attended their fathers even at feasts out of their own houses, sang by turns songs in praise of their ancestors, sometimes to the pipe, sometimes simply reciting them without accompaniment (-assa voce canere-). The custom of men singing in succession at banquets was presumably borrowed from the Greeks, and that not till a later age. We know no further particulars of these ancestral lays; but it is self-evident that they must have attempted description and narration

and thus have developed, along with and out of the lyrical element, the features of epic poetry.

The Masked Farce

Other elements of poetry were called into action in the primitive popular carnival, the comic dance or -satura-,⁽⁵⁾ which beyond doubt reached back to a period anterior to the separation of the stocks. On such occasions song would never be wanting; and the circumstances under which such pastimes were exhibited, chiefly at public festivals and marriages, as well as the mainly practical shape which they certainly assumed, naturally suggested that several dancers, or sets of dancers, should take up reciprocal parts; so that the singing thus came to be associated with a species of acting, which of course was chiefly of a comical and often of a licentious character. In this way there arose not merely alternative chants, such as afterwards went by the name of Fescennine songs, but also the elements of a popular comedy—which were in this instance planted in a soil admirably adapted for their growth, as an acute sense of the outward and the comic, and a delight in gesticulation and masquerade have ever been leading traits of Italian character.

No remains have been preserved of these -incunabula- of the Roman epos and drama. That the ancestral lays were traditional is self-evident, and is abundantly demonstrated by the fact that they were regularly recited by children; but even in the time of Cato the Elder they had completely passed into oblivion. The comedies again, if it be allowable so to name them, were at this period and long afterwards altogether improvised. Consequently nothing of this popular poetry and popular melody could be handed down but the measure, the accompaniment of music and choral dancing, and perhaps the masks.

Metre

Whether what we call metre existed in the earlier times is doubtful; the litany of the Arval Brethren scarcely accommodates itself to an outwardly fixed metrical system, and presents to us rather the appearance of an animated recitation. On the other hand we find in subsequent times a very ancient rhythm, the so-called Saturnian(6) or Faunian metre, which is foreign to the Greeks, and may be conjectured to have arisen contemporaneously with the oldest Latin popular poetry. The following poem, belonging, it is true, to a far later age, may give an idea of it:—

Quod re sua difeidents—aspere afleicta

Parens timens heic vovit—voto hoc soluto

—
Decuma facta poloucta—leibereis lubentis

— — — — —
Donu danunt__hercolei—maxsume—mereto

—
Semol te orant se voti—crebro con__demnes.

— — ' — — ' — — ' — — ^ / — — ' — — ' — — ' — ^

That which, misfortune dreading—sharply to afflict him, An anxious parent vowed here,—when his wish was granted, A sacred tenth for banquet—gladly give his children to Hercules a tribute—most of all deserving; And now they thee beseech, that—often thou wouldst hear them.

Panegyrics as well as comic songs appear to have been uniformly sung in Saturnian metre, of course to the pipe, and presumably in such a way that

the -caesura- in particular in each line was strongly marked; and in alternate singing the second singer probably took up the verse at this point. The Saturnian measure is, like every other occurring in Roman and Greek antiquity, based on quantity; but of all the antique metres perhaps it is the least thoroughly elaborated, for besides many other liberties it allows itself the greatest license in omitting the short syllables, and it is at the same time the most imperfect in construction, for these iambic and trochaic half-lines opposed to each other were but little fitted to develop a rhythmical structure adequate for the purposes of the higher poetry.

Melody

The fundamental elements of the national music and choral dancing in Latium, which must likewise have been established during this period, are buried for us in oblivion; except that the Latin pipe is reported to have been a short and slender instrument, provided with only four holes, and originally, as the name shows, made out of the light thighbone of some animal.

Masks

Lastly, the masks used in after times for the standing characters of the Latin popular comedy or the Atellana, as it was called: Maccus the harlequin, Bucco the glutton, Pappus the good papa, and the wise Dossennus—masks which have been cleverly and strikingly compared to the two servants, the -pantolon- and the -dottore-, in the Italian comedy of Pulcinello—already belonged to the earliest Latin popular art. That they did so cannot of course be strictly proved; but as the use of masks for the face in Latium in the case of the national drama was of immemorial antiquity,

while the Greek drama in Rome did not adopt them for a century after its first establishment, as, moreover, those Atellane masks were of decidedly Italian origin, and as, in fine, the origination as well as the execution of improvised pieces cannot well be conceived apart from fixed masks assigning once for all to the player his proper position throughout the piece, we must associate fixed masks with the rudiments of the Roman drama, or rather regard them as constituting those rudiments themselves.

Earliest Hellenic Influences

If our information respecting the earliest indigenous culture and art of Latium is so scanty, it may easily be conceived that our knowledge will be still scantier regarding the earliest impulses imparted in this respect to the Romans from without. In a certain sense we may include under this head their becoming acquainted with foreign languages, particularly the Greek. To this latter language, of course, the Latins generally were strangers, as was shown by their enactment in respect to the Sibylline oracles;(7) but an acquaintance with it must have been not at all uncommon in the case of merchants. The same may be affirmed of the knowledge of reading and writing, closely connected as it was with the knowledge of Greek.(8) The culture of the ancient world, however, was not based either on the knowledge of foreign languages or on elementary technical accomplishments. An influence more important than any thus imparted was exercised over the development of Latium by the elements of the fine arts, which were already in very early times received from the Hellenes. For it was the Hellenes alone, and not the Phoenicians or the Etruscans, that in this respect exercised an influence on the Italians. We nowhere find among the latter any stimulus of the fine arts which can be referred to Carthage or Caere, and the Phoenician and Etruscan forms of civilization may be in general perhaps classed with those that are hybrid, and for that reason not

further productive.(9) But the influence of Greece did not fail to bear fruit. The Greek seven-stringed lyre, the "strings" (-fides-, from —sphidei—, gut; also -barbitus-, —barbitos—), was not like the pipe indigenous in Latium, and was always regarded there as an instrument of foreign origin; but the early period at which it gained a footing is demonstrated partly by the barbarous mutilation of its Greek name, partly by its being employed even in ritual.(10) That some of the legendary stores of the Greeks during this period found their way into Latium, is shown by the ready reception of Greek works of sculpture with their representations based so thoroughly upon the poetical treasures of the nation; and the old Latin barbarous conversions of Persephone into Prosepna, Bellerophontes into Melerpanta, Kyklops into Cocles, Laomedon into Alumentus, Ganymedes into Catamitus, Neilos into Melus, Semele into Stimula, enable us to perceive at how remote a period such stories had been heard and repeated by the Latins. Lastly and especially, the Roman chief festival or festival of the city (-ludi maximi-, -Romani-) must in all probability have owed, if not its origin, at any rate its later arrangements to Greek influence. It was an extraordinary thanksgiving festival celebrated in honour of the Capitoline Jupiter and the gods dwelling along with him, ordinarily in pursuance of a vow made by the general before battle, and therefore usually observed on the return home of the burgess-force in autumn. A festal procession proceeded toward the Circus staked off between the Palatine and Aventine, and furnished with an arena and places for spectators; in front the whole boys of Rome, arranged according to the divisions of the burgess-force, on horseback and on foot; then the champions and the groups of dancers which we have described above, each with their own music; thereafter the servants of the gods with vessels of frankincense and other sacred utensils; lastly the biers with the images of the gods themselves. The spectacle itself was the counterpart of war as it was waged in primitive times, a contest on chariots, on horseback, and on foot. First there ran the war-chariots, each of which

carried in Homeric fashion a charioteer and a combatant; then the combatants who had leaped off; then the horsemen, each of whom appeared after the Roman style of fighting with a horse which he rode and another led by the hand (-desultor-); lastly, the champions on foot, naked to the girdle round their loins, measured their powers in racing, wrestling, and boxing. In each species of contest there was but one competition, and that between not more than two competitors. A chaplet rewarded the victor, and the honour in which the simple branch which formed the wreath was held is shown by the law permitting it to be laid on the bier of the victor when he died. The festival thus lasted only one day, and the competitions probably still left sufficient time on that day for the carnival proper, at which the groups of dancers may have displayed their art and above all exhibited their farces; and doubtless other representations also, such as competitions in juvenile horsemanship, found a place.⁽¹¹⁾ The honours won in real war also played their part in this festival; the brave warrior exhibited on this day the equipments of the antagonist whom he had slain, and was decorated with a chaplet by the grateful community just as was the victor in the competition.

Such was the nature of the Roman festival of victory or city-festival; and the other public festivities of Rome may be conceived to have been of a similar character, although less ample in point of resources. At the celebration of a public funeral dancers regularly bore a part, and along with them, if there was to be any further exhibition, horse-racers; in that case the burgesses were specially invited beforehand to the funeral by the public crier.

But this city-festival, so intimately bound up with the manners and exercises of the Romans, coincides in all essentials with the Hellenic national festivals: more especially in the fundamental idea of combining a religious solemnity and a competition in warlike sports; in the selection of the several exercises, which at the Olympic festival, according to Pindar's

testimony, consisted from the first in running, wrestling, boxing, chariot-racing, and throwing the spear and stone; in the nature of the prize of victory, which in Rome as well as in the Greek national festivals was a chaplet, and in the one case as well as in the other was assigned not to the charioteer, but to the owner of the team; and lastly in introducing the feats and rewards of general patriotism in connection with the general national festival. This agreement cannot have been accidental, but must have been either a remnant of the primitive connection between the peoples, or a result of the earliest international intercourse; and the probabilities preponderate in favour of the latter hypothesis. The city-festival, in the form in which we are acquainted with it, was not one of the oldest institutions of Rome, for the Circus itself was only laid out in the later regal period;(12) and just as the reform of the constitution then took place under Greek influence,(13) the city-festival may have been at the same time so far transformed as to combine Greek races with, and eventually to a certain extent to substitute them for, an older mode of amusement—the "leap" (-triumpus-, (14)), and possibly swinging, which was a primitive Italian custom and long continued in use at the festival on the Alban mount. Moreover, while there is some trace of the use of the war-chariot in actual warfare in Hellas, no such trace exists in Latium. Lastly, the Greek term —stadion— (Doric —spadion—) was at a very early period transferred to the Latin language, retaining its signification, as -spatium-; and there exists even an express statement that the Romans derived their horse and chariot races from the people of Thurii, although, it is true, another account derives them from Etruria. It thus appears that, in addition to the impulses imparted by the Hellenes in music and poetry, the Romans were indebted to them for the fruitful idea of gymnastic competitions.

Character of Poetry and of Education in Latium

Thus there not only existed in Latium the same fundamental elements out of which Hellenic culture and art grew, but Hellenic culture and art themselves exercised a powerful influence over Latium in very early times. Not only did the Latins possess the elements of gymnastic training, in so far as the Roman boy learned like every farmer's son to manage horses and waggon and to handle the hunting-spear, and as in Rome every burgess was at the same time a soldier; but the art of dancing was from the first an object of public care, and a powerful impulse was further given to such culture at an early period by the introduction of the Hellenic games. The lyrical poetry and tragedy of Hellas grew out of songs similar to the festal lays of Rome; the ancestral lay contained the germs of epos, the masked farce the germs of comedy; and in this field also Grecian influences were not wanting.

In such circumstances it is the more remarkable that these germs either did not spring up at all, or were soon arrested in their growth. The bodily training of the Latin youth continued to be solid and substantial, but far removed from the idea of artistic culture for the body, such as was the aim of Hellenic gymnastics. The public games of the Hellenes when introduced into Italy, changed not so much their formal rules as their essential character. While they were intended to be competitions of burgesses and beyond doubt were so at first in Rome, they became contests of professional riders and professional boxers, and, while the proof of free and Hellenic descent formed the first condition for participating in the Greek festal games, those of Rome soon passed into the hands of freedmen and foreigners and even of persons not free at all. Consequently the circle of fellow-competitors became converted into a public of spectators, and the chaplet of the victorious champion, which has been with justice called the badge of Hellas, was afterwards hardly ever mentioned in Latium.

A similar fate befel poetry and her sisters. The Greeks and Germans alone possess a fountain of song that wells up spontaneously; from the

golden vase of the Muses only a few drops have fallen on the green soil of Italy. There was no formation of legend in the strict sense there. The Italian gods were abstractions and remained such; they never became elevated into or, as some may prefer to say, obscured under, a true personal shape. In like manner men, even the greatest and noblest, remained in the view of the Italian without exception mortal, and were not, as in the longing recollection and affectionately cherished tradition of Greece, elevated in the conception of the multitude into god-like heroes. But above all no development of national poetry took place in Latium. It is the deepest and noblest effect of the fine arts and above all of poetry, that they break down the barriers of civil communities and create out of tribes a nation and out of the nations a world. As in the present day by means of our cosmopolitan literature the distinctions of civilized nations are done away, so Greek poetic art transformed the narrow and egoistic sense of tribal relationship into the consciousness of Hellenic nationality, and this again into the consciousness of a common humanity. But in Latium nothing similar occurred. There might be poets in Alba and in Rome, but there arose no Latin epos, nor even—what were still more conceivable—a catechism for the Latin farmer of a kind similar to the "Works and Days" of Hesiod. The Latin federal festival might well have become a national festival of the fine arts, like the Olympian and Isthmian games of the Greeks. A cycle of legends might well have gathered around the fall of Alba, such as was woven around the conquest of Ilion, and every community and every noble clan of Latium might have discovered in it, or imported into it, the story of its own origin. But neither of these results took place, and Italy remained without national poetry or art.

The inference which of necessity follows from these facts, that the development of the fine arts in Latium was rather a shrivelling up than an expanding into bloom, is confirmed in a manner even now not to be mistaken by tradition. The beginnings of poetry everywhere, perhaps,

belong rather to women than to men; the spell of incantation and the chant for the dead pertain pre-eminently to the former, and not without reason the spirits of song, the Casmene or Camene and the Carmentis of Latium, like the Muses of Hellas, were conceived as feminine. But the time came in Hellas, when the poet relieved the songstress and Apollo took his place at the head of the Muses. In Latium there was no national god of song, and the older Latin language had no designation for the poet.⁽¹⁵⁾ The power of song emerging there was out of all proportion weaker, and was rapidly arrested in its growth. The exercise of the fine arts was there early restricted, partly to women and children, partly to incorporated or unincorporated tradesmen. We have already mentioned that funeral chants were sung by women and banquet-lays by boys; the religious litanies also were chiefly executed by children. The musicians formed an incorporated, the dancers and the wailing women (-*praeficae*-) unincorporated, trades. While dancing, music, and singing remained constantly in Greece—as they were originally also in Latium—reputable employments redounding to the honour of the burgess and of the community to which he belonged, in Latium the better portion of the burgesses drew more and more aloof from these vain arts, and that the more decidedly, in proportion as art came to be more publicly exhibited and more thoroughly penetrated by the quickening impulses derived from other lands. The use of the native pipe was sanctioned, but the lyre remained despised; and while the national amusement of masks was allowed, the foreign amusements of the -*palaestra*- were not only regarded with indifference, but esteemed disgraceful. While the fine arts in Greece became more and more the common property of the Hellenes individually and collectively and thereby became the means of developing a universal culture, they gradually disappeared in Latium from the thoughts and feelings of the people; and, as they degenerated into utterly insignificant handicrafts, the idea of a general national culture to be communicated to youth never suggested itself at all.

The education of youth remained entirely confined within the limits of the narrowest domesticity. The boy never left his father's side, and accompanied him not only to the field with the plough and the sickle, but also to the house of a friend or to the council-hall, when his father was invited as a guest or summoned to the senate. This domestic education was well adapted to preserve man wholly for the household and wholly for the state. The permanent intercommunion of life between father and son, and the mutual reverence felt by adolescence for ripened manhood and by the mature man for the innocence of youth, lay at the root of the steadfastness of the domestic and political traditions, of the closeness of the family bond, and in general of the grave earnestness (-gravitas-) and character of moral worth in Roman life. This mode of educating youth was in truth one of those institutions of homely and almost unconscious wisdom, which are as simple as they are profound. But amidst the admiration which it awakens we may not overlook the fact that it could only be carried out, and was only carried out, by the sacrifice of true individual culture and by a complete renunciation of the equally charming and perilous gifts of the Muses.

Dance, Music, and Song among the Sabellians and Etruscans

Regarding the development of the fine arts among the Etruscans and Sabellians our knowledge is little better than none.⁽¹⁶⁾ We can only notice the fact that in Etruria the dancers (-histri-, -histriones-) and the pipe-players (-subulones-) early made a trade of their art, probably earlier even than in Rome, and exhibited themselves in public not only at home, but also in Rome for small remuneration and less honour. It is a circumstance more remarkable that at the Etruscan national festival, in the exhibition of which the whole twelve cities were represented by a federal priest, games were given like those of the Roman city-festival; we are, however, no longer in a position to answer the question which it suggests, how far the Etruscans

were more successful than the Latins in attaining a national form of fine art beyond that of the individual communities. On the other hand a foundation probably was laid in Etruria, even in early times, for that insipid accumulation of learned lumber, particularly of a theological and astrological nature, by virtue of which afterwards, when amidst the general decay antiquarian dilettantism began to flourish, the Tuscans divided with the Jews, Chaldeans, and Egyptians the honour of being admired as primitive sources of divine wisdom. We know still less, if possible, of Sabellian art; but that of course by no means warrants the inference that it was inferior to that of the neighbouring stocks. On the contrary, it may be conjectured from what we otherwise know of the character of the three chief races of Italy, that in artistic gifts the Samnites approached nearest to the Hellenes and the Etruscans were farthest removed from them; and a sort of confirmation of this hypothesis is furnished by the fact, that the most gifted and most original of the Roman poets, such as Naevius, Ennius, Lucilius, and Horace, belonged to the Samnite lands, whereas Etruria has almost no representatives in Roman literature except the Arretine Maecenas, the most insufferable of all heart-withered and affected(17) court-poets, and the Volaterran Persius, the true ideal of a conceited and languid, poetry-smitten, youth.

Earliest Italian Architecture

The elements of architecture were, as has been already indicated, a primitive common possession of the stocks. The dwelling-house constitutes the first attempt of structural art; and it was the same among Greeks and Italians. Built of wood, and covered with a pointed roof of straw or shingles it formed a square dwelling-chamber, which let out the smoke and let in the light by an opening in the roof corresponding with a hole for carrying off the rain in the ground (-cavum aedium-). Under this "black roof" (-atrium-)

the meals were prepared and consumed; there the household gods were worshipped, and the marriage bed and the bier were set out; there the husband received his guests, and the wife sat spinning amid the circle of her maidens. The house had no porch, unless we take as such the uncovered space between the house door and the street, which obtained its name - vestibulum-, i. e. dressing-place, from the circumstance that the Romans were in the habit of going about within doors in their tunics, and only wrapped the toga around them when they went abroad. There was, moreover, no division of apartments except that sleeping and store closets might be provided around the dwelling-room; and still less were there stairs, or stories placed one above another.

Earliest Hellenic Influence

Whether, or to what extent, a national Italian architecture arose out of these beginnings can scarcely be determined, for in this field Greek influence, even in the earliest times, had a very powerful effect and almost wholly overgrew such national attempts as possibly had preceded it. The very oldest Italian architecture with which we are acquainted is not much less under the influence of that of Greece than the architecture of the Augustan age. The primitive tombs of Caere and Alsium, and probably the oldest one also of those recently discovered at Praeneste, have been, exactly like the —thesauroi—of Orchomenos and Mycenae, roofed over with courses of stone placed one above another, gradually overlapping, and closed by a large stone cover. A very ancient building at the city wall of Tusculum was roofed in the same way, and so was originally the well-house (-tullianum-) at the foot of the Capitol, till the top was pulled down to make room for another building. The gates constructed on the same system are entirely similar in Arpinum and in Mycenae. The tunnel which drains the Alban lake(18) presents the greatest resemblance to that of lake Copais.

What are called Cyclopean ring-walls frequently occur in Italy, especially in Etruria, Umbria, Latium, and Sabina, and decidedly belong in point of design to the most ancient buildings of Italy, although the greater portion of those now extant were probably not executed till a much later age, several of them certainly not till the seventh century of the city. They are, just like those of Greece, sometimes quite roughly formed of large unwrought blocks of rock with smaller stones inserted between them, sometimes disposed in square horizontal courses,(19) sometimes composed of polygonal dressed blocks fitting into each other. The selection of one or other of these systems was doubtless ordinarily determined by the material, and accordingly the polygonal masonry does not occur in Rome, where in the most ancient times tufo alone was employed for building. The resemblance in the case of the two former and simpler styles may perhaps be traceable to the similarity of the materials employed and of the object in view in building; but it can hardly be deemed accidental that the artistic polygonal wall-masonry, and the gate with the path leading up to it universally bending to the left and so exposing the unshielded right side of the assailant to the defenders, belong to the Italian fortresses as well as to the Greek. The facts are significant that in that portion of Italy which was not reduced to subjection by the Hellenes but yet was in lively intercourse with them, the true polygonal masonry was at home, and it is found in Etruria only at Pyrgi and at the towns, not very far distant from it, of Cosa and Saturnia; as the design of the walls of Pyrgi, especially when we take into account the significant name ("towers"), may just as certainly be ascribed to the Greeks as that of the walls of Tiryns, in them most probably there still stands before our eyes one of the models from which the Italians learned how to build their walls. The temple in fine, which in the period of the empire was called the Tuscanic and was regarded as a kind of style co-ordinate with the various Greek temple-structures, not only generally resembled the Greek temple in being an enclosed space (-cello-) usually

quadrangular, over which walls and columns raised aloft a sloping roof, but was also in details, especially in the column itself and its architectural features, thoroughly dependent on the Greek system. It is in accordance with all these facts probable, as it is credible of itself, that Italian architecture previous to its contact with the Hellenes was confined to wooden huts, abattis, and mounds of earth and stones, and that construction in stone was only adopted in consequence of the example and the better tools of the Greeks. It is scarcely to be doubted that the Italians first learned from them the use of iron, and derived from them the preparation of mortar (-cal[e]x-, -calecare-, from —chaliz—), the machine (-machina-, —meichanei—), the measuring-rod (-groma-, a corruption from —gnomon—, —gnoma—), and the artificial latticework (-clathri-, —kleithron—). Accordingly we can scarcely speak of an architecture peculiarly Italian. Yet in the woodwork of the Italian dwelling-house—alongside of alterations produced by Greek influence—various peculiarities may have been retained or even for the first time developed, and these again may have exercised a reflex influence on the building of the Italian temples. The architectural development of the house proceeded in Italy from the Etruscans. The Latin and even the Sabellian still adhered to the hereditary wooden hut and to the good old custom of assigning to the god or spirit not a consecrated dwelling, but only a consecrated space, while the Etruscan had already begun artistically to transform his dwelling-house, and to erect after the model of the dwelling-house of man a temple also for the god and a sepulchral chamber for the spirit. That the advance to such luxurious structures in Latium first took place under Etruscan influence, is proved by the designation of the oldest style of temple architecture and of the oldest style of house architecture respectively as Tuscanic.(20) As concerns the character of this transference, the Grecian temple probably imitated the general outlines of the tent or dwelling-house; but it was essentially built of hewn stone and covered with tiles, and the nature of the stone and the baked

clay suggested to the Greek the laws of necessity and beauty. The Etruscan on the other hand remained a stranger to the strict Greek distinction between the dwelling of man necessarily erected of wood and the dwelling of the gods necessarily formed of stone. The peculiar characteristics of the Tuscan temple—the outline approaching nearer to a square, the higher gable, the greater breadth of the intervals between the columns, above all, the increased inclination of the roof and the singular projection of the roof-corbels beyond the supporting columns—all arose out of the greater approximation of the temple to the dwelling-house, and out of the peculiarities of wooden architecture.

Plastic Art in Italy

The plastic and delineative arts are more recent than architecture; the house must be built before any attempt is made to decorate gable and walls. It is not probable that these arts really gained a place in Italy during the regal period of Rome; it was only in Etruria, where commerce and piracy early gave rise to a great concentration of riches, that art or handicraft—if the term be preferred—obtained a footing in the earliest times. Greek art, when it acted on Etruria, was still, as its copy shows, at a very primitive stage, and the Etruscans may have learned from the Greeks the art of working in clay and metal at a period not much later than that at which they borrowed from them the alphabet. The silver coins of Populonia, almost the only works that can be with any precision assigned to this period, give no very high idea of Etruscan artistic skill as it then stood; yet the best of the Etruscan works in bronze, to which the later critics of art assigned so high a place, may have belonged to this primitive age; and the Etruscan terracottas also cannot have been altogether despicable, for the oldest works in baked clay placed in the Roman temples—the statue of the Capitoline Jupiter, and the four-horse chariot on the roof of his temple—were executed

in Veii, and the large ornaments of a similar kind placed on the roofs of temples passed generally among the later Romans under the name of "Tuscanic works."

On the other hand, among the Italians—not among the Sabellian stocks merely, but even among the Latins—native sculpture and design were at this period only coming into existence. The most considerable works of art appear to have been executed abroad. We have just mentioned the statues of clay alleged to have been executed in Veii; and very recent excavations have shown that works in bronze made in Etruria, and furnished with Etruscan inscriptions, circulated in Praeneste at least, if not generally throughout Latium. The statue of Diana in the Romano-Latin federal temple on the Aventine, which was considered the oldest statue of a divinity in Rome,(21) exactly resembled the Massiliot statue of the Ephesian Artemis, and was perhaps manufactured in Velia or Massilia. The guilds, which from ancient times existed in Rome, of potters, coppersmiths, and goldsmiths, (22) are almost the only proofs of the existence of native sculpture and design there; respecting the position of their art it is no longer possible to gain any clear idea.

Artistic Relations and Endowments of the Etruscans and Italians

If we endeavour to obtain historical results from the archives of the tradition and practice of primitive art, it is in the first place manifest that Italian art, like the Italian measures and Italian writing, developed itself not under Phoenician, but exclusively under Hellenic influence. There is not a single one of the aspects of Italian art which has not found its definite model in the art of ancient Greece; and, so far, the legend is fully warranted which traces the manufacture of painted clay figures, beyond doubt the most ancient form of art in Italy, to the three Greek artists, the "moulder," "fitter," and "draughtsman," Eucheir, Diopos, and Eugrammos, although it

is more than doubtful whether this art came directly from Corinth or came directly to Tarquinii. There is as little trace of any immediate imitation of oriental models as there is of an independently-developed form of art. The Etruscan lapidaries adhered to the form of the beetle or -scarabaeus-, which was originally Egyptian; but —scarabaei— were also used as models for carving in Greece in very early times (e. g. such a beetle-stone, with a very ancient Greek inscription, has been found in Aegina), and therefore they may very well have come to the Etruscans through the Greeks. The Italians may have bought from the Phoenician; they learned only from the Greek.

To the further question, from what Greek stock the Etruscans in the first instance received their art-models, a categorical answer cannot be given; yet relations of a remarkable kind subsist between the Etruscan and the oldest Attic art. The three forms of art, which were practised in Etruria at least in after times very extensively, but in Greece only to an extent very limited, tomb-painting, mirror-designing, and graving on stone, have been hitherto met with on Grecian soil only in Athens and Aegina. The Tuscan temple does not correspond exactly either to the Doric or to the Ionic; but in the more important points of distinction, in the course of columns carried round the -cella-, as well as in the placing of a separate pedestal under each particular column, the Etruscan style follows the more recent Ionic; and it is this same Iono-Attic style of building still pervaded by a Doric element, which in its general design stands nearest of all the Greek styles to the Tuscan. In the case of Latium there is an almost total absence of any certain traces of intercourse bearing on the history of art. If it was—as is indeed almost self-evident—the general relations of traffic and intercourse that determined also the introduction of models in art, it may be assumed with certainty that the Campanian and Sicilian Hellenes were the instructors of Latium in art, as in the alphabet; and the analogy between the Aventine Diana and the Ephesian Artemis is at least not inconsistent with such an hypothesis. Of course the older Etruscan art also served as a model for

Latium. As to the Sabellian tribes, if Greek architectural and plastic art reached them at all, it must, like the Greek alphabet, have come to them only through the medium of the more western Italian stocks.

If, in conclusion, we are to form a judgment respecting the artistic endowments of the different Italian nations, we already at this stage perceive—what becomes indeed far more obvious in the later stages of the history of art—that while the Etruscans attained to the practice of art at an earlier period and produced more massive and rich workmanship, their works are inferior to those of the Latins and Sabellians in appropriateness and utility no less than in spirit and beauty. This certainly is apparent, in the case of our present epoch, only in architecture. The polygonal wall-masonry, as appropriate to its object as it was beautiful, was frequent in Latium and in the inland country behind it; while in Etruria it was rare, and not even the walls of Caere are constructed of polygonal blocks. Even in the religious prominence—remarkable also as respects the history of art—assigned to the arch⁽²³⁾ and to the bridge⁽²⁴⁾ in Latium, we may be allowed to perceive, as it were, an anticipation of the future aqueducts and consular highways of Rome. On the other hand, the Etruscans repeated, and at the same time corrupted, the ornamental architecture of the Greeks: for while they transferred the laws established for building in stone to architecture in wood, they displayed no thorough skill of adaptation, and by the lowness of their roof and the wide intervals between their columns gave to their temples, to use the language of an ancient architect, a "heavy, mean, straggling, and clumsy appearance." The Latins found in the rich stores of Greek art but very little that was congenial to their thoroughly realistic tastes; but what they did adopt they appropriated truly and heartily as their own, and in the development of the polygonal wall-architecture perhaps excelled their instructors. Etruscan art is a remarkable evidence of accomplishments mechanically acquired and mechanically retained, but it is, as little as the Chinese, an evidence even of genial receptivity. As

scholars have long since desisted from the attempt to derive Greek art from that of the Etruscans, so they must, with whatever reluctance, make up their minds to transfer the Etruscans from the first to the lowest place in the history of Italian art.

Notes for Book I Chapter XV

1. I. XII. Priests

2. I. XIII. Handicrafts

3. Thus Cato the Elder (de R. R. 160) gives as potent against sprains the formula: -hauat hauat hauat ista pista sista damia bodannaustra-, which was presumably quite as obscure to its inventor as it is to us. Of course, along with these there were also formulae of words; e. g. it was a remedy for gout, to think, while fasting, on some other person, and thrice nine times to utter the words, touching the earth at the same time and spitting:—"I think of thee, mend my feet. Let the earth receive the ill, let health with me dwell" (-terra pestem teneto, salus hie maneto-. Varro de R. R. i. 2, 27).

4. Each of the first five lines was repeated thrice, and the call at the close five times. Various points in the interpretation are uncertain, particularly as respects the third line. —The three inscriptions of the clay vase from the Quirinal (p. 277, note) run thus: -iove sat deiuosqoi med mitat nei ted endo gosmis uirgo sied—asted noisi ope toilesiai pakariuois—duenos med faked (=bonus me fecit) enmanom einom dze noine (probably=die noni) med malo statod.-Only individual words admit of being understood with certainty; it is especially noteworthy that forms, which we have hitherto known only as Umbrian and Oscan, like the adjective -pacer- and the

particle -einom with the value of -et, here probably meet us withal as old-Latin.

5. I. II. Art

6. The name probably denotes nothing but "the chant-measure," inasmuch as the -satura- was originally the chant sung at the carnival (II. Art). The god of sowing, -Saeturnus- or -Saiturnus-, afterwards -Saturnus-, received his name from the same root; his feast, the Saturnalia, was certainly a sort of carnival, and it is possible that the farces were originally exhibited chiefly at this feast. But there are no proofs of a relation between the Satura and the Saturnalia, and it may be presumed that the immediate association of the -versus saturnius- with the god Saturn, and the lengthening of the first syllable in connection with that view, belong only to later times.

7. I. XII. Foreign Worships

8. I. XIV. Introduction of Hellenic Alphabets into Italy

9. The statement that "formerly the Roman boys were trained in Etruscan culture, as they were in later times in Greek" (Liv. ix. 36), is quite irreconcilable with the original character of the Roman training of youth, and it is not easy to see what the Roman boys could have learned in Etruria. Even the most zealous modern partizans of Tages-worship will not maintain that the study of the Etruscan language played such a part in Rome then as the learning of French does now with us; that a non-Etruscan should understand anything of the art of the Etruscan -haruspices- was considered, even by those who availed themselves of that art, to be a disgrace or rather an impossibility (Muller, Etr. ii. 4). Perhaps the statement was concocted by the Etruscizing antiquaries of the last age of the republic out of stories of the older annals, aiming at a causal explanation of facts, such as that which

makes Mucius Scaevola learn Etruscan when a child for the sake of his conversation with Porsena (Dionysius, v. 28; Plutarch, Poplicola, 17; comp. Dionysius, iii. 70). But there was at any rate an epoch when the dominion of Rome over Italy demanded a certain knowledge of the language of the country on the part of Romans of rank.

10. The employment of the lyre in ritual is attested by Cicero *de Orat.* iii. 51, 197; *Tusc.* iv. 2, 4; Dionysius, vii. 72; Appian, *Pun.* 66; and the inscription in Orelli, 2448, comp. 1803. It was likewise used at the -neniae- (Varro ap. Nonium, v. -nenia- and -praeficae-). But playing on the lyre remained none the less unbecoming (Scipio ap. Macrobius, *Sat.* ii. 10, et al.). The prohibition of music in 639 exempted only the "Latin player on the pipe along with the singer," not the player on the lyre, and the guests at meals sang only to the pipe (Cato in Cic. *Tusc.* i. 2, 3; iv. 2, 3; Varro ap. Nonium, v. -assa voce-; Horace, *Carm.* iv. 15, 30). Quintilian, who asserts the reverse (*Inst.* i. 10, 20), has inaccurately transferred to private banquets what Cicero (*de Orat.* iii. 51) states in reference to the feasts of the gods.

11. The city festival can have only lasted at first for a single day, for in the sixth century it still consisted of four days of scenic and one day of Circensian sports (Ritschl, *Parerga*, i. 313) and it is well known that the scenic amusements were only a subsequent addition. That in each kind of contest there was originally only one competition, follows from Livy, xlv. 9; the running of five-and-twenty pairs of chariots in succession on one day was a subsequent innovation (Varro ap. Serv. *Georg.* iii. 18). That only two chariots—and likewise beyond doubt only two horsemen and two wrestlers—strove for the prize, may be inferred from the circumstance, that at all periods in the Roman chariot-races only as many chariots competed as there were so-called factions; and of these there were originally only two, the white and the red. The horsemanship-competition of patrician youths which belonged to the Circensian games, the so-called *Troia*, was, as is well

known, revived by Caesar; beyond doubt it was connected with the cavalcade of the boy-militia, which Dionysius mentions (vii. 72).

12. I. VII. Servian Wall

13. I. VI. Time and Occasion of the Reform

14. I. II. Religion

15. -Vates- probably denoted in the first instance the "leader of the singing" (for so the -vates- of the Salii must be understood) and thereafter in its older usage approximated to the Greek —propheiteis—; it was a word belonging to religious ritual, and even when subsequently used of the poet, always retained the accessory idea of a divinely-inspired singer—the priest of the Muses.

16. We shall show in due time that the Atellanae and Fescenninae belonged not to Campanian and Etruscan, but to Latin art.

17. Literally "word-crisping," in allusion to the -calamistri Maecenatis-.

18. I. III. Alba

19. Of this character were the Servian walls. They consisted partly of a strengthening of the hill-slopes by facing them with lining-walls as much as 4 metres thick, partly—in the intervals, above all on the Viminal and Quirinal, where from the Esquiline to the Colline gate there was an absence of natural defence—of an earthen mound, which was finished off on the outside by a similar lining-wall. On these lining-walls rested the breastwork. A trench, according to trustworthy statements of the ancients 30 feet deep and 100 feet broad, stretched along in front of the wall, for which the earth was taken from this same trench.—The breastwork has nowhere been preserved; of the lining-walls extensive remains have recently been

brought to light. The blocks of tufo composing them are hewn in longish rectangles, on an average of 60 centimetres (= 2 Roman feet) in height and breadth, while the length varies from 70 centimetres to 3 metres, and they are, without application of mortar, laid together in several rows, alternately with the long and with the narrow side outermost.

The portion of the Servian wall near the Viminal gate, discovered in the year 1862 at the Villa Negroni, rests on a foundation of huge blocks of tufo of 3 to 4 metres in height and breadth, on which was then raised the outer wall from blocks of the same material and of the same size as those elsewhere employed in the wall. The earthen rampart piled up behind appears to have had on the upper surface a breadth extending about 13 metres or fully 40 Roman feet, and the whole wall-defence, including the outer wall of freestone, to have had a breadth of as much as 15 metres or 50 Roman feet. The portions formed of peperino blocks, which are bound with iron clamps, have only been added in connection with subsequent labours of repair.—Essentially similar to the Servian walls are those discovered in the Vigna Nussiner, on the slope of the Palatine towards the side of the Capitol, and at other points of the Palatine, which have been declared by Jordan (*Topographic*, ii. 173), probably with reason, to be remnants of the citadel-wall of the Palatine Rome,

20. -Ratio Tuscanica,: cavum aedium Tuscanicum.-

21. When Varro (ap. Augustin. *De Civ. Dei*, iv. 31; comp. Plutarch *Num.* 8) affirms that the Romans for more than one hundred and seventy years worshipped the gods without images, he is evidently thinking of this primitive piece of carving, which, according to the conventional chronology, was dedicated between 176 and 219, and, beyond doubt, was the first statue of the gods, the consecration of which was mentioned in the

authorities which Varro had before him. Comp, above, XIV. Development of Alphabets in Italy.

22. I. XIII. Handicrafts

23. I. XII. Nature of the Roman Gods

24. I. XII. Pontifices

End of Book I

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THE HISTORY OF ROME: BOOK II

From the Abolition of the Monarchy in Rome to the Union of Italy

Preparer's Note

This work contains many literal citations of and references to foreign words, sounds, and alphabetic symbols drawn from many languages, including Gothic and Phoenician, but chiefly Latin and Greek. This English Gutenberg edition, constrained to the characters of 7-bit ASCII code, adopts the following orthographic conventions:

1) Except for Greek, all literally cited non-English words that do not refer to texts cited as academic references, words that in the source manuscript appear italicized, are rendered with a single preceding, and a single following dash; thus, -xxxx-.

2) Greek words, first transliterated into Roman alphabetic equivalents, are rendered with a preceding and a following double- dash; thus, —xxxx—. Note that in some cases the root word itself is a compound form such as xxx-xxxx, and is rendered as —xxx-xxx—

3) Simple unideographic references to vocalic sounds, single letters, or alphabetic diphthongs; and prefixes, suffixes, and syllabic references are represented by a single preceding dash; thus, -x, or -xxx.

4) Ideographic references, referring to signs of representation rather than to content, are represented as -"id:xxxx"-. "id:" stands for "ideograph", and

indicates that the reader should form a picture based on the following "xxxx"; which may be a single symbol, a word, or an attempt at a picture composed of ASCII characters. For example, —"id:GAMMA gamma"— indicates an uppercase Greek gamma-form followed by the form in lowercase. Some such exotic parsing as this is necessary to explain alphabetic development because a single symbol may have been used for a number of sounds in a number of languages, or even for a number of sounds in the same language at different times. Thus, -"id:GAMMA gamma" might very well refer to a Phoenician construct that in appearance resembles the form that eventually stabilized as an uppercase Greek "gamma" juxtaposed to one of lowercase. Also, a construct such as —"id:E" indicates a symbol that with ASCII resembles most closely a Roman uppercase "E", but, in fact, is actually drawn more crudely.

5) Dr. Mommsen has given his dates in terms of Roman usage, A.U.C.; that is, from the founding of Rome, conventionally taken to be 753 B. C. The preparer of this document, has appended to the end of this combined text (Books I-V) a table of conversion between the two systems.

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BOOK SECOND

From the Abolition of the Monarchy in Rome to the Union of Italy

—dei ouk ekpleittein ton suggraphea terateuomenon dia teis iotopias tous entugchanontas.—

Polybius.

CHAPTER I

Change of the Constitution—
Limitation of the Power of the Magistrate

Political and Social Distinctions in Rome

The strict conception of the unity and omnipotence of the state in all matters pertaining to it, which was the central principle of the Italian constitutions, placed in the hands of the single president nominated for life a formidable power, which was felt doubtless by the enemies of the land, but was not less heavily felt by its citizens. Abuse and oppression could not fail to ensue, and, as a necessary consequence, efforts were made to lessen that power. It was, however, the grand distinction of the endeavours after reform and the revolutions in Rome, that there was no attempt either to impose limitations on the community as such or even to deprive it of corresponding organs of expression—that there never was any endeavour to assert the so-called natural rights of the individual in contradistinction to the community—that, on the contrary, the attack was wholly directed against the form in which the community was represented. From the times of the Tarquins down to those of the Gracchi the cry of the party of progress in Rome was not for limitation of the power of the state, but for limitation of the power of the magistrates: nor amidst that cry was the truth ever forgotten, that the people ought not to govern, but to be governed.

This struggle was carried on within the burgess-body. Side by side with it another movement developed itself—the cry of the non-burgesses for equality of political privileges. Under this head are included the agitations of the plebeians, the Latins, the Italians, and the freedmen, all of whom—whether they may have borne the name of burgesses, as did the plebeians and the freedmen, or not, as was the case with the Latins and Italians—were destitute of, and desired, political equality.

A third distinction was one of a still more general nature; the distinction between the wealthy and the poor, especially such as had been dispossessed or were endangered in possession. The legal and political relations of Rome led to the rise of a numerous class of farmers—partly small proprietors who were dependent on the mercy of the capitalist, partly small temporary lessees who were dependent on the mercy of the landlord—and in many instances deprived individuals as well as whole communities of the lands which they held, without affecting their personal freedom. By these means the agricultural proletariat became at an early period so powerful as to have a material influence on the destinies of the community. The urban proletariat did not acquire political importance till a much later epoch.

On these distinctions hinged the internal history of Rome, and, as may be presumed, not less the history—totally lost to us—of the other Italian communities. The political movement within the fully-privileged burgess-body, the warfare between the excluded and excluding classes, and the social conflicts between the possessors and the non-possessors of land—variously as they crossed and interlaced, and singular as were the alliances they often produced —were nevertheless essentially and fundamentally distinct.

Abolition of the Life-Presidency of the Community

As the Servian reform, which placed the —*metoikos*— on a footing of equality in a military point of view with the burgess, appears to have originated from considerations of an administrative nature rather than from any political party-tendency, we may assume that the first of the movements which led to internal crises and changes of the constitution was that which sought to limit the magistracy. The earliest achievement of this, the most ancient opposition in Rome, consisted in the abolition of the life-tenure of the presidency of the community; in other words, in the abolition of the monarchy. How necessarily this was the result of the natural development of things, is most strikingly demonstrated by the fact, that the same change of constitution took place in an analogous manner through the whole circuit of the Italo-Grecian world. Not only in Rome, but likewise among the other Latins as well as among the Sabellians, Etruscans, and Apulians—and generally, in all the Italian communities, just as in those of Greece—we find the rulers for life of an earlier epoch superseded in after times by annual magistrates. In the case of the Lucanian canton there is evidence that it had a democratic government in time of peace, and it was only in the event of war that the magistrates appointed a king, that is, an official similar to the Roman dictator. The Sabellian civic communities, such as those of Capua and Pompeii, in like manner were in later times governed by a "community-manager" (-*medix tuticus*-) changed from year to year, and we may assume that similar institutions existed among the other national and civic communities of Italy. In this light the reasons which led to the substitution of consuls for kings in Rome need no explanation. The organism of the ancient Greek and Italian polity developed of itself by a sort of natural necessity the limitation of the life-presidency to a shortened, and for the most part an annual, term. Simple, however, as was the cause of this change, it might be brought about in various ways; a resolution might be adopted on the death of one life-ruler not to elect another—a course which the Roman senate is said to have attempted after the death of Romulus; or

the ruler might voluntarily abdicate, as is alleged to have been the intention of king Servius Tullius; or the people might rise in rebellion against a tyrannical ruler, and expel him.

Expulsion of the Tarquins from Rome

It was in this latter way that the monarchy was terminated in Rome. For however much the history of the expulsion of the last Tarquinius, "the proud," may have been interwoven with anecdotes and spun out into a romance, it is not in its leading outlines to be called in question. Tradition credibly enough indicates as the causes of the revolt, that the king neglected to consult the senate and to complete its numbers; that he pronounced sentences of capital punishment and confiscation without advising with his counsellors; that he accumulated immense stores of grain in his granaries, and exacted from the burgesses military labour and task-work beyond what was due. The exasperation of the people is attested by the formal vow which they made man by man for themselves and for their posterity that thenceforth they would never tolerate a king; by the blind hatred with which the name of king was ever afterwards regarded in Rome; and above all by the enactment that the "king for offering sacrifice" (-rex sacrorum- or -sacrificulus-)—whom they considered it their duty to create that the gods might not miss their accustomed mediator—should be disqualified from holding any further office, so that this man became the foremost indeed, but also the most powerless in the Roman commonwealth. Along with the last king all the members of his clan were banished—a proof how close at that time gentile ties still were. The Tarquinius thereupon transferred themselves to Caere, perhaps their ancient home,⁽¹⁾ where their family tomb has recently been discovered. In the room of the one president holding office for life two annual rulers were now placed at the head of the Roman community.

This is all that can be looked upon as historically certain in reference to this important event.(2) It is conceivable that in a great community with extensive dominion like the Roman the royal power, particularly if it had been in the same family for several generations, would be more capable of resistance, and the struggle would thus be keener, than in the smaller states; but there is no certain indication of any interference by foreign states in the struggle. The great war with Etruria—which possibly, moreover, has been placed so close upon the expulsion of the Tarquins only in consequence of chronological confusion in the Roman annals—cannot be regarded as an intervention of Etruria in favour of a countryman who had been injured in Rome, for the very sufficient reason that the Etruscans notwithstanding their complete victory neither restored the Roman monarchy, nor even brought back the Tarquinian family.

Powers of the Consuls

If we are left in ignorance of the historical connections of this important event, we are fortunately in possession of clearer light as to the nature of the change which was made in the constitution. The royal power was by no means abolished, as is shown by the very fact that, when a vacancy occurred afterwards as before, an "interim king" (-interrex-) was nominated. The one life-king was simply replaced by two year-kings, who called themselves generals (-praetores-), or judges (-iudices-), or merely colleagues (consules).(3) The principles of collegiate tenure and of annual duration are those which distinguish the republic from the monarchy, and they first meet us here.

Collegiate Arrangement

The collegiate principle, from which the third and subsequently most current name of the annual kings was derived, assumed in their case an altogether peculiar form. The supreme power was not entrusted to the two

magistrates conjointly, but each consul possessed and exercised it for himself as fully and wholly as it had been possessed and exercised by the king. This was carried so far that, instead of one of the two colleagues undertaking perhaps the administration of justice, and the other the command of the army, they both administered justice simultaneously in the city just as they both set out together to the army; in case of collision the matter was decided by a rotation measured by months or days. A certain partition of functions withal, at least in the supreme military command, might doubtless take place from the outset—the one consul for example taking the field against the Aequi, and the other against the Volsci—but it had in no wise binding force, and each of the colleagues was legally at liberty to interfere at any time in the province of the other. When, therefore, supreme power confronted supreme power and the one colleague forbade what the other enjoined, the consular commands neutralized each other. This peculiarly Latin, if not peculiarly Roman, institution of co-ordinate supreme authorities—which in the Roman commonwealth on the whole approved itself as practicable, but to which it will be difficult to find a parallel in any other considerable state—manifestly sprang out of the endeavour to retain the regal power in legally undiminished fulness. They were thus led not to break up the royal office into parts or to transfer it from an individual to a college, but simply to double it and thereby, if necessary, to neutralize it through its own action.

Term of Office

As regards the termination of their tenure of office, the earlier -interregnum- of five days furnished a legal precedent. The ordinary presidents of the community were bound not to remain in office longer than a year reckoned from the day of their entering on their functions;(4) and they ceased -de jure- to be magistrates upon the expiry of the year, just as the interrex on the expiry of the five days. Through this set termination of

the supreme office the practical irresponsibility of the king was lost in the case of the consul. It is true that the king was always in the Roman commonwealth subject, and not superior, to the law; but, as according to the Roman view the supreme judge could not be prosecuted at his own bar, the king might doubtless have committed a crime, but there was for him no tribunal and no punishment. The consul, again, if he had committed murder or treason, was protected by his office, but only so long as it lasted; on his retirement he was liable to the ordinary penal jurisdiction like any other burgess.

To these leading changes, affecting the principles of the constitution, other restrictions were added of a subordinate and more external character, some of which nevertheless produced a deep effect. The privilege of the king to have his fields tilled by task-work of the burgesses, and the special relation of clientship in which the —*metoeci*— as a body must have stood to the king, ceased of themselves with the life tenure of the office.

Right of Appeal

Hitherto in criminal processes as well as in fines and corporal punishments it had been the province of the king not only to investigate and decide the cause, but also to decide whether the person found guilty should or should not be allowed to appeal for pardon. The Valerian law now (in 245) enacted that the consul must allow the appeal of the condemned, where sentence of capital or corporal punishment had been pronounced otherwise than by martial law—a regulation which by a later law (of uncertain date, but passed before 303) was extended to heavy fines. In token of this right of appeal, when the consul appeared in the capacity of judge and not of general, the consular lictors laid aside the axes which they had previously carried by virtue of the penal jurisdiction belonging to their master. The law however threatened the magistrate, who did not allow due

course to the -provocatio-, with no other penalty than infamy—which, as matters then stood, was essentially nothing but a moral stain, and at the utmost only had the effect of disqualifying the infamous person from giving testimony. Here too the course followed was based on the same view, that it was in law impossible to diminish the old regal powers, and that the checks imposed upon the holder of the supreme authority in consequence of the revolution had, strictly viewed, only a practical and moral value. When therefore the consul acted within the old regal jurisdiction, he might in so acting perpetrate an injustice, but he committed no crime and consequently was not amenable for what he did to the penal judge.

A limitation similar in its tendency took place in the civil jurisdiction; for probably there was taken from the consuls at the very outset the right of deciding at their discretion a legal dispute between private persons.

Restrictions on the Delegation of Powers

The remodelling of the criminal as of civil procedure stood in connection with a general arrangement respecting the transference of magisterial power to deputies or successors. While the king had been absolutely at liberty to nominate deputies but had never been compelled to do so, the consuls exercised the right of delegating power in an essentially different way. No doubt the rule that, if the supreme magistrate left the city, he had to appoint a warden there for the administration of justice,(5) remained in force also for the consuls, and the collegiate arrangement was not even extended to such delegation; on the contrary this appointment was laid on the consul who was the last to leave the city. But the right of delegation for the time when the consuls remained in the city was probably restricted, upon the very introduction of this office, by providing that delegation should be prescribed to the consul for definite cases, but should be prohibited for all cases in which it was not so prescribed. According to this principle, as we

have said, the whole judicial system was organized. The consul could certainly exercise criminal jurisdiction also as to a capital process in the way of submitting his sentence to the community and having it thereupon confirmed or rejected; but he never, so far as we see, exercised this right, perhaps was soon not allowed to exercise it, and possibly pronounced a criminal judgment only in the case of appeal to the community being for any reason excluded. Direct conflict between the supreme magistrate of the community and the community itself was avoided, and the criminal procedure was organized really in such a way, that the supreme magistracy remained only in theory competent, but always acted through deputies who were necessary though appointed by himself. These were the two—not standing—pronouncers-of-judgment for revolt and high treason (-duoviri perduellionis-) and the two standing trackers of murder, the -quaestores parricidii-. Something similar may perhaps have occurred in the regal period, where the king had himself represented in such processes;(6) but the standing character of the latter institution, and the collegiate principle carried out in both, belong at any rate to the republic. The latter arrangement became of great importance also, in so far that thereby for the first time alongside of the two standing supreme magistrates were placed two assistants, whom each supreme magistrate nominated at his entrance on office, and who in due course also went out with him on his leaving it—whose position thus, like the supreme magistracy itself, was organized according to the principles of a standing office, of a collegiate form, and of an annual tenure. This was not indeed as yet the inferior magistracy itself, at least not in the sense which the republic associated with the magisterial position, inasmuch as the commissioners did not emanate from the choice of the community; but it doubtless became the starting-point for the institution of subordinate magistrates, which was afterwards developed in so manifold ways.

In a similar way the decision in civil procedure was withdrawn from the supreme magistracy, inasmuch as the right of the king to transfer an individual process for decision to a deputy was converted into the duty of the consul, after settling the legitimate title of the party and the object of the suit, to refer the disposal of it to a private man to be selected by him and furnished by him with instructions.

In like manner there was left to the consuls the important administration of the state-treasure and of the state-archives; nevertheless probably at once, or at least very early, there were associated with them standing assistants in that duty, namely, those quaestors who, doubtless, had in exercising this function absolutely to obey them, but without whose previous knowledge and co-operation the consuls could not act.

Where on the other hand such directions were not in existence, the president of the community in the capital had personally to intervene; as indeed, for example, at the introductory steps of a process he could not under any circumstances let himself be represented by deputy.

This double restriction of the consular right of delegation subsisted for the government of the city, and primarily for the administration of justice and of the state-chest. As commander-in-chief, on the other hand, the consul retained the right of handing over all or any of the duties devolving on him. This diversity in the treatment of civil and military delegation explains why in the government of the Roman community proper no delegated magisterial authority (-pro magistrate-) was possible, nor were purely urban magistrates ever represented by non-magistrates; and why, on the other hand, military deputies (-pro consuls-, -pro praetore-, -pro quaestore-) were excluded from all action within the community proper.

Nominating a Successor

The right of nominating a successor had not been possessed by the king, but only by the interrex.(7) The consul was in this respect placed on a like footing with the latter; nevertheless, in the event of his not having exercised the power, the interrex stepped in as before, and the necessary continuity of the office subsisted still undiminished under the republican government. The right of nomination, however, was materially restricted in favour of the burgesses, as the consul was bound to procure the assent of the burgesses for the successors designated by him, and, in the sequel, to nominate only those whom the community designated to him. Through this binding right of proposal the nomination of the ordinary supreme magistrates doubtless in a certain sense passed substantially into the hands of the community; practically, however, there still existed a very considerable distinction between that right of proposal and the right of formal nomination. The consul conducting the election was by no means a mere returning officer; he could still, e. g. by virtue of his old royal prerogative reject particular candidates and disregard the votes tendered for them; at first he might even limit the choice to a list of candidates proposed by himself; and—what was of still more consequence—when the collegiate consulship was to be supplemented by the dictator, of whom we shall speak immediately, in so supplementing it the community was not consulted, but on the contrary the consul in that case appointed his colleague with the same freedom, wherewith the interrex had once appointed the king.

Change in the Nomination of Priests

The nomination of the priests, which had been a prerogative of the kings, (8) was not transferred to the consuls; but the colleges of priests filled up the vacancies in their own ranks, while the Vestals and single priests were nominated by the pontifical college, on which devolved also the exercise of the paternal jurisdiction, so to speak, of the community over the priestesses of Vesta. With a view to the performance of these acts, which could only be

properly performed by a single individual, the college probably about this period first nominated a president, the -Pontifex maximus-. This separation of the supreme authority in things sacred from the civil power—while the already-mentioned "king for sacrifice" had neither the civil nor the sacred powers of the king, but simply the title, conferred upon him —and the semi-magisterial position of the new high priest, so decidedly contrasting with the character which otherwise marked the priesthood in Rome, form one of the most significant and important peculiarities of this state-revolution, the aim of which was to impose limits on the powers of the magistrates mainly in the interest of the aristocracy.

We have already mentioned that the outward state of the consul was far inferior to that of the regal office hedged round as it was with reverence and terror, that the regal name and the priestly consecration were withheld from him, and that the axe was taken away from his attendants. We have to add that, instead of the purple robe which the king had worn, the consul was distinguished from the ordinary burgess simply by the purple border of his toga, and that, while the king perhaps regularly appeared in public in his chariot, the consul was bound to accommodate himself to the general rule and like every other burgess to go within the city on foot.

The Dictator

These limitations, however, of the plenary power and of the insignia of the magistracy applied in the main only to the ordinary presidency of the community. In extraordinary cases, alongside of, and in a certain sense instead of, the two presidents chosen by the community there emerged a single one, the master of the army (-magister populi-) usually designated as the -dictator-. In the choice of dictator the community exercised no influence at all, but it proceeded solely from the free resolve of one of the consuls for the time being, whose action neither his colleague nor any other

authority could hinder. There was no appeal from his sentence any more than from that of the king, unless he chose to allow it. As soon as he was nominated, all the other magistrates were by right subject to his authority. On the other hand the duration of the dictator's office was limited in two ways: first, as the official colleague of those consuls, one of whom had nominated him, he might not remain in office beyond their legal term; and secondly, a period of six months was fixed as the absolute maximum for the duration of his office. It was a further arrangement peculiar to the dictatorship, that the "master of the army" was bound to nominate for himself immediately a "master of horse" (-magister equitum-), who acted along with him as a dependent assistant somewhat as did the quaestor along with the consul, and with him retired from office—an arrangement undoubtedly connected with the fact that the dictator, presumably as being the leader of the infantry, was constitutionally prohibited from mounting on horseback. In the light of these regulations the dictatorship is doubtless to be conceived as an institution which arose at the same time with the consulship, and which was designed, especially in the event of war, to obviate for a time the disadvantages of divided power and to revive temporarily the regal authority; for in war more particularly the equality of rights in the consuls could not but appear fraught with danger; and not only positive testimonies, but above all the oldest names given to the magistrate himself and his assistant, as well as the limitation of the office to the duration of a summer campaign, and the exclusion of the -provocatio- attest the pre-eminently military design of the original dictatorship.

On the whole, therefore, the consuls continued to be, as the kings had been, the supreme administrators, judges, and generals; and even in a religious point of view it was not the -rex sacrorum- (who was only nominated that the name might be preserved), but the consul, who offered prayers and sacrifices for the community, and in its name ascertained the will of the gods with the aid of those skilled in sacred lore. Against cases of

emergency, moreover, a power was retained of reviving at any moment, without previous consultation of the community, the full and unlimited regal authority, so as to set aside the limitations imposed by the collegiate arrangement and by the special curtailments of jurisdiction. In this way the problem of legally retaining and practically restricting the regal authority was solved in genuine Roman fashion with equal acuteness and simplicity by the nameless statesmen who worked out this revolution.

Centuries and Curies

The community thus acquired by the change of constitution rights of the greatest importance: the right of annually designating its presidents, and that of deciding in the last instance regarding the life or death of the burgess. But the body which acquired these rights could not possibly be the community as it had been hitherto constituted—the patriciate which had practically become an order of nobility. The strength of the nation lay in the "multitude" (-plebs-) which already comprehended in large numbers people of note and of wealth. The exclusion of this multitude from the public assembly, although it bore part of the public burdens, might be tolerated as long as that public assembly itself had no very material share in the working of the state machine, and as long as the royal power by the very fact of its high and free position remained almost equally formidable to the burgesses and to the —metoeci— and thereby maintained equality of legal redress in the nation. But when the community itself was called regularly to elect and to decide, and the president was practically reduced from its master to its commissioner for a set term, this relation could no longer be maintained as it stood; least of all when the state had to be remodelled on the morrow of a revolution, which could only have been carried out by the co-operation of the patricians and the —metoeci—. An extension of that community was inevitable; and it was accomplished in the most comprehensive manner, inasmuch as the collective plebeiate, that is, all the non-burgesses who were

neither slaves nor citizens of extraneous communities living at Rome under the *-ius hospitii-*, were admitted into the burgess-body. The curiate assembly of the old burgesses, which hitherto had been legally and practically the first authority in the state, was almost totally deprived of its constitutional prerogatives. It was to retain its previous powers only in acts purely formal or in those which affected clan-relations —such as the vow of allegiance to be taken to the consul or to the dictator when they entered on office just as previously to the king,(9) and the legal dispensations requisite for an *-arrogatio-* or a testament—but it was not in future to perform any act of a properly political character. Soon even the plebeians were admitted to the right of voting also in the curies, and by that step the old burgess-body lost the right of meeting and of resolving at all. The curial organization was virtually rooted out, in so far as it was based on the clan-organization and this latter was to be found in its purity exclusively among the old burgesses. When the plebeians were admitted into the curies, they were certainly also allowed to constitute themselves *-de jure-* as—what in the earlier period they could only have been *-de facto-*(10)—families and clans; but it is distinctly recorded by tradition and in itself also very conceivable, that only a portion of the plebeians proceeded so far as to constitute *-gentes-*, and thus the new curiate assembly, in opposition to its original character, included numerous members who belonged to no clan.

All the political prerogatives of the public assembly—as well the decision on appeals in criminal causes, which indeed were essentially political processes, as the nomination of magistrates and the adoption or rejection of laws—were transferred to, or were now acquired by, the assembled levy of those bound to military service; so that the centuries now received the rights, as they had previously borne the burdens, of citizens. In this way the small initial movements made by the Servian constitution—such as, in particular, the handing over to the army the right of assenting to the declaration of an aggressive war(11)—attained such a development that

the curies were completely and for ever cast into the shade by the assembly of the centuries, and people became accustomed to regard the latter as the sovereign people. In this assembly debate took place merely when the presiding magistrate chose himself to speak or bade others do so; of course in cases of appeal both parties had to be heard. A simple majority of the centuries was decisive.

As in the curiate assembly those who were entitled to vote at all were on a footing of entire equality, and therefore after the admission of all the plebeians into the curies the result would have been a complete democracy, it may be easily conceived that the decision of political questions continued to be withheld from the curies; the centuriate assembly placed the preponderating influence, not in the hands of the nobles certainly, but in those of the possessors of property, and the important privilege of priority in voting, which often practically decided the election, placed it in the hands of the -equites- or, in other words, of the rich.

Senate

The senate was not affected by the reform of the constitution in the same way as the community. The previously existing college of elders not only continued exclusively patrician, but retained also its essential prerogatives—the right of appointing the interrex, and of confirming or rejecting the resolutions adopted by the community as constitutional or unconstitutional. In fact these prerogatives were enhanced by the reform of the constitution, because the appointment of the magistrates also, which fell to be made by election of the community, was thenceforth subject to the confirmation or rejection of the patrician senate. In cases of appeal alone its confirmation, so far as we know, was never deemed requisite, because in these the matter at stake was the pardon of the guilty and, when this was granted by the

sovereign assembly of the people, any cancelling of such an act was wholly out of the question.

But, although by the abolition of the monarchy the constitutional rights of the patrician senate were increased rather than diminished, there yet took place—and that, according to tradition, immediately on the abolition of the monarchy—so far as regards other affairs which fell to be discussed in the senate and admitted of a freer treatment, an enlargement of that body, which brought into it plebeians also, and which in its consequences led to a complete remodelling of the whole. From the earliest times the senate had acted also, although not solely or especially, as a state-council; and, while probably even in the time of the kings it was not regarded as unconstitutional for non-senators in this case to take part in the assembly, (12) it was now arranged that for such discussions there should be associated with the patrician senate (-patres-) a number of non-patricians "added to the roll" (-conscripti-). This did not at all put them on a footing of equality; the plebeians in the senate did not become senators, but remained members of the equestrian order, were not designated -patres- but were even now -conscripti-, and had no right to the badge of senatorial dignity, the red shoe.(13) Moreover, they not only remained absolutely excluded from the exercise of the magisterial prerogatives belonging to the senate (-auctoritas-), but were obliged, even where the question had reference merely to an advice (-consilium-), to rest content with the privilege of being present in silence while the question was put to the patricians in turn, and of only indicating their opinion by adding to the numbers when the division was taken—voting with the feet (-pedibus in sententiam ire-, -pedarii-) as the proud nobility expressed it. Nevertheless, the plebeians found their way through the new constitution not merely to the Forum, but also to the senate-house, and the first and most difficult step towards equality of rights was taken in this quarter also.

Otherwise there was no material change in the arrangements affecting the senate. Among the patrician members a distinction of rank soon came to be recognized, especially in putting the vote: those who were proximately designated for the supreme magistracy, or who had already administered it, were entered on the list and were called upon to vote before the rest; and the position of the first of them, the foreman of the senate (-*princeps senatus*-) soon became a highly coveted place of honour. The consul in office, on the other hand, no more ranked as a member of senate than did the king, and therefore in taking the votes did not include his own. The selection of the members—both of the narrower patrician senate and of those merely added to the roll—fell to be made by the consuls just as formerly by the kings; but the nature of the case implied that, while the king had still perhaps some measure of regard to the representation of the several clans in the senate, this consideration was of no account so far as concerned the plebeians, among whom the clan-organization was but imperfectly developed, and consequently the relation of the senate to that organization in general fell more and more into abeyance. We have no information that the electing consuls were restricted from admitting more than a definite number of plebeians to the senate; nor was there need for such a regulation, because the consuls themselves belonged to the nobility. On the other hand probably from the outset the consul was in virtue of his very position practically far less free, and far more bound by the opinions of his order and by custom, in the appointment of senators than the king. The rule in particular, that the holding of the consulship should necessarily be followed by admission to the senate for life, if, as was probably the case at this time, the consul was not yet a member of it at the time of his election, must have in all probability very early acquired consuetudinary force. In like manner it seems to have become early the custom not to fill up the senators' places immediately on their falling vacant, but to revise and complete the roll of the senate on occasion of the census, consequently, as a rule, every fourth

year; which also involved a not unimportant restriction on the authority entrusted with the selection. The whole number of the senators remained as before, and in this the -conscripti- were also included; from which fact we are probably entitled to infer the numerical falling off of the patriciate.(14)

Conservative Character of the Revolution

We thus see that in the Roman commonwealth, even on the conversion of the monarchy into a republic, the old was as far as possible retained. So far as a revolution in a state can be conservative at all, this one was so; not one of the constituent elements of the commonwealth was really overthrown by it. This circumstance indicates the character of the whole movement. The expulsion of the Tarquins was not, as the pitiful and deeply falsified accounts of it represent, the work of a people carried away by sympathy and enthusiasm for liberty, but the work of two great political parties already engaged in conflict, and clearly aware that their conflict would steadily continue—the old burgesses and the —metoeci— —who, like the English Whigs and Tories in 1688, were for a moment united by the common danger which threatened to convert the commonwealth into the arbitrary government of a despot, and differed again as soon as the danger was over. The old burgesses could not get rid of the monarchy without the cooperation of the new burgesses; but the new burgesses were far from being sufficiently strong to wrest the power out of the hands of the former at one blow. Compromises of this sort are necessarily limited to the smallest measure of mutual concessions obtained by tedious bargaining; and they leave the future to decide which of the constituent elements shall eventually preponderate, and whether they will work harmoniously together or counteract one another. To look therefore merely to the direct innovations, possibly to the mere change in the duration of the supreme magistracy, is altogether to mistake the broad import of the first Roman revolution: its

indirect effects were by far the most important, and vaster doubtless than even its authors anticipated.

The New Community

This, in short, was the time when the Roman burgess-body in the later sense of the term originated. The plebeians had hitherto been —*metoeci*— who were subjected to their share of taxes and burdens, but who were nevertheless in the eye of the law really nothing but tolerated aliens, between whose position and that of foreigners proper it may have seemed hardly necessary to draw a definite line of distinction. They were now enrolled in the lists as burgesses liable to military service, and, although they were still far from being on a footing of legal equality—although the old burgesses still remained exclusively entitled to perform the acts of authority constitutionally pertaining to the council of elders, and exclusively eligible to the civil magistracies and priesthoods, nay even by preference entitled to participate in the usufructs of burgesses, such as the joint use of the public pasture—yet the first and most difficult step towards complete equalization was gained from the time when the plebeians no longer served merely in the common levy, but also voted in the common assembly and in the common council when its opinion was asked, and the head and back of the poorest —*metoikos*— were as well protected by the right of appeal as those of the noblest of the old burgesses.

One consequence of this amalgamation of the patricians and plebeians in a new corporation of Roman burgesses was the conversion of the old burgesses into a clan-nobility, which was incapable of receiving additions or even of filling up its own ranks, since the nobles no longer possessed the right of passing decrees in common assembly and the adoption of new families into the nobility by decree of the community appeared still less admissible. Under the kings the ranks of the Roman nobility had not been

thus closed, and the admission of new clans was no very rare occurrence: now this genuine characteristic of patricianism made its appearance as the sure herald of the speedy loss of its political privileges and of its exclusive estimation in the community. The exclusion of the plebeians from all public magistracies and public priesthods—while they were admissible to the position of officers and senators—and the maintenance, with perverse obstinacy, of the legal impossibility of marriage between old burgesses and plebeians, further impressed on the patriciate from the outset the stamp of an exclusive and wrongly privileged aristocracy.

A second consequence of the new union of the burgesses must have been a more definite regulation of the right of settlement, with reference both to the Latin confederates and to other states. It became necessary—not so much on account of the right of suffrage in the centuries (which indeed belonged only to the freeholder) as on account of the right of appeal, which was intended to be conceded to the plebeian, but not to the foreigner dwelling for a time or even permanently in Rome—to express more precisely the conditions of the acquisition of plebeian rights, and to mark off the enlarged burgess-body in its turn from those who were now the non-burgesses. To this epoch therefore we may trace back—in the views and feelings of the people—both the invidiousness of the distinction between patricians and plebeians, and the strict and haughty line of demarcation between -cives Romani- and aliens. But the former civic distinction was in its nature transient, while the latter political one was permanent; and the sense of political unity and rising greatness, which was thus implanted in the heart of the nation, was expansive enough first to undermine and then to carry away with its mighty current those paltry distinctions.

Law and Edict

It was at this period, moreover, that law and edict were separated. The distinction indeed had its foundation in the essential character of the Roman state; for even the regal power in Rome was subordinate, not superior, to the law of the land. But the profound and practical veneration, which the Romans, like every other people of political capacity, cherished for the principle of authority, gave birth to the remarkable rule of Roman constitutional and private law, that every command of the magistrate not based upon a law was at least valid during his tenure of office, although it expired with that tenure. It is evident that in this view, so long as the presidents were nominated for life, the distinction between law and edict must have practically been almost lost sight of, and the legislative activity of the public assembly could acquire no development. On the other hand it obtained a wide field of action after the presidents were changed annually; and the fact was now by no means void of practical importance, that, if the consul in deciding a process committed a legal informality, his successor could institute a fresh trial of the cause.

Civil and Military Authority

It was at this period, finally, that the provinces of civil and military authority were separated. In the former the law ruled, in the latter the axe: the former was governed by the constitutional checks of the right of appeal and of regulated delegation; in the latter the general held an absolute sway like the king.⁽¹⁵⁾ It was an established principle, that the general and the army as such should not under ordinary circumstances enter the city proper. That organic and permanently operative enactments could only be made under the authority of the civil power, was implied in the spirit, if not in the letter, of the constitution. Instances indeed occasionally occurred where the general, disregarding this principle, convoked his forces in the camp as a burgess assembly, nor was a decree passed under such circumstances legally void; but custom disapproved of such a proceeding, and it soon fell

into disuse as though it had been forbidden. The distinction between Quirites and soldiers became more and more deeply rooted in the minds of the burgesses.

Government of the Patriciate

Time however was required for the development of these consequences of the new republicanism; vividly as posterity felt its effects, the revolution probably appeared to the contemporary world at first in a different light. The non-burgesses indeed gained by it burgess-rights, and the new burgess-body acquired in the -comitia centuriata- comprehensive prerogatives; but the right of rejection on the part of the patrician senate, which in firm and serried ranks confronted the -comitia- as if it were an Upper House, legally hampered their freedom of movement precisely in the most important matters, and although not in a position to thwart the serious will of the collective body, could yet practically delay and cripple it. If the nobility in giving up their claim to be the sole embodiment of the community did not seem to have lost much, they had in other respects decidedly gained. The king, it is true, was a patrician as well as the consul, and the right of nominating the members of the senate belonged to the latter as to the former; but while his exceptional position raised the former no less above the patricians than above the plebeians, and while cases might easily occur in which he would be obliged to lean upon the support of the multitude even against the nobility, the consul—ruling for a brief term, but before and after that term simply one of the nobility, and obeying to-morrow the noble fellow-burgess whom he had commanded to-day—by no means occupied a position aloof from his order, and the spirit of the noble in him must have been far more powerful than that of the magistrate. Indeed, if at any time by way of exception a patrician disinclined to the rule of the nobility was called to the government, his official authority was paralyzed partly by the priestly colleges, which were pervaded by an intense aristocratic spirit,

partly by his colleague, and was easily suspended by the dictatorship; and, what was of still more moment, he wanted the first element of political power, time. The president of a commonwealth, whatever plenary authority may be conceded to him, will never gain possession of political power, if he does not continue for some considerable time at the head of affairs; for a necessary condition of every dominion is duration. Consequently the senate appointed for life inevitably acquired—and that by virtue chiefly of its title to advise the magistrate in all points, so that we speak not of the narrower patrician, but of the enlarged patricio-plebeian, senate—so great an influence as contrasted with the annual rulers, that their legal relations became precisely inverted; the senate substantially assumed to itself the powers of government, and the former ruler sank into a president acting as its chairman and executing its decrees. In the case of every proposal to be submitted to the community for acceptance or rejection the practice of previously consulting the whole senate and obtaining its approval, while not constitutionally necessary, was consecrated by use and wont; and it was not lightly or willingly departed from. The same course was followed in the case of important state-treaties, of the management and distribution of the public lands, and generally of every act the effects of which extended beyond the official year; and nothing was left to the consul but the transaction of current business, the initial steps in civil processes, and the command in war. Especially important in its consequences was the change in virtue of which neither the consul, nor even the otherwise absolute dictator, was permitted to touch the public treasure except with the consent and by the will of the senate. The senate made it obligatory on the consuls to commit the administration of the public chest, which the king had managed or might at any rate have managed himself, to two standing subordinate magistrates, who were nominated no doubt by the consuls and had to obey them, but were, as may easily be conceived, much more dependent than the consuls themselves on the senate.(16) It thus drew into

its own hands the management of finance; and this right of sanctioning the expenditure of money on the part of the Roman senate may be placed on a parallel in its effects with the right of sanctioning taxation in the constitutional monarchies of the present day.

The consequences followed as a matter of course. The first and most essential condition of all aristocratic government is, that the plenary power of the state be vested not in an individual but in a corporation. Now a preponderantly aristocratic corporation, the senate, had appropriated to itself the government, and at the same time the executive power not only remained in the hands of the nobility, but was also entirely subject to the governing corporation. It is true that a considerable number of men not belonging to the nobility sat in the senate; but as they were incapable of holding magistracies or even of taking part in the debates, and thus were excluded from all practical share in the government, they necessarily played a subordinate part in the senate, and were moreover kept in pecuniary dependence on the corporation through the economically important privilege of using the public pasture. The gradually recognized right of the patrician consuls to revise and modify the senatorial list at least every fourth year, ineffective as presumably it was over against the nobility, might very well be employed in their interest, and an obnoxious plebeian might by means of it be kept out of the senate or even be removed from its ranks.

The Plebeian Opposition

It is therefore quite true that the immediate effect of the revolution was to establish the aristocratic government. It is not, however, the whole truth. While the majority of contemporaries probably thought that the revolution had brought upon the plebeians only a more rigid despotism, we who come afterwards discern in that very revolution the germs of young liberty. What the patricians gained was gained at the expense not of the community, but

of the magistrate's power. It is true that the community gained only a few narrowly restricted rights, which were far less practical and palpable than the acquisitions of the nobility, and which not one in a thousand probably had the wisdom to value; but they formed a pledge and earnest of the future. Hitherto the —metoeci— had been politically nothing, the old burgesses had been everything; now that the former were embraced in the community, the old burgesses were overcome; for, however much might still be wanting to full civil equality, it is the first breach, not the occupation of the last post, that decides the fall of the fortress. With justice therefore the Roman community dated its political existence from the beginning of the consulate.

While however the republican revolution may, notwithstanding the aristocratic rule which in the first instance it established, be justly called a victory of the former —metoeci— or the -plebs-, the revolution even in this respect bore by no means the character which we are accustomed in the present day to designate as democratic. Pure personal merit without the support of birth and wealth could perhaps gain influence and consideration more easily under the regal government than under that of the patriciate. Then admission to the patriciate was not in law foreclosed; now the highest object of plebeian ambition was to be admitted into the dumb appendage of the senate. The nature of the case implied that the governing aristocratic order, so far as it admitted plebeians at all, would grant the right of occupying seats in the senate not absolutely to the best men, but chiefly to the heads of the wealthy and notable plebeian families; and the families thus admitted jealously guarded the possession of the senatorial stalls. While a complete legal equality therefore had subsisted within the old burgess-body, the new burgess-body or former —metoeci— came to be in this way divided from the first into a number of privileged families and a multitude kept in a position of inferiority. But the power of the community now according to the centuriate organization came into the hands of that class which since the Servian reform of the army and of taxation had borne

mainly the burdens of the state, namely the freeholders, and indeed not so much into the hands of the great proprietors or into those of the small cottagers, as into those of the intermediate class of farmers—an arrangement in which the seniors were still so far privileged that, although less numerous, they had as many voting- divisions as the juniors. While in this way the axe was laid to the root of the old burgess-body and their clan-nobility, and the basis of a new burgess-body was laid, the preponderance in the latter rested on the possession of land and on age, and the first beginnings were already visible of a new aristocracy based primarily on the actual consideration in which the families were held—the future nobility. There could be no clearer indication of the fundamentally conservative character of the Roman commonwealth than the fact, that the revolution which gave birth to the republic laid down at the same time the primary outlines of a new organization of the state, which was in like manner conservative and in like manner aristocratic.

Notes for Book II Chapter I

1. I. IX. The Tarquins

2. The well-known fable for the most part refutes itself. To a considerable extent it has been concocted for the explanation of surnames (-Brutus-, -Poplicola-, -Scaevola-). But even its apparently historical ingredients are found on closer examination to have been invented. Of this character is the statement that Brutus was captain of the horsemen (-tribunus celerum-) and in that capacity proposed the decree of the people as to the banishment of the Tarquins; for, according to the Roman constitution, it is quite impossible that a mere officer should have had the right to convoke the curies. The

whole of this statement has evidently been invented with the view of furnishing a legal basis for the Roman republic; and very ill invented it is, for in its case the -tribunus celerum- is confounded with the entirely different -magister equitum- (V. Burdens Of The Burgesses f.), and then the right of convoking the centuries which pertained to the latter by virtue of his praetorian rank is made to apply to the assembly of the curies.

3. -Consules- are those who "leap or dance together," as -praesul- is one who "leaps before," -exsul-, one who "leaps out" (—o ekpeson—), -insula-, a "leap into," primarily applied to a mass of rock fallen into the sea.

4. The day of entering on office did not coincide with the beginning of the year (1st March), and was not at all fixed. The day of retiring was regulated by it, except when a consul was elected expressly in room of one who had dropped out (-consul suffectus-); in which case the substitute succeeded to the rights and consequently to the term of him whom he replaced. But these supplementary consuls in the earlier period only occurred when merely one of the consuls had dropped out: pairs of supplementary consuls are not found until the later ages of the republic. Ordinarily, therefore, the official year of a consul consisted of unequal portions of two civil years.

5. I. V. The King

6. I. XI. Crimes

7. I. V. Prerogatives of the Senate

8. I. V. The King

9. I. V. The King

10. I. VI. Dependents and Guests

11. I. VI. Political Effects of the Servian Military Organization

12. I. V. The Senate as State Council

13. I. V. Prerogatives of the Senate

14. That the first consuls admitted to the senate 164 plebeians, is hardly to be regarded as a historical fact, but rather as a proof that the later Roman archaeologists were unable to point out more than 136 -gentes- of the Roman nobility (Rom, Forsch. i. 121).

15. It may not be superfluous to remark, that the -iudicium legitimum-, as well as that -quod imperio continetur-, rested on the imperium of the directing magistrate, and the distinction only consisted in the circumstance that the -imperium- was in the former case limited by the -lex-, while in the latter it was free.

16. II. I. Restrictions on the Delegation of Powers

CHAPTER II

The Tribune of the Plebs and the Decemvirate

Material Interests

Under the new organization of the commonwealth the old burgesses had attained by legal means to the full possession of political power. Governing through the magistracy which had been reduced to be their servant, preponderating in the Senate, in sole possession of all public offices and priesthoods, armed with exclusive cognizance of things human and divine and familiar with the whole routine of political procedure, influential in the public assembly through the large number of pliant adherents attached to the several families, and, lastly, entitled to examine and to reject every decree of the community,—the patricians might have long preserved their practical power, just because they had at the right time abandoned their claim to sole legal authority. It is true that the plebeians could not but be painfully sensible of their political disabilities; but undoubtedly in the first instance the nobility had not much to fear from a purely political opposition, if it understood the art of keeping the multitude, which desired nothing but equitable administration and protection of its material interests, aloof from political strife. In fact during the first period after the expulsion of the kings we meet with various measures which were intended, or at any rate seemed to be intended, to gain the favour of the commons for the

government of the nobility especially on economic grounds. The port-dues were reduced; when the price of grain was high, large quantities of corn were purchased on account of the state, and the trade in salt was made a state-monopoly, in order to supply the citizens with corn and salt at reasonable prices; lastly, the national festival was prolonged for an additional day. Of the same character was the ordinance which we have already mentioned respecting property fines,(1) which was not merely intended in general to set limits to the dangerous fining-prerogative of the magistrates, but was also, in a significant manner, calculated for the especial protection of the man of small means. The magistrate was prohibited from fining the same man on the same day to an extent beyond two sheep or beyond thirty oxen, without granting leave to appeal; and the reason of these singular rates can only perhaps be found in the fact, that in the case of the man of small means possessing only a few sheep a different maximum appeared necessary from that fixed for the wealthy proprietor of herds of oxen—a considerate regard to the wealth or poverty of the person fined, from which modern legislators might take a lesson.

But these regulations were merely superficial; the main current flowed in the opposite direction. With the change in the constitution there was introduced a comprehensive revolution in the financial and economic relations of Rome. The government of the kings had probably abstained on principle from enhancing the power of capital, and had promoted as far as it could an increase in the number of farms. The new aristocratic government, again, appears to have aimed from the first at the destruction of the middle classes, particularly of the intermediate and smaller holdings of land, and at the development of a domination of landed and moneyed lords on the one hand, and of an agricultural proletariat on the other.

Rising Power of the Capitalists

The reduction of the port-dues, although upon the whole a popular measure, chiefly benefited the great merchant. But a much greater accession to the power of capital was supplied by the indirect system of finance-administration. It is difficult to say what were the remote causes that gave rise to it: but, while its origin may probably be referred to the regal period, after the introduction of the consulate the importance of the intervention of private agency must have been greatly increased, partly by the rapid succession of magistrates in Rome, partly by the extension of the financial action of the treasury to such matters as the purchase and sale of grain and salt; and thus the foundation must have been laid for that system of farming the finances, the development of which became so momentous and so pernicious for the Roman commonwealth. The state gradually put all its indirect revenues and all its more complicated payments and transactions into the hands of middlemen, who gave or received a round sum and then managed the matter for their own benefit. Of course only considerable capitalists and, as the state looked strictly to tangible security, in the main only large landholders, could enter into such engagements: and thus there grew up a class of tax-farmers and contractors, who, in the rapid growth of their wealth, in their power over the state to which they appeared to be servants, and in the absurd and sterile basis of their moneyed dominion, quite admit of comparison with the speculators on the stock exchange of the present day.

Public Land

The concentrated aspect assumed by the administration of finance showed itself first and most palpably in the treatment of the public lands, which tended almost directly to accomplish the material and moral annihilation of the middle classes. The use of the public pasture and of the state-domains generally was from its very nature a privilege of burgesses; formal law excluded the plebeian from the joint use of the common pasture.

As however, apart from the conversion of the public land into private property or its assignation, Roman law knew no fixed rights of usufruct on the part of individual burgesses to be respected like those of property, it depended solely on the pleasure of the king, so long as the public land remained such, to grant and to define its joint enjoyment; and it is not to be doubted that he frequently made use of his right, or at least his power, as to this matter in favour of plebeians. But on the introduction of the republic the principle was again strictly insisted on, that the use of the common pasture belonged in law merely to the burgess of best right, or in other words to the patrician; and, though the senate still as before allowed exceptions in favour of the wealthy plebeian houses represented in it, the small plebeian landholders and the day-labourers, who stood most in need of the common pasture, had its joint enjoyment injuriously withheld from them. Moreover there had hitherto been paid for the cattle driven out on the common pasture a grazing-tax, which was moderate enough to make the right of using that pasture still be regarded as a privilege, and yet yielded no inconsiderable revenue to the public purse. The patrician quaestors were now remiss and indulgent in levying it, and gradually allowed it to fall into desuetude. Hitherto, particularly when new domains were acquired by conquest, allocations of land had been regularly arranged, in which all the poorer burgesses and —metoeci— were provided for; it was only the land which was not suitable for agriculture that was annexed to the common pasture. The ruling class did not venture wholly to give up such assignations, and still less to propose them merely in favour of the rich; but they became fewer and scantier, and were replaced by the pernicious system of occupation—that is to say, the cession of domain-lands, not in property or under formal lease for a definite term, but in special usufruct until further notice, to the first occupant and his heirs-at-law, so that the state was at any time entitled to resume them, and the occupier had to pay the tenth sheaf, or in oil and wine the fifth part of the produce, to the exchequer. This was

simply the -precarium- already described(2) applied to the state-domains, and may have been already in use as to the public land at an earlier period, particularly as a temporary arrangement until its assignation should be carried out. Now, however, not only did this occupation-tenure become permanent, but, as was natural, none but privileged persons or their favourites participated, and the tenth and fifth were collected with the same negligence as the grazing-money. A threefold blow was thus struck at the intermediate and smaller landholders: they were deprived of the common usufructs of burgesses; the burden of taxation was increased in consequence of the domain revenues no longer flowing regularly into the public chest; and those land-allocations were stopped, which had provided a constant outlet for the agricultural proletariat somewhat as a great and well-regulated system of emigration would do at the present day. To these evils was added the farming on a large scale, which was probably already beginning to come into vogue, dispossessing the small agrarian clients, and in their stead cultivating the estates by rural slaves; a blow, which was more difficult to avert and perhaps more pernicious than all those political usurpations put together. The burdensome and partly unfortunate wars, and the exorbitant taxes and task-works to which these gave rise, filled up the measure of calamity, so as either to deprive the possessor directly of his farm and to make him the bondsman if not the slave of his creditor-lord, or to reduce him through encumbrances practically to the condition of a temporary lessee of his creditor. The capitalists, to whom a new field was here opened of lucrative speculation unattended by trouble or risk, sometimes augmented in this way their landed property; sometimes they left to the farmer, whose person and estate the law of debt placed in their hands, nominal proprietorship and actual possession. The latter course was probably the most common as well as the most pernicious; for while utter ruin might thereby be averted from the individual, this precarious position of the farmer, dependent at all times on the mercy of his creditor—a

position in which he knew nothing of property but its burdens—threatened to demoralise and politically to annihilate the whole farmer-class. The intention of the legislator, when instead of mortgaging he prescribed the immediate transfer of the property to the creditor with a view to prevent insolvency and to devolve the burdens of the state on the real holders of the soil,(3) was evaded by the rigorous system of personal credit, which might be very suitable for merchants, but ruined the farmers. The free divisibility of the soil always involved the risk of an insolvent agricultural proletariat; and under such circumstances, when all burdens were increasing and all means of deliverance were foreclosed, distress and despair could not but spread with fearful rapidity among the agricultural middle class.

Relations of the Social Question to the Question between Orders

The distinction between rich and poor, which arose out of these relations, by no means coincided with that between the clans and the plebeians. If far the greater part of the patricians were wealthy landholders, opulent and considerable families were, of course, not wanting among the plebeians; and as the senate, which even then perhaps consisted in greater part of plebeians, had assumed the superintendence of the finances to the exclusion even of the patrician magistrates, it was natural that all those economic advantages, for which the political privileges of the nobility were abused, should go to the benefit of the wealthy collectively; and the pressure fell the more heavily upon the commons, since those who were the ablest and the most capable of resistance were by their admission to the senate transferred from the class of the oppressed to the ranks of the oppressors.

But this state of things prevented the political position of the aristocracy from being permanently tenable. Had it possessed the self-control to govern justly and to protect the middle class—as individual consuls from its ranks endeavoured, but from the reduced position of the magistracy were unable

effectually, to do—it might have long maintained itself in sole possession of the offices of state. Had it been willing to admit the wealthy and respectable plebeians to full equality of rights—possibly by connecting the acquisition of the patriciate with admission into the senate—both might long have governed and speculated with impunity. But neither of these courses was adopted; the narrowness of mind and short-sightedness, which are the proper and inalienable privileges of all genuine patricianism, were true to their character also in Rome, and rent the powerful commonwealth asunder in useless, aimless, and inglorious strife.

Secession to the Sacred Mount

The immediate crisis however proceeded not from those who felt the disabilities of their order, but from the distress of the farmers. The rectified annals place the political revolution in the year 244, the social in the years 259 and 260; they certainly appear to have followed close upon each other, but the interval was probably longer. The strict enforcement of the law of debt—so runs the story—excited the indignation of the farmers at large. When in the year 259 the levy was called forth for a dangerous war, the men bound to serve refused to obey the command. Thereupon the consul Publius Servilius suspended for a time the application of the debtor-laws, and gave orders to liberate the persons already imprisoned for debt as well as prohibited further arrests; so that the farmers took their places in the ranks and helped to secure the victory. On their return from the field of battle the peace, which had been achieved by their exertions, brought back their prison and their chains: with merciless rigour the second consul, Appius Claudius, enforced the debtor-laws and his colleague, to whom his former soldiers appealed for aid, dared not offer opposition. It seemed as if collegiate rule had been introduced not for the protection of the people, but to facilitate breach of faith and despotism; they endured, however, what could not be changed. But when in the following year the war was renewed,

the word of the consul availed no longer. It was not till Manius Valerius was nominated dictator that the farmers submitted, partly from their awe of the higher magisterial authority, partly from their confidence in his friendly feeling to the popular cause—for the Valerii were one of those old patrician clans by whom government was esteemed a privilege and an honour, not a source of gain. The victory was again with the Roman standards; but when the victors came home and the dictator submitted his proposals of reform to the senate, they were thwarted by its obstinate opposition. The army still stood in its array, as usual, before the gates of the city. When the news arrived, the long threatening storm burst forth; the *-esprit de corps-* and the compact military organization carried even the timid and the indifferent along with the movement. The army abandoned its general and its encampment, and under the leadership of the commanders of the legions—the military tribunes, who were at least in great part plebeians—marched in martial order into the district of Crustumeria between the Tiber and the Anio, where it occupied a hill and threatened to establish in this most fertile part of the Roman territory a new plebeian city. This secession showed in a palpable manner even to the most obstinate of the oppressors that such a civil war must end with economic ruin to themselves; and the senate gave way. The dictator negotiated an agreement; the citizens returned within the city walls; unity was outwardly restored. The people gave Manius Valerius thenceforth the name of "the great" (*-maximus-*)—and called the mount beyond the Anio "the sacred mount." There was something mighty and elevating in such a revolution, undertaken by the multitude itself without definite guidance under generals whom accident supplied, and accomplished without bloodshed; and with pleasure and pride the citizens recalled its memory. Its consequences were felt for many centuries: it was the origin of the tribunate of the plebs.

Plebian Tribunes and Plebian Aediles

In addition to temporary enactments, particularly for remedying the most urgent distress occasioned by debt, and for providing for a number of the rural population by the founding of various colonies, the dictator carried in constitutional form a law, which he moreover —doubtless in order to secure amnesty to the burgesses for the breach of their military oath—caused every individual member of the community to swear to, and then had it deposited in a temple under the charge and custody of two magistrates specially appointed from the plebs for the purpose, the two "house-masters" (-aediles-). This law placed by the side of the two patrician consuls two plebeian tribunes, who were to be elected by the plebeians assembled in curies. The power of the tribunes was of no avail in opposition to the military -imperium-, that is, in opposition to the authority of the dictator everywhere or to that of the consuls beyond the city; but it confronted, on a footing of independence and equality, the ordinary civil powers which the consuls exercised. There was, however, no partition of powers. The tribunes obtained the right which pertained to the consul against his fellow-consul and all the more against an inferior magistrate,(4) namely, the right to cancel any command issued by a magistrate, as to which the burgess whom it affected held himself aggrieved and lodged a complaint, through their protest timeously and personally interposed, and likewise of hindering or cancelling at discretion any proposal made by a magistrate to the burgesses, in other words, the right of intercession or the so-called tribunician veto.

Intercession

The power of the tribunes, therefore, primarily involved the right of putting a stop to administration and to judicial action at their pleasure, of enabling a person bound to military service to withhold himself from the levy with impunity, of preventing or cancelling the raising of an action and legal execution against the debtor, the initiation of a criminal process and the arrest of the accused while the investigation was pending, and other

powers of the same sort. That this legal help might not be frustrated by the absence of the helpers, it was further ordained that the tribune should not spend a night out of the city, and that his door must stand open day and night. Moreover, it lay in the power of the tribunate of the people through a single word of a single tribune to restrain the adoption of a resolution by the community, which otherwise by virtue of its sovereign right might have without ceremony recalled the privileges conferred by it on the plebs.

But these rights would have been ineffective, if there had not belonged to the tribune of the people an instantaneously operative and irresistible power of enforcing them against him who did not regard them, and especially against the magistrate contravening them. This was conferred in such a form that the acting in opposition to the tribune when making use of his right, above all things the laying hands on his person, which at the Sacred Mount every plebeian, man by man for himself and his descendants, had sworn to protect now and in all time to come from all harm, should be a capital crime; and the exercise of this criminal justice was committed not to the magistrates of the community but to those of the plebs. The tribune might in virtue of this his judicial office call to account any burgess, especially the consul in office, have him seized if he should not voluntarily submit, place him under arrest during investigation or allow him to find bail, and then sentence him to death or to a fine. For this purpose the two plebeian aediles appointed at the same time were attached to the tribunes as their servants and assistants, primarily to effect arrest, on which account the same inviolable character was assured to them also by the collective oath of the plebeians. Moreover the aediles themselves had judicial powers like the tribunes, but only for the minor causes that might be settled by fines. If an appeal was lodged against the decision of tribune or aedile, it was addressed not to the whole body of the burgesses, with which the officials of the plebs were not entitled at all to transact business, but to the whole body of the

plebeians, which in this case met by curies and finally decided by majority of votes.

This procedure certainly savoured of violence rather than of justice, especially when it was adopted against a non-plebeian, as must in fact have been ordinarily the case. It was not to be reconciled either with the letter or the spirit of the constitution that a patrician should be called to account by authorities who presided not over the body of burgesses, but over an association formed within it, and that he should be compelled to appeal, not to the burgesses, but to this very association. This was originally without question Lynch justice; but the self-help was doubtless carried into effect from early times in form of law, and was after the legal recognition of the tribunate of the plebs regarded as lawfully admissible.

In point of intention this new jurisdiction of the tribunes and the aediles, and the appellate decision of the plebeian assembly therein originating, were beyond doubt just as much bound to the laws as the jurisdiction of the consuls and quaestors and the judgment of the centuries on appeal; the legal conceptions of crime against the community⁽⁵⁾ and of offences against order⁽⁶⁾ were transferred from the community and its magistrates to the plebs and its champions. But these conceptions were themselves so little fixed, and their statutory definition was so difficult and indeed impossible, that the administration of justice under these categories from its very nature bore almost inevitably the stamp of arbitrariness. And now when the very idea of right had become obscured amidst the struggles of the orders, and when the legal party—leaders on both sides were furnished with a co-ordinate jurisdiction, this jurisdiction must have more and more approximated to a mere arbitrary police. It affected in particular the magistrate. Hitherto the latter according to Roman state law, so long as he was a magistrate, was amenable to no jurisdiction at all, and, although after demitting his office he might have been legally made responsible for each

of his acts, the exercise of this right lay withal in the hands of the members of his own order and ultimately of the collective community, to which these likewise belonged. Now in the tribunician jurisdiction there emerged a new power, which on the one hand might interfere against the supreme magistrate even during his tenure of office, and on the other hand was wielded against the noble burgesses exclusively by the non-noble, and which was the more oppressive that neither the crime nor its punishment was formally defined by law. In reality through the co-ordinate jurisdiction of the plebs and the community the estates, limbs, and lives of the burgesses were abandoned to the arbitrary pleasure of the party assemblies.

In civil jurisdiction the plebeian institutions interfered only so far, that in the processes affecting freedom, which were so important for the plebs, the nomination of jurymen was withdrawn from the consuls, and the decisions in such cases were pronounced by the "ten-men-judges" destined specially for that purpose (-iudices-, -decemviri-, afterwards -decemviri litibus iudicandis-).

Legislation

With this co-ordinate jurisdiction there was further associated a co-ordinate initiative in legislation. The right of assembling the members and of procuring decrees on their part already pertained to the tribunes, in so far as no association at all can be conceived without such a right. But it was conferred upon them, in a marked way, by legally securing that the autonomous right of the plebs to assemble and pass resolutions should not be interfered with on the part of the magistrates of the community or, in fact, of the community itself. At all events it was the necessary preliminary to the legal recognition of the plebs generally, that the tribunes could not be hindered from having their successors elected by the assembly of the plebs and from procuring the confirmation of their criminal sentences by the same

body; and this right accordingly was further specially guaranteed to them by the Icilian law (262), which threatened with severe punishment any one who should interrupt the tribune while speaking, or should bid the assembly disperse. It is evident that under such circumstances the tribune could not well be prevented from taking a vote on other proposals than the choice of his successor and the confirmation of his sentences. Such "resolves of the multitude" (-plebi scita-) were not indeed strictly valid decrees of the people; on the contrary, they were at first little more than are the resolutions of our modern public meetings; but, as the distinction between the comitia of the people and the councils of the multitude was of a formal nature rather than aught else, the validity of these resolves as autonomous determinations of the community was at once claimed at least on the part of the plebeians, and the Icilian law for instance was immediately carried in this way. Thus was the tribune of the people appointed as a shield and protection for the individual, and as leader and manager for all, provided with unlimited judicial power in criminal proceedings, that in this way he might give emphasis to his command, and lastly even pronounced to be in his person inviolable (-sacrosanctus-), inasmuch as whoever laid hands upon him or his servant was not merely regarded as incurring the vengeance of the gods, but was also among men accounted as if, after legally proven crime, deserving of death.

Relation of the Tribune to the Consul

The tribunes of the multitude (-tribuni plebis-) arose out of the military tribunes and derived from them their name; but constitutionally they had no further relation to them. On the contrary, in respect of powers the tribunes of the plebs stood on a level with the consuls. The appeal from the consul to the tribune, and the tribune's right of intercession in opposition to the consul, were, as has been already said, precisely of the same nature with the appeal from consul to consul and the intercession of the one consul in

opposition to the other; and both cases were simply applications of the general principle of law that, where two equal authorities differ, the veto prevails over the command. Moreover the original number (which indeed was soon augmented), and the annual duration of the magistracy, which in the case of the tribunes changed its occupants on the 10th of December, were common to the tribunes and the consuls. They shared also the peculiar collegiate arrangement, which placed the full powers of the office in the hands of each individual consul and of each individual tribune, and, when collisions occurred within the college, did not count the votes, but gave the Nay precedence over the Yea; for which reason, when a tribune forbade, the veto of the individual was sufficient notwithstanding the opposition of his colleagues, while on the other hand, when he brought an accusation, he could be thwarted by any one of those colleagues. Both consuls and tribunes had full and co-ordinate criminal jurisdiction, although the former exercised it indirectly, and the latter directly; as the two quaestors were attached to the former, the two aediles were associated with the latter.(7) The consuls were necessarily patricians, the tribunes necessarily plebeians. The former had the ampler power, the latter the more unlimited, for the consul submitted to the prohibition and the judgment of the tribunes, but the tribune did not submit himself to the consul. Thus the tribunician power was a copy of the consular; but it was none the less a contrast to it. The power of the consuls was essentially positive, that of the tribunes essentially negative. The consuls alone were magistrates of the Roman people, not the tribunes; for the former were elected by the whole burgesses, the latter only by the plebeian association. In token of this the consul appeared in public with the apparel and retinue pertaining to state- officials; the tribunes sat on a stool instead of the "chariot seat," and lacked the official attendants, the purple border, and generally all the insignia of magistracy: even in the senate the tribune had neither presidency nor so much as a seat. Thus in this remarkable institution absolute prohibition was in the most stern and abrupt

fashion opposed to absolute command; the quarrel was settled by legally recognizing and regulating the discord between rich and poor.

Political Value of the Tribune

But what was gained by a measure which broke up the unity of the state; which subjected the magistrates to a controlling authority unsteady in its action and dependent on all the passions of the moment; which in the hour of peril might have brought the administration to a dead-lock at the bidding of any one of the opposition chiefs elevated to the rival throne; and which, by investing all the magistrates with co-ordinate jurisdiction in the administration of criminal law, as it were formally transferred that administration from the domain of law to that of politics and corrupted it for all time coming? It is true indeed that the tribunate, if it did not directly contribute to the political equalization of the orders, served as a powerful weapon in the hands of the plebeians when these soon afterwards desired admission to the offices of state. But this was not the real design of the tribunate. It was a concession wrung not from the politically privileged order, but from the rich landlords and capitalists; it was designed to ensure to the commons equitable administration of law, and to promote a more judicious administration of finance. This design it did not, and could not, fulfil. The tribune might put a stop to particular iniquities, to individual instances of crying hardship; but the fault lay not in the unfair working of a righteous law, but in a law which was itself unrighteous, and how could the tribune regularly obstruct the ordinary course of justice? Could he have done so, it would have served little to remedy the evil, unless the sources of impoverishment were stopped—the perverse taxation, the wretched system of credit, and the pernicious occupation of the domain-lands. But such measures were not attempted, evidently because the wealthy plebeians themselves had no less interest in these abuses than the patricians. So this singular magistracy was instituted, which presented to the commons an

obvious and available aid, and yet could not possibly carry out the necessary economic reform. It was no proof of political wisdom, but a wretched compromise between the wealthy aristocracy and the leaderless multitude. It has been affirmed that the tribunate of the people preserved Rome from tyranny. Were it true, it would be of little moment: a change in the form of the state is not in itself an evil for a people; on the contrary, it was a misfortune for the Romans that monarchy was introduced too late, after the physical and mental energies of the nation were exhausted. But the assertion is not even correct; as is shown by the circumstance that the Italian states remained as regularly free from tyrants as the Hellenic states regularly witnessed their emergence. The reason lies simply in the fact that tyranny is everywhere the result of universal suffrage, and that the Italians excluded the burgesses who had no land from their public assemblies longer than the Greeks did: when Rome departed from this course, monarchy did not fail to emerge, and was in fact associated with this very tribunician orifice. That the tribunate had its use, in pointing out legitimate paths of opposition and averting many a wrong, no one will fail to acknowledge; but it is equally evident that, where it did prove useful, it was employed for very different objects from those for which it had been established. The bold experiment of allowing the leaders of the opposition a constitutional veto, and of investing them with power to assert it regardless of the consequences, proved to be an expedient by which the state was politically unhinged; and social evils were prolonged by the application of useless palliatives.

Further Dissensions

Now that civil war was organized, it pursued its course. The parties stood face to face as if drawn up for battle, each under its leaders. Restriction of the consular and extension of the tribunician power were the objects contended for on the one side; the annihilation of the tribunate was sought

on the other. Legal impunity secured for insubordination, refusal to enter the ranks for the defence of the land, impeachments involving fines and penalties directed specially against magistrates who had violated the rights of the commons or who had simply provoked their displeasure, were the weapons of the plebeians; and to these the patricians opposed violence, concert with the public foes, and occasionally also the dagger of the assassin. Hand-to-hand conflicts took place in the streets, and on both sides the sacredness of the magistrate's person was violated. Many families of burgesses are said to have migrated, and to have sought more peaceful abodes in neighbouring communities; and we may well believe it. The strong patriotism of the people is obvious from the fact, not that they adopted this constitution, but that they endured it, and that the community, notwithstanding the most vehement convulsions, still held together.

Coriolanus

The best-known incident in these conflicts of the orders is the history of Gnaeus Marcius, a brave aristocrat, who derived his surname from the storming of Corioli. Indignant at the refusal of the centuries to entrust to him the consulate in the year 263, he is reported to have proposed, according to one version, the suspension of the sales of corn from the state-stores, till the hungry people should give up the tribunate; according to another version, the direct abolition of the tribunate itself. Impeached by the tribunes so that his life was in peril, it is said that he left the city, but only to return at the head of a Volscian army; that when he was on the point of conquering the city of his fathers for the public foe, the earnest appeal of his mother touched his conscience; and that thus he expiated his first treason by a second, and both by death. How much of this is true cannot be determined; but the story, over which the naive misrepresentations of the Roman annalists have shed a patriotic glory, affords a glimpse of the deep moral and political disgrace of these conflicts between the orders. Of a

similar stamp was the surprise of the Capitol by a band of political refugees, led by a Sabine chief, Appius Herdonius, in the year 294; they summoned the slaves to arms, and it was only after a violent conflict, and by the aid of the Tusculans who hastened to render help, that the Roman burgess-force overcame the Catilinarian band. The same character of fanatical exasperation marks other events of this epoch, the historical significance of which can no longer be apprehended in the lying family narratives; such as the predominance of the Fabian clan which furnished one of the two consuls from 269 to 275, and the reaction against it, the emigration of the Fabii from Rome, and their annihilation by the Etruscans on the Cremera (277). Still more odious was the murder of the tribune of the people, Gnaeus Genucius, who had ventured to call two consulars to account, and who on the morning of the day fixed for the impeachment was found dead in bed (281). The immediate effect of this misdeed was the Publilian law (283), one of the most momentous in its consequences with which Roman history has to deal. Two of the most important arrangements—the introduction of the plebeian assembly of tribes, and the placing of the -plebiscitum- on a level, although conditionally, with the formal law sanctioned by the whole community—are to be referred, the former certainly, the latter probably, to the proposal of Volero Publilius the tribune of the people in 283. The plebs had hitherto adopted its resolutions by curies; accordingly in these its separate assemblies, on the one hand, the voting had been by mere number without distinction of wealth or of freehold property, and, on the other hand, in consequence of that standing side by side on the part of the clansmen, which was implied in the very nature of the curial assembly, the clients of the great patrician families had voted with one another in the assembly of the plebeians. These two circumstances had given to the nobility various opportunities of exercising influence on that assembly, and especially of managing the election of tribunes according to their views; and both were henceforth done away by

means of the new method of voting according to tribes. Of these, four had been formed under the Servian constitution for the purposes of the levy, embracing town and country alike;(8) subsequently-perhaps in the year 259—the Roman territory had been divided into twenty districts, of which the first four embraced the city and its immediate environs, while the other sixteen were formed out of the rural territory on the basis of the clan-cantons of the earliest Roman domain.(9) To these was added—probably only in consequence of the Publilian law, and with a view to bring about the inequality, which was desirable for voting purposes, in the total number of the divisions—as a twenty-first tribe the Crustumian, which derived its name from the place where the plebs had constituted itself as such and had established the tribunate;(10) and thenceforth the special assemblies of the plebs took place, no longer by curies, but by tribes. In these divisions, which were based throughout on the possession of land, the voters were exclusively freeholders: but they voted without distinction as to the size of their possession, and just as they dwelt together in villages and hamlets. Consequently, this assembly of the tribes, which otherwise was externally modelled on that of the curies, was in reality an assembly of the independent middle class, from which, on the one hand, the great majority of freedmen and clients were excluded as not being freeholders, and in which, on the other hand, the larger landholders had no such preponderance as in the centuries. This "meeting of the multitude" (-concilium plebis-) was even less a general assembly of the burgesses than the plebeian assembly by curies had been, for it not only, like the latter, excluded all the patricians, but also the plebeians who had no land; but the multitude was powerful enough to carry the point that its decree should have equal legal validity with that adopted by the centuries, in the event of its having been previously approved by the whole senate. That this last regulation had the force of established law before the issuing of the Twelve Tables, is certain; whether it was directly introduced on occasion of the Publilian -

plebiscitum-, or whether it had already been called into existence by some other—now forgotten—statute, and was only applied to the Publilian - plebiscitum- cannot be any longer ascertained. In like manner it remains uncertain whether the number of tribunes was raised by this law from two to four, or whether that increase had taken place previously.

Agrarian Law of Spurius Cassius

More sagacious in plan than all these party steps was the attempt of Spurius Cassius to break down the financial omnipotence of the rich, and so to put a stop to the true source of the evil. He was a patrician, and none in his order surpassed him in rank and renown. After two triumphs, in his third consulate (268), he submitted to the burgesses a proposal to have the public domain measured and to lease part of it for the benefit of the public treasury, while a further portion was to be distributed among the necessitous. In other words, he attempted to wrest the control of the public lands from the senate, and, with the support of the burgesses, to put an end to the selfish system of occupation. He probably imagined that his personal distinction, and the equity and wisdom of the measure, might carry it even amidst that stormy sea of passion and of weakness. But he was mistaken. The nobles rose as one man; the rich plebeians took part with them; the commons were displeased because Spurius Cassius desired, in accordance with federal rights and equity, to give to the Latin confederates their share in the assignation. Cassius had to die. There is some truth in the charge that he had usurped regal power, for he had indeed endeavoured like the kings to protect the free commons against his own order. His law was buried along with him; but its spectre thenceforward incessantly haunted the eyes of the rich, and again and again it rose from the tomb against them, until amidst the conflicts to which it led the commonwealth perished.

Decemvirs

A further attempt was made to get rid of the tribunician power by securing to the plebeians equality of rights in a more regular and more effectual way. The tribune of the people, Gaius Terentilius Arsa, proposed in 292 the nomination of a commission of five men to prepare a general code of law by which the consuls should in future be bound in exercising their judicial powers. But the senate refused to sanction this proposal, and ten years elapsed ere it was carried into effect—years of vehement strife between the orders, and variously agitated moreover by wars and internal troubles. With equal obstinacy the party of the nobles hindered the concession of the law in the senate, and the plebs nominated again and again the same men as tribunes. Attempts were made to obviate the attack by other concessions. In the year 297 an increase of the tribunes from four to ten was sanctioned—a very dubious gain; and in the following year, by an Icilian -plebiscitum- which was admitted among the sworn privileges of the plebs, the Aventine, which had hitherto been a temple-grove and uninhabited, was distributed among the poorer burgesses as sites for buildings in heritable occupancy. The plebs took what was offered to them, but never ceased to insist in their demand for a legal code. At length, in the year 300, a compromise was effected; the senate in substance gave way. The preparation of a legal code was resolved upon; for that purpose, as an extraordinary measure, the centuries were to choose ten men who were at the same time to act as supreme magistrates in room of the consuls (-decemviri consulari imperio legibus scribundis-), and to this office not merely patricians, but plebeians also might be elected. These were here for the first time designated as eligible, though only for an extraordinary office. This was a great step in the progress towards full political equality; and it was not too dearly purchased, when the tribunate of the people as well as the right of appeal were suspended while the decemvirate lasted, and the decemvirs were simply bound not to infringe the sworn liberties of the community. Previously however an embassy was sent to Greece to bring

home the laws of Solon and other Greek laws; and it was only on its return that the decemvirs were chosen for the year 303. Although they were at liberty to elect plebeians, the choice fell on patricians alone—so powerful was the nobility still—and it was only when a second election became necessary for 304, that some plebeians were chosen—the first non-patrician magistrates that the Roman community had.

Taking a connected view of these measures, we can scarcely attribute to them any other design than that of substituting for tribunician intercession a limitation of the consular powers by written law. On both sides there must have been a conviction that things could not remain as they were, and the perpetuation of anarchy, while it ruined the commonwealth, was in reality of no benefit to any one. People in earnest could not but discern that the interference of the tribunes in administration and their action as prosecutors had an absolutely pernicious effect; and the only real gain which the tribunate brought to the plebeians was the protection which it afforded against a partial administration of justice, by operating as a sort of court of cassation to check the caprice of the magistrate. Beyond doubt, when the plebeians desired a written code, the patricians replied that in that event the legal protection of tribunes would be superfluous; and upon this there appears to have been concession by both sides. Perhaps there was never anything definitely expressed as to what was to be done after the drawing up of the code; but that the plebs definitely renounced the tribunate is not to be doubted, since it was brought by the decemvirate into such a position that it could not get back the tribunate otherwise than by illegal means. The promise given to the plebs that its sworn liberties should not be touched, may be referred to the rights of the plebeians independent of the tribunate, such as the *-provocatio-* and the possession of the Aventine. The intention seems to have been that the decemvirs should, on their retiring, propose to the people to re-elect the consuls who should now judge no longer according to their arbitrary pleasure but according to written law.

Legislation of the Twelve Tables

The plan, if it should stand, was a wise one; all depended on whether men's minds exasperated on either side with passion would accept that peaceful adjustment. The decemvirs of the year 303 submitted their law to the people, and it was confirmed by them, engraven on ten tables of copper, and affixed in the Forum to the rostra in front of the senate-house. But as a supplement appeared necessary, decemvirs were again nominated in the year 304, who added two more tables. Thus originated the first and only Roman code, the law of the Twelve Tables. It proceeded from a compromise between parties, and for that very reason could not well have contained any changes in the existing law of a comprehensive nature, going beyond the regulation of secondary matters and of the mere adaptation of means and ends. Even in the system of credit no further alleviation was introduced than the establishment of a—probably low—maximum of interest (10 per cent) and the threatening of heavy penalties against the usurer—penalties, characteristically enough, far heavier than those of the thief; the harsh procedure in actions of debt remained at least in its leading features unaltered. Still less, as may easily be conceived, were changes contemplated in the rights of the orders. On the contrary the legal distinction between burgesses liable to be taxed and those who were without estate, and the invalidity of marriage between patricians and plebeians, were confirmed anew in the law of the city. In like manner, with a view to restrict the caprice of the magistrate and to protect the burgess, it was expressly enacted that the later law should uniformly have precedence over the earlier, and that no decree of the people should be issued against a single burgess. The most remarkable feature was the exclusion of appeal to the -comitia tributa- in capital causes, while the privilege of appeal to the centuries was guaranteed; which admits of explanation from the circumstance that the penal jurisdiction was in fact usurped by the plebs and its presidents,(11) and with the tribunate there necessarily fell the

tribunician capital process, while it was perhaps the intention to retain the aedilician process of fine (-multa-). The essential political significance of the measure resided far less in the contents of the legislation than in the formal obligation now laid upon the consuls to administer justice according to these forms of process and these rules of law, and in the public exhibition of the code, by which the administration of justice was subjected to the control of publicity and the consul was compelled to dispense equal and truly common justice to all.

Fall of the Decemvirs

The end of the decemvirate is involved in much obscurity. It only remained—so runs the story—for the decemvirs to publish the last two tables, and then to give place to the ordinary magistracy. But they delayed to do so: under the pretext that the laws were not yet ready, they themselves prolonged their magistracy after the expiry of their official year—which was so far possible, as under Roman constitutional law the magistracy called in an extraordinary way to the revision of the constitution could not become legally bound by the term set for its ending. The moderate section of the aristocracy, with the Valerii and Horatii at their head, are said to have attempted in the senate to compel the abdication of the decemvirate; but the head of the decemvirs Appius Claudius, originally a rigid aristocrat, but now changing into a demagogue and a tyrant, gained the ascendancy in the senate, and the people submitted. The levy of two armies was accomplished without opposition, and war was begun against the Volscians as well as against the Sabines. Thereupon the former tribune of the people, Lucius Siccius Dentatus, the bravest man in Rome, who had fought in a hundred and twenty battles and had forty-five honourable scars to show, was found dead in front of the camp, foully murdered, as it was said, at the instigation of the decemvirs. A revolution was fermenting in men's minds; and its outbreak was hastened by the unjust sentence pronounced by Appius in the

process as to the freedom of the daughter of the centurion Lucius Verginius, the bride of the former tribune of the people Lucius Icilius—a sentence which wrested the maiden from her relatives with a view to make her non-free and beyond the pale of the law, and induced her father himself to plunge his knife into the heart of his daughter in the open Forum, to rescue her from certain shame. While the people in amazement at the unprecedented deed surrounded the dead body of the fair maiden, the decemvir commanded his lictors to bring the father and then the bridegroom before his tribunal, in order to render to him, from whose decision there lay no appeal, immediate account for their rebellion against his authority. The cup was now full. Protected by the furious multitude, the father and the bridegroom of the maiden made their escape from the lictors of the despot, and while the senate trembled and wavered in Rome, the pair presented themselves, with numerous witnesses of the fearful deed, in the two camps. The unparalleled tale was told; the eyes of all were opened to the gap which the absence of tribunician protection had made in the security of law; and what the fathers had done their sons repeated. Once more the armies abandoned their leaders: they marched in warlike order through the city, and proceeded once more to the Sacred Mount, where they again nominated their own tribunes. Still the decemvirs refused to lay down their power; then the army with its tribunes appeared in the city, and encamped on the Aventine. Now at length, when civil war was imminent and the conflict in the streets might hourly begin, the decemvirs renounced their usurped and dishonoured power; and the consuls Lucius Valerius and Marcus Horatius negotiated a second compromise, by which the tribunate of the plebs was again established. The impeachment of the decemvirs terminated in the two most guilty, Appius Claudius and Spurius Oppius, committing suicide in prison, while the other eight went into exile and the state confiscated their property. The prudent and moderate tribune of the plebs, Marcus Duilius, prevented further judicial prosecutions by a seasonable use of his veto.

So runs the story as recorded by the pen of the Roman aristocrats; but, even leaving out of view the accessory circumstances, the great crisis out of which the Twelve Tables arose cannot possibly have ended in such romantic adventures, and in political issues so incomprehensible. The decemvirate was, after the abolition of the monarchy and the institution of the tribunate of the people, the third great victory of the plebs; and the exasperation of the opposite party against the institution and against its head Appius Claudius is sufficiently intelligible. The plebeians had through its means secured the right of eligibility to the highest magistracy of the community and a general code of law; and it was not they that had reason to rebel against the new magistracy, and to restore the purely patrician consular government by force of arms. This end can only have been pursued by the party of the nobility, and if the patricio-plebeian decemvirs made the attempt to maintain themselves in office beyond their time, the nobility were certainly the first to enter the lists against them; on which occasion doubtless the nobles would not neglect to urge that the stipulated rights of the plebs should be curtailed and the tribunate, in particular, should be taken from it. If the nobility thereupon succeeded in setting aside the decemvirs, it is certainly conceivable that after their fall the plebs should once more assemble in arms with a view to secure the results both of the earlier revolution of 260 and of the latest movement; and the Valerio-Horatian laws of 305 can only be understood as forming a compromise in this conflict.

The Valerio-Horatian Laws

The compromise, as was natural, proved very favourable to the plebeians, and again imposed severely felt restrictions on the power of the nobility. As a matter of course the tribunate of the people was restored, the code of law wrung from the aristocracy was definitively retained, and the consuls were obliged to judge according to it. Through the code indeed the tribes lost their usurped jurisdiction in capital causes; but the tribunes got it back, as a

way was found by which it was possible for them to transact business as to such cases with the centuries. Besides they retained, in the right to award fines without limitation and to submit this sentence to the -comitia tributa-, a sufficient means of putting an end to the civic existence of a patrician opponent. Further, it was on the proposition of the consuls decreed by the centuries that in future every magistrate—and therefore the dictator among the rest—should be bound at his nomination to allow the right of appeal: any one who should nominate a magistrate on other terms was to expiate the offence with his life. In other respects the dictator retained his former powers; and in particular his official acts could not, like those of the consuls, be cancelled by a tribune.

The plenitude of the consular power was further restricted in so far as the administration of the military chest was committed to two paymasters (-quaestores-) chosen by the community, who were nominated for the first time in 307. The nomination as well of the two new paymasters for war as of the two administering the city-chest now passed over to the community; the consul retained merely the conduct of the election instead of the election itself. The assembly in which the paymasters were elected was that of the whole patricio-plebeian freeholders, and voted by districts; an arrangement which likewise involved a concession to the plebeian farmers, who had far more command of these assemblies than of the centuriate -comitia-.

A concession of still greater consequence was that which allowed the tribunes to share in the discussions of the senate. To admit the tribunes to the hall where the senate sat, appeared to that body beneath its dignity; so a bench was placed for them at the door that they might from that spot follow its proceedings. The tribunician right of intercession had extended also to the decrees of the senate as a collective body, after the latter had become not merely a deliberative but a decretory board, which probably occurred at first in the case of a -plebiscitum- that was meant to be binding for the

whole community;(12) it was natural that there should thenceforth be conceded to the tribunes a certain participation in the discussions of the senate-house. In order also to secure the decrees of the senate— with the validity of which indeed that of the most important -plebiscita- was bound up—from being tampered with or forged, it was enacted that in future they should be deposited not merely under charge of the patrician -quaestores urbani- in the temple of Saturn, but also under that of the plebian aediles in the temple of Ceres. Thus this struggle, which was begun in order to get rid of the tribunician power, terminated in the renewed and now definitive sanctioning of its right to annul not only particular acts of administration on the appeal of the person aggrieved, but also any resolution of the constituent powers of the state at pleasure. The persons of the tribunes, and the uninterrupted maintenance of the college at its full number, were once more secured by the most sacred oaths and by every element of reverence that religion could present, and not less by the most formal laws. No attempt to abolish this magistracy was ever from this time forward made in Rome.

Notes for Book II Chapter II

1. II. I. Right of Appeal
2. I. XIII. Landed proprietors
3. I. VI. Character of the Roman Law
4. II. I. Collegiate Arrangement
5. I. XI. Property
6. I. XI. Punishment of Offenses against Order

7. That the plebeian aediles were formed after the model of the patrician quaestors in the same way as the plebeian tribunes after the model of the patrician consuls, is evident both as regards their criminal functions (in which the distinction between the two magistracies seems to have lain in their tendencies only, not in their powers) and as regards their charge of the archives. The temple of Ceres was to the aediles what the temple of Saturn was to the quaestors, and from the former they derived their name. Significant in this respect is the enactment of the law of 305 (Liv. iii. 55), that the decrees of the senate should be delivered over to the aediles there (p. 369), whereas, as is well known, according to the ancient —and subsequently after the settlement of the struggles between the orders, again preponderant—practice those decrees were committed to the quaestors for preservation in the temple of Saturn.

8. I. VI. Levy Districts

9. I. III. Clan-Villages

10. II. II. Secession to the Sacred mount

11. II. II. Intercession

12. II. II. Legislation

CHAPTER III

The Equalization of the Orders, and the New Aristocracy

Union of the Plebeians

The tribunician movements appear to have mainly originated in social rather than political discontent, and there is good reason to suppose that some of the wealthy plebeians admitted to the senate were no less opposed to these movements than the patricians. For they too benefited by the privileges against which the agitation was mainly directed; and although in other respects they found themselves treated as inferior, it probably seemed to them by no means an appropriate time for asserting their claim to participate in the magistracies, when the exclusive financial power of the whole senate was assailed. This explains why during the first fifty years of the republic no step was taken aiming directly at the political equalization of the orders.

But this league between the patricians and the wealthy plebeians by no means bore within itself any guarantee of permanence. Beyond doubt from the very first a portion of the leading plebeian families had attached themselves to the movement-party, partly from a sense of what was due to the fellow-members of their order, partly in consequence of the natural bond which unites all who are treated as inferior, and partly because they

perceived that concessions to the multitude were inevitable in the issue, and that, if turned to due account, they would result in the abrogation of the exclusive rights of the patriciate and would thereby give to the plebeian aristocracy a decisive preponderance in the state. Should this conviction become—as was inevitable—more and more prevalent, and should the plebeian aristocracy at the head of its order take up the struggle with the patrician nobility, it would wield in the tribunate a legalized instrument of civil warfare, and it might, with the weapon of social distress, so fight its battles as to dictate to the nobility the terms of peace and, in the position of mediator between the two parties, compel its own admission to the offices of state.

Such a crisis in the position of parties occurred after the fall of the decemvirate. It had now become perfectly clear that the tribunate of the plebs could never be set aside; the plebeian aristocracy could not do better than seize this powerful lever and employ it for the removal of the political disabilities of their order.

Throwing Open of Marriage and of Magistracies— Military Tribunes with Consular Powers

Nothing shows so clearly the defencelessness of the clan-nobility when opposed to the united plebs, as the fact that the fundamental principle of the exclusive party—the invalidity of marriage between patricians and plebeians—fell at the first blow scarcely four years after the decemviral revolution. In the year 309 it was enacted by the Canuleian plebiscite, that a marriage between a patrician and a plebeian should be valid as a true Roman marriage, and that the children begotten of such a marriage should follow the rank of the father. At the same time it was further carried that, in place of consuls, military tribunes—of these there were at that time, before the division of the army into legions, six, and the number of these

magistrates was adjusted accordingly—with consular powers⁽¹⁾ and consular duration of office should be elected by the centuries. The proximate cause was of a military nature, as the various wars required a greater number of generals in chief command than the consular constitution allowed; but the change came to be of essential importance for the conflicts of the orders, and it may be that that military object was rather the pretext than the reason for this arrangement. According to the ancient law every burgess or —*metoikos*— liable to service might attain the post of an officer,⁽²⁾ and in virtue of that principle the supreme magistracy, after having been temporarily opened up to the plebeians in the decemvirate, was now after a more comprehensive fashion rendered equally accessible to all freeborn burgesses. The question naturally occurs, what interest the aristocracy could have—now that it was under the necessity of abandoning its exclusive possession of the supreme magistracy and of yielding in the matter—in refusing to the plebeians the title, and conceding to them the consulate under this singular form?⁽³⁾ But, in the first place, there were associated with the holding of the supreme magistracy various honorary rights, partly personal, partly hereditary; thus the honour of a triumph was regarded as legally dependent on the occupancy of the supreme magistracy, and was never given to an officer who had not administered the latter office in person; and the descendants of a curule magistrate were at liberty to set up the image of such an ancestor in the family hall and to exhibit it in public on fitting occasions, while this was not allowed in the case of other ancestors.⁽⁴⁾ It is as easy to be explained as it is difficult to be vindicated, that the governing aristocratic order should have allowed the government itself to be wrested from their hands far sooner than the honorary rights associated with it, especially such as were hereditary; and therefore, when it was obliged to share the former with the plebeians, it gave to the actual supreme magistrate the legal standing not of the holder of a curule chair, but of a simple staff-officer, whose distinction was one purely personal. Of

greater political importance, however, than the refusal of the *-ius imaginum-* and of the honour of a triumph was the circumstance, that the exclusion of the plebeians sitting in the senate from debate necessarily ceased in respect to those of their number who, as designated or former consuls, ranked among the senators whose opinion had to be asked before the rest; so far it was certainly of great importance for the nobility to admit the plebeian only to a consular office, and not to the consulate itself.

Opposition of the Patriciate

But notwithstanding these vexatious disabilities the privileges of the clans, so far as they had a political value, were legally superseded by the new institution; and, had the Roman nobility been worthy of its name, it must now have given up the struggle. But it did not. Though a rational and legal resistance was thenceforth impossible, spiteful opposition still found a wide field of petty expedients, of chicanery and intrigue; and, far from honourable or politically prudent as such resistance was, it was still in a certain sense fruitful of results. It certainly procured at length for the commons concessions which could not easily have been wrung from the united Roman aristocracy; but it also prolonged civil war for another century and enabled the nobility, in defiance of those laws, practically to retain the government in their exclusive possession for several generations longer.

Their Expedients

The expedients of which the nobility availed themselves were as various as political paltriness could suggest. Instead of deciding at once the question as to the admission or exclusion of the plebeians at the elections, they conceded what they were compelled to concede only with reference to the elections immediately impending. The vain struggle was thus annually renewed whether patrician consuls or military tribunes from both orders

with consular powers should be nominated; and among the weapons of the aristocracy this mode of conquering an opponent by wearying and annoying him proved by no means the least effective.

Subdivision of the Magistracy— Censorship

Moreover they broke up the supreme power which had hitherto been undivided, in order to delay their inevitable defeat by multiplying the points to be assailed. Thus the adjustment of the budget and of the burgess—and taxation-rolls, which ordinarily took place every fourth year and had hitherto been managed by the consuls, was entrusted as early as the year 319 to two valuator (-censores-), nominated by the centuries from among the nobles for a period, at the most, of eighteen months. The new office gradually became the palladium of the aristocratic party, not so much on account of its financial influence as on account of the right annexed to it of filling up the vacancies in the senate and in the equites, and of removing individuals from the lists of the senate, equites, and burgesses on occasion of their adjustment. At this epoch, however, the censorship by no means possessed the great importance and moral supremacy which afterwards were associated with it.

Quaestorship

But the important change made in the year 333 in respect to the quaestorship amply compensated for this success of the patrician party. The patricio-plebeian assembly of the tribes—perhaps taking up the ground that at least the two military paymasters were in fact officers rather than civil functionaries, and that so far the plebeian appeared as well entitled to the quaestorship as to the military tribuneship—carried the point that plebeian candidates also were admitted for the quaestorial elections, and thereby acquired for the first time the privilege of eligibility as well as the right of

election for one of the ordinary magistracies. With justice it was felt on the one side as a great victory, on the other as a severe defeat, that thenceforth patrician and plebeian were equally capable of electing and being elected to the military as well as to the urban quaestorship.

Attempts at Counterrevolution

The nobility, in spite of the most obstinate resistance, only sustained loss after loss; and their exasperation increased as their power decreased. Attempts were doubtless still made directly to assail the rights secured by agreement to the commons; but such attempts were not so much the well-calculated manoeuvres of party as the acts of an impotent thirst for vengeance. Such in particular was the process against Maelius as reported by the tradition—certainly not very trustworthy—that has come down to us. Spurius Maelius, a wealthy plebeian, during a severe dearth (315) sold corn at such prices as to put to shame and annoy the patrician store-president (-praefectus annonae-) Gaius Minucius. The latter accused him of aspiring to kingly power; with what amount of reason we cannot decide, but it is scarcely credible that a man who had not even filled the tribunate should have seriously thought of sovereignty. Nevertheless the authorities took up the matter in earnest, and the cry of "King" always produced on the multitude in Rome an effect similar to that of the cry of "Pope" on the masses in England. Titus Quinctius Capitolinus, who was for the sixth time consul, nominated Lucius Quinctius Cincinnatus, who was eighty years of age, as dictator without appeal, in open violation of the solemnly sworn laws.⁽⁵⁾ Maelius, summoned before him, seemed disposed to disregard the summons; and the dictator's master of the horse, Gaius Servilius Ahala, slew him with his own hand. The house of the murdered man was pulled down, the corn from his granaries was distributed gratuitously to the people, and those who threatened to avenge his death were secretly made away with. This disgraceful judicial murder—a disgrace even more to the

credulous and blind people than to the malignant party of young patricians—passed unpunished; but if that party had hoped by such means to undermine the right of appeal, it violated the laws and shed innocent blood in vain.

Intrigues of the Nobility

Electioneering intrigues and priestly trickery proved in the hands of the nobility more efficient than any other weapons. The extent to which the former must have prevailed is best seen in the fact that in 322 it appeared necessary to issue a special law against electioneering practices, which of course was of little avail. When the voters could not be influenced by corruption or threatening, the presiding magistrates stretched their powers—admitting, for example, so many plebeian candidates that the votes of the opposition were thrown away amongst them, or omitting from the list of candidates those whom the majority were disposed to choose. If in spite of all this an obnoxious election was carried, the priests were consulted whether no vitiating circumstance had occurred in the auspices or other religious ceremonies on the occasion; and some such flaw they seldom failed to discover. Taking no thought as to the consequences and unmindful of the wise example of their ancestors, the people allowed the principle to be established that the opinion of the skilled colleges of priests as to omens of birds, portents, and the like was legally binding on the magistrate, and thus put it into their power to cancel any state-act—whether the consecration of a temple or any other act of administration, whether law or election—on the ground of religious informality. In this way it became possible that, although the eligibility of plebeians had been established by law already in 333 for the quaestorship and thenceforward continued to be legally recognized, it was only in 345 that the first plebeian attained the quaestorship; in like manner patricians almost exclusively held the military tribunate with consular powers down to 354. It was apparent that the legal

abolition of the privileges of the nobles had by no means really and practically placed the plebeian aristocracy on a footing of equality with the clan-nobility. Many causes contributed to this result: the tenacious opposition of the nobility far more easily allowed itself to be theoretically superseded in a moment of excitement, than to be permanently kept down in the annually recurring elections; but the main cause was the inward disunion between the chiefs of the plebeian aristocracy and the mass of the farmers. The middle class, whose votes were decisive in the comitia, did not feel itself specially called on to advance the interests of genteel non-patricians, so long as its own demands were disregarded by the plebeian no less than by the patrician aristocracy.

The Suffering Farmers

During these political struggles social questions had lain on the whole dormant, or were discussed at any rate with less energy. After the plebeian aristocracy had gained possession of the tribunate for its own ends, no serious notice was taken either of the question of the domains or of a reform in the system of credit; although there was no lack either of newly acquired lands or of impoverished or decaying farmers. Instances indeed of assignments took place, particularly in the recently conquered border-territories, such as those of the domain of Ardea in 312, of Labici in 336, and of Veii in 361—more however on military grounds than for the relief of the farmer, and by no means to an adequate extent. Individual tribunes doubtless attempted to revive the law of Cassius—for instance Spurius Maecilius and Spurius Metilius instituted in the year 337 a proposal for the distribution of the whole state-lands—but they were thwarted, in a manner characteristic of the existing state of parties, by the opposition of their own colleagues or in other words of the plebeian aristocracy. Some of the patricians also attempted to remedy the common distress; but with no better success than had formerly attended Spurius Cassius. A patrician like

Cassius and like him distinguished by military renown and personal valour, Marcus Manlius, the saviour of the Capitol during the Gallic siege, is said to have come forward as the champion of the oppressed people, with whom he was connected by the ties of comradeship in war and of bitter hatred towards his rival, the celebrated general and leader of the optimate party, Marcus Furius Camillus. When a brave officer was about to be led away to a debtor's prison, Manlius interceded for him and released him with his own money; at the same time he offered his lands to sale, declaring loudly that, as long as he possessed a foot's breadth of land, such iniquities should not occur. This was more than enough to unite the whole government party, patricians as well as plebeians, against the dangerous innovator. The trial for high treason, the charge of having meditated a renewal of the monarchy, wrought on the blind multitude with the insidious charm which belongs to stereotyped party-phrases. They themselves condemned him to death, and his renown availed him nothing save that it was deemed expedient to assemble the people for the bloody assize at a spot whence the voters could not see the rock of the citadel—the dumb monitor which might remind them how their fatherland had been saved from the extremity of danger by the hands of the very man whom they were now consigning to the executioner (370).

While the attempts at reformation were thus arrested in the bud, the social disorders became still more crying; for on the one hand the domain-possessions were ever extending in consequence of successful wars, and on the other hand debt and impoverishment were ever spreading more widely among the farmers, particularly from the effects of the severe war with Veii (348-358) and of the burning of the capital in the Gallic invasion (364). It is true that, when in the Veientine war it became necessary to prolong the term of service of the soldiers and to keep them under arms not—as hitherto at the utmost—only during summer, but also throughout the winter, and when the farmers, foreseeing their utter economic ruin, were on the point of

refusing their consent to the declaration of war, the senate resolved on making an important concession. It charged the pay, which hitherto the tribes had defrayed by contribution, on the state-chest, or in other words, on the produce of the indirect revenues and the domains (348). It was only in the event of the state-chest being at the moment empty that a general contribution (-tributum-) was imposed on account of the pay; and in that case it was considered as a forced loan and was afterwards repaid by the community. The arrangement was equitable and wise; but, as it was not placed upon the essential foundation of turning the domains to proper account for the benefit of the exchequer, there were added to the increased burden of service frequent contributions, which were none the less ruinous to the man of small means that they were officially regarded not as taxes but as advances.

Combination of the Plebeian Aristocracy and the Farmers against the Nobility—
Licinio-Sextian Laws

Under such circumstances, when the plebeian aristocracy saw itself practically excluded by the opposition of the nobility and the indifference of the commons from equality of political rights, and the suffering farmers were powerless as opposed to the close aristocracy, it was natural that they should help each other by a compromise. With this view the tribunes of the people, Gaius Licinius and Lucius Sextius, submitted to the commons proposals to the following effect: first, to abolish the consular tribunate; secondly, to lay it down as a rule that at least one of the consuls should be a plebeian; thirdly, to open up to the plebeians admission to one of the three great colleges of priests—that of the custodiers of oracles, whose number was to be increased to ten (-duoviri-, afterwards -decemviri sacris faciundis- (6)); fourthly, as respected the domains, to allow no burgess to maintain upon the common pasture more than a hundred oxen and five hundred

sheep, or to hold more than five hundred -jugera- (about 300 acres) of the domain lands left free for occupation; fifthly, to oblige the landlords to employ in the labours of the field a number of free labourers proportioned to that of their rural slaves; and lastly, to procure alleviation for debtors by deduction of the interest which had been paid from the capital, and by the arrangement of set terms for the payment of arrears.

The tendency of these enactments is obvious. They were designed to deprive the nobles of their exclusive possession of the curule magistracies and of the hereditary distinctions of nobility therewith associated; which, it was characteristically conceived, could only be accomplished by the legal exclusion of the nobles from the place of second consul. They were designed, as a consequence, to emancipate the plebeian members of the senate from the subordinate position which they occupied as silent by-sitters,(7) in so far as those of them at least who had filled the consulate thereby acquired a title to deliver their opinion with the patrician consulars before the other patrician senators.(8) They were intended, moreover, to withdraw from the nobles the exclusive possession of spiritual dignities; and in carrying out this purpose for reasons sufficiently obvious the old Latin priesthoods of the augurs and Pontifices were left to the old burgesses, but these were obliged to open up to the new burgesses the third great college of more recent origin and belonging to a worship that was originally foreign. They were intended, in fine, to procure a share in the common usufructs of burgesses for the poorer commons, alleviation for the suffering debtors, and employment for the day-labourers that were destitute of work. Abolition of privileges, civil equality, social reform—these were the three great ideas, of which it was the design of this movement to secure the recognition. Vainly the patricians exerted all the means at their command in opposition to these legislative proposals; even the dictatorship and the old military hero Camillus were able only to delay, not to avert their accomplishment. Willingly would the people have separated the proposals;

of what moment to it were the consulate and custodianship of oracles, if only the burden of debt were lightened and the public lands were free! But it was not for nothing that the plebeian nobility had adopted the popular cause; it included the proposals in one single project of law, and after a long struggle—it is said of eleven years—the senate at length gave its consent and they passed in the year 387.

Political Abolition of the Patriciate

With the election of the first non-patrician consul—the choice fell on one of the authors of this reform, the late tribune of the people, Lucius Sextius Lateranus—the clan-aristocracy ceased both in fact and in law to be numbered among the political institutions of Rome. When after the final passing of these laws the former champion of the clans, Marcus Furius Camillus, founded a sanctuary of Concord at the foot of the Capitol—upon an elevated platform, where the senate was wont frequently to meet, above the old meeting-place of the burgesses, the Comitium—we gladly cherish the belief that he recognized in the legislation thus completed the close of a dissension only too long continued. The religious consecration of the new concord of the community was the last public act of the old warrior and statesman, and a worthy termination of his long and glorious career. He was not wholly mistaken; the more judicious portion of the clans evidently from this time forward looked upon their exclusive political privileges as lost, and were content to share the government with the plebeian aristocracy. In the majority, however, the patrician spirit proved true to its incorrigible character. On the strength of the privilege which the champions of legitimacy have at all times claimed of obeying the laws only when these coincide with their party interests, the Roman nobles on various occasions ventured, in open violation of the stipulated arrangement, to nominate two patrician consuls. But, when by way of answer to an election of that sort for the year 411 the community in the year following formally resolved to

allow both consular positions to be filled by non-patricians, they understood the implied threat, and still doubtless desired, but never again ventured, to touch the second consular place.

Praetorship—

Curule Aedileship—

Complete Opening Up of Magistracies and Priesthoods

In like manner the aristocracy simply injured itself by the attempt which it made, on the passing of the Licinian laws, to save at least some remnant of its ancient privileges by means of a system of political clipping and paring. Under the pretext that the nobility were exclusively cognizant of law, the administration of justice was detached from the consulate when the latter had to be thrown open to the plebeians; and for this purpose there was nominated a special third consul, or, as he was commonly called, a praetor. In like manner the supervision of the market and the judicial police-duties connected with it, as well as the celebration of the city-festival, were assigned to two newly nominated aediles, who—by way of distinction from the plebeian aediles—were named from their standing jurisdiction "aediles of the judgment seat" (-aediles curules-). But the curule aedileship became immediately so far accessible to the plebeians, that it was held by patricians and plebeians alternately. Moreover the dictatorship was thrown open to plebeians in 398, as the mastership of the horse had already been in the year before the Licinian laws (386); both the censorships were thrown open in 403, and the praetorship in 417; and about the same time (415) the nobility were by law excluded from one of the censorships, as they had previously been from one of the consulships. It was to no purpose that once more a patrician augur detected secret flaws, hidden from the eyes of the uninitiated, in the election of a plebeian dictator (427), and that the patrician censor did not up to the close of our present period (474) permit his colleague to present the solemn sacrifice with which the census closed; such

chicanery served merely to show the ill humour of patricianism. Of as little avail were the complaints which the patrician presidents of the senate would not fail to raise regarding the participation of the plebeians in its debates; it became a settled rule that no longer the patrician members, but those who had attained to one of the three supreme ordinary magistracies—the consulship, praetorship, and curule aedileship—should be summoned to give their opinion in this order and without distinction of class, while the senators who had held none of these offices still even now took part merely in the division. The right, in fine, of the patrician senate to reject a decree of the community as unconstitutional—a right, however, which in all probability it rarely ventured to exercise—was withdrawn from it by the Publilian law of 415 and by the Maenian law which was not passed before the middle of the fifth century, in so far that it had to bring forward its constitutional objections, if it had any such, when the list of candidates was exhibited or the project of law was brought in; which practically amounted to a regular announcement of its consent beforehand. In this character, as a purely formal right, the confirmation of the decrees of the people still continued in the hands of the nobility down to the last age of the republic.

The clans retained, as may naturally be conceived, their religious privileges longer. Indeed, several of these, which were destitute of political importance, were never interfered with, such as their exclusive eligibility to the offices of the three supreme -flamines- and that of -rex sacrorum- as well as to the membership of the colleges of Salii. On the other hand the two colleges of Pontifices and of augurs, with which a considerable influence over the courts and the comitia were associated, were too important to remain in the exclusive possession of the patricians. The Ogulnian law of 454 accordingly threw these also open to plebeians, by increasing the number both of the pontifices and of the augurs from six to nine, and equally distributing the stalls in the two colleges between patricians and plebeians.

Equivalence of Law and Plebiscitum

The two hundred years' strife was brought at length to: a close by the law of the dictator Q. Hortensius (465, 468) which was occasioned by a dangerous popular insurrection, and which declared that the decrees of the plebs should stand on an absolute footing of equality—instead of their earlier conditional equivalence—with those of the whole community. So greatly had the state of things been changed that that portion of the burgesses which had once possessed exclusively the right of voting was thenceforth, under the usual form of taking votes binding for the whole burgess-body, no longer so much as asked the question.

The Later Patricianism

The struggle between the Roman clans and commons was thus substantially at an end. While the nobility still preserved out of its comprehensive privileges the -de facto- possession of one of the consulships and one of the censorships, it was excluded by law from the tribunate, the plebeian aedileship, the second consulship and censorship, and from participation in the votes of the plebs which were legally equivalent to votes of the whole body of burgesses. As a righteous retribution for its perverse and stubborn resistance, the patriciate had seen its former privileges converted into so many disabilities. The Roman clan-nobility, however, by no means disappeared because it had become an empty name. The less the significance and power of the nobility, the more purely and exclusively the patrician spirit developed itself. The haughtiness of the "Ramnians" survived the last of their class-privileges for centuries; after they had steadfastly striven "to rescue the consulate from the plebeian filth" and had at length become reluctantly convinced of the impossibility of such an achievement, they continued at least rudely and spitefully to display their aristocratic spirit. To understand rightly the history of Rome in

the fifth and sixth centuries, we must never overlook this sulking patricianism; it could indeed do little more than irritate itself and others, but this it did to the best of its ability. Some years after the passing of the Ogulnian law (458) a characteristic instance of this sort occurred. A patrician matron, who was married to a leading plebeian that had attained to the highest dignities of the state, was on account of this misalliance expelled from the circle of noble dames and was refused admission to the common festival of Chastity; and in consequence of that exclusion separate patrician and plebeian goddesses of Chastity were thenceforward worshipped in Rome. Doubtless caprices of this sort were of very little moment, and the better portion of the clans kept themselves entirely aloof from this miserable policy of peevishness; but it left behind on both sides a feeling of discontent, and, while the struggle of the commons against the clans was in itself a political and even moral necessity, these convulsive efforts to prolong the strife—the aimless combats of the rear-guard after the battle had been decided, as well as the empty squabbles as to rank and standing—needlessly irritated and disturbed the public and private life of the Roman community.

The Social Distress, and the Attempt to Relieve It

Nevertheless one object of the compromise concluded by the two portions of the plebs in 387, the abolition of the patriciate, had in all material points been completely attained. The question next arises, how far the same can be affirmed of the two positive objects aimed at in the compromise?—whether the new order of things in reality checked social distress and established political equality? The two were intimately connected; for, if economic embarrassments ruined the middle class and broke up the burgesses into a minority of rich men and a suffering proletariat, such a state of things would at once annihilate civil equality and in reality destroy the republican commonwealth. The preservation and

increase of the middle class, and in particular of the farmers, formed therefore for every patriotic statesman of Rome a problem not merely important, but the most important of all. The plebeians, moreover, recently called to take part in the government, greatly indebted as they were for their new political rights to the proletariat which was suffering and expecting help at their hands, were politically and morally under special obligation to attempt its relief by means of government measures, so far as relief was by such means at all attainable.

The Licinian Agrarian Laws

Let us first consider how far any real relief was contained in that part of the legislation of 387 which bore upon the question. That the enactment in favour of the free day-labourers could not possibly accomplish its object—namely, to check the system of farming on a large scale and by means of slaves, and to secure to the free proletarians at least a share of work—is self-evident. In this matter legislation could afford no relief, without shaking the foundations of the civil organization of the period in a way that would reach far beyond its immediate horizon. In the question of the domains, on the other hand, it was quite possible for legislation to effect a change; but what was done was manifestly inadequate. The new domain-arrangement, by granting the right of driving very considerable flocks and herds upon the public pastures, and that of occupying domain-land not laid out in pasture up to a maximum fixed on a high scale, conceded to the wealthy an important and perhaps even disproportionate prior share in the produce of the domains; and by the latter regulation conferred upon the domain-tenure, although it remained in law liable to pay a tenth and revocable at pleasure, as well as upon the system of occupation itself, somewhat of a legal sanction. It was a circumstance still more suspicious, that the new legislation neither supplemented the existing and manifestly unsatisfactory provisions for the collection of the pasture-money and the

tenth by compulsory measures of a more effective kind, nor prescribed any thorough revision of the domanial possessions, nor appointed a magistracy charged with the carrying of the new laws into effect. The distribution of the existing occupied domain-land partly among the holders up to a fair maximum, partly among the plebeians who had no property, in both cases in full ownership; the abolition in future of the system of occupation; and the institution of an authority empowered to make immediate distribution of any future acquisitions of territory, were so clearly demanded by the circumstances of the case, that it certainly was not through want of discernment that these comprehensive measures were neglected. We cannot fail to recollect that it was the plebeian aristocracy, in other words, a portion of the very class that was practically privileged in respect to the usufructs of the domains, which proposed the new arrangement, and that one of its very authors, Gaius Licinius Stolo, was among the first to be condemned for having exceeded the agrarian maximum; and we cannot but ask whether the legislators dealt altogether honourably, and whether they did not on the contrary designedly evade a solution, really tending to the common benefit, of the unhappy question of the domains. We do not mean, however, to express any doubt that the regulations of the Licinian laws, such as they were, might and did substantially benefit the small farmer and the day-labourer. It must, moreover, be acknowledged that in the period immediately succeeding the passing of the law the authorities watched with at least comparative strictness over the observance of its rules as to the maximum, and frequently condemned the possessors of large herds and the occupiers of the domains to heavy fines.

Laws Imposing Taxes—

Laws of Credit

In the system of taxation and of credit also efforts were made with greater energy at this period than at any before or subsequent to it to remedy

the evils of the national economy, so far as legal measures could do so. The duty levied in 397 of five per cent on the value of slaves that were to be manumitted was—irrespective of the fact that it imposed a check on the undesirable multiplication of freedmen—the first tax in Rome that was really laid upon the rich. In like manner efforts were made to remedy the system of credit. The usury laws, which the Twelve Tables had established, (9) were renewed and gradually rendered more stringent, so that the maximum of interest was successively lowered from 10 per cent (enforced in 397) to 5 per cent (in 407) for the year of twelve months, and at length (412) the taking of interest was altogether forbidden. The latter foolish law remained formally in force, but, of course, it was practically inoperative; the standard rate of interest afterwards usual, viz. 1 per cent per month, or 12 per cent for the civil common year—which, according to the value of money in antiquity, was probably at that time nearly the same as, according to its modern value, a rate of 5 or 6 per cent—must have been already about this period established as the maximum of appropriate interest. Any action at law for higher rates must have been refused, perhaps even judicial claims for repayment may have been allowed; moreover notorious usurers were not unfrequently summoned before the bar of the people and readily condemned by the tribes to heavy fines. Still more important was the alteration of the procedure in cases of debt by the Poetelian law (428 or 441). On the one hand it allowed every debtor who declared on oath his solvency to save his personal freedom by the cession of his property; on the other hand it abolished the former summary proceedings in execution on a loan-debt, and laid down the rule that no Roman burgess could be led away to bondage except upon the sentence of jurymen.

Continued Distress

It is plain that all these expedients might perhaps in some respects mitigate, but could not remove, the existing economic disorders. The

continuance of the distress is shown by the appointment of a bank-commission to regulate the relations of credit and to provide advances from the state-chest in 402, by the fixing of legal payment by instalments in 407, and above all by the dangerous popular insurrection about 467, when the people, unable to obtain new facilities for the payment of debts, marched out to the Janiculum, and nothing but a seasonable attack by external enemies, and the concessions contained in the Hortensian law,(10) restored peace to the community. It is, however, very unjust to reproach these earnest attempts to check the impoverishment of the middle class with their inadequacy. The belief that it is useless to employ partial and palliative means against radical evils, because they only remedy them in part, is an article of faith never preached unsuccessfully by baseness to simplicity, but it is none the less absurd. On the contrary, we may ask whether the vile spirit of demagogism had not even thus early laid hold of this matter, and whether expedients were really needed so violent and dangerous as, for example, the deduction of the interest paid from the capital. Our documents do not enable us to decide the question of right or wrong in the case. But we recognize clearly enough that the middle class of freeholders still continued economically in a perilous and critical position; that various endeavours were made by those in power to remedy it by prohibitory laws and by respites, but of course in vain; and that the aristocratic ruling class continued to be too weak in point of control over its members, and too much entangled in the selfish interests of its order, to relieve the middle class by the only effectual means at the disposal of the government—the entire and unreserved abolition of the system of occupying the state-lands—and by that course to free the government from the reproach of turning to its own advantage the oppressed position of the governed.

Influence of the Extension of the Roman Dominion in Elevating the Farmer-Class

A more effectual relief than any which the government was willing or able to give was derived by the middle classes from the political successes of the Roman community and the gradual consolidation of the Roman sovereignty over Italy. The numerous and large colonies which it was necessary to found for the securing of that sovereignty, the greater part of which were sent forth in the fifth century, furnished a portion of the agricultural proletariat with farms of their own, while the efflux gave relief to such as remained at home. The increase of the indirect and extraordinary sources of revenue, and the flourishing condition of the Roman finances in general, rendered it but seldom necessary to levy any contribution from the farmers in the form of a forced loan. While the earlier small holdings were probably lost beyond recovery, the rising average of Roman prosperity must have converted the former larger landholders into farmers, and in so far added new members to the middle class. People of rank sought principally to secure the large newly-acquired districts for occupation; the mass of wealth which flowed to Rome through war and commerce must have reduced the rate of interest; the increase in the population of the capital benefited the farmer throughout Latium; a wise system of incorporation united a number of neighbouring and formerly subject communities with the Roman state, and thereby strengthened especially the middle class; finally, the glorious victories and their mighty results silenced faction. If the distress of the farmers was by no means removed and still less were its sources stopped, it yet admits of no doubt that at the close of this period the Roman middle class was on the whole in a far less oppressed condition than in the first century after the expulsion of the kings.

Civic Equality

Lastly civic equality was in a certain sense undoubtedly attained or rather restored by the reform of 387, and the development of its legitimate consequences. As formerly, when the patricians still in fact formed the

burgesses, these had stood upon a footing of absolute equality in rights and duties, so now in the enlarged burgess-body there existed in the eye of the law no arbitrary distinctions. The gradations to which differences of age, sagacity, cultivation, and wealth necessarily give rise in civil society, naturally also pervaded the sphere of public life; but the spirit animating the burgesses and the policy of the government uniformly operated so as to render these differences as little conspicuous as possible. The whole system of Rome tended to train up her burgesses on an average as sound and capable, but not to bring into prominence the gifts of genius. The growth of culture among the Romans did not at all keep pace with the development of the power of their community, and it was instinctively repressed rather than promoted by those in power. That there should be rich and poor, could not be prevented; but (as in a genuine community of farmers) the farmer as well as the day-labourer personally guided the plough, and even for the rich the good economic rule held good that they should live with uniform frugality and above all should hoard no unproductive capital at home—excepting the salt-cellar and the sacrificial ladle, no silver articles were at this period seen in any Roman house. Nor was this of little moment. In the mighty successes which the Roman community externally achieved during the century from the last Veientine down to the Pyrrhic war we perceive that the patriciate has now given place to the farmers; that the fall of the highborn Fabian would have been not more and not less lamented by the whole community than the fall of the plebeian Decian was lamented alike by plebeians and patricians; that the consulate did not of itself fall even to the wealthiest aristocrat; and that a poor husbandman from Sabina, Manius Curius, could conquer king Pyrrhus in the field of battle and chase him out of Italy, without ceasing to be a simple Sabine farmer and to cultivate in person his own bread-corn.

New Aristocracy

In regard however to this imposing republican equality we must not overlook the fact that it was to a considerable extent only formal, and that an aristocracy of a very decided stamp grew out of it or rather was contained in it from the very first. The non-patrician families of wealth and consideration had long ago separated from the plebs, and leagued themselves with the patriciate in the participation of senatorial rights and in the prosecution of a policy distinct from that of the plebs and very often counteracting it. The Licinian laws abrogated the legal distinctions within the ranks of the aristocracy, and changed the character of the barrier which excluded the plebeian from the government, so that it was no longer a hindrance unalterable in law, but one, not indeed insurmountable, but yet difficult to be surmounted in practice. In both ways fresh blood was mingled with the ruling order in Rome; but in itself the government still remained, as before, aristocratic. In this respect the Roman community was a genuine farmer-commonwealth, in which the rich holder of a whole hide was little distinguished externally from the poor cottager and held intercourse with him on equal terms, but aristocracy nevertheless exercised so all-powerful a sway that a man without means far sooner rose to be master of the burgesses in the city than mayor in his own village. It was a very great and valuable gain, that under the new legislation even the poorest burgess might fill the highest office of the state; nevertheless it was a rare exception when a man from the lower ranks of the population reached such a position,(11) and not only so, but probably it was, at least towards the close of this period, possible only by means of an election carried by the opposition.

New Opposition

Every aristocratic government of itself calls forth a corresponding opposition party; and as the formal equalization of the orders only modified the aristocracy, and the new ruling order not only succeeded the old

patriciate but engrafted itself on it and intimately coalesced with it, the opposition also continued to exist and in all respects pursued a similar course. As it was now no longer the plebeian burgesses as such, but the common people, that were treated as inferior, the new opposition professed from the first to be the representative of the lower classes and particularly of the small farmers; and as the new aristocracy attached itself to the patriciate, so the first movements of this new opposition were interwoven with the final struggles against the privileges of the patricians. The first names in the series of these new Roman popular leaders were Manius Curius (consul 464, 479, 480; censor 481) and Gaius Fabricius (consul 472, 476, 481; censor 479); both of them men without ancestral lineage and without wealth, both summoned—in opposition to the aristocratic principle of restricting re-election to the highest office of the state—thrice by the votes of the burgesses to the chief magistracy, both, as tribunes, consuls, and censors, opponents of patrician privileges and defenders of the small farmer-class against the incipient arrogance of the leading houses. The future parties were already marked out; but the interests of party were still suspended on both sides in presence of the interests of the commonweal. The patrician Appius Claudius and the farmer Manius Curius—vehement in their personal antagonism—jointly by wise counsel and vigorous action conquered king Pyrrhus; and while Gaius Fabricius as censor inflicted penalties on Publius Cornelius Rufinus for his aristocratic sentiments and aristocratic habits, this did not prevent him from supporting the claim of Rufinus to a second consulate on account of his recognized ability as a general. The breach was already formed; but the adversaries still shook hands across it.

The New Government

The termination of the struggles between the old and new burgesses, the various and comparatively successful endeavours to relieve the middle

class, and the germs—already making their appearance amidst the newly acquired civic equality—of the formation of a new aristocratic and a new democratic party, have thus been passed in review. It remains that we describe the shape which the new government assumed amidst these changes, and the positions in which after the political abolition of the nobility the three elements of the republican commonwealth—the burgesses, the magistrates, and the senate—stood towards each other.

The Burgess-Body— Its Composition

The burgesses in their ordinary assemblies continued as hitherto to be the highest authority in the commonwealth and the legal sovereign. But it was settled by law that—apart from the matters committed once for all to the decision of the centuries, such as the election of consuls and censors—voting by districts should be just as valid as voting by centuries: a regulation introduced as regards the patricio-plebeian assembly by the Valerio-Horatian law of 305(12) and extended by the Publilian law of 415, but enacted as regards the plebeian separate assembly by the Hortensian law about 467.(13) We have already noticed that the same individuals, on the whole, were entitled to vote in both assemblies, but that—apart from the exclusion of the patricians from the plebeian separate assembly—in the general assembly of the districts all entitled to vote were on a footing of equality, while in the centuriate comitia the working of the suffrage was graduated with reference to the means of the voters, and in so far, therefore, the change was certainly a levelling and democratic innovation. It was a circumstance of far greater importance that, towards the end of this period, the primitive freehold basis of the right of suffrage began for the first time to be called in question. Appius Claudius, the boldest innovator known in Roman history, in his censorship in 442 without consulting the senate or people so adjusted the burgess-roll, that a man who had no land was

received into whatever tribe he chose and then according to his means into the corresponding century. But this alteration was too far in advance of the spirit of the age to obtain full acceptance. One of the immediate successors of Appius, Quintus Fabius Rullianus, the famous conqueror of the Samnites, undertook in his censorship of 450 not to set it aside entirely, but to confine it within such limits that the real power in the burgess-assemblies should continue to be vested in the holders of land and of wealth. He assigned those who had no land collectively to the four city tribes, which were now made to rank not as the first but as the last. The rural tribes, on the other hand, the number of which gradually increased between 367 and 513 from seventeen to thirty-one—thus forming a majority, greatly preponderating from the first and ever increasing in preponderance, of the voting-divisions—were reserved by law for the whole of the burgesses who were freeholders. In the centuries the equalization of the freeholders and non-freeholders remained as Appius had introduced it. In this manner provision was made for the preponderance of the freeholders in the comitia of the tribes, while for the centuriate comitia in themselves the wealthy already turned the scale. By this wise and moderate arrangement on the part of a man who for his warlike feats and still more for this peaceful achievement justly received the surname of the Great (-Maximus-), on the one hand the duty of bearing arms was extended, as was fitting, also to the non-freehold burgesses; on the other hand care was taken that their influence, especially that of those who had once been slaves and who were for the most part without property in land, should be subjected to that check which is unfortunately, in a state allowing slavery, an indispensable necessity. A peculiar moral jurisdiction, moreover, which gradually came to be associated with the census and the making up of the burgess-roll, excluded from the burgess-body all individuals notoriously unworthy, and guarded the full moral and political purity of citizenship.

Increasing Powers of the Burgesses

The powers of the comitia exhibited during this period a tendency to enlarge their range, but in a manner very gradual. The increase in the number of magistrates to be elected by the people falls, to some extent, under this head; it is an especially significant fact that from 392 the military tribunes of one legion, and from 443 four tribunes in each of the first four legions respectively, were nominated no longer by the general, but by the burgesses. During this period the burgesses did not on the whole interfere in administration; only their right of declaring war was, as was reasonable, emphatically maintained, and held to extend also to cases in which a prolonged armistice concluded instead of a peace expired and what was not in law but in fact a new war began (327). In other instances a question of administration was hardly submitted to the people except when the governing authorities fell into collision and one of them referred the matter to the people—as when the leaders of the moderate party among the nobility, Lucius Valerius and Marcus Horatius, in 305, and the first plebeian dictator, Gaius Marcius Rutilus, in 398, were not allowed by the senate to receive the triumphs they had earned; when the consuls of 459 could not agree as to their respective provinces of jurisdiction; and when the senate, in 364, resolved to give up to the Gauls an ambassador who had forgotten his duty, and a consular tribune carried the matter to the community. This was the first occasion on which a decree of the senate was annulled by the people; and heavily the community atoned for it. Sometimes in difficult cases the government left the decision to the people, as first, when Caere sued for peace, after the people had declared war against it but before war had actually begun (401); and at a subsequent period, when the senate hesitated to reject unceremoniously the humble entreaty of the Samnites for peace (436). It is not till towards the close of this epoch that we find a considerably extended intervention of the -comitia tributa- in affairs of administration, particularly through the practice of consulting it as to the

conclusion of peace and of alliances: this extension probably dates from the Hortensian law of 467.

Decreasing Importance of the Burgess-Body

But notwithstanding these enlargements of the powers of the burgess-assemblies, their practical influence on state affairs began, particularly towards the close of this period, to wane. First of all, the extension of the bounds of Rome deprived her primary assembly of its true basis. As an assembly of the freeholders of the community, it formerly might very well meet in sufficiently full numbers, and might very well know its own wishes, even without discussion; but the Roman burgess-body had now become less a civic community than a state. The fact that those dwelling together voted also with each other, no doubt, introduced into the Roman comitia, at least when the voting was by tribes, a sort of inward connection and into the voting now and then energy and independence; but under ordinary circumstances the composition of the comitia and their decision were left dependent on the person who presided or on accident, or were committed to the hands of the burgesses domiciled in the capital. It is, therefore, quite easy to understand how the assemblies of the burgesses, which had great practical importance during the first two centuries of the republic, gradually became a mere instrument in the hands of the presiding magistrate, and in truth a very dangerous instrument, because the magistrates called to preside were so numerous, and every resolution of the community was regarded as the ultimate legal expression of the will of the people. But the enlargement of the constitutional rights of the burgesses was not of much moment, inasmuch as these were less than formerly capable of a will and action of their own, and there was as yet no demagogism, in the proper sense of that term, in Rome. Had any such demagogic spirit existed, it would have attempted not to extend the powers of the burgesses, but to remove the restrictions on political debate in their presence; whereas throughout this

whole period there was undeviating acquiescence in the old maxims, that the magistrate alone could convoke the burgesses, and that he was entitled to exclude all debate and all proposal of amendments. At the time this incipient breaking up of the constitution made itself felt chiefly in the circumstance that the primary assemblies assumed an essentially passive attitude, and did not on the whole interfere in government either to help or to hinder it.

The Magistrates. Partition and Weakening of the Consular Powers

As regards the power of the magistrates, its diminution, although not the direct design of the struggles between the old and new burgesses, was doubtless one of their most important results. At the beginning of the struggle between the orders or, in other words, of the strife for the possession of the consular power, the consulate was still the one and indivisible, essentially regal, magistracy; and the consul, like the king in former times, still had the appointment of all subordinate functionaries left to his own free choice. At the termination of that contest its most important functions —jurisdiction, street-police, election of senators and equites, the census and financial administration —were separated from the consulship and transferred to magistrates, who like the consul were nominated by the community and occupied a position far more co-ordinate than subordinate. The consulate, formerly the single ordinary magistracy of the state, was now no longer even absolutely the first. In the new arrangement as to the ranking and usual order of succession of the public offices the consulate stood indeed above the praetorship, aedileship, and quaestorship, but beneath the censorship, which—in addition to the most important financial duties —was charged with the adjustment of the rolls of burgesses, equites, and senators, and thereby wielded a wholly arbitrary moral control over the entire community and every individual burgess, the humblest as well as the most prominent. The conception of limited magisterial power or special

function, which seemed to the original Roman state-law irreconcilable with the conception of supreme office, gradually gained a footing and mutilated and destroyed the earlier idea of the one and indivisible -imperium-. A first step was already taken in this direction by the institution of the standing collateral offices, particularly the quaestorship;(14) it was completely carried out by the Licinian laws (387), which prescribed the functions of the three supreme magistrates, and assigned administration and the conduct of war to the two first, and the management of justice to the third. But the change did not stop here. The consuls, although they were in law wholly and everywhere co-ordinate, naturally from the earliest times divided between them in practice the different departments of duty (-provinciae-). Originally this was done simply by mutual concert, or in default of it by casting lots; but by degrees the other constituent authorities in the commonwealth interfered with this practical definition of functions. It became usual for the senate to define annually the spheres of duty; and, while it did not directly distribute them among the co-ordinate magistrates, it exercised decided influence on the personal distribution by advice and request. In an extreme case the senate doubtless obtained a decree of the community, definitively to settle the question of distribution;(15) the government, however, very seldom employed this dangerous expedient. Further, the most important affairs, such as the concluding of peace, were withdrawn from the consuls, and they were in such matters obliged to have recourse to the senate and to act according to its instructions. Lastly, in cases of extremity the senate could at any time suspend the consuls from office; for, according to an usage never established by law but never violated in practice, the creation of a dictatorship depended simply upon the resolution of the senate, and the fixing of the person to be nominated, although constitutionally vested in the nominating consul, really under ordinary circumstances lay with the senate.

Limitation of the Dictatorship

The old unity and plenary legal power of the -imperium- were retained longer in the case of the dictatorship than in that of the consulship. Although of course as an extraordinary magistracy it had in reality from the first its special functions, it had in law far less of a special character than the consulate. But it also was gradually affected by the new idea of definite powers and functions introduced into the legal life of Rome. In 391 we first meet with a dictator expressly nominated from theological scruples for the mere accomplishment of a religious ceremony; and though that dictator himself, doubtless in formal accordance with the constitution, treated the restriction of his powers as null and took the command of the army in spite of it, such an opposition on the part of the magistrate was not repeated on occasion of the subsequent similarly restricted nominations, which occurred in 403 and thenceforward very frequently. On the contrary, the dictators thenceforth accounted themselves bound by their powers as specially defined.

Restriction as to the Accumulation and the Reoccupation of Offices

Lastly, further seriously felt restrictions of the magistracy were involved in the prohibition issued in 412 against the accumulation of the ordinary curule offices, and in the enactment of the same date, that the same person should not again administer the same office under ordinary circumstances before an interval of ten years had elapsed, as well as in the subsequent regulation that the office which practically was the highest, the censorship, should not be held a second time at all (489). But the government was still strong enough not to be afraid of its instruments or to desist purposely on that account from employing those who were the most serviceable. Brave officers were very frequently released from these rules,(16) and cases still occurred like those of Quintus Fabius Rullianus, who was five times consul in twenty-eight years, and of Marcus Valerius Corvus (384-483) who, after he had filled six consulships, the first in his twenty-third, the last in his

seventy-second year, and had been throughout three generations the protector of his countrymen and the terror of the foe, descended to the grave at the age of a hundred.

The Tribune of the People as an Instrument of Government

While the Roman magistrate was thus more and more completely and definitely transformed from the absolute lord into the limited commissioner and administrator of the community, the old counter-magistracy, the tribunate of the people, was undergoing at the same time a similar transformation internal rather than external. It served a double purpose in the commonwealth. It had been from the beginning intended to protect the humble and the weak by a somewhat revolutionary assistance (-auxilium-) against the overbearing violence of the magistrates; it had subsequently been employed to get rid of the legal disabilities of the commons and the privileges of the gentile nobility. The latter end was attained. The original object was not only in itself a democratic ideal rather than a political possibility, but it was also quite as obnoxious to the plebeian aristocracy into whose hands the tribunate necessarily fell, and quite as incompatible with the new organization which originated in the equalization of the orders and had if possible a still more decided aristocratic hue than that which preceded it, as it was obnoxious to the gentile nobility and incompatible with the patrician consular constitution. But instead of abolishing the tribunate, they preferred to convert it from a weapon of opposition into an instrument of government, and now introduced the tribunes of the people, who were originally excluded from all share in administration and were neither magistrates nor members of the senate, into the class of governing authorities.

While in jurisdiction they stood from the beginning on an equality with the consuls and in the early stages of the conflicts between the orders

acquired like the consuls the right of initiating legislation, they now received—we know not exactly when, but presumably at or soon after the final equalization of the orders—a position of equality with the consuls as confronting the practically governing authority, the senate. Hitherto they had been present at the proceedings of the senate, sitting on a bench at the door; now they obtained, like the other magistrates and by their side, a place in the senate itself and the right to interpose their word in its discussions. If they were precluded from the right of voting, this was simply an application of the general principle of Roman state-law, that those only should give counsel who were not called to act; in accordance with which the whole of the acting magistrates possessed during their year of office only a seat, not a vote, in the council of the state.(17) But concession did not rest here. The tribunes received the distinctive prerogative of supreme magistracy, which among the ordinary magistrates belonged only to the consuls and praetors besides—the right of convoking the senate, of consulting it, and of procuring decrees from it.(18) This was only as it should be; the heads of the plebeian aristocracy could not but be placed on an equality with those of the patrician aristocracy in the senate, when once the government had passed from the clan-nobility to the united aristocracy. Now that this opposition-college, originally excluded from all share in the public administration, became—particularly with reference to strictly urban affairs—a second supreme executive and one of the most usual and most serviceable instruments of the government, or in other words of the senate, for managing the burgesses and especially for checking the excesses of the magistrates, it was certainly, as respected its original character, absorbed and politically annihilated; but this course was really enjoined by necessity. Clearly as the defects of the Roman aristocracy were apparent, and decidedly as the steady growth of aristocratic ascendancy was connected with the practical setting aside of the tribunate, none can fail to see that government could not be long carried on with an authority which was not

only aimless and virtually calculated to put off the suffering proletariat with a deceitful prospect of relief, but was at the same time decidedly revolutionary and possessed of a—strictly speaking—anarchical prerogative of obstruction to the authority of the magistrates and even of the state itself. But that faith in an ideal, which is the foundation of all the power and of all the impotence of democracy, had come to be closely associated in the minds of the Romans with the tribunate of the plebs; and we do not need to recall the case of Cola Rienzi in order to perceive that, however unsubstantial might be the advantage thence arising to the multitude, it could not be abolished without a formidable convulsion of the state. Accordingly with genuine political prudence they contented themselves with reducing it to a nullity under forms that should attract as little attention as possible. The mere name of this essentially revolutionary magistracy was still retained within the aristocratically governed commonwealth—an incongruity for the present, and for the future, in the hands of a coming revolutionary party, a sharp and dangerous weapon. For the moment, however, and for a long time to come the aristocracy was so absolutely powerful and so completely possessed control over the tribunate, that no trace at all is to be met with of a collegiate opposition on the part of the tribunes to the senate; and the government overcame the forlorn movements of opposition that now and then proceeded from individual tribunes, always without difficulty, and ordinarily by means of the tribunate itself.

The Senate. Its Composition

In reality it was the senate that governed the commonwealth, and did so almost without opposition after the equalization of the orders. Its very composition had undergone a change. The free prerogative of the chief magistrates in this matter, as it had been exercised after the setting aside of

the old clan-representation,(19) had been already subjected to very material restrictions on the abolition of the presidency for life.(20)

A further step towards the emancipation of the senate from the power of the magistrates took place, when the adjustment of the senatorial lists was transferred from the supreme magistrates to subordinate functionaries—from the consuls to the censors.(21) Certainly, whether immediately at that time or soon afterwards, the right of the magistrate entrusted with the preparation of the list to omit from it individual senators on account of a stain attaching to them and thereby to exclude them from the senate was, if not introduced, at least more precisely defined,(22) and in this way the foundations were laid of that peculiar jurisdiction over morals on which the high repute of the censors was chiefly based.(23) But censures of that sort—especially since the two censors had to be at one on the matter—might doubtless serve to remove particular persons who did not contribute to the credit of the assembly or were hostile to the spirit prevailing there, but could not bring the body itself into dependence on the magistracy.

But the right of the magistrates to constitute the senate according to their judgment was decidedly restricted by the Ovinian law, which was passed about the middle of this period, probably soon after the Licinian laws. That law at once conferred a seat and vote in the senate provisionally on every one who had been curule aedile, praetor, or consul, and bound the next censors either formally to inscribe these expectants in the senatorial roll, or at any rate to exclude them from the roll only for such reasons as sufficed for the rejection of an actual senator. The number of those, however, who had been magistrates was far from sufficing to keep the senate up to the normal number of three hundred; and below that point it could not be allowed to fall, especially as the list of senators was at the same time that of jurymen. Considerable room was thus always left for the exercise of the censorial right of election; but those senators who were chosen not in

consequence of having held office, but by selection on the part of the censor—frequently burgesses who had filled a non-curule public office, or distinguished themselves by personal valour, who had killed an enemy in battle or saved the life of a burgess—took part in voting, but not in debate. (24) The main body of the senate, and that portion of it into whose hands government and administration were concentrated, was thus according to the Ovinian law substantially based no longer on the arbitrary will of a magistrate, but indirectly on election by the people. The Roman state in this way made some approach to, although it did not reach, the great institution of modern times, representative popular government, while the aggregate of the non-debating senators furnished—what it is so necessary and yet so difficult to get in governing corporations—a compact mass of members capable of forming and entitled to pronounce an opinion, but voting in silence.

Powers of the Senate

The powers of the senate underwent scarcely any change in form. The senate carefully avoided giving a handle to opposition or to ambition by unpopular changes, or manifest violations, of the constitution; it permitted, though it did not promote, the enlargement in a democratic direction of the power of the burgesses. But while the burgesses acquired the semblance, the senate acquired the substance of power—a decisive influence over legislation and the official elections, and the whole control of the state.

Its Influence in Legislation

Every new project of law was subjected to a preliminary deliberation in the senate, and scarcely ever did a magistrate venture to lay a proposal before the community without or in opposition to the senate's opinion. If he did so, the senate had—in the intercessory powers of the magistrates and the annulling powers of the priests—an ample set of means at hand to nip in

the bud, or subsequently to get rid of, obnoxious proposals; and in case of extremity it had in its hands as the supreme administrative authority not only the executing, but the power of refusing to execute, the decrees of the community. The senate further with tacit consent of the community claimed the right in urgent cases of absolving from the laws, under the reservation that the community should ratify the proceeding—a reservation which from the first was of little moment, and became by degrees so entirely a form that in later times they did not even take the trouble to propose the ratifying decree.

Influence on the Elections

As to the elections, they passed, so far as they depended on the magistrates and were of political importance, practically into the hands of the senate. In this way it acquired, as has been mentioned already,(25) the right to appoint the dictator. Great regard had certainly to be shown to the community; the right of bestowing the public magistracies could not be withdrawn from it; but, as has likewise been already observed, care was taken that this election of magistrates should not be constructed into the conferring of definite functions, especially of the posts of supreme command when war was imminent. Moreover the newly introduced idea of special functions on the one hand, and on the other the right practically conceded to the senate of dispensation from the laws, gave to it an important share in official appointments. Of the influence which the senate exercised in settling the official spheres of the consuls in particular, we have already spoken.(26) One of the most important applications of the dispensing right was the dispensation of the magistrate from the legal term of his tenure of office—a dispensation which, as contrary to the fundamental laws of the community, might not according to Roman state-law be granted in the precincts of the city proper, but beyond these was at least so far valid that the consul or praetor, whose term was prolonged,

continued after its expiry to discharge his functions "in a consul's or praetor's stead" (-pro consule- -pro praetore-). Of course this important right of extending the term of office —essentially on a par with the right of nomination—belonged by law to the community alone, and at the beginning was in fact exercised by it; but in 447, and regularly thenceforward, the command of the commander-in-chief was prolonged by mere decree of the senate. To this was added, in fine, the preponderating and skilfully concerted influence of the aristocracy over the elections, which guided them ordinarily, although not always, to the choice of candidates agreeable to the government.

Senatorial Government

Finally as regards administration, war, peace and alliances, the founding of colonies, the assignation of lands, building, in fact every matter of permanent and general importance, and in particular the whole system of finance, depended absolutely on the senate. It was the senate which annually issued general instructions to the magistrates, settling their spheres of duty and limiting the troops and moneys to be placed at the disposal of each; and recourse was had to its counsel in every case of importance. The keepers of the state-chest could make no payment to any magistrate with the exception of the consul, or to any private person, unless authorized by a previous decree of the senate. In the management, however, of current affairs and in the details of judicial and military administration the supreme governing corporation did not interfere; the Roman aristocracy had too much political judgment and tact to desire to convert the control of the commonwealth into a guardianship over the individual official, or to turn the instrument into a machine.

That this new government of the senate amidst all its retention of existing forms involved a complete revolutionizing of the old commonwealth, is

clear. That the free action of the burgesses should be arrested and benumbed; that the magistrates should be reduced to be the presidents of its sittings and its executive commissioners; that a corporation for the mere tendering of advice should seize the inheritance of both the authorities sanctioned by the constitution and should become, although under very modest forms, the central government of the state—these were steps of revolution and usurpation. Nevertheless, if any revolution or any usurpation appears justified before the bar of history by exclusive ability to govern, even its rigorous judgment must acknowledge that this corporation timeously comprehended and worthily fulfilled its great task. Called to power not by the empty accident of birth, but substantially by the free choice of the nation; confirmed every fifth year by the stern moral judgment of the worthiest men; holding office for life, and so not dependent on the expiration of its commission or on the varying opinion of the people; having its ranks close and united ever after the equalization of the orders; embracing in it all the political intelligence and practical statesmanship that the people possessed; absolute in dealing with all financial questions and in the guidance of foreign policy; having complete power over the executive by virtue of its brief duration and of the tribunician intercession which was at the service of the senate after the termination of the quarrels between the orders—the Roman senate was the noblest organ of the nation, and in consistency and political sagacity, in unanimity and patriotism, in grasp of power and unwavering courage, the foremost political corporation of all times—still even now an "assembly of kings," which knew well how to combine despotic energy with republican self-devotion. Never was a state represented in its external relations more firmly and worthily than Rome in its best times by its senate. In matters of internal administration it certainly cannot be concealed that the moneyed and landed aristocracy, which was especially represented in the senate, acted with partiality in affairs that bore upon its peculiar interests, and that the sagacity and energy of the body

were often in such cases employed far from beneficially to the state. Nevertheless the great principle established amidst severe conflicts, that all Roman burgesses were equal in the eye of the law as respected rights and duties, and the opening up of a political career (or in other words, of admission to the senate) to every one, which was the result of that principle, concurred with the brilliance of military and political successes in preserving the harmony of the state and of the nation, and relieved the distinction of classes from that bitterness and malignity which marked the struggle of the patricians and plebeians. And, as the fortunate turn taken by external politics had the effect of giving the rich for more than a century ample space for themselves and rendered it unnecessary that they should oppress the middle class, the Roman people was enabled by means of its senate to carry out for a longer term than is usually granted to a people the grandest of all human undertakings—a wise and happy self-government.

Notes for Book II Chapter III

1. The hypothesis that legally the full -imperium- belonged to the patrician, and only the military -imperium- to the plebeian, consular tribunes, not only provokes various questions to which there is no answer—as to the course followed, for example, in the event of the election falling, as was by law quite possible, wholly on plebeians—but specially conflicts with the fundamental principle of Roman constitutional law, that the -imperium-, that is to say, the right of commanding the burgess in name of the community, was functionally indivisible and capable of no other limitation at all than a territorial one. There was a province of urban law and a province of military law, in the latter of which the -provocatio- and other regulations of urban law were not applicable; there were magistrates,

such as the proconsuls, who were empowered to discharge functions simply in the latter; but there were, in the strict sense of law, no magistrates with merely jurisdictional, as there were none with merely military, -imperium-. The proconsul was in his province, just like the consul, at once commander-in-chief and supreme judge, and was entitled to send to trial actions not only between non-burgesses and soldiers, but also between one burgess and another. Even when, on the institution of the praetorship, the idea rose of apportioning special functions to the -magistratus maiores-, this division of powers had more of a practical than of a strictly legal force; the -praetor urbanus- was primarily indeed the supreme judge, but he could also convoke the centuries, at least for certain cases, and could command an army; the consul in the city held primarily the supreme administration and the supreme command, but he too acted as a judge in cases of emancipation and adoption—the functional indivisibility of the supreme magistracy was therefore, even in these instances, very strictly adhered to on both sides. Thus the military as well as jurisdictional authority, or, laying aside these abstractions foreign to the Roman law of this period, the absolute magisterial power, must have virtually pertained to the plebeian consular tribunes as well as to the patrician. But it may well be, as Becker supposes (Handb. ii. 2, 137), that, for the same reasons, for which at a subsequent period there was placed alongside of the consulship common to both orders the praetorship actually reserved for a considerable time for the patricians, even during the consular tribunate the plebeian members of the college were -de facto- kept aloof from jurisdiction, and so far the consular tribunate prepared the way for the subsequent actual division of jurisdiction between consuls and praetors.

2. I. VI. Political Effects of the Servian Military Organization

3. The defence, that the aristocracy clung to the exclusion of the plebeians from religious prejudice, mistakes the fundamental character of

the Roman religion, and imports into antiquity the modern distinction between church and state. The admittance of a non-burgess to a religious ceremony of the citizens could not indeed but appear sinful to the orthodox Roman; but even the most rigid orthodoxy never doubted that admittance to civic communion, which absolutely and solely depended on the state, involved also full religious equality. All such scruples of conscience, the honesty of which in themselves we do not mean to doubt, were precluded, when once they granted to the plebeians -en masse- at the right time the patriciate. This only may perhaps be alleged by way of excuse for the nobility, that after it had neglected the right moment for this purpose at the abolition of the monarchy, it was no longer in a position subsequently of itself to retrieve the neglect (II. I. The New Community).

4. Whether this distinction between these "curule houses" and the other families embraced within the patriciate was ever of serious political importance, cannot with certainty be either affirmed or denied; and as little do we know whether at this epoch there really was any considerable number of patrician families that were not yet curule.

5. II. II. The Valerio-Horatian Laws

6. I. XII. Foreign Worships

7. II. I. Senate,

8. II. I. Senate, II. III. Opposition of the Patriciate

9. II. II. Legislation of the Twelve Tables

10. II. III. Equivalence Law and Plebiscitum

11. The statements as to the poverty of the consulars of this period, which play so great a part in the moral anecdote-books of a later age, mainly rest

on a misunderstanding on the one hand of the old frugal economy—which might very well consist with considerable prosperity —and on the other hand of the beautiful old custom of burying men who had deserved well of the state from the proceeds of penny collections —which was far from being a pauper burial. The method also of explaining surnames by etymological guess-work, which has imported so many absurdities into Roman history, has furnished its quota to this belief (-Serranus-).

12. II. II. The Valerio-Horatian Laws

13. II. III. Equivalence Law and Plebiscitum

14. II. I. Restrictions on the Delegation of Powers

15. II. III. Increasing Powers of the Burgesses

16. Any one who compares the consular Fasti before and after 412 will have no doubt as to the existence of the above-mentioned law respecting re-election to the consulate; for, while before that year a return to office, especially after three or four years, was a common occurrence, afterwards intervals of ten years and more were as frequent. Exceptions, however, occur in very great numbers, particularly during the severe years of war 434-443. On the other hand, the principle of not allowing a plurality of offices was strictly adhered to. There is no certain instance of the combination of two of the three ordinary curule (Liv. xxxix. 39, 4) offices (the consulate, praetorship, and curule aedileship), but instances occur of other combinations, such as of the curule aedileship and the office of master of the horse (Liv. xxiii. 24, 30); of the praetorship and censorship (Fast. Cap. a. 501); of the praetorship and the dictatorship (Liv. viii. 12); of the consulate and the dictatorship (Liv. viii. 12).

17. II. I. Senate

18. Hence despatches intended for the senate were addressed to Consuls, Praetors, Tribunes of the Plebs, and Senate (Cicero, *ad Fam.* xv. 2, et al.)

19. I. V. The Senate

20. II. I. Senate

21. II. III. Censorship

22. This prerogative and the similar ones with reference to the equestrian and burgess-lists were perhaps not formally and legally assigned to the censors, but were always practically implied in their powers. It was the community, not the censor, that conferred burgess-rights; but the person, to whom the latter in making up the list of persons entitled to vote did not assign a place or assigned an inferior one, did not lose his burgess-right, but could not exercise the privileges of a burgess, or could only exercise them in the inferior place, till the preparation of a new list. The same was the case with the senate; the person omitted by the censor from his list ceased to attend the senate, as long as the list in question remained valid—unless the presiding magistrate should reject it and reinstate the earlier list. Evidently therefore the important question in this respect was not so much what was the legal liberty of the censors, as how far their authority availed with those magistrates who had to summon according to their lists. Hence it is easy to understand how this prerogative gradually rose in importance, and how with the increasing consolidation of the nobility such erasures assumed virtually the form of judicial decisions and were virtually respected as such. As to the adjustment of the senatorial list undoubtedly the enactment of the *Ovinian - plebiscitum*- exercised a material share of influence—that the censors should admit to the senate "the best men out of all classes."

23. II. III. The Burgess-Body. Its Composition

24. II. III. Complete Opening Up of Magistracies and Priesthoods

25. II. III. Restrictions as to the Accumulation and the Reoccupation of
Offices

26. II. III. Partition and Weakening of Consular Powers

CHAPTER IV

Fall of the Etruscan Power-the Celts

Etrusco-Carthaginian Maritime Supremacy

In the previous chapters we have presented an outline of the development of the Roman constitution during the first two centuries of the republic; we now recur to the commencement of that epoch for the purpose of tracing the external history of Rome and of Italy. About the time of the expulsion of the Tarquins from Rome the Etruscan power had reached its height. The Tuscans, and the Carthaginians who were in close alliance with them, possessed undisputed supremacy on the Tyrrhene Sea. Although Massilia amidst continual and severe struggles maintained her independence, the seaports of Campania and of the Volscian land, and after the battle of Alalia Corsica also,(1) were in the possession of the Etruscans. In Sardinia the sons of the Carthaginian general Mago laid the foundation of the greatness both of their house and of their city by the complete conquest of the island (about 260); and in Sicily, while the Hellenic colonies were occupied with their internal feuds, the Phoenicians retained possession of the western half without material opposition. The vessels of the Etruscans were no less dominant in the Adriatic; and their pirates were dreaded even in the more eastern waters.

Subjugation of Latium by Etruria

By land also their power seemed to be on the increase. To acquire possession of Latium was of the most decisive importance to Etruria, which was separated by the Latins alone from the Volscian towns that were dependent on it and from its possessions in Campania. Hitherto the firm bulwark of the Roman power had sufficiently protected Latium, and had successfully maintained against Etruria the frontier line of the Tiber. But now, when the whole Tuscan league, taking advantage of the confusion and the weakness of the Roman state after the expulsion of the Tarquins, renewed its attack more energetically than before under the king Lars Porsena of Clusium, it no longer encountered the wonted resistance. Rome surrendered, and in the peace (assigned to 247) not only ceded all her possessions on the right bank of the Tiber to the adjacent Tuscan communities and thus abandoned her exclusive command of the river, but also delivered to the conqueror all her weapons of war and promised to make use of iron thenceforth only for the ploughshare. It seemed as if the union of Italy under Tuscan supremacy was not far distant.

Etruscans Driven Back from Latium—

Fall of the Etrusco-Carthaginian Maritime Supremacy—

Victories of Salamis and Himera, and Their Effects

But the subjugation, with which the coalition of the Etruscan and Carthaginian nations had threatened both Greeks and Italians, was fortunately averted by the combination of peoples drawn towards each other by family affinity as well as by common peril. The Etruscan army, which after the fall of Rome had penetrated into Latium, had its victorious career checked in the first instance before the walls of Aricia by the well-timed intervention of the Cumaeans who had hastened to the succour of the Aricines (248). We know not how the war ended, nor, in particular, whether

Rome even at that time tore up the ruinous and disgraceful peace. This much only is certain, that on this occasion also the Tuscans were unable to maintain their ground permanently on the left bank of the Tiber.

Soon the Hellenic nation was forced to engage in a still more comprehensive and still more decisive conflict with the barbarians both of the west and of the east. It was about the time of the Persian wars. The relation in which the Tyrians stood to the great king led Carthage also to follow in the wake of Persian policy —there exists a credible tradition even as to an alliance between the Carthaginians and Xerxes—and, along with the Carthaginians, the Etruscans. It was one of the grandest of political combinations which simultaneously directed the Asiatic hosts against Greece, and the Phoenician hosts against Sicily, to extirpate at a blow liberty and civilization from the face of the earth. The victory remained with the Hellenes. The battle of Salamis (274) saved and avenged Hellas proper; and on the same day—so runs the story—the rulers of Syracuse and Agrigentum, Gelon and Theron, vanquished the immense army of the Carthaginian general Hamilcar, son of Mago, at Himera so completely, that the war was thereby terminated, and the Phoenicians, who by no means cherished at that time the project of subduing the whole of Sicily on their own account, returned to their previous defensive policy. Some of the large silver pieces are still preserved which were coined for this campaign from the ornaments of Damareta, the wife of Gelon, and other noble Syracusan dames: and the latest times gratefully remembered the gentle and brave king of Syracuse and the glorious victory whose praises Simonides sang.

The immediate effect of the humiliation of Carthage was the fall of the maritime supremacy of her Etruscan allies. Anaxilas, ruler of Rhegium and Zancle, had already closed the Sicilian straits against their privateers by means of a standing fleet (about 272); soon afterwards (280) the Cumaeans and Hiero of Syracuse achieved a decisive victory near Cumae over the

Tyrrhene fleet, to which the Carthaginians vainly attempted to render aid. This is the victory which Pindar celebrates in his first Pythian ode; and there is still extant an Etruscan helmet, which Hiero sent to Olympia, with the inscription: "Hieron son of Deinomenes and the Syrakosians to Zeus, Tyrrhane spoil from Kyma." (2)

Maritime Supremacy of the Tarentines and Syracusans— Dionysius of Syracuse

While these extraordinary successes against the Carthaginians and Etruscans placed Syracuse at the head of the Greek cities in Sicily, the Doric Tarentum rose to undisputed pre-eminence among the Italian Hellenes, after the Achaean Sybaris had fallen about the time of the expulsion of the kings from Rome (243). The terrible defeat of the Tarentines by the Iapygians (280), the most severe disaster which a Greek army had hitherto sustained, served only, like the Persian invasion of Hellas, to unshackle the whole might of the national spirit in the development of an energetic democracy. Thenceforth the Carthaginians and the Etruscans were no longer paramount in the Italian waters; the Tarentines predominated in the Adriatic and Ionic, the Massiliots and Syracusans in the Tyrrhene, seas. The latter in particular restricted more and more the range of Etruscan piracy. After the victory at Cumae, Hiero had occupied the island of Aenaria (Ischia), and by that means interrupted the communication between the Campanian and the northern Etruscans. About the year 302, with a view thoroughly to check Tuscan piracy, Syracuse sent forth a special expedition, which ravaged the island of Corsica and the Etruscan coast and occupied the island of Aethalia (Elba). Although Etrusco-Carthaginian piracy was not wholly repressed—Antium, for example, having apparently continued a haunt of privateering down to the beginning of the fifth century of Rome—the powerful Syracuse formed a strong bulwark against the allied Tuscans and Phoenicians. For a moment, indeed,

it seemed as if the Syracusan power must be broken by the attack of the Athenians, whose naval expedition against Syracuse in the course of the Peloponnesian war (339-341) was supported by the Etruscans, old commercial friends of Athens, with three fifty-oared galleys. But the victory remained, as is well known, both in the west and in the east with the Dorians. After the ignominious failure of the Attic expedition, Syracuse became so indisputably the first Greek maritime power that the men, who were there at the head of the state, aspired to the sovereignty of Sicily and Lower Italy, and of both the Italian seas; while on the other hand the Carthaginians, who saw their dominion in Sicily now seriously in danger, were on their part also obliged to make, and made, the subjugation of the Syracusans and the reduction of the whole island the aim of their policy. We cannot here narrate the decline of the intermediate Sicilian states, and the increase of the Carthaginian power in the island, which were the immediate results of these struggles; we notice their effect only so far as Etruria is concerned. The new ruler of Syracuse, Dionysius (who reigned 348-387), inflicted on Etruria blows which were severely felt. The far-scheming king laid the foundation of his new colonial power especially in the sea to the east of Italy, the more northern waters of which now became, for the first time, subject to a Greek maritime power. About the year 367, Dionysius occupied and colonized the port of Lissus and island of Issa on the Illyrian coast, and the ports of Ancona, Numana, and Atria, on the coast of Italy. The memory of the Syracusan dominion in this remote region is preserved not only by the "trenches of Philistus," a canal constructed at the mouth of the Po beyond doubt by the well-known historian and friend of Dionysius who spent the years of his exile (368 et seq.) at Atria, but also by the alteration in the name of the Italian eastern sea itself, which from this time forth, instead of its earlier designation of the "Ionic Gulf",⁽³⁾ received the appellation still current at the present day, and probably referable to these events, of the sea "of Hadria."⁽⁴⁾ But not content with these attacks on the

possessions and commercial communications of the Etruscans in the eastern sea, Dionysius assailed the very heart of the Etruscan power by storming and plundering Pyrgi, the rich seaport of Caere (369). From this blow it never recovered. When the internal disturbances that followed the death of Dionysius in Syracuse gave the Carthaginians freer scope, and their fleet resumed in the Tyrrhene sea that ascendancy which with but slight interruptions they thenceforth maintained, it proved a burden no less grievous to Etruscans than to Greeks; so that, when Agathocles of Syracuse in 444 was making preparations for war with Carthage, he was even joined by eighteen Tuscan vessels of war. The Etruscans perhaps had their fears in regard to Corsica, which they probably still at that time retained. The old Etrusco-Phoenician symmachy, which still existed in the time of Aristotle (370-432), was thus broken up; but the Etruscans never recovered their maritime strength.

The Romans Opposed to the Etruscans in Veii

This rapid collapse of the Etruscan maritime power would be inexplicable but for the circumstance that, at the very time when the Sicilian Greeks were attacking them by sea, the Etruscans found themselves assailed with the severest blows on every side by land. About the time of the battles of Salamis, Himera, and Cumae a furious war raged for many years, according to the accounts of the Roman annals, between Rome and Veii (271-280). The Romans suffered in its course severe defeats. Tradition especially preserved the memory of the catastrophe of the Fabii (277), who had in consequence of internal commotions voluntarily banished themselves from the capital⁽⁴⁾ and had undertaken the defence of the frontier against Etruria, and who were slain to the last man capable of bearing arms at the brook Cremera. But the armistice for 400 months, which in room of a peace terminated the war, was so far favourable to the Romans that it at least restored the -status quo- of the regal period; the

Etruscans gave up Fidenae and the district won by them on the right bank of the Tiber. We cannot ascertain how far this Romano-Etruscan war was connected directly with the war between the Hellenes and the Persians, and with that between the Sicilians and Carthaginians; but whether the Romans were or were not allies of the victors of Salamis and of Himera, there was at any rate a coincidence of interests as well as of results.

The Samnites Opposed to the Etruscans in Campania

The Samnites as well as the Latins threw themselves upon the Etruscans; and hardly had their Campanian settlement been cut off from the motherland in consequence of the battle of Cumae, when it found itself no longer able to resist the assaults of the Sabellian mountain tribes. Capua, the capital, fell in 330; and the Tuscan population there was soon after the conquest extirpated or expelled by the Samnites. It is true that the Campanian Greeks also, isolated and weakened, suffered severely from the same invasion: Cumae itself was conquered by the Sabellians in 334. But the Hellenes maintained their ground at Neapolis especially, perhaps with the aid of the Syracusans, while the Etruscan name in Campania disappeared from history —excepting some detached Etruscan communities, which prolonged a pitiful and forlorn existence there.

Events still more momentous, however, occurred about the same time in Northern Italy. A new nation was knocking at the gates of the Alps: it was the Celts; and their first pressure fell on the Etruscans.

The Celtic, Galatian, or Gallic nation received from the common mother endowments different from those of its Italian, Germanic, and Hellenic sisters. With various solid qualities and still more that were brilliant, it was deficient in those deeper moral and political qualifications which lie at the root of all that is good and great in human development. It was reckoned disgraceful, Cicero tells us, for the free Celts to till their fields with their

own hands. They preferred a pastoral life to agriculture; and even in the fertile plains of the Po they chiefly practised the rearing of swine, feeding on the flesh of their herds, and staying with them in the oak forests day and night. Attachment to their native soil, such as characterized the Italians and the Germans, was wanting in the Celts; while on the other hand they delighted to congregate in towns and villages, which accordingly acquired magnitude and importance among the Celts earlier apparently than in Italy. Their political constitution was imperfect. Not only was the national unity recognized but feebly as a bond of connection—as is, in fact, the case with all nations at first—but the individual communities were deficient in concord and firm control, in earnest public spirit and consistency of aim. The only organization for which they were fitted was a military one, where the bonds of discipline relieved the individual from the troublesome task of self-control. "The prominent qualities of the Celtic race," says their historian Thierry, "were personal bravery, in which they excelled all nations; an open impetuous temperament, accessible to every impression; much intelligence, but at the same time extreme mobility, want of perseverance, aversion to discipline and order, ostentation and perpetual discord—the result of boundless vanity." Cato the Elder more briefly describes them, nearly to the same effect; "the Celts devote themselves mainly to two things—fighting and -esprit-."(6) Such qualities—those of good soldiers but of bad citizens—explain the historical fact, that the Celts have shaken all states and have founded none. Everywhere we find them ready to rove or, in other words, to march; preferring moveable property to landed estate, and gold to everything else; following the profession of arms as a system of organized pillage or even as a trade for hire, and with such success at all events that even the Roman historian Sallust acknowledges that the Celts bore off the prize from the Romans in feats of arms. They were the true soldiers-of-fortune of antiquity, as figures and descriptions represent them: with big but not sinewy bodies, with shaggy hair and long

mustaches—quite a contrast to the Greeks and Romans, who shaved the head and upper lip; in variegated embroidered dresses, which in combat were not unfrequently thrown off; with a broad gold ring round the neck; wearing no helmets and without missile weapons of any sort, but furnished instead with an immense shield, a long ill-tempered sword, a dagger and a lance—all ornamented with gold, for they were not unskilful at working in metals. Everything was made subservient to ostentation, even wounds, which were often subsequently enlarged for the purpose of boasting a broader scar. Usually they fought on foot, but certain tribes on horseback, in which case every freeman was followed by two attendants likewise mounted; war-chariots were early in use, as they were among the Libyans and the Hellenes in the earliest times. Various traits remind us of the chivalry of the Middle Ages; particularly the custom of single combat, which was foreign to the Greeks and Romans. Not only were they accustomed during war to challenge a single enemy to fight, after having previously insulted him by words and gestures; during peace also they fought with each other in splendid suits of armour, as for life or death. After such feats carousals followed as a matter of course. In this way they led, whether under their own or a foreign banner, a restless soldier-life; they were dispersed from Ireland and Spain to Asia Minor, constantly occupied in fighting and so-called feats of heroism. But all their enterprises melted away like snow in spring; and nowhere did they create a great state or develop a distinctive culture of their own.

Celtic Migrations—

The Celts Assail the Etruscans in Northern Italy

Such is the description which the ancients give us of this nation. Its origin can only be conjectured. Sprung from the same cradle from which the Hellenic, Italian, and Germanic peoples issued,(7) the Celts doubtless like these migrated from their eastern motherland into Europe, where at a

very early period they reached the western ocean and established their headquarters in what is now France, crossing to settle in the British isles on the north, and on the south passing the Pyrenees and contending with the Iberian tribes for the possession of the peninsula. This, their first great migration, flowed past the Alps, and it was from the lands to the westward that they first began those movements of smaller masses in the opposite direction—movements which carried them over the Alps and the Haemus and even over the Bosphorus, and by means of which they became and for many centuries continued to be the terror of the whole civilized nations of antiquity, till the victories of Caesar and the frontier defence organized by Augustus for ever broke their power.

The native legend of their migrations, which has been preserved to us mainly by Livy, relates the story of these later retrograde movements as follows.(8) The Gallic confederacy, which was headed then as in the time of Caesar by the canton of the Bituriges (around Bourges), sent forth in the days of king Ambiatius two great hosts led by the two nephews of the king. One of these nephews, Sigovesus, crossed the Rhine and advanced in the direction of the Black Forest, while the second, Bellovesus, crossed the Graian Alps (the Little St. Bernard) and descended into the valley of the Po. From the former proceeded the Gallic settlement on the middle Danube; from the latter the oldest Celtic settlement in the modern Lombardy, the canton of the Insubres with Mediolanum (Milan) as its capital. Another host soon followed, which founded the canton of the Cenomani with the towns of Brixia (Brescia) and Verona. Ceaseless streams thenceforth poured over the Alps into the beautiful plain; the Celtic tribes with the Ligurians whom they dislodged and swept along with them wrested place after place from the Etruscans, till the whole left bank of the Po was in their hands. After the fall of the rich Etruscan town Melpum (presumably in the district of Milan), for the subjugation of which the Celts already settled in the basin of the Po had united with newly arrived tribes (358?), these latter crossed to the right

bank of the river and began to press upon the Umbrians and Etruscans in their original abodes. Those who did so were chiefly the Boii, who are alleged to have penetrated into Italy by another route, over the Poenine Alps (the Great St. Bernard): they settled in the modern Romagna, where the old Etruscan town Felsina, with its name changed by its new masters to Bononia, became their capital. Finally came the Senones, the last of the larger Celtic tribes which made their way over the Alps; they took up their abode along the coast of the Adriatic from Rimini to Ancona. But isolated bands of Celtic settlers must have advanced even far in the direction of Umbria, and up to the border of Etruria proper; for stone-inscriptions in the Celtic language have been found even at Todi on the upper Tiber. The limits of Etruria on the north and east became more and more contracted, and about the middle of the fourth century the Tuscan nation found themselves substantially restricted to the territory which thenceforth bore and still bears their name.

Attack on Etruria by the Romans

Subjected to these simultaneous and, as it were, concerted assaults on the part of very different peoples—the Syracusans, Latins, Samnites, and above all the Celts—the Etruscan nation, that had just acquired so vast and sudden an ascendancy in Latium and Campania and on both the Italian seas, underwent a still more rapid and violent collapse. The loss of their maritime supremacy and the subjugation of the Campanian Etruscans belong to the same epoch as the settlement of the Insubres and Cenomani on the Po; and about this same period the Roman burgesses, who had not very many years before been humbled to the utmost and almost reduced to bondage by Porsena, first assumed an attitude of aggression towards Etruria. By the armistice with Veii in 280 Rome had recovered its ground, and the two nations were restored in the main to the state in which they had stood in the time of the kings. When it expired in the year 309, the warfare began afresh;

but it took the form of border frays and pillaging excursions which led to no material result on either side. Etruria was still too powerful for Rome to be able seriously to attack it. At length the revolt of the Fidenates, who expelled the Roman garrison, murdered the Roman envoys, and submitted to Lars Tolumnius, king of the Veientes, gave rise to a more considerable war, which ended favourably for the Romans; the king Tolumnius fell in combat by the hand of the Roman consul Aulus Cornelius Cossus (326?), Fidenae was taken, and a new armistice for 200 months was concluded in 329. During this truce the troubles of Etruria became more and more aggravated, and the Celtic arms were already approaching the settlements that hitherto had been spared on the right bank of the Po. When the armistice expired in the end of 346, the Romans on their part resolved to undertake a war of conquest against Etruria; and on this occasion the war was carried on not merely to vanquish Veii, but to crush it.

Conquest of Veii

The history of the war against the Veientes, Capenates, and Falisci, and of the siege of Veii, which is said, like that of Troy, to have lasted ten years, rests on evidence far from trustworthy. Legend and poetry have taken possession of these events as their own, and with reason; for the struggle in this case was waged, with unprecedented exertions, for an unprecedented prize. It was the first occasion on which a Roman army remained in the field summer and winter, year after year, till its object was attained. It was the first occasion on which the community paid the levy from the resources of the state. But it was also the first occasion on which the Romans attempted to subdue a nation of alien stock, and carried their arms beyond the ancient northern boundary of the Latin land. The struggle was vehement, but the issue was scarcely doubtful. The Romans were supported by the Latins and Hernici, to whom the overthrow of their dreaded neighbour was productive of scarcely less satisfaction and advantage than

to the Romans themselves; whereas Veii was abandoned by its own nation, and only the adjacent towns of Capena and Falerii, along with Tarquinii, furnished contingents to its help. The contemporary attacks of the Celts would alone suffice to explain the nonintervention of the northern communities; it is affirmed however, and there is no reason to doubt, that this inaction of the other Etruscans was primarily occasioned by internal factions in the league of the Etruscan cities, and particularly by the opposition which the regal form of government retained or restored by the Veientes encountered from the aristocratic governments of the other cities. Had the Etruscan nation been able or willing to take part in the conflict, the Roman community would hardly have been able—undeveloped as was the art of besieging at that time—to accomplish the gigantic task of subduing a large and strong city. But isolated and forsaken as Veii was, it succumbed (358) after a valiant resistance to the persevering and heroic spirit of Marcus Furius Camillus, who first opened up to his countrymen the brilliant and perilous career of foreign conquest. The joy which this great success excited in Rome had its echo in the Roman custom, continued down to a late age, of concluding the festal games with a "sale of Veientes," at which, among the mock spoils submitted to auction, the most wretched old cripple who could be procured wound up the sport in a purple mantle and ornaments of gold as "king of the Veientes." The city was destroyed, and the soil was doomed to perpetual desolation. Falerii and Capena hastened to make peace; the powerful Volsinii, which with federal indecision had remained quiet during the agony of Veii and took up arms after its capture, likewise after a few years (363) consented to peace. The statement that the two bulwarks of the Etruscan nation, Melpum and Veii, yielded on the same day, the former to the Celts, the latter to the Romans, may be merely a melancholy legend; but it at any rate involves a deep historical truth. The double assault from the north and from the south, and the fall of the two

frontier strongholds, were the beginning of the end of the great Etruscan nation.

The Celts Attack Rome—

Battle on the Allia—

Capture of Rome

For a moment, however, it seemed as if the two peoples, through whose co-operation Etruria saw her very existence put in jeopardy, were about to destroy each other, and the reviving power of Rome was to be trodden under foot by foreign barbarians. This turn of things, so contrary to what might naturally have been expected, the Romans brought upon themselves by their own arrogance and shortsightedness.

The Celtic swarms, which had crossed the river after the fall of Melpum, rapidly overflowed northern Italy—not merely the open country on the right bank of the Po and along the shore of the Adriatic, but also Etruria proper to the south of the Apennines. A few years afterwards (363) Clusium situated in the heart of Etruria (Chiusi, on the borders of Tuscany and the Papal State) was besieged by the Celtic Senones; and so humbled were the Etruscans that the Tuscan city in its straits invoked aid from the destroyers of Veii. Perhaps it would have been wise to grant it and to reduce at once the Gauls by arms, and the Etruscans by according to them protection, to a state of dependence on Rome; but an intervention with aims so extensive, which would have compelled the Romans to undertake a serious struggle on the northern Tuscan frontier, lay beyond the horizon of the Roman policy at that time. No course was therefore left but to refrain from all interference. Foolishly, however, while declining to send auxiliary troops, they despatched envoys. With still greater folly these sought to impose upon the Celts by haughty language, and, when this failed, they conceived that they might with impunity violate the law of nations in dealing with barbarians;

in the ranks of the Clusines they took part in a skirmish, and in the course of it one of them stabbed and dismounted a Gallic officer. The barbarians acted in this case with moderation and prudence. They sent in the first instance to the Roman community to demand the surrender of those who had outraged the law of nations, and the senate was ready to comply with the reasonable request. But with the multitude compassion for their countrymen outweighed justice towards the foreigners; satisfaction was refused by the burgesses; and according to some accounts they even nominated the brave champions of their fatherland as consular tribunes for the year 364,(9) which was to be so fatal in the Roman annals. Then the Brennus or, in other words, the "king of the army" of the Gauls broke up the siege of Clusium, and the whole Celtic host—the numbers of which are stated at 70,000 men—turned against Rome. Such expeditions into unknown land distant regions were not unusual for the Gauls, who marched as bands of armed emigrants, troubling themselves little as to the means of cover or of retreat; but it was evident that none in Rome anticipated the dangers involved in so sudden and so mighty an invasion. It was not till the Gauls were marching upon Rome that a Roman military force crossed the Tiber and sought to bar their way. Not twelve miles from the gates, opposite to the confluence of the rivulet Allia with the Tiber, the armies met, and a battle took place on the 18th July, 364. Even now they went into battle—not as against an army, but as against freebooters—with arrogance and foolhardiness and under inexperienced leaders, Camillus having in consequence of the dissensions of the orders withdrawn from taking part in affairs. Those against whom they were to fight were but barbarians; what need was there of a camp, or of securing a retreat? These barbarians, however, were men whose courage despised death, and their mode of fighting was to the Italians as novel as it was terrible; sword in hand the Celts precipitated themselves with furious onset on the Roman phalanx, and shattered it at the first shock. The overthrow was complete; of the Romans,

who had fought with the river in their rear, a large portion met their death in the attempt to cross it; such as escaped threw themselves by a flank movement into the neighbouring Veii. The victorious Celts stood between the remnant of the beaten army and the capital. The latter was irretrievably abandoned to the enemy; the small force that was left behind, or that had fled thither, was not sufficient to garrison the walls, and three days after the battle the victors marched through the open gates into Rome. Had they done so at first, as they might have done, not only the city, but the state also must have been lost; the brief interval gave opportunity to carry away or to bury the sacred objects, and, what was more important, to occupy the citadel and to furnish it with provisions for the exigency. No one was admitted to the citadel who was incapable of bearing arms—there was not food for all. The mass of the defenceless dispersed among the neighbouring towns; but many, and in particular a number of old men of high standing, would not survive the downfall of the city and awaited death in their houses by the sword of the barbarians. They came, murdered all they met with, plundered whatever property they found, and at length set the city on fire on all sides before the eyes of the Roman garrison in the Capitol. But they had no knowledge of the art of besieging, and the blockade of the steep citadel rock was tedious and difficult, because subsistence for the great host could only be procured by armed foraging parties, and the citizens of the neighbouring Latin cities, the Ardeates in particular, frequently attacked the foragers with courage and success. Nevertheless the Celts persevered, with an energy which in their circumstances was unparalleled, for seven months beneath the rock, and the garrison, which had escaped a surprise on a dark night only in consequence of the cackling of the sacred geese in the Capitoline temple and the accidental awaking of the brave Marcus Manlius, already found its provisions beginning to fail, when the Celts received information as to the Veneti having invaded the Senonian territory recently acquired on the Po, and were thus induced to accept the ransom money that was offered

to procure their withdrawal. The scornful throwing down of the Gallic sword, that it might be outweighed by Roman gold, indicated very truly how matters stood. The iron of the barbarians had conquered, but they sold their victory and by selling lost it.

Fruitlessness of the Celtic Victory

The fearful catastrophe of the defeat and the conflagration, the 18th of July and the rivulet of the Allia, the spot where the sacred objects were buried, and the spot where the surprise of the citadel had been repulsed—all the details of this unparalleled event—were transferred from the recollection of contemporaries to the imagination of posterity; and we can scarcely realize the fact that two thousand years have actually elapsed since those world-renowned geese showed greater vigilance than the sentinels at their posts. And yet —although there was an enactment in Rome that in future, on occasion of a Celtic invasion no legal privilege should give exemption from military service; although dates were reckoned by the years from the conquest of the city; although the event resounded throughout the whole of the then civilized world and found its way even into the Grecian annals—the battle of the Allia and its results can scarcely be numbered among those historical events that are fruitful of consequences. It made no alteration at all in political relations. When the Gauls had marched off again with their gold—which only a legend of late and wretched invention represents the hero Camillus as having recovered for Rome—and when the fugitives had again made their way home, the foolish idea suggested by some faint-hearted prudential politicians, that the citizens should migrate to Veii, was set aside by a spirited speech of Camillus; houses arose out of the ruins hastily and irregularly—the narrow and crooked streets of Rome owed their origin to this epoch; and Rome again stood in her old commanding position. Indeed it is not improbable that this occurrence contributed materially, though not just at the moment, to diminish the antagonism

between Rome and Etruria, and above all to knit more closely the ties of union between Latium and Rome. The conflict between the Gauls and the Romans was not, like that between Rome and Etruria or between Rome and Samnium, a collision of two political powers which affect and modify each other; it may be compared to those catastrophes of nature, after which the organism, if it is not destroyed, immediately resumes its equilibrium. The Gauls often returned to Latium: as in the year 387, when Camillus defeated them at Alba—the last victory of the aged hero, who had been six times military tribune with consular powers, and five times dictator, and had four times marched in triumph to the Capitol; in the year 393, when the dictator Titus Quinctius Pennus encamped opposite to them not five miles from the city at the bridge of the Anio, but before any encounter took place the Gallic host marched onward to Campania; in the year 394, when the dictator Quintus Servilius Ahala fought in front of the Colline gate with the hordes returning from Campania; in the year 396, when the dictator Gaius Sulpicius Peticus inflicted on them a signal defeat; in the year 404, when they even spent the winter encamped upon the Alban mount and joined with the Greek pirates along the coast for plunder, till Lucius Furius Camillus, the son of the celebrated general, in the following year dislodged them—an incident which came to the ears of Aristotle who was contemporary (370-432) in Athens. But these predatory expeditions, formidable and troublesome as they may have been, were rather incidental misfortunes than events of political significance; and their most essential result was, that the Romans were more and more regarded by themselves and by foreigners as the bulwark of the civilized nations of Italy against the onset of the dreaded barbarians—a view which tended more than is usually supposed to further their subsequent claim to universal empire.

Further Conquests of Rome in Etruria—
South Etruria Roman

The Tuscans, who had taken advantage of the Celtic attack on Rome to assail Veii, had accomplished nothing, because they had appeared in insufficient force; the barbarians had scarcely departed, when the heavy arm of Latium descended on the Tuscans with undiminished weight. After the Etruscans had been repeatedly defeated, the whole of southern Etruria as far as the Ciminian hills remained in the hands of the Romans, who formed four new tribes in the territories of Veii, Capena, and Falerii (367), and secured the northern boundary by establishing the fortresses of Sutrium (371) and Nepete (381). With rapid steps this fertile region, covered with Roman colonists, became completely Romanized. About 396 the nearest Etruscan towns, Tarquinii, Caere, and Falerii, attempted to revolt against the Roman encroachments, and the deep exasperation which these had aroused in Etruria was shown by the slaughter of the whole of the Roman prisoners taken in the first campaign, three hundred and seven in number, in the market-place of Tarquinii; but it was the exasperation of impotence. In the peace (403) Caere, which as situated nearest to the Romans suffered the heaviest retribution, was compelled to cede half its territory to Rome, and with the diminished domain which was left to it to withdraw from the Etruscan league, and to enter into the relationship of subjects to Rome which had in the meanwhile been constituted primarily for individual Latin communities. It seemed, however, not advisable to leave to this more remote community alien in race from the Roman such communal independence as was still retained by the subject communities of Latium; the Caerite community received the Roman franchise not merely without the privilege of electing or of being elected at Rome, but also subject to the withholding of self-administration, so that the place of magistrates of its own was as regards justice and the census taken by those of Rome, and a representative (-praefectus-) of the Roman praetor conducted the administration on the spot—a form of subjection, which in state-law first meets us here, whereby a state which had hitherto been independent became

converted into a community continuing to subsist -de jure-, but deprived of all power of movement on its own part. Not long afterwards (411) Falerii, which had preserved its original Latin nationality even under Tuscan rule, abandoned the Etruscan league and entered into perpetual alliance with Rome; and thereby the whole of southern Etruria became in one form or other subject to Roman supremacy. In the case of Tarquinii and perhaps of northern Etruria generally, the Romans were content with restraining them for a lengthened period by a treaty of peace for 400 months (403).

Pacification of Northern Italy

In northern Italy likewise the peoples that had come into collision and conflict gradually settled on a permanent footing and within more defined limits. The migrations over the Alps ceased, partly perhaps in consequence of the desperate defence which the Etruscans made in their more restricted home, and of the serious resistance of the powerful Romans, partly perhaps also in consequence of changes unknown to us on the north of the Alps. Between the Alps and the Apennines, as far south as the Abruzzi, the Celts were now generally the ruling nation, and they were masters more especially of the plains and rich pastures; but from the lax and superficial nature of their settlement their dominion took no deep root in the newly acquired land and by no means assumed the shape of exclusive possession. How matters stood in the Alps, and to what extent Celtic settlers became mingled there with earlier Etruscan or other stocks, our unsatisfactory information as to the nationality of the later Alpine peoples does not permit us to ascertain; only the Raeti in the modern Grisons and Tyrol may be described as a probably Etruscan stock. The Umbrians retained the valleys of the Apennines, and the Veneti, speaking a different language, kept possession of the north-eastern portion of the valley of the Po. Ligurian tribes maintained their footing in the western mountains, dwelling as far south as Pisa and Arezzo, and separating the Celt-land proper from Etruria.

The Celts dwelt only in the intermediate flat country, the Insubres and Cenomani to the north of the Po, the Boii to the south, and—not to mention smaller tribes —the Senones on the coast of the Adriatic, from Ariminum to Ancona, in the so-called "country of the Gauls" (-ager Gallicus-). But even there Etruscan settlements must have continued partially at least to subsist, somewhat as Ephesus and Miletus remained Greek under the supremacy of the Persians. Mantua at any rate, which was protected by its insular position, was a Tuscan city even in the time of the empire, and Atria on the Po also, where numerous discoveries of vases have been made, appears to have retained its Etruscan character; the description of the coasts that goes under the name of Scylax, composed about 418, calls the district of Atria and Spina Tuscan land. This alone, moreover, explains how Etruscan corsairs could render the Adriatic unsafe till far into the fifth century, and why not only Dionysius of Syracuse covered its coasts with colonies, but even Athens, as a remarkable document recently discovered informs us, resolved about 429 to establish a colony in the Adriatic for the protection of seafarers against the Tyrrhene pirates.

But while more or less of an Etruscan character continued to mark these regions, it was confined to isolated remnants and fragments of their earlier power; the Etruscan nation no longer reaped the benefit of such gains as were still acquired there by individuals in peaceful commerce or in maritime war. On the other hand it was probably from these half-free Etruscans that the germs proceeded of such civilization as we subsequently find among the Celts and Alpine peoples in general.(10) The very fact that the Celtic hordes in the plains of Lombardy, to use the language of the so-called Scylax, abandoned their warrior-life and took to permanent settlement, must in part be ascribed to this influence; the rudiments moreover of handicrafts and arts and the alphabet came to the Celts in Lombardy, and in fact to the Alpine peoples as far as the modern Styria, through the medium of the Etruscans.

Etruria Proper at Peace and on the Decline

Thus the Etruscans, after the loss of their possessions in Campania and of the whole district to the north of the Apennines and to the south of the Ciminian Forest, remained restricted to very narrow bounds; their season of power and of aspiration had for ever passed away. The closest reciprocal relations subsisted between this external decline and the internal decay of the nation, the seeds of which indeed were doubtless already deposited at a far earlier period. The Greek authors of this age are full of descriptions of the unbounded luxury of Etruscan life: poets of Lower Italy in the fifth century of the city celebrate the Tyrrhenian wine, and the contemporary historians Timaeus and Theopompus delineate pictures of Etruscan unchastity and of Etruscan banquets, such as fall nothing short of the worst Byzantine or French demoralization. Unattested as may be the details in these accounts, the statement at least appears to be well founded, that the detestable amusement of gladiatorial combats—the gangrene of the later Rome and of the last epoch of antiquity generally—first came into vogue among the Etruscans. At any rate on the whole they leave no doubt as to the deep degeneracy of the nation. It pervaded even its political condition. As far as our scanty information reaches, we find aristocratic tendencies prevailing, in the same way as they did at the same period in Rome, but more harshly and more perniciously. The abolition of royalty, which appears to have been carried out in all the cities of Etruria about the time of the siege of Veii, called into existence in the several cities a patrician government, which experienced but slight restraint from the laxity of the federal bond. That bond but seldom succeeded in combining all the Etruscan cities even for the defence of the land, and the nominal hegemony of Volsinii does not admit of the most remote comparison with the energetic vigour which the leadership of Rome communicated to the Latin nation. The struggle against the exclusive claim put forward by the old burgesses to all public offices and to all public usufructs, which must have destroyed

even the Roman state, had not its external successes enabled it in some measure to satisfy the demands of the oppressed proletariat at the expense of foreign nations and to open up other paths to ambition—that struggle against the exclusive rule and (what was specially prominent in Etruria) the priestly monopoly of the clan-nobility—must have ruined Etruria politically, economically, and morally. Enormous wealth, particularly in landed property, became concentrated in the hands of a few nobles, while the masses were impoverished; the social revolutions which thence arose increased the distress which they sought to remedy; and, in consequence of the impotence of the central power, no course at last remained to the distressed aristocrats— e. g. in Arretium in 453, and in Volsinii in 488—but to call in the aid of the Romans, who accordingly put an end to the disorder but at the same time extinguished the remnant of independence. The energies of the nation were broken from the day of Veii and Melpum. Earnest attempts were still once or twice made to escape from the Roman supremacy, but in such instances the stimulus was communicated to the Etruscans from without—from another Italian stock, the Samnites.

Notes for Book II Chapter IV

1. I. X. Phoenicians and Italians in Opposition to the Hellenes

2. —Fiaron o Deinomeneos kai toi Surakosioi toi Di Turan apo Kumas.

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3. I. X. Home of the Greek Immigrants

4. Hecataeus (after 257 u. c.) and Herodotus also (270-after 345) only know Hatrias as the delta of the Po and the sea that washes its shores (O.

Muller, Etrusker, i. p. 140; Geogr. Graeci min. ed. C. Muller, i. p. 23). The appellation of Adriatic sea, in its more extended sense, first occurs in the so-called Scylax about 418 U. C.

5. II. II. Coriolanus

6. -Pleraque Gallia duas res industriosissime persequitur: rem militarem et argute loqui- (Cato, Orig, l. ii. fr. 2. Jordan).

7. It has recently been maintained by expert philologists that there is a closer affinity between the Celts and Italians than there is even between the latter and the Hellenes. In other words they hold that the branch of the great tree, from which the peoples of Indo-Germanic extraction in the west and south of Europe have sprung, divided itself in the first instance into Greeks and Italo-Celts, and that the latter at a considerably later period became subdivided into Italians and Celts. This hypothesis commends itself much to acceptance in a geographical point of view, and the facts which history presents may perhaps be likewise brought into harmony with it, because what has hitherto been regarded as Graeco-Italian civilization may very well have been Graeco-Celto-Italian—in fact we know nothing of the earliest stage of Celtic culture. Linguistic investigation, however, seems not to have made as yet such progress as to warrant the insertion of its results in the primitive history of the peoples.

8. The legend is related by Livy, v. 34, and Justin, xxiv. 4, and Caesar also has had it in view (B. G. vi. 24). But the association of the migration of Bellovesus with the founding of Massilia, by which the former is chronologically fixed down to the middle of the second century of Rome, undoubtedly belongs not to the native legend, which of course did not specify dates, but to later chronologizing research; and it deserves no credit. Isolated incursions and immigrations may have taken place at a very early period; but the great overflowing of northern Italy by the Celts cannot be

placed before the age of the decay of the Etruscan power, that is, not before the second half of the third century of the city.

In like manner, after the judicious investigations of Wickham and Cramer, we cannot doubt that the line of march of Bellovesus, like that of Hannibal, lay not over the Cottian Alps (Mont Genevre) and through the territory of the Taurini, but over the Graian Alps (the Little St. Bernard) and through the territory of the Salassi. The name of the mountain is given by Livy doubtless not on the authority of the legend, but on his own conjecture.

Whether the representation that the Italian Boii came through the more easterly pass of the Poenine Alps rested on the ground of a genuine legendary reminiscence, or only on the ground of an assumed connection with the Boii dwelling to the north of the Danube, is a question that must remain undecided.

9. This is according to the current computation 390 B. C.; but, in fact, the capture of Rome occurred in Ol. 98, 1 = 388 B. C., and has been thrown out of its proper place merely by the confusion of the Roman calendar.

10. I. XIV. Development of Alphabets in Italy

CHAPTER V

Subjugation of the Latins and Campanians by Rome

The Hegemony of Rome over Latium Shaken and Re-established

The great achievement of the regal period was the establishment of the sovereignty of Rome over Latium under the form of hegemony. It is in the nature of the case evident that the change in the constitution of Rome could not but powerfully affect both the relations of the Roman state towards Latium and the internal organization of the Latin communities themselves; and that it did so, is obvious from tradition. The fluctuations which the revolution in Rome occasioned in the Romano-Latin confederacy are attested by the legend, unusually vivid and various in its hues, of the victory at the lake Regillus, which the dictator or consul Aulus Postumius (255? 258?) is said to have gained over the Latins with the help of the Dioscuri, and still more definitely by the renewal of the perpetual league between Rome and Latium by Spurius Cassius in his second consulate (261). These narratives, however, give us no information as to the main matter, the legal relation between the new Roman republic and the Latin confederacy; and what from other sources we learn regarding that relation comes to us without date, and can only be inserted here with an approximation to probability.

Original Equality of Rights between Rome and Latium

The nature of a hegemony implies that it becomes gradually converted into sovereignty by the mere inward force of circumstances; and the Roman hegemony over Latium formed no exception to the rule. It was based upon the essential equality of rights between the Roman state on the one side and the Latin confederacy on the other;(1) but at least in matters of war and in the treatment of the acquisitions thereby made this relation between the single state on the one hand and the league of states on the other virtually involved a hegemony. According to the original constitution of the league not only was the right of making wars and treaties with foreign states—in other words, the full right of political self-determination—reserved in all probability both to Rome and to the individual towns of the Latin league; and when a joint war took place, Rome and Latium probably furnished the like contingent, each, as a rule, an "army" of 8400 men;(2) but the chief command was held by the Roman general, who then nominated the officers of the staff, and so the leaders-of-division (-tribuni militum-), according to his own choice. In case of victory the moveable part of the spoil, as well as the conquered territory, was shared between Rome and the confederacy; when the establishment of fortresses in the conquered territory was resolved on, their garrisons and population were composed partly of Roman, partly of confederate colonists; and not only so, but the newly-founded community was received as a sovereign federal state into the Latin confederacy and furnished with a seat and vote in the Latin diet.

Encroachments on That Equality of Rights—

As to Wars and Treaties—

As to the Officering of the Army—

As to Acquisitions in War

These stipulations must probably even in the regal period, certainly in the republican epoch, have undergone alteration more and more to the disadvantage of the confederacy and to the further development of the hegemony of Rome. The earliest that fell into abeyance was beyond doubt the right of the confederacy to make wars and treaties with foreigners;(3) the decision of war and treaty passed once for all to Rome. The staff officers for the Latin troops must doubtless in earlier times have been likewise Latins; afterwards for that purpose Roman citizens were taken, if not exclusively, at any rate predominantly.(4) On the other hand, afterwards as formerly, no stronger contingent could be demanded from the Latin confederacy as a whole than was furnished by the Roman community; and the Roman commander-in-chief was likewise bound not to break up the Latin contingents, but to keep the contingent sent by each community as a separate division of the army under the leader whom that community had appointed.(5) The right of the Latin confederacy to an equal share in the moveable spoil and in the conquered land continued to subsist in form; in reality, however, the substantial fruits of war beyond doubt went, even at an early period, to the leading state. Even in the founding of the federal fortresses or the so-called Latin colonies as a rule presumably most, and not unfrequently all, of the colonists were Romans; and although by the transference they were converted from Roman burgesses into members of an allied community, the newly planted township in all probability frequently retained a preponderant—and for the confederacy dangerous—attachment to the real mother-city.

Private Rights

The rights, on the contrary, which were secured by the federal treaties to the individual burgess of one of the allied communities in every city belonging to the league, underwent no restriction. These included, in particular, full equality of rights as to the acquisition of landed property and

moveable estate, as to traffic and exchange, marriage and testament, and an unlimited liberty of migration; so that not only was a man who had burgess-rights in a town of the league legally entitled to settle in any other, but wherever he settled, he as a right-sharer (-municeps-) participated in all private and political rights and duties with the exception of eligibility to office, and was even—although in a limited fashion —entitled to vote at least in the -comitia tributa-.(6)

Of some such nature, in all probability, was the relation between the Roman community and the Latin confederacy in the first period of the republic. We cannot, however ascertain what elements are to be referred to earlier stipulations, and what to the revision of the alliance in 261.

With somewhat greater certainty the remodelling of the arrangements of the several communities belonging to the Latin confederacy, after the pattern of the consular constitution in Rome, may be characterized as an innovation and introduced in this connection. For, although the different communities may very well have arrived at the abolition of royalty in itself independently of each other,(7) the identity in the appellation of the new annual kings in the Roman and other commonwealths of Latium, and the comprehensive application of the peculiar principle of collegiateness,(8) evidently point to some external connection. At some time or other after the expulsion of the Tarquins from Rome the arrangements of the Latin communities must have been throughout revised in accordance with the scheme of the consular constitution. This adjustment of the Latin constitutions in conformity with that of the leading city may possibly belong only to a later period; but internal probability rather favours the supposition that the Roman nobility, after having effected the abolition of royalty for life at home, suggested a similar change of constitution to the communities of the Latin confederacy, and at length introduced aristocratic government everywhere in Latium— notwithstanding the serious

resistance, imperilling the stability of the Romano-Latin league itself, which seems to have been offered on the one hand by the expelled Tarquins, and on the other by the royal clans and by partisans well affected to monarchy in the other communities of Latium. The mighty development of the power of Etruria that occurred at this very time, the constant assaults of the Veientes, and the expedition of Porsena, may have materially contributed to secure the adherence of the Latin nation to the once-established form of union, or, in other words, to the continued recognition of the supremacy of Rome, and disposed them for its sake to acquiesce in a change of constitution for which, beyond doubt, the way had been in many respects prepared even in the bosom of the Latin communities, nay perhaps to submit even to an enlargement of the rights of hegemony.

Extension of Rome and Latium to the East and South

The permanently united nation was able not only to maintain, but also to extend on all sides its power. We have already⁽⁹⁾ mentioned that the Etruscans remained only for a short time in possession of supremacy over Latium, and that the relations there soon returned to the position in which they stood during the regal period; but it was not till more than a century after the expulsion of the kings from Rome that any real extension of the Roman boundaries took place in this direction.

With the Sabines who occupied the middle mountain range from the borders of the Umbrians down to the region between the Tiber and the Anio, and who, at the epoch when the history of Rome begins, penetrated fighting and conquering as far as Latium itself, the Romans notwithstanding their immediate neighbourhood subsequently came comparatively little into contact. The feeble sympathy of the Sabines with the desperate resistance offered by the neighbouring peoples in the east and south, is evident even from the accounts of the annals; and—what is of more importance—we find

here no fortresses to keep the land in subjection, such as were so numerous established especially in the Volscian plain. Perhaps this lack of opposition was connected with the fact that the Sabine hordes probably about this very time poured themselves over Lower Italy. Allured by the pleasantness of the settlements on the Tifernus and Volturnus, they appear to have interfered but little in the conflicts of which the region to the south of the Tiber was the arena.

At the Expense of the Aequi and Volsci—
League with the Hernici

Far more vehement and lasting was the resistance of the Aequi, who, having their settlements to the eastward of Rome as far as the valleys of the Turano and Salto and on the northern verge of the Fucine lake, bordered with the Sabines and Marsi,(10) and of the Volsci, who to the south of the Rutuli settled around Ardea, and of the Latins extending southward as far as Cora, possessed the coast almost as far as the river Liris along with the adjacent islands and in the interior the whole region drained by the Liris. We do not intend to narrate the feuds annually renewed with these two peoples—feuds which are related in the Roman chronicles in such a way that the most insignificant foray is scarcely distinguishable from a momentous war, and historical connection is totally disregarded; it is sufficient to indicate the permanent results. We plainly perceive that it was the especial aim of the Romans and Latins to separate the Aequi from the Volsci, and to become masters of the communications between them; in the region between the southern slope of the Alban range, the Volscian mountains and the Pomptine marshes, moreover, the Latins and the Volscians appear to have come first into contact and to have even had their settlements intermingled.(11) In this region the Latins took the first steps beyond the bounds of their own land, and federal fortresses on foreign soil—Latin colonies, as they were called—were first established, namely: in

the plain Velitrae (as is alleged, about 260) beneath the Alban range itself, and Suessa in the Pomptine low lands, in the mountains Norba (as is alleged, in 262) and Signia (alleged to have been strengthened in 259), both of which lie at the points of connection between the Aequian and Volscian territories. The object was attained still more fully by the accession of the Hernici to the league of the Romans and Latins (268), an accession which isolated the Volscians completely, and provided the league with a bulwark against the Sabellian tribes dwelling on the south and east; it is easy therefore to perceive why this little people obtained the concession of full equality with the two others in counsel and in distribution of the spoil. The feebler Aequi were thenceforth but little formidable; it was sufficient to undertake from time to time a plundering expedition against them. The Rutuli also, who bordered with Latium on the south in the plain along the coast, early succumbed; their town Ardea was converted into a Latin colony as early as 312.(12) The Volscians opposed a more serious resistance. The first notable success, after those mentioned above, achieved over them by the Romans was, remarkably enough, the foundation of Circeii in 361, which, as long as Antium and Tarracina continued free, can only have held communication with Latium by sea. Attempts were often made to occupy Antium, and one was temporarily successful in 287; but in 295 the town recovered its freedom, and it was not till after the Gallic conflagration that, in consequence of a violent war of thirteen years (365-377), the Romans gained a decided superiority in the Antiate and Pomptine territory. Satricum, not far from Antium, was occupied with a Latin colony in 369, and not long afterwards probably Antium itself as well as Tarracina.(13) The Pomptine territory was secured by the founding of the fortress Setia (372, strengthened in 375), and was distributed into farm-allotments and burgess-districts in the year 371 and following years. After this date the Volscians still perhaps rose in revolt, but they waged no further wars against Rome.

Crises within the Romano-Latin League

But the more decided the successes that the league of Romans, Latins, and Hernici achieved against the Etruscans, Aequi, Volsci, and Rutuli, the more that league became liable to disunion. The reason lay partly in the increase of the hegemonic power of Rome, of which we have already spoken as necessarily springing out of the existing circumstances, but which nevertheless was felt as a heavy burden in Latium; partly in particular acts of odious injustice perpetrated by the leading community. Of this nature was especially the infamous sentence of arbitration between the Aricini and the Rutuli in Ardea in 308, in which the Romans, called in to be arbiters regarding a border territory in dispute between the two communities, took it to themselves; and when this decision occasioned in Ardea internal dissensions in which the people wished to join the Volsci, while the nobility adhered to Rome, these dissensions were still more disgracefully employed as a pretext for the—already mentioned—sending of Roman colonists into the wealthy city, amongst whom the lands of the adherents of the party opposed to Rome were distributed (312). The main cause however of the internal breaking up of the league was the very subjugation of the common foe; forbearance ceased on one side, devotedness ceased on the other, from the time when they thought that they had no longer need of each other. The open breach between the Latins and Hernici on the one hand and the Romans on the other was more immediately occasioned partly by the capture of Rome by the Celts and the momentary weakness which it produced, partly by the definitive occupation and distribution of the Pomptine territory. The former allies soon stood opposed in the field. Already Latin volunteers in great numbers had taken part in the last despairing struggle of the Antiates: now the most famous of the Latin cities, Lanuvium (371), Praeneste (372-374, 400), Tusculum (373), Tibur (394, 400), and even several of the fortresses established in the Volscian land by the Romano-Latin league, such as Velitrae and Circeii, had to be subdued

by force of arms, and the Tiburtines were not afraid even to make common cause against Rome with the once more advancing hordes of the Gauls. No concerted revolt however took place, and Rome mastered the individual towns without much trouble.

Tusculum was even compelled (in 373) to give up its political independence, and to enter into the burgess-union of Rome as a subject community (-civitas sine suffragio-) so that the town retained its walls and an—although limited—self-administration, including magistrates and a burgess-assembly of its own, whereas its burgesses as Romans lacked the right of electing or being elected—the first instance of a whole burgess-body being incorporated as a dependent community with the Roman commonwealth.

Renewal of the Treaties of Alliance

The struggle with the Hernici was more severe (392-396); the first consular commander-in-chief belonging to the plebs, Lucius Genucius, fell in it; but here too the Romans were victorious. The crisis terminated with the renewal of the treaties between Rome and the Latin and Hernican confederacies in 396. The precise contents of these treaties are not known, but it is evident that both confederacies submitted once more, and probably on harder terms, to the Roman hegemony. The institution which took place in the same year of two new tribes in the Pomptine territory shows clearly the mighty advances made by the Roman power.

Closing of the Latin Confederation

In manifest connection with this crisis in the relations between Rome and Latium stands the closing of the Latin confederation,(14) which took place about the year 370, although we cannot precisely determine whether it was the effect or, as is more probable, the cause of the revolt of Latium against

Rome which we have just described. As the law had hitherto stood, every sovereign city founded by Rome and Latium took its place among the communes entitled to participate in the federal festival and federal diet, whereas every community incorporated with another city and thereby politically annihilated was erased from the ranks of the members of the league. At the same time, however, according to Latin use and wont the number once fixed of thirty confederate communities was so adhered to, that of the participating cities never more and never less than thirty were entitled to vote, and a number of the communities that were of later admission, or were disqualified for their slight importance or for the crimes they had committed, were without the right of voting. In this way the confederacy was constituted about 370 as follows. Of old Latin townships there were—besides some which have now fallen into oblivion, or whose sites are unknown—still autonomous and entitled to vote, Nomentum, between the Tiber and the Anio; Tibur, Gabii, Scaptia, Labici,(15) Pedom, and Praeneste, between the Anio and the Alban range; Corbio, Tusculum, Bovillae, Aricia, Corioli, and Lanuvium on the Alban range; Cora in the Volscian mountains, and lastly, Laurentum in the plain along the coast. To these fell to be added the colonies instituted by Rome and the Latin league; Ardea in the former territory of the Rutuli, and Satricum, Velitrae, Norba, Signia, Setia and Circeii in that of the Volsci. Besides, seventeen other townships, whose names are not known with certainty, had the privilege of participating in the Latin festival without the right of voting. On this footing—of forty-seven townships entitled to participate and thirty entitled to vote—the Latin confederacy continued henceforward unalterably fixed. The Latin communities founded subsequently, such as Sutrium, Nepete,(16) Antium, Tarracina,(17) and Gales, were not admitted into the confederacy, nor were the Latin communities subsequently divested of their autonomy, such as Tusculum and Lanuvium, erased from the list.

Fixing of the Limits of Latium

With this closing of the confederacy was connected the geographical settlement of the limits of Latium. So long as the Latin confederacy continued open, the bounds of Latium had advanced with the establishment of new federal cities: but as the later Latin colonies had no share in the Alban festival, they were not regarded geographically as part of Latium. For this reason doubtless Ardea and Circeii were reckoned as belonging to Latium, but not Sutrium or Tarracina.

Isolation of the Later Latin Cities as Respected Private Rights

But not only were the places on which Latin privileges were bestowed after 370 kept aloof from the federal association; they were isolated also from one another as respected private rights. While each of them was allowed to have reciprocity of commercial dealings and probably also of marriage (-*commercium et conubium*-) with Rome, no such reciprocity was permitted with the other Latin communities. The burgess of Satrium, for example, might possess in full property a piece of ground in Rome, but not in Praeneste; and might have legitimate children with a Roman, but not with a Tiburtine, wife.(18)

Prevention of Special Leagues

If hitherto considerable freedom of movement had been allowed within the confederacy, and for example the six old Latin communities, Aricia, Tusculum, Tibur, Lanuvium, Cora, and Laurentum, and the two new Latin, Ardea and Suessa Pometia, had been permitted to found in common a shrine for the Aricine Diana; it is doubtless not the mere result of accident that we find no further instance in later times of similar separate confederations fraught with danger to the hegemony of Rome.

Revision of the Municipal Constitutions. Police Judges

We may likewise assign to this epoch the further remodelling which the Latin municipal constitutions underwent, and their complete assimilation to the constitution of Rome. If in after times two aediles, intrusted with the police-supervision of markets and highways and the administration of justice in connection therewith, make their appearance side by side with the two praetors as necessary elements of the Latin magistracy, the institution of these urban police functionaries, which evidently took place at the same time and at the instigation of the leading power in all the federal communities, certainly cannot have preceded the establishment of the curule aedileship in Rome, which occurred in 387; probably it took place about that very time. Beyond doubt this arrangement was only one of a series of measures curtailing the liberties and modifying the organization of the federal communities in the interest of aristocratic policy.

Domination of the Romans; Exasperation of the Latins— Collision between the Romans and the Samnites

After the fall of Veii and the conquest of the Pomptine territory, Rome evidently felt herself powerful enough to tighten the reins of her hegemony and to reduce the whole of the Latin cities to a position so dependent that they became in fact completely subject. At this period (406) the Carthaginians, in a commercial treaty concluded with Rome, bound themselves to inflict no injury on the Latins who were subject to Rome, viz. the maritime towns of Ardea, Antium, Circeii, and Tarracina; if, however, any one of the Latin towns should fall away from the Roman alliance, the Phoenicians were to be allowed to attack it, but in the event of conquering it they were bound not to raze it, but to hand it over to the Romans. This plainly shows by what chains the Roman community bound to itself the towns protected by it and how much a town, which dared to withdraw from the native protectorate, sacrificed or risked by such a course.

It is true that even now the Latin confederacy at least—if not also the Hernican—retained its formal title to a third of the gains of war, and doubtless some other remnants of the former equality of rights; but what was palpably lost was important enough to explain the exasperation which at this period prevailed among the Latins against Rome. Not only did numerous Latin volunteers fight under foreign standards against the community at their head, wherever they found armies in the field against Rome; but in 405 even the Latin federal assembly resolved to refuse to the Romans its contingent. To all appearance a renewed rising of the whole Latin confederacy might be anticipated at no distant date; and at that very moment a collision was imminent with another Italian nation, which was able to encounter on equal terms the united strength of the Latin stock. After the overthrow of the northern Volscians no considerable people in the first instance opposed the Romans in the south; their legions unchecked approached the Liris. As early as 397 they had contended; successfully with the Privernates; and in 409 occupied Sora on the upper Liris. Thus the Roman armies had reached the Samnite frontier; and the friendly alliance, which the two bravest and most powerful of the Italian nations concluded with each other in 400, was the sure token of an approaching struggle for the supremacy of Italy—a struggle which threatened to become interwoven with the crisis within the Latin nation.

Conquests of the Samnites in the South of Italy

The Samnite nation, which, at the time of the expulsion of the Tarquins from Rome, had doubtless already been for a considerable period in possession of the hill-country which rises between the Apulian and Campanian plains and commands them both, had hitherto found its further advance impeded on the one side by the Daunians —the power and prosperity of Arpi fall within this period—on the other by the Greeks and Etruscans. But the fall of the Etruscan power towards the end of the third,

and the decline of the Greek colonies in the course of the fourth century, made room for them towards the west and south; and now one Samnite host after another marched down to, and even moved across, the south Italian seas. They first made their appearance in the plain adjoining the bay, with which the name of the Campanians has been associated from the beginning of the fourth century; the Etruscans there were suppressed, and the Greeks were confined within narrower bounds; Capua was wrested from the former (330), Cumae from the latter (334). About the same time, perhaps even earlier, the Lucanians appeared in Magna Graecia: at the beginning of the fourth century they were involved in conflict with the people of Terina and Thurii; and a considerable time before 364 they had established themselves in the Greek Laus. About this period their levy amounted to 30,000 infantry and 4000 cavalry. Towards the end of the fourth century mention first occurs of the separate confederacy of the Bruttii,(19) who had detached themselves from the Lucanians—not, like the other Sabellian stocks, as a colony, but through a quarrel—and had become mixed up with many foreign elements. The Greeks of Lower Italy tried to resist the pressure of the barbarians; the league of the Achaean cities was reconstructed in 361; and it was determined that, if any of the allied towns should be assailed by the Lucanians, all should furnish contingents, and that the leaders of contingents which failed to appear should suffer the punishment of death. But even the union of Magna Graecia no longer availed; for the ruler of Syracuse, Dionysius the Elder, made common cause with the Italians against his countrymen. While Dionysius wrested from the fleets of Magna Graecia the mastery of the Italian seas, one Greek city after another was occupied or annihilated by the Italians. In an incredibly short time the circle of flourishing cities was destroyed or laid desolate. Only a few Greek settlements, such as Neapolis, succeeded with difficulty, and more by means of treaties than by force of arms, in preserving at least their existence and their nationality. Tarentum alone remained thoroughly independent and

powerful, maintaining its ground in consequence of its more remote position and its preparation for war—the result of its constant conflicts with the Messapians. Even that city, however, had constantly to fight for its existence with the Lucanians, and was compelled to seek for alliances and mercenaries in the mother-country of Greece.

About the period when Veii and the Pomptine plain came into the hands of Rome, the Samnite hordes were already in possession of all Lower Italy, with the exception of a few unconnected Greek colonies, and of the Apulo-Messapian coast. The Greek Periplus, composed about 418, sets down the Samnites proper with their "five tongues" as reaching from the one sea to the other; and specifies the Campanians as adjoining them on the Tyrrhene sea to the north, and the Lucanians to the south, amongst whom in this instance, as often, the Bruttii are included, and who already had the whole coast apportioned among them from Paestum on the Tyrrhene, to Thurii on the Ionic sea. In fact to one who compares the achievements of the two great nations of Italy, the Latins and the Samnites, before they came into contact, the career of conquest on the part of the latter appears far wider and more splendid than that of the former. But the character of their conquests was essentially different. From the fixed urban centre which Latium possessed in Rome the dominion of the Latin stock spread slowly on all sides, and lay within limits comparatively narrow; but it planted its foot firmly at every step, partly by founding fortified towns of the Roman type with the rights of dependent allies, partly by Romanizing the territory which it conquered. It was otherwise with Samnium. There was in its case no single leading community and therefore no policy of conquest. While the conquest of the Veientine and Pomptine territories was for Rome a real enlargement of power, Samnium was weakened rather than strengthened by the rise of the Campanian cities and of the Lucanian and Bruttian confederacies; for every swarm, which had sought and found new settlements, thenceforward pursued a path of its own.

Relations between the Samnites and the Greeks

The Samnite tribes filled a disproportionately large space, while yet they showed no disposition to make it thoroughly their own. The larger Greek cities, Tarentum, Thurii, Croton, Metapontum, Heraclea, Rhegium, and Neapolis, although weakened and often dependent, continued to exist; and the Hellenes were tolerated even in the open country and in the smaller towns, so that Cumae for instance, Posidonia, Laus, and Hipponium, still remained—as the *Periplus* already mentioned and coins show—Greek cities even under Samnite rule. Mixed populations thus arose; the bi-lingual Bruttii, in particular, included Hellenic as well as Samnite elements and even perhaps remains of the ancient autochthones; in Lucania and Campania also similar mixtures must to a lesser extent have taken place.

Campanian Hellenism

The Samnite nation, moreover, could not resist the dangerous charm of Hellenic culture; least of all in Campania, where Neapolis early entered into friendly intercourse with the immigrants, and where the sky itself humanized the barbarians. Nola, Nuceria, and Teanum, although having a purely Samnite population, adopted Greek manners and a Greek civic constitution; in fact the indigenous cantonal form of constitution could not possibly subsist under these altered circumstances. The Samnite cities of Campania began to coin money, in part with Greek inscriptions; Capua became by its commerce and agriculture the second city in Italy in point of size—the first in point of wealth and luxury. The deep demoralization, in which, according to the accounts of the ancients, that city surpassed all others in Italy, is especially reflected in the mercenary recruiting and in the gladiatorial sports, both of which pre-eminently flourished in Capua. Nowhere did recruiting officers find so numerous a concourse as in this metropolis of demoralized civilization; while Capua knew not how to save

itself from the attacks of the aggressive Samnites, the warlike Campanian youth flocked forth in crowds under self-elected -condottteri-, especially to Sicily. How deeply these soldiers of fortune influenced by their enterprises the destinies of Italy, we shall have afterwards to show; they form as characteristic a feature of Campanian life as the gladiatorial sports which likewise, if they did not originate, were at any rate carried to perfection in Capua. There sets of gladiators made their appearance even during banquets; and their number was proportioned to the rank of the guests invited. This degeneracy of the most important Samnite city—a degeneracy which beyond doubt was closely connected with the Etruscan habits that lingered there—must have been fatal for the nation at large; although the Campanian nobility knew how to combine chivalrous valour and high mental culture with the deepest moral corruption, it could never become to its nation what the Roman nobility was to the Latin. Hellenic influence had a similar, though less powerful, effect on the Lucanians and Bruttians as on the Campanians. The objects discovered in the tombs throughout all these regions show how Greek art was cherished there in barbaric luxuriance; the rich ornaments of gold and amber and the magnificent painted pottery, which are now disinterred from the abodes of the dead, enable us to conjecture how extensive had been their departure from the ancient manners of their fathers. Other indications are preserved in their writing. The old national writing which they had brought with them from the north was abandoned by the Lucanians and Bruttians, and exchanged for Greek; while in Campania the national alphabet, and perhaps also the language, developed itself under the influence of the Greek model into greater clearness and delicacy. We meet even with isolated traces of the influence of Greek philosophy.

The Samnite Confederacy

The Samnite land, properly so called, alone remained unaffected by these innovations, which, beautiful and natural as they may to some extent have been, powerfully contributed to relax still more the bond of national unity which even from the first was loose. Through the influence of Hellenic habits a deep schism took place in the Samnite stock. The civilized "Philhellenes" of Campania were accustomed to tremble like the Hellenes themselves before the ruder tribes of the mountains, who were continually penetrating into Campania and disturbing the degenerate earlier settlers. Rome was a compact state, having the strength of all Latium at its disposal; its subjects might murmur, but they obeyed. The Samnite stock was dispersed and divided; and, while the confederacy in Samnium proper had preserved unimpaired the manners and valour of their ancestors, they were on that very account completely at variance with the other Samnite tribes and towns.

Submission of Capua to Rome—

Rome and Samnium Come to Terms—

Revolt of the Latins and Campanians against Rome—

Victory of the Romans—

Dissolution of the Latin League—

Colonization of the Land of the Volsci

In fact, it was this variance between the Samnites of the plain and the Samnites of the mountains that led the Romans over the Liris. The Sidicini in Teanum, and the Campanians in Capua, sought aid from the Romans (411) against their own countrymen, who in swarms ever renewed ravaged their territory and threatened to establish themselves there. When the desired alliance was refused, the Campanian envoys made offer of the submission of their country to the supremacy of Rome: and the Romans were unable to resist the bait. Roman envoys were sent to the Samnites to inform them of the new acquisition, and to summon them to respect the

territory of the friendly power. The further course of events can no longer be ascertained in detail;(20) we discover only that—whether after a campaign, or without the intervention of a war—Rome and Samnium came to an agreement, by which Capua was left at the disposal of the Romans, Teanum in the hands of the Samnites, and the upper Liris in those of the Volscians.

The consent of the Samnites to treat is explained by the energetic exertions made about this very period by the Tarentines to get quit of their Sabellian neighbours. But the Romans also had good reason for coming to terms as quickly as possible with the Samnites; for the impending transition of the region bordering on the south of Latium into the possession of the Romans converted the ferment that had long existed among the Latins into open insurrection. All the original Latin towns, even the Tusculans who had been received into the burgess-union of Rome, took up arms against Rome, with the single exception of the Laurentes, whereas of the colonies founded beyond the bounds of Latium only the old Volscian towns Velitrae, Antium, and Tarracina adhered to the revolt. We can readily understand how the Capuans, notwithstanding their very recent and voluntarily offered submission to the Romans, should readily embrace the first opportunity of again ridding themselves of the Roman rule and, in spite of the opposition of the optimate party that adhered to the treaty with Rome, should make common cause with the Latin confederacy, whereas the still independent Volscian towns, such as Fundi and Formiae, and the Hernici abstained like the Campanian aristocracy from taking part in this revolt. The position of the Romans was critical; the legions which had crossed the Liris and occupied Campania were cut off by the revolt of the Latins and Volsci from their home, and a victory alone could save them. The decisive battle was fought near Trifanum (between Minturnae, Suessa, and Sinuessa) in 414; the consul Titus Manlius Imperiosus Torquatus achieved a complete victory over the united Latins and Campanians. In the two following years the

individual towns, so far as they still offered resistance, were reduced by capitulation or assault, and the whole country was brought into subjection. The effect of the victory was the dissolution of the Latin league. It was transformed from an independent political federation into a mere association for the purpose of a religious festival; the ancient stipulated rights of the confederacy as to a maximum for the levy of troops and a share of the gains of war perished as such along with it, and assumed, where they were recognized in future, the character of acts of grace. Instead of the one treaty between Rome on the one hand and the Latin confederacy on the other, there came at best perpetual alliances between Rome and the several confederate towns. To this footing of treaty there were admitted of the old-Latin places, besides Laurentum, also Tibur and Praeneste, which however were compelled to cede portions of their territory to Rome. Like terms were obtained by the communities of Latin rights founded outside of Latium, so far as they had not taken part in the war. The principle of isolating the communities from each other, which had already been established in regard to the places founded after 370,(21) was thus extended to the whole Latin nation. In other respects the several places retained their former privileges and their autonomy. The other old-Latin communities as well as the colonies that had revolted lost—all of them—independence and entered in one form or another into the Roman burgess-union. The two important coast towns Antium (416) and Tarracina (425) were, after the model of Ostia, occupied with Roman full-burgesses and restricted to a communal independence confined within narrow limits, while the previous burgesses were deprived in great part of their landed property in favour of the Roman colonists and, so far as they retained it, likewise adopted into the full burgess-union. Lanuvium, Aricia, Momentum, Pedum became Roman burgess-communities after the model of Tusculum.(22) The walls of Velitrae were demolished, its senate was ejected -en masse- and deported to the interior of Roman Etruria, and the town was probably constituted a

dependent community with Caerite rights.(23) Of the land acquired a portion—the estates, for instance, of the senators of Velitrae—was distributed to Roman burgesses: with these special assignments was connected the erection of two new tribes in 422. The deep sense which prevailed in Rome of the enormous importance of the result achieved is attested by the honorary column, which was erected in the Roman Forum to the victorious dictator of 416, Gaius Maenius, and by the decoration of the orators' platform in the same place with the beaks taken from the galleys of Antium that were found unserviceable.

Complete Submission of the Volscian and Campanian Provinces

In like manner the dominion of Rome was established and confirmed in the south Volscian and Campanian territories. Fundi, Formiae, Capua, Cumae, and a number of smaller towns became dependent Roman communities with self-administration. To secure the pre-eminently important city of Capua, the breach between the nobility and commons was artfully widened, the communal constitution was revised in the Roman interest, and the administration of the town was controlled by Roman officials annually sent to Campania. The same treatment was measured out some years after to the Volscian Privernum, whose citizens, supported by Vitruvius Vaccus a bold partisan belonging to Fundi, had the honour of fighting the last battle for the freedom of this region; the struggle ended with the storming of the town (425) and the execution of Vaccus in a Roman prison. In order to rear a population devoted to Rome in these regions, they distributed, out of the lands won in war particularly in the Privernate and Falernian territories, so numerous allotments to Roman burgesses, that a few years later (436) they were able to institute there also two new tribes. The establishment of two fortresses as colonies with Latin rights finally secured the newly won land. These were Cales (420) in the middle of the Campanian plain, whence the movements of Teanum and

Capua could be observed, and Fregellae (426), which commanded the passage of the Liris. Both colonies were unusually strong, and rapidly became flourishing, notwithstanding the obstacles which the Sidicines interposed to the founding of Cales and the Samnites to that of Fregellae. A Roman garrison was also despatched to Sora, a step of which the Samnites, to whom this district had been left by the treaty, complained with reason, but in vain. Rome pursued her purpose with undeviating steadfastness, and displayed her energetic and far-reaching policy—more even than on the battlefield—in the securing of the territory which she gained by enveloping it, politically and militarily, in a net whose meshes could not be broken.

Inaction of the Samnites

As a matter of course, the Samnites could not behold the threatening progress of the Romans with satisfaction, and they probably put obstacles in its way; nevertheless they neglected to intercept the new career of conquest, while there was still perhaps time to do so, with that energy which the circumstances required. They appear indeed in accordance with their treaty with Rome to have occupied and strongly garrisoned Teanum; for while in earlier times that city sought help against Samnium from Capua and Rome, in the later struggles it appears as the bulwark of the Samnite power on the west. They spread, conquering and destroying, on the upper Liris, but they neglected to establish themselves permanently in that quarter. They destroyed the Volscian town Fregellae—by which they simply facilitated the institution of the Roman colony there which we have just mentioned — and they so terrified two other Volscian towns, Fabrateria (Ceccano) and Luca (site unknown), that these, following the example of Capua, surrendered themselves to the Romans (424). The Samnite confederacy allowed the Roman conquest of Campania to be completed before they in earnest opposed it; and the reason for their doing so is to be sought partly in the contemporary hostilities between the Samnite nation and the Italian

Hellenes, but principally in the remiss and distracted policy which the confederacy pursued.

Notes for Book II Chapter V

1. I. VII. Relation of Rome to Latium

2. The original equality of the two armies is evident from Liv. i. 52; viii. 8, 14, and Dionys. viii, 15; but most clearly from Polyb. vi. 26.

3. Dionysius (viii. 15) expressly states, that in the later federal treaties between Rome and Latium the Latin communities were interdicted from calling out their contingents of their own motion and sending them into the field alone.

4. These Latin staff-officers were the twelve -*praefecti sociorum*-, who subsequently, when the old phalanx had been resolved into the later legions and -*alae*-, had the charge of the two -*alae*- of the federal contingents, six to each -*ala*-, just as the twelve war-tribunes of the Roman army had charge of the two legions, six to each legion. Polybius (vi. 26, 5) states that the consul nominated the former, as he originally nominated the latter. Now, as according to the ancient maxim of law, that every person under obligation of service might become an officer (p. 106), it was legally allowable for the general to appoint a Latin as leader of a Roman, as well as conversely a Roman as leader of a Latin, legion, this led to the practical result that the -*tribuni militum*- were wholly, and the -*praefecti sociorum*- at least ordinarily, Romans.

5. These were the -*decuriones turmarum*- and -*praefecti cohortium*- (Polyb. vi. 21, 5; Liv. xxv. 14; Sallust. Jug. 69, et al.) Of course, as the Roman consuls were in law and ordinarily also in fact commanders-in-chief, the presidents of the community in the dependent towns also were perhaps throughout, or at least very frequently, placed at the head of the community-contingents (Liv. xxiii. 19; Orelli, Inscr. 7022). Indeed, the usual name given to the Latin magistrates (-*praetores*-) indicates that they were officers.

6. Such a —*metoikos*— was not like an actual burgess assigned to a specific voting district once for all, but before each particular vote the district in which the —*metoeci*— were upon that occasion to vote was fixed by lot. In reality this probably amounted to the concession to the Latins of one vote in the Roman -*comitia tributa*-. As a place in some tribe was a preliminary condition of the ordinary centuriate suffrage, if the —*metoeci*— shared in the voting in the assembly of the centuries-which we do not know-a similar allotment must have been fixed for the latter. In the curies they must have taken part like the plebeians.

7. II. I. Abolition of the Life-Presidency of the Community

8. Ordinarily, as is well known, the Latin communities were presided over by two praetors. Besides these there occur in several communities single magistrates, who in that case bear the title of dictator; as in Alba (Orelli-Henzen, Inscr. 2293), Tusculum (p. 445, note 2), Lanuvium (Cicero, pro Mil. 10, 27; 17, 45; Asconius, in Mil. p. 32, Orell.; Orelli, n. 2786, 5157, 6086); Compitum (Orelli, 3324); Nomentum (Orelli, 208, 6138, 7032; comp. Henzen, Bullett. 1858, p. 169); and Aricia (Orelli, n. 1455). To these falls to be added the similar dictator in the -*civitas sine suffragio*- of Caere (Orelli, n. 3787, 5772; also Garrucci Diss. arch., i. p. 31, although erroneously placed after Sutrium); and further the officials of the like name

at Fidenae (Orelli, 112). All these magistracies or priesthoods that originated in magistracies (the dictator of Caere is to be explained in accordance with Liv. ix. 43: -Anagninis—magistratibus praeter quam sacrorum curatione interdictum-), were annual (Orelli, 208). The statement of Macer likewise and of the annalists who borrowed from him, that Alba was at the time of its fall no longer under kings, but under annual directors (Dionys. v. 74; Plutarch, Romul. 27; Liv. i. 23), is presumably a mere inference from the institution, with which he was acquainted, of the sacerdotal Alban dictatorship which was beyond doubt annual like that of Nomentum; a view in which, moreover, the democratic partisanship of its author may have come into play. It may be a question whether the inference is valid, and whether, even if Alba at the time of its dissolution was under rulers holding office for life, the abolition of monarchy in Rome might not subsequently lead to the conversion of the Alban dictatorship into an annual office.

All these Latin magistracies substantially coincide in reality, as well as specially in name, with the arrangement established in Rome by the revolution in a way which is not adequately explained by the mere similarity of the political circumstances underlying them.

9. II. IV. Etruscans Driven Back from Latium

10. The country of the Aequi embraces not merely the valley of the Anio above Tibur and the territory of the later Latin colonies Carsioli (on the upper part of the Turano) and Alba (on the Fucine lake), but also the district of the later municipium of the Aequiculi, who are nothing but that remnant of the Aequi to which, after the subjugation by the Romans, and after the assignation of the largest portion of the territory to Roman or Latin colonists, municipal independence was left.

11. To all appearance Velitrae, although situated in the plain, was originally Volscian, and so a Latin colony; Cora, on the other hand, on the Volscian mountains, was originally Latin.

12. Not long afterwards must have taken place the founding of the -Nemus Dianae- in the forest of Aricia, which, according to Cato's account (p. 12, Jordan), a Tusculan dictator accomplished for the urban communities of old Latium, Tusculum, Aricia, Lanuvium, Laurentum, Cora, and Tibur, and of the two Latin colonies (which therefore stand last) Suessa Pometia and Ardea (-populus Ardeatis Rutulus-). The absence of Praeneste and of the smaller communities of the old Latium shows, as was implied in the nature of the case, that not all the communities of the Latin league at that time took part in the consecration. That it falls before 372 is proved by the emergence of Pometia (II. V. Closing Of The Latin Confederation), and the list quite accords with what can otherwise be ascertained as to the state of the league shortly after the accession of Ardea.

More credit may be given to the traditional statements regarding the years of the foundations than to most of the oldest traditions, seeing that the numbering of the year -ab urbe condita-, common to the Italian cities, has to all appearance preserved, by direct tradition, the year in which the colonies were founded.

13. The two do not appear as Latin colonies in the so-called Cassian list about 372, but they so appear in the Carthaginian treaty of 406; the towns had thus become Latin colonies in the interval.

14. In the list given by Dionysius (v. 61) of the thirty Latin federal cities—the only list which we possess—there are named the Ardeates, Aricini, Bovillani, Bubentani (site unknown), Corni (rather Corani), Carventani (site unknown), Circeienses, Coriolani, Corbintes, Cabani (perhaps the Cabenses on the Alban Mount, Bull, *dell' Inst.* 1861, p. 205), Fortinei (unknown),

Gabini, Laurentes, Lanuvini, Lavinates, Labicani, Nomentani, Norbani, Praenestini, Pedani, Querquetulani (site unknown), Satricani, Scaptini, Setini, Tiburtini, Tusculani, Tellenii (site unknown), Tolerini (site unknown), and Veliterni. The occasional notices of communities entitled to participate, such as of Ardea (Liv. xxxii. x), Laurentum (Liv. xxxvii. 3), Lanuvium (Liv. xli. 16), Bovillae, Gabii, Labici (Cicero, pro Plane. 9, 23) agree with this list. Dionysius gives it on occasion of the declaration of war by Latium against Rome in 256, and it was natural therefore to regard—as Niebuhr did—this list as derived from the well-known renewal of the league in 261. But, as in this list drawn up according to the Latin alphabet the letter -g appears in a position which it certainly had not at the time of the Twelve Tables and scarcely came to occupy before the fifth century (see my *Unteritalische Dial.* p. 33), it must be taken from a much more recent source; and it is by far the simplest hypothesis to recognize it as a list of those places which were afterwards regarded as the ordinary members of the Latin confederacy, and which Dionysius in accordance with his systematizing custom specifies as its original component elements. As was to be expected, the list presents not a single non-Latin community; it simply enumerates places originally Latin or occupied by Latin colonies—no one will lay stress on Corbio and Corioli as exceptions. Now if we compare with this list that of the Latin colonies, there had been founded down to 372 Suessa Pometia, Velitrae, Norba, Signia, Ardea, Circeii (361), Satricum (369), Sutrium (371), Nepete (371), Setia (372). Of the last three founded at nearly the same time the two Etruscan ones may very well date somewhat later than Setia, since in fact the foundation of every town claimed a certain amount of time, and our list cannot be free from minor inaccuracies. If we assume this, then the list contains all the colonies sent out up to the year 372, including the two soon afterwards deleted from the list, Satricum destroyed in 377 and Velitrae divested of Latin rights in 416; there are wanting only Suessa Pometia, beyond doubt as having been destroyed

before 372, and Signia, probably because in the text of Dionysius, who mentions only twenty-nine names, —SIGNINON— has dropped out after —SEITINON—. In entire harmony with this view there are absent from this list all the Latin colonies founded after 372 as well as all places, which like Ostia, Antemnae, Alba, were incorporated with the Roman community before the year 370, whereas those incorporated subsequently, such as Tusculum, Lanuvium, Velitrae, are retained in it.

As regards the list given by Pliny of thirty-two townships extinct in his time which had formerly participated in the Alban festival, after deduction of seven that also occur in Dionysius (for the Cusuetani of Pliny appear to be the Carventani of Dionysius), there remain twenty-five townships, most of them quite unknown, doubtless made up partly of those seventeen non-voting communities—most of which perhaps were just the oldest subsequently disqualified members of the Alban festal league—partly of a number of other decayed or ejected members of the league, to which latter class above all the ancient presiding township of Alba, also named by Pliny, belonged.

15. Livy certainly states (iv. 47) that Labici became a colony in 336. But—apart from the fact that Diodorus (xiii. 6) says nothing of it—Labici cannot have been a burgess-colony, for the town did not lie on the coast and besides it appears subsequently as still in possession of autonomy; nor can it have been a Latin one, for there is not, nor can there be from the nature of these foundations, a single other example of a Latin colony established in the original Latium. Here as elsewhere it is most probable—especially as two -jugera- are named as the portion of land allotted—that a public assignation to the burgesses has been confounded with a colonial assignation (I. XIII. System of Joint Cultivation).

16. II. IV. South Etruria Roman

17. II. V. League with the Hernici

18. This restriction of the ancient full reciprocity of Latin rights first occurs in the renewal of the treaty in 416 (Liv. viii. 14); but as the system of isolation, of which it was an essential part, first began in reference to the Latin colonies settled after 370, and was only generalized in 416, it is proper to mention this alteration here.

19. The name itself is very ancient; in fact it is the most ancient indigenous name for the inhabitants of the present Calabria (Antiochus, Fr. 5. Mull.). The well-known derivation is doubtless an invention.

20. Perhaps no section of the Roman annals has been more disfigured than the narrative of the first Samnite-Latin war, as it stands or stood in Livy, Dionysius, and Appian. It runs somewhat to the following effect. After both consuls had marched into Campania in 411, first the consul Marcus Valerius Corvus gained a severe and bloody victory over the Samnites at Mount Gaurus; then his colleague Aulus Cornelius Cossus gained another, after he had been rescued from annihilation in a narrow pass by the self-devotion of a division led by the military tribune Publius Decius. The third and decisive battle was fought by both consuls at the entrance of the Caudine Pass near Suessula; the Samnites were completely vanquished—forty thousand of their shields were picked up on the field of battle—and they were compelled to make a peace, in which the Romans retained Capua, which had given itself over to their possession, while they left Teanum to the Samnites (413). Congratulations came from all sides, even from Carthage. The Latins, who had refused their contingent and seemed to be arming against Rome, turned their arms not against Rome but against the Paeligni, while the Romans were occupied first with a military conspiracy of the garrison left behind in Campania (412), then with the capture of Privernum (413) and the war against the Antiates. But now a sudden and

singular change occurred in the position of parties. The Latins, who had demanded in vain Roman citizenship and a share in the consulate, rose against Rome in conjunction with the Sidicines, who had vainly offered to submit to the Romans and knew not how to save themselves from the Samnites, and with the Campanians, who were already tired of the Roman rule. Only the Laurentes in Latium and the -equites- of Campania adhered to the Romans, who on their part found support among the Paeligni and Samnites. The Latin army fell upon Samnium; the Romano-Samnite army, after it had marched to the Fucine lake and from thence, avoiding Latium, into Campania, fought the decisive battle against the combined Latins and Campanians at Vesuvius; the consul Titus Manlius Imperiosus, after he had himself restored the wavering discipline of the army by the execution of his own son who had slain a foe in opposition to orders from headquarters, and after his colleague Publius Decius Mus had appeased the gods by sacrificing his life, at length gained the victory by calling up the last reserves. But the war was only terminated by a second battle, in which the consul Manlius engaged the Latins and Campanians near Trifanum; Latium and Capua submitted, and were mulcted in a portion of their territory.

The judicious and candid reader will not fail to observe that this report swarms with all sorts of impossibilities. Such are the statement of the Antiates waging war after the surrender of 377 (Liv. vi. 33); the independent campaign of the Latins against the Paeligni, in distinct contradiction to the stipulations of the treaties between Rome and Latium; the unprecedented march of the Roman army through the Marsian and Samnite territory to Capua, while all Latium was in arms against Rome; to say nothing of the equally confused and sentimental account of the military insurrection of 412, and the story of its forced leader, the lame Titus Quinctius, the Roman Gotz von Berlichingen. Still more suspicious perhaps, are the repetitions. Such is the story of the military tribune Publius Decius modelled on the courageous deed of Marcus Calpurnius Flamma, or

whatever he was called, in the first Punic war; such is the recurrence of the conquest of Privernum by Gaius Plautius in the year 425, which second conquest alone is registered in the triumphal Fasti; such is the self-immolation of Publius Decius, repeated, as is well known, in the case of his son in 459. Throughout this section the whole representation betrays a different period and a different hand from the other more credible accounts of the annals. The narrative is full of detailed pictures of battles; of inwoven anecdotes, such as that of the praetor of Setia, who breaks his neck on the steps of the senate-house because he had been audacious enough to solicit the consulship, and the various anecdotes concocted out of the surname of Titus Manlius; and of prolix and in part suspicious archaeological digressions. In this class we include the history of the legion—of which the notice, most probably apocryphal, in Liv. i. 52, regarding the maniples of Romans and Latins intermingled formed by the second Tarquin, is evidently a second fragment, the erroneous view given of the treaty between Capua and Rome (see my *Rom. Munzwesen*, p. 334, n. 122); the formularies of self-devotion, the Campanian -denarius-, the Laurentine alliance, and the -bina jugera- in the assignation (p. 450, note). Under such circumstances it appears a fact of great weight that Diodorus, who follows other and often older accounts, knows absolutely nothing of any of these events except the last battle at Trifanum; a battle in fact that ill accords with the rest of the narrative, which, in accordance with the rules of poetical justice, ought to have concluded with the death of Decius.

21. II. V. Isolation of the Later Latin Cities as Respected Private Rights

22. II. V. Crises within the Romano-Latin League

23. II. IV. South Etruria Roman

CHAPTER VI

Struggle of the Italians against Rome

Wars between the Sabellians and Tarentines—

Archidamus—

Alexander the Molossian—

While the Romans were fighting on the Liris and Volturnus, other conflicts agitated the south-east of the peninsula. The wealthy merchant-republic of Tarentum, daily exposed to more serious peril from the Lucanian and Messapian bands and justly distrusting its own sword, gained by good words and better coin the help of -condottieri- from the mother-country. The Spartan king, Archidamus, who with a strong band had come to the assistance of his fellow-Dorians, succumbed to the Lucanians on the same day on which Philip conquered at Chaeronea (416); a retribution, in the belief of the pious Greeks, for the share which nineteen years previously he and his people had taken in pillaging the sanctuary of Delphi. His place was taken by an abler commander, Alexander the Molossian, brother of Olympias the mother of Alexander the Great. In addition to the troops which he had brought along with him he united under his banner the contingents of the Greek cities, especially those of the Tarentines and Metapontines; the Poediculi (around Rubi, now Ruvo), who like the Greeks found themselves in danger from the Sabellian nation; and lastly, even the

Lucanian exiles themselves, whose considerable numbers point to the existence of violent internal troubles in that confederacy. Thus he soon found himself superior to the enemy. Consentia (Cosenza), which seems to have been the federal headquarters of the Sabellians settled in Magna Graecia, fell into his hands. In vain the Samnites came to the help of the Lucanians; Alexander defeated their combined forces near Paestum. He subdued the Daunians around Sipontum, and the Messapians in the south-eastern peninsula; he already commanded from sea to sea, and was on the point of arranging with the Romans a joint attack on the Samnites in their native abodes. But successes so unexpected went beyond the desires of the Tarentine merchants, and filled them with alarm. War broke out between them and their captain, who had come amongst them a hired mercenary and now appeared desirous to found a Hellenic empire in the west like his nephew in the east. Alexander had at first the advantage; he wrested Heraclea from the Tarentines, restored Thurii, and seems to have called upon the other Italian Greeks to unite under his protection against the Tarentines, while he at the same time tried to bring about a peace between them and the Sabellian tribes. But his grand projects found only feeble support among the degenerate and desponding Greeks, and the forced change of sides alienated from him his former Lucanian adherents: he fell at Pandosia by the hand of a Lucanian emigrant (422).(1) On his death matters substantially reverted to their old position. The Greek cities found themselves once more isolated and once more left to protect themselves as best they might by treaty or payment of tribute, or even by extraneous aid; Croton for instance repulsed the Bruttii about 430 with the help of the Syracusans. The Samnite tribes acquire renewed ascendancy, and were able, without troubling themselves about the Greeks, once more to direct their eyes towards Campania and Latium.

But there during the brief interval a prodigious change had occurred. The Latin confederacy was broken and scattered, the last resistance of the Volsci

was overcome, the province of Campania, the richest and finest in the peninsula, was in the undisputed and well-secured possession of the Romans, and the second city of Italy was a dependency of Rome. While the Greeks and Samnites were contending with each other, Rome had almost without a contest raised herself to a position of power which no single people in the peninsula possessed the means of shaking, and which threatened to render all of them subject to her yoke. A joint exertion on the part of the peoples who were not severally a match for Rome might perhaps still burst the chains, ere they became fastened completely. But the clearness of perception, the courage, the self-sacrifice required for such a coalition of numerous peoples and cities that had hitherto been for the most part foes or at any rate strangers to each other, were not to be found at all, or were found only when it was already too late.

Coalition of the Italians against Rome

After the fall of the Etruscan power and the weakening of the Greek republics, the Samnite confederacy was beyond doubt, next to Rome, the most considerable power in Italy, and at the same time that which was most closely and immediately endangered by Roman encroachments. To its lot therefore fell the foremost place and the heaviest burden in the struggle for freedom and nationality which the Italians had to wage against Rome. It might reckon upon the assistance of the small Sabellian tribes, the Vestini, Frentani, Marrucini, and other smaller cantons, who dwelt in rustic seclusion amidst their mountains, but were not deaf to the appeal of a kindred stock calling them to take up arms in defence of their common possessions. The assistance of the Campanian Greeks and those of Magna Graecia (especially the Tarentines), and of the powerful Lucanians and Bruttians would have been of greater importance; but the negligence and supineness of the demagogues ruling in Tarentum and the entanglement of that city in the affairs of Sicily, the internal distractions of the Lucanian

confederacy, and above all the deep hostility that had subsisted for centuries between the Greeks of Lower Italy and their Lucanian oppressors, scarcely permitted the hope that Tarentum and Lucania would make common cause with the Samnites. From the Sabines and the Marsi, who were the nearest neighbours of the Romans and had long lived in peaceful relations with Rome, little more could be expected than lukewarm sympathy or neutrality. The Apulians, the ancient and bitter antagonists of the Sabellians, were the natural allies of the Romans. On the other hand it might be expected that the more remote Etruscans would join the league if a first success were gained; and even a revolt in Latium and the land of the Volsci and Hernici was not impossible. But the Samnites—the Aetolians of Italy, in whom national vigour still lived unimpaired—had mainly to rely on their own energies for such perseverance in the unequal struggle as would give the other peoples time for a generous sense of shame, for calm deliberation, and for the mustering of their forces; a single success might then kindle the flames of war and insurrection all around Rome. History cannot but do the noble people the justice of acknowledging that they understood and performed their duty.

Outbreak of War between Samnium and Rome— Pacification of Campania

Differences had already for several years existed between Rome and Samnium in consequence of the continual aggressions in which the Romans indulged on the Liris, and of which the founding of Fregellae in 426 was the latest and most important. But it was the Greeks of Campania that gave occasion to the outbreak of the contest. After Cumae and Capua had become Roman, nothing so naturally suggested itself to the Romans as the subjugation of the Greek city Neapolis, which ruled also over the Greek islands in the bay—the only town not yet reduced to subjection within the field of the Roman power. The Tarentines and Samnites, informed of the

scheme of the Romans to obtain possession of the town, resolved to anticipate them; and while the Tarentines were too remiss perhaps rather than too distant for the execution of this plan, the Samnites actually threw into it a strong garrison. The Romans immediately declared war nominally against the Neapolitans, really against the Samnites (427), and began the siege of Neapolis. After it had lasted a while, the Campanian Greeks became weary of the disturbance of their commerce and of the foreign garrison; and the Romans, whose whole efforts were directed to keep states of the second and third rank by means of separate treaties aloof from the coalition which was about to be formed, hastened, as soon as the Greeks consented to negotiate, to offer them the most favourable terms—full equality of rights and exemption from land service, equal alliance and perpetual peace. Upon these conditions, after the Neapolitans had rid themselves of the garrison by stratagem, a treaty was concluded (428).

The Sabellian towns to the south of the Volturnus, Nola, Nuceria, Herculaneum, and Pompeii, took part with Samnium in the beginning of the war; but their greatly exposed situation and the machinations of the Romans—who endeavoured to bring over to their side the optimate party in these towns by all the levers of artifice and self-interest, and found a powerful support to their endeavours in the precedent of Capua—induced these towns to declare themselves either in favour of Rome or neutral not long after the fall of Neapolis.

Alliance between the Romans and Lucanians

A still more important success befell the Romans in Lucania. There also the people with true instinct was in favour of joining the Samnites; but, as an alliance with the Samnites involved peace with Tarentum and a large portion of the governing lords of Lucania were not disposed to suspend their profitable pillaging expeditions, the Romans succeeded in concluding

an alliance with Lucania—an alliance which was invaluable, because it provided employment for the Tarentines and thus left the whole power of Rome available against Samnium.

War in Samnium—

The Caudine Pass and the Caudine Peace

Thus Samnium stood on all sides unsupported; excepting that some of the eastern mountain districts sent their contingents. In the year 428 the war began within the Samnite land itself: some towns on the Campanian frontier, *Rufrae* (between *Venafrum* and *Teanum*) and *Allifae*, were occupied by the Romans. In the following years the Roman armies penetrated Samnium, fighting and pillaging, as far as the territory of the *Vestini*, and even as far as *Apulia*, where they were received with open arms; everywhere they had very decidedly the advantage. The courage of the Samnites was broken; they sent back the Roman prisoners, and along with them the dead body of the leader of the war party, *Brutulus Papius*, who had anticipated the Roman executioners, when the Samnite national assembly determined to ask the enemy for peace and to procure for themselves more tolerable terms by the surrender of their bravest general. But when the humble, almost suppliant, request was not listened to by the Roman people (432), the Samnites, under their new general *Gavius Pontius*, prepared for the utmost and most desperate resistance. The Roman army, which under the two consuls of the following year (433) *Spurius Postumius* and *Titus Veturius* was encamped near *Calatia* (between *Caserta* and *Maddaloni*), received accounts, confirmed by the affirmation of numerous captives, that the Samnites had closely invested *Luceria*, and that that important town, on which depended the possession of *Apulia*, was in great danger. They broke up in haste. If they wished to arrive in good time, no other route could be taken than through the midst of the enemy's territory—where afterwards, in continuation of the *Appian Way*, the Roman road was

constructed from Capua by way of Beneventum to Apulia. This route led, between the present villages of Arpaja and Montesarchio (Caudium), through a watery meadow, which was wholly enclosed by high and steep wooded hills and was only accessible through deep defiles at the entrance and outlet. Here the Samnites had posted themselves in ambush. The Romans, who had entered the valley unopposed, found its outlet obstructed by abattis and strongly occupied; on marching back they saw that the entrance was similarly closed, while at the same time the crests of the surrounding mountains were crowned by Samnite cohorts. They perceived, when it was too late, that they had suffered themselves to be misled by a stratagem, and that the Samnites awaited them, not at Luceria, but in the fatal pass of Caudium. They fought, but without hope of success and without earnest aim; the Roman army was totally unable to manoeuvre and was completely vanquished without a struggle. The Roman generals offered to capitulate. It is only a foolish rhetoric that represents the Samnite general as shut up to the simple alternatives of disbanding or of slaughtering the Roman army; he could not have done better than accept the offered capitulation and make prisoners of the hostile army—the whole force which for the moment the Roman community could bring into action—with both its commanders-in-chief. In that case the way to Campania and Latium would have stood open; and in the then existing state of feeling, when the Volsci and Hernici and the larger portion of the Latins would have received him with open arms, the political existence of Rome would have been in serious danger. But instead of taking this course and concluding a military convention, Gavius Pontius thought that he could at once terminate the whole quarrel by an equitable peace; whether it was that he shared that foolish longing of the confederates for peace, to which Brutulus Papius had fallen a victim in the previous year, or whether it was that he was unable to prevent the party which was tired of the war from spoiling his unexampled victory. The terms laid down were moderate enough; Rome was to raze the

fortresses which she had constructed in defiance of the treaty—Cales and Fregellae—and to renew her equal alliance with Samnium. After the Roman generals had agreed to these terms and had given six hundred hostages chosen from the cavalry for their faithful execution—besides pledging their own word and that of all their staff-officers on oath to the same effect—the Roman army was dismissed uninjured, but disgraced; for the Samnite army, drunk with victory, could not resist the desire to subject their hated enemies to the disgraceful formality of laying down their arms and passing under the yoke.

But the Roman senate, regardless of the oath of their officers and of the fate of the hostages, cancelled the agreement, and contented themselves with surrendering to the enemy those who had concluded it as personally responsible for its fulfilment. Impartial history can attach little importance to the question whether in so doing the casuistry of Roman advocates and priests kept the letter of the law, or whether the decree of the Roman senate violated it; under a human and political point of view no blame in this matter rests upon the Romans. It was a question of comparative indifference whether, according to the formal state law of the Romans, the general in command was or was not entitled to conclude peace without reserving its ratification by the burgesses. According to the spirit and practice of the constitution it was quite an established principle that in Rome every state-agreement, not purely military, pertained to the province of the civil authorities, and a general who concluded peace without the instructions of the senate and the burgesses exceeded his powers. It was a greater error on the part of the Samnite general to give the Roman generals the choice between saving their army and exceeding their powers, than it was on the part of the latter that they had not the magnanimity absolutely to repel such a suggestion; and it was right and necessary that the Roman senate should reject such an agreement. A great nation does not surrender what it possesses except under the pressure of extreme necessity: all treaties

making concessions are acknowledgments of such a necessity, not moral obligations. If every people justly reckons it a point of honour to tear to pieces by force of arms treaties that are disgraceful, how could honour enjoin a patient adherence to a convention like the Caudine to which an unfortunate general was morally compelled, while the sting of the recent disgrace was keenly felt and the vigour of the nation subsisted unimpaired?

Victory of the Romans

Thus the convention of Caudium did not produce the rest which the enthusiasts for peace in Samnium had foolishly expected from it, but only led to war after war with exasperation aggravated on either side by the opportunity forfeited, by the breach of a solemn engagement, by military honour disgraced, and by comrades that had been abandoned. The Roman officers given up were not received by the Samnites, partly because they were too magnanimous to wreak their vengeance on those unfortunates, partly because they would thereby have admitted the Roman plea that the agreement bound only those who swore to it, not the Roman state. Magnanimously they spared even the hostages whose lives had been forfeited by the rules of war, and preferred to resort at once to arms.

Luceria was occupied by them and Fregellae surprised and taken by assault (434) before the Romans had reorganized their broken army; the passing of the Satricans(2) over to the Samnites shows what they might have accomplished, had they not allowed their advantage to slip through their hands. But Rome was only momentarily paralyzed, not weakened; full of shame and indignation the Romans raised all the men and means they could, and placed the highly experienced Lucius Papirius Cursor, equally distinguished as a soldier and as a general, at the head of the newly formed army. The army divided; the one-half marched by Sabina and the Adriatic coast to appear before Luceria, the other proceeded to the same destination

through Samnium itself, successfully engaging and driving before it the Samnite army. They formed a junction again under the walls of Luceria, the siege of which was prosecuted with the greater zeal, because the Roman equites lay in captivity there; the Apulians, particularly the Arpani, lent the Romans important assistance in the siege, especially by procuring supplies. After the Samnites had given battle for the relief of the town and been defeated, Luceria surrendered to the Romans (435). Papirius enjoyed the double satisfaction of liberating his comrades who had been given up for lost, and of requiting the yoke of Caudium on the Samnite garrison of Luceria. In the next years (435-437) the war was carried on⁽³⁾ not so much in Samnium itself as in the adjoining districts. In the first place the Romans chastised the allies of the Samnites in the Apulian and Frentanian territories, and concluded new conventions with the Teanenses of Apulia and the Canusini. At the same time Satricum was again reduced to subjection and severely punished for its revolt. Then the war turned to Campania, where the Romans conquered the frontier town towards Samnium, Saticula (perhaps S. Agata de' Goti) (438). But now the fortune of war seemed disposed once more to turn against them. The Samnites gained over the Nucernians (438), and soon afterwards the Nolans, to their side; on the upper Liris the Sorani of themselves expelled the Roman garrison (439); the Ausonians were preparing to rise, and threatened the important Cales; even in Capua the party opposed to Rome was vigorously stirring. A Samnite army advanced into Campania and encamped before the city, in the hope that its vicinity might place the national party in the ascendant (440). But Sora was immediately attacked by the Romans and recaptured after the defeat of a Samnite relieving force (440). The movements among the Ausonians were suppressed with cruel rigour ere the insurrection fairly broke out, and at the same time a special dictator was nominated to institute and decide political processes against the leaders of the Samnite party in Capua, so that the most illustrious of them died a voluntary death to escape

from the Roman executioner (440). The Samnite army before Capua was defeated and compelled to retreat from Campania; the Romans, following close at the heels of the enemy, crossed the Matese and encamped in the winter of 440 before Bovianum, the capital of Samnium. Nola was abandoned by its allies; and the Romans had the sagacity to detach the town for ever from the Samnite party by a very favourable convention, similar to that concluded with Neapolis (441). Fregellae, which after the catastrophe of Caudium had fallen into the hands of the party adverse to Rome and had been their chief stronghold in the district on the Liris, finally fell in the eighth year after its occupation by the Samnites (441); two hundred of the citizens, the chief members of the national party, were conveyed to Rome, and there openly beheaded in the Forum as an example and a warning to the patriots who were everywhere bestirring themselves.

New Fortresses in Apulia and Campania

Apulia and Campania were thus in the hands of the Romans. In order finally to secure and permanently to command the conquered territory, several new fortresses were founded in it during the years 440-442: Luceria in Apulia, to which on account of its isolated and exposed situation half a legion was sent as a permanent garrison; Pontiae (the Ponza islands) for the securing of the Campanian waters; Saticula on the Campano-Samnite frontier, as a bulwark against Samnium; and lastly Interamna (near Monte Cassino) and Suessa Aurunca (Sessa) on the road from Rome to Capua. Garrisons moreover were sent to Caiatia (Cajazzo), Sora, and other stations of military importance. The great military road from Rome to Capua, which with the necessary embankment for it across the Pomptine marshes the censor Appius Claudius caused to be constructed in 442, completed the securing of Campania. The designs of the Romans were more and more fully developed; their object was the subjugation of Italy, which was enveloped more closely from year to year in a network of Roman fortresses

and roads. The Samnites were already on both sides surrounded by the Roman meshes; already the line from Rome to Luceria severed north and south Italy from each other, as the fortresses of Norba and Signia had formerly severed the Volsci and Aequi; and Rome now rested on the Arpani, as it formerly rested on the Hernici. The Italians could not but see that the freedom of all of them was gone if Samnium succumbed, and that it was high time at length to hasten with all their might to the help of the brave mountain people which had now for fifteen years singly sustained the unequal struggle with the Romans.

Intervention of the Tarentines

The most natural allies of the Samnites would have been the Tarentines; but it was part of that fatality that hung over Samnium and over Italy in general, that at this moment so fraught with the destinies of the future the decision lay in the hands of these Athenians of Italy. Since the constitution of Tarentum, which was originally after the old Doric fashion strictly aristocratic, had become changed to a complete democracy, a life of singular activity had sprung up in that city, which was inhabited chiefly by mariners, fishermen, and artisans. The sentiments and conduct of the population, more wealthy than noble, discarded all earnestness amidst the giddy bustle and witty brilliance of their daily life, and oscillated between the grandest boldness of enterprise and elevation of spirit on the one hand, and a shameful frivolity and childish whim on the other. It may not be out of place, in connection with a crisis wherein the existence or destruction of nations of noble gifts and ancient renown was at stake, to mention that Plato, who came to Tarentum some sixty years before this time, according to his own statement saw the whole city drunk at the Dionysia, and that the burlesque farce, or "merry tragedy" as it was called, was created in Tarentum about the very time of the great Samnite war. This licentious life and buffoon poetry of the Tarentine fashionables and literati had a fitting

counterpart in the inconstant, arrogant, and short-sighted policy of the Tarentine demagogues, who regularly meddled in matters with which they had nothing to do, and kept aloof where their immediate interests called for action. After the Caudine catastrophe, when the Romans and Samnites stood opposed in Apulia, they had sent envoys thither to enjoin both parties to lay down their arms (434). This diplomatic intervention in the decisive struggle of the Italians could not rationally have any other meaning than that of an announcement that Tarentum had at length resolved to abandon the neutrality which it had hitherto maintained. It had in fact sufficient reason to do so. It was no doubt a difficult and dangerous thing for Tarentum to be entangled in such a war; for the democratic development of the state had directed its energies entirely to the fleet, and while that fleet, resting upon the strong commercial marine of Tarentum, held the first rank among the maritime powers of Magna Graecia, the land force, on which they were in the present case dependent, consisted mainly of hired soldiers and was sadly disorganized. Under these circumstances it was no light undertaking for the Tarentine republic to take part in the conflict between Rome and Samnium, even apart from the—at least troublesome—feud in which Roman policy had contrived to involve them with the Lucanians. But these obstacles might be surmounted by an energetic will; and both the contending parties construed the summons of the Tarentine envoys that they should desist from the strife as meant in earnest. The Samnites, as the weaker, showed themselves ready to comply with it; the Romans replied by hoisting the signal for battle. Reason and honour dictated to the Tarentines the propriety of now following up the haughty injunction of their envoys by a declaration of war against Rome; but in Tarentum neither reason nor honour characterized the government, and they had simply been trifling in a very childish fashion with very serious matters. No declaration of war against Rome took place; in its stead they preferred to support the oligarchical party in the Sicilian towns against Agathocles of Syracuse who

had at a former period been in the Tarentine service and had been dismissed in disgrace, and following the example of Sparta, they sent a fleet to the island—a fleet which would have rendered better service in the Campanian seas (440).

Accession of the Etruscans to the Coalition— Victory at the Vadimonian Lake

The peoples of northern and central Italy, who seem to have been roused especially by the establishment of the fortress of Luceria, acted with more energy. The Etruscans first drew the sword (443), the armistice of 403 having already expired some years before. The Roman frontier-fortress of Sutrium had to sustain a two years' siege, and in the vehement conflicts which took place under its walls the Romans as a rule were worsted, till the consul of the year 444 Quintus Fabius Rullianus, a leader who had gained experience in the Samnite wars, not only restored the ascendancy of the Roman arms in Roman Etruria, but boldly penetrated into the land of the Etruscans proper, which had hitherto from diversity of language and scanty means of communication remained almost unknown to the Romans. His march through the Ciminian Forest which no Roman army had yet traversed, and his pillaging of a rich region that had long been spared the horrors of war, raised all Etruria in arms. The Roman government, which had seriously disapproved the rash expedition and had when too late forbidden the daring leader from crossing the frontier, collected in the greatest haste new legions, in order to meet the expected onslaught of the whole Etruscan power. But a seasonable and decisive victory of Rullianus, the battle at the Vadimonian lake which long lived in the memory of the people, converted an imprudent enterprise into a celebrated feat of heroism and broke the resistance of the Etruscans. Unlike the Samnites who had now for eighteen years maintained the unequal struggle, three of the most powerful Etruscan towns—Perusia, Cortona, and Arretium—consented

after the first defeat to a separate peace for three hundred months (444), and after the Romans had once more beaten the other Etruscans near Perugia in the following year, the Tarquinienses also agreed to a peace of four hundred months (446); whereupon the other cities desisted from the contest, and a temporary cessation of arms took place throughout Etruria.

Last Campaigns in Samnium

While these events were passing, the war had not been suspended in Samnium. The campaign of 443 was confined like the preceding to the besieging and storming of several strongholds of the Samnites; but in the next year the war took a more vigorous turn. The dangerous position of Rullianus in Etruria, and the reports which spread as to the annihilation of the Roman army in the north, encouraged the Samnites to new exertions; the Roman consul Gaius Marcius Rutilus was vanquished by them and severely wounded in person. But the sudden change in the aspect of matters in Etruria destroyed their newly kindled hopes. Lucius Papirius Cursor again appeared at the head of the Roman troops sent against the Samnites, and again remained the victor in a great and decisive battle (445), in which the confederates had put forth their last energies. The flower of their army—the wearers of the striped tunics and golden shields, and the wearers of the white tunics and silver shields—were there extirpated, and their splendid equipments thenceforth on festal occasions decorated the rows of shops along the Roman Forum. Their distress was ever increasing; the struggle was becoming ever more hopeless. In the following year (446) the Etruscans laid down their arms; and in the same year the last town of Campania which still adhered to the Samnites, Nuceria, simultaneously assailed on the part of the Romans by water and by land, surrendered under favourable conditions. The Samnites found new allies in the Umbrians of northern, and in the Marsi and Paeligni of central, Italy, and numerous volunteers even from the Hernici joined their ranks; but movements which

might have decidedly turned the scale against Rome, had the Etruscans still remained under arms, now simply augmented the results of the Roman victory without seriously adding to its difficulties. The Umbrians, who gave signs of marching on Rome, were intercepted by Rullianus with the army of Samnium on the upper Tiber—a step which the enfeebled Samnites were unable to prevent; and this sufficed to disperse the Umbrian levies. The war once more returned to central Italy. The Paeligni were conquered, as were also the Marsi; and, though the other Sabellian tribes remained nominally foes of Rome, in this quarter Samnium gradually came to stand practically alone. But unexpected assistance came to them from the district of the Tiber. The confederacy of the Hernici, called by the Romans to account for their countrymen found among the Samnite captives, now declared war against Rome (in 448)—more doubtless from despair than from calculation. Some of the more considerable Hernican communities from the first kept aloof from hostilities; but Anagnia, by far the most eminent of the Hernican cities, carried out this declaration of war. In a military point of view the position of the Romans was undoubtedly rendered for the moment highly critical by this unexpected rising in the rear of the army occupied with the siege of the strongholds of Samnium. Once more the fortune of war favoured the Samnites; Sora and Caiatia fell into their hands. But the Anagnines succumbed with unexpected rapidity before troops despatched from Rome, and these troops also gave seasonable relief to the army stationed in Samnium: all in fact was lost. The Samnites sued for peace, but in vain; they could not yet come to terms. The final decision was reserved for the campaign of 449. Two Roman consular armies penetrated—the one, under Tiberius Minucius and after his fall under Marcus Fulvius, from Campania through the mountain passes, the other, under Lucius Postumius, from the Adriatic upwards by the Biferno—into Samnium, there to unite in front of Bovianum the capital; a decisive victory was achieved, the Samnite

general Statius Gellius was taken prisoner, and Bovianum was carried by storm.

Peace with Samnium

The fall of the chief stronghold of the land terminated the twenty-two years' war. The Samnites withdrew their garrisons from Sora and Arpinum, and sent envoys to Rome to sue for peace; the Sabellian tribes, the Marsi, Marrucini, Paeligni, Frentani, Vestini, and Picentes followed their example. The terms granted by Rome were tolerable; cessions of territory were required from some of them, from the Paeligni for instance, but they do not seem to have been of much importance. The equal alliance was renewed between the Sabellian tribes and the Romans (450).

And with Tarentum

Presumably about the same time, and in consequence doubtless of the Samnite peace, peace was also made between Rome and Tarentum. The two cities had not indeed directly opposed each other in the field. The Tarentines had been inactive spectators of the long contest between Rome and Samnium from its beginning to its close, and had only kept up hostilities in league with the Sallentines against the Lucanians who were allies of Rome. In the last years of the Samnite war no doubt they had shown some signs of more energetic action. The position of embarrassment to which the ceaseless attacks of the Lucanians reduced them on the one hand, and on the other hand the feeling ever obtruding itself on them more urgently that the complete subjugation of Samnium would endanger their own independence, induced them, notwithstanding their unpleasant experiences with Alexander, once more to entrust themselves to a -condottiere-. There came at their call the Spartan prince Cleonymus, accompanied by five thousand mercenaries; with whom he united a band equally numerous raised in Italy, as well as the contingents of the Messapians and of the

smaller Greek towns, and above all the Tarentine civic army of twenty-two thousand men. At the head of this considerable force he compelled the Lucanians to make peace with Tarentum and to install a government of Samnite tendencies; in return for which Metapontum was abandoned to them. The Samnites were still in arms when this occurred; there was nothing to prevent the Spartan from coming to their aid and casting the weight of his numerous army and his military skill into the scale in favour of freedom for the cities and peoples of Italy. But Tarentum did not act as Rome would in similar circumstances have acted; and prince Cleonymus himself was far from being an Alexander or a Pyrrhus. He was in no hurry to undertake a war in which he might expect more blows than booty, but preferred to make common cause with the Lucanians against Metapontum, and made himself comfortable in that city, while he talked of an expedition against Agathocles of Syracuse and of liberating the Sicilian Greeks. Thereupon the Samnites made peace; and when after its conclusion Rome began to concern herself more seriously about the south-east of the peninsula—in token of which in the year 447 a Roman force levied contributions, or rather reconnoitred by order of the government, in the territory of the Sallentines—the Spartan -condottiere- embarked with his mercenaries and surprised the island of Corcyra, which was admirably situated as a basis for piratical expeditions against Greece and Italy. Thus abandoned by their general, and at the same time deprived of their allies in central Italy, the Tarentines and their Italian allies, the Lucanians and Sallentines, had now no course left but to solicit an accommodation with Rome, which appears to have been granted on tolerable terms. Soon afterwards (451) even an incursion of Cleonymus, who had landed in the Sallentine territory and laid siege to Uria, was repulsed by the inhabitants with Roman aid.

Consolidation of the Roman Rule in Central Italy

The victory of Rome was complete; and she turned it to full account. It was not from magnanimity in the conquerors—for the Romans knew nothing of the sort—but from shrewd and far-seeing calculation that terms so moderate were granted to the Samnites, the Tarentines, and the more distant peoples generally. The first and main object was not so much to compel southern Italy as quickly as possible to recognize formally the Roman supremacy, as to supplement and complete the subjugation of central Italy, for which the way had been prepared by the military roads and fortresses already established in Campania and Apulia during the last war, and by that means to separate the northern and southern Italians into two masses cut off in a military point of view from direct contact with each other. To this object accordingly the next undertakings of the Romans were with consistent energy directed. Above all they used, or made, the opportunity for getting rid of the confederacies of the Aequi and the Hernici which had once been rivals of the Roman single power in the region of the Tiber and were not yet quite set aside. In the same year, in which the peace with Samnium took place (450), the consul Publius Sempronius Sophus waged war on the Aequi; forty townships surrendered in fifty days; the whole territory with the exception of the narrow and rugged mountain valley, which still in the present day bears the old name of the people (Cicolano), passed into the possession of the Romans, and here on the northern border of the Fucine lake was founded the fortress Alba with a garrison of 6000 men, thenceforth forming a bulwark against the valiant Marsi and a curb for central Italy; as was also two years afterwards on the upper Turano, nearer to Rome, Carsioli —both as allied communities with Latin rights.

The fact that in the case of the Hernici at least Anagnia had taken part in the last stage of the Samnite war, furnished the desired reason for dissolving the old relation of alliance. The fate of the Anagnines was, as might be expected, far harder than that which had under similar circumstances been

meted out to the Latin communities in the previous generation. They not merely had, like these, to acquiesce in the Roman citizenship without suffrage, but they also like the Caerites lost self-administration; out of a portion of their territory on the upper Trerus (Sacco), moreover, a new tribe was instituted, and another was formed at the same time on the lower Anio (455). The only regret was that the three Hernican communities next in importance to Anagnia, Aletrium, Verulae, and Ferentinum, had not also revolted; for, as they courteously declined the suggestion that they should voluntarily enter into the bond of Roman citizenship and there existed no pretext for compelling them to do so, the Romans were obliged not only to respect their autonomy, but also to allow to them even the right of assembly and of intermarriage, and in this way still to leave a shadow of the old Hernican confederacy. No such considerations fettered their action in that portion of the Volscian country which had hitherto been held by the Samnites. There Arpinum and Frusino became subject, the latter town was deprived of a third of its domain, and on the upper Liris in addition to Fregellae the Volscian town of Sora, which had previously been garrisoned, was now permanently converted into a Roman fortress and occupied by a legion of 4000 men. In this way the old Volscian territory was completely subdued, and became rapidly Romanized. The region which separated Samnium from Etruria was penetrated by two military roads, both of which were secured by new fortresses. The northern road, which afterwards became the Flaminian, covered the line of the Tiber; it led through Ocrinum, which was in alliance with Rome, to Narnia, the name which the Romans gave to the old Umbrian fortress Nequinum when they settled a military colony there (455). The southern, afterwards the Valerian, ran along the Fucine lake by way of the just mentioned fortresses of Carsioli and Alba. The small tribes within whose bounds these colonies were instituted, the Umbrians who obstinately defended Nequinum, the Aequians who once more assailed Alba, and the Marsians who attacked Carsioli,

could not arrest the course of Rome: the two strong curb-fortresses were inserted almost without hindrance between Samnium and Etruria. We have already mentioned the great roads and fortresses instituted for permanently securing Apulia and above all Campania: by their means Samnium was further surrounded on the east and west with the net of Roman strongholds. It is a significant token of the comparative weakness of Etruria that it was not deemed necessary to secure the passes through the Ciminian Forest in a similar mode—by a highway and corresponding fortresses. The former frontier fortress of Sutrium continued to be in this quarter the terminus of the Roman military line, and the Romans contented themselves with having the road leading thence to Arretium kept in a serviceable state for military purposes by the communities through whose territories it passed.(4)

Renewed Outbreak of the Samnite-Etruscan War— Junction of the Troops of the Coalition in Etruria

The high-spirited Samnite nation perceived that such a peace was more ruinous than the most destructive war; and, what was more, it acted accordingly. The Celts in northern Italy were just beginning to bestir themselves again after a long suspension of warfare; moreover several Etruscan communities there were still in arms against the Romans, and brief armistices alternated in that quarter with vehement but indecisive conflicts. All central Italy was still in ferment and partly in open insurrection; the fortresses were still only in course of construction; the way between Etruria and Samnium was not yet completely closed. Perhaps it was not yet too late to save freedom; but, if so, there must be no delay; the difficulty of attack increased, the power of the assailants diminished with every year by which the peace was prolonged. Five years had scarce elapsed since the contest ended, and all the wounds must still have been bleeding which the twenty-two years' war had inflicted on the peasantry of Samnium, when in the year 456 the Samnite confederacy renewed the struggle. The last war had been

decided in favour of Rome mainly through the alliance of Lucania with the Romans and the consequent standing aloof of Tarentum. The Samnites, profiting by that lesson, now threw themselves in the first instance with all their might on the Lucanians, and succeeded in bringing their party in that quarter to the helm of affairs, and in concluding an alliance between Samnium and Lucania. Of course the Romans immediately declared war; the Samnites had expected no other issue. It is a significant indication of the state of feeling, that the Samnite government informed the Roman envoys that it was not able to guarantee their inviolability, if they should set foot on Samnite ground.

The war thus began anew (456), and while a second army was fighting in Etruria, the main Roman army traversed Samnium and compelled the Lucanians to make peace and send hostages to Rome. The following year both consuls were able to proceed to Samnium; Rullianus conquered at Tifernum, his faithful comrade in arms, Publius Decius Mus, at Maleventum, and for five months two Roman armies encamped in the land of the enemy. They were enabled to do so, because the Tuscan states had on their own behalf entered into negotiations for peace with Rome. The Samnites, who from the beginning could not but see that their only chance of victory lay in the combination of all Italy against Rome, exerted themselves to the utmost to prevent the threatened separate peace between Etruria and Rome; and when at last their general, Gellius Egnatius, offered to bring aid to the Etruscans in their own country, the Etruscan federal council in reality agreed to hold out and once more to appeal to the decision of arms. Samnium made the most energetic efforts to place three armies simultaneously in the field, the first destined for the defence of its own territory, the second for an invasion of Campania, the third and most numerous for Etruria; and in the year 458 the last, led by Egnatius himself, actually reached Etruria in safety through the Marsian and Umbrian territories, with whose inhabitants there was an understanding. Meanwhile

the Romans were capturing some strong places in Samnium and breaking the influence of the Samnite party in Lucania; they were not in a position to prevent the departure of the army led by Egnatius. When information reached Rome that the Samnites had succeeded in frustrating all the enormous efforts made to sever the southern from the northern Italians, that the arrival of the Samnite bands in Etruria had become the signal for an almost universal rising against Rome, and that the Etruscan communities were labouring with the utmost zeal to get their own forces ready for war and to take into their pay Gallic bands, every nerve was strained also in Rome; the freedmen and the married were formed into cohorts—it was felt on all hands that the decisive crisis was near. The year 458 however passed away, apparently, in armings and marchings. For the following year (459) the Romans placed their two best generals, Publius Decius Mus and the aged Quintus Fabius Rullianus, at the head of their army in Etruria, which was reinforced with all the troops that could be spared from Campania, and amounted to at least 60,000 men, of whom more than a third were full burgesses of Rome. Besides this, two reserves were formed, the first at Falerii, the second under the walls of the capital. The rendezvous of the Italians was Umbria, towards which the roads from the Gallic, Etruscan, and Sabellian territories converged; towards Umbria the consuls also moved off their main force, partly along the left, partly along the right bank of the Tiber, while at the same time the first reserve made a movement towards Etruria, in order if possible to recall the Etruscan troops from the main scene of action for the defence of their homes. The first engagement did not prove fortunate for the Romans; their advanced guard was defeated by the combined Gauls and Samnites in the district of Chiusi. But that diversion accomplished its object. Less magnanimous than the Samnites, who had marched through the ruins of their towns that they might not be absent from the chosen field of battle, a great part of the Etruscan contingents withdrew from the federal army on the news of the advance of the Roman reserve into

Etruria, and its ranks were greatly thinned when the decisive battle came to be fought on the eastern declivity of the Apennines near Sentinum.

Battle of Sentinum—
Peace with Etruria

Nevertheless it was a hotly contested day. On the right wing of the Romans, where Rullianus with his two legions fought against the Samnite army, the conflict remained long undecided. On the left, which Publius Decius commanded, the Roman cavalry was thrown into confusion by the Gallic war chariots, and the legions also already began to give way. Then the consul called to him Marcus Livius the priest, and bade him devote to the infernal gods both the head of the Roman general and the army of the enemy; and plunging into the thickest throng of the Gauls he sought death and found it. This heroic deed of despair on the part of one so eminent as a man and so beloved as a general was not in vain. The fugitive soldiers rallied; the bravest threw themselves after their leader into the hostile ranks, to avenge him or to die with him; and just at the right moment the consular Lucius Scipio, despatched by Rullianus, appeared with the Roman reserve on the imperilled left wing. The excellent Campanian cavalry, which fell on the flank and rear of the Gauls, turned the scale; the Gauls fled, and at length the Samnites also gave way, their general Egnatius falling at the gate of the camp. Nine thousand Romans strewed the field of battle; but dearly as the victory was purchased, it was worthy of such a sacrifice. The army of the coalition was dissolved, and with it the coalition itself; Umbria remained in the power of the Romans, the Gauls dispersed, the remnant of the Samnites still in compact order retreated homeward through the Abruzzi. Campania, which the Samnites had overrun during the Etruscan war, was after its close re-occupied with little difficulty by the Romans. Etruria sued for peace in the following year (460); Volsinii, Perugia,

Arretium, and in general all the towns that had joined the league against Rome, promised a cessation of hostilities for four hundred months.

Last Struggles of Samnium

But the Samnites were of a different mind; they prepared for their hopeless resistance with the courage of free men, which cannot compel success but may put it to shame. When the two consular armies advanced into Samnium, in the year 460, they encountered everywhere the most desperate resistance; in fact Marcus Atilius was discomfited near Luceria, and the Samnites were able to penetrate into Campania and to lay waste the territory of the Roman colony Interamna on the Liris. In the ensuing year Lucius Papirius Cursor, the son of the hero of the first Samnite war, and Spurius Carvilius, gave battle on a great scale near Aquilonia to the Samnite army, the flower of which—the 16,000 in white tunics—had sworn a sacred oath to prefer death to flight. Inexorable destiny, however, heeds neither the oaths nor the supplications of despair; the Roman conquered and stormed the strongholds where the Samnites had sought refuge for themselves and their property. Even after this great defeat the confederates still for years resisted the ever-increasing superiority of the enemy with unparalleled perseverance in their fastnesses and mountains, and still achieved various isolated advantages. The experienced arm of the old Rullianus was once more called into the field against them (462), and Gavius Pontius, a son perhaps of the victor of Caudium, even gained for his nation a last victory, which the Romans meanly enough avenged by causing him when subsequently taken to be executed in prison (463). But there was no further symptom of movement in Italy; for the war, which Falerii began in 461, scarcely deserves such a name. The Samnites doubtless turned with longing eyes towards Tarentum, which alone was still in a position to grant them aid; but it held aloof. The same causes as before occasioned its inaction—internal misgovernment, and the passing over of the Lucanians

once more to the Roman party in the year 456; to which fell to be added a not unfounded dread of Agathocles of Syracuse, who just at that time had reached the height of his power and began to turn his views towards Italy. About 455 the latter established himself in Corcyra whence Cleonymus had been expelled by Demetrius Poliorcetes, and now threatened the Tarentines from the Adriatic as well as from the Ionian sea. The cession of the island to king Pyrrhus of Epirus in 459 certainly removed to a great extent the apprehensions which they had cherished; but the affairs of Corcyra continued to occupy the Tarentines—in the year 464, for instance, they helped to protect Pyrrhus in possession of the island against Demetrius—and in like manner Agathocles did not cease to give the Tarentines uneasiness by his Italian policy. When he died (465) and with him the power of the Syracusans in Italy went to wreck, it was too late; Samnium, weary of the thirty-seven years' struggle, had concluded peace in the previous year (464) with the Roman consul Manius Curius Dentatus, and had in form renewed its league with Rome. On this occasion, as in the peace of 450, no disgraceful or destructive conditions were imposed on the brave people by the Romans; no cessions even of territory seem to have taken place. The political sagacity of Rome preferred to follow the path which it had hitherto pursued, and to attach in the first place the Campanian and Adriatic coast more and more securely to Rome before proceeding to the direct conquest of the interior. Campania, indeed, had been long in subjection; but the far-seeing policy of Rome found it needful, in order to secure the Campanian coast, to establish two coast-fortresses there, Minturnae and Sinuessa (459), the new burgesses of which were admitted according to the settled rule in the case of maritime colonies to the full citizenship of Rome. With still greater energy the extension of the Roman rule was prosecuted in central Italy. As the subjugation of the Aequi and Hernici was the immediate sequel of the first Samnite war, so that of the Sabines followed on the end of the second. The same general, who

ultimately subdued the Samnites, Manius Curius broke down in the same year (464) the brief and feeble resistance of the Sabines and forced them to unconditional surrender. A great portion of the subjugated territory was immediately taken into possession of the victors and distributed to Roman burgesses, and Roman subject-rights (-civitas sine suffragio-) were imposed on the communities that were left—Cures, Reate, Amiternum, Nursia. Allied towns with equal rights were not established here; on the contrary the country came under the immediate rule of Rome, which thus extended as far as the Apennines and the Umbrian mountains. Nor was it even now restricted to the territory on Rome's side of the mountains; the last war had shown but too clearly that the Roman rule over central Italy was only secured, if it reached from sea to sea. The establishment of the Romans beyond the Apennines begins with the laying out of the strong fortress of Atria (Atri) in the year 465, on the northern slope of the Abruzzi towards the Picenian plain, not immediately on the coast and hence with Latin rights, but still near to the sea, and the keystone of the mighty wedge separating northern and southern Italy. Of a similar nature and of still greater importance was the founding of Venusia (463), whither the unprecedented number of 20,000 colonists was conducted. That city, founded at the boundary of Samnium, Apulia, and Lucania, on the great road between Tarentum and Samnium, in an uncommonly strong position, was destined as a curb to keep in check the surrounding tribes, and above all to interrupt the communications between the two most powerful enemies of Rome in southern Italy. Beyond doubt at the same time the southern highway, which Appius Claudius had carried as far as Capua, was prolonged thence to Venusia. Thus, at the close of the Samnite wars, the Roman domain closely compact—that is, consisting almost exclusively of communities with Roman or Latin rights—extended on the north to the Ciminian Forest, on the east to the Abruzzi and to the Adriatic, on the south as far as Capua, while the two advanced posts, Luceria and Venusia,

established towards the east and south on the lines of communication of their opponents, isolated them on every side. Rome was no longer merely the first, but was already the ruling power in the peninsula, when towards the end of the fifth century of the city those nations, which had been raised to supremacy in their respective lands by the favour of the gods and by their own capacity, began to come into contact in council and on the battle-field; and, as at Olympia the preliminary victors girt themselves for a second and more serious struggle, so on the larger arena of the nations, Carthage, Macedonia, and Rome now prepared for the final and decisive contest.

Notes for Book II Chapter VI

1. It may not be superfluous to mention that our knowledge Archidamus and Alexander is derived from Greek annals, and that the synchronism between these and the Roman is in reference to the present epoch only approximately established. We must beware, therefore, of pursuing too far into detail the unmistakable general connection between the events in the west and those in the east of Italy.

2. These were not the inhabitants of Satricum near Antium (II. V. League with The Hernici), but those of another Volscian town constituted at that time as a Roman burgess-community without right of voting, near Arpinum.

3. That a formal armistice for two years subsisted between the Romans and Samnites in 436-437 is more than improbable.

4. The operations in the campaign of 537, and still more plainly the formation of the highway from Arretium to Bononia in 567, show that the road from Rome to Arretium had already been rendered serviceable before

that time. But it cannot at that period have been a Roman military road, because, judging from its later appellation of the "Cassian way," it cannot have been constructed as a -via consularis- earlier than 583; for no Cassian appears in the lists of Roman consuls and censors between Spurius Cassius, consul in 252, 261, and 268—who of course is out of the question—and Gaius Cassius Longinus, consul in 583.

CHAPTER VII

Struggle between Pyrrhus and Rome, and Union of Italy

Relations between the East and West

After Rome had acquired the undisputed mastery of the world, the Greeks were wont to annoy their Roman masters by the assertion that Rome was indebted for her greatness to the fever of which Alexander of Macedonia died at Babylon on the 11th of June, 431. As it was not too agreeable for them to reflect on the actual past, they were fond of allowing their thoughts to dwell on what might have happened, had the great king turned his arms—as was said to have been his intention at the time of his death—towards the west and contested the Carthaginian supremacy by sea with his fleet, and the Roman supremacy by land with his phalanxes. It is not impossible that Alexander may have cherished such thoughts; nor is it necessary to resort for an explanation of their origin to the mere difficulty which an autocrat, who is fond of war and is well provided with soldiers and ships, experiences in setting limits to his warlike career. It was an enterprise worthy of a Greek great king to protect the Siceliots against Carthage and the Tarentines against Rome, and to put an end to piracy on either sea; and the Italian embassies from the Bruttians, Lucanians, and Etruscans,(1) that along with numerous others made their appearance at Babylon, afforded him sufficient opportunities of becoming acquainted with

the circumstances of the peninsula and of entering into relations with it. Carthage with its many connections in the east could not but attract the attention of the mighty monarch, and it was probably one of his designs to convert the nominal sovereignty of the Persian king over the Tyrian colony into a real one: it was not for nothing that a Phoenician spy was found in the retinue of Alexander. Whether, however, these ideas were dreams or actual projects, the king died without having interfered in the affairs of the west, and his ideas were buried with him. For but a few brief years a Greek ruler had held in his hand the whole intellectual vigour of the Hellenic race combined with the whole material resources of the east. On his death the work to which his life had been devoted—the establishment of Hellenism in the east—was by no means undone; but his empire had barely been united when it was again dismembered, and, amidst the constant quarrels of the different states that were formed out of its ruins, the object of world-wide interest which they were destined to promote—the diffusion of Greek culture in the east—though not abandoned, was prosecuted on a feeble and stunted scale. Under such circumstances, neither the Greek nor the Asiatico-Egyptian states could think of acquiring a footing in the west or of turning their efforts against the Romans or the Carthaginians. The eastern and western state-systems subsisted side by side for a time without crossing, politically, each other's path; and Rome in particular remained substantially aloof from the complications in the days of Alexander's successors. The only relations established were of a mercantile kind; as in the instance of the free state of Rhodes, the leading representative of the policy of commercial neutrality in Greece and in consequence the universal medium of intercourse in an age of perpetual wars, which about 448 concluded a treaty with Rome—a commercial convention of course, such as was natural between a mercantile people and the masters of the Caerite and Campanian coasts. Even in the supply of mercenaries from Hellas, the universal recruiting field of those times, to Italy, and to Tarentum in particular,

political relations—such as subsisted, for instance, between Tarentum and Sparta its mother-city—exercised but a very subordinate influence. In general the raising of mercenaries was simply a matter of traffic, and Sparta, although it regularly supplied the Tarentines with captains for their Italian wars, was by that course as little involved in hostilities with the Italians, as in the North American war of independence the German states were involved in hostilities with the Union, to whose opponents they sold the services of their subjects.

The Historical Position of Pyrrhus

Pyrrhus, king of Epirus, was himself simply a military adventurer. He was none the less a soldier of fortune that he traced back his pedigree to Aeacus and Achilles, and that, had he been more peacefully disposed, he might have lived and died as "king" of a small mountain tribe under the supremacy of Macedonia or perhaps in isolated independence. He has been compared to Alexander of Macedonia; and certainly the idea of founding a Hellenic empire of the west—which would have had as its core Epirus, Magna Graecia, and Sicily, would have commanded both the Italian seas, and would have reduced Rome and Carthage to the rank of barbarian peoples bordering on the Hellenistic state-system, like the Celts and the Indians—was analogous in greatness and boldness to the idea which led the Macedonian king over the Hellespont. But it was not the mere difference of issue that formed the distinction between the expedition to the east and that to the west. Alexander with his Macedonian army, in which the staff especially was excellent, could fully make head against the great-king; but the king of Epirus, which stood by the side of Macedonia somewhat as Hesse by the side of Prussia, could only raise an army worthy of the name by means of mercenaries and of alliances based on accidental political combinations. Alexander made his appearance in the Persian empire as a conqueror; Pyrrhus appeared in Italy as the general of a coalition of

secondary states. Alexander left his hereditary dominions completely secured by the unconditional subjection of Greece, and by the strong army that remained behind under Antipater; Pyrrhus had no security for the integrity of his native dominions but the word of a doubtful neighbour. In the case of both conquerors, if their plans should be crowned with success, their native country would necessarily cease to be the centre of their new empire; but it was far more practicable to transfer the seat of the Macedonian military monarchy to Babylon than to found a soldier-dynasty in Tarentum or Syracuse. The democracy of the Greek republics—perpetual agony though it was—could not be at all coerced into the stiff forms of a military state; Philip had good reason for not incorporating the Greek republics with his empire. In the east no national resistance was to be expected; ruling and subject races had long lived there side by side, and a change of despot was a matter of indifference or even of satisfaction to the mass of the population. In the west the Romans, the Samnites, the Carthaginians, might be vanquished; but no conqueror could have transformed the Italians into Egyptian fellahs, or rendered the Roman farmers tributaries of Hellenic barons. Whatever we take into view—whether their own power, their allies, or the resources of their antagonists—in all points the plan of the Macedonian appears as a feasible, that of the Epirot an impracticable, enterprise; the former as the completion of a great historical task, the latter as a remarkable blunder; the former as the foundation of a new system of states and of a new phase of civilization, the latter as a mere episode in history. The work of Alexander outlived him, although its creator met an untimely death; Pyrrhus saw with his own eyes the wreck of all his plans, ere death called him away. Both were by nature daring and great, but Pyrrhus was only the foremost general, Alexander was eminently the most gifted statesman, of his time; and, if it is insight into what is and what is not possible that distinguishes the hero from the adventurer, Pyrrhus must be numbered among the latter class, and may as

little be placed on a parallel with his greater kinsman as the Constable of Bourbon may be put in comparison with Louis the Eleventh.

And yet a wondrous charm attaches to the name of the Epirot—a peculiar sympathy, evoked certainly in some degree by his chivalrous and amiable character, but still more by the circumstance that he was the first Greek that met the Romans in battle. With him began those direct relations between Rome and Hellas, on which the whole subsequent development of ancient, and an essential part of modern, civilization are based. The struggle between phalanxes and cohorts, between a mercenary army and a militia, between military monarchy and senatorial government, between individual talent and national vigour—this struggle between Rome and Hellenism was first fought out in the battles between Pyrrhus and the Roman generals; and though the defeated party often afterwards appealed anew to the arbitration of arms, every succeeding day of battle simply confirmed the decision. But while the Greeks were beaten in the battlefield as well as in the senate-hall, their superiority was none the less decided on every other field of rivalry than that of politics; and these very struggles already betokened that the victory of Rome over the Hellenes would be different from her victories over Gauls and Phoenicians, and that the charm of Aphrodite only begins to work when the lance is broken and the helmet and shield are laid aside.

Character and Earlier History of Pyrrhus

King Pyrrhus was the son of Aeacides, ruler of the Molossians (about Janina), who, spared as a kinsman and faithful vassal by Alexander, had been after his death drawn into the whirlpool of Macedonian family-politics, and lost in it first his kingdom and then his life (441). His son, then six years of age, was saved by Glaucias the ruler of the Illyrian Taulantii, and in the course of the conflicts for the possession of Macedonia he was, when still a boy, restored by Demetrius Poliorcetes to his hereditary

principality (447)—but only to lose it again after a few years through the influence of the opposite party (about 452), and to begin his military career as an exiled prince in the train of the Macedonian generals. Soon his personality asserted itself. He shared in the last campaigns of Antigonos; and the old marshal of Alexander took delight in the born soldier, who in the judgment of the grey-headed general only wanted years to be already the first warrior of the age. The unfortunate battle at Ipsus brought him as a hostage to Alexandria, to the court of the founder of the Lagid dynasty, where by his daring and downright character, and his soldierly spirit thoroughly despising everything that was not military, he attracted the attention of the politic king Ptolemy no less than he attracted the notice of the royal ladies by his manly beauty, which was not impaired by his wild look and stately tread. Just at this time the enterprising Demetrius was once more establishing himself in a new kingdom, which on this occasion was Macedonia; of course with the intention of using it as a lever to revive the monarchy of Alexander. To keep down his ambitious designs, it was important to give him employment at home; and Ptolemy, who knew how to make admirable use of such fiery spirits as the Epirot youth in the prosecution of his subtle policy, not only met the wishes of his consort queen Berenice, but also promoted his own ends, by giving his stepdaughter the princess Antigone in marriage to the young prince, and lending his aid and powerful influence to support the return of his beloved "son" to his native land (458). Restored to his paternal kingdom, he soon carried all before him. The brave Epirots, the Albanians of antiquity, clung with hereditary loyalty and fresh enthusiasm to the high-spirited youth—the "eagle," as they called him. In the confusion that arose regarding the succession to the Macedonian throne after the death of Cassander (457), the Epirot extended his dominions: step by step he gained the regions on the Ambracian gulf with the important town of Ambracia, the island of Corcyra,(2) and even a part of the Macedonian territory, and with forces far

inferior he made head against king Demetrius to the admiration of the Macedonians themselves. Indeed, when Demetrius was by his own folly hurled from the Macedonian throne, it was voluntarily proffered by them to his chivalrous opponent, a kinsman of the Alexandrid house (467). No one was in reality worthier than Pyrrhus to wear the royal diadem of Philip and of Alexander. In an age of deep depravity, in which princely rank and baseness began to be synonymous, the personally unspotted and morally pure character of Pyrrhus shone conspicuous. For the free farmers of the hereditary Macedonian soil, who, although diminished and impoverished, were far from sharing in that decay of morals and of valour which the government of the Diadochi produced in Greece and Asia, Pyrrhus appeared exactly formed to be the fitting king, —Pyrrhus, who, like Alexander, in his household and in the circle of his friends preserved a heart open to all human sympathies, and constantly avoided the bearing of an Oriental sultan which was so odious to the Macedonians; and who, like Alexander, was acknowledged to be the first tactician of his time. But the singularly overstrained national feeling of the Macedonians, which preferred the most paltry Macedonian sovereign to the ablest foreigner, and the irrational insubordination of the Macedonian troops towards every non-Macedonian leader, to which Eumenes the Cardian, the greatest general of the school of Alexander, had fallen a victim, put a speedy termination to the rule of the prince of Epirus. Pyrrhus, who could not exercise sovereignty over Macedonia with the consent of the Macedonians, and who was too powerless and perhaps too high spirited to force himself on the nation against its will, after reigning seven months left the country to its native misgovernment, and went home to his faithful Epirots (467). But the man who had worn the crown of Alexander, the brother-in-law of Demetrius, the son-in-law of Ptolemy Lagides and of Agathocles of Syracuse, the highly-trained tactician who wrote memoirs and scientific dissertations on the military art, could not possibly end his days in inspecting at a set time

yearly the accounts of the royal cattle steward, in receiving from his brave Epirots their customary gifts of oxen and sheep, in thereupon, at the altar of Zeus, procuring the renewal of their oath of allegiance and repeating his own engagement to respect the laws, and—for the better confirmation of the whole—in carousing with them all night long. If there was no place for him on the throne of Macedonia, there was no abiding in the land of his nativity at all; he was fitted for the first place, and he could not be content with the second. His views therefore turned abroad. The kings, who were quarrelling for the possession of Macedonia, although agreeing in nothing else, were ready and glad to concur in aiding the voluntary departure of their dangerous rival; and that his faithful war-comrades would follow him where-ever he led, he knew full well. Just at that time the circumstances of Italy were such, that the project which had been meditated forty years before by Pyrrhus's kinsman, his father's cousin, Alexander of Epirus, and quite recently by his father-in-law Agathocles, once more seemed feasible; and so Pyrrhus resolved to abandon his Macedonian schemes and to found for himself and for the Hellenic nation a new empire in the west.

Rising of the Italians against Rome—

The Lucanians—

The Etruscans and Celts—

The Samnites—

The Senones Annihilated

The interval of repose, which the peace with Samnium in 464 had procured for Italy, was of brief duration; the impulse which led to the formation of a new league against Roman ascendancy came on this occasion from the Lucanians. This people, by taking part with Rome during the Samnite wars, paralyzed the action of the Tarentines and essentially contributed to the decisive issue; and in consideration of their services, the Romans gave up to them the Greek cities in their territory. Accordingly

after the conclusion of peace they had, in concert with the Bruttians, set themselves to subdue these cities in succession. The Thurines, repeatedly assailed by Stenius Statilius the general of the Lucanians and reduced to extremities, applied for assistance against the Lucanians to the Roman senate—just as formerly the Campanians had asked the aid of Rome against the Samnites—and beyond doubt with a like sacrifice of their liberty and independence. In consequence of the founding of the fortress Venusia, Rome could dispense with the alliance of the Lucanians; so the Romans granted the prayer of the Thurines, and enjoined their friends and allies to desist from their designs on a city which had surrendered itself to Rome. The Lucanians and Bruttians, thus cheated by their more powerful allies of their share in the common spoil, entered into negotiations with the opposition-party among the Samnites and Tarentines to bring about a new Italian coalition; and when the Romans sent an embassy to warn them, they detained the envoys in captivity and began the war against Rome with a new attack on Thurii (about 469), while at the same time they invited not only the Samnites and Tarentines, but the northern Italians also—the Etruscans, Umbrians, and Gauls—to join them in the struggle for freedom. The Etruscan league actually revolted, and hired numerous bands of Gauls; the Roman army, which the praetor Lucius Caecilius was leading to the help of the Arretines who had remained faithful, was annihilated under the walls of Arretium by the Senonian mercenaries of the Etruscans: the general himself fell with 13,000 of his men (470). The Senones were reckoned allies of Rome; the Romans accordingly sent envoys to them to complain of their furnishing warriors to serve against Rome, and to require the surrender of their captives without ransom. But by the command of their chieftain Britomaris, who had to take vengeance on the Romans for the death of his father, the Senones slew the Roman envoys and openly took the Etruscan side. All the north of Italy, Etruscans, Umbrians, Gauls, were thus in arms against Rome; great results might be achieved, if its southern provinces also

should seize the moment and declare, so far as they had not already done so, against Rome. In fact the Samnites, ever ready to make a stand on behalf of liberty, appear to have declared war against the Romans; but weakened and hemmed in on all sides as they were, they could be of little service to the league; and Tarentum manifested its wonted delay. While her antagonists were negotiating alliances, settling treaties as to subsidies, and collecting mercenaries, Rome was acting. The Senones were first made to feel how dangerous it was to gain a victory over the Romans. The consul Publius Cornelius Dolabella advanced with a strong army into their territory; all that were not put to the sword were driven forth from the land, and this tribe was erased from the list of the Italian nations (471). In the case of a people subsisting chiefly on its flocks and herds such an expulsion en masse was quite practicable; and the Senones thus expelled from Italy probably helped to make up the Gallic hosts which soon after inundated the countries of the Danube, Macedonia, Greece, and Asia Minor.

The Boii

The next neighbours and kinsmen of the Senones, the Boii, terrified and exasperated by a catastrophe which had been accomplished with so fearful a rapidity, united instantaneously with the Etruscans, who still continued the war, and whose Senonian mercenaries now fought against the Romans no longer as hirelings, but as desperate avengers of their native land. A powerful Etrusco-Gallic army marched against Rome to retaliate the annihilation of the Senonian tribe on the enemy's capital, and to extirpate Rome from the face of the earth more completely than had been formerly done by the chieftain of these same Senones. But the combined army was decidedly defeated by the Romans at its passage of the Tiber in the neighbourhood of the Vadimonian lake (471). After they had once more in the following year risked a general engagement near Populonia with no better success, the Boii deserted their confederates and concluded a peace

on their own account with the Romans (472). Thus the Gauls, the most formidable member of the league, were conquered in detail before the league was fully formed, and by that means the hands of Rome were left free to act against Lower Italy, where during the years 469-471 the contest had not been carried on with any vigour. Hitherto the weak Roman army had with difficulty maintained itself in Thurii against the Lucanians and Bruttians; but now (472) the consul Gaius Fabricius Luscinius appeared with a strong army in front of the town, relieved it, defeated the Lucanians in a great engagement, and took their general Statilius prisoner. The smaller non-Doric Greek towns, recognizing the Romans as their deliverers, everywhere voluntarily joined them. Roman garrisons were left behind in the most important places, in Locri, Croton, Thurii, and especially in Rhegium, on which latter town the Carthaginians seem also to have had designs. Everywhere Rome had most decidedly the advantage. The annihilation of the Senones had given to the Romans a considerable tract of the Adriatic coast. With a view, doubtless, to the smouldering feud with Tarentum and the already threatened invasion of the Epirots, they hastened to make themselves sure of this coast as well as of the Adriatic sea. A burgess colony was sent out (about 471) to the seaport of Sena (Sinigaglia), the former capital of the Senonian territory; and at the same time a Roman fleet sailed from the Tyrrhene sea into the eastern waters, manifestly for the purpose of being stationed in the Adriatic and of protecting the Roman possessions there.

Breach between Rome and Tarentum

The Tarentines since the treaty of 450 had lived at peace with Rome. They had been spectators of the long struggle of the Samnites, and of the rapid extirpation of the Senones; they had acquiesced without remonstrance in the establishment of Venusia, Atria, and Sena, and in the occupation of Thurii and of Rhegium. But when the Roman fleet, on its voyage from the

Tyrrhene to the Adriatic sea, now arrived in the Tarentine waters and cast anchor in the harbour of the friendly city, the long, cherished resentment at length overflowed. Old treaties, which prohibited the war-vessels of Rome from sailing to the east of the Lacinian promontory, were appealed to by popular orators in the assembly of the citizens. A furious mob fell upon the Roman ships of war, which, assailed suddenly in a piratical fashion, succumbed after a sharp struggle; five ships were taken and their crews executed or sold into slavery; the Roman admiral himself had fallen in the engagement. Only the supreme folly and supreme unscrupulousness of mob-rule can account for those disgraceful proceedings. The treaties referred to belonged to a period long past and forgotten; it is clear that they no longer had any meaning, at least subsequently to the founding of Atria and Sena, and that the Romans entered the bay on the faith of the existing alliance; indeed, it was very much their interest—as the further course of things showed—to afford the Tarentines no sort of pretext for declaring war. In declaring war against Rome—if such was their wish—the statesmen of Tarentum were only doing what they should have done long before; and if they preferred to rest their declaration of war upon the formal pretext of a breach of treaty rather than upon the real ground, no further objection could be taken to that course, seeing that diplomacy has always reckoned it beneath its dignity to speak the plain truth in plain language. But to make an armed attack upon the fleet without warning, instead of summoning the admiral to retrace his course, was a foolish no less than a barbarous act—one of those horrible barbarities of civilization, when moral principle suddenly forsakes the helm and the merest coarseness emerges in its room, as if to warn us against the childish belief that civilization is able to extirpate brutality from human nature.

And, as if what they had done had not been enough, the Tarentines after this heroic feat attacked Thurii, the Roman garrison of which capitulated in consequence of the surprise (in the winter of 472-473); and inflicted: severe

chastisement on the Thurines—the same, whom Tarentine policy had abandoned to the Lucanians and thereby forcibly constrained into surrender to Rome—for their desertion from the Hellenic party to the barbarians.

Attempts at Peace

The barbarians, however, acted with a moderation which, considering their power and the provocation they had received, excites astonishment. It was the interest of Rome to maintain as long as possible the Tarentine neutrality, and the leading men in the senate accordingly rejected the proposal, which a minority had with natural resentment submitted, to declare war at once against the Tarentines. In fact, the continuance of peace on the part of Rome was proffered on the most moderate terms consistent with her honour—the release of the captives, the restoration of Thurii, the surrender of the originators of the attack on the fleet. A Roman embassy proceeded with these proposals to Tarentum (473), while at the same time, to add weight to their words, a Roman army under the consul Lucius Aemilius advanced into Samnium. The Tarentines could, without forfeiting aught of their independence, accept these terms; and considering the little inclination for war in so wealthy a commercial city, the Romans had reason to presume that an accommodation was still possible. But the attempt to preserve peace failed, whether through the opposition of those Tarentines who recognized the necessity of meeting the aggressions of Rome, the sooner the better, by a resort to arms, or merely through the unruliness of the city rabble, which with characteristic Greek naughtiness subjected the person of the envoy to an unworthy insult. The consul now advanced into the Tarentine territory; but instead of immediately commencing hostilities, he offered once more the same terms of peace; and, when this proved in vain, he began to lay waste the fields and country houses, and he defeated the civic militia. The principal persons captured, however, were released without ransom; and the hope was not abandoned that the pressure of war

would give to the aristocratic party ascendancy in the city and so bring about peace. The reason of this reserve was, that the Romans were unwilling to drive the city into the arms of the Epirot king. His designs on Italy were no longer a secret. A Tarentine embassy had already gone to Pyrrhus and returned without having accomplished its object. The king had demanded more than it had powers to grant. It was necessary that they should come to a decision. That the civic militia knew only how to run away from the Romans, had been made sufficiently clear. There remained only the choice between a peace with Rome, which the Romans still were ready to agree to on equitable terms, and a treaty with Pyrrhus on any condition that the king might think proper; or, in other words, the choice between submission to the supremacy of Rome, and subjection to the — tyrannis— of a Greek soldier.

Pyrrhus Summoned to Italy

The parties in the city were almost equally balanced. At length the ascendancy remained with the national party—a result, that was due partly to the justifiable predilection which led them, if they must yield to a master at all, to prefer a Greek to a barbarian, but partly also to the dread of the demagogues that Rome, notwithstanding the moderation now forced upon it by circumstances, would not neglect on a fitting opportunity to exact vengeance for the outrages perpetrated by the Tarentine rabble. The city, accordingly, came to terms with Pyrrhus. He obtained the supreme command of the troops of the Tarentines and of the other Italians in arms against Rome, along with the right of keeping a garrison in Tarentum. The expenses of the war were, of course, to be borne by the city. Pyrrhus, on the other hand, promised to remain no longer in Italy than was necessary; probably with the tacit reservation that his own judgment should fix the time during which he would be needed there. Nevertheless, the prey had almost slipped out of his hands. While the Tarentine envoys—the chiefs, no

doubt, of the war party—were absent in Epirus, the state of feeling in the city, now hard pressed by the Romans, underwent a change. The chief command was already entrusted to Agis, a man favourable to Rome, when the return of the envoys with the concluded treaty, accompanied by Cineas the confidential minister of Pyrrhus, again brought the war party to the helm.

Landing of Pyrrhus

A firmer hand now grasped the reins, and put an end to the pitiful vacillation. In the autumn of 473 Milo, the general of Pyrrhus, landed with 3000 Epirots and occupied the citadel of the town. He was followed in the beginning of the year 474 by the king himself, who landed after a stormy passage in which many lives were lost. He transported to Tarentum a respectable but miscellaneous army, consisting partly of the household troops, Molossians, Thesprotians, Chaonians, and Ambraciots; partly of the Macedonian infantry and the Thessalian cavalry, which Ptolemy king of Macedonia had conformably to stipulation handed over to him; partly of Aetolian, Acarnanian, and Athamanian mercenaries. Altogether it numbered 20,000 phalangitae, 2000 archers, 500 slingers, 3000 cavalry, and 20 elephants, and thus was not much smaller than the army with which fifty years before Alexander had crossed the Hellespont

Pyrrhus and the Coalition

The affairs of the coalition were in no very favourable state when the king arrived. The Roman consul indeed, as soon as he saw the soldiers of Milo taking the field against him instead of the Tarentine militia, had abandoned the attack on Tarentum and retreated to Apulia; but, with the exception of the territory of Tarentum, the Romans virtually ruled all Italy. The coalition had no army in the field anywhere in Lower Italy; and in Upper Italy the Etruscans, who alone were still in arms, had in the last

campaign (473) met with nothing but defeat. The allies had, before the king embarked, committed to him the chief command of all their troops, and declared that they were able to place in the field an army of 350,000 infantry and 20,000 cavalry. The reality formed a sad contrast to these great promises. The army, whose chief command had been committed to Pyrrhus, had still to be created; and for the time being the main resources available for forming it were those of Tarentum alone. The king gave orders for the enlisting of an army of Italian mercenaries with Tarentine money, and called out the able-bodied citizens to serve in the war. But the Tarentines had not so understood the agreement. They had thought to purchase victory, like any other commodity, with money; it was a sort of breach of contract, that the king should compel them to fight for it themselves. The more glad the citizens had been at first after Milo's arrival to be quit of the burdensome service of mounting guard, the more unwillingly they now rallied to the standards of the king: it was necessary to threaten the negligent with the penalty of death. This result now justified the peace party in the eyes of all, and communications were entered into, or at any rate appeared to have been entered into, even with Rome. Pyrrhus, prepared for such opposition, immediately treated Tarentum as a conquered city; soldiers were quartered in the houses, the assemblies of the people and the numerous clubs (—*sussitia*—) were suspended, the theatre was shut, the promenades were closed, and the gates were occupied with Epirot guards. A number of the leading men were sent over the sea as hostages; others escaped the like fate by flight to Rome. These strict measures were necessary, for it was absolutely impossible in any sense to rely upon the Tarentines. It was only now that the king, in possession of that important city as a basis, could begin operations in the field.

Preparations in Rome—

Commencement of the Conflict in Lower Italy

The Romans too were well aware of the conflict which awaited them. In order first of all to secure the fidelity of their allies or, in other words, of their subjects, the towns that could not be depended on were garrisoned, and the leaders of the party of independence, where it seemed needful, were arrested or executed: such was the case with a number of the members of the senate of Praeneste. For the war itself great exertions were made; a war contribution was levied; the full contingent was called forth from all their subjects and allies; even the proletarians who were properly exempt from obligation of service were called to arms. A Roman army remained as a reserve in the capital. A second advanced under the consul Tiberius Coruncanius into Etruria, and dispersed the forces of Volci and Volsinii. The main force was of course destined for Lower Italy; its departure was hastened as much as possible, in order to reach Pyrrhus while still in the territory of Tarentum, and to prevent him and his forces from forming a junction with the Samnites and other south Italian levies that were in arms against Rome. The Roman garrisons, that were placed in the Greek towns of Lower Italy, were intended temporarily to check the king's progress. But the mutiny of the troops stationed in Rhegium—one of the legions levied from the Campanian subjects of Rome under a Campanian captain Decius—deprived the Romans of that important town. It was not, however, transferred to the hands of Pyrrhus. While on the one hand the national hatred of the Campanians against the Romans undoubtedly contributed to produce this military insurrection, it was impossible on the other hand that Pyrrhus, who had crossed the sea to shield and protect the Hellenes, could receive as his allies troops who had put to death their Rhegine hosts in their own houses. Thus they remained isolated, in close league with their kinsmen and comrades in crime, the Mamertines, that is, the Campanian mercenaries of Agathocles, who had by similar means gained possession of Messana on the opposite side of the straits; and they pillaged and laid waste for their own behoof the adjacent Greek towns, such as Croton, where they

put to death the Roman garrison, and Caulonia, which they destroyed. On the other hand the Romans succeeded, by means of a weak corps which advanced along the Lucanian frontier and of the garrison of Venusia, in preventing the Lucanians and Samnites from uniting with Pyrrhus; while the main force—four legions as it would appear, and so, with a corresponding number of allied troops, at least 50,000 strong—marched against Pyrrhus, under the consul Publius Laevinus.

Battle near Heraclea

With a view to cover the Tarentine colony of Heraclea, the king had taken up a position with his own and the Tarentine troops between that city and Pandosia (3) (474). The Romans, covered by their cavalry, forced the passage of the Siris, and opened the battle with a vehement and successful cavalry charge; the king, who led his cavalry in person, was thrown from his horse, and the Greek horsemen, panic-struck by the disappearance of their leader, abandoned the field to the squadrons of the enemy. Pyrrhus, however, put himself at the head of his infantry, and began a fresh and more decisive engagement. Seven times the legions and the phalanx met in shock of battle, and still the conflict was undecided. Then Megacles, one of the best officers of the king, fell, and, because on this hotly-contested day he had worn the king's armour, the army for the second time believed that the king had fallen; the ranks wavered; Laevinus already felt sure of the victory and threw the whole of his cavalry on the flank of the Greeks. But Pyrrhus, marching with uncovered head through the ranks of the infantry, revived the sinking courage of his troops. The elephants which had hitherto been kept in reserve were brought up to meet the cavalry; the horses took fright at them; the soldiers, not knowing how to encounter the huge beasts, turned and fled; the masses of disordered horsemen and the pursuing elephants at length broke the compact ranks of the Roman infantry, and the elephants in concert with the excellent Thessalian cavalry wrought great slaughter

among the fugitives. Had not a brave Roman soldier, Gaius Minucius, the first hastate of the fourth legion, wounded one of the elephants and thereby thrown the pursuing troops into confusion, the Roman army would have been extirpated; as it was, the remainder of the Roman troops succeeded in retreating across the Siris. Their loss was great; 7000 Romans were found by the victors dead or wounded on the field of battle, 2000 were brought in prisoners; the Romans themselves stated their loss, including probably the wounded carried off the field, at 15,000 men. But Pyrrhus's army had suffered not much less: nearly 4000 of his best soldiers strewed the field of battle, and several of his ablest captains had fallen. Considering that his loss fell chiefly on the veteran soldiers who were far more difficult to be replaced than the Roman militia, and that he owed his victory only to the surprise produced by the attack of the elephants which could not be often repeated, the king, skilful judge of tactics as he was, may well at an after period have described this victory as resembling a defeat; although he was not so foolish as to communicate that piece of self-criticism to the public—as the Roman poets afterwards invented the story—in the inscription of the votive offering presented by him at Tarentum. Politically it mattered little in the first instance at what sacrifices the victory was bought; the gain of the first battle against the Romans was of inestimable value for Pyrrhus. His talents as a general had been brilliantly displayed on this new field of battle, and if anything could breathe unity and energy into the languishing league of the Italians, the victory of Heraclea could not fail to do so. But even the immediate results of the victory were considerable and lasting. Lucania was lost to the Romans: Laevinus collected the troops stationed there and marched to Apulia, The Bruttians, Lucanians, and Samnites joined Pyrrhus unmolested. With the exception of Rhegium, which pined under the oppression of the Campanian mutineers, the whole of the Greek cities joined the king, and Locri even voluntarily delivered up to him the Roman garrison; in his case they were persuaded, and with reason, that they would

not be abandoned to the Italians. The Sabellians and Greeks thus passed over to Pyrrhus; but the victory produced no further effect. The Latins showed no inclination to get quit of the Roman rule, burdensome as it might be, by the help of a foreign dynast. Venusia, although now wholly surrounded by enemies, adhered with unshaken steadfastness to Rome. Pyrrhus proposed to the prisoners taken on the Siris, whose brave demeanour the chivalrous king requited by the most honourable treatment, that they should enter his army in accordance with the Greek fashion; but he learned that he was fighting not with mercenaries, but with a nation. Not one, either Roman or Latin, took service with him.

Attempts at Peace

Pyrrhus offered peace to the Romans. He was too sagacious a soldier not to recognize the precariousness of his footing, and too skilled a statesman not to profit opportunely by the moment which placed him in the most favourable position for the conclusion of peace. He now hoped that under the first impression made by the great battle on the Romans he should be able to secure the freedom of the Greek towns in Italy, and to call into existence between them and Rome a series of states of the second and third order as dependent allies of the new Greek power; for such was the tenor of his demands: the release of all Greek towns—and therefore of the Campanian and Lucanian towns in particular—from allegiance to Rome, and restitution of the territory taken from the Samnites, Daunians, Lucanians, and Bruttians, or in other words especially the surrender of Luceria and Venusia. If a further struggle with Rome could hardly be avoided, it was not desirable at any rate to begin it till the western Hellenes should be united under one ruler, till Sicily should be acquired and perhaps Africa be conquered.

Provided with such instructions, the Thessalian Cineas, the confidential minister of Pyrrhus, went to Rome. That dexterous negotiator, whom his contemporaries compared to Demosthenes so far as a rhetorician might be compared to a statesman and the minister of a sovereign to a popular leader, had orders to display by every means the respect which the victor of Heraclea really felt for his vanquished opponents, to make known the wish of the king to come to Rome in person, to influence men's minds in the king's favour by panegyrics which sound so well in the mouth of an enemy, by earnest flatteries, and, as opportunity offered, also by well-timed gifts—in short to try upon the Romans all the arts of cabinet policy, as they had been tested at the courts of Alexandria and Antioch. The senate hesitated; to many it seemed a prudent course to draw back a step and to wait till their dangerous antagonist should have further entangled himself or should be no more. But the grey-haired and blind consular Appius Claudius (censor 442, consul 447, 458), who had long withdrawn from state affairs but had himself conducted at this decisive moment to the senate, breathed the unbroken energy of his own vehement nature with words of fire into the souls of the younger generation. They gave to the message of the king the proud reply, which was first heard on this occasion and became thenceforth a maxim of the state, that Rome never negotiated so long as there were foreign troops on Italian ground; and to make good their words they dismissed the ambassador at once from the city. The object of the mission had failed, and the dexterous diplomatist, instead of producing an effect by his oratorical art, had on the contrary been himself impressed by such manly earnestness after so severe a defeat—he declared at home that every burgess in that city had seemed to him a king; in truth, the courtier had gained a sight of a free people.

Pyrrhus Marches against Rome

Pyrrhus, who during these negotiations had advanced into Campania, immediately on the news of their being broken off marched against Rome, to co-operate with the Etruscans, to shake the allies of Rome, and to threaten the city itself. But the Romans as little allowed themselves to be terrified as cajoled. At the summons of the herald "to enrol in the room of the fallen," the young men immediately after the battle of Heraclea had pressed forward in crowds to enlist; with the two newly-formed legions and the corps withdrawn from Lucania, Laevinus, stronger than before, followed the march of the king. He protected Capua against him, and frustrated his endeavours to enter into communications with Neapolis. So firm was the attitude of the Romans that, excepting the Greeks of Lower Italy, no allied state of any note dared to break off from the Roman alliance. Then Pyrrhus turned against Rome itself. Through a rich country, whose flourishing condition he beheld with astonishment, he marched against Fregellae which he surprised, forced the passage of the Liris, and reached Anagnia, which is not more than forty miles from Rome. No army crossed his path; but everywhere the towns of Latium closed their gates against him, and with measured step Laevinus followed him from Campania, while the consul Tiberius Coruncanius, who had just concluded a seasonable peace with the Etruscans, brought up a second Roman army from the north, and in Rome itself the reserve was preparing for battle under the dictator Gnaeus Domitius Calvinus. In these circumstances Pyrrhus could accomplish nothing; no course was left to him but to retire. For a time he still remained inactive in Campania in presence of the united armies of the two consuls; but no opportunity occurred of striking an effective blow. When winter came on, the king evacuated the enemy's territory, and distributed his troops among the friendly towns, taking up his own winter quarters in Tarentum. Thereupon the Romans also desisted from their operations. The army occupied standing quarters near Firmum in Picenum, where by command of

the senate the legions defeated on the Siris spent the winter by way of punishment under tents.

Second Year of the War

Thus ended the campaign of 474. The separate peace which at the decisive moment Etruria had concluded with Rome, and the king's unexpected retreat which entirely disappointed the high-strung hopes of the Italian confederates, counterbalanced in great measure the impression of the victory of Heraclea. The Italians complained of the burdens of the war, particularly of the bad discipline of the mercenaries quartered among them, and the king, weary of the petty quarrelling and of the impolitic as well as unmilitary conduct of his allies, began to have a presentiment that the problem which had fallen to him might be, despite all tactical successes, politically insoluble. The arrival of a Roman embassy of three consulars, including Gaius Fabricius the conqueror of Thurii, again revived in him for a moment the hopes of peace; but it soon appeared that they had only power to treat for the ransom or exchange of prisoners. Pyrrhus rejected their demand, but at the festival of the Saturnalia he released all the prisoners on their word of honour. Their keeping of that word, and the repulse by the Roman ambassador of an attempt at bribery, were celebrated by posterity in a manner most unbecoming and betokening rather the dishonourable character of the later, than the honourable feeling of that earlier, epoch.

Battle of Ausculum

In the spring of 475 Pyrrhus resumed the offensive, and advanced into Apulia, whither the Roman army marched to meet him. In the hope of shaking the Roman symmarchy in these regions by a decisive victory, the king offered battle a second time, and the Romans did not refuse it. The two armies encountered each other near Ausculum (Ascoli di Puglia). Under the banners of Pyrrhus there fought, besides his Epirot and Macedonian troops,

the Italian mercenaries, the burgess-force—the white shields as they were called—of Tarentum, and the allied Lucanians, Bruttians, and Samnites—altogether 70,000 infantry, of whom 16,000 were Greeks and Epirots, more than 8000 cavalry, and nineteen elephants. The Romans were supported on that day by the Latins, Campanians, Volscians, Sabines, Umbrians, Marrucinians, Paelignians, Frentanians, and Arpanians. They too numbered above 70,000 infantry, of whom 20,000 were Roman citizens, and 8000 cavalry. Both parties had made alterations in their military system. Pyrrhus, perceiving with the sharp eye of a soldier the advantages of the Roman manipular organization, had on the wings substituted for the long front of his phalanxes an arrangement by companies with intervals between them in imitation of the cohorts, and—perhaps for political no less than for military reasons—had placed the Tarentine and Samnite cohorts between the subdivisions of his own men. In the centre alone the Epirot phalanx stood in close order. For the purpose of keeping off the elephants the Romans produced a species of war-chariot, from which projected iron poles furnished with chafing-dishes, and on which were fastened moveable masts adjusted with a view to being lowered, and ending in an iron spike—in some degree the model of the boarding-bridges which were to play so great a part in the first Punic war.

According to the Greek account of the battle, which seems less one-sided than the Roman account also extant, the Greeks had the disadvantage on the first day, as they did not succeed in deploying their line along the steep and marshy banks of the river where they were compelled to accept battle, or in bringing their cavalry and elephants into action. On the second day, however, Pyrrhus anticipated the Romans in occupying the intersected ground, and thus gained without loss the plain where he could without disturbance draw up his phalanx. Vainly did the Romans with desperate courage fall sword in hand on the -sarissae-; the phalanx preserved an unshaken front under every assault, but in its turn was unable to make any

impression on the Roman legions. It was not till the numerous escort of the elephants had, with arrows and stones hurled from slings, dislodged the combatants stationed in the Roman war-chariots and had cut the traces of the horses, and the elephants pressed upon the Roman line, that it began to waver. The giving way of the guard attached to the Roman chariots formed the signal for universal flight, which, however, did not involve the sacrifice of many lives, as the adjoining camp received the fugitives. The Roman account of the battle alone mentions the circumstance, that during the principal engagement an Arpanian corps detached from the Roman main force had attacked and set on fire the weakly-guarded Epirot camp; but, even if this were correct, the Romans are not at all justified in their assertion that the battle remained undecided. Both accounts, on the contrary, agree in stating that the Roman army retreated across the river, and that Pyrrhus remained in possession of the field of battle. The number of the fallen was, according to the Greek account, 6000 on the side of the Romans, 3505 on that of the Greeks.(4) Amongst the wounded was the king himself, whose arm had been pierced with a javelin, while he was fighting, as was his wont, in the thickest of the fray. Pyrrhus had achieved a victory, but his were unfruitful laurels; the victory was creditable to the king as a general and as a soldier, but it did not promote his political designs. What Pyrrhus needed was a brilliant success which should break up the Roman army and give an opportunity and impulse to the wavering allies to change sides; but the Roman army and the Roman confederacy still remained unbroken, and the Greek army, which was nothing without its leader, was fettered for a considerable time in consequence of his wound. He was obliged to renounce the campaign and to go into winter quarters; which the king took up in Tarentum, the Romans on this occasion in Apulia. It was becoming daily more evident that in a military point of view the resources of the king were inferior to those of the Romans, just as, politically, the loose and refractory coalition could not stand a comparison with the firmly-

established Roman symmarchy. The sudden and vehement style of the Greek warfare and the genius of the general might perhaps achieve another such victory as those of Heraclea and Ausculum, but every new victory was wearing out his resources for further enterprise, and it was clear that the Romans already felt themselves the stronger, and awaited with a courageous patience final victory. Such a war as this was not the delicate game of art that was practised and understood by the Greek princes. All strategical combinations were shattered against the full and mighty energy of the national levy. Pyrrhus felt how matters stood: weary of his victories and despising his allies, he only persevered because military honour required him not to leave Italy till he should have secured his clients from barbarian assault. With his impatient temperament it might be presumed that he would embrace the first pretext to get rid of the burdensome duty; and an opportunity of withdrawing from Italy was soon presented to him by the affairs of Sicily.

Relations of Sicily, Syracuse, and Carthage— Pyrrhus Invited to Syracuse

After the death of Agathocles (465) the Greeks of Sicily were without any leading power. While in the several Hellenic cities incapable demagogues and incapable tyrants were replacing each other, the Carthaginians, the old rulers of the western point, were extending their dominion unmolested. After Agrigentum had surrendered to them, they believed that the time had come for taking final steps towards the end which they had kept in view for centuries, and for reducing the whole island under their authority; they set themselves to attack Syracuse. That city, which formerly by its armies and fleets had disputed the possession of the island with Carthage, had through internal dissension and the weakness of its government fallen so low that it was obliged to seek for safety in the protection of its walls and in foreign aid; and none could afford that aid but

king Pyrrhus. Pyrrhus was the husband of Agathocles's daughter, and his son Alexander, then sixteen years of age, was Agathocles's grandson. Both were in every respect natural heirs of the ambitious schemes of the ruler of Syracuse; and if her freedom was at an end, Syracuse might find compensation in becoming the capital of a Hellenic empire of the West. So the Syracusans, like the Tarentines, and under similar conditions, voluntarily offered their sovereignty to king Pyrrhus (about 475); and by a singular conjuncture of affairs everything seemed to concur towards the success of the magnificent plans of the Epirot king, based as they primarily were on the possession of Tarentum and Syracuse.

League between Rome and Carthage— Third Year of the War

The immediate effect, indeed, of this union of the Italian and Sicilian Greeks under one control was a closer concert also on the part of their antagonists. Carthage and Rome now converted their old commercial treaties into an offensive and defensive league against Pyrrhus (475), the tenor of which was that, if Pyrrhus invaded Roman or Carthaginian territory, the party which was not attacked should furnish that which was assailed with a contingent on its own territory and should itself defray the expense of the auxiliary troops; that in such an event Carthage should be bound to furnish transports and to assist the Romans also with a war fleet, but the crews of that fleet should not be obliged to fight for the Romans by land; that lastly, both states should pledge themselves not to conclude a separate peace with Pyrrhus. The object of the Romans in entering into the treaty was to render possible an attack on Tarentum and to cut off Pyrrhus from his own country, neither of which ends could be attained without the co-operation of the Punic fleet; the object of the Carthaginians was to detain the king in Italy, so that they might be able without molestation to carry into effect their designs on Syracuse.(5) It was accordingly the interest of both

powers in the first instance to secure the sea between Italy and Sicily. A powerful Carthaginian fleet of 120 sail under the admiral Mago proceeded from Ostia, whither Mago seems to have gone to conclude the treaty, to the Sicilian straits. The Mamertines, who anticipated righteous punishment for their outrage upon the Greek population of Messana in the event of Pyrrhus becoming ruler of Sicily and Italy, attached themselves closely to the Romans and Carthaginians, and secured for them the Sicilian side of the straits. The allies would willingly have brought Rhegium also on the opposite coast under their power; but Rome could not possibly pardon the Campanian garrison, and an attempt of the combined Romans and Carthaginians to gain the city by force of arms miscarried. The Carthaginian fleet sailed thence for Syracuse and blockaded the city by sea, while at the same time a strong Phoenician army began the siege by land (476). It was high time that Pyrrhus should appear at Syracuse: but, in fact, matters in Italy were by no means in such a condition that he and his troops could be dispensed with there. The two consuls of 476, Gaius Fabricius Luscinus, and Quintus Aemilius Papus, both experienced generals, had begun the new campaign with vigour, and although the Romans had hitherto sustained nothing but defeat in this war, it was not they but the victors that were weary of it and longed for peace. Pyrrhus made another attempt to obtain accommodation on tolerable terms. The consul Fabricius had handed over to the king a wretch, who had proposed to poison him on condition of being well paid for it. Not only did the king in token of gratitude release all his Roman prisoners without ransom, but he felt himself so moved by the generosity of his brave opponents that he offered, by way of personal recompense, a singularly fair and favourable peace. Cineas appears to have gone once more to Rome, and Carthage seems to have been seriously apprehensive that Rome might come to terms. But the senate remained firm, and repeated its former answer. Unless the king was willing to allow Syracuse to fall into the hands of the Carthaginians and to have his grand

scheme thereby disconcerted, no other course remained than to abandon his Italian allies and to confine himself for the time being to the occupation of the most important seaports, particularly Tarentum and Locri. In vain the Lucanians and Samnites conjured him not to desert them; in vain the Tarentines summoned him either to comply with his duty as their general or to give them back their city. The king met their complaints and reproaches with the consolatory assurance that better times were coming, or with abrupt dismissal. Milo remained behind in Tarentum; Alexander, the king's son, in Locri; and Pyrrhus, with his main force, embarked in the spring of 476 at Tarentum for Syracuse.

Embarkation of Pyrrhus for Sicily— The War in Italy Flags

By the departure of Pyrrhus the hands of the Romans were set free in Italy; none ventured to oppose them in the open field, and their antagonists everywhere confined themselves to their fastnesses or their forests. The struggle however was not terminated so rapidly as might have been expected; partly in consequence of its nature as a warfare of mountain skirmishes and sieges, partly also, doubtless, from the exhaustion of the Romans, whose fearful losses are indicated by a decrease of 17,000 in the burgess-roll from 473 to 479. In 476 the consul Gaius Fabricius succeeded in inducing the considerable Tarentine settlement of Heraclea to enter into a separate peace, which was granted to it on the most favourable terms. In the campaign of 477 a desultory warfare was carried on in Samnium, where an attack thoughtlessly made on some entrenched heights cost the Romans many lives, and thereafter in southern Italy, where the Lucanians and Bruttians were defeated. On the other hand Milo, issuing from Tarentum, anticipated the Romans in their attempt to surprise Croton: whereupon the Epirot garrison made even a successful sortie against the besieging army. At length, however, the consul succeeded by a stratagem in inducing it to

march forth, and in possessing himself of the undefended town (477). An incident of more moment was the slaughter of the Epirot garrison by the Locrians, who had formerly surrendered the Roman garrison to the king, and now atoned for one act of treachery by another. By that step the whole south coast came into the hands of the Romans, with the exception of Rhegium and Tarentum. These successes, however, advanced the main object but little. Lower Italy itself had long been defenceless; but Pyrrhus was not subdued so long as Tarentum remained in his hands and thus rendered it possible for him to renew the war at his pleasure, and the Romans could not think of undertaking the siege of that city. Even apart from the fact that in siege-warfare, which had been revolutionized by Philip of Macedonia and Demetrius Poliorcetes, the Romans were at a very decided disadvantage when matched against an experienced and resolute Greek commandant, a strong fleet was needed for such an enterprise, and, although the Carthaginian treaty promised to the Romans support by sea, the affairs of Carthage herself in Sicily were by no means in such a condition as to enable her to grant that support.

Pyrrhus Master of Sicily

The landing of Pyrrhus on the island, which, in spite of the Carthaginian fleet, had taken place without interruption, had changed at once the aspect of matters there. He had immediately relieved Syracuse, had in a short time united under his sway all the free Greek cities, and at the head of the Sicilian confederation had wrested from the Carthaginians nearly their whole possessions. It was with difficulty that the Carthaginians could, by the help of their fleet which at that time ruled the Mediterranean without a rival, maintain themselves in Lilybaeum; it was with difficulty, and amidst constant assaults, that the Mamertines held their ground in Messana. Under such circumstances, agreeably to the treaty of 475, it would have been the duty of Rome to lend her aid to the Carthaginians in Sicily, far rather than

that of Carthage to help the Romans with her fleet to conquer Tarentum; but on the side of neither ally was there much inclination to secure or to extend the power of the other. Carthage had only offered help to the Romans when the real danger was past; they in their turn had done nothing to prevent the departure of the king from Italy and the fall of the Carthaginian power in Sicily. Indeed, in open violation of the treaties Carthage had even proposed to the king a separate peace, offering, in return for the undisturbed possession of Lilybaeum, to give up all claim to her other Sicilian possessions and even to place at the disposal of the king money and ships of war, of course with a view to his crossing to Italy and renewing the war against Rome. It was evident, however, that with the possession of Lilybaeum and the departure of the king the position of the Carthaginians in the island would be nearly the same as it had been before the landing of Pyrrhus; the Greek cities if left to themselves were powerless, and the lost territory would be easily regained. So Pyrrhus rejected the doubly perfidious proposal, and proceeded to build for himself a war fleet. Mere ignorance and shortsightedness in after times censured this step; but it was really as necessary as it was, with the resources of the island, easy of accomplishment. Apart from the consideration that the master of Ambracia, Tarentum, and Syracuse could not dispense with a naval force, he needed a fleet to conquer Lilybaeum, to protect Tarentum, and to attack Carthage at home as Agathocles, Regulus, and Scipio did before or afterwards so successfully. Pyrrhus never was so near to the attainment of his aim as in the summer of 478, when he saw Carthage humbled before him, commanded Sicily, and retained a firm footing in Italy by the possession of Tarentum, and when the newly-created fleet, which was to connect, to secure, and to augment these successes, lay ready for sea in the harbour of Syracuse.

The Sicilian Government of Pyrrhus

The real weakness of the position of Pyrrhus lay in his faulty internal policy. He governed Sicily as he had seen Ptolemy rule in Egypt: he showed no respect to the local constitutions; he placed his confidants as magistrates over the cities whenever, and for as long as, he pleased; he made his courtiers judges instead of the native jurymen; he pronounced arbitrary sentences of confiscation, banishment, or death, even against those who had been most active in promoting his coming thither; he placed garrisons in the towns, and ruled over Sicily not as the leader of a national league, but as a king. In so doing he probably reckoned himself according to oriental-Hellenistic ideas a good and wise ruler, and perhaps he really was so; but the Greeks bore this transplantation of the system of the Diadochi to Syracuse with all the impatience of a nation that in its long struggle for freedom had lost all habits of discipline; the Carthaginian yoke very soon appeared to the foolish people more tolerable than their new military government. The most important cities entered into communications with the Carthaginians, and even with the Mamertines; a strong Carthaginian army ventured again to appear on the island; and everywhere supported by the Greeks, it made rapid progress. In the battle which Pyrrhus fought with it fortune was, as always, with the "Eagle"; but the circumstances served to show what the state of feeling was in the island, and what might and must ensue, if the king should depart.

Departure of Pyrrhus to Italy

To this first and most essential error Pyrrhus added a second; he proceeded with his fleet, not to Lilybaeum, but to Tarentum. It was evident, looking to the very ferment in the minds of the Sicilians, that he ought first of all to have dislodged the Carthaginians wholly from the island, and thereby to have cut off the discontented from their last support, before he turned his attention to Italy; in that quarter there was nothing to be lost, for Tarentum was safe enough for him, and the other allies were of little moment now that they had been abandoned. It is conceivable that his soldierly spirit impelled him to wipe off the stain of his not very honourable departure in the year 476 by a brilliant return, and that his heart bled when he heard the complaints of the Lucanians and Samnites. But problems, such as Pyrrhus had proposed to himself, can only be solved by men of iron nature, who are able to control their feelings of compassion and even their sense of honour; and Pyrrhus was not one of these.

Fall of the Sicilian Kingdom— Recommencement of the Italian War

The fatal embarkation took place towards the end of 478. On the voyage the new Syracusan fleet had to sustain a sharp engagement with that of Carthage, in which it lost a considerable number of vessels. The departure of the king and the accounts of this first misfortune sufficed for the fall of the Sicilian kingdom. On the arrival of the news all the cities refused to the absent king money and troops; and the brilliant state collapsed even more rapidly than it had arisen, partly because the king had himself undermined in the hearts of his subjects the loyalty and affection on which every commonwealth depends, partly because the people lacked the devotedness to renounce freedom for perhaps but a short term in order to save their nationality. Thus the enterprise of Pyrrhus was wrecked, and the plan of his

life was ruined irretrievably; he was thenceforth an adventurer, who felt that he had been great and was so no longer, and who now waged war no longer as a means to an end, but in order to drown thought amidst the reckless excitement of the game and to find, if possible, in the tumult of battle a soldier's death. Arrived on the Italian coast, the king began by an attempt to get possession of Rhegium; but the Campanians repulsed the attack with the aid of the Mamertines, and in the heat of the conflict before the town the king himself was wounded in the act of striking down an officer of the enemy. On the other hand he surprised Locri, whose inhabitants suffered severely for their slaughter of the Epirot garrison, and he plundered the rich treasury of the temple of Persephone there, to replenish his empty exchequer. Thus he arrived at Tarentum, it is said with 20,000 infantry and 3000 cavalry. But these were no longer the experienced veterans of former days, and the Italians no longer hailed them as deliverers; the confidence and hope with which they had received the king five years before were gone; the allies were destitute of money and of men.

Battle near Beneventum—

Pyrrhus Leaves Italy—

Death of Pyrrhus

The king took the field in the spring of 479 with the view of aiding the hard-pressed Samnites, in whose territory the Romans had passed the previous winter; and he forced the consul Manius Curius to give battle near Beneventum on the -campus Arusinus-, before he could form a junction with his colleague advancing from Lucania. But the division of the army, which was intended to take the Romans in flank, lost its way during its night march in the woods, and failed to appear at the decisive moment; and after a hot conflict the elephants again decided the battle, but decided it this time in favour of the Romans, for, thrown into confusion by the archers who were stationed to protect the camp, they attacked their own people. The

victors occupied the camp; there fell into their hands 1300 prisoners and four elephants—the first that were seen in Rome—besides an immense spoil, from the proceeds of which the aqueduct, which conveyed the water of the Anio from Tibur to Rome, was subsequently built. Without troops to keep the field and without money, Pyrrhus applied to his allies who had contributed to his equipment for Italy, the kings of Macedonia and Asia; but even in his native land he was no longer feared, and his request was refused. Despairing of success against Rome and exasperated by these refusals, Pyrrhus left a garrison in Tarentum, and went home himself in the same year (479) to Greece, where some prospect of gain might open up to the desperate player sooner than amidst the steady and measured course of Italian affairs. In fact, he not only rapidly recovered the portion of his kingdom that had been taken away, but once more grasped, and not without success, at the Macedonian throne. But his last plans also were thwarted by the calm and cautious policy of Antigonus Gonatas, and still more by his own vehemence and inability to tame his proud spirit; he still gained battles, but he no longer gained any lasting success, and met his death in a miserable street combat in Peloponnesian Argos (482).

Last Struggles in Italy— Capture of Tarentum

In Italy the war came to an end with the battle of Beneventum; the last convulsive struggles of the national party died slowly away. So long indeed as the warrior prince, whose mighty arm had ventured to seize the reins of destiny in Italy, was still among the living, he held, even when absent, the stronghold of Tarentum against Rome. Although after the departure of the king the peace party recovered ascendancy in the city, Milo, who commanded there on behalf of Pyrrhus, rejected their suggestions and allowed the citizens favourable to Rome, who had erected a separate fort for themselves in the territory of Tarentum, to conclude peace with Rome as

they pleased, without on that account opening his gates. But when after the death of Pyrrhus a Carthaginian fleet entered the harbour, and Milo saw that the citizens were on the point of delivering up the city to the Carthaginians, he preferred to hand over the citadel to the Roman consul Lucius Papirius (482), and by that means to secure a free departure for himself and his troops. For the Romans this was an immense piece of good fortune. After the experiences of Philip before Perinthus and Byzantium, of Demetrius before Rhodes, and of Pyrrhus before Lilybaeum, it may be doubted whether the strategy of that period was at all able to compel the surrender of a town well fortified, well defended, and freely accessible by sea; and how different a turn matters might have taken, had Tarentum become to the Phoenicians in Italy what Lilybaeum was to them in Sicily! What was done, however, could not be undone. The Carthaginian admiral, when he saw the citadel in the hands of the Romans, declared that he had only appeared before Tarentum conformably to the treaty to lend assistance to his allies in the siege of the town, and set sail for Africa; and the Roman embassy, which was sent to Carthage to demand explanations and make complaints regarding the attempted occupation of Tarentum, brought back nothing but a solemn confirmation on oath of that allegation as to its ally's friendly design, with which accordingly the Romans had for the time to rest content. The Tarentines obtained from Rome, presumably on the intercession of their emigrants, the restoration of autonomy; but their arms and ships had to be given up and their walls had to be pulled down.

Submission of Lower Italy

In the same year, in which Tarentum became Roman, the Samnites, Lucanians, and Bruttians finally submitted. The latter were obliged to cede the half of the lucrative, and for ship-building important, forest of Sila.

At length also the band that for ten years had sheltered themselves in Rhegium were duly chastised for the breach of their military oath, as well as for the murder of the citizens of Rhegium and of the garrison of Croton. In this instance Rome, while vindicating her own rights vindicated the general cause of the Hellenes against the barbarians. Hiero, the new ruler of Syracuse, accordingly supported the Romans before Rhegium by sending supplies and a contingent, and in combination with the Roman expedition against the garrison of Rhegium he made an attack upon their fellow-countrymen and fellow-criminals, the Mamertines of Messana. The siege of the latter town was long protracted. On the other hand Rhegium, although the mutineers resisted long and obstinately, was stormed by the Romans in 484; the survivors of the garrison were scourged and beheaded in the public market at Rome, while the old inhabitants were recalled and, as far as possible, reinstated in their possessions. Thus all Italy was, in 484, reduced to subjection. The Samnites alone, the most obstinate antagonists of Rome, still in spite of the official conclusion of peace continued the struggle as "robbers," so that in 485 both consuls had to be once more despatched against them. But even the most high-spirited national courage—the bravery of despair—comes to an end; the sword and the gibbet at length carried quiet even into the mountains of Samnium.

Construction of New Fortresses and Roads

For the securing of these immense acquisitions a new series of colonies was instituted: Paestum and Cosa in Lucania (481); Beneventum (486), and Aesernia (about 491) to hold Samnium in check; and, as outposts against the Gauls, Ariminum (486), Firmum in Picenum (about 490), and the burgess colony of Castrum Novum. Preparations were made for the continuation of the great southern highway—which acquired in the fortress of Beneventum a new station intermediate between Capua and Venusia—as far as the seaports of Tarentum and Brundisium, and for the colonization of

the latter seaport, which Roman policy had selected as the rival and successor of the Tarentine emporium. The construction of the new fortresses and roads gave rise to some further wars with the small tribes, whose territory was thereby curtailed: with the Picentes (485, 486), a number of whom were transplanted to the district of Salernum; with the Sallentines about Brundisium (487, 488); and with the Umbrian Sassinates (487, 488), who seem to have occupied the territory of Ariminum after the expulsion of the Senones. By these establishments the dominion of Rome was extended over the interior of Lower Italy, and over the whole Italian east coast from the Ionian sea to the Celtic frontier.

Maritime Relations

Before we describe the political organization under which the Italy which was thus united was governed on the part of Rome, it remains that we should glance at the maritime relations that subsisted in the fourth and fifth centuries. At this period Syracuse and Carthage were the main competitors for the dominion of the western waters. On the whole, notwithstanding the great temporary successes which Dionysius (348-389), Agathocles (437-465), and Pyrrhus (476-478) obtained at sea, Carthage had the preponderance and Syracuse sank more and more into a naval power of the second rank. The maritime importance of Etruria was wholly gone;(6) the hitherto Etruscan island of Corsica, if it did not quite pass into the possession, fell under the maritime supremacy, of the Carthaginians. Tarentum, which for a time had played a considerable part, had its power broken by the Roman occupation. The brave Massiliots maintained their ground in their own waters; but they exercised no material influence over the course of events in those of Italy. The other maritime cities hardly came as yet into serious account.

Decline of the Roman Naval Power

Rome itself was not exempt from a similar fate; its own waters were likewise commanded by foreign fleets. It was indeed from the first a maritime city, and in the period of its vigour never was so untrue to its ancient traditions as wholly to neglect its war marine or so foolish as to desire to be a mere continental power. Latium furnished the finest timber for ship-building, far surpassing the famed growths of Lower Italy; and the very docks constantly maintained in Rome are enough to show that the Romans never abandoned the idea of possessing a fleet of their own. During the perilous crises, however, which the expulsion of the kings, the internal disturbances in the Romano-Latin confederacy, and the unhappy wars with the Etruscans and Celts brought upon Rome, the Romans could take but little interest in the state of matters in the Mediterranean; and, in consequence of the policy of Rome directing itself more and more decidedly to the subjugation of the Italian continent, the growth of its naval power was arrested. There is hardly any mention of Latin vessels of war up to the end of the fourth century, except that the votive offering from the Veientine spoil was sent to Delphi in a Roman vessel (360). The Antiates indeed continued to prosecute their commerce with armed vessels and thus, as occasion offered, to practise the trade of piracy also, and the "Tyrrhene corsair" Postumius, whom Timoleon captured about 415, may certainly have been an Antiate; but the Antiates were scarcely to be reckoned among the naval powers of that period, and, had they been so, the fact must from the attitude of Antium towards Rome have been anything but an advantage to the latter. The extent to which the Roman naval power had declined about the year 400 is shown by the plundering of the Latin coasts by a Greek, presumably a Sicilian, war fleet in 405, while at the same time Celtic hordes were traversing and devastating the Latin land.(7) In the following year (406), and beyond doubt under the immediate impression produced by these serious events, the Roman community and the Phoenicians of Carthage, acting respectively for themselves and for their dependent allies, concluded

a treaty of commerce and navigation—the oldest Roman document of which the text has reached us, although only in a Greek translation.(8) In that treaty the Romans had to come under obligation not to navigate the Libyan coast to the west of the Fair Promontory (Cape Bon) excepting in cases of necessity. On the other hand they obtained the privilege of freely trading, like the natives, in Sicily, so far as it was Carthaginian; and in Africa and Sardinia they obtained at least the right to dispose of their merchandise at a price fixed with the concurrence of the Carthaginian officials and guaranteed by the Carthaginian community. The privilege of free trading seems to have been granted to the Carthaginians at least in Rome, perhaps in all Latium; only they bound themselves neither to do violence to the subject Latin communities,(9) nor, if they should set foot as enemies on Latin soil, to take up their quarters for a night on shore—in other words, not to extend their piratical inroads into the interior—nor to construct any fortresses in the Latin land.

We may probably assign to the same period the already mentioned(10) treaty between Rome and Tarentum, respecting the date of which we are only told that it was concluded a considerable time before 472. By it the Romans bound themselves—for what concessions on the part of Tarentum is not stated—not to navigate the waters to the east of the Lacinian promontory; a stipulation by which they were thus wholly excluded from the eastern basin of the Mediterranean.

Roman Fortification of the Coast

These were disasters no less than the defeat on the Allia, and the Roman senate seems to have felt them as such and to have made use of the favourable turn, which the Italian relations assumed soon after the conclusion of the humiliating treaties with Carthage and Tarentum, with all energy to improve its depressed maritime position. The most important of

the coast towns were furnished with Roman colonies: Pyrgi the seaport of Caere, the colonization of which probably falls within this period; along the west coast, Antium in 415,(11) Tarracina in 425,(12) the island of Pontia in 441,(13) so that, as Ardea and Circeii had previously received colonists, all the Latin seaports of consequence in the territory of the Rutuli and Volsci had now become Latin or burgess colonies; further, in the territory of the Aurunci, Minturnae and Sinuessa in 459;(14) in that of the Lucanians, Paestum and Cosa in 481;(15) and, on the coast of the Adriatic, Sena Gallica and Castrum Novum about 471,(16) and Ariminum in 486;(17) to which falls to be added the occupation of Brundisium, which took place immediately after the close of the Pyrrhic war. In the greater part of these places—the burgess or maritime colonies(18)—the young men were exempted from serving in the legions and destined solely for the watching of the coasts. The well judged preference given at the same time to the Greeks of Lower Italy over their Sabellian neighbours, particularly to the considerable communities of Neapolis, Rhegium, Locri, Thurii, and Heraclea, and their similar exemption under the like conditions from furnishing contingents to the land army, completed the network drawn by Rome around the coasts of Italy.

But with a statesmanlike sagacity, from which the succeeding generations might have drawn a lesson, the leading men of the Roman commonwealth perceived that all these coast fortifications and coast garrisons could not but prove inadequate, unless the war marine of the state were again placed on a footing that should command respect. Some sort of nucleus for this purpose was already furnished on the subjugation of Antium (416) by the serviceable war-galleys which were carried off to the Roman docks; but the enactment at the same time, that the Antiates should abstain from all maritime traffic,(19) is a very clear and distinct indication how weak the Romans then felt themselves at sea, and how completely their maritime policy was still summed up in the occupation of places on the coast.

Thereafter, when the Greek cities of southern Italy, Neapolis leading the way in 428, were admitted to the clientship of Rome, the war-vessels, which each of these cities bound itself to furnish as a war contribution under the alliance to the Romans, formed at least a renewed nucleus for a Roman fleet. In 443, moreover, two fleet-masters (-duoviri navales-) were nominated in consequence of a resolution of the burgesses specially passed to that effect, and this Roman naval force co-operated in the Samnite war at the siege of Nuceria.(20) Perhaps even the remarkable mission of a Roman fleet of twenty-five sail to found a colony in Corsica, which Theophrastus mentions in his "History of Plants" written about 446, belongs to this period. But how little was immediately accomplished with all this preparation, is shown by the renewed treaty with Carthage in 448. While the stipulations of the treaty of 406 relating to Italy and Sicily(21) remained unchanged, the Romans were now prohibited not only from the navigation of the eastern waters, but also from that of the Atlantic Ocean which was previously permitted, as well as debarred from holding commercial intercourse with the subjects of Carthage in Sardinia and Africa, and also, in all probability, from effecting a settlement in Corsica;(22) so that only Carthaginian Sicily and Carthage itself remained open to their traffic. We recognize here the jealousy of the dominant maritime power, gradually increasing with the extension of the Roman dominion along the coasts. Carthage compelled the Romans to acquiesce in her prohibitive system, to submit to be excluded from the seats of production in the west and east (connected with which exclusion is the story of a public reward bestowed on the Phoenician mariner who at the sacrifice of his own ship decoyed a Roman vessel, steering after him into the Atlantic Ocean, to perish on a sand-bank), and to restrict their navigation under the treaty to the narrow space of the western Mediterranean—and all this for the mere purpose of averting pillage from their coasts and of securing their ancient and important trading connection with Sicily. The Romans were obliged to yield

to these terms; but they did not desist from their efforts to rescue their marine from its condition of impotence.

Quaestors of the Fleet—

Variance between Rome and Carthage

A comprehensive measure with that view was the institution of four quaestors of the fleet (-quaestores classici-) in 487: of whom the first was stationed at Ostia the port of Rome; the second, stationed at Cales then the capital of Roman Campania, had to superintend the ports of Campania and Magna Graecia; the third, stationed at Ariminum, superintended the ports on the other side of the Apennines; the district assigned to the fourth is not known. These new standing officials were intended to exercise not the sole, but a conjoint, guardianship of the coasts, and to form a war marine for their protection. The objects of the Roman senate—to recover their independence by sea, to cut off the maritime communications of Tarentum, to close the Adriatic against fleets coming from Epirus, and to emancipate themselves from Carthaginian supremacy—were very obvious. Their already explained relations with Carthage during the last Italian war discover traces of such views. King Pyrrhus indeed compelled the two great cities once more—it was for the last time —to conclude an offensive alliance; but the lukewarmness and faithlessness of that alliance, the attempts of the Carthaginians to establish themselves in Rhegium and Tarentum, and the immediate occupation of Brundisium by the Romans after the termination of the war, show clearly how much their respective interests already came into collision.

Rome and the Greek Naval Powers

Rome very naturally sought to find support against Carthage from the Hellenic maritime states. Her old and close relations of amity with Massilia continued uninterrupted. The votive offering sent by Rome to Delphi, after

the conquest of Veii, was preserved there in the treasury of the Massiliots. After the capture of Rome by the Celts there was a collection in Massilia for the sufferers by the fire, in which the city chest took the lead; in return the Roman senate granted commercial advantages to the Massiliot merchants, and, at the celebration of the games in the Forum assigned a position of honour (-Graecostasis-) to the Massiliots by the side of the platform for the senators. To the same category belong the treaties of commerce and amity concluded by the Romans about 448 with Rhodes and not long after with Apollonia, a considerable mercantile town on the Epirot coast, and especially the closer relation, so fraught with danger for Carthage, which immediately after the end of the Pyrrhic war sprang up between Rome and Syracuse.(23)

While the Roman power by sea was thus very far from keeping pace with the immense development of their power by land, and the war marine belonging to the Romans in particular was by no means such as from the geographical and commercial position of the city it ought to have been, yet it began gradually to emerge out of the complete nullity to which it had been reduced about the year 400; and, considering the great resources of Italy, the Phoenicians might well follow its efforts with anxious eyes.

The crisis in reference to the supremacy of the Italian waters was approaching; by land the contest was decided. For the first time Italy was united into one state under the sovereignty of the Roman community. What political prerogatives the Roman community on this occasion withdrew from all the other Italian communities and took into its own sole keeping, or in other words, what conception in state-law is to be associated with this sovereignty of Rome, we are nowhere expressly informed, and—a significant circumstance, indicating prudent calculation—there does not even exist any generally current expression for that conception.(24) The only privileges that demonstrably belonged to it were the rights of making

war, of concluding treaties, and of coining money. No Italian community could declare war against any foreign state, or even negotiate with it, or coin money for circulation. On the other hand every declaration of war made by the Roman people and every state-treaty resolved upon by it were binding in law on all the other Italian communities, and the silver money of Rome was legally current throughout all Italy. It is probable that the formulated prerogatives of the leading community extended no further. But to these there were necessarily attached rights of sovereignty that practically went far beyond them.

The Full Roman Franchise

The relations, which the Italians sustained to the leading community, exhibited in detail great inequalities. In this point of view, in addition to the full burgesses of Rome, there were three different classes of subjects to be distinguished. The full franchise itself, in the first place, was extended as far as was possible, without wholly abandoning the idea of an urban commonwealth as applied to the Roman commune. The old burgess-domain had hitherto been enlarged chiefly by individual assignation in such a way that southern Etruria as far as towards Caere and Falerii,(25) the districts taken from the Hernici on the Sacco and on the Anio(26) the largest part of the Sabine country(27) and large tracts of the territory formerly Volscian, especially the Pomptine plain(28) were converted into land for Roman farmers, and new burgess-districts were instituted mostly for their inhabitants. The same course had even already been taken with the Falernian district on the Volturnus ceded by Capua.(29) All these burgesses domiciled outside of Rome were without a commonwealth and an administration of their own; on the assigned territory there arose at the most market-villages (-fora et conciliabula-). In a position not greatly different were placed the burgesses sent out to the so-called maritime colonies mentioned above, who were likewise left in possession of the full burgess-

rights of Rome, and whose self-administration was of little moment. Towards the close of this period the Roman community appears to have begun to grant full burgess-rights to the adjoining communities of passive burgesses who were of like or closely kindred nationality; this was probably done first for Tusculum,(30) and so, presumably, also for the other communities of passive burgesses in Latium proper, then at the end of this period (486) was extended to the Sabine towns, which doubtless were even then essentially Latinized and had given sufficient proof of their fidelity in the last severe war. These towns retained the restricted self-administration, which under their earlier legal position belonged to them, even after their admission into the Roman burgess-union; it was they more than the maritime colonies that furnished the model for the special commonwealths subsisting within the body of Roman full burgesses and so, in the course of time, for the Roman municipal organization. Accordingly the range of the full Roman burgesses must at the end of this epoch have extended northward as far as the vicinity of Caere, eastward as far as the Apennines, and southward as far as Tarracina; although in this case indeed we cannot speak of boundary in a strict sense, partly because a number of federal towns with Latin rights, such as Tibur, Praeneste, Signia, Norba, Circeii, were found within these bounds, partly because beyond them the inhabitants of Minturnae, Sinuessa, of the Falernian territory, of the town Sena Gallica and some other townships, likewise possessed the full franchise, and families of Roman farmers were presumably to be even now found scattered throughout Italy, either isolated or united in villages.

Subject Communities

Among the subject communities the passive burgesses (-cives sine suffragio-) apart from the privilege of electing and being elected, stood on an equality of rights and duties with the full burgesses. Their legal position was regulated by the decrees of the Roman comitia and the rules issued for

them by the Roman praetor, which, however, were doubtless based essentially on the previous arrangements. Justice was administered for them by the Roman praetor or his deputies (-praefecti-) annually sent to the individual communities. Those of them in a better position, such as the city of Capua,(31) retained self-administration and along with it the continued use of the native language, and had officials of their own who took charge of the levy and the census. The communities of inferior rights such as Caere(32) were deprived even of self-administration, and this was doubtless the most oppressive among the different forms of subjection. However, as was above remarked, there is already apparent at the close of this period an effort to incorporate these communities, at least so far as they were -de facto- Latinized, among the full burgesses.

Latins

Among the subject communities the most privileged and most important class was that of the Latin towns, which obtained accessions equally numerous and important in the autonomous communities founded by Rome within and even beyond Italy—the Latin colonies, as they were called — and was always increasing in consequence of new settlements of the same nature. These new urban communities of Roman origin, but with Latin rights, became more and more the real buttresses of the Roman rule over Italy. These Latins, however, were by no means those with whom the battles of the lake Regillus and Trifanum had been fought. They were not those old members of the Alban league, who reckoned themselves originally equal to, if not better than, the community of Rome, and who felt the dominion of Rome to be an oppressive yoke, as the fearfully rigorous measures of security taken against Praeneste at the beginning of the war with Pyrrhus, and the collisions that evidently long continued to occur with the Praenestines in particular, show. This old Latium had essentially either perished or become merged in Rome, and it now numbered but few

communities politically self-subsisting, and these, with the exception of Tibur and Praeneste, throughout insignificant. The Latium of the later times of the republic, on the contrary, consisted almost exclusively of communities, which from the beginning had honoured Rome as their capital and parent city; which, settled amidst regions of alien language and of alien habits, were attached to Rome by community of language, of law, and of manners; which, as the petty tyrants of the surrounding districts, were obliged doubtless to lean on Rome for their very existence, like advanced posts leaning upon the main army; and which, in fine, in consequence of the increasing material advantages of Roman citizenship, were ever deriving very considerable benefit from their equality of rights with the Romans, limited though it was. A portion of the Roman domain, for instance, was usually assigned to them for their separate use, and participation in the state leases and contracts was open to them as to the Roman burgess. Certainly in their case also the consequences of the self-subsistence granted to them did not wholly fail to appear. Venusian inscriptions of the time of the Roman republic, and Beneventane inscriptions recently brought to light,(33) show that Venusia as well as Rome had its plebs and its tribunes of the people, and that the chief magistrates of Beneventum bore the title of consul at least about the time of the Hannibalic war. Both communities are among the most recent of the Latin colonies with older rights: we perceive what pretensions were stirring in them about the middle of the fifth century. These so-called Latins, issuing from the Roman burgess-body and feeling themselves in every respect on a level with it, already began to view with displeasure their subordinate federal rights and to strive after full equalization. Accordingly the senate had exerted itself to curtail these Latin communities—however important they were for Rome—as far as possible, in their rights and privileges, and to convert their position from that of allies to that of subjects, so far as this could be done without removing the wall of partition between them and the non-Latin communities of Italy. We have

already described the abolition of the league of the Latin communities itself as well as of their former complete equality of rights, and the loss of the most important political privileges belonging to them. On the complete subjugation of Italy a further step was taken, and a beginning was made towards the restriction of the personal rights—that had not hitherto been touched—of the individual Latin, especially the important right of freedom of settlement. In the case of Ariminum founded in 486 and of all the autonomous communities constituted afterwards, the advantage enjoyed by them, as compared with other subjects, was restricted to their equalization with burgesses of the Roman community so far as regarded private rights — those of traffic and barter as well as those of inheritance.(34) Presumably about the same time the full right of free migration allowed to the Latin communities hitherto established—the title of every one of their burgesses to gain by transmigration to Rome full burgess-rights there—was, for the Latin colonies of later erection, restricted to those persons who had attained to the highest office of the community in their native home; these alone were allowed to exchange their colonial burgess-rights for the Roman. This clearly shows the complete revolution in the position of Rome. So long as Rome was still but one among the many urban communities of Italy, although that one might be the first, admission even to the unrestricted Roman franchise was universally regarded as a gain for the admitting community, and the acquisition of that franchise by non-burgesses was facilitated in every way, and was in fact often imposed on them as a punishment. But after the Roman community became sole sovereign and all the others were its servants, the state of matters changed. The Roman community began jealously to guard its franchise, and accordingly put an end in the first instance to the old full liberty of migration; although the statesmen of that period were wise enough still to keep admission to the Roman franchise legally open at least to the men of eminence and of capacity in the highest class of subject communities. The Latins were thus

made to feel that Rome, after having subjugated Italy mainly by their aid, had now no longer need of them as before.

Non-Latin Allied Communities

Lastly, the relations of the non-Latin allied communities were subject, as a matter of course, to very various rules, just as each particular treaty of alliance had defined them. Several of these perpetual alliances, such as that with the Hernican communities,(35) passed over to a footing of complete equalization with the Latin. Others, in which this was not the case, such as those with Neapolis(36), Nola(37), and Heraclea(38), granted rights comparatively comprehensive; while others, such as the Tarentine and Samnite treaties, may have approximated to despotism.

Dissolution of National Leagues— Furnishing of Contingents

As a general rule, it may be taken for granted that not only the Latin and Hernican national confederations—as to which the fact is expressly stated—but all such confederations subsisting in Italy, and the Samnite and Lucanian leagues in particular, were legally dissolved or at any rate reduced to insignificance, and that in general no Italian community was allowed the right of acquiring property or of intermarriage, or even the right of joint consultation and resolution, with any other. Further, provision must have been made, under different forms, for placing the military and financial resources of all the Italian communities at the disposal of the leading community. Although the burgess militia on the one hand, and the contingents of the "Latin name" on the other, were still regarded as the main and integral constituents of the Roman army, and in that way its national character was on the whole preserved, the Roman *-cives sine suffragio* were called forth to join its ranks, and not only so, but beyond doubt the non-Latin federate communities also were either bound to furnish ships of

war, as was the case with the Greek cities, or were placed on the roll of contingent-furnishing Italians (-formula togatorum-), as must have been ordained at once or gradually in the case of the Apulians, Sabellians, and Etruscans. In general this contingent, like that of the Latin communities, appears to have had its numbers definitely fixed, although, in case of necessity, the leading community was not precluded from making a larger requisition. This at the same time involved an indirect taxation, as every community was bound itself to equip and to pay its own contingent. Accordingly it was not without design that the supply of the most costly requisites for war devolved chiefly on the Latin, or non-Latin federate communities; that the war marine was for the most part kept up by the Greek cities; and that in the cavalry service the allies, at least subsequently, were called upon to furnish a proportion thrice as numerous as the Roman burgesses, while in the infantry the old principle, that the contingent of the allies should not be more numerous than the burgess army, still remained in force for a long time at least as the rule.

System of Government—

Division and Classification of the Subjects

The system, on which this fabric was constructed and kept together, can no longer be ascertained in detail from the few notices that have reached us. Even the numerical proportions of the three classes of subjects relatively to each other and to the full burgesses, can no longer be determined even approximately;(39) and in like manner the geographical distribution of the several categories over Italy is but imperfectly known. The leading ideas on which the structure was based, on the other hand, are so obvious that it is scarcely necessary specially to set them forth. First of all, as we have already said, the immediate circle of the ruling community was extended—partly by the settlement of full burgesses, partly by the conferring of passive burgess-rights—as far as was possible without completely decentralizing

the Roman community, which was an urban one and was intended to remain so. When the system of incorporation was extended up to and perhaps even beyond its natural limits, the communities that were subsequently added had to submit to a position of subjection; for a pure hegemony as a permanent relation was intrinsically impossible. Thus not through any arbitrary monopolizing of sovereignty, but through the inevitable force of circumstances, by the side of the class of ruling burgesses a second class of subjects took its place. It was one of the primary expedients of Roman rule to subdivide the governed by breaking up the Italian confederacies and instituting as large a number as possible of comparatively small communities, and to graduate the pressure of that rule according to the different categories of subjects. As Cato in the government of his household took care that the slaves should not be on too good terms with one another, and designedly fomented variances and factions among them, so the Roman community acted on a great scale. The expedient was not generous, but it was effectual.

Aristocratic Remodelling of the Constitutions of the Italian Communities

It was but a wider application of the same expedient, when in each dependent community the constitution was remodelled after the Roman pattern and a government of the wealthy and respectable families was installed, which was naturally more or less keenly opposed to the multitude and was induced by its material interests and by its wish for local power to lean on Roman support. The most remarkable instance of this sort is furnished by the treatment of Capua, which appears to have been from the first treated with suspicious precaution as the only Italian city that could come into possible rivalry with Rome. The Campanian nobility received a privileged jurisdiction, separate places of assembly, and in every respect a distinctive position; indeed they even obtained not inconsiderable pensions

—sixteen hundred of them at 450 -stateres- (about 30 pounds) annually—charged on the Campanian exchequer. It was these Campanian equites, whose refusal to take part in the great Latino-Campanian insurrection of 414 mainly contributed to its failure, and whose brave swords decided the day in favour of the Romans at Sentinum in 459;(40) whereas the Campanian infantry at Rhegium was the first body of troops that in the war with Pyrrhus revolted from Rome.(41) Another remarkable instance of the Roman practice of turning to account for their own interest the variances between the orders in the dependent communities by favouring the aristocracy, is furnished by the treatment which Volsinii met with in 489. There, just as in Rome, the old and new burgesses must have stood opposed to one another, and the latter must have attained by legal means equality of political rights. In consequence of this the old burgesses of Volsinii resorted to the Roman senate with a request for the restoration of their old constitution—a step which the ruling party in the city naturally viewed as high treason, and inflicted legal punishment accordingly on the petitioners. The Roman senate, however, took part with the old burgesses, and, when the city showed no disposition to submit, not only destroyed by military violence the communal constitution of Volsinii which was In recognized operation, but also, by razing the old capital of Etruria, exhibited to the Italians a fearfully palpable proof of the mastery of Rome.

Moderation of the Government

But the Roman senate had the wisdom not to overlook the fact, that the only means of giving permanence to despotism is moderation on the part of the despots. On that account there was left with, or conferred on, the dependent communities an autonomy, which included a shadow of independence, a special share in the military and political successes of Rome, and above all a free communal constitution—so far as the Italian confederacy extended, there existed no community of Helots. On that

account also Rome from the very first, with a clear-sightedness and magnanimity perhaps unparalleled in history, waived the most dangerous of all the rights of government, the right of taxing her subjects. At the most tribute was perhaps imposed on the dependent Celtic cantons: so far as the Italian confederacy extended, there was no tributary community. On that account, lastly, while the duty of bearing arms was partially devolved on the subjects, the ruling burgesses were by no means exempt from it; it is probable that the latter were proportionally far more numerous than the body of the allies; and in that body, again, probably the Latins as a whole were liable to far greater demands upon them than the non-Latin allied communities. There was thus a certain reasonableness in the appropriation by which Rome ranked first, and the Latins next to her, in the distribution of the spoil acquired in war.

Intermediate Functionaries— Valuation of the Empire

The central administration at Rome solved the difficult problem of preserving its supervision and control over the mass of the Italian communities liable to furnish contingents, partly by means of the four Italian quaestorships, partly by the extension of the Roman censorship over the whole of the dependent communities. The quaestors of the fleet,(42) along with their more immediate duty, had to raise the revenues from the newly acquired domains and to control the contingents of the new allies; they were the first Roman functionaries to whom a residence and district out of Rome were assigned by law, and they formed the necessary intermediate authority between the Roman senate and the Italian communities. Moreover, as is shown by the later municipal constitution, the chief functionaries in every Italian community,(43) whatever might be their title, had to undertake a valuation every fourth or fifth year—an institution, the suggestion of which must necessarily have emanated from Rome, and

which can only have been intended to furnish the senate with a view of the resources in men and money of the whole of Italy, corresponding to the census in Rome.

Italy and the Italians

Lastly, with this military administrative union of the whole peoples dwelling to the south of the Apennines, as far as the Iapygian promontory and the straits of Rhegium, was connected the rise of a new name common to them all—that of "the men of the toga" (-togati-), which was their oldest designation in Roman state law, or that of the "Italians," which was the appellation originally in use among the Greeks and thence became universally current. The various nations inhabiting those lands were probably first led to feel and own their unity, partly through their common contrast to the Greeks, partly and mainly through their common resistance to the Celts; for, although an Italian community may now and then have made common cause with the Celts against Rome and employed the opportunity to recover independence, yet in the long run sound national feeling necessarily prevailed. As the "Gallic field" down to a late period stood contrasted in law with the Italian, so the "men of the toga" were thus named in contrast to the Celtic "men of the hose" (-braccati-); and it is probable that the repelling of the Celtic invasions played an important diplomatic part as a reason or pretext for centralizing the military resources of Italy in the hands of the Romans. Inasmuch as the Romans on the one hand took the lead in the great national struggle and on the other hand compelled the Etruscans, Latins, Sabellians, Apulians, and Hellenes (within the bounds to be immediately described) alike to fight under their standards, that unity, which hitherto had been undefined and latent rather than expressed, obtained firm consolidation and recognition in state law; and the name -Italia-, which originally and even in the Greek authors of the fifth

century—in Aristotle for instance—pertained only to the modern Calabria, was transferred to the whole land of these wearers of the toga.

Earliest Boundaries of the Italian Confederacy

The earliest boundaries of this great armed confederacy led by Rome, or of the new Italy, reached on the western coast as far as the district of Leghorn south of the Arnus,(44) on the east as far as the Aesis north of Ancona. The townships colonized by Italians, lying beyond these limits, such as Sena Gallica and Ariminum beyond the Apennines, and Messana in Sicily, were reckoned geographically as situated out of Italy—even when, like Ariminum, they were members of the confederacy or even, like Sena, were Roman burgess communities. Still less could the Celtic cantons beyond the Apennines be reckoned among the -togati-, although perhaps some of them were already among the clients of Rome.

First Steps towards the Latinizing of Italy— New Position of Rome as a Great Power

The new Italy had thus become a political unity; it was also in the course of becoming a national unity. Already the ruling Latin nationality had assimilated to itself the Sabines and Volscians and had scattered isolated Latin communities over all Italy; these germs were merely developed, when subsequently the Latin language became the mother-tongue of every one entitled to wear the Latin toga. That the Romans already clearly recognized this as their aim, is shown by the familiar extension of the Latin name to the whole body of contingent-furnishing Italian allies.(45) Whatever can still be recognized of this grand political structure testifies to the great political sagacity of its nameless architects; and the singular cohesion, which that confederation composed of so many and so diversified ingredients subsequently exhibited under the severest shocks, stamped their great work with the seal of success. From the time when the threads of this net drawn

as skilfully as firmly around Italy were concentrated in the hands of the Roman community, it was a great power, and took its place in the system of the Mediterranean states in the room of Tarentum, Lucania, and other intermediate and minor states erased by the last wars from the list of political powers. Rome received, as it were, an official recognition of its new position by means of the two solemn embassies, which in 481 were sent from Alexandria to Rome and from Rome to Alexandria, and which, though primarily they regulated only commercial relations, beyond doubt prepared the way for a political alliance. As Carthage was contending with the Egyptian government regarding Cyrene and was soon to contend with that of Rome regarding Sicily, so Macedonia was contending with the former for the predominant influence in Greece, with the latter proximately for the dominion of the Adriatic coasts. The new struggles, which were preparing on all sides, could not but influence each other, and Rome, as mistress of Italy, could not fail to be drawn into the wide arena which the victories and projects of Alexander the Great had marked out as the field of conflict for his successors.

Notes for Book II Chapter VII

1. The story that the Romans also sent envoys to Alexander at Babylon on the testimony of Clitarchus (Plin. Hist. Nat. iii. 5, 57), from whom the other authorities who mention this fact (Aristus and Asclepiades, ap. Arrian, vii. 15, 5; Memnon, c. 25) doubtless derived it. Clitarchus certainly was contemporary with these events; nevertheless, his Life of Alexander was decidedly a historical romance rather than a history; and, looking to the silence of the trustworthy biographers (Arrian, l. c.; Liv. ix. 18) and the utterly romantic details of the account—which represents the Romans, for

instance, as delivering to Alexander a chaplet of gold, and the latter as prophesying the future greatness of Rome—we cannot but set down this story as one of the many embellishments which Clitarchus introduced into the history.

2. II. VI. Last Struggles of Samnium

3. Near the modern Anglona; not to be confounded with the better known town of the same name in the district of Cosenza.

4. These numbers appear credible. The Roman account assigns, probably in dead and wounded, 15,000 to each side; a later one even specifies 5000 as dead on the Roman, and 20,000 on the Greek side. These accounts may be mentioned here for the purpose of exhibiting, in one of the few instances where it is possible to check the statement, the untrustworthiness—almost without exception—of the reports of numbers, which are swelled by the unscrupulous invention of the annalists with avalanche-like rapidity.

5. The later Romans, and the moderns following them, give a version of the league, as if the Romans had designedly avoided accepting the Carthaginian help in Italy. This would have been irrational, and the facts pronounce against it. The circumstance that Mago did not land at Ostia is to be explained not by any such foresight, but simply by the fact that Latium was not at all threatened by Pyrrhus and so did not need Carthaginian aid; and the Carthaginians certainly fought for Rome in front of Rhegium.

6. II. IV. Victories of Salamis and Himera, and Their Effects

7. II. IV. Fruitlessness of the Celtic Victory

8. The grounds for assigning the document given in Polybius (iii. 22) not to 245, but to 406, are set forth in my *Rom. Chronologie*, p. 320 f.

[translated in the Appendix to this volume].

9. II. V. Domination of the Romans; Exasperation of the Latins
10. II. VII. Breach between Rome and Tarentum
11. II. V. Colonization of the Volsci
12. II. V. Colonization of the Volsci
13. II. VI. New Fortresses in Apulia and Campania
14. II. VI. Last Struggles of Samnium
15. II. VII. Construction of New Fortresses and Roads
16. II. VII. The Boii
17. II. VII. Construction of New Fortresses and Roads
18. These were Pyrgi, Ostia, Antium, Tarracina, Minturnae, Sinuessa Sena Gallica, and Castrum Novum.
19. This statement is quite as distinct (Liv. viii. 14; -interdictum mari Antiati populo est-) as it is intrinsically credible; for Antium was inhabited not merely by colonists, but also by its former citizens who had been nursed in enmity to Rome (II. V. Colonizations in The Land Of The Volsci). This view is, no doubt, inconsistent with the Greek accounts, which assert that Alexander the Great (431) and Demetrius Poliorcetes (471) lodged complaints at Rome regarding Antiatic pirates. The former statement is of the same stamp, and perhaps from the same source, with that regarding the Roman embassy to Babylon (II. VII. Relations Between The East and West). It seems more likely that Demetrius Poliorcetes may have tried by edict to put down piracy in the Tyrrhene sea which he had never set eyes

upon, and it is not at all inconceivable that the Antiates may have even as Roman citizens, in defiance of the prohibition, continued for a time their old trade in an underhand fashion: much dependence must not however, be placed even on the second story.

20. II. VI. Last Campaigns in Samnium

21. II. VII. Decline of the Roman Naval Power

22. According to Servius (in Aen. iv. 628) it was stipulated in the Romano-Carthaginian treaties, that no Roman should set foot on (or rather occupy) Carthaginian, and no Carthaginian on Roman, soil, but Corsica was to remain in a neutral position between them (-ut neque Romani ad litora Carthaginiensium accederent neque Carthaginienses ad litora Romanorum.....Corsica esset media inter Romanos et Carthaginienses-). This appears to refer to our present period, and the colonization of Corsica seems to have been prevented by this very treaty.

23. II. VII. Submission of Lower Italy

24. The clause, by which a dependent people binds itself "to uphold in a friendly manner the sovereignty of that of Rome" (-maiestatem populi Romani comiter conservare-), is certainly the technical appellation of that mildest form of subjection, but it probably did not come into use till a considerably later period (Cic. pro Balbo, 16, 35). The appellation of clientship derived from private law, aptly as in its very indefiniteness it denotes the relation (Dig. xlix. 15, 7, i), was scarcely applied to it officially in earlier times.

25. II. IV. South Etruria Roman

26. II. VI. Consolidation of the Roman Rule in Central Italy

27. II. VI. Last Struggles of Samnium

28. II. V. Complete Submission of the Volscian and Campanian Provinces

29. II. V. Complete Submission of the Volscian and Campanian Provinces

30. That Tusculum as it was the first to obtain passive burgess-rights (II. V. Crises within the Romano-Latin League) was also the first to exchange these for the rights of full burgesses, is probable in itself and presumably it is in the latter and not in the former respect that the town is named by Cicero (pro Mur. 8, 19) -municipium antiquissimum-.

31. II. V. Complete Submission of the Volscian and Campanian Provinces

32. II. IV. South Etruria Roman

33. -V. Cervio A. f. cosol dedicavit- and -Iunonei Quiriti sacra. C. Falcilius L. f. cosol dedicavit-.

34. According to the testimony of Cicero (pro Caec. 35) Sulla gave to the Volaterrans the former -ius- of Ariminum, that is—adds the orator—the -ius- of the "twelve colonies" which had not the Roman -civitas- but had full -commercium- with the Romans. Few things have been so much discussed as the question to what places this -ius- of the twelve towns refers; and yet the answer is not far to seek. There were in Italy and Cisalpine Gaul—laying aside some places that soon disappeared again—thirty-four Latin colonies established in all. The twelve most recent of these—Ariminum, Beneventum, Firmum, Aesernia, Brundisium, Spoletium, Cremona, Placentia, Copia, Valentia, Bononia, and Aquileia—are those here referred to; and because Ariminum was the oldest of these and the town for which this new organization was primarily established, partly perhaps also because it was the first Roman colony founded beyond Italy, the -ius- of these

colonies rightly took its name from Ariminum. This at the same time demonstrates the truth of the view—which already had on other grounds very high probability—that all the colonies established in Italy (in the wider sense of the term) after the founding of Aquileia belonged to the class of burgess-colonies.

We cannot fully determine the extent to which the curtailment of the rights of the more recent Latin towns was carried, as compared with the earlier. If intermarriage, as is not improbable but is in fact anything but definitely established (i. 132; Diodor. p. 590, 62, fr. Vat. p. 130, Dind.), formed a constituent element of the original federal equality of rights, it was, at any rate, no longer conceded to the Latin colonies of more recent origin.

35. II. V. League with the Hernici

36. II. VI. Pacification of Campania

37. II. VI. Victory of the Romans

38. II. VII. The War in Italy Flags

39. It is to be regretted that we are unable to give satisfactory information as to the proportional numbers. We may estimate the number of Roman burgesses capable of bearing arms in the later regal period as about 20,000. (I. VI. Time and Occasion of the Reform) Now from the fall of Alba to the conquest of Veii the immediate territory of Rome received no material extension; in perfect accordance with which we find that from the first institution of the twenty-one tribes about 259, (II. II. Coriolanus) which involved no, or at any rate no considerable, extension of the Roman bounds, no new tribes were instituted till 367. However abundant allowance we make for increase by the excess of births over deaths, by immigration, and

by manumissions, it is absolutely impossible to reconcile with the narrow limits of a territory of hardly 650 square miles the traditional numbers of the census, according to which the number of Roman burgesses capable of bearing arms in the second half of the third century varied between 104,000 and 150,000, and in 362, regarding which a special statement is extant, amounted to 152,573. These numbers must rather stand on a parallel with the 84,700 burgesses of the Servian census; and in general the whole earlier census-lists, carried back to the four lustres of Servius Tullius and furnished with copious numbers, must belong to the class of those apparently documentary traditions which delight in, and betray themselves by the very fact of, such numerical details.

It was only with the second half of the fourth century that the large extensions of territory, which must have suddenly and considerably augmented the burgess roll, began. It is reported on trustworthy authority and is intrinsically credible, that about 416 the Roman burgesses numbered 165,000; which very well agrees with the statement that ten years previously, when the whole militia was called out against Latium and the Gauls, the first levy amounted to ten legions, that is, to 50,000 men. Subsequently to the great extensions of territory in Etruria, Latium, and Campania, in the fifth century the effective burgesses numbered, on an average, 250,000; immediately before the first Punic war, 280,000 to 290,000. These numbers are certain enough, but they are not quite available historically for another reason, namely, that in them probably the Roman full burgesses and the "burgesses without vote" not serving, like the Campanians, in legions of their own, —such, e. g., as the Caerites, —are included together in the reckoning, while the latter must at any rate -de facto- be counted among the subjects (Rom. Forsch. ii. 396).

40. II. VI. Battle of Sentinum

41. II. VII. Commencement of the Conflict in Lower Italy

42. II. VII. Quaestors of the Fleet

43. Not merely in every Latin one; for the censorship or so-called -quinquennialitas- occurs, as is well known, also among communities whose constitution was not formed according to the Latin scheme.

44. This earliest boundary is probably indicated by the two small townships -Ad fines-, of which one lay north of Arezzo on the road to Florence, the second on the coast not far from Leghorn. Somewhat further to the south of the latter, the brook and valley of Vada are still called -Fiume della fine-, -Valle della fine- (Targioni Tozzetti, Viaggj, iv. 430).

45. In strict official language, indeed, this was not the case. The fullest designation of the Italians occurs in the agrarian law of 643, line 21; -[ceivis] Romanus sociumve nominisve Latini, quibus ex formula togatorum [milites in terra Italia imperare solent]-; in like manner at the 29th line of the same -peregrinus- is distinguished from the -Latinus-, and in the decree of the senate as to the Bacchanalia in 568 the expression is used: -ne quis ceivis Romanus neve nominis Latini neve socium quisquam-. But in common use very frequently the second or third of these three subdivisions is omitted, and along with the Romans sometimes only those Latini nominis are mentioned, sometimes only the -socii- (Weissenborn on Liv. xxii. 50, 6), while there is no difference in the meaning. The designation -homines nominis Latini ac socii Italici- (Sallust. Jug. 40), correct as it is in itself, is foreign to the official -usus loquendi, which knows -Italia-, but not -Italici-.

CHAPTER VIII

Law, Religion, Military System, Economic Condition, Nationality

Development of Law

In the development which law underwent during this period within the Roman community, probably the most important material innovation was that peculiar control which the community itself, and in a subordinate degree its office-bearers, began to exercise over the manners and habits of the individual burgesses. The germ of it is to be sought in the right of the magistrate to inflict property-fines (-multae-) for offences against order.(1) In the case of all fines of more than two sheep and thirty oxen or, after the cattle-fines had been by the decree of the people in 324 commuted into money, of more than 3020 libral -asses- (30 pounds), the decision soon after the expulsion of the kings passed by way of appeal into the hands of the community;(2) and thus procedure by fine acquired an importance which it was far from originally possessing. Under the vague category of offences against order men might include any accusations they pleased, and by the higher grades in the scale of fines they might accomplish whatever they desired. The dangerous character of such arbitrary procedure was brought to light rather than obviated by the mitigating proviso, that these property-fines, where they were not fixed by law at a definite sum, should not amount to half the estate belonging to the person fined. To this class

belonged the police-laws, which from the earliest times were especially abundant in the Roman community. Such were those enactments of the Twelve Tables, which prohibited the anointing of a dead body by persons hired for the purpose, the dressing it out with more than one cushion or more than three purple-edged coverings, the decorating it with gold or gaudy chaplets, the use of dressed wood for the funeral pile, and the perfuming or sprinkling of the pyre with frankincense or myrrh-wine; which limited the number of flute-players in the funeral procession to ten at most; and which forbade wailing women and funeral banquets—in a certain measure the earliest Roman legislation against luxury. Such also were the laws—originating in the conflicts of the orders—directed against usury as well as against an undue use of the common pasture and a disproportionate appropriation of the occupiable domain-land. But far more fraught with danger than these and similar fining-laws, which at any rate formulated once for all the trespass and often also the measure of punishment, was the general prerogative of every magistrate who exercised jurisdiction to inflict a fine for an offence against order, and, if the fine reached the amount necessary to found an appeal and the person fined did not submit to the penalty, to bring the case before the community. Already in the course of the fifth century quasi-criminal proceedings had been in this way instituted against immorality of life both in men and women, against the forestalling of grain, witchcraft, and similar matters. Closely akin to this was the quasi-jurisdiction of the censors, which likewise sprang up at this period. They were invested with authority to adjust the Roman budget and the burgess-roll, and they availed themselves of it, partly to impose of their own accord taxes on luxury which differed only in form from penalties on it, partly to abridge or withdraw the political privileges of the burgess who was reported to have been guilty of any infamous action.(3) The extent to which this surveillance was already carried is shown by the fact that penalties of this nature were inflicted for the negligent cultivation of a man's own land, and

that such a man as Publius Cornelius Rufinus (consul in 464, 477) was struck off the list of senators by the censors of 479, because he possessed silver plate to the value of 3360 sesterces (34 pounds). No doubt, according to the rule generally applicable to the edicts of magistrates,(4) the sentences of the censors had legal force only during their censorship, that is on an average for the next five years, and might be renewed or not by the next censors at pleasure. Nevertheless this censorial prerogative was of so immense importance, that in virtue of it the censorship, originally a subordinate magistracy, became in rank and consideration the first of all.(5) The government of the senate rested essentially on this twofold police control supreme and subordinate, vested in the community and its officials, and furnished with powers as extensive as they were arbitrary. Like every such arbitrary government, it was productive of much good and much evil, and we do not mean to combat the view of those who hold that the evil preponderated. But we must not forget that—amidst the morality external certainly but stern and energetic, and the powerful enkindling of public spirit, that were the genuine characteristics of this period—these institutions remained exempt as yet from any really base misuse; and if they were the chief instruments in repressing individual freedom, they were also the means by which the public spirit and the good old manners and order of the Roman community were with might and main upheld.

Modifications in the Laws

Along with these changes a humanizing and modernizing tendency showed itself slowly, but yet clearly enough, in the development of Roman law. Most of the enactments of the Twelve Tables, which coincide with the laws of Solon and therefore may with reason be considered as in substance innovations, bear this character; such as the securing the right of free association and the autonomy of the societies that originated under it; the enactment that forbade the ploughing up of boundary-balks; and the

mitigation of the punishment of theft, so that a thief not caught in the act might henceforth release himself from the plaintiff's suit by payment of double compensation. The law of debt was modified in a similar sense, but not till upwards of a century afterwards, by the Poetelian law.(6) The right freely to dispose of property, which according to the earliest Roman law was accorded to the owner in his lifetime but in the case of death had hitherto been conditional on the consent of the community, was liberated from this restriction, inasmuch as the law of the Twelve Tables or its interpretation assigned to the private testament the same force as pertained to that confirmed in the curies. This was an important step towards the breaking up of the clanships, and towards the full carrying out of individual liberty in the disposal of property. The fearfully absolute paternal power was restricted by the enactment, that a son thrice sold by his father should not relapse into his power, but should thenceforth be free; to which—by a legal inference that, strictly viewed, was no doubt absurd—was soon attached the possibility that a father might voluntarily divest himself of dominion over his son by emancipation. In the law of marriage civil marriage was permitted;(7) and although the full marital power was associated as necessarily with a true civil as with a true religious marriage, yet the permission of a connection instead of marriage,(8) formed without that power, constituted a first step towards relaxation of the full power of the husband. The first step towards a legal enforcement of married life was the tax on old bachelors (-aes uxorium-) with the introduction of which Camillus began his public career as censor in 351.

Administration of Justice—

Code of Common Law—

New Judicial Functionaries

Changes more comprehensive than those effected in the law itself were introduced into—what was more important in a political point of view, and

more easily admitted of alteration—the system of judicial administration. First of all came the important limitation of the supreme judicial power by the embodiment of the common law in a written code, and the obligation of the magistrate thenceforth to decide no longer according to varying usage, but according to the written letter, in civil as well as in criminal procedure (303, 304). The appointment of a supreme magistrate in Rome exclusively for the administration of justice in 387,(9) and the establishment of separate police functionaries which took place contemporaneously in Rome, and was imitated under Roman influence in all the Latin communities,(10) secured greater speed and precision of justice. These police-magistrates or aediles had, of course, a certain jurisdiction at the same time assigned to them. On the one hand, they were the ordinary civil judges for sales concluded in open market, for the cattle and slave markets in particular; and on the other hand, they ordinarily acted in processes of fines and amercements as judges of first instance or—which was in Roman law the same thing—as public prosecutors. In consequence of this the administration of the laws imposing fines, and the equally indefinite and politically important right of fining in general, were vested mainly in them. Similar but subordinate functions, having especial reference to the poorer classes, pertained to the three night—or blood-masters (-tres viri nocturni- or -capitales-), first nominated in 465; they were entrusted with the duties of nocturnal police as regards fire and the public safety and with the superintendence of executions, with which a certain summary jurisdiction was very soon, perhaps even from the outset, associated.(11) Lastly from the increasing extent of the Roman community it became necessary, out of regard to the convenience of litigants, to station in the more remote townships special judges competent to deal at least with minor civil causes. This arrangement was the rule for the communities of burgesses -sine suffragio-, (12) and was perhaps even extended to the more remote communities of full burgesses,(13)—the first

germs of a Romano-municipal jurisdiction developing itself by the side of that which was strictly Roman.

Changes in Procedure

In civil procedure (which, however, according to the ideas of that period included most of the crimes committed against fellow-citizens) the division of a process into the settlement of the question of law before the magistrate (-ius-), and the decision of the question of fact by a private person nominated by the magistrate (-iudicium-) —a division doubtless customary even in earlier times—was on the abolition of the monarchy prescribed by law;(14) and to that separation the private law of Rome was mainly indebted for its logical clearness and practical precision.(15) In actions regarding property, the decision as to what constituted possession, which hitherto had been left to the arbitrary caprice of the magistrate, was subjected gradually to legal rules; and, alongside of the law of property, a law of possession was developed—another step, by which the magisterial authority lost an important part of its powers. In criminal processes, the tribunal of the people, which hitherto had exercised the prerogative of mercy, became a court of legally secured appeal. If the accused after hearing (-quaestio-) was condemned by the magistrate and appealed to the burgesses, the magistrate proceeded in presence of these to the further hearing (-anquisitio-) and, when he after three times discussing the matter before the community had repeated his decision, in the fourth diet the sentence was confirmed or rejected by the burgesses. Modification was not allowed. A similar republican spirit breathed in the principles, that the house protected the burgess, and that an arrest could only take place out of doors; that imprisonment during investigation was to be avoided; and that it was allowable for every accused and not yet condemned burgess by renouncing his citizenship to withdraw from the consequences of condemnation, so far as they affected not his property but his person-principles, which certainly

were not embodied in formal laws and accordingly did not legally bind the prosecuting magistrate, but yet were by their moral weight of the greatest influence, particularly in limiting capital punishment. But, if the Roman criminal law furnishes a remarkable testimony to the strong public spirit and to the increasing humanity of this epoch, it on the other hand suffered in its practical working from the struggles between the orders, which in this respect were specially baneful. The co-ordinate primary jurisdiction of all the public magistrates in criminal cases, that arose out of these conflicts, (16) led to the result, that there was no longer any fixed authority for giving instructions, or any serious preliminary investigation, in Roman criminal procedure. And, as the ultimate criminal jurisdiction was exercised in the forms and by the organs of legislation, and never disowned its origin from the prerogative of mercy; as, moreover, the treatment of police fines had an injurious reaction on the criminal procedure which was externally very similar; the decision in criminal causes was pronounced—and that not so much by way of abuse, as in some degree by virtue of the constitution—not according to fixed law, but according to the arbitrary pleasure of the judges. In this way the Roman criminal procedure was completely void of principle, and was degraded into the sport and instrument of political parties; which can the less be excused, seeing that this procedure, while especially applied to political crimes proper, was applicable also to others, such as murder and arson. The evil was aggravated by the clumsiness of that procedure, which, in concert with the haughty republican contempt for non-burgesses, gave rise to a growing custom of tolerating, side by side with the more formal process, a summary criminal, or rather police, procedure against slaves and common people. Here too the passionate strife regarding political processes overstepped natural limits, and introduced institutions which materially contributed to estrange the Romans step by step from the idea of a fixed moral order in the administration of justice.

Religion— New Gods

We are less able to trace the progress of the religious conceptions of the Romans during this epoch. In general they adhered with simplicity to the simple piety of their ancestors, and kept equally aloof from superstition and from unbelief. How vividly the idea of spiritualizing all earthly objects, on which the Roman religion was based, still prevailed at the close of this epoch, is shown by the new "God of silver" (-Argentinus-), who presumably came into existence only in consequence of the introduction of the silver currency in 485, and who naturally was the son of the older "God of copper" (-Aesculanus-).

The relations to foreign lands were the same as heretofore; but here, and here especially, Hellenic influences were on the increase. It was only now that temples began to rise in Rome itself in honour of the Hellenic gods. The oldest was the temple of Castor and Pollux, which had been vowed in the battle at lake Regillus(17) and was consecrated on 15th July 269. The legend associated with it, that two youths of superhuman size and beauty had been seen fighting on the battle-field in the ranks of the Romans and immediately after the battle watering their foaming steeds in the Roman Forum at the fountain of Iuturna, and announcing the great victory, bears a stamp thoroughly un-Roman, and was beyond doubt at a very early period modelled on the appearance of the Dioscuri—similar down to its very details—in the famous battle fought about a century before between the Crotoniates and Locrians at the river Sagras. The Delphic Apollo too was not only consulted—as was usual with all peoples that felt the influence of Grecian culture—and presented moreover after special successes, such as the capture of Veii, with a tenth of the spoil (360), but also had a temple built for him in the city (323, renewed 401). The same honour was towards the close of this period accorded to Aphrodite (459), who was in some

enigmatical way identified with the old Roman garden goddess, Venus;(18) and to Asklapios or Aesculapius, who was obtained by special request from Epidaurus in the Peloponnesus and solemnly conducted to Rome (463). Isolated complaints were heard in serious emergencies as to the intrusion of foreign superstition, presumably the art of the Etruscan -haruspices- (as in 326); but in such cases the police did not fail to take proper cognisance of the matter.

In Etruria on the other hand, while the nation stagnated and decayed in political nullity and indolent opulence, the theological monopoly of the nobility, stupid fatalism, wild and meaningless mysticism, the system of soothsaying and of mendicant prophecy gradually developed themselves, till they reached the height at which we afterwards find them.

Sacerdotal System

In the sacerdotal system no comprehensive changes, so far as we know, took place. The more stringent enactments, that were made about 465 regarding the collection of the process-fines destined to defray the cost of public worship, point to an increase in the ritual budget of the state—a necessary result of the increase in the number of its gods and its temples. It has already been mentioned as one of the evil effects of the dissensions between the orders that an illegitimate influence began to be conceded to the colleges of men of lore, and that they were employed for the annulling of political acts(19)—a course by which on the one hand the faith of the people was shaken, and on the other hand the priests were permitted to exercise a very injurious influence on public affairs.

Military System—

Manipular Legion—

Entrenchment of Camp—

Cavalry—

Officers—

Military Discipline—

Training and Classes of Soldiers—

Military Value of the Manipular Legion

A complete revolution occurred during this epoch in the military system. The primitive Graeco-Italian military organization, which was probably based, like the Homeric, on the selection of the most distinguished and effective warriors—who ordinarily fought on horseback—to form a special vanguard, had in the later regal period been superseded by the -legio—the old Dorian phalanx of hoplites, probably eight file deep.(20) This phalanx thenceforth undertook the chief burden of the battle, while the cavalry were stationed on the flanks, and, mounted or dismounted according to circumstances, were chiefly employed as a reserve. From this arrangement there were developed nearly at the same time the phalanx of -sarrissae-in Macedonia and the manipular arrangement in Italy, the former formed by closing and deepening, the latter by breaking up and multiplying, the ranks, in the first instance by the division of the old -legio- of 8400 into two -legiones- of 4200 men each. The old Doric phalanx had been wholly adapted to close combat with the sword and especially with the spear, and only an accessory and subordinate position in the order of battle was assigned to missile weapons. In the manipular legion the thrusting-lance was confined to the third division, and instead of it the first two were furnished with a new and peculiar Italian missile weapon, the -pilum- a square or round piece of wood, four and a half feet long, with a triangular or quadrangular iron point—which had been originally perhaps invented for the defence of the ramparts of the camp, but was soon transferred from the rear to the front ranks, and was hurled by the advancing line into the ranks of the enemy at a distance of from ten to twenty paces. At the same time the sword acquired far greater importance than the short knife of the phalangite could ever have had; for the volley of javelins was intended in the first

instance merely to prepare the way for an attack sword in hand. While, moreover, the phalanx had, as if it were a single mighty lance, to be hurled at once upon the enemy, in the new Italian legion the smaller units, which existed also in the phalanx system but were in the order of battle firmly and indissolubly united, were tactically separated from each other. Not merely was the close square divided, as we have said, into two equally strong halves, but each of these was separated in the direction of its depth into the three divisions of the -hastati-, - principes-, and -triarii-, each of a moderate depth probably amounting in ordinary cases to only four files; and was broken up along the front into ten bands (-manipuli-), in such a way that between every two divisions and every two maniples there was left a perceptible interval. It was a mere continuation of the same process of individualizing, by which the collective mode of fighting was discouraged even in the diminished tactical unit and the single combat became prominent, as is evident from the (already mentioned) decisive part played by hand-to-hand encounters and combats with the sword. The system of entrenching the camp underwent also a peculiar development. The place where the army encamped, even were it only for a single night, was invariably provided with a regular circumvallation and as it were converted into a fortress. Little change took place on the other hand in the cavalry, which in the manipular legion retained the secondary part which it had occupied by the side of the phalanx. The system of officering the army also continued in the main unchanged; only now over each of the two legions of the regular army there were set just as many war-tribunes as had hitherto commanded the whole army, and the number of staff-officers was thus doubled. It was at this period probably that the clear line of demarcation became established between the subaltern officers, who as common soldiers had to gain their place at the head of the maniples by the sword and passed by regular promotion from the lower to the higher maniples, and the military tribunes placed at the head of whole legions—six to each—in

whose case there was no regular promotion, and for whom men of the better class were usually taken. In this respect it must have become a matter of importance that, while previously the subaltern as well as the staff-officers had been uniformly nominated by the general, after 392 some of the latter posts were filled up through election by the burgesses.(21) Lastly, the old, fearfully strict, military discipline remained unaltered. Still, as formerly, the general was at liberty to behead any man serving in his camp, and to scourge with rods the staff-officer as well as the common soldier; nor were such punishments inflicted merely on account of common crimes, but also when an officer had allowed himself to deviate from the orders which he had received, or when a division had allowed itself to be surprised or had fled from the field of battle. On the other hand, the new military organization necessitated a far more serious and prolonged military training than the previous phalanx system, in which the solidity of the mass kept even the inexperienced in their ranks. If nevertheless no special soldier-class sprang up, but on the contrary the army still remained, as before, a burgess army, this object was chiefly attained by abandoning the former mode of ranking the soldiers according to property(22) and arranging them according to length of service. The Roman recruit now entered among the light-armed "skirmishers" (-rorarii-), who fought outside of the line and especially with stone slings, and he advanced from this step by step to the first and then to the second division, till at length the soldiers of long service and experience were associated together in the corps of the -triarii-, which was numerically the weakest but imparted its tone and spirit to the whole army.

The excellence of this military organization, which became the primary cause of the superior political position of the Roman community, chiefly depended on the three great military principles of maintaining a reserve, of combining the close and distant modes of fighting, and of combining the offensive and the defensive. The system of a reserve was already

foreshadowed in the earlier employment of the cavalry, but it was now completely developed by the partition of the army into three divisions and the reservation of the flower of the veterans for the last and decisive shock. While the Hellenic phalanx had developed the close, and the Oriental squadrons of horse armed with bows and light missile spears the distant, modes of fighting respectively, the Roman combination of the heavy javelin with the sword produced results similar, as has justly been remarked, to those attained in modern warfare by the introduction of bayonet-muskets; the volley of javelins prepared the way for the sword encounter, exactly in the same way as a volley of musketry now precedes a charge with the bayonet. Lastly, the elaborate system of encampment allowed the Romans to combine the advantages of defensive and offensive war and to decline or give battle according to circumstances, and in the latter case to fight under the ramparts of their camp just as under the walls of a fortress—the Roman, says a Roman proverb, conquers by sitting still.

Origin of the Manipular Legion

That this new military organization was in the main a Roman, or at any rate Italian, remodelling and improvement of the old Hellenic tactics of the phalanx, is plain. If some germs of the system of reserve and of the individualizing of the smaller subdivisions of the army are found to occur among the later Greek strategists, especially Xenophon, this only shows that they felt the defectiveness of the old system, but were not well able to obviate it. The manipular legion appears fully developed in the war with Pyrrhus; when and under what circumstances it arose, whether at once or gradually, can no longer be ascertained. The first tactical system which the Romans encountered, fundamentally different from the earlier Italo-Hellenic system, was the Celtic sword-phalanx. It is not impossible that the subdivision of the army and the intervals between the maniples in front were arranged with a view to resist, as they did resist, its first and only

dangerous charge; and it accords with this hypothesis that Marcus Furius Camillus, the most celebrated Roman general of the Gallic epoch, is presented in various detached notices as the reformer of the Roman military system. The further traditions associated with the Samnite and Pyrrhic wars are neither sufficiently accredited, nor can they with certainty be duly arranged;(23) although it is in itself probable that the prolonged Samnite mountain warfare exercised a lasting influence on the individual development of the Roman soldier, and that the struggle with one of the first masters of the art of war, belonging to the school of the great Alexander, effected an improvement in the technical features of the Roman military system.

National Economy—

The Farmers—

Farming of Estates

In the national economy agriculture was, and continued to be, the social and political basis both of the Roman community and of the new Italian state. The common assembly and the army consisted of Roman farmers; what as soldiers they had acquired by the sword, they secured as colonists by the plough. The insolvency of the middle class of landholders gave rise to the formidable internal crises of the third and fourth centuries, amidst which it seemed as if the young republic could not but be destroyed. The revival of the Latin farmer-class, which was produced during the fifth century partly by the large assignments of land and incorporations, partly by the fall in the rate of interest and the increase of the Roman population, was at once the effect and the cause of the mighty development of Roman power. The acute soldier's eye of Pyrrhus justly discerned the cause of the political and military ascendancy of the Romans in the flourishing condition of the Roman farms. But the rise also of husbandry on a large scale among the Romans appears to fall within this period. In earlier times indeed there

existed landed estates of—at least comparatively—large size; but their management was not farming on a large scale, it was simply a husbandry of numerous small parcels.(24) On the other hand the enactment in the law of 387, not incompatible indeed with the earlier mode of management but yet far more appropriate to the later, viz. that the landholder should be bound to employ along with his slaves a proportional number of free persons,(25) may well be regarded as the oldest trace of the later centralized farming of estates;(26) and it deserves notice that even here at its first emergence it essentially rests on slave-holding. How it arose, must remain an undecided point; possibly the Carthaginian plantations in Sicily served as models to the oldest Roman landholders, and perhaps even the appearance of wheat in husbandry by the side of spelt,(27) which Varro places about the period of the decemvirs, was connected with that altered style of management. Still less can we ascertain how far this method of husbandry had already during this period spread; but the history of the wars with Hannibal leaves no doubt that it cannot yet have become the rule, nor can it have yet absorbed the Italian farmer class. Where it did come into vogue, however, it annihilated the older clientship based on the -precarium-; just as the modern system of large farms has been formed in great part by the suppression of petty holdings and the conversion of hides into farm-fields. It admits of no doubt that the restriction of this agricultural clientship very materially contributed towards the distress of the class of small cultivators.

Inland Intercourse in Italy

Respecting the internal intercourse of the Italians with each other our written authorities are silent; coins alone furnish some information. We have already mentioned(28) that in Italy, with the exception of the Greek cities and of the Etruscan Populonia, there was no coinage during the first three centuries of Rome, and that cattle in the first instance, and subsequently copper by weight, served as the medium of exchange. Within

the present epoch occurred the transition on the part of the Italians from the system of barter to that of money; and in their money they were naturally led at first to Greek models. The circumstances of central Italy led however to the adoption of copper instead of silver as the metal for their coinage, and the unit of coinage was primarily based on the previous unit of value, the copper pound; hence they cast their coins instead of stamping them, for no die would have sufficed for pieces so large and heavy. Yet there seems from the first to have been a fixed ratio for the relative value of copper and silver (250:1), and with reference to that ratio the copper coinage seems to have been issued; so that, for example, in Rome the large copper piece, the -as-, was equal in value to a scruple ($1/288$ of a pound) of silver. It is a circumstance historically more remarkable, that coining in Italy most probably originated in Rome, and in fact with the decemvirs, who found in the Solonian legislation a pattern for the regulation of their coinage; and that from Rome it spread over a number of Latin, Etruscan, Umbrian, and east-Italian communities, —a clear proof of the superior position which Rome from the beginning of the fourth century held in Italy. As all these communities subsisted side by side in formal independence, legally the monetary standard was entirely local, and the territory of every city had its own monetary system. Nevertheless the standards of copper coinage in central and northern Italy may be comprehended in three groups, within which the coins in common intercourse seem to have been treated as homogeneous. These groups are, first, the coins of the cities of Etruria lying north of the Ciminian Forest and those of Umbria; secondly, the coins of Rome and Latium; and lastly, those of the eastern seaboard. We have already observed that the Roman coins held a certain ratio to silver by weight; on the other hand we find those of the east coast of Italy placed in a definite proportional relation to the silver coins which were current from an early period in southern Italy, and the standard of which was adopted by the Italian immigrants, such as the Bruttians, Lucanians, and Nolans, by the

Latin colonies in that quarter, such as Cales and Suessa, and even by the Romans themselves for their possessions in Lower Italy. Accordingly the inland traffic of Italy must have been divided into corresponding provinces, which dealt with one another like foreign nations.

In transmarine commerce the relations we have previously described(29) between Sicily and Latium, Etruria and Attica, the Adriatic and Tarentum, continued to subsist during the epoch before us or rather, strictly speaking, belonged to it; for although facts of this class, which as a rule are mentioned without a date, have been placed together for the purpose of presenting a general view under the first period, the statements made apply equally to the present. The clearest evidence in this respect is, of course, that of the coins. As the striking of Etruscan silver money after an Attic standard(30) and the penetrating of Italian and especially of Latin copper into Sicily(31) testify to the two former routes of traffic, so the equivalence, which we have just mentioned, between the silver money of Magna Graecia and the copper coinage of Picenum and Apulia, forms, with numerous other indications, an evidence of the active traffic which the Greeks of Lower Italy, the Tarentines in particular, held with the east Italian seaboard. The commerce again, which was at an earlier period perhaps still more active, between the Latins and the Campanian Greeks seems to have been disturbed by the Sabellian immigration, and to have been of no great moment during the first hundred and fifty years of the republic. The refusal of the Samnites in Capua and Cumae to supply the Romans with grain in the famine of 343 may be regarded as an indication of the altered relations which subsisted between Latium and Campania, till at the commencement of the fifth century the Roman arms restored and gave increased impetus to the old intercourse.

Touching on details, we may be allowed to mention, as one of the few dated facts in the history of Roman commerce, the notice drawn from the

annals of Ardea, that in 454 the first barber came from Sicily to Ardea; and to dwell for a moment on the painted pottery which was sent chiefly from Attica, but also from Corcyra and Sicily, to Lucania, Campania, and Etruria, to serve there for the decoration of tombs—a traffic, as to the circumstances of which we are accidentally better informed than as to any other article of transmarine commerce. The commencement of this import trade probably falls about the period of the expulsion of the Tarquins; for the vases of the oldest style, which are of very rare occurrence in Italy, were probably painted in the second half of the third century of the city, while those of the chaste style, occurring in greater numbers, belong to the first half, those of the most finished beauty to the second half, of the fourth century; and the immense quantities of the other vases, often marked by showiness and size but seldom by excellence in workmanship, must be assigned as a whole to the following century. It was from the Hellenes undoubtedly that the Italians derived this custom of embellishing tombs; but while the moderate means and fine discernment of the Greeks confined the practice in their case within narrow limits, it was stretched in Italy by barbaric opulence and barbaric extravagance far beyond its original and proper bounds. It is a significant circumstance, however, that in Italy this extravagance meets us only in the lands that had a Hellenic semi-culture. Any one who can read such records will perceive in the cemeteries of Etruria and Campania—the mines whence our museums have been replenished—a significant commentary on the accounts of the ancients as to the Etruscan and Campanian semi-culture choked amidst wealth and arrogance.(32) The homely Samnite character on the other hand remained at all times a stranger to this foolish luxury; the absence of Greek pottery from the tombs exhibits, quite as palpably as the absence of a Samnite coinage, the slight development of commercial intercourse and of urban life in this region. It is still more worthy of remark that Latium also, although not less near to the Greeks than Etruria and Campania, and in closest intercourse with them,

almost wholly refrained from such sepulchral decorations. It is more than probable—especially on account of the altogether different character of the tombs in the unique Praeneste—that in this result we have to recognize the influence of the stern Roman morality or—if the expression be preferred—of the rigid Roman police. Closely connected with this subject are the already-mentioned interdicts, which the law of the Twelve Tables fulminated against purple bier-cloths and gold ornaments placed beside the dead; and the banishment of all silver plate, excepting the salt-cellar and sacrificial ladle, from the Roman household, so far at least as sumptuary laws and the terror of censorial censure could banish it: even in architecture we shall again encounter the same spirit of hostility to luxury whether noble or ignoble. Although, however, in consequence of these influences Rome probably preserved a certain outward simplicity longer than Capua and Volsinii, her commerce and trade—on which, in fact, along with agriculture her prosperity from the beginning rested—must not be regarded as having been inconsiderable, or as having less sensibly experienced the influence of her new commanding position.

Capital in Rome

No urban middle class in the proper sense of that term, no body of independent tradesmen and merchants, was ever developed in Rome. The cause of this was—in addition to the disproportionate centralization of capital which occurred at an early period—mainly the employment of slave labour. It was usual in antiquity, and was in fact a necessary consequence of slavery, that the minor trades in towns were very frequently carried on by slaves, whom their master established as artisans or merchants; or by freedmen, in whose case the master not only frequently furnished the capital, but also regularly stipulated for a share, often the half, of the profits. Retail trading and dealing in Rome were undoubtedly constantly on the increase; and there are proofs that the trades which minister to the luxury of

great cities began to be concentrated in Rome—the Ficoroni casket for instance was designed in the fifth century of the city by a Praenestine artist and was sold to Praeneste, but was nevertheless manufactured in Rome.(33) But as the net proceeds even of retail business flowed for the most part into the coffers of the great houses, no industrial and commercial middle-class arose to an extent corresponding to that increase. As little were the great merchants and great manufacturers marked off as a distinct class from the great landlords. On the one hand, the latter were from ancient times(34) simultaneously traders and capitalists, and combined in their hands lending on security, trafficking on a great scale, the undertaking of contracts, and the executing of works for the state. On the other hand, from the emphatic moral importance which in the Roman commonwealth attached to the possession of land, and from its constituting the sole basis of political privileges—a basis which was infringed for the first time only towards the close of this epoch (35)—it was undoubtedly at this period already usual for the fortunate speculator to invest part of his capital in land. It is clear enough also from the political privileges given to freedmen possessing freeholds,(36) that the Roman statesmen sought in this way to diminish the dangerous class of the rich who had no land.

Development of Rome as A Great City

But while neither an opulent urban middle class nor a strictly close body of capitalists grew up in Rome, it was constantly acquiring more and more the character of a great city. This is plainly indicated by the increasing number of slaves crowded together in the capital (as attested by the very serious slave conspiracy of 335), and still more by the increasing multitude of freedmen, which was gradually becoming inconvenient and dangerous, as we may safely infer from the considerable tax imposed on manumissions in 397(37) and from the limitation of the political rights of freedmen in 450. (38) For not only was it implied in the circumstances that the great majority

of the persons manumitted had to devote themselves to trade or commerce, but manumission itself among the Romans was, as we have already said, less an act of liberality than an industrial speculation, the master often finding it more for his interest to share the profits of the trade or commerce of the freedman than to assert his title to the whole proceeds of the labour of his slave. The increase of manumissions must therefore have necessarily kept pace with the increase of the commercial and industrial activity of the Romans.

Urban Police

A similar indication of the rising importance of urban life in Rome is presented by the great development of the urban police. To this period probably belong in great measure the enactments under which the four aediles divided the city into four police districts, and made provision for the discharge of their equally important and difficult functions—for the efficient repair of the network of drains small and large by which Rome was pervaded, as well as of the public buildings and places; for the proper cleansing and paving of the streets; for obviating the nuisances of ruinous buildings, dangerous animals, or foul smells; for the removing of waggons from the highway except during the hours of evening and night, and generally for the keeping open of the communication; for the uninterrupted supply of the market of the capital with good and cheap grain; for the destruction of unwholesome articles, and the suppression of false weights and measures; and for the special oversight of baths, taverns, and houses of bad fame.

Building— Impulse Given to It

In respect to buildings the regal period, particularly the epoch of the great conquests, probably accomplished more than the first two centuries of the

republic. Structures like the temples on the Capitol and on the Aventine and the great Circus were probably as obnoxious to the frugal fathers of the city as to the burgesses who gave their task-work; and it is remarkable that perhaps the most considerable building of the republican period before the Samnite wars, the temple of Ceres in the Circus, was a work of Spurius Cassius (261) who in more than one respect, sought to lead the commonwealth back to the traditions of the kings. The governing aristocracy moreover repressed private luxury with a rigour such as the rule of the kings, if prolonged, would certainly not have displayed. But at length even the senate was no longer able to resist the superior force of circumstances. It was Appius Claudius who in his epoch-making censorship (442) threw aside the antiquated rustic system of parsimonious hoarding, and taught his fellow-citizens to make a worthy use of the public resources. He began that noble system of public works of general utility, which justifies, if anything can justify, the military successes of Rome even from the point of view of the welfare of the nations, and which even now in its ruins furnishes some idea of the greatness of Rome to thousands on thousands who have never read a page of her history. To him the Roman state was indebted for its great military road, and the city of Rome for its first aqueduct. Following in the steps of Claudius, the Roman senate wove around Italy that network of roads and fortresses, the formation of which has already been described,(39) and without which, as the history of all military states from the Achaemenidae down to the creator of the road over the Simplon shows, no military hegemony can subsist. Following in the steps of Claudius, Manius Curius built from the proceeds of the Pyrrhic spoil a second aqueduct for the capital (482); and some years previously (464) with the gains of the Sabine war he opened up for the Velino, at the point above Terni where it falls into the Nera, that broader channel in which the stream still flows, with a view to drain the beautiful valley of Rieti and thereby to gain space for a large burgess settlement along with a modest

farm for himself. Such works, in the eyes of persons of intelligence, threw into the shade the aimless magnificence of the Hellenic temples.

Embellishment of the City

The style of living also among the citizens now was altered. About the time of Pyrrhus silver plate began to make its appearance on Roman tables, and the chroniclers date the disappearance of shingle roofs in Rome from 470.(40) The new capital of Italy gradually laid aside its village-like aspect, and now began to embellish itself. It was not yet indeed customary to strip the temples in conquered towns of their ornaments for the decoration of Rome; but the beaks of the galleys of Antium were displayed at the orator's platform in the Forum(41) and on public festival days the gold-mounted shields brought home from the battle-fields of Samnium were exhibited along the stalls of the market.(42) The proceeds of fines were specially applied to the paving of the highways in and near the city, or to the erection and embellishment of public buildings. The wooden booths of the butchers, which stretched along the Forum on both sides, gave way, first on the Palatine side, then on that also which faced the Carinae, to the stone stalls of the money-changers; so that this place became the Exchange of Rome. Statues of the famous men of the past, of the kings, priests, and heroes of the legendary period, and of the Grecian -hospes- who was said to have interpreted to the decemvirs the laws of Solon; honorary columns and monuments dedicated to the great burgomasters who had conquered the Veientes, the Latins, the Samnites, to state envoys who had perished while executing their instructions, to rich women who had bequeathed their property to public objects, nay even to celebrated Greek philosophers and heroes such as Pythagoras and Alcibiades, were erected on the Capitol or in the Forum. Thus, now that the Roman community had become a great power, Rome itself became a great city.

Silver Standard of Value

Lastly Rome, as head of the Romano-Italian confederacy, not only entered into the Hellenistic state-system, but also conformed to the Hellenic system of moneys and coins. Up to this time the different communities of northern and central Italy, with few exceptions, had struck only a copper currency; the south Italian towns again universally had a currency of silver; and there were as many legal standards and systems of coinage as there were sovereign communities in Italy. In 485 all these local mints were restricted to the issuing of small coin; a general standard of currency applicable to all Italy was introduced, and the coining of the currency was centralized in Rome; Capua alone continued to retain its own silver coinage struck in the name of Rome, but after a different standard. The new monetary system was based on the legal ratio subsisting between the two metals, as it had long been fixed.⁽⁴³⁾ The common monetary unit was the piece of ten -asses- (which were no longer of a pound, but reduced to the third of a pound), the -denarius-, which weighed in copper $3 \frac{1}{3}$ and in silver $\frac{1}{72}$, of a Roman pound, a trifle more than the Attic —drachma—. At first copper money still predominated in the coinage; and it is probable that the earliest silver -denarius- was coined chiefly for Lower Italy and for intercourse with other lands. As the victory of the Romans over Pyrrhus and Tarentum and the Roman embassy to Alexandria could not but engage the thoughts of the contemporary Greek statesman, so the sagacious Greek merchant might well ponder as he looked on these new Roman drachmae. Their flat, unartistic, and monotonous stamping appeared poor and insignificant by the side of the marvellously beautiful contemporary coins of Pyrrhus and the Siceliots; nevertheless they were by no means, like the barbarian coins of antiquity, slavishly imitated and unequal in weight and alloy, but, on the contrary, worthy from the first by their independent and conscientious execution to be placed on a level with any Greek coin.

Extension of the Latin Nationality

Thus, when the eye turns from the development of constitutions and from the national struggles for dominion and for freedom which agitated Italy, and Rome in particular, from the banishment of the Tarquinian house to the subjugation of the Samnites and the Italian Greeks, and rests on those calmer spheres of human existence which history nevertheless rules and pervades, it everywhere encounters the reflex influence of the great events, by which the Roman burgesses burst the bonds of patrician sway, and the rich variety of the national cultures of Italy gradually perished to enrich a single people. While the historian may not attempt to follow out the great course of events into the infinite multiplicity of individual detail, he does not overstep his province when, laying hold of detached fragments of scattered tradition, he indicates the most important changes which during this epoch took place in the national life of Italy. That in such an inquiry the life of Rome becomes still more prominent than in the earlier epoch, is not merely the result of the accidental blanks of our tradition; it was an essential consequence of the change in the political position of Rome, that the Latin nationality should more and more cast the other nationalities of Italy into the shade. We have already pointed to the fact, that at this epoch the neighbouring lands—southern Etruria, Sabina, the land of the Volscians, — began to become Romanized, as is attested by the almost total absence of monuments of the old native dialects, and by the occurrence of very ancient Roman inscriptions in those regions; the admission of the Sabines to full burgess-rights at the end of this period(44) betokens that the Latinizing of Central Italy was already at that time the conscious aim of Roman policy. The numerous individual assignations and colonial establishments scattered throughout Italy were, not only in a military but also in a linguistic and national point of view, the advanced posts of the Latin stock. The Latinizing of the Italians was scarcely at this time generally aimed at; on the contrary, the Roman senate seems to have intentionally upheld the distinction

between the Latin and the other nationalities, and they did not yet, for example, allow the introduction of Latin into official use among the half-burgess communities of Campania. The force of circumstances, however, is stronger than even the strongest government: the language and customs of the Latin people immediately shared its predominance in Italy, and already began to undermine the other Italian nationalities.

Progress of Hellenism in Italy— Adoption of Greek Habits at the Table

These nationalities were at the same time assailed from another quarter and by an ascendancy resting on another basis—by Hellenism. This was the period when Hellenism began to become conscious of its intellectual superiority to the other nations, and to diffuse itself on every side. Italy did not remain unaffected by it. The most remarkable phenomenon of this sort is presented by Apulia, which after the fifth century of Rome gradually laid aside its barbarian dialect and silently became Hellenized. This change was brought about, as in Macedonia and Epirus, not by colonization, but by civilization, which seems to have gone hand in hand with the land commerce of Tarentum; at least that hypothesis is favoured by the facts, that the districts of the Poediculi and Daunii who were on friendly terms with the Tarentines carried out their Hellenization more completely than the Sallentines who lived nearer to Tarentum but were constantly at feud with it, and that the towns that were soonest Graecized, such as Arpi, were not situated on the coast. The stronger influence exerted by Hellenism over Apulia than over any other Italian region is explained partly by its position, partly by the slight development of any national culture of its own, and partly also perhaps by its nationality presenting a character less alien to the Greek stock than that of the rest of Italy.⁽⁴⁵⁾ We have already called attention⁽⁴⁶⁾ to the fact that the southern Sabellian stocks, although at the outset in concert with the tyrants of Syracuse they crushed and destroyed

the Hellenism of Magna Graecia, were at the same time affected by contact and mingling with the Greeks, so that some of them, such as the Bruttians and Nolans, adopted the Greek language by the side of their native tongue, and others, such as the Lucanians and a part of the Campanians, adopted at least Greek writing and Greek manners. Etruria likewise showed tendencies towards a kindred development in the remarkable vases which have been discovered(47) belonging to this period, rivalling those of Campania and Lucania; and though Latium and Samnium remained more strangers to Hellenism, there were not wanting there also traces of an incipient and ever-growing influence of Greek culture. In all branches of the development of Rome during this epoch, in legislation and coinage, in religion, in the formation of national legend, we encounter traces of the Greeks; and from the commencement of the fifth century in particular, in other words, after the conquest of Campania, the Greek influence on Roman life appears rapidly and constantly on the increase. In the fourth century occurred the erection of the "-Graecostasis-"—remarkable in the very form of the word—a platform in the Roman Forum for eminent Greek strangers and primarily for the Massiliots.(48) In the following century the annals began to exhibit Romans of quality with Greek surnames, such as Philipus or in Roman form Pilipus, Philo, Sophus, Hypsaeus. Greek customs gained ground: such as the non-Italian practice of placing inscriptions in honour of the dead on the tomb—of which the epitaph of Lucius Scipio (consul in 456) is the oldest example known to us; the fashion, also foreign to the Italians, of erecting without any decree of the state honorary monuments to ancestors in public places—a system begun by the great innovator Appius Claudius, when he caused bronze shields with images and eulogies of his ancestors to be suspended in the new temple of Bellona (442); the distribution of branches of palms to the competitors, introduced at the Roman national festival in 461; above all, the Greek manners and habits at table. The custom not of sitting as formerly on benches, but of reclining on

sofas, at table; the postponement of the chief meal from noon to between two and three o'clock in the afternoon according to our mode of reckoning; the institution of masters of the revels at banquets, who were appointed from among the guests present, generally by throwing the dice, and who then prescribed to the company what, how, and when they should drink; the table-chants sung in succession by the guests, which, however, in Rome were not -scolia-, but lays in praise of ancestors—all these were not primitive customs in Rome, but were borrowed from the Greeks at a very early period, for in Cato's time these usages were already common and had in fact partly fallen into disuse again. We must therefore place their introduction in this period at the latest. A characteristic feature also was the erection of statues to "the wisest and the bravest Greek" in the Roman Forum, which took place by command of the Pythian Apollo during the Samnite wars. The selection fell—evidently under Sicilian or Campanian influence—on Pythagoras and Alcibiades, the saviour and the Hannibal of the western Hellenes. The extent to which an acquaintance with Greek was already diffused in the fifth century among Romans of quality is shown by the embassies of the Romans to Tarentum—when their mouthpiece spoke, if not in the purest Greek, at any rate without an interpreter—and of Cineas to Rome. It scarcely admits of a doubt that from the fifth century the young Romans who devoted themselves to state affairs universally acquired a knowledge of what was then the general language of the world and of diplomacy.

Thus in the intellectual sphere Hellenism made advances quite as incessant as the efforts of the Romans to subject the earth to their sway; and the secondary nationalities, such as the Samnite, Celt, and Etruscan, hard pressed on both sides, were ever losing their inward vigour as well as narrowing their outward bounds.

Rome and the Romans of This Epoch

When the two great nations, both arrived at the height of their development, began to mingle in hostile or in friendly contact, their antagonism of character was at the same time prominently and fully brought out—the total want of individuality in the Italian and especially in the Roman character, as contrasted with the boundless variety, lineal, local, and personal, of Hellenism. There was no epoch of mightier vigour in the history of Rome than the epoch from the institution of the republic to the subjugation of Italy. That epoch laid the foundations of the commonwealth both within and without; it created a united Italy; it gave birth to the traditional groundwork of the national law and of the national history; it originated the *-pilum-* and the *maniple*, the construction of roads and of aqueducts, the farming of estates and the monetary system; it moulded the she-wolf of the Capitol and designed the *Ficoroni* casket. But the individuals, who contributed the several stones to this gigantic structure and cemented them together, have disappeared without leaving a trace, and the nations of Italy did not merge into that of Rome more completely than the single Roman burgess merged in the Roman community. As the grave closes alike over all whether important or insignificant, so in the roll of the Roman burgomasters the empty scion of nobility stands undistinguishable by the side of the great statesman. Of the few records that have reached us from this period none is more venerable, and none at the same time more characteristic, than the epitaph of Lucius Cornelius Scipio, who was consul in 456, and three years afterwards took part in the decisive battle of Sentinum.(49) On the beautiful sarcophagus, in noble Doric style, which eighty years ago still enclosed the dust of the conqueror of the Samnites, the following sentence is inscribed:—

-Cornelius Lucius—Scipio Barbatus,
Gnaivod patre prognatus, —fortis vir sapiensque,
Quoius forma virtu—tei parisuma fuit,
Consol censor aidilis—quei fuit apud vos,

Taurasia Cisauna—Samnio cepit,
Subigit omne Loucanum—opsidesque abdoucit.-

-''-'||-''-'_

Innumerable others who had been at the head of the Roman commonwealth, as well as this Roman statesman and warrior, might be commemorated as having been of noble birth and of manly beauty, valiant and wise; but there was no more to record regarding them. It is doubtless not the mere fault of tradition that no one of these Cornelii, Fabii, Papirii, or whatever they were called, confronts us in a distinct individual figure. The senator was supposed to be no worse and no better than other senators, nor at all to differ from them. It was not necessary and not desirable that any burgess should surpass the rest, whether by showy silver plate and Hellenic culture, or by uncommon wisdom and excellence. Excesses of the former kind were punished by the censor, and for the latter the constitution gave no scope. The Rome of this period belonged to no individual; it was necessary for all the burgesses to be alike, that each of them might be like a king.

Appius Claudius

No doubt, even now Hellenic individual development asserted its claims by the side of that levelling system; and the genius and force which it exhibited bear, no less than the tendency to which it opposed itself, the full stamp of that great age. We can name but a single man in connection with it; but he was, as it were, the incarnation of the idea of progress. Appius Claudius (censor 442; consul 447, 458), the great-great-grandson of the decemvir, was a man of the old nobility and proud of the long line of his ancestors; but yet it was he who set aside the restriction which confined the full franchise of the state to the freeholders,(50) and who broke up the old system of finance.(51) From Appius Claudius date not only the Roman aqueducts and highways, but also Roman jurisprudence, eloquence, poetry,

and grammar. The publication of a table of the -legis actiones-, speeches committed to writing and Pythagorean sentences, and even innovations in orthography, are attributed to him. We may not on this account call him absolutely a democrat or include him in that opposition party which found its champion in Manius Curius;(52) in him on the contrary the spirit of the ancient and modern patrician kings predominated —the spirit of the Tarquins and the Caesars, between whom he forms a connecting link in that five hundred years' interregnum of extraordinary deeds and ordinary men. So long as Appius Claudius took an active part in public life, in his official conduct as well as his general carriage he disregarded laws and customs on all hands with the hardihood and sauciness of an Athenian; till, after having long retired from the political stage, the blind old man, returning as it were from the tomb at the decisive Moment, overcame king Pyrrhus in the senate, and first formally and solemnly proclaimed the complete sovereignty of Rome over Italy.(53) But the gifted man came too early or too late; the gods made him blind on account of his untimely wisdom. It was not individual genius that ruled in Rome and through Rome in Italy; it was the one immoveable idea of a policy—propagated from generation to generation in the senate—with the leading maxims of which the sons of the senators became already imbued, when in the company of their fathers they went to the council and there at the door of the hall listened to the wisdom of the men whose seats they were destined at some future time to fill. Immense successes were thus obtained at an immense price; for Nike too is followed by her Nemesis. In the Roman commonwealth there was no special dependence on any one man, either on soldier or on general, and under the rigid discipline of its moral police all the idiosyncrasies of human character were extinguished. Rome reached a greatness such as no other state of antiquity attained; but she dearly purchased her greatness at the sacrifice of the graceful variety, of the easy abandon and of the inward freedom of Hellenic life.

Notes for Book II Chapter VIII

1. I. XI. Punishment of Offenses against Order
2. II. I. Right of Appeal
3. II. III. The Senate, Its Composition
4. II. I. Law and Edict
5. II. III. Censorship, the Magistrates, Partition and Weakening of the Consular Powers
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8. I. V. The Housefather and His Household, note
9. II. III. Praetorship
10. II. III. Praetorship, II. V. Revision of the Municipal Constitutions, Police Judges
11. The view formerly adopted, that these -tres viri- belonged to the earliest period, is erroneous, for colleges of magistrates with odd numbers are foreign to the oldest state-arrangements (Chronol. p. 15, note 12). Probably the well-accredited account, that they were first nominated in 465 (Liv. Ep. 11), should simply be retained, and the otherwise suspicious inference of the falsifier Licinius Macer (in Liv. vii. 46), which makes mention of them before 450, should be simply rejected. At first undoubtedly the -tres viri- were nominated by the superior magistrates, as was the case with most of the later -magistratus minores-; the Papirian -plebiscitum-,

which transferred the nomination of them to the community (Festus, -v. sacramentum-, p. 344, Niall.), was at any rate not issued till after the institution of the office of -praetor peregrinus-, or at the earliest towards the middle of the sixth century, for it names the praetor -qui inter jus cives ius dicit-.

12. II. VII. Subject Communities

13. This inference is suggested by what Livy says (ix. 20) as to the reorganization of the colony of Antium twenty years after it was founded; and it is self-evident that, while the Romans might very well impose on the inhabitant of Ostia the duty of settling all his lawsuits in Rome, the same course could not be followed with townships like Antium and Sena.

14. II. I. Restrictions on the Delegation of Powers

15. People are in the habit of praising the Romans as a nation specially privileged in respect to jurisprudence, and of gazing with wonder on their admirable law as a mystical gift of heaven; presumably by way of specially excusing themselves for the worthlessness of their own legal system. A glance at the singularly fluctuating and undeveloped criminal law of the Romans might show the untenableness of ideas so confused even to those who may think the proposition too simple, that a sound people has a sound law, and a morbid people an unsound. Apart from the more general political conditions on which jurisprudence also, and indeed jurisprudence especially, depends, the causes of the excellence of the Roman civil law lie mainly in two features: first, that the plaintiff and defendant were specially obliged to explain and embody in due and binding form the grounds of the demand and of the objection to comply with it; and secondly, that the Romans appointed a permanent machinery for the edictal development of their law, and associated it immediately with practice. By the former the Romans precluded the pettifogging practices of advocates, by the latter they

obviated incapable law-making, so far as such things can be prevented at all; and by means of both in conjunction they satisfied, as far as is possible, the two conflicting requirements, that law shall constantly be fixed, and that it shall constantly be in accordance with the spirit of the age.

16. II. II. Relation of the Tribune to the Consul

17. V. V. The Hegemony of Rome over Latium Shaken and Re-established

18. Venus probably first appears in the later sense as Aphrodite on occasion of the dedication of the temple consecrated in this year (Liv. x. 31; Becker, *Topographie*, p. 472).

19. II. III. Intrigues of the Nobility

20. I. VI. Organization of the Army

21. II. III. Increasing Powers of the Burgesses

22. I. VI. the Five Classes

23. According to Roman tradition the Romans originally carried quadrangular shields, after which they borrowed from the Etruscans the round hoplite shield (-clupeus-, —aspis—), and from the Samnites the later square shield (-scutum-, —thureos—), and the javelin (-veru-) (Diodor. Vat. Fr. p. 54; Sallust, *Cat.* 51, 38; Virgil, *Aen.* vii. 665; Festus, *Ep. v.* Samnites, p. 327, Mull.; and the authorities cited in Marquardt, *Handb.* iii. 2, 241). But it may be regarded as certain that the hoplite shield or, in other words, the tactics of the Doric phalanx were imitated not from the Etruscans, but directly from the Hellenes, As to the -scutum-, that large, cylindrical, convex leather shield must certainly have taken the place of the flat copper -clupeus-, when the phalanx was broken up into maniples; but the undoubted

derivation of the word from the Greek casts suspicion on the derivation of the thing itself from the Samnites. From the Greeks the Romans derived also the sling (-funda- from —sphendone—). (like -fides- from —sphion —),(I. XV. Earliest Hellenic Influences). The pilum was considered by the ancients as quite a Roman invention.

24. I. XIII. Landed Proprietors

25. II. III. Combination of the Plebian Aristocracy and the Farmers against the Nobility

26. Varro (De R. R. i. 2, 9) evidently conceives the author of the Licinian agrarian law as fanning in person his extensive lands; although, we may add, the story may easily have been invented to explain the cognomen (-Stolo-).

27. I. XIII. System of Joint Cultivation

28. I. XIII. Inland Commerce of the Italians

29. I. XIII. Commerce in Latium Passive, in Etruria Active

30. I. XIII. Etrusco-Attic, and Latino-Sicilian Commerce

31. I. XIII. Etrusco-Attic, and Latino-Sicilian Commerce

32. II. IV. Etruria at Peace and on the Decline, II. V. Campanian Hellenism

33. The conjecture that Novius Flautius, the artist who worked at this casket for Dindia Macolnia, in Rome, may have been a Campanian, is refuted by the old Praenestine tomb-stones recently discovered, on which,

among other Macolnii and Plautii, there occurs also a Lucius Magulnius, son of Haulms (L. Magolnio Pla. f.).

34. I. XIII. Etrusco-Attic, and Latino-Sicilian Commerce, II. II. Rising Power of the Capitalists

35. II. III. The Burgess Body

36. II. III. The Burgess Body

37. II. III. Laws Imposing Taxes

38. II. III. The Burgess Body

39. II. VII. Construction of New Fortresses and Roads

40. We have already mentioned the censorial stigma attached to Publius Cornelius Rufinus (consul 464, 477) for his silver plate.(II. VIII. Police) The strange statement of Fabius (in Strabo, v. p. 228) that the Romans first became given to luxury (—aisthesthae tou plouton—) after the conquest of the Sabines, is evidently only a historical version of the same matter; for the conquest of the Sabines falls in the first consulate of Rufinus.

41. II. V. Colonizations in the Land of the Volsci

42. II. VI. Last Campaigns in Samnium

43. II. VIII. Inland Intercourse in Italy

44. I. III. Localities of the Oldest Cantons

45. I. II. Iapygians

46. II. V. Campanian Hellenism

- 47. II. VIII. Transmarine Commerce
- 48. II. VII. The Full Roman Franchise
- 49. II. VI. Battle of Sentinum
- 50. II. III. The Burgess-Body
- 51. II. VIII. Impulse Given to It
- 52. II. III. New Opposition
- 53. II. VII. Attempts at Peace

CHAPTER IX

Art and Science

The Roman National Festival— The Roman Stage

The growth of art, and of poetic art especially, in antiquity was intimately associated with the development of national festivals. The thanksgiving-festival of the Roman community, which had been already organized in the previous period essentially under Greek influence and in the first instance as an extraordinary festival, —the -ludi maximi- or -Romani-,⁽¹⁾ —acquired during the present epoch a longer duration and greater variety in the amusements. Originally limited to one day, the festival was prolonged by an additional day after the happy termination of each of the three great revolutions of 245, 260, and 387, and thus at the close of this period it had already a duration of four days.⁽²⁾

A still more important circumstance was, that, probably on the institution of the curule aedileship (387) which was from the first entrusted with the preparation and oversight of the festival,⁽³⁾ it lost its extraordinary character and its reference to a special vow made by the general, and took its place in the series of the ordinary annually recurring festivals as the first of all. Nevertheless the government adhered to the practice of allowing the

spectacle proper —namely the chariot-race, which was the principal performance—to take place not more than once at the close of the festival. On the other days the multitude were probably left mainly to furnish amusement for themselves, although musicians, dancers, rope-walkers, jugglers, jesters and such like would not fail to make their appearance on the occasion, whether hired or not. But about the year 390 an important change occurred, which must have stood in connection with the fixing and prolongation of the festival, that took place perhaps about the same time. A scaffolding of boards was erected at the expense of the state in the Circus for the first three days, and suitable representations were provided on it for the entertainment of the multitude. That matters might not be carried too far however in this way, a fixed sum of 200,000 -asses- (2055 pounds) once for all appropriated from the exchequer for the expenses of the festival; and the sum was not increased up to the period of the Punic wars. The aediles, who had to expend this sum, were obliged to defray any additional amount out of their own pockets; and it is not probable that they at this time contributed often or considerably from their own resources. That the new stage was generally under Greek influence, is proved by its very name (-scaena-, —skene—). It was no doubt at first designed merely for musicians and buffoons of all sorts, amongst whom the dancers to the flute, particularly those then so celebrated from Etruria, were probably the most distinguished; but a public stage had at any rate now arisen in Rome and it soon became open also to the Roman poets.

Ballad Singers, -Satura- — Censure of Art

There was no want of such poets in Latium. Latin "strolling minstrels" or "ballad-singers" (-grassatores-, -spatiatores-) went from town to town and from house to house, and recited their chants (-saturae-(4)), gesticulating and dancing to the accompaniment of the flute. The measure was of course

the only one that then existed, the so-called Saturnian.⁽⁵⁾ No distinct plot lay at the basis of the chants, and as little do they appear to have been in the form of dialogue. We must conceive of them as resembling those monotonous —sometimes improvised, sometimes recited—ballads and -tarantelle-, such as one may still hear in the Roman hostelryes. Songs of this sort accordingly early came upon the public stage, and certainly formed the first nucleus of the Roman theatre. But not only were these beginnings of the drama in Rome, as everywhere, modest and humble; they were, in a remarkable manner, accounted from the very outset disreputable. The Twelve Tables denounced evil and worthless song-singing, imposing severe penalties not only upon incantations but even on lampoons composed against a fellow-citizen or recited before his door, and forbidding the employment of wailing-women at funerals. But far more severely, than by such legal restrictions, the incipient exercise of art was affected by the moral anathema, which was denounced against these frivolous and paid trades by the narrowminded earnestness of the Roman character. "The trade of a poet," says Cato, "in former times was not respected; if any one occupied himself with it or was a hanger-on at banquets, he was called an idler." But now any one who practised dancing, music, or ballad-singing for money was visited with a double stigma, in consequence of the more and more confirmed disapproval of gaining a livelihood by services rendered for remuneration. While accordingly the taking part in the masked farces with stereotyped characters, that formed the usual native amusement,⁽⁶⁾ was looked upon as an innocent youthful frolic, the appearing on a public stage for money and without a mask was considered as directly infamous, and the singer and poet were in this respect placed quite on a level with the rope-dancer and the harlequin. Persons of this stamp were regularly pronounced by the censors⁽⁷⁾ incapable of serving in the burgess-army and of voting in the burgess-assembly. Moreover, not only was the direction of the stage regarded as pertaining to the province of the city police—a fact

significant enough even in itself—but the police was probably, even at this period, invested with arbitrary powers of an extraordinary character against professional stage-artists. Not only did the police magistrates sit in judgment on the performance after its conclusion—on which occasion wine flowed as copiously for those who had acquitted themselves well, as stripes fell to the lot of the bungler—but all the urban magistrates were legally entitled to inflict bodily chastisement and imprisonment on any actor at any time and at any place. The necessary effect of this was that dancing, music, and poetry, at least so far as they appeared on the public stage, fell into the hands of the lowest classes of the Roman burgesses, and especially into those of foreigners; and while at this period poetry still played altogether too insignificant a part to engage the attention of foreign artists, the statement on the other hand, that in Rome all the music, sacred and profane, was essentially Etruscan, and consequently the ancient Latin art of the flute, which was evidently at one time held in high esteem,(8) had been supplanted by foreign music, may be regarded as already applicable to this period.

There is no mention of any poetical literature. Neither the masked plays nor the recitations of the stage can have had in the proper sense fixed texts; on the contrary, they were ordinarily improvised by the performers themselves as circumstances required. Of works composed at this period posterity could point to nothing but a sort of Roman "Works and Days"—counsels of a farmer to his son,(9) and the already-mentioned Pythagorean poems of Appius Claudius(10) the first commencement of Roman poetry after the Hellenic type. Nothing of the poems of this epoch has survived but one or two epitaphs in Saturnian measure.(11)

Roman Historical Composition

Along with the rudiments of the Roman drama, the rudiments of Roman historical composition belong to this period; both as regards the contemporary recording of remarkable events, and as regards the conventional settlement of the early history of the Roman community.

Registers of Magistrates

The writing of contemporary history was associated with the register of the magistrates. The register reaching farthest back, which was accessible to the later Roman inquirers and is still indirectly accessible to us, seems to have been derived from the archives of the temple of the Capitoline Jupiter; for it records the names of the annual presidents of the community onward from the consul Marcus Horatius, who consecrated that temple on the 13th Sept. in his year of office, and it also notices the vow which was made on occasion of a severe pestilence under the consuls Publius Servilius and Lucius Aebutius (according to the reckoning now current, 291), that thenceforward a nail should be driven every hundredth year into the wall of the Capitoline temple. Subsequently it was the state officials who were learned in measuring and in writing, or in other words, the pontifices, that kept an official record of the names of the annual chief magistrates, and thus combined an annual, with the earlier monthly, calendar. Both these calendars were afterwards comprehended under the name of *Fasti*—which strictly belonged only to the list of court-days. This arrangement was probably adopted not long after the abolition of the monarchy; for in fact an official record of the annual magistrates was of urgent practical necessity for the purpose of authenticating the order of succession of official documents. But, if there was an official register of the consuls so old, it probably perished in the Gallic conflagration (364); and the list of the pontifical college was subsequently completed from the Capitoline register which was not affected by that catastrophe, so far as this latter reached back. That the list of presidents which we now have —although in collateral

matters, and especially in genealogical statements, it has been supplemented at pleasure from the family pedigrees of the nobility—is in substance based from the beginning on contemporary and credible records, admits of no doubt. But it reproduces the calendar years only imperfectly and approximately: for the consuls did not enter on office with the new year, or even on a definite day fixed once for all; on the contrary from various causes the day of entering on office was fluctuating, and the -interregna- that frequently occurred between two consulates were entirely omitted in the reckoning by official years. Accordingly, if the calendar years were to be reckoned by this list of consuls, it was necessary to note the days of entering on and of demitting office in the case of each pair, along with such -interregna- as occurred; and this too may have been early done. But besides this, the list of the annual magistrates was adjusted to the list of calendar years in such a way that a pair of magistrates were by accommodation assigned to each calendar year, and, where the list did not suffice, intercalary years were inserted, which are denoted in the later (Varronian) table by the figures 379, 383, 421, 430, 445, 453. From 291 u. c. (463 B. C.) the Roman list demonstrably coincides, not indeed in detail but yet on the whole, with the Roman calendar, and is thus chronologically certain, so far as the defectiveness of the calendar itself allows. The 47 years preceding that date cannot be checked, but must likewise be at least in the main correct.(12) Whatever lies beyond 245 remains, chronologically, in oblivion.

Capitoline Era

No era was formed for ordinary use; but in ritual matters they reckoned from the year of the consecration of the temple of the Capitoline Jupiter, from which the list of magistrates also started.

Annals

The idea naturally suggested itself that, along with the names of the magistrates, the most important events occurring under their magistracy might be noted; and from such notices appended to the catalogue of magistrates the Roman annals arose, just as the chronicles of the middle ages arose out of the memoranda marginally appended to the table of Easter. But it was not until a late period that the pontifices formed the scheme of a formal chronicle (-liber annalis-), which should steadily year by year record the names of all the magistrates and the remarkable events. Before the eclipse of the sun noticed under the 5th of June 351, by which is probably meant that of the 20th June 354, no solar eclipse was found recorded from observation in the later chronicle of the city: its statements as to the numbers of the census only begin to sound credible after the beginning of the fifth century,(13) the cases of fines brought before the people, and the prodigies expiated on behalf of the community, appear to have been regularly introduced into the annals only after the second half of the fifth century began. To all appearance the institution of an organized book of annals, and—what was certainly associated with it—the revision (which we have just explained) of the earlier list of magistrates so as to make it a year-calendar by the insertion, where chronologically necessary, of intercalary years, took place in the first half of the fifth century. But even after it became a practically recognized duty of the -pontifex maximus- to record year after year campaigns and colonizations, pestilences and famines, eclipses and portents, the deaths of priests and other men of note, the new decrees of the people, and the results of the census, and to deposit these records in his official residence for permanent preservation and for any one's inspection, these records were still far removed from the character of real historical writings. How scanty the contemporary record still was at the close of this period and how ample room is left for the caprice of subsequent annalists, is shown with incisive clearness by a comparison of the accounts as to the campaign of 456 in the annals and in the epitaph of

the consul Scipio.(14) The later historians were evidently unable to construct a readable and in some measure connected narrative out of these notices from the book of annals; and we should have difficulty, even if the book of annals still lay before us with its original contents, in writing from it in duly connected sequence the history of the times. Such chronicles, however, did not exist merely in Rome; every Latin city possessed its annals as well as its pontifices, as is clear from isolated notices relative to Ardea for instance, Ameria, and Interamna on the Nar; and from the collective mass of these city-chronicles some result might perhaps have been attained similar to what has been accomplished for the earlier middle ages by the comparison of different monastic chronicles. Unfortunately the Romans in later times preferred to supply the defect by Hellenic or Hellenizing falsehoods.

Family Pedigrees

Besides these official arrangements, meagrely planned and uncertainly handled, for commemorating past times and past events, there can scarcely have existed at this epoch any other records immediately serviceable for Roman history. Of private chronicles we find no trace. The leading houses, however, were careful to draw up genealogical tables, so important in a legal point of view, and to have the family pedigree painted for a perpetual memorial on the walls of the entrance-hall. These lists, which at least named the magistracies held by the family, not only furnished a basis for family tradition, but doubtless at an early period had biographical notices attached to them. The memorial orations, which in Rome could not be omitted at the funeral of any person of quality, and were ordinarily pronounced by the nearest relative of the deceased, consisted essentially not merely in an enumeration of the virtues and excellencies of the dead, but also in a recital of the deeds and virtues of his ancestors; and so they were doubtless, even in the earliest times, transmitted traditionally from one

generation to another. Many a valuable notice may by this means have been preserved; but many a daring perversion and falsification also may have been in this way introduced into tradition.

Roman Early History of Rome

But as the first steps towards writing real history belonged to this period, to it belonged also the first attempts to record, and conventionally distort, the primitive history of Rome. The sources whence it was formed were of course the same as they are everywhere. Isolated names like those of the kings Numa, Ancus, Tullus, to whom the clan-names were probably only assigned subsequently, and isolated facts, such as the conquest of the Latins by king Tarquinius and the expulsion of the Tarquinian royal house, may have continued to live in true general tradition orally transmitted. Further materials were furnished by the traditions of the patrician clans, such as the various tales that relate to the Fabii. Other tales gave a symbolic and historic shape to primitive national institutions, especially setting forth with great vividness the origin of rules of law. The sacredness of the walls was thus illustrated in the tale of the death of Remus, the abolition of blood-revenge in the tale of the end of king Tatius(15), the necessity of the arrangement as to the -pons sublicius- in the legend of Horatius Cocles,(15) the origin of the -provocatio- in the beautiful tale of the Horatii and Curiatii, the origin of manumission and of the burgess-rights of freedmen in the tale of the Tarquinian conspiracy and the slave Vindicius. To the same class belongs the history of the foundation of the city itself, which was designed to connect the origin of Rome with Latium and with Alba, the general metropolis of the Latins. Historical glosses were annexed to the surnames of distinguished Romans; that of Publius Valerius the "servant of the people" (-Poplicola-), for instance, gathered around it a whole group of such anecdotes. Above all, the sacred fig-tree and other spots and notable objects in the city were associated with a great multitude of sextons' tales of

the same nature as those out of which, upwards of a thousand years afterwards, there grew up on the same ground the *Mirabilia Urbis*. Some attempts to link together these different tales—the adjustment of the series of the seven kings, the setting down of the duration of the monarchy at 240 years in all, which was undoubtedly based on a calculation of the length of generations,(16) and even the commencement of an official record of these assumed facts—probably took place already in this epoch. The outlines of the narrative, and in particular its quasi-chronology, make their appearance in the later tradition so unalterably fixed, that for that very reason the fixing of them must be placed not in, but previous to, the literary epoch of Rome. If a bronze casting of the twins Romulus and Remus sucking the teats of the she-wolf was already placed beside the sacred fig-tree in 458, the Romans who subdued Latium and Samnium must have heard the history of the origin of their ancestral city in a form not greatly differing from what we read in Livy. Even the Aborigines—i. e. "those from the very beginning"—that simple rudimental form of historical speculation as to the Latin race—are met with about 465 in the Sicilian author Callias. It is of the very nature of a chronicle that it should attach prehistoric speculation to history and endeavour to go back, if not to the origin of heaven and earth, at least to the origin of the community; and there is express testimony that the table of the pontifices specified the year of the foundation of Rome. Accordingly it may be assumed that, when the pontifical college in the first half of the fifth century proceeded to substitute for the former scanty records—ordinarily, doubtless, confined to the names of the magistrates—the scheme of a formal yearly chronicle, it also added what was wanting at the beginning, the history of the kings of Rome and of their fall, and, by placing the institution of the republic on the day of the consecration of the Capitoline temple, the 13th of Sept. 245, furnished a semblance of connection between the dateless and the annalistic narrative. That in this earliest record of the origin of Rome the hand of Hellenism was at work, can scarcely be

doubted. The speculations as to the primitive and subsequent population, as to the priority of pastoral life over agriculture, and the transformation of the man Romulus into the god Quirinus,(17) have quite a Greek aspect, and even the obscuring of the genuinely national forms of the pious Numa and the wise Egeria by the admixture of alien elements of Pythagorean primitive wisdom appears by no means to be one of the most recent ingredients in the Roman prehistoric annals.

The pedigrees of the noble clans were completed in a manner analogous to these -origines- of the community, and were, in the favourite style of heraldry, universally traced back to illustrious ancestors. The Aemilii, for instance, Calpurnii, Pinarii, and Pomponii professed to be descended from the four sons of Numa, Mamercus, Calpus, Pinus, and Pompo; and the Aemilii, yet further, from Mamercus, the son of Pythagoras, who was named the "winning speaker" (—aimulos—)

But, notwithstanding the Hellenic reminiscences that are everywhere apparent, these prehistoric annals of the community and of the leading houses may be designated at least relatively as national, partly because they originated in Rome, partly because they tended primarily to form links of connection not between Rome and Greece, but between Rome and Latium.

Hellenic Early History of Rome

It was Hellenic story and fiction that undertook the task of connecting Rome and Greece. Hellenic legend exhibits throughout an endeavour to keep pace with the gradual extension of geographical knowledge, and to form a dramatized geography by the aid of its numerous stories of voyagers and emigrants. In this, however, it seldom follows a simple course. An account like that of the earliest Greek historical work which mentions Rome, the "Sicilian History" of Antiochus of Syracuse (which ended in 330)—that a man named Sikelos had migrated from Rome to Italia, that is,

to the Bruttian peninsula —such an account, simply giving a historical form to the family affinity between the Romans, Siculi, and Bruttians, and free from all Hellenizing colouring, is a rare phenomenon. Greek legend as a whole is pervaded—and the more so, the later its rise—by a tendency to represent the whole barbarian world as having either issued from the Greeks or having been subdued by them; and it early in this sense spun its threads also around the west. For Italy the legends of Herakles and of the Argonauts were of less importance—although Hecataeus (after 257) is already acquainted with the Pillars of Herakles, and carries the Argo from the Black Sea into the Atlantic Ocean, from the latter into the Nile, and thus back to the Mediterranean—than were the homeward voyages connected with the fall of Ilion. With the first dawn of information as to Italy Diomedes begins to wander in the Adriatic, and Odysseus in the Tyrrhene Sea;(18) as indeed the latter localization at least was naturally suggested by the Homeric conception of the legend. Down to the times of Alexander the countries on the Tyrrhene Sea belonged in Hellenic fable to the domain of the legend of Odysseus; Ephorus, who ended his history with the year 414, and the so-called Scylax (about 418) still substantially follow it. Of Trojan voyages the whole earlier poetry has no knowledge; in Homer Aeneas after the fall of Ilion rules over the Trojans that remained at home.

Stesichorus

It was the great remodeller of myths, Stesichorus (122-201) who first in his "Destruction of Ilion" brought Aeneas to the land of the west, that he might poetically enrich the world of fable in the country of his birth and of his adoption, Sicily and Lower Italy, by the contrast of the Trojan heroes with the Hellenic. With him originated the poetical outlines of this fable as thenceforward fixed, especially the group of the hero and his wife, his little son and his aged father bearing the household gods, departing from burning Troy, and the important identification of the Trojans with the Sicilian and

Italian autochthones, which is especially apparent in the case of the Trojan trumpeter Misenus who gave his name to the promontory of Misenum.(19) The old poet was guided in this view by the feeling that the barbarians of Italy were less widely removed from the Hellenes than other barbarians were, and that the relation between the Hellenes and Italians might, when measured poetically, be conceived as similar to that between the Homeric Achaeans and the Trojans. This new Trojan fable soon came to be mixed up with the earlier legend of Odysseus, while it spread at the same time more widely over Italy. According to Hellanicus (who wrote about 350) Odysseus and Aeneas came through the country of the Thracians and Molottians (Epirus) to Italy, where the Trojan women whom they had brought with them burnt the ships, and Aeneas founded the city of Rome and named it after one of these Trojan women. To a similar effect, only with less absurdity, Aristotle (370-432) related that an Achaean squadron cast upon the Latin coast had been set on fire by Trojan female slaves, and that the Latins had originated from the descendants of the Achaeans who were thus compelled to remain there and of their Trojan wives. With these tales were next mingled elements from the indigenous legend, the knowledge of which had been diffused as far as Sicily by the active intercourse between Sicily and Italy, at least towards the end of this epoch. In the version of the origin of Rome, which the Sicilian Callias put on record about 465, the fables of Odysseus, Aeneas, and Romulus were intermingled.(20)

Timaeus

But the person who really completed the conception subsequently current of this Trojan migration was Timaeus of Tauromenium in Sicily, who concluded his historical work with 492. It is he who represents Aeneas as first founding Lavinium with its shrine of the Trojan Penates, and as thereafter founding Rome; he must also have interwoven the Tyrian princess Elisa or Dido with the legend of Aeneas, for with him Dido is the

foundress of Carthage, and Rome and Carthage are said by him to have been built in the same year. These alterations were manifestly suggested by certain accounts that had reached Sicily respecting Latin manners and customs, in conjunction with the critical struggle which at the very time and place where Timaeus wrote was preparing between the Romans and the Carthaginians. In the main, however, the story cannot have been derived from Latium, but can only have been the good-for-nothing invention of the old "gossip-monger" himself. Timaeus had heard of the primitive temple of the household gods in Lavinium; but the statement, that these were regarded by the Lavinates as the Penates brought by the followers of Aeneas from Ilion, is as certainly an addition of his own, as the ingenious parallel between the Roman October horse and the Trojan horse, and the exact inventory taken of the sacred objects of Lavinium—there were, our worthy author affirms, heralds' staves of iron and copper, and an earthen vase of Trojan manufacture! It is true that these same Penates might not at all be seen by any one for centuries afterwards; but Timaeus was one of the historians who upon no matter are so fully informed as upon things unknowable. It is not without reason that Polybius, who knew the man, advises that he should in no case be trusted, and least of all where, as in this instance, he appeals to documentary proofs. In fact the Sicilian rhetorician, who professed to point out the grave of Thucydides in Italy, and who found no higher praise for Alexander than that he had finished the conquest of Asia sooner than Isocrates finished his "Panegyric," was exactly the man to knead the naive fictions of the earlier time into that confused medley on which the play of accident has conferred so singular a celebrity.

How far the Hellenic play of fable regarding Italian matters, as it in the first instance arose in Sicily, gained admission during this period even in Italy itself, cannot be ascertained with precision. Those links of connection with the Odyssean cycle, which we subsequently meet with in the legends of the foundation of Tusculum, Praeneste, Antium, Ardea, and Cortona,

must probably have been already concocted at this period; and even the belief in the descent of the Romans from Trojan men or Trojan women must have been established at the close of this epoch in Rome, for the first demonstrable contact between Rome and the Greek east is the intercession of the senate on behalf of the "kindre" Ilians in 472. That the fable of Aeneas was nevertheless of comparatively recent origin in Italy, is shown by the extremely scanty measure of its localization as compared with the legend of Odysseus; and at any rate the final redaction of these tales, as well as their reconciliation with the legend of the origin of Rome, belongs only to the following age.

While in this way historical composition, or what was so called among the Hellenes, busied itself in its own fashion with the prehistoric times of Italy, it left the contemporary history of Italy almost untouched—a circumstance as significant of the sunken condition of Hellenic history, as it is to be for our sakes regretted. Theopompus of Chios (who ended his work with 418) barely noticed in passing the capture of Rome by the Celts; and Aristotle,(21) Clitarchus,(22) Theophrastus,(23) Heraclides of Pontus (about 450), incidentally mention particular events relating to Rome. It is only with Hieronymus of Cardia, who as the historian of Pyrrhus narrated also his Italian wars, that Greek historiography becomes at the same time an authority for the history of Rome.

Jurisprudence

Among the sciences, that of jurisprudence acquired an invaluable basis through the committing to writing of the laws of the city in the years 303, 304. This code, known under the name of the Twelve Tables, is perhaps the oldest Roman document that deserves the name of a book. The nucleus of the so-called -leges regiae- was probably not much more recent. These were certain precepts chiefly of a ritual nature, which rested upon traditional

usage, and were probably promulgated to the general public under the form of royal enactments by the college of pontifices, which was entitled not to legislate but to point out the law. Moreover it may be presumed that from the commencement of this period the more important decrees of the senate at any rate—if not those of the people—were regularly recorded in writing; for already in the earliest conflicts between the orders disputes took place as to their preservation.(24)

Opinions—

Table of Formulae for Actions

While the mass of written legal documents thus increased, the foundations of jurisprudence in the proper sense were also firmly laid. It was necessary that both the magistrates who were annually changed and the jurymen taken from the people should be enabled to resort to men of skill, who were acquainted with the course of law and knew how to suggest a decision accordant with precedents or, in the absence of these, resting on reasonable grounds. The pontifices who were wont to be consulted by the people regarding court-days and on all questions of difficulty and of legal observance relating to the worship of the gods, delivered also, when asked, counsels and opinions on other points of law, and thus developed in the bosom of their college that tradition which formed the basis of Roman private law, more especially the formulae of action proper for each particular case. A table of formulae which embraced all these actions, along with a calendar which specified the court-days, was published to the people about 450 by Appius Claudius or by his clerk, Gnaeus Flavius. This attempt, however, to give formal shape to a science, that as yet hardly recognized itself, stood for a long time completely isolated.

That the knowledge of law and the setting it forth were even now a means of recommendation to the people and of attaining offices of state,

may be readily conceived, although the story, that the first plebeian pontifex Publius Sempronius Sophus (consul 450), and the first plebeian pontifex maximus Tiberius Coruncanius (consul 474), were indebted for these priestly honours to their knowledge of law, is probably rather a conjecture of posterity than a statement of tradition.

Language

That the real genesis of the Latin and doubtless also of the other Italian languages was anterior to this period, and that even at its commencement the Latin language was substantially an accomplished fact, is evident from the fragments of the Twelve Tables, which, however, have been largely modernized by their semi-oral tradition. They contain doubtless a number of antiquated words and harsh combinations, particularly in consequence of omitting the indefinite subject; but their meaning by no means presents, like that of the Arval chant, any real difficulty, and they exhibit far more agreement with the language of Cato than with that of the ancient litanies. If the Romans at the beginning of the seventh century had difficulty in understanding documents of the fifth, the difficulty doubtless proceeded merely from the fact that there existed at that time in Rome no real, least of all any documentary, research.

Technical Style

On the other hand it must have been at this period, when the indication and redaction of law began, that the Roman technical style first established itself—a style which at least in its developed shape is nowise inferior to the modern legal phraseology of England in stereotyped formulae and turns of expression, endless enumeration of particulars, and long-winded periods; and which commends itself to the initiated by its clearness and precision, while the layman who does not understand it listens, according to his character and humour, with reverence, impatience, or chagrin.

Philology

Moreover at this epoch began the treatment of the native languages after a rational method. About its commencement the Sabellian as well as the Latin idiom threatened, as we saw,(25) to become barbarous, and the abrasion of endings and the corruption of the vowels and more delicate consonants spread on all hands, just as was the case with the Romanic languages in the fifth and sixth centuries of the Christian era. But a reaction set in: the sounds which had coalesced in Oscan, -d and -r, and the sounds which had coalesced in Latin, -g and -k, were again separated, and each was provided with its proper sign; -o and -u, for which from the first the Oscan alphabet had lacked separate signs, and which had been in Latin originally separate but threatened to coalesce, again became distinct, and in Oscan even the -i was resolved into two signs different in sound and in writing; lastly, the writing again came to follow more closely the pronunciation—the -s for instance among the Romans being in many cases replaced by -r. Chronological indications point to the fifth century as the period of this reaction; the Latin -g for instance was not yet in existence about 300 but was so probably about 500; the first of the Papirian clan, who called himself Papirius instead of Papisius, was the consul of 418; the introduction of that -r instead of -s is attributed to Appius Claudius, censor in 442. Beyond doubt the re-introduction of a more delicate and precise pronunciation was connected with the increasing influence of Greek civilization, which is observable at this very period in all departments of Italian life; and, as the silver coins of Capua and Nola are far more perfect than the contemporary asses of Ardea and Rome, writing and language appear also to have been more speedily and fully reduced to rule in the Campanian land than in Latium. How little, notwithstanding the labour bestowed on it, the Roman language and mode of writing had become settled at the close of this epoch, is shown by the inscriptions preserved from the end of the fifth century, in which the greatest arbitrariness prevails, particularly as to the insertion or

omission of -m, -d and -s in final sounds and of -n in the body of a word, and as to the distinguishing of the vowels -o -u and -e -i.(26) It is probable that the contemporary Sabellians were in these points further advanced, while the Umbrians were but slightly affected by the regenerating influence of the Hellenes.

Instruction

In consequence of this progress of jurisprudence and grammar, elementary school-instruction also, which in itself had doubtless already emerged earlier, must have undergone a certain improvement. As Homer was the oldest Greek, and the Twelve Tables was the oldest Roman, book, each became in its own land the essential basis of instruction; and the learning by heart the juristico-political catechism was a chief part of Roman juvenile training. Alongside of the Latin "writing-masters" (-litteratores-) there were of course, from the time when an acquaintance with Greek was indispensable for every statesman and merchant, also Greek "language-masters" (-grammatici-)(27)—partly tutor-slaves, partly private teachers, who at their own dwelling or that of their pupil gave instructions in the reading and speaking of Greek. As a matter of course, the rod played its part in instruction as well as in military discipline and in police.(28) The instruction of this epoch cannot however have passed beyond the elementary stage: there was no material shade of difference, in a social respect, between the educated and the non-educated Roman.

Exact Sciences—

Regulation of the Calendar

That the Romans at no time distinguished themselves in the mathematical and mechanical sciences is well known, and is attested, in reference to the present epoch, by almost the only fact which can be adduced under this head with certainty—the regulation of the calendar attempted by the

decemvirs. They wished to substitute for the previous calendar based on the old and very imperfect -trieteris-(29) the contemporary Attic calendar of the -octaeteris-, which retained the lunar month of 29 1/2 days but assumed the solar year at 365 1/4 days instead of 368 3/4, and therefore, without making any alteration in the length of the common year of 354 days, intercalated, not as formerly 59 days every 4 years, but 90 days every 8 years. With the same view the improvers of the Roman calendar intended—while otherwise retaining the current calendar—in the two inter-calary years of the four years' cycle to shorten not the intercalary months, but the two Februaries by 7 days each, and consequently to fix that month in the intercalary years at 22 and 21 days respectively instead of 29 and 28. But want of mathematical precision and theological scruples, especially in reference to the annual festival of Terminus which fell within those very days in February, disarranged the intended reform, so that the Februaries of the intercalary years came to be of 24 and 23 days, and thus the new Roman solar year in reality ran to 366 1/4 days. Some remedy for the practical evils resulting from this was found in the practice by which, setting aside the reckoning by the months or ten months of the calendar (30) as now no longer applicable from the inequality in the length of the months, wherever more accurate specifications were required, they accustomed themselves to reckon by terms of ten months of a solar year of 365 days or by the so-called ten-month year of 304 days. Over and above this, there came early into use in Italy, especially for agricultural purposes, the farmers' calendar based on the Egyptian solar year of 365 1/4 days by Eudoxus (who flourished 386).

Structural and Plastic Art

A higher idea of what the Italians were able to do in these departments is furnished by their works of structural and plastic art, which are closely associated with the mechanical sciences. Here too we do not find phenomena of real originality; but if the impress of borrowing, which the

plastic art of Italy bears throughout, diminishes its artistic interest, there gathers around it a historical interest all the more lively, because on the one hand it preserves the most remarkable evidences of an international intercourse of which other traces have disappeared, and on the other hand, amidst the well-nigh total loss of the history of the non-Roman Italians, art is almost the sole surviving index of the living activity which the different peoples of the peninsula displayed. No novelty is to be reported in this period; but what we have already shown⁽³¹⁾ may be illustrated in this period with greater precision and on a broader basis, namely, that the stimulus derived from Greece powerfully affected the Etruscans and Italians on different sides, and called forth among the former a richer and more luxurious, among the latter—where it had any influence at all—a more intelligent and more genuine, art.

Architecture— Etruscan

We have already shown how wholly the architecture of all the Italian lands was, even in its earliest period, pervaded by Hellenic elements. Its city walls, its aqueducts, its tombs with pyramidal roofs, and its Tuscanic temple, are not at all, or not materially, different from the oldest Hellenic structures. No trace has been preserved of any advance in architecture among the Etruscans during this period; we find among them neither any really new reception, nor any original creation, unless we ought to reckon as such the magnificent tombs, e. g. the so-called tomb of Porsena at Chiusi described by Varro, which vividly recalls the strange and meaningless grandeur of the Egyptian pyramids.

Latin— The Arch

In Latium too, during the first century and a half of the republic, it is probable that they moved solely in the previous track, and it has already been stated that the exercise of art rather sank than rose with the introduction of the republic.(32) There can scarcely be named any Latin building of architectural importance belonging to this period, except the temple of Ceres built in the Circus at Rome in 261, which was regarded in the period of the empire as a model of the Tuscanic style. But towards the close of this epoch a new spirit appeared in Italian and particularly in Roman architecture;(33) the building of the magnificent arches began. It is true that we are not entitled to pronounce the arch and the vault Italian inventions. It is well ascertained that at the epoch of the genesis of Hellenic architecture the Hellenes were not yet acquainted with the arch, and therefore had to content themselves with a flat ceiling and a sloping roof for their temples; but the arch may very well have been a later invention of the Hellenes originating in more scientific mechanics; as indeed the Greek tradition refers it to the natural philosopher Democritus (294-397). With this priority of Hellenic over Roman arch-building the hypothesis, which has been often and perhaps justly propounded, is quite compatible, that the vaulted roof of the Roman great -cloaca-, and that which was afterwards thrown over the old Capitoline well-house which originally had a pyramidal roof,(34) are the oldest extant structures in which the principle of the arch is applied; for it is more than probable that these arched buildings belong not to the regal but to the republican period,(35) and that in the regal period the Italians were acquainted only with flat or overlapped roofs.(34) But whatever may be thought as to the invention of the arch itself, the application of a principle on a great scale is everywhere, and particularly in architecture, at least as important as its first exposition; and this application belongs indisputably to the Romans. With the fifth century began the building of gates, bridges, and aqueducts based mainly on the arch, which is thenceforth inseparably associated with the Roman name. Akin to this was

the development of the form of the round temple with the dome-shaped roof, which was foreign to the Greeks, but was held in much favour with the Romans and was especially applied by them in the case of the cults peculiar to them, particularly the non-Greek worship of Vesta.(37)

Something the same may be affirmed as true of various subordinate, but not on that account unimportant, achievements in this field. They do not lay claim to originality or artistic accomplishment; but the firmly-jointed stone slabs of the Roman streets, their indestructible highways, the broad hard ringing tiles, the everlasting mortar of their buildings, proclaim the indestructible solidity and the energetic vigour of the Roman character.

Plastic and Delineative Art

Like architectural art, and, if possible, still more completely, the plastic and delineative arts were not so much matured by Grecian stimulus as developed from Greek seeds on Italian soil. We have already observed(38) that these, although only younger sisters of architecture, began to develop themselves at least in Etruria, even during the Roman regal period; but their principal development in Etruria, and still more in Latium, belongs to the present epoch, as is very evident from the fact that in those districts which the Celts and Samnites wrested from the Etruscans in the course of the fourth century there is scarcely a trace of the practice of Etruscan art. The plastic art of the Tuscans applied itself first and chiefly to works in terra-cotta, in copper, and in gold-materials which were furnished to the artists by the rich strata of clay, the copper mines, and the commercial intercourse of Etruria. The vigour with which moulding in clay was prosecuted is attested by the immense number of bas-reliefs and statuary works in terra-cotta, with which the walls, gables, and roofs of the Etruscan temples were once decorated, as their still extant ruins show, and by the trade which can be shown to have existed in such articles from Etruria to Latium. Casting in

copper occupied no inferior place. Etruscan artists ventured to make colossal statues of bronze fifty feet in height, and Volsinii, the Etruscan Delphi, was said to have possessed about the year 489 two thousand bronze statues. Sculpture in stone, again, began in Etruria, as probably everywhere, at a far later date, and was prevented from development not only by internal causes, but also by the want of suitable material; the marble quarries of Luna (Carrara) were not yet opened. Any one who has seen the rich and elegant gold decorations of the south-Etruscan tombs, will have no difficulty in believing the statement that Tyrrhene gold cups were valued even in Attica. Gem-engraving also, although more recent, was in various forms practised in Etruria. Equally dependent on the Greeks, but otherwise quite on a level with the workers in the plastic arts, were the Etruscan designers and painters, who manifested extraordinary activity both in outline-drawing on metal and in monochromatic fresco-painting.

Campanian and Sabellian

On comparing with this the domain of the Italians proper, it appears at first, contrasted with the Etruscan riches, almost poor in art. But on a closer view we cannot fail to perceive that both the Sabellian and the Latin nations must have had far more capacity and aptitude for art than the Etruscans. It is true that in the proper Sabellian territory, in Sabina, in the Abruzzi, in Samnium, there are hardly found any works of art at all, and even coins are wanting. But those Sabellian stocks, which reached the coasts of the Tyrrhene or Ionic seas, not only appropriated Hellenic art externally, like the Etruscans, but more or less completely acclimatized it. Even in Velitrae, where probably alone in the former land of the Volsci their language and peculiar character were afterwards maintained, painted terra-cottas have been found, displaying vigorous and characteristic treatment. In Lower Italy Lucania was to a less degree influenced by Hellenic art; but in Campania and in the land of the Bruttii, Sabellians and Hellenes became completely

intermingled not only in language and nationality, but also and especially in art, and the Campanian and Bruttian coins in particular stand so entirely in point of artistic treatment on a level with the contemporary coins of Greece, that the inscription alone serves to distinguish the one from the other.

Latin

It is a fact less known, but not less certain, that Latium also, while inferior to Etruria in the copiousness and massiveness of its art, was not inferior in artistic taste and practical skill. Evidently the establishment of the Romans in Campania which took place about the beginning of the fifth century, the conversion of the town of Cales into a Latin community, and that of the Falernian territory near Capua into a Roman tribe,(39) opened up in the first instance Campanian art to the Romans. It is true that among these the art of gem-engraving so diligently prosecuted in luxurious Etruria is entirely wanting, and we find no indication that the Latin workshops were, like those of the Etruscan goldsmiths and clay-workers, occupied in supplying a foreign demand. It is true that the Latin temples were not like the Etruscan overloaded with bronze and clay decorations, that the Latin tombs were not like the Etruscan filled with gold ornaments, and their walls shone not, like those of the Tuscan tombs, with paintings of various colours. Nevertheless, on the whole the balance does not incline in favour of the Etruscan nation. The device of the effigy of Janus, which, like the deity itself, may be attributed to the Latins,(40) is not unskilful, and is of a more original character than that of any Etruscan work of art. The beautiful group of the she-wolf with the twins attaches itself doubtless to similar Greek designs, but was—as thus worked out—certainly produced, if not in Rome, at any rate by Romans; and it deserves to be noted that it first appears on the silver moneys coined by the Romans in and for Campania. In the above-mentioned Cales there appears to have been devised soon after its foundation a peculiar kind of figured earthenware, which was marked with

the name of the masters and the place of manufacture, and was sold over a wide district as far even as Etruria. The little altars of terra-cotta with figures that have recently been brought to light on the Esquiline correspond in style of representation as in that of ornament exactly to the similar votive gifts of the Campanian temples. This however does not exclude Greek masters from having also worked for Rome. The sculptor Damophilus, who with Gorgasus prepared the painted terra-cotta figures for the very ancient temple of Ceres, appears to have been no other than Demophilus of Himera, the teacher of Zeuxis (about 300). The most instructive illustrations are furnished by those branches of art in which we are able to form a comparative judgment, partly from ancient testimonies, partly from our own observation. Of Latin works in stone scarcely anything else survives than the stone sarcophagus of the Roman consul Lucius Scipio, wrought at the close of this period in the Doric style; but its noble simplicity puts to shame all similar Etruscan works. Many beautiful bronzes of an antique chaste style of art, particularly helmets, candelabra, and the like articles, have been taken from Etruscan tombs; but which of these works is equal to the bronze she-wolf erected from the proceeds of fines in 458 at the Ruminal fig-tree in the Roman Forum, and still forming the finest ornament of the Capitol? And that the Latin metal-founders as little shrank from great enterprises as the Etruscans, is shown by the colossal bronze figure of Jupiter on the Capitol erected by Spurius Carvilius (consul in 461) from the melted equipments of the Samnites, the chisellings of which sufficed to cast the statue of the victor that stood at the feet of the Colossus; this statue of Jupiter was visible even from the Alban Mount. Amongst the cast copper coins by far the finest belong to southern Latium; the Roman and Umbrian are tolerable, the Etruscan almost destitute of any image and often really barbarous. The fresco-paintings, which Gaius Fabius executed in the temple of Health on the Capitol, dedicated in 452, obtained in design and colouring the praise even of connoisseurs trained in Greek art in the Augustan age; and the art-

enthusiasts of the empire commended the frescoes of Caere, but with still greater emphasis those of Rome, Lanuvium, and Ardea, as masterpieces of painting. Engraving on metal, which in Latium decorated not the hand-mirror, as in Etruria, but the toilet-casket with its elegant outlines, was practised to a far less extent in Latium and almost exclusively in Praeneste. There are excellent works of art among the copper mirrors of Etruria as among the caskets of Praeneste; but it was a work of the latter kind, and in fact a work which most probably originated in the workshop of a Praenestine master at this epoch,(41) regarding which it could with truth be affirmed that scarcely another product of the graving of antiquity bears the stamp of an art so finished in its beauty and characteristic expression, and yet so perfectly pure and chaste, as the Ficoroni -cista-.

Character of Etruscan Art

The general character of Etruscan works of art is, on the one hand, a sort of barbaric extravagance in material as well as in style; on the other hand, an utter absence of original development. Where the Greek master lightly sketches, the Etruscan disciple lavishes a scholar's diligence; instead of the light material and moderate proportions of the Greek works, there appears in the Etruscan an ostentatious stress laid upon the size and costliness, or even the mere singularity, of the work. Etruscan art cannot imitate without exaggerating; the chaste in its hands becomes harsh, the graceful effeminate, the terrible hideous, and the voluptuous obscene; and these features become more prominent, the more the original stimulus falls into the background and Etruscan art finds itself left to its own resources. Still more surprising is the adherence to traditional forms and a traditional style. Whether it was that a more friendly contact with Etruria at the outset allowed the Hellenes to scatter there the seeds of art, and that a later epoch of hostility impeded the admission into Etruria of the more recent developments of Greek art, or whether, as is more probable, the intellectual

torpor that rapidly came over the nation was the main cause of the phenomenon, art in Etruria remained substantially stationary at the primitive stage which it had occupied on its first entrance. This, as is well known, forms the reason why Etruscan art, the stunted daughter, was so long regarded as the mother, of Hellenic art. Still more even than the rigid adherence to the style traditionally transmitted in the older branches of art, the sadly inferior handling of those branches that came into vogue afterwards, particularly of sculpture in stone and of copper-casting as applied to coins, shows how quickly the spirit of Etruscan art evaporated. Equally instructive are the painted vases, which are found in so enormous numbers in the later Etruscan tombs. Had these come into current use among the Etruscans as early as the metal plates decorated with contouring or the painted terra-cottas, beyond doubt they would have learned to manufacture them at home in considerable quantity, and of a quality at least relatively good; but at the period at which this luxury arose, the power of independent reproduction wholly failed—as the isolated vases provided with Etruscan inscriptions show—and they contented themselves with buying instead of making them.

North Etruscan and South Etruscan Art

But even within Etruria there appears a further remarkable distinction in artistic development between the southern and northern districts. It is South Etruria, particularly in the districts of Caere, Tarquinii, and Volci, that has preserved the great treasures of art which the nation boasted, especially in frescoes, temple decorations, gold ornaments, and painted vases. Northern Etruria is far inferior; no painted tomb, for example, has been found to the north of Chiusi. The most southern Etruscan cities, Veii, Caere, and Tarquinii, were accounted in Roman tradition the primitive and chief seats of Etruscan art; the most northerly town, Volaterrae, with the largest territory of all the Etruscan communities, stood most of all aloof from art

While a Greek semi-culture prevailed in South Etruria, Northern Etruria was much more marked by an absence of all culture. The causes of this remarkable contrast may be sought partly in differences of nationality—South Etruria being largely peopled in all probability by non-Etruscan elements(42)—partly in the varying intensity of Hellenic influence, which must have made itself very decidedly felt at Caere in particular. The fact itself admits of no doubt. The more injurious on that account must have been the early subjugation of the southern half of Etruria by the Romans, and the Romanizing—which there began very early—of Etruscan art. What Northern Etruria, confined to its own efforts, was able to produce in the way of art, is shown by the copper coins which essentially belong to it.

Character of Latin Art

Let us now turn from Etruria to glance at Latium. The latter, it is true, created no new art; it was reserved for a far later epoch of culture to develop on the basis of the arch a new architecture different from the Hellenic, and then to unfold in harmony with that architecture a new style of sculpture and painting. Latin art is nowhere original and often insignificant; but the fresh sensibility and the discriminating tact, which appropriate what is good in others, constitute a high artistic merit. Latin art seldom became barbarous, and in its best products it comes quite up to the level of Greek technical execution. We do not mean to deny that the art of Latium, at least in its earlier stages, had a certain dependence on the undoubtedly earlier Etruscan;(43) Varro may be quite right in supposing that, previous to the execution by Greek artists of the clay figures in the temple of Ceres,(44) only "Tuscanic" figures adorned the Roman temples; but that, at all events, it was mainly the direct influence of the Greeks that led Latin art into its proper channel, is self-evident, and is very obviously shown by these very statues as well as by the Latin and Roman coins. Even the application of graving on metal in Etruria solely to the toilet mirror, and

in Latium solely to the toilet casket, indicates the diversity of the art-impulses that affected the two lands. It does not appear, however, to have been exactly at Rome that Latin art put forth its freshest vigour; the Roman -asses- and Roman -denarii- are far surpassed in fineness and taste of workmanship by the Latin copper, and the rare Latin silver, coins, and the masterpieces of painting and design belong chiefly to Praeneste, Lanuvium, and Ardea. This accords completely with the realistic and sober spirit of the Roman republic which we have already described—a spirit which can hardly have asserted itself with equal intensity in other parts of Latium. But in the course of the fifth century, and especially in the second half of it, there was a mighty activity in Roman art. This was the epoch, in which the construction of the Roman arches and Roman roads began; in which works of art like the she-wolf of the Capitol originated; and in which a distinguished man of an old Roman patrician clan took up his pencil to embellish a newly constructed temple and thence received the honorary surname of the "Painter." This was not accident. Every great age lays grasp on all the powers of man; and, rigid as were Roman manners, strict as was Roman police, the impulse received by the Roman burgesses as masters of the peninsula or, to speak more correctly, by Italy united for the first time as one state, became as evident in the stimulus given to Latin and especially to Roman art, as the moral and political decay of the Etruscan nation was evident in the decline of art in Etruria. As the mighty national vigour of Latium subdued the weaker nations, it impressed its imperishable stamp also on bronze and on marble.

Notes for Book II Chapter IX

1. I. XV. Earliest Hellenic Influences

2. The account given by Dionysius (vi. 95; comp. Niebuhr, ii. 40) and by Plutarch (Camill. 42), deriving his statement from another passage in Dionysius regarding the Latin festival, must be understood to apply rather to the Roman games, as, apart from other grounds, is strikingly evident from comparing the latter passage with Liv. vi. 42 (Ritschl, Parerg. i. p. 313). Dionysius has—and, according to his wont when in error, persistently—misunderstood the expression -ludi maximi-.

There was, moreover, a tradition which referred the origin of the national festival not, as in the common version, to the conquest of the Latins by the first Tarquinius, but to the victory over the Latins at the lake Regillus (Cicero, de Div. i. 26, 55; Dionys. vii. 71). That the important statements preserved in the latter passage from Fabius really relate to the ordinary thanksgiving-festival, and not to any special votive solemnity, is evident from the express allusion to the annual recurrence of the celebration, and from the exact agreement of the sum of the expenses with the statement in the Pseudo-Asconius (p. 142 Or.).

3. II. III. Curule Aedileship

4. I. II. Art

5. I. XV. Metre

6. I. XV. Masks

7. II. VIII. Police f.

8. I. XV. Melody

9. A fragment has been preserved:

-Hiberno pulvere, verno luto, grandia farra
Camille metes-

We do not know by what right this was afterwards regarded as the oldest Roman poem (Macrob. Sat. v. 20; Festus, Ep. v. Flaminus, p. 93, M.; Serv. on Virg. Georg. i. 101; Plin. xvii. 2. 14).

10. II. VIII. Appius Claudius

11. II. VIII. Rome and the Romans of This Epoch

12. The first places in the list alone excite suspicion, and may have been subsequently added, with a view to round off the number of years between the flight of the king and the burning of the city to 120.

13. I. VI. Time and the Occasion of the Reform, II. VII. System of Government

14. II. VIII Rome and the Romans of This Epoch. According to the annals Scipio commands in Etruria and his colleague in Samnium, and Lucania is during this year in league with Rome; according to the epitaph Scipio conquers two towns in Samnium and all Lucania.

15. I. XI. Jurisdiction, second note.

16. They appear to have reckoned three generations to a hundred years and to have rounded off the figures $233 \frac{1}{3}$ to 240, just as the epoch between the king's flight and the burning of the city was rounded off to 120 years (II. IX. Registers of Magistrates, note). The reason why these precise numbers suggested themselves, is apparent from the similar adjustment (above explained, I. XIV. The Duodecimal System) of the measures of surface.

17. I. XII. Spirits

18. I. X. Relations of the Western Italians to the Greeks

19. The "Trojan colonies" in Sicily, mentioned by Thucydides, the pseudo-Scylax, and others, as well as the designation of Capua as a Trojan foundation in Hecataeus, must also be traced to Stesichorus and his identification of the natives of Italy and Sicily with the Trojans.

20. According to his account Rome, a woman who had fled from Ilion to Rome, or rather her daughter of the same name, married Latinus, king of the Aborigines, and bore to him three sons, Romos, Romylos, and Telegonos. The last, who undoubtedly emerges here as founder of Tusculum and Praeneste, belongs, as is well known, to the legend of Odysseus.

21. II. IV. Fruitlessness of the Celtic Victory

22. II. VII. Relations between the East and West

23. II. VII. The Roman Fleet

24. II. II. Political Value of the Tribunates, II. II. The Valerio-Horatian Laws

25. I. XIV. Corruption of Language and Writing

26. In the two epitaphs, of Lucius Scipio consul in 456, and of the consul of the same name in 495, -m and -d are ordinarily wanting in the termination of cases, yet -Luciom- and -Gnaivod- respectively occur once; there occur alongside of one another in the nominative -Cornelio- and -filios-; -cosol-, -cesor-, alongside of -consol-, -censor-; -aidiles-, -dedet-, -ploirume- (= -plurimi-) -hec- (nom. sing.) alongside of -aidilis-, -cepit-, -quei-, -hic-. Rhotacism is already carried out completely; we find -duonoro-

(= -bonorum-), -ploirume-, not as in the chant of the Salii -foedesum-, -plusima-. Our surviving inscriptions do not in general precede the age of rhotacism; of the older -s only isolated traces occur, such as afterwards -honos-, -labos- alongside of -honor-, -labor-; and the similar feminine -prae nomina-, -Maio- (= -maios- -maior-) and -Mino- in recently found epitaphs at Praeneste.

27. -Litterator- and -grammaticus- are related nearly as elementary teacher and teacher of languages with us; the latter designation belonged by earlier usage only to the teacher of Greek, not to a teacher of the mother-tongue. -Litteratus- is more recent, and denotes not a schoolmaster but a man of culture.

28. It is at any rate a true Roman picture, which Plautus (Bacch. 431) produces as a specimen of the good old mode of training children:—

... -ubi revenisses domum,
Cincticulo praecinctus in sella apud magistrum adsideres;
Si, librum cum legeres, unam peccavisses syllabam,
Fieret corium tam maculosum, quam est nutricis pallium-.

29. I. XIV. The Oldest Italo-Greek Calendar

30. I. XIV. The Oldest Italo-Greek Calendar

31. I. XV. Plastic Art in Italy

32. II. VIII. Building

33. II. VIII. Building

34. I. XV. Earliest Hellenic Influences

35. I. VII. Servian Wall

36. I. XV. Earliest Hellenic Influences

37. The round temple certainly was not, as has been supposed, an imitation of the oldest form of the house; on the contrary, house architecture uniformly starts from the square form. The later Roman theology associated this round form with the idea of the terrestrial sphere or of the universe surrounding like a sphere the central sun (Fest. v. -rutundam-, p. 282; Plutarch, Num. 11; Ovid, Fast. vi. 267, seq.). In reality it may be traceable simply to the fact, that the circular shape has constantly been recognized as the most convenient and the safest form of a space destined for enclosure and custody. That was the rationale of the round —thesauroi— of the Greeks as well as of the round structure of the Roman store-chamber or temple of the Penates. It was natural, also, that the fireplace—that is, the altar of Vesta—and the fire-chamber—that is, the temple of Vesta —should be constructed of a round form, just as was done with the cistern and the well-enclosure (-puteal-). The round style of building in itself was Graeco-Italian as was the square form, and the former was appropriated to the store-place, the latter to the dwelling-house; but the architectural and religious development of the simple -tholos- into the round temple with pillars and columns was Latin.

38. I. XV. Plastic Art in Italy

39. II. V. Complete Submission of the Campanian and Volscian Provinces

40. I. XII. Nature of the Roman Gods

41. Novius Plautius (II. VIII. Capital in Rome) cast perhaps only the feet and the group on the lid; the casket itself may have proceeded from an

earlier artist, but hardly from any other than a Praenestine, for the use of these caskets was substantially confined to Praeneste.

42. I. IX. Settlements of the Etruscans in Italy

43. I. XV. Earliest Hellenic Influences

44. I. VI. Time and Occasion of the Reform

End of Book II

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THE HISTORY OF ROME: BOOK III

From the Union of Italy to the Subjugation of Carthage and the Greek States

Preparer's Note

This work contains many literal citations of and references to foreign words, sounds, and alphabetic symbols drawn from many languages, including Gothic and Phoenician, but chiefly Latin and Greek. This English Gutenberg edition, constrained to the characters of 7-bit ASCII code, adopts the following orthographic conventions:

1) Except for Greek, all literally cited non-English words that do not refer to texts cited as academic references, words that in the source manuscript appear italicized, are rendered with a single preceding, and a single following dash; thus, -xxxx-.

2) Greek words, first transliterated into Roman alphabetic equivalents, are rendered with a preceding and a following double- dash; thus, —xxxx—. Note that in some cases the root word itself is a compound form such as xxx-xxxx, and is rendered as —xxx-xxx—

3) Simple unideographic references to vocalic sounds, single letters, or alphabetic diphthongs; and prefixes, suffixes, and syllabic references are represented by a single preceding dash; thus, -x, or -xxx.

4) Ideographic references, referring to signs of representation rather than to content, are represented as -"id:xxxx"-. "id:" stands for "ideograph", and indicates that the reader should form a picture based on the following "xxxx"; which may be a single symbol, a word, or an attempt at a picture composed of ASCII characters. For example, —"id:GAMMA gamma"— indicates an uppercase Greek gamma-form followed by the form in lowercase. Some such exotic parsing as this is necessary to explain alphabetic development because a single symbol may have been used for a number of sounds in a number of languages, or even for a number of sounds in the same language at different times. Thus, "-id:GAMMA gamma" might very well refer to a Phoenician construct that in appearance resembles the form that eventually stabilized as an uppercase Greek "gamma" juxtaposed to one of lowercase. Also, a construct such as —"id:E" indicates a symbol that with ASCII resembles most closely a Roman uppercase "E", but, in fact, is actually drawn more crudely.

5) Dr. Mommsen has given his dates in terms of Roman usage, A.U.C.; that is, from the founding of Rome, conventionally taken to be 753 B. C.

The preparer of this document, has appended to the end of each volume a table of conversion between the two systems.

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BOOK THIRD

From the Union of Italy to the Subjugation of Carthage and the Greek States

Arduum res gestas scribere.

—Sallust.

CHAPTER I

Carthage

The Phoenicians

The Semitic stock occupied a place amidst, and yet aloof from, the nations of the ancient classical world. The true centre of the former lay in the east, that of the latter in the region of the Mediterranean; and, however wars and migrations may have altered the line of demarcation and thrown the races across each other, a deep sense of diversity has always severed, and still severs, the Indo- Germanic peoples from the Syrian, Israelite, and Arabic nations. This diversity was no less marked in the case of that Semitic people which spread more than any other in the direction of the west—the Phoenicians. Their native seat was the narrow border of coast bounded by Asia Minor, the highlands of Syria, and Egypt, and called Canaan, that is, the "plain." This was the only name which the nation itself made use of; even in Christian times the African farmer called himself a Canaanite. But Canaan received from the Hellenes the name of Phoenike, the "land of purple," or "land of the red men," and the Italians also were accustomed to call the Canaanites Punians, as we are accustomed still to speak of them as the Phoenician or Punic race.

Their Commerce

The land was well adapted for agriculture; but its excellent harbours and the abundant supply of timber and of metals favoured above all things the growth of commerce; and it was there perhaps, where the opulent eastern continent abuts on the wide-spreading Mediterranean so rich in harbours and islands, that commerce first dawned in all its greatness upon man. The Phoenicians directed all the resources of courage, acuteness, and enthusiasm to the full development of commerce and its attendant arts of navigation, manufacturing, and colonization, and thus connected the east and the west. At an incredibly early period we find them in Cyprus and Egypt, in Greece and Sicily, in Africa and Spain, and even on the Atlantic Ocean and the North Sea. The field of their commerce reached from Sierra Leone and Cornwall in the west, eastward to the coast of Malabar. Through their hands passed the gold and pearls of the East, the purple of Tyre, slaves, ivory, lions' and panthers' skins from the interior of Africa, frankincense from Arabia, the linen of Egypt, the pottery and fine wines of Greece, the copper of Cyprus, the silver of Spain, tin from England, and iron from Elba. The Phoenician mariners brought to every nation whatever it could need or was likely to purchase; and they roamed everywhere, yet always returned to the narrow home to which their affections clung.

Their Intellectual Endowments

The Phoenicians are entitled to be commemorated in history by the side of the Hellenic and Latin nations; but their case affords a fresh proof, and perhaps the strongest proof of all, that the development of national energies in antiquity was of a one-sided character. Those noble and enduring creations in the field of intellect, which owe their origin to the Aramaean race, do not belong primarily to the Phoenicians. While faith and knowledge in a certain sense were the especial property of the Aramaean nations and first reached the Indo-Germans from the east, neither the Phoenician religion nor Phoenician science and art ever, so far as we can

see, held an independent rank among those of the Aramaean family. The religious conceptions of the Phoenicians were rude and uncouth, and it seemed as if their worship was meant to foster rather than to restrain lust and cruelty. No trace is discernible, at least in times of clear historical light, of any special influence exercised by their religion over other nations. As little do we find any Phoenician architecture or plastic art at all comparable even to those of Italy, to say nothing of the lands where art was native. The most ancient seat of scientific observation and of its application to practical purposes was Babylon, or at any rate the region of the Euphrates. It was there probably that men first followed the course of the stars; it was there that they first distinguished and expressed in writing the sounds of language; it was there that they began to reflect on time and space and on the powers at work in nature: the earliest traces of astronomy and chronology, of the alphabet, and of weights and measures, point to that region. The Phoenicians doubtless availed themselves of the artistic and highly developed manufactures of Babylon for their industry, of the observation of the stars for their navigation, of the writing of sounds and the adjustment of measures for their commerce, and distributed many an important germ of civilization along with their wares; but it cannot be demonstrated that the alphabet or any other of those ingenious products of the human mind belonged peculiarly to them, and such religious and scientific ideas as they were the means of conveying to the Hellenes were scattered by them more after the fashion of a bird dropping grains than of the husbandman sowing his seed. The power which the Hellenes and even the Italians possessed, of civilizing and assimilating to themselves the nations susceptible of culture with whom they came into contact, was wholly wanting in the Phoenicians. In the field of Roman conquest the Iberian and the Celtic languages have disappeared before the Romanic tongue; the Berbers of Africa speak at the present day the same language as they spoke in the times of the Hannos and the Barcides.

Their Political Qualities

Above all, the Phoenicians, like the rest of the Aramaean nations as compared with the Indo-Germans, lacked the instinct of political life—the noble idea of self-governing freedom. During the most flourishing times of Sidon and Tyre the land of the Phoenicians was a perpetual apple of contention between the powers that ruled on the Euphrates and on the Nile, and was subject sometimes to the Assyrians, sometimes to the Egyptians. With half its power Hellenic cities would have made themselves independent; but the prudent men of Sidon calculated that the closing of the caravan-routes to the east or of the ports of Egypt would cost them more than the heaviest tribute, and so they punctually paid their taxes, as it might happen, to Nineveh or to Memphis, and even, if they could not avoid it, helped with their ships to fight the battles of the kings. And, as at home the Phoenicians patiently bore the oppression of their masters, so also abroad they were by no means inclined to exchange the peaceful career of commerce for a policy of conquest. Their settlements were factories. It was of more moment in their view to deal in buying and selling with the natives than to acquire extensive territories in distant lands, and to carry out there the slow and difficult work of colonization. They avoided war even with their rivals; they allowed themselves to be supplanted in Egypt, Greece, Italy, and the east of Sicily almost without resistance; and in the great naval battles, which were fought in early times for the supremacy of the western Mediterranean, at Alalia (217) and at Cumae (280), it was the Etruscans, and not the Phoenicians, that bore the brunt of the struggle with the Greeks. If rivalry could not be avoided, they compromised the matter as best they could; no attempt was ever made by the Phoenicians to conquer Caere or Massilia. Still less, of course, were the Phoenicians disposed to enter on aggressive war. On the only occasion in earlier times when they took the field on the offensive—in the great Sicilian expedition of the African Phoenicians which ended in their defeat at Himera by Gelo of Syracuse

(274)—it was simply as dutiful subjects of the great-king and in order to avoid taking part in the campaign against the Hellenes of the east, that they entered the lists against the Hellenes of the west; just as their Syrian kinsmen were in fact obliged in that same year to share the defeat of the Persians at Salamis(1).

This was not the result of cowardice; navigation in unknown waters and with armed vessels requires brave hearts, and that such were to be found among the Phoenicians, they often showed. Still less was it the result of any lack of tenacity and idiosyncrasy of national feeling; on the contrary the Aramaeans defended their nationality with the weapons of intellect as well as with their blood against all the allurements of Greek civilization and all the coercive measures of eastern and western despots, and that with an obstinacy which no Indo- Germanic people has ever equalled, and which to us who are Occidentals seems to be sometimes more, sometimes less, than human. It was the result of that want of political instinct, which amidst all their lively sense of the ties of race, and amidst all their faithful attachment to the city of their fathers, formed the most essential feature in the character of the Phoenicians. Liberty had no charms for them, and they lusted not after dominion; "quietly they lived," says the Book of Judges, "after the manner of the Sidonians, careless and secure, and in possession of riches."

Carthage

Of all the Phoenician settlements none attained a more rapid and secure prosperity than those which were established by the Tyrians and Sidonians on the south coast of Spain and the north coast of Africa— regions that lay beyond the reach of the arm of the great-king and the dangerous rivalry of the mariners of Greece, and in which the natives held the same relation to the strangers as the Indians in America held to the Europeans. Among the numerous and flourishing Phoenician cities along these shores, the most

prominent by far was the "new town," Karthada or, as the Occidentals called it, Karchedon or Carthago. Although not the earliest settlement of the Phoenicians in this region, and originally perhaps a dependency of the adjoining Utica, the oldest of the Phoenician towns in Libya, it soon outstripped its neighbours and even the motherland through the incomparable advantages of its situation and the energetic activity of its inhabitants. It was situated not far from the (former) mouth of the Bagradas (Mejerda), which flows through the richest corn district of northern Africa, and was placed on a fertile rising ground, still occupied with country houses and covered with groves of olive and orange trees, falling off in a gentle slope towards the plain, and terminating towards the sea in a sea-girt promontory. Lying in the heart of the great North-African roadstead, the Gulf of Tunis, at the very spot where that beautiful basin affords the best anchorage for vessels of larger size, and where drinkable spring water is got close by the shore, the place proved singularly favourable for agriculture and commerce and for the exchange of their respective commodities—so favourable, that not only was the Tyrian settlement in that quarter the first of Phoenician mercantile cities, but even in the Roman period Carthage was no sooner restored than it became the third city in the empire, and even now, under circumstances far from favourable and on a site far less judiciously chosen, there exists and flourishes in that quarter a city of a hundred thousand inhabitants. The prosperity, agricultural, mercantile, and industrial, of a city so situated and so peopled, needs no explanation; but the question requires an answer—in what way did this settlement come to attain a development of political power, such as no other Phoenician city possessed?

Carthage Heads the Western Phoenicians in Opposition to the Hellenes

That the Phoenician stock did not even in Carthage renounce its policy of passiveness, there is no lack of evidence to prove. Carthage paid, even

down to the times of its prosperity, a ground-rent for the space occupied by the city to the native Berbers, the tribe of the Maxyes or Maxitani; and although the sea and the desert sufficiently protected the city from any assault of the eastern powers, Carthage appears to have recognized—although but nominally—the supremacy of the great-king, and to have paid tribute to him occasionally, in order to secure its commercial communications with Tyre and the East.

But with all their disposition to be submissive and cringing, circumstances occurred which compelled these Phoenicians to adopt a more energetic policy. The stream of Hellenic migration was pouring ceaselessly towards the west: it had already dislodged the Phoenicians from Greece proper and Italy, and it was preparing to supplant them also in Sicily, in Spain, and even in Libya itself. The Phoenicians had to make a stand somewhere, if they were not willing to be totally crushed. In this case, where they had to deal with Greek traders and not with the great-king, submission did not suffice to secure the continuance of their commerce and industry on its former footing, liable merely to tax and tribute. Massilia and Cyrene were already founded; the whole east of Sicily was already in the hands of the Greeks; it was full time for the Phoenicians to think of serious resistance. The Carthaginians undertook the task; after long and obstinate wars they set a limit to the advance of the Cyrenaeans, and Hellenism was unable to establish itself to the west of the desert of Tripolis. With Carthaginian aid, moreover, the Phoenician settlers on the western point of Sicily defended themselves against the Greeks, and readily and gladly submitted to the protection of the powerful cognate city.⁽²⁾ These important successes, which occurred in the second century of Rome, and which saved for the Phoenicians the south-western portion of the Mediterranean, served of themselves to give to the city which had achieved them the hegemony of the nation, and to alter at the same time its political position. Carthage was no longer a mere mercantile city: it aimed at the dominion of Libya and of a

part of the Mediterranean, because it could not avoid doing so. It is probable that the custom of employing mercenaries contributed materially to these successes. That custom came into vogue in Greece somewhere about the middle of the fourth century of Rome, but among the Orientals and the Carians more especially it was far older, and it was perhaps the Phoenicians themselves that began it. By the system of foreign recruiting war was converted into a vast pecuniary speculation, which was quite in keeping with the character and habits of the Phoenicians.

The Carthaginian Dominion in Africa

It was probably the reflex influence of these successes abroad, that first led the Carthaginians to change the character of their occupation in Africa from a tenure of hire and sufferance to one of proprietorship and conquest. It appears to have been only about the year 300 of Rome that the Carthaginian merchants got rid of the rent for the soil, which they had hitherto been obliged to pay to the natives. This change enabled them to prosecute a husbandry of their own on a great scale. From the outset the Phoenicians had been desirous to employ their capital as landlords as well as traders, and to practise agriculture on a large scale by means of slaves or hired labourers; a large portion of the Jews in this way served the merchant-princes of Tyre for daily wages. Now the Carthaginians could without restriction extract the produce of the rich Libyan soil by a system akin to that of the modern planters; slaves in chains cultivated the land—we find single citizens possessing as many as twenty thousand of them. Nor was this all. The agricultural villages of the surrounding region—agriculture appears to have been introduced among the Libyans at a very early period, probably anterior to the Phoenician settlement, and presumably from Egypt—were subdued by force of arms, and the free Libyan farmers were transformed into fellahs, who paid to their lords a fourth part of the produce of the soil as tribute, and were subjected to a regular system of recruiting

for the formation of a home Carthaginian army. Hostilities were constantly occurring with the roving pastoral tribes (—nomades—) on the borders; but a chain of fortified posts secured the territory enclosed by them, and the Nomades were slowly driven back into the deserts and mountains, or were compelled to recognize Carthaginian supremacy, to pay tribute, and to furnish contingents. About the period of the first Punic war their great town Theveste (Tebessa, at the sources of the Mejerda) was conquered by the Carthaginians. These formed the "towns and tribes (—ethne—) of subjects," which appear in the Carthaginian state-treaties; the former being the non-free Libyan villages, the latter the subject Nomades.

Libyphoenicians

To this fell to be added the sovereignty of Carthage over the other Phoenicians in Africa, or the so-called Liby-phoenicians. These included, on the one hand, the smaller settlements sent forth from Carthage along the whole northern and part of the north-western coast of Africa—which cannot have been unimportant, for on the Atlantic seaboard alone there were settled at one time 30,000 such colonists —and, on the other hand, the old Phoenician settlements especially numerous along the coast of the present province of Constantine and Beylik of Tunis, such as Hippo afterwards called Regius (Bona), Hadrumetum (Susa), Little Leptis (to the south of Susa)—the second city of the Phoenicians in Africa—Thapsus (in the same quarter), and Great Leptis (Lebda to the west of Tripoli). In what way all these cities came to be subject to Carthage—whether voluntarily, for their protection perhaps from the attacks of the Cyrenaeans and Numidians, or by constraint—can no longer be ascertained; but it is certain that they are designated as subjects of the Carthaginians even in official documents, that they had to pull down their walls, and that they had to pay tribute and furnish contingents to Carthage. They were not liable however either to recruiting or to the land-tax, but contributed a definite amount of men and

money, Little Leptis for instance paying the enormous sum annually of 365 talents (90,000 pounds); moreover they lived on a footing of equality in law with the Carthaginians, and could marry with them on equal terms.(3) Utica alone escaped a similar fate and had its walls and independence preserved to it, less perhaps from its own power than from the pious feeling of the Carthaginians towards their ancient protectors; in fact, the Phoenicians cherished for such relations a remarkable feeling of reverence presenting a thorough contrast to the indifference of the Greeks. Even in intercourse with foreigners it is always "Carthage and Utica" that stipulate and promise in conjunction; which, of course, did not preclude the far more important "new town" from practically asserting its hegemony also over Utica. Thus the Tyrian factory was converted into the capital of a mighty North -African empire, which extended from the desert of Tripoli to the Atlantic Ocean, contenting itself in its western portion (Morocco and Algiers) with the occupation, and that to some extent superficial, of a belt along the coast, but in the richer eastern portion (the present districts of Constantine and Tunis) stretching its sway over the interior also and constantly pushing its frontier farther to the south. The Carthaginians were, as an ancient author significantly expresses it, converted from Tyrians into Libyans. Phoenician civilization prevailed in Libya just as Greek civilization prevailed in Asia Minor and Syria after the campaigns of Alexander, although not with the same intensity. Phoenician was spoken and written at the courts of the Nomad sheiks, and the more civilized native tribes adopted for their language the Phoenician alphabet;(4) to Phoenicise them completely suited neither the genius of the nation nor the policy of Carthage.

The epoch, at which this transformation of Carthage into the capital of Libya took place, admits the less of being determined, because the change doubtless took place gradually. The author just mentioned names Hanno as the reformer of the nation. If the Hanno is meant who lived at the time of the first war with Rome, he can only be regarded as having completed the

new system, the carrying out of which presumably occupied the fourth and fifth centuries of Rome.

The flourishing of Carthage was accompanied by a parallel decline in the great cities of the Phoenician mother-country, in Sidon and especially in Tyre, the prosperity of which was destroyed partly by internal commotions, partly by the pressure of external calamities, particularly of its sieges by Salmanassar in the first, Nebuchodrossor in the second, and Alexander in the fifth century of Rome. The noble families and the old firms of Tyre emigrated for the most part to the secure and flourishing daughter-city, and carried thither their intelligence, their capital, and their traditions. At the time when the Phoenicians came into contact with Rome, Carthage was as decidedly the first of Canaanite cities as Rome was the first of the Latin communities.

Naval Power of Carthage

But the empire of Libya was only half of the power of Carthage; its maritime and colonial dominion had acquired, during the same period, a not less powerful development.

Spain

In Spain the chief station of the Phoenicians was the primitive Tyrian settlement at Gades (Cadiz). Besides this they possessed to the west and east of it a chain of factories, and in the interior the region of the silver mines; so that they held nearly the modern Andalusia and Granada, or at least the coasts of these provinces. They made no effort to acquire the interior from the warlike native nations; they were content with the possession of the mines and of the stations for traffic and for shell and other fisheries; and they had difficulty in maintaining their ground even in these against the adjoining tribes. It is probable that these possessions were not

properly Carthaginian but Tyrian, and Gades was not reckoned among the cities tributary to Carthage; but practically, like all the western Phoenicians, it was under Carthaginian hegemony, as is shown by the aid sent by Carthage to the Gaditani against the natives, and by the institution of Carthaginian trading settlements to the westward of Gades. Ebusus and the Baleares, again, were occupied by the Carthaginians themselves at an early period, partly for the fisheries, partly as advanced posts against the Massiliots, with whom furious conflicts were waged from these stations.

Sardinia

In like manner the Carthaginians already at the end of the second century of Rome established themselves in Sardinia, which was utilized by them precisely in the same way as Libya. While the natives withdrew into the mountainous interior of the island to escape from bondage as agricultural serfs, just as the Numidians in Africa withdrew to the borders of the desert, Phoenician colonies were conducted to Caralis (Cagliari) and other important points, and the fertile districts along the coast were turned to account by the introduction of Libyan cultivators.

Sicily

Lastly in Sicily the straits of Messina and the larger eastern half of the island had fallen at an early period into the hands of the Greeks; but the Phoenicians, with the help of the Carthaginians, retained the smaller adjacent islands, the Aegates, Melita, Gaulos, Cossyra—the settlement in Malta especially was rich and flourishing—and they kept the west and north-west coast of Sicily, whence they maintained communication with Africa by means of Motya and afterwards of Lilybaeum and with Sardinia by means of Panormus and Soluntum. The interior of the island remained in the possession of the natives, the Elymi, Sicani, and Siceli. After the further advance of the Greeks was checked, a state of comparative peace had

prevailed in the island, which even the campaign undertaken by the Carthaginians at the instigation of the Persians against their Greek neighbours on the island (274) did not permanently interrupt, and which continued on the whole to subsist till the Attic expedition to Sicily (339-341). The two competing nations made up their minds to tolerate each other, and confined themselves in the main each to its own field.

Maritime Supremacy Rivalry with Syracuse

All these settlements and possessions were important enough in themselves; but they were of still greater moment, inasmuch as they became the pillars of the Carthaginian maritime supremacy. By their possession of the south of Spain, of the Baleares, of Sardinia, of western Sicily and Melita, and by their prevention of Hellenic colonies on the east coast of Spain, in Corsica, and in the region of the Syrtes, the masters of the north coast of Africa rendered their sea a closed one, and monopolized the western straits. In the Tyrrhene and Gallic seas alone the Phoenicians were obliged to admit the rivalry of other nations. This state of things might perhaps be endured, so long as the Etruscans and the Greeks served to counterbalance each other in these waters; with the former, as the less dangerous rivals, Carthage even entered into an alliance against the Greeks. But when, on the fall of the Etruscan power—a fall which, as is usually the case in such forced alliances, Carthage had hardly exerted all her power to avert—and after the miscarriage of the great projects of Alcibiades, Syracuse stood forth as indisputably the first Greek naval power, not only did the rulers of Syracuse naturally begin to aspire to dominion over Sicily and lower Italy and at the same time over the Tyrrhene and Adriatic seas, but the Carthaginians also were compelled to adopt a more energetic policy. The immediate result of the long and obstinate conflicts between them and their equally powerful and infamous antagonist, Dionysius of Syracuse

(348-389), was the annihilation or weakening of the intervening Sicilian states—a result which both parties had an interest in accomplishing—and the division of the island between the Syracusans and Carthaginians. The most flourishing cities in the island—Selinus, Himera, Agrigentum, Gela, and Messana—were utterly destroyed by the Carthaginians in the course of these unhappy conflicts: and Dionysius was not displeased to see Hellenism destroyed or suppressed there, so that, leaning for support on foreign mercenaries enlisted from Italy, Gaul and Spain, he might rule in greater security over provinces which lay desolate or which were occupied by military colonies. The peace, which was concluded after the victory of the Carthaginian general Mago at Kronion (371), and which subjected to the Carthaginians the Greek cities of Thermae (the ancient Himera), Segesta, Heraclea Minoa, Selinus, and a part of the territory of Agrigentum as far as the Halycus, was regarded by the two powers contending for the possession of the island as only a temporary accommodation; on both sides the rivals were ever renewing their attempts to dispossess each other. Four several times—in 360 in the time of Dionysius the elder; in 410 in that of Timoleon; in 445 in that of Agathocles; in 476 in that of Pyrrhus—the Carthaginians were masters of all Sicily excepting Syracuse, and were baffled by its solid walls; almost as often the Syracusans, under able leaders, such as were the elder Dionysius, Agathocles, and Pyrrhus, seemed equally on the eve of dislodging the Africans from the island. But more and more the balance inclined to the side of the Carthaginians, who were, as a rule, the aggressors, and who, although they did not follow out their object with Roman steadfastness, yet conducted their attack with far greater method and energy than the Greek city, rent and worn out by factions, conducted its defence. The Phoenicians might with reason expect that a pestilence or a foreign -condottiere- would not always snatch the prey from their hands; and for the time being, at least at sea, the struggle was already decided:(5) the attempt of Pyrrhus to re-establish the Syracusan fleet was

the last. After the failure of that attempt, the Carthaginian fleet commanded without a rival the whole western Mediterranean; and their endeavours to occupy Syracuse, Rhegium, and Tarentum, showed the extent of their power and the objects at which they aimed. Hand in hand with these attempts went the endeavour to monopolize more and more the maritime commerce of this region, at the expense alike of foreigners and of their own subjects; and it was not the wont of the Carthaginians to recoil from any violence that might help forward their purpose. A contemporary of the Punic wars, Eratosthenes, the father of geography (479-560), affirms that every foreign mariner sailing towards Sardinia or towards the Straits of Gades, who fell into the hands of the Carthaginians, was thrown by them into the sea; and with this statement the fact completely accords, that Carthage by the treaty of 406 (6) declared the Spanish, Sardinian, and Libyan ports open to Roman trading vessels, whereas by that of 448,(7) it totally closed them, with the exception of the port of Carthage itself, against the same.

Constitution of Carthage

Council

Magistrates

Aristotle, who died about fifty years before the commencement of the first Punic war, describes the constitution of Carthage as having changed from a monarchy to an aristocracy, or to a democracy inclining towards oligarchy, for he designates it by both names. The conduct of affairs was immediately vested in the hands of the Council of Ancients, which, like the Spartan gerusia, consisted of the two kings nominated annually by the citizens, and of twenty-eight gerusiasts, who were also, as it appears, chosen annually by the citizens. It was this council which mainly transacted the business of the state-making, for instance, the preliminary arrangements for war, appointing levies and enlistments, nominating the general, and

associating with him a number of gerusiasts from whom the sub-commanders were regularly taken; and to it despatches were addressed. It is doubtful whether by the side of this small council there existed a larger one; at any rate it was not of much importance. As little does any special influence seem to have belonged to the kings; they acted chiefly as supreme judges, and they were frequently so named (shofetes, -praetores-). The power of the general was greater. Isocrates, the senior contemporary of Aristotle, says that the Carthaginians had an oligarchical government at home, but a monarchical government in the field; and thus the office of the Carthaginian general may be correctly described by Roman writers as a dictatorship, although the gerusiasts attached to him must have practically at least restricted his power and, after he had laid down his office, a regular official reckoning—unknown among the Romans—awaited him. There existed no fixed term of office for the general, and for this very reason he was doubtless different from the annual king, from whom Aristotle also expressly distinguishes him. The combination however of several offices in one person was not unusual among the Carthaginians, and it is not therefore surprising that often the same person appears as at once general and shofete.

Judges

But the gerusia and the magistrates were subordinate to the corporation of the Hundred and Four (in round numbers the Hundred), or the Judges, the main bulwark of the Carthaginian oligarchy. It had no place in the original constitution of Carthage, but, like the Spartan ephorate, it originated in an aristocratic opposition to the monarchical elements of that constitution. As public offices were purchasable and the number of members forming the supreme board was small, a single Carthaginian family, eminent above all others in wealth and military renown, the clan of Mago,(8) threatened to unite in its own hands the management of the state in peace and war and the administration of justice. This led, nearly about

the time of the decemvirs, to an alteration of the constitution and to the appointment of this new board. We know that the holding of the quaestorship gave a title to admission into the body of judges, but that the candidate had nevertheless to be elected by certain self-electing Boards of Five (Pentarchies); and that the judges, although presumably by law chosen from year to year, practically remained in office for a longer period or indeed for life, for which reason they are usually called "senators" by the Greeks and Romans. Obscure as are the details, we recognize clearly the nature of the body as an oligarchical board constituted by aristocratic cooptation; an isolated but characteristic indication of which is found in the fact that there were in Carthage special baths for the judges over and above the common baths for the citizens. They were primarily intended to act as political jurymen, who summoned the generals in particular, but beyond doubt the shofetes and gerusiasts also when circumstances required, to a reckoning on resigning office, and inflicted even capital punishment at pleasure, often with the most reckless cruelty. Of course in this as in every instance, where administrative functionaries are subjected to the control of another body, the real centre of power passed over from the controlled to the controlling authority; and it is easy to understand on the one hand how the latter came to interfere in all matters of administration—the gerusia for instance submitted important despatches first to the judges, and then to the people—and on the other hand how fear of the control at home, which regularly meted out its award according to success, hampered the Carthaginian statesman and general in council and action.

Citizens

The body of citizens in Carthage, though not expressly restricted, as in Sparta, to the attitude of passive bystanders in the business of the state, appears to have had but a very slight amount of practical influence on it. In the elections to the gerusia a system of open corruption was the rule; in the

nomination of a general the people were consulted, but only after the nomination had really been made by proposal on the part of the gerusia; and other questions only went to the people when the gerusia thought fit or could not otherwise agree. Assemblies of the people with judicial functions were unknown in Carthage. The powerlessness of the citizens probably in the main resulted from their political organization; the Carthaginian mess-associations, which are mentioned in this connection and compared with the Spartan Pheiditia, were probably guilds under oligarchical management. Mention is made even of a distinction between "burgesses of the city" and "manual labourers," which leads us to infer that the latter held a very inferior position, perhaps beyond the pale of law.

Character of the Government

On a comprehensive view of its several elements, the Carthaginian constitution appears to have been a government of capitalists, such as might naturally arise in a burgess-community which had no middle class of moderate means but consisted on the one hand of an urban rabble without property and living from hand to mouth, and on the other hand of great merchants, planters, and genteel overseers. The system of repairing the fortunes of decayed grandees at the expense of the subjects, by despatching them as tax-assessors and taskwork-overseers to the dependent communities—that infallible token of a rotten urban oligarchy—was not wanting in Carthage; Aristotle describes it as the main cause of the tried durability of the Carthaginian constitution. Up to his time no revolution worth mentioning had taken place in Carthage either from above or from below. The multitude remained without leaders in consequence of the material advantages which the governing oligarchy was able to offer to all ambitious or necessitous men of rank, and was satisfied with the crumbs, which in the form of electoral corruption or otherwise fell to it from the table of the rich. A democratic opposition indeed could not fail with such a

government to emerge; but at the time of the first Punic war it was still quite powerless. At a later period, partly under the influence of the defeats which were sustained, its political influence appears on the increase, and that far more rapidly than the influence of the similar party at the same period in Rome; the popular assemblies began to give the ultimate decision in political questions, and broke down the omnipotence of the Carthaginian oligarchy. After the termination of the Hannibalic war it was even enacted, on the proposal of Hannibal, that no member of the council of a Hundred could hold office for two consecutive years; and thereby a complete democracy was introduced, which certainly was under existing circumstances the only means of saving Carthage, if there was still time to do so. This opposition was swayed by a strong patriotic and reforming enthusiasm; but the fact cannot withal be overlooked, that it rested on a corrupt and rotten basis. The body of citizens in Carthage, which is compared by well-informed Greeks to the people of Alexandria, was so disorderly that to that extent it had well deserved to be powerless; and it might well be asked, what good could arise from revolutions, where, as in Carthage, the boys helped to make them.

Capital and Its Power in Carthage

From a financial point of view, Carthage held in every respect the first place among the states of antiquity. At the time of the Peloponnesian war this Phoenician city was, according to the testimony of the first of Greek historians, financially superior to all the Greek states, and its revenues were compared to those of the great-king; Polybius calls it the wealthiest city in the world. The intelligent character of the Carthaginian husbandry—which, as was the case subsequently in Rome, generals and statesmen did not disdain scientifically to practise and to teach—is attested by the agronomic treatise of the Carthaginian Mago, which was universally regarded by the later Greek and Roman farmers as the fundamental code of rational

husbandry, and was not only translated into Greek, but was edited also in Latin by command of the Roman senate and officially recommended to the Italian landholders. A characteristic feature was the close connection between this Phoenician management of land and that of capital: it was quoted as a leading maxim of Phoenician husbandry that one should never acquire more land than he could thoroughly manage. The rich resources of the country in horses, oxen, sheep, and goats, in which Libya by reason of its Nomad economy perhaps excelled at that time, as Polybius testifies, all other lands of the earth, were of great advantage to the Carthaginians. As these were the instructors of the Romans in the art of profitably working the soil, they were so likewise in the art of turning to good account their subjects; by virtue of which Carthage reaped indirectly the rents of the "best part of Europe," and of the rich—and in some portions, such as in Byzacitis and on the lesser Syrtis, surpassingly productive—region of northern Africa. Commerce, which was always regarded in Carthage as an honourable pursuit, and the shipping and manufactures which commerce rendered flourishing, brought even in the natural course of things golden harvests annually to the settlers there; and we have already indicated how skilfully, by an extensive and evergrowing system of monopoly, not only all the foreign but also all the inland commerce of the western Mediterranean, and the whole carrying trade between the west and east, were more and more concentrated in that single harbour.

Science and art in Carthage, as afterwards in Rome, seem to have been mainly dependent on Hellenic influences, but they do not appear to have been neglected. There was a respectable Phoenician literature; and on the conquest of the city there were found rich treasures of art—not created, it is true, in Carthage, but carried off from Sicilian temples—and considerable libraries. But even intellect there was in the service of capital; the prominent features of its literature were chiefly agronomic and geographical treatises, such as the work of Mago already mentioned and the account by

the admiral Hanno of his voyage along the west coast of Africa, which was originally deposited publicly in one of the Carthaginian temples, and which is still extant in a translation. Even the general diffusion of certain attainments, and particularly of the knowledge of foreign languages,(9) as to which the Carthage of this epoch probably stood almost on a level with Rome under the empire, forms an evidence of the thoroughly practical turn given to Hellenic culture in Carthage. It is absolutely impossible to form a conception of the mass of capital accumulated in this London of antiquity, but some notion at least may be gained of the sources of public revenue from the fact, that, in spite of the costly system on which Carthage organized its wars and in spite of the careless and faithless administration of the state property, the contributions of its subjects and the customs-revenue completely covered the expenditure, so that no direct taxes were levied from the citizens; and further, that even after the second Punic war, when the power of the state was already broken, the current expenses and the payment to Rome of a yearly instalment of 48,000 pounds could be met, without levying any tax, merely by a somewhat stricter management of the finances, and fourteen years after the peace the state proffered immediate payment of the thirty-six remaining instalments. But it was not merely the sum total of its revenues that evinced the superiority of the financial administration at Carthage. The economical principles of a later and more advanced epoch are found by us in Carthage alone of all the more considerable states of antiquity. Mention is made of foreign state-loans, and in the monetary system we find along with gold and silver mention of a token-money having no intrinsic value—a species of currency not used elsewhere in antiquity. In fact, if government had resolved itself into mere mercantile speculation, never would any state have solved the problem more brilliantly than Carthage.

Comparison between Carthage and Rome
In Their Economy

Let us now compare the respective resources of Carthage and Rome. Both were agricultural and mercantile cities, and nothing more; art and science had substantially the same altogether subordinate and altogether practical position in both, except that in this respect Carthage had made greater progress than Rome. But in Carthage the moneyed interest preponderated over the landed, in Rome at this time the landed still preponderated over the moneyed; and, while the agriculturists of Carthage were universally large landlords and slave-holders, in the Rome of this period the great mass of the burgesses still tilled their fields in person. The majority of the population in Rome held property, and was therefore conservative; the majority in Carthage held no property, and was therefore accessible to the gold of the rich as well as to the cry of the democrats for reform. In Carthage there already prevailed all that opulence which marks powerful commercial cities, while the manners and police of Rome still maintained at least externally the severity and frugality of the olden times. When the ambassadors of Carthage returned from Rome, they told their colleagues that the relations of intimacy among the Roman senators surpassed all conception; that a single set of silver plate sufficed for the whole senate, and had reappeared in every house to which the envoys had been invited. The sneer is a significant token of the difference in the economic conditions on either side.

In Their Constitution

In both the constitution was aristocratic; the judges governed in Carthage, as did the senate in Rome, and both on the same system of police-control. The strict state of dependence in which the governing board at Carthage held the individual magistrate, and the injunction to the citizens absolutely to refrain from learning the Greek language and to converse with a Greek only through the medium of the public interpreter, originated in the same spirit as the system of government at Rome; but in comparison with the

cruel harshness and the absolute precision, bordering on silliness, of this Carthaginian state- tutelage, the Roman system of fining and censure appears mild and reasonable. The Roman senate, which opened its doors to eminent capacity and in the best sense represented the nation, was able also to trust it, and had no need to fear the magistrates. The Carthaginian senate, on the other hand, was based on a jealous control of administration by the government, and represented exclusively the leading families; its essence was mistrust of all above and below it, and therefore it could neither be confident that the people would follow whither it led, nor free from the dread of usurpations on the part of the magistrates. Hence the steady course of Roman policy, which never receded a step in times of misfortune, and never threw away the favours of fortune by negligence or indifference; whereas the Carthaginians desisted from the struggle when a last effort might perhaps have saved all, and, weary or forgetful of their great national duties, allowed the half-completed building to fall to pieces, only to begin it in a few years anew. Hence the capable magistrate in Rome was ordinarily on a good understanding with his government; in Carthage he was frequently at decided feud with his masters at home, and was forced to resist them by unconstitutional means and to make common cause with the opposing party of reform.

In the Treatment of Their Subject

Both Carthage and Rome ruled over communities of lineage kindred with their own, and over numerous others of alien race. But Rome had received into her citizenship one district after another, and had rendered it even legally accessible to the Latin communities; Carthage from the first maintained her exclusiveness, and did not permit the dependent districts even to cherish a hope of being some day placed upon an equal footing. Rome granted to the communities of kindred lineage a share in the fruits of victory, especially in the acquired domains; and sought, by conferring

material advantages on the rich and noble, to gain over at least a party to her own interest in the other subject states. Carthage not only retained for herself the produce of her victories, but even deprived the most privileged cities of their freedom of trade. Rome, as a rule, did not wholly take away independence even from the subject communities, and imposed a fixed tribute on none; Carthage despatched her overseers everywhere, and loaded even the old-Phoenician cities with a heavy tribute, while her subject tribes were practically treated as state-slaves. In this way there was not in the compass of the Carthagino-African state a single community, with the exception of Utica, that would not have been politically and materially benefited by the fall of Carthage; in the Romano-Italic there was not one that had not much more to lose than to gain in rebelling against a government, which was careful to avoid injuring material interests, and which never at least by extreme measures challenged political opposition to conflict. If Carthaginian statesmen believed that they had attached to the interests of Carthage her Phoenician subjects by their greater dread of a Libyan revolt and all the landholders by means of token-money, they transferred mercantile calculation to a sphere to which it did not apply. Experience proved that the Roman symmarchy, notwithstanding its seemingly looser bond of connection, kept together against Pyrrhus like a wall of rock, whereas the Carthaginian fell to pieces like a gossamer web as soon as a hostile army set foot on African soil. It was so on the landing of Agathocles and of Regulus, and likewise in the mercenary war; the spirit that prevailed in Africa is illustrated by the fact, that the Libyan women voluntarily contributed their ornaments to the mercenaries for their war against Carthage. In Sicily alone the Carthaginians appear to have exercised a milder rule, and to have attained on that account better results. They granted to their subjects in that quarter comparative freedom in foreign trade, and allowed them to conduct their internal commerce, probably from the outset and exclusively, with a metallic currency; far greater freedom of

movement generally was allowed to them than was permitted to the Sardinians and Libyans. Had Syracuse fallen into Carthaginian hands, their policy would doubtless soon have changed. But that result did not take place; and so, owing to the well-calculated mildness of the Carthaginian government and the unhappy distractions of the Sicilian Greeks, there actually existed in Sicily a party really friendly to the Phoenicians; for example, even after the island had passed to the Romans, Philinus of Agrigentum wrote the history of the great war in a thoroughly Phoenician spirit. Nevertheless on the whole the Sicilians must, both as subjects and as Hellenes, have been at least as averse to their Phoenician masters as the Samnites and Tarentines were to the Romans.

In Finance

In a financial point of view the state revenues of Carthage doubtless far surpassed those of Rome; but this advantage was partly neutralized by the facts, that the sources of the Carthaginian revenue—tribute and customs—dried up far sooner (and just when they were most needed) than those of Rome, and that the Carthaginian mode of conducting war was far more costly than the Roman.

In Their Military System

The military resources of the Romans and Carthaginians were very different, yet in many respects not unequally balanced. The citizens of Carthage still at the conquest of the city amounted to 700,000, including women and children,(10) and were probably at least as numerous at the close of the fifth century; in that century they were able in case of need to set on foot a burgess-army of 40,000 hoplites. At the very beginning of the fifth century, Rome had in similar circumstances sent to the field a burgess-army equally strong;(11) after the great extensions of the burgess-domain in the course of that century the number of full burgesses capable of bearing

arms must at least have doubled. But far more than in the number of men capable of bearing arms, Rome excelled in the effective condition of the burgess- soldier. Anxious as the Carthaginian government was to induce its citizens to take part in military service, it could neither furnish the artisan and the manufacturer with the bodily vigour of the husbandman, nor overcome the native aversion of the Phoenicians to warfare. In the fifth century there still fought in the Sicilian armies a "sacred band" of 2500 Carthaginians as a guard for the general; in the sixth not a single Carthaginian, officers excepted, was to be met with in the Carthaginian armies, e. g. in that of Spain. The Roman farmers, again, took their places not only in the muster- roll, but also in the field of battle. It was the same with the cognate races of both communities; while the Latins rendered to the Romans no less service than their own burgess-troops, the Liby-phoenicians were as little adapted for war as the Carthaginians, and, as may easily be supposed, still less desirous of it, and so they too disappeared from the armies; the towns bound to furnish contingents presumably redeemed their obligation by a payment of money. In the Spanish army just mentioned, composed of some 15,000 men, only a single troop of cavalry of 450 men consisted, and that but partly, of Liby-phoenicians. The flower of the Carthaginian armies was formed by the Libyan subjects, whose recruits were capable of being trained under able officers into good infantry, and whose light cavalry was unsurpassed in its kind. To these were added the forces of the more or less dependent tribes of Libya and Spain and the famous slingers of the Baleares, who seem to have held an intermediate position between allied contingents and mercenary troops; and finally, in case of need, the hired soldiery enlisted abroad. So far as numbers were concerned, such an army might without difficulty be raised almost to any desired strength; and in the ability of its officers, in acquaintance with arms, and in courage it might be capable of coping with that of Rome. Not only, however, did a dangerously long interval elapse, in the event of mercenaries

being required, ere they could be got ready, while the Roman militia was able at any moment to take the field, but —which was the main matter— there was nothing to keep together the armies of Carthage but military honour and personal advantage, while the Romans were united by all the ties that bound them to their common fatherland. The Carthaginian officer of the ordinary type estimated his mercenaries, and even the Libyan farmers, very much as men in modern warfare estimate cannon-balls; hence such disgraceful proceedings as the betrayal of the Libyan troops by their general Himilco in 358, which was followed by a dangerous insurrection of the Libyans, and hence that proverbial cry of "Punic faith," which did the Carthaginians no small injury. Carthage experienced in full measure all the evils which armies of fellahs and mercenaries could bring upon a state, and more than once she found her paid serfs more dangerous than her foes.

The Carthaginian government could not fail to perceive the defects of this military system, and they certainly sought to remedy them by every available means. They insisted on maintaining full chests and full magazines, that they might at any time be able to equip mercenaries. They bestowed great care on those elements which among the ancients represented the modern artillery—the construction of machines, in which we find the Carthaginians regularly superior to the Siceliots, and the use of elephants, after these had superseded in warfare the earlier war-chariots: in the casemates of Carthage there were stalls for 300 elephants. They could not venture to fortify the dependent cities, and were obliged to submit to the occupation of the towns and villages as well as of the open country by any hostile army that landed in Africa—a thorough contrast to the state of Italy, where most of the subject towns had retained their walls, and a chain of Roman fortresses commanded the whole peninsula. But on the fortification of the capital they expended all the resources of money and of art, and on several occasions nothing but the strength of its walls saved the state; whereas Rome held a political and military position so secure that it never

underwent a formal siege. Lastly, the main bulwark of the state was their war-marine, on which they lavished the utmost care. In the building as well as in the management of vessels the Carthaginians excelled the Greeks; it was at Carthage that ships were first built of more than three banks of oars, and the Carthaginian war-vessels, at this period mostly quinqueremes, were ordinarily better sailors than the Greek; the rowers, all of them public slaves, who never stirred from the galleys, were excellently trained, and the captains were expert and fearless. In this respect Carthage was decidedly superior to the Romans, who, with the few ships of their Greek allies and still fewer of their own, were unable even to show themselves in the open sea against the fleet which at that time without a rival ruled the western Mediterranean.

If, in conclusion, we sum up the results of this comparison of the resources of the two great powers, the judgment expressed by a sagacious and impartial Greek is perhaps borne out, that Carthage and Rome were, when the struggle between them began, on the whole equally matched. But we cannot omit to add that, while Carthage had put forth all the efforts of which intellect and wealth were capable to provide herself with artificial means of attack and defence, she was unable in any satisfactory way to make up for the fundamental wants of a land army of her own and of a symmarchy resting on a self-supporting basis. That Rome could only be seriously attacked in Italy, and Carthage only in Libya, no one could fail to see; as little could any one fail to perceive that Carthage could not in the long run escape from such an attack. Fleets were not yet in those times of the infancy of navigation a permanent heirloom of nations, but could be fitted out wherever there were trees, iron, and water. It was clear, and had been several times tested in Africa itself, that even powerful maritime states were not able to prevent enemies weaker by sea from landing. When Agathocles had shown the way thither, a Roman general could follow the same course; and while in Italy the entrance of an invading army simply

began the war, the same event in Libya put an end to it by converting it into a siege, in which, unless special accidents should intervene, even the most obstinate and heroic courage must finally succumb.

Notes for Chapter I

1. II. IV. Victories of Salamis and Himera, and Their Effects

2. I. X. Phoenicians and Italians in Opposition to the Hellenes

3. The most precise description of this important class occurs in the Carthaginian treaty (Polyb. vii. 9), where in contrast to the Uticenses on the one hand, and to the Libyan subjects on the other, they are called —ol Karchedonion uparchoi osoi tois autois nomois chrontai—. Elsewhere they are spoken of as cities allied (—summachides poleis—, Diod. xx. 10) or tributary (Liv. xxxiv. 62; Justin, xxii. 7, 3). Their -conubium- with the Carthaginians is mentioned by Diodorus, xx. 55; the -commercium- is implied in the "like laws." That the old Phoenician colonies were included among the Liby-phoenicians, is shown by the designation of Hippo as a Liby-phoenician city (Liv. xxv. 40); on the other hand as to the settlements founded from Carthage, for instance, it is said in the Periplus of Hanno: "the Carthaginians resolved that Hanno should sail beyond the Pillars of Hercules and found cities of Liby-phoenicians." In substance the word "Liby-phoenicians" was used by the Carthaginians not as a national designation, but as a category of state-law. This view is quite consistent with the fact that grammatically the name denotes Phoenicians mingled with Libyans (Liv. xxi. 22, an addition to the text of Polybius); in reality, at least in the institution of very exposed colonies, Libyans were frequently associated with Phoenicians (Diod. xiii. 79; Cic. pro Scauro, 42). The

analogy in name and legal position between the Latins of Rome and the Liby-phoenicians of Carthage is unmistakable.

4. The Libyan or Numidian alphabet, by which we mean that which was and is employed by the Berbers in writing their non-Semitic language — one of the innumerable alphabets derived from the primitive Aramaean one — certainly appears to be more closely related in several of its forms to the latter than is the Phoenician alphabet; but it by no means follows from this, that the Libyans derived their writing not from Phoenicians but from earlier immigrants, any more than the partially older forms of the Italian alphabets prohibit us from deriving these from the Greek. We must rather assume that the Libyan alphabet has been derived from the Phoenician at a period of the latter earlier than the time at which the records of the Phoenician language that have reached us were written.

5. II. VII. Decline of the Roman Naval Power

6. II. VII. Decline of the Roman Naval Power

7. II. VII. The Roman Fleet

8. II. IV. Etrusco-Carthaginian Maritime Supremacy

9. The steward on a country estate, although a slave, ought, according to the precept of the Carthaginian agronome Mago (ap. Varro, R. R. i. 17), to be able to read, and ought to possess some culture. In the prologue of the "Poenulus" of Plautus, it is said of the hero of the title:-

-Et is omnes linguas scit; sed dissimulat sciens
Se scire; Poenus plane est; quid verbit opus't-?

10. Doubts have been expressed as to the correctness of this number, and the highest possible number of inhabitants, taking into account the available

space, has been reckoned at 250,000. Apart from the uncertainty of such calculations, especially as to a commercial city with houses of six stories, we must remember that the numbering is doubtless to be understood in a political, not in an urban, sense, just like the numbers in the Roman census, and that thus all Carthaginians would be included in it, whether dwelling in the city or its neighbourhood, or resident in its subject territory or in other lands. There would, of course, be a large number of such absentees in the case of Carthage; indeed it is expressly stated that in Gades, for the same reason, the burgess-roll always showed a far higher number than that of the citizens who had their fixed residence there.

11. II. VII. System of Government, note

CHAPTER II

The War between Rome and Carthage Concerning Sicily

State of Sicily

For upwards of a century the feud between the Carthaginians and the rulers of Syracuse had devastated the fair island of Sicily. On both sides the contest was carried on with the weapons of political proselytism, for, while Carthage kept up communications with the aristocratic-republican opposition in Syracuse, the Syracusan dynasts maintained relations with the national party in the Greek cities that had become tributary to Carthage. On both sides armies of mercenaries were employed to fight their battles—by Timoleon and Agathocles, as well as by the Phoenician generals. And as like means were employed on both sides, so the conflict had been waged on both with a disregard of honour and a perfidy unexampled in the history of the west. The Syracusans were the weaker party. In the peace of 440 Carthage had still limited her claims to the third of the island to the west of Heraclea Minoa and Himera, and had expressly recognized the hegemony of the Syracusans over all the cities to the eastward. The expulsion of Pyrrhus from Sicily and Italy (479) left by far the larger half of the island, and especially the important Agrigentum, in the hands of Carthage; the Syracusans retained nothing but Tauromenium and the south-east of the island.

Campanian Mercenaries

In the second great city on the east coast, Messina, a band of foreign soldiers had established themselves and held the city, independent alike of Syracusans and Carthaginians. These new rulers of Messina were Campanian mercenaries. The dissolute habits that had become prevalent among the Sabellians settled in and around Capua,(1) had made Campania in the fourth and fifth centuries—what Aetolia, Crete, and Laconia were afterwards—the universal recruiting field for princes and cities in search of mercenaries. The semi-culture that had been called into existence there by the Campanian Greeks, the barbaric luxury of life in Capua and the other Campanian cities, the political impotence to which the hegemony of Rome condemned them, while yet its rule was not so stern as wholly to withdraw from them the right of self-disposal—all tended to drive the youth of Campania in troops to the standards of the recruiting officers. As a matter of course, this wanton and unscrupulous selling of themselves here, as everywhere, brought in its train estrangement from their native land, habits of violence and military disorder, and indifference to the breach of their allegiance. These Campanians could see no reason why a band of mercenaries should not seize on their own behalf any city entrusted to their guardianship, provided only they were in a position to hold it—the Samnites had established their dominion in Capua itself, and the Lucanians in a succession of Greek cities, after a fashion not much more honourable.

Mammertines

Nowhere was the state of political relations more inviting for such enterprises than in Sicily. Already the Campanian captains who came to Sicily during the Peloponnesian war had insinuated themselves in this way into Entella and Aetna. Somewhere about the year 470 a Campanian band, which had previously served under Agathocles and after his death (465)

took up the trade of freebooters on their own account, established themselves in Messana, the second city of Greek Sicily, and the chief seat of the anti-Syracusan party in that portion of the island which was still in the power of the Greeks. The citizens were slain or expelled, their wives and children and houses were distributed among the soldiers, and the new masters of the city, the Mamertines or "men of Mars," as they called themselves, soon became the third power in the island, the north-eastern portion of which they reduced to subjection in the times of confusion that succeeded the death of Agathocles. The Carthaginians were no unwilling spectators of these events, which established in the immediate vicinity of the Syracusans a new and powerful adversary instead of a cognate and ordinarily allied or dependent city. With Carthaginian aid the Mamertines maintained themselves against Pyrrhus, and the untimely departure of the king restored to them all their power.

Hiero of Syracuse

War between the Syracusans and the Mamertines

It is not becoming in the historian either to excuse the perfidious crime by which the Mamertines seized their power, or to forget that the God of history does not necessarily punish the sins of the fathers to the fourth generation. He who feels it his vocation to judge the sins of others may condemn the human agents; for Sicily it might be a blessing that a warlike power, and one belonging to the island, thus began to be formed in it—a power which was already able to bring eight thousand men into the field, and which was gradually putting itself in a position to take up at the proper time and on its own resources that struggle against the foreigners, to the maintenance of which the Hellenes, becoming more and more unaccustomed to arms notwithstanding their perpetual wars, were no longer equal.

In the first instance, however, things took another turn. A young Syracusan officer, who by his descent from the family of Gelo and his intimate relations of kindred with king Pyrrhus as well as by the distinction with which he had fought in the campaigns of the latter, had attracted the notice of his fellow-citizens as well as of the Syracusan soldiery—Hiero, son of Hierocles—was called by military election to command the army, which was at variance with the citizens (479-480). By his prudent administration, the nobility of his character, and the moderation of his views, he rapidly gained the hearts of the citizens of Syracuse—who had been accustomed to the most scandalous lawlessness in their despots—and of the Sicilian Greeks in general. He rid himself—in a perfidious manner, it is true—of the insubordinate army of mercenaries, revived the citizen-militia, and endeavoured, at first with the title of general, afterwards with that of king, to re-establish the deeply sunken Hellenic power by means of his civic troops and of fresh and more manageable recruits. With the Carthaginians, who in concert with the Greeks had driven king Pyrrhus from the island, there was at that time peace. The immediate foes of the Syracusans were the Mamertines. They were the kinsmen of those hated mercenaries whom the Syracusans had recently extirpated; they had murdered their own Greek hosts; they had curtailed the Syracusan territory; they had oppressed and plundered a number of smaller Greek towns. In league with the Romans who just about this time were sending their legions against the Campanians in Rhegium, the allies, kinsmen, and confederates in crime of the Mamertines,(2) Hiero turned his arms against Messana. By a great victory, after which Hiero was proclaimed king of the Siceliots (484), he succeeded in shutting up the Mamertines within their city, and after the siege had lasted some years, they found themselves reduced to extremity and unable to hold the city longer against Hiero on their own resources. It is evident that a surrender on stipulated conditions was impossible, and that the axe of the executioner, which had fallen upon the Campanians of

Rhegium at Rome, as certainly awaited those of Messina at Syracuse. Their only means of safety lay in delivering up the city either to the Carthaginians or to the Romans, both of whom could not but be so strongly set upon acquiring that important place as to overlook all other scruples. Whether it would be more advantageous to surrender it to the masters of Africa or to the masters of Italy, was doubtful; after long hesitation the majority of the Campanian burgesses at length resolved to offer the possession of their sea-commanding fortress to the Romans.

The Mamertines Received into the Italian Confederacy

It was a moment of the deepest significance in the history of the world, when the envoys of the Mamertines appeared in the Roman senate. No one indeed could then anticipate all that was to depend on the crossing of that narrow arm of the sea; but that the decision, however it should go, would involve consequences far other and more important than had attached to any decree hitherto passed by the senate, must have been manifest to every one of the deliberating fathers of the city. Strictly upright men might indeed ask how it was possible to deliberate at all, and how any one could even think of suggesting that the Romans should not only break their alliance with Hiero, but should, just after the Campanians of Rhegium had been punished by them with righteous severity, admit the no less guilty Sicilian accomplices to the alliance and friendship of the state, and thereby rescue them from the punishment which they deserved. Such an outrage on propriety would not only afford their adversaries matter for declamation, but must seriously offend all men of moral feeling. But even the statesman, with whom political morality was no mere phrase, might ask in reply, how Roman burgesses, who had broken their military oath and treacherously murdered the allies of Rome, could be placed on a level with foreigners who had committed an outrage on foreigners, where no one had constituted the Romans judges of the one or avengers of the other? Had the question

been only whether the Syracusans or Mamertines should rule in Messina, Rome might certainly have acquiesced in the rule of either. Rome was striving for the possession of Italy, as Carthage for that of Sicily; the designs of the two powers scarcely then went further. But that very circumstance formed a reason why each desired to have and retain on its frontier an intermediate power—the Carthaginians for instance reckoning in this way on Tarentum, the Romans on Syracuse and Messina—and why, if that course was impossible, each preferred to see these adjacent places given over to itself rather than to the other great power. As Carthage had made an attempt in Italy, when Rhegium and Tarentum were about to be occupied by the Romans, to acquire these cities for itself, and had only been prevented from doing so by accident, so in Sicily an opportunity now offered itself for Rome to bring the city of Messina into its symmarchy; should the Romans reject it, it was not to be expected that the city would remain independent or would become Syracusan; they would themselves throw it into the arms of the Phoenicians. Were they justified in allowing an opportunity to escape, such as certainly would never recur, of making themselves masters of the natural *tête de pont* between Italy and Sicily, and of securing it by means of a brave garrison on which they could, for good reasons, rely? Were they justified in abandoning Messina, and thereby surrendering the command of the last free passage between the eastern and western seas, and sacrificing the commercial liberty of Italy? It is true that other objections might be urged to the occupation of Messina besides mere scruples of feeling and of honourable policy. That it could not but lead to a war with Carthage, was the least of these; serious as was such a war, Rome might not fear it. But there was the more important objection that by crossing the sea the Romans would depart from the purely Italian and purely continental policy which they had hitherto pursued; they would abandon the system by which their ancestors had founded the greatness of Rome, to enter upon another system the results of which no one could

foretell. It was one of those moments when calculation ceases, and when faith in men's own and in their country's destiny alone gives them courage to grasp the hand which beckons to them out of the darkness of the future, and to follow it no one knows whither. Long and seriously the senate deliberated on the proposal of the consuls to lead the legions to the help of the Mamertines; it came to no decisive resolution. But the burgesses, to whom the matter was referred, were animated by a lively sense of the greatness of the power which their own energy had established. The conquest of Italy encouraged the Romans, as that of Greece encouraged the Macedonians and that of Silesia the Prussians, to enter upon a new political career. A formal pretext for supporting the Mamertines was found in the protectorate which Rome claimed the right to exercise over all Italians. The transmarine Italians were received into the Italian confederacy;(3) and on the proposal of the consuls the citizens resolved to send them aid (489).

Variance between Rome and Carthage

Carthaginians in Messana

Messana Seized by the Romans

War between the Romans and the Carthaginians and the Syracusans

Much depended on the way in which the two Sicilian powers, immediately affected by this intervention of the Romans in the affairs of the island, and both hitherto nominally in alliance with Rome, would regard her interference. Hiero had sufficient reason to treat the summons, by which the Romans required him to desist from hostilities against their new confederates in Messana, precisely in the same way as the Samnites and Lucanians in similar circumstances had received the occupation of Capua and Thurii, and to answer the Romans by a declaration of war. If, however, he remained unsupported, such a war would be folly; and it might be expected from his prudent and moderate policy that he would acquiesce in what was inevitable, if Carthage should be disposed for peace. This seemed

not impossible. A Roman embassy was now (489) sent to Carthage, seven years after the attempt of the Phoenician fleet to gain possession of Tarentum, to demand explanations as to these incidents.(4) Grievances not unfounded, but half-forgotten, once more emerged—it seemed not superfluous amidst other warlike preparations to replenish the diplomatic armoury with reasons for war, and for the coming manifesto to reserve to themselves, as was the custom of the Romans, the character of the party aggrieved. This much at least might with entire justice be affirmed, that the respective enterprises on Tarentum and Messana stood upon exactly the same footing in point of design and of pretext, and that it was simply the accident of success that made the difference. Carthage avoided an open rupture. The ambassadors carried back to Rome the disavowal of the Carthaginian admiral who had made the attempt on Tarentum, along with the requisite false oaths: the counter-complaints, which of course were not wanting on the part of Carthage, were studiously moderate, and abstained from characterizing the meditated invasion of Sicily as a ground for war. Such, however, it was; for Carthage regarded the affairs of Sicily—just as Rome regarded those of Italy—as internal matters in which an independent power could allow no interference, and was determined to act accordingly. But Phoenician policy followed a gentler course than that of threatening open war. When the preparations of Rome for sending help to the Mamertines were at length so far advanced that the fleet formed of the war-vessels of Naples, Tarentum, Velia, and Locri, and the vanguard of the Roman land army under the military tribune Gaius Claudius, had appeared at Rhegium (in the spring of 490), unexpected news arrived from Messana that the Carthaginians, having come to an understanding with the anti-Roman party there, had as a neutral power arranged a peace between Hiero and the Mamertines; that the siege had in consequence been raised; and that a Carthaginian fleet lay in the harbour of Messana, and a Carthaginian garrison in the citadel, both under the command of admiral Hanno. The

Mamertine citizens, now controlled by Carthaginian influence, informed the Roman commanders, with due thanks to the federal help so speedily accorded to them, that they were glad that they no longer needed it. The adroit and daring officer who commanded the Roman vanguard nevertheless set sail with his troops. But the Carthaginians warned the Roman vessels to retire, and even made some of them prizes; these, however, the Carthaginian admiral, remembering his strict orders to give no pretext for the outbreak of hostilities, sent back to his good friends on the other side of the straits. It almost seemed as if the Romans had compromised themselves as uselessly before Messana, as the Carthaginians before Tarentum. But Claudius did not allow himself to be deterred, and on a second attempt he succeeded in landing. Scarcely had he arrived when he called a meeting of the citizens; and, at his wish, the Carthaginian admiral also appeared at the meeting, still imagining that he should be able to avoid an open breach. But the Romans seized his person in the assembly itself; and Hanno and the Phoenician garrison in the citadel, weak and destitute of a leader, were pusillanimous enough, the former to give to his troops the command to withdraw, the latter to comply with the orders of their captive general and to evacuate the city along with him. Thus the *tete de pont* of the island fell into the hands of the Romans. The Carthaginian authorities, justly indignant at the folly and weakness of their general, caused him to be executed, and declared war against the Romans. Above all it was their aim to recover the lost place. A strong Carthaginian fleet, led by Hanno, son of Hannibal, appeared off Messana; while the fleet blockaded the straits, the Carthaginian army landing from it began the siege on the north side. Hiero, who had only waited for the Carthaginian attack to begin the war with Rome, again brought up his army, which he had hardly withdrawn, against Messana, and undertook the attack on the south side of the city.

Peace with Hiero

But meanwhile the Roman consul Appius Claudius Caudex had appeared at Rhegium with the main body of his army, and succeeded in crossing on a dark night in spite of the Carthaginian fleet. Audacity and fortune were on the side of the Romans; the allies, not prepared for an attack by the whole Roman army and consequently not united, were beaten in detail by the Roman legions issuing from the city; and thus the siege was raised. The Roman army kept the field during the summer, and even made an attempt on Syracuse; but, when that had failed and the siege of Echetla (on the confines of the territories of Syracuse and Carthage) had to be abandoned with loss, the Roman army returned to Messana, and thence, leaving a strong garrison behind them, to Italy. The results obtained in this first campaign of the Romans out of Italy may not quite have corresponded to the expectations at home, for the consul had no triumph; nevertheless, the energy which the Romans displayed in Sicily could not fail to make a great impression on the Sicilian Greeks. In the following year both consuls and an army twice as large entered the island unopposed. One of them, Marcus Valerius Maximus, afterwards called from this campaign the "hero of Messana" (-Messalla-), achieved a brilliant victory over the allied Carthaginians and Syracusans. After this battle the Phoenician army no longer ventured to keep the field against the Romans; Alaesia, Centuripa, and the smaller Greek towns generally fell to the victors, and Hiero himself abandoned the Carthaginian side and made peace and alliance with the Romans (491). He pursued a judicious policy in joining the Romans as soon as it appeared that their interference in Sicily was in earnest, and while there was still time to purchase peace without cessions and sacrifices. The intermediate states in Sicily, Syracuse and Messana, which were unable to follow out a policy of their own and had only the choice between Roman and Carthaginian hegemony, could not but at any rate prefer the former; because the Romans had very probably not as yet formed the design of conquering the island for themselves, but sought merely to prevent its being

acquired by Carthage, and at all events Rome might be expected to substitute a more tolerable treatment and a due protection of commercial freedom for the tyrannizing and monopolizing system that Carthage pursued. Henceforth Hiero continued to be the most important, the steadiest, and the most esteemed ally of the Romans in the island.

Capture of Agrigentum

The Romans had thus gained their immediate object. By their double alliance with Messana and Syracuse, and the firm hold which they had on the whole east coast, they secured the means of landing on the island and of maintaining—which hitherto had been a very difficult matter—their armies there; and the war, which had previously been doubtful and hazardous, lost in a great measure its character of risk. Accordingly, no greater exertions were made for it than for the wars in Samnium and Etruria; the two legions which were sent over to the island for the next year (492) sufficed, in concert with the Sicilian Greeks, to drive the Carthaginians everywhere into their fortresses. The commander-in-chief of the Carthaginians, Hannibal son of Gisgo, threw himself with the flower of his troops into Agrigentum, to defend to the last that most important of the Carthaginian inland cities. Unable to storm a city so strong, the Romans blockaded it with entrenched lines and a double camp; the besieged, who numbered 50,000 soon suffered from want of provisions. To raise the siege the Carthaginian admiral Hanno landed at Heraclea, and cut off in turn the supplies from the Roman besieging force. On both sides the distress was great. At length a battle was resolved on, to put an end to the state of embarrassment and uncertainty. In this battle the Numidian cavalry showed itself just as superior to the Roman horse as the Roman infantry was superior to the Phoenician foot; the infantry decided the victory, but the losses even of the Romans were very considerable. The result of the successful struggle was somewhat marred by the circumstance that, after the battle, during the confusion and fatigue of

the conquerors, the beleaguered army succeeded in escaping from the city and in reaching the fleet. The victory was nevertheless of importance; Agrigentum fell into the hands of the Romans, and thus the whole island was in their power, with the exception of the maritime fortresses, in which the Carthaginian general Hamilcar, Hanno's successor in command, entrenched himself to the teeth, and was not to be driven out either by force or by famine. The war was thenceforth continued only by sallies of the Carthaginians from the Sicilian fortresses and their descents on the Italian coasts.

Beginning of the Maritime War The Romans Build a Fleet

In fact, the Romans now for the first time felt the real difficulties of the war. If, as we are told, the Carthaginian diplomatists before the outbreak of hostilities warned the Romans not to push the matter to a breach, because against their will no Roman could even wash his hands in the sea, the threat was well founded. The Carthaginian fleet ruled the sea without a rival, and not only kept the coast towns of Sicily in due obedience and provided them with all necessities, but also threatened a descent upon Italy, for which reason it was necessary in 492 to retain a consular army there. No invasion on a large scale occurred; but smaller Carthaginian detachments landed on the Italian coasts and levied contributions on the allies of Rome, and what was worst of all, completely paralyzed the commerce of Rome and her allies. The continuance of such a course for even a short time would suffice entirely to ruin Caere, Ostia, Neapolis, Tarentum, and Syracuse, while the Carthaginians easily consoled themselves for the loss of the tribute of Sicily with the contributions which they levied and the rich prizes of their privateering. The Romans now learned, what Dionysius, Agathocles, and Pyrrhus had learned before, that it was as difficult to conquer the Carthaginians as it was easy to beat them in the field. They saw that

everything depended on procuring a fleet, and resolved to form one of twenty triremes and a hundred quinqueremes. The execution, however, of this energetic resolution was not easy. The representation originating in the schools of the rhetoricians, which would have us believe that the Romans then for the first time dipped their oars in water, is no doubt a childish tale; the mercantile marine of Italy must at this time have been very extensive, and there was no want even of Italian vessels of war. But these were war-barks and triremes, such as had been in use in earlier times; quinqueremes, which under the more modern system of naval warfare that had originated chiefly in Carthage were almost exclusively employed in the line, had not yet been built in Italy. The measure adopted by the Romans was therefore much as if a maritime state of the present day were to pass at once from the building of frigates and cutters to the building of ships of the line; and, just as in such a case now a foreign ship of the line would, if possible, be adopted as a pattern, the Romans referred their master shipbuilders to a stranded Carthaginian -penteres- as a model. No doubt the Romans, had they wished, might have sooner attained their object with the aid of the Syracusans and Massiliots; but their statesmen had too much sagacity to desire to defend Italy by means of a fleet not Italian. The Italian allies, however, were largely drawn upon both for the naval officers, who must have been for the most part taken from the Italian mercantile marine, and for the sailors, whose name (-*socii navales*-) shows that for a time they were exclusively furnished by the allies; along with these, slaves provided by the state and the wealthier families were afterwards employed, and ere long also the poorer class of burgesses. Under such circumstances, and when we take into account, as is but fair, on the one hand the comparatively low state of shipbuilding at that time, and on the other hand the energy of the Romans, there is nothing incredible in the statement that the Romans solved within a year the problem—which baffled Napoleon—of converting a continental into a maritime power, and actually launched their fleet of 120

sail in the spring of 494. It is true, that it was by no means a match for the Carthaginian fleet in numbers and efficiency at sea; and these were points of the greater importance, as the naval tactics of the period consisted mainly in manoeuvring. In the maritime warfare of that period hoplites and archers no doubt fought from the deck, and projectile machines were also plied from it; but the ordinary and really decisive mode of action consisted in running foul of the enemy's vessels, for which purpose the prows were furnished with heavy iron beaks: the vessels engaged were in the habit of sailing round each other till one or the other succeeded in giving the thrust, which usually proved decisive. Accordingly the crew of an ordinary Greek trireme, consisting of about 200 men, contained only about 10 soldiers, but on the other hand 170 rowers, from 50 to 60 on each deck; that of a quinquereme numbered about 300 rowers, and soldiers in proportion.

The happy idea occurred to the Romans that they might make up for what their vessels, with their unpractised officers and crews, necessarily lacked in ability of manoeuvring, by again assigning a more considerable part in naval warfare to the soldiers. They stationed at the prow of each vessel a flying bridge, which could be lowered in front or on either side; it was furnished on both sides with parapets, and had space for two men in front. When the enemy's vessel was sailing up to strike the Roman one, or was lying alongside of it after the thrust had been evaded, the bridge on deck was suddenly lowered and fastened to its opponent by means of a grappling-iron: this not only prevented the running down, but enabled the Roman marines to pass along the bridge to the enemy's deck and to carry it by assault as in a conflict on land. No distinct body of marines was formed, but land troops were employed, when required, for this maritime service. In one instance as many as 120 legionaries fought in each ship on occasion of a great naval battle; in that case however the Roman fleet had at the same time a landing-army on board.

In this way the Romans created a fleet which was a match for the Carthaginians. Those err, who represent this building of a Roman fleet as a fairy tale, and besides they miss their aim; the feat must be understood in order to be admired. The construction of a fleet by the Romans was in very truth a noble national work—a work through which, by their clear perception of what was needful and possible, by ingenuity in invention, and by energy in resolution and in execution, they rescued their country from a position which was worse than at first it seemed.

Naval Victory at Mylae

The outset, nevertheless, was not favourable to the Romans. The Roman admiral, the consul Gnaeus Cornelius Scipio, who had sailed for Messina with the first seventeen vessels ready for sea (494), fancied, when on the voyage, that he should be able to capture Lipara by a coup de main. But a division of the Carthaginian fleet stationed at Panormus blockaded the harbour of the island where the Roman vessels rode at anchor, and captured the whole squadron along with the consul without a struggle. This, however, did not deter the main fleet from likewise sailing, as soon as its preparations were completed, for Messina. On its voyage along the Italian coast it fell in with a Carthaginian reconnoitring squadron of less strength, on which it had the good fortune to inflict a loss more than counterbalancing the first loss of the Romans; and thus successful and victorious it entered the port of Messina, where the second consul Gaius Duilius took the command in room of his captured colleague. At the promontory of Mylae, to the north-west of Messina, the Carthaginian fleet, that advanced from Panormus under the command of Hannibal, encountered the Roman, which here underwent its first trial on a great scale. The Carthaginians, seeing in the ill-sailing and unwieldy vessels of the Romans an easy prey, fell upon them in irregular order; but the newly invented boarding-bridges proved their thorough efficiency. The Roman

vessels hooked and stormed those of the enemy as they came up one by one; they could not be approached either in front or on the sides without the dangerous bridge descending on the enemy's deck. When the battle was over, about fifty Carthaginian vessels, almost the half of the fleet, were sunk or captured by the Romans; among the latter was the ship of the admiral Hannibal, formerly belonging to king Pyrrhus. The gain was great; still greater the moral effect of the victory. Rome had suddenly become a naval power, and held in her hand the means of energetically terminating a war which threatened to be endlessly prolonged and to involve the commerce of Italy in ruin.

The War on the Coasts of Sicily and Sardinia

Two plans were open to the Romans. They might attack Carthage on the Italian islands and deprive her of the coast fortresses of Sicily and Sardinia one after another—a scheme which was perhaps practicable through well-combined operations by land and sea; and, in the event of its being accomplished, peace might either be concluded with Carthage on the basis of the cession of these islands, or, should such terms not be accepted or prove unsatisfactory, the second stage of the war might be transferred to Africa. Or they might neglect the islands and throw themselves at once with all their strength on Africa, not, in the adventurous style of Agathocles, burning their vessels behind them and staking all on the victory of a desperate band, but covering with a strong fleet the communications between the African invading army and Italy; and in that case a peace on moderate terms might be expected from the consternation of the enemy after the first successes, or, if the Romans chose, they might by pushing matters to an extremity compel the enemy to entire surrender.

They chose, in the first instance, the former plan of operations. In the year after the battle of Mylae (495) the consul Lucius Scipio captured the

port of Aleria in Corsica—we still possess the tombstone of the general, which makes mention of this deed—and made Corsica a naval station against Sardinia. An attempt to establish a footing in Ulbia on the northern coast of that island failed, because the fleet wanted troops for landing. In the succeeding year (496) it was repeated with better success, and the open villages along the coast were plundered; but no permanent establishment of the Romans took place. Nor was greater progress made in Sicily. Hamilcar conducted the war with energy and adroitness, not only by force of arms on sea and land, but also by political proselytism. Of the numerous small country towns some every year fell away from the Romans, and had to be laboriously wrested afresh from the Phoenician grasp; while in the coast fortresses the Carthaginians maintained themselves without challenge, particularly in their headquarters of Panormus and in their new stronghold of Drepana, to which, on account of its easier defence by sea, Hamilcar had transferred the inhabitants of Eryx. A second great naval engagement off the promontory of Tyndaris (497), in which both parties claimed the victory, made no change in the position of affairs. In this way no progress was made, whether in consequence of the division and rapid change of the chief command of the Roman troops, which rendered the concentrated management of a series of operations on a small scale exceedingly difficult, or from the general strategical relations of the case, which certainly, as the science of war then stood, were unfavourable to the attacking party in general,(5) and particularly so to the Romans, who were still on the mere threshold of scientific warfare. Meanwhile, although the pillaging of the Italian coasts had ceased, the commerce of Italy suffered not much less than it had done before the fleet was built.

Attack on Africa

Naval Victory of Ecnomus

Weary of a course of operations without results, and impatient to put an end to the war, the senate resolved to change its system, and to assail Carthage in Africa. In the spring of 498 a fleet of 330 ships of the line set sail for the coast of Libya: at the mouth of the river Himera on the south coast of Sicily it embarked the army for landing, consisting of four legions, under the charge of the two consuls Marcus Atilius Regulus and Lucius Manlius Volso, both experienced generals. The Carthaginian admiral suffered the embarkation of the enemy's troops to take place; but on continuing their voyage towards Africa the Romans found the Punic fleet drawn up in order of battle off Ecnomus to protect its native land from invasion. Seldom have greater numbers fought at sea than were engaged in the battle that now ensued. The Roman fleet: of 330 sail contained at least 100,000 men in its crews, besides the landing army of about 40,000; the Carthaginian of 350 vessels was manned by at least an equal number; so that well-nigh three hundred thousand men were brought into action on this day to decide the contest between the two mighty civic communities. The Phoenicians were placed in a single widely-extended line, with their left wing resting on the Sicilian coast. The Romans arranged themselves in a triangle, with the ships of the two consuls as admirals at the apex, the first and second squadrons drawn out in oblique line to the right and left, and a third squadron, having the vessels built for the transport of the cavalry in tow, forming the line which closed the triangle. They thus bore down in close order on the enemy. A fourth squadron placed in reserve followed more slowly. The wedge-shaped attack broke without difficulty the Carthaginian line, for its centre, which was first assailed, intentionally gave way, and the battle resolved itself into three separate engagements. While the admirals with the two squadrons drawn up on the wings pursued the Carthaginian centre and were closely engaged with it, the left wing of the Carthaginians drawn up along the coast wheeled round upon the third Roman squadron, which was prevented by the vessels which it had in tow

from following the two others, and by a vehement onset in superior force drove it against the shore; at the same time the Roman reserve was turned on the open sea, and assailed from behind, by the right wing of the Carthaginians. The first of these three engagements was soon at an end; the ships of the Carthaginian centre, manifestly much weaker than the two Roman squadrons with which they were engaged, took to flight. Meanwhile the two other divisions of the Romans had a hard struggle with the superior enemy; but in close fighting the dreaded boarding-bridges stood them in good stead, and by this means they succeeded in holding out till the two admirals with their vessels could come up. By their arrival the Roman reserve was relieved, and the Carthaginian vessels of the right wing retired before the superior force. And now, when this conflict had been decided in favour of the Romans, all the Roman vessels that still could keep the sea fell on the rear of the Carthaginian left wing, which was obstinately following up its advantage, so that it was surrounded and almost all the vessels composing it were taken. The losses otherwise were nearly equal. Of the Roman fleet 24 sail were sunk; of the Carthaginian 30 were sunk, and 64 were taken.

Landing of Regulus in Africa

Notwithstanding its considerable loss, the Carthaginian fleet did not give up the protection of Africa, and with that view returned to the gulf of Carthage, where it expected the descent to take place and purposed to give battle a second time. But the Romans landed, not on the western side of the peninsula which helps to form the gulf, but on the eastern side, where the bay of Clupea presented a spacious harbour affording protection in almost all winds, and the town, situated close by the sea on a shield-shaped eminence rising out of the plain, supplied an excellent defence for the harbour. They disembarked the troops without hindrance from the enemy, and established themselves on the hill; in a short time an entrenched naval

camp was constructed, and the land army was at liberty to commence operations. The Roman troops ranged over the country and levied contributions: they were able to send as many as 20,000 slaves to Rome. Through the rarest good fortune the bold scheme had succeeded at the first stroke, and with but slight sacrifices: the end seemed attained. The feeling of confidence that in this respect animated the Romans is evinced by the resolution of the senate to recall to Italy the greater portion of the fleet and half of the army; Marcus Regulus alone remained in Africa with 40 ships, 15,000 infantry, and 500 cavalry. Their confidence, however, was seemingly not overstrained. The Carthaginian army, which was disheartened, did not venture forth into the plain, but waited to sustain discomfiture in the wooded defiles, in which it could make no use of its two best arms, the cavalry and the elephants. The towns surrendered -en masse-; the Numidians rose in insurrection, and overran the country far and wide. Regulus might hope to begin the next campaign with the siege of the capital, and with that view he pitched his camp for the winter in its immediate vicinity at Tunes.

Vain Negotiations for Peace

The spirit of the Carthaginians was broken: they sued for peace. But the conditions which the consul proposed—not merely the cession of Sicily and Sardinia, but the conclusion of an alliance on unequal terms with Rome, which would have bound the Carthaginians to renounce a war-marine of their own and to furnish vessels for the Roman wars —conditions which would have placed Carthage on a level with Neapolis and Tarentum, could not be accepted, so long as a Carthaginian army kept the field and a Carthaginian fleet kept the sea, and the capital stood unshaken.

Preparations of Carthage

The mighty enthusiasm, which is wont to blaze up nobly among Oriental nations, even the most abased, on the approach of extreme peril—the energy of dire necessity—impelled the Carthaginians to exertions, such as were by no means expected from a nation of shopkeepers. Hamilcar, who had carried on the guerilla war against the Romans in Sicily with so much success, appeared in Libya with the flower of the Sicilian troops, which furnished an admirable nucleus for the newly-levied force. The connections and gold of the Carthaginians, moreover, brought to them excellent Numidian horsemen in troops, and also numerous Greek mercenaries; amongst whom was the celebrated captain Xanthippus of Sparta, whose talent for organization and strategical skill were of great service to his new masters.(6) While the Carthaginians were thus making their preparations in the course of the winter, the Roman general remained inactive at Tunes. Whether it was that he did not anticipate the storm which was gathering over his head, or that a sense of military honour prohibited him from doing what his position demanded—instead of renouncing a siege which he was not in a condition even to attempt, and shutting himself up in the stronghold of Clupea, he remained with a handful of men before the walls of the hostile capital, neglecting even to secure his line of retreat to the naval camp, and neglecting to provide himself with —what above all he wanted, and what might have been so easily obtained through negotiation with the revolted Numidian tribes —a good light cavalry. He thus wantonly brought himself and his army into a plight similar to that which formerly befell Agathocles in his desperate adventurous expedition.

Defeat of Regulus

When spring came (499), the state of affairs had so changed, that now the Carthaginians were the first to take the field and to offer battle to the Romans. It was natural that they should do so, for everything depended on their getting quit of the army of Regulus, before reinforcements could arrive

from Italy. The same reason should have led the Romans to desire delay; but, relying on their invincibleness in the open field, they at once accepted battle notwithstanding their inferiority of strength—for, although the numbers of the infantry on both sides were nearly the same, their 4000 cavalry and 100 elephants gave to the Carthaginians a decided superiority—and notwithstanding the unfavourable nature of the ground, the Carthaginians having taken up their position in a broad plain presumably not far from Tunes. Xanthippus, who on this day commanded the Carthaginians, first threw his cavalry on that of the enemy, which was stationed, as usual, on the two flanks of the line of battle; the few squadrons of the Romans were scattered like dust in a moment before the masses of the enemy's horse, and the Roman infantry found itself outflanked by them and surrounded. The legions, unshaken by their apparent danger, advanced to attack the enemy's line; and, although the row of elephants placed as a protection in front of it checked the right wing and centre of the Romans, the left wing at any rate, marching past the elephants, engaged the mercenary infantry on the right of the enemy, and overthrew them completely. But this very success broke up the Roman ranks. The main body indeed, assailed by the elephants in front and by the cavalry on the flanks and in the rear, formed square, and defended itself with heroic courage, but the close masses were at length broken and swept away. The victorious left wing encountered the still fresh Carthaginian centre, where the Libyan infantry prepared a similar fate for it. From the nature of the ground and the superior numbers of the enemy's cavalry, all the combatants in these masses were cut down or taken prisoners; only two thousand men, chiefly, in all probability, the light troops and horsemen who were dispersed at the commencement, gained—while the Roman legions stood to be slaughtered—a start sufficient to enable them with difficulty to reach Clupea. Among the few prisoners was the consul himself, who afterwards died in Carthage; his family, under the idea that he had not been treated by

the Carthaginians according to the usages of war, wreaked a most revolting vengeance on two noble Carthaginian captives, till even the slaves were moved to pity, and on their information the tribunes put a stop to the shameful outrage.(7)

Evacuation of Africa

When the terrible news reached Rome, the first care of the Romans was naturally directed to the saving of the force shut up in Clupea. A Roman fleet of 350 sail immediately started, and after a noble victory at the Hermaean promontory, in which the Carthaginians lost 114 ships, it reached Clupea just in time to deliver from their hard-pressed position the remains of the defeated army which were there entrenched. Had it been despatched before the catastrophe occurred, it might have converted the defeat into a victory that would probably have put an end to the Punic wars. But so completely had the Romans now lost their judgment, that after a successful conflict before Clupea they embarked all their troops and sailed home, voluntarily evacuating that important and easily defended position which secured to them facilities for landing in Africa, and abandoning their numerous African allies without protection to the vengeance of the Carthaginians. The Carthaginians did not neglect the opportunity of filling their empty treasury, and of making their subjects clearly understand the consequences of unfaithfulness. An extraordinary contribution of 1000 talents of silver (244,000 pounds) and 20,000 oxen was levied, and the sheiks in all the communities that had revolted were crucified; it is said that there were three thousand of them, and that this revolting atrocity on the part of the Carthaginian authorities really laid the foundation of the revolution which broke forth in Africa some years later. Lastly, as if to fill up the measure of misfortune to the Romans even as their measure of success had been filled before, on the homeward voyage of the fleet three-fourths of the Roman vessels perished with their crews in a violent storm;

only eighty reached their port (July 499). The captains had foretold the impending mischief, but the extemporised Roman admirals had nevertheless given orders to sail.

Recommencement of the War in Sicily

After successes so immense the Carthaginians were able to resume their offensive operations, which had long been in abeyance. Hasdrubal son of Hanno landed at Lilybaeum with a strong force, which was enabled, particularly by its enormous number of elephants—amounting to 140—to keep the field against the Romans: the last battle had shown that it was possible to make up for the want of good infantry to some extent by elephants and cavalry. The Romans also resumed the war in Sicily; the annihilation of their invading army had, as the voluntary evacuation of Clupea shows, at once restored ascendancy in the senate to the party which was opposed to the war in Africa and was content with the gradual subjugation of the islands. But for this purpose too there was need of a fleet; and, since that which had conquered at Mylae, at Ecnomus, and at the Hermaean promontory was destroyed, they built a new one. Keels were at once laid down for 220 new vessels of war—they had never hitherto undertaken the building of so many simultaneously—and in the incredibly short space of three months they were all ready for sea. In the spring of 500 the Roman fleet, numbering 300 vessels mostly new, appeared on the north coast of Sicily; Panormus, the most important town in Carthaginian Sicily, was acquired through a successful attack from the seaboard, and the smaller places there, Soluntum, Cephaloedium, and Tyndaris, likewise fell into the hands of the Romans, so that along the whole north coast of the island Thermae alone was retained by the Carthaginians. Panormus became thenceforth one of the chief stations of the Romans in Sicily. The war by land, nevertheless, made no progress; the two armies stood face to face before Lilybaeum, but the Roman commanders, who knew not how to

encounter the mass of elephants, made no attempt to compel a pitched battle.

In the ensuing year (501) the consuls, instead of pursuing sure advantages in Sicily, preferred to make an expedition to Africa, for the purpose not of landing but of plundering the coast towns. They accomplished their object without opposition; but, after having first run aground in the troublesome, and to their pilots unknown, waters of the Lesser Syrtis, whence they with difficulty got clear again, the fleet encountered a storm between Sicily and Italy, which cost more than 150 ships. On this occasion also the pilots, notwithstanding their representations and entreaties to be allowed to take the course along the coast, were obliged by command of the consuls to steer straight from Panormus across the open sea to Ostia.

Suspension of the Maritime War Roman Victory at Panormus

Despondency now seized the fathers of the city; they resolved to reduce their war-fleet to sixty sail, and to confine the war by sea to the defence of the coasts, and to the convoy of transports. Fortunately, just at this time, the languishing war in Sicily took a more favourable turn. In the year 502, Thermae, the last point which the Carthaginians held on the north coast, and the important island of Lipara, had fallen into the hands of the Romans, and in the following year (summer of 503) the consul Lucius Caecilius Metellus achieved a brilliant victory over the army of elephants under the walls of Panormus. These animals, which had been imprudently brought forward, were wounded by the light troops of the Romans stationed in the moat of the town; some of them fell into the moat, and others fell back on their own troops, who crowded in wild disorder along with the elephants towards the beach, that they might be picked up by the Phoenician ships. One hundred

and twenty elephants were captured, and the Carthaginian army, whose strength depended on these animals, was obliged once more to shut itself up in its fortresses. Eryx soon fell into the hands of the Romans (505), and the Carthaginians retained nothing in the island but Drepana and Lilybaeum. Carthage a second time offered peace; but the victory of Metellus and the exhaustion of the enemy gave to the more energetic party the upper hand in the senate.

Siege of Lilybaeum

Peace was declined, and it was resolved to prosecute in earnest the siege of the two Sicilian cities and for this purpose to send to sea once more a fleet of 200 sail. The siege of Lilybaeum, the first great and regular siege undertaken by Rome, and one of the most obstinate known in history, was opened by the Romans with an important success: they succeeded in introducing their fleet into the harbour of the city, and in blockading it on the side facing the sea. The besiegers, however, were not able to close the sea completely. In spite of their sunken vessels and their palisades, and in spite of the most careful vigilance, dexterous mariners, accurately acquainted with the shallows and channels, maintained with swift-sailing vessels a regular communication between the besieged in the city and the Carthaginian fleet in the harbour of Drepana. In fact after some time a Carthaginian squadron of 50 sail succeeded in running into the harbour, in throwing a large quantity of provisions and a reinforcement of 10,000 men into the city, and in returning unmolested. The besieging land army was not much more fortunate. They began with a regular attack; machines were erected, and in a short time the batteries had demolished six of the towers flanking the walls, so that the breach soon appeared to be practicable. But the able Carthaginian commander Himilco parried this assault by giving orders for the erection of a second wall behind the breach. An attempt of the Romans to enter into an understanding with the garrison was likewise

frustrated in proper time. And, after a first sally made for the purpose of burning the Roman set of machines had been repulsed, the Carthaginians succeeded during a stormy night in effecting their object. Upon this the Romans abandoned their preparations for an assault, and contented themselves with blockading the walls by land and water. The prospect of success in this way was indeed very remote, so long as they were unable wholly to preclude the entrance of the enemy's vessels; and the army of the besiegers was in a condition not much better than that of the besieged in the city, because their supplies were frequently cut off by the numerous and bold light cavalry of the Carthaginians, and their ranks began to be thinned by the diseases indigenous to that unwholesome region. The capture of Lilybaeum, however, was of sufficient importance to induce a patient perseverance in the laborious task, which promised to be crowned in time with the desired success.

Defeat of the Roman Fleet before Drepana Annihilation of the Roman Transport Fleet

But the new consul Publius Claudius considered the task of maintaining the investment of Lilybaeum too trifling: he preferred to change once more the plan of operations, and with his numerous newly-manned vessels suddenly to surprise the Carthaginian fleet which was waiting in the neighbouring harbour of Drepana. With the whole blockading squadron, which had taken on board volunteers from the legions, he started about midnight, and sailing in good order with his right wing by the shore, and his left in the open sea, he safely reached the harbour of Drepana at sunrise. Here the Phoenician admiral Atarbas was in command. Although surprised, he did not lose his presence of mind or allow himself to be shut up in the harbour, but as the Roman ships entered the harbour, which opens to the south in the form of a sickle, on the one side, he withdrew his vessels from it by the opposite side which was still free, and stationed them in line on the

outside. No other course remained to the Roman admiral but to recall as speedily as possible the foremost vessels from the harbour, and to make his arrangements for battle in like manner in front of it; but in consequence of this retrograde movement he lost the free choice of his position, and was obliged to accept battle in a line, which on the one hand was outflanked by that of the enemy to the extent of five ships—for there was not time fully to deploy the vessels as they issued from the harbour—and on the other hand was crowded so close on the shore that his vessels could neither retreat, nor sail behind the line so as to come to each other's aid. Not only was the battle lost before it began, but the Roman fleet was so completely ensnared that it fell almost wholly into the hands of the enemy. The consul indeed escaped, for he was the first who fled; but 93 Roman vessels, more than three-fourths of the blockading fleet, with the flower of the Roman legions on board, fell into the hands of the Phoenicians. It was the first and only great naval victory which the Carthaginians gained over the Romans. Lilybaeum was practically relieved on the side towards the sea, for though the remains of the Roman fleet returned to their former position, they were now much too weak seriously to blockade a harbour which had never been wholly closed, and they could only protect themselves from the attack of the Carthaginian ships with the assistance of the land army. That single imprudent act of an inexperienced and criminally thoughtless officer had thrown away all that had been with so much difficulty attained by the long and galling warfare around the fortress; and those war-vessels of the Romans which his presumption had not forfeited were shortly afterwards destroyed by the folly of his colleague.

The second consul, Lucius Junius Pullus, who had received the charge of lading at Syracuse the supplies destined for the army at Lilybaeum, and of convoying the transports along the south coast of the island with a second Roman fleet of 120 war-vessels, instead of keeping his ships together, committed the error of allowing the first convoy to depart alone and of only

following with the second. When the Carthaginian vice-admiral, Carthalo, who with a hundred select ships blockaded the Roman fleet in the port of Lilybaeum, received the intelligence, he proceeded to the south coast of the island, cut off the two Roman squadrons from each other by interposing between them, and compelled them to take shelter in two harbours of refuge on the inhospitable shores of Gela and Camarina. The attacks of the Carthaginians were indeed bravely repulsed by the Romans with the help of the shore batteries, which had for some time been erected there as everywhere along the coast; but, as the Romans could not hope to effect a junction and continue their voyage, Carthalo could leave the elements to finish his work. The next great storm, accordingly, completely annihilated the two Roman fleets in their wretched roadsteads, while the Phoenician admiral easily weathered it on the open sea with his unencumbered and well-managed ships. The Romans, however, succeeded in saving the greater part of the crews and cargoes (505).

Perplexity of the Romans

The Roman senate was in perplexity. The war had now reached its sixteenth year; and they seemed to be farther from their object in the sixteenth than in the first. In this war four large fleets had perished, three of them with Roman armies on board; a fourth select land army had been destroyed by the enemy in Libya; to say nothing of the numerous losses which had been occasioned by the minor naval engagements, and by the battles, and still more by the outpost warfare and the diseases, of Sicily.

What a multitude of human lives the war swept away may be seen from the fact, that the burgess-roll merely from 502 to 507 decreased by about 40,000, a sixth part of the entire number; and this does not include the losses of the allies, who bore the whole brunt of the war by sea, and, in addition, at least an equal proportion with the Romans of the warfare by

land. Of the financial loss it is not possible to form any conception; but both the direct damage sustained in ships and -materiel-, and the indirect injury through the paralyzing of trade, must have been enormous. An evil still greater than this was the exhaustion of all the methods by which they had sought to terminate the war. They had tried a landing in Africa with their forces fresh and in the full career of victory, and had totally failed. They had undertaken to storm Sicily town by town; the lesser places had fallen, but the two mighty naval strongholds of Lilybaeum and Drepana stood more invincible than ever. What were they to do? In fact, there was to some extent reason for despondency. The fathers of the city became faint-hearted; they allowed matters simply to take their course, knowing well that a war protracted without object or end was more pernicious for Italy than the straining of the last man and the last penny, but without that courage and confidence in the nation and in fortune, which could demand new sacrifices in addition to those that had already been lavished in vain. They dismissed the fleet; at the most they encouraged privateering, and with that view placed the war- vessels of the state at the disposal of captains who were ready to undertake a piratical warfare on their own account. The war by land was continued nominally, because they could not do otherwise; but they were content with observing the Sicilian fortresses and barely maintaining what they possessed,—measures which, in the absence of a fleet, required a very numerous army and extremely costly preparations.

Now, if ever, the time had come when Carthage was in a position to humble her mighty antagonist. She, too, of course must have felt some exhaustion of resources; but, in the circumstances, the Phoenician finances could not possibly be so disorganized as to prevent the Carthaginians from continuing the war—which cost them little beyond money—offensively and with energy. The Carthaginian government, however, was not energetic, but on the contrary weak and indolent, unless impelled to action by an easy and sure gain or by extreme necessity. Glad to be rid of the Roman fleet, they

foolishly allowed their own also to fall into decay, and began after the example of the enemy to confine their operations by land and sea to the petty warfare in and around Sicily.

Petty War in Sicily Hamilcar Barcas

Thus there ensued six years of uneventful warfare (506-511), the most inglorious in the history of this century for Rome, and inglorious also for the Carthaginian people. One man, however, among the latter thought and acted differently from his nation. Hamilcar, named Barak or Barcas (i. e. lightning), a young officer of much promise, took over the supreme command in Sicily in the year 507. His army, like every Carthaginian one, was defective in a trustworthy and experienced infantry; and the government, although it was perhaps in a position to create such an infantry and at any rate was bound to make the attempt, contented itself with passively looking on at its defeats or at most with nailing the defeated generals to the cross. Hamilcar resolved to take the matter into his own hands. He knew well that his mercenaries were as indifferent to Carthage as to Rome, and that he had to expect from his government not Phoenician or Libyan conscripts, but at the best a permission to save his country with his troops in his own way, provided it cost nothing. But he knew himself also, and he knew men. His mercenaries cared nothing for Carthage; but a true general is able to substitute his own person for his country in the affections of his soldiers; and such an one was this young commander. After he had accustomed his men to face the legionaries in the warfare of outposts before Drepana and Lilybaeum, he established himself with his force on Mount Ercte (Monte Pellegrino near Palermo), which commands like a fortress the neighbouring country; and making them settle there with their wives and children, levied contributions from the plains, while Phoenician privateers plundered the Italian coast as far as Cumae. He thus provided his people

with copious supplies without asking money from the Carthaginians, and, keeping up the communication with Drepana by sea, he threatened to surprise the important town of Panormus in his immediate vicinity. Not only were the Romans unable to expel him from his stronghold, but after the struggle had lasted awhile at Ercte, Hamilcar formed for himself another similar position at Eryx. This mountain, which bore half-way up the town of the same name and on its summit the temple of Aphrodite, had been hitherto in the hands of the Romans, who made it a basis for annoying Drepana. Hamilcar deprived them of the town and besieged the temple, while the Romans in turn blockaded him from the plain. The Celtic deserters from the Carthaginian army who were stationed by the Romans at the forlorn post of the temple—a reckless pack of marauders, who in the course of this siege plundered the temple and perpetrated every sort of outrage—defended the summit of the rock with desperate courage; but Hamilcar did not allow himself to be again dislodged from the town, and kept his communications constantly open by sea with the fleet and the garrison of Drepana. The war in Sicily seemed to be assuming a turn more and more unfavourable for the Romans. The Roman state was losing in that warfare its money and its soldiers, and the Roman generals their repute; it was already clear that no Roman general was a match for Hamilcar, and the time might be calculated when even the Carthaginian mercenary would be able boldly to measure himself against the legionary. The privateers of Hamilcar appeared with ever-increasing audacity on the Italian coast: already a praetor had been obliged to take the field against a band of Carthaginian rovers which had landed there. A few years more, and Hamilcar might with his fleet have accomplished from Sicily what his son subsequently undertook by the land route from Spain.

A Fleet Built by the Romans

Victory of Catulus at the Island Aegusa

The Roman senate, however, persevered in its inaction; the desponding party for once had the majority there. At length a number of sagacious and high-spirited men determined to save the state even without the interposition of the government, and to put an end to the ruinous Sicilian war. Successful corsair expeditions, if they had not raised the courage of the nation, had aroused energy and hope in a portion of the people; they had already joined together to form a squadron, burnt down Hippo on the African coast, and sustained a successful naval conflict with the Carthaginians off Panormus. By a private subscription—such as had been resorted to in Athens also, but not on so magnificent a scale—the wealthy and patriotic Romans equipped a war fleet, the nucleus of which was supplied by the ships built for privateering and the practised crews which they contained, and which altogether was far more carefully fitted out than had hitherto been the case in the shipbuilding of the state. This fact—that a number of citizens in the twenty-third year of a severe war voluntarily presented to the state two hundred ships of the line, manned by 60,000 sailors—stands perhaps unparalleled in the annals of history. The consul Gaius Lutatius Catulus, to whom fell the honour of conducting this fleet to the Sicilian seas, met there with almost no opposition: the two or three Carthaginian vessels, with which Hamilcar had made his corsair expeditions, disappeared before the superior force, and almost without resistance the Romans occupied the harbours of Lilybaeum and Drepana, the siege of which was now undertaken with energy by water and by land. Carthage was completely taken by surprise; even the two fortresses, weakly provisioned, were in great danger. A fleet was equipped at home; but with all the haste which they displayed, the year came to an end without any appearance of Carthaginian sails in the Sicilian waters; and when at length, in the spring of 513, the hurriedly-prepared vessels appeared in the offing of Drepana, they deserved the name of a fleet of transports rather than that of a war fleet ready for action. The Phoenicians had hoped to land undisturbed,

to disembark their stores, and to be able to take on board the troops requisite for a naval battle; but the Roman vessels intercepted them, and forced them, when about to sail from the island of Hieria (now Maritima) for Drepana, to accept battle near the little island of Aegusa (Favignana) (10 March, 513). The issue was not for a moment doubtful; the Roman fleet, well built and manned, and admirably handled by the able praetor Publius Valerius Falto (for a wound received before Drepana still confined the consul Catulus to his bed), defeated at the first blow the heavily laden and poorly and inadequately manned vessels of the enemy; fifty were sunk, and with seventy prizes the victors sailed into the port of Lilybaeum. The last great effort of the Roman patriots had borne fruit; it brought victory, and with victory peace.

Conclusion of Peace

The Carthaginians first crucified the unfortunate admiral—a step which did not alter the position of affairs—and then dispatched to the Sicilian general unlimited authority to conclude a peace. Hamilcar, who saw his heroic labours of seven years undone by the fault of others, magnanimously submitted to what was inevitable without on that account sacrificing either his military honour, or his nation, or his own designs. Sicily indeed could not be retained, seeing that the Romans had now command of the sea; and it was not to be expected that the Carthaginian government, which had vainly endeavoured to fill its empty treasury by a state-loan in Egypt, would make even any further attempt to vanquish the Roman fleet. He therefore surrendered Sicily. The independence and integrity of the Carthaginian state and territory, on the other hand, were expressly recognized in the usual form; Rome binding herself not to enter into a separate alliance with the confederates of Carthage, and Carthage engaging not to enter into separate alliance with the confederates of Rome,—that is, with their respective subject and dependent communities; neither was to commence war, or

exercise rights of sovereignty, or undertake recruiting within the other's dominions.(8) The secondary stipulations included, of course, the gratuitous return of the Roman prisoners of war and the payment of a war contribution; but the demand of Catulus that Hamilcar should deliver up his arms and the Roman deserters was resolutely refused by the Carthaginian, and with success. Catulus desisted from his second request, and allowed the Phoenicians a free departure from Sicily for the moderate ransom of 18 - denarii- (12 shillings) per man.

If the continuance of the war appeared to the Carthaginians undesirable, they had reason to be satisfied with these terms. It may be that the natural wish to bring to Rome peace as well as triumph, the recollection of Regulus and of the many vicissitudes of the war, the consideration that such a patriotic effort as had at last decided the victory could neither be enjoined nor repeated, perhaps even the personal character of Hamilcar, concurred in influencing the Roman general to yield so much as he did. It is certain that there was dissatisfaction with the proposals of peace at Rome, and the assembly of the people, doubtless under the influence of the patriots who had accomplished the equipment of the last fleet, at first refused to ratify it. We do not know with what view this was done, and therefore we are unable to decide whether the opponents of the proposed peace in reality rejected it merely for the purpose of exacting some further concessions from the enemy, or whether, remembering that Regulus had summoned Carthage to surrender her political independence, they were resolved to continue the war till they had gained that end—so that it was no longer a question of peace, but a question of conquest. If the refusal took place with the former view, it was presumably mistaken; compared with the gain of Sicily every other concession was of little moment, and looking to the determination and the inventive genius of Hamilcar, it was very rash to stake the securing of the principal gain on the attainment of secondary objects. If on the other hand the party opposed to the peace regarded the complete political

annihilation of Carthage as the only end of the struggle that would satisfy the Roman community, it showed political tact and anticipation of coming events; but whether the resources of Rome would have sufficed to renew the expedition of Regulus and to follow it up as far as might be required not merely to break the courage but to breach the walls of the mighty Phoenician city, is another question, to which no one now can venture to give either an affirmative or a negative answer. At last the settlement of the momentous question was entrusted to a commission which was to decide it upon the spot in Sicily. It confirmed the proposal in substance; only, the sum to be paid by Carthage for the costs of the war was raised to 3200 talents (790,000 pounds), a third of which was to be paid down at once, and the remainder in ten annual instalments. The definitive treaty included, in addition to the surrender of Sicily, the cession also of the islands between Sicily and Italy, but this can only be regarded as an alteration of detail made on revision; for it is self-evident that Carthage, when surrendering Sicily, could hardly desire to retain the island of Lipara which had long been occupied by the Roman fleet, and the suspicion, that an ambiguous stipulation was intentionally introduced into the treaty with reference to Sardinia and Corsica, is unworthy and improbable.

Thus at length they came to terms. The unconquered general of a vanquished nation descended from the mountains which he had defended so long, and delivered to the new masters of the island the fortresses which the Phoenicians had held in their uninterrupted possession for at least four hundred years, and from whose walls all assaults of the Hellenes had recoiled unsuccessful. The west had peace (513).

Remarks on the Roman Conduct of the War

Let us pause for a moment over the conflict, which extended the dominion of Rome beyond the circling sea that encloses the peninsula. It

was one of the longest and most severe which the Romans ever waged; many of the soldiers who fought in the decisive battle were unborn when the contest began. Nevertheless, despite the incomparably noble incidents which it now and again presented, we can scarcely name any war which the Romans managed so wretchedly and with such vacillation, both in a military and in a political point of view. It could hardly be otherwise. The contest occurred amidst a transition in their political system—the transition from an Italian policy, which no longer sufficed, to the policy befitting a great state, which had not yet been found. The Roman senate and the Roman military system were excellently organized for a purely Italian policy. The wars which such a policy provoked were purely continental wars, and always rested on the capital situated in the middle of the peninsula as the ultimate basis of operations, and proximately on the chain of Roman fortresses. The problems to be solved were mainly tactical, not strategical; marches and operations occupied but a subordinate, battles held the first place; fortress warfare was in its infancy; the sea and naval war hardly crossed men's thoughts even incidentally. We can easily understand—especially if we bear in mind that in the battles of that period, where the naked weapon predominated, it was really the hand- to-hand encounter that proved decisive—how a deliberative assembly might direct such operations, and how any one who just was burgomaster might command the troops. All this was changed in a moment. The field of battle stretched away to an incalculable distance, to the unknown regions of another continent, and beyond a broad expanse of sea; every wave was a highway for the enemy; from any harbour he might be expected to issue for his onward march. The siege of strong places, particularly maritime fortresses, in which the first tacticians of Greece had failed, had now for the first time to be attempted by the Romans. A land army and the system of a civic militia no longer sufficed. It was essential to create a fleet, and, what was more difficult, to employ it; it was essential to find out the true points of attack and defence,

to combine and to direct masses, to calculate expeditions extending over long periods and great distances, and to adjust their co-operation; if these things were not attended to, even an enemy far weaker in the tactics of the field might easily vanquish a stronger opponent. Is there any wonder that the reins of government in such an exigency slipped from the hands of a deliberative assembly and of commanding burgomasters?

It was plain, that at the beginning of the war the Romans did not know what they were undertaking; it was only during the course of the struggle that the inadequacies of their system, one after another, forced themselves on their notice—the want of a naval power, the lack of fixed military leadership, the insufficiency of their generals, the total uselessness of their admirals. In part these evils were remedied by energy and good fortune; as was the case with the want of a fleet. That mighty creation, however, was but a grand makeshift, and always remained so. A Roman fleet was formed, but it was rendered national only in name, and was always treated with the affection of a stepmother; the naval service continued to be little esteemed in comparison with the high honour of serving in the legions; the naval officers were in great part Italian Greeks; the crews were composed of subjects or even of slaves and outcasts. The Italian farmer was at all times distrustful of the sea; and of the three things in his life which Cato regretted one was, that he had travelled by sea when he might have gone by land. This result arose partly out of the nature of the case, for the vessels were oared galleys and the service of the oar can scarcely be ennobled; but the Romans might at least have formed separate legions of marines and taken steps towards the rearing of a class of Roman naval officers. Taking advantage of the impulse of the nation, they should have made it their aim gradually to establish a naval force important not only in numbers but in sailing power and practice, and for such a purpose they had a valuable nucleus in the privateering that was developed during the long war; but nothing of the sort was done by the government. Nevertheless the Roman

fleet with its unwieldy grandeur was the noblest creation of genius in this war, and, as at its beginning, so at its close it was the fleet that turned the scale in favour of Rome.

Far more difficult to be overcome were those deficiencies, which could not be remedied without an alteration of the constitution. That the senate, according to the strength of the contending parties within it, should leap from one system of conducting the war to another, and perpetrate errors so incredible as the evacuation of Clupea and the repeated dismantling of the fleet; that the general of one year should lay siege to Sicilian towns, and his successor, instead of compelling them to surrender, should pillage the African coast or think proper to risk a naval battle; and that at any rate the supreme command should by law change hands every year—all these anomalies could not be done away without stirring constitutional questions the solution of which was more difficult than the building of a fleet, but as little could their retention be reconciled with the requirements of such a war. Above all, moreover, neither the senate nor the generals could at once adapt themselves to the new mode of conducting war. The campaign of Regulus is an instance how singularly they adhered to the idea that superiority in tactics decides everything. There are few generals who have had such successes thrown as it were into their lap by fortune: in the year 498 he stood precisely where Scipio stood fifty years later, with this difference, that he had no Hannibal and no experienced army arrayed against him. But the senate withdrew half the army, as soon as they had satisfied themselves of the tactical superiority of the Romans; in blind reliance on that superiority the general remained where he was, to be beaten in strategy, and accepted battle when it was offered to him, to be beaten also in tactics. This was the more remarkable, as Regulus was an able and experienced general of his kind. The rustic method of warfare, by which Etruria and Samnium had been won, was the very cause of the defeat in the plain of Tunes. The principle, quite right in its own province, that every true

burgher is fit for a general, was no longer applicable; the new system of war demanded the employment of generals who had a military training and a military eye, and every burgomaster had not those qualities. The arrangement was however still worse, by which the chief command of the fleet was treated as an appanage to the chief command of the land army, and any one who chanced to be president of the city thought himself able to act the part not of general only, but of admiral too. The worst disasters which Rome suffered in this war were due not to the storms and still less to the Carthaginians, but to the presumptuous folly of its own citizen-admirals.

Rome was victorious at last. But her acquiescence in a gain far less than had at first been demanded and indeed offered, as well as the energetic opposition which the peace encountered in Rome, very clearly indicate the indecisive and superficial character of the victory and of the peace; and if Rome was the victor, she was indebted for her victory in part no doubt to the favour of the gods and to the energy of her citizens, but still more to the errors of her enemies in the conduct of the war—errors far surpassing even her own.

Notes for Chapter II

1. II. V. Campanian Hellenism

2. II. VII. Submission of Lower Italy

3. The Mamertines entered quite into the same position towards Rome as the Italian communities, bound themselves to furnish ships (Cic. Verr. v. 19, 50), and, as the coins show, did not possess the right of coining silver.

4. II. VII. Submission of Lower Italy

5. II. VII. Last Struggles in Italy

6. The statement, that the military talent of Xanthippus was the primary means of saving Carthage, is probably coloured; the officers of Carthage can hardly have waited for foreigners to teach them that the light African cavalry could be more appropriately employed on the plain than among hills and forests. From such stories, the echo of the talk of Greek guardrooms, even Polybius is not free. The statement that Xanthippus was put to death by the Carthaginians after the victory, is a fiction; he departed voluntarily, perhaps to enter the Egyptian service.

7. Nothing further is known with certainty as to the end of Regulus; even his mission to Rome—which is sometimes placed in 503, sometimes in 513—is very ill attested. The later Romans, who sought in the fortunes and misfortunes of their forefathers mere materials for school themes, made Regulus the prototype of heroic misfortune as they made Fabricius the prototype of heroic poverty, and put into circulation in his name a number of anecdotes invented by way of due accompaniment—incongruous embellishments, contrasting ill with serious and sober history.

8. The statement (Zon. viii. 17) that the Carthaginians had to promise that they would not send any vessels of war into the territories of the Roman symmarchy—and therefore not to Syracuse, perhaps even not to Massilia—sounds credible enough; but the text of the treaty says nothing of it (Polyb. iii. 27).

CHAPTER III

The Extension of Italy to Its Natural Boundaries

Natural Boundaries of Italy

The Italian confederacy as it emerged from the crises of the fifth century—or, in other words, the State of Italy—united the various civic and cantonal communities from the Apennines to the Ionian Sea under the hegemony of Rome. But before the close of the fifth century these limits were already overpassed in both directions, and Italian communities belonging to the confederacy had sprung up beyond the Apennines and beyond the sea. In the north the republic, in revenge for ancient and recent wrongs, had already in 471 annihilated the Celtic Senones; in the south, through the great war from 490 to 513, it had dislodged the Phoenicians from the island of Sicily. In the north there belonged to the combination headed by Rome the Latin town of Ariminum (besides the burgess-settlement of Sena), in the south the community of the Mamertines in Messina, and as both were nationally of Italian origin, so both shared in the common rights and obligations of the Italian confederacy. It was probably the pressure of events at the moment rather than any comprehensive political calculation, that gave rise to these extensions of the confederacy; but it was natural that now at least, after the great successes achieved against Carthage, new and wider views of policy should dawn upon the Roman government—views which even otherwise were obviously enough

suggested by the physical features of the peninsula. Alike in a political and in a military point of view Rome was justified in shifting its northern boundary from the low and easily crossed Apennines to the mighty mountain-wall that separates northern from southern Europe, the Alps, and in combining with the sovereignty of Italy the sovereignty of the seas and islands on the west and east of the peninsula; and now, when by the expulsion of the Phoenicians from Sicily the most difficult portion of the task had been already achieved, various circumstances united to facilitate its completion by the Roman government.

Sicily a Dependency of Italy

In the western sea which was of far more account for Italy than the Adriatic, the most important position, the large and fertile island of Sicily copiously furnished with harbours, had been by the peace with Carthage transferred for the most part into the possession of the Romans. King Hiero of Syracuse indeed, who during the last twenty-two years of the war had adhered with unshaken steadfastness to the Roman alliance, might have had a fair claim to an extension of territory; but, if Roman policy had begun the war with the resolution of tolerating only secondary states in the island, the views of the Romans at its close decidedly tended towards the seizure of Sicily for themselves. Hiero might be content that his territory—namely, in addition to the immediate district of Syracuse, the domains of Elorus, Neetum, Acrae, Leontini, Megara, and Tauromenium—and his independence in relation to foreign powers, were (for want of any pretext to curtail them) left to him in their former compass; he might well be content that the war between the two great powers had not ended in the complete overthrow of the one or of the other, and that there consequently still remained at least a possibility of subsistence for the intermediate power in Sicily. In the remaining and by far the larger portion of Sicily, at Panormus,

Lilybaeum, Agrigentum, Messana, the Romans effected a permanent settlement.

Sardinia Roman

The Libyan Insurrection

Corsica

They only regretted that the possession of that beautiful island was not enough to convert the western waters into a Roman inland sea, so long as Sardinia still remained Carthaginian. Soon, however, after the conclusion of the peace there appeared an unexpected prospect of wresting from the Carthaginians this second island of the Mediterranean. In Africa, immediately after peace had been concluded with Rome, the mercenaries and the subjects of the Phoenicians joined in a common revolt. The blame of the dangerous insurrection was mainly chargeable on the Carthaginian government. In the last years of the war Hamilcar had not been able to pay his Sicilian mercenaries as formerly from his own resources, and he had vainly requested that money might be sent to him from home; he might, he was told, send his forces to Africa to be paid off. He obeyed; but as he knew the men, he prudently embarked them in small subdivisions, that the authorities might pay them off by troops or might at least separate them, and thereupon he laid down his command. But all his precautions were thwarted not so much by the emptiness of the exchequer, as by the collegiate method of transacting business and the folly of the bureaucracy. They waited till the whole army was once more united in Libya, and then endeavoured to curtail the pay promised to the men. Of course a mutiny broke out among the troops, and the hesitating and cowardly demeanour of the authorities showed the mutineers what they might dare. Most of them were natives of the districts ruled by, or dependent on, Carthage; they knew the feelings which had been provoked throughout these districts by the slaughter decreed by the government after the expedition of Regulus(1) and

by the fearful pressure of taxation, and they knew also the character of their government, which never kept faith and never pardoned; they were well aware of what awaited them, should they disperse to their homes with pay exacted by mutiny. The Carthaginians had for long been digging the mine, and they now themselves supplied the men who could not but explode it. Like wildfire the revolution spread from garrison to garrison, from village to village; the Libyan women contributed their ornaments to pay the wages of the mercenaries; a number of Carthaginian citizens, amongst whom were some of the most distinguished officers of the Sicilian army, became the victims of the infuriated multitude; Carthage was already besieged on two sides, and the Carthaginian army marching out of the city was totally routed in consequence of the blundering of its unskilful leader.

When the Romans thus saw their hated and still dreaded foe involved in a greater danger than any ever brought on that foe by the Roman wars, they began more and more to regret the conclusion of the peace of 513—which, if it was not in reality precipitate, now at least appeared so to all—and to forget how exhausted at that time their own state had been and how powerful had then been the standing of their Carthaginian rival. Shame indeed forbade their entering into communication openly with the Carthaginian rebels; in fact, they gave an exceptional permission to the Carthaginians to levy recruits for this war in Italy, and prohibited Italian mariners from dealing with the Libyans. But it may be doubted whether the government of Rome was very earnest in these acts of friendly alliance; for, in spite of them, the dealings between the African insurgents and the Roman mariners continued, and when Hamilcar, whom the extremity of the peril had recalled to the command of the Carthaginian army, seized and imprisoned a number of Italian captains concerned in these dealings, the senate interceded for them with the Carthaginian government and procured their release. The insurgents themselves appeared to recognize in the Romans their natural allies. The garrisons in Sardinia, which like the rest of

the Carthaginian army had declared in favour of the insurgents, offered the possession of the island to the Romans, when they saw that they were unable to hold it against the attacks of the un-conquered mountaineers of the interior (about 515); and similar offers came even from the community of Utica, which had likewise taken part in the revolt and was now hard pressed by the arms of Hamilcar. The latter suggestion was declined by the Romans, chiefly doubtless because its acceptance would have carried them beyond the natural boundaries of Italy and therefore farther than the Roman government was then disposed to go; on the other hand they entertained the offers of the Sardinian mutineers, and took over from them the portion of Sardinia which had been in the hands of the Carthaginians (516). In this instance, even more than in the affair of the Mamertines, the Romans were justly liable to the reproach that the great and victorious burgesses had not disdained to fraternize and share the spoil with a venal pack of mercenaries, and had not sufficient self-denial to prefer the course enjoined by justice and by honour to the gain of the moment. The Carthaginians, whose troubles reached their height just about the period of the occupation of Sardinia, were silent for the time being as to the unwarrantable violence; but, after this peril had been, contrary to the expectations and probably contrary to the hopes of the Romans, averted by the genius of Hamilcar, and Carthage had been reinstated to her full sovereignty in Africa (517), Carthaginian envoys immediately appeared at Rome to require the restitution of Sardinia. But the Romans, not inclined to restore their booty, replied with frivolous or at any rate irrelevant complaints as to all sorts of injuries which they alleged that the Carthaginians had inflicted on the Roman traders, and hastened to declare war;(2) the principle, that in politics power is the measure of right, appeared in its naked effrontery. Just resentment urged the Carthaginians to accept that offer of war; had Catulus insisted upon the cession of Sardinia five years before, the war would probably have pursued its course. But now, when both islands were lost,

when Libya was in a ferment, and when the state was weakened to the utmost by its twenty-four years' struggle with Rome and the dreadful civil war that had raged for nearly five years more, they were obliged to submit. It was only after repeated entreaties, and after the Phoenicians had bound themselves to pay to Rome a compensation of 1200 talents (292,000 pounds) for the warlike preparations which had been wantonly occasioned, that the Romans reluctantly desisted from war. Thus the Romans acquired Sardinia almost without a struggle; to which they added Corsica, the ancient possession of the Etruscans, where perhaps some detached Roman garrisons still remained over from the last war.⁽³⁾ In Sardinia, however, and still more in the rugged Corsica, the Romans restricted themselves, just as the Phoenicians had done, to an occupation of the coasts. With the natives in the interior they were continually engaged in war or, to speak more correctly, in hunting them like wild beasts; they baited them with dogs, and carried what they captured to the slave market; but they undertook no real conquest. They had occupied the islands not on their own account, but for the security of Italy. Now that the confederacy possessed the three large islands, it might call the Tyrrhene Sea its own.

Method of Administration in the Transmarine Possessions Provincial Praetors

The acquisition of the islands in the western sea of Italy introduced into the state administration of Rome a distinction, which to all appearance originated in mere considerations of convenience and almost accidentally, but nevertheless came to be of the deepest importance for all time following—the distinction between the continental and transmarine forms of administration, or to use the appellations afterwards current, the distinction between Italy and the provinces. Hitherto the two chief magistrates of the community, the consuls, had not had any legally defined sphere of action; on the contrary their official field extended as far as the Roman government

itself. Of course, however, in practice they made a division of functions between them, and of course also they were bound in every particular department of their duties by the enactments existing in regard to it; the jurisdiction, for instance, over Roman citizens had in every case to be left to the praetor, and in the Latin and other autonomous communities the existing treaties had to be respected. The four quaestors who had been since 487 distributed throughout Italy did not, formally at least, restrict the consular authority, for in Italy, just as in Rome, they were regarded simply as auxiliary magistrates dependent on the consuls. This mode of administration appears to have been at first extended also to the territories taken from Carthage, and Sicily and Sardinia to have been governed for some years by quaestors under the superintendence of the consuls; but the Romans must very soon have become practically convinced that it was indispensable to have superior magistrates specially appointed for the transmarine regions. As they had been obliged to abandon the concentration of the Roman jurisdiction in the person of the praetor as the community became enlarged, and to send to the more remote districts deputy judges,(4) so now (527) the concentration of administrative and military power in the person of the consuls had to be abandoned. For each of the new transmarine regions—viz. Sicily, and Sardinia with Corsica annexed to it—there was appointed a special auxiliary consul, who was in rank and title inferior to the consul and equal to the praetor, but otherwise was—like the consul in earlier times before the praetorship was instituted—in his own sphere of action at once commander-in-chief, chief magistrate, and supreme judge. The direct administration of finance alone was withheld from these new chief magistrates, as from the first it had been withheld from the consuls;(5) one or more quaestors were assigned to them, who were in every way indeed subordinate to them, and were their assistants in the administration of justice and in command, but yet had specially to manage the finances and to

render account of their administration to the senate after having laid down their office.

Organization of the Provinces

-Commercium-

Property

Autonomy

This difference in the supreme administrative power was the essential distinction between the transmarine and continental possessions. The principles on which Rome had organized the dependent lands in Italy, were in great part transferred also to the extra-Italian possessions. As a matter of course, these communities without exception lost independence in their external relations. As to internal intercourse, no provincial could thenceforth acquire valid property in the province out of the bounds of his own community, or perhaps even conclude a valid marriage. On the other hand the Roman government allowed, at least to the Sicilian towns which they had not to fear, a certain federative organization, and probably even general Siceliot diets with a harmless right of petition and complaint.(6) In monetary arrangements it was not indeed practicable at once to declare the Roman currency to be the only valid tender in the islands; but it seems from the first to have obtained legal circulation, and in like manner, at least as a rule, the right of coining in precious metals seems to have been withdrawn from the cities in Roman Sicily.(7) On the other hand not only was the landed property in all Sicily left untouched—the principle, that the land out of Italy fell by right of war to the Romans as private property, was still unknown to this century—but all the Sicilian and Sardinian communities retained self-administration and some sort of autonomy, which indeed was not assured to them in a way legally binding, but was provisionally allowed. If the democratic constitutions of the communities were everywhere set aside, and in every city the power was transferred to the hands of a council

representing the civic aristocracy; and if moreover the Sicilian communities, at least, were required to institute a general valuation corresponding to the Roman census every fifth year; both these measures were only the necessary sequel of subordination to the Roman senate, which in reality could not govern with Greek —ecclesiae—, or without a view of the financial and military resources of each dependent community; in the various districts of Italy also the same course was in both respects pursued.

Tenths and Customs Communities Exempted

But, side by side with this essential equality of rights, there was established a distinction, very important in its effects, between the Italian communities on the one hand and the transmarine communities on the other. While the treaties concluded with the Italian towns imposed on them a fixed contingent for the army or the fleet of the Romans, such a contingent was not imposed on the transmarine communities, with which no binding pacton was entered into at all, but they lost the right of arms,(8) with the single exception that they might be employed on the summons of the Roman praetor for the defence of their own homes. The Roman government regularly sent Italian troops, of the strength which it had fixed, to the islands; in return for this, a tenth of the field-produce of Sicily, and a toll of 5 per cent on the value of all articles of commerce exported from or imported into the Sicilian harbours, were paid to Rome. To the islanders these taxes were nothing new. The imposts levied by the Persian great-king and the Carthaginian republic were substantially of the same character with that tenth; and in Greece also such a taxation had for long been, after Oriental precedent, associated with the -tyrannis- and often also with a hegemony. The Sicilians had in this way long paid their tenth either to Syracuse or to Carthage, and had been wont to levy customs-dues no longer

on their own account. "We received," says Cicero, "the Sicilian communities into our clientship and protection in such a way that they continued under the same law under which they had lived before, and obeyed the Roman community under relations similar to those in which they had obeyed their own rulers." It is fair that this should not be forgotten; but to continue an injustice is to commit injustice. Viewed in relation not to the subjects, who merely changed masters, but to their new rulers, the abandonment of the equally wise and magnanimous principle of Roman statesmanship—viz., that Rome should accept from her subjects simply military aid, and never pecuniary compensation in lieu of it—was of a fatal importance, in comparison with which all alleviations in the rates and the mode of levying them, as well as all exceptions in detail, were as nothing. Such exceptions were, no doubt, made in various cases. Messina was directly admitted to the confederacy of the -togati-, and, like the Greek cities in Italy, furnished its contingent to the Roman fleet. A number of other cities, while not admitted to the Italian military confederacy, yet received in addition to other favours immunity from tribute and tenths, so that their position in a financial point of view was even more favourable than that of the Italian communities. These were Segesta and Halicyae, which were the first towns of Carthaginian Sicily that joined the Roman alliance; Centuripa, an inland town in the east of the island, which was destined to keep a watch over the Syracusan territory in its neighbourhood; (9) Halaesa on the northern coast, which was the first of the free Greek towns to join the Romans, and above all Panormus, hitherto the capital of Carthaginian, and now destined to become that of Roman, Sicily. The Romans thus applied to Sicily the ancient principle of their policy, that of subdividing the dependent communities into carefully graduated classes with different privileges; but, on the average, the Sardinian and Sicilian communities were not in the position of allies but in the manifest relation of tributary subjection.

Italy and the Provinces

It is true that this thorough distinction between the communities that furnished contingents and those that paid tribute, or at least did not furnish contingents, was not in law necessarily coincident with the distinction between Italy and the provinces. Transmarine communities might belong to the Italian confederacy; the Mamertines for example were substantially on a level with the Italian Sabellians, and there existed no legal obstacle to the establishment even of new communities with Latin rights in Sicily and Sardinia any more than in the country beyond the Apennines. Communities on the mainland might be deprived of the right of bearing arms and become tributary; this arrangement was already the case with certain Celtic districts on the Po, and was introduced to a considerable extent in after times. But, in reality, the communities that furnished contingents just as decidedly preponderated on the mainland as the tributary communities in the islands; and while Italian settlements were not contemplated on the part of the Romans either in Sicily with its Hellenic civilization or in Sardinia, the Roman government had beyond doubt already determined not only to subdue the barbarian land between the Apennines and the Alps, but also, as their conquests advanced, to establish in it new communities of Italic origin and Italic rights. Thus their transmarine possessions were not merely placed on the footing of land held by subjects, but were destined to remain on that footing in all time to come; whereas the official field recently marked off by law for the consuls, or, which is the same thing, the continental territory of the Romans, was to become a new and more extended Italy, which should reach from the Alps to the Ionian sea. In the first instance, indeed, this essentially geographical conception of Italy was not altogether coincident with the political conception of the Italian confederacy; it was partly wider, partly narrower. But even now the Romans regarded the whole space up to the boundary of the Alps as -Italia-, that is, as the present or future domain of the -togati- and, just as was and still is the case in North America, the

boundary was provisionally marked off in a geographical sense, that the field might be gradually occupied in a political sense also with the advance of colonization.(10)

Events on the Adriatic Coasts

In the Adriatic sea, at the entrance of which the important and long-contemplated colony of Brundisium had at length been founded before the close of the war with Carthage (510), the supremacy of Rome was from the very first decided. In the western sea Rome had been obliged to rid herself of rivals; in the eastern, the quarrels of the Hellenes themselves prevented any of the states in the Grecian peninsula from acquiring or retaining power. The most considerable of them, that of Macedonia, had through the influence of Egypt been dislodged from the upper Adriatic by the Aetolians and from the Peloponnesus by the Achaeans, and was scarcely even in a position to defend its northern frontier against the barbarians. How concerned the Romans were to keep down Macedonia and its natural ally, the king of Syria, and how closely they associated themselves with the Egyptian policy directed to that object, is shown by the remarkable offer which after the end of the war with Carthage they made to king Ptolemy III. Euergetes, to support him in the war which he waged with Seleucus II. Callinicus of Syria (who reigned 507-529) on account of the murder of Berenice, and in which Macedonia had probably taken part with the latter. Generally, the relations of Rome with the Hellenistic states became closer; the senate already negotiated even with Syria, and interceded with the Seleucus just mentioned on behalf of the Ilrians with whom the Romans claimed affinity.

For a direct interference of the Romans in the affairs of the eastern powers there was no immediate need. The Achaean league, the prosperity of which was arrested by the narrow-minded coterie-policy of Aratus, the

Aetolian republic of military adventurers, and the decayed Macedonian empire kept each other in check; and the Romans of that time avoided rather than sought transmarine acquisitions. When the Acarnanians, appealing to the ground that they alone of all the Greeks had taken no part in the destruction of Ilion, besought the descendants of Aeneas to help them against the Aetolians, the senate did indeed attempt a diplomatic mediation; but when the Aetolians returned an answer drawn up in their own saucy fashion, the antiquarian interest of the Roman senators by no means provoked them into undertaking a war by which they would have freed the Macedonians from their hereditary foe (about 515).

Illyrian Piracy

Expedition against Scodra

Even the evil of piracy, which was naturally in such a state of matters the only trade that flourished on the Adriatic coast, and from which the commerce of Italy suffered greatly, was submitted to by the Romans with an undue measure of patience, —a patience intimately connected with their radical aversion to maritime war and their wretched marine. But at length it became too flagrant. Favoured by Macedonia, which no longer found occasion to continue its old function of protecting Hellenic commerce from the corsairs of the Adriatic for the benefit of its foes, the rulers of Scodra had induced the Illyrian tribes—nearly corresponding to the Dalmatians, Montenegrins, and northern Albanians of the present day—to unite for joint piratical expeditions on a great scale.

With whole squadrons of their swift-sailing biremes, the veil-known "Liburnian" cutters, the Illyrians waged war by sea and along the coasts against all and sundry. The Greek settlements in these regions, the island-towns of Issa (Lissa) and Pharos (Lesina), the important ports of Epidamnus (Durazzo) and Apollonia (to the north of Avlona on the Aous) of course

suffered especially, and were repeatedly beleaguered by the barbarians. Farther to the south, moreover, the corsairs established themselves in Phoenice, the most flourishing town of Epirus; partly voluntarily, partly by constraint, the Epirots and Acarnanians entered into an unnatural symmachy with the foreign freebooters; the coast was insecure even as far as Elis and Messene. In vain the Aetolians and Achaeans collected what ships they had, with a view to check the evil: in a battle on the open sea they were beaten by the pirates and their Greek allies; the corsair fleet was able at length to take possession even of the rich and important island of Corcyra (Corfu). The complaints of Italian mariners, the appeals for aid of their old allies the Apolloniates, and the urgent entreaties of the besieged Issaeans at length compelled the Roman senate to send at least ambassadors to Scodra. The brothers Gaius and Lucius Coruncanius went thither to demand that king Agron should put an end to the disorder. The king answered that according to the national law of the Illyrians piracy was a lawful trade, and that the government had no right to put a stop to privateering; whereupon Lucius Coruncanius replied, that in that case Rome would make it her business to introduce a better law among the Illyrians. For this certainly not very diplomatic reply one of the envoys was—by the king's orders, as the Romans asserted—murdered on the way home, and the surrender of the murderers was refused. The senate had now no choice left to it. In the spring of 525 a fleet of 200 ships of the line, with a landing- army on board, appeared off Apollonia; the corsair-vessels were scattered before the former, while the latter demolished the piratic strongholds; the queen Teuta, who after the death of her husband Agron conducted the government during the minority of her son Pinnes, besieged in her last retreat, was obliged to accept the conditions dictated by Rome. The rulers of Scodra were again confined both on the north and south to the narrow limits of their original domain, and had to quit their hold not only on all the Greek towns, but also on the Ardiaei in Dalmatia, the Parthini around Epidamnus, and the

Atintanes in northern Epirus; no Illyrian vessel of war at all, and not more than two unarmed vessels in company, were to be allowed in future to sail to the south of Lissus (Alessio, between Scutari and Durazzo). The maritime supremacy of Rome in the Adriatic was asserted, in the most praiseworthy and durable way, by the rapid and energetic suppression of the evil of piracy.

Acquisition of Territory in Illyria Impression in Greece and Macedonia

But the Romans went further, and established themselves on the east coast. The Illyrians of Scodra were rendered tributary to Rome; Demetrius of Pharos, who had passed over from the service of Teuta to that of the Romans, was installed, as a dependent dynast and ally of Rome, over the islands and coasts of Dalmatia; the Greek cities Corcyra, Epidamnus, Apollonia, and the communities of the Atintanes and Parthini were attached to Rome under mild forms of symmarchy. These acquisitions on the east coast of the Adriatic were not sufficiently extensive to require the appointment of a special auxiliary consul; governors of subordinate rank appear to have been sent to Corcyra and perhaps also to other places, and the superintendence of these possessions seems to have been entrusted to the chief magistrates who administered Italy.⁽¹¹⁾ Thus the most important maritime stations in the Adriatic became subject, like Sicily and Sardinia, to the authority of Rome. What other result was to be expected? Rome was in want of a good naval station in the upper Adriatic—a want which was not supplied by her possessions on the Italian shore; her new allies, especially the Greek commercial towns, saw in the Romans their deliverers, and doubtless did what they could permanently to secure so powerful a protection; in Greece itself no one was in a position to oppose the movement; on the contrary, the praise of the liberators was on every one's lips. It may be a question whether there was greater rejoicing or shame in

Hellas, when, in place of the ten ships of the line of the Achaean league, the most warlike power in Greece, two hundred sail belonging to the barbarians now entered her harbours and accomplished at a blow the task, which properly belonged to the Greeks, but in which they had failed so miserably. But if the Greeks were ashamed that the salvation of their oppressed countrymen had to come from abroad, they accepted the deliverance at least with a good grace; they did not fail to receive the Romans solemnly into the fellowship of the Hellenic nation by admitting them to the Isthmian games and the Eleusinian mysteries.

Macedonia was silent; it was not in a condition to protest in arms, and disdained to do so in words. No resistance was encountered. Nevertheless Rome, by seizing the keys to her neighbour's house, had converted that neighbour into an adversary who, should he recover his power, or should a favourable opportunity occur, might be expected to know how to break the silence. Had the energetic and prudent king Antigonus Doson lived longer, he would have doubtless taken up the gauntlet which the Romans had flung down, for, when some years afterwards the dynast Demetrius of Pharos withdrew from the hegemony of Rome, prosecuted piracy contrary to the treaty in concert with the Istrians, and subdued the Atintanes whom the Romans had declared independent, Antigonus formed an alliance with him, and the troops of Demetrius fought along with the army of Antigonus at the battle of Sellasia (532). But Antigonus died (in the winter 533-4); and his successor Philip, still a boy, allowed the Consul Lucius Aemilius Paullus to attack the ally of Macedonia, to destroy his capital, and to drive him from his kingdom into exile (535).

Northern Italy

The mainland of Italy proper, south of the Apennines, enjoyed profound peace after the fall of Tarentum: the six days' war with Falerii (513) was

little more than an interlude. But towards the north, between the territory of the confederacy and the natural boundary of Italy—the chain of the Alps—there still extended a wide region which was not subject to the Romans. What was regarded as the boundary of Italy on the Adriatic coast was the river Aesis immediately above Ancona. Beyond this boundary the adjacent properly Gallic territory as far as, and including, Ravenna belonged in a similar way as did Italy proper to the Roman alliance; the Senones, who had formerly settled there, were extirpated in the war of 471-2,(12) and the several townships were connected with Rome, either as burgess-colonies, like Sena Gallica,(13) or as allied towns, whether with Latin rights, like Ariminum,(14) or with Italian rights, like Ravenna. On the wide region beyond Ravenna as far as the Alps non-Italian peoples were settled. South of the Po the strong Celtic tribe of the Boii still held its ground (from Parma to Bologna); alongside of them, the Lingones on the east and the Anares on the west (in the region of Parma)—two smaller Celtic cantons presumably clients of the Boii—peopled the plain. At the western end of the plain the Ligurians began, who, mingled with isolated Celtic tribes, and settled on the Apennines from above Arezzo and Pisa westward, occupied the region of the sources of the Po. The eastern portion of the plain north of the Po, nearly from Verona to the coast, was possessed by the Veneti, a race different from the Celts and probably of Illyrian extraction. Between these and the western mountains were settled the Cenomani (about Brescia and Cremona) who rarely acted with the Celtic nation and were probably largely intermingled with Veneti, and the Insubres (around Milan). The latter was the most considerable of the Celtic cantons in Italy, and was in constant communication not merely with the minor communities partly of Celtic, partly of non-Celtic extraction, that were scattered in the Alpine valleys, but also with the Celtic cantons beyond the Alps. The gates of the Alps, the mighty stream navigable for 230 miles, and the largest and most fertile plain of the then civilized Europe, still continued in the hands of the

hereditary foes of the Italian name, who, humbled indeed and weakened, but still scarce even nominally dependent and still troublesome neighbours, persevered in their barbarism, and, thinly scattered over the spacious plains, continued to pasture their herds and to plunder. It was to be anticipated that the Romans would hasten to possess themselves of these regions; the more so as the Celts gradually began to forget their defeats in the campaigns of 471 and 472 and to bestir themselves again, and, what was still more dangerous, the Transalpine Celts began anew to show themselves on the south of the Alps.

Celtic Wars

In fact the Boii had already renewed the war in 516, and their chiefs Atis and Galatas had—without, it is true, the authority of the general diet—summoned the Transalpine Gauls to make common cause with them. The latter had numerously answered the call, and in 518 a Celtic army, such as Italy had not seen for long, encamped before Ariminum. The Romans, for the moment much too weak to attempt a battle, concluded an armistice, and to gain time allowed envoys from the Celts to proceed to Rome, who ventured in the senate to demand the cession of Ariminum—it seemed as if the times of Brennus had returned. But an unexpected incident put an end to the war before it had well begun. The Boii, dissatisfied with their unbidden allies and afraid probably for their own territory, fell into variance with the Transalpine Gauls. An open battle took place between the two Celtic hosts; and, after the chiefs of the Boii had been put to death by their own men, the Transalpine Gauls returned home. The Boii were thus delivered into the hands of the Romans, and the latter were at liberty to expel them like the Senones, and to advance at least to the Po; but they preferred to grant the Boii peace in return for the cession of some districts of their land (518). This was probably done, because they were just at that time expecting the renewed outbreak of war with Carthage; but, after that war had been averted

by the cession of Sardinia, true policy required the Roman government to take possession as speedily and entirely as possible of the country up to the Alps. The constant apprehensions on the part of the Celts as to such a Roman invasion were therefore sufficiently justified; but the Romans were in no haste. So the Celts on their part began the war, either because the Roman assignments of land on the east coast (522), although not a measure immediately directed against them, made them apprehensive of danger; or because they perceived that a war with Rome for the possession of Lombardy was inevitable; or, as is perhaps most probable, because their Celtic impatience was once more weary of inaction and preferred to arm for a new warlike expedition. With the exception of the Cenomani, who acted with the Veneti and declared for the Romans, all the Italian Celts concurred in the war, and they were joined by the Celts of the upper valley of the Rhone, or rather by a number of adventurers belonging to them, under the leaders Concolitanus and Aneroestus.⁽¹⁵⁾ With 50,000 warriors on foot, and 20,000 on horseback or in chariots, the leaders of the Celts advanced to the Apennines (529). The Romans had not anticipated an attack on this side, and had not expected that the Celts, disregarding the Roman fortresses on the east coast and the protection of their own kinsmen, would venture to advance directly against the capital. Not very long before a similar Celtic swarm had in an exactly similar way overrun Greece. The danger was serious, and appeared still more serious than it really was. The belief that Rome's destruction was this time inevitable, and that the Roman soil was fated to become the property of the Gauls, was so generally diffused among the multitude in Rome itself that the government reckoned it not beneath its dignity to allay the absurd superstitious belief of the mob by an act still more absurd, and to bury alive a Gaulish man and a Gaulish woman in the Roman Forum with a view to fulfil the oracle of destiny. At the same time they made more serious preparations. Of the two consular armies, each of which numbered about 25,000 infantry and 1100 cavalry, one was stationed

in Sardinia under Gaius Atilius Regulus, the other at Ariminum under Lucius Aemilius Papus. Both received orders to repair as speedily as possible to Etruria, which was most immediately threatened. The Celts had already been under the necessity of leaving a garrison at home to face the Cenomani and Veneti, who were allied with Rome; now the levy of the Umbrians was directed to advance from their native mountains down into the plain of the Boii, and to inflict all the injury which they could think of on the enemy upon his own soil. The militia of the Etruscans and Sabines was to occupy the Apennines and if possible to obstruct the passage, till the regular troops could arrive. A reserve was formed in Rome of 50,000 men. Throughout all Italy, which on this occasion recognized its true champion in Rome, the men capable of service were enrolled, and stores and materials of war were collected.

Battle of Telamon

All this, however, required time. For once the Romans had allowed themselves to be surprised, and it was too late at least to save Etruria. The Celts found the Apennines hardly defended, and plundered unopposed the rich plains of the Tuscan territory, which for long had seen no enemy. They were already at Clusium, three days' march from Rome, when the army of Ariminum, under the consul Papus, appeared on their flank, while the Etruscan militia, which after crossing the Apennines had assembled in rear of the Gauls, followed the line of the enemy's march. Suddenly one evening, after the two armies had already encamped and the bivouac fires were kindled, the Celtic infantry again broke up and retreated on the road towards Faesulae (Fiesole): the cavalry occupied the advanced posts during the night, and followed the main force next morning. When the Tuscan militia, who had pitched their camp close upon the enemy, became aware of his departure, they imagined that the host had begun to disperse, and marched hastily in pursuit. The Gauls had reckoned on this very result: their

infantry, which had rested and was drawn up in order, awaited on a well-chosen battlefield the Roman militia, which came up from its forced march fatigued and disordered. Six thousand men fell after a furious combat, and the rest of the militia, which had been compelled to seek refuge on a hill, would have perished, had not the consular army appeared just in time. This induced the Gauls to return homeward. Their dexterously-contrived plan for preventing the union of the two Roman armies and annihilating the weaker in detail, had only been partially successful; now it seemed to them advisable first of all to place in security their considerable booty. For the sake of an easier line of march they proceeded from the district of Chiusi, where they were, to the level coast, and were marching along the shore, when they found an unexpected obstacle in the way. It was the Sardinian legions, which had landed at Pisae; and, when they arrived too late to obstruct the passage of the Apennines, had immediately put themselves in motion and were advancing along the coast in a direction opposite to the march of the Gauls. Near Telamon (at the mouth of the Ombrone) they met with the enemy. While the Roman infantry advanced with close front along the great road, the cavalry, led by the consul Gaius Atilius Regulus in person, made a side movement so as to take the Gauls in flank, and to acquaint the other Roman army under Papus as soon as possible with their arrival. A hot cavalry engagement took place, in which along with many brave Romans Regulus fell; but he had not sacrificed his life in vain: his object was gained. Papus became aware of the conflict, and guessed how matters stood; he hastily arrayed his legions, and on both sides the Celtic host was now pressed by Roman legions. Courageously it made its dispositions for the double conflict, the Transalpine Gauls and Insubres against the troops of Papus, the Alpine Taurisci and the Boii against the Sardinian infantry; the cavalry combat pursued its course apart on the flank. The forces were in numbers not unequally matched, and the desperate position of the Gauls impelled them to the most obstinate resistance. But the

Transalpine Gauls, accustomed only to close fighting, gave way before the missiles of the Roman skirmishers; in the hand-to-hand combat the better temper of the Roman weapons placed the Gauls at a disadvantage; and at last an attack in flank by the victorious Roman cavalry decided the day. The Celtic horsemen made their escape; the infantry, wedged in between the sea and the three Roman armies, had no means of flight. 10,000 Celts, with their king Concolitanus, were taken prisoners; 40,000 others lay dead on the field of battle; Aneroestus and his attendants had, after the Celtic fashion, put themselves to death.

The Celts Attacked in Their Own Land

The victory was complete, and the Romans were firmly resolved to prevent the recurrence of such surprises by the complete subjugation of the Celts on the south of the Alps. In the following year (530) the Boii submitted without resistance along with the Lingones; and in the year after that (531) the Anares; so that the plain as far as the Po was in the hands of the Romans. The conquest of the northern bank of the river cost a more serious struggle. Gaius Flaminius crossed the river in the newly-acquired territory of the Anares (somewhere near Piacenza) in 531; but during the crossing, and still more while making good his footing on the other bank, he suffered so heavy losses and found himself with the river in his rear in so dangerous a position, that he made a capitulation with the enemy to secure a free retreat, which the Insubres foolishly conceded. Scarce, however, had he escaped when he appeared in the territory of the Cenomani, and, united with them, advanced for the second time from the north into the canton of the Insubres. The Gauls perceived what was now the object of the Romans, when it was too late: they took from the temple of their goddess the golden standards called the "immovable," and with their whole levy, 50,000 strong, they offered battle to the Romans. The situation of the latter was critical: they were stationed with their back to a river (perhaps the Oglio), separated

from home by the enemy's territory, and left to depend for aid in battle as well as for their line of retreat on the uncertain friendship of the Cenomani. There was, however, no choice. The Gauls fighting in the Roman ranks were placed on the left bank of the stream; on the right, opposite to the Insubres, the legions were drawn up, and the bridges were broken down that they might not be assailed, at least in the rear, by their dubious allies.

The Celts Conquered by Rome

In this way undoubtedly the river cut off their retreat, and their way homeward lay through the hostile army. But the superiority of the Roman arms and of Roman discipline achieved the victory, and the army cut its way through: once more the Roman tactics had redeemed the blunders of the general. The victory was due to the soldiers and officers, not to the generals, who gained a triumph only through popular favour in opposition to the just decree of the senate. Gladly would the Insubres have made peace; but Rome required unconditional subjection, and things had not yet come to that pass. They tried to maintain their ground with the help of their northern kinsmen; and, with 30,000 mercenaries whom they had raised amongst these and their own levy, they received the two consular armies advancing once more in the following year (532) from the territory of the Cenomani to invade their land. Various obstinate combats took place; in a diversion, attempted by the Insubres against the Roman fortress of Clastidium (Casteggio, below Pavia), on the right bank of the Po, the Gallic king Virdumarus fell by the hand of the consul Marcus Marcellus. But, after a battle already half won by the Celts but ultimately decided in favour of the Romans, the consul Gnaeus Scipio took by assault Mediolanum, the capital of the Insubres, and the capture of that town and of Comum terminated their resistance. Thus the Celts of Italy were completely vanquished, and as, just before, the Romans had shown to the Hellenes in the war with the pirates the difference between a Roman and a Greek

sovereignty of the seas, so they had now brilliantly demonstrated that Rome knew how to defend the gates of Italy against freebooters on land otherwise than Macedonia had guarded the gates of Greece, and that in spite of all internal quarrels Italy presented as united a front to the national foe, as Greece exhibited distraction and discord.

Romanization of the Entire of Italy

The boundary of the Alps was reached, in so far as the whole flat country on the Po was either rendered subject to the Romans, or, like the territories of the Cenomani and Veneti, was occupied by dependent allies. It needed time, however, to reap the consequences of this victory and to Romanize the land. In this the Romans did not adopt a uniform mode of procedure. In the mountainous northwest of Italy and in the more remote districts between the Alps and the Po they tolerated, on the whole, the former inhabitants; the numerous wars, as they are called, which were waged with the Ligurians in particular (first in 516) appear to have been slave-hunts rather than wars, and, often as the cantons and valleys submitted to the Romans, Roman sovereignty in that quarter was hardly more than a name. The expedition to Istria also (533) appears not to have aimed at much more than the destruction of the last lurking-places of the Adriatic pirates, and the establishment of a communication by land along the coast between the Italian conquests of Rome and her acquisitions on the other shore. On the other hand the Celts in the districts south of the Po were doomed irretrievably to destruction; for, owing to the looseness of the ties connecting the Celtic nation, none of the northern Celtic cantons took part with their Italian kinsmen except for money, and the Romans looked on the latter not only as their national foes, but as the usurpers of their natural heritage. The extensive assignments of land in 522 had already filled the whole territory between Ancona and Ariminum with Roman colonists, who settled here without communal organization in market-villages and hamlets.

Further measures of the same character were taken, and it was not difficult to dislodge and extirpate a half-barbarous population like the Celtic, only partially following agriculture, and destitute of walled towns. The great northern highway, which had been, probably some eighty years earlier, carried by way of Otricoli to Narni, and had shortly before been prolonged to the newly-founded fortress of Spoletium (514), was now (534) carried, under the name of the "Flaminian" road, by way of the newly-established market-village Forum Flaminii (near Foligno), through the pass of Furlo to the coast, and thence along the latter from Fanum (Fano) to Ariminum; it was the first artificial road which crossed the Apennines and connected the two Italian seas. Great zeal was manifested in covering the newly-acquired fertile territory with Roman townships. Already, to cover the passage of the Po, the strong fortress of Placentia (Piacenza) had been founded on the right bank; not far from it Cremona had been laid out on the left bank, and the building of the walls of Mutina (Modena), in the territory taken away from the Boii, had far advanced —already preparations were being made for further assignments of land and for continuing the highway, when sudden event interrupted the Romans in reaping the fruit of their successes.

Notes for Chapter III

1. III. II. Evacuation of Africa

2. That the cession of the islands lying between Sicily and Italy, which the peace of 513 prescribed to the Carthaginians, did not include the cession of Sardinia is a settled point (III. II. Remarks On the Roman Conduct of the War); but the statement, that the Romans made that a pretext for their occupation of the island three years after the peace, is ill attested. Had they

done so, they would merely have added a diplomatic folly to the political effrontery.

3. III. II. The War on the Coasts of Sicily and Sardinia

4. III. VIII. Changes in Procedure

5. II. I. Restrictions on the Delegation of Powers

6. That this was the case may be gathered partly from the appearance of the "Siculi" against Marcellus (Liv. xxvi. 26, seq.), partly from the "conjoint petitions of all the Sicilian communities" (Cicero, Verr. ii. 42, 102; 45, 114; 50, 146; iii. 88, 204), partly from well-known analogies (Marquardt, Handb. iii. i, 267). Because there was no -commercium- between the different towns, it by no means follows that there was no -concilium-.

7. The right of coining gold and silver was not monopolized by Rome in the provinces so strictly as in Italy, evidently because gold and silver money not struck after the Roman standard was of less importance. But in their case too the mints were doubtless, as a rule, restricted to the coinage of copper, or at most silver, small money; even the most favourably treated communities of Roman Sicily, such as the Mamertines, the Centuripans, the Halaesines, the Segestans, and also in the main the Pacormitaus coined only copper.

8. This is implied in Hiero's expression (Liv. xxii. 37): that he knew that the Romans made use of none but Roman or Latin infantry and cavalry, and employed "foreigners" at most only among the light-armed troops.

9. This is shown at once by a glance at the map, and also by the remarkable exceptional provision which allowed the Centuripans to buy to any part of Sicily. They needed, as Roman spies, the utmost freedom of

movement We may add that Centuripa appears to have been among the first cities that went over to Rome (Diodorus, l. xxiii. p. 501).

10. This distinction between Italy as the Roman mainland or consular sphere on the one hand, and the transmarine territory or praetorial sphere on the other, already appears variously applied in the sixth century. The ritual rule, that certain priests should not leave Rome (Val. Max. i. i, 2), was explained to mean, that they were not allowed to cross the sea (Liv. Ep. 19, xxxvii. 51; Tac. Ann. iii. 58, 71; Cic. Phil. xi. 8, 18; comp. Liv. xxviii. 38, 44, Ep. 59). To this head still more definitely belongs the interpretation which was proposed in 544 to be put upon the old rule, that the consul might nominate the dictator only on "Roman ground": viz. that "Roman ground" comprehended all Italy (Liv. xxvii. 5). The erection of the Celtic land between the Alps and Apennines into a special province, different from that of the consuls and subject to a separate Standing chief magistrate, was the work of Sulla. Of course no one will Urge as an objection to this view, that already in the sixth century Gallia or Ariminum is very often designated as the "official district" (-provincia-), usually of one of the consuls. -Provincia-, as is well known, was in the older language not—what alone it denoted subsequently—a definite space assigned as a district to a standing chief magistrate, but the department of duty fixed for the individual consul, in the first instance by agreement with his colleague, under concurrence of the senate; and in this sense frequently individual regions in northern Italy, or even North Italy generally, were assigned to individual consuls as -provincia-.

11. A standing Roman commandant of Corcyra is apparently mentioned in Polyb. xxii. 15, 6 (erroneously translated by Liv. xxxviii. ii, comp. xlii. 37), and a similar one in the case of Issa in Liv. xliii. 9. We have, moreover, the analogy of the -praefectus pro legato insularum Baliarum- (Orelli, 732), and of the governor of Pandataria (Inscr. Reg. Neapol. 3528). It appears,

accordingly, to have been a rule in the Roman administration to appoint non-senatorial -praefecti- for the more remote islands. But these "deputies" presuppose in the nature of the case a superior magistrate who nominates and superintends them; and this superior magistracy can only have been at this period that of the consuls. Subsequently, after the erection of Macedonia and Gallia Cisalpina into provinces, the superior administration was committed to one of these two governors; the very territory now in question, the nucleus of the subsequent Roman province of Illyricum, belonged, as is well known, in part to Caesar's district of administration.

12. III. VII. The Senones Annihilated

13. III. VII. Breach between Rome and Tarentum

14. III. VII. Construction of New Fortresses and Roads

15. These, whom Polybius designates as the "Celts in the Alps and on the Rhone, who on account of their character as military adventurers are called Gaesatae (free lances)," are in the Capitoline Fasti named -Germani-. It is possible that the contemporary annalists may have here mentioned Celts alone, and that it was the historical speculation of the age of Caesar and Augustus that first induced the redactors of these Fasti to treat them as "Germans." If, on the other hand, the mention of the Germans in the Fasti was based on contemporary records—in which case this is the earliest mention of the name—we shall here have to think not of the Germanic races who were afterwards so called, but of a Celtic horde.

CHAPTER IV

Hamilcar and Hannibal

Situation of Carthage after the Peace

The treaty with Rome in 513 gave to the Carthaginians peace, but they paid for it dearly. That the tribute of the largest portion of Sicily now flowed into the enemy's exchequer instead of the Carthaginian treasury, was the least part of their loss. They felt a far keener regret when they not merely had to abandon the hope of monopolizing all the sea-routes between the eastern and the western Mediterranean —just as that hope seemed on the eve of fulfilment—but also saw their whole system of commercial policy broken up, the south-western basin of the Mediterranean, which they had hitherto exclusively commanded, converted since the loss of Sicily into an open thoroughfare for all nations, and the commerce of Italy rendered completely independent of the Phoenician. Nevertheless the quiet men of Sidon might perhaps have prevailed on themselves to acquiesce in this result. They had met with similar blows already; they had been obliged to share with the Massiliots, the Etruscans, and the Sicilian Greeks what they had previously possessed alone; even now the possessions which they retained, Africa, Spain, and the gates of the Atlantic Ocean, were sufficient to confer power and prosperity. But in truth, where was their security that these at least would continue in their hands? The demands made by Regulus, and his very near approach to the obtaining of what he asked,

could only be forgotten by those who were willing to forget; and if Rome should now renew from Lilybaeum the enterprise which she had undertaken with so great success from Italy, Carthage would undoubtedly fall, unless the perversity of the enemy or some special piece of good fortune should intervene to save it. No doubt they had peace for the present; but the ratification of that peace had hung on a thread, and they knew what public opinion in Rome thought of the terms on which it was concluded. It might be that Rome was not yet meditating the conquest of Africa and was as yet content with Italy; but if the existence of the Carthaginian state depended on that contentment, the prospect was but a sorry one; and where was the security that the Romans might not find it even convenient for their Italian policy to extirpate rather than reduce to subjection their African neighbour?

War Party and Peace Party in Carthage

In short, Carthage could only regard the peace of 513 in the light of a truce, and could not but employ it in preparations for the inevitable renewal of the war; not for the purpose of avenging the defeat which she had suffered, nor even with the primary view of recovering what she had lost, but in order to secure for herself an existence that should not be dependent on the good-will of the enemy. But when a war of annihilation is surely, though in point of time indefinitely, impending over a weaker state, the wiser, more resolute, and more devoted men—who would immediately prepare for the unavoidable struggle, accept it at a favourable moment, and thus cover their defensive policy by a strategy of offence—always find themselves hampered by the indolent and cowardly mass of the money-worshippers, of the aged and feeble, and of the thoughtless who are minded merely to gain time, to live and die in peace, and to postpone at any price the final struggle. So there was in Carthage a party for peace and a party for war, both, as was natural, associating themselves with the political distinction which already existed between the conservatives and the

reformers. The former found its support in the governing boards, the council of the Ancients and that of the Hundred, led by Hanno the Great, as he was called; the latter found its support in the leaders of the multitude, particularly the much-respected Hasdrubal, and in the officers of the Sicilian army, whose great successes under the leadership of Hamilcar, although they had been otherwise fruitless, had at least shown to the patriots a method which seemed to promise deliverance from the great danger that beset them. Vehement feud had probably long subsisted between these parties, when the Libyan war intervened to suspend the strife. We have already related how that war arose. After the governing party had instigated the mutiny by their incapable administration which frustrated all the precautionary measures of the Sicilian officers, had converted that mutiny into a revolution by the operation of their inhuman system of government, and had at length brought the country to the verge of ruin by their military incapacity—and particularly that of their leader Hanno, who ruined the army—Hamilcar Barcas, the hero of Ercte, was in the perilous emergency solicited by the government itself to save it from the effects of its blunders and crimes. He accepted the command, and had the magnanimity not to resign it even when they appointed Hanno as his colleague. Indeed, when the indignant army sent the latter home, Hamilcar had the self-control a second time to concede to him, at the urgent request of the government, a share in the command; and, in spite of his enemies and in spite of such a colleague, he was able by his influence with the insurgents, by his dexterous treatment of the Numidian sheiks, and by his unrivalled genius for organization and generalship, in a singularly short time to put down the revolt entirely and to recall rebellious Africa to its allegiance (end of 517).

During this war the patriot party had kept silence; now it spoke out the louder. On the one hand this catastrophe had brought to light the utterly corrupt and pernicious character of the ruling oligarchy, their incapacity, their coterie-policy, their leanings towards the Romans. On the other hand

the seizure of Sardinia, and the threatening attitude which Rome on that occasion assumed, showed plainly even to the humblest that a declaration of war by Rome was constantly hanging like the sword of Damocles over Carthage, and that, if Carthage in her present circumstances went to war with Rome, the consequence must necessarily be the downfall of the Phoenician dominion in Libya. Probably there were in Carthage not a few who, despairing of the future of their country, counselled emigration to the islands of the Atlantic; who could blame them? But minds of the nobler order disdain to save themselves apart from their nation, and great natures enjoy the privilege of deriving enthusiasm from circumstances in which the multitude of good men despair. They accepted the new conditions just as Rome dictated them; no course was left but to submit and, adding fresh bitterness to their former hatred, carefully to cherish and husband resentment—that last resource of an injured nation. They then took steps towards a political reform.⁽¹⁾ They had become sufficiently convinced of the incorrigibleness of the party in power: the fact that the governing lords had even in the last war neither forgotten their spite nor learned greater wisdom, was shown by the effrontery bordering on simplicity with which they now instituted proceedings against Hamilcar as the originator of the mercenary war, because he had without full powers from the government made promises of money to his Sicilian soldiers. Had the club of officers and popular leaders desired to overthrow this rotten and wretched government, it would hardly have encountered much difficulty in Carthage itself; but it would have met with more formidable obstacles in Rome, with which the chiefs of the government in Carthage already maintained relations that bordered on treason. To all the other difficulties of the position there fell to be added the circumstance, that the means of saving their country had to be created without allowing either the Romans, or their own government with its Roman leanings, to become rightly aware of what was doing.

Hamilcar Commander-in-Chief

So they left the constitution untouched, and the chiefs of the government in full enjoyment of their exclusive privileges and of the public property. It was merely proposed and carried, that of the two commanders-in-chief, who at the end of the Libyan war were at the head of the Carthaginian troops, Hanno and Hamilcar, the former should be recalled, and the latter should be nominated commander-in-chief for all Africa during an indefinite period. It was arranged that he should hold a position independent of the governing corporations —his antagonists called it an unconstitutional monarchical power, Cato calls it a dictatorship—and that he could only be recalled and placed upon his trial by the popular assembly.(2) Even the choice of a successor was to be vested not in the authorities of the capital, but in the army, that is, in the Carthaginians serving in the array as gerusiasts or officers, who were named in treaties also along with the general; of course the right of confirmation was reserved to the popular assembly at home. Whether this may or may not have been a usurpation, it clearly indicates that the war party regarded and treated the army as its special domain.

The commission which Hamilcar thus received sounded but little liable to exception. Wars with the Numidian tribes on the borders never ceased; only a short time previously the "city of a hundred gates," Theveste (Tebessa), in the interior had been occupied by the Carthaginians. The task of continuing this border warfare, which was allotted to the new commander-in-chief of Africa, was not in itself of such importance as to prevent the Carthaginian government, which was allowed to do as it liked in its own immediate sphere, from tacitly conniving at the decrees passed in reference to the matter by the popular assembly; and the Romans did not perhaps recognize its significance at all.

Hamilcar's War Projects

The Army

The Citizens

Thus there stood at the head of the army the one man, who had given proof in the Sicilian and in the Libyan wars that fate had destined him, if any one, to be the saviour of his country. Never perhaps was the noble struggle of man with fate waged more nobly than by him. The army was expected to save the state; but what sort of army? The Carthaginian civic militia had fought not badly under Hamilcar's leadership in the Libyan war; but he knew well, that it is one thing to lead out the merchants and artisans of a city, which is in the extremity of peril, for once to battle, and another to form them into soldiers. The patriotic party in Carthage furnished him with excellent officers, but it was of course almost exclusively the cultivated class that was represented in it. He had no citizen- militia, at most a few squadrons of Libyphoenician cavalry. The task was to form an army out of Libyan forced recruits and mercenaries; a task possible in the hands of a general like Hamilcar, but possible even for him only on condition that he should be able to pay his men punctually and amply. But he had learned, by experience in Sicily, that the state revenues of Carthage were expended in Carthage itself on matters much more needful than the payment of the armies that fought against the enemy. The warfare which he waged, accordingly, had to support itself, and he had to carry out on a great scale what he had already attempted on a smaller scale at Monte Pellegrino. But further, Hamilcar was not only a military chief, he was also a party leader. In opposition to the implacable governing party, which eagerly but patiently waited for an opportunity of overthrowing him, he had to seek support among the citizens; and although their leaders might be ever so pure and noble, the multitude was deeply corrupt and accustomed by the unhappy system of corruption to give nothing without being paid for it. In particular emergencies, indeed, necessity or enthusiasm might for the moment prevail,

as everywhere happens even with the most venal corporations; but, if Hamilcar wished to secure the permanent support of the Carthaginian community for his plan, which at the best could only be carried out after a series of years, he had to supply his friends at home with regular consignments of money as the means of keeping the mob in good humour. Thus compelled to beg or to buy from the lukewarm and venal multitude the permission to save it; compelled to bargain with the arrogance of men whom he hated and whom he had constantly conquered, at the price of humiliation and of silence, for the respite indispensable for his ends; compelled to conceal from those despised traitors to their country, who called themselves the lords of his native city, his plans and his contempt—the noble hero stood with few like-minded friends between enemies without and enemies within, building upon the irresolution of the one and of the other, at once deceiving both and defying both, if only he might gain means, money, and men for the contest with a land which, even were the army ready to strike the blow, it seemed difficult to reach and scarce possible to vanquish. He was still a young man, little beyond thirty, but he had apparently, when he was preparing for his expedition, a foreboding that he would not be permitted to attain the end of his labours, or to see otherwise than afar off the promised land. When he left Carthage he enjoined his son Hannibal, nine years of age, to swear at the altar of the supreme God eternal hatred to the Roman name, and reared him and his younger sons Hasdrubal and Mago—the "lion's brood," as he called them—in the camp as the inheritors of his projects, of his genius, and of his hatred.

Hamilcar Proceed to Spain Spanish Kingdom of the Barcides

The new commander-in-chief of Libya departed from Carthage immediately after the termination of the mercenary war (perhaps in the spring of 518). He apparently meditated an expedition against the free

Libyans in the west. His army, which was especially strong in elephants, marched along the coast; by its side sailed the fleet, led by his faithful associate Hasdrubal. Suddenly tidings came that he had crossed the sea at the Pillars of Hercules and had landed in Spain, where he was waging war with the natives—with people who had done him no harm, and without orders from his government, as the Carthaginian authorities complained. They could not complain at any rate that he neglected the affairs of Africa; when the Numidians once more rebelled, his lieutenant Hasdrubal so effectually routed them that for a long period there was tranquillity on the frontier, and several tribes hitherto independent submitted to pay tribute. What he personally did in Spain, we are no longer able to trace in detail. His achievements compelled Cato the elder, who, a generation after Hamilcar's death, beheld in Spain the still fresh traces of his working, to exclaim, notwithstanding all his hatred of the Carthaginians, that no king was worthy to be named by the side of Hamilcar Barca. The results still show to us, at least in a general way, what was accomplished by Hamilcar as a soldier and a statesman in the last nine years of his life (518-526)—till in the flower of his age, fighting bravely in the field of battle, he met his death like Scharnhorst just as his plans were beginning to reach maturity—and what during the next eight years (527-534) the heir of his office and of his plans, his son-in-law Hasdrubal, did to prosecute, in the spirit of the master, the work which Hamilcar had begun. Instead of the small entrepot for trade, which, along with the protectorate over Gades, was all that Carthage had hitherto possessed on the Spanish coast, and which she had treated as a dependency of Libya, a Carthaginian kingdom was founded in Spain by the generalship of Hamilcar, and confirmed by the adroit statesmanship of Hasdrubal. The fairest regions of Spain, the southern and eastern coasts, became Phoenician provinces. Towns were founded; above all, "Spanish Carthage" (Cartagena) was established by Hasdrubal on the only good harbour along the south coast, containing the splendid "royal

castle" of its founder. Agriculture flourished, and, still more, mining in consequence of the fortunate discovery of the silver-mines of Cartagena, which a century afterwards had a yearly produce of more than 360,000 pounds (36,000,000 sesterces). Most of the communities as far as the Ebro became dependent on Carthage and paid tribute to it. Hasdrubal skilfully by every means, even by intermarriages, attached the chiefs to the interests of Carthage. Thus Carthage acquired in Spain a rich market for its commerce and manufactures; and not only did the revenues of the province sustain the army, but there remained a balance to be remitted to Carthage and reserved for future use. The province formed and at the same time trained the army; regular levies took place in the territory subject to Carthage; the prisoners of war were introduced into the Carthaginian corps. Contingents and mercenaries, as many as were desired, were supplied by the dependent communities. During his long life of warfare the soldier found in the camp a second home, and found a substitute for patriotism in fidelity to his standard and enthusiastic attachment to his great leaders. Constant conflicts with the brave Iberians and Celts created a serviceable infantry, to co-operate with the excellent Numidian cavalry.

The Carthaginian Government and the Barcides

So far as Carthage was concerned, the Barcides were allowed to go on. Since the citizens were not asked for regular contributions, but on the contrary some benefit accrued to them and commerce recovered in Spain what it had lost in Sicily and Sardinia, the Spanish war and the Spanish army with its brilliant victories and important successes soon became so popular that it was even possible in particular emergencies, such as after Hamilcar's fall, to effect the despatch of considerable reinforcements of African troops to Spain; and the governing party, whether well or ill affected, had to maintain silence, or at any rate to content themselves with

complaining to each other or to their friends in Rome regarding the demagogic officers and the mob.

The Roman Government and the Barcides

On the part of Rome too nothing took place calculated seriously to alter the course of Spanish affairs. The first and chief cause of the inactivity of the Romans was undoubtedly their very want of acquaintance with the circumstances of the remote peninsula—which was certainly also Hamilcar's main reason for selecting Spain and not, as might otherwise have been possible, Africa itself for the execution of his plan. The explanations with which the Carthaginian generals met the Roman commissioners sent to Spain to procure information on the spot, and their assurances that all this was done only to provide the means of promptly paying the war-contributions to Rome, could not possibly find belief in the senate. But they probably discerned only the immediate object of Hamilcar's plans, viz. to procure compensation in Spain for the tribute and the traffic of the islands which Carthage had lost; and they deemed an aggressive war on the part of the Carthaginians, and in particular an invasion of Italy from Spain—as is evident both from express statements to that effect and from the whole state of the case—as absolutely impossible. Many, of course, among the peace party in Carthage saw further; but, whatever they might think, they could hardly be much inclined to enlighten their Roman friends as to the impending storm, which the Carthaginian authorities had long been unable to prevent, for that step would accelerate, instead of averting, the crisis; and even if they did so, such denunciations proceeding from partisans would justly be received with great caution at Rome. By degrees, certainly, the inconceivably rapid and mighty extension of the Carthaginian power in Spain could not but excite the observation and awaken the apprehensions of the Romans. In fact, in the course of the later years before the outbreak of war, they did attempt to set bounds to it. About

the year 528, mindful of their new-born Hellenism, they concluded an alliance with the two Greek or semi-Greek towns on the east coast of Spain, Zacynthus or Saguntum (Murviedro, not far from Valencia), and Emporiae (Ampurias); and when they acquainted the Carthaginian general Hasdrubal that they had done so, they at the same time warned him not to push his conquests over the Ebro, with which he promised compliance. This was not done by any means to prevent an invasion of Italy by the land-route—no treaty could fetter the general who undertook such an enterprise—but partly to set a limit to the material power of the Spanish Carthaginians which began to be dangerous, partly to secure the free communities between the Ebro and the Pyrenees whom Rome thus took under her protection, a basis of operations in case of its being necessary to land and make war in Spain. In reference to the impending war with Carthage, which the senate did not fail to see was inevitable, they hardly apprehended any greater inconvenience from the events that had occurred in Spain than that they might be compelled to send some legions thither, and that the enemy would be somewhat better provided with money and soldiers than, without Spain, he would have been; they were at any rate firmly resolved, as the plan of the campaign of 536 shows and as indeed could not but be the case, to begin and terminate the next war in Africa, —a course which would at the same time decide the fate of Spain. Further grounds for delay were suggested during the first years by the instalments from Carthage, which a declaration of war would have cut off, and then by the death of Hamilcar, which probably induced friends and foes to think that his projects must have died with him. Lastly, during the latter years when the senate certainly began, to apprehend that it was not prudent long to delay the renewal of the war, there was the very intelligible wish to dispose of the Gauls in the valley of the Po in the first instance, for these, threatened with extirpation, might be expected to avail themselves of any serious war undertaken by Rome to allure the Transalpine tribes once more to Italy, and to renew those

Celtic migrations which were still fraught with very great peril. That it was not regard either for the Carthaginian peace party or for existing treaties which withheld the Romans from action, is self-evident; moreover, if they desired war, the Spanish feuds furnished at any moment a ready pretext. The conduct of Rome in this view is by no means unintelligible; but as little can it be denied that the Roman senate in dealing with this matter displayed shortsightedness and slackness—faults which were still more inexcusably manifested in their mode of dealing at the same epoch with Gallic affairs. The policy of the Romans was always more remarkable for tenacity, cunning, and consistency, than for grandeur of conception or power of rapid organization—qualities in which the enemies of Rome from Pyrrhus down to Mithradates often surpassed her.

Hannibal

Thus the smiles of fortune inaugurated the brilliantly conceived project of Hamilcar. The means of war were acquired—a numerous army accustomed to combat and to conquer, and a constantly replenished exchequer; but, in order that the right moment might be discovered for the struggle and that the right direction might be given to it, there was wanted a leader. The man, whose head and heart had in a desperate emergency and amidst a despairing people paved the way for their deliverance, was no more, when it became possible to carry out his design. Whether his successor Hasdrubal forbore to make the attack because the proper moment seemed to him to have not yet come, or whether, more a statesman than a general, he believed himself unequal to the conduct of the enterprise, we are unable to determine. When, at the beginning of 534, he fell by the hand of an assassin, the Carthaginian officers of the Spanish army summoned to fill his place Hannibal, the eldest son of Hamilcar. He was still a young man—born in 505, and now, therefore, in his twenty-ninth year; but his had already been a life of manifold experience. His first recollections pictured

to him his father fighting in a distant land and conquering on Ercte; he had keenly shared that unconquered father's feelings on the peace of Catulus, on the bitter return home, and throughout the horrors of the Libyan war. While yet a boy, he had followed his father to the camp; and he soon distinguished himself. His light and firmly-knit frame made him an excellent runner and fencer, and a fearless rider at full speed; the privation of sleep did not affect him, and he knew like a soldier how to enjoy or to dispense with food. Although his youth had been spent in the camp, he possessed such culture as belonged to the Phoenicians of rank in his day; in Greek, apparently after he had become a general, he made such progress under the guidance of his confidant Sosilus of Sparta as to be able to compose state papers in that language. As he grew up, he entered the army of his father, to perform his first feats of arms under the paternal eye and to see him fall in battle by his side. Thereafter he had commanded the cavalry under his sister's husband, Hasdrubal, and distinguished himself by brilliant personal bravery as well as by his talents as a leader. The voice of his comrades now summoned him—the tried, although youthful general—to the chief command, and he could now execute the designs for which his father and his brother-in-law had lived and died. He took up the inheritance, and he was worthy of it. His contemporaries tried to cast stains of various sorts on his character; the Romans charged him with cruelty, the Carthaginians with covetousness; and it is true that he hated as only Oriental natures know how to hate, and that a general who never fell short of money and stores can hardly have been other than covetous. But though anger and envy and meanness have written his history, they have not been able to mar the pure and noble image which it presents. Laying aside wretched inventions which furnish their own refutation, and some things which his lieutenants, particularly Hannibal Monomachus and Mago the Samnite, were guilty of doing in his name, nothing occurs in the accounts regarding him which may not be justified under the circumstances, and according to the international law, of the

times; and all agree in this, that he combined in rare perfection discretion and enthusiasm, caution and energy. He was peculiarly marked by that inventive craftiness, which forms one of the leading traits of the Phoenician character; he was fond of taking singular and unexpected routes; ambushes and stratagems of all sorts were familiar to him; and he studied the character of his antagonists with unprecedented care. By an unrivalled system of espionage—he had regular spies even in Rome—he kept himself informed of the projects of the enemy; he himself was frequently seen wearing disguises and false hair, in order to procure information on some point or other. Every page of the history of this period attests his genius in strategy; and his gifts as a statesman were, after the peace with Rome, no less conspicuously displayed in his reform of the Carthaginian constitution, and in the unparalleled influence which as a foreign exile he exercised in the cabinets of the eastern powers. The power which he wielded over men is shown by his incomparable control over an army of various nations and many tongues—an army which never in the worst times mutinied against him. He was a great man; wherever he went, he riveted the eyes of all.

Rupture between Rome and Carthage

Hannibal resolved immediately after his nomination (in the spring of 534) to commence the war. The land of the Celts was still in a ferment, and a war seemed imminent between Rome and Macedonia: he had good reason now to throw off the mask without delay and to carry the war whithersoever he pleased, before the Romans began it at their own convenience with a descent on Africa. His army was soon ready to take the field, and his exchequer was filled by some razzias on a great scale; but the Carthaginian government showed itself far from desirous of despatching the declaration of war to Rome. The place of Hasdrubal, the patriotic national leader, was even more difficult to fill in Carthage than that of Hasdrubal the general in Spain; the peace party had now the ascendancy at home, and persecuted the

leaders of the war party with political indictments. The rulers who had already cut down and mutilated the plans of Hamilcar were by no means inclined to allow the unknown young man, who now commanded in Spain, to vent his youthful patriotism at the expense of the state; and Hannibal hesitated personally to declare war in open opposition to the legitimate authorities. He tried to provoke the Saguntines to break the peace; but they contented themselves with making a complaint to Rome. Then, when a commission from Rome appeared, he tried to drive it to a declaration of war by treating it rudely; but the commissioners saw how matters stood: they kept silence in Spain, with a view to lodge complaints at Carthage and to report at home that Hannibal was ready to strike and that war was imminent. Thus the time passed away; accounts had already come of the death of Antigonus Doson, who had suddenly died nearly at the same time with Hasdrubal; in Cisalpine Gaul the establishment of fortresses was carried on by the Romans with redoubled rapidity and energy; preparations were made in Rome for putting a speedy end in the course of the next spring to the insurrection in Illyria. Every day was precious; Hannibal formed his resolution. He sent summary intimation to Carthage that the Saguntines were making aggressions on the Torboletes, subjects of Carthage, and he must therefore attack them; and without waiting for a reply he began in the spring of 535 the siege of a town which was in alliance with Rome, or, in other words, war against Rome. We may form some idea of the views and counsels that would prevail in Carthage from the impression produced in certain circles by York's capitulation. All "respectable men," it was said, disapproved an attack made "without orders"; there was talk of disavowal, of surrendering the daring officer. But whether it was that dread of the army and of the multitude nearer home outweighed in the Carthaginian council the fear of Rome; or that they perceived the impossibility of retracing such a step once taken; or that the mere -vis inertiae- prevented any definite action, they resolved at length to

resolve on nothing and, if not to wage war, to let it nevertheless be waged. Saguntum defended itself, as only Spanish towns know how to conduct defence: had the Romans showed but a tithe of the energy of their clients, and not trifled away their time during the eight months' siege of Saguntum in the paltry warfare with Illyrian brigands, they might, masters as they were of the sea and of places suitable for landing, have spared themselves the disgrace of failing to grant the protection which they had promised, and might perhaps have given a different turn to the war. But they delayed, and the town was at length taken by storm. When Hannibal sent the spoil for distribution to Carthage, patriotism and zeal for war were roused in the hearts of many who had hitherto felt nothing of the kind, and the distribution cut off all prospect of coming to terms with Rome. Accordingly, when after the destruction of Saguntum a Roman embassy appeared at Carthage and demanded the surrender of the general and of the gerusiasts present in the camp, and when the Roman spokesman, interrupting an attempt at justification, broke off the discussion and, gathering up his robe, declared that he held in it peace and war and that the gerusia might choose between them, the gerusiasts mustered courage to reply that they left it to the choice of the Roman; and when he offered war, they accepted it (in the spring of 536).

Preparations for Attacking Italy

Hannibal, who had lost a whole year through the obstinate resistance of the Saguntines, had as usual retired for the winter of 535-6 to Cartagena, to make all his preparations on the one hand for the attack of Italy, on the other for the defence of Spain and Africa; for, as he, like his father and his brother-in-law, held the supreme command in both countries, it devolved upon him to take measures also for the protection of his native land. The whole mass of his forces amounted to about 120,000 infantry and 16,000 cavalry; he had also 58 elephants, 32 quinqueremes manned, and 18 not manned, besides the elephants and vessels remaining at the capital. Excepting a few Ligurians among the light troops, there were no mercenaries in this Carthaginian army; the troops, with the exception of some Phoenician squadrons, consisted mainly of the Carthaginian subjects called out for service—Libyans and Spaniards. To insure the fidelity of the latter the general, who knew the men with whom he had to deal, gave them as a proof of his confidence a general leave of absence for the whole winter; while, not sharing the narrow-minded exclusiveness of Phoenician patriotism, he promised to the Libyans on his oath the citizenship of Carthage, should they return to Africa victorious. This mass of troops however was only destined in part for the expedition to Italy. Some 20,000 men were sent to Africa, the smaller portion of them proceeding to the capital and the Phoenician territory proper, the majority to the western point of Africa. For the protection of Spain 12,000 infantry, 2500 cavalry, and nearly the half of the elephants were left behind, in addition to the fleet stationed there; the chief command and the government of Spain were entrusted to Hannibal's younger brother Hasdrubal. The immediate territory of Carthage was comparatively weakly garrisoned, because the capital afforded in case of need sufficient resources; in like manner a moderate number of infantry sufficed for the present in Spain, where new levies could

be procured with ease, whereas a comparatively large proportion of the arms specially African—horses and elephants—was retained there. The chief care was bestowed in securing the communications between Spain and Africa: with that view the fleet remained in Spain, and western Africa was guarded by a very strong body of troops. The fidelity of the troops was secured not only by hostages collected from the Spanish communities and detained in the stronghold of Saguntum, but by the removal of the soldiers from the districts where they were raised to other quarters: the east African militia were moved chiefly to Spain, the Spanish to Western Africa, the West African to Carthage. Adequate provision was thus made for defence. As to offensive measures, a squadron of 20 quinqueremes with 1000 soldiers on board was to sail from Carthage for the west coast of Italy and to pillage it, and a second of 25 sail was, if possible, to re-establish itself at Lilybaeum; Hannibal believed that he might count upon the government making this moderate amount of exertion. With the main army he determined in person to invade Italy; as was beyond doubt part of the original plan of Hamilcar. A decisive attack on Rome was only possible in Italy, as a similar attack on Carthage was only possible in Libya; as certainly as Rome meant to begin her next campaign with the latter, so certainly ought Carthage not to confine herself at the outset either to any secondary object of operations, such as Sicily, or to mere defence—defeat would in any case involve equal destruction, but victory would not yield equal fruit.

Method of Attack

But how could Italy be attacked? He might succeed in reaching the peninsula by sea or by land; but if the project was to be no mere desperate adventure, but a military expedition with a strategic aim, a nearer basis for its operations was requisite than Spain or Africa. Hannibal could not rely for support on a fleet and a fortified harbour, for Rome was now mistress of

the sea. As little did the territory of the Italian confederacy present any tenable basis. If in very different times, and in spite of Hellenic sympathies, it had withstood the shock of Pyrrhus, it was not to be expected that it would now fall to pieces on the appearance of the Phoenician general; an invading army would without doubt be crushed between the network of Roman fortresses and the firmly-consolidated confederacy. The land of the Ligurians and Celts alone could be to Hannibal, what Poland was to Napoleon in his very similar Russian campaigns. These tribes still smarting under their scarcely ended struggle for independence, alien in race from the Italians, and feeling their very existence endangered by the chain of Roman fortresses and highways whose first coils were even now being fastened around them, could not but recognize their deliverers in the Phoenician army (which numbered in its ranks numerous Spanish Celts), and would serve as a first support for it to fall back upon—a source whence it might draw supplies and recruits. Already formal treaties were concluded with the Boii and the Insubres, by which they bound themselves to send guides to meet the Carthaginian army, to procure for it a good reception from the cognate tribes and supplies along its route, and to rise against the Romans as soon as it should set foot on Italian ground. In fine, the relations of Rome with the east led the Carthaginians to this same quarter. Macedonia, which by the victory of Sellasia had re-established its sovereignty in the Peloponnesus, was in strained relations with Rome; Demetrius of Pharos, who had exchanged the Roman alliance for that of Macedonia and had been dispossessed by the Romans, lived as an exile at the Macedonian court, and the latter had refused the demand which the Romans made for his surrender. If it was possible to combine the armies from the Guadalquivir and the Karasu anywhere against the common foe, it could only be done on the Po. Thus everything directed Hannibal to Northern Italy; and that the eyes of his father had already been turned to that quarter, is shown by the

reconnoitring party of Carthaginians, whom the Romans to their great surprise encountered in Liguria in 524.

The reason for Hannibal's preference of the land route to that by sea is less obvious; for that neither the maritime supremacy of the Romans nor their league with Massilia could have prevented a landing at Genoa, is evident, and was shown by the sequel. Our authorities fail to furnish us with several of the elements, on which a satisfactory answer to this question would depend, and which cannot be supplied by conjecture. Hannibal had to choose between two evils. Instead of exposing himself to the unknown and less calculable contingencies of a sea voyage and of naval war, it must have seemed to him the better course to accept the assurances, which beyond doubt were seriously meant, of the Boii and Insubres, and the more so that, even if the army should land at Genoa, it would still have mountains to cross; he could hardly know exactly, how much smaller are the difficulties presented by the Apennines at Genoa than by the main chain of the Alps. At any rate the route which he took was the primitive Celtic route, by which many much larger hordes had crossed the Alps: the ally and deliverer of the Celtic nation might without temerity venture to traverse it.

Departure of Hannibal

So Hannibal collected the troops, destined for the grand army, in Cartagena at the beginning of the favourable season; there were 90,000 infantry and 12,000 cavalry, of whom about two-thirds were Africans and a third Spaniards. The 37 elephants which they took with them were probably destined rather to make an impression on the Gauls than for serious warfare. Hannibal's infantry no longer needed, like that led by Xanthippus, to shelter itself behind a screen of elephants, and the general had too much sagacity to employ otherwise than sparingly and with caution that two-edged weapon, which had as often occasioned the defeat of its own as of the enemy's army.

With this force the general set out in the spring of 536 from Cartagena towards the Ebro. He so far informed his soldiers as to the measures which he had taken, particularly as to the connections he had entered into with the Celts and the resources and object of the expedition, that even the common soldier, whose military instincts lengthened war had developed, felt the clear perception and the steady hand of his leader, and followed him with implicit confidence to the unknown and distant land; and the fervid address, in which he laid before them the position of their country and the demands of the Romans, the slavery certainly reserved for their dear native land, and the disgrace of the imputation that they could surrender their beloved general and his staff, kindled a soldierly and patriotic ardour in the hearts of all.

Position of Rome

Their Uncertain Plans for War

The Roman state was in a plight, such as may occur even in firmly-established and sagacious aristocracies. The Romans knew doubtless what they wished to accomplish, and they took various steps; but nothing was done rightly or at the right time. They might long ago have been masters of the gates of the Alps and have settled matters with the Celts; the latter were still formidable, and the former were open. They might either have had friendship, with Carthage, had they honourably kept the peace of 513, or, had they not been disposed for peace, they might long ago have conquered Carthage: the peace was practically broken by the seizure of Sardinia, and they allowed the power of Carthage to recover itself undisturbed for twenty years. There was no great difficulty in maintaining peace with Macedonia; but they had forfeited her friendship for a trifling gain. There must have been a lack of some leading statesman to take a connected and commanding view of the position of affairs; on all hands either too little was done, or too much. Now the war began at a time and at a place which they had allowed

the enemy to determine; and, with all their well-founded conviction of military superiority, they were perplexed as to the object to be aimed at and the course to be followed in their first operations. They had at their disposal more than half a million of serviceable soldiers; the Roman cavalry alone was less good, and relatively less numerous, than the Carthaginian, the former constituting about a tenth, the latter an eighth, of the whole number of troops taking the field. None of the states affected by the war had any fleet corresponding to the Roman fleet of 220 quinqueremes, which had just returned from the Adriatic to the western sea. The natural and proper application of this crushing superiority of force was self-evident. It had been long settled that the war ought to be opened with a landing in Africa. The subsequent turn taken by events had compelled the Romans to embrace in their scheme of the war a simultaneous landing in Spain, chiefly to prevent the Spanish army from appearing before the walls of Carthage. In accordance with this plan they ought above all, when the war had been practically opened by Hannibal's attack on Saguntum in the beginning of 535, to have thrown a Roman army into Spain before the town fell; but they neglected the dictates of interest no less than of honour. For eight months Saguntum held out in vain: when the town passed into other hands, Rome had not even equipped her armament for landing in Spain. The country, however, between the Ebro and the Pyrenees was still free, and its tribes were not only the natural allies of the Romans, but had also, like the Saguntines, received from Roman emissaries promises of speedy assistance. Catalonia may be reached by sea from Italy in not much longer time than from Cartagena by land: had the Romans started, like the Phoenicians, in April, after the formal declaration of war that had taken place in the interval, Hannibal might have encountered the Roman legions on the line of the Ebro.

Hannibal on the Ebro

At length, certainly, the greater part of the army and of the fleet was got ready for the expedition to Africa, and the second consul Publius Cornelius Scipio was ordered to the Ebro; but he took time, and when an insurrection broke out on the Po, he allowed the army that was ready for embarkation to be employed there, and formed new legions for the Spanish expedition. So although Hannibal encountered on the Ebro very vehement resistance, it proceeded only from the natives; and, as under existing circumstances time was still more precious to him than the blood of his men, he surmounted the opposition after some months with the loss of a fourth part of his army, and reached the line of the Pyrenees. That the Spanish allies of Rome would be sacrificed a second time by that delay might have been as certainly foreseen, as the delay itself might have been easily avoided; but probably even the expedition to Italy itself, which in the spring of 536 must not have been anticipated in Rome, would have been averted by the timely appearance of the Romans in Spain. Hannibal had by no means the intention of sacrificing his Spanish "kingdom," and throwing himself like a desperado on Italy. The time which he had spent in the siege of Saguntum and in the reduction of Catalonia, and the considerable corps which he left behind for the occupation of the newly-won territory between the Ebro and the Pyrenees, sufficiently show that, had a Roman army disputed the possession of Spain with him, he would not have been content to withdraw from it; and—which was the main point—had the Romans been able to delay his departure from Spain for but a few weeks, winter would have closed the passes of the Alps before Hannibal reached them, and the African expedition would have departed without hindrance for its destination.

Hannibal in Gaul

Scipio at Massilia

Passage of the Rhone

Arrived at the Pyrenees, Hannibal sent home a portion of his troops; a measure which he had resolved on from the first with the view of showing to the soldiers how confident their general was of success, and of checking the feeling that his enterprise was one of those from which there is no return home. With an army of 50,000 infantry and 9000 cavalry, entirely veteran soldiers, he crossed the Pyrenees without difficulty, and then took the coast route by Narbonne and Nimes through the Celtic territory, which was opened to the army partly by the connections previously formed, partly by Carthaginian gold, partly by arms. It was not till it arrived in the end of July at the Rhone opposite Avignon, that a serious resistance appeared to await it. The consul Scipio, who on his voyage to Spain had landed at Massilia (about the end of June), had there been informed that he had come too late and that Hannibal had crossed not only the Ebro but the Pyrenees. On receiving these accounts, which appear to have first opened the eyes of the Romans to the course and the object of Hannibal, the consul had temporarily given up his expedition to Spain, and had resolved in connection with the Celtic tribes of that region, who were under the influence of the Massiliots and thereby under that of Rome, to receive the Phoenicians on the Rhone, and to obstruct their passage of the river and their march into Italy. Fortunately for Hannibal, opposite to the point at which he meant to cross, there lay at the moment only the general levy of the Celts, while the consul himself with his army of 22,000 infantry and 2000 horse was still in Massilia, four days' march farther down the stream. The messengers of the Gallic levy hastened to inform him. It was the object of Hannibal to convey his army with its numerous cavalry and elephants across the rapid stream under the eyes of the enemy, and before the arrival of Scipio; and he possessed not a single boat. Immediately by his directions all the boats belonging to the numerous navigators of the Rhone in the neighbourhood were bought up at any price, and the deficiency of boats was supplied by rafts made from felled trees; and in fact the whole numerous

army could be conveyed over in one day. While this was being done, a strong division under Hanno, son of Bomilcar, proceeded by forced marches up the stream till they reached a suitable point for crossing, which they found undefended, situated two short days' march above Avignon. Here they crossed the river on hastily constructed rafts, with the view of then moving down on the left bank and taking the Gauls, who were barring the passage of the main army, in the rear. On the morning of the fifth day after they had reached the Rhone, and of the third after Hanno's departure, the smoke-signals of the division that had been detached rose up on the opposite bank and gave to Hannibal the anxiously awaited summons for the crossing. Just as the Gauls, seeing that the enemy's fleet of boats began to move, were hastening to occupy the bank, their camp behind them suddenly burst into flames. Surprised and divided, they were unable either to withstand the attack or to resist the passage, and they dispersed in hasty flight.

Scipio meanwhile held councils of war in Massilia as to the proper mode of occupying the ferries of the Rhone, and was not induced to move even by the urgent messages that came from the leaders of the Celts. He distrusted their accounts, and he contented himself with detaching a weak Roman cavalry division to reconnoitre on the left bank of the Rhone. This detachment found the whole enemy's army already transported to that bank, and occupied in bringing over the elephants which alone remained on the right bank of the stream; and, after it had warmly engaged some Carthaginian squadrons in the district of Avignon, merely for the purpose of enabling it to complete its reconnaissance—the first encounter of the Romans and Phoenicians in this war—it hastily returned to report at headquarters. Scipio now started in the utmost haste with all his troops for Avignon; but, when he arrived there, even the Carthaginian cavalry that had been left behind to cover the passage of the elephants had already taken its departure three days ago, and nothing remained for the consul but to return

with weary troops and little credit to Massilia, and to revile the "cowardly flight" of the Punic leader. Thus the Romans had for the third time through pure negligence abandoned their allies and an important line of defence; and not only so, but by passing after this first blunder from mistaken slackness to mistaken haste, and by still attempting without any prospect of success to do what might have been done with so much certainty a few days before, they let the real means of repairing their error pass out of their hands. When once Hannibal was in the Celtic territory on the Roman side of the Rhone, he could no longer be prevented from reaching the Alps; but if Scipio had at the first accounts proceeded with his whole army to Italy—the Po might have been reached by way of Genoa in seven days—and had united with his corps the weak divisions in the valley of the Po, he might have at least prepared a formidable reception for the enemy. But not only did he lose precious time in the march to Avignon, but, capable as otherwise he was, he wanted either the political courage or the military sagacity to change the destination of his corps as the change of circumstances required. He sent the main body under his brother Gnaeus to Spain, and returned himself with a few men to Pisae.

Hannibal's Passage of the Alps

Hannibal, who after the passage of the Rhone had in a great assembly of the army explained to his troops the object of his expedition, and had brought forward the Celtic chief Magilus himself, who had arrived from the valley of the Po, to address the army through an interpreter, meanwhile continued his march to the passes of the Alps without obstruction. Which of these passes he should choose, could not be at once determined either by the shortness of the route or by the disposition of the inhabitants, although he had no time to lose either in circuitous routes or in combat. He had necessarily to select a route which should be practicable for his baggage, his numerous cavalry, and his elephants, and in which an army could procure

sufficient means of subsistence either by friendship or by force; for, although Hannibal had made preparations to convey provisions after him on beasts of burden, these could only meet for a few days the wants of an army which still, notwithstanding its great losses, amounted to nearly 50,000 men. Leaving out of view the coast route, which Hannibal abstained from taking not because the Romans barred it, but because it would have led him away from his destination, there were only two routes of note leading across the Alps from Gaul to Italy in ancient times:(3) the pass of the Cottian Alps (Mont Genevre) leading into the territory of the Taurini (by Susa or Fenestrelles to Turin), and that of the Graian Alps (the Little St. Bernard) leading into the territory of the Salassi (to Aosta and Ivrea). The former route is the shorter; but, after leaving the valley of the Rhone, it passes by the impracticable and unfruitful river-valleys of the Drac, the Romanche, and the upper Durance, through a difficult and poor mountain country, and requires at least a seven or eight days' mountain march. A military road was first constructed there by Pompeius, to furnish a shorter communication between the provinces of Cisalpine and Transalpine Gaul.

The route by the Little St. Bernard is somewhat longer; but after crossing the first Alpine wall that forms the eastern boundary of the Rhone valley, it keeps by the valley of the upper Isere, which stretches from Grenoble by way of Chambery up to the very foot of the Little St. Bernard or, in other words, of the chain of the higher Alps, and is the broadest, most fertile and most populous of all the Alpine valleys. Moreover, the pass of the Little St. Bernard, while not the lowest of all the natural passes of the Alps, is by far the easiest; although no artificial road was constructed there, an Austrian corps with artillery crossed the Alps by that route in 1815. And lastly this route, which only leads over two mountain ridges, has been from the earliest times the great military route from the Celtic to the Italian territory. The Carthaginian army had thus in fact no choice. It was a fortunate coincidence, but not a motive influencing the decision of Hannibal, that the

Celtic tribes allied with him in Italy inhabited the country up to the Little St. Bernard, while the route by Mont Genevre would have brought him at first into the territory of the Taurini, who were from ancient times at feud with the Insubres.

So the Carthaginian army marched in the first instance up the Rhone towards the valley of the upper Isere, not, as might be presumed, by the nearest route up the left bank of the lower Isere from Valence to Grenoble, but through the "island" of the Allobroges, the rich, and even then thickly peopled, low ground, which is enclosed on the north and west by the Rhone, on the south by the Isere, and on the east by the Alps. The reason of this movement was, that the nearest route would have led them through an impracticable and poor mountain- country, while the "island" was level and extremely fertile, and was separated by but a single mountain-wall from the valley of the upper Isere. The march along the Rhone into, and across, the "island" to the foot of the Alpine wall was accomplished in sixteen days: it presented little difficulty, and in the "island" itself Hannibal dexterously availed himself of a feud that had broken out between two chieftains of the Allobroges to attach to his interests one of the most important of the chiefs, who not only escorted the Carthaginians through the whole plain, but also supplied them with provisions, and furnished the soldiers with arms, clothing, and shoes. But the expedition narrowly escaped destruction at the crossing of the first Alpine chain, which rises precipitously like a wall, and over which only a single available path leads (over the Mont du Chat, near the hamlet Chevelu). The population of the Allobroges had strongly occupied the pass. Hannibal learned the state of matters early enough to avoid a surprise, and encamped at the foot, until after sunset the Celts dispersed to the houses of the nearest town; he then seized the pass in the night. Thus the summit was gained; but on the extremely steep path, which leads down from the summit to the lake of Bourget, the mules and horses slipped and fell. The assaults, which at suitable points were made by the

Celts upon the army in march, were very annoying, not so much of themselves as by reason of the turmoil which they occasioned; and when Hannibal with his light troops threw himself from above on the Allobroges, these were chased doubtless without difficulty and with heavy loss down the mountain, but the confusion, in the train especially, was further increased by the noise of the combat. So, when after much loss he arrived in the plain, Hannibal immediately attacked the nearest town, to chastise and terrify the barbarians, and at the same time to repair as far as possible his loss in sumpter animals and horses. After a day's repose in the pleasant valley of Chambery the army continued its march up the Isere, without being detained either by want of supplies or by attacks so long as the valley continued broad and fertile. It was only when on the fourth day they entered the territory of the Ceutrones (the modern Tarantaise) where the valley gradually contracts, that they had again greater occasion to be on their guard. The Ceutrones received the army at the boundary of their country (somewhere about Conflans) with branches and garlands, furnished cattle for slaughter, guides, and hostages; and the Carthaginians marched through their territory as through a friendly land. When, however, the troops had reached the very foot of the Alps, at the point where the path leaves the Isere, and winds by a narrow and difficult defile along the brook Reclus up to the summit of the St. Bernard, all at once the militia of the Ceutrones appeared partly in the rear of the army, partly on the crests of the rocks enclosing the pass on the right and left, in the hope of cutting off the train and baggage. But Hannibal, whose unerring tact had seen in all those advances made by the Ceutrones nothing but the design of procuring at once immunity for their territory and a rich spoil, had in expectation of such an attack sent forward the baggage and cavalry, and covered the march with all his infantry. By this means he frustrated the design of the enemy, although he could not prevent them from moving along the mountain slopes parallel to the march of the infantry, and inflicting very considerable loss by

hurling or rolling down stones. At the "white stone" (still called -la roche blanche-), a high isolated chalk cliff standing at the foot of the St. Bernard and commanding the ascent to it, Hannibal encamped with his infantry, to cover the march of the horses and sumpter animals laboriously climbing upward throughout the whole night; and amidst continual and very bloody conflicts he at length on the following day reached the summit of the pass. There, on the sheltered table-land which spreads to the extent of two and a half miles round a little lake, the source of the Doria, he allowed the army to rest. Despondency had begun to seize the minds of the soldiers. The paths that were becoming ever more difficult, the provisions failing, the marching through defiles exposed to the constant attacks of foes whom they could not reach, the sorely thinned ranks, the hopeless situation of the stragglers and the wounded, the object which appeared chimerical to all save the enthusiastic leader and his immediate staff—all these things began to tell even on the African and Spanish veterans. But the confidence of the general remained ever the same; numerous stragglers rejoined the ranks; the friendly Gauls were near; the watershed was reached, and the view of the descending path, so gladdening to the mountain-pilgrim, opened up: after a brief repose they prepared with renewed courage for the last and most difficult undertaking, —the downward march. In it the army was not materially annoyed by the enemy; but the advanced season—it was already the beginning of September—occasioned troubles in the descent, equal to those which had been occasioned in the ascent by the attacks of the adjoining tribes. On the steep and slippery mountain- slope along the Doria, where the recently-fallen snow had concealed and obliterated the paths, men and animals went astray and slipped, and were precipitated into the chasms. In fact, towards the end of the first day's march they reached a portion of the path about 200 paces in length, on which avalanches are constantly descending from the precipices of the Cramont that overhang it, and where in cold summers snow lies throughout the year. The infantry

passed over; but the horses and elephants were unable to cross the smooth masses of ice, on which there lay but a thin covering of freshly-fallen snow, and the general encamped above the difficult spot with the baggage, the cavalry, and the elephants. On the following day the horsemen, by zealous exertion in entrenching, prepared a path for horses and beasts of burden; but it was not until after a further labour of three days with constant reliefs, that the half-famished elephants could at length be conducted over. In this way the whole army was after a delay of four days once more united; and after a further three days' march through the valley of the Doria, which was ever widening and displaying greater fertility, and whose inhabitants the Salassi, clients of the Insubres, hailed in the Carthaginians their allies and deliverers, the army arrived about the middle of September in the plain of Ivrea, where the exhausted troops were quartered in the villages, that by good nourishment and a fortnight's repose they might recruit from their unparalleled hardships. Had the Romans placed a corps, as they might have done, of 30,000 men thoroughly fresh and ready for action somewhere near Turin, and immediately forced on a battle, the prospects of Hannibal's great plan would have been very dubious; fortunately for him, once more, they were not where they should have been, and they did not disturb the troops of the enemy in the repose which was so greatly needed.(4)

Results

The object was attained, but at a heavy cost. Of the 50,000 veteran infantry and the 9000 cavalry, which the army had numbered at the crossing of the Pyrenees, more than half had been sacrificed in the conflicts, the marches, and the passages of the rivers. Hannibal now, according to his own statement, numbered not more than 20,000 infantry—of whom three-fifths were Libyans and two-fifths Spaniards—and 6000 cavalry, part of them doubtless dismounted: the comparatively small loss of the latter proclaimed the excellence of the Numidian cavalry no less than the consideration of the

general in making a sparing use of troops so select. A march of 526 miles or about 33 moderate days' marching—the continuance and termination of which were disturbed by no special misfortunes on a great scale that could not be anticipated, but were, on the other hand, rendered possible only by incalculable pieces of good fortune and still more incalculable blunders of the enemy, and which yet not only cost such sacrifices, but so fatigued and demoralized the army, that it needed a prolonged rest in order to be again ready for action—is a military operation of doubtful value, and it may be questioned whether Hannibal himself regarded it as successful. Only in so speaking we may not pronounce an absolute censure on the general: we see well the defects of the plan of operations pursued by him, but we cannot determine whether he was in a position to foresee them—his route lay through an unknown land of barbarians—or whether any other plan, such as that of taking the coast road or of embarking at Cartagena or at Carthage, would have exposed him to fewer dangers. The cautious and masterly execution of the plan in its details at any rate deserves our admiration, and to whatever causes the result may have been due —whether it was due mainly to the favour of fortune, or mainly to the skill of the general—the grand idea of Hamilcar, that of taking up the conflict with Rome in Italy, was now realized. It was his genius that projected this expedition; and as the task of Stein and Scharnhorst was more difficult and nobler than that of York and Blucher, so the unerring tact of historical tradition has always dwelt on the last link in the great chain of preparatory steps, the passage of the Alps, with a greater admiration than on the battles of the Trasimene lake and of the plain of Cannae.

Notes for Chapter IV

1. Our accounts as to these events are not only imperfect but one-sided, for of course it was the version of the Carthaginian peace party which was adopted by the Roman annalists. Even, however, in our fragmentary and confused accounts (the most important are those of Fabius, in Polyb. iii. 8; Appian. Hisp. 4; and Diodorus, xxv. p. 567) the relations of the parties appear dearly enough. Of the vulgar gossip by which its opponents sought to blacken the "revolutionary combination" (—*etaireia ton ponerotaton anthropon*—) specimens may be had in Nepos (Ham. 3), to which it will be difficult perhaps to find a parallel.

2. The Barca family conclude the most important state treaties, and the ratification of the governing board is a formality (Pol. iii. 21). Rome enters her protest before them and before the senate (Pol. iii. 15). The position of the Barca family towards Carthage in many points resembles that of the Princes of Orange towards the States-General.

3. It was not till the middle ages that the route by Mont Cenis became a military road. The eastern passes, such as that over the Poenine Alps or the Great St. Bernard—which, moreover, was only converted into a military road by Caesar and Augustus—are, of course, in this case out of the question.

4. The much-discussed questions of topography, connected with this celebrated expedition, may be regarded as cleared up and substantially solved by the masterly investigations of Messrs. Wickham and Cramer. Respecting the chronological questions, which likewise present difficulties, a few remarks may be exceptionally allowed to have a place here.

When Hannibal reached the summit of the St. Bernard, "the peaks were already beginning to be thickly covered with snow" (Pol. iii. 54), snow lay on the route (Pol. iii. 55), perhaps for the most part snow not freshly fallen, but proceeding from the fall of avalanches. At the St. Bernard winter begins

about Michaelmas, and the falling of snow in September; when the Englishmen already mentioned crossed the mountain at the end of August, they found almost no snow on their road, but the slopes on both sides were covered with it. Hannibal thus appears to have arrived at the pass in the beginning of September; which is quite compatible with the statement that he arrived there "when the winter was already approaching" —for —*sunaptein ten tes pleiados dusin*— (Pol. iii. 54) does not mean anything more than this, least of all, the day of the heliacal setting of the Pleiades (about 26th October); comp. Ideler, Chronol. i. 241.

If Hannibal reached Italy nine days later, and therefore about the middle of September, there is room for the events that occurred from that time up to the battle of the Trebia towards the end of December (—*peri cheimerinas tropas*—, Pol. iii. 72), and in particular for the transporting of the army destined for Africa from Lilybaeum to Placentia. This hypothesis further suits the statement that the day of departure was announced at an assembly of the army —*upo ten earinen oran*— (Pol. iii. 34), and therefore towards the end of March, and that the march lasted five (or, according to App. vii. 4, six) months. If Hannibal was thus at the St. Bernard in the beginning of September, he must have reached the Rhone at the beginning of August —for he spent thirty days in making his way from the Rhone thither —and in that case it is evident that Scipio, who embarked at the beginning of summer (Pol. iii. 41) and so at latest by the commencement of June, must have spent much time on the voyage or remained for a considerable period in singular inaction at Massilia.

CHAPTER V

The War under Hannibal to the Battle of Cannae

Hannibal and the Italian Celts

The appearance of the Carthaginian army on the Roman side of the Alps changed all at once the situation of affairs, and disconcerted the Roman plan of war. Of the two principal armies of the Romans, one had landed in Spain and was already engaged with the enemy there: it was no longer possible to recall it. The second, which was destined for Africa under the command of the consul Tiberius Sempronius, was fortunately still in Sicily: in this instance Roman delay for once proved useful. Of the two Carthaginian squadrons destined for Italy and Sicily, the first was dispersed by a storm, and some of its vessels were captured by the Syracusans near Messina; the second had endeavoured in vain to surprise Lilybaeum, and had thereafter been defeated in a naval engagement off that port. But the continuance of the enemy's squadrons in the Italian waters was so inconvenient, that the consul determined, before crossing to Africa, to occupy the small islands around Sicily, and to drive away the Carthaginian fleet operating against Italy. The summer passed away in the conquest of Melita, in the chase after the enemy's squadron, which he expected to find at the Lipari islands while it had made a descent near Vibo (Monteleone) and pillaged the Bruttian coast, and, lastly, in gaining information as to a suitable spot for landing on the coast of Africa; so that the army and fleet

were still at Lilybaeum, when orders arrived from the senate that they should return with all possible speed for the defence of their homes.

In this way, while the two great Roman armies, each in itself equal in numbers to that of Hannibal, remained at a great distance from the valley of the Po, the Romans were quite unprepared for an attack in that quarter. No doubt a Roman army was there, in consequence of an insurrection that had broken out among the Celts even before the arrival of the Carthaginian army. The founding of the two Roman strongholds of Placentia and Cremona, each of which received 6000 colonists, and more especially the preparations for the founding of Mutina in the territory of the Boii, had already in the spring of 536 driven the Boii to revolt before the time concerted with Hannibal; and the Insubres had immediately joined them. The colonists already settled in the territory of Mutina, suddenly attacked, took refuge in the town. The praetor Lucius Manlius, who held the chief command at Ariminum, hastened with his single legion to relieve the blockaded colonists; but he was surprised in the woods, and no course was left to him after sustaining great loss but to establish himself upon a hill and to submit to a siege there on the part of the Boii, till a second legion sent from Rome under the praetor Lucius Atilius succeeded in relieving army and town, and in suppressing for the moment the Gaulish insurrection. This premature rising of the Boii on the one hand, by delaying the departure of Scipio for Spain, essentially promoted the plans of Hannibal; on the other hand, but for its occurrence he would have found the valley of the Po entirely unoccupied, except the fortresses. But the Roman corps, whose two severely thinned legions did not number 20,000 soldiers, had enough to do to keep the Celts in check, and did not think of occupying the passes of the Alps. The Romans only learned that the passes were threatened, when in August the consul Publius Scipio returned without his army from Massilia to Italy, and perhaps even then they gave little heed to the matter, because, forsooth, the foolhardy attempt would be frustrated by the Alps alone. Thus

at the decisive hour and on the decisive spot there was not even a Roman outpost. Hannibal had full time to rest his army, to capture after a three days' siege the capital of the Taurini which closed its gates against him, and to induce or terrify into alliance with him all the Ligurian and Celtic communities in the upper basin of the Po, before Scipio, who had taken the command in the Po valley, encountered him.

Scipio in the Valley of the Po

Conflict on the Ticino

The Armies at Placentia

Scipio, who, with an army considerably smaller and very weak in cavalry, had the difficult task of preventing the advance of the superior force of the enemy and of repressing the movements of insurrection which everywhere were spreading among the Celts, had crossed the Po presumably at Placentia, and marched up the river to meet the enemy, while Hannibal after the capture of Turin marched downwards to relieve the Insubres and Boii. In the plain between the Ticino and the Sesia, not far from Vercelli, the Roman cavalry, which had advanced with the light infantry to make a reconnaissance in force, encountered the Punic cavalry sent out for the like purpose, both led by the generals in person. Scipio accepted battle when offered, notwithstanding the superiority of the enemy; but his light infantry, which was placed in front of the cavalry, dispersed before the charge of the heavy cavalry of the enemy, and while the latter engaged the masses of the Roman horsemen in front, the light Numidian cavalry, after having pushed aside the broken ranks of the enemy's infantry, took the Roman horsemen in flank and rear. This decided the combat. The loss of the Romans was very considerable. The consul himself, who made up as a soldier for his deficiencies as a general, received a dangerous wound, and owed his safety entirely to the devotion of his son of seventeen, who, courageously dashing into the ranks of the enemy, compelled his

squadron to follow him and rescued his father. Scipio, enlightened by this combat as to the strength of the enemy, saw the error which he had committed in posting himself, with a weaker army, in the plain with his back to the river, and resolved to return to the right bank of the Po under the eyes of his antagonist. As the operations became contracted into a narrower space and his illusions regarding Roman invincibility departed, he recovered the use of his considerable military talents, which the adventurous boldness of his youthful opponent's plans had for a moment paralyzed. While Hannibal was preparing for a pitched battle, Scipio by a rapidly projected and steadily executed march succeeded in reaching the right bank of the river which in an evil hour he had abandoned, and broke down the bridge over the Po behind his army; the Roman detachment of 600 men charged to cover the process of destruction were, however, intercepted and made prisoners. But as the upper course of the river was in the hands of Hannibal, he could not be prevented from marching up the stream, crossing on a bridge of boats, and in a few days confronting the Roman army on the right bank. The latter had taken a position in the plain in front of Placentia; but the mutiny of a Celtic division in the Roman camp, and the Gallic insurrection breaking out afresh all around, compelled the consul to evacuate the plain and to post himself on the hills behind the Trebia. This was accomplished without notable loss, because the Numidian horsemen sent in pursuit lost their time in plundering, and setting fire to, the abandoned camp. In this strong position, with his left wing resting on the Apennines, his right on the Po and the fortress of Placentia, and covered in front by the Trebia—no inconsiderable stream at that season—Scipio was unable to save the rich stores of Clastidium (Casteggio) from which in this position he was cut off by the army of the enemy; nor was he able to avert the insurrectionary movement on the part of almost all the Gallic cantons, excepting the Cenomani who were friendly to Rome; but he completely checked the progress of Hannibal, and compelled him to pitch his camp

opposite to that of the Romans. Moreover, the position taken up by Scipio, and the circumstance of the Cenomani threatening the borders of the Insubres, hindered the main body of the Gallic insurgents from directly joining the enemy, and gave to the second Roman army, which meanwhile had arrived at Ariminum from Lilybaeum, the opportunity of reaching Placentia through the midst of the insurgent country without material hindrance, and of uniting itself with the army of the Po.

Battle on the Trebia

Scipio had thus solved his difficult task completely and brilliantly. The Roman army, now close on 40,000 strong, and though not a match for its antagonist in cavalry, at least equal in infantry, had simply to remain in its existing position, in order to compel the enemy either to attempt in the winter season the passage of the river and an attack upon the camp, or to suspend his advance and to test the fickle temper of the Gauls by the burden of winter quarters. Clear, however, as this was, it was no less clear that it was now December, and that under the course proposed the victory might perhaps be gained by Rome, but would not be gained by the consul Tiberius Sempronius, who held the sole command in consequence of Scipio's wound, and whose year of office expired in a few months. Hannibal knew the man, and neglected no means of alluring him to fight. The Celtic villages that had remained faithful to the Romans were cruelly laid waste, and, when this brought on a conflict between the cavalry, Hannibal allowed his opponents to boast of the victory. Soon thereafter on a raw rainy day a general engagement came on, unlocked for by the Romans. From the earliest hour of the morning the Roman light troops had been skirmishing with the light cavalry of the enemy; the latter slowly retreated, and the Romans eagerly pursued it through the deeply swollen Trebia to follow up the advantage which they had gained. Suddenly the cavalry halted; the Roman vanguard found itself face to face with the army of Hannibal drawn

up for battle on a field chosen by himself; it was lost, unless the main body should cross the stream with all speed to its support. Hungry, weary, and wet, the Romans came on and hastened to form in order of battle, the cavalry, as usual, on the wings, the infantry in the centre. The light troops, who formed the vanguard on both sides, began the combat: but the Romans had already almost exhausted their missiles against the cavalry, and immediately gave way. In like manner the cavalry gave way on the wings, hard pressed by the elephants in front, and outflanked right and left by the far more numerous Carthaginian horse. But the Roman infantry proved itself worthy of its name: at the beginning of the battle it fought with very decided superiority against the infantry of the enemy, and even when the repulse of the Roman horse allowed the enemy's cavalry and light-armed troops to turn their attacks against the Roman infantry, the latter, although ceasing to advance, obstinately maintained its ground. At this stage a select Carthaginian band of 1000 infantry, and as many horsemen, under the leadership of Mago, Hannibal's youngest brother, suddenly emerged from an ambush in the rear of the Roman army, and fell upon the densely entangled masses. The wings of the army and the rear ranks of the Roman centre were broken up and scattered by this attack, while the first division, 10,000 men strong, in compact array broke through the Carthaginian line, and made a passage for itself obliquely through the midst of the enemy, inflicting great loss on the opposing infantry and more especially on the Gallic insurgents. This brave body, pursued but feebly, thus reached Placentia. The remaining mass was for the most part slaughtered by the elephants and light troops of the enemy in attempting to cross the river: only part of the cavalry and some divisions of infantry were able, by wading through the river, to gain the camp whither the Carthaginians did not follow them, and thus they too reached Placentia.(1) Few battles confer more honour on the Roman soldier than this on the Trebia, and few at the same time furnish graver impeachment of the general in command;

although the candid judge will not forget that a commandership in chief expiring on a definite day was an unmilitary institution, and that figs cannot be reaped from thistles. The victory came to be costly even to the victors. Although the loss in the battle fell chiefly on the Celtic insurgents, yet a multitude of the veteran soldiers of Hannibal died afterwards from diseases engendered by that raw and wet winter day, and all the elephants perished except one.

Hannibal Master of Northern Italy

The effect of this first victory of the invading army was, that the national insurrection now spread and assumed shape without hindrance throughout the Celtic territory. The remains of the Roman army of the Po threw themselves into the fortresses of Placentia and Cremona: completely cut off from home, they were obliged to procure their supplies by way of the river. The consul Tiberius Sempronius only escaped, as if by miracle, from being taken prisoner, when with a weak escort of cavalry he went to Rome on account of the elections. Hannibal, who would not hazard the health of his troops by further marches at that inclement season, bivouacked for the winter where he was; and, as a serious attempt on the larger fortresses would have led to no result, contented himself with annoying the enemy by attacks on the river port of Placentia and other minor Roman positions. He employed himself mainly in organizing the Gallic insurrection: more than 60,000 foot soldiers and 4000 horsemen from the Celts are said to have joined his army.

Military and Political Position of Hannibal

No extraordinary exertions were made in Rome for the campaign of 537. The senate thought, and not unreasonably, that, despite the lost battle, their position was by no means fraught with serious danger. Besides the coast garrisons, which were despatched to Sardinia, Sicily, and Tarentum, and the

reinforcements which were sent to Spain, the two new consuls Gaius Flaminius and Gnaeus Servilius obtained only as many men as were necessary to restore the four legions to their full complement; additions were made to the strength of the cavalry alone. The consuls had to protect the northern frontier, and stationed themselves accordingly on the two highways which led from Rome to the north, the western of which at that time terminated at Arretium, and the eastern at Ariminum; Gaius Flaminius occupied the former, Gnaeus Servilius the latter. There they ordered the troops from the fortresses on the Po to join them, probably by water, and awaited the commencement of the favourable season, when they proposed to occupy in the defensive the passes of the Apennines, and then, taking up the offensive, to descend into the valley of the Po and effect a junction somewhere near Placentia. But Hannibal by no means intended to defend the valley of the Po. He knew Rome better perhaps than the Romans knew it themselves, and was very well aware how decidedly he was the weaker and continued to be so notwithstanding the brilliant battle on the Trebia; he knew too that his ultimate object, the humiliation of Rome, was not to be wrung from the unbending Roman pride either by terror or by surprise, but could only be gained by the actual subjugation of the haughty city. It was clearly apparent that the Italian federation was in political solidity and in military resources infinitely superior to an adversary, who received only precarious and irregular support from home, and who in Italy was dependent for primary aid solely on the vacillating and capricious nation of the Celts; and that the Phoenician foot soldier was, notwithstanding all the pains taken by Hannibal, far inferior in point of tactics to the legionary, had been completely proved by the defensive movements of Scipio and the brilliant retreat of the defeated infantry on the Trebia. From this conviction flowed the two fundamental principles which determined Hannibal's whole method of operations in Italy—viz., that the war should be carried on, in somewhat adventurous fashion, with constant changes in the plan and in the

theatre of operations; and that its favourable issue could only be looked for as the result of political and not of military successes—of the gradual loosening and final breaking up of the Italian federation. That mode of carrying on the war was necessary, because the single element which Hannibal had to throw into the scale against so many disadvantages—his military genius—only told with its full weight, when he constantly foiled his opponents by unexpected combinations; he was undone, if the war became stationary. That aim was the aim dictated to him by right policy, because, mighty conqueror though he was in battle, he saw very clearly that on each occasion he vanquished the generals and not the city, and that after each new battle the Romans remained just as superior to the Carthaginians as he was personally superior to the Roman commanders. That Hannibal even at the height of his fortune never deceived himself on this point, is worthier of admiration than his most admired battles.

Hannibal Crosses the Apennines

It was these motives, and not the entreaties of the Gauls that he should spare their country—which would not have influenced him—that induced Hannibal now to forsake, as it were, his newly acquired basis of operations against Italy, and to transfer the scene of war to Italy itself. Before doing so he gave orders that all the prisoners should be brought before him. He ordered the Romans to be separated and loaded with chains as slaves—the statement that Hannibal put to death all the Romans capable of bearing arms, who here and elsewhere fell into his hands, is beyond doubt at least strongly exaggerated. On the other hand, all the Italian allies were released without ransom, and charged to report at home that Hannibal waged war not against Italy, but against Rome; that he promised to every Italian community the restoration of its ancient independence and its ancient boundaries; and that the deliverer was about to follow those whom he had set free, bringing release and revenge. In fact, when the winter ended, he

started from the valley of the Po to search for a route through the difficult defiles of the Apennines. Gaius Flaminius, with the Etruscan army, was still for the moment at Arezzo, intending to move from that point towards Lucca in order to protect the vale of the Arno and the passes of the Apennines, so soon as the season should allow. But Hannibal anticipated him. The passage of the Apennines was accomplished without much difficulty, at a point as far west as possible or, in other words, as distant as possible from the enemy; but the marshy low grounds between the Serchio and the Arno were so flooded by the melting of the snow and the spring rains, that the army had to march four days in water, without finding any other dry spot for resting by night than was supplied by piling the baggage or by the sumpter animals that had fallen. The troops underwent unutterable sufferings, particularly the Gallic infantry, which marched behind the Carthaginians along tracks already rendered impassable: they murmured loudly and would undoubtedly have dispersed to a man, had not the Carthaginian cavalry under Mago, which brought up the rear, rendered flight impossible. The horses, assailed by a distemper in their hoofs, fell in heaps; various diseases decimated the soldiers; Hannibal himself lost an eye in consequence of ophthalmia.

Flaminius

But the object was attained. Hannibal encamped at Fiesole, while Gaius Flaminius was still waiting at Arezzo until the roads should become passable that he might blockade them. After the Roman defensive position had thus been turned, the best course for the consul, who might perhaps have been strong enough to defend the mountain passes but certainly was unable now to face Hannibal in the open field, would have been to wait till the second army, which had now become completely superfluous at Ariminum, should arrive. He himself, however, judged otherwise. He was a political party leader, raised to distinction by his efforts to limit the power

of the senate; indignant at the government in consequence of the aristocratic intrigues concocted against him during his consulship; carried away, through a doubtless justifiable opposition to their beaten track of partisanship, into a scornful defiance of tradition and custom; intoxicated at once by blind love of the common people and equally bitter hatred of the party of the nobles; and, in addition to all this, possessed with the fixed idea that he was a military genius. His campaign against the Insubres of 531, which to unprejudiced judges only showed that good! soldiers often repair the errors of bad generals,(2) was regarded by him and by his adherents as an irrefragable proof that the Romans had only to put Gaius Flaminius at the head of the army in order to make a speedy end of Hannibal. Talk of this sort had procured for him his second consulship, and hopes of this sort had now brought to his camp so great a multitude of unarmed followers eager for spoil, that their number, according to the assurance of sober historians, exceeded that of the legionaries. Hannibal based his plan in part on this circumstance. So far from attacking him, he marched past him, and caused the country all around to be pillaged by the Celts who thoroughly understood plundering, and by his numerous cavalry. The complaints and indignation of the multitude which had to submit to be plundered under the eyes of the hero who had promised to enrich them, and the protestation of the enemy that they did not believe him possessed of either the power or the resolution to undertake anything before the arrival of his colleague, could not but induce such a man to display his genius for strategy, and to give a sharp lesson to his inconsiderate and haughty foe.

Battle on the Trasimene Lake

No plan was ever more successful. In haste, the consul followed the line of march of the enemy, who passed by Arezzo and moved slowly through the rich valley of the Chiana towards Perugia. He overtook him in the district of Cortona, where Hannibal, accurately informed of his antagonist's

march, had had full time to select his field of battle—a narrow defile between two steep mountain walls, closed at its outlet by a high hill, and at its entrance by the Trasimene lake. With the flower of his infantry he barred the outlet; the light troops and the cavalry placed themselves in concealment on either side. The Roman columns advanced without hesitation into the unoccupied pass; the thick morning mist concealed from them the position of the enemy. As the head of the Roman line approached the hill, Hannibal gave the signal for battle; the cavalry, advancing behind the heights, closed the entrance of the pass, and at the same time the mist rolling away revealed the Phoenician arms everywhere along the crests on the right and left. There was no battle; it was a mere rout. Those that remained outside of the defile were driven by the cavalry into the lake. The main body was annihilated in the pass itself almost without resistance, and most of them, including the consul himself, were cut down in the order of march. The head of the Roman column, formed of 6000 infantry, cut their way through the infantry of the enemy, and proved once more the irresistible might of the legions; but, cut off from the rest of the army and without knowledge of its fate, they marched on at random, were surrounded on the following day, on a hill which they had occupied, by a corps of Carthaginian cavalry, and—as the capitulation, which promised them a free retreat, was rejected by Hannibal—were all treated as prisoners of war. 15,000 Romans had fallen, and as many were captured; in other words, the army was annihilated. The slight Carthaginian loss—1500 men—again fell mainly upon the Gauls.(3) And, as if this were not enough, immediately after the battle on the Trasimene lake, the cavalry of the army of Ariminum under Gaius Centenius, 4000 strong, which Gnaeus Servilius had sent forward for the temporary support of his colleague while he himself advanced by slow marches, was likewise surrounded by the Phoenician army, and partly slain, partly made prisoners. All Etruria was lost, and Hannibal might without hindrance march on Rome. The Romans prepared

themselves for the worst; they broke down the bridges over the Tiber, and nominated Quintus Fabius Maximus dictator to repair the walls and conduct the defence, for which an army of reserve was formed. At the same time two new legions were summoned under arms in the room of those annihilated, and the fleet, which might become of importance in the event of a siege, was put in order.

Hannibal on the East Coast Reorganization of the Carthaginian Army

But Hannibal was more farsighted than king Pyrrhus. He did not march on Rome; nor even against Gnaeus Servilius, an able general, who had with the help of the fortresses on the northern road preserved his army hitherto uninjured, and would perhaps have kept his antagonist at bay. Once more a movement occurred which was quite unexpected. Hannibal marched past the fortress of Spoletium, which he attempted in vain to surprise, through Umbria, fearfully devastated the territory of Picenum which was covered all over with Roman farmhouses, and halted on the shores of the Adriatic. The men and horses of his army had not yet recovered from the painful effects of their spring campaign; here he rested for a considerable time to allow his army to recruit its strength in a pleasant district and at a fine season of the year, and to reorganize his Libyan infantry after the Roman mode, the means for which were furnished to him by the mass of Roman arms among the spoil. From this point, moreover, he resumed his long- interrupted communication with his native land, sending his messages of victory by water to Carthage. At length, when his army was sufficiently restored and had been adequately exercised in the use of the new arms, he broke up and marched slowly along the coast into southern Italy.

War in Lower Italy Fabius

He had calculated correctly, when he chose this time for remodelling his infantry. The surprise of his antagonists, who were in constant expectation of an attack on the capital, allowed him at least four weeks of undisturbed leisure for the execution of the unprecedentedly bold experiment of changing completely his military system in the heart of a hostile country and with an army still comparatively small, and of attempting to oppose African legions to the invincible legions of Italy. But his hope that the confederacy would now begin to break up was not fulfilled. In this respect the Etruscans, who had carried on their last wars of independence mainly with Gallic mercenaries, were of less moment; the flower of the confederacy, particularly in a military point of view, consisted—next to the Latins—of the Sabellian communities, and with good reason Hannibal had now come into their neighbourhood. But one town after another closed its gates; not a single Italian community entered into alliance with the Phoenicians. This was a great, in fact an all-important, gain for the Romans. Nevertheless it was felt in the capital that it would be imprudent to put the fidelity of their allies to such a test, without a Roman army to keep the field. The dictator Quintus Fabius combined the two supplementary legions formed in Rome with the army of Ariminum, and when Hannibal marched past the Roman fortress of Luceria towards Arpi, the Roman standards appeared on his right flank at Aeca. Their leader, however, pursued a course different from that of his predecessors. Quintus Fabius was a man advanced in years, of a deliberation and firmness, which to not a few seemed procrastination and obstinacy. Zealous in his reverence for the good old times, for the political omnipotence of the senate, and for the command of the burgomasters, he looked to a methodical prosecution of the war as — next to sacrifices and prayers—the means of saving the state. A political antagonist of Gaius Flaminius, and summoned to the head of affairs in virtue of the reaction against his foolish war-demagogism, Fabius departed for the camp just as firmly resolved to avoid a pitched battle at any price, as

his predecessor had been determined at any price to fight one; he was without doubt convinced that the first elements of strategy would forbid Hannibal to advance so long as the Roman army confronted him intact, and that accordingly it would not be difficult to weaken by petty conflicts and gradually to starve out the enemy's army, dependent as it was on foraging for its supplies.

March to Capua and Back to Apulia

War in Apulia

Hannibal, well served by his spies in Rome and in the Roman army, immediately learned how matters stood, and, as usual, adjusted the plan of his campaign in accordance with the individual character of the opposing leader. Passing the Roman army, he marched over the Apennines into the heart of Italy towards Beneventum, took the open town of Telesia on the boundary between Samnium and Campania, and thence turned against Capua, which as the most important of all the Italian cities dependent on Rome, and the only one standing in some measure on a footing of equality with it, had for that very reason felt more severely than any other community the oppression of the Roman government. He had formed connections there, which led him to hope that the Campanians might revolt from the Roman alliance; but in this hope he was disappointed. So, retracing his steps, he took the road to Apulia. During all this march of the Carthaginian army the dictator had followed along the heights, and had condemned his soldiers to the melancholy task of looking on with arms in their hands, while the Numidian cavalry plundered the faithful allies far and wide, and the villages over all the plain rose in flames. At length he opened up to the exasperated Roman army the eagerly-coveted opportunity of attacking the enemy. When Hannibal had begun his retreat, Fabius intercepted his route near Casilinum (the modern Capua), by strongly garrisoning that town on the left bank of the Volturnus and occupying the

heights that crowned the right bank with his main army, while a division of 4000 men encamped on the road itself that led along by the river. But Hannibal ordered his light- armed troops to climb the heights which rose immediately alongside of the road, and to drive before them a number of oxen with lighted faggots on their horns, so that it seemed as if the Carthaginian army were thus marching off during the night by torchlight. The Roman division, which barred the road, imagining that they were evaded and that further covering of the road was superfluous, marched by a side movement to the same heights. Along the road thus left free Hannibal then retreated with the bulk of his army, without encountering the enemy; next morning he without difficulty, but with severe loss to the Romans, disengaged and recalled his light troops. Hannibal then continued his march unopposed in a north-easterly direction; and by a widely-circuitous route, after traversing and laying under contribution the lands of the Hirpinians, Campanians, Samnites, Paelignians, and Frentanians without resistance, he arrived with rich booty and a full chest once more in the region of Luceria, just as the harvest there was about to begin. Nowhere in his extensive march had he met with active opposition, but nowhere had he found allies. Clearly perceiving that no course remained for him but to take up winter quarters in the open field, he began the difficult operation of collecting the winter supplies requisite for the army, by means of its own agency, from the fields of the enemy. For this purpose he had selected the broad and mostly flat district of northern Apulia, which furnished grain and grass in abundance, and which could be completely commanded by his excellent cavalry. An entrenched camp was constructed at Gerunium, twenty-five miles to the north of Luceria. Two-thirds of the army were daily despatched from it to bring in the stores, while Hannibal with the remainder took up a position to protect the camp and the detachments sent out.

Fabius and Minucius

The master of the horse, Marcus Minucius, who held temporary command in the Roman camp during the absence of the dictator, deemed this a suitable opportunity for approaching the enemy more closely, and formed a camp in the territory of the Larinates; where on the one hand by his mere presence he checked the sending out of detachments and thereby hindered the provisioning of the enemy's army, and on the other hand, in a series of successful conflicts in which his troops encountered isolated Phoenician divisions and even Hannibal himself, drove the enemy from their advanced positions and compelled them to concentrate themselves at Gerunium. On the news of these successes, which of course lost nothing in the telling, the storm broke, forth in the capital against Quintus Fabius. It was not altogether unwarranted. Prudent as it was on the part of Rome to abide by the defensive and to expect success mainly from the cutting off of the enemy's means of subsistence, there was yet something strange in a system of defence and of starving out, under which the enemy had laid waste all central Italy without opposition beneath the eyes of a Roman army of equal numbers, and had provisioned themselves sufficiently for the winter by an organized method of foraging on the greatest scale. Publius Scipio, when he commanded on the Po, had not adopted this view of a defensive attitude, and the attempt of his successor to imitate him at Casilinum had failed in such a way as to afford a copious fund of ridicule to the scoffers of the city. It was wonderful that the Italian communities had not wavered, when Hannibal so palpably showed them the superiority of the Phoenicians and the nullity of Roman aid; but how long could they be expected to bear the burden of a double war, and to allow themselves to be plundered under the very eyes of the Roman troops and of their own contingents? Finally, it could not be alleged that the condition of the Roman army compelled the general to adopt this mode of warfare. It was composed, as regarded its core, of the capable legions of Ariminum, and, by their side, of militia called out, most of whom were likewise accustomed to

service; and, far from being discouraged by the last defeats, it was indignant at the but little honourable task which its general, "Hannibal's lackey," assigned to it, and it demanded with a loud voice to be led against the enemy. In the assemblies of the people the most violent invectives were directed against the obstinate old man. His political opponents, with the former praetor Gaius Terentius Varro at their head, laid hold of the quarrel—for the understanding of which we must not forget that the dictator was practically nominated by the senate, and the office was regarded as the palladium of the conservative party—and, in concert with the discontented soldiers and the possessors of the plundered estates, they carried an unconstitutional and absurd resolution of the people conferring the dictatorship, which was destined to obviate the evils of a divided command in times of danger, on Marcus Minucius,(4) who had hitherto been the lieutenant of Quintus Fabius, in the same way as on Fabius himself. Thus the Roman army, after its hazardous division into two separate corps had just been appropriately obviated, was once more divided; and not only so, but the two sections were placed under leaders who notoriously followed quite opposite plans of war. Quintus Fabius of course adhered more than ever to his methodical inaction; Marcus Minucius, compelled to justify in the field of battle his title of dictator, made a hasty attack with inadequate forces, and would have been annihilated had not his colleague averted greater misfortune by the seasonable interposition of a fresh corps. This last turn of matters justified in some measure the system of passive resistance. But in reality Hannibal had completely attained in this campaign all that arms could attain: not a single material operation had been frustrated either by his impetuous or by his deliberate opponent; and his foraging, though not unattended with difficulty, had yet been in the main so successful that the army passed the winter without complaint in the camp at Gerunium. It was not the Cunctator that saved Rome, but the compact structure of its

confederacy and, not less perhaps, the national hatred with which the Phoenician hero was regarded on the part of Occidentals.

New War-like Preparations in Rome Paullus and Varro

Despite all its misfortunes, Roman pride stood no less unshaken than the Roman symmarchy. The donations which were offered by king Hiero of Syracuse and the Greek cities in Italy for the next campaign—the war affected the latter less severely than the other Italian allies of Rome, for they sent no contingents to the land army—were declined with thanks; the chieftains of Illyria were informed that they could not be allowed to neglect payment of their tribute; and even the king of Macedonia was once more summoned to surrender Demetrius of Pharos. The majority of the senate, notwithstanding the semblance of legitimation which recent events had given to the Fabian system of delay, had firmly resolved to depart from a mode of war that was slowly but certainly ruining the state; if the popular dictator had failed in his more energetic method of warfare, they laid the blame of the failure, and not without reason, on the fact that they had adopted a half-measure and had given him too few troops. This error they determined to avoid and to equip an army, such as Rome had never sent out before—eight legions, each raised a fifth above the normal strength, and a corresponding number of allies—enough to crush an opponent who was not half so strong. Besides this, a legion under the praetor Lucius Postumius was destined for the valley of the Po, in order, if possible, to draw off the Celts serving in the army of Hannibal to their homes. These resolutions were judicious; everything depended on their coming to an equally judicious decision respecting the supreme command. The stiff carriage of Quintus Fabius, and the attacks of the demagogues which it provoked, had rendered the dictatorship and the senate generally more unpopular than ever: amongst the people, not without the connivance of their leaders, the

foolish report circulated that the senate was intentionally prolonging the war. As, therefore, the nomination of a dictator was not to be thought of, the senate attempted to procure the election of suitable consuls; but this only had the effect of thoroughly rousing suspicion and obstinacy. With difficulty the senate carried one of its candidates, Lucius Aemilius Paullus, who had with judgment conducted the Illyrian war in 535;(5) an immense majority of the citizens assigned to him as colleague the candidate of the popular party, Gaius Terentius Varro, an incapable man, who was known only by his bitter opposition to the senate and more especially as the main author of the proposal to elect Marcus Minucius co-dictator, and who was recommended to the multitude solely by his humble birth and his coarse effrontery.

Battle at Cannae

While these preparations for the next campaign were being made in Rome, the war had already recommenced in Apulia. As soon as the season allowed him to leave his winter quarters, Hannibal, determining as usual the course of the war and assuming the offensive, set out from Gerunium in a southerly direction, and marching past Luceria crossed the Aufidus and took the citadel of Cannae (between Canosa and Barletta) which commanded the plain of Canusium, and had hitherto served the Romans as their chief magazine. The Roman army which, since Fabius had conformably to the constitution resigned his dictatorship in the middle of autumn, was now commanded by Gnaeus Servilius and Marcus Regulus, first as consuls then as proconsuls, had been unable to avert a loss which they could not but feel. On military as well as on political grounds, it became more than ever necessary to arrest the progress of Hannibal by a pitched battle. With definite orders to this effect from the senate, accordingly, the two new commanders-in-chief, Paullus and Varro, arrived in Apulia in the beginning of the summer of 538. With the four new legions and a corresponding contingent of Italians which they brought up, the Roman army rose to

80,000 infantry, half burgesses, half allies, and 6000 cavalry, of whom one-third were burgesses and two-thirds allies; whereas Hannibal's army numbered 10,000 cavalry, but only about 40,000 infantry. Hannibal wished nothing so much as a battle, not merely for the general reasons which we have explained above, but specially because the wide Apulian plain allowed him to develop the whole superiority of his cavalry, and because the providing supplies for his numerous army would soon, in spite of that excellent cavalry, be rendered very difficult by the proximity of an enemy twice as strong and resting on a chain of fortresses. The leaders of the Roman forces also had, as we have said, made up their minds on the general question of giving battle, and approached the enemy with that view; but the more sagacious of them saw the position of Hannibal, and were disposed accordingly to wait in the first instance and simply to station themselves in the vicinity of the enemy, so as to compel him to retire and accept battle on a ground less favourable to him. Hannibal encamped at Cannae on the right bank of the Aufidus. Paullus pitched his camp on both banks of the stream, so that the main force came to be stationed on the left bank, but a strong corps took up a position on the right immediately opposite to the enemy, in order to impede his supplies and perhaps also to threaten Cannae. Hannibal, to whom it was all-important to strike a speedy blow, crossed the stream with the bulk of his troops, and offered battle on the left bank, which Paullus did not accept. But such military pedantry was disapproved by the democratic consul—so much had been said about men taking the field not to stand guard, but to use their swords—and he gave orders accordingly to attack the enemy, wherever and whenever they found him. According to the old custom foolishly retained, the decisive voice in the council of war alternated between the commanders-in-chief day by day; it was necessary therefore on the following day to submit, and to let the hero of the pavement have his way. On the left bank, where the wide plain offered full scope to the superior cavalry of the enemy, certainly even he would not

fight; but he determined to unite the whole Roman forces on the right bank, and there, taking up a position between the Carthaginian camp and Cannae and seriously threatening the latter, to offer battle. A division of 10,000 men was left behind in the principal Roman camp, charged to capture the Carthaginian encampment during the conflict and thus to intercept the retreat of the enemy's army across the river. The bulk of the Roman army, at early dawn on the 2nd of August according to the unconnected, perhaps in tune according to the correct, calendar, crossed the river which at this season was shallow and did not materially hamper the movements of the troops, and took up a position in line near the smaller Roman camp to the westward of Cannae. The Carthaginian army followed and likewise crossed the stream, on which rested the right Roman as well as the left Carthaginian wing. The Roman cavalry was stationed on the wings: the weaker portion consisting of burgesses, led by Paullus, on the right next the river; the stronger consisting of the allies, led by Varro, on the left towards the plain. In the centre was stationed the infantry in unusually deep files, under the command of the consul of the previous year Gnaeus Servilius. Opposite to this centre Hannibal arranged his infantry in the form of a crescent, so that the Celtic and Iberian troops in their national armour formed the advanced centre, and the Libyans, armed after the Roman fashion, formed the drawn-back wings on either side. On the side next the river the whole heavy cavalry under Hasdrubal was stationed, on the side towards the plain the light Numidian horse. After a short skirmish between the light troops the whole line was soon engaged. Where the light cavalry of the Carthaginians fought against the heavy cavalry of Varro, the conflict was prolonged, amidst constant charges of the Numidians, without decisive result. In the centre, on the other hand, the legions completely overthrew the Spanish and Gallic troops that first encountered them; eagerly the victors pressed on and followed up their advantage. But meanwhile, on the right wing, fortune had turned against the Romans. Hannibal had merely sought to occupy the left cavalry

wing of the enemy, that he might bring Hasdrubal with the whole regular cavalry to bear against the weaker right and to overthrow it first. After a brave resistance, the Roman horse gave way, and those that were not cut down were chased up the river and scattered in the plain; Paullus, wounded, rode to the centre to turn or, if not, to share the fate of the legions. These, in order the better to follow up the victory over the advanced infantry of the enemy, had changed their front disposition into a column of attack, which, in the shape of a wedge, penetrated the enemy's centre. In this position they were warmly assailed on both sides by the Libyan infantry wheeling inward upon them right and left, and a portion of them were compelled to halt in order to defend themselves against the flank attack; by this means their advance was checked, and the mass of infantry, which was already too closely crowded, now had no longer room to develop itself at all. Meanwhile Hasdrubal, after having completed the defeat of the wing of Paullus, had collected and arranged his cavalry anew and led them behind the enemy's centre against the wing of Varro. His Italian cavalry, already sufficiently occupied with the Numidians, was rapidly scattered before the double attack, and Hasdrubal, leaving the pursuit of the fugitives to the Numidians, arranged his squadrons for the third time, to lead them against the rear of the Roman infantry. This last charge proved decisive. Flight was not possible, and quarter was not given. Never, perhaps, was an army of such size annihilated on the field of battle so completely, and with so little loss to its antagonist, as was the Roman army at Cannae. Hannibal had lost not quite 6000 men, and two-thirds of that loss fell upon the Celts, who sustained the first shock of the legions. On the other hand, of the 76,000 Romans who had taken their places in the line of battle 70,000 covered the field, amongst whom were the consul Lucius Paullus, the proconsul Gnaeus Servilius, two-thirds of the staff-officers, and eighty men of senatorial rank. The consul Gaius Varro was saved solely by his quick resolution and his good steed, reached Venusia, and was not ashamed to survive. The garrison

also of the Roman camp, 10,000 strong, were for the most part made prisoners of war; only a few thousand men, partly of these troops, partly of the line, escaped to Canusium. Nay, as if in this year an end was to be made with Rome altogether, before its close the legion sent to Gaul fell into an ambush, and was, with its general Lucius Postumius who was nominated as consul for the next year, totally destroyed by the Gauls.

Consequences of the Battle of Cannae Prevention of Reinforcements from Spain

This unexampled success appeared at length to mature the great political combination, for the sake of which Hannibal had come to Italy. He had, no doubt, based his plan primarily upon his army; but with accurate knowledge of the power opposed to him he designed that army to be merely the vanguard, in support of which the powers of the west and east were gradually to unite their forces, so as to prepare destruction for the proud city. That support however, which seemed the most secure, namely the sending of reinforcements from Spain, had been frustrated by the boldness and firmness of the Roman general sent thither, Gnaeus Scipio. After Hannibal's passage of the Rhone Scipio had sailed for Emporiae, and had made himself master first of the coast between the Pyrenees and the Ebro, and then, after conquering Hanno, of the interior also (536). In the following year (537) he had completely defeated the Carthaginian fleet at the mouth of the Ebro, and after his brother Publius, the brave defender of the valley of the Po, had joined him with a reinforcement of 8000 men, he had even crossed the Ebro, and advanced as far as Saguntum. Hasdrubal had indeed in the succeeding year (538), after obtaining reinforcements from Africa, made an attempt in accordance with his brother's orders to conduct an army over the Pyrenees; but the Scipios opposed his passage of the Ebro, and totally defeated him, nearly at the same time that Hannibal conquered at Cannae. The powerful tribe of the Celtiberians and numerous

other Spanish tribes had joined the Scipios; they commanded the sea, the passes of the Pyrenees, and, by means of the trusty Massiliots, the Gallic coast also. Now therefore support to Hannibal was less than ever to be looked for from Spain.

Reinforcements from Spain

On the part of Carthage as much had hitherto been done in support of her general in Italy as could be expected. Phoenician squadrons threatened the coasts of Italy and of the Roman islands and guarded Africa from a Roman landing, and there the matter ended. More substantial assistance was prevented not so much by the uncertainty as to where Hannibal was to be found and the want of a port of disembarkation in Italy, as by the fact that for many years the Spanish army had been accustomed to be self-sustaining, and above all by the murmurs of the peace party. Hannibal severely felt the consequences of this unpardonable inaction; in spite of all his saving of his money and of the soldiers whom he had brought with him, his chests were gradually emptied, the pay fell into arrear, and the ranks of his veterans began to thin. But now the news of the victory of Cannae reduced even the factious opposition at home to silence. The Carthaginian senate resolved to place at the disposal of the general considerable assistance in money and men, partly from Africa, partly from Spain, including 4000 Numidian horse and 40 elephants, and to prosecute the war with energy in Spain as well as in Italy.

Alliance between Carthage and Macedonia

The long-discussed offensive alliance between Carthage and Macedonia had been delayed, first by the sudden death of Antigonos, and then by the indecision of his successor Philip and the unseasonable war waged by him and his Hellenic allies against the Aetolians (534-537). It was only now, after the battle of Cannae, that Demetrius of Pharos found Philip disposed

to listen to his proposal to cede to Macedonia his Illyrian possessions—which it was necessary, no doubt, to wrest in the first place from the Romans—and it was only now that the court of Pella came to terms with Carthage. Macedonia undertook to land an invading army on the east coast of Italy, in return for which she received an assurance that the Roman possessions in Epirus should be restored to her.

Alliance between Carthage and Syracuse

In Sicily king Hiero had during the years of peace maintained a policy of neutrality, so far as he could do so with safety, and he had shown a disposition to accommodate the Carthaginians during the perilous crises after the peace with Rome, particularly by sending supplies of corn. There is no doubt that he saw with the utmost regret a renewed breach between Carthage and Rome; but he had no power to avert it, and when it occurred he adhered with well-calculated fidelity to Rome. But soon afterwards (in the autumn of 538) death removed the old man after a reign of fifty-four years. The grandson and successor of the prudent veteran, the young and incapable Hieronymus, entered at once into negotiations with the Carthaginian diplomatists; and, as they made no difficulty in consenting to secure to him by treaty, first, Sicily as far as the old Carthagino-Sicilian frontier, and then, when he rose in the arrogance of his demands, the possession even of the whole island, he entered into alliance with Carthage, and ordered the Syracusan fleet to unite with the Carthaginian which had come to threaten Syracuse. The position of the Roman fleet at Lilybaeum, which already had to deal with a second Carthaginian squadron stationed near the Aegates, became all at once very critical, while at the same time the force that was in readiness at Rome for embarkation to Sicily had, in consequence of the defeat at Cannae, to be diverted to other and more urgent objects.

Capua and Most of the Communities of Lower Italy Pass over to Hannibal

Above all came the decisive fact, that now at length the fabric of the Roman confederacy began to be unhinged, after it had survived unshaken the shocks of two severe years of war. There passed over to the side of Hannibal Arpi in Apulia, and Uzentum in Messapia, two old towns which had been greatly injured by the Roman colonies of Luceria and Brundisium; all the towns of the Bruttii—who took the lead—with the exception of the Petelini and the Consentini who had to be besieged before yielding; the greater portion of the Lucanians; the Picentes transplanted into the region of Salernum; the Hirpini; the Samnites with the exception of the Pentri; lastly and chiefly, Capua the second city of Italy, which was able to bring into the field 30,000 infantry and 4000 horse, and whose secession determined that of the neighbouring towns Atella and Caiatia. The aristocratic party, indeed, attached by many ties to the interest of Rome everywhere, and more especially in Capua, very earnestly opposed this change of sides, and the obstinate internal conflicts which arose regarding it diminished not a little the advantage which Hannibal derived from these accessions. He found himself obliged, for instance, to have one of the leaders of the aristocratic party in Capua, Decius Magius, who even after the entrance of the Phoenicians obstinately contended for the Roman alliance, seized and conveyed to Carthage; thus furnishing a demonstration, very inconvenient for himself, of the small value of the liberty and sovereignty which had just been solemnly assured to the Campanians by the Carthaginian general. On the other hand, the south Italian Greeks adhered to the Roman alliance—a result to which the Roman garrisons no doubt contributed, but which was still more due to the very decided dislike of the Hellenes towards the Phoenicians themselves and towards their new Lucanian and Bruttian allies, and their attachment on the other hand to Rome, which had zealously embraced every opportunity of manifesting its Hellenism, and had exhibited

towards the Greeks in Italy an unwonted gentleness. Thus the Campanian Greeks, particularly Neapolis, courageously withstood the attack of Hannibal in person: in Magna Graecia Rhegium, Thurii, Metapontum, and Tarentum did the same notwithstanding their very perilous position. Croton and Locri on the other hand were partly carried by storm, partly forced to capitulate, by the united Phoenicians and Bruttians; and the citizens of Croton were conducted to Locri, while Bruttian colonists occupied that important naval station. The Latin colonies in southern Italy, such as Brundisium, Venusia, Paestum, Cosa, and Cales, of course maintained unshaken fidelity to Rome. They were the strongholds by which the conquerors held in check a foreign land, settled on the soil of the surrounding population, and at feud with their neighbours; they, too, would be the first to be affected, if Hannibal should keep his word and restore to every Italian community its ancient boundaries. This was likewise the case with all central Italy, the earliest seat of the Roman rule, where Latin manners and language already everywhere preponderated, and the people felt themselves to be the comrades rather than the subjects of their rulers. The opponents of Hannibal in the Carthaginian senate did not fail to appeal to the fact that not one Roman citizen or one Latin community had cast itself into the arms of Carthage. This groundwork of the Roman power could only be broken up, like the Cyclopean walls, stone by stone.

Attitude of the Romans

Such were the consequences of the day of Cannae, in which the flower of the soldiers and officers of the confederacy, a seventh of the whole number of Italians capable of bearing arms, perished. It was a cruel but righteous punishment for the grave political errors with which not merely some foolish or miserable individuals, but the Roman people themselves, were justly chargeable. A constitution adapted for a small country town was no longer suitable for a great power; it was simply impossible that the question

as to the leadership of the armies of the city in such a war should be left year after year to be decided by the Pandora's box of the balloting-urn. As a fundamental revision of the constitution, if practicable at all, could not at least be undertaken now, the practical superintendence of the war, and in particular the bestowal and prolongation of the command, should have been at once left to the only authority which was in a position to undertake it—the senate—and there should have been reserved for the comitia the mere formality of confirmation. The brilliant successes of the Scipios in the difficult arena of Spanish warfare showed what might in this way be achieved. But political demagogism, which was already gnawing at the aristocratic foundations of the constitution, had seized on the management of the Italian war. The absurd accusation, that the nobles were conspiring with the enemy without, had made an impression on the "people." The saviours to whom political superstition looked for deliverance, Gaius Flaminius and Gaius Varro, both "new men" and friends of the people of the purest dye, had accordingly been empowered by the multitude itself to execute the plans of operations which, amidst the approbation of that multitude, they had unfolded in the Forum; and the results were the battles on the Trasimene lake and at Cannae. Duty required that the senate, which now of course understood its task better than when it recalled half the army of Regulus from Africa, should take into its hands the management of affairs, and should oppose such mischievous proceedings; but when the first of those two defeats had for the moment placed the rudder in its hands, it too had hardly acted in a manner unbiassed by the interests of party. Little as Quintus Fabius may be compared with these Roman Cleons, he had yet conducted the war not as a mere military leader, but had adhered to his rigid attitude of defence specially as the political opponent of Gaius Flaminius; and in the treatment of the quarrel with his subordinate, had done what he could to exasperate at a time when unity was needed. The consequence was, first, that the most important instrument which the wisdom of their

ancestors had placed in the hands of the senate just for such cases—the dictatorship—broke down in his hands; and, secondly—at least indirectly—the battle of Cannae. But the headlong fall of the Roman power was owing not to the fault of Quintus Fabius or Gaius Varro, but to the distrust between the government and the governed—to the variance between the senate and the burgesses. If the deliverance and revival of the state were still possible, the work had to begin at home with the re-establishment of unity and of confidence. To have perceived this and, what is of more importance, to have done it, and done it with an abstinence from all recriminations however just, constitutes the glorious and imperishable honour of the Roman senate. When Varro—alone of all the generals who had command in the battle — returned to Rome, and the Roman senators met him at the gate and thanked him that he had not despaired of the salvation of his country, this was no empty phraseology veiling the disaster under sounding words, nor was it bitter mockery over a poor wretch; it was the conclusion of peace between the government and the governed. In presence of the gravity of the time and the gravity of such an appeal, the chattering of demagogues was silent; henceforth the only thought of the Romans was how they might be able jointly to avert the common peril. Quintus Fabius, whose tenacious courage at this decisive moment was of more service to the state than all his feats of war, and the other senators of note took the lead in every movement, and restored to the citizens confidence in themselves and in the future. The senate preserved its firm and unbending attitude, while messengers from all sides hastened to Rome to report the loss of battles, the secession of allies, the capture of posts and magazines, and to ask reinforcements for the valley of the Po and for Sicily at a time when Italy was abandoned and Rome was almost without a garrison. Assemblages of the multitude at the gates were forbidden; onlookers and women were sent to their houses; the time of mourning for the fallen was restricted to thirty days that the service of the gods of joy, from which those clad in mourning attire were excluded, might

not be too long interrupted—for so great was the number of the fallen, that there was scarcely a family which had not to lament its dead. Meanwhile the remnant saved from the field of battle had been assembled by two able military tribunes, Appius Claudius and Publius Scipio the younger, at Canusium. The latter managed, by his lofty spirit and by the brandished swords of his faithful comrades, to change the views of those genteel young lords who, in indolent despair of the salvation of their country, were thinking of escape beyond the sea. The consul Gaius Varro joined them with a handful of men; about two legions were gradually collected there; the senate gave orders that they should be reorganized and reduced to serve in disgrace and without pay. The incapable general was on a suitable pretext recalled to Rome; the praetor Marcus Claudius Marcellus, experienced in the Gallic wars, who had been destined to depart for Sicily with the fleet from Ostia, assumed the chief command. The utmost exertions were made to organize an army capable of taking the field. The Latins were summoned to render aid in the common peril. Rome itself set the example, and called to arms all the men above boyhood, armed the debtor-serfs and criminals, and even incorporated in the army eight thousand slaves purchased by the state. As there was a want of arms, they took the old spoils from the temples, and everywhere set the workshops and artisans in action. The senate was completed, not as timid patriots urged, from the Latins, but from the Roman burgesses who had the best title. Hannibal offered a release of captives at the expense of the Roman treasury; it was declined, and the Carthaginian envoy who had arrived with the deputation of captives was not admitted into the city: nothing should look as if the senate thought of peace. Not only were the allies to be prevented from believing that Rome was disposed to enter into negotiations, but even the meanest citizen was to be made to understand that for him as for all there was no peace, and that safety lay only in victory.

Notes for Chapter V

1. Polybius's account of the battle on the Trebia is quite clear. If Placentia lay on the right bank of the Trebia where it falls into the Po, and if the battle was fought on the left bank, while the Roman encampment was pitched upon the right—both of which points have been disputed, but are nevertheless indisputable—the Roman soldiers must certainly have passed the Trebia in order to gain Placentia as well as to gain the camp. But those who crossed to the camp must have made their way through the disorganized portions of their own army and through the corps of the enemy that had gone round to their rear, and must then have crossed the river almost in hand-to-hand combat with the enemy. On the other hand the passage near Placentia was accomplished after the pursuit had slackened; the corps was several miles distant from the field of battle, and had arrived within reach of a Roman fortress; it may even have been the case, although it cannot be proved, that a bridge led over the Trebia at that point, and that the -tete de pont- on the other bank was occupied by the garrison of Placentia. It is evident that the first passage was just as difficult as the second was easy, and therefore with good reason Polybius, military judge as he was, merely says of the corps of 10,000, that in close columns it cut its way to Placentia (iii. 74, 6), without mentioning the passage of the river which in this case was unattended with difficulty.

The erroneousness of the view of Livy, which transfers the Phoenician camp to the right, the Roman to the left bank of the Trebia, has lately been repeatedly pointed out. We may only further mention, that the site of Clastidium, near the modern Casteggio, has now been established by inscriptions (Orelli-Henzen, 5117).

2. III. III. The Celts Attacked in Their Own Land

3. The date of the battle, 23rd June according to the uncorrected calendar, must, according to the rectified calendar, fall somewhere in April, since Quintus Fabius resigned his dictatorship, after six months, in the middle of autumn (Lav. xxii. 31, 7; 32, i), and must therefore have entered upon it about the beginning of May. The confusion of the calendar (p. 117) in Rome was even at this period very great.

4. The inscription of the gift devoted by the new dictator on account of his victory at Gerunium to Hercules Victor— -Hercolei sacrom M. Minuci(us) C. f. dictator vovit- —was found in the year 1862 at Rome, near S. Lorenzo.

5. III. III. Northern Italy

CHAPTER VI

The War under Hannibal from Cannae to Zama

The Crisis

The aim of Hannibal in his expedition to Italy had been to break up the Italian confederacy: after three campaigns that aim had been attained, so far as it was at all attainable. It was clear that the Greek and Latin or Latinized communities of Italy, since they had not been shaken in their allegiance by the day of Cannae, would not yield to terror, but only to force; and the desperate courage with which even in Southern Italy isolated little country towns, such as the Bruttian Petelia, maintained their forlorn defence against the Phoenicians, showed very plainly what awaited them among the Marsians and Latins. If Hannibal had expected to accomplish more in this way and to be able to lead even the Latins against Rome, these hopes had proved vain. But it appears as if even in other respects the Italian coalition had by no means produced the results which Hannibal hoped for. Capua had at once stipulated that Hannibal should not have the right to call Campanian citizens compulsorily to arms; the citizens had not forgotten how Pyrrhus had acted in Tarentum, and they foolishly imagined that they should be able to withdraw at once from the Roman and from the Phoenician rule. Samnium and Luceria were no longer what they had been, when king Pyrrhus had thought of marching into Rome at the head of the Sabellian youth.

Not only did the chain of Roman fortresses everywhere cut the nerves and sinews of the land, but the Roman rule, continued for many years, had rendered the inhabitants unused to arms—they furnished only a moderate contingent to the Roman armies—had appeased their ancient hatred, and had gained over a number of individuals everywhere to the interest of the ruling community. They joined the conqueror of the Romans, indeed, after the cause of Rome seemed fairly lost, but they felt that the question was no longer one of liberty; it was simply the exchange of an Italian for a Phoenician master, and it was not enthusiasm, but despair that threw the Sabellian communities into the arms of the victor. Under such circumstances the war in Italy flagged. Hannibal, who commanded the southern part of the peninsula as far up as the Volturnus and Garganus, and who could not simply abandon these lands again as he had abandoned that of the Celts, had now likewise a frontier to protect, which could not be left uncovered with impunity; and for the purpose of defending the districts that he had gained against the fortresses which everywhere defied him and the armies advancing from the north, and at the same time of resuming the difficult offensive against central Italy, his forces—an army of about 40,000 men, without reckoning the Italian contingents—were far from sufficient.

Marcellus

Above all, he found that other antagonists were opposed to him. Taught by fearful experience, the Romans adopted a more judicious system of conducting the war, placed none but experienced officers at the head of their armies, and left them, at least where it was necessary, for a longer period in command. These generals neither looked down on the enemy's movements from the mountains, nor did they throw themselves on their adversary wherever they found him; but, keeping the true mean between inaction and precipitation, they took up their positions in entrenched camps under the walls of fortresses, and accepted battle where victory would lead

to results and defeat would not be destruction. The soul of this new mode of warfare was Marcus Claudius Marcellus. With true instinct, after the disastrous day of Cannae, the senate and people had turned their eyes to this brave and experienced officer, and entrusted him at once with the actual supreme command. He had received his training in the troublesome warfare against Hamilcar in Sicily, and had given brilliant evidence of his talents as a leader as well as of his personal valour in the last campaigns against the Celts. Although far above fifty, he still glowed with all the ardour of the most youthful soldier, and only a few years before this he had, as general, cut down the mounted general of the enemy(1)—the first and only Roman consul who achieved that feat of arms. His life was consecrated to the two divinities, to whom he erected the splendid double temple at the Capene Gate—to Honour and to Valour; and, while the merit of rescuing Rome from this extremity of danger belonged to no single individual, but pertained to the Roman citizens collectively and pre-eminently to the senate, yet no single man contributed more towards the success of the common enterprise than Marcus Marcellus.

Hannibal Proceeds to Campania

From the field of battle Hannibal had turned his steps to Campania, He knew Rome better than the simpletons, who in ancient and modern times have fancied that he might have terminated the struggle by a march on the enemy's capital. Modern warfare, it is true, decides a war on the field of battle; but in ancient times, when the system of attacking fortresses was far less developed than the system of defence, the most complete success in the field was on numberless occasions neutralized by the resistance of the walls of the capitals. The council and citizens of Carthage were not at all to be compared to the senate and people of Rome; the peril of Carthage after the first campaign of Regulus was infinitely more urgent than that of Rome after the battle of Cannae; yet Carthage had made a stand and been

completely victorious. With what colour could it be expected that Rome would now deliver her keys to the victor, or even accept an equitable peace? Instead therefore of sacrificing practicable and important successes for the sake of such empty demonstrations, or losing time in the besieging of the two thousand Roman fugitives enclosed within the walls of Canusium, Hannibal had immediately proceeded to Capua before the Romans could throw in a garrison, and by his advance had induced this second city of Italy after long hesitation to join him. He might hope that, in possession of Capua, he would be able to seize one of the Campanian ports, where he might disembark the reinforcements which his great victories had wrung from the opposition at home.

Renewal of the War in Campania

The War in Apulia

When the Romans learned whither Hannibal had gone, they also left Apulia, where only a weak division was retained, and collected their remaining forces on the right bank of the Volturnus. With the two legions saved from Cannae Marcus Marcellus marched to Teanum Sidicinum, where he was joined by such troops as were at the moment disposable from Rome and Ostia, and advanced—while the dictator Marcus Junius slowly followed with the main army which had been hastily formed—as far as the Volturnus at Casilinum, with a view if possible to save Capua. That city he found already in the power of the enemy; but on the other hand the attempts of the enemy on Neapolis had been thwarted by the courageous resistance of the citizens, and the Romans were still in good time to throw a garrison into that important port. With equal fidelity the two other large coast towns, Cumae and Nuceria, adhered to Rome. In Nola the struggle between the popular and senatorial parties as to whether they should attach themselves to the Carthaginians or to the Romans, was still undecided. Informed that the former were gaining the superiority, Marcellus crossed the river at

Caiatia, and marching along the heights of Suessula so as to evade the enemy's army, he reached Nola in sufficient time to hold it against the foes without and within. In a sally he even repulsed Hannibal in person with considerable loss; a success which, as the first defeat sustained by Hannibal, was of far more importance from its moral effect than from its material results. In Campania indeed, Nuceria, Acerrae, and, after an obstinate siege prolonged into the following year (539), Casilinum also, the key of the Volturnus, were conquered by Hannibal, and the severest punishments were inflicted on the senates of these towns which had adhered to Rome. But terror is a bad weapon of proselytism; the Romans succeeded, with comparatively trifling loss, in surmounting the perilous moment of their first weakness. The war in Campania came to a standstill; then winter came on, and Hannibal took up his quarters in Capua, the luxury of which was by no means fraught with benefit to his troops who for three years had not been under a roof. In the next year (539) the war acquired another aspect. The tried general Marcus Marcellus, Tiberius Sempronius Gracchus who had distinguished himself in the campaign of the previous year as master of the horse to the dictator, and the veteran Quintus Fabius Maximus, took—Marcellus as proconsul, the two others as consuls—the command of the three Roman armies which were destined to surround Capua and Hannibal; Marcellus resting on Nola and Suessula, Maximus taking a position on the right bank of the Volturnus near Cales, and Gracchus on the coast near Liternum, covering Neapolis and Cumae. The Campanians, who marched to Hamae three miles from Cumae with a view to surprise the Cumaeans, were thoroughly defeated by Gracchus; Hannibal, who had appeared before Cumae to wipe out the stain, was himself worsted in a combat, and when the pitched battle offered by him was declined, retreated in ill humour to Capua. While the Romans in Campania thus not only maintained what they possessed, but also recovered Comptuleria and other smaller places, loud complaints were heard from the eastern allies of Hannibal. A Roman army

under the praetor Marcus Valerius had taken position at Luceria, partly that it might, in connection with the Roman fleet, watch the east coast and the movements of the Macedonians; partly that it might, in connection with the army of Nola, levy contributions on the revolted Samnites, Lucanians, and Hirpini. To give relief to these, Hannibal turned first against his most active opponent, Marcus Marcellus; but the latter achieved under the walls of Nola no inconsiderable victory over the Phoenician army, and it was obliged to depart, without having cleared off the stain, from Campania for Arpi, in order at length to check the progress of the enemy's army in Apulia. Tiberius Gracchus followed it with his corps, while the two other Roman armies in Campania made arrangements to proceed next spring to the attack of Capua.

Hannibal Reduced to the Defensive His Prospects as to Reinforcements

The clear vision of Hannibal had not been dazzled by his victories. It became every day more evident that he was not thus gaining his object. Those rapid marches, that adventurous shifting of the war to and fro, to which Hannibal was mainly indebted for his successes, were at an end; the enemy had become wiser; further enterprises were rendered almost impossible by the inevitable necessity of defending what had been gained. The offensive was not to be thought of; the defensive was difficult, and threatened every year to become more so. He could not conceal from himself that the second half of his great task, the subjugation of the Latins and the conquest of Rome, could not be accomplished with his own forces and those of his Italian allies alone. Its accomplishment depended on the council at Carthage, on the head-quarters at Cartagena, on the courts of Pella and of Syracuse. If all the energies of Africa, Spain, Sicily, and Macedonia should now be exerted in common against the common enemy; if Lower Italy should become the great rendezvous for the armies and fleets

of the west, south, and east; he might hope successfully to finish what the vanguard under his leadership had so brilliantly begun. The most natural and easy course would have been to send to him adequate support from home; and the Carthaginian state, which had remained almost untouched by the war and had been brought from deep decline so near to complete victory by a small band of resolute patriots acting of their own accord and at their own risk, could beyond doubt have done this. That it would have been possible for a Phoenician fleet of any desired strength to effect a landing at Locri or Croton, especially as long as the port of Syracuse remained open to the Carthaginians and the fleet at Brundisium was kept in check by Macedonia, is shown by the unopposed disembarkation at Locri of 4000 Africans, whom Bomilcar about this time brought over from Carthage to Hannibal, and still more by Hannibal's undisturbed embarkation, when all had been already lost. But after the first impression of the victory of Cannae had died away, the peace party in Carthage, which was at all times ready to purchase the downfall of its political opponents at the expense of its country, and which found faithful allies in the shortsightedness and indolence of the citizens, refused the entreaties of the general for more decided support with the half- simple, half-malicious reply, that he in fact needed no help inasmuch as he was really victor; and thus contributed not much less than the Roman senate to save Rome. Hannibal, reared in the camp and a stranger to the machinery of civic factions, found no popular leader on whose support he could rely, such as his father had found in Hasdrubal; and he was obliged to seek abroad the means of saving his native country—means which itself possessed in rich abundance at home.

For this purpose he might, at least with more prospect of success, reckon on the leaders of the Spanish patriot army, on the connections which he had formed in Syracuse, and on the intervention of Philip. Everything depended on bringing new forces into the Italian field of war against Rome from Spain, Syracuse, or Macedonia; and for the attainment or for the prevention

of this object wars were carried on in Spain, Sicily, and Greece. All of these were but means to an end, and historians have often erred in accounting them of greater importance. So far as the Romans were concerned, they were essentially defensive wars, the proper objects of which were to hold the passes of the Pyrenees, to detain the Macedonian army in Greece, to defend Messana and to bar the communication between Italy and Sicily. Of course this defensive warfare was, wherever it was possible, waged by offensive methods; and, should circumstances be favourable, it might develop into the dislodging of the Phoenicians from Spain and Sicily, and into the dissolution of Hannibal's alliances with Syracuse and with Philip. The Italian war in itself fell for the time being into the shade, and resolved itself into conflicts about fortresses and razzias, which had no decisive effect on the main issue. Nevertheless, so long as the Phoenicians retained the offensive at all, Italy always remained the central aim of operations; and all efforts were directed towards, as all interest centred in, the doing away, or perpetuating, of Hannibal's isolation in southern Italy.

The Sending of Reinforcements Temporarily Frustrated

Had it been possible, immediately after the battle of Cannae, to bring into play all the resources on which Hannibal thought that he might reckon, he might have been tolerably certain of success. But the position of Hasdrubal at that time in Spain after the battle on the Ebro was so critical, that the supplies of money and men, which the victory of Cannae had roused the Carthaginian citizens to furnish, were for the most part expended on Spain, without producing much improvement in the position of affairs there. The Scipios transferred the theatre of war in the following campaign (539) from the Ebro to the Guadalquivir; and in Andalusia, in the very centre of the proper Carthaginian territory, they achieved at Illiturgi and Intibili two brilliant victories. In Sardinia communications entered into with the natives led the Carthaginians to hope that they should be able to master the island,

which would have been of importance as an intermediate station between Spain and Italy. But Titus Manlius Torquatus, who was sent with a Roman army to Sardinia, completely destroyed the Carthaginian landing force, and reassured to the Romans the undisputed possession of the island (539). The legions from Cannae sent to Sicily held their ground in the north and east of the island with courage and success against the Carthaginians and Hieronymus; the latter met his death towards the end of 539 by the hand of an assassin. Even in the case of Macedonia the ratification of the alliance was delayed, principally because the Macedonian envoys sent to Hannibal were captured on their homeward journey by the Roman vessels of war. Thus the dreaded invasion of the east coast was temporarily suspended; and the Romans gained time to secure the very important station of Brundisium first by their fleet and then by the land army which before the arrival of Gracchus was employed for the protection of Apulia, and even to make preparations for an invasion of Macedonia in the event of war being declared. While in Italy the war thus came to a stand, out of Italy nothing was done on the part of Carthage to accelerate the movement of new armies or fleets towards the seat of war. The Romans, again, had everywhere with the greatest energy put themselves in a state of defence, and in that defensive attitude had fought for the most part with good results wherever the genius of Hannibal was absent. Thereupon the short-lived patriotism, which the victory of Cannae had awakened in Carthage, evaporated; the not inconsiderable forces which had been organized there were, either through factious opposition or merely through unskilful attempts to conciliate the different opinions expressed in the council, so frittered away that they were nowhere of any real service, and but a very small portion arrived at the spot where they would have been most useful. At the close of 539 the reflecting Roman statesman might assure himself that the urgency of the danger was past, and that the resistance so heroically begun had but to persevere in its exertions at all points in order to achieve its object.

War in Sicily

Siege of Syracuse

First of all the war in Sicily came to an end. It had formed no part of Hannibal's original plan to excite a war on the island; but partly through accident, chiefly through the boyish vanity of the imprudent Hieronymus, a land war had broken out there, which—doubtless because Hannibal had not planned it—the Carthaginian council took up with especial zeal. After Hieronymus was killed at the close of 539, it seemed more than doubtful whether the citizens would persevere in the policy which he had pursued. If any city had reason to adhere to Rome, that city was Syracuse; for the victory of the Carthaginians over the Romans could not but give to the former, at any rate, the sovereignty of all Sicily, and no one could seriously believe that the promises made by Carthage to the Syracusans would be really kept. Partly induced by this consideration, partly terrified by the threatening preparations of the Romans—who made every effort to bring once more under their complete control that important island, the bridge between Italy and Africa, and now for the campaign of 540 sent their best general, Marcus Marcellus, to Sicily—the Syracusan citizens showed a disposition to obtain oblivion of the past by a timely return to the Roman alliance. But, amidst the dreadful confusion in the city—which after the death of Hieronymus was agitated alternately by endeavours to re-establish the ancient freedom of the people and by the -coups de main- of the numerous pretenders to the vacant throne, while the captains of the foreign mercenary troops were the real masters of the place—Hannibal's dexterous emissaries, Hippocrates and Epicydes, found opportunity to frustrate the projects of peace. They stirred up the multitude in the name of liberty; descriptions, exaggerated beyond measure, of the fearful punishment that the Romans were said to have inflicted on the Leontines, who had just been re-conquered, awakened doubts even among the better portion of the citizens whether it was not too late to restore their old relations with Rome;

while the numerous Roman deserters among the mercenaries, mostly runaway rowers from the fleet, were easily persuaded that a peace on the part of the citizens with Rome would be their death-warrant. So the chief magistrates were put to death, the armistice was broken, and Hippocrates and Epicydes undertook the government of the city. No course was left to the consul except to undertake a siege; but the skilful conduct of the defence, in which the Syracusan engineer Archimedes, celebrated as a learned mathematician, especially distinguished himself, compelled the Romans after besieging the city for eight months to convert the siege into a blockade by sea and land.

Carthaginian Expedition to Sicily The Carthaginian Troops Destroyed Conquest of Syracuse

In the meanwhile Carthage, which hitherto had only supported the Syracusans with her fleets, on receiving news of their renewed rising in arms against the Romans had despatched a strong land army under Himilco to Sicily, which landed without interruption at Heraclea Minoa and immediately occupied the important town of Agrigentum. To effect a junction with Himilco, the bold and able Hippocrates marched forth from Syracuse with an army: the position of Marcellus between the garrison of Syracuse and the two hostile armies began to be critical. With the help of some reinforcements, however, which arrived from Italy, he maintained his position in the island and continued the blockade of Syracuse. On the other hand, the greater portion of the small inland towns were driven to the armies of the Carthaginians not so much by the armies of the enemy, as by the fearful severity of the Roman proceedings in the island, more especially the slaughter of the citizens of Enna, suspected of a design to revolt, by the Roman garrison which was stationed there. In 542 the besiegers of Syracuse during a festival in the city succeeded in scaling a portion of the extensive

outer walls that had been deserted by the guard, and in penetrating into the suburbs which stretched from the "island" and the city proper on the shore (Achradina) towards the interior. The fortress of Euryalus, which, situated at the extreme western end of the suburbs, protected these and the principal road leading from the interior to Syracuse, was thus cut off and fell not long afterwards. When the siege of the city thus began to assume a turn favourable to the Romans, the two armies under Himilco and Hippocrates advanced to its relief, and attempted a simultaneous attack on the Roman positions, combined with an attempt at landing on the part of the Carthaginian fleet and a sally of the Syracusan garrison; but the attack was repulsed on all sides, and the two relieving armies were obliged to content themselves with encamping before the city, in the low marshy grounds along the Anapus, which in the height of summer and autumn engender pestilences fatal to those that tarry in them. These pestilences had often saved the city, oftener even than the valour of its citizens; in the times of the first Dionysius, two Phoenician armies in the act of besieging the city had been in this way destroyed under its very walls. Now fate turned the special defence of the city into the means of its destruction; while the army of Marcellus quartered in the suburbs suffered but little, fevers desolated the Phoenician and Syracusan bivouacs. Hippocrates died; Himilco and most of the Africans died also; the survivors of the two armies, mostly native Siceli, dispersed into the neighbouring cities. The Carthaginians made a further attempt to save the city from the sea side; but the admiral Bomilcar withdrew, when the Roman fleet offered him battle. Epicydes himself, who commanded in the city, now abandoned it as lost, and made his escape to Agrigentum. Syracuse would gladly have surrendered to the Romans; negotiations had already begun. But for the second time they were thwarted by the deserters: in another mutiny of the soldiers the chief magistrates and a number of respectable citizens were slain, and the government and the defence of the city were entrusted by the foreign troops to their captains.

Marcellus now entered into a negotiation with one of these, which gave into his hands one of the two portions of the city that were still free, the "island"; upon which the citizens voluntarily opened to him the gates of Achradina also (in the autumn of 542). If mercy was to be shown in any case, it might, even according to the far from laudable principles of Roman public law as to the treatment of perfidious communities, have been extended to this city, which manifestly had not been at liberty to act for itself, and which had repeatedly made the most earnest attempts to get rid of the tyranny of the foreign soldiers. Nevertheless, not only did Marcellus stain his military honour by permitting a general pillage of the wealthy mercantile city, in the course of which Archimedes and many other citizens were put to death, but the Roman senate lent a deaf ear to the complaints which the Syracusans afterwards presented regarding the celebrated general, and neither returned to individuals their pillaged property nor restored to the city its freedom. Syracuse and the towns that had been previously dependent on it were classed among the communities tributary to Rome—Tauromenium and Neetum alone obtained the same privileges as Messana, while the territory of Leontini became Roman domain and its former proprietors Roman lessees—and no Syracusan citizen was henceforth allowed to reside in the "island," the portion of the city that commanded the harbour.

Guerilla War in Sicily

Agrigentum Occupied by the Romans

Sicily Tranquillized

Sicily thus appeared lost to the Carthaginians; but the genius of Hannibal exercised even from a distance its influence there. He despatched to the Carthaginian army, which remained at Agrigentum in perplexity and inaction under Hanno and Epicydes, a Libyan cavalry officer Muttines, who took the command of the Numidian cavalry, and with his flying squadrons, fanning into an open flame the bitter hatred which the despotic rule of the

Romans had excited over all the island, commenced a guerilla warfare on the most extensive scale and with the happiest results; so that he even, when the Carthaginian and Roman armies met on the river Himera, sustained some conflicts with Marcellus himself successfully. The relations, however, which prevailed between Hannibal and the Carthaginian council, were here repeated on a small scale. The general appointed by the council pursued with jealous envy the officer sent by Hannibal, and insisted upon giving battle to the proconsul without Muttines and the Numidians. The wish of Hanno was carried out, and he was completely beaten. Muttines was not induced to deviate from his course; he maintained himself in the interior of the country, occupied several small towns, and was enabled by the not inconsiderable reinforcements which joined him from Carthage gradually to extend his operations. His successes were so brilliant, that at length the commander-in- chief, who could not otherwise prevent the cavalry officer from eclipsing him, deprived him summarily of the command of the light cavalry, and entrusted it to his own son. The Numidian, who had now for two years preserved the island for his Phoenician masters, had the measure of his patience exhausted by this treatment. He and his horsemen who refused to follow the younger Hanno entered into negotiations with the Roman general Marcus Valerius Laevinus and delivered to him Agrigentum. Hanno escaped in a boat, and went to Carthage to report to his superiors the disgraceful high treason of Hannibal's officer; the Phoenician garrison in the town was put to death by the Romans, and the citizens were sold into slavery (544). To secure the island from such surprises as the landing of 540, the city received a new body of inhabitants selected from Sicilians well disposed towards Rome; the old glorious Akragas was no more. After the whole of Sicily was thus subdued, the Romans exerted themselves to restore some sort of tranquillity and order to the distracted island. The pack of banditti that haunted the interior were driven together en masse and conveyed to Italy, that from their head-quarters at Rhegium they might burn

and destroy in the territories of Hannibal's allies. The government did its utmost to promote the restoration of agriculture which had been totally neglected in the island. The Carthaginian council more than once talked of sending a fleet to Sicily and renewing the war there; but the project went no further.

Philip of Macedonia and His Delay

Macedonia might have exercised an influence over the course of events more decisive than that of Syracuse. From the Eastern powers neither furtherance nor hindrance was for the moment to be expected. Antiochus the Great, the natural ally of Philip, had, after the decisive victory of the Egyptians at Raphia in 537, to deem himself fortunate in obtaining peace from the indolent Philopator on the basis of the -status quo ante-. The rivalry of the Lagidae and the constant apprehension of a renewed outbreak of the war on the one hand, and insurrections of pretenders in the interior and enterprises of all sorts in Asia Minor, Bactria, and the eastern satrapies on the other, prevented him from joining that great anti-Roman alliance which Hannibal had in view. The Egyptian court was decidedly on the side of Rome, with which it renewed alliance in 544; but it was not to be expected of Ptolemy Philopator, that he would support otherwise than by corn-ships. Accordingly there was nothing to prevent Greece and Macedonia from throwing a decisive weight into the great Italian struggle except their own discord; they might save the Hellenic name, if they had the self-control to stand by each other for but a few years against the common foe. Such sentiments doubtless were current in Greece. The prophetic saying of Agelaus of Naupactus, that he was afraid that the prize-fights in which the Hellenes now indulged at home might soon be over; his earnest warning to direct their eyes to the west, and not to allow a stronger power to impose on all the parties now contending a peace of equal servitude—such sayings had essentially contributed to bring about the peace between Philip

and the Aetolians (537), and it was a significant proof of the tendency of that peace that the Aetolian league immediately nominated Agelaus as its -strategus-.

National patriotism was bestirring itself in Greece as in Carthage: for a moment it seemed possible to kindle a Hellenic national war against Rome. But the general in such a crusade could only be Philip of Macedonia; and he lacked the enthusiasm and the faith in the nation, without which such a war could not be waged. He knew not how to solve the arduous problem of transforming himself from the oppressor into the champion of Greece. His very delay in the conclusion of the alliance with Hannibal damped the first and best zeal of the Greek patriots; and when he did enter into the conflict with Rome, his mode of conducting war was still less fitted to awaken sympathy and confidence. His first attempt, which was made in the very year of the battle of Cannae (538), to obtain possession of the city of Apollonia, failed in a way almost ridiculous, for Philip turned back in all haste on receiving the totally groundless report that a Roman fleet was steering for the Adriatic. This took place before there was a formal breach with Rome; when the breach at length ensued, friend and foe expected a Macedonian landing in Lower Italy. Since 539 a Roman fleet and army had been stationed at Brundisium to meet it; Philip, who was without vessels of war, was constructing a flotilla of light Illyrian barks to convey his army across. But when the endeavour had to be made in earnest, his courage failed to encounter the dreaded quinqueremes at sea; he broke the promise which he had given to his ally Hannibal to attempt a landing, and with the view of still doing something he resolved to make an attack on his own share of the spoil, the Roman possessions in Epirus (540). Nothing would have come of this even at the best; but the Romans, who well knew that offensive was preferable to defensive protection, were by no means content to remain—as Philip may have hoped—spectators of the attack from the opposite shore. The Roman fleet conveyed a division of the army from

Brundisium to Epirus; Oricum was recaptured from the king, a garrison was thrown into Apollonia, and the Macedonian camp was stormed. Thereupon Philip passed from partial action to total inaction, and notwithstanding all the complaints of Hannibal, who vainly tried to breathe into such a halting and shortsighted policy his own fire and clearness of decision, he allowed some years to elapse in armed inactivity.

Rome Heads a Greek Coalition against Macedonia

Nor was Philip the first to renew the hostilities. The fall of Tarentum (542), by which Hannibal acquired an excellent port on the coast which was the most convenient for the landing of a Macedonian army, induced the Romans to parry the blow from a distance and to give the Macedonians so much employment at home that they could not think of an attempt on Italy. The national enthusiasm in Greece had of course evaporated long ago. With the help of the old antagonism to Macedonia, and of the fresh acts of imprudence and injustice of which Philip had been guilty, the Roman admiral Laevinus found no difficulty in organizing against Macedonia a coalition of the intermediate and minor powers under the protectorate of Rome. It was headed by the Aetolians, at whose diet Laevinus had personally appeared and had gained its support by a promise of the Acarnanian territory which the Aetolians had long coveted. They concluded with Rome a modest agreement to rob the other Greeks of men and land on the joint account, so that the land should belong to the Aetolians, the men and moveables to the Romans. They were joined by the states of anti-Macedonian, or rather primarily of anti-Achaean, tendencies in Greece proper; in Attica by Athens, in the Peloponnesus by Elis and Messene and especially by Sparta, the antiquated constitution of which had been just about this time overthrown by a daring soldier Machanidas, in order that he might himself exercise despotic power under the name of king Pelops, a minor, and might establish a government of adventurers sustained by bands

of mercenaries. The coalition was joined moreover by those constant antagonists of Macedonia, the chieftains of the half-barbarous Thracian and Illyrian tribes, and lastly by Attalus king of Pergamus, who followed out his own interest with sagacity and energy amidst the ruin of the two great Greek states which surrounded him, and had the acuteness even now to attach himself as a client to Rome when his assistance was still of some value.

Resultless Warfare

Peace between Philip and the Greeks

Peace between Philip and Rome

It is neither agreeable nor necessary to follow the vicissitudes of this aimless struggle. Philip, although he was superior to each one of his opponents and repelled their attacks on all sides with energy and personal valour, yet consumed his time and strength in that profitless defensive. Now he had to turn against the Aetolians, who in concert with the Roman fleet annihilated the unfortunate Acarnanians and threatened Locris and Thessaly; now an invasion of barbarians summoned him to the northern provinces; now the Achaeans solicited his help against the predatory expeditions of Aetolians and Spartans; now king Attalus of Pergamus and the Roman admiral Publius Sulpicius with their combined fleets threatened the east coast or landed troops in Euboea. The want of a war fleet paralyzed Philip in all his movements; he even went so far as to beg vessels of war from his ally Prusias of Bithynia, and even from Hannibal. It was only towards the close of the war that he resolved—as he should have done at first—to order the construction of 100 ships of war; of these however no use was made, if the order was executed at all. All who understood the position of Greece and sympathized with it lamented the unhappy war, in which the last energies of Greece preyed upon themselves and the prosperity of the land was destroyed; repeatedly the commercial states,

Rhodes, Chios, Mitylene, Byzantium, Athens, and even Egypt itself had attempted a mediation. In fact both parties had an interest in coming to terms. The Aetolians, to whom their Roman allies attached the chief importance, had, like the Macedonians, much to suffer from the war; especially after the petty king of the Athamanes had been gained by Philip, and the interior of Aetolia had thus been laid open to Macedonian incursions. Many Aetolians too had their eyes gradually opened to the dishonourable and pernicious part which the Roman alliance condemned them to play; a cry of horror pervaded the whole Greek nation when the Aetolians in concert with the Romans sold whole bodies of Hellenic citizens, such as those of Anticyra, Oreus, Dyme, and Aegina, into slavery. But the Aetolians were no longer free; they ran a great risk if of their own accord they concluded peace with Philip, and they found the Romans by no means disposed, especially after the favourable turn which matters were taking in Spain and in Italy, to desist from a war, which on their part was carried on with merely a few ships, and the burden and injury of which fell mainly on the Aetolians. At length however the Aetolians resolved to listen to the mediating cities: and, notwithstanding the counter-efforts of the Romans, a peace was arranged in the winter of 548-9 between the Greek powers. Aetolia had converted an over-powerful ally into a dangerous enemy; but the Roman senate, which just at that time was summoning all the resources of the exhausted state for the decisive expedition to Africa, did not deem it a fitting moment to resent the breach of the alliance. The war with Philip could not, after the withdrawal of the Aetolians, have been carried on by the Romans without considerable exertions of their own; and it appeared to them more convenient to terminate it also by a peace, whereby the state of things before the war was substantially restored and Rome in particular retained all her possessions on the coast of Epirus except the worthless territory of the Atintanes. Under the circumstances Philip had to deem himself fortunate in obtaining such terms; but the fact proclaimed

—what could not indeed be longer concealed—that all the unspeakable misery which ten years of a warfare waged with revolting inhumanity had brought upon Greece had been endured in vain, and that the grand and just combination, which Hannibal had projected and all Greece had for a moment joined, was shattered irretrievably.

Spanish War

In Spain, where the spirit of Hamilcar and Hannibal was powerful, the struggle was more earnest. Its progress was marked by the singular vicissitudes incidental to the peculiar nature of the country and the habits of the people. The farmers and shepherds, who inhabited the beautiful valley of the Ebro and the luxuriantly fertile Andalusia as well as the rough intervening highland region traversed by numerous wooded mountain ranges, could easily be assembled in arms as a general levy; but it was difficult to lead them against the enemy or even to keep them together at all. The towns could just as little be combined for steady and united action, obstinately as in each case they bade defiance to the oppressor behind their walls. They all appear to have made little distinction between the Romans and the Carthaginians; whether the troublesome guests who had established themselves in the valley of the Ebro, or those who had established themselves on the Guadalquivir, possessed a larger or smaller portion of the peninsula, was probably to the natives very much a matter of indifference; and for that reason the tenacity of partisanship so characteristic of Spain was but little prominent in this war, with isolated exceptions such as Saguntum on the Roman and Astapa on the Carthaginian side. But, as neither the Romans nor the Africans had brought with them sufficient forces of their own, the war necessarily became on both sides a struggle to gain partisans, which was decided rarely by solid attachment, more usually by fear, money, or accident, and which, when it seemed about to end, resolved itself into an endless series of fortress-sieges and guerilla conflicts, whence

it soon revived with fresh fury. Armies appeared and disappeared like sandhills on the seashore; on the spot where a hill stood yesterday, not a trace of it remains today. In general the superiority was on the side of the Romans, partly because they at first appeared in Spain as the deliverers of the land from Phoenician despotism, partly because of the fortunate selection of their leaders and of the stronger nucleus of trustworthy troops which these brought along with them. It is hardly possible, however, with the very imperfect and—in point of chronology especially—very confused accounts which have been handed down to us, to give a satisfactory view of a war so conducted.

Successes of the Scipios Syphax against Carthage

The two lieutenant-governors of the Romans in the peninsula, Gnaeus and Publius Scipio—both of them, but especially Gnaeus, good generals and excellent administrators—accomplished their task with the most brilliant success. Not only was the barrier of the Pyrenees steadfastly maintained, and the attempt to re-establish the interrupted communication by land between the commander-in-chief of the enemy and his headquarters sternly repulsed; not only had a Spanish New Rome been created, after the model of the Spanish New Carthage, by means of the comprehensive fortifications and harbour works of Tarraco, but the Roman armies had already in 539 fought with success in Andalusia.⁽²⁾ Their expedition thither was repeated in the following year (540) with still greater success. The Romans carried their arms almost to the Pillars of Hercules, extended their protectorate in South Spain, and lastly by regaining and restoring Saguntum secured for themselves an important station on the line from the Ebro to Cartagena, repaying at the same time as far as possible an old debt which the nation owed. While the Scipios thus almost dislodged the Carthaginians from Spain, they knew how to raise up a dangerous

enemy to them in western Africa itself in the person of the powerful west African prince Syphax, ruling in the modern provinces of Oran and Algiers, who entered into connections with the Romans (about 541). Had it been possible to supply him with a Roman army, great results might have been expected; but at that time not a man could be spared from Italy, and the Spanish army was too weak to be divided. Nevertheless the troops belonging to Syphax himself, trained and led by Roman officers, excited so serious a ferment among the Libyan subjects of Carthage that the lieutenant-commander of Spain and Africa, Hasdrubal Barcas, went in person to Africa with the flower of his Spanish troops. His arrival in all likelihood gave another turn to the matter; the king Gala—in what is now the province of Constantine—who had long been the rival of Syphax, declared for Carthage, and his brave son Massinissa defeated Syphax, and compelled him to make peace. Little more is related of this Libyan war than the story of the cruel vengeance which Carthage, according to her wont, inflicted on the rebels after the victory of Massinissa.

The Scipios Defeated and Killed

Spain South of the Ebro Lost to the Romans

Nero Sent to Spain

This turn of affairs in Africa had an important effect on the war in Spain. Hasdrubal was able once more to turn to that country (543), whither he was soon followed by considerable reinforcements and by Massinissa himself. The Scipios, who during the absence of the enemy's general (541, 542) had continued to plunder and to gain partisans in the Carthaginian territory, found themselves unexpectedly assailed by forces so superior that they were under the necessity of either retreating behind the Ebro or calling out the Spaniards. They chose the latter course, and took into their pay 20,000 Celtiberians; and then, in order the better to encounter the three armies of the enemy under Hasdrubal Barcas, Hasdrubal the son of Gisgo, and Mago,

they divided their army and did not even keep their Roman troops together. They thus prepared the way for their own destruction. While Gnaeus with his corps, containing a third of the Roman and all the Spanish troops, lay encamped opposite to Hasdrubal Barcas, the latter had no difficulty in inducing the Spaniards in the Roman army by means of a sum of money to withdraw—which perhaps to their free-lance ideas of morals did not even seem a breach of fidelity, seeing that they did not pass over to the enemies of their paymaster. Nothing was left to the Roman general but hastily to begin his retreat, in which the enemy closely followed him. Meanwhile the second Roman corps under Publius found itself vigorously assailed by the two other Phoenician armies under Hasdrubal son of Gisco and Mago, and the daring squadrons of Massinissa's horse gave to the Carthaginians a decided advantage. The Roman camp was almost surrounded; when the Spanish auxiliaries already on the way should arrive, the Romans would be completely hemmed in. The bold resolve of the proconsul to encounter with his best troops the advancing Spaniards, before their appearance should fill up the gap in the blockade, ended unfortunately. The Romans indeed had at first the advantage; but the Numidian horse, who were rapidly despatched in pursuit, soon overtook them and prevented them both from following up the victory which they had already half gained, and from marching back, until the Phoenician infantry came up and at length the fall of the general converted the lost battle into a defeat. After Publius had thus fallen, Gnaeus, who slowly retreating had with difficulty defended himself against the one Carthaginian army, found himself suddenly assailed at once by three, and all retreat cut off by the Numidian cavalry. Hemmed in upon a bare hill, which did not even afford the possibility of pitching a camp, the whole corps were cut down or taken prisoners. As to the fate of the general himself no certain information was ever obtained. A small division alone was conducted by Gaius Marcius, an excellent officer of the school of Gnaeus, in safety to the other bank of the Ebro; and thither the legate Titus Fonteius

also succeeded in bringing safely the portion of the corps of Publius that had been left in the camp; most even of the Roman garrisons scattered in the south of Spain were enabled to flee thither. In all Spain south of the Ebro the Phoenicians ruled undisturbed; and the moment seemed not far distant, when the river would be crossed, the Pyrenees would be open, and the communication with Italy would be restored. But the emergency in the Roman camp called the right man to the command. The choice of the soldiers, passing over older and not incapable officers, summoned that Gaius Marcius to become leader of the army; and his dexterous management and quite as much perhaps, the envy and discord among the three Carthaginian generals, wrested from these the further fruits of their important victory. Such of the Carthaginians as had crossed the river were driven back, and the line of the Ebro was held in the meanwhile, till Rome gained time to send a new army and a new general. Fortunately the turn of the war in Italy, where Capua had just fallen, allowed this to be done. A strong legion—12,000 men—arriving under the propraetor Gaius Claudius Nero, restored the balance of arms. An expedition to Andalusia in the following year (544) was most successful; Hasdrubal Barcas was beset and surrounded, and escaped a capitulation only by ignoble stratagem and open perfidy. But Nero was not the right general for the Spanish war. He was an able officer, but a harsh, irritable, unpopular man, who had little skill in the art of renewing old connections or of forming new ones, or in taking advantage of the injustice and arrogance with which the Carthaginians after the death of the Scipios had treated friend and foe in Further Spain, and had exasperated all against them.

Publius Scipio

The senate, which formed a correct judgment as to the importance and the peculiar character of the Spanish war, and had learned from the Uticenses brought in as prisoners by the Roman fleet the great exertions

which were making in Carthage to send Hasdrubal and Massinissa with a numerous army over the Pyrenees, resolved to despatch to Spain new reinforcements and an extraordinary general of higher rank, the nomination of whom they deemed it expedient to leave to the people. For long—so runs the story—nobody announced himself as ready to take in hand the complicated and perilous business; but at last a young officer of twenty-seven, Publius Scipio (son of the general of the same name that had fallen in Spain), who had held the offices of military tribune and aedile, came forward to solicit it. It is incredible that the Roman senate should have left to accident an election of such importance in this meeting of the Comitia which it had itself suggested, and equally incredible that ambition and patriotism should have so died out in Rome that no tried officer presented himself for the important post. If on the other hand the eyes of the senate turned to the young, talented, and experienced officer, who had brilliantly distinguished himself in the hotly-contested days on the Ticinus and at Cannae, but who still had not the rank requisite for his coming forward as the successor of men who had been praetors and consuls, it was very natural to adopt this course, which compelled the people out of good nature to admit the only candidate notwithstanding his defective qualification, and which could not but bring both him and the Spanish expedition, which was doubtless very unpopular, into favour with the multitude. If the effect of this ostensibly unpremeditated candidature was thus calculated, it was perfectly successful. The son, who went to avenge the death of a father whose life he had saved nine years before on the Ticinus; the young man of manly beauty and long locks, who with modest blushes offered himself in the absence of a better for the post of danger; the mere military tribune, whom the votes of the centuries now raised at once to the roll of the highest magistracies—all this made a wonderful and indelible impression on the citizens and farmers of Rome. And in truth Publius Scipio was one, who was himself enthusiastic, and who inspired enthusiasm. He was not one of the few who

by their energy and iron will constrain the world to adopt and to move in new paths for centuries, or who at any rate grasp the reins of destiny for years till its wheels roll over them. Publius Scipio gained battles and conquered countries under the instructions of the senate; with the aid of his military laurels he took also a prominent position in Rome as a statesman; but a wide interval separates such a man from an Alexander or a Caesar. As an officer he rendered at least no greater service to his country than Marcus Marcellus; and as a politician, although not perhaps himself fully conscious of the unpatriotic and personal character of his policy, he injured his country at least as much, as he benefited it by his military skill. Yet a special charm lingers around the form of that graceful hero; it is surrounded, as with a dazzling halo, by the atmosphere of serene and confident inspiration, in which Scipio with mingled credulity and adroitness always moved. With quite enough of enthusiasm to warm men's hearts, and enough of calculation to follow in every case the dictates of intelligence, while not leaving out of account the vulgar; not naive enough to share the belief of the multitude in his divine inspirations, nor straightforward enough to set it aside, and yet in secret thoroughly persuaded that he was a man specially favoured of the gods—in a word, a genuine prophetic nature; raised above the people, and not less aloof from them; a man of steadfast word and kingly spirit, who thought that he would humble himself by adopting the ordinary title of a king, but could never understand how the constitution of the republic should in his case be binding; so confident in his own greatness that he knew nothing of envy or of hatred, courteously acknowledged other men's merits, and compassionately forgave other men's faults; an excellent officer and a refined diplomatist without the repellent special impress of either calling, uniting Hellenic culture with the fullest national feeling of a Roman, an accomplished speaker and of graceful manners—Publius Scipio won the hearts of soldiers and of women, of his countrymen and of the Spaniards, of his rivals in the senate and of his

greater Carthaginian antagonist. His name was soon on every one's lips, and his was the star which seemed destined to bring victory and peace to his country.

Scipio Goes to Spain Capture of New Carthage

Publius Scipio went to Spain in 544-5, accompanied by the propraetor Marcus Silanus, who was to succeed Nero and to serve as assistant and counsellor to the young commander-in-chief, and by his intimate friend Gaius Laelius as admiral, and furnished with a legion exceeding the usual strength and a well-filled chest. His appearance on the scene was at once signalized by one of the boldest and most fortunate -coups de main- that are known in history. Of the three Carthaginian generals Hasdrubal Barcas was stationed at the sources, Hasdrubal son of Gisgo at the mouth, of the Tagus, and Mago at the Pillars of Hercules; the nearest of them was ten days' march from the Phoenician capital New Carthage. Suddenly in the spring of 545, before the enemy's armies began to move, Scipio set out with his whole army of nearly 30,000 men and the fleet for this town, which he could reach from the mouth of the Ebro by the coast route in a few days, and surprised the Phoenician garrison, not above 1000 men strong, by a combined attack by sea and land. The town, situated on a tongue of land projecting into the harbour, found itself threatened at once on three sides by the Roman fleet, and on the fourth by the legions; and all help was far distant. Nevertheless the commandant Mago defended himself with resolution and armed the citizens, as the soldiers did not suffice to man the walls. A sortie was attempted; but the Romans repelled it with ease and, without taking time to open a regular siege, began the assault on the landward side. Eagerly the assailants pushed their advance along the narrow land approach to the town; new columns constantly relieved those that were fatigued; the weak garrison was utterly exhausted; but the Romans had

gained no advantage. Scipio had not expected any; the assault was merely designed to draw away the garrison from the side next to the harbour, where, having been informed that part of the latter was left dry at ebb-tide, he meditated a second attack. While the assault was raging on the landward side, Scipio sent a division with ladders over the shallow bank "where Neptune himself showed them the way," and they had actually the good fortune to find the walls at that point undefended. Thus the city was won on the first day; whereupon Mago in the citadel capitulated. With the Carthaginian capital there fell into the hands of the Romans 18 dismantled vessels of war and 63 transports, the whole war-stores, considerable supplies of corn, the war-chest of 600 talents (more than; 40,000 pounds), ten thousand captives, among whom were eighteen Carthaginian gerusiasts or judges, and the hostages of all the Spanish allies of Carthage. Scipio promised the hostages permission to return home so soon as their respective communities should have entered into alliance with Rome, and employed the resources which the city afforded to reinforce and improve the condition of his army. He ordered the artisans of New Carthage, 2000 in number, to work for the Roman army, promising to them liberty at the close of the war, and he selected the able-bodied men among the remaining multitude to serve as rowers in the fleet. But the burgesses of the city were spared, and allowed to retain their liberty and former position. Scipio knew the Phoenicians, and was aware that they would obey; and it was important that a city possessing the only excellent harbour on the east coast and rich silver mines should be secured by something more than a garrison.

Success thus crowned the bold enterprise—bold, because it was not unknown to Scipio that Hasdrubal Barcas had received orders from his government to advance towards Gaul and was engaged in fulfilling them, and because the weak division left behind on the Ebro was not in a position seriously to oppose that movement, should the return of Scipio be delayed. But he was again at Tarraco, before Hasdrubal made his appearance on the

Ebro. The hazard of the game which the young general played, when he abandoned his primary task in order to execute a dashing stroke, was concealed by the fabulous success which Neptune and Scipio had gained in concert. The marvellous capture of the Phoenician capital so abundantly justified all the expectations which had been formed at home regarding the wondrous youth, that none could venture to utter any adverse opinion. Scipio's command was indefinitely prolonged; he himself resolved no longer to confine his efforts to the meagre task of guarding the passes of the Pyrenees. Already, in consequence of the fall of New Carthage, not only had the Spaniards on the north of the Ebro completely submitted, but even beyond the Ebro the most powerful princes had exchanged the Carthaginian for the Roman protectorate.

Scipio Goes to Andalusia Hasdrubal Crosses the Pyrenees

Scipio employed the winter of 545-6 in breaking up his fleet and increasing his land army with the men thus acquired, so that he might at once guard the north and assume the offensive in the south more energetically than before; and he marched in 546 to Andalusia. There he encountered Hasdrubal Barcas, who, in the execution of his long-cherished plan, was moving northward to the help of his brother. A battle took place at Baecula, in which the Romans claimed the victory and professed to have made 10,000 captives; but Hasdrubal substantially attained his end, although at the sacrifice of a portion of his army. With his chest, his elephants, and the best portion of his troops, he fought his way to the north coast of Spain; marching along the shore, he reached the western passes of the Pyrenees which appear to have been unoccupied, and before the bad season began he was in Gaul, where he took up quarters for the winter. It was evident that the resolve of Scipio to combine offensive operations with the defensive which he had been instructed to maintain was inconsiderate

and unwise. The immediate task assigned to the Spanish army, which not only Scipio's father and uncle, but even Gaius Marcius and Gaius Nero had accomplished with much inferior means, was not enough for the arrogance of the victorious general at the head of a numerous army; and he was mainly to blame for the extremely critical position of Rome in the summer of 547, when the plan of Hannibal for a combined attack on the Romans was at length realized. But the gods covered the errors of their favourite with laurels. In Italy the peril fortunately passed over; the Romans were glad to accept the bulletin of the ambiguous victory of Baecula, and, when fresh tidings of victory arrived from Spain, they thought no more of the circumstance that they had had to combat the ablest general and the flower of the Hispano-Phoenician army in Italy.

Spain Conquered

Mago Goes to Italy

Gades Becomes Roman

After the removal of Hasdrubal Barcas the two generals who were left in Spain determined for the time being to retire, Hasdrubal son of Gisgo to Lusitania, Mago even to the Baleares; and, until new reinforcements should arrive from Africa, they left the light cavalry of Massinissa alone to wage a desultory warfare in Spain, as Muttines had done so successfully in Sicily. The whole east coast thus fell into the power of the Romans. In the following year (547) Hanno actually made his appearance from Africa with a third army, whereupon Mago and Hasdrubal returned to Andalusia. But Marcus Silanus defeated the united armies of Mago and Hanno, and captured the latter in person. Hasdrubal upon this abandoned the idea of keeping the open field, and distributed his troops among the Andalusian cities, of which Scipio was during this year able to storm only one, Oringis. The Phoenicians seemed vanquished; but yet they were able in the following year (548) once more to send into the field a powerful army, 32

elephants, 4000 horse, and 70,000 foot, far the greater part of whom, it is true, were hastily-collected: Spanish militia. Again a battle took place at Baecula. The Roman army numbered little more than half that of the enemy, and was also to a considerable extent composed of Spaniards. Scipio, like Wellington in similar circumstances, disposed his Spaniards so that they should not partake in the fight—the only possible mode of preventing their dispersion —while on the other hand he threw his Roman troops in the first instance on the Spaniards. The day was nevertheless obstinately contested; but at length the Romans were the victors, and, as a matter of course, the defeat of such an army was equivalent to its complete dissolution—Hasdrubal and Mago singly made their escape to Gades. The Romans were now without a rival in the peninsula; the few towns that did not submit with good will were subdued one by one, and some of them were punished with cruel severity. Scipio was even able to visit Syphax on the African coast, and to enter into communications with him and also with Massinissa with reference to an expedition to Africa—a foolhardy venture, which was not warranted by any corresponding advantage, however much the report of it might please the curiosity of the citizens of the capital at home. Gades alone, where Mago held command, was still Phoenician. For a moment it seemed as if, after the Romans had entered upon the Carthaginian heritage and had sufficiently undeceived the expectation cherished here and there among the Spaniards that after the close of the Phoenician rule they would get rid of their Roman guests also and regain their ancient freedom, a general insurrection against the Romans would break forth in Spain, in which the former allies of Rome would take the lead. The sickness of the Roman general and the mutiny of one of his corps, occasioned by their pay being in arrear for many years, favoured the rising. But Scipio recovered sooner than was expected, and dexterously suppressed the tumult among the soldiers; upon which the communities that had taken the lead in the national rising were subdued at once before the insurrection gained ground. Seeing

that nothing came of this movement and Gades could not be permanently held, the Carthaginian government ordered Mago to gather together whatever could be got in ships, troops, and money, and with these, if possible, to give another turn to the war in Italy. Scipio could not prevent this—his dismantling of the fleet now avenged itself—and he was a second time obliged to leave in the hands of his gods the defence, with which he had been entrusted, of his country against new invasions. The last of Hamilcar's sons left the peninsula without opposition. After his departure Gades, the oldest and last possession of the Phoenicians on Spanish soil, submitted on favourable conditions to the new masters. Spain was, after a thirteen years' struggle, converted from a Carthaginian into a Roman province, in which the conflict with the Romans was still continued for centuries by means of insurrections always suppressed and yet never subdued, but in which at the moment no enemy stood opposed to Rome. Scipio embraced the first moment of apparent peace to resign his command (in the end of 548), and to report at Rome in person the victories which he had achieved and the provinces which he had won.

Italian War

Position of the Armies

While the war was thus terminated in Sicily by Marcellus, in Greece by Publius Sulpicius, and in Spain by Scipio, the mighty struggle went on without interruption in the Italian peninsula. There after the battle of Cannae had been fought and its effects in loss or gain could by degrees be discerned, at the commencement of 540, the fifth year of the war, the dispositions of the opposing Romans and Phoenicians were the following. North Italy had been reoccupied by the Romans after the departure of Hannibal, and was protected by three legions, two of which were stationed in the Celtic territory, the third as a reserve in Picenum. Lower Italy, as far as Mount Garganus and the Volturnus, was, with the exception of the

fortresses and most of the ports, in the hands of Hannibal. He lay with his main army at Arpi, while Tiberius Gracchus with four legions confronted him in Apulia, resting upon the fortresses of Luceria and Beneventum. In the land of the Bruttians, where the inhabitants had thrown themselves entirely into the arms of Hannibal, and where even the ports—excepting Rhegium, which the Romans protected from Messana—had been occupied by the Phoenicians, there was a second Carthaginian army under Hanno, which in the meanwhile saw no enemy to face it. The Roman main army of four legions under the two consuls, Quintus Fabius and Marcus Marcellus, was on the point of attempting to recover Capua. To these there fell to be added on the Roman side the reserve of two legions in the capital, the garrisons placed in all the seaports—Tarentum and Brundisium having been reinforced by a legion on account of the Macedonian landing apprehended there—and lastly the strong fleet which had undisputed command of the sea. If we add to these the Roman armies in Sicily, Sardinia, and Spain, the whole number of the Roman forces, even apart from the garrison service in the fortresses of Lower Italy which was provided for by the colonists occupying them, may be estimated at not less than 200,000 men, of whom one-third were newly enrolled for this year, and about one-half were Roman citizens. It may be assumed that all the men capable of service from the 17th to the 46th year were under arms, and that the fields, where the war permitted them to be tilled at all, were cultivated by the slaves and the old men, women, and children. As may well be conceived, under such circumstances the finances were in the most grievous embarrassment; the land-tax, the main source of revenue, came in but very irregularly. Yet notwithstanding these difficulties as to men and money the Romans were able—slowly indeed and by exerting all their energies, but still surely—to recover what they had so rapidly lost; to increase their armies yearly, while those of the Phoenicians were diminishing; to gain ground year by year on the Italian allies of Hannibal, the Campanians, Apulians, Samnites, and

Bruttians, who neither sufficed, like the Roman fortresses in Lower Italy, for their own protection nor could be adequately protected by the weak army of Hannibal; and finally, by means of the method of warfare instituted by Marcus Marcellus, to develop the talent of their officers and to bring into full play the superiority of the Roman infantry. Hannibal might doubtless still hope for victories, but no longer such victories as those on the Trasimene lake and on the Aufidus; the times of the citizen-generals were gone by. No course was left to him but to wait till either Philip should execute his long-promised descent or his own brothers should join him from Spain, and meanwhile to keep himself, his army, and his clients as far as possible free from harm and in good humour. We hardly recognize in the obstinate defensive system which he now began the same general who had carried on the offensive with almost unequalled impetuosity and boldness; it is marvellous in a psychological as well as in a military point of view, that the same man should have accomplished the two tasks set to him—tasks so diametrically opposite in their character—with equal completeness.

Conflicts in the South of Italy

At first the war turned chiefly towards Campania. Hannibal appeared in good time to protect its capital, which he prevented from being invested; but he was unable either to wrest any of the Campanian towns held by the Romans from their strong Roman garrisons, or to prevent—in addition to a number of less important country towns—Casilinum, which secured his passage over the Volturnus, from being taken by the two consular armies after an obstinate defence. An attempt of Hannibal to gain Tarentum, with the view especially of acquiring a safe landing-place for the Macedonian army, proved unsuccessful. Meanwhile the Bruttian army of the Carthaginians under Hanno had various encounters in Lucania with the Roman army of Apulia; here Tiberius Gracchus sustained the struggle with good results, and after a successful combat not far from Beneventum, in

which the slave legions pressed into service had distinguished themselves, he bestowed liberty and burgess-rights on his slave-soldiers in the name of the people.

Arpi Acquired by the Romans

In the following year (541) the Romans recovered the rich and important Arpi, whose citizens, after the Roman soldiers had stolen into the town, made common cause with them against the Carthaginian garrison. In general the bonds of the symmarchy formed by Hannibal were relaxing; a number of the leading Capuans and several of the Bruttian towns passed over to Rome; even a Spanish division of the Phoenician army, when informed by Spanish emissaries of the course of events in their native land, passed from the Carthaginian into the Roman service.

Tarentum Taken by Hannibal

The year 542 was more unfavourable for the Romans in consequence of fresh political and military errors, of which Hannibal did not fail to take advantage. The connections which Hannibal maintained in the towns of Magna Graecia had led to no serious result; save that the hostages from Tarentum and Thurii, who were kept at Rome, were induced by his emissaries to make a foolhardy attempt at escape, in which they were speedily recaptured by the Roman posts. But the injudicious spirit of revenge displayed by the Romans was of more service to Hannibal than his intrigues; the execution of all the hostages who had sought to escape deprived them of a valuable pledge, and the exasperated Greeks thenceforth meditated how they might open their gates to Hannibal. Tarentum was actually occupied by the Carthaginians in consequence of an understanding with the citizens and of the negligence of the Roman commandant; with difficulty the Roman garrison maintained itself in the citadel. The example of Tarentum was followed by Heraclea, Thurii, and Metapontum, from

which town the garrison had to be withdrawn in order to save the Tarentine Acropolis. These successes so greatly increased the risk of a Macedonian landing, that Rome felt herself compelled to direct renewed attention and renewed exertions to the Greek war, which had been almost totally neglected; and fortunately the capture of Syracuse and the favourable state of the Spanish war enabled her to do so.

Conflicts around Capua

At the chief seat of war, in Campania, the struggle went on with very varying success. The legions posted in the neighbourhood of Capua had not yet strictly invested the city, but had so greatly hindered the cultivation of the soil and the ingathering of the harvest, that the populous city was in urgent need of supplies from without. Hannibal accordingly collected a considerable supply of grain, and directed the Campanians to receive it at Beneventum; but their tardiness gave the consuls Quintus Flaccus and Appius Claudius time to come up, to inflict a severe defeat on Hanno who protected the grain, and to seize his camp and all his stores. The two consuls then invested the town, while Tiberius Gracchus stationed himself on the Appian Way to prevent Hannibal from approaching to relieve it. But that brave officer fell in consequence of the shameful stratagem of a perfidious Lucanian; and his death was equivalent to a complete defeat, for his army, consisting mostly of those slaves whom he had manumitted, dispersed after the fall of their beloved leader. So Hannibal found the road to Capua open, and by his unexpected appearance compelled the two consuls to raise the blockade which they had barely begun. Their cavalry had already, before Hannibal's arrival, been thoroughly defeated by the Phoenician cavalry, which lay as a garrison in Capua under Hanno and Bostar, and by the equally excellent Campanian horse. The total destruction of the regular troops and free bands in Lucania led by Marcus Centenius, a man imprudently promoted from a subaltern to be a general, and the not much

less complete defeat of the negligent and arrogant praetor Gnaeus Fulvius Flaccus in Apulia, closed the long series of the misfortunes of this year. But the stubborn perseverance of the Romans again neutralized the rapid success of Hannibal, at least at the most decisive point. As soon as Hannibal turned his back on Capua to proceed to Apulia, the Roman armies once more gathered around that city, one at Puteoli and Volturnum under Appius Claudius, another at Casilinum under Quintus Fulvius, and a third on the Nolan road under the praetor Gaius Claudius Nero. The three camps, well entrenched and connected with one another by fortified lines, precluded all access to the place, and the large, inadequately provisioned city could not but find itself compelled by the mere investment to surrender at no distant time, should no relief arrive. As the winter of 542-3 drew to an end, the provisions were almost exhausted, and urgent messengers, who were barely able to steal through the well-guarded Roman lines, requested speedy help from Hannibal, who was at Tarentum, occupied with the siege of the citadel. With 33 elephants and his best troops he departed by forced marches from Tarentum for Campania, captured the Roman post at Caiatia, and took up his camp on Mount Tifata close by Capua, in the confident expectation that the Roman generals would, now raise the siege as they had done the year before. But the Romans, who had had time to entrench their camps and their lines like a fortress, did not stir, and looked on unmoved from their ramparts, while on one side the Campanian horsemen, on the other the Numidian squadrons, dashed against their lines. A serious assault could not be thought of by Hannibal; he could foresee that his advance would soon draw the other Roman armies after him to Campania, if even before their arrival the scarcity of supplies in a region so systematically foraged did not drive him away. Nothing could be done in that quarter.

Hannibal Marches toward Rome

Hannibal tried a further expedient, the last which occurred to his inventive genius, to save the important city. After giving the Campanians information of his intention and exhorting them to hold out, he started with the relieving army from Capua and took the road for Rome. With the same dexterous boldness which he had shown in his first Italian campaigns, he threw himself with a weak army between the armies and fortresses of the enemy, and led his troops through Samnium and along the Valerian Way past Tibur to the bridge over the Anio, which he passed and encamped on the opposite bank, five miles from the city. The children's children of the Romans still shuddered, when they were told of "Hannibal at the gate"; real danger there was none. The country houses and fields in the neighbourhood of the city were laid waste by the enemy; the two legions in the city, who went forth against them, prevented the investment of the walls. Besides, Hannibal had never expected to surprise Rome by a -coup de main-, such as Scipio soon afterwards executed against New Carthage, and still less had he meditated a siege in earnest; his only hope was that in the first alarm part of the besieging army of Capua would march to Rome and thus give him an opportunity of breaking up the blockade. Accordingly after a brief stay he departed. The Romans saw in his withdrawal a miraculous intervention of the gods, who by portents and visions had compelled the wicked man to depart, when in truth the Roman legions were unable to compel him; at the spot where Hannibal had approached nearest to the city, at the second milestone on the Appian Way in front of the Capene gate, with grateful credulity the Romans erected an altar to the god "who turned back and protected" (-Rediculus Tutanus-), Hannibal in reality retreated, because this was part of his plan, and directed his march towards Capua. But the Roman generals had not committed the mistake on which their opponent had reckoned; the legions remained unmoved in the lines round Capua, and only a weak corps had been detached on the news of Hannibal's march towards Rome. When Hannibal learned this, he suddenly turned against the consul

Publius Galba, who had imprudently followed him from Rome, and with whom he had hitherto avoided an engagement, vanquished him, and took his camp by storm.

Capua Capitulates

But this was a poor compensation for the now inevitable fall of Capua. Long had its citizens, particularly the better passes, anticipated with sorrowful forebodings what was coming; the senate-house and the administration of the city were left almost exclusively to the leaders of the popular party hostile to Rome. Now despair seized high and low, Campanians and Phoenicians alike. Twenty-eight senators chose a voluntary death; the remainder gave over the city to the discretion of an implacably exasperated foe. Of course a bloody retribution had to follow; the only discussion was as to whether the process should be long or short: whether the wiser and more appropriate course was to probe to the bottom the further ramifications of the treason even beyond Capua, or to terminate the matter by rapid executions. Appius Claudius and the Roman senate wished to take the former course; the latter view, perhaps the less inhuman, prevailed. Fifty-three of the officers and magistrates of Capua were scourged and beheaded in the marketplaces of Cales and Teanum by the orders and before the eyes of the proconsul Quintus Flaccus, the rest of the senators were imprisoned, numbers of the citizens were sold into slavery, and the estates of the more wealthy were confiscated. Similar penalties were inflicted upon Atella and Caiatia. These punishments were severe; but, when regard is had to the importance of the revolt of Capua from Rome, and to what was the ordinary if not warrantable usage of war in those times, they were not unnatural. And had not the citizens themselves pronounced their own sentence, when immediately after their defection they put to death all the Roman citizens present in Capua at the time of the revolt? But it was unjustifiable in Rome to embrace this opportunity of gratifying the secret

rivalry that had long subsisted between the two largest cities of Italy, and of wholly annihilating, in a political point of view, her hated and envied competitor by abolishing the constitution of the Campanian city.

Superiority of the Romans Tarentum Capitulates

Immense was the impression produced by the fall of Capua, and all the more that it had not been brought about by surprise, but by a two years' siege carried on in spite of all the exertions of Hannibal. It was quite as much a token that the Romans had recovered their ascendancy in Italy, as its defection some years before to Hannibal had been a token that that ascendancy was lost. In vain Hannibal had tried to counteract the impression of this news on his allies by the capture of Rhegium or of the citadel of Tarentum. His forced march to surprise Rhegium had yielded no result. The citadel of Tarentum suffered greatly from famine, after the Tarentino-Carthaginian squadron closed the harbour; but, as the Romans with their much more powerful fleet were able to cut off the supplies from that squadron itself, and the territory, which Hannibal commanded, scarce sufficed to maintain his army, the besiegers on the side next the sea suffered not much less than did the besieged in the citadel, and at length they left the harbour. No enterprise was now successful; Fortune herself seemed to have deserted the Carthaginians. These consequences of the fall of Capua—the deep shock given to the respect and confidence which Hannibal had hitherto enjoyed among the Italian allies, and the endeavours made by every community that was not too deeply compromised to gain readmission on tolerable terms into the Roman symmarchy—affected Hannibal much more keenly than the immediate loss. He had to choose one of two courses; either to throw garrisons into the wavering towns, in which case he would weaken still more his army already too weak and would expose his trusty troops to destruction in small divisions or to treachery—500 of his select Numidian

horsemen were put to death in this way in 544 on the defection of the town of Salapia; or to pull down and burn the towns which could not be depended on, so as to keep them out of the enemy's hands—a course, which could not raise the spirits of his Italian clients. On the fall of Capua the Romans felt themselves once more confident as to the final issue of the war in Italy; they despatched considerable reinforcements to Spain, where the existence of the Roman army was placed in jeopardy by the fall of the two Scipios; and for the first time since the beginning of the war they ventured on a diminution in the total number of their troops, which had hitherto been annually augmented notwithstanding the annually-increasing difficulty of levying them, and had risen at last to 23 legions. Accordingly in the next year (544) the Italian war was prosecuted more remissly than hitherto by the Romans, although Marcus Marcellus had after the close of the Sicilian war resumed the command of the main army; he applied himself to the besieging of fortresses in the interior, and had indecisive conflicts with the Carthaginians. The struggle for the Acropolis of Tarentum also continued without decisive result. In Apulia Hannibal succeeded in defeating the proconsul Gnaeus Fulvius Centumalus at Herdoneae. In the following year (545) the Romans took steps to regain possession of the second large city, which had passed over to Hannibal, the city of Tarentum. While Marcus Marcellus continued the struggle against Hannibal in person with his wonted obstinacy and energy, and in a two days' battle, beaten on the first day, achieved on the second a costly and bloody victory; while the consul Quintus Fulvius induced the already wavering Lucanians and Hirpinians to change sides and to deliver up their Phoenician garrisons; while well-conducted razzias from Rhegium compelled Hannibal to hasten to the aid of the hard-pressed Bruttians; the veteran Quintus Fabius, who had once more—for the fifth time—accepted the consulship and along with it the commission to reconquer Tarentum, established himself firmly in the neighbouring Messapian territory, and the treachery of a Bruttian division

of the garrison surrendered to him the city. Fearful excesses were committed by the exasperated victors. They put to death all of the garrison or of the citizens whom they could find, and pillaged the houses. 30,000 Tarentines are said to have been sold as slaves, and 3000 talents (730,000 pounds) are stated to have been sent to the state treasury. It was the last feat in arms of the general of eighty years; Hannibal arrived to the relief of the city when all was over, and withdrew to Metapontum.

Hannibal Driven Back

Death of Marcellus

After Hannibal had thus lost his most important acquisitions and found himself hemmed in by degrees to the south-western point of the peninsula, Marcus Marcellus, who had been chosen consul for the next year (546), hoped that, in connection with his capable colleague Titus Quintius Crispinus, he should be able to terminate the war by a decisive attack. The old soldier was not disturbed by the burden of his sixty years; sleeping and waking he was haunted by the one thought of defeating Hannibal and of liberating Italy. But fate reserved that wreath of victory for a younger brow. While engaged in an unimportant reconnaissance in the district of Venusia, both consuls were suddenly attacked by a division of African cavalry. Marcellus maintained the unequal struggle—as he had fought forty years before against Hamilcar and fourteen years before at Clastidium—till he sank dying from his horse; Crispinus escaped, but died of his wounds received in the conflict (546).

Pressure of the War

It was now the eleventh year of the war. The danger which some years before had threatened the very existence of the state seemed to have vanished; but all the more the Romans felt the heavy burden—a burden pressing more severely year after year—of the endless war. The finances of

the state suffered beyond measure. After the battle of Cannae (538) a special bank-commission (-tres viri mensarii-) had been appointed, composed of men held in the highest esteem, to form a permanent and circumspect board of superintendence for the public finances in these difficult times. It may have done what it could; but the state of things was such as to baffle all financial sagacity. At the very beginning of the war the Romans had debased the silver and copper coin, raised the legal value of the silver piece more than a third, and issued a gold coin far above the value of the metal. This very soon proved insufficient; they were obliged to take supplies from the contractors on credit, and connived at their conduct because they needed them, till the scandalous malversation at last induced the aediles to make an example of some of the worst by impeaching them before the people. Appeals were often made, and not in vain, to the patriotism of the wealthy, who were in fact the very persons that suffered comparatively the most. The soldiers of the better classes and the subaltern officers and equites in a body, either voluntarily or constrained by the -esprit de corps-, declined to receive pay. The owners of the slaves armed by the state and manumitted after the engagement at Beneventum(3) replied to the bank-commission, which offered them payment, that they would allow it to stand over to the end of the war (540). When there was no longer money in the exchequer for the celebration of the national festivals and the repairs of the public buildings, the companies which had hitherto contracted for these matters declared themselves ready to continue their services for a time without remuneration (540). A fleet was even fitted out and manned, just as in the first Punic war, by means of a voluntary loan among the rich (544). They spent the moneys belonging to minors; and at length, in the year of the conquest of Tarentum, they laid hands on the last long-spared reserve fund (164,000 pounds). The state nevertheless was unable to meet its most necessary payments; the pay of the soldiers fell dangerously into arrear, particularly in the more remote districts. But the embarrassment of

the state was not the worst part of the material distress. Everywhere the fields lay fallow: even where the war did not make havoc, there was a want of hands for the hoe and the sickle. The price of the -medimnus- (a bushel and a half) had risen to 15 -denarii- (10s.), at least three times the average price in the capital; and many would have died of absolute want, if supplies had not arrived from Egypt, and if, above all, the revival of agriculture in Sicily(4) had not prevented the distress from coming to the worst. The effect which such a state of things must have had in ruining the small farmers, in eating away the savings which had been so laboriously acquired, and in converting flourishing villages into nests of beggars and brigands, is illustrated by similar wars of which fuller details have been preserved.

The Allies

Still more ominous than this material distress was the increasing aversion of the allies to the Roman war, which consumed their substance and their blood. In regard to the non-Latin communities, indeed, this was of less consequence. The war itself showed that they could do nothing, so long as the Latin nation stood by Rome; their greater or less measure of dislike was not of much moment. Now, however, Latium also began to waver. Most of the Latin communes in Etruria, Latium, the territory of the Marsians, and northern Campania —and so in those very districts of Italy which directly had suffered least from the war—announced to the Roman senate in 545 that thenceforth they would send neither contingents nor contributions, and would leave it to the Romans themselves to defray the costs of a war waged in their interest. The consternation in Rome was great; but for the moment there were no means of compelling the refractory. Fortunately all the Latin communities did not act in this way. The colonies in the land of the Gauls, in Picenum, and in southern Italy, headed by the powerful and patriotic Fregellae, declared on the contrary that they adhered the more closely and faithfully to Rome; in fact, it was very clearly evident to all of these that in

the present war their existence was, if possible, still more at stake than that of the capital, and that this war was really waged not for Rome merely, but for the Latin hegemony in Italy, and in truth for the independence of the Italian nation. That partial defection itself was certainly not high treason, but merely the result of shortsightedness and exhaustion; beyond doubt these same towns would have rejected with horror an alliance with the Phoenicians. But still there was a variance between Romans and Latins, which did not fail injuriously to react on the subject population of these districts. A dangerous ferment immediately showed itself in Arretium; a conspiracy organized in the interest of Hannibal among the Etruscans was discovered, and appeared so perilous that Roman troops were ordered to march thither. The military and police suppressed this movement without difficulty; but it was a significant token of what might happen in those districts, if once the Latin strongholds ceased to inspire terror.

Hasdrubal's Approach

Amidst these difficulties and strained relations, news suddenly arrived that Hasdrubal had crossed the Pyrenees in the autumn of 546, and that the Romans must be prepared to carry on the war next year with both the sons of Hamilcar in Italy. Not in vain had Hannibal persevered at his post throughout the long anxious years; the aid, which the factious opposition at home and the shortsighted Philip had refused to him, was at length in the course of being brought to him by his brother, who, like himself, largely inherited the spirit of Hamilcar. Already 8000 Ligurians, enlisted by Phoenician gold, were ready to unite with Hasdrubal; if he gained the first battle, he might hope that like his brother he should be able to bring the Gauls and perhaps the Etruscans into arms against Rome. Italy, moreover, was no longer what it had been eleven years before; the state and the individual citizens were exhausted, the Latin league was shaken, their best general had just fallen in the field of battle, and Hannibal was not subdued.

In reality Scipio might bless the star of his genius, if it averted the consequences of his unpardonable blunder from himself and from his country.

New Armaments

Hasdrubal and Hannibal on the March

As in the times of the utmost danger, Rome once more called out twenty-three legions. Volunteers were summoned to arm, and those legally exempt from military service were included in the levy. Nevertheless, they were taken by surprise. Far earlier than either friends or foes expected, Hasdrubal was on the Italian side of the Alps (547); the Gauls, now accustomed to such transits, were readily bribed to open their passes, and furnished what the army required. If the Romans had any intention of occupying the outlets of the Alpine passes, they were again too late; already they heard that Hasdrubal was on the Po, that he was calling the Gauls to arms as successfully as his brother had formerly done, that Placentia was invested. With all haste the consul Marcus Livius proceeded to the northern army; and it was high time that he should appear. Etruria and Umbria were in sullen ferment; volunteers from them reinforced the Phoenician army. His colleague Gaius Nero summoned the praetor Gaius Hostilius Tubulus from Venusia to join him, and hastened with an army of 40,000 men to intercept the march of Hannibal to the north. The latter collected all his forces in the Bruttian territory, and, advancing along the great road leading from Rhegium to Apulia, encountered the consul at Grumentum. An obstinate engagement took place in which Nero claimed the victory; but Hannibal was able at all events, although with some loss, to evade the enemy by one of his usual adroit flank-marches, and to reach Apulia without hindrance. There he halted, and encamped at first at Venusia, then at Canusium: Nero, who had followed closely in his steps, encamped opposite to him at both places. That Hannibal voluntarily halted and was not prevented from

advancing by the Roman army, appears to admit of no doubt; the reason for his taking up his position exactly at this point and not farther to the north, must have depended on arrangements concerted between himself and Hasdrubal, or on conjectures as to the route of the latter's march, with which we are not acquainted. While the two armies thus lay inactive, face to face, the despatch from Hasdrubal which was anxiously expected in Hannibal's camp was intercepted by the outposts of Nero. It stated that Hasdrubal intended to take the Flaminian road, in other words, to keep in the first instance along the coast and then at Fanum to turn across the Apennines towards Narnia, at which place he hoped to meet Hannibal. Nero immediately ordered the reserve in the capital to proceed to Narnia as the point selected for the junction of the two Phoenician armies, while the division stationed at Capua went to the capital, and a new reserve was formed there. Convinced that Hannibal was not acquainted with the purpose of his brother and would continue to await him in Apulia, Nero resolved on the bold experiment of hastening northward by forced marches with a small but select corps of 7000 men and, if possible, in connection with his colleague, compelling Hasdrubal to fight. He was able to do so, for the Roman army which he left behind still continued strong enough either to hold its ground against Hannibal if he should attack it, or to accompany him and to arrive simultaneously with him at the decisive scene of action, should he depart.

Battle of Sena

Death of Hasdrubal

Nero found his colleague Marcus Livius at Sena Gallica awaiting the enemy. Both consuls at once marched against Hasdrubal, whom they found occupied in crossing the Metaurus. Hasdrubal wished to avoid a battle and to escape from the Romans by a flank movement, but his guides left him in the lurch; he lost his way on the ground strange to him, and was at length

attacked on the march by the Roman cavalry and detained until the Roman infantry arrived and a battle became inevitable. Hasdrubal stationed the Spaniards on the right wing, with his ten elephants in front of it, and the Gauls on the left, which he kept back. Long the fortune of battle wavered on the right wing, and the consul Livius who commanded there was hard pressed, till Nero, repeating his strategical operation as a tactical manoeuvre, allowed the motionless enemy opposite to him to remain as they stood, and marching round his own army fell upon the flank of the Spaniards. This decided the day. The severely fought and very bloody victory was complete; the army, which had no retreat, was destroyed, and the camp was taken by assault. Hasdrubal, when he saw the admirably-conducted battle lost, sought and found like his father an honourable soldier's death. As an officer and a man, he was worthy to be the brother of Hannibal.

Hannibal Retires to the Bruttian Territory

On the day after the battle Nero started, and after scarcely fourteen days' absence once more confronted Hannibal in Apulia, whom no message had reached, and who had not stirred. The consul brought the message with him; it was the head of Hannibal's brother, which the Roman ordered to be thrown into the enemy's outposts, repaying in this way his great antagonist, who scorned to war with the dead, for the honourable burial which he had given to Paullus, Gracchus, and Marcellus. Hannibal saw that his hopes had been in vain, and that all was over. He abandoned Apulia and Lucania, even Metapontum, and retired with his troops to the land of the Bruttians, whose ports formed his only means of withdrawal from Italy. By the energy of the Roman generals, and still more by a conjuncture of unexampled good fortune, a peril was averted from Rome, the greatness of which justified Hannibal's tenacious perseverance in Italy, and which fully bears comparison with the magnitude of the peril of Cannae. The joy in Rome

was boundless; business was resumed as in time of peace; every one felt that the danger of the war was surmounted.

Stagnation of the War in Italy

Nevertheless the Romans were in no hurry to terminate the war. The state and the citizens were exhausted by the excessive moral and material strain on their energies; men gladly abandoned themselves to carelessness and repose.

The army and fleet were reduced; the Roman and Latin farmers were brought back to their desolate homesteads the exchequer was filled by the sale of a portion of the Campanian domains. The administration of the state was regulated anew and the disorders which had prevailed were done away; the repayment of the voluntary war-loan was begun, and the Latin communities that remained in arrears were compelled to fulfil their neglected obligations with heavy interest.

The war in Italy made no progress. It forms a brilliant proof of the strategic talent of Hannibal as well as of the incapacity of the Roman generals now opposed to him, that after this he was still able for four years to keep the field in the Bruttian country, and that all the superiority of his opponents could not compel him either to shut himself up in fortresses or to embark. It is true that he was obliged to retire farther and farther, not so much in consequence of the indecisive engagements which took place with the Romans, as because his Bruttian allies were always becoming more troublesome, and at last he could only reckon on the towns which his army garrisoned. Thus he voluntarily abandoned Thurii; Locri was, on the suggestion of Publius Scipio, recaptured by an expedition from Rhegium (549). As if at last his projects were to receive a brilliant justification at the hands of the very Carthaginian authorities who had thwarted him in them, these now, in their apprehension as to the anticipated landing of the

Romans, revived of their own accord those plans (548, 549), and sent reinforcements and subsidies to Hannibal in Italy, and to Mago in Spain, with orders to rekindle the war in Italy so as to achieve some further respite for the trembling possessors of the Libyan country houses and the shops of Carthage. An embassy was likewise sent to Macedonia, to induce Philip to renew the alliance and to land in Italy (549). But it was too late. Philip had made peace with Rome some months before; the impending political annihilation of Carthage was far from agreeable to him, but he took no step openly at least against Rome. A small Macedonian corps went to Africa, the expenses of which, according to the assertion of the Romans, were defrayed by Philip from his own pocket; this may have been the case, but the Romans had at any rate no proof of it, as the subsequent course of events showed. No Macedonian landing in Italy was thought of.

Mago in Italy

Mago, the youngest son of Hamilcar, set himself to his task more earnestly. With the remains of the Spanish army, which he had conducted in the first instance to Minorca, he landed in 549 at Genoa, destroyed the city, and summoned the Ligurians and Gauls to arms. Gold and the novelty of the enterprise led them now, as always, to come to him in troops; he had formed connections even throughout Etruria, where political prosecutions never ceased. But the troops which he had brought with him were too few for a serious enterprise against Italy proper; and Hannibal likewise was much too weak, and his influence in Lower Italy had fallen much too low, to permit him to advance with any prospect of success. The rulers of Carthage had not been willing to save their native country, when its salvation was possible; now, when they were willing, it was possible no longer.

The African Expedition of Scipio

Nobody probably in the Roman senate doubted either that the war on the part of Carthage against Rome was at an end, or that the war on the part of Rome against Carthage must now be begun; but unavoidable as was the expedition to Africa, they were afraid to enter on its preparation. They required for it, above all, an able and beloved leader; and they had none. Their best generals had either fallen in the field of battle, or they were, like Quintus Fabius and Quintus Fulvius, too old for such an entirely new and probably tedious war. The victors of Sena, Gaius Nero and Marcus Livius, would perhaps have been equal to the task, but they were both in the highest degree unpopular aristocrats; it was doubtful whether they would succeed in procuring the command—matters had already reached such a pass that ability, as such, determined the popular choice only in times of grave anxiety—and it was more than doubtful whether these were the men to stimulate the exhausted people to fresh exertions. At length Publius Scipio returned from Spain, and the favourite of the multitude, who had so brilliantly fulfilled, or at any rate seemed to have fulfilled, the task with which it had entrusted him, was immediately chosen consul for the next year. He entered on office (549) with the firm determination of now realizing that African expedition which he had projected in Spain. In the senate, however, not only was the party favourable to a methodical conduct of the war unwilling to entertain the project of an African expedition so long as Hannibal remained in Italy, but the majority was by no means favourably disposed towards the young general himself. His Greek refinement and his modern culture and tone of thought were but little agreeable to the austere and somewhat boorish fathers of the city; and serious doubts existed both as to his conduct of the Spanish war and as to his military discipline. How much ground there was for the objection that he showed too great indulgence towards his officers of division, was very soon demonstrated by the disgraceful proceedings of Gaius Pleminius at Locri, the blame of which certainly was indirectly chargeable to the

scandalous negligence which marked Scipio's supervision. In the proceedings in the senate regarding the organization of the African expedition and the appointment of a general for it, the new consul, wherever usage or the constitution came into conflict with his private views, showed no great reluctance to set such obstacles aside, and very clearly indicated that in case of need he was disposed to rely for support against the governing board on his fame and his popularity with the people. These things could not but annoy the senate and awaken, moreover, serious apprehension as to whether, in the impending decisive war and the eventual negotiations for peace with Carthage, such a general would hold himself bound by the instructions which he received—an apprehension which his arbitrary management of the Spanish expedition was by no means fitted to allay. Both sides, however, displayed wisdom enough not to push matters too far. The senate itself could not fail to see that the African expedition was necessary, and that it was not wise indefinitely to postpone it; it could not fail to see that Scipio was an extremely able officer and so far well adapted to be the leader in such a war, and that he, if any one, could prevail on the people to protract his command as long as was necessary and to put forth their last energies. The majority came to the resolution not to refuse to Scipio the desired commission, after he had previously observed, at least in form, the respect due to the supreme governing board and had submitted himself beforehand to the decree of the senate. Scipio was to proceed this year to Sicily to superintend the building of the fleet, the preparation of siege materials, and the formation of the expeditionary army, and then in the following year to land in Africa. For this purpose the army of Sicily—still composed of those two legions that were formed from the remnant of the army of Cannae—was placed at his disposal, because a weak garrison and the fleet were quite sufficient for the protection of the island; and he was permitted moreover to raise volunteers in Italy. It was evident that the senate did not appoint the expedition, but merely allowed it: Scipio did not

obtain half the resources which had formerly been placed at the command of Regulus, and he got that very corps which for years had been subjected by the senate to intentional degradation. The African army was, in the view of the majority of the senate, a forlorn hope of disrated companies and volunteers, the loss of whom in any event the state had no great occasion to regret.

Any one else than Scipio would perhaps have declared that the African expedition must either be undertaken with other means, or not at all; but Scipio's confidence accepted the terms, whatever they were, solely with the view of attaining the eagerly-coveted command. He carefully avoided, as far as possible, the imposition of direct burdens on the people, that he might not injure the popularity of the expedition. Its expenses, particularly those of building the fleet which were considerable, were partly procured by what was termed a voluntary contribution of the Etruscan cities—that is, by a war tribute imposed as a punishment on the Arretines and other communities disposed to favour the Phoenicians—partly laid upon the cities of Sicily. In forty days the fleet was ready for sea. The crews were reinforced by volunteers, of whom seven thousand from all parts of Italy responded to the call of the beloved officer. So Scipio set sail for Africa in the spring of 550 with two strong legions of veterans (about 30,000 men), 40 vessels of war, and 400 transports, and landed successfully, without meeting the slightest resistance, at the Fair Promontory in the neighbourhood of Utica.

Preparations in Africa

The Carthaginians, who had long expected that the plundering expeditions, which the Roman squadrons had frequently made during the last few years to the African coast, would be followed by a more serious invasion, had not only, in order to ward it off, endeavoured to bring about a revival of the Italo-Macedonian war, but had also made armed preparation

at home to receive the Romans. Of the two rival Berber kings, Massinissa of Cirta (Constantine), the ruler of the Massylians, and Syphax of Siga (at the mouth of the Tafna westward from Oran), the ruler of the Massaesylians, they had succeeded in attaching the latter, who was far the more powerful and hitherto had been friendly to the Romans, by treaty and marriage alliance closely to Carthage, while they cast off the other, the old rival of Syphax and ally of the Carthaginians. Massinissa had after desperate resistance succumbed to the united power of the Carthaginians and of Syphax, and had been obliged to leave his territories a prey to the latter; he himself wandered with a few horsemen in the desert. Besides the contingent to be expected from Syphax, a Carthaginian army of 20,000 foot, 6000 cavalry, and 140 elephants—Hanno had been sent out to hunt elephants for the very purpose—was ready to fight for the protection of the capital, under the command of Hasdrubal son of Gisco, a general who had gained experience in Spain; in the port there lay a strong fleet. A Macedonian corps under Sopater, and a consignment of Celtiberian mercenaries, were immediately expected.

Scipio Driven Back to the Coast Surprise of the Carthaginian Camp

On the report of Scipio's landing, Massinissa immediately arrived in the camp of the general, whom not long before he had confronted as an enemy in Spain; but the landless prince brought in the first instance nothing beyond his personal ability to the aid of the Romans, and the Libyans, although heartily weary of levies and tribute, had acquired too bitter experience in similar cases to declare at once for the invaders. So Scipio began the campaign. So long as he was only opposed by the weaker Carthaginian army, he had the advantage, and was enabled after some successful cavalry skirmishes to proceed to the siege of Utica; but when Syphax arrived, according to report with 50,000 infantry and 10,000

cavalry, the siege had to be raised, and a fortified naval camp had to be constructed for the winter on a promontory, which easily admitted of entrenchment, between Utica and Carthage. Here the Roman general passed the winter of 550-1. From the disagreeable situation in which the spring found him he extricated himself by a fortunate -coup de main-. The Africans, lulled into security by proposals of peace suggested by Scipio with more artifice than honour, allowed themselves to be surprised on one and the same night in their two camps; the reed huts of the Numidians burst into flames, and, when the Carthaginians hastened to their help, their own camp shared the same fate; the fugitives were slain without resistance by the Roman divisions. This nocturnal surprise was more destructive than many a battle; nevertheless the Carthaginians did not suffer their courage to sink, and they rejected even the advice of the timid, or rather of the judicious, to recall Mago and Hannibal. Just at this time the expected Celtiberian and Macedonian auxiliaries arrived; it was resolved once more to try a pitched battle on the "Great Plains," five days' march from Utica. Scipio hastened to accept it; with little difficulty his veterans and volunteers dispersed the hastily- collected host of Carthaginians and Numidians, and the Celtiberians, who could not reckon on any mercy from Scipio, were cut down after obstinate resistance. After this double defeat the Africans could no longer keep the field. An attack on the Roman naval camp attempted by the Carthaginian fleet, while not unsuccessful, was far from decisive, and was greatly outweighed by the capture of Syphax, which Scipio's singular good fortune threw in his way, and by which Massinissa became to the Romans what Syphax had been at first to the Carthaginians.

Negotiations for Peace

Machinations of the Carthaginian Patriots

After such defeats the Carthaginian peace party, which had been reduced to silence for sixteen years, was able once more to raise its head and openly

to rebel against the government of the Barcides and the patriots. Hasdrubal son of Gisgo was in his absence condemned by the government to death, and an attempt was made to obtain an armistice and peace from Scipio. He demanded the cession of their Spanish possessions and of the islands of the Mediterranean, the transference of the kingdom of Syphax to Massinissa, the surrender of all their vessels of war except 20, and a war contribution of 4000 talents (nearly 1,000,000 pounds)—terms which seemed so singularly favourable to Carthage, that the question obtrudes itself whether they were offered by Scipio more in his own interest or in that of Rome. The Carthaginian plenipotentiaries accepted them under reservation of their being ratified by the respective authorities, and accordingly a Carthaginian embassy was despatched to Rome. But the patriot party in Carthage were not disposed to give up the struggle so cheaply; faith in the nobleness of their cause, confidence in their great leader, even the example that had been set to them by Rome herself, stimulated them to persevere, apart from the fact that peace of necessity involved the return of the opposite party to the helm of affairs and their own consequent destruction. The patriotic party had the ascendancy among the citizens; it was resolved to allow the opposition to negotiate for peace, and meanwhile to prepare for a last and decisive effort. Orders were sent to Mago and Hannibal to return with all speed to Africa. Mago, who for three years (549-551) had been labouring to bring about a coalition in Northern Italy against Rome, had just at this time in the territory of the Insubres (about Milan) been defeated by the far superior double army of the Romans. The Roman cavalry had been brought to give way, and the infantry had been thrown into confusion; victory seemed on the point of declaring for the Carthaginians, when a bold attack by a Roman troop on the enemy's elephants, and above all a serious wound received by their beloved and able commander, turned the fortune of the battle. The Phoenician army was obliged to retreat to the Ligurian coast,

where it received and obeyed the order to embark; but Mago died of his wound on the voyage.

Hannibal Recalled to Africa

Hannibal would probably have anticipated the order, had not the last negotiations with Philip presented to him a renewed prospect of rendering better service to his country in Italy than in Libya; when he received it at Croton, where he latterly had his head-quarters, he lost no time in complying with it. He caused his horses to be put to death as well as the Italian soldiers who refused to follow him over the sea, and embarked in the transports that had been long in readiness in the roadstead of Croton. The Roman citizens breathed freely, when the mighty Libyan lion, whose departure no one even now ventured to compel, thus voluntarily turned his back on Italian ground. On this occasion the decoration of a grass wreath was bestowed by the senate and burgesses on the only survivor of the Roman generals who had traversed that troubled time with honour, the veteran of nearly ninety years, Quintus Fabius. To receive this wreath—which by the custom of the Romans the army that a general had saved presented to its deliverer—at the hands of the whole community was the highest distinction which had ever been bestowed upon a Roman citizen, and the last honorary decoration accorded to the old general, who died in the course of that same year (551). Hannibal, doubtless not under the protection of the armistice, but solely through his rapidity of movement and good fortune, arrived at Leptis without hindrance, and the last of the "lion's brood" of Hamilcar trode once more, after an absence of thirty-six years, his native soil. He had left it, when still almost a boy, to enter on that noble and yet so thoroughly fruitless career of heroism, in which he had set out towards the west to return homewards from the east, having described a wide circle of victory around the Carthaginian sea. Now, when what he had wished to prevent, and what he would have prevented had he been allowed,

was done, he was summoned to help and if possible, to save; and he obeyed without complaint or reproach.

Recommencement of Hostilities

On his arrival the patriot party came forward openly; the disgraceful sentence against Hasdrubal was cancelled; new connections were formed with the Numidian sheiks through the dexterity of Hannibal; and not only did the assembly of the people refuse to ratify the peace practically concluded, but the armistice was broken by the plundering of a Roman transport fleet driven ashore on the African coast, and by the seizure even of a Roman vessel of war carrying Roman envoys. In just indignation Scipio started from his camp at Tunes (552) and traversed the rich valley of the Bagradas (Mejerdah), no longer allowing the townships to capitulate, but causing the inhabitants of the villages and towns to be seized en masse and sold. He had already penetrated far into the interior, and was at Naraggara (to the west of Sicca, now El Kef, on the frontier between Tunis and Algiers), when Hannibal, who had marched out from Hadrumentum, fell in with him. The Carthaginian general attempted to obtain better conditions from the Roman in a personal conference; but Scipio, who had already gone to the extreme verge of concession, could not possibly after the breach of the armistice agree to yield further, and it is not credible that Hannibal had any other object in this step than to show to the multitude that the patriots were not absolutely opposed to peace. The conference led to no result.

Battle of Zama

The two armies accordingly came to a decisive battle at Zama (presumably not far from Sicca).(5) Hannibal arranged his infantry in three lines; in the first rank the Carthaginian hired troops, in the second the African militia and the Phoenician civic force along with the Macedonian corps, in the third the veterans who had followed him from Italy. In front of

the line were placed the 80 elephants; the cavalry were stationed on the wings. Scipio likewise disposed his legions in three ranks, as was the wont of the Romans, and so arranged them that the elephants could pass through and alongside of the line without breaking it. Not only was this disposition completely successful, but the elephants making their way to the side disordered also the Carthaginian cavalry on the wings, so that Scipio's cavalry—which moreover was by the arrival of Massinissa's troops rendered far superior to the enemy—had little trouble in dispersing them, and were soon engaged in full pursuit. The struggle of the infantry was more severe. The conflict lasted long between the first ranks on either side; at length in the extremely bloody hand-to-hand encounter both parties fell into confusion, and were obliged to seek a support in the second ranks. The Romans found that support; but the Carthaginian militia showed itself so unsteady and wavering, that the mercenaries believed themselves betrayed and a hand-to-hand combat arose between them and the Carthaginian civic force. But Hannibal now hastily withdrew what remained of the first two lines to the flanks, and pushed forward his choice Italian troops along the whole line. Scipio, on the other hand, gathered together in the centre as many of the first line as still were able to fight, and made the second and third ranks close up on the right and left of the first. Once more on the same spot began a still more fearful conflict; Hannibal's old soldiers never wavered in spite of the superior numbers of the enemy, till the cavalry of the Romans and of Massinissa, returning from the pursuit of the beaten cavalry of the enemy, surrounded them on all sides. This not only terminated the struggle, but annihilated the Phoenician army; the same soldiers, who fourteen years before had given way at Cannae, had retaliated on their conquerors at Zama. With a handful of men Hannibal arrived, a fugitive, at Hadrumetum.

Peace

After this day folly alone could counsel a continuance of the war on the part of Carthage. On the other hand it was in the power of the Roman general immediately to begin the siege of the capital, which was neither protected nor provisioned, and, unless unforeseen accidents should intervene, now to subject Carthage to the fate which Hannibal had wished to bring upon Rome. Scipio did not do so; he granted peace (553), but no longer upon the former terms. Besides the concessions which had already in the last negotiations been demanded in favour of Rome and of Massinissa, an annual contribution of 200 talents (48,000 pounds) was imposed for fifty years on the Carthaginians; and they had to bind themselves that they would not wage war against Rome or its allies or indeed beyond the bounds of Africa at all, and that in Africa they would not wage war beyond their own territory without having sought the permission of Rome—the practical effect of which was that Carthage became tributary and lost her political independence. It even appears that the Carthaginians were bound in certain cases to furnish ships of war to the Roman fleet.

Scipio has been accused of granting too favourable conditions to the enemy, lest he might be obliged to hand over the glory of terminating the most severe war which Rome had waged, along with his command, to a successor. The charge might have had some foundation, had the first proposals been carried out; it seems to have no warrant in reference to the second. His position in Rome was not such as to make the favourite of the people, after the victory of Zama, seriously apprehensive of recall—already before the victory an attempt to supersede him had been referred by the senate to the burgesses, and by them decidedly rejected. Nor do the conditions themselves warrant such a charge. The Carthaginian city never, after its hands were thus tied and a powerful neighbour was placed by its side, made even an attempt to withdraw from Roman supremacy, still less to enter into rivalry with Rome; besides, every one who cared to know knew that the war just terminated had been undertaken much more by

Hannibal than by Carthage, and that it was absolutely impossible to revive the gigantic plan of the patriot party. It might seem little in the eyes of the vengeful Italians, that only the five hundred surrendered ships of war perished in the flames, and not the hated city itself; spite and pedantry might contend for the view that an opponent is only really vanquished when he is annihilated, and might censure the man who had disdained to punish more thoroughly the crime of having made Romans tremble. Scipio thought otherwise; and we have no reason and therefore no right to assume that the Roman was in this instance influenced by vulgar motives rather than by the noble and magnanimous impulses which formed part of his character. It was not the consideration of his own possible recall or of the mutability of fortune, nor was it any apprehension of the outbreak of a Macedonian war at certainly no distant date, that prevented the self-reliant and confident hero, with whom everything had hitherto succeeded beyond belief, from accomplishing the destruction of the unhappy city, which fifty years afterwards his adopted grandson was commissioned to execute, and which might indeed have been equally well accomplished now. It is much more probable that the two great generals, on whom the decision of the political question now devolved, offered and accepted peace on such terms in order to set just and reasonable limits on the one hand to the furious vengeance of the victors, on the other to the obstinacy and imprudence of the vanquished. The noble-mindedness and statesmanlike gifts of the great antagonists are no less apparent in the magnanimous submission of Hannibal to what was inevitable, than in the wise abstinence of Scipio from an extravagant and insulting use of victory. Is it to be supposed that one so generous, unprejudiced, and intelligent should not have asked himself of what benefit it could be to his country, now that the political power of the Carthaginian city was annihilated, utterly to destroy that ancient seat of commerce and of agriculture, and wickedly to overthrow one of the main pillars of the then existing civilization? The time had not yet come when the first men of

Rome lent themselves to destroy the civilization of their neighbours, and frivolously fancied that they could wash away from themselves the eternal infamy of the nation by shedding an idle tear.

Results of the War

Thus ended the second Punic or, as the Romans more correctly called it, the Hannibalic war, after it had devastated the lands and islands from the Hellespont to the Pillars of Hercules for seventeen years. Before this war the policy of the Romans had no higher aim than to acquire command of the mainland of the Italian peninsula within its natural boundaries, and of the Italian islands and seas; it is clearly proved by their treatment of Africa on the conclusion of peace that they also terminated the war with the impression, not that they had laid the foundation of sovereignty over the states of the Mediterranean or of the so-called universal empire, but that they had rendered a dangerous rival innocuous and had given to Italy agreeable neighbours. It is true doubtless that other results of the war, the conquest of Spain in particular, little accorded with such an idea; but their very successes led them beyond their proper design, and it may in fact be affirmed that the Romans came into possession of Spain accidentally. The Romans achieved the sovereignty of Italy, because they strove for it; the hegemony—and the sovereignty which grew out of it—over the territories of the Mediterranean was to a certain extent thrown into the hands of the Romans by the force of circumstances without intention on their part to acquire it.

Out of Italy

The immediate results of the war out of Italy were, the conversion of Spain into two Roman provinces—which, however, were in perpetual insurrection; the union of the hitherto dependent kingdom of Syracuse with the Roman province of Sicily; the establishment of a Roman instead of a

Carthaginian protectorate over the most important Numidian chiefs; and lastly the conversion of Carthage from a powerful commercial state into a defenceless mercantile town. In other words, it established the uncontested hegemony of Rome over the western region of the Mediterranean. Moreover, in its further development, it led to that necessary contact and interaction between the state systems of the east and the west, which the first Punic war had only foreshadowed; and thereby gave rise to the proximate decisive interference of Rome in the conflicts of the Alexandrine monarchies.

In Italy

As to its results in Italy, first of all the Celts were now certainly, if they had not been already beforehand, destined to destruction; and the execution of the doom was only a question of time. Within the Roman confederacy the effect of the war was to bring into more distinct prominence the ruling Latin nation, whose internal union had been tried and attested by the peril which, notwithstanding isolated instances of wavering, it had surmounted on the whole in faithful fellowship; and to depress still further the non-Latin or non-Latinized Italians, particularly the Etruscans and the Sabellians of Lower Italy. The heaviest punishment or rather vengeance was inflicted partly on the most powerful, partly on those who were at once the earliest and latest, allies of Hannibal—the community of Capua, and the land of the Bruttians. The Capuan constitution was abolished, and Capua was reduced from the second city into the first village of Italy; it was even proposed to raze the city and level it with the ground. The whole soil, with the exception of a few possessions of foreigners or of Campanians well disposed towards Rome, was declared by the senate to be public domain, and was thereafter parcelled out to small occupiers on temporary lease. The Picentes on the Silarus were similarly treated; their capital was razed, and the inhabitants were dispersed among the surrounding villages. The doom of the Bruttians

was still more severe; they were converted en masse into a sort of bondsmen to the Romans, and were for ever excluded from the right of bearing arms. The other allies of Hannibal also dearly expiated their offence. The Greek cities suffered severely, with the exception of the few which had steadfastly adhered to Rome, such as the Campanian Greeks and the Rhegines. Punishment not much lighter awaited the Arpanians and a number of other Apulian, Lucanian, and Samnite communities, most of which lost portions of their territory. On a part of the lands thus acquired new colonies were settled. Thus in the year 560 a succession of burgess-colonies was sent to the best ports of Lower Italy, among which Sipontum (near Manfredonia) and Croton may be named, as also Salernum placed in the former territory of the southern Picentes and destined to hold them in check, and above all Puteoli, which soon became the seat of the genteel -villeggiatura- and of the traffic in Asiatic and Egyptian luxuries. Thurii became a Latin fortress under the new name of Copia (560), and the rich Bruttian town of Vibo under the name of Valentia (562). The veterans of the victorious army of Africa were settled singly on various patches of land in Samnium and Apulia; the remainder was retained as public land, and the pasture stations of the grandees of Rome replaced the gardens and arable fields of the farmers. As a matter of course, moreover, in all the communities of the peninsula the persons of note who were not well affected to Rome were got rid of, so far as this could be accomplished by political processes and confiscations of property. Everywhere in Italy the non-Latin allies felt that their name was meaningless, and that they were thenceforth subjects of Rome; the vanquishing of Hannibal was felt as a second subjugation of Italy, and all the exasperation and all the arrogance of the victor vented themselves especially on the Italian allies who were not Latin. Even the colourless Roman comedy of this period, well subjected as it was to police control, bears traces of this. When the subjugated towns of Capua and Atella were abandoned without restraint to the unbridled wit of

the Roman farce, so that the latter town became its very stronghold, and when other writers of comedy jested over the fact that the Campanian serfs had already learned to survive amidst the deadly atmosphere in which even the hardiest race of slaves, the Syrians, pined away; such unfeeling mockeries re-echoed the scorn of the victors, but not less the cry of distress from the down-trodden nations. The position in which matters stood is shown by the anxious carefulness, which during the ensuing Macedonian war the senate evinced in the watching of Italy, and by the reinforcements which were despatched from Rome to the most important colonies, to Venusia in 554, Narnia in 555, Cosa in 557, and Cales shortly before 570.

What blanks were produced by war and famine in the ranks of the Italian population, is shown by the example of the burgesses of Rome, whose numbers during the war had fallen almost a fourth. The statement, accordingly, which puts the whole number of Italians who fell in the war under Hannibal at 300,000, seems not at all exaggerated. Of course this loss fell chiefly on the flower of the burgesses, who in fact furnished the -elite- as well as the mass of the combatants. How fearfully the senate in particular was thinned, is shown by the filling up of its complement after the battle of Cannae, when it had been reduced to 123 persons, and was with difficulty restored to its normal state by an extraordinary nomination of 177 senators. That, moreover, the seventeen years' war, which had been carried on simultaneously in all districts of Italy and towards all the four points of the compass abroad, must have shaken to the very heart the national economy, is, as a general position, clear; but our tradition does not suffice to illustrate it in detail. The state no doubt gained by the confiscations, and the Campanian territory in particular thenceforth remained an inexhaustible source of revenue to the state; but by this extension of the domain system the national prosperity of course lost just about as much as at other times it had gained by the breaking up of the state lands. Numbers of flourishing townships—four hundred, it was reckoned—were destroyed and ruined; the capital laboriously accumulated was consumed; the population were demoralized by camp life; the good old traditional habits of the burgesses and farmers were undermined from the capital down to the smallest village. Slaves and desperadoes associated themselves in robber-bands, of the dangers of which an idea may be formed from the fact that in a single year (569) 7000 men had to be condemned for highway robbery in Apulia alone; the extension of the pastures, with their half-savage slave-herdsmen, favoured this mischievous barbarizing of the land. Italian agriculture saw its very existence endangered by the proof, first afforded in this war, that the

Roman people could be supported by grain from Sicily and from Egypt instead of that which they reaped themselves.

Nevertheless the Roman, whom the gods had allowed to survive the close of that gigantic struggle, might look with pride to the past and with confidence to the future. Many errors had been committed, but much suffering had also been endured; the people, whose whole youth capable of arms had for ten years hardly laid aside shield or sword, might excuse many faults. The living of different nations side by side in peace and amity upon the whole—although maintaining an attitude of mutual antagonism—which appears to be the aim of modern phases of national life, was a thing foreign to antiquity. In ancient times it was necessary to be either anvil or hammer; and in the final struggle between the victors victory remained with the Romans. Whether they would have the judgment to use it rightly—to attach the Latin nation by still closer bonds to Rome, gradually to Latinize Italy, to rule their dependents in the provinces as subjects and not to abuse them as slaves, to reform the constitution, to reinvigorate and to enlarge the tottering middle class—many a one might ask. If they should know how to use it, Italy might hope to see happy times, in which prosperity based on personal exertion under favourable circumstances, and the most decisive political supremacy over the then civilized world, would impart a just self-reliance to every member of the great whole, furnish a worthy aim for every ambition, and open a career for every talent. It would, no doubt, be otherwise, should they fail to use aright their victory. But for the moment doubtful voices and gloomy apprehensions were silent, when from all quarters the warriors and victors returned to their homes; thanksgivings and amusements, and rewards to the soldiers and burgesses were the order of the day; the released prisoners of war were sent home from Gaul, Africa, and Greece; and at length the youthful conqueror moved in splendid procession through the decorated streets of the capital, to deposit his laurels

in the house of the god by whose direct inspiration, as the pious whispered one to another, he had been guided in counsel and in action.

Notes for Chapter VI

1. III. III. The Celts Conquered by Rome

2. III. VI. The Sending of Reinforcements Temporarily Frustrated

3. III. VI. Conflicts in the South of Italy

4. III. VI. Sicily Tranquillized

5. Of the two places bearing this name, the more westerly, situated about 60 miles west of Hadrumetum, was probably the scene of the battle (comp. *Hermes*, xx. 144, 318). The time was the spring or summer of the year 552; the fixing of the day as the 19th October, on account of the alleged solar eclipse, is of no account.

CHAPTER VII

The West from the Peace of Hannibal to the Close of the Third Period

Subjugation of the Valley of the Po

The war waged by Hannibal had interrupted Rome in the extension of her dominion to the Alps or to the boundary of Italy, as was even now the Roman phrase, and in the organization and colonizing of the Celtic territories. It was self-evident that the task would now be resumed at the point where it had been broken off, and the Celts were well aware of this. In the very year of the conclusion of peace with Carthage (553) hostilities had recommenced in the territory of the Boii, who were the most immediately exposed to danger; and a first success obtained by them over the hastily-assembled Roman levy, coupled with the persuasions of a Carthaginian officer, Hamilcar, who had been left behind from the expedition of Mago in northern Italy, produced in the following year (554) a general insurrection spreading beyond the two tribes immediately threatened, the Boii and Insubres. The Ligurians were driven to arms by the nearer approach of the danger, and even the youth of the Cenomani on this occasion listened less to the voice of their cautious chiefs than to the urgent appeal of their kinsmen who were in peril. Of "the two barriers against the raids of the Gauls," Placentia and Cremona, the former was sacked—not more than 2000 of the inhabitants of Placentia saved their lives—and the second was invested. In haste the legions advanced to save what they could. A great battle took

place before Cremona. The dexterous management and the professional skill of the Phoenician leader failed to make up for the deficiencies of his troops; the Gauls were unable to withstand the onset of the legions, and among the numerous dead who covered the field of battle was the Carthaginian officer. The Celts, nevertheless, continued the struggle; the same Roman army which had conquered at Cremona was next year (555), chiefly through the fault of its careless leader, almost destroyed by the Insubres; and it was not till 556 that Placentia could be partially re-established. But the league of the cantons associated for the desperate struggle suffered from intestine discord; the Boii and Insubres quarrelled, and the Cenomani not only withdrew from the national league, but purchased their pardon from the Romans by a disgraceful betrayal of their countrymen; during a battle in which the Insubres engaged the Romans on the Mincius, the Cenomani attacked in rear, and helped to destroy, their allies and comrades in arms (557). Thus humbled and left in the lurch, the Insubres, after the fall of Comum, likewise consented to conclude a separate peace (558). The conditions, which the Romans prescribed to the Cenomani and Insubres, were certainly harder than they had been in the habit of granting to the members of the Italian confederacy; in particular, they were careful to confirm by law the barrier of separation between Italians and Celts, and to enact that never should a member of these two Celtic tribes be capable of acquiring the citizenship of Rome. But these Transpadane Celtic districts were allowed to retain their existence and their national constitution—so that they formed not town-domains, but tribal cantons—and no tribute, as it would seem, was imposed on them. They were intended to serve as a bulwark for the Roman settlements south of the Po, and to ward off from Italy the incursions of the migratory northern tribes and the aggressions of the predatory inhabitants of the Alps, who were wont to make regular razzias in these districts. The process of Latinizing, moreover, made rapid progress in these regions; the Celtic nationality was evidently

far from able to oppose such resistance as the more civilized nations of Sabellians and Etruscans. The celebrated Latin comic poet Statius Caecilius, who died in 586, was a manumitted Insubrian; and Polybius, who visited these districts towards the close of the sixth century, affirms, not perhaps without some exaggeration, that in that quarter only a few villages among the Alps remained Celtic. The Veneti, on the other hand, appear to have retained their nationality longer.

Measures Adopted to Check the Immigrations of the Transalpine Gauls

The chief efforts of the Romans in these regions were naturally directed to check the immigration of the Transalpine Celts, and to make the natural wall, which separates the peninsula from the interior of the continent, also its political boundary. That the terror of the Roman name had already penetrated to the adjacent Celtic cantons beyond the Alps, is shown not only by the totally passive attitude which they maintained during the annihilation or subjugation of their Cisalpine countrymen, but still more by the official disapproval and disavowal which the Transalpine cantons—we shall have to think primarily of the Helvetii (between the lake of Geneva and the Main) and the Carni or Taurisci (in Carinthia and Styria)—expressed to the envoys from Rome, who complained of the attempts made by isolated Celtic bands to settle peacefully on the Roman side of the Alps. Not less significant was the humble spirit in which these same bands of emigrants first came to the Roman senate entreating an assignment of land, and then without remonstrance obeyed the rigorous order to return over the Alps (568-575), and allowed the town, which they had already founded not far from the later Aquileia, to be again destroyed. With wise severity the senate permitted no sort of exception to the principle that the gates of the Alps should be henceforth closed for the Celtic nation, and visited with heavy penalties those Roman subjects in Italy, who had instigated any such schemes of immigration. An attempt of this kind which was made on a route hitherto

little known to the Romans, in the innermost recess of the Adriatic, and still more, as it would seem, the project of Philip of Macedonia for invading Italy from the east as Hannibal had done from the west, gave occasion to the founding of a fortress in the extreme north-eastern corner of Italy—Aquileia, the most northerly of the Italian colonies (571-573)—which was intended not only to close that route for ever against foreigners, but also to secure the command of the gulf which was specially convenient for navigation, and to check the piracy which was still not wholly extirpated in those waters. The establishment of Aquileia led to a war with the Istrians (576, 577), which was speedily terminated by the storming of some strongholds and the fall of the king, Aepulo, and which was remarkable for nothing except for the panic, which the news of the surprise of the Roman camp by a handful of barbarians called forth in the fleet and throughout Italy.

Colonizing of the Region on the South of the Po

A different course was adopted with the region on the south of the Po, which the Roman senate had determined to incorporate with Italy. The Boii, who were immediately affected by this step, defended themselves with the resolution of despair. They even crossed the Po and made an attempt to rouse the Insubres once more to arms (560); they blockaded a consul in his camp, and he was on the point of succumbing; Placentia maintained itself with difficulty against the constant assaults of the exasperated natives. At length the last battle was fought at Mutina; it was long and bloody, but the Romans conquered (561); and thenceforth the struggle was no longer a war, but a slave-hunt. The Roman camp soon was the only asylum in the Boian territory; thither the better part of the still surviving population began to take refuge; and the victors were able, without much exaggeration, to report to Rome that nothing remained of the nation of the Boii but old men and children. The nation was thus obliged to resign itself to the fate appointed

for it. The Romans demanded the cession of half the territory (563); the demand could not be refused, and even within the diminished district which was left to the Boii, they soon disappeared, and amalgamated with their conquerors.(1)

After the Romans had thus cleared the ground for themselves, the fortresses of Placentia and Cremona, whose colonists had been in great part swept away or dispersed by the troubles of the last few years, were reorganized, and new settlers were sent thither. The new foundations were, in or near the former territory of the Senones, Potentia (near Recanati not far from Ancona: in 570) and Pisaurum (Pesaro: in 570), and, in the newly acquired district of the Boii, the fortresses of Bononia (565), Mutina (571), and Parma (571); the colony of Mutina had been already instituted before the war under Hannibal, but that war had interrupted the completion of the settlement. The construction of fortresses was associated, as was always the case, with the formation of military roads. The Flaminian way was prolonged from its northern termination at Ariminum, under the name of the Aemilian way, to Placentia (567). Moreover, the road from Rome to Arretium or the Cassian way, which perhaps had already been long a municipal road, was taken in charge and constructed anew by the Roman community probably in 583; while in 567 the track from Arretium over the Apennines to Bononia as far as the new Aemilian road had been put in order, and furnished a shorter communication between Rome and the fortresses on the Po. By these comprehensive measures the Apennines were practically superseded as the boundary between the Celtic and Italian territories, and were replaced by the Po. South of the Po there henceforth prevailed mainly the urban constitution of the Italians, beyond it mainly the cantonal constitution of the Celts; and, if the district between the Apennines and the Po was still reckoned Celtic land, it was but an empty name.

Liguria

In the north-western mountain-land of Italy, whose valleys and hills were occupied chiefly by the much-subdivided Ligurian stock, the Romans pursued a similar course. Those dwelling immediately to the north of the Arno were extirpated. This fate befell chiefly the Apuani, who dwelt on the Apennines between the Arno and the Magra, and incessantly plundered on the one side the territory of Pisae, on the other that of Bononia and Mutina. Those who did not fall victims in that quarter to the sword of the Romans were transported into Lower Italy to the region of Beneventum (574); and by energetic measures the Ligurian nation, from which the Romans were obliged in 578 to recover the colony of Mutina which it had conquered, was completely crushed in the mountains which separate the valley of the Po from that of the Arno. The fortress of Luna (not far from Spezzia), established in 577 in the former territory of the Apuani, protected the frontier against the Ligurians just as Aquileia did against the Transalpines, and gave the Romans at the same time an excellent port which henceforth became the usual station for the passage to Massilia and to Spain. The construction of the coast or Aurelian road from Rome to Luna, and of the cross road carried from Luca by way of Florence to Arretium between the Aurelian and Cassian ways, probably belongs to the same period.

With the more western Ligurian tribes, who held the Genoese Apennines and the Maritime Alps, there were incessant conflicts. They were troublesome neighbours, accustomed to pillage by land and by sea: the Pisans and Massiliots suffered no little injury from their incursions and their piracies. But no permanent results were gained amidst these constant hostilities, or perhaps even aimed at; except apparently that, with a view to have a communication by land with Transalpine Gaul and Spain in addition to the regular route by sea, the Romans endeavoured to clear the great coast road from Luna by way of Massilia to Emporiae, at least as far as the Alps—beyond the Alps it devolved on the Massiliots to keep the coast navigation open for Roman vessels and the road along the shore open for

travellers by land. The interior with its impassable valleys and its rocky fastnesses, and with its poor but dexterous and crafty inhabitants, served the Romans mainly as a school of war for the training and hardening of soldiers and officers.

Corsica Sardinia

Wars as they are called, of a similar character with those against the Ligurians, were waged with the Corsicans and to a still greater extent with the inhabitants of the interior of Sardinia, who retaliated for the predatory expeditions directed against them by sudden attacks on the districts along the coast. The expedition of Tiberius Gracchus against the Sardinians in 577 was specially held in remembrance, not so much because it gave "peace" to the province, as because he asserted that he had slain or captured as many as 80,000 of the islanders, and dragged slaves thence in such multitudes to Rome that "cheap as a Sardinian" became a proverb.

Carthage

In Africa the policy of Rome was substantially summed up in the one idea, as short-sighted as it was narrow-minded, that she ought to prevent the revival of the power of Carthage, and ought accordingly to keep the unhappy city constantly oppressed and apprehensive of a declaration of war suspended over it by Rome like the sword of Damocles. The stipulation in the treaty of peace, that the Carthaginians should retain their territory undiminished, but that their neighbour Massinissa should have all those possessions guaranteed to him which he or his predecessor had possessed within the Carthaginian bounds, looks almost as if it had been inserted not to obviate, but to provoke disputes. The same remark applies to the obligation imposed by the Roman treaty of peace on the Carthaginians not to make war upon the allies of Rome; so that, according to the letter of the

treaty, they were not even entitled to expel their Numidian neighbours from their own undisputed territory. With such stipulations and amidst the uncertainty of African frontier questions in general, the situation of Carthage in presence of a neighbour equally powerful and unscrupulous and of a liege lord who was at once umpire and party in the cause, could not but be a painful one; but the reality was worse than the worst expectations. As early as 561 Carthage found herself suddenly assailed under frivolous pretexts, and saw the richest portion of her territory, the province of Emporiae on the Lesser Syrtis, partly plundered by the Numidians, partly even seized and retained by them. Encroachments of this kind were multiplied; the level country passed into the hands of the Numidians, and the Carthaginians with difficulty maintained themselves in the larger places. Within the last two years alone, the Carthaginians declared in 582, seventy villages had been again wrested from them in opposition to the treaty. Embassy after embassy was despatched to Rome; the Carthaginians adjured the Roman senate either to allow them to defend themselves by arms, or to appoint a court of arbitration with power to enforce their award, or to regulate the frontier anew that they might at least learn once for all how much they were to lose; otherwise it were better to make them Roman subjects at once than thus gradually to deliver them over to the Libyans. But the Roman government, which already in 554 had held forth a direct prospect of extension of territory to their client, of course at the expense of Carthage, seemed to have little objection that he should himself take the booty destined for him; they moderated perhaps at times the too great impetuosity of the Libyans, who now retaliated fully on their old tormentors for their former sufferings; but it was in reality for the very sake of inflicting this torture that the Romans had assigned Massinissa as a neighbour to Carthage. All the requests and complaints had no result, except either that Roman commissions made their appearance in Africa and after a thorough investigation came to no decision, or that in the negotiations at

Rome the envoys of Massinissa pretended a want of instructions and the matter was adjourned. Phoenician patience alone was able to submit meekly to such a position, and even to exhibit towards the despotic victors every attention and courtesy, solicited or unsolicited with unwearied perseverance. The Carthaginians especially courted Roman favour by sending supplies of grain.

Hannibal

Reform of the Carthaginian Constitution

Hannibal's Flight

This pliability on the part of the vanquished, however was not mere patience and resignation. There was still in Carthage a patriotic party, and at its head stood the man who, wherever fate placed him, was still dreaded by the Romans. It had not abandoned the idea of resuming the struggle by taking advantage of those complications that might be easily foreseen between Rome and the eastern powers; and, as the failure of the magnificent scheme of Hamilcar and his sons had been due mainly to the Carthaginian oligarchy, the chief object was internally to reinvigorate the country for this new struggle. The salutary influence of adversity, and the clear, noble, and commanding mind of Hannibal, effected political and financial reforms. The oligarchy, which had filled up the measure of its guilty follies by raising a criminal process against the great general, charging him with having intentionally abstained from the capture of Rome and with embezzlement of the Italian spoil—that rotten oligarchy was, on the proposition of Hannibal, overthrown, and a democratic government was introduced such as was suited to the circumstances of the citizens (before 559). The finances were so rapidly reorganized by the collection of arrears and of embezzled moneys and by the introduction of better control, that the contribution due to Rome could be paid without burdening the citizens in any way with extraordinary taxes. The Roman government, just then on the

point of beginning its critical war with the great-king of Asia, observed the progress of these events, as may easily be conceived, with apprehension; it was no imaginary danger that the Carthaginian fleet might land in Italy and a second war under Hannibal might spring up there, while the Roman legions fighting in Asia Minor. We can scarcely, therefore, censure the Romans for sending an embassy to Carthage (in 559) which was presumably charged to demand the surrender of Hannibal. The spiteful Carthaginian oligarchs, who sent letter after letter to Rome to denounce to the national foe the hero who had overthrown them as having entered into secret communications with the powers unfriendly to Rome, were contemptible, but their information was probably correct; and, true as it was that that embassy involved a humiliating confession of the dread with which the simple shofete of Carthage inspired so powerful a people, and natural and honourable as it was that the proud conqueror of Zama should take exception in the senate to so humiliating a step, still that confession was nothing but the simple truth, and Hannibal was of a genius so extraordinary, that none but sentimental politicians in Rome could tolerate him longer at the head of the Carthaginian state. The marked recognition thus accorded to him by the Roman government scarcely took himself by surprise. As it was Hannibal and not Carthage that had carried on the last war, so it was he who had to bear the fate of the vanquished. The Carthaginians could do nothing but submit and be thankful that Hannibal, sparing them the greater disgrace by his speedy and prudent flight to the east, left to his ancestral city merely the lesser disgrace of having banished its greatest citizen for ever from his native land, confiscated his property, and razed his house. The profound saying that those are the favourites of the gods, on whom they lavish infinite joys and infinite sorrows, thus verified itself in full measure in the case of Hannibal.

Continued Irritation in Rome towards Carthage

A graver responsibility than that arising out of their proceedings against Hannibal attaches to the Roman government for their persistence in suspecting and tormenting the city after his removal. Parties indeed fermented there as before; but, after the withdrawal of the extraordinary man who had wellnigh changed the destinies of the world, the patriot party was not of much more importance in Carthage than in Aetolia or Achaia. The most rational of the various ideas which then agitated the unhappy city was beyond doubt that of attaching themselves to Massinissa and of converting him from the oppressor into the protector of the Phoenicians. But neither the national section of the patriots nor the section with Libyan tendencies attained the helm; on the contrary the government remained in the hands of the oligarchs friendly to Rome, who, so far as they did not altogether renounce thought of the future, clung to the single idea of saving the material welfare and the communal freedom of Carthage under Roman protection. With this state of matters the Romans might well have been content. But neither the multitude, nor even the ruling lords of the average stamp, could rid themselves of the profound alarm produced by the Hannibalic war; and the Roman merchants with envious eyes beheld the city even now, when its political power was gone, possessed of extensive commercial dependencies and of a firmly established wealth which nothing could shake. Already in 567 the Carthaginian government offered to pay up at once the whole instalments stipulated in the peace of 553—an offer which the Romans, who attached far more importance to the having Carthage tributary than to the sums of money themselves, naturally declined, and only deduced from it the conviction that, in spite of all the trouble they had taken, the city was not ruined and was not capable of ruin. Fresh reports were ever circulating through Rome as to the intrigues of the faithless Phoenicians. At one time it was alleged that Aristo of Tyre had been seen in Carthage as an emissary of Hannibal, to prepare the citizens for the landing of an Asiatic war-fleet (561); at another, that the council had,

in a secret nocturnal sitting in the temple of the God of Healing, given audience to the envoys of Perseus (581); at another there was talk of the powerful fleet which was being equipped in Carthage for the Macedonian war (583). It is probable that these and similar reports were founded on nothing more than, at most, individual indiscretions; but still they were the signal for new diplomatic ill usage on the part of Rome, and for new aggressions on the part of Massinissa, and the idea gained ground the more, the less sense and reason there was in it, that the Carthaginian question would not be settled without a third Punic war.

Numidians

While the power of the Phoenicians was thus sinking in the land of their choice, just as it had long ago succumbed in their original home, a new state grew up by their side. The northern coast of Africa has been inhabited from time immemorial, and is inhabited still, by the people, who themselves assume the name of Shilah or Tamazigt, whom the Greeks and Romans call Nomades or Numidians, i. e. the "pastoral" people, and the Arabs call Berbers, although they also at times designate them as "shepherds" (Shawie), and to whom we are wont to give the name of Berbers or Kabyles. This people is, so far as its language has been hitherto investigated, related to no other known nation. In the Carthaginian period these tribes, with the exception of those dwelling immediately around Carthage or immediately on the coast, had on the whole maintained their independence, and had also substantially retained their pastoral and equestrian life, such as the inhabitants of the Atlas lead at the present day; although they were not strangers to the Phoenician alphabet and Phoenician civilization generally,(2) and instances occurred in which the Berber sheiks had their sons educated in Carthage and intermarried with the families of the Phoenician nobility. It was not the policy of the Romans to have direct possessions of their own in Africa; they preferred to rear a state there,

which should not be of sufficient importance to be able to dispense with Roman protection, and yet should be sufficiently strong to keep down the power of Carthage now that it was restricted to Africa, and to render all freedom of movement impossible for the tortured city. They found what they sought among the native princes. About the time of the Hannibalic war the natives of North Africa were subject to three principal kings, each of whom, according to the custom there, had a multitude of princes bound to follow his banner; Bocchar king of the Mauri, who ruled from the Atlantic Ocean to the river Molochath (now Mluia, on the boundary between Morocco and the French territory); Syphax king of the Massaesyli, who ruled from the last-named point to the "Perforated Promontory," as it was called (Seba Rus, between Jijeli and Bona), in what are now the provinces of Oran and Algiers; and Massinissa king of the Massyli, who ruled from the Tretum Promontorium to the boundary of Carthage, in what is now the province of Constantine. The most powerful of these, Syphax king of Siga, had been vanquished in the last war between Rome and Carthage and carried away captive to Rome, where he died in captivity. His wide dominions were mainly given to Massinissa; although Vermina the son of Syphax by humble petition recovered a small portion of his father's territory from the Romans (554), he was unable to deprive the earlier ally of the Romans of his position as the privileged oppressor of Carthage.

Massinissa

Massinissa became the founder of the Numidian kingdom; and seldom has choice or accident hit upon a man so thoroughly fitted for his post. In body sound and supple up to extreme old age; temperate and sober like an Arab; capable of enduring any fatigue, of standing on the same spot from morning to evening, and of sitting four-and-twenty hours on horseback; tried alike as a soldier and a general amidst the romantic vicissitudes of his youth as well as on the battle-fields of Spain, and not less master of the

more difficult art of maintaining discipline in his numerous household and order in his dominions; with equal unscrupulousness ready to throw himself at the feet of his powerful protector, or to tread under foot his weaker neighbour; and, in addition to all this, as accurately acquainted with the circumstances of Carthage, where he was educated and had been on familiar terms in the noblest houses, as he was filled with an African bitterness of hatred towards his own and his people's oppressors, —this remarkable man became the soul of the revival of his nation, which had seemed on the point of perishing, and of whose virtues and faults he appeared as it were a living embodiment. Fortune favoured him, as in everything, so especially in the fact, that it allowed him time for his work. He died in the ninetieth year of his age (516-605), and in the sixtieth year of his reign, retaining to the last the full possession of his bodily and mental powers, leaving behind him a son one year old and the reputation of having been the strongest man and the best and most fortunate king of his age.

Extension and Civilization of Numidia

We have already narrated how purposely and clearly the Romans in their management of African affairs evinced their taking part with Massinissa, and how zealously and constantly the latter availed himself of the tacit permission to enlarge his territory at the expense of Carthage. The whole interior to the border of the desert fell to the native sovereign as it were of its own accord, and even the upper valley of the Bagradas (Mejerdah) with the rich town of Vaga became subject to the king; on the coast also to the east of Carthage he occupied the old Sidonian city of Great Leptis and other districts, so that his kingdom stretched from the Mauretanian to the Cyrenaean frontier, enclosed the Carthaginian territory on every side by land, and everywhere pressed, in the closest vicinity, on the Phoenicians. It admits of no doubt, that he looked on Carthage as his future capital; the Libyan party there was significant. But it was not only by the diminution of

her territory that Carthage suffered injury. The roving shepherds were converted by their great king into another people. After the example of the king, who brought the fields under cultivation far and wide and bequeathed to each of his sons considerable landed estates, his subjects also began to settle and to practise agriculture. As he converted his shepherds into settled citizens, he converted also his hordes of plunderers into soldiers who were deemed by Rome worthy to fight side by side with her legions; and he bequeathed to his successors a richly-filled treasury, a well-disciplined army, and even a fleet. His residence Cirta (Constantine) became the stirring capital of a powerful state, and a chief seat of Phoenician civilization, which was zealously fostered at the court of the Berber king—fostered perhaps studiously with a view to the future Carthagino-Numidian kingdom. The hitherto degraded Libyan nationality thus rose in its own estimation, and the native manners and language made their way even into the old Phoenician towns, such as Great Leptis. The Berber began, under the aegis of Rome, to feel himself the equal or even the superior of the Phoenician; Carthaginian envoys at Rome had to submit to be told that they were aliens in Africa, and that the land belonged to the Libyans. The Phoenico-national civilization of North Africa, which still retained life and vigour even in the levelling times of the Empire, was far more the work of Massinissa than of the Carthaginians.

The State of Culture in Spain

In Spain the Greek and Phoenician towns along the coast, such as Emporiae, Saguntum, New Carthage, Malaca, and Gades, submitted to the Roman rule the more readily, that, left to their own resources, they would hardly have been able to protect themselves from the natives; as for similar reasons Massilia, although far more important and more capable of self-defence than those towns, did not omit to secure a powerful support in case of need by closely attaching itself to the Romans, to whom it was in return

very serviceable as an intermediate station between Italy and Spain. The natives, on the other hand, gave to the Romans endless trouble. It is true that there were not wanting the rudiments of a national Iberian civilization, although of its special character it is scarcely possible for us to acquire any clear idea. We find among the Iberians a widely diffused national writing, which divides itself into two chief kinds, that of the valley of the Ebro, and the Andalusian, and each of these was presumably subdivided into various branches: this writing seems to have originated at a very early period, and to be traceable rather to the old Greek than to the Phoenician alphabet. There is even a tradition that the Turdetani (round Seville) possessed lays from very ancient times, a metrical book of laws of 6000 verses, and even historical records; at any rate this tribe is described as the most civilized of all the Spanish tribes, and at the same time the least warlike; indeed, it regularly carried on its wars by means of foreign mercenaries. To the same region probably we must refer the descriptions given by Polybius of the flourishing condition of agriculture and the rearing of cattle in Spain—so that, in the absence of opportunity of export, grain and flesh were to be had at nominal prices—and of the splendid royal palaces with golden and silver jars full of "barley wine." At least a portion of the Spaniards, moreover, zealously embraced the elements of culture which the Romans brought along with them, so that the process of Latinizing made more rapid progress in Spain than anywhere else in the transmarine provinces. For example, warm baths after the Italian fashion came into use even at this period among the natives. Roman money, too, was to all appearance not only current in Spain far earlier than elsewhere out of Italy, but was imitated in Spanish coins; a circumstance in some measure explained by the rich silver-mines of the country. The so-called "silver of Osca" (now Huesca in Arragon), i. e. Spanish -denarii- with Iberian inscriptions, is mentioned in 559; and the commencement of their coinage cannot be placed much later, because the impression is imitated from that of the oldest Roman -denarii-.

But, while in the southern and eastern provinces the culture of the natives may have so far prepared the way for Roman civilization and Roman rule that these encountered no serious difficulties, the west and north on the other hand, and the whole of the interior, were occupied by numerous tribes more or less barbarous, who knew little of any kind of civilization—in Intercatia, for instance, the use of gold and silver was still unknown about 600—and who were on no better terms with each other than with the Romans. A characteristic trait in these free Spaniards was the chivalrous spirit of the men and, at least to an equal extent, of the women. When a mother sent forth her son to battle, she roused his spirit by the recital of the feats of his ancestors; and the fairest maiden unasked offered her hand in marriage to the bravest man. Single combat was common, both with a view to determine the prize of valour, and for the settlement of lawsuits; even disputes among the relatives of princes as to the succession were settled in this way. It not unfrequently happened that a well-known warrior confronted the ranks of the enemy and challenged an antagonist by name; the defeated champion then surrendered his mantle and sword to his opponent, and even entered into relations of friendship and hospitality with him. Twenty years after the close of the second Punic war, the little Celtiberian community of Complega (in the neighbourhood of the sources of the Tagus) sent a message to the Roman general, that unless he sent to them for every man that had fallen a horse, a mantle, and a sword, it would fare ill with him. Proud of their military honour, so that they frequently could not bear to survive the disgrace of being disarmed, the Spaniards were nevertheless disposed to follow any one who should enlist their services, and to stake their lives in any foreign quarrel. The summons was characteristic, which a Roman general well acquainted with the customs of the country sent to a Celtiberian band righting in the pay of the Turdetani against the Romans—either to return home, or to enter the Roman service with double pay, or to fix time and place for battle. If no recruiting officer

made his appearance, they met of their own accord in free bands, with the view of pillaging the more peaceful districts and even of capturing and occupying towns, quite after the manner of the Campanians. The wildness and insecurity of the inland districts are attested by the fact that banishment into the interior westward of Cartagena was regarded by the Romans as a severe punishment, and that in periods of any excitement the Roman commandants of Further Spain took with them escorts of as many as 6000 men. They are still more clearly shown by the singular relations subsisting between the Greeks and their Spanish neighbours in the Graeco-Spanish double city of Emporiae, at the eastern extremity of the Pyrenees. The Greek settlers, who dwelt on the point of the peninsula separated on the landward side from the Spanish part of the town by a wall, took care that this wall should be guarded every night by a third of their civic force, and that a higher official should constantly superintend the watch at the only gate; no Spaniard was allowed to set foot in the Greek city, and the Greeks conveyed their merchandise to the natives only in numerous and well-escorted companies.

Wars between the Romans and Spaniards

These natives, full of restlessness and fond of war—full of the spirit of the Cid and of Don Quixote—were now to be tamed and, if possible, civilized by the Romans. In a military point of view the task was not difficult. It is true that the Spaniards showed themselves, not only when behind the walls of their cities or under the leadership of Hannibal, but even when left to themselves and in the open field of battle, no contemptible opponents; with their short two-edged sword which the Romans subsequently adopted from them, and their formidable assaulting columns, they not unfrequently made even the Roman legions waver. Had they been able to submit to military discipline and to political combination, they might perhaps have shaken off the foreign yoke imposed on them. But their

valour was rather that of the guerilla than of the soldier, and they were utterly void of political judgment. Thus in Spain there was no serious war, but as little was there any real peace; the Spaniards, as Caesar afterwards very justly pointed out to them, never showed themselves quiet in peace or strenuous in war. Easy as it was for a Roman general to scatter a host of insurgents, it was difficult for the Roman statesman to devise any suitable means of really pacifying and civilizing Spain. In fact, he could only deal with it by palliative measures; because the only really adequate expedient, a comprehensive Latin colonization, was not accordant with the general aim of Roman policy at this period.

The Romans Maintain a Standing Army in Spain

Cato

Gracchus

The territory which the Romans acquired in Spain in the course of the second Punic war was from the beginning divided into two masses—the province formerly Carthaginian, which embraced in the first instance the present districts of Andalusia, Granada, Murcia, and Valencia, and the province of the Ebro, or the modern Arragon and Catalonia, the fixed quarters of the Roman army during the last war. Out of these territories were formed the two Roman provinces of Further and Hither Spain. The Romans sought gradually to reduce to subjection the interior corresponding nearly to the two Castiles, which they comprehended under the general name of Celtiberia, while they were content with checking the incursions of the inhabitants of the western provinces, more especially those of the Lusitanians in the modern Portugal and the Spanish Estremadura, into the Roman territory; with the tribes on the north coast, the Callaecians, Asturians, and Cantabrians, they did not as yet come into contact at all. The territories thus won, however, could not be maintained and secured without a standing garrison, for the governor of Hither Spain had no small trouble

every year with the chastisement of the Celtiberians, and the governor of the more remote province found similar employment in repelling the Lusitanians. It was needful accordingly to maintain in Spain a Roman army of four strong legions, or about 40,000 men, year after year; besides which the general levy had often to be called out in the districts occupied by Rome, to reinforce the legions. This was of great importance for two reasons: it was in Spain first, at least first on any larger scale, that the military occupation of the land became continuous; and it was there consequently that the service acquired a permanent character. The old Roman custom of sending troops only where the exigencies of war at the moment required them, and of not keeping the men called to serve, except in very serious and important wars, under arms for more than a year, was found incompatible with the retention of the turbulent and remote Spanish provinces beyond the sea; it was absolutely impossible to withdraw the troops from these, and very dangerous even to relieve them extensively. The Roman burgesses began to perceive that dominion over a foreign people is an annoyance not only to the slave, but to the master, and murmured loudly regarding the odious war-service of Spain. While the new generals with good reason refused to allow the relief of the existing corps as a whole, the men mutinied and threatened that, if they were not allowed their discharge, they would take it of their own accord.

The wars themselves, which the Romans waged in Spain, were but of a subordinate importance. They began with the very departure of Scipio,(3) and continued as long as the war under Hannibal lasted. After the peace with Carthage (in 553) there was a cessation of arms in the peninsula; but only for a short time. In 557 a general insurrection broke out in both provinces; the commander of the Further province was hard pressed; the commander of Hither Spain was completely defeated, and was himself slain. It was necessary to take up the war in earnest, and although in the meantime the able praetor Quintus Minucius had mastered the first danger,

the senate resolved in 559 to send the consul Marcus Cato in person to Spain. On landing at Emporiae he actually found the whole of Hither Spain overrun by the insurgents; with difficulty that seaport and one or two strongholds in the interior were still held for Rome. A pitched battle took place between the insurgents and the consular army, in which, after an obstinate conflict man against man, the Roman military skill at length decided the day with its last reserve. The whole of Hither Spain thereupon sent in its submission: so little, however, was this submission meant in earnest, that on a rumour of the consul having returned to Rome the insurrection immediately recommenced. But the rumour was false; and after Cato had rapidly reduced the communities which had revolted for the second time and sold them -en masse- into slavery, he decreed a general disarming of the Spaniards in the Hither province, and issued orders to all the towns of the natives from the Pyrenees to the Guadalquivir to pull down their walls on one and the same day. No one knew how far the command extended, and there was no time to come to any understanding; most of the communities complied; and of the few that were refractory not many ventured, when the Roman army soon appeared before their walls, to await its assault.

These energetic measures were certainly not without permanent effect. Nevertheless the Romans had almost every year to reduce to subjection some mountain valley or mountain stronghold in the "peaceful province," and the constant incursions of the Lusitanians into the Further province led occasionally to severe defeats of the Romans. In 563, for instance, a Roman army was obliged after heavy loss to abandon its camp, and to return by forced marches into the more tranquil districts. It was not till after a victory gained by the praetor Lucius Aemilius Paullus in 565,(4) and a second still more considerable gained by the brave praetor Gaius Calpurnius beyond the Tagus over the Lusitanians in 569, that quiet for some time prevailed. In Hither Spain the hitherto almost nominal rule of the Romans over the

Celtiberian tribes was placed on a firmer basis by Quintus Fulvius Flaccus, who after a great victory over them in 573 compelled at least the adjacent cantons to submission; and especially by his successor Tiberius Gracchus (575, 576), who achieved results of a permanent character not only by his arms, by which he reduced three hundred Spanish townships, but still more by his adroitness in adapting himself to the views and habits of the simple and haughty nation. He induced Celtiberians of note to take service in the Roman army, and so created a class of dependents; he assigned land to the roving tribes, and collected them in towns—the Spanish town Graccurrens preserved the Roman's name—and so imposed a serious check on their freebooter habits; he regulated the relations of the several tribes to the Romans by just and wise treaties, and so stopped, as far as possible, the springs of future rebellion. His name was held in grateful remembrance by the Spaniards, and comparative peace henceforth reigned in the land, although the Celtiberians still from time to time winced under the yoke.

Administration of Spain

The system of administration in the two Spanish provinces was similar to that of the Sicilo-Sardinian province, but not identical. The superintendence was in both instances vested in two auxiliary consuls, who were first nominated in 557, in which year also the regulation of the boundaries and the definitive organization of the new provinces took place. The judicious enactment of the Baebian law (573), that the Spanish praetors should always be nominated for two years, was not seriously carried out in consequence of the increasing competition for the highest magistracies, and still more in consequence of the jealous supervision exercised over the powers of the magistrates by the senate; and in Spain also, except where deviations occurred in extraordinary circumstances, the Romans adhered to the system of annually changing the governors—a system especially injudicious in the case of provinces so remote and with which it was so

difficult to gain an acquaintance. The dependent communities were throughout tributary; but, instead of the Sicilian and Sardinian tenths and customs, in Spain fixed payments in money or other contributions were imposed by the Romans, just as formerly by the Carthaginians, on the several towns and tribes: the collection of these by military means was prohibited by a decree of the senate in 583, in consequence of the complaints of the Spanish communities. Grain was not furnished in their case except for compensation, and even then the governor might not levy more than a twentieth; besides, conformably to the just-mentioned ordinance of the supreme authority, he was bound to adjust the compensation in an equitable manner. On the other hand, the obligation of the Spanish subjects to furnish contingents to the Roman armies had an importance very different from that which belonged to it at least in peaceful Sicily, and it was strictly regulated in the several treaties. The right, too, of coining silver money of the Roman standard appears to have been very frequently conceded to the Spanish towns, and the monopoly of coining seems to have been by no means asserted here by the Roman government with the same strictness as in Sicily. Rome had too much need of her subjects everywhere in Spain, not to proceed with all possible tenderness in the introduction and handling of the provincial constitution there. Among the communities specially favoured by Rome were the great cities along the coast of Greek, Phoenician, or Roman foundation, such as Saguntum, Gades, and Tarraco, which, as the natural pillars of the Roman rule in the peninsula, were admitted to alliance with Rome. On the whole, Spain was in a military as well as financial point of view a burden rather than a gain to the Roman commonwealth; and the question naturally occurs, Why did the Roman government, whose policy at that time evidently did not contemplate the acquisition of countries beyond the sea, not rid itself of these troublesome possessions? The not inconsiderable commercial connections of Spain, her important iron- mines, and her still more

important silver-mines famous from ancient times even in the far east(5)—which Rome, like Carthage, took into her own hands, and the management of which was specially regulated by Marcus Cato (559)—must beyond doubt have co-operated to induce its retention; but the chief reason of the Romans for retaining the peninsula in their own immediate possession was, that there were no states in that quarter of similar character to the Massiliot republic in the land of the Celts and the Numidian kingdom in Libya, and that thus they could not abandon Spain without putting it into the power of any adventurer to revive the Spanish empire of the Barcides.

Notes for Chapter VII

1. According to the account of Strabo these Italian Boii were driven by the Romans over the Alps, and from them proceeded that Boian settlement in what is now Hungary about Stein am Anger and Oedenburg, which was attacked and annihilated in the time of Augustus by the Getae who crossed the Danube, but which bequeathed to this district the name of the Boian desert. This account is far from agreeing with the well-attested representation of the Roman annals, according to which the Romans were content with the cession of half the territory; and, in order to explain the disappearance of the Italian Boii, we have really no need to assume a violent expulsion—the other Celtic peoples, although visited to a far less extent by war and colonization, disappeared not much less rapidly and totally from the ranks of the Italian nations. On the other hand, other accounts suggest the derivation of those Boii on the Neusiedler See from the main stock of the nation, which formerly had its seat in Bavaria and Bohemia before Germanic tribes pushed it towards the south. But it is altogether very doubtful whether the Boii, whom we find near Bordeaux, on

the Po, and in Bohemia, were really scattered branches of one stock, or whether this is not an instance of mere similarity of name. The hypothesis of Strabo may have rested on nothing else than an inference from the similarity of name—an inference such as the ancients drew, often without due reason, in the case of the Cimbri, Veneti, and others.

2. III. I. Libyphoenicians

3. III. VI. Gades Becomes Roman

4. Of this praetor there has recently come to light the following decree on a copper tablet found in the neighbourhood of Gibraltar and now preserved in the Paris Museum: "L. Aimilius, son of Lucius, Imperator, has ordained that the slaves of the Hastenses [of Hasta regia, not far from Jerez de la Frontera], who dwell in the tower of Lascuta [known by means of coins and Plin. iii. i, 15, but uncertain as to site] should be free. The ground and the township, of which they are at the time in possession, they shall continue to possess and hold, so long as it shall please the people and senate of the Romans. Done in camp on 12 Jan. [564 or 565]." (-L. Aimilius L. f. inpeirator decreivit utei qui Hastensium servei in turri Lascutana habitarent, leiberei essent, Agrum oppidumqu[e], guod ea tempestate posedissent, item possidere habereque ioussit, dum populus senatusque Romanus vettet. Act. in castreis a. d. XII. k. Febr.-) This is the oldest Roman document which we possess in the original, drawn up three years earlier than the well-known edict of the consuls of the year 568 in the affair of the Bacchanalia.

5. 1 Maccab. viii. 3. "And Judas heard what the Romans had done to the land of Hispania to become masters of the silver and gold mines there."

CHAPTER VIII

The Eastern States and the Second Macedonian War

The Hellenic East

The work, which Alexander king of Macedonia had begun a century before the Romans acquired their first footing in the territory which he had called his own, had in the course of time—while adhering substantially to the great fundamental idea of Hellenizing the east—changed and expanded into the construction of a system of Hellene- Asiatic states. The unconquerable propensity of the Greeks for migration and colonizing, which had formerly carried their traders to Massilia and Cyrene, to the Nile and to the Black Sea, now firmly held what the king had won; and under the protection of the -sarissae-, Greek civilization peacefully domiciled itself everywhere throughout the ancient empire of the Achaemenidae. The officers, who divided the heritage of the great general, gradually settled their differences, and a system of equilibrium was established, of which the very Oscillations manifest some sort of regularity.

The Great States

Macedonia

Of the three states of the first rank belonging to this system — Macedonia, Asia, and Egypt—Macedonia under Philip the Fifth, who had

occupied the throne since 534, was externally at least very much what it had been under Philip the Second the father of Alexander—a compact military state with its finances in good order. On its northern frontier matters had resumed their former footing, after the waves of the Gallic inundation had rolled away; the guard of the frontier kept the Illyrian barbarians in check without difficulty, at least in ordinary times. In the south, not only was Greece in general dependent on Macedonia, but a large portion of it—including all Thessaly in its widest sense from Olympus to the Spercheius and the peninsula of Magnesia, the large and important island of Euboea, the provinces of Locris, Phocis, and Doris, and lastly, a number of isolated positions in Attica and in the Peloponnesus, such as the promontory of Sunium, Corinth, Orchomenus, Heraea, the Triphylian territory—was directly subject to Macedonia and received Macedonian garrisons; more especially the three important fortresses of Demetrias in Magnesia, Chalcis in Euboea, and Corinth, "the three fetters of the Hellenes." But the strength of the state lay above all in its hereditary soil, the province of Macedonia. The population, indeed, of that extensive territory was remarkably scanty; Macedonia, putting forth all her energies, was scarcely able to bring into the field as many men as were contained in an ordinary consular army of two legions; and it was unmistakeably evident that the land had not yet recovered from the depopulation occasioned by the campaigns of Alexander and by the Gallic invasion. But while in Greece proper the moral and political energy of the people had decayed, the day of national vigour seemed to have gone by, life appeared scarce worth living for, and even of the better spirits one spent time over the wine-cup, another with the rapier, a third beside the student's lamp; while in the east and Alexandria the Greeks were able perhaps to disseminate elements of culture among the dense native population and to diffuse among that population their language and their loquacity, their science and pseudo-science, but were barely sufficient in point of number to supply the nations with officers, statesmen, and

schoolmasters, and were far too few to form even in the cities middle- class of the pure Greek type; there still existed, on the other hand, in northern Greece a goodly portion of the old national vigour, which had produced the warriors of Marathon. Hence arose the confidence with which the Macedonians, Aetolians, and Acarnanians, wherever they made their appearance in the east, claimed to be, and were taken as, a better race; and hence the superior part which they played at the courts of Alexandria and Antioch. There is a characteristic story, that an Alexandrian who had lived for a considerable time in Macedonia and had adopted the manners and the dress of that country, on returning to his native city, now looked upon himself as a man and upon the Alexandrians as little better than slaves. This sturdy vigour and unimpaired national spirit were turned to peculiarly good account by the Macedonians, as the most powerful and best organized of the states of northern Greece. There, no doubt, absolutism had emerged in opposition to the old constitution, which to some extent recognized different estates; but sovereign and subject by no means stood towards each other in Macedonia as they stood in Asia and Egypt, and the people still felt itself independent and free. In steadfast resistance to the public enemy under whatever name, in unshaken fidelity towards their native country and their hereditary government, and in persevering courage amidst the severest trials, no nation in ancient history bears so close a resemblance to the Roman people as the Macedonians; and the almost miraculous regeneration of the state after the Gallic invasion redounds to the imperishable honour of its leaders and of the people whom they led.

Asia

The second of the great states, Asia, was nothing but Persia superficially remodelled and Hellenized—the empire of "the king of kings," as its master was wont to call himself in a style characteristic at once of his arrogance and of his weakness—with the same pretensions to rule from the Hellespont

to the Punjab, and with the same disjointed organization; an aggregate of dependent states in various degrees of dependence, of insubordinate satrapies, and of half-free Greek cities. In Asia Minor more especially, which was nominally included in the empire of the Seleucidae, the whole north coast and the greater part of the eastern interior were practically in the hands of native dynasties or of the Celtic hordes that had penetrated thither from Europe; a considerable portion of the west was in the possession of the kings of Pergamus, and the islands and coast towns were some of them Egyptian, some of them free; so that little more was left to the great-king than the interior of Cilicia, Phrygia, and Lydia, and a great number of titular claims, not easily made good, against free cities and princes—exactly similar in character to the sovereignty of the German emperor, in his day, beyond his hereditary dominions. The strength of the empire was expended in vain endeavours to expel the Egyptians from the provinces along the coast; in frontier strife with the eastern peoples, the Parthians and Bactrians; in feuds with the Celts, who to the misfortune of Asia Minor had settled within its bounds; in constant efforts to check the attempts of the eastern satraps and of the Greek cities of Asia Minor to achieve their independence; and in family quarrels and insurrections of pretenders. None indeed of the states founded by the successors of Alexander were free from such attempts, or from the other horrors which absolute monarchy in degenerate times brings in its train; but in the kingdom of Asia these evils were more injurious than elsewhere, because, from the lax composition of the empire, they usually led to the severance of particular portions from it for longer or shorter periods.

Egypt

In marked contrast to Asia, Egypt formed a consolidated and united state, in which the intelligent statecraft of the first Lagidae, skilfully availing itself of ancient national and religious precedent, had established a

completely absolute cabinet government, and in which even the worst misrule failed to provoke any attempt either at emancipation or disruption. Very different from the Macedonians, whose national attachment to royalty was based upon their personal dignity and was its political expression, the rural population in Egypt was wholly passive; the capital on the other hand was everything, and that capital was a dependency of the court. The remissness and indolence of its rulers, accordingly, paralyzed the state in Egypt still more than in Macedonia and in Asia; while on the other hand when wielded by men, like the first Ptolemy and Ptolemy Euergetes, such a state machine proved itself extremely useful. It was one of the peculiar advantages of Egypt as compared with its two great rivals, that its policy did not grasp at shadows, but pursued clear and attainable objects. Macedonia, the home of Alexander, and Asia, the land where he had established his throne, never ceased to regard themselves as direct continuations of the Alexandrine monarchy and more or less loudly asserted their claim to represent it at least, if not to restore it. The Lagidae never tried to found a universal empire, and never dreamt of conquering India; but, by way of compensation, they drew the whole traffic between India and the Mediterranean from the Phoenician ports to Alexandria, and made Egypt the first commercial and maritime state of this epoch, and the mistress of the eastern Mediterranean and of its coasts and islands. It is a significant fact, that Ptolemy III. Euergetes voluntarily restored all his conquests to Seleucus Callinicus except the seaport of Antioch. Partly by this means, partly by its favourable geographical situation, Egypt attained, with reference to the two continental powers, an excellent military position either for defence or for attack. While an opponent even in the full career of success was hardly in a position seriously to threaten Egypt, which was almost inaccessible on any side to land armies, the Egyptians were able by sea to establish themselves not only in Cyrene, but also in Cyprus and the Cyclades, on the Phoenico-Syrian coast, on the whole south and west coast

of Asia Minor and even in Europe on the Thracian Chersonese. By their unexampled skill in turning to account the fertile valley of the Nile for the direct benefit of the treasury, and by a financial system—equally sagacious and unscrupulous—earnestly and adroitly calculated to foster material interests, the court of Alexandria was constantly superior to its opponents even as a moneyed power. Lastly, the intelligent munificence, with which the Lagidae welcomed the tendency of the age towards earnest inquiry in all departments of enterprise and of knowledge, and knew how to confine such inquiries within the bounds, and entwine them with the interests, of absolute monarchy, was productive of direct advantage to the state, whose ship-building and machine-making showed traces of the beneficial influence of Alexandrian mathematics; and not only so, but also rendered this new intellectual power—the most important and the greatest, which the Hellenic nation after its political dismemberment put forth—subservient, so far as it would consent to be serviceable at all, to the Alexandrian court. Had the empire of Alexander continued to stand, Greek science and art would have found a state worthy and capable of containing them. Now, when the nation had fallen to pieces, a learned cosmopolitanism grew up in it luxuriantly, and was very soon attracted by the magnet of Alexandria, where scientific appliances and collections were inexhaustible, where kings composed tragedies and ministers wrote commentaries on them, and where pensions and academies flourished.

The mutual relations of the three great states are evident from what has been said. The maritime power, which ruled the coasts and monopolized the sea, could not but after the first great success—the political separation of the European from the Asiatic continent—direct its further efforts towards the weakening of the two great states on the mainland, and consequently towards the protection of the several minor states; whereas Macedonia and Asia, while regarding each other as rivals, recognized above all their

common adversary in Egypt, and combined, or at any rate ought to have combined, against it.

The Kingdoms of Asia Minor

Among the states of the second rank, merely an indirect importance, so far as concerned the contact of the east with the west, attached in the first instance to that series of states which, stretching from the southern end of the Caspian Sea to the Hellespont, occupied the interior and the north coast of Asia Minor: Atropatene (in the modern Aderbijan, south-west of the Caspian), next to it Armenia, Cappadocia in the interior of Asia Minor, Pontus on the south-east, and Bithynia on the south-west, shore of the Black Sea. All of these were fragments of the great Persian Empire, and were ruled by Oriental, mostly old Persian, dynasties—the remote mountain-land of Atropatene in particular was the true asylum of the ancient Persian system, over which even the expedition of Alexander had swept without leaving a trace—and all were in the same relation of temporary and superficial dependence on the Greek dynasty, which had taken or wished to take the place of the great-kings in Asia.

The Celts of Asia Minor

Of greater importance for the general relations was the Celtic state in the interior of Asia Minor. There, intermediate between Bithynia, Paphlagonia, Cappadocia, and Phrygia, three Celtic tribes—the Tolistoagii, the Tectosages, and Trocmi—had settled, without abandoning either their native language and manners or their constitution and their trade as freebooters. The twelve tetrarchs, one of whom was appointed to preside over each of the four cantons in each of the three tribes, formed, with their council of 300 men, the supreme authority of the nation, and assembled at the "holy place" (-Drunemetum-), especially for the pronouncing of capital sentences. Singular as this cantonal constitution of the Celts appeared to the Asiatics,

equally strange seemed to them the adventurous and marauding habits of the northern intruders, who on the one hand furnished their unwarlike neighbours with mercenaries for every war, and on the other plundered on their own account or levied contributions from the surrounding districts. These rude but vigorous barbarians were the general terror of the effeminate surrounding nations, and even of the great-kings of Asia themselves, who, after several Asiatic armies had been destroyed by the Celts and king Antiochus I. Soter had even lost his life in conflict with them (493), agreed at last to pay them tribute.

Pergamus

In consequence of bold and successful opposition to these Gallic hordes, Attalus, a wealthy citizen of Pergamus, received the royal title from his native city and bequeathed it to his posterity. This new court was in miniature what that of Alexandria was on a great scale. Here too the promotion of material interests and the fostering of art and literature formed the order of the day, and the government pursued a cautious and sober cabinet policy, the main objects of which were the weakening the power of its two dangerous continental neighbours, and the establishing an independent Greek state in the west of Asia Minor. A well-filled treasury contributed greatly to the importance of these rulers of Pergamus. They advanced considerable sums to the kings of Syria, the repayment of which afterwards formed part of the Roman conditions of peace. They succeeded even in acquiring territory in this way; Aegina, for instance, which the allied Romans and Aetolians had wrested in the last war from Philip's allies, the Achaeans, was sold by the Aetolians, to whom it fell in terms of the treaty, to Attalus for 30 talents (7300 pounds). But, notwithstanding the splendour of the court and the royal title, the commonwealth of Pergamus always retained something of the urban character; and in its policy it usually went along with the free cities. Attalus himself, the Lorenzo de'

Medici of antiquity, remained throughout life a wealthy burgher; and the family life of the Attalid house, from which harmony and cordiality were not banished by the royal title, formed a striking contrast to the dissolute and scandalous behaviour of more aristocratic dynasties.

Greece

Epirots, Acarnanians, Boeotians

In European Greece—exclusive of the Roman possessions on the west coast, in the most important of which, particularly Corcyra, Roman magistrates appear to have resided,(1) and the territory directly subject to Macedonia—the powers more or less in a position to pursue a policy of their own were the Epirots, Acarnanians, and Aetolians in northern Greece, the Boeotians and Athenians in central Greece, and the Achaeans, Lacedaemonians, Messenians, and Eleans in the Peloponnesus. Among these, the republics of the Epirots, Acarnanians, and Boeotians were in various ways closely knit to Macedonia—the Acarnanians more especially, because it was only Macedonian protection that enabled them to escape the destruction with which they were threatened by the Aetolians; none of them were of any consequence. Their internal condition was very various. The state of things may to some extent be illustrated by the fact, that among the Boeotians—where, it is true, matters reached their worst—it had become customary to make over every property, which did not descend to heirs in the direct line, to the -syssitia-; and, in the case of candidates for the public magistracies, for a quarter of a century the primary condition of election was that they should bind themselves not to allow any creditor, least of all a foreign one, to sue his debtor.

The Athenians

The Athenians were in the habit of receiving support against Macedonia from Alexandria, and were in close league with the Aetolians. But they too

were totally powerless, and hardly anything save the halo of Attic poetry and art distinguished these unworthy successors of a glorious past from a number of petty towns of the same stamp.

The Aetolians

The power of the Aetolian confederacy manifested a greater vigour. The energy of the northern Greek character was still unbroken there, although it had degenerated into a reckless impatience of discipline and control. It was a public law in Aetolia, that an Aetolian might serve as a mercenary against any state, even against a state in alliance with his own country; and, when the other Greeks urgently besought them to redress this scandal, the Aetolian diet declared that Aetolia might sooner be removed from its place than this principle from their national code. The Aetolians might have been of great service to the Greek nation, had they not inflicted still greater injury on it by this system of organized robbery, by their thorough hostility to the Achaean confederacy, and by their unhappy antagonism to the great state of Macedonia.

The Achaeans

In the Peloponnesus, the Achaean league had united the best elements of Greece proper in a confederacy based on civilization, national spirit, and peaceful preparation for self-defence. But the vigour and more especially the military efficiency of the league had, notwithstanding its outward enlargement, been arrested by the selfish diplomacy of Aratus. The unfortunate variances with Sparta, and the still more lamentable invocation of Macedonian interference in the Peloponnesus, had so completely subjected the Achaean league to Macedonian supremacy, that the chief fortresses of the country thenceforward received Macedonian garrisons, and the oath of fidelity to Philip was annually taken there.

Sparta, Elis, Messene

The policy of the weaker states in the Peloponnesus, Messene, and Sparta, was determined by their ancient enmity to the Achaean league—an enmity specially fostered by disputes regarding their frontiers—and their tendencies were Aetolian and anti-Macedonian, because the Achaeans took part with Philip. The only one of these states possessing any importance was the Spartan military monarchy, which after the death of Machanidas had passed into the hands of one Nabis. With ever-increasing hardihood Nabis leaned on the support of vagabonds and itinerant mercenaries, to whom he assigned not only the houses and lands, but also the wives and children, of the citizens; and he assiduously maintained connections, and even entered into an association for the joint prosecution of piracy, with the great refuge of mercenaries and pirates, the island of Crete, where he possessed some townships. His predatory expeditions by land, and the piratical vessels which he maintained at the promontory of Malea, were dreaded far and wide; he was personally hated for his baseness and cruelty; but his rule was extending, and about the time of the battle of Zama he had even succeeded in gaining possession of Messene.

League of the Greek Cities

Rhodes

Lastly, the most independent position among the intermediate states was held by the free Greek mercantile cities on the European shore of the Propontis as well as along the whole coast of Asia Minor, and on the islands of the Aegean Sea; they formed, at the same time, the brightest elements in the confused and multifarious picture which was presented by the Hellenic state-system. Three of them, in particular, had after Alexander's death again enjoyed their full freedom, and by the activity of their maritime commerce had attained to respectable political power and even to considerable

territorial possessions; namely, Byzantium the mistress of the Bosphorus, rendered wealthy and powerful by the transit dues which she levied and by the important corn trade carried on with the Black Sea; Cyzicus on the Asiatic side of the Propontis, the daughter and heiress of Miletus, maintaining the closest relations with the court of Pergamus; and lastly and above all, Rhodes. The Rhodians, who immediately after the death of Alexander had expelled the Macedonian garrison had, by their favourable position for commerce and navigation, secured the carrying trade of all the eastern Mediterranean; and their well-handled fleet, as well as the tried courage of the citizens in the famous siege of 450, enabled them in that age of promiscuous and ceaseless hostilities to become the prudent and energetic representatives and, when occasion required, champions of a neutral commercial policy. They compelled the Byzantines, for instance, by force of arms to concede to the vessels of Rhodes exemption from dues in the Bosphorus; and they did not permit the dynast of Pergamus to close the Black Sea. On the other hand they kept themselves, as far as possible, aloof from land warfare, although they had acquired no inconsiderable possessions on the opposite coast of Caria; where war could not be avoided, they carried it on by means of mercenaries. With their neighbours on all sides they were in friendly relations—with Syracuse, Macedonia, Syria, but more especially with Egypt—and they enjoyed high consideration at these courts, so that their mediation was not unfrequently invoked in the wars of the great states. But they interested themselves quite specially on behalf of the Greek maritime cities, which were so numerous spread along the coasts of the kingdoms of Pontus, Bithynia, and Pergamus, as well as on the coasts and islands of Asia Minor that had been wrested by Egypt from the Seleucidae; such as Sinope, Heraclea Pontica, Cius, Lampsacus, Abydos, Mitylene, Chios, Smyrna, Samos, Halicarnassus and various others. All these were in substance free and had nothing to do with the lords of the soil except to ask for the confirmation of their privileges and, at most, to pay a

moderate tribute: such encroachments, as from time to time were threatened by the dynasts, were skilfully warded off sometimes by cringing, sometimes by strong measures. In this case the Rhodians were their chief auxiliaries; they emphatically supported Sinope, for instance, against Mithradates of Pontus. How firmly amidst the quarrels, and by means of the very differences, of the monarchs the liberties of these cities of Asia Minor were established, is shown by the fact, that the dispute between Antiochus and the Romans some years after this time related not to the freedom of these cities in itself, but to the question whether they were to ask confirmation of their charters from the king or not. This league of the cities was, in this peculiar attitude towards the lords of the soil as well as in other respects, a formal Hanseatic association, headed by Rhodes, which negotiated and stipulated in treaties for itself and its allies. This league upheld the freedom of the cities against monarchical interests; and while wars raged around their walls, public spirit and civic prosperity were sheltered in comparative peace within, and art and science flourished without the risk of being crushed by a dissolute soldiery or corrupted by the atmosphere of a court.

Philip, King of Macedonia

Such was the state of things in the east, at the time when the wall of political separation between the east and the west was broken down and the eastern powers, Philip of Macedonia leading the way, were induced to interfere in the relations of the west. We have already set forth to some extent the origin of this interference and the course of the first Macedonian war (540-549); and we have pointed out what Philip might have accomplished during the second Punic war, and how little of all that Hannibal was entitled to expect and to count on was really fulfilled. A fresh illustration had been afforded of the truth, that of all haphazards none is more hazardous than an absolute hereditary monarchy. Philip was not the man whom Macedonia at that time required; yet his gifts were far from

insignificant He was a genuine king, in the best and worst sense of the term. A strong desire to rule in person and unaided was the fundamental trait of his character; he was proud of his purple, but he was no less proud of other gifts, and he had reason to be so. He not only showed the valour of a soldier and the eye of a general, but he displayed a high spirit in the conduct of public affairs, whenever his Macedonian sense of honour was offended. Full of intelligence and wit, he won the hearts of all whom he wished to gain, especially of the men who were ablest and most refined, such as Flamininus and Scipio; he was a pleasant boon companion and, not by virtue of his rank alone, a dangerous wooer. But he was at the same time one of the most arrogant and flagitious characters, which that shameless age produced. He was in the habit of saying that he feared none save the gods; but it seemed almost as if his gods were those to whom his admiral Dicaearchus regularly offered sacrifice—Godlessness (-Asebeia-) and Lawlessness (-Paranoia-). The lives of his advisers and of the promoters of his schemes possessed no sacredness in his eyes, nor did he disdain to pacify his indignation against the Athenians and Attalus by the destruction of venerable monuments and illustrious works of art; it is quoted as one of his maxims of state, that "whoever causes the father to be put to death must also kill the sons." It may be that to him cruelty was not, strictly, a delight; but he was indifferent to the lives and sufferings of others, and relenting, which alone renders men tolerable, found no place in his hard and stubborn heart. So abruptly and harshly did he proclaim the principle that no promise and no moral law are binding on an absolute king, that he thereby interposed the most serious obstacles to the success of his plans. No one can deny that he possessed sagacity and resolution, but these were, in a singular manner, combined with procrastination and supineness; which is perhaps partly to be explained by the fact, that he was called in his eighteenth year to the position of an absolute sovereign, and that his ungovernable fury against every one who disturbed his autocratic course by counter-argument

or counter-advice scared away from him all independent counsellors. What various causes cooperated to produce the weak and disgraceful management which he showed in the first Macedonian war, we cannot tell; it may have been due perhaps to that indolent arrogance which only puts forth its full energies against danger when it becomes imminent, or perhaps to his indifference towards a plan which was not of his own devising and his jealousy of the greatness of Hannibal which put him to shame. It is certain that his subsequent conduct betrayed no further trace of the Philip, through whose negligence the plan of Hannibal suffered shipwreck.

Macedonia and Asia Attack Egypt

When Philip concluded his treaty with the Aetolians and Romans in 548-9, he seriously intended to make a lasting peace with Rome, and to devote himself exclusively in future to the affairs of the east. It admits of no doubt that he saw with regret the rapid subjugation of Carthage; and it may be, that Hannibal hoped for a second declaration of war from Macedonia, and that Philip secretly reinforced the last Carthaginian army with mercenaries. (2) But the tedious affairs in which he had meanwhile involved himself in the east, as well as the nature of the alleged support, and especially the total silence of the Romans as to such a breach of the peace while they were searching for grounds of war, place it beyond doubt, that Philip was by no means disposed in 551 to make up for what he ought to have done ten years before. He had turned his eyes to an entirely different quarter.

Ptolemy Philopator of Egypt had died in 549. Philip and Antiochus, the kings of Macedonia and Asia, had combined against his successor Ptolemy Epiphanes, a child of five years old, in order completely to gratify the ancient grudge which the monarchies of the mainland entertained towards the maritime state. The Egyptian state was to be broken up; Egypt and Cyprus were to fall to Antiochus Cyrene, Ionia, and the Cyclades to Philip.

Thoroughly after the manner of Philip, who ridiculed such considerations, the kings began the war not merely without cause but even without pretext, "just as the large fishes devour the small." The allies, moreover, had made their calculations correctly, especially Philip. Egypt had enough to do in defending herself against the nearer enemy in Syria, and was obliged to leave her possessions in Asia Minor and the Cyclades undefended when Philip threw himself upon these as his share of the spoil. In the year in which Carthage concluded peace with Rome (553), Philip ordered a fleet equipped by the towns subject to him to take on board troops, and to sail along the coast of Thrace. There Lysimachia was taken from the Aetolian garrison, and Perinthus, which stood in the relation of clientship to Byzantium, was likewise occupied. Thus the peace was broken as respected the Byzantines; and as respected the Aetolians, who had just made peace with Philip, the good understanding was at least disturbed. The crossing to Asia was attended with no difficulties, for Prusias king of Bithynia was in alliance with Macedonia. By way of recompense, Philip helped him to subdue the Greek mercantile cities in his territory. Chalcedon submitted. Cius, which resisted, was taken by storm and levelled with the ground, and its inhabitants were reduced to slavery—a meaningless barbarity, which annoyed Prusias himself who wished to get possession of the town uninjured, and which excited profound indignation throughout the Hellenic world. The Aetolians, whose -strategus- had commanded in Cius, and the Rhodians, whose attempts at mediation had been contemptuously and craftily frustrated by the king, were especially offended.

The Rhodian Hansa and Pergamus Oppose Philip

But even had this not been so, the interests of all Greek commercial cities were at stake. They could not possibly allow the mild and almost purely nominal Egyptian rule to be supplanted by the Macedonian despotism, with which urban self-government and freedom of commercial intercourse were

not at all compatible; and the fearful treatment of the Cians showed that the matter at stake was not the right of confirming the charters of the towns, but the life or death of one and all. Lampsacus had already fallen, and Thasos had been treated like Cius; no time was to be lost. Theophiliscus, the vigilant -strategus- of Rhodes, exhorted his citizens to meet the common danger by common resistance, and not to suffer the towns and islands to become one by one a prey to the enemy. Rhodes resolved on its course, and declared war against Philip. Byzantium joined it; as did also the aged Attalus king of Pergamus, personally and politically the enemy of Philip. While the fleet of the allies was mustering on the Aeolian coast, Philip directed a portion of his fleet to take Chios and Samos. With the other portion he appeared in person before Pergamus, which however he invested in vain; he had to content himself with traversing the level country and leaving the traces of Macedonian valour on the temples which he destroyed far and wide. Suddenly he departed and re-embarked, to unite with his squadron which was at Samos. But the Rhodo-Pergamene fleet followed him, and forced him to accept battle in the straits of Chios. The number of the Macedonian decked vessels was smaller, but the multitude of their open boats made up for this inequality, and the soldiers of Philip fought with great courage. But he was at length defeated. Almost half of his decked vessels, 24 sail, were sunk or taken; 6000 Macedonian sailors and 3000 soldiers perished, amongst whom was the admiral Democrates; 2000 were taken prisoners. The victory cost the allies no more than 800 men and six vessels. But, of the leaders of the allies, Attalus had been cut off from his fleet and compelled to let his own vessel run aground at Erythrae; and Theophiliscus of Rhodes, whose public spirit had decided the question of war and whose valour had decided the battle, died on the day after it of his wounds. Thus while the fleet of Attalus went home and the Rhodian fleet remained temporarily at Chios, Philip, who falsely ascribed the victory to himself, was able to continue his voyage and to turn towards Samos, in

order to occupy the Carian towns. On the Carian coast the Rhodians, not on this occasion supported by Attalus, gave battle for the second time to the Macedonian fleet under Heraclides, near the little island of Lade in front of the port of Miletus. The victory, claimed again by both sides, appears to have been this time gained by the Macedonians; for while the Rhodians retreated to Myndus and thence to Cos, the Macedonians occupied Miletus, and a squadron under Dicaearchus the Aetolian occupied the Cyclades. Philip meanwhile prosecuted the conquest of the Rhodian possessions on the Carian mainland, and of the Greek cities: had he been disposed to attack Ptolemy in person, and had he not preferred to confine himself to the acquisition of his own share in the spoil, he would now have been able to think even of an expedition to Egypt. In Caria no army confronted the Macedonians, and Philip traversed without hindrance the country from Magnesia to Mylasa; but every town in that country was a fortress, and the siege-warfare was protracted without yielding or promising any considerable results. Zeuxis the satrap of Lydia supported the ally of his master with the same lukewarmness as Philip had manifested in promoting the interests of the Syrian king, and the Greek cities gave their support only under the pressure of fear or force. The provisioning of the army became daily more difficult; Philip was obliged today to plunder those who but yesterday had voluntarily supplied his wants, and then he had reluctantly to submit to beg afresh. Thus the good season of the year gradually drew to an end, and in the interval the Rhodians had reinforced their fleet and had also been rejoined by that of Attalus, so that they were decidedly superior at sea. It seemed almost as if they might cut off the retreat of the king and compel him to take up winter quarters in Caria, while the state of affairs at home, particularly the threatened intervention of the Aetolians and Romans, urgently demanded his return. Philip saw the danger; he left garrisons amounting together to 3000 men, partly in Myrina to keep Pergamus in check, partly in the petty towns round Mylasa—Iassus, Bargylia, Euromus

and Pedasa—to secure for him the excellent harbour and a landing place in Caria; and, owing to the negligence with which the allies guarded the sea, he succeeded in safely reaching the Thracian coast with his fleet and arriving at home before the winter of 553-4.

Diplomatic Intervention of Rome

In fact a storm was gathering against Philip in the west, which did not permit him to continue the plundering of defenceless Egypt. The Romans, who had at length in this year concluded peace on their own terms with Carthage, began to give serious attention to these complications in the east. It has often been affirmed, that after the conquest of the west they forthwith proceeded to the subjugation of the east; a serious consideration will lead to a juster judgment. It is only dull prejudice which fails to see that Rome at this period by no means grasped at the sovereignty of the Mediterranean states, but, on the contrary, desired nothing further than to have neighbours that should not be dangerous in Africa and in Greece; and Macedonia was not really dangerous to Rome. Its power certainly was far from small, and it is evident that the Roman senate only consented with reluctance to the peace of 548-9, which left it in all its integrity; but how little any serious apprehensions of Macedonia were or could be entertained in Rome, is best shown by the small number of troops—who yet were never compelled to fight against a superior force—with which Rome carried on the next war. The senate doubtless would have gladly seen Macedonia humbled; but that humiliation would be too dearly purchased at the cost of a land war carried on in Macedonia with Roman troops; and accordingly, after the withdrawal of the Aetolians, the senate voluntarily concluded peace at once on the basis of the *-status quo-*. It is therefore far from made out, that the Roman government concluded this peace with the definite design of beginning the war at a more convenient season; and it is very certain that, at the moment, from the thorough exhaustion of the state and the extreme unwillingness of

the citizens to enter into a second transmarine struggle, the Macedonian war was in a high degree unwelcome to the Romans. But now it was inevitable. They might have acquiesced in the Macedonian state as a neighbour, such as it stood in 549; but it was impossible that they could permit it to acquire the best part of Asiatic Greece and the important Cyrene, to crush the neutral commercial states, and thereby to double its power. Further, the fall of Egypt and the humiliation, perhaps the subjugation, of Rhodes would have inflicted deep wounds on the trade of Sicily and Italy; and could Rome remain a quiet spectator, while Italian commerce with the east was made dependent on the two great continental powers? Rome had, moreover, an obligation of honour to fulfil towards Attalus her faithful ally since the first Macedonian war, and had to prevent Philip, who had already besieged him in his capital, from expelling him from his dominions. Lastly, the claim of Rome to extend her protecting arm over all the Hellenes was by no means an empty phrase: the citizens of Neapolis, Rhegium, Massilia, and Emporiae could testify that that protection was meant in earnest, and there is no question at all that at this time the Romans stood in a closer relation to the Greeks than any other nation—one little more remote than that of the Hellenized Macedonians. It is strange that any should dispute the right of the Romans to feel their human, as well as their Hellenic, sympathies revolted at the outrageous treatment of the Cians and Thasians.

Preparations and Pretexts for Second Macedonian War

Thus in reality all political, commercial, and moral motives concurred in inducing Rome to undertake the second war against Philip—one of the most righteous, which the city ever waged. It greatly redounds to the honour of the senate, that it immediately resolved on its course and did not allow itself to be deterred from making the necessary preparations either by the exhaustion of the state or by the unpopularity of such a declaration of war. The propraetor Marcus Valerius Laevinus made his appearance as early as

553 with the Sicilian fleet of 38 sail in the eastern waters. The government, however, were at a loss to discover an ostensible pretext for the war; a pretext which they needed in order to satisfy the people, even although they had not been far too sagacious to undervalue, as was the manner of Philip, the importance of assigning a legitimate ground for hostilities. The support, which Philip was alleged to have granted to the Carthaginians after the peace with Rome, manifestly could not be proved. The Roman subjects, indeed, in the province of Illyria had for a considerable time complained of the Macedonian encroachments. In 551 a Roman envoy at the head of the Illyrian levy had driven Philip's troops from the Illyrian territory; and the senate had accordingly declared to the king's envoys in 552, that if he sought war, he would find it sooner than was agreeable to him. But these encroachments were simply the ordinary outrages which Philip practised towards his neighbours; a negotiation regarding them at the present moment would have led to his humbling himself and offering satisfaction, but not to war. With all the belligerent powers in the east the Roman community was nominally in friendly relations, and might have granted them aid in repelling Philip's attack. But Rhodes and Pergamus, which naturally did not fail to request Roman aid, were formally the aggressors; and although Alexandrian ambassadors besought the Roman senate to undertake the guardianship of the boy king, Egypt appears to have been by no means eager to invoke the direct intervention of the Romans, which would put an end to her difficulties for the moment, but would at the same time open up the eastern sea to the great western power. Aid to Egypt, moreover, must have been in the first instance rendered in Syria, and would have entangled Rome simultaneously in a war with Asia and with Macedonia; which the Romans were naturally the more desirous to avoid, as they were firmly resolved not to intermeddle at least in Asiatic affairs. No course was left but to despatch in the meantime an embassy to the east for the purpose, first, of obtaining—what was not in the circumstances difficult—the sanction of

Egypt to the interference of the Romans in the affairs of Greece; secondly, of pacifying king Antiochus by abandoning Syria to him; and, lastly, of accelerating as much as possible a breach with Philip and promoting a coalition of the minor Graeco-Asiatic states against him (end of 553). At Alexandria they had no difficulty in accomplishing their object; the court had no choice, and was obliged gratefully to receive Marcus Aemilius Lepidus, whom the senate had despatched as "guardian of the king" to uphold his interests, so far as that could be done without an actual intervention. Antiochus did not break off his alliance with Philip, nor did he give to the Romans the definite explanations which they desired; in other respects, however—whether from remissness, or influenced by the declarations of the Romans that they did not wish to interfere in Syria—he pursued his schemes in that direction and left things in Greece and Asia Minor to take their course.

Progress of the War

Meanwhile, the spring of 554 had arrived, and the war had recommenced. Philip first threw himself once more upon Thrace, where he occupied all the places on the coast, in particular Maronea, Aenus, Elaeus, and Sestus; he wished to have his European possessions secured against the risk of a Roman landing. He then attacked Abydus on the Asiatic coast, the acquisition of which could not but be an object of importance to him, for the possession of Sestus and Abydus would bring him into closer connection with his ally Antiochus, and he would no longer need to be apprehensive lest the fleet of the allies might intercept him in crossing to or from Asia Minor. That fleet commanded the Aegean Sea after the withdrawal of the weaker Macedonian squadron: Philip confined his operations by sea to maintaining garrisons on three of the Cyclades, Andros, Cythnos, and Paros, and fitting out privateers. The Rhodians proceeded to Chios, and thence to Tenedos, where Attalus, who had passed the winter at

Aegina and had spent his time in listening to the declamations of the Athenians, joined them with his squadron. The allies might probably have arrived in time to help the Abydenes, who heroically defended themselves; but they stirred not, and so at length the city surrendered, after almost all who were capable of bearing arms had fallen in the struggle before the walls. After the capitulation a large portion of the inhabitants fell by their own hand—the mercy of the victor consisted in allowing the Abydenes a term of three days to die voluntarily. Here, in the camp before Abydus. the Roman embassy, which after the termination of its business in Syria and Egypt had visited and dealt with the minor Greek states, met with the king, and submitted the proposals which it had been charged to make by the senate, viz. that the king should wage no aggressive war against any Greek state, should restore the possessions which he had wrested from Ptolemy, and should consent to an arbitration regarding the injury inflicted on the Pergamenes and Rhodians. The object of the senate, which sought to provoke the king to a formal declaration of war, was not gained; the Roman ambassador, Marcus Aemilius Lepidus, obtained from the king nothing but the polite reply that he would excuse what the envoy had said because he was young, handsome, and a Roman.

Meanwhile, however, the occasion for declaring war, which Rome desired, had been furnished from another quarter. The Athenians in their silly and cruel vanity had put to death two unfortunate Acarnanians, because these had accidentally strayed into their mysteries. When the Acarnanians, who were naturally indignant, asked Philip to procure them satisfaction, he could not refuse the just request of his most faithful allies, and he allowed them to levy men in Macedonia and, with these and their own troops, to invade Attica without a formal declaration of war. This, it is true, was no war in the proper sense of the term; and, besides, the leader of the Macedonian band, Nicanor, immediately gave orders to his troops to retreat, when the Roman envoys, who were at Athens at the time, used

threatening language (in the end of 553). But it was too late. An Athenian embassy was sent to Rome to report the attack made by Philip on an ancient ally of the Romans; and, from the way in which the senate received it, Philip saw clearly what awaited him; so that he at once, in the very spring of 554, directed Philocles, his general in Greece, to lay waste the Attic territory and to reduce the city to extremities.

Declaration of War by Rome

The senate now had what they wanted; and in the summer of 554 they were able to propose to the comitia a declaration of war "on account of an attack on a state in alliance with Rome." It was rejected on the first occasion almost unanimously: foolish or evil-disposed tribunes of the people complained of the senate, which would allow the citizens no rest; but the war was necessary and, in strictness, was already begun, so that the senate could not possibly recede. The burgesses were induced to yield by representations and concessions. It is remarkable that these concessions were made mainly at the expense of the allies. The garrisons of Gaul, Lower Italy, Sicily, and Sardinia, amounting in all to 20,000 men, were exclusively taken from the allied contingents that were in active service—quite contrary to the former principles of the Romans. All the burgess troops, on the other hand, that had continued under arms from the Hannibalic war, were discharged; volunteers alone, it was alleged, were to be enrolled for the Macedonian war, but they were, as was afterwards found, for the most part forced volunteers—a fact which in the autumn of 555 called forth a dangerous military revolt in the camp of Apollonia. Six legions were formed of the men newly called out; of these two remained in Rome and two in Etruria, and only two embarked at Brundisium for Macedonia, led by the consul Publius Sulpicius Galba.

Thus it was once more clearly demonstrated, that the sovereign burgess assemblies, with their shortsighted resolutions dependent often on mere accident, were no longer at all fitted to deal with the complicated and difficult relations into which Rome was drawn by her victories; and that their mischievous intervention in the working of the state machine led to dangerous modifications of the measures which in a military point of view were necessary, and to the still more dangerous course of treating the Latin allies as inferiors.

The Roman League

The position of Philip was very disadvantageous. The eastern states, which ought to have acted in unison against all interference of Rome and probably under other circumstances would have so acted, had been mainly by Philip's fault so incensed at each other, that they were not inclined to hinder, or were inclined even to promote, the Roman invasion. Asia, the natural and most important ally of Philip, had been neglected by him, and was moreover prevented at first from active interference by being entangled in the quarrel with Egypt and the Syrian war. Egypt had an urgent interest in keeping the Roman fleet out of the eastern waters; even now an Egyptian embassy intimated at Rome very plainly, that the court of Alexandria was ready to relieve the Romans from the trouble of intervention in Attica. But the treaty for the partition of Egypt concluded between Asia and Macedonia threw that important state thoroughly into the arms of Rome, and compelled the cabinet of Alexandria to declare that it would only intermeddle in the affairs of European Greece with consent of the Romans. The Greek commercial cities, with Rhodes, Pergamus, and Byzantium at their head, were in a position similar, but of still greater perplexity. They would under other circumstances have beyond doubt done what they could to close the eastern seas against the Romans; but the cruel and destructive policy of conquest pursued by Philip had driven them to an unequal struggle, in

which for their self-preservation they were obliged to use every effort to implicate the great Italian power. In Greece proper also the Roman envoys, who were commissioned to organize a second league against Philip there, found the way already substantially paved for them by the enemy. Of the anti-Macedonian party—the Spartans, Eleans, Athenians, and Aetolians—Philip might perhaps have gained the latter, for the peace of 548 had made a deep, and far from healed, breach in their friendly Alliance with Rome; but apart from the old differences which subsisted between Aetolia and Macedonia regarding the Thessalian towns withdrawn by Macedonia from the Aetolian confederacy—Echinus, Larissa Cremaste, Pharsalus, and Thebes in Phthiotis—the expulsion of the Aetolian garrisons from Lysimachia and Cius had produced fresh exasperation against Philip in the minds of the Aetolians. If they delayed to join the league against him, the chief reason doubtless was the ill-feeling that continued to prevail between them and the Romans.

It was a circumstance still more ominous, that even among the Greek states firmly attached to the interests of Macedonia—the Epirots, Acarnanians, Boeotians, and Achaeans—the Acarnanians and Boeotians alone stood steadfastly by Philip. With the Epirots the Roman envoys negotiated not without success; Amyntas, king of the Athamans, in particular closely attached himself to Rome. Even among the Achaeans, Philip had offended many by the murder of Aratus; while on the other hand he had thereby paved the way for a more free development of the confederacy. Under the leadership of Philopoemen (502-571, for the first time -strategus- in 546) it had reorganized its military system, recovered confidence in itself by successful conflicts with Sparta, and no longer blindly followed, as in the time of Aratus, the policy of Macedonia. The Achaean league, which had to expect neither profit nor immediate injury from the thirst of Philip for aggrandizement, alone in all Hellas looked at this war from an impartial and national- Hellenic point of view. It perceived

—what there was no difficulty in perceiving—that the Hellenic nation was thereby surrendering itself to the Romans even before these wished or desired its surrender, and attempted accordingly to mediate between Philip and the Rhodians; but it was too late. The national patriotism, which had formerly terminated the federal war and had mainly contributed to bring about the first war between Macedonia and Rome, was extinguished the Achaean mediation remained fruitless, and in vain Philip visited the cities and islands to rekindle the zeal of the nation—its apathy was the Nemesis for Cius and Abydus. The Achaeans, as they could effect no change and were not disposed to render help to either party, remained neutral.

Landing of the Romans in Macedonia

In the autumn of 554 the consul, Publius Sulpicius Galba, landed with his two legions and 1000 Numidian cavalry accompanied even by elephants derived from the spoils of Carthage, at Apollonia; on receiving accounts of which the king returned in haste from the Hellespont to Thessaly. But, owing partly to the far-advanced season, partly to the sickness of the Roman general, nothing was undertaken by land that year except a reconnaissance in force, in the course of which the townships in the vicinity, and in particular the Macedonian colony Antipatria, were occupied by the Romans. For the next year a joint attack on Macedonia was concerted with the northern barbarians, especially with Pleuratus, the then ruler of Scodra, and Bato, prince of the Dardani, who of course were eager to profit by the favourable opportunity.

More importance attached to the enterprises of the Roman fleet, which numbered 100 decked and 80 light vessels. While the rest of the ships took their station for the winter at Corcyra, a division under Gaius Claudius Cento proceeded to the Piraeus to render assistance to the hard-pressed Athenians. But, as Cento found the Attic territory already sufficiently

protected against the raids of the Corinthian garrison and the Macedonian corsairs, he sailed on and appeared suddenly before Chalcis in Euboea, the chief stronghold of Philip in Greece, where his magazines, stores of arms, and prisoners were kept, and where the commandant Sopater was far from expecting a Roman attack. The undefended walls were scaled, and the garrison was put to death; the prisoners were liberated and the stores were burnt; unfortunately, there was a want of troops to hold the important position. On receiving news of this invasion, Philip immediately in vehement indignation started from Demetrias in Thessaly for Chalcis, and when he found no trace of the enemy there save the scene of ruin, he went on to Athens to retaliate. But his attempt to surprise the city was a failure, and even the assault was in vain, greatly as the king exposed his life; the approach of Gaius Claudius from the Piraeus, and of Attalus from Aegina, compelled him to depart. Philip still tarried for some time in Greece; but in a political and in a military point of view his successes were equally insignificant. In vain he tried to induce the Achaeans to take up arms in his behalf; and equally fruitless were his attacks on Eleusis and the Piraeus, as well as a second attempt on Athens itself. Nothing remained for him but to gratify his natural exasperation in an unworthy manner by laying waste the country and destroying the trees of Academus, and then to return to the north.

Attempt of the Romans to Invade Macedonia

Thus the winter passed away. With the spring of 555 the proconsul Publius Sulpicius broke up from his winter camp, determined to conduct his legions from Apollonia by the shortest route into Macedonia proper. This principal attack from the west was to be supported by three subordinate attacks; on the north by an invasion of the Dardani and Illyrians; on the east by an attack on the part of the combined fleet of the Romans and allies, which assembled at Aegina; while lastly the Athamanes, and the Aetolians

also, if the attempt to induce them to share in the struggle should prove successful, were to advance from the south. After Galba had crossed the mountains pierced by the Apsus (now the Beratind), and had marched through the fertile plain of Dassaretia, he reached the mountain range which separates Illyria from Macedonia, and crossing it, entered the proper Macedonian territory. Philip had marched to meet him; but in the extensive and thinly-peopled regions of Macedonia the antagonists for a time sought each other in vain; at length they met in the province of Lyncestis, a fertile but marshy plain not far from the north-western frontier, and encamped not 1000 paces apart. Philip's army, after he had been joined by the corps detached to occupy the northern passes, numbered about 20,000 infantry and 2000 cavalry; the Roman army was nearly as strong. The Macedonians however had the great advantage, that, fighting in their native land and well acquainted with its highways and byways, they had little trouble in procuring supplies of provisions, while they had encamped so close to the Romans that the latter could not venture to disperse for any extensive foraging. The consul repeatedly offered battle, but the king persisted in declining it; and the combats between the light troops, although the Romans gained some advantages in them, produced no material alteration. Galba was obliged to break up his camp and to pitch another eight miles off at Octolophus, where he conceived that he could more easily procure supplies. But here too the divisions sent out were destroyed by the light troops and cavalry of the Macedonians; the legions were obliged to come to their help, whereupon the Macedonian vanguard, which had advanced too far, were driven back to their camp with heavy loss; the king himself lost his horse in the action, and only saved his life through the magnanimous self-devotion of one of his troopers. From this perilous position the Romans were liberated through the better success of the subordinate attacks which Galba had directed the allies to make, or rather through the weakness of the Macedonian forces. Although Philip had instituted levies as large as

possible in his own dominions, and had enlisted Roman deserters and other mercenaries, he had not been able to bring into the field (over and above the garrisons in Asia Minor and Thrace) more than the army, with which in person he confronted the consul; and besides, in order to form even this, he had been obliged to leave the northern passes in the Pelagonian territory undefended. For the protection of the east coast he relied partly on the orders which he had given for the laying waste of the islands of Sciathus and Peparethus, which might have furnished a station to the enemy's fleet, partly on the garrisoning of Thasos and the coast and on the fleet organized at Demetrias under Heraclides. For the south frontier he had been obliged to reckon solely upon the more than doubtful neutrality of the Aetolians. These now suddenly joined the league against Macedonia, and immediately in conjunction with the Athamanes penetrated into Thessaly, while simultaneously the Dardani and Illyrians overran the northern provinces, and the Roman fleet under Lucius Apustius, departing from Corcyra, appeared in the eastern waters, where the ships of Attalus, the Rhodians, and the Istrians joined it.

Philip, on learning this, voluntarily abandoned his position and retreated in an easterly direction: whether he did so in order to repel the probably unexpected invasion of the Aetolians, or to draw the Roman army after him with a view to its destruction, or to take either of these courses according to circumstances, cannot well be determined. He managed his retreat so dexterously that Galba, who adopted the rash resolution of following him, lost his track, and Philip was enabled to reach by a flank movement, and to occupy, the narrow pass which separates the provinces of Lyncestis and Eordaea, with the view of awaiting the Romans and giving them a warm reception there. A battle took place on the spot which he had selected; but the long Macedonian spears proved unserviceable on the wooded and uneven ground. The Macedonians were partly turned, partly broken, and lost many men.

Return of the Romans

But, although Philip's army was after this unfortunate action no longer able to prevent the advance of the Romans, the latter were themselves afraid to encounter further unknown dangers in an impassable and hostile country; and returned to Apollonia, after they had laid waste the fertile provinces of Upper Macedonia—Eordaea, Elymaea, and Orestis. Celetrum, the most considerable town of Orestis (now Kastoria, on a peninsula in the lake of the same name), had surrendered to them: it was the only Macedonian town that opened its gates to the Romans. In the Illyrian land Pelium, the city of the Dassaretae, on the upper confluent of the Apsus, was taken by storm and strongly garrisoned to serve as a future basis for a similar expedition.

Philip did not disturb the Roman main army in its retreat, but turned by forced marches against the Aetolians and Athamanians who, in the belief that the legions were occupying the attention of the king, were fearlessly and recklessly plundering the rich vale of the Peneius, defeated them completely, and compelled such as did not fall to make their escape singly through the well-known mountain paths. The effective strength of the confederacy was not a little diminished by this defeat, and not less by the numerous enlistments made in Aetolia on Egyptian account. The Dardani were chased back over the mountains by Athena-goras, the leader of Philip's light troops, without difficulty and with severe loss. The Roman fleet also did not accomplish much; it expelled the Macedonian garrison from Andros, punished Euboea and Sciathus, and then made attempts on the Chalcidian peninsula, which were, however, vigorously repulsed by the Macedonian garrison at Mende. The rest of the summer was spent in the capture of Oreus in Euboea, which was long delayed by the resolute defence of the Macedonian garrison. The weak Macedonian fleet under Heraclides remained inactive at Heraclea, and did not venture to dispute the possession of the sea with the enemy. The latter went early to winter

quarters, the Romans proceeding to the Piraeus and Corcyra, the Rhodians and Pergamenes going home.

Philip might on the whole congratulate himself upon the results of this campaign. The Roman troops, after an extremely troublesome campaign, stood in autumn precisely on the spot whence they had started in spring; and, but for the well-timed interposition of the Aetolians and the unexpected success of the battle at the pass of Eordaea, perhaps not a man of their entire force would have again seen the Roman territory. The fourfold offensive had everywhere failed in its object, and not only did Philip in autumn see his whole dominions cleared of the enemy, but he was able to make an attempt—which, however, miscarried—to wrest from the Aetolians the strong town of Thaumaci, situated on the Aetolo-Thessalian frontier and commanding the plain of the Peneius. If Antiochus, for whose coming Philip vainly supplicated the gods, should unite with him in the next campaign, he might anticipate great successes. For a moment it seemed as if Antiochus was disposed to do so; his army appeared in Asia Minor, and occupied some townships of king Attalus, who requested military protection from the Romans. The latter, however, were not anxious to urge the great-king at this time to a breach: they sent envoys, who in fact obtained an evacuation of the dominions of Attalus. From that quarter Philip had nothing to hope for.

Philip Encamps on the Aous
Flaminius
Philip Driven Back to Tempe
Greece in the Power of the Romans

But the fortunate issue of the last campaign had so raised the courage or the arrogance of Philip, that, after having assured himself afresh of the neutrality of the Achaeans and the fidelity of the Macedonians by the sacri

fice of some strong places and of the detested admiral Heraclides, he next spring (556) assumed the offensive and advanced into the territory of the Atintanes, with a view to form a well- entrenched camp in the narrow pass, where the Aous (Viosa) winds its way between the mountains Aeropus and Asnaus. Opposite to him encamped the Roman army reinforced by new arrivals of troops, and commanded first by the consul of the previous year, Publius Villius, and then from the summer of 556 by that year's consul, Titus Quinctius Flaminius. Flaminius, a talented man just thirty years of age, belonged to the younger generation who began to lay aside the patriotism as well as the habits of their forefathers and, though not unmindful of their fatherland, were still more mindful of themselves and of Hellenism. A skilful officer and a better diplomatist, he was in many respects admirably adapted for the management of the troubled affairs of Greece. Yet it would perhaps have been better both for Rome and for Greece, if the choice had fallen on one less full of Hellenic sympathies, and if the general despatched thither had been a man, who would neither have been bribed by delicate flattery nor stung by pungent sarcasm; who would not amidst literary and artistic reminiscences have overlooked the pitiful condition of the constitutions of the Hellenic states; and who, while treating Hellas according to its deserts, would have spared the Romans the trouble of striving after unattainable ideals.

The new commander-in-chief immediately had a conference with the king, while the two armies lay face to face inactive. Philip made proposals of peace; he offered to restore all his own conquests, and to submit to an equitable arbitration regarding the damage inflicted on the Greek cities; but the negotiations broke down, when he was asked to give up ancient possessions of Macedonia and particularly Thessaly. For forty days the two armies lay in the narrow pass of the Aous; Philip would not retire, and Flaminius could not make up his mind whether he should order an assault, or leave the king alone and reattempt the expedition of the previous year. At

length the Roman general was helped out of his perplexity by the treachery of some men of rank among the Epirots—who were otherwise well disposed to Macedonia—and especially of Charops. They conducted a Roman corps of 4000 infantry and 300 cavalry by mountain paths to the heights above the Macedonian camp; and, when the consul attacked the enemy's army in front, the advance of that Roman division, unexpectedly descending from the mountains commanding the position, decided the battle. Philip lost his camp and entrenchments and nearly 2000 men, and hastily retreated to the pass of Tempe, the gate of Macedonia proper. He gave up everything which he had held except the fortresses; the Thessalian towns, which he could not defend, he himself destroyed; Pherae alone closed its gates against him and thereby escaped destruction. The Epirots, induced partly by these successes of the Roman arms, partly by the judicious moderation of Flamininus, were the first to secede from the Macedonian alliance. On the first accounts of the Roman victory the Athamanes and Aetolians immediately invaded Thessaly, and the Romans soon followed; the open country was easily overrun, but the strong towns, which were friendly to Macedonia and received support from Philip, fell only after a brave resistance or withstood even the superior foe—especially Atrax on the left bank of the Peneius, where the phalanx stood in the breach as a substitute for the wall. Except these Thessalian fortresses and the territory of the faithful Acarnanians, all northern Greece was thus in the hands of the coalition.

The Achaeans Enter into Alliance with Rome

The south, on the other hand, was still in the main retained under the power of Macedonia by the fortresses of Chalcis and Corinth, which maintained communication with each other through the territory of the Boeotians who were friendly to the Macedonians, and by the Achaean neutrality; and as it was too late to advance into Macedonia this year,

Flamininus resolved to direct his land army and fleet in the first place against Corinth and the Achaeans. The fleet, which had again been joined by the Rhodian and Pergamene ships, had hitherto been employed in the capture and pillage of two of the smaller towns in Euboea, Eretria and Carystus; both however, as well as Oreus, were thereafter abandoned, and reoccupied by Philocles the Macedonian commandant of Chalcis. The united fleet proceeded thence to Cenchreae, the eastern port of Corinth, to threaten that strong fortress. On the other side Flamininus advanced into Phocis and occupied the country, in which Elatea alone sustained a somewhat protracted siege: this district, and Anticyra in particular on the Corinthian gulf, were chosen as winter quarters. The Achaeans, who thus saw on the one hand the Roman legions approaching and on the other the Roman fleet already on their own coast, abandoned their morally honourable, but politically untenable, neutrality. After the deputies from the towns most closely attached to Macedonia —Dyme, Megalopolis, and Argos—had left the diet, it resolved to join the coalition against Philip. Cycliades and other leaders of the Macedonian party went into exile; the troops of the Achaeans immediately united with the Roman fleet and hastened to invest Corinth by land, which city—the stronghold of Philip against the Achaeans —had been guaranteed to them on the part of Rome in return for their joining the coalition. Not only, however, did the Macedonian garrison, which was 1300 strong and consisted chiefly of Italian deserters, defend with determination the almost impregnable city, but Philocles also arrived from Chalcis with a division of 1500 men, which not only relieved Corinth but also invaded the territory of the Achaeans and, in concert with the citizens who were favourable to Macedonia, wrested from them Argos. But the recompense of such devotedness was, that the king delivered over the faithful Argives to the reign of terror of Nabis of Sparta. Philip hoped, after the accession of the Achaeans to the Roman coalition, to gain over Nabis who had hitherto been the ally of the Romans; for his chief reason for

joining the Roman alliance had been that he was opposed to the Achaeans and since 550 was even at open war with them. But the affairs of Philip were in too desperate a condition for any one to feel satisfaction in joining his side now. Nabis indeed accepted Argos from Philip, but he betrayed the traitor and remained in alliance with Flamininus, who, in his perplexity at being now allied with two powers that were at war with each other, had in the meantime arranged an armistice of four months between the Spartans and Achaeans.

Vain Attempts to Arrange a Peace

Thus winter came on; and Philip once more availed himself of it to obtain if possible an equitable peace. At a conference held at Nicaea on the Malia gulf the king appeared in person, and endeavoured to come to an understanding with Flamininus. With haughty politeness he repelled the forward insolence of the petty chiefs, and by marked deference to the Romans, as the only antagonists on an equality with him, he sought to obtain from them tolerable terms. Flamininus was sufficiently refined to feel himself flattered by the urbanity of the vanquished prince towards himself and his arrogance towards the allies, whom the Roman as well as the king had learned to despise; but his powers were not ample enough to meet the king's wishes. He granted him a two months' armistice in return for the evacuation of Phocis and Locris, and referred him, as to the main matter, to his government. The Roman senate had long been at one in the opinion that Macedonia must give up all her possessions abroad; accordingly, when the ambassadors of Philip appeared in Rome, they were simply asked whether they had full powers to renounce all Greece and in particular Corinth, Chalcis, and Demetrias, and when they said that they had not, the negotiations were immediately broken off, and it was resolved that the war should be prosecuted with vigour. With the help of the tribunes of the people, the senate succeeded in preventing a change in the chief

command—which had often proved so injurious—and in prolonging the command of Flamininus; he obtained considerable reinforcements, and the two former commanders-in-chief, Publius Galba and Publius Villius, were instructed to place themselves at his disposal. Philip resolved once more to risk a pitched battle. To secure Greece, where all the states except the Acarnanians and Boeotians were now in arms against him, the garrison of Corinth was augmented to 6000 men, while he himself, straining the last energies of exhausted Macedonia and enrolling children and old men in the ranks of the phalanx, brought into the field an army of about 26,000 men, of whom 16,000 were Macedonian -phalangitae-.

Philip Proceed to Thessaly Battle of Cynoscephalae

Thus the fourth campaign, that of 557, began. Flamininus despatched a part of the fleet against the Acarnanians, who were besieged in Leucas; in Greece proper he became by stratagem master of Thebes, the capital of Boeotia, in consequence of which the Boeotians were compelled to join at least nominally the alliance against Macedonia. Content with having thus interrupted the communication between Corinth and Chalcis, he proceeded to the north, where alone a decisive blow could be struck. The great difficulties of provisioning the army in a hostile and for the most part desolate country, which had often hampered its operations, were now to be obviated by the fleet accompanying the army along the coast and carrying after it supplies sent from Africa, Sicily, and Sardinia. The decisive blow came, however, earlier than Flamininus had hoped. Philip, impatient and confident as he was, could not endure to await the enemy on the Macedonian frontier: after assembling his army at Dium, he advanced through the pass of Tempe into Thessaly, and encountered the army of the enemy advancing to meet him in the district of Scotussa.

The Macedonian and Roman armies—the latter of which had been reinforced by contingents of the Apolloniates and the Athamanes, by the Cretans sent by Nabis, and especially by a strong band of Aetolians—contained nearly equal numbers of combatants, each about 26,000 men; the Romans, however, had the superiority in cavalry. In front of Scotussa, on the plateau of the Karadagh, during a gloomy day of rain, the Roman vanguard unexpectedly encountered that of the enemy, which occupied a high and steep hill named Cynoscephalae, that lay between the two camps. Driven back into the plain, the Romans were reinforced from the camp by the light troops and the excellent corps of Aetolian cavalry, and now in turn forced the Macedonian vanguard back upon and over the height. But here the Macedonians again found support in their whole cavalry and the larger portion of their light infantry; the Romans, who had ventured forward imprudently, were pursued with great loss almost to their camp, and would have wholly taken to flight, had not the Aetolian horsemen prolonged the combat in the plain until Flamininus brought up his rapidly-arranged legions. The king yielded to the impetuous cry of his victorious troops demanding the continuance of the conflict, and hastily drew up his heavy-armed soldiers for the battle, which neither general nor soldiers had expected on that day. It was important to occupy the hill, which for the moment was quite denuded of troops. The right wing of the phalanx, led by the king in person, arrived early enough to form without trouble in battle order on the height; the left had not yet come up, when the light troops of the Macedonians, put to flight by the legions, rushed up the hill. Philip quickly pushed the crowd of fugitives past the phalanx into the middle division, and, without waiting till Nicanor had arrived on the left wing with the other half of the phalanx which followed more slowly, he ordered the right phalanx to couch their spears and to charge down the hill on the legions, and the rearranged light infantry simultaneously to turn them and fall upon them in flank. The attack of the phalanx, irresistible on so

favourable ground, shattered the Roman infantry, and the left wing of the Romans was completely beaten. Nicanor on the other wing, when he saw the king give the attack, ordered the other half of the phalanx to advance in all haste; by this movement it was thrown into confusion, and while the first ranks were already rapidly following the victorious right wing down the hill, and were still more thrown into disorder by the inequality of the ground, the last files were just gaining the height. The right wing of the Romans under these circumstances soon overcame the enemy's left; the elephants alone, stationed upon this wing, annihilated the broken Macedonian ranks. While a fearful slaughter was taking place at this point, a resolute Roman officer collected twenty companies, and with these threw himself on the victorious Macedonian wing, which had advanced so far in pursuit of the Roman left that the Roman right came to be in its rear. Against an attack from behind the phalanx was defenceless, and this movement ended the battle. From the complete breaking up of the two phalanxes we may well believe that the Macedonian loss amounted to 13,000, partly prisoners, partly fallen—but chiefly the latter, because the Roman soldiers were not acquainted with the Macedonian sign of surrender, the raising of the -sarissae-. The loss of the victors was slight. Philip escaped to Larissa, and, after burning all his papers that nobody might be compromised, evacuated Thessaly and returned home.

Simultaneously with this great defeat, the Macedonians suffered other discomfitures at all the points which they still occupied; in Caria the Rhodian mercenaries defeated the Macedonian corps stationed there and compelled it to shut itself up in Stratonicea; the Corinthian garrison was defeated by Nicostratus and his Achaeans with severe loss, and Leucas in Acarnania was taken by assault after a heroic resistance. Philip was completely vanquished; his last allies, the Acarnanians, yielded on the news of the battle of Cynoscephalae.

Preliminaries of Peace

It was completely in the power of the Romans to dictate peace; they used their power without abusing it. The empire of Alexander might be annihilated; at a conference of the allies this desire was expressly put forward by the Aetolians. But what else would this mean, than to demolish the rampart protecting Hellenic culture from the Thracians and Celts? Already during the war just ended the flourishing Lysimachia on the Thracian Chersonese had been totally destroyed by the Thracians—a serious warning for the future. Flamininus, who had clearly perceived the bitter animosities subsisting among the Greek states, could never consent that the great Roman power should be the executioner for the grudges of the Aetolian confederacy, even if his Hellenic sympathies had not been as much won by the polished and chivalrous king as his Roman national feeling was offended by the boastings of the Aetolians, the "victors of Cynoscephalae," as they called themselves. He replied to the Aetolians that it was not the custom of Rome to annihilate the vanquished, and that, besides, they were their own masters and were at liberty to put an end to Macedonia, if they could. The king was treated with all possible deference, and, on his declaring himself ready now to entertain the demands formerly made, an armistice for a considerable term was agreed to by Flamininus in return for the payment of a sum of money and the furnishing of hostages, among whom was the king's son Demetrius,—an armistice which Philip greatly needed in order to expel the Dardani out of Macedonia.

Peace with Macedonia

The final regulation of the complicated affairs of Greece was entrusted by the senate to a commission of ten persons, the head and soul of which was Flamininus. Philip obtained from it terms similar to those laid down for Carthage. He lost all his foreign possessions in Asia Minor, Thrace, Greece,

and in the islands of the Aegean Sea; while he retained Macedonia proper undiminished, with the exception of some unimportant tracts on the frontier and the province of Orestis, which was declared free—a stipulation which Philip felt very keenly, but which the Romans could not avoid prescribing, for with his character it was impossible to leave him free to dispose of subjects who had once revolted from their allegiance. Macedonia was further bound not to conclude any foreign alliances without the previous knowledge of Rome, and not to send garrisons abroad; she was bound, moreover, not to make war out of Macedonia against civilized states or against any allies of Rome at all; and she was not to maintain any army exceeding 5000 men, any elephants, or more than five decked ships—the rest were to be given up to the Romans. Lastly, Philip entered into symmachy with the Romans, which obliged him to send a contingent when requested; indeed, Macedonian troops immediately afterwards fought side by side with the legions. Moreover, he paid a contribution of 1000 talents (244,000 pounds).

Greece Free

After Macedonia had thus been reduced to complete political nullity and was left in possession of only as much power as was needful to guard the frontier of Hellas against the barbarians, steps were taken to dispose of the possessions ceded by the king. The Romans, who just at that time were learning by experience in Spain that transmarine provinces were a very dubious gain, and who had by no means begun the war with a view to the acquisition of territory, took none of the spoil for themselves, and thus compelled their allies also to moderation. They resolved to declare all the states of Greece, which had previously been under Phillip free: and Flamininus was commissioned to read the decree to that effect to the Greeks assembled at the Isthmian games (558). Thoughtful men doubtless might ask whether freedom was a blessing capable of being thus bestowed, and

what was the value of freedom to a nation apart from union and unity; but the rejoicing was great and sincere, as the intention of the senate was sincere in conferring the freedom.(2)

Scodra

The Achaean League Enlarged

The Aetolians

The only exceptions to this general rule were, the Illyrian provinces eastward of Epidamnus, which fell to Pleuratus the ruler of Scodra, and rendered that state of robbers and pirates, which a century before had been humbled by the Romans,(3) once more one of the most powerful of the petty principalities in those regions; some townships in western Thessaly, which Amynder had occupied and was allowed to retain; and the three islands of Paros, Scyros, and Imbros, which were presented to Athens in return for her many hardships and her still more numerous addresses of thanks and courtesies of all sorts. The Rhodians, of course, retained their Carian possessions, and the Pergamenes retained Aegina. The remaining allies were only indirectly rewarded by the accession of the newly-liberated cities to the several confederacies. The Achaeans were the best treated, although they were the latest in joining the coalition against Philip; apparently for the honourable reason, that this federation was the best organized and most respectable of all the Greek states. All the possessions of Philip in the Peloponnesus and on the Isthmus, and consequently Corinth in particular, were incorporated with their league. With the Aetolians on the other hand the Romans used little ceremony; they were allowed to receive the towns of Phocis and Locris into their symmachy, but their attempts to extend it also to Acarnania and Thessaly were in part decidedly rejected, in part postponed, and the Thessalian cities were organized into four small independent confederacies. The Rhodian city-league reaped the benefit of the liberation of Thasos, Lemnos, and the towns of Thrace and Asia Minor.

War against Nabis of Sparta

The regulation of the affairs of the Greek states, as respected both their mutual relations and their internal condition, was attended with difficulty. The most urgent matter was the war which had been carried on between the Spartans and Achaeans since 550, in which the duty of mediating necessarily fell to the Romans. But after various attempts to induce Nabis to yield, and particularly to give up the city of Argos belonging to the Achaean league, which Philip had surrendered to him, no course at last was left to Flamininus but to have war declared against the obstinate petty robber-chieftain, who reckoned on the well-known grudge of the Aetolians against the Romans and on the advance of Antiochus into Europe, and pertinaciously refused to restore Argos. War was declared, accordingly, by all the Hellenes at a great diet in Corinth, and Flamininus advanced into the Peloponnesus accompanied by the fleet and the Romano-allied army, which included a contingent sent by Philip and a division of Lacedaemonian emigrants under Agesipolis, the legitimate king of Sparta (559). In order to crush his antagonist immediately by an overwhelming superiority of force, no less than 50,000 men were brought into the field, and, the other towns being disregarded, the capital itself was at once invested; but the desired result was not attained. Nabis had sent into the field a considerable army amounting to 15,000 men, of whom 5000 were mercenaries, and he had confirmed his rule afresh by a complete reign of terror—by the execution - en masse- of the officers and inhabitants of the country whom he suspected. Even when he himself after the first successes of the Roman army and fleet resolved to yield and to accept the comparatively favourable terms of peace proposed by Flamininus, "the people," that is to say the gang of robbers whom Nabis had domiciled in Sparta, not without reason apprehensive of a reckoning after the victory, and deceived by an accompaniment of lies as to the nature of the terms of peace and as to the advance of the Aetolians and Asiatics, rejected the peace offered by the Roman general, so that the

struggle began anew. A battle took place in front of the walls and an assault was made upon them; they were already scaled by the Romans, when the setting on fire of the captured streets compelled the assailants to retire.

Settlement of Spartan Affairs

At last the obstinate resistance came to an end. Sparta retained its independence and was neither compelled to receive back the emigrants nor to join the Achaean league; even the existing monarchical constitution, and Nabis himself, were left intact. On the other hand Nabis had to cede his foreign possessions, Argos, Messene, the Cretan cities, and the whole coast besides; to bind himself neither to conclude foreign alliances, nor to wage war, nor to keep any other vessels than two open boats; and lastly to disgorge all his plunder, to give to the Romans hostages, and to pay to them a war-contribution. The towns on the Laconian coast were given to the Spartan emigrants, and this new community, who named themselves the "free Laconians" in contrast to the monarchically governed Spartans, were directed to enter the Achaean league. The emigrants did not receive back their property, as the district assigned to them was regarded as a compensation for it; it was stipulated, on the other hand, that their wives and children should not be detained in Sparta against their will. The Achaeans, although by this arrangement they gained the accession of the free Laconians as well as Argos, were yet far from content; they had expected that the dreaded and hated Nabis would be superseded, that the emigrants would be brought back, and that the Achaean symmarchy would be extended to the whole Peloponnesus. Unprejudiced persons, however, will not fail to see that Flamininus managed these difficult affairs as fairly and justly as it was possible to manage them where two political parties, both chargeable with unfairness and injustice stood opposed to each other. With the old and deep hostility subsisting between the Spartans and Achaeans, the incorporation of Sparta into the Achaean league would have

been equivalent to subjecting Sparta to the Achaeans, a course no less contrary to equity than to prudence. The restitution of the emigrants, and the complete restoration of a government that had been set aside for twenty years, would only have substituted one reign of terror for another; the expedient adopted by Flamininus was the right one, just because it failed to satisfy either of the extreme parties. At length thorough provision appeared to be made that the Spartan system of robbery by sea and land should cease, and that the government there, such as it was, should prove troublesome only to its own subjects. It is possible that Flamininus, who knew Nabis and could not but be aware how desirable it was that he should personally be superseded, omitted to take such a step from the mere desire to have done with the matter and not to mar the clear impression of his successes by complications that might be prolonged beyond all calculation; it is possible, moreover, that he sought to preserve Sparta as a counterpoise to the power of the Achaean confederacy in the Peloponnesus. But the former objection relates to a point of secondary importance; and as to the latter view, it is far from probable that the Romans condescended to fear the Achaeans.

Final Regulation of Greece

Peace was thus established, externally at least, among the petty Greek states. But the internal condition of the several communities also furnished employment to the Roman arbiter. The Boeotians openly displayed their Macedonian tendencies, even after the expulsion of the Macedonians from Greece; after Flamininus had at their request allowed their countrymen who were in the service of Philip to return home, Brachyllas, the most decided partisan of Macedonia, was elected to the presidency of the Boeotian confederacy, and Flamininus was otherwise irritated in every way. He bore it with unparalleled patience; but the Boeotians friendly to Rome, who knew what awaited them after the departure of the Romans, determined to put Brachyllas to death, and Flamininus, whose permission they deemed it

necessary to ask, at least did not forbid them. Brachyllas was accordingly killed; upon which the Boeotians were not only content with prosecuting the murderers, but lay in wait for the Roman soldiers passing singly or in small parties through their territories, and killed about 500 of them. This was too much to be endured; Flamininus imposed on them a fine of a talent for every soldier; and when they did not pay it, he collected the nearest troops and besieged Coronea (558). Now they betook themselves to entreaty; Flamininus in reality desisted on the intercession of the Achaeans and Athenians, exacting but a very moderate fine from those who were guilty; and although the Macedonian party remained continuously at the helm in the petty province, the Romans met their puerile opposition simply with the forbearance of superior power. In the rest of Greece Flamininus contented himself with exerting his influence, so far as he could do so without violence, over the internal affairs especially of the newly-freed communities; with placing the council and the courts in the hands of the more wealthy and bringing the anti-Macedonian party to the helm; and with attaching as much as possible the civic commonwealths to the Roman interest, by adding everything, which in each community should have fallen by martial law to the Romans, to the common property of the city concerned. The work was finished in the spring of 560; Flamininus once more assembled the deputies of all the Greek communities at Corinth, exhorted them to a rational and moderate use of the freedom conferred on them, and requested as the only return for the kindness of the Romans, that they would within thirty days send to him the Italian captives who had been sold into Greece during the Hannibalic war. Then he evacuated the last fortresses in which Roman garrisons were still stationed, Demetrias, Chalcis along with the smaller forts dependent upon it in Euboea, and Acrocorinthus—thus practically giving the lie to the assertion of the Aetolians that Rome had inherited from Philip the "fetters" of Greece—and departed homeward with all the Roman troops and the liberated captives.

Results

It is only contemptible disingenuousness or weakly sentimentality, which can fail to perceive that the Romans were entirely in earnest with the liberation of Greece; and the reason why the plan so nobly projected resulted in so sorry a structure, is to be sought only in the complete moral and political disorganization of the Hellenic nation. It was no small matter, that a mighty nation should have suddenly with its powerful arm brought the land, which it had been accustomed to regard as its primitive home and as the shrine of its intellectual and higher interests, into the possession of full freedom, and should have conferred on every community in it deliverance from foreign taxation and foreign garrisons and the unlimited right of self-government; it is mere paltriness that sees in this nothing save political calculation. Political calculation made the liberation of Greece a possibility for the Romans; it was converted into a reality by the Hellenic sympathies that were at that time indescribably powerful in Rome, and above all in Flamininus himself. If the Romans are liable to any reproach, it is that all of them, and in particular Flamininus who overcame the well-founded scruples of the senate, were hindered by the magic charm of the Hellenic name from perceiving in all its extent the wretched character of the Greek states of that period, and so allowed yet further freedom for the doings of communities which, owing to the impotent antipathies that prevailed alike in their internal and their mutual relations, knew neither how to act nor how to keep quiet. As things stood, it was really necessary at once to put an end to such a freedom, equally pitiful and pernicious, by means of a superior power permanently present on the spot; the feeble policy of sentiment, with all its apparent humanity, was far more cruel than the sternest occupation would have been. In Boeotia for instance Rome had, if not to instigate, at least to permit, a political murder, because the Romans had resolved to withdraw their troops from Greece and, consequently, could not prevent the Greeks friendly to Rome from seeking their remedy in the

usual manner of the country. But Rome herself also suffered from the effects of this indecision. The war with Antiochus would not have arisen but for the political blunder of liberating Greece, and it would not have been dangerous but for the military blunder of withdrawing the garrisons from the principal fortresses on the European frontier. History has a Nemesis for every sin—for an impotent craving after freedom, as well as for an injudicious generosity.

Notes for Chapter VIII

1. III. III. Acquisition of Territory in Illyria

2. III. VI. Stagnation of the War in Italy

3. There are still extant gold staters, with the head of Flamininus and the inscription "-T. Quincti(us)-," struck in Greece under the government of the liberator of the Hellenes. The use of the Latin language is a significant compliment.

4. III. III. Acquisition of Territory in Illyria

CHAPTER IX

The War with Antiochus of Asia

Antiochus the Great

In the kingdom of Asia the diadem of the Seleucidae had been worn since 531 by king Antiochus the Third, the great-great-grandson of the founder of the dynasty. He had, like Philip, begun to reign at nineteen years of age, and had displayed sufficient energy and enterprise, especially in his first campaigns in the east, to warrant his being without too ludicrous impropriety addressed in courtly style as "the Great." He had succeeded—more, however, through the negligence of his opponents and of the Egyptian Philopator in particular, than through any ability of his own—in restoring in some degree the integrity of the monarchy, and in reuniting with his crown first the eastern satrapies of Media and Parthyene, and then the separate state which Achaeus had founded on this side of the Taurus in Asia Minor. A first attempt to wrest from the Egyptians the coast of Syria, the loss of which he sorely felt, had, in the year of the battle of the Trasimene lake, met with a bloody repulse from Philopator at Raphia; and Antiochus had taken good care not to resume the contest with Egypt, so long as a man—even though he were but an indolent one—occupied the Egyptian throne. But, after Philopator's death (549), the right moment for crushing Egypt appeared to have arrived; with that view Antiochus entered into concert with Philip, and had thrown himself upon Coele-Syria, while

Philip attacked the cities of Asia Minor. When the Romans interposed in that quarter, it seemed for a moment as if Antiochus would make common cause with Philip against them—the course suggested by the position of affairs, as well as by the treaty of alliance. But, not far-seeing enough to repel at once with all his energy any interference whatever by the Romans in the affairs of the east, Antiochus thought that his best course was to take advantage of the subjugation of Philip by the Romans (which might easily be foreseen), in order to secure the kingdom of Egypt, which he had previously been willing to share with Philip, for himself alone. Notwithstanding the close relations of Rome with the court of Alexandria and her royal ward, the senate by no means intended to be in reality, what it was in name, his "protector;" firmly resolved to give itself no concern about Asiatic affairs except in case of extreme necessity, and to limit the sphere of the Roman power by the Pillars of Hercules and the Hellespont, it allowed the great-king to take his course. He himself was not probably in earnest with the conquest of Egypt proper—which was more easily talked of than achieved—but he contemplated the subjugation of the foreign possessions of Egypt one after another, and at once attacked those in Cilicia as well as in Syria and Palestine. The great victory, which he gained in 556 over the Egyptian general Scopas at Mount Panium near the sources of the Jordan, not only gave him complete possession of that region as far as the frontier of Egypt proper, but so alarmed the Egyptian guardians of the young king that, to prevent Antiochus from invading Egypt, they submitted to a peace and sealed it by the betrothal of their ward to Cleopatra the daughter of Antiochus. When he had thus achieved his first object, he proceeded in the following year, that of the battle of Cynoscephalae, with a strong fleet of 100 decked and 100 open vessels to Asia Minor, to take possession of the districts that formerly belonged to Egypt on the south and west coasts of Asia Minor—probably the Egyptian government had ceded these districts, which were -de facto- in the hands of Philip, to Antiochus under the peace,

and had renounced all their foreign possessions in his favour—and to recover the Greeks of Asia Minor generally for his empire. At the same time a strong Syrian land-army assembled in Sardes.

Difficulties with Rome

This enterprise had an indirect bearing on the Romans who from the first had laid it down as a condition for Philip that he should withdraw his garrisons from Asia Minor and should leave to the Rhodians and Pergamenes their territory and to the free cities their former constitution unimpaired, and who had now to look on while Antiochus took possession of them in Philip's place. Attalus and the Rhodians found themselves now directly threatened by Antiochus with precisely the same danger as had driven them a few years before into the war with Philip; and they naturally sought to involve the Romans in this war as well as in that which had just terminated. Already in 555-6 Attalus had requested from the Romans military aid against Antiochus, who had occupied his territory while the troops of Attalus were employed in the Roman war. The more energetic Rhodians even declared to king Antiochus, when in the spring of 557 his fleet appeared off the coast of Asia Minor, that they would regard its passing beyond the Chelidonian islands (off the Lycian coast) as a declaration of war; and, when Antiochus did not regard the threat, they, emboldened by the accounts that had just arrived of the battle at Cynoscephalae, had immediately begun the war and had actually protected from the king the most important of the Carian cities, Caunus, Halicarnassus, and Myndus, and the island of Samos. Most of the half-free cities had submitted to Antiochus, but some of them, more especially the important cities of Smyrna, Alexandria Troas, and Lampsacus, had, on learning the discomfiture of Philip, likewise taken courage to resist the Syrian; and their urgent entreaties were combined with those of the Rhodians.

It admits of no doubt, that Antiochus, so far as he was at all capable of forming a resolution and adhering to it, had already made up his mind not only to attach to his empire the Egyptian possessions in Asia, but also to make conquests on his own behalf in Europe and, if not to seek on that account a war with Rome, at any rate to risk it. The Romans had thus every reason to comply with that request of their allies, and to interfere directly in Asia; but they showed little inclination to do so. They not only delayed as long as the Macedonian war lasted, and gave to Attalus nothing but the protection of diplomatic intercession, which, we may add, proved in the first instance effective; but even after the victory, while they doubtless spoke as though the cities which had been in the hands of Ptolemy and Philip ought not to be taken possession of by Antiochus, and while the freedom of the Asiatic cities, Myrina, Abydus, Lampsacus,(1) and Cius, figured in Roman documents, they took not the smallest step to give effect to it, and allowed king Antiochus to employ the favourable opportunity presented by the withdrawal of the Macedonian garrisons to introduce his own. In fact, they even went so far as to submit to his landing in Europe in the spring of 558 and invading the Thracian Chersonese, where he occupied Sestus and Madytus and spent a considerable time in the chastisement of the Thracian barbarians and the restoration of the destroyed Lysimachia, which he had selected as his chief place of arms and as the capital of the newly-instituted satrapy of Thrace. Flamininus indeed, who was entrusted with the conduct of these affairs, sent to the king at Lysimachia envoys, who talked of the integrity of the Egyptian territory and of the freedom of all the Hellenes; but nothing came out of it. The king talked in turn of his undoubted legal title to the ancient kingdom of Lysimachus conquered by his ancestor Seleucus, explained that he was employed not in making territorial acquisitions but only in preserving the integrity of his hereditary dominions, and declined the intervention of the Romans in his disputes with the cities subject to him in Asia Minor. With justice he could add that peace

had already been concluded with Egypt, and that the Romans were thus far deprived of any formal pretext for interfering.(2) The sudden return of the king to Asia occasioned by a false report of the death of the young king of Egypt, and the projects which it suggested of a landing in Cyprus or even at Alexandria, led to the breaking off of the conferences without coming to any conclusion, still less producing any result. In the following year, 559, Antiochus returned to Lysimachia with his fleet and army reinforced, and employed himself in organizing the new satrapy which he destined for his son Seleucus. Hannibal, who had been obliged to flee from Carthage, came to him at Ephesus; and the singularly honourable reception accorded to the exile was virtually a declaration of war against Rome. Nevertheless Flamininus in the spring of 560 withdrew all the Roman garrisons from Greece. This was under the existing circumstances at least a mischievous error, if not a criminal acting in opposition to his own better knowledge; for we cannot dismiss the idea that Flamininus, in order to carry home with him the undiminished glory of having wholly terminated the war and liberated Hellas, contented himself with superficially covering up for the moment the smouldering embers of revolt and war. The Roman statesman might perhaps be right, when he pronounced any attempt to bring Greece directly under the dominion of the Romans, and any intervention of the Romans in Asiatic affairs, to be a political blunder; but the opposition fermenting in Greece, the feeble arrogance of the Asiatic king, the residence, at the Syrian headquarters, of the bitter enemy of the Romans who had already raised the west in arms against Rome—all these were clear signs of the approach of a fresh rising in arms on the part of the Hellenic east, which could not but have for its aim at least to transfer Greece from the clientship of Rome to that of the states opposed to Rome, and, if this object should be attained, would immediately extend the circle of its operations. It is plain that Rome could not allow this to take place. When Flamininus, ignoring all these sure indications of war, withdrew the garrisons from Greece, and yet at the same

time made demands on the king of Asia which he had no intention of employing his army to support, he overdid his part in words as much as he fell short in action, and forgot his duty as a general and as a citizen in the indulgence of his personal vanity—a vanity, which wished to confer, and imagined that it had conferred, peace on Rome and freedom on the Greeks of both continents.

Preparations of Antiochus for War with Rome

Antiochus employed the unexpected respite in strengthening his position at home and his relations with his neighbours before beginning the war, on which for his part he was resolved, and became all the more so, the more the enemy appeared to procrastinate. He now (561) gave his daughter Cleopatra, previously betrothed, in marriage to the young king of Egypt. That he at the same time promised to restore the provinces wrested from his son-in-law, was afterwards affirmed on the part of Egypt, but probably without warrant; at any rate the land remained actually attached to the Syrian kingdom.⁽³⁾ He offered to restore to Eumenes, who had in 557 succeeded his father Attalus on the throne of Pergamus, the towns taken from him, and to give him also one of his daughters in marriage, if he would abandon the Roman alliance. In like manner he bestowed a daughter on Ariarathes, king of Cappadocia, and gained the Galatians by presents, while he reduced by arms the Pisidians who were constantly in revolt, and other small tribes. Extensive privileges were granted to the Byzantines; respecting the cities in Asia Minor, the king declared that he would permit the independence of the old free cities such as Rhodes and Cyzicus, and would be content in the case of the others with a mere formal recognition of his sovereignty; he even gave them to understand that he was ready to submit to the arbitration of the Rhodians. In European Greece he could safely count on the Aetolians, and he hoped to induce Philip again to take up arms. In fact, a plan of Hannibal obtained the royal approval, according

to which he was to receive from Antiochus a fleet of 100 sail and a land army of 10,000 infantry and 1000 cavalry, and was to employ them in kindling first a third Punic war in Carthage, and then a second Hannibalic war in Italy; Tyrian emissaries proceeded to Carthage to pave the way for a rising in arms there(4) Finally, good results were anticipated from the Spanish insurrection, which, at the time when Hannibal left Carthage, was at its height.(5)

Aetolian Intrigues against Rome

While the storm was thus gathering from far and wide against Rome, it was on this, as on all occasions, the Hellenes implicated in the enterprise, who were of the least moment, and yet took action of the greatest importance and with the utmost impatience. The exasperated and arrogant Aetolians began by degrees to persuade themselves that Philip had been vanquished by them and not by the Romans, and could not even wait till Antiochus should advance into Greece. Their policy is characteristically expressed in the reply, which their -strategus- gave soon afterwards to Flaminius, when he requested a copy of the declaration of war against Rome: that he would deliver it to him in person, when the Aetolian army should encamp on the Tiber. The Aetolians acted as the agents of the Syrian king in Greece and deceived both parties, by representing to the king that all the Hellenes were waiting with open arms to receive him as their true deliverer, and by telling those in Greece who were disposed to listen to them that the landing of the king was nearer than it was in reality. Thus they actually succeeded in inducing the simple obstinacy of Nabis to break loose and to rekindle in Greece the flame of war two years after Flaminius's departure, in the spring of 562; but in doing so they missed their aim. Nabis attacked Gythium, one of the towns of the free Laconians that by the last treaty had been annexed to the Achaean league, and took it; but the experienced -strategus- of the Achaeans, Philopoemen, defeated him at the

Barbosthenian mountains, and the tyrant brought back barely a fourth part of his army to his capital, in which Philopoemen shut him up. As such a commencement was no sufficient inducement for Antiochus to come to Europe, the Aetolians resolved to possess themselves of Sparta, Chalcis, and Demetrias, and by gaining these important towns to prevail upon the king to embark. In the first place they thought to become masters of Sparta, by arranging that the Aetolian Alexamenus should march with 1000 men into the town under pretext of bringing a contingent in terms of the alliance, and should embrace the opportunity of making away with Nabis and of occupying the town. This was done, and Nabis was killed at a review of the troops; but, when the Aetolians dispersed to plunder the town, the Lacedaemonians found time to rally and slew them to the last man. The city was then induced by Philopoemen to join the Achaean league. After this laudable project of the Aetolians had thus not only deservedly failed, but had had precisely the opposite effect of uniting almost the whole Peloponnesus in the hands of the other party, it fared little better with them at Chalcis, for the Roman party there called in the citizens of Eretria and Carystus in Euboea, who were favourable to Rome, to render seasonable aid against the Aetolians and the Chalcidian exiles. On the other hand the occupation of Demetrias was successful, for the Magnetes to whom the city had been assigned were, not without reason, apprehensive that it had been promised by the Romans to Philip as a prize in return for his aid against Antiochus; several squadrons of Aetolian horse moreover managed to steal into the town under the pretext of forming an escort for Eurylochus, the recalled head of the opposition to Rome. Thus the Magnetes passed over, partly of their own accord, partly by compulsion, to the side of the Aetolians, and the latter did not fail to make use of the fact at the court of the Seleucid.

Rupture between Antiochus and the Romans

Antiochus took his resolution. A rupture with Rome, in spite of endeavours to postpone it by the diplomatic palliative of embassies, could no longer be avoided. As early as the spring of 561 Flamininus, who continued to have the decisive voice in the senate as to eastern affairs, had expressed the Roman ultimatum to the envoys of the king, Menippus and Hegesianax; viz. that he should either evacuate Europe and dispose of Asia at his pleasure, or retain Thrace and submit to the Roman protectorate over Smyrna, Lampsacus, and Alexandria Troas. These demands had been again discussed at Ephesus, the chief place of arms and fixed quarters of the king in Asia Minor, in the spring of 562, between Antiochus and the envoys of the senate, Publius Sulpicius and Publius Villius; and they had separated with the conviction on both sides that a peaceful settlement was no longer possible. Thenceforth war was resolved on in Rome. In that very summer of 562 a Roman fleet of 30 sail, with 3000 soldiers on board, under Aulus Atilius Serranus, appeared off Gythium, where their arrival accelerated the conclusion of the treaty between the Achaeans and Spartans; the eastern coasts of Sicily and Italy were strongly garrisoned, so as to be secure against any attempts at a landing; a land army was expected in Greece in the autumn. Since the spring of 562 Flamininus, by direction of the senate, had journeyed through Greece to thwart the intrigues of the opposite party, and to counteract as far as possible the evil effects of the ill-timed evacuation of the country. The Aetolians had already gone so far as formally to declare war in their diet against Rome. But Flamininus succeeded in saving Chalcis for the Romans by throwing into it a garrison of 500 Achaeans and 500 Pergamenes. He made an attempt also to recover Demetrias; and the Magnetes wavered. Though some towns in Asia Minor, which Antiochus had proposed to subdue before beginning the great war, still held out, he could now no longer delay his landing, unless he was willing to let the Romans recover all the advantages which they had surrendered two years before by withdrawing their garrisons from Greece.

He collected the vessels and troops which were at hand—he had but 40 decked vessels and 10,000 infantry, along with 500 horse and 6 elephants—and started from the Thracian Chersonese for Greece, where he landed in the autumn of 562 at Pteleum on the Pagasaeon gulf, and immediately occupied the adjoining Demetrias. Nearly about the same time a Roman army of some 25,000 men under the praetor Marcus Baebius landed at Apollonia. The war was thus begun on both sides.

Attitude of the Minor Powers Carthage and Hannibal

Everything depended on the extent to which that comprehensively-planned coalition against Rome, of which Antiochus came forward as the head, might be realized. As to the plan, first of all, of stirring up enemies to the Romans in Carthage and Italy, it was the fate of Hannibal at the court of Ephesus, as through his whole career, to have projected his noble and high-spirited plans for the behoof of people pedantic and mean. Nothing was done towards their execution, except that some Carthaginian patriots were compromised; no choice was left to the Carthaginians but to show unconditional submission to Rome. The camarilla would have nothing to do with Hannibal—such a man was too inconveniently great for court cabals; and, after having tried all sorts of absurd expedients, such as accusing the general, with whose name the Romans frightened their children, of concert with the Roman envoys, they succeeded in persuading Antiochus the Great, who like all insignificant monarchs plumed himself greatly on his independence and was influenced by nothing so easily as by the fear of being ruled, into the wise belief that he ought not to allow himself to be thrown into the shade by so celebrated a man. Accordingly it was in solemn council resolved that the Phoenician should be employed in future only for subordinate enterprises and for giving advice—with the reservation, of course, that the advice should never be followed. Hannibal revenged

himself on the rabble, by accepting every commission and brilliantly executing all.

States of Asia Minor

In Asia Cappadocia adhered to the great-king; Prusias of Bithynia on the other hand took, as always, the side of the stronger. King Eumenes remained faithful to the old policy of his house, which was now at length to yield to him its true fruit. He had not only persistently refused the offers of Antiochus, but had constantly urged the Romans to a war, from which he expected the aggrandizement of his kingdom. The Rhodians and Byzantines likewise joined their old allies. Egypt too took the side of Rome and offered support in supplies and men; which, however, the Romans did not accept.

Macedonia

In Europe the result mainly depended on the position which Philip of Macedonia would take up. It would have been perhaps the right policy for him, notwithstanding all the injuries or shortcomings of the past, to unite with Antiochus. But Philip was ordinarily influenced not by such considerations, but by his likings and dislikings; and his hatred was naturally directed much more against the faithless ally, who had left him to contend alone with the common enemy, had sought merely to seize his own share in the spoil, and had become a burdensome neighbour to him in Thrace, than against the conqueror, who had treated him respectfully and honourably. Antiochus had, moreover, given deep offence to the hot temper of Philip by the setting up of absurd pretenders to the Macedonian crown, and by the ostentatious burial of the Macedonian bones bleaching at Cynoscephalae. Philip therefore placed his whole force with cordial zeal at the disposal of the Romans.

The Lesser Greek States

The second power of Greece, the Achaean league, adhered no less decidedly than the first to the alliance with Rome. Of the smaller powers, the Thessalians and the Athenians held by Rome; among the latter an Achaean garrison introduced by Flamininus into the citadel brought the patriotic party, which was pretty strong, to reason. The Epirots exerted themselves to keep on good terms, if possible, with both parties. Thus, in addition to the Aetolians and the Magnetes who were joined by a portion of the neighbouring Perrhaebians, Antiochus was supported only by Amynder, the weak king of the Athamanes, who allowed himself to be dazzled by foolish designs on the Macedonian crown; by the Boeotians, among whom the party opposed to Rome was still at the helm; and in the Peloponnesus by the Eleans and Messenians, who were in the habit of taking part with the Aetolians against the Achaeans. This was indeed a hopeful beginning; and the title of commander-in-chief with absolute power, which the Aetolians decreed to the great-king, seemed insult added to injury. There had been, just as usual, deception on both sides. Instead of the countless hordes of Asia, the king brought up a force scarcely half as strong as an ordinary consular army; and instead of the open arms with which all the Hellenes were to welcome their deliverer from the Roman yoke, one or two bands of klephts and some dissolute civic communities offered to the king brotherhood in arms.

Antiochus in Greece

For the moment, indeed, Antiochus had anticipated the Romans in Greece proper. Chalcis was garrisoned by the Greek allies of the Romans, and refused the first summons but the fortress surrendered when Antiochus advanced with all his force; and a Roman division, which arrived too late to occupy it, was annihilated by Antiochus at Deliurn. Euboea was thus lost to the Romans. Antiochus still made even in winter an attempt, in concert with the Aetolians and Athamanes, to gain Thessaly; Thermopylae was occupied,

Pherae and other towns were taken, but Appius Claudius came up with 2000 men from Apollonia, relieved Larisa, and took up his position there. Antiochus, tired of the winter campaign, preferred to return to his pleasant quarters at Chalcis, where the time was spent merrily, and the king even, in spite of his fifty years and his warlike schemes, wedded a fair Chalcidian. So the winter of 562-3 passed, without Antiochus doing much more than sending letters hither and thither through Greece: he waged the war—a Roman officer remarked—by means of pen and ink.

Landing of the Romans

In the beginning of spring 563 the Roman staff arrived at Apollonia. The commander-in-chief was Manius Acilius Glabrio, a man of humble origin, but an able general feared both by his soldiers and by the enemy; the admiral was Gaius Livius; and among the military tribunes were Marcus Porcius Cato, the conqueror of Spain, and Lucius Valerius Flaccus, who after the old Roman wont did not disdain, although they had been consuls, to re-enter the army as simple war-tribunes. They brought with them reinforcements in ships and men, including Numidian cavalry and Libyan elephants sent by Massinissa, and the permission of the senate to accept auxiliary troops to the number of 5000 from the extra-Italian allies, so that the whole number of the Roman forces was raised to about 40,000 men. The king, who in the beginning of spring had gone to the Aetolians and had thence made an aimless expedition to Acarnania, on the news of Glabrio's landing returned to his head-quarters to begin the campaign in earnest. But incomprehensibly, through his own negligence and that of his lieutenants in Asia, reinforcements had wholly failed to reach him, so that he had nothing but the weak army—now further decimated by sickness and desertion in its dissolute winter-quarters—with which he had landed at Pteleum in the autumn of the previous year. The Aetolians too, who had professed to send such enormous numbers into the field, now, when their support was of

moment, brought to their commander-in-chief no more than 4000 men. The Roman troops had already begun operations in Thessaly, where the vanguard in concert with the Macedonian army drove the garrisons of Antiochus out of the Thessalian towns and occupied the territory of the Athamanes. The consul with the main army followed; the whole force of the Romans assembled at Larisa.

Battle at Thermopylae

Greece Occupied by the Romans

Resistance of the Aetolians

Instead of returning with all speed to Asia and evacuating the field before an enemy in every respect superior, Antiochus resolved to entrench himself at Thermopylae, which he had occupied, and there to await the arrival of the great army from Asia. He himself took up a position in the chief pass, and commanded the Aetolians to occupy the mountain-path, by which Xerxes had formerly succeeded in turning the Spartans. But only half of the Aetolian contingent was pleased to comply with this order of the commander-in-chief; the other 2000 men threw themselves into the neighbouring town of Heraclea, where they took no other part in the battle than that of attempting during its progress to surprise and plunder the Roman camp. Even the Aetolians posted on the heights discharged their duty of watching with remissness and reluctance; their post on the Callidromus allowed itself to be surprised by Cato, and the Asiatic phalanx, which the consul had meanwhile assailed in front, dispersed, when the Romans hastening down the mountain fell upon its flank. As Antiochus had made no provision for any case and had not thought of retreat, the army was destroyed partly on the field of battle, partly during its flight; with difficulty a small band reached Demetrias, and the king himself escaped to Chalcis with 500 men. He embarked in haste for Ephesus; Europe was lost to him all but his possessions in Thrace, and even the fortresses could be no longer

defended Chalcis surrendered to the Romans, and Demetrias to Philip, who received permission—as a compensation for the conquest of the town of Lamia in Achaia Phthiotis, which he was on the point of accomplishing and had then abandoned by orders of the consul—to make himself master of all the communities that had gone over to Antiochus in Thessaly proper, and even of the territories bordering on Aetolia, the districts of Dolopia and Aperantia. All the Greeks that had pronounced in favour of Antiochus hastened to make their peace; the Epirots humbly besought pardon for their ambiguous conduct, the Boeotians surrendered at discretion, the Eleans and Messenians, the latter after some struggle, submitted to the Achaeans. The prediction of Hannibal to the king was fulfilled, that no dependence at all could be placed upon the Greeks, who would submit to any conqueror. Even the Aetolians, when their corps shut up in Heraclea had been compelled after obstinate resistance to capitulate, attempted to make their peace with the sorely provoked Romans; but the stringent demands of the Roman consul, and a consignment of money seasonably arriving from Antiochus, emboldened them once more to break off the negotiations and to sustain for two whole months a siege in Naupactus. The town was already reduced to extremities, and its capture or capitulation could not have been long delayed, when Flamininus, constantly striving to save every Hellenic community from the worst consequences of its own folly and from the severity of his ruder colleagues, interposed and arranged in the first instance an armistice on tolerable terms. This terminated, at least for the moment, armed resistance in Greece.

Maritime War, and Preparations for Crossing to Asia

Polyxenidas and Pausistratus

Engagement off Aspendus

Battle of Myonnesus

A more serious war was impending in Asia—a war which appeared of a very hazardous character on account not so much of the enemy as of the great distance and the insecurity of the communications with home, while yet, owing to the short-sighted obstinacy of Antiochus, the struggle could not well be terminated otherwise than by an attack on the enemy in his own country. The first object was to secure the sea. The Roman fleet, which during the campaign in Greece was charged with the task of interrupting the communication between Greece and Asia Minor, and which had been successful about the time of the battle at Thermopylae in seizing a strong Asiatic transport fleet near Andros, was thenceforth employed in making preparations for the crossing of the Romans to Asia next year and first of all in driving the enemy's fleet out of the Aegean Sea. It lay in the harbour of Cyssus on the southern shore of the tongue of land that projects from Ionia towards Chios; thither in search of it the Roman fleet proceeded, consisting of 75 Roman, 24 Pergamene, and 6 Carthaginian, decked vessels under the command of Gaius Livius. The Syrian admiral, Polyxenidas, a Rhodian emigrant, had only 70 decked vessels to oppose to it; but, as the Roman fleet still expected the ships of Rhodes, and as Polyxenidas relied on the superior seaworthiness of his vessels, those of Tyre and Sidon in particular, he immediately accepted battle. At the outset the Asiatics succeeded in sinking one of the Carthaginian vessels; but, when they came to grapple, Roman valour prevailed, and it was owing solely to the swiftness of their rowing and sailing that the enemy lost no more than 23 ships. During the pursuit the Roman fleet was joined by 25 ships from Rhodes, and the superiority of the Romans in those waters was now doubly assured. The enemy's fleet thenceforth kept the shelter of the harbour of Ephesus, and, as it could not be induced to risk a second battle, the fleet of the Romans and allies broke up for the winter; the Roman ships of war proceeded to the harbour of Cane in the neighbourhood of Pergamus. Both parties were busy during the winter in preparing for the next campaign. The Romans sought to

gain over the Greeks of Asia Minor; Smyrna, which had perseveringly resisted all the attempts of the king to get possession of the city, received the Romans with open arms, and the Roman party gained the ascendancy in Samos, Chios, Erythrae, Clazomenae, Phocaea, Cyme, and elsewhere. Antiochus was resolved, if possible, to prevent the Romans from crossing to Asia, and with that view he made zealous naval preparations—employing Polyxenidas to fit out and augment the fleet stationed at Ephesus, and Hannibal to equip a new fleet in Lycia, Syria, and Phoenicia; while he further collected in Asia Minor a powerful land army from all regions of his extensive empire. Early next year (564) the Roman fleet resumed its operations. Gaius Livius left the Rhodian fleet—which had appeared in good time this year, numbering 36 sail—to observe that of the enemy in the offing of Ephesus, and went with the greater portion of the Roman and Pergamene vessels to the Hellespont in accordance with his instructions, to pave the way for the passage of the land army by the capture of the fortresses there. Sestus was already occupied and Abydus reduced to extremities, when the news of the defeat of the Rhodian fleet recalled him. The Rhodian admiral Pausistratus, lulled into security by the representations of his countryman that he wished to desert from Antiochus, had allowed himself to be surprised in the harbour of Samos; he himself fell, and all his vessels were destroyed except five Rhodian and two Coan ships; Samos, Phocaea, and Cyme on hearing the news went over to Seleucus, who held the chief command by land in those provinces for his father.

But when the Roman fleet arrived partly from Cane, partly from the Hellespont, and was after some time joined by twenty new ships of the Rhodians at Samos, Polyxenidas was once more compelled to shut himself up in the harbour of Ephesus. As he declined the offered naval battle, and as, owing to the small numbers of the Roman force, an attack by land was not to be thought of, nothing remained for the Roman fleet but to take up its

position in like manner at Samos. A division meanwhile proceeded to Patara on the Lycian coast, partly to relieve the Rhodians from the very troublesome attacks that were directed against them from that quarter, partly and chiefly to prevent the hostile fleet, which Hannibal was expected to bring up, from entering the Aegean Sea. When the squadron sent against Patara achieved nothing, the new admiral Lucius Aemilius Regillus, who had arrived with 20 war-vessels from Rome and had relieved Gaius Livius at Samos, was so indignant that he proceeded thither with the whole fleet; his officers with difficulty succeeded, while they were on their voyage, in making him understand that the primary object was not the conquest of Patara but the command of the Aegean Sea, and in inducing him to return to Samos. On the mainland of Asia Minor Seleucus had in the meanwhile begun the siege of Pergamus, while Antiochus with his chief army ravaged the Pergamene territory and the possessions of the Mytilenaeans on the mainland; they hoped to crush the hated Attalids, before Roman aid appeared. The Roman fleet went to Elaea and the port of Adramytium to help their ally; but, as the admiral wanted troops, he accomplished nothing. Pergamus seemed lost; but the laxity and negligence with which the siege was conducted allowed Eumenes to throw into the city Achaean auxiliaries under Diophanes, whose bold and successful sallies compelled the Gallic mercenaries, whom Antiochus had entrusted with the siege, to raise it.

In the southern waters too the projects of Antiochus were frustrated. The fleet equipped and led by Hannibal, after having been long detained by the constant westerly winds, attempted at length to reach the Aegean; but at the mouth of the Eurymedon, off Aspendus in Pamphylia, it encountered a Rhodian squadron under Eudamus; and in the battle, which ensued between the two fleets, the excellence of the Rhodian ships and naval officers carried the victory over Hannibal's tactics and his numerical superiority. It was the first naval battle, and the last battle against Rome, fought by the great Carthaginian. The victorious Rhodian fleet then took its station at Patara,

and there prevented the intended junction of the two Asiatic fleets. In the Aegean Sea the Romano-Rhodian fleet at Samos, after being weakened by detaching the Pergamene ships to the Hellespont to support the land army which had arrived there, was in its turn attacked by that of Polyxenidas, who now numbered nine sail more than his opponents. On December 23 of the uncorrected calendar, according to the corrected calendar about the end of August, in 564, a battle took place at the promontory of Myonnesus between Teos and Colophon; the Romans broke through the line of the enemy, and totally surrounded the left wing, so that they took or sank 42 ships. An inscription in Saturnian verse over the temple of the Lares Permarini, which was built in the Campus Martius in memory of this victory, for many centuries thereafter proclaimed to the Romans how the fleet of the Asiatics had been defeated before the eyes of king Antiochus and of all his land army, and how the Romans thus "settled the mighty strife and subdued the kings." Thenceforth the enemy's ships no longer ventured to show themselves on the open sea, and made no further attempt to obstruct the crossing of the Roman land army.

Expedition to Asia

The conqueror of Zama had been selected at Rome to conduct the war on the Asiatic continent; he practically exercised the supreme command for the nominal commander-in-chief, his brother Lucius Scipio, whose intellect was insignificant, and who had no military capacity. The reserve hitherto stationed in Lower Italy was destined for Greece, the army of Glabrio for Asia: when it became known who was to command it, 5000 veterans from the Hannibalic war voluntarily enrolled, to fight once more under their beloved leader. In the Roman July, but according to the true time in March, the Scipios arrived at the army to commence the Asiatic campaign; but they were disagreeably surprised to find themselves instead involved, in the first instance, in an endless struggle with the desperate Aetolians. The senate,

finding that Flaminius pushed his boundless consideration for the Hellenes too far, had left the Aetolians to choose between paying an utterly exorbitant war contribution and unconditional surrender, and thus had driven them anew to arms; none could tell when this warfare among mountains and strongholds would come to an end. Scipio got rid of the inconvenient obstacle by concerting a six-months' armistice, and then entered on his march to Asia. As the one fleet of the enemy was only blockaded in the Aegean Sea, and the other, which was coming up from the south, might daily arrive there in spite of the squadron charged to intercept it, it seemed advisable to take the land route through Macedonia and Thrace and to cross the Hellespont. In that direction no real obstacles were to be anticipated; for Philip of Macedonia might be entirely depended on, Prusias king of Bithynia was in alliance with the Romans, and the Roman fleet could easily establish itself in the straits. The long and weary march along the coast of Macedonia and Thrace was accomplished without material loss; Philip made provision on the one hand for supplying their wants, on the other for their friendly reception by the Thracian barbarians. They had lost so much time however, partly with the Aetolians, partly on the march, that the army only reached the Thracian Chersonese about the time of the battle of Myonnesus. But the marvellous good fortune of Scipio now in Asia, as formerly in Spain and Africa, cleared his path of all difficulties.

Passage of the Hellespont by the Romans

On the news of the battle at Myonnesus Antiochus so completely lost his judgment, that in Europe he caused the strongly-garrisoned and well-provisioned fortress of Lysimachia to be evacuated by the garrison and by the inhabitants who were faithfully devoted to the restorer of their city, and withal even forgot to withdraw in like manner the garrisons or to destroy the rich magazines at Aenus and Maronea; and on the Asiatic coast he opposed not the slightest resistance to the landing of the Romans, but on the

contrary, while it was taking place, spent his time at Sardes in upbraiding destiny. It is scarcely doubtful that, had he but provided for the defence of Lysimachia down to the no longer distant close of the summer, and moved forward his great army to the Hellespont, Scipio would have been compelled to take up winter quarters on the European shore, in a position far from being, in a military or political point of view, secure.

While the Romans, after disembarking on the Asiatic shore, paused for some days to refresh themselves and to await their leader who was detained behind by religious duties, ambassadors from the great-king arrived in their camp to negotiate for peace. Antiochus offered half the expenses of the war, and the cession of his European possessions as well as of all the Greek cities in Asia Minor that had gone over to Rome; but Scipio demanded the whole costs of the war and the surrender of all Asia Minor. The former terms, he declared, might have been accepted, had the army still been before Lysimachia, or even on the European side of the Hellespont; but they did not suffice now, when the steed felt the bit and knew its rider. The attempts of the great-king to purchase peace from his antagonist after the Oriental manner by sums of money—he offered the half of his year's revenues!—failed as they deserved; the proud burgess, in return for the gratuitous restoration of his son who had fallen a captive, rewarded the great-king with the friendly advice to make peace on any terms. This was not in reality necessary: had the king possessed the resolution to prolong the war and to draw the enemy after him by retreating into the interior, a favourable issue was still by no means impossible. But Antiochus, irritated by the presumably intentional arrogance of his antagonist, and too indolent for any persevering and consistent warfare, hastened with the utmost eagerness to expose his unwieldy, but unequal, and undisciplined mass of an army to the shock of the Roman legions.

Battle of Magnesia

In the valley of the Hermus, near Magnesia at the foot of Mount Sipylus not far from Smyrna, the Roman troops fell in with the enemy late in the autumn of 564. The force of Antiochus numbered close on 80,000 men, of whom 12,000 were cavalry; the Romans—who had along with them about 5000 Achaeans, Pergamenes, and Macedonian volunteers —had not nearly half that number, but they were so sure of victory, that they did not even wait for the recovery of their general who had remained behind sick at Elaea; Gnaeus Domitius took the command in his stead. Antiochus, in order to be able even to place his immense mass of troops, formed two divisions. In the first were placed the mass of the light troops, the peltasts, bowmen, slingers, the mounted archers of Mysians, Dahae, and Elymaeans, the Arabs on their dromedaries, and the scythe-chariots. In the second division the heavy cavalry (the Cataphractae, a sort of cuirassiers) were stationed on the flanks; next to these, in the intermediate division, the Gallic and Cappadocian infantry; and in the very centre the phalanx armed after the Macedonian fashion, 16,000 strong, the flower of the army, which, however, had not room in the narrow space and had to be drawn up in double files 32 deep. In the space between the two divisions were placed 54 elephants, distributed between the bands of the phalanx and of the heavy cavalry. The Romans stationed but a few squadrons on the left wing, where the river gave protection; the mass of the cavalry and all the light armed were placed on the right, which was led by Eumenes; the legions stood in the centre. Eumenes began the battle by despatching his archers and slingers against the scythe-chariots with orders to shoot at the teams; in a short time not only were these thrown into disorder, but the camel-riders stationed next to them were also carried away, and even in the second division the left wing of heavy cavalry placed behind fell into confusion. Eumenes now threw himself with all the Roman cavalry, numbering 3000 horse, on the mercenary infantry, which was placed in the second division between the phalanx and the left wing of heavy cavalry, and, when these

gave way, the cuirassiers who had already fallen into disorder also fled. The phalanx, which had just allowed the light troops to pass through and was preparing to advance against the Roman legions, was hampered by the attack of the cavalry in flank, and compelled to stand still and to form front on both sides—a movement which the depth of its disposition favoured. Had the heavy Asiatic cavalry been at hand, the battle might have been restored; but the left wing was shattered, and the right, led by Antiochus in person, had driven before it the little division of Roman cavalry opposed to it, and had reached the Roman camp, which was with great difficulty defended from its attack. In this way the cavalry were at the decisive moment absent from the scene of action. The Romans were careful not to assail the phalanx with their legions, but sent against it the archers and slingers, not one of whose missiles failed to take effect on the densely-crowded mass. The phalanx nevertheless retired slowly and in good order, till the elephants stationed in the interstices became frightened and broke the ranks. Then the whole army dispersed in tumultuous flight; an attempt to hold the camp failed, and only increased the number of the dead and the prisoners. The estimate of the loss of Antiochus at 50,000 men is, considering the infinite confusion, not incredible; the legions of the Romans had never been engaged, and the victory, which gave them a third continent, cost them 24 horsemen and 300 foot soldiers. Asia Minor submitted; including even Ephesus, whence the admiral had hastily to withdraw his fleet, and Sardes the residence of the court.

Conclusion of Peace

Expedition against the Celts of Asia Minor

Regulation of the Affairs of Asia Minor

The king sued for peace and consented to the terms proposed by the Romans, which, as usual, were just the same as those offered before the battle and consequently included the cession of Asia Minor. Till they were

ratified, the army remained in Asia Minor at the expense of the king; which came to cost him not less than 3000 talents (730,000 pounds). Antiochus himself in his careless fashion soon consoled himself for the loss of half his kingdom; it was in keeping with his character, that he declared himself grateful to the Romans for saving him the trouble of governing too large an empire. But with the day of Magnesia Asia was erased from the list of great states; and never perhaps did a great power fall so rapidly, so thoroughly, and so ignominiously as the kingdom of the Seleucidae under this Antiochus the Great. He himself was soon afterwards (567) slain by the indignant inhabitants of Elymais at the head of the Persian gulf, on occasion of pillaging the temple of Bel, with the treasures of which he had sought to replenish his empty coffers.

The Roman government, after having achieved the victory, had to arrange the affairs of Asia Minor and of Greece. If the Roman rule was here to be erected on a firm foundation, it was by no means enough that Antiochus should have renounced the supremacy in the west of Asia Minor. The circumstances of the political situation there have been set forth above.(6) The Greek free cities on the Ionian and Aeolian coast, as well as the kingdom of Pergamus of a substantially similar nature, were certainly the natural pillars of the new Roman supreme power, which here too came forward essentially as protector of the Hellenes kindred in race. But the dynasts in the interior of Asia Minor and on the north coast of the Black Sea had hardly yielded for long any serious obedience to the kings of Asia, and the treaty with Antiochus alone gave to the Romans no power over the interior. It was indispensable to draw a certain line within which the Roman influence was henceforth to exercise control. Here the element of chief importance was the relation of the Asiatic Hellenes to the Celts who had been for a century settled there. These had formally apportioned among them the regions of Asia Minor, and each one of the three cantons raised its fixed tribute from the territory laid under contribution. Doubtless the

burgesses of Pergamus, under the vigorous guidance of their presidents who had thereby become hereditary princes, had rid themselves of the unworthy yoke; and the fair afterbloom of Hellenic art, which had recently emerged afresh from the soil, had grown out of these last Hellenic wars sustained by a national public spirit. But it was a vigorous counterblow, not a decisive success; again and again the Pergamenes had to defend with arms their urban peace against the raids of the wild hordes from the eastern mountains, and the great majority of the other Greek cities probably remained in their old state of dependence.(7)

If the protectorate of Rome over the Hellenes was to be in Asia more than a name, an end had to be put to this tributary obligation of their new clients; and, as the Roman policy at this time declined, much more even in Asia than on the Graeco-Macedonian peninsula, the possession of the country on its own behalf and the permanent occupation therewith connected, there was no course in fact left but to carry the arms of Rome up to the limit which was to be staked off for the domain of Rome's power, and effectively to inaugurate the new supremacy among the inhabitants of Asia Minor generally, and above all in the Celtic cantons.

This was done by the new Roman commander-in-chief, Gnaeus Manlius Volso, who relieved Lucius Scipio in Asia Minor. He was subjected to severe reproach on this score; the men in the senate who were averse to the new turn of policy failed to see either the aim, or the pretext, for such a war. There is no warrant for the former objection, as directed against this movement in particular; it was on the contrary, after the Roman state had once interfered in Hellenic affairs as it had done, a necessary consequence of this policy. Whether it was the right course for Rome to undertake the protectorate over the Hellenes collectively, may certainly be called in question; but regarded from the point of view which Flamininus and the majority led by him had now taken up, the overthrow of the Galatians was

in fact a duty of prudence as well as of honour. Better founded was the objection that there was not at the time a proper ground of war against them; for they had not been, strictly speaking, in alliance with Antiochus, but had only according to their wont allowed him to levy hired troops in their country. But on the other side there fell the decisive consideration, that the sending of a Roman military force to Asia could only be demanded of the Roman burgesses under circumstances altogether extraordinary, and, if once such an expedition was necessary, everything told in favour of carrying it out at once and with the victorious army that was now stationed in Asia. So, doubtless under the influence of Flamininus and of those who shared his views in the senate, the campaign into the interior of Asia Minor was undertaken in the spring of 565. The consul started from Ephesus, levied contributions from the towns and princes on the upper Maeander and in Pamphylia without measure, and then turned northwards against the Celts. Their western canton, the Tolistoagii, had retired with their belongings to Mount Olympus, and the middle canton, the Tectosages, to Mount Magaba, in the hope that they would be able there to defend themselves till the winter should compel the strangers to withdraw. But the missiles of the Roman slingers and archers—which so often turned the scale against the Celts unacquainted with such weapons, almost as in more recent times firearms have turned the scale against savage tribes—forced the heights, and the Celts succumbed in a battle, such as had often its parallels before and after on the Po and on the Seine, but here appears as singular as the whole phenomenon of this northern race emerging amidst the Greek and Phrygian nations. The number of the slain was at both places enormous, and still greater that of the captives. The survivors escaped over the Halys to the third Celtic canton of the Trocmi, which the consul did not attack. That river was the limit at which the leaders of Roman policy at that time had resolved to halt. Phrygia, Bithynia, and Paphlagonia were to become

dependent on Rome; the regions lying farther to the east were left to themselves.

The affairs of Asia Minor were regulated partly by the peace with Antiochus (565), partly by the ordinances of a Roman commission presided over by the consul Volso. Antiochus had to furnish hostages, one of whom was his younger son of the same name, and to pay a war- contribution—proportional in amount to the treasures of Asia—of 15,000 Euboic talents (3,600,000 pounds), a fifth of which was to be paid at once, and the remainder in twelve yearly instalments. He was called, moreover, to cede all the lands which he possessed in Europe and, in Asia Minor, all his possessions and claims of right to the north of the range of the Taurus and to the west of the mouth of the Cestrus between Aspendus and Perga in Pamphylia, so that he retained nothing in Asia Minor but eastern Pamphylia and Cilicia. His protectorate over its kingdoms and principalities of course ceased. Asia, or, as the kingdom of the Seleucids was thenceforth usually and more appropriately named, Syria, lost the right of waging aggressive wars against the western states, and in the event of a defensive war, of acquiring territory from them on the conclusion of peace; lost, moreover, the right of navigating the sea to the west of the mouth of the Calycadnus in Cilicia with vessels of war, except for the conveyance of envoys, hostages, or tribute; was further prevented from keeping more than ten decked vessels in all, except in the case of a defensive war, from taming war-elephants, and lastly from the levying of mercenaries in the western states, or receiving political refugees and deserters from them at court. The war vessels which he possessed beyond the prescribed number, the elephants, and the political refugees who had sought shelter with him, he delivered up. By way of compensation the great-king received the title of a friend of the Roman commonwealth. The state of Syria was thus by land and sea completely and for ever dislodged from the west; it is a significant indication of the feeble and loose organization of the kingdom of the Seleucidae, that it alone, of all

the great states conquered by Rome never after the first conquest desired a second appeal to the decision of arms.

Armenia

The two Armenias, hitherto at least nominally Asiatic satrapies, became transformed, if not exactly in pursuance with the Roman treaty of peace, yet under its influence into independent kingdoms; and their holders, Artaxias and Zariadris, became founders of new dynasties.

Cappadocia

Ariarathes, king of Cappadocia, whose land lay beyond the boundary laid down by the Romans for their protectorate, escaped with a money- fine of 600 talents (146,000 pounds); which was afterwards, on the intercession of his son-in-law Eumenes, abated to half that sum.

Bithynia

Prusias, king of Bithynia, retained his territory as it stood, and so did the Celts; but they were obliged to promise that they would no longer send armed bands beyond their bounds, and the disgraceful payments of tribute by the cities of Asia Minor came to an end. The Asiatic Greeks did not fail to repay the benefit—which was certainly felt as a general and permanent one—with golden chaplets and transcendental panegyrics.

The Free Greek Cities

In the western portion of Asia Minor the regulation of the territorial arrangements was not without difficulty, especially as the dynastic policy of Eumenes there came into collision with that of the Greek Hansa. At last an understanding was arrived at to the following effect. All the Greek cities, which were free and had joined the Romans on the day of the battle of

Magnesia, had their liberties confirmed, and all of them, excepting those previously tributary to Eumenes, were relieved from the payment of tribute to the different dynasts for the future. In this way the towns of Dardanus and Ilium, whose ancient affinity with the Romans was traced to the times of Aeneas, became free, along with Cyme, Smyrna, Clazomenae, Erythrae, Chios, Colophon, Miletus, and other names of old renown. Phocaea also, which in spite of its capitulation had been plundered by the soldiers of the Roman fleet—although it did not fall under the category designated in the treaty—received back by way of compensation its territory and its freedom. Most of the cities of the Graeco-Asiatic Hansa acquired additions of territory and other advantages. Rhodes of course received most consideration; it obtained Lycia exclusive of Telmissus, and the greater part of Caria south of the Maeander; besides, Antiochus guaranteed the property and the claims of the Rhodians within his kingdom, as well as the exemption from customs-dues which they had hitherto enjoyed.

Extension of the Kingdom of Pergamus

All the rest, forming by far the largest share of the spoil, fell to the Attalids, whose ancient fidelity to Rome, as well as the hardships endured by Eumenes in the war and his personal merit in connection with the issue of the decisive battle, were rewarded by Rome as no king ever rewarded his ally. Eumenes received, in Europe, the Chersonese with Lysimachia; in Asia—in addition to Mysia which he already possessed—the provinces of Phrygia on the Hellespont, Lydia with Ephesus and Sardes, the northern district of Caria as far as the Maeander with Tralles and Magnesia, Great Phrygia and Lycaonia along with a portion of Cilicia, the district of Milyas between Phrygia and Lycia, and, as a port on the southern sea, the Lycian town Telmissus. There was a dispute afterwards between Eumenes and Antiochus regarding Pamphylia, as to how far it lay on this side of or beyond the prescribed boundary, and accordingly belonged to the former or

to the latter. He further acquired the protectorate over, and the right of receiving tribute from, those Greek cities which did not receive absolute freedom; but it was stipulated in this case that the cities should retain their charters, and that the tribute should not be heightened. Moreover, Antiochus had to bind himself to pay to Eumenes the 350 talents (85,000 pounds) which he owed to his father Attalus, and likewise to pay a compensation of 127 talents (31,000 pounds) for arrears in the supplies of corn. Lastly, Eumenes obtained the royal forests and the elephants delivered up by Antiochus, but not the ships of war, which were burnt: the Romans tolerated no naval power by the side of their own. By these means the kingdom of the Attalids became in the east of Europe and Asia what Numidia was in Africa, a powerful state with an absolute constitution dependent on Rome, destined and able to keep in check both Macedonia and Syria without needing, except in extraordinary cases, Roman support. With this creation dictated by policy the Romans had as far as possible combined the liberation of the Asiatic Greeks, which was dictated by republican and national sympathy and by vanity. About the affairs of the more remote east beyond the Taurus and Halys they were firmly resolved to give themselves no concern. This is clearly shown by the terms of the peace with Antiochus, and still more decidedly by the peremptory refusal of the senate to guarantee to the town of Soli in Cilicia the freedom which the Rhodians requested for it. With equal fidelity they adhered to the fixed principle of acquiring no direct transmarine possessions. After the Roman fleet had made an expedition to Crete and had accomplished the release of the Romans sold thither into slavery, the fleet and land army left Asia towards the end of the summer of 566; on which occasion the land army, which again marched through Thrace, in consequence of the negligence of the general suffered greatly on the route from the attacks of the barbarians. The Romans brought nothing home from the east but honour and gold, both of which were already at this

period usually conjoined in the practical shape assumed by the address of thanks—the golden chaplet.

Settlement of Greece

Conflicts and Peace with the Aetolians

European Greece also had been agitated by this Asiatic war, and needed reorganization. The Aetolians, who had not yet learned to reconcile themselves to their insignificance, had, after the armistice concluded with Scipio in the spring of 564, rendered intercourse between Greece and Italy difficult and unsafe by means of their Cephallenian corsairs; and not only so, but even perhaps while the armistice yet lasted, they, deceived by false reports as to the state of things in Asia, had the folly to place Amynder once more on his Athamanian throne, and to carry on a desultory warfare with Philip in the districts occupied by him on the borders of Aetolia and Thessaly, in the course of which Philip suffered several discomfitures. After this, as a matter of course, Rome replied to their request for peace by the landing of the consul Marcus Fulvius Nobilior. He arrived among the legions in the spring of 565, and after fifteen days' siege gained possession of Ambracia by a capitulation honourable for the garrison; while simultaneously the Macedonians, Illyrians, Epirots, Acarnanians, and Achaeans fell upon the Aetolians. There was no such thing as resistance in the strict sense; after repeated entreaties of the Aetolians for peace the Romans at length desisted from the war, and granted conditions which must be termed reasonable when viewed with reference to such pitiful and malicious opponents. The Aetolians lost all cities and territories which were in the hands of their adversaries, more especially Ambracia which afterwards became free and independent in consequence of an intrigue concocted in Rome against Marcus Fulvius, and Oenia which was given to the Acarnanians: they likewise ceded Cephallenia. They lost the right of making peace and war, and were in that respect dependent on the foreign

relations of Rome. Lastly, they paid a large sum of money. Cephallenia opposed this treaty on its own account, and only submitted when Marcus Fulvius landed on the island. In fact, the inhabitants of Same, who feared that they would be dispossessed from their well-situated town by a Roman colony, revolted after their first submission and sustained a four months' siege; the town, however, was finally taken and the whole inhabitants were sold into slavery.

Macedonia

In this case also Rome adhered to the principle of confining herself to Italy and the Italian islands. She took no portion of the spoil for herself, except the two islands of Cephallenia and Zacynthus, which formed a desirable supplement to the possession of Corcyra and other naval stations in the Adriatic. The rest of the territorial gain went to the allies of Rome. But the two most important of these, Philip and the Achaeans, were by no means content with the share of the spoil granted to them. Philip felt himself aggrieved, and not without reason. He might safely say that the chief difficulties in the last war—difficulties which arose not from the character of the enemy, but from the distance and the uncertainty of the communications—had been overcome mainly by his loyal aid. The senate recognized this by remitting his arrears of tribute and sending back his hostages; but he did not receive those additions to his territory which he expected. He got the territory of the Magnetes, with Demetrias which he had taken from the Aetolians; besides, there practically remained in his hands the districts of Dolopia and Athamania and a part of Thessaly, from which also the Aetolians had been expelled by him. In Thrace the interior remained under Macedonian protection, but nothing was fixed as to the coast towns and the islands of Thasos and Lemnos which were -de facto- in Philip's hands, while the Chersonese was even expressly given to Eumenes; and it was not difficult to see that Eumenes received possessions in Europe,

simply that he might in case of need keep not only Asia but Macedonia in check. The exasperation of the proud and in many respects chivalrous king was natural; it was not chicane, however, but an unavoidable political necessity that induced the Romans to take this course. Macedonia suffered for having once been a power of the first rank, and for having waged war on equal terms with Rome; there was much better reason in her case than in that of Carthage for guarding against the revival of her old powerful position.

The Achaeans

It was otherwise with the Achaeans. They had, in the course of the war with Antiochus, gratified their long-cherished wish to bring the whole Peloponnesus into their confederacy; for first Sparta, and then, after the expulsion of the Asiatics from Greece, Elis and Messene had more or less reluctantly joined it. The Romans had allowed this to take place, and had even tolerated the intentional disregard of Rome which marked their proceedings. When Messene declared that she wished to submit to the Romans but not to enter the confederacy, and the latter thereupon employed force, Flamininus had not failed to remind the Achaeans that such separate arrangements as to the disposal of a part of the spoil were in themselves unjust, and were, in the relation in which the Achaeans stood to the Romans, more than unseemly; and yet in his very impolitic complaisance towards the Hellenes he had substantially done what the Achaeans willed. But the matter did not end there. The Achaeans, tormented by their dwarfish thirst for aggrandizement, would not relax their hold on the town of Pleuron in Aetolia which they had occupied during the war, but on the contrary made it an involuntary member of their confederacy; they bought Zacynthus from Amynder the lieutenant of the last possessor, and would gladly have acquired Aegina also. It was with reluctance that they gave up the former island to Rome, and they heard with great displeasure the good

advice of Flamininus that they should content themselves with their Peloponnesus.

The Achaean Patriots

The Achaeans believed it their duty to display the independence of their state all the more, the less they really had; they talked of the rights of war, and of the faithful aid of the Achaeans in the wars of the Romans; they asked the Roman envoys at the Achaean diet why Rome should concern herself about Messene when Achaia put no questions as to Capua; and the spirited patriot, who had thus spoken, was applauded and was sure of votes at the elections. All this would have been very right and very dignified, had it not been much more ridiculous. There was a profound justice and a still more profound melancholy in the fact, that Rome, however earnestly she endeavoured to establish the freedom and to earn the thanks of the Hellenes, yet gave them nothing but anarchy and reaped nothing but ingratitude. Undoubtedly very generous sentiments lay at the bottom of the Hellenic antipathies to the protecting power, and the personal bravery of some of the men who took the lead in the movement was unquestionable; but this Achaean patriotism remained not the less a folly and a genuine historical caricature. With all that ambition and all that national susceptibility the whole nation was, from the highest to the lowest, pervaded by the most thorough sense of impotence. Every one was constantly listening to learn the sentiments of Rome, the liberal man no less than the servile; they thanked heaven, when the dreaded decree was not issued; they were sulky, when the senate gave them to understand that they would do well to yield voluntarily in order that they might not need to be compelled; they did what they were obliged to do, if possible, in a way offensive to the Romans, "to save forms"; they reported, explained, postponed, evaded, and, when all this would no longer avail, yielded with a patriotic sigh. Their proceedings might have claimed indulgence at any rate, if not approval, had their leaders

been resolved to fight, and had they preferred the destruction of the nation to its bondage; but neither Philopoemen nor Lycortas thought of any such political suicide—they wished, if possible, to be free, but they wished above all to live. Besides all this, the dreaded intervention of Rome in the internal affairs of Greece was not the arbitrary act of the Romans, but was always invoked by the Greeks themselves, who, like boys, brought down on their own heads the rod which they feared. The reproach repeated -ad nauseam- by the erudite rabble in Hellenic and post-Hellenic times—that the Romans had been at pains to stir up internal discord in Greece—is one of the most foolish absurdities which philologues dealing in politics have ever invented. It was not the Romans that carried strife to Greece—which in truth would have been "carrying owls to Athens"—but the Greeks that carried their dissensions to Rome.

Quarrels between Achaeans and Spartans

The Achaeans in particular, who, in their eagerness to round their territory, wholly failed to see how much it would have been for their own good that Flamininus had not incorporated the towns of Aetolian sympathies with their league, acquired in Lacedaemon and Messene a very hydra of intestine strife. Members of these communities were incessantly at Rome, entreating and beseeching to be released from the odious connection; and amongst them, characteristically enough, were even those who were indebted to the Achaeans for their return to their native land. The Achaean league was incessantly occupied in the work of reformation and restoration at Sparta and Messene; the wildest refugees from these quarters determined the measures of the diet. Four years after the nominal admission of Sparta to the confederacy matters came even to open war and to an insanely thorough restoration, in which all the slaves on whom Nabis had conferred citizenship were once more sold into slavery, and a colonnade was built from the proceeds in the Achaean city of Megalopolis; the old state of

property in Sparta was re-established, the laws of Lycurgus were superseded by Achaean laws, and the walls were pulled down (566). At last the Roman senate was summoned by all parties to arbitrate on all these doings—an annoying task, which was the righteous punishment of the sentimental policy that the senate had pursued. Far from mixing itself up too much in these affairs, the senate not only bore the sarcasms of Achaean candour with exemplary composure, but even manifested a culpable indifference while the worst outrages were committed. There was cordial rejoicing in Achaia when, after that restoration, the news arrived from Rome that the senate had found fault with it, but had not annulled it. Nothing was done for the Lacedaemonians by Rome, except that the senate, shocked at the judicial murder of from sixty to eighty Spartans committed by the Achaeans, deprived the diet of criminal jurisdiction over the Spartans—truly a heinous interference with the internal affairs of an independent state! The Roman statesmen gave themselves as little concern as possible about this tempest in a nut-shell, as is best shown by the many complaints regarding the superficial, contradictory, and obscure decisions of the senate; in fact, how could its decisions be expected to be clear, when there were four parties from Sparta simultaneously speaking against each other at its bar? Add to this the personal impression, which most of these Peloponnesian statesmen produced in Rome; even Flamininus shook his head, when one of them showed him on the one day how to perform some dance, and on the next entertained him with affairs of state. Matters went so far, that the senate at last lost patience and informed the Peloponnesians that it would no longer listen to them, and that they might do what they chose (572). This was natural enough, but it was not right; situated as the Romans were, they were under a moral and political obligation earnestly and steadfastly to rectify this melancholy state of things. Callicrates the Achaean, who went to the senate in 575 to enlighten it as to the state of matters in the Peloponnesus and to demand a consistent and calm intervention, may have had somewhat

less worth as a man than his countryman Philopoemen who was the main founder of that patriotic policy; but he was in the right.

Death of Hannibal

Thus the protectorate of the Roman community now embraced all the states from the eastern to the western end of the Mediterranean. There nowhere existed a state that the Romans would have deemed it worth while to fear. But there still lived a man to whom Rome accorded this rare honour—the homeless Carthaginian, who had raised in arms against Rome first all the west and then all the east, and whose schemes perhaps had been only frustrated by infamous aristocratic policy in the former case, and by stupid court policy in the latter. Antiochus had been obliged to bind himself in the treaty of peace to deliver up Hannibal; but the latter had escaped, first to Crete, then to Bithynia,(8) and now lived at the court of Prusias king of Bithynia, employed in aiding the latter in his wars with Eumenes, and victorious as ever by sea and by land. It is affirmed that he was desirous of stirring up Prusias also to make war on Rome; a folly, which, as it is told, sounds very far from credible. It is more certain that, while the Roman senate deemed it beneath its dignity to have the old man hunted out in his last asylum—for the tradition which inculcates the senate appears to deserve no credit—Flamininus, whose restless vanity sought after new opportunities for great achievements, undertook on his own part to deliver Rome from Hannibal as he had delivered the Greeks from their chains, and, if not to wield—which was not diplomatic—at any rate to whet and to point, the dagger against the greatest man of his time. Prusias, the most pitiful among the pitiful princes of Asia, was delighted to grant the little favour which the Roman envoy in ambiguous terms requested; and, when Hannibal saw his house beset by assassins, he took poison. He had long been prepared to do so, adds a Roman, for he knew the Romans and the word of kings. The year of his death is uncertain; probably he died in the

latter half of the year 571, at the age of sixty-seven. When he was born, Rome was contending with doubtful success for the possession of Sicily; he had lived long enough to see the West wholly subdued, and to fight his own last battle with the Romans against the vessels of his native city which had itself become Roman; and he was constrained at last to remain a mere spectator, while Rome overpowered the East as the tempest overpowers the ship that has no one at the helm, and to feel that he alone was the pilot that could have weathered the storm. There was left to him no further hope to be disappointed, when he died; but he had honestly, through fifty years of struggle, kept the oath which he had sworn when a boy.

Death of Scipio

About the same time, probably in the same year, died also the man whom the Romans were wont to call his conqueror, Publius Scipio. On him fortune had lavished all the successes which she denied to his antagonist—successes which did belong to him, and successes which did not. He had added to the empire Spain, Africa, and Asia; and Rome, which he had found merely the first community of Italy, was at his death mistress of the civilized world. He himself had so many titles of victory, that some of them were made over to his brother and his cousin.⁽⁹⁾ And yet he too spent his last years in bitter vexation, and died when little more than fifty years of age in voluntary banishment, leaving orders to his relatives not to bury his remains in the city for which he had lived and in which his ancestors reposed. It is not exactly known what drove him from the city. The charges of corruption and embezzlement, which were directed against him and still more against his brother Lucius, were beyond doubt empty calumnies, which do not sufficiently explain such bitterness of feeling; although it is characteristic of the man, that instead of simply vindicating himself by means of his account-books, he tore them in pieces in presence of the people and of his accusers, and summoned the Romans to accompany him

to the temple of Jupiter and to celebrate the anniversary of his victory at Zama. The people left the accuser on the spot, and followed Scipio to the Capitol; but this was the last glorious day of the illustrious man. His proud spirit, his belief that he was different from, and better than, other men, his very decided family-policy, which in the person of his brother Lucius especially brought forward a clumsy man of straw as a hero, gave offence to many, and not without reason. While genuine pride protects the heart, arrogance lays it open to every blow and every sarcasm, and corrodes even an originally noble-minded spirit. It is throughout, moreover, the distinguishing characteristic of such natures as that of Scipio—strange mixtures of genuine gold and glittering tinsel—that they need the good fortune and the brilliance of youth in order to exercise their charm, and, when this charm begins to fade, it is the charmer himself that is most painfully conscious of the change.

Notes for Chapter IX

1. According to a recently discovered decree of the town of Lampsacus (-Mitth, des arch. Inst, in Athen-, vi. 95) the Lampsacenes after the defeat of Philip sent envoys to the Roman senate with the request that the town might be embraced in the treaty concluded between Rome and (Philip) the king (—*opos sumperilephthomen [en tais sunthekais] tais genomenais Pomaiois pros ton [basilea]*—), which the senate, at least according to the view of the petitioners, granted to them and referred them, as regarded other matters, to Flamininus and the ten envoys. From the latter they then obtain in Corinth a guarantee of their constitution and "letters to the kings." Flamininus also gives to them similar letters; of their contents we learn nothing more particular, than that in the decree the embassy is described as successful.

But if the senate and Flamininus had formally and positively guaranteed the autonomy and democracy of the Lampsacenes, the decree would hardly dwell so much at length on the courteous answers, which the Roman commanders, who had been appealed to on the way for their intercession with the senate, gave to the envoys.

Other remarkable points in this document are the "brotherhood" of the Lampsacenes and the Romans, certainly going back to the Trojan legend, and the mediation, invoked by the former with success, of the allies and friends of Rome, the Massiliots, who were connected with the Lampsacenes through their common mother-city Phocaea.

2. The definite testimony of Hieronymus, who places the betrothal of the Syrian princess Cleopatra with Ptolemy Epiphanes in 556, taken in connection with the hints in Liv. xxxiii. 40 and Appian. Syr. 3, and with the actual accomplishment of the marriage in 561, puts it beyond a doubt that the interference of the Romans in the affairs of Egypt was in this case formally uncalled for.

3. For this we have the testimony of Polybius (xxviii. i), which the sequel of the history of Judaea completely confirms; Eusebius (p. 117, -Mai-) is mistaken in making Philometor ruler of Syria. We certainly find that about 567 farmers of the Syrian taxes made their payments at Alexandria (Joseph, xii. 4, 7); but this doubtless took place without detriment to the rights of sovereignty, simply because the dowry of Cleopatra constituted a charge on those revenues; and from this very circumstance presumably arose the subsequent dispute.

4. II. VII. Submission of Lower Italy

5. III. VII. The Romans Maintain a Standing Army in Spain

6. III. VIII. The Celts of Asia Minor ff.

7. From the decree of Lampsacus mentioned at III. IX. Difficulties with Rome, it appears pretty certain that the Lampsacenes requested from the Massiliots not merely intercession at Rome, but also intercession with the Tolistoagii (so the Celts, elsewhere named Tolistobogi, are designated in this document and in the Pergamene inscription, C. J. Gr. 3536,—the oldest monuments which mention them). Accordingly the Lampsacenes were probably still about the time of the war with Philip tributary to this canton (comp. Liv. xxxviii. 16).

8. The story that he went to Armenia and at the request of king Artaxias built the town of Artaxata on the Araxes (Strabo, xi. p. 528; Plutarch, Luc. 31), is certainly a fiction; but it is a striking circumstance that Hannibal should have become mixed up, almost like Alexander, with Oriental fables.

9. Africanus, Asiagenus, Hispallus.

CHAPTER X

The Third Macedonian War

Dissatisfactions of Philip with Rome

Philip of Macedonia was greatly annoyed by the treatment which he met with from the Romans after the peace with Antiochus; and the subsequent course of events was not fitted to appease his wrath. His neighbours in Greece and Thrace, mostly communities that had once trembled at the Macedonian name not less than now they trembled at the Roman, made it their business, as was natural, to retaliate on the fallen great power for all the injuries which since the times of Philip the Second they had received at the hands of Macedonia. The empty arrogance and venal anti-Macedonian patriotism of the Hellenes of this period found vent at the diets of the different confederacies and in ceaseless complaints addressed to the Roman senate. Philip had been allowed by the Romans to retain what he had taken from the Aetolians; but in Thessaly the confederacy of the Magnetes alone had formally joined the Aetolians, while those towns which Philip had wrested from the Aetolians in other two of the Thessalian confederacies—the Thessalian in its narrower sense, and the Perrhaebian—were demanded back by their leagues on the ground that Philip had only liberated these towns, not conquered them. The Athamahes too believed that they might crave their freedom; and Eumenes demanded the maritime cities which Antiochus had possessed in Thrace proper, especially Aenus and Maronea,

although in the peace with Antiochus the Thracian Chersonese alone had been expressly promised to him. All these complaints and numerous minor ones from all the neighbours of Philip as to his supporting king Prusias against Eumenes, as to competition in trade, as to the violation of contracts and the seizing of cattle, were poured forth at Rome. The king of Macedonia had to submit to be accused by the sovereign rabble before the Roman senate, and to accept justice or injustice as the senate chose; he was compelled to witness judgment constantly going against him; he had with deep chagrin to withdraw his garrisons from the Thracian coast and from the Thessalian and Perrhaebian towns, and courteously to receive the Roman commissioners, who came to see whether everything required had been carried out in accordance with instructions. The Romans were not so indignant against Philip as they had been against Carthage; in fact, they were in many respects even favourably disposed to the Macedonian ruler; there was not in his case so reckless a violation of forms as in that of Libya; but the situation of Macedonia was at bottom substantially the same as that of Carthage. Philip, however, was by no means the man to submit to this infliction with Phoenician patience. Passionate as he was, he had after his defeat been more indignant with the faithless ally than with the honourable antagonist; and, long accustomed to pursue a policy not Macedonian but personal, he had seen in the war with Antiochus simply an excellent opportunity of instantaneously revenging himself on the ally who had disgracefully deserted and betrayed him. This object he had attained; but the Romans, who saw very clearly that the Macedonian was influenced not by friendship for Rome, but by enmity to Antiochus, and who moreover were by no means in the habit of regulating their policy by such feelings of liking and disliking, had carefully abstained from bestowing any material advantages on Philip, and had preferred to confer their favours on the Attalids. From their first elevation the Attalids had been at vehement feud with Macedonia, and were politically and personally the objects of Philip's

bitterest hatred; of all the eastern powers they had contributed most to maim Macedonia and Syria, and to extend the protectorate of Rome in the east; and in the last war, when Philip had voluntarily and loyally embraced the side of Rome, they had been obliged to take the same side for the sake of their very existence. The Romans had made use of these Attalids for the purpose of reconstructing in all essential points the kingdom of Lysimachus—the destruction of which had been the most important achievement of the Macedonian rulers after Alexander—and of placing alongside of Macedonia a state, which was its equal in point of power and was at the same time a client of Rome. In the special circumstances a wise sovereign, devoted to the interests of his people, would perhaps have resolved not to resume the unequal struggle with Rome; but Philip, in whose character the sense of honour was the most powerful of all noble, and the thirst for revenge the most potent of all ignoble, motives, was deaf to the voice of timidity or of resignation, and nourished in the depths of his heart a determination once more to try the hazard of the game. When he received the report of fresh invectives, such as were wont to be launched against Macedonia at the Thessalian diets, he replied with the line of Theocritus, that his last sun had not yet set.(1)

The Latter Years of Philip

Philip displayed in the preparation and the concealment of his designs a calmness, earnestness, and persistency which, had he shown them in better times, would perhaps have given a different turn to the destinies of the world. In particular the submissiveness towards Rome, by which he purchased the time indispensable for his objects, formed a severe trial for the fierce and haughty man; nevertheless he courageously endured it, although his subjects and the innocent occasions of the quarrel, such as the unfortunate Maronea, paid severely for the suppression of his resentment. It seemed as if war could not but break out as early as 571; but by Philip's

instructions, his younger son, Demetrius, effected a reconciliation between his father and Rome, where he had lived some years as a hostage and was a great favourite. The senate, and particularly Flamininus who managed Greek affairs, sought to form in Macedonia a Roman party that would be able to paralyze the exertions of Philip, which of course were not unknown to the Romans; and had selected as its head, and perhaps as the future king of Macedonia, the younger prince who was passionately attached to Rome. With this purpose in view they gave it clearly to be understood that the senate forgave the father for the sake of the son; the natural effect of which was, that dissensions arose in the royal household itself, and that the king's elder son, Perseus, who, although the offspring of an unequal marriage, was destined by his father for the succession, sought to ruin his brother as his future rival. It does not appear that Demetrius was a party to the Roman intrigues; it was only when he was falsely suspected that he was forced to become guilty, and even then he intended, apparently, nothing more than flight to Rome. But Perseus took care that his father should be duly informed of this design; an intercepted letter from Flamininus to Demetrius did the rest, and induced the father to give orders that his son should be put to death. Philip learned, when it was too late, the intrigues which Perseus had concocted; and death overtook him, as he was meditating the punishment of the fratricide and his exclusion from the throne. He died in 575 at Demetrias, in his fifty-ninth year. He left behind him a shattered kingdom and a distracted household, and with a broken heart confessed to himself that all his toils and all his crimes had been in vain.

King Perseus

His son Perseus then entered on the government, without encountering opposition either in Macedonia or in the Roman senate. He was a man of stately aspect, expert in all bodily exercises, reared in the camp and accustomed to command, imperious like his father and unscrupulous in the

choice of his means. Wine and women, which too often led Philip to forget the duties of government, had no charm for Perseus; he was as steady and persevering as his father had been fickle and impulsive. Philip, a king while still a boy, and attended by good fortune during the first twenty years of his reign, had been spoiled and ruined by destiny; Perseus ascended the throne in his thirty-first year, and, as he had while yet a boy borne a part in the unhappy war with Rome and had grown up under the pressure of humiliation and under the idea that a revival of the state was at hand, so he inherited along with the kingdom of his father his troubles, resentments, and hopes. In fact he entered with the utmost determination on the continuance of his father's work, and prepared more zealously than ever for war against Rome; he was stimulated, moreover, by the reflection, that he was by no means indebted to the goodwill of the Romans for his wearing the diadem of Macedonia. The proud Macedonian nation looked with pride upon the prince whom they had been accustomed to see marching and fighting at the head of their youth; his countrymen, and many Hellenes of every variety of lineage, conceived that in him they had found the right general for the impending war of liberation. But he was not what he seemed. He wanted Philip's geniality and Philip's elasticity—those truly royal qualities, which success obscured and tarnished, but which under the purifying power of adversity recovered their lustre. Philip was self-indulgent, and allowed things to take their course; but, when there was occasion, he found within himself the vigour necessary for rapid and earnest action. Perseus devised comprehensive and subtle plans, and prosecuted them with unwearied perseverance; but, when the moment arrived for action and his plans and preparations confronted him in living reality, he was frightened at his own work. As is the wont of narrow minds, the means became to him the end; he heaped up treasures on treasures for war with the Romans, and, when the Romans were in the land, he was unable to part with his golden pieces. It is a significant indication of character that after defeat the father first hastened

to destroy the papers in his cabinet that might compromise him, whereas the son took his treasure-chests and embarked. In ordinary times he might have made an average king, as good as or better than many another; but he was not adapted for the conduct of an enterprise, which was from the first a hopeless one unless some extraordinary man should become the soul of the movement.

Resources of Macedonia

The power of Macedonia was far from inconsiderable. The devotion of the land to the house of the Antigonids was unimpaired; in this one respect the national feeling was not paralyzed by the dissensions of political parties. A monarchical constitution has the great advantage, that every change of sovereign supersedes old resentments and quarrels and introduces a new era of other men and fresh hopes. The king had judiciously availed himself of this, and had begun his reign with a general amnesty, with the recall of fugitive bankrupts, and with the remission of arrears of taxes. The hateful severity of the father thus not only yielded benefit, but conciliated affection, to the son. Twenty-six years of peace had partly of themselves filled up the blanks in the Macedonian population, partly given opportunity to the government to take serious steps towards rectifying this which was really the weak point of the land. Philip urged the Macedonians to marry and raise up children; he occupied the coast towns, whose inhabitants he carried into the interior, with Thracian colonists of trusty valour and fidelity. He formed a barrier on the north to check once for all the desolating incursions of the Dardani, by converting the space intervening between the Macedonian frontier and the barbarian territory into a desert, and by founding new towns in the northern provinces. In short he took step by step the same course in Macedonia, as Augustus afterwards took when he laid afresh the foundations of the Roman empire. The army was numerous—30,000 men without reckoning contingents and hired troops—and the younger men were

well exercised in the constant border warfare with the Thracian barbarians. It is strange that Philip did not try, like Hannibal, to organize his army after the Roman fashion; but we can understand it when we recollect the value which the Macedonians set upon their phalanx, often conquered, but still withal believed to be invincible. Through the new sources of revenue which Philip had created in mines, customs, and tenths, and through the flourishing state of agriculture and commerce, he had succeeded in replenishing his treasury, granaries, and arsenals. When the war began, there was in the Macedonian treasury money enough to pay the existing army and 10,000 hired troops for ten years, and there were in the public magazines stores of grain for as long a period (18,000,000 medimni or 27,000,000 bushels), and arms for an army of three times the strength of the existing one. In fact, Macedonia had become a very different state from what it was when surprised by the outbreak of the second war with Rome. The power of the kingdom was in all respects at least doubled: with a power in every point of view far inferior Hannibal had been able to shake Rome to its foundations.

Attempted Coalition against Rome

Its external relations were not in so favourable a position. The nature of the case required that Macedonia should now take up the plans of Hannibal and Antiochus, and should try to place herself at the head of a coalition of all oppressed states against the supremacy of Rome; and certainly threads of intrigue ramified in all directions from the court of Pydna. But their success was slight. It was indeed asserted that the allegiance of the Italians was wavering; but neither friend nor foe could fail to see that an immediate resumption of the Samnite wars was not at all probable. The nocturnal conferences likewise between Macedonian deputies and the Carthaginian senate, which Massinissa denounced at Rome, could occasion no alarm to serious and sagacious men, even if they were not, as is very possible, an

utter fiction. The Macedonian court sought to attach the kings of Syria and Bithynia to its interests by intermarriages; but nothing further came of it, except that the immortal simplicity of the diplomacy which seeks to gain political ends by matrimonial means once more exposed itself to derision. Eumenes, whom it would have been ridiculous to attempt to gain, the agents of Perseus would have gladly put out of the way: he was to have been murdered at Delphi on his way homeward from Rome, where he had been active against Macedonia; but the pretty project miscarried.

Bastarnae
Genthius

Of greater moment were the efforts made to stir up the northern barbarians and the Hellenes to rebellion against Rome. Philip had conceived the project of crushing the old enemies of Macedonia, the Dardani in what is now Servia, by means of another still more barbarous horde of Germanic descent brought from the left bank of the Danube, the Bastarnae, and of then marching in person with these and with the whole avalanche of peoples thus set in motion by the land- route to Italy and invading Lombardy, the Alpine passes leading to which he had already sent spies to reconnoitre—a grand project, worthy of Hannibal, and doubtless immediately suggested by Hannibal's passage of the Alps. It is more than probable that this gave occasion to the founding of the Roman fortress of Aquileia,(2) which was formed towards the end of the reign of Philip (573), and did not harmonize with the system followed elsewhere by the Romans in the establishment of fortresses in Italy. The plan, however, was thwarted by the desperate resistance of the Dardani and of the adjoining tribes concerned; the Bastarnae were obliged to retreat, and the whole horde were drowned in returning home by the giving way of the ice on the Danube. The king now sought at least to extend his clientship among the chieftains of the Illyrian land, the modern Dalmatia and northern Albania. One of these who

faithfully adhered to Rome, Arthetaurus, perished, not without the cognizance of Perseus, by the hand of an assassin. The most considerable of the whole, Genthius the son and heir of Pleuratus, was, like his father, nominally in alliance with Rome; but the ambassadors of Issa, a Greek town on one of the Dalmatian islands, informed the senate, that Perseus had a secret understanding with the young, weak, and drunken prince, and that the envoys of Genthius served as spies for Perseus in Rome.

Cotys

In the regions on the east of Macedonia towards the lower Danube the most powerful of the Thracian chieftains, the brave and sagacious Cotys, prince of the Odrysians and ruler of all eastern Thrace from the Macedonian frontier on the Hebrus (Maritza) down to the fringe of coast covered with Greek towns, was in the closest alliance with Perseus. Of the other minor chiefs who in that quarter took part with Rome, one, Abrupolis prince of the Sagaei, was, in consequence of a predatory expedition directed against Amphipolis on the Strymon, defeated by Perseus and driven out of the country. From these regions Philip had drawn numerous colonists, and mercenaries were to be had there at any time and in any number.

Greek National Party

Among the unhappy nation of the Hellenes Philip and Perseus had, long before declaring war against Rome carried on a lively double system of proselytizing, attempting to gain over to the side of Macedonia on the one hand the national, and on the other—if we may be permitted the expression—the communistic, party. As a matter of course, the whole national party among the Asiatic as well as the European Greeks was now at heart Macedonian; not on account of isolated unrighteous acts on the part of the Roman deliverers, but because the restoration of Hellenic nationality by a foreign power involved a contradiction in terms, and now, when it was in

truth too late, every one perceived that the most detestable form of Macedonian rule was less fraught with evil for Greece than a free constitution springing from the noblest intentions of honourable foreigners. That the most able and upright men throughout Greece should be opposed to Rome was to be expected; the venal aristocracy alone was favourable to the Romans, and here and there an isolated man of worth, who, unlike the great majority, was under no delusion as to the circumstances and the future of the nation. This was most painfully felt by Eumenes of Pergamus, the main upholder of that extraneous freedom among the Greeks. In vain he treated the cities subject to him with every sort of consideration; in vain he sued for the favour of the communities and diets by fair-sounding words and still better-sounding gold; he had to learn that his presents were declined, and that all the statues that had formerly been erected to him were broken in pieces and the honorary tablets were melted down, in accordance with a decree of the diet, simultaneously throughout the Peloponnesus (584). The name of Perseus was on all lips; even the states that formerly were most decidedly anti-Macedonian, such as the Achaeans, deliberated as to the cancelling of the laws directed against Macedonia; Byzantium, although situated within the kingdom of Pergamus, sought and obtained protection and a garrison against the Thracians not from Eumenes, but from Perseus, and in like manner Lampsacus on the Hellespont joined the Macedonian: the powerful and prudent Rhodians escorted the Syrian bride of king Perseus from Antioch with their whole magnificent war-fleet—for the Syrian war-vessels were not allowed to appear in the Aegean—and returned home highly honoured and furnished with rich presents, more especially with wood for shipbuilding; commissioners from the Asiatic cities, and consequently subjects of Eumenes, held secret conferences with Macedonian deputies in Samothrace. That sending of the Rhodian war-fleet had at least the aspect of a demonstration; and such, certainly, was the object of king Perseus, when he exhibited himself and all his army before

the eyes of the Hellenes under pretext of performing a religious ceremony at Delphi. That the king should appeal to the support of this national partisanship in the impending war, was only natural. But it was wrong in him to take advantage of the fearful economic disorganization of Greece for the purpose of attaching to Macedonia all those who desired a revolution in matters of property and of debt. It is difficult to form any adequate idea of the unparalleled extent to which the commonwealths as well as individuals in European Greece—excepting the Peloponnesus, which was in a somewhat better position in this respect—were involved in debt. Instances occurred of one city attacking and pillaging another merely to get money—the Athenians, for example, thus attacked Oropus—and among the Aetolians, Perrhaebians, and Thessalians formal battles took place between those that had property and those that had none. Under such circumstances the worst outrages were perpetrated as a matter of course; among the Aetolians, for instance, a general amnesty was proclaimed and a new public peace was made up solely for the purpose of entrapping and putting to death a number of emigrants. The Romans attempted to mediate; but their envoys returned without success, and announced that both parties were equally bad and that their animosities were not to be restrained. In this case there was, in fact, no longer other help than the officer and the executioner; sentimental Hellenism began to be as repulsive as from the first it had been ridiculous. Yet king Perseus sought to gain the support of this party, if it deserve to be called such—of people who had nothing, and least of all an honourable name, to lose—and not only issued edicts in favour of Macedonian bankrupts, but also caused placards to be put up at Larisa, Delphi, and Delos, which summoned all Greeks that were exiled on account of political or other offences or on account of their debts to come to Macedonia and to look for full restitution of their former honours and estates. As may easily be supposed, they came; the social revolution smouldering throughout northern Greece now broke out into open flame,

and the national-social party there sent to Perseus for help. If Hellenic nationality was to be saved only by such means, the question might well be asked, with all respect for Sophocles and Phidias, whether the object was worth the cost.

Rupture with Perseus

The senate saw that it had delayed too long already, and that it was time to put an end to such proceedings. The expulsion of the Thracian chieftain Abrupolis who was in alliance with the Romans, and the alliances of Macedonia with the Byzantines, Aetolians, and part of the Boeotian cities, were equally violations of the peace of 557, and sufficed for the official war-manifesto: the real ground of war was that Macedonia was seeking to convert her formal sovereignty into a real one, and to supplant Rome in the protectorate of the Hellenes. As early as 581 the Roman envoys at the Achaean diet stated pretty plainly, that an alliance with Perseus was equivalent to casting off the alliance of Rome. In 582 king Eumenes came in person to Rome with a long list of grievances and laid open to the senate the whole situation of affairs; upon which the senate unexpectedly in a secret sitting resolved on an immediate declaration of war, and furnished the landing-places in Epirus with garrisons. For the sake of form an embassy was sent to Macedonia, but its message was of such a nature that Perseus, perceiving that he could not recede, replied that he was ready to conclude with Rome a new alliance on really equal terms, but that he looked upon the treaty of 557 as cancelled; and he bade the envoys leave the kingdom within three days. Thus war was practically declared.

This was in the autumn of 582. Perseus, had he wished, might have occupied all Greece and brought the Macedonian party everywhere to the helm, and he might perhaps have crushed the Roman division of 5000 men stationed under Gnaeus Sicinius at Apollonia and have disputed the landing

of the Romans. But the king, who already began to tremble at the serious aspect of affairs, entered into discussions with his guest-friend the consular Quintus Marcius Philippus, as to the frivolousness of the Roman declaration of war, and allowed himself to be thereby induced to postpone the attack and once more to make an effort for peace with Rome: to which the senate, as might have been expected, only replied by the dismissal of all Macedonians from Italy and the embarkation of the legions. Senators of the older school no doubt censured the "new wisdom" of their colleague, and his un-Roman artifice; but the object was gained and the winter passed away without any movement on the part of Perseus. The Roman diplomatists made all the more zealous use of the interval to deprive Perseus of any support in Greece. They were sure of the Achaeans. Even the patriotic party among them—who had neither agreed with those social movements, nor had soared higher than the longing after a prudent neutrality—had no idea of throwing themselves into the arms of Perseus; and, besides, the opposition party there had now been brought by Roman influence to the helm, and attached itself absolutely to Rome. The Aetolian league had doubtless asked aid from Perseus in its internal troubles; but the new strategus, Lyciscus, chosen under the eyes of the Roman ambassadors, was more of a Roman partisan than the Romans themselves. Among the Thessalians also the Roman party retained the ascendancy. Even the Boeotians, old partisans as they were of Macedonia, and sunk in the utmost financial disorder, had not in their collective capacity declared openly for Perseus; nevertheless at least three of their cities, Thisbae, Haliartus and Coronea, had of their own accord entered into engagements with him. When on the complaint of the Roman envoy the government of the Boeotian confederacy communicated to him the position of things, he declared that it would best appear which cities adhered to Rome, and which did not, if they would severally pronounce their decision in his presence; and thereupon the Boeotian confederacy fell at once to pieces. It is not true

that the great structure of Epaminondas was destroyed by the Romans; it actually collapsed before they touched it, and thus indeed became the prelude to the dissolution of the other still more firmly consolidated leagues of Greek cities.(3) With the forces of the Boeotian towns friendly to Rome the Roman envoy Publius Lentulus laid siege to Haliartus, even before the Roman fleet appeared in the Aegean.

Preparations for War

Chalcis was occupied with Achaean, and the province of Orestis with Epirot, forces: the fortresses of the Dassaretae and Illyrians on the west frontier of Macedonia were occupied by the troops of Gnaeus Sicinius; and as soon as the navigation was resumed, Larisa received a garrison of 2000 men. Perseus during all this remained inactive and had not a foot's breadth of land beyond his own territory, when in the spring, or according to the official calendar in June, of 583, the Roman legions landed on the west coast. It is doubtful whether Perseus would have found allies of any mark, even had he shown as much energy as he displayed remissness; but, as circumstances stood, he remained of course completely isolated, and those prolonged attempts at proselytism led, for the time at least, to no result. Carthage, Genthius of Illyria, Rhodes and the free cities of Asia Minor, and even Byzantium hitherto so very friendly with Perseus, offered to the Romans vessels of war; which these, however, declined. Eumenes put his land army and his ships on a war footing. Ariarathes king of Cappadocia sent hostages, unsolicited, to Rome. The brother-in-law of Perseus, Prusias II. king of Bithynia, remained neutral. No one stirred in all Greece. Antiochus IV. king of Syria, designated in court style "the god, the brilliant bringer of victory," to distinguish him from his father the "Great," bestirred himself, but only to wrest the Syrian coast during this war from the entirely impotent Egypt.

Beginning of the War

But, though Perseus stood almost alone, he was no contemptible antagonist. His army numbered 43,000 men; of these 21,000 were phalangites, and 4000 Macedonian and Thracian cavalry; the rest were chiefly mercenaries. The whole force of the Romans in Greece amounted to between 30,000 and 40,000 Italian troops, besides more than 10,000 men belonging to Numidian, Ligurian, Greek, Cretan, and especially Pergamene contingents. To these was added the fleet, which numbered only 40 decked vessels, as there was no fleet of the enemy to oppose it—Perseus, who had been prohibited from building ships of war by the treaty with Rome, was only now erecting docks at Thessalonica—but it had on board 10,000 troops, as it was destined chiefly to co-operate in sieges. The fleet was commanded by Gaius Lucretius, the land army by the consul Publius Licinius Crassus.

The Romans Invade Thessaly

The consul left a strong division in Illyria to harass Macedonia from the west, while with the main force he started, as usual, from Apollonia for Thessaly. Perseus did not think of disturbing their arduous march, but contented himself with advancing into Perrhaebia and occupying the nearest fortresses. He awaited the enemy at Ossa, and not far from Larisa the first conflict took place between the cavalry and light troops on both sides. The Romans were decidedly beaten. Cotys with the Thracian horse had defeated and broken the Italian, and Perseus with his Macedonian horse the Greek, cavalry; the Romans had 2000 foot and 200 horsemen killed, and 600 horsemen made prisoners, and had to deem themselves fortunate in being allowed to cross the Peneius without hindrance. Perseus employed the victory to ask peace on the same terms which Philip had obtained: he was ready even to pay the same sum. The Romans refused his request: they

never concluded peace after a defeat, and in this case the conclusion of peace would certainly have involved as a consequence the loss of Greece.

Their Lax and Unsuccessful Management of the War

The wretched Roman commander, however, knew not how or where to attack; the army marched to and fro in Thessaly, without accomplishing anything of importance. Perseus might have assumed the offensive; he saw that the Romans were badly led and dilatory; the news had passed like wildfire through Greece, that the Greek army had been brilliantly victorious in the first engagement; a second victory might lead to a general rising of the patriot party, and, by commencing a guerilla warfare, might produce incalculable results. But Perseus, while a good soldier, was not a general like his father; he had made his preparations for a defensive war, and, when things took a different turn, he felt himself as it were paralyzed. He made an unimportant success, which the Romans obtained in a second cavalry combai near Phalanna, a pretext for reverting, as is the habit of narrow and obstinate minds, to his first plan and evacuating Thessaly. This was of course equivalent to renouncing all idea of a Hellenic insurrection: what might have been attained by a different course was shown by the fact that, notwithstanding what had occurred, the Epirots changed sides. Thenceforth nothing serious was accomplished on either side. Perseus subdued king Genthius, chastised the Dardani, and, by means of Cotys, expelled from Thrace the Thracians friendly to Rome and the Pergamene troops. On the other hand the western Roman army took some Illyrian towns, and the consul busied himself in clearing Thessaly of the Macedonian garrisons and making sure of the turbulent Aetolians and Acarnanians by occupying Ambracia. But the heroic courage of the Romans was most severely felt by the unfortunate Boeotian towns which took part with Perseus; the inhabitants as well of Thisbae, which surrendered without resistance as soon as the Roman admiral Gaius Lucretius appeared before the city, as of

Haliartus, which closed its gates against him and had to be taken by storm, were sold by him into slavery; Corcnea was treated in the same manner by the consul Crassus in spite even of its capitulation. Never had a Roman army exhibited such wretched discipline as the force under these commanders. They had so disorganized the army that, even in the next campaign of 584, the new consul Aulus Hostilius could not think of undertaking anything serious, especially as the new admiral Lucius Hortensius showed himself to be as incapable and unprincipled as his predecessor. The fleet visited the towns on the Thracian coast without result. The western army under Appius Claudius, whose headquarters were at Lychnidus in the territory of the Dassaretae, sustained one defeat after another: after an expedition to Macedonia had been utterly unsuccessful, the king in turn towards the beginning of winter assumed the aggressive with the troops which were no longer needed on the south frontier in consequence of the deep snow blocking up all the passes, took from Appius numerous townships and a multitude of prisoners, and entered into connections with king Genthius; he was able in fact to attempt an invasion of Aetolia, while Appius allowed himself to be once more defeated in Epirus by the garrison of a fortress which he had vainly besieged. The Roman main army made two attempts to penetrate into Macedonia: first, over the Cambunian mountains, and then through the Thessalian passes; but they were negligently planned, and both were repulsed by Perseus.

Abuses in the Army

The consul employed himself chiefly in the reorganization of the army — a work which was above all things needful, but which required a sterner man and an officer of greater mark. Discharges and furloughs might be bought, and therefore the divisions were never up to their full numbers; the men were put into quarters in summer, and, as the officers plundered on a large, the common soldiers plundered on a small, scale. Friendly peoples

were subjected to the most shameful suspicions: for instance, the blame of the disgraceful defeat at Larisa was imputed to the pretended treachery of the Aetolian cavalry, and, what was hitherto unprecedented, its officers were sent to be criminally tried at Rome; and the Molossians in Epirus were forced by false suspicions into actual revolt. The allied states had war-contributions imposed upon them as if they had been conquered, and if they appealed to the Roman senate, their citizens were executed or sold into slavery: this was done, for instance, at Abdera, and similar outrages were committed at Chalcis. The senate interfered very earnestly:(4) it enjoined the liberation of the unfortunate Coroneans and Abderites, and forbade the Roman magistrates to ask contributions from the allies without its leave. Gaius Lucretius was unanimously condemned by the burgesses. But such steps could not alter the fact, that the military result of these first two campaigns had been null, while the political result had been a foul stain on the Romans, whose extraordinary successes in the east were based in no small degree on their reputation for moral purity and solidity as compared with the scandals of Hellenic administration. Had Philip commanded instead of Perseus, the war would presumably have begun with the destruction of the Roman army and the defection of most of the Hellenes; but Rome was fortunate enough to be constantly outstripped in blunders by her antagonists. Perseus was content with entrenching himself in Macedonia—which towards the south and west is a true mountain- fortress—as in a beleaguered town.

Marcus Enters Macedonia through the Pass of Tempe The Armies on the Elpius

The third commander-in-chief also, whom Rome sent to Macedonia in 585, Quintus Marcus Philippus, that already-mentioned upright guest-friend of the king, was not at all equal to his far from easy task. He was ambitious and enterprising, but a bad officer. His hazardous venture of

crossing Olympus by the pass of Lapathus westward of Tempe, leaving behind one division to face the garrison of the pass, and making his way with his main force through impracticable denies to Heracleum, is not excused by the fact of its success. Not only might a handful of resolute men have blocked the route, in which case retreat was out of the question; but even after the passage, when he stood with the Macedonian main force in front and the strongly-fortified mountain- fortresses of Tempe and Lapathus behind him, wedged into a narrow plain on the shore and without supplies or the possibility of foraging for them, his position was no less desperate than when, in his first consulate, he had allowed himself to be similarly surrounded in the Ligurian defiles which thenceforth bore his name. But as an accident saved him then, so the incapacity of Perseus saved him now. As if he could not comprehend the idea of defending himself against the Romans otherwise than by blocking the passes, he strangely gave himself over as lost as soon as he saw the Romans on the Macedonian side of them, fled in all haste to Pydna, and ordered his ships to be burnt and his treasures to be sunk. But even this voluntary retreat of the Macedonian army did not rescue the consul from his painful position. He advanced indeed without hindrance, but was obliged after four days' march to turn back for want of provisions; and, when the king came to his senses and returned in all haste to resume the position which he had abandoned, the Roman army would have been in great danger, had not the impregnable Tempe surrendered at the right moment and handed over its rich stores to the enemy. The communication with the south was by this means secured to the Roman army; but Perseus had strongly barricaded himself in his former well-chosen position on the bank of the little river Elpius, and there checked the farther advance of the Romans. So the Roman army remained, during the rest of the summer and the winter, hemmed in in the farthest corner of Thessaly; and, while the crossing of the passes was certainly a success and the first substantial one in the war, it was due not to the ability of the

Roman, but to the blundering of the Macedonian, general. The Roman fleet in vain attempted the capture of Demetrias, and performed no exploit whatever. The light ships of Perseus boldly cruised between the Cyclades, protected the corn-vessels destined for Macedonia, and attacked the transports of the enemy. With the western army matters were still worse: Appius Claudius could do nothing with his weakened division, and the contingent which he asked from Achaia was prevented from coming to him by the jealousy of the consul. Moreover, Genthius had allowed himself to be bribed by Perseus with the promise of a great sum of money to break with Rome, and to imprison the Roman envoys; whereupon the frugal king deemed it superfluous to pay the money which he had promised, since Genthius was now forsooth compelled, independently of it, to substitute an attitude of decided hostility to Rome for the ambiguous position which he had hitherto maintained. Accordingly the Romans had a further petty war by the side of the great one, which had already lasted three years. In fact had Perseus been able to part with his money, he might easily have aroused enemies still more dangerous to the Romans. A Celtic host under Clondicus—10,000 horsemen and as many infantry—offered to take service with him in Macedonia itself; but they could not agree as to the pay. In Hellas too there was such a ferment that a guerilla warfare might easily have been kindled with a little dexterity and a full exchequer; but, as Perseus had no desire to give and the Greeks did nothing gratuitously, the land remained quiet.

Paullus

At length the Romans resolved to send the right man to Greece. This was Lucius Aemilius Paullus, son of the consul of the same name that fell at Cannae; a man of the old nobility but of humble means, and therefore not so successful in the comitia as on the battle-field, where he had remarkably distinguished himself in Spain and still more so in Liguria. The people

elected him for the second time consul in the year 586 on account of his merits—a course which was at that time rare and exceptional. He was in all respects the right man: an excellent general of the old school, strict as respected both himself and his troops, and, notwithstanding his sixty years, still hale and vigorous; an incorruptible magistrate—"one of the few Romans of that age, to whom one could not offer money," as a contemporary says of him—and a man of Hellenic culture, who, even when commander-in-chief, embraced the opportunity of travelling through Greece to inspect its works of art.

Perseus Is Driven Back to Pydna

Battle of Pydna

Perseus Taken Prisoner

As soon as the new general arrived in the camp at Heracleum, he gave orders for the ill-guarded pass at Pythium to be surprised by Publius Nasica, while skirmishes between the outposts in the channel of the river Elpius occupied the attention of the Macedonians; the enemy was thus turned, and was obliged to retreat to Pydna. There on the Roman 4th of September, 586, or on the 22nd of June of the Julian calendar—an eclipse of the moon, which a scientific Roman officer announced beforehand to the army that it might not be regarded as a bad omen, affords in this case the means of determining the date—the outposts accidentally fell into conflict as they were watering their horses after midday; and both sides determined at once to give the battle, which it was originally intended to postpone till the following day. Passing through the ranks in person, without helmet or shield, the grey-headed Roman general arranged his men. Scarce were they in position, when the formidable phalanx assailed them; the general himself, who had witnessed many a hard fight, afterwards acknowledged that he had trembled. The Roman vanguard dispersed; a Paelignian cohort was overthrown and almost annihilated; the legions themselves hurriedly

retreated till they reached a hill close upon the Roman camp. Here the fortune of the day changed. The uneven ground and the hurried pursuit had disordered the ranks of the phalanx; the Romans in single cohorts entered at every gap, and attacked it on the flanks and in rear; the Macedonian cavalry which alone could have rendered aid looked calmly on, and soon fled in a body, the king among the foremost; and thus the fate of Macedonia was decided in less than an hour. The 3000 select phalangites allowed themselves to be cut down to the last man; it was as if the phalanx, which fought its last great battle at Pydna, had itself wished to perish there. The overthrow was fearful; 20,000 Macedonians lay on the field of battle, 11,000 were prisoners. The war was at an end, on the fifteenth day after Paullus had assumed the command; all Macedonia submitted in two days. The king fled with his gold—he still had more than 6000 talents (1,460,000 pounds) in his chest—to Samothrace, accompanied by a few faithful attendants. But he himself put to death one of these, Evander of Crete, who was to be called to account as instigator of the attempted assassination of Eumenes; and then the king's pages and his last comrades also deserted him. For a moment he hoped that the right of asylum would protect him; but he himself perceived that he was clinging to a straw. An attempt to take flight to Cotys failed. So he wrote to the consul; but the letter was not received, because he had designated himself in it as king. He recognized his fate, and surrendered to the Romans at discretion with his children and his treasures, pusillanimous and weeping so as to disgust even his conquerors. With a grave satisfaction, and with thoughts turning rather on the mutability of fortune than on his own present success, the consul received the most illustrious captive whom Roman general had ever brought home. Perseus died a few years after, as a state prisoner, at Alba on the Fucine lake;(5) his son in after years earned a living in the same Italian country town as a clerk.

Thus perished the empire of Alexander the Great, which had subdued and Hellenized the east, 144 years after its founder's death.

Defeat and Capture of Genthius

That the tragedy, moreover, might not be without its accompaniment of farce, at the same time the war against "king" Genthius of Illyria was also begun and ended by the praetor Lucius Anicius within thirty days. The piratical fleet was taken, the capital Scodra was captured, and the two kings, the heir of Alexander the Great and the heir of Pleuratus, entered Rome side by side as prisoners.

Macedonia Broken Up

The senate had resolved that the peril, which the unseasonable gentleness of Flaminius had brought on Rome, should not recur. Macedonia was abolished. In the conference at Amphipolis on the Strymon the Roman commission ordained that the compact, thoroughly monarchical, single state should be broken up into four republican- federative leagues moulded on the system of the Greek confederacies, viz. that of Amphipolis in the eastern regions, that of Thessalonica with the Chalcidian peninsula, that of Pella on the frontiers of Thessaly, and that of Pelagonia in the interior. Intermarriages between persons belonging to different confederacies were to be invalid, and no one might be a freeholder in more than one of them. All royal officials, as well as their grown-up sons, were obliged to leave the country and resort to Italy on pain of death; the Romans still dreaded, and with reason, the throbbings of the ancient loyalty. The law of the land and the former constitution otherwise remained in force; the magistrates were of course nominated by election in each community, and the power in the communities as well as in the confederacies was placed in the hands of the upper class. The royal domains and royalties were not granted to the confederacies, and these were specially prohibited from working the gold and silvei mines, a chief source of the national wealth; but in 596 they were again permitted to work at least the silver-mines.(6) The import of salt, and

the export of timber for shipbuilding, were prohibited. The land-tax hitherto paid to the king ceased, and the confederacies and communities were left to tax themselves; but these had to pay to Rome half of the former land-tax, according to a rate fixed once for all, amounting in all to 100 talents annually (24,000 pounds).(7) The whole land was for ever disarmed, and the fortress of Demetrias was razed; on the northern frontier alone a chain of posts was to be retained to guard against the incursions of the barbarians. Of the arms given up, the copper shields were sent to Rome, and the rest were burnt.

The Romans gained their object. The Macedonian land still on two occasions took up arms at the call of princes of the old reigning house; but otherwise from that time to the present day it has remained without a history.

Illyria Broken Up

Illyria was treated in a similar way. The kingdom of Gentius was split up into three small free states. There too the freeholders paid the half of the former land-tax to their new masters, with the exception of the towns, which had adhered to Rome and in return obtained exemption from land-tax—an exception, which there was no opportunity to make in the case of Macedonia. The Illyrian piratic fleet was confiscated, and presented to the more reputable Greek communities along that coast. The constant annoyances, which the Illyrians inflicted on the neighbours by their corsairs, were in this way put an end to, at least for a lengthened period.

Cotys

Cotys in Thrace, who was difficult to be reached and might conveniently be used against Eumenes, obtained pardon and received back his captive son.

Thus the affairs of the north were settled, and Macedonia also was at last released from the yoke of monarchy—in fact Greece was more free than ever; a king no longer existed anywhere.

Humiliation of the Greeks in General Course Pursued with Pergamus

But the Romans did not confine themselves to cutting the nerves and sinews of Macedonia. The senate resolved at once to render all the Hellenic states, friend and foe, for ever incapable of harm, and to reduce all of them alike to the same humble clientship. The course pursued may itself admit of justification; but the mode in which it was carried out in the case of the more powerful of the Greek client- states was unworthy of a great power, and showed that the epoch of the Fabii and the Scipios was at an end.

The state most affected by this change in the position of parties was the kingdom of the Attalids, which had been created and fostered by Rome to keep Macedonia in check, and which now, after the destruction of Macedonia, was forsooth no longer needed. It was not easy to find a tolerable pretext for depriving the prudent and considerate Eumenes of his privileged position, and allowing him to fall into disfavour. All at once, about the time when the Romans were encamped at Heracleum, strange reports were circulated regarding him—that he was in secret intercourse with Perseus; that his fleet had been suddenly, as it were, wafted away; that 500 talents had been offered for his non-participation in the campaign and 1500 for his mediation to procure peace, and that the agreement had only broken down through the avarice of Perseus. As to the Pergamene fleet, the king, after having paid his respects to the consul, went home with it at the same time that the Roman fleet went into winter quarters. The story about corruption was as certainly a fable as any newspaper canard of the present day; for that the rich, cunning, and consistent Attalid, who had primarily

occasioned the breach between Rome and Macedonia by his journey in 582 and had been on that account wellnigh assassinated by the banditti of Perseus, should—at the moment when the real difficulties of a war, of whose final issue, moreover, he could never have had any serious doubt, were overcome—have sold to the instigator of the murder his share in the spoil for a few talents, and should have perilled the work of long years for so pitiful a consideration, may be set down not merely as a fabrication, but as a very silly one. That no proof was found either in the papers of Perseus or elsewhere, is sufficiently certain; for even the Romans did not venture to express those suspicions aloud, But they gained their object. Their wishes appeared in the behaviour of the Roman grandees towards Attalus, the brother of Eumenes, who had commanded the Pergamene auxiliary troops in Greece. Their brave and faithful comrade was received in Rome with open arms and invited to ask not for his brother, but for himself—the senate would be glad to give him a kingdom of his own. Attalus asked nothing but Aenus and Maronea. The senate thought that this was only a preliminary request, and granted it with great politeness. But when he took his departure without having made any further demands, and the senate came to perceive that the reigning family in Pergamus did not live on such terms with each other as were customary in princely houses, Aenus and Maronea were declared free cities. The Pergamenes obtained not a foot's breadth of territory out of the spoil of Macedonia; if after the victory over Antiochus the Romans had still saved forms as respected Philip, they were now disposed to hurt and to humiliate. About this time the senate appears to have declared Pamphylia, for the possession of which Eumenes and Antiochus had hitherto contended, independent. What was of more importance, the Galatians—who had been substantially in the power of Eumenes, ever since he had expelled the king of Pontus by force of arms from Caiatia and had on making peace extorted from him the promise that he would maintain no further communication with the Galatian princes—now, reckoning beyond

doubt on the variance that had taken place between Eumenes and the Romans, if not directly instigated by the latter, rose against Eumenes, overran his kingdom, and brought him into great danger. Eumenes besought the mediation of the Romans; the Roman envoy declared his readiness to mediate, but thought it better that Attalus, who commanded the Pergamene army, should not accompany him lest the barbarians might be put into ill humour. Singularly enough, he accomplished nothing; in fact, he told on his return that his mediation had only exasperated the barbarians. No long time elapsed before the independence of the Galatians was expressly recognized and guaranteed by the senate. Eumenes determined to proceed to Rome in person, and to plead his cause in the senate. But the latter, as if troubled by an evil conscience, suddenly decreed that in future kings should not be allowed to come to Rome; and despatched a quaestor to meet him at Brundisium, to lay before him this decree of the senate, to ask him what he wanted, and to hint to him that they would be glad to see his speedy departure. The king was long silent; at length he said that he desired nothing farther, and re-embarked. He saw how matters stood: the epoch of half-powerful and half-free alliance was at an end; that of impotent subjection began.

Humiliation of Rhodes

Similar treatment befell the Rhodians. They had a singularly privileged position: their relation to Rome assumed the form not of symmarchy properly so called, but of friendly equality; it did not prevent them from entering into alliances of any kind, and did not compel them to supply the Romans with a contingent on demand. This very circumstance was presumably the real reason why their good understanding with Rome had already for some time been impaired. The first dissensions with Rome had arisen in consequence of the rising of the Lycians, who were handed over to Rhodes after the defeat of Antiochus, against their oppressors who had

(576) cruelly reduced them to slavery as revolted subjects; the Lycians, however, asserted that they were not subjects but allies of the Rhodians, and prevailed with this plea in the Roman senate, which was invited to settle the doubtful meaning of the instrument of peace. But in this result a justifiable sympathy with the victims of grievous oppression had perhaps the chief share; at least nothing further was done on the part of the Romans, who left this as well as other Hellenic quarrels to take their course. When the war with Perseus broke out, the Rhodians, like all other sensible Greeks, viewed it with regret, and blamed Eumenes in particular as the instigator of it, so that his festal embassy was not even permitted to be present at the festival of Helios in Rhodes. But this did not prevent them from adhering to Rome and keeping the Macedonian party, which existed in Rhodes as well as everywhere else, aloof from the helm of affairs. The permission given to them in 585 to export grain from Sicily shows the continuance of the good understanding with Rome. All of a sudden, shortly before the battle of Pydna, Rhodian envoys appeared at the Roman head-quarters and in the Roman senate, announcing that the Rhodians would no longer tolerate this war which was injurious to their Macedonian traffic and their revenue from port-dues, that they were disposed themselves to declare war against the party which should refuse to make peace, and that with this view they had already concluded an alliance with Crete and with the Asiatic cities. Many caprices are possible in a republic governed by primary assemblies; but this insane intervention of a commercial city—which can only have been resolved on after the fall of the pass of Tempe was known at Rhodes—requires special explanation. The key to it is furnished by the well-attested account that the consul Quintus Marcius, that master of the "new-fashioned diplomacy," had in the camp at Heracleum (and therefore after the occupation of the pass of Tempe) loaded the Rhodian envoy Agepolis with civilities and made an underhand request to him to mediate a peace. Republican wrongheadedness and vanity did the rest; the Rhodians fancied

that the Romans had given themselves up as lost; they were eager to play the part of mediator among four great powers at once; communications were entered into with Perseus; Rhodian envoys with Macedonian sympathies said more than they should have said; and they were caught. The senate, which doubtless was itself for the most part unaware of those intrigues, heard the strange announcement, as may be conceived, with indignation, and was glad of the favourable opportunity to humble the haughty mercantile city. A warlike praetor went even so far as to propose to the people a declaration of war against Rhodes. In vain the Rhodian ambassadors repeatedly on their knees adjured the senate to think of the friendship of a hundred and forty years rather than of the one offence; in vain they sent the heads of the Macedonian party to the scaffold or to Rome; in vain they sent a massive wreath of gold in token of their gratitude for the non-declaration of war. The upright Cato indeed showed that strictly the Rhodians had committed no offence and asked whether the Romans were desirous to undertake the punishment of wishes and thoughts, and whether they could blame the nations for being apprehensive that Rome might allow herself all license if she had no longer any one to fear? His words and warnings were in vain. The senate deprived the Rhodians of their possessions on the mainland, which yielded a yearly produce of 120 talents (29,000 pounds). Still heavier were the blows aimed at the Rhodian commerce. The very prohibition of the import of salt to, and of the export of shipbuilding timber from, Macedonia appears to have been directed against Rhodes. Rhodian commerce was still more directly affected by the erection of the free port at Delos; the Rhodian customs-dues, which hitherto had produced 1,000,000 drachmae (41,000 pounds) annually, sank in a very brief period to 150,000 drachmae (6180 pounds). Generally, the Rhodians were paralyzed in their freedom of action and in their liberal and bold commercial policy, and the state began to languish. Even the alliance asked

for was at first refused, and was only renewed in 590 after urgent entreaties. The equally guilty but powerless Cretans escaped with a sharp rebuke.

Intervention in the Syro-Egyptian War

With Syria and Egypt the Romans could go to work more summarily. War had broken out between them; and Coelesyria and Palaestina formed once more the subject of dispute. According to the assertion of the Egyptians, those provinces had been ceded to Egypt on the marriage of the Syrian Cleopatra: this however the court of Babylon, which was in actual possession, disputed. Apparently the charging of her dowry on the taxes of the Coelesyrian cities gave occasion to the quarrel, and the Syrian side was in the right; the breaking out of the war was occasioned by the death of Cleopatra in 581, with which at latest the payments of revenue terminated. The war appears to have been begun by Egypt; but king Antiochus Epiphanes gladly embraced the opportunity of once more—and for the last time—endeavouring to achieve the traditional aim of the policy of the Seleucidae, the acquisition of Egypt, while the Romans were employed in Macedonia. Fortune seemed favourable to him. The king of Egypt at that time, Ptolemy VI, Philometor, the son of Cleopatra, had hardly passed the age of boyhood and had bad advisers; after a great victory on the Syro-Egyptian frontier Antiochus was able to advance into the territories of his nephew in the same year in which the legions landed in Greece (583), and soon had the person of the king in his power. Matters began to look as if Antiochus wished to possess himself of all Egypt in Philometor's name; Alexandria accordingly closed its gates against him, deposed Philometor, and nominated as king in his stead his younger brother, named Euergetes II, or the Fat. Disturbances in his own kingdom recalled the Syrian king from Egypt; when he returned, he found that the brothers had come to an understanding during his absence; and he then continued the war against both. Just as he lay before Alexandria, not long after the battle of Pydna

(586), the Roman envoy Gaius Popillius, a harsh rude man, arrived, and intimated to him the command of the senate that he should restore all that he had conquered and should evacuate Egypt within a set term. Antiochus asked time for consideration; but the consular drew with his staff a circle round the king, and bade him declare his intentions before he stepped beyond the circle. Antiochus replied that he would comply; and marched off to his capital that he might there, in his character of "the god, the brilliant bringer of victory," celebrate in Roman fashion his conquest of Egypt and parody the triumph of Paullus.

Measures of Security in Greece

Egypt voluntarily submitted to the Roman protectorate; and thereupon the kings of Babylon also desisted from the last attempt to maintain their independence against Rome. As with Macedonia in the war waged by Perseus, the Seleucidae in the war regarding Coelesyria made a similar and similarly final effort to recover their former power; but it is a significant indication of the difference between the two kingdoms, that in the former case the legions, in the latter the abrupt language of a diplomatist, decided the controversy. In Greece itself, as the two Boeotian cities had already paid more than a sufficient penalty, the Molottians alone remained to be punished as allies of Perseus. Acting on secret orders from the senate, Paullus in one day gave up seventy townships in Epirus to plunder, and sold the inhabitants, 150,000 in number, into slavery. The Aetolians lost Amphipolis, and the Acarnanians Leucas, on account of their equivocal behaviour; whereas the Athenians, who continued to play the part of the begging poet in their own Aristophanes, not only obtained a gift of Delos and Lemnos, but were not ashamed even to petition for the deserted site of Haliartus, which was assigned to them accordingly. Thus something was done for the Muses; but more had to be done for justice. There was a Macedonian party in every city, and therefore trials for high treason began

in all parts of Greece. Whoever had served in the army of Perseus was immediately executed, whoever was compromised by the papers of the king or the statements of political opponents who flocked to lodge informations, was despatched to Rome; the Achaean Callicrates and the Aetolian Lyciscus distinguished themselves in the trade of informers. In this way the more conspicuous patriots among the Thessalians, Aetolians, Acarnanians, Lesbians and so forth, were removed from their native land; and, in particular, more than a thousand Achaeans were thus disposed of—a step taken with the view not so much of prosecuting those who were carried off, as of silencing the childish opposition of the Hellenes.

To the Achaeans, who, as usual, were not content till they got the answer which they anticipated, the senate, wearied by constant requests for the commencement of the investigation, at length roundly declared that till further orders the persons concerned were to remain in Italy. There they were placed in country towns in the interior, and tolerably well treated; but attempts to escape were punished with death. The position of the former officials removed from Macedonia was, in all probability, similar. This expedient, violent as it was, was still, as things stood, the most lenient, and the enraged Greeks of the Roman party were far from content with the paucity of the executions. Lyciscus had accordingly deemed it proper, by way of preliminary, to have 500 of the leading men of the Aetolian patriotic party slain at the meeting of the diet; the Roman commission, which needed the man, suffered the deed to pass unpunished, and merely censured the employment of Roman soldiers in the execution of this Hellenic usage. We may presume, however, that the Romans instituted the system of deportation to Italy partly in order to prevent such horrors. As in Greece proper no power existed even of such importance as Rhodes or Pergamus, there was no need in its case for any further humiliation; the steps taken were taken only in the exercise of justice—in the Roman sense, no doubt, of

that term—and for the prevention of the most scandalous and palpable outbreaks of party discord.

Rome and Her Dependencies

All the Hellenistic states had thus been completely subjected to the protectorate of Rome, and the whole empire of Alexander the Great had fallen to the Roman commonwealth just as if the city had inherited it from his heirs. From all sides kings and ambassadors flocked to Rome to congratulate her; and they showed that fawning is never more abject than when kings are in the antechamber. King Massinissa, who only desisted from presenting himself in person on being expressly prohibited from doing so, ordered his son to declare that he regarded himself as merely the beneficiary, and the Romans as the true proprietors, of his kingdom, and that he would always be content with what they were willing to leave to him. There was at least truth in this. But Prusias king of Bithynia, who had to atone for his neutrality, bore off the palm in this contest of flattery; he fell on his face when he was conducted into the senate, and did homage to "the delivering gods." As he was so thoroughly contemptible, Polybius tells us, they gave him a polite reply, and presented him with the fleet of Perseus.

The moment was at least well chosen for such acts of homage. Polybius dates from the battle of Pydna the full establishment of the universal empire of Rome. It was in fact the last battle in which a civilized state confronted Rome in the field on a footing of equality with her as a great power; all subsequent struggles were rebellions or wars with peoples beyond the pale of the Romano-Greek civilization—with barbarians, as they were called. The whole civilized world thenceforth recognized in the Roman senate the supreme tribunal, whose commissions decided in the last resort between kings and nations; and to acquire its language and manners foreign princes and youths of quality resided in Rome. A clear and earnest attempt to get rid

of this dominion was in reality made only once—by the great Mithradates of Pontus. The battle of Pydna, moreover, marks the last occasion on which the senate still adhered to the state-maxim that they should, if possible, hold no possessions and maintain no garrisons beyond the Italian seas, but should keep the numerous states dependent on them in order by a mere political supremacy. The aim of their policy was that these states should neither decline into utter weakness and anarchy, as had nevertheless happened in Greece nor emerge out of their half-free position into complete independence, as Macedonia had attempted to do not without success. No state was to be allowed utterly to perish, but no one was to be permitted to stand on its own resources. Accordingly the vanquished foe held at least an equal, often a better, position with the Roman diplomatists than the faithful ally; and, while a defeated opponent was reinstated, those who attempted to reinstate themselves were abased—as the Aetolians, Macedonia after the Asiatic war, Rhodes, and Pergamus learned by experience. But not only did this part of protector soon prove as irksome to the masters as to the servants; the Roman protectorate, with its ungrateful Sisyphean toil that continually needed to be begun afresh, showed itself to be intrinsically untenable. Indications of a change of system, and of an increasing disinclination on the part of Rome to tolerate by its side intermediate states even in such independence as was possible for them, were very clearly given in the destruction of the Macedonian monarchy after the battle of Pydna. The more and more frequent and more and more unavoidable intervention in the internal affairs of the petty Greek states through their misgovernment and their political and social anarchy; the disarming of Macedonia, where the northern frontier at any rate urgently required a defence different from that of mere posts; and, lastly, the introduction of the payment of land-tax to Rome from Macedonia and Illyria, were so many symptoms of the approaching conversion of the client states into subjects of Rome.

The Italian and Extra-Italian Policy of Rome

If, in conclusion, we glance back at the career of Rome from the union of Italy to the dismemberment of Macedonia, the universal empire of Rome, far from appearing as a gigantic plan contrived and carried out by an insatiable thirst for territorial aggrandizement, appears to have been a result which forced itself on the Roman government without, and even in opposition to, its wish. It is true that the former view naturally suggests itself—Sallust is right when he makes Mithradates say that the wars of Rome with tribes, cities, and kings originated in one and the same prime cause, the insatiable longing after dominion and riches; but it is an error to give forth this judgment—influenced by passion and the event—as a historical fact. It is evident to every one whose observation is not superficial, that the Roman government during this whole period wished and desired nothing but the sovereignty of Italy; that they were simply desirous not to have too powerful neighbours alongside of them; and that—not out of humanity towards the vanquished, but from the very sound view that they ought not to suffer the kernel of their empire to be stifled by the shell—they earnestly opposed the introduction first of Africa, then of Greece, and lastly of Asia into the sphere of the Roman protectorate, till circumstances in each case compelled, or at least suggested with irresistible force, the extension of that sphere. The Romans always asserted that they did not pursue a policy of conquest, and that they were always the party assailed; and this was something more, at any rate, than a mere phrase. They were in fact driven to all their great wars with the exception of that concerning Sicily—to those with Hannibal and Antiochus, no less than to those with Philip and Perseus—either by a direct aggression or by an unparalleled disturbance of the existing political relations; and hence they were ordinarily taken by surprise on their outbreak. That they did not after victory exhibit the moderation which they ought to have done in the interest more especially of Italy itself; that the retention of Spain, for instance, the

undertaking of the guardianship of Africa, and above all the half-fanciful scheme of bringing liberty everywhere to the Greeks, were in the light of Italian policy grave errors, is sufficiently clear. But the causes of these errors were, on the one hand a blind dread of Carthage, on the other a still blinder enthusiasm for Hellenic liberty; so little did the Romans exhibit during this period the lust of conquest, that they, on the contrary, displayed a very judicious dread of it. The policy of Rome throughout was not projected by a single mightily intellect and bequeathed traditionally from generation to generation; it was the policy of a very able but somewhat narrow-minded deliberative assembly, which had far too little power of grand combination, and far too much of a right instinct for the preservation of its own commonwealth, to devise projects in the spirit of a Caesar or a Napoleon. The universal empire of Rome had its ultimate ground in the political development of antiquity in general. The ancient world knew nothing of a balance of power among nations; and therefore every nation which had attained internal unity strove either directly to subdue its neighbors, as did the Hellenic states, or at any rate to render them innocuous, as Rome did,—an effort, it is true, which also issued ultimately in subjugation. Egypt was perhaps the only great power in antiquity which seriously pursued a system of equilibrium; on the opposite system Seleucus and Antigonus, Hannibal and Scipio, came into collision. And, if it seems to us sad that all the other richly-endowed and highly-developed nations of antiquity had to perish in order to enrich a single one out of the whole, and that all in the long run appear to have only arisen to contribute to the greatness of Italy and to the decay involved in that greatness, yet historical justice must acknowledge that this result was not produced by the military superiority of the legion over the phalanx, but was the necessary development of the international relations of antiquity generally—so that the issue was not decided by provoking chance, but was the fulfillment of an unchangeable, and therefore enduring, destiny.

Notes for Chapter X

1. —Ide gar prasde panth alion ammi dedukein— (i. 102).

2. II. VII. Last Struggles in Italy

3. The legal dissolution of the Boeotian confederacy, however, took place not at this time, but only after the destruction of Corinth (Pausan. vii. 14, 4; xvi. 6).

4. The recently discovered decree of the senate of 9th Oct. 584, which regulates the legal relations of Thisbae (*Ephemeris epigraphica*, 1872, p. 278, fig.; *Mith. d. arch. Inst.*, in Athen, iv. 235, fig.), gives a clear insight into these relations.

5. The story, that the Romans, in order at once to keep the promise which had guaranteed his life and to take vengeance on him, put him to death by depriving him of sleep, is certainly a fable.

6. The statement of Cassiodorus, that the Macedonian mines were reopened in 596, receives its more exact interpretation by means of the coins. No gold coins of the four Macedonias are extant; either therefore the gold-mines remained closed, or the gold extracted was converted into bars. On the other hand there certainly exist silver coins of Macedonia -prima- (Amphipolis) in which district the silver- mines were situated. For the brief period, during which they must have been struck (596-608), the number of them is remarkably great, and proves either that the mines were very energetically worked, or that the old royal money was recoined in large quantity.

7. The statement that the Macedonian commonwealth was "relieved of seignorial imposts and taxes" by the Romans (Polyb. xxxvii. 4) does not

necessarily require us to assume a subsequent remission of these taxes: it is sufficient, for the explanation of Polybius' words, to assume that the hitherto seignorial tax now became a public one. The continuance of the constitution granted to the province of Macedonia by Paullus down to at least the Augustan age (Liv. xlv. 32; Justin, xxxiii. 2), would, it is true, be compatible also with the remission of the taxes.

CHAPTER XI

The Government and the Governed

Formation of New Parties

The fall of the patriciate by no means divested the Roman commonwealth of its aristocratic character. We have already⁽¹⁾ indicated that the plebeian party carried within it that character from the first as well as, and in some sense still more decidedly than, the patriciate; for, while in the old body of burgesses an absolute equality of rights prevailed, the new constitution set out from a distinction between the senatorial houses who were privileged in point of burgess rights and of burgess usufructs, and the mass of the other citizens. Immediately, therefore, on the abolition of the patriciate and the formal establishment of civic equality, a new aristocracy and a corresponding opposition were formed; and we have already shown how the former engrafted itself as it were on the fallen patriciate, and how, accordingly, the first movements of the new party of progress were mixed up with the last movements of the old opposition between the orders.⁽²⁾ The formation of these new parties began in the fifth century, but they assumed their definite shape only in the century which followed. The development of this internal change is, as it were, drowned amidst the noise of the great wars and victories, and not merely so, but the process of formation is in this case more withdrawn from view than any other in

Roman history. Like a crust of ice gathering imperceptibly over the surface of a stream and imperceptibly confining it more and more, this new Roman aristocracy silently arose; and not less imperceptibly, like the current concealing itself beneath and slowly extending, there arose in opposition to it the new party of progress. It is very difficult to sum up in a general historical view the several, individually insignificant, traces of these two antagonistic movements, which do not for the present yield their historical product in any distinct actual catastrophe. But the freedom hitherto enjoyed in the commonwealth was undermined, and the foundation for future revolutions was laid, during this epoch; and the delineation of these as well as of the development of Rome in general would remain imperfect, if we should fail to give some idea of the strength of that encrusting ice, of the growth of the current beneath, and of the fearful moaning and cracking that foretold the mighty breaking up which was at hand.

Germes of the Nobility in the Patriciate

The Roman nobility attached itself, in form, to earlier institutions belonging to the times of the patriciate. Persons who once had filled the highest ordinary magistracies of the state not only, as a matter of course, practically enjoyed all along a higher honour, but also had at an early period certain honorary privileges associated with their position. The most ancient of these was doubtless the permission given to the descendants of such magistrates to place the wax images of these illustrious ancestors after their death in the family hall, along the wall where the pedigree was painted, and to have these images carried, on occasion of the death of members of the family, in the funeral procession.⁽³⁾ To appreciate the importance of this distinction, we must recollect that the honouring of images was regarded in the Italo-Hellenic view as unrepublican, and on that account the Roman state-police did not at all tolerate the exhibition of effigies of the living, and strictly superintended that of effigies of the dead. With this privilege were

associated various external insignia, reserved by law or custom for such magistrates and their descendants:—the golden finger-ring of the men, the silver-mounted trappings of the youths, the purple border on the toga and the golden amulet-case of the boys (4)—trifling matters, but still important in a community where civic equality even in external appearance was so strictly adhered to,(5) and where, even during the second Punic war, a burgess was arrested and kept for years in prison because he had appeared in public, in a manner not sanctioned by law, with a garland of roses upon his head.(6)

Patricio-Plebian Nobility

These distinctions may perhaps have already existed partially in the time of the patrician government, and, so long as families of higher and humbler rank were distinguished within the patriciate, may have served as external insignia for the former; but they certainly only acquired political importance in consequence of the change of constitution in 387, by which the plebeian families that attained the consulate were placed on a footing of equal privilege with the patrician families, all of whom were now probably entitled to carry images of their ancestors. Moreover, it was now settled that the offices of state to which these hereditary privileges were attached should include neither the lower nor the extraordinary magistracies nor the tribunate of the plebs, but merely the consulship, the praetorship which stood on the same level with it,(7) and the curule aedileship, which bore a part in the administration of public justice and consequently in the exercise of the sovereign powers of the state.(8) Although this plebeian nobility, in the strict sense of the term, could only be formed after the curule offices were opened to plebeians, yet it exhibited in a short time, if not at the very first, a certain compactness of organization—doubtless because such a nobility had long been prefigured in the old senatorial plebeian families. The result of the Licinian laws in reality therefore amounted nearly to what

we should now call the creation of a batch of peers. Now that the plebeian families ennobled by their curule ancestors were united into one body with the patrician families and acquired a distinctive position and distinguished power in the commonwealth, the Romans had again arrived at the point whence they had started; there was once more not merely a governing aristocracy and a hereditary nobility—both of which in fact had never disappeared—but there was a governing hereditary nobility, and the feud between the gentes in possession of the government and the commons rising in revolt against the gentes could not but begin afresh. And matters very soon reached that stage. The nobility was not content with its honorary privileges which were matters of comparative indifference, but strove after separate and sole political power, and sought to convert the most important institutions of the state—the senate and the equestrian order—from organs of the commonwealth into organs of the plebeio-patrician aristocracy.

The Nobility in Possession of the Senate

The dependence -de jure- of the Roman senate of the republic, more especially of the larger patricio-plebeian senate, on the magistracy had rapidly become lax, and had in fact been converted into independence. The subordination of the public magistracies to the state-council, introduced by the revolution of 244;(9) the transference of the right of summoning men to the senate from the consul to the censor;(10) lastly, and above all, the legal recognition of the right of those who had been curule magistrates to a seat and vote in the senate,(11) had converted the senate from a council summoned by the magistrates and in many respects dependent on them into a governing corporation virtually independent, and in a certain sense filling up its own ranks; for the two modes by which its members obtained admission—election to a curule office and summoning by the censor—were both virtually in the power of the governing board itself. The burgesses, no doubt, at this epoch were still too independent to allow the entire exclusion

of non-nobles from the senate, and the nobility were perhaps still too judicious even to wish for this; but, owing to the strictly aristocratic gradations in the senate itself—in which those who had been curule magistrates were sharply distinguished, according to their respective classes of -consulares-, -praetorii-, and -aedilicii-, from the senators who had not entered the senate through a curule office and were therefore excluded from debate—the non-nobles, although they probably sat in considerable numbers in the senate, were reduced to an insignificant and comparatively uninfluential position in it, and the senate became substantially a mainstay of the nobility.

The Nobility in Possession of the Equestrian Centuries

The institution of the equites was developed into a second, less important but yet far from unimportant, organ of the nobility. As the new hereditary nobility had not the power to usurp sole possession of the comitia, it necessarily became in the highest degree desirable that it should obtain at least a separate position within the body representing the community. In the assembly of the tribes there was no method of managing this; but the equestrian centuries under the Servian organization seemed as it were created for the very purpose. The 1800 horses which the community furnished⁽¹²⁾ were constitutionally disposed of likewise by the censors. It was, no doubt, the duty of these to select the equites on military grounds and at their musters to insist that all horsemen incapacitated by age or otherwise, or at all unserviceable, should surrender their public horse; but the very nature of the institution implied that the equestrian horses should be given especially to men of means, and it was not at all easy to hinder the censors from looking to genteel birth more than to capacity, and from allowing men of standing who were once admitted, senators particularly, to retain their horse beyond the proper time. Perhaps it was even fixed by law that the senator might retain it as long as he wished. Accordingly it became

at least practically the rule for the senators to vote in the eighteen equestrian centuries, and the other places in these were assigned chiefly to the young men of the nobility. The military system, of course, suffered from this not so much through the unfitness for effective service of no small part of the legionary cavalry, as through the destruction of military equality to which the change gave rise, inasmuch as the young men of rank more and more withdrew from service in the infantry. The closed aristocratic corps of the equites proper came to set the tone for the whole legionary cavalry, taken from the citizens who were of highest position by descent and wealth. This enables us in some degree to understand why the equites during the Sicilian war refused to obey the order of the consul Gaius Aurelius Cotta that they should work at the trenches with the legionaries (502), and why Cato, when commander-in-chief of the army in Spain, found himself under the necessity of addressing a severe reprimand to his cavalry. But this conversion of the burgess-cavalry into a mounted guard of nobles redounded not more decidedly to the injury of the commonwealth than to the advantage of the nobility, which acquired in the eighteen equestrian centuries a suffrage not merely separate but giving the tone to the rest.

Separation of the Orders in the Theatre

Of a kindred character was the formal separation of the places assigned to the senatorial order from those occupied by the rest of the multitude as spectators at the national festivals. It was the great Scipio, who effected this change in his second consulship in 560. The national festival was as much an assembly of the people as were the centuries convoked for voting; and the circumstance that the former had no resolutions to pass made the official announcement of a distinction between the ruling order and the body of subjects—which the separation implied—all the more significant. The innovation accordingly met with much censure even from the ruling class, because it was simply invidious and not useful, and because it gave a very

manifest contradiction to the efforts of the more prudent portion of the aristocracy to conceal their exclusive government under the forms of civil equality.

The Censorship a Prop of the Nobility

These circumstances explain, why the censorship became the pivot of the later republican constitution; why an office, originally standing by no means in the first rank, came to be gradually invested with external insignia which did not at all belong to it in itself and with an altogether unique aristocratic-republican glory, and was viewed as the crown and completion of a well-conducted public career; and why the government looked upon every attempt of the opposition to introduce their men into this office, or even to hold the censor responsible to the people for his administration during or after his term of office, as an attack on their palladium, and presented a united front of resistance to every such attempt. It is sufficient in this respect to mention the storm which the candidature of Cato for the censorship provoked, and the measures, so extraordinarily reckless and in violation of all form, by which the senate prevented the judicial prosecution of the two unpopular censors of the year 550. But with their magnifying the glory of the censorship the government combined a characteristic distrust of this, their most important and for that very reason most dangerous, instrument. It was thoroughly necessary to leave to the censors absolute control over the personal composition of the senate and the equites; for the right of exclusion could not well be separated from the right of summoning, and it was indispensable to retain such a right, not so much for the purpose of removing from the senate capable men of the opposition—a course which the smooth-going government of that age cautiously avoided—as for the purpose of preserving around the aristocracy that moral halo, without which it must have speedily become a prey to the opposition. The right of ejection was retained; but what they chiefly needed was the glitter of the

naked blade—the edge of it, which they feared, they took care to blunt. Besides the check involved in the nature of the office—under which the lists of the members of the aristocratic corporations were liable to revision only at intervals of five years —and besides the limitations resulting from the right of veto vested in the colleague and the right of cancelling vested in the successor, there was added a farther check which exercised a very sensible influence; a usage equivalent to law made it the duty of the censor not to erase from the list any senator or knight without specifying in writing the grounds for his decision, or, in other words, adopting, as a rule, a quasi-judicial procedure.

Remodelling of the Constitution According to the Views of the Nobility Inadequate Number of Magistrates

In this political position—mainly based on the senate, the equites, and the censorship—the nobility not only usurped in substance the government, but also remodelled the constitution according to their own views. It was part of their policy, with a view to keep up the appreciation of the public magistracies, to add to the number of these as little as possible, and to keep it far below what was required by the extension of territory and the increase of business. Only the most urgent exigencies were barely met by the division of the judicial functions hitherto discharged by a single praetor between two judges —one of whom tried the lawsuits between Roman burgesses, and the other those that arose between non-burgesses or between burgess and non-burgess—in 511, and by the nomination of four auxiliary consuls for the four transmarine provinces of Sicily (527), Sardinia including Corsica (527), and Hither and Further Spain (557). The far too summary mode of initialing processes in Rome, as well as the increasing influence of the official staff, are doubtless traceable in great measure to the practically inadequate numbers of the Roman magistracy.

Election of Officers in the Comitia

Among the innovations originated by the government—which were none the less innovations, that almost uniformly they changed not the letter, but merely the practice of the existing constitution—the most prominent were the measures by which the filling up of officers' posts as well as of civil magistracies was made to depend not, as the letter of the constitution allowed and its spirit required, simply on merit and ability, but more and more on birth and seniority. As regards the nomination of staff-officers this was done not in form, but all the more in substance. It had already, in the course of the previous period, been in great part transferred from the general to the burgesses;(13) in this period came the further step, that the whole staff-officers of the regular yearly levy—the twenty-four military tribunes of the four ordinary legions—were nominated in the -comitia tributa-. Thus a line of demarcation more and more insurmountable was drawn between the subalterns, who gained their promotion from the general by punctual and brave service, and the staff, which obtained its privileged position by canvassing the burgesses.(14) With a view to check simply the worst abuses in this respect and to prevent young men quite untried from holding these important posts, it became necessary to require, as a preliminary to the bestowal of staff appointments, evidence of a certain number of years of service. Nevertheless, when once the military tribunate, the true pillar of the Roman military system, was laid down as the first stepping-stone in the political career of the young aristocrats, the obligation of service inevitably came to be frequently eluded, and the election of officers became liable to all the evils of democratic canvassing and of aristocratic exclusiveness. It was a cutting commentary on the new institution, that in serious wars (as in 583) it was found necessary to suspend this democratic mode of electing officers, and to leave once more to the general the nomination of his staff.

Restrictions on the Election of Consuls and Censors

In the case of civil offices, the first and chief object was to limit re-election to the supreme magistracies. This was certainly necessary, if the presidency of annual kings was not to be an empty name; and even in the preceding period reelection to the consulship was not permitted till after the lapse of ten years, while in the case of the censorship it was altogether forbidden.⁽¹⁵⁾ No farther law was passed in the period before us; but an increased stringency in its application is obvious from the fact that, while the law as to the ten years' interval was suspended in 537 during the continuance of the war in Italy, there was no farther dispensation from it afterwards, and indeed towards the close of this period re-election seldom occurred at all. Moreover, towards the end of this epoch (574) a decree of the people was issued, binding the candidates for public magistracies to undertake them in a fixed order of succession, and to observe certain intervals between the offices, and certain limits of age. Custom, indeed, had long prescribed both of these; but it was a sensibly felt restriction of the freedom of election, when the customary qualification was raised into a legal requirement, and the right of disregarding such requirements in extraordinary cases was withdrawn from the elective body. In general, admission to the senate was thrown open to persons belonging to the ruling families without distinction as to ability, while not only were the poorer and humbler ranks of the population utterly precluded from access to the offices of government, but all Roman burgesses not belonging to the hereditary aristocracy were practically excluded, not indeed exactly from the senate, but from the two highest magistracies, the consulship and the censorship. After Manius Curius and Gaius Fabricius,⁽¹⁶⁾ no instance can be pointed out of a consul who did not belong to the social aristocracy, and probably no instance of the kind occurred at all. But the number of the *-gentes-*, which appear for the first time in the lists of consuls and censors in the half-century from the beginning of the war with Hannibal to the close of that

with Perseus, is extremely limited; and by far the most of these, such as the Flamini, Terentii, Porcii, Acilii, and Laelii, may be referred to elections by the opposition, or are traceable to special aristocratic connections. The election of Gaius Laelius in 564, for instance, was evidently due to the Scipios. The exclusion of the poorer classes from the government was, no doubt, required by the altered circumstances of the case. Now that Rome had ceased to be a purely Italian state and had adopted Hellenic culture, it was no longer possible to take a small farmer from the plough and to set him at the head of the community. But it was neither necessary nor beneficial that the elections should almost without exception be confined to the narrow circle of the curule houses, and that a "new man" could only make his way into that circle by a sort of usurpation.⁽¹⁷⁾ No doubt a certain hereditary character was inherent not merely in the nature of the senate as an institution, in so far as it rested from the outset on a representation of the clans,⁽¹⁸⁾ but in the nature of aristocracy generally, in so far as statesmanly wisdom and statesmanly experience are bequeathed from the able father to the able son, and the inspiring spirit of an illustrious ancestry fans every noble spark within the human breast into speedier and more brilliant flame. In this sense the Roman aristocracy had been at all times hereditary; in fact, it had displayed its hereditary character with great naivete in the old custom of the senator taking his sons with him to the senate, and of the public magistrate decorating his sons, as it were by anticipation, with the insignia of the highest official honour—the purple border of the consular, and the golden amulet-case of the triumphator. But, while in the earlier period the hereditariness of the outward dignity had been to a certain extent conditioned by the inheritance of intrinsic worth, and the senatorial aristocracy had guided the state not primarily by virtue of hereditary right, but by virtue of the highest of all rights of representation—the right of the excellent, as contrasted with the ordinary, man—it sank in this epoch (and with specially great rapidity after the end of the Hannibalic war) from its

original high position, as the aggregate of those in the community who were most experienced in counsel and action, down to an order of lords filling up its ranks by hereditary succession, and exercising collegiate misrule.

Family Government

Indeed, matters had already at this time reached such a height, that out of the grave evil of oligarchy there emerged the still worse evil of usurpation of power by particular families. We have already spoken⁽¹⁹⁾ of the offensive family-policy of the conqueror of Zama, and of his unhappily successful efforts to cover with his own laurels the incapacity and pitifulness of his brother; and the nepotism of the Flaminii was, if possible, still more shameless and scandalous than that of the Scipios. Absolute freedom of election in fact turned to the advantage of such coteries far more than of the electing body. The election of Marcus Valerius Corvus to the consulship at twenty-three had doubtless been for the benefit of the state; but now, when Scipio obtained the aedileship at twenty-three and the consulate at thirty, and Flamininus, while not yet thirty years of age, rose from the quaestorship to the consulship, such proceedings involved serious danger to the republic. Things had already reached such a pass, that the only effective barrier against family rule and its consequences had to be found in a government strictly oligarchical; and this was the reason why even the party otherwise opposed to the oligarchy agreed to restrict the freedom of election.

Government of the Nobility

Internal Administration

The government bore the stamp of this gradual change in the spirit of the governing class. It is true that the administration of external affairs was still dominated at this epoch by that consistency and energy, by which the rule of the Roman community over Italy had been established. During the severe

disciplinary times of the war as to Sicily the Roman aristocracy had gradually raised itself to the height of its new position; and if it unconstitutionally usurped for the senate functions of government which by right foil to be shared between the magistrates and the comitia alone, it vindicated the step by its certainly far from brilliant, but sure and steady, pilotage of the vessel of the state during the Hannibalic storm and the complications thence arising, and showed to the world that the Roman senate was alone able, and in many respects alone deserved, to rule the wide circle of the Italo-Hellenic states. But admitting the noble attitude of the ruling Roman senate in opposition to the outward foe—an attitude crowned with the noblest results—we may not overlook the fact, that in the less conspicuous, and yet far more important and far more difficult, administration of the internal affairs of the state, both the treatment of the existing arrangements and the new institutions betray an almost opposite spirit, or, to speak more correctly, indicate that the opposite tendency has already acquired the predominance in this field.

Decline in the Administration

In relation, first of all, to the individual burgess the government was no longer what it had been. The term "magistrate" meant a man who was more than other men; and, if he was the servant of the community, he was for that very reason the master of every burgess. But the tightness of the rein was now visibly relaxed. Where coteries and canvassing flourish as they did in the Rome of that age, men are chary of forfeiting the reciprocal services of their fellows or the favour of the multitude by stern words and impartial discharge of official duty. If now and then magistrates appeared who displayed the gravity and the sternness of the olden time, they were ordinarily, like Cotta (502) and Cato, new men who had not sprung from the bosom of the ruling class. It was already something singular, when Paullus, who had been named commander-in-chief against Perseus, instead of

tendering his thanks in the usual manner to the burgesses, declared to them that he presumed they had chosen him as general because they accounted him the most capable of command, and requested them accordingly not to help him to command, but to be silent and obey.

As to Military Discipline and Administration of Justice

The supremacy and hegemony of Rome in the territories of the Mediterranean rested not least on the strictness of her military discipline and her administration of justice. Undoubtedly she was still, on the whole, at that time infinitely superior in these respects to the Hellenic, Phoenician, and Oriental states, which were without exception thoroughly disorganized; nevertheless grave abuses were already occurring in Rome. We have previously⁽²⁰⁾ pointed out how the wretched character of the commanders-in-chief—and that not merely in the case of demagogues chosen perhaps by the opposition, like Gaius Flaminius and Gaius Varro, but of men who were good aristocrats—had already in the third Macedonian war imperilled the weal of the state. And the mode in which justice was occasionally administered is shown by the scene in the camp of the consul Lucius Quinctius Flaminius at Placentia (562). To compensate a favourite youth for the gladiatorial games of the capital, which through his attendance on the consul he had missed the opportunity of seeing, that great lord had ordered a Boian of rank who had taken refuge in the Roman camp to be summoned, and had killed him at a banquet with his own hand. Still worse than the occurrence itself, to which various parallels might be adduced, was the fact that the perpetrator was not brought to trial; and not only so, but when the censor Cato on account of it erased his name from the roll of the senate, his fellow-senators invited the expelled to resume his senatorial stall in the theatre—he was, no doubt, the brother of the liberator of the Greeks, and one of the most powerful coterie-leaders in the senate.

As to the Management of Finances

The financial system of the Roman community also retrograded rather than advanced during this epoch. The amount of their revenues, indeed, was visibly on the increase. The indirect taxes—there were no direct taxes in Rome—increased in consequence of the enlargement of the Roman territory, which rendered it necessary, for example, to institute new customs-offices along the Campanian and Bruttian coasts at Puteoli, Castra (Squillace), and elsewhere, in 555 and 575. The same reason led to the new salt-tariff of 550 fixing the scale of prices at which salt was to be sold in the different districts of Italy, as it was no longer possible to furnish salt at one and the same price to the Roman burgesses now scattered throughout the land; but, as the Roman government probably supplied the burgesses with salt at cost price, if not below it, this financial measure yielded no gain to the state. Still more considerable was the increase in the produce of the domains. The duty indeed, which of right was payable to the treasury from the Italian domain-lands granted for occupation, was in the great majority of cases neither demanded nor paid. On the other hand the *-scriptura-* was retained; and not only so, but the domains recently acquired in the second Punic war, particularly the greater portion of the territory of Capua⁽²¹⁾ and that of Leontini,⁽²²⁾ instead of being given up to occupation, were parcelled out and let to petty temporary lessees, and the attempts at occupation made in these cases were opposed with more than usual energy by the government; by which means the state acquired a considerable and secure source of income. The mines of the state also, particularly the important Spanish mines, were turned to profit on lease. Lastly, the revenue was augmented by the tribute of the transmarine subjects. From extraordinary sources very considerable sums accrued during this epoch to the state treasury, particularly the produce of the spoil in the war with Antiochus, 200 millions of sesterces (2,000,000 pounds), and that of the war with

Perseus, 210 millions of sesterces (2,100,000 pounds)—the latter, the largest sum in cash which ever came at one time into the Roman treasury.

But this increase of revenue was for the most part counterbalanced by the increasing expenditure. The provinces, Sicily perhaps excepted, probably cost nearly as much as they yielded; the expenditure on highways and other structures rose in proportion to the extension of territory; the repayment also of the advances (-tributa-) received from the freeholder burgesses during times of severe war formed a burden for many a year afterwards on the Roman treasury. To these fell to be added very considerable losses occasioned to the revenue by the mismanagement, negligence, or connivance of the supreme magistrates. Of the conduct of the officials in the provinces, of their luxurious living at the expense of the public purse, of their embezzlement more especially of the spoil, of the incipient system of bribery and extortion, we shall speak in the sequel. How the state fared generally as regarded the farming of its revenues and the contracts for supplies and buildings, may be estimated from the circumstance, that the senate resolved in 587 to desist from the working of the Macedonian mines that had fallen to Rome, because the lessees of the minerals would either plunder the subjects or cheat the exchequer—truly a naive confession of impotence, in which the controlling board pronounced its own censure. Not only was the duty from the occupied domain-land allowed tacitly to fall into abeyance, as has been already mentioned, but private buildings in the capital and elsewhere were suffered to encroach on ground which was public property, and the water from the public aqueducts was diverted to private purposes: great dissatisfaction was created on one occasion when a censor took serious steps against such trespassers, and compelled them either to desist from the separate use of the public property, or to pay the legal rate for the ground and water. The conscience of the Romans, otherwise in economic matters so scrupulous, showed, so far as the community was concerned, a remarkable laxity. "He who steals from a

burgess," said Cato, "ends his days in chains and fetters; but he who steals from the community ends them in gold and purple." If, notwithstanding the fact that the public property of the Roman community was fearlessly and with impunity plundered by officials and speculators, Polybius still lays stress on the rarity of embezzlement in Rome, while Greece could hardly produce a single official who had not touched the public money, and on the honesty with which a Roman commissioner or magistrate would upon his simple word of honour administer enormous sums, while in the case of the paltriest sum in Greece ten letters were sealed and twenty witnesses were required and yet everybody cheated, this merely implies that social and economic demoralization had advanced much further in Greece than in Rome, and in particular, that direct and palpable peculation was not as yet so flourishing in the one case as in the other. The general financial result is most clearly exhibited to us by the state of the public buildings, and by the amount of cash in the treasury. We find in times of peace a fifth, in times of war a tenth, of the revenues expended on public buildings; which, in the circumstances, does not seem to have been a very copious outlay. With these sums, as well as with fines which were not directly payable into the treasury, much was doubtless done for the repair of the highways in and near the capital, for the formation of the chief Italian roads,(23) and for the construction of public buildings. Perhaps the most important of the building operations in the capital, known to belong to this period, was the great repair and extension of the network of sewers throughout the city, contracted for probably in 570, for which 24,000,000 sesterces (240,000 pounds) were set apart at once, and to which it may be presumed that the portions of the -cloacae- still extant, at least in the main, belong. To all appearance however, even apart from the severe pressure of war, this period was inferior to the last section of the preceding epoch in respect of public buildings; between 482 and 607 no new aqueduct was constructed at Rome. The treasure of the state, no doubt, increased; the last reserve in 545, when:

they found themselves under the necessity of laying hands on it, amounted only to 164,000 pounds (4000 pounds of gold);(24) whereas a short time after the close of this period (597) close on 860,000 pounds in precious metals were stored in the treasury. But, when we take into account the enormous extraordinary revenues which in the generation after the close of the Hannibalic war came into the Roman treasury, the latter sum surprises us rather by its smallness than by its magnitude. So far as with the extremely meagre statements before us it is allowable to speak of results, the finances of the Roman state exhibit doubtless an excess of income over expenditure, but are far from presenting a brilliant result as a whole.

Italian Subjects Passive Burgesses

The change in the spirit of the government was most distinctly apparent in the treatment of the Italian and extra-Italian subjects of the Roman community. Formerly there had been distinguished in Italy the ordinary, and the Latin, allied communities, the Roman burgesses -sine suffragio- and the Roman burgesses with the full franchise. Of these four classes the third was in the course of this period almost completely set aside, inasmuch as the course which had been earlier taken with the communities of passive burgesses in Latium and Sabina, was now applied also to those of the former Volscian territory, and these gradually—the last perhaps being in the year 566 Arpinum, Fundi, and Formiae—obtained full burgess-rights. In Campania Capua along with a number of minor communities in the neighbourhood was broken up in consequence of its revolt from Rome in the Hannibalic war. Although some few communities, such as Velitrae in the Volscian territory, Teanum and Cumae in Campania, may have remained on their earlier legal footing, yet, looking at the matter in the main, this franchise of a passive character may be held as now superseded.

Dediticii

On the other hand there emerged a new class in a position of peculiar inferiority, without communal freedom and the right to carry arms, and, in part, treated almost like public slaves (-peregrini dediticii-); to which, in particular, the members of the former Campanian, southern Picentine, and Bruttian communities, that had been in alliance with Hannibal,(25) belonged. To these were added the Celtic tribes tolerated on the south side of the Alps, whose position in relation to the Italian confederacy is indeed only known imperfectly, but is sufficiently characterized as inferior by the clause embodied in their treaties of alliance with Rome, that no member of these communities should ever be allowed to acquire Roman citizenship. (26)

Allies

The position of the non-Latin allies had, as we have mentioned before, (27) undergone a change greatly to their disadvantage in consequence of the Hannibalic war. Only a few communities in this category, such as Neapolis, Nola, Rhegium, and Heraclea, had during all the vicissitudes of that war remained steadfastly on the Roman side, and therefore retained their former rights as allies unaltered; by far the greater portion were obliged in consequence of having changed sides to acquiesce in a revision of the existing treaties to their disadvantage. The reduced position of the non-Latin allies is attested by the emigration from their communities into the Latin: when in 577 the Samnites and Paelignians applied to the senate for a reduction of their contingents, their request was based on the ground that during late years 4000 Samnite and Paelignian families had migrated to the Latin colony of Fregellae.

Latins

That the Latins—which term now denoted the few towns in old Latium that were not included in the Roman burgess-union, such as Tibur and Praeneste, the allied cities placed in law on the same footing with them, such as several of the Hernican towns, and the Latin colonies dispersed throughout Italy—were still at this time in a better position, is implied in their very name; but they too had, in proportion, hardly less deteriorated. The burdens imposed on them were unjustly increased, and the pressure of military service was more and more devolved from the burgesses upon them and the other Italian allies. For instance, in 536, nearly twice as many of the allies were called out as of the burgesses: after the end of the Hannibalic war all the burgesses received their discharge, but not all the allies; the latter were chiefly employed for garrison duty and for the odious service in Spain; in the triumphal largess of 577 the allies received not as formerly an equal share with the burgesses, but only the half, so that amidst the unrestrained rejoicing of that soldiers' carnival the divisions thus treated as inferior followed the chariot of victory in sullen silence: in the assignments of land in northern Italy the burgesses received ten jugera of arable land each, the non-burgesses three -jugera- each. The unlimited liberty of migration had already at an earlier period been taken from the Latin communities, and migration to Rome was only allowed to them in the event of their leaving behind children of their own and a portion of their estate in the community which had been their home.(28) But these burdensome requirements were in various ways evaded or transgressed; and the crowding of the burgesses of Latin townships to Rome, and the complaints of their magistrates as to the increasing depopulation of the cities and the impossibility under such circumstances of furnishing the fixed contingent, led the Roman government to institute police-ejections from the capital on a large scale (567, 577). The measure might be unavoidable, but it was none the less severely felt. Moreover, the towns laid out by Rome in the interior of Italy began towards the close of this period to receive instead

of Latin rights the full franchise, which previously had only been given to the maritime colonies; and the enlargement of the Latin body by the accession of new communities, which hitherto had gone on so regularly, thus came to an end. Aquileia, the establishment of which began in 571, was the latest of the Italian colonies of Rome that received Latin rights; the full franchise was given to the colonies, sent forth nearly at the same time, of Potentia, Pisaurum, Mutina, Parma, and Luna (570-577). The reason for this evidently lay in the decline of the Latin as compared with the Roman franchise. The colonists conducted to the new settlements were always, and now more than ever, chosen in preponderating number from the Roman burgesses; and even among the poorer portion of these there was a lack of people willing, for the sake even of acquiring considerable material advantages, to exchange their rights as burgesses for those of the Latin franchise.

Roman Franchise More Difficult of Acquisition

Lastly, in the case of non-burgesses—communities as well as individuals—admission to the Roman franchise was almost completely foreclosed. The earlier course incorporating the subject communities in that of Rome had been dropped about 400, that the Roman burgess body might not be too much decentralized by its undue extension; and therefore communities of half-burgesses were instituted.⁽²⁹⁾ Now the centralization of the community was abandoned, partly through the admission of the half-burgess communities to the full franchise, partly through the accession of numerous more remote burgess-colonies to its ranks; but the older system of incorporation was not resumed with reference to the allied communities. It cannot be shown that after the complete subjugation of Italy even a single Italian community exchanged its position as an ally for the Roman franchise; probably none after that date in reality acquired it. Even the transition of individual Italians to the Roman franchise was confined almost

solely to the case of magistrates of the Latin communities(30) and, by special favour, of individual non-burgesses admitted to share it at the founding of burgess-colonies.(31)

It cannot be denied that these changes -de facto- and -de jure- in the relations of the Italian subjects exhibit at least an intimate connection and consistency. The situation of the subject classes was throughout deteriorated in proportion to the gradations previously subsisting, and, while the government had formerly endeavoured to soften the distinctions and to provide means of transition from one to another, now the intermediate links were everywhere set aside and the connecting bridges were broken down. As within the Roman burgess-body the ruling class separated itself from the people, uniformly withdrew from public burdens, and uniformly took for itself the honours and advantages, so the burgesses in their turn asserted their distinction from the Italian confederacy, and excluded it more and more from the joint enjoyment of rule, while transferring to it a double or triple share in the common burdens. As the nobility, in relation to the plebeians, returned to the close exclusiveness of the declining patriciate, so did the burgesses in relation to the non-burgesses; the plebeiate, which had become great through the liberality of its institutions, now wrapped itself up in the rigid maxims of patricianism. The abolition of the passive burgesses cannot in itself be censured, and, so far as concerned the motive which led to it, belongs presumably to another connection to be discussed afterwards; but through its abolition an intermediate link was lost. Far more fraught with peril, however, was the disappearance of the distinction between the Latin and the other Italian communities. The privileged position of the Latin nation within Italy was the foundation of the Roman power; that foundation gave way, when the Latin towns began to feel that they were no longer privileged partakers in the dominion of the powerful cognate community, but substantially subjects of Rome like the rest, and when all the Italians began to find their position equally intolerable. It is true, that there were

still distinctions: the Bruttians and their companions in misery were already treated exactly like slaves and conducted themselves accordingly, deserting, for instance, from the fleet in which they served as galley-slaves, whenever they could, and gladly taking service against Rome; and the Celtic, and above all the transmarine, subjects formed by the side of the Italians a class still more oppressed and intentionally abandoned by the government to contempt and maltreatment at the hands of the Italians. But such distinctions, while implying a gradation of classes among the subjects, could not withal afford even a remote compensation for the earlier contrast between the cognate, and the alien, Italian subjects. A profound dissatisfaction prevailed through the whole Italian confederacy, and fear alone prevented it from finding loud expression. The proposal made in the senate after the battle at Cannae, to give the Roman franchise and a seat in the senate to two men from each Latin community, was made at an unseasonable time, and was rightly rejected; but it shows the apprehension with which men in the ruling community even then viewed the relations between Latium and Rome. Had a second Hannibal now carried the war to Italy, it may be doubted whether he would have again been thwarted by the steadfast resistance of the Latin name to a foreign domination.

The Provinces

But by far the most important institution which this epoch introduced into the Roman commonwealth, and that at the same time which involved the most decided and fatal deviation from the course hitherto pursued, was the new provincial magistracies. The earlier state-law of Rome knew nothing of tributary subjects: the conquered communities were either sold into slavery, or merged in the Roman commonwealth, or lastly, admitted to an alliance which secured to them at least communal independence and freedom from taxation. But the Carthaginian possessions in Sicily, Sardinia, and Spain, as well as the kingdom of Hiero, had paid tribute and rent to their former

masters: if Rome was desirous of retaining these possessions at all, it was in the judgment of the short-sighted the most judicious, and undoubtedly the most convenient, course to administer the new territories entirely in accordance with the rules heretofore observed. Accordingly the Romans simply retained the Carthagino-Hieronian provincial constitution, and organized in accordance with it those provinces also, such as Hither Spain, which they wrested from the barbarians. It was the shirt of Nessus which they inherited from the enemy. Beyond doubt at first the Roman government intended, in imposing taxes on their subjects, not strictly to enrich themselves, but only to cover the cost of administration and defence; but they already deviated from this course, when they made Macedonia and Illyria tributary without undertaking the government or the guardianship of the frontier there. The fact, however, that they still maintained moderation in the imposition of burdens was of little consequence, as compared with the conversion of their sovereignty into a right yielding profit at all; the fall was the same, whether a single apple was taken or the tree was plundered.

Position of the Governors

Punishment followed in the steps of wrong. The new provincial system necessitated the appointment of governors, whose position was absolutely incompatible not only with the welfare of the provinces, but with the Roman constitution. As the Roman community in the provinces took the place of the former ruler of the land, so their governor appeared there in the king's stead; the Sicilian praetor, for example, resided in the palace of Hiero at Syracuse. It is true, that by right the governor nevertheless ought to administer his office with republican honesty and frugality. Cato, when governor of Sardinia, appeared in the towns subject to him on foot and attended by a single servant, who carried his coat and sacrificial ladle; and, when he returned home from his Spanish governorship, he sold his war-horse beforehand, because he did not hold himself entitled to charge the

state with the expenses of its transport. There is no question that the Roman governors—although certainly but few of them pushed their conscientiousness, like Cato, to the verge of being niggardly and ridiculous—made in many cases a powerful impression on the subjects, more especially on the frivolous and unstable Greeks, by their old-fashioned piety, by the reverential stillness prevailing at their repasts, by their comparatively upright administration of office and of justice, especially by their proper severity towards the worst bloodsuckers of the provincials—the Roman revenue-farmers and bankers—and in general by the gravity and dignity of their deportment. The provincials found their government comparatively tolerable. They had not been pampered by their Carthaginian stewards and Syracusan masters, and they were soon to find occasion for recalling with gratitude the present rods as compared with the coming scorpions: it is easy to understand how, in later times, the sixth century of the city appeared as the golden era of provincial rule. But it was not practicable for any length of time to be at once republican and king. Playing the part of governors demoralized the Roman ruling class \with fearful rapidity. Haughtiness and arrogance towards the provincials were so natural in the circumstances, as scarcely to form matter of reproach against the individual magistrate. But already it was a rare thing—and the rarer, because the government adhered rigidly to the old principle of not paying public officials—that a governor returned with quite clean hands from his province; it was already remarked upon as something singular that Paullus, the conqueror of Pydna, did not take money. The bad custom of delivering to the governor "honorary wine" and other "voluntary" gifts seems as old as the provincial constitution itself, and may perhaps have been a legacy from the Carthaginians; even Cato in his administration of Sardinia in 556 had to content himself with regulating and moderating such contributions. The right of the magistrates, and of those travelling on the business of the state generally, to free quarters and free conveyance was already employed as a

pretext for exactions. The more important right of the magistrate to make requisitions of grain in his province—partly for the maintenance of himself and his retinue (-in cellam-) partly for the provisioning of the army in case of war, or on other special occasions at a fair valuation—was already so scandalously abused, that on the complaint of the Spaniards the senate in 583 found it necessary to withdraw from the governors the right of fixing the price of the supplies for either purpose.(32) Requisitions had begun to be made on the subjects even for the popular festivals in Rome; the unmeasured vexatious demands made on the Italian as well as extra-Italian communities by the aedile Tiberius Sempronius Gracchus, for the festival which he had to provide, induced the senate officially to interfere against them (572). The liberties which Roman magistrates at the close of this period allowed themselves to take not only with the unhappy subjects, but even with the dependent free-states and kingdoms, are illustrated by the raids of Gaius Volso in Asia Minor,(33) and above all by the scandalous proceedings in Greece during the war with Perseus.(34)

Control over the Governors

Supervision of the Senate over the Provinces and Their Governors

The government had no right to be surprised at such things, for it provided no serious check on the excesses of this capricious military administration. Judicial control, it is true, was not entirely wanting. Although, according to the universal but more than questionable rule of allowing no complaint to be brought against a commander-in-chief during his term of office,(35) the Roman governor could ordinarily be called to account only after the mischief had been done, yet he was amenable both to a criminal and to a civil prosecution. In order to the institution of the former, a tribune of the people by virtue of the judicial power pertaining to him had to take the case in hand and bring it to the bar of the people; the civil action was remitted by the senator who administered the

corresponding praetorship to a jury appointed, according to the constitution of the tribunal in those times, from the ranks of the senate. In both cases, therefore, the control lay in the hands of the ruling class, and, although the latter was still sufficiently upright and honourable not absolutely to set aside well-founded complaints, and the senate even in various instances, at the call of those aggrieved, condescended itself to order the institution of a civil process, yet the complaints of poor men and foreigners against powerful members of the ruling aristocracy—submitted to judges and jurymen far remote from the scene and, if not involved in the like guilt, at least belonging to the same order as the accused—could from the first only reckon on success in the event of the wrong being clear and crying; and to complain in vain was almost certain destruction. The aggrieved no doubt found a sort of support in the hereditary relations of clientship, which the subject cities and provinces entered into with their conquerors and other Romans brought into close contact with them. The Spanish governors felt that no one could with impunity maltreat clients of Cato; and the circumstance that the representatives of the three nations conquered by Paullus—the Spaniards, Ligurians, and Macedonians—would not forgo the privilege of carrying his bier to the funeral pile, was the noblest dirge in honour of that noble man. But not only did this special protection give the Greeks opportunity to display in Rome all their talent for abasing themselves in presence of their masters, and to demoralize even those masters by their ready servility—the decrees of the Syracusans in honour of Marcellus, after he had destroyed and plundered their city and they had complained of his conduct in these respects to the senate in vain, form one of the most scandalous pages in the far from honourable annals of Syracuse—but, in connection with the already dangerous family-politics, this patronage on the part of great houses had also its politically perilous side. In this way the result perhaps was that the Roman magistrates in some degree feared the gods and the senate, and for the most part were moderate in their

plundering; but they plundered withal, and did so with impunity, if they but observed such moderation. The mischievous rule became established, that in the case of minor exactions and moderate violence the Roman magistrate acted in some measure within his sphere and was in law exempt from punishment, so that those who were aggrieved had to keep silence; and from this rule succeeding ages did not fail to draw the fatal consequences. Nevertheless, even though the tribunals had been as strict as they were lax, the liability to a judicial reckoning could only check the worst evils. The true security for a good administration lay in a strict and uniform supervision by the supreme administrative authority: and this the senate utterly failed to provide. It was in this respect that the laxity and helplessness of the collegiate government became earliest apparent. By right the governors ought to have been subjected to an oversight far more strict and more special than had sufficed for the administration of Italian municipal affairs; and now, when the empire embraced great transmarine territories, the arrangements, through which the government preserved to itself the supervision of the whole, ought to have undergone a corresponding expansion. In both respects the reverse was the case. The governors ruled virtually as sovereign; and the most important of the institutions serving for the latter purpose, the census of the empire, was extended to Sicily alone, not to any of the provinces subsequently acquired. This emancipation of the supreme administrative officials from the central authority was more than hazardous. The Roman governor, placed at the head of the armies of the state, and in possession of considerable financial resources: subject to but a lax judicial control, and practically independent of the supreme administration; and impelled by a sort of necessity to separate the interest of himself and of the people whom he governed from that of the Roman community and to treat them as conflicting, far more resembled a Persian satrap than one of the commissioners of the Roman senate at the time of the Samnite wars. The man, moreover, who had just

conducted a legalized military tyranny abroad, could with difficulty find his way back to the common civic level, which distinguished between those who commanded and those who obeyed, but not between masters and slaves. Even the government felt that their two fundamental principles—equality within the aristocracy, and the subordination of the power of the magistrates to the senatorial college—began in this instance to give way in their hands. The aversion of the government to the acquisition of new provinces and to the whole provincial system; the institution of the provincial quaestorships, which were intended to take at least the financial power out of the hands of the governors; and the abolition of the arrangement—in itself so judicious—for a longer tenure of such offices,(36) very clearly evince the anxiety felt by the more far-seeing of the Roman statesmen as to the fruits of the seed thus sown. But diagnosis is not cure. The internal government of the nobility continued to follow the direction once given to it; and the decay of the administration and of the financial system—paving the way for future revolutions and usurpations—steadily pursued its course, if not unnoticed, yet unchecked.

The Opposition

If the new nobility was less sharply defined than the old aristocracy of the clans, and if the encroachment on the other burgesses as respected the joint enjoyment of political rights was in the one case -de jure-, in the other only -de facto-, the second form of inferiority was for that very reason worse to bear and worse to throw off than the first. Attempts to throw it off were, as a matter of course, not wanting. The opposition rested on the support of the public assembly, as the nobility did on the senate: in order to understand the opposition, we must first describe the Roman burgess-body during this period as regards its spirit and its position in the commonwealth.

Character of the Roman Burgess-Body

Whatever could be demanded of an assembly of burgesses like the Roman, which was not the moving spring, but the firm foundation, of the whole machinery—a sure perception of the common good, a sagacious deference towards the right leader, a steadfast spirit in prosperous and evil days, and, above all, the capacity of sacrificing the individual for the general welfare and the comfort of the present for the advantage of the future—all these qualities the Roman community exhibited in so high a degree that, when we look to its conduct as a whole, all censure is lost in reverent admiration. Even now good sense and discretion still thoroughly predominated. The whole conduct of the burgesses with reference to the government as well as to the opposition shows quite clearly that the same mighty patriotism before which even the genius of Hannibal had to quit the field prevailed also in the Roman comitia. No doubt they often erred; but their errors originated not in the mischievous impulses of a rabble, but in the narrow views of burgesses and farmers. The machinery, however, by means of which the burgesses intervened in the course of public affairs became certainly more and more unwieldy, and the circumstances in which they were placed through their own great deeds far outgrew their power to deal with them. We have already stated, that in the course of this epoch most of the former communities of passive burgesses, as well as a considerable number of newly established colonies, received the full Roman franchise.(37) At the close of this period the Roman burgess-body, in a tolerably compact mass, filled Latium in its widest sense, Sabina, and a part of Campania, so that it reached on the west coast northward to Caere and southward to Cumae; within this district there were only a few cities not included in it, such as Tibur, Praeneste, Signia, Norba, and Ferentinum. To this fell to be added the maritime colonies on the coasts of Italy which uniformly possessed the full Roman franchise, the Picenian and Trans-Appennine colonies of the most recent times, to which the franchise must have been conceded,(38) and a very considerable number of Roman

burgesses, who, without forming separate communities in a strict sense, were scattered throughout Italy in market-villages and hamlets (-fora et conciliabula-). To some extent the unwieldiness of a civic community so constituted was remedied, for the purposes of justice(39) and of administration, by the deputy judges previously mentioned;(40) and already perhaps the maritime(41) and the new Picenian and Trans- Apennine colonies exhibited at least the first lineaments of the system under which afterwards smaller urban communities were organized within the great city-commonwealth of Rome. But in all political questions the primary assembly in the Roman Forum remained alone entitled to act; and it is obvious at a glance, that this assembly was no longer, in its composition or in its collective action, what it had been when all the persons entitled to vote could exercise their privilege as citizens by leaving their farms in the morning and returning home the same evening. Moreover the government—whether from want of judgment, from negligence, or from any evil design, we cannot tell—no longer as formerly enrolled the communities admitted to the franchise after 513 in newly instituted election-districts, but included them along with others in the old; so that gradually each tribe came to be composed of different townships scattered over the whole Roman territory. Election-districts such as these, containing on an average 8000—the urban naturally having more, the rural fewer —persons entitled to vote, without local connection or inward unity, no longer admitted of any definite leading or of any satisfactory previous deliberation; disadvantages which must have been the more felt, since the voting itself was not preceded by any free debate. Moreover, while the burgesses had quite sufficient capacity to discern their communal interests, it was foolish and utterly ridiculous to leave the decision of the highest and most difficult questions which the power that ruled the world had to solve to a well-disposed but fortuitous concourse of Italian farmers, and to allow the nomination of generals and the conclusion of treaties of state to be finally

judged of by people who understood neither the grounds nor the consequences of their decrees. In all matters transcending mere communal affairs the Roman primary assemblies accordingly played a childish and even silly part. As a rule, the people stood and gave assent to all proposals; and, when in exceptional instances they of their own impulse refused assent, as on occasion of the declaration of war against Macedonia in 554, (42) the policy of the market-place certainly made a pitiful opposition—and with a pitiful issue—to the policy of the state.

Rise of a City Rabble

At length the rabble of clients assumed a position, formally of equality and often even, practically, of superiority, alongside of the class of independent burgesses. The institutions out of which it sprang were of great antiquity. From time immemorial the Roman of quality exercised a sort of government over his freedmen and dependents, and was consulted by them in all their more important affairs; a client, for instance, was careful not to give his children in marriage without having obtained the consent of his patron, and very often the latter directly arranged the match. But as the aristocracy became converted into a special ruling class concentrating in its hands not only power but also wealth, the clients became parasites and beggars; and the new adherents of the rich undermined outwardly and inwardly the burgess class. The aristocracy not only tolerated this sort of clientship, but worked it financially and politically for their own advantage. Thus, for instance, the old penny collections, which hitherto had taken place chiefly for religious purposes and at the burial of men of merit, were now employed by lords of high standing—for the first time by Lucius Scipio, in 568, on occasion of a popular festival which he had in contemplation—for the purpose of levying on extraordinary occasions a contribution from the public. Presents were specially placed under legal restriction (in 550), because the senators began under that name to take regular tribute from

their clients. But the retinue of clients was above all serviceable to the ruling class as a means of commanding the comitia; and the issue of the elections shows clearly how powerfully the dependent rabble already at this epoch competed with the independent middle class.

The very rapid increase of the rabble in the capital particularly, which is thus presupposed, is also demonstrable otherwise. The increasing number and importance of the freedmen are shown by the very serious discussions that arose in the previous century,(43) and were continued during the present, as to their right to vote in the public assemblies, and by the remarkable resolution, adopted by the senate during the Hannibalic war, to admit honourable freedwomen to a participation in the public collections, and to grant to the legitimate children of manumitted fathers the insignia hitherto belonging only to the children of the free-born.(44) The majority of the Hellenes and Orientals who settled in Rome were probably little better than the freedmen, for national servility clung as indelibly to the former as legal servility to the latter.

Systematic Corruption of the Multitude Distributions of Grain

But not only did these natural causes co-operate to produce a metropolitan rabble: neither the nobility nor the demagogues, moreover, can be acquitted from the reproach of having systematically nursed its growth, and of having undermined, so far as in them lay, the old public spirit by flattery of the people and things still worse. The electors as a body were still too respectable to admit of direct electoral corruption showing itself on a great scale; but the favour of those entitled to vote was indirectly courted by methods far from commendable. The old obligation of the magistrates, particularly of the aediles, to see that corn could be procured at a moderate price and to superintend the games, began to degenerate into the state of

things which at length gave rise to the horrible cry of the city populace under the Empire, "Bread for nothing and games for ever!" Large supplies of grain, either placed by the provincial governors at the disposal of the Roman market officials, or delivered at Rome free of cost by the provinces themselves for the purpose of procuring favour with particular Roman magistrates, enabled the aediles, from the middle of the sixth century, to furnish grain to the population of the capital at very low prices. "It was no wonder," Cato considered, "that the burgesses no longer listened to good advice—the belly forsooth had no ears."

Festivals

Popular amusements increased to an alarming extent. For five hundred years the community had been content with one festival in the year, and with one circus. The first Roman demagogue by profession, Gaius Flaminius, added a second festival and a second circus (534);⁽⁴⁵⁾ and by these institutions—the tendency of which is sufficiently indicated by the very name of the new festival, "the plebeian games"—he probably purchased the permission to give battle at the Trasimene lake. When the path was once opened, the evil made rapid progress. The festival in honour of Ceres, the goddess who protected the plebeian order,⁽⁴⁶⁾ must have been but little, if at all, later than the plebeian games. On the suggestion of the Sibylline and Marcian prophecies, moreover, a fourth festival was added in 542 in honour of Apollo, and a fifth in 550 in honour of the "Great Mother" recently transplanted from Phrygia to Rome. These were the severe years of the Hannibalic war—on the first celebration of the games of Apollo the burgesses were summoned from the circus itself to arms; the superstitious fear peculiar to Italy was feverishly excited, and persons were not wanting who took advantage of the opportunity to circulate Sibylline and prophetic oracles and to recommend themselves to the multitude through their contents and advocacy: we can scarcely blame the government, which was

obliged to call for so enormous sacrifices from the burgesses, for yielding in such matters. But what was once conceded had to be continued; indeed, even in more peaceful times (581) there was added another festival, although of minor importance—the games in honour of Flora. The cost of these new festal amusements was defrayed by the magistrates entrusted with the providing of the respective festivals from their own means: thus the curule aediles had, over and above the old national festival, those of the Mother of the Gods and of Flora; the plebeian aediles had the plebeian festival and that of Ceres, and the urban praetor the Apollinarian games. Those who sanctioned the new festivals perhaps excused themselves in their own eyes by the reflection that they were not at any rate a burden on the public purse; but it would have been in reality far less injurious to burden the public budget with a number of useless expenses, than to allow the providing of an amusement for the people to become practically a qualification for holding the highest office in the state. The future candidates for the consulship soon entered into a mutual rivalry in their expenditure on these games, which incredibly increased their cost; and, as may well be conceived, it did no harm if the consul expectant gave, over and above this as it were legal contribution, a voluntary "performance" (-munus-), a gladiatorial show at his own expense for the public benefit. The splendour of the games became gradually the standard by which the electors measured the fitness of the candidates for the consulship. The nobility had, in truth, to pay dear for their honours—a gladiatorial show on a respectable scale cost 720,000 sesterces (7200 pounds)—but they paid willingly, since by this means they absolutely precluded men who were not wealthy from a political career.

Squandering of the Spoil

Corruption, however, was not restricted to the Forum; it was transferred even to the camp. The old burgess militia had reckoned themselves

fortunate when they brought home a compensation for the toil of war, and, in the event of success, a trifling gift as a memorial of victory. The new generals, with Scipio Africanus at their head, lavishly scattered amongst their troops the money of Rome as well as the proceeds of the spoil: it was on this point, that Cato quarrelled with Scipio during the last campaigns against Hannibal in Africa. The veterans from the second Macedonian war and that waged in Asia Minor already returned home throughout as wealthy men: even the better class began to commend a general, who did not appropriate the gifts of the provincials and the gains of war entirely to himself and his immediate followers, and from whose camp not a few men returned with gold, and many with silver, in their pockets: men began to forget that the moveable spoil was the property of the state. When Lucius Paullus again dealt with it in the old mode, his own soldiers, especially the volunteers who had been allured in numbers by the prospect of rich plunder, fell little short of refusing to the victor of Pydna by popular decree the honour of a triumph—an honour which they already threw away on every one who had subjugated three Ligurian villages.

Decline of Warlike Spirit

How much the military discipline and the martial spirit of the burgesses suffered from this conversion of war into a traffic in plunder, may be traced in the campaigns against Perseus; and the spread of cowardice was manifested in a way almost scandalous during the insignificant Istrian war (in 576). On occasion of a trifling skirmish magnified by rumour to gigantic dimensions, the land army and the naval force of the Romans, and even the Italians, ran off homeward, and Cato found it necessary to address a special reproof to his countrymen for their cowardice. In this too the youth of quality took precedence. Already during the Hannibalic war (545) the censors found occasion to visit with severe penalties the remissness of those who were liable to military service under the equestrian census. Towards

the close of this period (574?) a decree of the people prescribed evidence of ten years' service as a qualification for holding any public magistracy, with a view to compel the sons of the nobility to enter the army.

Title-Hunting

But perhaps nothing so clearly evinces the decay of genuine pride and genuine honour in high and low alike as the hunting after insignia and titles, which appeared under different forms of expression, but with substantial identity of character, among all ranks and classes. So urgent was the demand for the honour of a triumph that there was difficulty in upholding the old rule, which accorded a triumph only to the ordinary supreme magistrate who augmented the power of the commonwealth in open battle, and thereby, it is true, not unfrequently excluded from that honour the very authors of the most important successes. There was a necessity for acquiescence, while those generals, who had in vain solicited, or had no prospect of attaining, a triumph from the senate or the burgesses, marched in triumph on their own account at least to the Alban Mount (first in 523). No combat with a Ligurian or Corsican horde was too insignificant to be made a pretext for demanding a triumph. In order to put an end to the trade of peaceful triumphators, such as were the consuls of 574, the granting of a triumph was made to depend on the producing proof of a pitched battle which had cost the lives of at least 5000 of the enemy; but this proof was frequently evaded by false bulletins—already in houses of quality many an enemy's armour might be seen to glitter, which had by no means come thither from the field of battle. While formerly the commander-in-chief of the one year had reckoned it an honour to serve next year on the staff of his successor, the fact that the consular Cato took service as a military tribune under Tiberius Sempronius Longus (560) and Manius Glabrio (563;(47)), was now regarded as a demonstration against the new-fashioned arrogance. Formerly the thanks of the community once for all had sufficed for service

rendered to the state: now every meritorious act seemed to demand a permanent distinction. Already Gaius Duilius, the victor of Mylae (494), had gained an exceptional permission that, when he walked in the evening through the streets of the capital, he should be preceded by a torch-bearer and a piper. Statues and monuments, very often erected at the expense of the person whom they purported to honour, became so common, that it was ironically pronounced a distinction to have none. But such merely personal honours did not long suffice. A custom came into vogue, by which the victor and his descendants derived a permanent surname from the victories they had won—a custom mainly established by the victor of Zama who got himself designated as the hero of Africa, his brother as the hero of Asia, and his cousin as the hero of Spain.(48) The example set by the higher was followed by the humbler classes. When the ruling order did not disdain to settle the funeral arrangements for different ranks and to decree to the man who had been censor a purple winding-sheet, it could not complain of the freedmen for desiring that their sons at any rate might be decorated with the much-envied purple border. The robe, the ring, and the amulet-case distinguished not only the burgess and the burgess's wife from the foreigner and the slave, but also the person who was free-born from one who had been a slave, the son of free-born, from the son of manumitted, parents, the son of the knight and the senator from the common burgess, the descendant of a curule house from the common senator(49)—and this in a community where all that was good and great was the work of civil equality!

The dissension in the community was reflected in the ranks of the opposition. Resting on the support of the farmers, the patriots raised a loud cry for reform; resting on the support of the mob in the capital, demagogism began its work. Although the two tendencies do not admit of being wholly separated but in various respects go hand in hand, it will be necessary to consider them apart.

The Party of Reform

Cato

The party of reform emerges, as it were, personified in Marcus Porcius Cato (520-605). Cato, the last statesman of note belonging to that earlier system which restricted its ideas to Italy and was averse to universal empire, was for that reason accounted in after times the model of a genuine Roman of the antique stamp; he may with greater justice be regarded as the representative of the opposition of the Roman middle class to the new Hellenico-cosmopolite nobility. Brought up at the plough, he was induced to enter on a political career by the owner of a neighbouring estate, one of the few nobles who kept aloof from the tendencies of the age, Lucius Valerius Flaccus. That upright patrician deemed the rough Sabine farmer the proper man to stem the current of the times; and he was not deceived in his estimate. Beneath the aegis of Flaccus, and after the good old fashion serving his fellow-citizens and the commonwealth in counsel and action, Cato fought his way up to the consulate and a triumph, and even to the censorship. Having in his seventeenth year entered the burgess-army, he had passed through the whole Hannibalic war from the battle on the Trasimene lake to that of Zama; had served under Marcellus and Fabius, under Nero and Scipio; and at Tarentum and Sena, in Africa, Sardinia, Spain, and Macedonia, had shown himself capable as a soldier, a staff-officer, and a general. He was the same in the Forum, as in the battle-field. His prompt and fearless utterance, his rough but pungent rustic wit, his knowledge of Roman law and Roman affairs, his incredible activity and his iron frame, first brought him into notice in the neighbouring towns; and, when at length he made his appearance on the greater arena of the Forum and the senate-house in the capital, constituted him the most influential advocate and political orator of his time. He took up the key-note first struck by Manius Curius, his ideal among Roman statesmen;(50) throughout his long life he made it his task honestly, to the best of his judgment, to assail on all hands

the prevailing declension; and even in his eighty-fifth year he battled in the Forum with the new spirit of the times. He was anything but comely—he had green eyes, his enemies alleged, and red hair—and he was not a great man, still less a far-seeing statesman. Thoroughly narrow in his political and moral views, and having the ideal of the good old times always before his eyes and on his lips, he cherished an obstinate contempt for everything new. Deeming himself by virtue of his own austere life entitled to manifest an unrelenting severity and harshness towards everything and everybody; upright and honourable, but without a glimpse of any duty lying beyond the sphere of police order and of mercantile integrity; an enemy to all villany and vulgarity as well as to all refinement and geniality, and above all things the foe of his foes; he never made an attempt to stop evils at their source, but waged war throughout life against symptoms, and especially against persons. The ruling lords, no doubt, looked down with a lofty disdain on the ignoble growler, and believed, not without reason, that they were far superior; but fashionable corruption in and out of the senate secretly trembled in the presence of the old censor of morals with his proud republican bearing, of the scar-covered veteran from the Hannibalic war, and of the highly influential senator and the idol of the Roman farmers. He publicly laid before his noble colleagues, one after another, his list of their sins; certainly without being remarkably particular as to the proofs, and certainly also with a peculiar relish in the case of those who had personally crossed or provoked him. With equal fearlessness he reproved and publicly scolded the burgesses for every new injustice and every fresh disorder. His vehement attacks provoked numerous enemies, and he lived in declared and irreconcilable hostility with the most powerful aristocratic coteries of the time, particularly the Scipios and Flaminii; he was publicly accused forty-four times. But the farmers—and it is a significant indication how powerful still in the Roman middle class was the spirit which had enabled them to survive the day of Cannae—never allowed the unsparing champion of

reform to lack the support of their votes. Indeed when in 570 Cato and his like-minded patrician colleague, Lucius Flaccus, solicited the censorship, and announced beforehand that it was their intention when in that office to undertake a vigorous purification of the burgess-body through all its ranks, the two men so greatly dreaded were elected by the burgesses notwithstanding all the exertions of the nobility; and the latter were obliged to submit, while the great purgation actually took place and erased among others the brother of Africanus from the roll of the equites, and the brother of the deliverer of the Greeks from the roll of the senate.

Police Reform

This warfare directed against individuals, and the various attempts to repress the spirit of the age by means of justice and of police, however deserving of respect might be the sentiments in which they originated, could only at most stem the current of corruption for a short time; and, while it is remarkable that Cato was enabled in spite of that current, or rather by means of it, to play his political part, it is equally significant that he was as little successful in getting rid of the leaders of the opposite party as they were in getting rid of him. The processes of count and reckoning instituted by him and by those who shared his views before the burgesses uniformly remained, at least in the cases that were of political importance, quite as ineffectual as the counter-accusations directed against him. Nor was much more effect produced by the police-laws, which were issued at this period in unusual numbers, especially for the restriction of luxury and for the introduction of a frugal and orderly housekeeping, and some of which have still to be touched on in our view of the national economics.

Assignations of Land

Far more practical and more useful were the attempts made to counteract the spread of decay by indirect means; among which, beyond doubt, the

assignments of new farms out of the domain land occupy the first place. These assignments were made in great numbers and of considerable extent in the period between the first and second war with Carthage, and again from the close of the latter till towards the end of this epoch. The most important of them were the distribution of the Picenian possessions by Gaius Flaminius in 522;(51) the foundation of eight new maritime colonies in 560;(52) and above all the comprehensive colonization of the district between the Apennines and the Po by the establishment of the Latin colonies of Placentia, Cremona,(53) Bononia,(54) and Aquileia,(55) and of the burgess- colonies, Potentia, Pisaurum, Mutina, Parma, and Luna(56) in the years 536 and 565-577. By far the greater part of these highly beneficial foundations may be ascribed to the reforming party. Cato and those who shared his opinions demanded such measures, pointing, on the one hand, to the devastation of Italy by the Hannibalic war and the alarming diminution of the farms and of the free Italian population generally, and, on the other, to the widely extended possessions of the nobles—occupied along with, and similarly to, property of their own—in Cisalpine Gaul, in Samnium, and in the Apulian and Bruttian districts; and although the rulers of Rome did not probably comply with these demands to the extent to which they might and should have complied with them, yet they did not remain deaf to the warning voice of so judicious a man.

Reforms in the Military Service

Of a kindred character was the proposal, which Cato made in the senate, to remedy the decline of the burgess-cavalry by the institution of four hundred new equestrian stalls.(57) The exchequer cannot have wanted means for the purpose; but the proposal appears to have been thwarted by the exclusive spirit of the nobility and their endeavour to remove from the burgess-cavalry those who were troopers merely and not knights. On the other hand, the serious emergencies of the war, which even induced the

Roman government to make an attempt —fortunately unsuccessful—to recruit their armies after the Oriental fashion from the slave-market,(58) compelled them to modify the qualifications hitherto required for service in the burgess-army, viz. a minimum census of 11,000 -asses- (43 pounds), and free birth. Apart from the fact that they took up for service in the fleet the persons of free birth rated between 4000 -asses- (17 pounds) and 1500 -asses- (6 pounds) and all the freedmen, the minimum census for the legionary was reduced to 4000 -asses- (17 pounds); and, in case of need, both those who were bound to serve in the fleet and the free-born rated between 1500 -asses- (6 pounds) and 375 -asses- (1 pound 10 shillings) were enrolled in the burgess-infantry. These innovations, which belong presumably to the end of the preceding or beginning of the present epoch, doubtless did not originate in party efforts any more than did the Servian military reform; but they gave a material impulse to the democratic party, in so far as those who bore civic burdens necessarily claimed and eventually obtained equalization of civic rights. The poor and the freedmen began to be of some importance in the commonwealth from the time when they served it; and chiefly from this cause arose one of the most important constitutional changes of this epoch —the remodelling of the -comitia centuriata-, which most probably took place in the same year in which the war concerning Sicily terminated

Reform of the Centuries

According to the order of voting hitherto followed in the centuriate comitia, although the freeholders were no longer—as down to the reform of Appius Claudius(59) they had been—the sole voters, the wealthy had the preponderance. The equites, or in other words the patricio-plebeian nobility, voted first, then those of the highest rating, or in other words those who had exhibited to the censor an estate of at least 100,000 -asses- (420 pounds); (60) and these two divisions, when they kept together, had derided every

vote. The suffrage of those assessed under the four following classes had been of doubtful weight; that of those whose valuation remained below the standard of the lowest class, 11,000 -asses- (43 pounds), had been essentially illusory. According to the new arrangement the right of priority in voting was withdrawn from the equites, although they retained their separate divisions, and it was transferred to a voting division chosen from the first class by lot. The importance of that aristocratic right of prior voting cannot be estimated too highly, especially at an epoch in which practically the influence of the nobility on the burgesses at large was constantly on the increase. Even the patrician order proper were still at this epoch powerful enough to fill the second consulship and the second censorship, which stood open in law alike to patricians and plebeians, solely with men of their own body, the former up to the close of this period (till 582), the latter even for a generation longer (till 623); and in fact, at the most perilous moment which the Roman republic ever experienced—in the crisis after the battle of Cannae—they cancelled the quite legally conducted election of the officer who was in all respects the ablest—the plebeian Marcellus—to the consulship vacated by the death of the patrician Paullus, solely on account of his plebeianism. At the same time it is a significant token of the nature even of this reform that the right of precedence in voting was withdrawn only from the nobility, not from those of the highest rating; the right of prior voting withdrawn from the equestrian centuries passed not to a division chosen incidentally by lot from the whole burgesses, but exclusively to the first class. This as well as the five grades generally remained as they were; only the lower limit was probably shifted in such a way that the minimum census was, for the right of voting in the centuries as for service in the legion, reduced from 11,000 to 4000 -asses-. Besides, the formal retention of the earlier rates, while there was a general increase in the amount of men's means, involved of itself in some measure an extension of the suffrage in a democratic sense. The total number of the divisions remained

likewise unchanged; but, while hitherto, as we have said, the 18 equestrian centuries and the 80 of the first class had, standing by themselves, the majority in the 193 voting centuries, in the reformed arrangement the votes of the first class were reduced to 70, with the result that under all circumstances at least the second grade came to vote. Still more important, and indeed the real central element of the reform, was the connection into which the new voting divisions were brought with the tribal arrangement. Formerly the centuries originated from the tribes on the footing, that whoever belonged to a tribe had to be enrolled by the censor in one of the centuries. From the time that the non-freehold burgesses had been enrolled in the tribes, they too came thus into the centuries, and, while they were restricted in the -comitia tributa- to the four urban divisions, they had in the -comitia centuriata- formally the same right with the freehold burgesses, although probably the censorial arbitrary prerogative intervened in the composition of the centuries, and granted to the burgesses enrolled in the rural tribes the preponderance also in the centuriate assembly. This preponderance was established by the reformed arrangement on the legal footing, that of the 70 centuries of the first class, two were assigned to each tribe and, accordingly, the non-freehold burgesses obtained only eight of them; in a similar way the preponderance must have been conceded also in the four other grades to the freehold burgesses. In a like spirit the previous equalization of the freedmen with the free-born in the right of voting was set aside at this time, and even the freehold freedmen were assigned to the four urban tribes. This was done in the year 534 by one of the most notable men of the party of reform, the censor Gaius Flaminius, and was then repeated and more stringently enforced fifty years later (585) by the censor Tiberius Sempronius Gracchus, the father of the two authors of the Roman revolution. This reform of the centuries, which perhaps in its totality proceeded likewise from Flaminius, was the first important constitutional change which the new opposition wrung from the nobility, the first victory

of the democracy proper. The pith of it consists partly in the restriction of the censorial arbitrary rule, partly in the restriction of the influence of the nobility on the one hand, and of the non-freeholders and the freedmen on the other, and so in the remodelling of the centuriate comitia according to the principle which already held good for the comitia of the tribes; a course which commended itself by the circumstance that elections, projects of law, criminal impeachments, and generally all affairs requiring the co-operation of the burgesses, were brought throughout to the comitia of the tribes and the more unwieldy centuries were but seldom called together, except where it was constitutionally necessary or at least usual, in order to elect the censors, consuls, and praetors, and in order to resolve upon an aggressive war.

Thus this reform did not introduce a new principle into the constitution, but only brought into general application the principle that had long regulated the working of the practically more frequent and more important form of the burgess-assemblies. Its democratic, but by no means demagogic, tendency is clearly apparent in the position which it took up towards the proper supports of every really revolutionary party, the proletariat and the freedmen. For that reason the practical significance of this alteration in the order of voting regulating the primary assemblies must not be estimated too highly. The new law of election did not prevent, and perhaps did not even materially impede, the contemporary formation of a new politically privileged order. It is certainly not owing to the mere imperfection of tradition, defective as it undoubtedly is, that we are nowhere able to point to a practical influence exercised by this much-discussed reform on the course of political affairs. An intimate connection, we may add, subsisted between this reform, and the already-mentioned abolition of the Roman burgess-communities -sine suffragio-, which were gradually merged in the community of full burgesses. The levelling spirit of the party of progress suggested the abolition of distinctions within the

middle class, while the chasm between burgesses and non-burgesses was at the same time widened and deepened.

Results of the Efforts at Reform

Reviewing what the reform party of this age aimed at and obtained, we find that it undoubtedly exerted itself with patriotism and energy to check, and to a certain extent succeeded in checking, the spread of decay—more especially the falling off of the farmer class and the relaxation of the old strict and frugal habits—as well as the preponderating political influence of the new nobility. But we fail to discover any higher political aim. The discontent of the multitude and the moral indignation of the better classes found doubtless in this opposition their appropriate and powerful expression; but we do not find either a clear insight into the sources of the evil, or any definite and comprehensive plan of remedying it. A certain want of thought pervades all these efforts otherwise so deserving of honour, and the purely defensive attitude of the defenders forebodes little good for the sequel. Whether the disease could be remedied at all by human skill, remains fairly open to question; the Roman reformers of this period seem to have been good citizens rather than good statesmen, and to have conducted the great struggle between the old civism and the new cosmopolitanism on their part after a somewhat inadequate and narrow-minded fashion.

Demagogism

But, as this period witnessed the rise of a rabble by the side of the burgesses, so it witnessed also the emergence of a demagogism that flattered the populace alongside of the respectable and useful party of opposition. Cato was already acquainted with men who made a trade of demagogism; who had a morbid propensity for speechifying, as others had for drinking or for sleeping; who hired listeners, if they could find no willing audience otherwise; and whom people heard as they heard the

market-crier, without listening to their words or, in the event of needing help, entrusting themselves to their hands. In his caustic fashion the old man describes these fops formed after the model of the Greek talkers of the agora, dealing in jests and witticisms, singing and dancing, ready for anything; such an one was, in his opinion, good for nothing but to exhibit himself as harlequin in a procession and to bandy talk with the public—he would sell his talk or his silence for a bit of bread. In reality these demagogues were the worst enemies of reform. While the reformers insisted above all things and in every direction on moral amendment, demagogism preferred to insist on the limitation of the powers of the government and the extension of those of the burgesses.

Abolition of the Dictatorship

Under the former head the most important innovation was the practical abolition of the dictatorship. The crisis occasioned by Quintus Fabius and his popular opponents in 537(61) gave the death-blow to this all-along unpopular institution. Although the government once afterwards, in 538, under the immediate impression produced by the battle of Cannae, nominated a dictator invested with active command, it could not again venture to do so in more peaceful times. On several occasions subsequently (the last in 552), sometimes after a previous indication by the burgesses of the person to be nominated, a dictator was appointed for urban business; but the office, without being formally abolished, fell practically into desuetude. Through its abeyance the Roman constitutional system, so artificially constructed, lost a corrective which was very desirable with reference to its peculiar feature of collegiate magistrates;(62) and the government, which was vested with the sole power of creating a dictatorship or in other words of suspending the consuls, and ordinarily designated also the person who was to be nominated as dictator, lost one of its most important instruments. Its place was but very imperfectly supplied by the power—which the senate

thenceforth claimed—of conferring in extraordinary emergencies, particularly on the sudden outbreak of revolt or war, a quasi- dictatorial power on the supreme magistrates for the time being, by instructing them "to take measures for the safety of the commonwealth at their discretion," and thus creating a state of things similar to the modern martial law.

Election of Priests by the Community

Along with this change the formal powers of the people in the nomination of magistrates as well as in questions of government, administration, and finance, received a hazardous extension. The priesthoods—particularly those politically most important, the colleges of men of lore—according to ancient custom filled up the vacancies in their own ranks, and nominated also their own presidents, where these corporations had presidents at all; and in fact, for such institutions destined to transmit the knowledge of divine things from generation to generation, the only form of election in keeping with their spirit was cooptation. It was therefore—although not of great political importance—significant of the incipient disorganization of the republican arrangements, that at this time (before 542), while election into the colleges themselves was left on its former footing, the designation of the presidents—the -curiones- and -pontifices- —from the ranks of those corporations was transferred from the colleges to the community. In this case, however, with a pious regard for forms that is genuinely Roman, in order to avoid any error, only a minority of the tribes, and therefore not the "people," completed the act of election.

Interference of the Community in War and Administration

Of greater importance was the growing interference of the burgesses in questions as to persons and things belonging to the sphere of military administration and external policy. To this head belong the transference of the nomination of the ordinary staff-officers from the general to the

burgesses, which has been already mentioned;(63) the elections of the leaders of the opposition as commanders-in-chief against Hannibal;(64) the unconstitutional and irrational decree of the people in 537, which divided the supreme command between the unpopular generalissimo and his popular lieutenant who opposed him in the camp as well as at home;(65) the tribunician complaint laid before the burgesses, charging an officer like Marcellus with injudicious and dishonest management of the war (545), which even compelled him to come from the camp to the capital and there demonstrate his military capacity before the public; the still more scandalous attempts to refuse by decree of the burgesses to the victor of Pydna his triumph;(66) the investiture—suggested, it is true, by the senate—of a private man with extraordinary consular authority (544;(67)); the dangerous threat of Scipio that, if the senate should refuse him the chief command in Africa, he would seek the sanction of the burgesses (549;(68)); the attempt of a man half crazy with ambition to extort from the burgesses, against the will of the government, a declaration of war in every respect unwarranted against the Rhodians (587;(69)); and the new constitutional axiom, that every state-treaty acquired validity only through the ratification of the people.

Interference of the Community with the Finances

This joint action of the burgesses in governing and in commanding was fraught in a high degree with peril. But still more dangerous was their interference with the finances of the state; not only because any attack on the oldest and most important right of the government—the exclusive administration of the public property—struck at the root of the power of the senate, but because the placing of the most important business of this nature—the distribution of the public domains—in the hands of the primary assemblies of the burgesses necessarily dug the grave of the republic. To allow the primary assembly to decree the transference of public property

without limit to its own pocket is not only wrong, but is the beginning of the end; it demoralizes the best-disposed citizens, and gives to the proposer a power incompatible with a free commonwealth. Salutory as was the distribution of the public land, and doubly blameable as was the senate accordingly for omitting to cut off this most dangerous of all weapons of agitation by voluntarily distributing the occupied lands, yet Gaius Flaminius, when he came to the burgesses in 522 with the proposal to distribute the domains of Picenum, undoubtedly injured the commonwealth more by the means than he benefited it by the end. Spurius Cassius had doubtless two hundred and fifty years earlier proposed the same thing;(70) but the two measures, closely as they coincided in the letter, were yet wholly different, inasmuch as Cassius submitted a matter affecting the community to that community while it was in vigour and self-governing, whereas Flaminius submitted a question of state to the primary assembly of a great empire.

Nullity of the Comitia

Not the party of the government only, but the party of reform also, very properly regarded the military, executive, and financial government as the legitimate domain of the senate, and carefully abstained from making full use of, to say nothing of augmenting, the formal power vested in primary assemblies that were inwardly doomed to inevitable dissolution. Never even in the most limited monarchy was a part so completely null assigned to the monarch as was allotted to the sovereign Roman people: this was no doubt in more than one respect to be regretted, but it was, owing to the existing state of the comitial machine, even in the view of the friends of reform a matter of necessity. For this reason Cato and those who shared his views never submitted to the burgesses a question, which trenched on government strictly so called; and never, directly or indirectly, by decree of the burgesses extorted from the senate the political or financial measures which

they wished, such as the declaration of war against Carthage and the assignments of land. The government of the senate might be bad; the primary assemblies could not govern at all. Not that an evil-disposed majority predominated in them; on the contrary the counsel of a man of standing, the loud call of honour, and the louder call of necessity were still, as a rule, listened to in the comitia, and averted the most injurious and disgraceful results. The burgesses, before whom Marcellus pleaded his cause, ignominiously dismissed his accuser, and elected the accused as consul for the following year: they suffered themselves also to be persuaded of the necessity of the war against Philip, terminated the war against Perseus by the election of Paullus, and accorded to the latter his well-deserved triumph. But in order to such elections and such decrees there was needed some special stimulus; in general the mass having no will of its own followed the first impulse, and folly or accident dictated the decision.

Disorganisation of Government

In the state, as in every organism, an organ which no longer discharges its functions is injurious. The nullity of the sovereign assembly of the people involved no small danger. Any minority in the senate might constitutionally appeal to the comitia against the majority. To every individual, who possessed the easy art of addressing untutored ears or of merely throwing away money, a path was opened up for his acquiring a position or procuring a decree in his favour, to which the magistrates and the government were formally bound to do homage. Hence sprang those citizen-generals, accustomed to sketch plans of battle on the tables of taverns and to look down on the regular service with compassion by virtue of their inborn genius for strategy: hence those staff-officers, who owed their command to the canvassing intrigues of the capital and, whenever matters looked serious, had at once to get leave of absence -en masse-; and hence the battles on the Trasimene lake and at Cannae, and the disgraceful

management of the war with Perseus. At every step the government was thwarted and led astray by those incalculable decrees of the burgesses, and as was to be expected, most of all in the very cases where it was most in the right.

But the weakening of the government and the weakening of the community itself were among the lesser dangers that sprang from this demagogism. Still more directly the factious violence of individual ambition pushed itself forward under the aegis of the constitutional rights of the burgesses. That which formally issued forth as the will of the supreme authority in the state was in reality very often the mere personal pleasure of the mover; and what was to be the fate of a commonwealth in which war and peace, the nomination and deposition of the general and his officers, the public chest and the public property, were dependent on the caprices of the multitude and its accidental leaders? The thunder-storm had not yet burst; but the clouds were gathering in denser masses, and occasional peals of thunder were already rolling through the sultry air. It was a circumstance, moreover, fraught with double danger, that the tendencies which were apparently most opposite met together at their extremes both as regarded ends and as regarded means. Family policy and demagogism carried on a similar and equally dangerous rivalry in patronizing and worshipping the rabble. Gaius Flaminius was regarded by the statesmen of the following generation as the initiator of that course from which proceeded the reforms of the Gracchi and—we may add—the democratico-monarchical revolution that ensued. But Publius Scipio also, although setting the fashion to the nobility in arrogance, title-hunting, and client-making, sought support for his personal and almost dynastic policy of opposition to the senate in the multitude, which he not only charmed by the dazzling effect of his personal qualities, but also bribed by his largesses of grain; in the legions, whose favour he courted by all means whether right or wrong; and above all in the body of clients, high and low, that personally adhered to him. Only the

dreamy mysticism, on which the charm as well as the weakness of that remarkable man so largely depended, never suffered him to awake at all, or allowed him to awake but imperfectly, out of the belief that he was nothing, and that he desired to be nothing, but the first burgess of Rome.

To assert the possibility of a reform would be as rash as to deny it: this much is certain, that a thorough amendment of the state in all its departments was urgently required, and that in no quarter was any serious attempt made to accomplish it. Various alterations in details, no doubt, were made on the part of the senate as well as on the part of the popular opposition. The majorities in each were still well disposed, and still frequently, notwithstanding the chasm that separated the parties, joined hands in a common endeavour to effect the removal of the worst evils. But, while they did not stop the evil at its source, it was to little purpose that the better-disposed listened with anxiety to the dull murmur of the swelling flood and worked at dikes and dams. Contenting themselves with palliatives, and failing to apply even these—especially such as were the most important, the improvement of justice, for instance, and the distribution of the domains—in proper season and due measure, they helped to prepare evil days for their posterity. By neglecting to break up the field at the proper time, they allowed weeds even to ripen which they had not sowed. To the later generations who survived the storms of revolution the period after the Hannibalic war appeared the golden age of Rome, and Cato seemed the model of the Roman statesman. It was in reality the lull before the storm and the epoch of political mediocrities, an age like that of the government of Walpole in England; and no Chatham was found in Rome to infuse fresh energy into the stagnant life of the nation. Wherever we cast our eyes, chinks and rents are yawning in the old building; we see workmen busy sometimes in filling them up, sometimes in enlarging them; but we nowhere perceive any trace of preparations for thoroughly rebuilding or renewing it, and the question is no longer whether, but simply when, the

structure will fall. During no epoch did the Roman constitution remain formally so stable as in the period from the Sicilian to the third Macedonian war and for a generation beyond it; but the stability of the constitution was here, as everywhere, not a sign of the health of the state, but a token of incipient sickness and the harbinger of revolution.

Notes for Chapter XI

1. II. III. New Aristocracy

2. II. III. New Opposition

3. II. III. Military Tribunes with Consular Powers

4. All these insignia probably belonged on their first emergence only to the nobility proper, i. e. to the agnate descendants of curule magistrates; although, after the manner of such decorations, all of them in course of time were extended to a wider circle. This can be distinctly proved in the case of the gold finger-ring, which in the fifth century was worn only by the nobility (Plin. H. N., xxxiii. i. 18), in the sixth by every senator and senator's son (Liv. xxvi. 36), in the seventh by every one of equestrian rank, under the empire by every one who was of free birth. So also with the silver trappings, which still, in the second Punic war, formed a badge of the nobility alone (Liv. xxvi. 37); and with the purple border of the boys' toga, which at first was granted only to the sons of curule magistrates, then to the sons of equites, afterwards to those of all free-born persons, lastly—yet as early as the time of the second Punic war—even to the sons of freedmen (Macrob. Sat. i. 6). The golden amulet-case (-bullā-) was a badge of the children of senators in the time of the second Punic war (Macrob. l. c.; Liv.

xxvi. 36), in that of Cicero as the badge of the children of the equestrian order (Cic. Verr. i. 58, 152), whereas children of inferior rank wore the leathern amulet (-lorum-). The purple stripe (-clavus-) on the tunic was a badge of the senators (I. V. Prerogatives of the Senate) and of the equites, so that at least in later times the former wore it broad, the latter narrow; with the nobility the -clavus- had nothing to do.

5. II. III. Civic Equality

6. Plin. H. N. xxi. 3, 6. The right to appear crowned in public was acquired by distinction in war (Polyb. vi. 39, 9; Liv. x. 47); consequently, the wearing a crown without warrant was an offence similar to the assumption, in the present day, of the badge of a military order of merit without due title.

7. II. III. Praetorship

8. Thus there remained excluded the military tribunate with consular powers (II. III. Throwing Open of Marriage and of Magistracies) the proconsulship, the quaestorship, the tribunate of the people, and several others. As to the censorship, it does not appear, notwithstanding the curule chair of the censors (Liv. xl. 45; comp, xxvii. 8), to have been reckoned a curule office; for the later period, however, when only a man of consular standing could be made censor, the question has no practical importance. The plebeian aedileship certainly was not reckoned originally one of the curule magistracies (Liv. xxiii. 23); it may, however, have been subsequently included amongst them.

9. II. I. Government of the Patriciate

10. II. III. Censorship

11. II. III. The Senate

12. The current hypothesis, according to which the six centuries of the nobility alone amounted to 1200, and the whole equestrian force accordingly to 3600 horse, is not tenable. The method of determining the number of the equites by the number of duplications specified by the annalists is mistaken: in fact, each of these statements has originated and is to be explained by itself. But there is no evidence either for the first number, which is only found in the passage of Cicero, *De Rep.* ii. 20, acknowledged as miswritten even by the champions of this view, or for the second, which does not appear at all in ancient authors. In favour, on the other hand, of the hypothesis set forth in the text, we have, first of all, the number as indicated not by authorities, but by the institutions themselves; for it is certain that the century numbered 100 men, and there were originally three (I. V. Burdens of the Burgesses), then six (I. Vi. Amalgamation of the Palatine and Quirinal Cities), and lastly after the Servian reform eighteen (I. VI. The Five Classes), equestrian centuries. The deviations of the authorities from this view are only apparent. The old self-consistent tradition, which Becker has developed (ii. i, 243), reckons not the eighteen patricio-plebeian, but the six patrician, centuries at 1800 men; and this has been manifestly followed by Livy, i. 36 (according to the reading which alone has manuscript authority, and which ought not to be corrected from Livy's particular estimates), and by Cicero *l. c.* (according to the only reading grammatically admissible, MDCCC.; see Becker, ii. i, 244). But Cicero at the same time indicates very plainly, that in that statement he intended to describe the then existing amount of the Roman equites in general. The number of the whole body has therefore been transferred to the most prominent portion of it by a prolepsis, such as is common in the case of the old annalists not too much given to reflection: just in the same way 300 equites instead of 100 are assigned to the parent-community, including, by anticipation, the contingents of the Tities and the Luceres (Becker, ii. i,

238). Lastly, the proposition of Cato (p. 66, Jordan), to raise the number of the horses of the equites to 2200, is as distinct a confirmation of the view proposed above, as it is a distinct refutation of the opposite view. The closed number of the equites probably continued to subsist down to Sulla's time, when with the -de facto- abeyance of the censorship the basis of it fell away, and to all appearance in place of the censorial bestowal of the equestrian horse came its acquisition by hereditary right; thenceforth the senator's son was by birth an -eques-. Alongside, however, of this closed equestrian body, the -equites equo publico-, stood from an early period of the republic the burgesses bound to render mounted service on their own horses, who are nothing but the highest class of the census; they do not vote in the equestrian centuries, but are regarded otherwise as equites, and lay claim likewise to the honorary privileges of the equestrian order.

In the arrangement of Augustus the senatorial houses retained the hereditary equestrian right; but by its side the censorial bestowal of the equestrian horse is renewed as a prerogative of the emperor and without restriction to a definite time, and thereby the designation of equites for the first class of the census as such falls into abeyance.

13. II. III. Increasing Powers of the Burgesses

14. II. VIII. Officers

15. II. III. Restrictions As to the Accumulation and Reoccupation of Offices

16. II. III. New Opposition

17. The stability of the Roman nobility may be clearly traced, more especially in the case of the patrician -gentes-, by means of the consular and aedilician Fasti. As is well known, the consulate was held by one patrician

and one plebeian in each year from 388 to 581 (with the exception of the years 399, 400, 401, 403, 405, 409, 411, in which both consuls were patricians). Moreover, the colleges of curule aediles were composed exclusively of patricians in the odd years of the Varronian reckoning, at least down to the close of the sixth century, and they are known for the sixteen years 541, 545, 547, 549, 551, 553, 555, 557, 561, 565, 567, 575, 585, 589, 591, 593. These patrician consuls and aediles are, as respects their -gentes-, distributed as follows:—

	Consuls	Consuls	Curule aediles of those
	388-500	501-581	16 patrician colleges

Cornelii	15	15	15
Valerii	10	8	4
Claudii	4	8	2
Aemilii	9	6	2
Fabii	6	6	1
Manlii	4	6	1
Postumii	2	6	2
Servilii	3	4	2
Quinctii	2	3	1
Furii	2	3	-
Sulpicii	6	4	2
Veturii	-	2	-
Papirii	3	1	-
Nautii	2	-	-
Julii	1	-	1
Foslii	1	-	-

70	70	32
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Thus the fifteen or sixteen houses of the high nobility, that were powerful in the state at the time of the Licinian laws, maintained their ground without material change in their relative numbers—which no doubt were partly kept up by adoption—for the next two centuries, and indeed down to the end of the republic. To the circle of the plebeian nobility new -gentes- doubtless were from time to time added; but the old plebeian houses, such as the Licinii, Fulvii, Atilii, Domitii, Marcii, Junii, predominate very decidedly in the Fasti throughout three centuries.

18. I. V. The Senate

19. III. IX. Death of Scipio

20. III. X. Their Lax and Unsuccessful Management of the War f.

21. III. VI. In Italy

22. III. VI. Conquest of Sicily

23. The expenses of these were, however, probably thrown in great part on the adjoining inhabitants. The old system of making requisitions of task-work was not abolished: it must not unfrequently have happened that the slaves of the landholders were called away to be employed in the construction of roads. (Cato, de R. R. 2)

24. III. VI. Pressure of the War

25. III. VI. In Italy

26. III. VII. Celtic Wars

27. III. VI In Italy

28. III. VII. Latins

29. II. VII. Non-Latin Allied Communities

30. III. VII. Latins

31. Thus, as is well known, Ennius of Rudiae received burgess-rights from one of the triumvirs, Q. Fulvius Nobilior, on occasion of the founding of the burgess-colonies of Potentia and Pisaurum (Cic. Brut. 20, 79); whereupon, according to the well-known custom, he adopted the -praenomen- of the latter. The non-burgesses who were sent to share in the foundation of a burgess-colony, did not, at least in tin's epoch, thereby acquire -de jure- Roman citizenship, although they frequently usurped it (Liv. xxxiv. 42); but the magistrates charged with the founding of a colony were empowered, by a clause in the decree of the people relative to each case, to confer burgess-rights on a limited number of persons (Cic. pro Balb. 21, 48).

32. III. VII. Administration of Spain

33. III. IX. Expedition against the Celts in Asia Minor

34. III. X. Their Lax and Unsuccessful Management of the War f.

35. II. I. Term of Office

36. III. VII. Administration of Spain

37. III. XI. Italian Subjects, Roman Franchise More Difficult of Acquisition

38. III. XI. Roman Franchise More Difficult of Acquisition

39. In Cato's treatise on husbandry, which, as is well known, primarily relates to an estate in the district of Venafrum, the judicial discussion of

such processes as might arise is referred to Rome only as respects one definite case; namely, that in which the landlord leases the winter pasture to the owner of a flock of sheep, and thus has to deal with a lessee who, as a rule, is not domiciled in the district (c. 149). It may be inferred from this, that in ordinary cases, where the contract was with a person domiciled in the district, such processes as might spring out of it were even in Cato's time decided not at Rome, but before the local judges.

40. II. VII. The Full Roman Franchise

41. II. VII. Subject Communities

42. III. VIII. Declaration of War by Rome

43. II. III. The Burgess-Body

44. III. XI. Patricio-Plebian Nobility

45. The laying out of the circus is attested. Respecting the origin of the plebeian games there is no ancient tradition (for what is said by the Pseudo-Asconius, p. 143, Orell. is not such); but seeing that they were celebrated in the Flaminian circus (Val. Max. i, 7, 4), and first certainly occur in 538, four years after it was built (Liv. xxiii. 30), what we have stated above is sufficiently proved.

46. II. II. Political Value of the Tribunate

47. III. IX. Landing of the Romans

48. III. IX. Death of Scipio. The first certain instance of such a surname is that of Manius Valerius Maximus, consul in 491, who, as conqueror of Messana, assumed the name Messalla (ii. 170): that the consul of 419 was, in a similar manner, called Calenus, is an error. The presence of Maximus

as a surname in the Valerian (i. 348) and Fabian (i. 397) clans is not quite analogous.

49. III. XI. Patricio-Plebian Nobility

50. II. III. New Opposition

51. III. III. The Celts Conquered by Rome

52. III. VI. In Italy

53. III. III. The Celts Conquered by Rome

54. III. VII. Liguria

55. III. VII. Measures Adopted to Check the Immigration of the Transalpine Gauls

56. III. VII. Liguria

57. III. XI. The Nobility in Possession of the Equestrian Centuries

58. III. V. Attitude of the Romans, III. VI. Conflicts in the South of Italy

59. II. III. The Burgess-Body

60. As to the original rates of the Roman census it is difficult to lay down anything definite. Afterwards, as is well known, 100,000 -asses- was regarded as the minimum census of the first class; to which the census of the other four classes stood in the (at least approximate) ratio of $\frac{3}{4}$, $\frac{1}{2}$, $\frac{1}{4}$, $\frac{1}{9}$. But these rates are understood already by Polybius, as by all later authors, to refer to the light -as- ($\frac{1}{10}$ th of the -denarius-), and apparently this view must be adhered to, although in reference to the Voconian law the same sums are reckoned as heavy -asses- ($\frac{1}{4}$ of the -denarius-: Geschichte

des Rom. Munzwesens, p. 302). But Appius Claudius, who first in 442 expressed the census-rates in money instead of the possession of land (II. III. The Burgess-Body), cannot in this have made use of the light -as-, which only emerged in 485 (II. VIII. Silver Standard of Value). Either therefore he expressed the same amounts in heavy -asses-, and these were at the reduction of the coinage converted into light; or he proposed the later figures, and these remained the same notwithstanding the reduction or the coinage, which in this case would have involved a lowering of the class-rates by more than the half. Grave doubts may be raised in opposition to either hypothesis; but the former appears the more credible, for so exorbitant an advance in democratic development is not probable either for the end of the fifth century or as an incidental consequence of a mere administrative measure, and besides it would scarce have disappeared wholly from tradition. 100,000 light -asses-, or 40,000 sesterces, may, moreover, be reasonably regarded as the equivalent of the original Roman full hide of perhaps 20 -jugera- (I. VI. Time and Occasion of the Reform); so that, according to this view, the rates of the census as a whole have changed merely in expression, and not in value.

61. III. V. Fabius and Minucius

62. II. I. The Dictator

63. III. XI. Election of Officers in the Comitia

64. III. V. Flaminius, New Warlike Preparations in Rome

65. III. V. Fabius and Minucius

66. III. XI. Squandering of the Spoil

67. III. VI. Publius Scipio

68. III. VI. The African Expedition of Scipio

69. III. X. Humiliation of Rhodes

70. II. II. Agrarian Law of Spurius Cassius

CHAPTER XII

The Management of Land and of Capital

Roman Economics

It is in the sixth century of the city that we first find materials for a history of the times exhibiting in some measure the mutual connection of events; and it is in that century also that the economic condition of Rome emerges into view more distinctly and clearly. It is at this epoch that the wholesale system, as regards both the cultivation of land and the management of capital, becomes first established under the form, and on the scale, which afterwards prevailed; although we cannot exactly discriminate how much of that system is traceable to earlier precedent, how much to an imitation of the methods of husbandry and of speculation among peoples that were earlier civilized, especially the Phoenicians, and how much to the increasing mass of capital and the growth of intelligence in the nation. A summary outline of these economic relations will conduce to a more accurate understanding of the internal history of Rome.

Roman husbandry⁽¹⁾ applied itself either to the farming of estates, to the occupation of pasture lands, or to the tillage of petty holdings. A very distinct view of the first of these is presented to us in the description given by Cato.

Farming of Estates

Their Size

The Roman land-estates were, considered as larger holdings, uniformly of limited extent. That described by Cato had an area of 240 jugera; a very common measure was the so-called -centuria- of 200 -jugera-. Where the laborious culture of the vine was pursued, the unit of husbandry was made still less; Cato assumes in that case an area of 100 -jugera-. Any one who wished to invest more capital in farming did not enlarge his estate, but acquired several estates; accordingly the amount of 500 -jugera-,⁽²⁾ fixed as the maximum which it was allowable to occupy, has been conceived to represent the contents of two or three estates.

Management of the Estate

Object of Husbandry

The heritable lease was not recognised in the management of Italian private any more than of Roman public land; it occurred only in the case of the dependent communities. Leases for shorter periods, granted either for a fixed sum of money or on condition that the lessee should bear all the costs of tillage and should receive in return a share, ordinarily perhaps one half, of the produce,⁽³⁾ were not unknown, but they were exceptional and a makeshift; so that no distinct class of tenant-farmers grew up in Italy.⁽⁴⁾ Ordinarily therefore the proprietor himself superintended the cultivation of his estates; he did not, however, manage them strictly in person, but only appeared from time to time on the property in order to settle the plan of operations, to look after its execution, and to audit the accounts of his servants. He was thus enabled on the one hand to work a number of estates at the same time, and on the other hand to devote himself, as circumstances might require, to public affairs.

The grain cultivated consisted especially of spelt and wheat, with some barley and millet; turnips, radishes, garlic, poppies, were also grown, and—particularly as fodder for the cattle—lupines, beans, pease, vetches, and other leguminous plants. The seed was sown ordinarily in autumn, only in exceptional cases in spring. Much activity was displayed in irrigation and draining; and drainage by means of covered ditches was early in use. Meadows also for supplying hay were not wanting, and even in the time of Cato they were frequently irrigated artificially. Of equal, if not of greater, economic importance than grain and vegetables were the olive and the vine, of which the former was planted between the crops, the latter in vineyards appropriated to itself.⁽⁵⁾ Figs, apples, pears, and other fruit trees were cultivated; and likewise elms, poplars, and other leafy trees and shrubs, partly for the felling of the wood, partly for the sake of the leaves which were useful as litter and as fodder for cattle. The rearing of cattle, on the other hand, held a far less important place in the economy of the Italians than it holds in modern times, for vegetables formed the general fare, and animal food made its appearance at table only exceptionally; where it did appear, it consisted almost solely of the flesh of swine or lambs. Although the ancients did not fail to perceive the economic connection between agriculture and the rearing of cattle, and in particular the importance of producing manure, the modern combination of the growth of corn with the rearing of cattle was a thing foreign to antiquity. The larger cattle were kept only so far as was requisite for the tillage of the fields, and they were fed not on special pasture-land, but, wholly during summer and mostly during winter also, in the stall. Sheep, again, were driven out on the stubble pasture; Cato allows 100 head to 240 -jugera-. Frequently, however, the proprietor preferred to let his winter pasture to a large sheep-owner, or to hand over his flock of sheep to a lessee who was to share the produce, stipulating for the delivery of a certain number of lambs and of a certain quantity of cheese and milk. Swine—Cato assigns to a large estate ten sties—poultry, and

pigeons were kept in the farmyard, and fed as there was need; and, where opportunity offered, a small hare-preserve and a fish-pond were constructed—the modest commencement of that nursing and rearing of game and fish which was afterwards prosecuted to so enormous an extent.

Means of Husbandry

Cattle

The labours of the field were performed by means of oxen which were employed for ploughing, and of asses, which were used specially for the carriage of manure and for driving the mill; perhaps a horse also was kept, apparently for the use of the master. These animals were not reared on the estate, but were purchased; oxen and horses at least were generally castrated. Cato assigns to an estate of 100 -jugera- one, to one of 240 -jugera- three, yoke of oxen; a later writer on agriculture, Saserna, assigns two yoke to the 200 -jugera-. Three asses were, according to Cato's estimate, required for the smaller, and four for the larger, estate.

Slaves

The human labour on the farm was regularly performed by slaves. At the head of the body of slaves on the estate (-familia rustica-) stood the steward (-vilicus-, from -villa-), who received and expended, bought and sold, went to obtain the instructions of the landlord, and in his absence issued orders and administered punishment. Under him were placed the stewardess (-vilica-) who took charge of the house, kitchen and larder, poultry-yard and dovecot: a number of ploughmen (-bubulci-) and common serfs, an ass-driver, a swineherd, and, where a flock of sheep was kept, a shepherd. The number, of course, varied according to the method of husbandry pursued. An arable estate of 200 -jugera- without orchards was estimated to require two ploughmen and six serfs: a similar estate with two orchards two ploughmen and nine serfs; an estate of 240 -jugera- with olive plantations

and sheep, three ploughmen, five serfs, and three herdsmen. A vineyard naturally required a larger expenditure of labour: an estate of 100 -jugera- with vine-plantations was supplied with one ploughman, eleven serfs, and two herdsmen. The steward of course occupied a freer position than the other slaves: the treatise of Mago advised that he should be allowed to marry, to rear children, and to have funds of his own, and Cato advises that he should be married to the stewardess; he alone had some prospect, in the event of good behaviour, of obtaining liberty from his master. In other respects all formed a common household. The slaves were, like the larger cattle, not bred on the estate, but purchased at an age capable of labour in the slave-market; and, when through age or infirmity they had become incapable of working, they were again sent with other refuse to the market. (6) The farm- buildings (-villa rustica-) supplied at once stabling for the cattle, storehouses for the produce, and a dwelling for the steward and the slaves; while a separate country house (-villa urbana-) for the master was frequently erected on the estate. Every slave, even the steward himself, had all the necessities of life delivered to him on the master's behalf at certain times and according to fixed rates; and upon these he had to subsist. He received in this way clothes and shoes, which were purchased in the market, and which the recipients had merely to keep in repair; a quantity of wheat monthly, which each had to grind for himself; as also salt, olives or salted fish to form a relish to their food, wine, and oil. The quantity was adjusted according to the work; on which account the steward, who had easier work than the common slaves, got scantier measure than these. The stewardess attended to all the baking and cooking; and all partook of the same fare. It was not the ordinary practice to place chains on the slaves; but when any one had incurred punishment or was thought likely to attempt an escape, he was set to work in chains and was shut up during the night in the slaves' prison.(7)

Other Labourers

Ordinarily these slaves belonging to the estate were sufficient; in case of need neighbours, as a matter of course, helped each other with their slaves for day's wages. Otherwise labourers from without were not usually employed, except in peculiarly unhealthy districts, where it was found advantageous to limit the amount of slaves and to employ hired persons in their room, and for the ingathering of the harvest, for which the regular supply of labour on the farm did not suffice. At the corn and hay harvests they took in hired reapers, who often instead of wages received from the sixth to the ninth sheaf of the produce reaped, or, if they also thrashed, the fifth of the grain: Umbrian labourers, for instance, went annually in great numbers to the vale of Rieti, to help to gather in the harvest there. The grape and olive harvest was ordinarily let to a contractor, who by means of his men—hired free labourers, or slaves of his own or of others—conducted the gleaning and pressing under the inspection of some persons appointed by the landlord for the purpose, and delivered the produce to the master;(8) very frequently the landlord sold the harvest on the tree or branch, and left the purchaser to look after the ingathering.

Spirit of the System

The whole system was pervaded by the utter regardless-ness characteristic of the power of capital. Slaves and cattle stood on the same level; a good watchdog, it is said in a Roman writer on agriculture, must not be on too friendly terms with his "fellow- slaves." The slave and the ox were fed properly so long as they could work, because it would not have been good economy to let them starve; and they were sold like a worn-out ploughshare when they became unable to work, because in like manner it would not have been good economy to retain them longer. In earlier times religious considerations had here also exercised an alleviating influence, and had released the slave and the plough-ox from labour on the days enjoined for festivals and for rest.(9) Nothing is more characteristic of the

spirit of Cato and those who shared his sentiments than the way in which they inculcated the observance of the holiday in the letter, and evaded it in reality, by advising that, while the plough should certainly be allowed to rest on these days, the slaves should even then be incessantly occupied with other labours not expressly prohibited. On principle no freedom of movement whatever was allowed to them—a slave, so runs one of Cato's maxims, must either work or sleep—and no attempt was ever made to attach the slaves to the estate or to their master by any bond of human sympathy. The letter of the law in all its naked hideousness regulated the relation, and the Romans indulged no illusions as to the consequences. "So many slaves, so many foes," said a Roman proverb. It was an economic maxim, that dissensions among the slaves ought rather to be fostered than suppressed. In the same spirit Plato and Aristotle, and no less strongly the oracle of the landlords, the Carthaginian Mago, caution masters against bringing together slaves of the same nationality, lest they should originate combinations and perhaps conspiracies of their fellow-countrymen. The landlord, as we have already said, governed his slaves exactly in the same way as the Roman community governed its subjects in the "country estates of the Roman people," the provinces; and the world learned by experience, that the ruling state had modelled its new system of government on that of the slave-holder. If, moreover, we have risen to that little-to-be-envied elevation of thought which values no feature of an economy save the capital invested in it, we cannot deny to the management of the Roman estates the praise of consistency, energy, punctuality, frugality, and solidity. The pithy practical husbandman is reflected in Cato's description of the steward, as he ought to be. He is the first on the farm to rise and the last to go to bed; he is strict in dealing with himself as well as with those under him, and knows more especially how to keep the stewardess in order, but is also careful of his labourers and his cattle, and in particular of the ox that draws the plough; he puts his hand frequently to work and to every kind of it, but

never works himself weary like a slave; he is always at home, never borrows nor lends, gives no entertainments, troubles himself about no other worship than that of the gods of the hearth and the field, and like a true slave leaves all dealings with the gods as well as with men to his master; lastly and above all, he modestly meets that master and faithfully and simply, without exercising too little or too much of thought, conforms to the instructions which that master has given. He is a bad husbandman, it is elsewhere said, who buys what he can raise on his own land; a bad father of a household, who takes in hand by day what can be done by candle-light, unless the weather be bad; a still worse, who does on a working-day what might be done on a holiday; but worst of all is he, who in good weather allows work to go on within doors instead of in the open air. The characteristic enthusiasm too of high farming is not wanting; and the golden rules are laid down, that the soil was given to the husbandman not to be scoured and swept but to be sown and reaped, and that the farmer therefore ought first to plant vines and olives and only thereafter, and that not too early in life, to build himself a villa. A certain boorishness marks the system, and, instead of the rational investigation of causes and effects, the well-known rules of rustic experience are uniformly brought forward; yet there is an evident endeavour to appropriate the experience of others and the products of foreign lands: in Cato's list of the sorts of fruit trees, for instance, Greek, African, and Spanish species appear.

Husbandry of the Petty Farmers

The husbandry of the petty farmer differed from that of the estate-holder only or chiefly in its being on a smaller scale. The owner himself and his children in this case worked along with the slaves or in their room. The quantity of cattle was reduced, and, where an estate no longer covered the expenses of the plough and of the yoke that drew it, the hoe formed the

substitute. The culture of the olive and the vine was less prominent, or was entirely wanting.

In the vicinity of Rome or of any other large seat of consumption there existed also carefully-irrigated gardens for flowers and vegetables, somewhat similar to those which one now sees around Naples; and these yielded a very abundant return.

Pastoral Husbandry

Pastoral husbandry was prosecuted on a great scale far more than agriculture. An estate in pasture land (-saltus-) had of necessity in every case an area considerably greater than an arable estate—the least allowance was 800 -jugera- —and it might with advantage to the business be almost indefinitely extended. Italy is so situated in respect of climate that the summer pasture in the mountains and the winter pasture in the plains supplement each other: already at that period, just as at the present day, and for the most part probably along the same paths, the flocks and herds were driven in spring from Apulia to Samnium, and in autumn back again from Samnium to Apulia. The winter pasturage, however, as has been already observed, did not take place entirely on ground kept for the purpose, but was partly the grazing of the stubbles. Horses, oxen, asses, and mules were reared, chiefly to supply the animals required by the landowners, carriers, soldiers, and so forth; herds of swine and of goats also were not neglected. But the almost universal habit of wearing woollen stuffs gave a far greater independence and far higher development to the breeding of sheep. The management was in the hands of slaves, and was on the whole similar to the management of the arable estate, the cattle-master (-magister pecoris-) coming in room of the steward. Throughout the summer the shepherd-slaves lived for the most part not under a roof, but, often miles remote from human habitations, under sheds and sheepfolds; it was necessary therefore

that the strongest men should be selected for this employment, that they should be provided with horses and arms, and that they should be allowed far greater freedom of movement than was granted to the slaves on arable estates.

Results

Competition of Transmarine Corn

In order to form some estimate of the economic results of this system of husbandry, we must consider the state of prices, and particularly the prices of grain at this period. On an average these were alarmingly low; and that in great measure through the fault of the Roman government, which in this important question was led into the most fearful blunders not so much by its short-sightedness, as by an unpardonable disposition to favour the proletariat of the capital at the expense of the farmers of Italy. The main question here was that of the competition between transmarine and Italian corn. The grain which was delivered by the provincials to the Roman government, sometimes gratuitously, sometimes for a moderate compensation, was in part applied by the government to the maintenance of the Roman official staff and of the Roman armies on the spot, partly given up to the lessees of the -decumae- on condition of their either paying a sum of money for it or of their undertaking to deliver certain quantities of grain at Rome or wherever else it should be required. From the time of the second Macedonian war the Roman armies were uniformly supported by transmarine corn, and, though this tended to the benefit of the Roman exchequer, it cut off the Italian farmer from an important field of consumption for his produce. This however was the least part of the mischief. The government had long, as was reasonable, kept a watchful eye on the price of grain, and, when there was a threatening of dearth, had interfered by well-timed purchases abroad; and now, when the corn-deliveries of its subjects brought into its hands every year large quantities of

grain—larger probably than were needed in times of peace—and when, moreover, opportunities were presented to it of acquiring foreign grain in almost unlimited quantity at moderate prices, there was a natural temptation to glut the markets of the capital with such grain, and to dispose of it at rates which either in themselves or as compared with the Italian rates were ruinously low. Already in the years 551-554, and in the first instance apparently at the suggestion of Scipio, 6 -modii- (1 1/2 bush.) of Spanish and African wheat were sold on public account to the citizens of Rome at 24 and even at 12 -asses- (1 shilling 8 pence or ten pence). Some years afterwards (558), more than 240,000 bushels of Sicilian grain were distributed at the latter illusory price in the capital. In vain Cato inveighed against this shortsighted policy: the rise of demagogism had a part in it, and these extraordinary, but presumably very frequent, distributions of grain under the market price by the government or individual magistrates became the germs of the subsequent corn-laws. But, even where the transmarine corn did not reach the consumers in this extraordinary mode, it injuriously affected Italian agriculture. Not only were the masses of grain which the state sold off to the lessees of the tenths beyond doubt acquired under ordinary circumstances by these so cheaply that, when re-sold, they could be disposed of under the price of production; but it is probable that in the provinces, particularly in Sicily—in consequence partly of the favourable nature of the soil, partly of the extent to which wholesale farming and slave-holding were pursued on the Carthaginian system⁽¹⁰⁾—the price of production was in general considerably lower than in Italy, while the transport of Sicilian and Sardinian corn to Latium was at least as cheap as, if not cheaper than, its transport thither from Etruria, Campania, or even northern Italy. In the natural course of things therefore transmarine corn could not but flow to the peninsula, and lower the price of the grain produced there. Under the unnatural disturbance of relations occasioned by the lamentable system of slave-labour, it would perhaps have been

justifiable to impose a duty on transmarine corn for the protection of the Italian farmer; but the very opposite course seems to have been pursued, and with a view to favour the import of transmarine corn to Italy, a prohibitive system seems to have been applied in the provinces—for though the Rhodians were allowed to export a quantity of corn from Sicily by way of special favour, the export of grain from the provinces must probably, as a rule, have been free only as regarded Italy, and the transmarine corn must thus have been monopolized for the benefit of the mother-country.

Prices of Italian Corn

The effects of this system are clearly evident. A year of extraordinary fertility like 504—when the people of the capital paid for 6 Roman -modii- (1 1/2 bush.) of spelt not more than 3/5 of a -denarius- (about 5 pence), and at the same price there were sold 180 Roman pounds (a pound = 11 oz.) of dried figs, 60 pounds of oil, 72 pounds of meat, and 6 -congi- (= 4 1/2 gallons) of wine—is scarcely by reason of its very singularity to be taken into account; but other facts speak more distinctly. Even in Cato's time Sicily was called the granary of Rome. In productive years Sicilian and Sardinian corn was disposed of in the Italian ports for the freight. In the richest corn districts of the peninsula—the modern Romagna and Lombardy—during the time of Polybius victuals and lodgings in an inn cost on an average half an -as- (1/3 pence) per day; a bushel and a half of wheat was there worth half a -denarius- (4 pence). The latter average price, about the twelfth part of the normal price elsewhere,(11) shows with indisputable clearness that the producers of grain in Italy were wholly destitute of a market for their produce, and in consequence corn and corn-land there were almost valueless.

Revolution in Roman Agriculture

In a great industrial state, whose agriculture cannot feed its population, such a result might perhaps be regarded as useful or at any rate as not absolutely injurious; but a country like Italy, where manufactures were inconsiderable and agriculture was altogether the mainstay of the state, was in this way systematically ruined, and the welfare of the nation as a whole was sacrificed in the most shameful fashion to the interests of the essentially unproductive population of the capital, to which in fact bread could never become too cheap. Nothing perhaps evinces so clearly as this, how wretched was the constitution and how incapable was the administration of this so-called golden age of the republic. Any representative system, however meagre, would have led at least to serious complaints and to a perception of the seat of the evil; but in those primary assemblies of the burgesses anything was listened to sooner than the warning voice of a foreboding patriot. Any government that deserved the name would of itself have interfered; but the mass of the Roman senate probably with well-meaning credulity regarded the low prices of grain as a real blessing for the people, and the Scipios and Flaminiuses had, forsooth, more important things to do—to emancipate the Greeks, and to exercise the functions of republican kings. So the ship drove on unhindered towards the breakers.

Decay of the Farmers

When the small holdings ceased to yield any substantial clear return, the farmers were irretrievably ruined, and the more so that they gradually, although more slowly than the other classes, lost the moral tone and frugal habits of the earlier ages of the republic. It was merely a question of time, how rapidly the hides of the Italian farmers would, by purchase or by resignation, become merged in the larger estates.

Culture of Oil and Wine, and Rearing of Cattle

The landlord was better able to maintain himself than the farmer. The former produced at a cheaper rate than the latter, when, instead of letting his land according to the older system to petty temporary lessees, he caused it according to the newer system to be cultivated by his slaves. Accordingly, where this course had not been adopted even at an earlier period,(12) the competition of Sicilian slave-corn compelled the Italian landlord to follow it, and to have the work performed by slaves without wife or child instead of families of free labourers. The landlord, moreover, could hold his ground better against competitors by means of improvements or changes in cultivation, and he could content himself with a smaller return from the soil than the farmer, who wanted capital and intelligence and who merely had what was requisite for his subsistence. Hence the Roman landholder comparatively neglected the culture of grain—which in many rases seems to have been restricted to the raising of the quantity required for the staff of labourers(13)—and gave increased attention to the production of oil and wine as well as to the breeding of cattle. These, under the favourable climate of Italy, had no need to fear foreign competition; Italian wine, Italian oil, Italian wool not only commanded the home markets, but were soon sent abroad; the valley of the Po, which could find no consumption for its corn, provided the half of Italy with swine and bacon. With this the statements that have reached us as to the economic results of the Roman husbandry very well agree. There is some ground for assuming that capital invested in land was reckoned to yield a good return at 6 per cent; this appears to accord with the average interest of capital at this period, which was about twice as much. The rearing of cattle yielded on the whole better results than arable husbandry: in the latter the vineyard gave the best return, next came the vegetable garden and the olive orchard, while meadows and corn-fields yielded least.(14)

It is of course presumed that each species of husbandry was prosecuted under the conditions that suited it, and on the soil which was adapted to its

nature. These circumstances were already in themselves sufficient to supersede the husbandry of the petty farmer gradually by the system of farming on a great scale; and it was difficult by means of legislation to counteract them. But an injurious effect was produced by the Claudian law to be mentioned afterwards (shortly before 536), which excluded the senatorial houses from mercantile speculation, and thereby artificially compelled them to invest their enormous capitals mainly in land or, in other words, to replace the old homesteads of the farmers by estates under the management of land-stewards and by pastures for cattle. Moreover special circumstances tended to favour cattle-husbandry as contrasted with agriculture, although the former was far more injurious to the state. First of all, this form of extracting profit from the soil—the only one which in reality demanded and rewarded operations on a great scale—was alone in keeping with the mass of capital and with the spirit of the capitalists of this age. An estate under cultivation, although not demanding the presence of the master constantly, required his frequent appearance on the spot, while the circumstances did not well admit of his extending the estate or of his multiplying his possessions except within narrow limits; whereas an estate under pasture admitted of unlimited extension, and claimed little of the owner's attention. For this reason men already began to convert good arable land into pasture even at an economic loss—a practice which was prohibited by legislation (we know not when, perhaps about this period) but hardly with success. The growth of pastoral husbandry was favoured also by the occupation of domain-land. As the portions so occupied were ordinarily large, the system gave rise almost exclusively to great estates; and not only so, but the occupiers of these possessions, which might be resumed by the state at pleasure and were in law always insecure, were afraid to invest any considerable amount in their cultivation—by planting vines for instance, or olives. The consequence was, that these lands were mainly turned to account as pasture.

Management of Money

We are prevented from giving a similar comprehensive view of the moneyed economy of Rome, partly by the want of special treatises descending from Roman antiquity on the subject, partly by its very nature which was far more complex and varied than that of the Roman husbandry. So far as can be ascertained, its principles were, still less perhaps than those of husbandry, the peculiar property of the Romans; on the contrary, they were the common heritage of all ancient civilization, under which, as under that of modern times, the operations on a great scale naturally were everywhere much alike. In money matters especially the mercantile system appears to have been established in the first instance by the Greeks, and to have been simply adopted by the Romans. Yet the precision with which it was carried out and the magnitude of the scale on which its operations were conducted were so peculiarly Roman, that the spirit of the Roman economy and its grandeur whether for good or evil are pre-eminently conspicuous in its monetary transactions.

Moneylending

The starting-point of the Roman moneyed economy was of course money-lending; and no branch of commercial industry was more zealously prosecuted by the Romans than the trade of the professional money-lender (-fenerator-) and of the money-dealer or banker (-argent arius-). The transference of the charge of the larger monetary transactions from the individual capitalists to the mediating banker, who receives and makes payments for his customers, invests and borrows money, and conducts their money dealings at home and abroad—which is the mark of a developed monetary economy—was already completely carried out in the time of Cato. The bankers, however, were not only the cashiers of the rich in Rome, but everywhere insinuated themselves into minor branches of business and

settled in ever-increasing numbers in the provinces and dependent states. Already throughout the whole range of the empire the business of making advances to those who wanted money began to be, so to speak, monopolized by the Romans.

Speculation of Contractors

Closely connected with this was the immeasurable field of enterprise. The system of transacting business through mediate agency pervaded the whole dealings of Rome. The state took the lead by letting all its more complicated revenues and all contracts for furnishing supplies and executing buildings to capitalists, or associations of capitalists, for a fixed sum to be given or received. But private persons also uniformly contracted for whatever admitted of being done by contract—for buildings, for the ingathering of the harvest,(15) and even for the partition of an inheritance among the heirs or the winding up of a bankrupt estate; in which case the contractor—usually a banker—received the whole assets, and engaged on the other hand to settle the liabilities in full or up to a certain percentage and to pay the balance as the circumstances required.

Commerce

Manufacturing Industry

The prominence of transmarine commerce at an early period in the Roman national economy has already been adverted to in its proper place. The further stimulus, which it received during the present period, is attested by the increased importance of the Italian customs-duties in the Roman financial system.(16) In addition to the causes of this increase in the importance of transmarine commerce which need no further explanation, it was artificially promoted by the privileged position which the ruling Italian nation assumed in the provinces, and by the exemption from customs-dues

which was probably even now in many of the client-states conceded by treaty to the Romans and Latins.

On the other hand, industry remained comparatively undeveloped. Trades were no doubt indispensable, and there appear indications that to a certain extent they were concentrated in Rome; Cato, for instance, advises the Campanian landowner to purchase the slaves' clothing and shoes, the ploughs, vats, and locks, which he may require, in Rome. From the great consumption of woollen stuffs the manufacture of cloth must undoubtedly have been extensive and lucrative.(17) But no endeavours were apparently made to transplant to Italy any such professional industry as existed in Egypt and Syria, or even merely to carry it on abroad with Italian capital. Flax indeed was cultivated in Italy and purple dye was prepared there, but the latter branch of industry at least belonged essentially to the Greek Tarentum, and probably the import of Egyptian linen and Milesian or Tyrian purple even now preponderated everywhere over the native manufacture.

Under this category, however, falls to some extent the leasing or purchase by Roman capitalists of landed estates beyond Italy, with a view to carry on the cultivation of grain and the rearing of cattle on a great scale. This species of speculation, which afterwards developed to proportions so enormous, probably began particularly in Sicily, within the period now before us; seeing that the commercial restrictions imposed on the Siceliots, (18) if not introduced for the very purpose, must have at least tended to give to the Roman speculators, who were exempt from such restrictions, a sort of monopoly of the profits derivable from land.

Management of Business by Slaves

Business in all these different branches was uniformly carried on by means of slaves. The money-lenders and bankers instituted, throughout the range of their business, additional counting-houses and branch banks under

the direction of their slaves and freedmen. The company, which had leased the customs-duties from the state, appointed chiefly its slaves and freedmen to levy them at each custom-house. Every one who took contracts for buildings bought architect-slaves; every one who undertook to provide spectacles or gladiatorial games on account of those giving them purchased or trained a company of slaves skilled in acting, or a band of serfs expert in the trade of fighting. The merchant imported his wares in vessels of his own under the charge of slaves or freedmen, and disposed of them by the same means in wholesale or retail. We need hardly add that the working of mines and manufactories was conducted entirely by slaves. The situation of these slaves was, no doubt, far from enviable, and was throughout less favourable than that of slaves in Greece; but, if we leave out of account the classes last mentioned, the industrial slaves found their position on the whole more tolerable than the rural serfs. They had more frequently a family and a practically independent household, with no remote prospect of obtaining freedom and property of their own. Hence such positions formed the true training school of those upstarts from the servile class, who by menial virtues and often by menial vices rose to the rank of Roman citizens and not seldom attained great prosperity, and who morally, economically, and politically contributed at least as much as the slaves themselves to the ruin of the Roman commonwealth.

Extent of Roman Mercantile Transactions

Coins and Moneys

The Roman mercantile transactions of this period fully kept pace with the contemporary development of political power, and were no less grand of their kind. Any one who wishes to have a clear idea of the activity of the traffic with other lands, needs only to look into the literature, more especially the comedies, of this period, in which the Phoenician merchant is brought on the stage speaking Phoenician, and the dialogue swarms with

Greek and half Greek words and phrases. But the extent and zealous prosecution of Roman business-dealings may be traced most distinctly by means of coins and monetary relations. The Roman denarius quite kept pace with the Roman legions. We have already mentioned(19) that the Sicilian mints—last of all that of Syracuse in 542—were closed or at any rate restricted to small money in consequence of the Roman conquest, and that in Sicily and Sardinia the -denarius- obtained legal circulation at least side by side with the older silver currency and probably very soon became the exclusive legal tender. With equal if not greater rapidity the Roman silver coinage penetrated into Spain, where the great silver-mines existed and there was virtually no earlier national coinage; at a very early period the Spanish towns even began to coin after the Roman standard.(20) On the whole, as Carthage coined only to a very limited extent,(21) there existed not a single important mint in addition to that of Rome in the region of the western Mediterranean, with the exception of that of Massilia and perhaps also those of the Illyrian Greeks in Apollonia and Dyrrhachium. Accordingly, when the Romans began to establish themselves in the region of the Po, these mints were about 525 subjected to the Roman standard in such a way, that, while they retained the right of coining silver, they uniformly —and the Massiliots in particular—were led to adjust their —drachma— to the weight of the Roman three-quarter -denarius-, which the Roman government on its part began to coin, primarily for the use of Upper Italy, under the name of the "coin of victory" (-victoriatus-). This new system, dependent on the Roman, not merely prevailed throughout the Massiliot, Upper Italian, and Illyrian territories; but these coins even penetrated into the barbarian lands on the north, those of Massilia, for instance, into the Alpine districts along the whole basin of the Rhone, and those of Illyria as far as the modern Transylvania. The eastern half of the Mediterranean was not yet reached by the Roman money, as it had not yet fallen under the direct sovereignty of Rome; but its place was filled by gold,

the true and natural medium for international and transmarine commerce. It is true that the Roman government, in conformity with its strictly conservative character, adhered—with the exception of a temporary coinage of gold occasioned by the financial embarrassment during the Hannibalic war(22)—steadfastly to the rule of coining silver only in addition to the national-Italian copper; but commerce had already assumed such dimensions, that it was able even in the absence of money to conduct its transactions with gold by weight. Of the sum in cash, which lay in the Roman treasury in 597, scarcely a sixth was coined or uncoined silver, five-sixths consisted of gold in bars,(23) and beyond doubt the precious metals were found in all the chests of the larger Roman capitalists in substantially similar proportions. Already therefore gold held the first place in great transactions; and, as may be further inferred from this fact, in general commerce the preponderance belonged to that carried on with foreign lands, and particularly with the east, which since the times of Philip and Alexander the Great had adopted a gold currency.

Roman Wealth

The whole gain from these immense transactions of the Roman capitalists flowed in the long run to Rome; for, much as they went abroad, they were not easily induced to settle permanently there, but sooner or later returned to Rome, either realizing their gains and investing them in Italy, or continuing to carry on business from Rome as a centre by means of the capital and connections which they had acquired. The moneyed superiority of Rome as compared with the rest of the civilized world was, accordingly, quite as decided as its political and military ascendancy. Rome in this respect stood towards other countries somewhat as the England of the present day stands towards the Continent—a Greek, for instance, observes of the younger Scipio Africanus, that he was not rich "for a Roman." We may form some idea of what was considered as riches in the Rome of those

days from the fact, that Lucius Paullus with an estate of 60 talents (14,000 pounds) was not reckoned a wealthy senator, and that a dowry—such as each of the daughters of the elder Scipio Africanus received—of 50 talents (12,000 pounds) was regarded as a suitable portion for a maiden of quality, while the estate of the wealthiest Greek of this century was not more than 300 talents (72,000 pounds).

Mercantile Spirit

It was no wonder, accordingly, that the mercantile spirit took possession of the nation, or rather—for that was no new thing in Rome—that the spirit of the capitalist now penetrated and pervaded all other aspects and stations of life, and agriculture as well as the government of the state began to become enterprises of capitalists. The preservation and increase of wealth quite formed a part of public and private morality. "A widow's estate may diminish;" Cato wrote in the practical instructions which he composed for his son, "a man must increase his means, and he is deserving of praise and full of a divine spirit, whose account-books at his death show that he has gained more than he has inherited." Wherever, therefore, there was giving and counter-giving, every transaction although concluded without any sort of formality was held as valid, and in case of necessity the right of action was accorded to the party aggrieved if not by the law, at any rate by mercantile custom and judicial usage;(24) but the promise of a gift without due form was null alike in legal theory and in practice. In Rome, Polybius tells us, nobody gives to any one unless he must do so, and no one pays a penny before it falls due, even among near relatives. The very legislation yielded to this mercantile morality, which regarded all giving away without recompense as squandering; the giving of presents and bequests and the undertaking of sureties were subjected to restriction at this period by decree of the burgesses, and heritages, if they did not fall to the nearest relatives, were at least taxed. In the closest connection with such views mercantile

punctuality, honour, and respectability pervaded the whole of Roman life. Every ordinary man was morally bound to keep an account-book of his income and expenditure—in every well-arranged house, accordingly, there was a separate account-chamber (-tablinum-)—and every one took care that he should not leave the world without having made his will: it was one of the three matters in his life which Cato declares that he regretted, that he had been a single day without a testament. Those household books were universally by Roman usage admitted as valid evidence in a court of justice, nearly in the same way as we admit the evidence of a merchant's ledger. The word of a man of unstained reputation was admissible not merely against himself, but also in his own favour; nothing was more common than to settle differences between persons of integrity by means of an oath demanded by the one party and taken by the other—a mode of settlement which was reckoned valid even in law; and a traditional rule enjoined the jury, in the absence of evidence, to give their verdict in the first instance for the man of unstained character when opposed to one who was less reputable, and only in the event of both parties being of equal reputation to give it in favour of the defendant.⁽²⁵⁾ The conventional respectability of the Romans was especially apparent in the more and more strict enforcement of the rule, that no respectable man should allow himself to be paid for the performance of personal services. Accordingly, magistrates, officers, jurymen, guardians, and generally all respectable men entrusted with public functions, received no other recompense for the services which they rendered than, at most, compensation for their outlays; and not only so, but the services which acquaintances (-amici-) rendered to each other—such as giving security, representation in lawsuits, custody (-depositum-), lending the use of objects not intended to be let on hire (-commodatum-), the managing and attending to business in general (-procuratio-)—were treated according to the same principle, so that it was unseemly to receive any compensation for them and an action was not allowable even where a

compensation had been promised. How entirely the man was merged in the merchant, appears most distinctly perhaps in the substitution of a money-payment and an action at law for the duel—even for the political duel—in the Roman life of this period. The usual form of settling questions of personal honour was this: a wager was laid between the offender and the party offended as to the truth or falsehood of the offensive assertion, and under the shape of an action for the stake the question of fact was submitted in due form of law to a jury; the acceptance of such a wager when offered by the offended or offending party was, just like the acceptance of a challenge to a duel at the present day, left open in law, but was often in point of honour not to be avoided.

Associations

One of the most important consequences of this mercantile spirit, which displayed itself with an intensity hardly conceivable by those not engaged in business, was the extraordinary impulse given to the formation of associations. In Rome this was especially fostered by the system already often mentioned whereby the government had its business transacted through middlemen: for from the extent of the transactions it was natural, and it was doubtless often required by the state for the sake of greater security, that capitalists should undertake such leases and contracts not as individuals, but in partnership. All great dealings were organized on the model of these state-contracts. Indications are even found of the occurrence among the Romans of that feature so characteristic of the system of association—a coalition of rival companies in order jointly to establish monopolist prices.⁽²⁶⁾ In transmarine transactions more especially and such as were otherwise attended with considerable risk, the system of partnership was so extensively adopted, that it practically took the place of insurances, which were unknown to antiquity. Nothing was more common than the nautical loan, as it was called—the modern "bottomry"—by which the risk

and gain of transmarine traffic were proportionally distributed among the owners of the vessel and cargo and all the capitalists advancing money for the voyage. It was, however, a general rule of Roman economy that one should rather take small shares in many speculations than speculate independently; Cato advised the capitalist not to fit out a single ship with his money, but in concert with forty-nine other capitalists to send out fifty ships and to take an interest in each to the extent of a fiftieth part. The greater complication thus introduced into business was overcome by the Roman merchant through his punctual laboriousness and his system of management by slaves and freedmen—which, regarded from the point of view of the pure capitalist, was far preferable to our counting-house system. Thus these mercantile companies, with their hundred ramifications, largely influenced the economy of every Roman of note. There was, according to the testimony of Polybius, hardly a man of means in Rome who had not been concerned as an avowed or silent partner in leasing the public revenues; and much more must each have invested on an average a considerable portion of his capital in mercantile associations generally.

All this laid the foundation for that endurance of Roman wealth, which was perhaps still more remarkable than its magnitude. The phenomenon, unique perhaps of its kind, to which we have already called attention⁽²⁷⁾—that the standing of the great clans remained almost the same throughout several centuries—finds its explanation in the somewhat narrow but solid principles on which they managed their mercantile property.

Moneyed Aristocracy

In consequence of the one-sided prominence assigned to capital in the Roman economy, the evils inseparable from a pure capitalist system could not fail to appear.

Civil equality, which had already received a fatal wound through the rise of the ruling order of lords, suffered an equally severe blow in consequence of the line of social demarcation becoming more and more distinctly drawn between the rich and the poor. Nothing more effectually promoted this separation in a downward direction than the already-mentioned rule—apparently a matter of indifference, but in reality involving the utmost arrogance and insolence on the part of the capitalists—that it was disgraceful to take money for work; a wall of partition was thus raised not merely between the common day-labourer or artisan and the respectable landlord or manufacturer, but also between the soldier or subaltern and the military tribune, and between the clerk or messenger and the magistrate. In an upward direction a similar barrier was raised by the Claudian law suggested by Gaius Flaminius (shortly before 536), which prohibited senators and senators' sons from possessing sea-going vessels except for the transport of the produce of their estates, and probably also from participating in public contracts—forbidding them generally from carrying on whatever the Romans included under the head of "speculation" (-quaestus-).(28) It is true that this enactment was not called for by the senators; it was on the contrary a work of the democratic opposition, which perhaps desired in the first instance merely to prevent the evil of members of the governing class personally entering into dealings with the government. It may be, moreover, that the capitalists in this instance, as so often afterwards, made common cause with the democratic party, and seized the opportunity of diminishing competition by the exclusion of the senators. The former object was, of course, only very imperfectly attained, for the system of partnership opened up to the senators ample facilities for continuing to speculate in secret; but this decree of the people drew a legal line of demarcation between those men of quality who did not speculate at all or at any rate not openly and those who did, and it placed alongside of the aristocracy which was primarily political an aristocracy which was

purely moneyed—the equestrian order, as it was afterwards called, whose rivalries with the senatorial order fill the history of the following century.

Sterility of the Capitalist Question

A further consequence of the one-sided power of capital was the disproportionate prominence of those branches of business which were the most sterile and the least productive for the national economy as a whole. Industry, which ought to have held the highest place, in fact occupied the lowest. Commerce flourished; but it was universally passive, importing, but not exporting. Not even on the northern frontier do the Romans seem to have been able to give merchandise in exchange for the slaves, who were brought in numbers from the Celtic and probably even from the Germanic territories to Ariminum and the other markets of northern Italy; at least as early as 523 the export of silver money to the Celtic territory was prohibited by the Roman government. In the intercourse with Greece, Syria, Egypt, Cyrene, and Carthage, the balance of trade was necessarily unfavourable to Italy. Rome began to become the capital of the Mediterranean states, and Italy to become the suburbs of Rome; the Romans had no wish to be anything more, and in their opulent indifference contented themselves with a passive commerce, such as every city which is nothing more than a capital necessarily carries on—they possessed, forsooth, money enough to pay for everything which they needed or did not need. On the other hand the most unproductive of all sorts of business, the traffic in money and the farming of the revenue, formed the true mainstay and stronghold of the Roman economy. And, lastly, whatever elements that economy had contained for the production of a wealthy middle class, and of a lower one making enough for its subsistence, were extinguished by the unhappy system of employing slaves, or, at the best, contributed to the multiplication of the troublesome order of freedmen.

The Capitalists and Public Opinion

But above all the deep rooted immorality, which is inherent in an economy of pure capital, ate into the heart of society and of the commonwealth, and substituted an absolute selfishness for humanity and patriotism. The better portion of the nation were very keenly sensible of the seeds of corruption which lurked in that system of speculation; and the instinctive hatred of the great multitude, as well as the displeasure of the well-disposed statesman, was especially directed against the trade of the professional money-lender, which for long had been subjected to penal laws and still continued under the letter of the law amenable to punishment. In a comedy of this period the money-lender is told that the class to which he belongs is on a parallel with the -lenones- —

-Eodem hercle vos pono et paro; parissumi estis ibus.
Hi saltem in occultis locis prostant: vos in foro ipso.
Vos fenore, hi male suadendo et lustris lacerant homines.
Rogitationes plurimas propter vos populus scivit,
Quas vos rogatas rumpitis: aliquam reperitis rimam.
Quasi aquam ferventem frigidam esse, ita vos putatis leges.-

Cato the leader of the reform party expresses himself still more emphatically than the comedian. "Lending money at interest," he says in the preface to his treatise on agriculture, "has various advantages; but it is not honourable. Our forefathers accordingly ordained, and inscribed it among their laws, that the thief should be bound to pay twofold, but the man who takes interest fourfold, compensation; whence we may infer how much worse a citizen they deemed the usurer than the thief." There is no great difference, he elsewhere considers, between a money-lender and a murderer; and it must be allowed that his acts did not fall short of his words—when governor of Sardinia, by his rigorous administration of the law he

drove the Roman bankers to their wits' end. The great majority of the ruling senatorial order regarded the system of the speculators with dislike, and not only conducted themselves in the provinces on the whole with more integrity and honour than these moneyed men, but often acted as a restraint on them. The frequent changes of the Roman chief magistrates, however, and the inevitable inequality in their mode of handling the laws, necessarily abated the effort to check such proceedings.

Reaction of the Capitalist System on Agriculture

The Romans perceived moreover—as it was not difficult to perceive — that it was of far more consequence to give a different direction to the whole national economy than to exercise a police control over speculation; it was such views mainly that men like Cato enforced by precept and example on the Roman agriculturist. "When our forefathers," continues Cato in the preface just quoted, "pronounced the eulogy of a worthy man, they praised him as a worthy farmer and a worthy landlord; one who was thus commended was thought to have received the highest praise. The merchant I deem energetic and diligent in the pursuit of gain; but his calling is too much exposed to perils and mischances. On the other hand farmers furnish the bravest men and the ablest soldiers; no calling is so honourable, safe, and free from odium as theirs, and those who occupy themselves with it are least liable to evil thoughts." He was wont to say of himself, that his property was derived solely from two sources —agriculture and frugality; and, though this was neither very logical in thought nor strictly conformable to the truth,(29) yet Cato was not unjustly regarded by his contemporaries and by posterity as the model of a Roman landlord. Unhappily it is a truth as remarkable as it is painful, that this husbandry, commended so much and certainly with so entire good faith as a remedy, was itself pervaded by the poison of the capitalist system. In the case of pastoral husbandry this was obvious; for that reason it was most in favour with the public and least in

favour with the party desirous of moral reform. But how stood the case with agriculture itself? The warfare, which from the third onward to the fifth century capital had waged against labour, by withdrawing under the form of interest on debt the revenues of the soil from the working farmers and bringing them into the hands of the idly consuming fundholder, had been settled chiefly by the extension of the Roman economy and the throwing of the capital which existed in Latium into the field of mercantile activity opened up throughout the range of the Mediterranean. Now even the extended field of business was no longer able to contain the increased mass of capital; and an insane legislation laboured simultaneously to compel the investment of senatorial capital by artificial means in Italian estates, and systematically to reduce the value of the arable land of Italy by interference with the prices of grain. Thus there began a second campaign of capital against free labour or—what was substantially the same thing in antiquity—against the small farmer system; and, if the first had been bad, it yet seemed mild and humane as compared with the second. The capitalists no longer lent to the farmer at interest—a course, which in itself was not now practicable because the petty landholder no longer aimed at any considerable surplus, and was moreover not sufficiently simple and radical—but they bought up the farms and converted them, at the best, into estates managed by stewards and worked by slaves. This likewise was called agriculture; it was essentially the application of the capitalist system to the production of the fruits of the soil. The description of the husbandmen, which Cato gives, is excellent and quite just; but how does it correspond to the system itself, which he portrays and recommends? If a Roman senator, as must not unfrequently have been the case, possessed four such estates as that described by Cato, the same space, which in the olden time when small holdings prevailed had supported from 100 to 150 farmers' families, was now occupied by one family of free persons and about 50, for the most part unmarried, slaves. If this was the remedy by which the decaying national

economy was to be restored to vigour, it bore, unhappily, an aspect of extreme resemblance to the disease.

Development of Italy

The general result of this system is only too clearly obvious in the changed proportions of the population. It is true that the condition of the various districts of Italy was very unequal, and some were even prosperous. The farms, instituted in great numbers in the region between the Apennines and the Po at the time of its colonization, did not so speedily disappear. Polybius, who visited that quarter not long after the close of the present period, commends its numerous, handsome, and vigorous population: with a just legislation as to corn it would doubtless have been possible to make the basin of the Po, and not Sicily the granary of the capital. In like manner Picenum and the so-called -ager Gallicus- acquired a numerous body of farmers through the distributions of domain-land consequent on the Flaminian law of 522—a body, however, which was sadly reduced in the Hannibalic war. In Etruria, and perhaps also in Umbria, the internal condition of the subject communities was unfavourable to the flourishing of a class of free farmers, Matters were better in Latium—which could not be entirely deprived of the advantages of the market of the capital, and which had on the whole been spared by the Hannibalic war—as well as in the secluded mountain-valleys of the Marsians and Sabellians. On the other hand the Hannibalic war had fearfully devastated southern Italy and had ruined, in addition to a number of smaller townships, its two largest cities, Capua and Tarentum, both once able to send into the field armies of 30,000 men. Samnium had recovered from the severe wars of the fifth century: according to the census of 529 it was in a position to furnish half as many men capable of arms as all the Latin towns, and it was probably at that time, next to the -ager Romanus-, the most flourishing region of the peninsula. But the Hannibalic war had desolated the land afresh, and the assignations

of land in that quarter to the soldiers of Scipio's army, although considerable, probably did not cover the loss. Campania and Apulia, both hitherto well-peopled regions, were still worse treated in the same war by friend and foe. In Apulia, no doubt, assignments of land took place afterwards, but the colonies instituted there were not successful. The beautiful plain of Campania remained more populous; but the territory of Capua and of the other communities broken up in the Hannibalic war became state-property, and the occupants of it were uniformly not proprietors, but petty temporary lessees. Lastly, in the wide Lucanian and Bruttian territories the population, which was already very thin before the Hannibalic war, was visited by the whole severity of the war itself and of the penal executions that followed in its train; nor was much done on the part of Rome to revive the agriculture there—with the exception perhaps of Valentia (Vibo, now Monteleone), none of the colonies established there attained real prosperity.

Falling Off in the Population

With every allowance for the inequality in the political and economic circumstances of the different districts and for the comparatively flourishing condition of several of them, the retrogression is yet on the whole unmistakeable, and it is confirmed by the most indisputable testimonies as to the general condition of Italy. Cato and Polybius agree in stating that Italy was at the end of the sixth century far weaker in population than at the end of the fifth, and was no longer able to furnish armies so large as in the first Punic war. The increasing difficulty of the levy, the necessity of lowering the qualification for service in the legions, and the complaints of the allies as to the magnitude of the contingents to be furnished by them, confirm these statements; and, in the case of the Roman burgesses, the numbers tell the same tale. In 502, shortly after the expedition of Regulus to Africa, they amounted to 298,000 men capable of bearing arms; thirty years

later, shortly before the commencement of the Hannibalic war (534), they had fallen off to 270,000, or about a tenth, and again twenty years after that, shortly before the end of the same war (550), to 214,000, or about a fourth; and a generation afterwards—during which no extraordinary losses occurred, but the institution of the great burgess-colonies in the plain of northern Italy in particular occasioned a perceptible and exceptional increase—the numbers of the burgesses had hardly again reached the point at which they stood at the commencement of this period. If we had similar statements regarding the Italian population generally, they would beyond all doubt exhibit a deficit relatively still more considerable. The decline of the national vigour less admits of proof; but it is stated by the writers on agriculture that flesh and milk disappeared more and more from the diet of the common people. At the same time the slave population increased, as the free population declined. In Apulia, Lucania, and the Bruttian land, pastoral husbandry must even in the time of Cato have preponderated over agriculture; the half-savage slave-herdsmen were here in reality masters in the house. Apulia was rendered so insecure by them that a strong force had to be stationed there; in 569 a slave-conspiracy planned on the largest scale, and mixed up with the proceedings of the Bacchanalia, was discovered there, and nearly 7000 men were condemned as criminals. In Etruria also Roman troops had to take the field against a band of slaves (558), and even in Latium there were instances in which towns like Setia and Praeneste were in danger of being surprised by a band of runaway serfs (556). The nation was visibly diminishing, and the community of free burgesses was resolving itself into a body composed of masters and slaves; and, although it was in the first instance the two long wars with Carthage which decimated and ruined both the burgesses and the allies, the Roman capitalists beyond doubt contributed quite as much as Hamilcar and Hannibal to the decline in the vigour and the numbers of the Italian people. No one can say whether the government could have rendered help; but it

was an alarming and discreditable fact, that the circles of the Roman aristocracy, well-meaning and energetic as in great part they were, never once showed any insight into the real gravity of the situation or any foreboding of the full magnitude of the danger. When a Roman lady belonging to the high nobility, the sister of one of the numerous citizen-admirals who in the first Punic war had ruined the fleets of the state, one day got among a crowd in the Roman Forum, she said aloud in the hearing of those around, that it was high time to place her brother once more at the head of the fleet and to relieve the pressure in the market-place by bleeding the citizens afresh (508). Those who thus thought and spoke were, no doubt, a small minority; nevertheless this outrageous speech was simply a forcible expression of the criminal indifference with which the whole noble and rich world looked down on the common citizens and farmers.

They did not exactly desire their destruction, but they allowed it to run its course; and so desolation advanced with gigantic steps over the flourishing land of Italy, where countless free men had just been enjoying a moderate and merited prosperity.

Notes for Chapter XII

1. In order to gain a correct picture of ancient Italy, it is necessary for us to bear in mind the great changes which have been produced there by modern cultivation. Of the -cereal-ia-, rye was not cultivated in antiquity; and the Romans of the empire were astonished to find that oats, with which they were well acquainted as a weed, was used by the Germans for making porridge. Rice was first cultivated in Italy at the end of the fifteenth, and maize at the beginning of the seventeenth, century. Potatoes and tomatoes

were brought from America; artichokes seem to be nothing but a cultivated variety of the cardoon which was known to the Romans, yet the peculiar character superinduced by cultivation appears of more recent origin. The almond, again, or "Greek nut," the peach, or "Persian nut," and also the "soft nut" (-nux mollusca-), although originally foreign to Italy, are met with there at least 150 years before Christ. The date-palm, introduced into Italy from Greece as into Greece from the East, and forming a living attestation of the primitive commercial-religious intercourse between the west and the east, was already cultivated in Italy 300 years before Christ (Liv. x. 47; Pallad. v. 5, 2; xi. 12, i) not for its fruit (Plin. H. N. xiii. 4, 26), but, just as in the present day, as a handsome plant, and for the sake of the leaves which were used at public festivals. The cherry, or fruit of *Cerasus* on the Black Sea, was later in being introduced, and only began to be planted in Italy in the time of Cicero, although the wild cherry is indigenous there; still later, perhaps, came the apricot, or "Armenian plum." The citron-tree was not cultivated in Italy till the later ages of the empire; the orange was only introduced by the Moors in the twelfth or thirteenth, and the aloe (*Agave Americana*) from America only in the sixteenth, century. Cotton was first cultivated in Europe by the Arabs. The buffalo also and the silkworm belong only to modern, not to ancient Italy.

It is obvious that the products which Italy had not originally are for the most part those very products which seem to us truly "Italian;" and if modern Germany, as compared with the Germany visited by Caesar, may be called a southern land, Italy has since in no less degree acquired a "more southern" aspect.

2. II. III. Licinio-Sextian Laws

3. According to Cato, de R. R. 137 (comp. 16), in the case of a lease with division of the produce the gross produce of the estate, after deduction of

the fodder necessary for the oxen that drew the plough, was divided between lessor and lessee (-colonus partiarius-) in the proportions agreed upon between them. That the shares were ordinarily equal may be conjectured from the analogy of the French -bail a cheptel- and the similar Italian system of half-and-half leases, as well as from the absence of all trace of any other scheme of partition. It is erroneous to refer to the case of the -politor-, who got the fifth of the grain or, if the division took place before thrashing, from the sixth to the ninth sheaf (Cato, 136, comp. 5); he was not a lessee sharing the produce, but a labourer assumed in the harvest season, who received his daily wages according to that contract of partnership (III. XII. Spirit of the System).

4. The lease first assumed real importance when the Roman capitalists began to acquire transmarine possessions on a great scale; then indeed they knew how to value it, when a temporary lease was continued through several generations (Colum. i. 7, 3).

5. That the space between the vines was occupied not by grain, but only at the most by such fodder plants as easily grew in the shade, is evident from Cato (33, comp. 137), and accordingly Columella (iii. 3) calculates on no other accessory gain in the case of a vineyard except the produce of the young shoots sold. On the other hand, the orchard (-arbustum-) was sown like any corn field (Colum. ii. 9, 6). It was only where the vine was trained on living trees that corn was cultivated in the intervals between them.

6. Mago, or his translator (in Varro, R. R., i. 17, 3), advises that slaves should not be bred, but should be purchased not under 22 years of age; and Cato must have had a similar course in view, as the personal staff of his model farm clearly shows, although he does not exactly say so. Cato (2) expressly counsels the sale of old and diseased slaves. The slave-breeding described by Columella (I. I. Italian History), under which female slaves

who had three sons were exempted from labour, and the mothers of four sons were even manumitted, was doubtless an independent speculation rather than a part of the regular management of the estate—similar to the trade pursued by Cato himself of purchasing slaves to be trained and sold again (Plutarch, Cat. Mai. 21). The characteristic taxation mentioned in this same passage probably has reference to the body of servants properly so called (-familia urbana-).

7. In this restricted sense the chaining of slaves, and even of the sons of the family (Dionys. ii. 26), was very old; and accordingly chained field-labourers are mentioned by Cato as exceptions, to whom, as they could not themselves grind, bread had to be supplied instead of grain (56). Even in the times of the empire the chaining of slaves uniformly presents itself as a punishment inflicted definitively by the master, provisionally by the steward (Colum. i. 8; Gai. i. 13; Ulp. i. ii). If, notwithstanding, the tillage of the fields by means of chained slaves appeared in subsequent times as a distinct system, and the labourers' prison (-ergastulum-)—an underground cellar with window-apertures numerous but narrow and not to be reached from the ground by the hand (Colum. i. 6)—became a necessary part of the farm-buildings, this state of matters was occasioned by the fact that the position of the rural serfs was harder than that of other slaves and therefore those slaves were chiefly taken for it, who had, or seemed to have, committed some offence. That cruel masters, moreover, applied the chains without any occasion to do so, we do not mean to deny, and it is clearly indicated by the circumstance that the law-books do not decree the penalties applicable to slave transgressors against those in chains, but prescribe the punishment of the half-chained. It was precisely the same with branding; it was meant to be, strictly, a punishment; but the whole flock was probably marked (Diodor. xxxv. 5; Bernays, —Phokytides—, p. xxxi.).

8. Cato does not expressly say this as to the vintage, but Varro does so (I. II. Relation of the Latins to the Umbro-Samnites), and it is implied in the nature of the case. It would have been economically an error to fix the number of the slaves on a property by the standard of the labours of harvest; and least of all, had such been the case, would the grapes have been sold on the tree, which yet was frequently done (Cato, 147).

9. Columella (ii. 12, 9) reckons to the year on an average 45 rainy days and holidays; with which accords the statement of Tertullian (De Idolol. 14), that the number of the heathen festival days did not come up to the fifty days of the Christian festal season from Easter to Whitsunday. To these fell to be added the time of rest in the middle of winter after the completion of the autumnal bowing, which Columella estimates at thirty days. Within this time, doubtless, the moveable "festival of seed-sowing" (-feriae sementivae-; comp. i. 210 and Ovid. Fast, i. 661) uniformly occurred. This month of rest must not be confounded with the holidays for holding courts in the season of the harvest (Plin. Ep. viii. 21, 2, et al.) and vintage.

10. III. I. The Carthaginian Dominion in Africa

11. The medium price of grain in the capital may be assumed at least for the seventh and eighth centuries of Rome at one -denarius- for the Roman -modius-, or 2 shillings 8 pence per bushel of wheat, for which there is now paid (according to the average of the prices in the provinces of Brandenburg and Pomerania from 1816 to 1841) about 3 shillings 5 pence. Whether this not very considerable difference between the Roman and the modern prices depends on a rise in the value of corn or on a fall in the value of silver, can hardly be decided.

It is very doubtful, perhaps, whether in the Rome of this and of later times the prices of corn really fluctuated more than is the case in modern times. If we compare prices like those quoted above, of 4 pence and 5 pence

for the bushel and a half, with those of the worst times of war-dearth and famine—such as in the second Punic war when the same quantity rose to 9 shillings 7 pence (1 -medimnus- = 15 — drachmae—; Polyb. ix. 44), in the civil war to 19 shillings 2 pence (1 -modius- = 5 -denarii-; Cic. Verr. iii. 92, 214), in the great dearth under Augustus, even to 21 shillings 3 pence (5 -modii- = 27 1/2 -denarii-; Euseb. Chron. p. Chr. 7, Scal.)—the difference is indeed immense; but such extreme cases are but little instructive, and might in either direction be found recurring under the like conditions at the present day.

12. II. VIII. Farming of Estates

13. Accordingly Cato calls the two estates, which he describes, summarily "olive-plantation" (-olivetum-) and "vineyard" (-vinea-), although not wine and oil merely, but grain also and other products were cultivated there. If indeed the 800 -culei-, for which the possessor of the vineyard is directed to provide himself with casks (11), formed the maximum of a year's vintage, the whole of the 100 -jugera- must have been planted with vines, because a produce of 8 -culei- per -jugerum- was almost unprecedented (Colum. iii. 3); but Varro (i. 22) understood, and evidently with reason, the statement to apply to the case of the possessor of a vineyard who found it necessary to make the new vintage before he had sold the old.

14. That the Roman landlord made on an average 6 per cent from his capital, may be inferred from Columella, iii. 3, 9. We have a more precise estimate of the expense and produce only in the case of the vine yard, for which Columella gives the following calculation of the cost per -jugerum-:

Price of the ground 1000 sesterces. Price of the slaves who work it 1143 (proportion to-jugerum-) Vines and stakes 2000 Loss of interest during the first two years 497 ——— Total 4640 sesterces= 47 pounds.

He calculates the produce as at any rate 60 -amphorae-, worth at least 900 sesterces (9 pounds), which would thus represent a return of 17 per cent. But this is somewhat illusory, as, apart from bad harvests, the cost of gathering in the produce (III. XII. Spirit of the System), and the expenses of the maintenance of the vines, stakes, and slaves, are omitted from the estimate.

The gross produce of meadow, pasture, and forest is estimated by the same agricultural writer as, at most, 100 sesterces per -jugerum-, and that of corn land as less rather than more: in fact, the average return of 25 -modii- of wheat per -jugerum- gives, according to the average price in the capital of 1 -denarius- per -modius-, not more than 100 sesterces for the gross proceeds, and at the seat of production the price must have been still lower. Varro (iii. 2) reckons as a good ordinary gross return for a larger estate 150 sesterces per -jugerum-. Estimates of the corresponding expense have not reached us: as a matter of course, the management in this instance cost much less than in that of a vineyard.

All these statements, moreover, date from a century or more after Gate's death. From him we have only the general statement that the breeding of cattle yielded a better return than agriculture (ap. Cicero, *De Off.* ii. 25, 89; Colum. vi. praef. 4, comp. ii. 16, 2; Plin. *H. N.* xviii. 5, 30; Plutarch, *Cato*, 21); which of course is not meant to imply that it was everywhere advisable to convert arable land into pasture, but is to be understood relatively as signifying that the capital invested in the rearing of flocks and herds on mountain pastures and other suitable pasture-land yielded, as compared with capital invested in cultivating Suitable corn land, a higher interest. Perhaps the circumstance has been also taken into account in the calculation, that the want of energy and intelligence in the landlord operates far less injuriously in the case of pasture-land than in the highly-developed culture of the vine and olive. On an arable estate, according to Cato, the

returns of the soil stood as follows in a descending series:—1, vineyard; 2, vegetable garden; 3, osier copse, which yielded a large return in consequence of the culture of the vine; 4, olive plantation; 5, meadow yielding hay; 6, corn fields; 7, copse; 8, wood for felling; 9, oak forest for forage to the cattle; all of which nine elements enter into the scheme of husbandry for Cato's model estates.

The higher net return of the culture of the vine as compared with that of corn is attested also by the fact, that under the award pronounced in the arbitration between the city of Genua and the villages tributary to it in 637 the city received a sixth of wine, and a twentieth of grain, as quitrent.

15. III. XII. Spirit of the System

16. III. XI. As to the Management of the Finances

17. The industrial importance of the Roman cloth-making is evident from the remarkable part which is played by the fullers in Roman comedy. The profitable nature of the fullers' pits is attested by Cato (ap. Plutarch, Cat 21).

18. III. III. Organization of the Provinces

19. III. III. Property

20. III. VII. The State of Culture in Spain

21. III. I. Comparison between Carthage and Rome

22. III. VI. Pressure of the War

23. There were in the treasury 17,410 Roman pounds of gold, 22,070 pounds of uncoined, and 18,230 pounds of coined, silver. The legal ratio of

gold to silver was: 1 pound of gold = 4000 sesterces, or 1: 11.91.

24. On this was based the actionable character of contracts of buying, hiring, and partnership, and, in general, the whole system of non-formal actionable contracts.

25. The chief passage as to this point is the fragment of Cato in Gellius, xiv. 2. In the case of the *-obligatio litteris-* also, i. e. a claim based solely on the entry of a debt in the account-book of the creditor, this legal regard paid to the personal credibility of the party, even where his testimony in his own cause is concerned, affords the key of explanation; and hence it happened that in later times, when this mercantile repute had vanished from Roman life, the *-obligatio litteris-*, while not exactly abolished, fell of itself into desuetude.

26. In the remarkable model contract given by Cato (141) for the letting of the olive harvest, there is the following paragraph:—

"None [of the persons desirous to contract on the occasion of letting] shall withdraw, for the sake of causing the gathering and pressing of the olives to be let at a dearer rate; except when [the joint bidder] immediately names [the other bidder] as his partner. If this rule shall appear to have been infringed, all the partners [of the company with which the contract has been concluded] shall, if desired by the landlord or the overseer appointed by him, take an oath [that they have not conspired in this way to prevent competition]. If they do not take the oath, the stipulated price is not to be paid." It is tacitly assumed that the contract is taken by a company, not by an individual capitalist.

27. III. XIII. Religious Economy

28. Livy (xxi. 63; comp. Cic. Verr. v. 18, 45) mentions only the enactment as to the sea-going vessels; but Asconius (in Or. in toga cand. p. 94, Orell.) and Dio. (lv. 10, 5) state that the senator was also forbidden by law to undertake state-contracts (-redemptiones-); and, as according to Livy "all speculation was considered unseemly for a senator," the Claudian law probably reached further than he states.

29. Cato, like every other Roman, invested a part of his means in the breeding of cattle, and in commercial and other undertakings. But it was not his habit directly to violate the laws; he neither speculated in state-leases—which as a senator he was not allowed to do—nor practised usury. It is an injustice to charge him with a practice in the latter respect at variance with his theory; the -fenus nauticum-, in which he certainly engaged, was not a branch of usury prohibited by the law; it really formed an essential part of the business of chartering and freighting vessels.

CHAPTER XIII

Faith and Manners

Roman Austerity and Roman Pride

Life in the case of the Roman was spent under conditions of austere restraint, and, the nobler he was, the less he was a free man. All-powerful custom restricted him to a narrow range of thought and action; and to have led a serious and strict or, to use the characteristic Latin expressions, a sad and severe life, was his glory. No one had more and no one had less to do than to keep his household in good order and manfully bear his part of counsel and action in public affairs. But, while the individual had neither the wish nor the power to be aught else than a member of the community, the glory and the might of that community were felt by every individual burgess as a personal possession to be transmitted along with his name and his homestead to his posterity; and thus, as one generation after another was laid in the tomb and each in succession added its fresh contribution to the stock of ancient honours, the collective sense of dignity in the noble families of Rome swelled into that mighty civic pride, the like of which the earth has never seen again, and the traces of which, as strange as they are grand, seem to us, wherever we meet them, to belong as it were to another world. It was one of the characteristic peculiarities of this powerful sense of citizenship, that it was, while not suppressed, yet compelled by the rigid simplicity and equality that prevailed among the citizens to remain locked

up within the breast during life, and was only allowed to find expression after death; but then it was displayed in the funeral rites of the man of distinction so conspicuously and intensely, that this ceremonial is better fitted than any other phenomenon of Roman life to give to us who live in later times a glimpse of that wonderful spirit of the Romans.

A Roman Funeral

It was a singular procession, at which the burgesses were invited to be present by the summons of the public crier: "Yonder warrior is dead; whoever can, let him come to escort Lucius Aemilius; he is borne forth from his house." It was opened by bands of wailing women, musicians, and dancers; one of the latter was dressed out and furnished with a mask after the likeness of the deceased, and by gesture doubtless and action recalled once more to the multitude the appearance of the well-known man. Then followed the grandest and most peculiar part of the solemnity—the procession of ancestors—before which all the rest of the pageant so faded in comparison, that men of rank of the true Roman type enjoined their heirs to restrict the funeral ceremony to that procession alone. We have already mentioned that the face-masks of those ancestors who had filled the curule aedileship or any higher ordinary magistracy, wrought in wax and painted—modelled as far as possible after life, but not wanting even for the earlier ages up to and beyond the time of the kings—were wont to be placed in wooden niches along the walls of the family hall, and were regarded as the chief ornament of the house. When a death occurred in the family, suitable persons, chiefly actors, were dressed up with these face-masks and the corresponding official costume to take part in the funeral ceremony, so that the ancestors—each in the principal dress worn by him in his lifetime, the triumphator in his gold-embroidered, the censor in his purple, and the consul in his purple-bordered, robe, with their lictors and the other insignia of office—all in chariots gave the final escort to the dead. On the bier

overspread with massive purple and gold-embroidered coverlets and fine linen cloths lay the deceased himself, likewise in the full costume of the highest office which he had filled, and surrounded by the armour of the enemies whom he had slain and by the chaplets which in jest or earnest he had won. Behind the bier came the mourners, all dressed in black and without ornament, the sons of the deceased with their heads veiled, the daughters without veil, the relatives and clansmen, the friends, the clients and freedmen. Thus the procession passed on to the Forum. There the corpse was placed in an erect position; the ancestors descended from their chariots and seated themselves in the curule chairs; and the son or nearest gentile kinsman of the deceased ascended the rostra, in order to announce to the assembled multitude in simple recital the names and deeds of each of the men sitting in a circle around him and, last of all, those of him who had recently died.

This may be called a barbarous custom, and a nation of artistic feelings would certainly not have tolerated the continuance of this odd resurrection of the dead down to an epoch of fully-developed civilization; but even Greeks who were very dispassionate and but little disposed to reverence, such as Polybius, were greatly impressed by the naive pomp of this funeral ceremony. It was a conception essentially in keeping with the grave solemnity, the uniform movement, and the proud dignity of Roman life, that departed generations should continue to walk, as it were, corporeally among the living, and that, when a burgess weary of labours and of honours was gathered to his fathers, these fathers themselves should appear in the Forum to receive him among their number.

The New Hellenism

But the Romans had now reached a crisis of transition. Now that the power of Rome was no longer confined to Italy but had spread far and wide

to the east and to the west, the days of the old home life of Italy were over, and a Hellenizing civilization came in its room. It is true that Italy had been subject to the influence of Greece, ever since it had a history at all. We have formerly shown how the youthful Greece and the youthful Italy—both of them with a certain measure of simplicity and originality—gave and received intellectual impulses; and how at a later period Rome endeavoured after a more external manner to appropriate to practical use the language and inventions of the Greeks. But the Hellenism of the Romans of the present period was, in its causes as well as its consequences, something essentially new. The Romans began to feel the need of a richer intellectual life, and to be startled as it were at their own utter want of mental culture; and, if even nations of artistic gifts, such as the English and Germans, have not disdained in the pauses of their own productiveness to avail themselves of the miserable French culture for filling up the gap, it need excite no surprise that the Italian nation now flung itself with fervid zeal on the glorious treasures as well as on the dissolute filth of the intellectual development of Hellas. But it was an impulse still more profound and deep-rooted, which carried the Romans irresistibly into the Hellenic vortex. Hellenic civilization still doubtless called itself by that name, but it was Hellenic no longer; it was, in fact, humanistic and cosmopolitan. It had solved the problem of moulding a mass of different nations into one whole completely in the field of intellect, and to a certain extent also in that of politics; and, now when the same task on a wider scale devolved on Rome, she took over Hellenism along with the rest of the inheritance of Alexander the Great. Hellenism therefore was no longer a mere stimulus or accessory influence; it penetrated the Italian nation to the very core. Of course, the vigorous home life of Italy strove against the foreign element. It was only after a most vehement struggle that the Italian farmer abandoned the field to the cosmopolite of the capital; and, as in Germany the French coat called forth the national Germanic frock, so the reaction against Hellenism

aroused in Rome a tendency which opposed the influence of Greece on principle, in a fashion altogether foreign to the earlier centuries, and in doing so fell pretty frequently into downright follies and absurdities.

Hellenism in Politics

No department of human action or thought remained unaffected by this struggle between the old fashion and the new. Even political relations were largely influenced by it. The whimsical project of emancipating the Hellenes, the well deserved failure of which has already been described, the kindred, likewise Hellenic, idea of a common interest of republics in opposition to kings, and the desire of propagating Hellenic polity at the expense of eastern despotism—the two principles that helped to regulate, for instance, the treatment of Macedonia—were fixed ideas of the new school, just as dread of the Carthaginians was the fixed idea of the old; and, if Cato pushed the latter to a ridiculous excess, Philhellenism now and then indulged in extravagances at least quite as foolish. For example, the conqueror of king Antiochus not only had a statue of him self in Greek costume erected on the Capitol, but also, instead of calling himself in good Latin -Asiaticus-, assumed the unmeaning and anomalous, but yet magnificent and almost Greek, surname of —Asiagenus—.(1) A more important consequence of this attitude of the ruling nation towards Hellenism was, that the process of Latinizing gained ground everywhere in Italy except where it encountered the Hellenes. The cities of the Greeks in Italy, so far as the war had not destroyed them, remained Greek. Apulia, about which, it is true, the Romans gave themselves little concern, appears at this very epoch to have been thoroughly pervaded by Hellenism, and the local civilization there seems to have attained the level of the decaying Hellenic culture by its side. Tradition is silent on the matter; but the numerous coins of cities, uniformly furnished with Greek inscriptions, and the manufacture of painted clay-vases after the Greek style, which was

carried on in that part of Italy alone with more ambition and gaudiness than taste, show that Apulia had completely adopted Greek habits and Greek art.

But the real struggle between Hellenism and its national antagonists during the present period was carried on in the field of faith, of manners, and of art and literature; and we must not omit to attempt some delineation of this great strife of principles, however difficult it may be to present a summary view of the myriad forms and aspects which the conflict assumed.

The National Religion and Unbelief

The extent to which the old simple faith still retained a living hold on the Italians is shown very clearly by the admiration or astonishment which this problem of Italian piety excited among the contemporary Greeks. On occasion of the quarrel with the Aetolians it was reported of the Roman commander-in-chief that during battle he was solely occupied in praying and sacrificing like a priest; whereas Polybius with his somewhat stale moralizing calls the attention of his countrymen to the political usefulness of this piety, and admonishes them that a state cannot consist of wise men alone, and that such ceremonies are very convenient for the sake of the multitude.

Religious Economy

But if Italy still possessed—what had long been a mere antiquarian curiosity in Hellas—a national religion, it was already visibly beginning to be ossified into theology. The torpor creeping over faith is nowhere perhaps so distinctly apparent as in the alterations in the economy of divine service and of the priesthood. The public service of the gods became not only more tedious, but above all more and more costly. In 558 there was added to the three old colleges of the augurs, pontifices, and keepers of oracles, a fourth consisting of three "banquet-masters" (-tres viri epulones-), solely for the

important purpose of superintending the banquets of the gods. The priests, as well as the gods, were in fairness entitled to feast; new institutions, however, were not needed with that view, as every college applied itself with zeal and devotion to its convivial affairs. The clerical banquets were accompanied by the claim of clerical immunities. The priests even in times of grave embarrassment claimed the right of exemption from public burdens, and only after very troublesome controversy submitted to make payment of the taxes in arrear (558). To the individual, as well as to the community, piety became a more and more costly article. The custom of instituting endowments, and generally of undertaking permanent pecuniary obligations, for religious objects prevailed among the Romans in a manner similar to that of its prevalence in Roman Catholic countries at the present day. These endowments—particularly after they came to be regarded by the supreme spiritual and at the same time the supreme juristic authority in the state, the pontifices, as a real burden devolving -de jure- on every heir or other person acquiring the estate—began to form an extremely oppressive charge on property; "inheritance without sacrificial obligation" was a proverbial saying among the Romans somewhat similar to our "rose without a thorn." The dedication of a tenth of their substance became so common, that twice every month a public entertainment was given from the proceeds in the Forum Boarium at Rome. With the Oriental worship of the Mother of the Gods there was imported to Rome among other pious nuisances the practice, annually recurring on certain fixed days, of demanding penny-collections from house to house (-stipem cogere-). Lastly, the subordinate class of priests and soothsayers, as was reasonable, rendered no service without being paid for it; and beyond doubt the Roman dramatist sketched from life, when in the curtain-conversation between husband and wife he represents the account for pious services as ranking with the accounts for the cook, the nurse, and other customary presents:—

-Da mihi, vir,—quod dem Quinquatribus
Praecantrici, conjectrici, hariolae atque haruspicae;
Tum piatricem clementer non potest quin munerem.
Flagitium est, si nil mittetur, quo supercilio spicit.-

The Romans did not create a "God of gold," as they had formerly created a "God of silver";(2) nevertheless he reigned in reality alike over the highest and lowest spheres of religious life. The old pride of the Latin national religion—the moderation of its economic demands—was irrevocably gone.

Theology

At the same time its ancient simplicity also departed. Theology, the spurious offspring of reason and faith, was already occupied in introducing its own tedious prolixity and solemn inanity into the old homely national faith, and thereby expelling the true spirit of that faith. The catalogue of the duties and privileges of the priest of Jupiter, for instance, might well have a place in the Talmud. They pushed the natural rule—that no religious service can be acceptable to the gods unless it is free from flaw—to such an extent in practice, that a single sacrifice had to be repeated thirty times in succession on account of mistakes again and again committed, and that the games, which also formed a part of divine service, were regarded as undone if the presiding magistrate had committed any slip in word or deed or if the music even had paused at a wrong time, and so had to be begun afresh, frequently for several, even as many as seven, times in succession.

Irreligious Spirit

This exaggeration of conscientiousness was already a symptom of its incipient torpor; and the reaction against it—indifference and unbelief—failed not soon to appear. Even in the first Punic war (505) an instance occurred in which the consul himself made an open jest of consulting the

auspices before battle—a consul, it is true, belonging to the peculiar clan of the Claudii, which alike in good and evil was ahead of its age. Towards the end of this epoch complaints were loudly made that the lore of the augurs was neglected, and that, to use the language of Cato, a number of ancient auguries and auspices were falling into oblivion through the indolence of the college. An augur like Lucius Paullus, who saw in the priesthood a science and not a mere title, was already a rare exception, and could not but be so, when the government more and more openly and unhesitatingly employed the auspices for the accomplishment of its political designs, or, in other words, treated the national religion in accordance with the view of Polybius as a superstition useful for imposing on the public at large. Where the way was thus paved, the Hellenistic irreligious spirit found free course. In connection with the incipient taste for art the sacred images of the gods began as early as the time of Cato to be employed, like other furniture, in adorning the chambers of the rich. More dangerous wounds were inflicted on religion by the rising literature. It could not indeed venture on open attacks, and such direct additions as were made by its means to religious conceptions —e.g. the *Pater Caelus* formed by Ennius from the Roman *Saturnus* in imitation of the Greek *Uranos*—were, while Hellenistic, of no great importance. But the diffusion of the doctrines of Epicharm and Euhemerus in Rome was fraught with momentous consequences. The poetical philosophy, which the later Pythagoreans had extracted from the writings of the old Sicilian comedian Epicharmus of Megara (about 280), or rather had, at least for the most part, circulated under cover of his name, saw in the Greek gods natural substances, in Zeus the atmosphere, in the soul a particle of sun-dust, and so forth. In so far as this philosophy of nature, like the Stoic doctrine in later times, had in its most general outlines a certain affinity with the Roman religion, it was calculated to undermine the national religion by resolving it into allegory. A quasi-historical analysis of religion was given in the "Sacred Memoirs" of Euhemerus of Messene

(about 450), which, under the form of reports on the travels of the author among the marvels of foreign lands, subjected to thorough and documentary sifting the accounts current as to the so-called gods, and resulted in the conclusion that there neither were nor are gods at all. To indicate the character of the book, it may suffice to mention the one fact, that the story of Kronos devouring his children is explained as arising out of the existence of cannibalism in the earliest times and its abolition by king Zeus. Notwithstanding, or even by virtue of, its insipidity and of its very obvious purpose, the production had an undeserved success in Greece, and helped, in concert with the current philosophies there, to bury the dead religion. It is a remarkable indication of the expressed and conscious antagonism between religion and the new philosophy that Ennius already translated into Latin those notoriously destructive writings of Epicharmus and Euhemerus. The translators may have justified themselves at the bar of Roman police by pleading that the attacks were directed only against the Greek, and not against the Latin, gods; but the evasion was tolerably transparent. Cato was, from his own point of view, quite right in assailing these tendencies indiscriminately, wherever they met him, with his own peculiar bitterness, and in calling even Socrates a corrupter of morals and offender against religion.

Home and Foreign Superstition

Thus the old national religion was visibly on the decline; and, as the great trees of the primeval forest were uprooted the soil became covered with a rank growth of thorns and of weeds that had never been seen before. Native superstitions and foreign impostures of the most various hues mingled, competed, and conflicted with each other. No Italian stock remained exempt from this transmuting of old faith into new superstition. As the lore of entrails and of lightning was cultivated among the Etruscans, so the liberal art of observing birds and conjuring serpent? flourished luxuriantly among

the Sabellians and more particularly the Marsians. Even among the Latin nation, and in fact in Rome itself, we meet with similar phenomena, although they are, comparatively speaking, less conspicuous. Such for instance were the lots of Praeneste, and the remarkable discovery at Rome in 573 of the tomb and posthumous writings of the king Numa, which are alleged to have prescribed religious rites altogether strange and unheard of. But the credulous were to their regret not permitted to learn more than this, coupled with the fact that the books looked very new; for the senate laid hands on the treasure and ordered the rolls to be summarily thrown into the fire. The home manufacture was thus quite sufficient to meet such demands of folly as might fairly be expected; but the Romans were far from being content with it. The Hellenism of that epoch, already denationalized and pervaded by Oriental mysticism, introduced not only unbelief but also superstition in its most offensive and dangerous forms to Italy; and these vagaries moreover had quite a special charm, precisely because they were foreign.

Worship of Cybele

Chaldaean astrologers and casters of nativities were already in the sixth century spread throughout Italy; but a still more important event—one making in fact an epoch in the world's history—was the reception of the Phrygian Mother of the Gods among the publicly recognized divinities of the Roman state, to which the government had been obliged to give its consent during the last weary years of the Hannibalic war (550). A special embassy was sent for the purpose to Pessinus, a city in the territory of the Celts of Asia Minor; and the rough field-stone, which the priests of the place liberally presented to the foreigners as the real Mother Cybele, was received by the community with unparalleled pomp. Indeed, by way of perpetually commemorating the joyful event, clubs in which the members entertained each other in rotation were instituted among the higher classes,

and seem to have materially stimulated the rising tendency to the formation of cliques. With the permission thus granted for the -cultus- of Cybele the worship of the Orientals gained a footing officially in Rome; and, though the government strictly insisted that the emasculate priests of the new gods should remain Celts (-Galli-) as they were called, and that no Roman burgess should devote himself to this pious eunuchism, yet the barbaric pomp of the "Great Mother" —her priests clad in Oriental costume with the chief eunuch at their head, marching in procession through the streets to the foreign music of fifes and kettledrums, and begging from house to house—and the whole doings, half sensuous, half monastic, must have exercised a most material influence over the sentiments and views of the people.

Worship of Bacchus

The effect was only too rapidly and fearfully apparent. A few years later (568) rites of the most abominable character came to the knowledge of the Roman authorities; a secret nocturnal festival in honour of the god Bacchus had been first introduced into Etruria through a Greek priest, and, spreading like a cancer, had rapidly reached Rome and propagated itself over all Italy, everywhere corrupting families and giving rise to the most heinous crimes, unparalleled unchastity, falsifying of testaments, and murdering by poison. More than 7000 men were sentenced to punishment, most of them to death, on this account, and rigorous enactments were issued as to the future; yet they did not succeed in repressing the ongoing, and six years later (574) the magistrate to whom the matter fell complained that 3000 men more had been condemned and still there appeared no end of the evil.

Repressive Measures

Of course all rational men were agreed in the condemnation of these spurious forms of religion—as absurd as they were injurious to the commonwealth: the pious adherents of the olden faith and the partisans of

Hellenic enlightenment concurred in their ridicule of, and indignation at, this superstition. Cato made it an instruction to his steward, "that he was not to present any offering, or to allow any offering to be presented on his behalf, without the knowledge and orders of his master, except at the domestic hearth and on the wayside-altar at the Compitalia, and that he should consult no -haruspex-, -hariolus-, or -Chaldaeus-." The well-known question, as to how a priest could contrive to suppress laughter when he met his colleague, originated with Cato, and was primarily applied to the Etruscan -haruspex-. Much in the same spirit Ennius censures in true Euripidean style the mendicant soothsayers and their adherents:

-Sed superstitiosi vates impudentesque arioli,
Aut inertes aut insani aut quibus egestas imperat,
Qui sibi semitam non sapiunt, alteri monstrant viam,
Quibus divitias pollicentur, ab eis drachumam ipsi petunt.-

But in such times reason from the first plays a losing game against unreason. The government, no doubt, interfered; the pious impostors were punished and expelled by the police; every foreign worship not specially sanctioned was forbidden; even the consulting of the comparatively innocent lot-oracle of Praeneste was officially prohibited in 512; and, as we have already said, those who took part in the Bacchanalia were rigorously prosecuted. But, when once men's heads are thoroughly turned, no command of the higher authorities avails to set them right again. How much the government was obliged to concede, or at any rate did concede, is obvious from what has been stated. The Roman custom, under which the state consulted Etruscan sages in certain emergencies and the government accordingly took steps to secure the traditional transmission of Etruscan lore in the noble families of Etruria, as well as the permission of the secret worship of Demeter, which was not immoral and was restricted to women, may probably be ranked with the earlier innocent and comparatively

indifferent adoption of foreign rites. But the admission of the worship of the Mother of the Gods was a bad sign of the weakness which the government felt in presence of the new superstition, perhaps even of the extent to which it was itself pervaded by it; and it showed in like manner either an unpardonable negligence or something still worse, that the authorities only took steps against such proceedings as the Bacchanalia at so late a stage, and even then on an accidental information.

Austerity of Manners

Cato's Family Life

The picture, which has been handed down to us of the life of Cato the Elder, enables us in substance to perceive how, according to the ideas of the respectable burgesses of that period, the private life of the Roman should be spent. Active as Cato was as a statesman, pleader, author, and mercantile speculator, family life always formed with him the central object of existence; it was better, he thought, to be a good husband than a great senator. His domestic discipline was strict. The servants were not allowed to leave the house without orders, nor to talk of what occurred to the household to strangers. The more severe punishments were not inflicted capriciously, but sentence was pronounced and executed according to a quasi-judicial procedure: the strictness with which offences were punished may be inferred from the fact, that one of his slaves who had concluded a purchase without orders from his master hanged himself on the matter coming to Cato's ears. For slight offences, such as mistakes committed in waiting at table, the consular was wont after dinner to administer to the culprit the proper number of lashes with a thong wielded by his own hand. He kept his wife and children in order no less strictly, but by other means; for he declared it sinful to lay hands on a wife or grown-up children in the same way as on slaves. In the choice of a wife he disapproved marrying for money, and recommended men to look to good descent; but he himself

married in old age the daughter of one of his poor clients. Moreover he adopted views in regard to continence on the part of the husband similar to those which everywhere prevail in slave countries; a wife was throughout regarded by him as simply a necessary evil. His writings abound in invectives against the chattering, finery-loving, ungovernable fair sex; it was the opinion of the old lord that "all women are plaguy and proud," and that, "were men quit of women, our life might probably be less godless." On the other hand the rearing of children born in wedlock was a matter which touched his heart and his honour, and the wife in his eyes existed strictly and solely for the children's sake. She nursed them ordinarily herself, or, if she allowed her children to be suckled by female slaves, she also allowed their children in return to draw nourishment from her own breast; one of the few traits, which indicate an endeavour to mitigate the institution of slavery by ties of human sympathy—the common impulses of maternity and the bond of foster-brotherhood. The old general was present in person, whenever it was possible, at the washing and swaddling of his children. He watched with reverential care over their childlike innocence; he assures us that he was as careful lest he should utter an unbecoming word in presence of his children as if he had been in presence of the Vestal Virgins, and that he never before the eyes of his daughters embraced their mother, except when she had become alarmed during a thunder-storm. The education of the son was perhaps the noblest portion of his varied and variously honourable activity. True to his maxim, that a ruddy-checked boy was worth more than a pale one, the old soldier in person initiated his son into all bodily exercises, and taught him to wrestle, to ride, to swim, to box, and to endure heat and cold. But he felt very justly, that the time had gone by when it sufficed for a Roman to be a good farmer and soldier; and he felt also that it could not but have an injurious influence on the mind of his boy, if he should subsequently learn that the teacher, who had rebuked and punished him and had won his reverence, was a mere slave. Therefore he in person

taught the boy what a Roman was wont to learn, to read and write and know the law of the land; and even in his later years he worked his way so far into the general culture of the Hellenes, that he was able to deliver to his son in his native tongue whatever in that culture he deemed to be of use to a Roman. All his writings were primarily intended for his son, and he wrote his historical work for that son's use with large distinct letters in his own hand. He lived in a homely and frugal style. His strict parsimony tolerated no expenditure on luxuries. He allowed no slave to cost him more than 1500 -denarii- (65 pounds) and no dress more than 100 -denarii- (4 pounds: 6 shillings); no carpet was to be seen in his house, and for a long time there was no whitewash on the walls of the rooms. Ordinarily he partook of the same fare with his servants, and did not buffer his outlay in cash for the meal to exceed 30 -asses- (2 shillings); in time of war even wine was uniformly banished from his table, and he drank water or, according to circumstances, water mixed with vinegar. On the other hand, he was no enemy to hospitality; he was fond of associating both with his club in town and with the neighbouring landlords in the country; he sat long at table, and, as his varied experience and his shrewd and ready wit made him a pleasant companion, he disdained neither the dice nor the wine-flask: among other receipts in his book on husbandry he even gives a tried recipe for the case of a too hearty meal and too deep potations. His life up to extreme old age was one of ceaseless activity. Every moment was apportioned and occupied; and every evening he was in the habit of turning over in his mind what he had heard, said, or done during the day. Thus he found time for his own affairs as well as for those of his friends and of the state, and time also for conversation and pleasure; everything was done quickly and without many words, and his genuine spirit of activity hated nothing so much as bustle or a great ado about trifles. So lived the man who was regarded by his contemporaries and by posterity as the true model of a Roman burgess, and who appeared as it were the living embodiment of the—certainly somewhat

coarse-grained—energy and probity of Rome in contrast with Greek indolence and Greek immorality; as a later Roman poet says:

-Sperne mores transmarinos, mille habent offucias.

Cive Romano per orbem nemo vivit rectius.

Quippe malim unum Catonem, quam trecentos Socratas.- (3)

Such judgments will not be absolutely adopted by history; but every one who carefully considers the revolution which the degenerate Hellenism of this age accomplished in the modes of life and thought among the Romans, will be inclined to heighten rather than to lessen that condemnation of the foreign manners.

New Manners

The ties of family life became relaxed with fearful rapidity. The evil of grisettes and boy-favourites spread like a pestilence, and, as matters stood, it was not possible to take any material steps in the way of legislation against it. The high tax, which Cato as censor (570) laid on this most abominable species of slaves kept for luxury, would not be of much moment, and besides fell practically into disuse a year or two afterwards along with the property-tax generally. Celibacy—as to which grave complaints were made as early as 520—and divorces naturally increased in proportion. Horrible crimes were perpetrated in the bosom of families of the highest rank; for instance, the consul Gaius Calpurnius Piso was poisoned by his wife and his stepson, in order to occasion a supplementary election to the consulship and so to procure the supreme magistracy for the latter—a plot which was successful (574). Moreover the emancipation of women began. According to old custom the married woman was subject in law to the marital power which was parallel with the paternal, and the unmarried woman to the guardianship of her nearest male -agnati-, which fell little short of the paternal power; the wife had no property of her own, the

fatherless virgin and the widow had at any rate no right of management. But now women began to aspire to independence in respect to property, and, getting quit of the guardianship of their -agnati- by evasive lawyers' expedients —particularly through mock marriages—they took the management of their property into their own hands, or, in the event of being married, sought by means not much better to withdraw themselves from the marital power, which under the strict letter of the law was necessary. The mass of capital which was collected in the hands of women appeared to the statesmen of the time so dangerous, that they resorted to the extravagant expedient of prohibiting by law the testamentary nomination of women as heirs (585), and even sought by a highly arbitrary practice to deprive women for the most part of the collateral inheritances which fell to them without testament. In like manner the exercise of family jurisdiction over women, which was connected with that marital and tutorial power, became practically more and more antiquated. Even in public matters women already began to have a will of their own and occasionally, as Cato thought, "to rule the rulers of the world;" their influence was to be traced in the burgess-assembly, and already statues were erected in the provinces to Roman ladies.

Luxury

Luxury prevailed more and more in dress, ornaments, and furniture, in buildings and at table. Especially after the expedition to Asia Minor in 564 Asiatico-Hellenic luxury, such as prevailed at Ephesus and Alexandria, transferred its empty refinement and its dealing in trifles, destructive alike of money, time, and pleasure, to Rome. Here too women took the lead: in spite of the zealous invective of Cato they managed to procure the abolition, after the peace with Carthage (559), of the decree of the people passed soon after the battle of Cannae (539), which forbade them to use gold ornaments, variegated dresses, or chariots; no course was left to their zealous

antagonist but to impose a high tax on those articles (570). A multitude of new and for the most part frivolous articles—silver plate elegantly figured, table-couches with bronze mounting, Attalic dresses as they were called, and carpets of rich gold brocade—now found their way to Rome. Above all, this new luxury appeared in the appliances of the table. Hitherto without exception the Romans had only partaken of hot dishes once a day; now hot dishes were not unfrequently produced at the second meal (-prandium-), and for the principal meal the two courses formerly in use no longer sufficed. Hitherto the women of the household had themselves attended to the baking of bread and cooking; and it was only on occasion of entertainments that a professional cook was specially hired, who in that case superintended alike the cooking and the baking. Now, on the other hand, a scientific cookery began to prevail. In the better houses a special cook was kept. The division of labour became necessary, and the trade of baking bread and cakes branched off from that of cooking—the first bakers' shops in Rome appeared about 583. Poems on the art of good eating, with long lists of the most palatable fishes and other marine products, found their readers: and the theory was reduced to practice. Foreign delicacies—anchovies from Pontus, wine from Greece—began to be esteemed in Rome, and Cato's receipt for giving to the ordinary wine of the country the flavour of Coan by means of brine would hardly inflict any considerable injury on the Roman vintners. The old decorous singing and reciting of the guests and their boys were supplanted by Asiatic -sambucistriae-. Hitherto the Romans had perhaps drunk pretty deeply at supper, but drinking- banquets in the strict sense were unknown; now formal revels came into vogue, on which occasions the wine was little or not at all diluted and was drunk out of large cups, and the drink-pledging, in which each was bound to follow his neighbour in regular succession, formed the leading feature—"drinking after the Greek style" (-Graeco more bibere-) or "playing the Greek" (-pergraecari-, -congraecare-) as the Romans called it. In consequence of this

debauchery dice-playing, which had doubtless long been in use among the Romans, reached such proportions that it was necessary for legislation to interfere. The aversion to labour and the habit of idle lounging were visibly on the increase.(4) Cato proposed to have the market paved with pointed stones, in order to put a stop to the habit of idling; the Romans laughed at the jest and went on to enjoy the pleasure of loitering and gazing all around them.

Increase of Amusements

We have already noticed the alarming extension of the popular amusements during this epoch. At the beginning of it, apart from some unimportant foot and chariot races which should rather be ranked with religious ceremonies, only a single general festival was held in the month of September, lasting four days and having a definitely fixed maximum of cost.(5) At the close of the epoch, this popular festival had a duration of at least six days; and besides this there were celebrated at the beginning of April the festival of the Mother of the Gods or the so-called Megalensia, towards the end of April that of Ceres and that of Flora, in June that of Apollo, in November the Plebeian games—all of them probably occupying already more days than one. To these fell to be added the numerous cases where the games were celebrated afresh—in which pious scruples presumably often served as a mere pretext—and the incessant extraordinary festivals. Among these the already-mentioned banquets furnished from the dedicated tenths(6) the feasts of the gods, the triumphal and funeral festivities, were conspicuous; and above all the festal games which were celebrated—for the first time in 505—at the close of one of those longer periods which were marked off by the Etrusco-Roman religion, the -saecula-, as they were called. At the same time domestic festivals were multiplied. During the second Punic war there were introduced, among people of quality, the already-mentioned banquetings on the anniversary of

the entrance of the Mother of the Gods (after 550), and, among the lower orders, the similar Saturnalia (after 537), both under the influence of the powers henceforth closely allied—the foreign priest and the foreign cook. A very near approach was made to that ideal condition in which every idler should know where he might kill time every day; and this in a commonwealth where formerly action had been with all and sundry the very object of existence, and idle enjoyment had been proscribed by custom as well as by law! The bad and demoralizing elements in these festal observances, moreover, daily acquired greater ascendancy. It is true that still as formerly the chariot races formed the brilliant finale of the national festivals; and a poet of this period describes very vividly the straining expectancy with which the eyes of the multitude were fastened on the consul, when he was on the point of giving the signal for the chariots to start. But the former amusements no longer sufficed; there was a craving for new and more varied spectacles. Greek athletes now made their appearance (for the first time in 568) alongside of the native wrestlers and boxers. Of the dramatic exhibitions we shall speak hereafter: the transplanting of Greek comedy and tragedy to Rome was a gain perhaps of doubtful value, but it formed at any rate the best of the acquisitions made at this time. The Romans had probably long indulged in the sport of coursing hares and hunting foxes in presence of the public; now these innocent hunts were converted into formal baitings of wild animals, and the wild beasts of Africa—lions and panthers—were (first so far as can be proved in 568) transported at great cost to Rome, in order that by killing or being killed they might serve to glut the eyes of the gazers of the capital. The still more revolting gladiatorial games, which prevailed in Campania and Etruria, now gained admission to Rome; human blood was first shed for sport in the Roman forum in 490. Of course these demoralizing amusements encountered severe censure: the consul of 486, Publius Sempronius Sophus, sent a divorce to his wife, because she had attended funeral games; the

government carried a decree of the people prohibiting the bringing over of wild beasts to Rome, and strictly insisted that no gladiators should appear at the public festivals. But here too it wanted either the requisite power or the requisite energy: it succeeded, apparently, in checking the practice of baiting animals, but the appearance of sets of gladiators at private festivals, particularly at funeral celebrations, was not suppressed. Still less could the public be prevented from preferring the comedian to the tragedian, the rope-dancer to the comedian, the gladiator to the rope-dancer; or the stage be prevented from revelling by choice amidst the pollution of Hellenic life. Whatever elements of culture were contained in the scenic and artistic entertainments were from the first thrown aside; it was by no means the object of the givers of the Roman festivals to elevate—though it should be but temporarily—the whole body of spectators through the power of poetry to the level of feeling of the best, as the Greek stage did in the period of its prime, or to prepare an artistic pleasure for a select circle, as our theatres endeavour to do. The character of the managers and spectators in Rome is illustrated by a scene at the triumphal games in 587, where the first Greek flute-players, on their melodies failing to please, were instructed by the director to box with one another instead of playing, upon which the delight would know no bounds.

Nor was the evil confined to the corruption of Roman manners by Hellenic contagion; conversely the scholars began to demoralize their instructors. Gladiatorial games, which were unknown in Greece, were first introduced by king Antiochus Epiphanes (579-590), a professed imitator of the Romans, at the Syrian court, and, although they excited at first greater horror than pleasure in the Greek public, which was more humane and had more sense of art than the Romans, yet they held their ground likewise there, and gradually came more and more into vogue.

As a matter of course, this revolution in life and manners brought an economic revolution in its train. Residence in the capital became more and more coveted as well as more costly. Rents rose to an unexampled height. Extravagant prices were paid for the new articles of luxury; a barrel of anchovies from the Black Sea cost 1600 sesterces (16 pounds)—more than the price of a rural slave; a beautiful boy cost 24,000 sesterces (240 pounds)—more than many a farmer's homestead. Money therefore, and nothing but money, became the watchword with high and low. In Greece it had long been the case that nobody did anything for nothing, as the Greeks themselves with discreditable candour allowed: after the second Macedonian war the Romans began in this respect also to imitate the Greeks. Respectability had to provide itself with legal buttresses; pleaders, for instance, had to be prohibited by decree of the people from taking money for their services; the jurisconsults alone formed a noble exception, and needed no decree of the people to compel their adherence to the honourable custom of giving good advice gratuitously. Men did not, if possible, steal outright; but all shifts seemed allowable in order to attain rapidly to riches—plundering and begging, cheating on the part of contractors and swindling on the part of speculators, usurious trading in money and in grain, even the turning of purely moral relations such as friendship and marriage to economic account. Marriage especially became on both sides an object of mercantile speculation; marriages for money were common, and it appeared necessary to refuse legal validity to the presents which the spouses made to each other. That, under such a state of things, plans for setting fire on all sides to the capital came to the knowledge of the authorities, need excite no surprise. When man no longer finds enjoyment in work, and works merely in order to attain as quickly as possible to enjoyment, it is a mere accident that he does not become a criminal. Destiny had lavished all the glories of power and riches with

liberal hand on the Romans; but, in truth, the Pandora's box was a gift of doubtful value.

Notes for Chapter XIII

1. That —Asiagenus— was the original title of the hero of Magnesia and of his descendants, is established by coins and inscriptions; the fact that the Capitoline Fasti call him -Asiaticus- is one of several traces indicating that these have undergone a non-contemporary revision. The former surname can only be a corruption of —Asiagenus— —the form which later authors substituted for it—which signifies not the conqueror of Asia, but an Asiatic by birth.

2. II. VIII. Religion

3. [In the first edition of this translation I gave these lines in English on the basis of Dr. Mommsen's German version, and added in a note that I had not been able to find the original. Several scholars whom I consulted were not more successful; and Dr. Mommsen was at the time absent from Berlin. Shortly after the first edition appeared, I received a note from Sir George Cornwall Lewis informing me that I should find them taken from Florus (or Floridus) in Wernsdorf, *Poetae Lat. Min.* vol. iii. p. 487. They were accordingly given in the revised edition of 1868 from the Latin text Baehrens (*Poet. Lat. Min.* vol. iv. p. 347) follows Lucian Muller in reading -offucia-. —TR.]

4. A sort of -parabasis- in the -Curculio- of Plautus describes what went on in the market-place of the capital, with little humour perhaps, but with life-like distinctness.

-Conmonstrabo, quo in quemque hominem facile inveniatis loco,
Ne nimio opere sumat operam, si quis conventum velit
Vel vitiosum vel sine vitio, vel probum vel inprobum.
Qui perjurum convenire volt hominem, ito in comitium;
Qui mendacem et gloriosum, apud Cloacinae sacrum.
[Ditis damnosos maritos sub basilica quaerito.
Ibidem erunt scorta exoleta quique stipulari solent.]
Symbolarum conlatores apud forum piscarium.
In foro infumo boni homines atque dites ambulant;
In medio propter canalem ibi ostentatores meri.
Confidentes garrulique et malevoli supra lacum,
Qui alteri de nihilo audacter dicunt contumeliam
Et qui ipsi sat habent quod in se possit vere dicier.
Sub veteribus ibi sunt, qui dant quique accipiunt faenore.
Pone aedem Castoris ibi sunt, subito quibus credas male.
In Tusco vico ibi sunt homines, qui ipsi sese venditant.
In Velabro vel pistorem vel lanium vel haruspicem
Vel qui ipsi vorsant, vel qui aliis, ut vorsentur, praebeant.
Ditis damnosos maritos apud Leucadium Oppiam.-

The verses in brackets are a subsequent addition, inserted after the building of the first Roman bazaar (570). The business of the baker (-pistor-, literally miller) embraced at this time the sale of delicacies and the providing accommodation for revellers (Festus, Ep. v. alicariae, p. 7, Mull.; Plautus, Capt. 160; Poen. i. a, 54; Trin. 407). The same was the case with the butchers. Leucadia Oppia may have kept a house of bad fame.

5. II. IX. The Roman National Festival

6. III. XIII. Religious Economy

CHAPTER XIV

Literature and Art

The influences which stimulated the growth of Roman literature were of a character altogether peculiar and hardly paralleled in any other nation. To estimate them correctly, it is necessary in the first place that we should glance at the instruction of the people and its recreations during this period.

Knowledge of Languages

Language lies at the root of all mental culture; and this was especially the case in Rome. In a community where so much importance was attached to speeches and documents, and where the burgess, at an age which is still according to modern ideas regarded as boyhood, was already entrusted with the uncontrolled management of his property and might perhaps find it necessary to make formal speeches to the assembled community, not only was great value set all along on the fluent and polished use of the mother-tongue, but efforts were early made to acquire a command of it in the years of boyhood. The Greek language also was already generally diffused in Italy in the time of Hannibal. In the higher circles a knowledge of that language, which was the general medium of intercourse for ancient civilization, had long been a far from uncommon accomplishment; and now, when the change of Rome's position in the world had so enormously increased the intercourse with foreigners and the foreign traffic, such a

knowledge was, if not necessary, yet presumably of very material importance to the merchant as well as the statesman. By means of the Italian slaves and freedmen, a very large portion of whom were Greek or half-Greek by birth the Greek language and Greek knowledge to a certain extent reached even the lower ranks of the population, especially in the capital. The comedies of this period may convince us that even the humbler classes of the capital were familiar with a sort of Latin, which could no more be properly understood without a knowledge of Greek than the English of Sterne or the German of Wieland without a knowledge of French.(1) Men of senatorial families, however, not only addressed a Greek audience in Greek, but even published their speeches—Tiberius Gracchus (consul in 577 and 591) so published a speech which he had given at Rhodes—and in the time of Hannibal wrote their chronicles in Greek, as we shall have occasion to mention more particularly in the sequel. Individuals went still farther. The Greeks honoured Flamininus by complimentary demonstrations in the Roman language,(2) and he returned the compliment; the "great general of the Aeneiades" dedicated his votive gifts to the Greek gods after the Greek fashion in Greek distichs.(3) Cato reproached another senator with the fact, that he had the effrontery to deliver Greek recitations with the due modulation at Greek revels.

Under the influence of such circumstances Roman instruction developed itself. It is a mistaken opinion, that antiquity was materially inferior to our own times in the general diffusion of elementary attainments. Even among the lower classes and slaves there was much reading, writing, and counting: in the case of a slave steward, for instance, Cato, following the example of Mago, takes for granted the ability to read and write. Elementary instruction, as well as instruction in Greek, must have been long before this period imparted to a very considerable extent in Rome. But the epoch now before us initiated an education, the aim of which was to communicate not merely an outward expertness, but a real mental culture. Hitherto in Rome a

knowledge of Greek had conferred on its possessor as little superiority in civil or social life, as a knowledge of French perhaps confers at the present day in a hamlet of German Switzerland; and the earliest writers of Greek chronicles may have held a position among the other senators similar to that of the farmer in the fens of Holstein who has been a student and in the evening, when he comes home from the plough, takes down his Virgil from the shelf. A man who assumed airs of greater importance by reason of his Greek, was reckoned a bad patriot and a fool; and certainly even in Cato's time one who spoke Greek ill or not at all might still be a man of rank and become senator and consul. But a change was already taking place. The internal decomposition of Italian nationality had already, particularly in the aristocracy, advanced so far as to render the substitution of a general humane culture for that nationality inevitable: and the craving after a more advanced civilization was already powerfully stirring the minds of men. Instruction in the Greek language as it were spontaneously met this craving. The classical literature of Greece, the Iliad and still more the Odyssey, had all along formed the basis of that instruction; the overflowing treasures of Hellenic art and science were already by this means spread before the eyes of the Italians. Without any outward revolution, strictly speaking, in the character of the instruction the natural result was, that the empirical study of the language became converted into a higher study of the literature; that the general culture connected with such literary studies was communicated in increased measure to the scholars; and that these availed themselves of the knowledge thus acquired to dive into that Greek literature which most powerfully influenced the spirit of the age —the tragedies of Euripides and the comedies of Menander.

In a similar way greater importance came to be attached to instruction in Latin. The higher society of Rome began to feel the need, if not of exchanging their mother-tongue for Greek, at least of refining it and adapting it to the changed state of culture; and for this purpose too they

found themselves in every respect dependent on the Greeks. The economic arrangements of the Romans placed the work of elementary instruction in the mother-tongue—like every other work held in little estimation and performed for hire—chiefly in the hands of slaves, freedmen, or foreigners, or in other words chiefly in the hands of Greeks or half-Greeks;(4) which was attended with the less difficulty, because the Latin alphabet was almost identical with the Greek and the two languages possessed a close and striking affinity. But this was the least part of the matter; the importance of the study of Greek in a formal point of view exercised a far deeper influence over the study of Latin. Any one who knows how singularly difficult it is to find suitable matter and suitable forms for the higher intellectual culture of youth, and how much more difficult it is to set aside the matter and forms once found, will understand how it was that the Romans knew no mode of supplying the desideratum of a more advanced Latin instruction except that of simply transferring the solution of this problem, which instruction in the Greek language and literature furnished, to instruction in Latin. In the present day a process entirely analogous goes on under our own eyes in the transference of the methods of instruction from the dead to the living languages.

But unfortunately the chief requisite for such a transference was wanting. The Romans could, no doubt, learn to read and write Latin by means of the Twelve Tables; but a Latin culture presupposed a literature, and no such literature existed in Rome.

The Stage under Greek Influence

To this defect was added a second. We have already described the multiplication of the amusements of the Roman people. The stage had long played an important part in these recreations; the chariot-races formed strictly the principal amusement in all of them, but these races uniformly

took place only on one, viz. the concluding, day, while the earlier days were substantially devoted to stage- entertainments. But for long these stage-representations consisted chiefly of dances and jugglers' feats; the improvised chants, which were produced on these occasions, had neither dialogue nor plot.(5) It was only now that the Romans looked around them for a real drama. The Roman popular festivals were throughout under the influence of the Greeks, whose talent for amusing and for killing time naturally rendered them purveyors of pleasure for the Romans. Now no national amusement was a greater favourite in Greece, and none was more varied, than the theatre; it could not but speedily attract the attention of those who provided the Roman festivals and their staff of assistants. The earlier Roman stage-chant contained within it a dramatic germ capable perhaps of development; but to develop the drama from that germ required on the part of the poet and the public a genial power of giving and receiving, such as was not to be found among the Romans at all, and least of all at this period; and, had it been possible to find it, the impatience of those entrusted with the amusement of the multitude would hardly have allowed to the noble fruit peace and leisure to ripen. In this case too there was an outward want, which the nation was unable to satisfy; the Romans desired a theatre, but the pieces were wanting.

Rise of a Roman Literature

On these elements Roman literature was based; and its defective character was from the first and necessarily the result of such an origin. All real art has its root in individual freedom and a cheerful enjoyment of life, and the germs of such an art were not wanting in Italy; but, when Roman training substituted for freedom and joyousness the sense of belonging to the community and the consciousness of duty, art was stifled and, instead of growing, could not but pine away. The culminating point of Roman development was the period which had no literature. It was not till Roman

nationality began to give way and Hellenico-cosmopolite tendencies began to prevail, that literature made its appearance at Rome in their train. Accordingly from the beginning, and by stringent internal necessity, it took its stand on Greek ground and in broad antagonism to the distinctively Roman national spirit. Roman poetry above all had its immediate origin not from the inward impulse of the poets, but from the outward demands of the school, which needed Latin manuals, and of the stage, which needed Latin dramas. Now both institutions—the school and the stage—were thoroughly anti-Roman and revolutionary. The gaping and staring idleness of the theatre was an abomination to the sober earnestness and the spirit of activity which animated the Roman of the olden type; and—inasmuch as it was the deepest and noblest conception lying at the root of the Roman commonwealth, that within the circle of Roman burgesses there should be neither master nor slave, neither millionaire nor beggar, but that above all a like faith and a like culture should characterize all Romans—the school and the necessarily exclusive school-culture were far more dangerous still, and were in fact utterly destructive of the sense of equality. The school and the theatre became the most effective levers in the hands of the new spirit of the age, and all the more so that they used the Latin tongue. Men might perhaps speak and write Greek and yet not cease to be Romans; but in this case they accustomed themselves to speak in the Roman language, while the whole inward being and life were Greek. It is not one of the most pleasing, but it is one of the most remarkable and in a historical point of view most instructive, facts in this brilliant era of Roman conservatism, that during its course Hellenism struck root in the whole field of intellect not immediately political, and that the -maitre de plaisir- of the great public and the schoolmaster in close alliance created a Roman literature.

Livius Andronicus

In the very earliest Roman author the later development appears, as it were, in embryo. The Greek Andronikos (from before 482, till after 547), afterwards as a Roman burgess called Lucius(6) Livius Andronicus, came to Rome at an early age in 482 among the other captives taken at Tarentum(7) and passed into the possession of the conqueror of Sena(8) Marcus Livius Salinator (consul 535, 547). He was employed as a slave, partly in acting and copying texts, partly in giving instruction in the Latin and Greek languages, which he taught both to the children of his master and to other boys of wealthy parents in and out of the house. He distinguished himself so much in this way that his master gave him freedom, and even the authorities, who not unfrequently availed themselves of his services—commissioning him, for instance, to prepare a thanksgiving-chant after the fortunate turn taken by the Hannibalic war in 547—out of regard for him conceded to the guild of poets and actors a place for their common worship in the temple of Minerva on the Aventine. His authorship arose out of his double occupation. As schoolmaster he translated the Odyssey into Latin, in order that the Latin text might form the basis of his Latin, as the Greek text was the basis of his Greek, instruction; and this earliest of Roman school-books maintained its place in education for centuries. As an actor, he not only like every other wrote for himself the texts themselves, but he also published them as books, that is, he read them in public and diffused them by copies. What was still more important, he substituted the Greek drama for the old essentially lyrical stage poetry. It was in 514, a year after the close of the first Punic war, that the first play was exhibited on the Roman stage. This creation of an epos, a tragedy, and a comedy in the Roman language, and that by a man who was more Roman than Greek, was historically an event; but we cannot speak of his labours as having any artistic value. They make no sort of claim to originality; viewed as translations, they are characterized by a barbarism which is only the more perceptible, that this poetry does not naively display its own native

simplicity, but strives, after a pedantic and stammering fashion, to imitate the high artistic culture of the neighbouring people. The wide deviations from the original have arisen not from the freedom, but from the rudeness of the imitation; the treatment is sometimes insipid, sometimes turgid, the language harsh and quaint.(9) We have no difficulty in believing the statement of the old critics of art, that, apart from the compulsory reading at school, none of the poems of Livius were taken up a second time. Yet these labours were in various respects norms for succeeding times. They began the Roman translated literature, and naturalized the Greek metres in Latium. The reason why these were adopted only in the dramas, while the *Odyssey* of Livius was written in the national Saturnian measure, evidently was that the iambs and trochees of tragedy and comedy far more easily admitted of imitation in Latin than the epic dactyls.

But this preliminary stage of literary development was soon passed. The epics and dramas of Livius were regarded by posterity, and undoubtedly with perfect justice, as resembling the rigid statues of Daedalus destitute of emotion or expression—curiosities rather than works of art.

But in the following generation, now that the foundations were once laid, there arose a lyric, epic, and dramatic art; and it is of great importance, even in a historical point of view, to trace this poetical development.

Drama

Theatre

Both as respects extent of production and influence over the public, the drama stood at the head of the poetry thus developed in Rome. In antiquity there was no permanent theatre with fixed admission-money; in Greece as in Rome the drama made its appearance only as an element in the annually-recurring or extraordinary amusements of the citizens. Among the measures by which the government counteracted or imagined that they counteracted

that extension of the popular festivals which they justly regarded with anxiety, they refused to permit the erection of a stone building for a theatre. (10) Instead of this there was erected for each festival a scaffolding of boards with a stage for the actors (-proscenium-, -pulpitum-) and a decorated background (-scaena-); and in a semicircle in front of it was staked off the space for the spectators (-cavea-), which was merely sloped without steps or seats, so that, if the spectators had not chairs brought along with them, they squatted, reclined, or stood.(11) The women were probably separated at an early period, and were restricted to the uppermost and worst places; otherwise there was no distinction of places in law till 560, after which, as already mentioned,(12) the lowest and best positions were reserved for the senators.

Audience

The audience was anything but genteel. The better classes, it is true, did not keep aloof from the general recreations of the people; the fathers of the city seem even to have been bound for decorum's sake to appear on these occasions. But the very nature of a burgess festival implied that, while slaves and probably foreigners also were excluded, admittance free of charge was given to every burgess with his wife and children;(13) and accordingly the body of spectators cannot have differed much from what one sees in the present day at public fireworks and -gratis- exhibitions. Naturally, therefore, the proceedings were not too orderly; children cried, women talked and shrieked, now and then a wench prepared to push her way to the stage; the ushers had on these festivals anything but a holiday, and found frequent occasion to confiscate a mantle or to ply the rod.

The introduction of the Greek drama increased the demands on the dramatic staff, and there seems to have been no redundance in the supply of capable actors: on one occasion for want of actors a piece of Naevius had to

be performed by amateurs. But this produced no change in the position of the artist; the poet or, as he was at this time called, the "writer," the actor, and the composer not only belonged still, as formerly, to the class of workers for hire in itself little esteemed,(14) but were still, as formerly, placed in the most marked way under the ban of public opinion, and subjected to police maltreatment.(15) Of course all reputable persons kept aloof from such an occupation. The manager of the company (-dominus gregis-, -factionis-, also -choragus-), who was ordinarily also the chief actor, was generally a freedman, and its members were ordinarily his slaves; the composers, whose names have reached us, were all of them non-free. The remuneration was not merely small—a -honorarium- of 8000 sesterces (80 pounds) given to a dramatist is described shortly after the close of this period as unusually high—but was, moreover, only paid by the magistrates providing the festival, if the piece was not a failure. With the payment the matter ended; poetical competitions and honorary prizes, such as took place in Attica, were not yet heard of in Rome—the Romans at this time appear to have simply applauded or hissed as we now do, and to have brought forward only a single piece for exhibition each day.(16) Under such circumstances, where art worked for daily wages and the artist instead of receiving due honour was subjected to disgrace, the new national theatre of the Romans could not present any development either original or even at all artistic; and, while the noble rivalry of the noblest Athenians had called into life the Attic drama, the Roman drama taken as a whole could be nothing but a spoiled copy of its predecessor, in which the only wonder is that it has been able to display so much grace and wit in the details.

That only one piece was produced each day we infer from the fact, that the spectators come from home at the beginning of the piece (Poen. 10), and return home after its close (Epid. Pseud. Rud. Stich. Truc. ap. fin.). They went, as these passages show, to the theatre after the second breakfast, and were at home again for the midday meal; the performance thus lasted,

according to our reckoning, from about noon till half-past two o'clock, and a piece of Plautus, with music in the intervals between the acts, might probably occupy nearly that length of time (comp. Horat. Ep. ii. i, 189). The passage, in which Tacitus (Ann. xiv. 20) makes the spectators spend "whole days" in the theatre, refers to the state of matters at a later period.

Comedy

In the dramatic world comedy greatly preponderated over tragedy; the spectators knit their brows, when instead of the expected comedy a tragedy began. Thus it happened that, while this period exhibits poets who devoted themselves specially to comedy, such as Plautus and Caecilius, it presents none who cultivated tragedy alone; and among the dramas of this epoch known to us by name there occur three comedies for one tragedy. Of course the Roman comic poets, or rather translators, laid hands in the first instance on the pieces which had possession of the Hellenic stage at the time; and thus they found themselves exclusively(17) confined to the range of the newer Attic comedy, and chiefly to its best-known poets, Philemon of Soli in Cilicia (394?-492) and Menander of Athens (412-462). This comedy came to be of so great importance as regards the development not only of Roman literature, but even of the nation at large, that even history has reason to pause and consider it.

Character of the Newer Attic Comedy

The pieces are of tiresome monotony. Almost without exception the plot turns on helping a young man, at the expense either of his father or of some -lono-, to obtain possession of a sweetheart of undoubted charms and of very doubtful morals. The path to success in love regularly lies through some sort of pecuniary fraud; and the crafty servant, who provides the needful sum and performs the requisite swindling while the lover is mourning over his amatory and pecuniary distresses, is the real mainspring

of the piece. There is no want of the due accompaniment of reflections on the joys and sorrows of love, of tearful parting scenes, of lovers who in the anguish of their hearts threaten to do themselves a mischief; love or rather amorous intrigue was, as the old critics of art say, the very life-breath of the Menandrian poetry. Marriage forms, at least with Menander, the inevitable finale; on which occasion, for the greater edification and satisfaction of the spectators, the virtue of the heroine usually comes forth almost if not wholly untarnished, and the heroine herself proves to be the lost daughter of some rich man and so in every respect an eligible match. Along with these love-pieces we find others of a pathetic kind. Among the comedies of Plautus, for instance, the *-Rudens-* turns on a shipwreck and the right of asylum; while the *-Trinummus-* and the *-Captivi-* contain no amatory intrigue, but depict the generous devotedness of the friend to his friend and of the slave to his master. Persons and situations recur down to the very details like patterns on a carpet; we never get rid of the asides of unseen listeners, of knocking at the house-doors, and of slaves scouring the streets on some errand or other. The standing masks, of which there was a certain fixed number—viz., eight masks for old men, and seven for servants—from which alone in ordinary cases at least the poet had to make his choice, further favoured a stock-model treatment. Such a comedy almost of necessity rejected the lyrical element in the older comedy—the chorus—and confined itself from the first to conversation, or at most recitation; it was devoid not of the political element only, but of all true passion and of all poetical elevation. The pieces judiciously made no pretence to any grand or really poetical effect: their charm resided primarily in furnishing occupation for the intellect, not only through their subject-matter—in which respect the newer comedy was distinguished from the old as much by the greater intrinsic emptiness as by the greater outward complication of the plot—but more especially through their execution in detail, in which the point and polish of the conversation more particularly formed the triumph

of the poet and the delight of the audience. Complications and confusions of one person with another, which very readily allowed scope for extravagant, often licentious, practical jokes—as in the *-Casina-*, which winds up in genuine Falstaffian style with the retiring of the two bridegrooms and of the soldier dressed up as bride—jests, drolleries, and riddles, which in fact for want of real conversation furnished the staple materials of entertainment at the Attic table of the period, fill up a large portion of these comedies. The authors of them wrote not like Eupolis and Aristophanes for a great nation, but rather for a cultivated society which spent its time, like other clever circles whose cleverness finds little fit scope for action, in guessing riddles and playing at charades. They give us, therefore, no picture of their times; of the great historical and intellectual movements of the age no trace appears in these comedies, and we need to recall, in order to realize, the fact that Philemon and Menander were really contemporaries of Alexander and Aristotle. But they give us a picture, equally elegant and faithful, of that refined Attic society beyond the circles of which comedy never travels. Even in the dim Latin copy, through which we chiefly know it, the grace of the original is not wholly obliterated; and more especially in the pieces which are imitated from Menander, the most talented of these poets, the life which the poet saw and shared is delicately reflected not so much in its aberrations and distortions as in its amiable every day course. The friendly domestic relations between father and daughter, husband and wife, master and servant, with their love-affairs and other little critical incidents, are portrayed with so broad a truthfulness, that even now they do not miss their effect: the servants' feast, for instance, with which the *-Stichus-* concludes is, in the limited range of its relations and the harmony of the two lovers and the one sweetheart, of unsurpassed gracefulness in its kind. The elegant grisettes, who make their appearance perfumed and adorned, with their hair fashionably dressed and in variegated, gold-embroidered, sweeping robes, or even perform their toilette on the stage, are very effective. In their train

come the procuresses, sometimes of the most vulgar sort, such as one who appears in the *-Curculio-*, sometimes duennas like Goethe's old Barbara, such as Scapha in the *-Mostettaria-*; and there is no lack of brothers and comrades ready with their help. There is great abundance and variety of parts representing the old: there appear in turn the austere and avaricious, the fond and tender-hearted, and the indulgent accommodating, papas, the amorous old man, the easy old bachelor, the jealous aged matron with her old maid-servant who takes part with her mistress against her master; whereas the young men's parts are less prominent, and neither the first lover, nor the virtuous model son who here and there occurs, lays claim to much significance. The servant- world—the crafty valet, the stern house-steward, the old vigilant tutor, the rural slave redolent of garlic, the impertinent page—forms a transition to the very numerous professional parts. A standing figure among these is the jester (*-parasitus-*) who, in return for permission to feast at the table of the rich, has to entertain the guests with drolleries and charades, or, according to circumstances, to let the potsherds be flung at his head. This was at that time a formal trade in Athens; and it is certainly no mere poetical fiction which represents such a parasite as expressly preparing himself for his work by means of his books of witticisms and anecdotes. Favourite parts, moreover, are those of the cook, who understands not only how to boast of unheard-of sauces, but also how to pilfer like a professional thief; the shameless *-leno-*, complacently confessing to the practice of every vice, of whom Ballio in the *-Pseudolus-* is a model specimen; the military braggadocio, in whom we trace a very distinct reflection of the free-lance habits that prevailed under Alexander's successors; the professional sharper or sycophant, the stingy money-changer, the solemnly silly physician, the priest, mariner, fisherman, and the like. To these fall to be added, lastly, the parts delineative of character in the strict sense, such as the superstitious man of Menander and the miser in the *-Aulularia-* of Plautus. The national-Hellenic poetry has preserved, even in

this its last creation, its indestructible plastic vigour; but the delineation of character is here copied from without rather than reproduced from inward experience, and the more so, the more the task approaches to the really poetical. It is a significant circumstance that, in the parts illustrative of character to which we have just referred, the psychological truth is in great part represented by abstract development of the conception; the miser here collects the parings of his nails and laments the tears which he sheds as a waste of water. But the blame of this want of depth in the portraying of character, and generally of the whole poetical and moral hollowness of this newer comedy, lay less with the comic writers than with the nation as a whole. Everything distinctively Greek was expiring: fatherland, national faith, domestic life, all nobleness of action and sentiment were gone; poetry, history, and philosophy were inwardly exhausted; and nothing remained to the Athenian save the school, the fish-market, and the brothel. It is no matter of wonder and hardly a matter of blame, that poetry, which is destined to shed a glory over human existence, could make nothing more out of such a life than the Menandrian comedy presents to us. It is at the same time very remarkable that the poetry of this period, wherever it was able to turn away in some degree from the corrupt Attic life without falling into scholastic imitation, immediately gathers strength and freshness from the ideal. In the only remnant of the mock-heroic comedy of this period—the -Amphitruo- of Plautus—there breathes throughout a purer and more poetical atmosphere than in all the other remains of the contemporary stage. The good-natured gods treated with gentle irony, the noble forms from the heroic world, and the ludicrously cowardly slaves present the most wonderful mutual contrasts; and, after the comical course of the plot, the birth of the son of the gods amidst thunder and lightning forms an almost grand concluding effect. But this task of turning the myths into irony was innocent and poetical, as compared with that of the ordinary comedy depicting the Attic life of the period. No special accusation may be brought

from a historico- moral point of view against the poets, nor ought it to be made matter of individual reproach to any particular poet that he occupies the level of his epoch: comedy was not the cause, but the effect of the corruption that prevailed in the national life. But it is necessary, more especially with a view to judge correctly the influence of these comedies on the life of the Roman people, to point out the abyss which yawned beneath all that polish and elegance. The coarsenesses and obscenities, which Menander indeed in some measure avoided, but of which there is no lack in the other poets, are the least part of the evil. Features far worse are, the dreadful desolation of life in which the only oases are lovemaking and intoxication; the fearfully prosaic atmosphere, in which anything resembling enthusiasm is to be found only among the sharpers whose heads have been turned by their own swindling, and who prosecute the trade of cheating with some sort of zeal; and above all that immoral morality, with which the pieces of Menander in particular are garnished. Vice is chastised, virtue is rewarded, and any peccadilloes are covered by conversion at or after marriage. There are pieces, such as the -Trinummus- of Plautus and several of Terence, in which all the characters down to the slaves possess some admixture of virtue; all swarm with honest men who allow deception on their behalf, with maidenly virtue wherever possible, with lovers equally favoured and making love in company; moral commonplaces and well-turned ethical maxims abound. A finale of reconciliation such as that of the -Bacchides-, where the swindling sons and the swindled fathers by way of a good winding up all go to carouse together in the brothel, presents a corruption of morals thoroughly worthy of Kotzebue.

Roman Comedy

Its Hellenism a Necessary Result of the Law

Such were the foundations, and such the elements which shaped the growth, of Roman comedy. Originality was in its case excluded not merely

by want of aesthetic freedom, but in the first instance, probably, by its subjection to police control. Among the considerable number of Latin comedies of this sort which are known to us, there is not one that did not announce itself as an imitation of a definite Greek model; the title was only complete when the names of the Greek piece and of its author were also given, and if, as occasionally happened, the "novelty" of a piece was disputed, the question was merely whether it had been previously translated. Comedy laid the scene of its plot abroad not only frequently, but regularly and under the pressure of necessity; and that species of art derived its special name (-fabula palliata-) from the fact, that the scene was laid away from Rome, usually in Athens, and that the -dramatis personae- were Greeks or at any rate not Romans. The foreign costume is strictly carried out even in detail, especially in those things in which the uncultivated Roman was distinctly sensible of the contrast. Thus the names of Rome and the Romans are avoided, and, where they are referred to, they are called in good Greek "foreigners" (-barbari-); in like manner among the appellations of moneys and coins, that occur ever so frequently, there does not once appear a Roman coin. We form a strange idea of men of so great and so versatile talents as Naevius and Plautus, if we refer such things to their free choice: this strange and clumsy "extraterritorial" character of Roman comedy was undoubtedly due to causes very different from aesthetic considerations. The transference of such social relations, as are uniformly delineated in the new Attic comedy, to the Rome of the Hannibalic period would have been a direct outrage on its civic order and morality. But, as the dramatic spectacles at this period were regularly given by the aediles and praetors who were entirely dependent on the senate, and even extraordinary festivals, funeral games for instance, could not take place without permission of the government; and as the Roman police, moreover, was not in the habit of standing on ceremony in any case, and least of all in dealing with the comedians; the reason is self-evident why this comedy, even after

it was admitted as one of the Roman national amusements, might still bring no Roman upon the stage, and remained as it were banished to foreign lands.

Political Neutrality

The compilers were still more decidedly prohibited from naming any living person in terms either of praise or censure, as well as from any captious allusion to the circumstances of the times. In the whole repertory of the Plautine and post-Plautine comedy, there is not, so far as we know, matter for a single action of damages. In like manner—if we leave out of view some wholly harmless jests—we meet hardly any trace of invectives levelled at communities (invectives which, owing to the lively municipal spirit of the Italians, would have been specially dangerous), except the significant scoff at the unfortunate Capuans and Atellans (18) and, what is remarkable, various sarcasms on the arrogance and the bad Latin of the Praenestines.(19) In general no references to the events or circumstances of the present occur in the pieces of Plautus. The only exceptions are, congratulations on the course of the war(20) or on the peaceful times; general sallies directed against usurious dealings in grain or money, against extravagance, against bribery by candidates, against the too frequent triumphs, against those who made a trade of collecting forfeited fines, against farmers of the revenue distraining for payment, against the dear prices of the oil-dealers; and once—in the -Curculio- —a more lengthened diatribe as to the doings in the Roman market, reminding us of the -parabases- of the older Attic comedy, and but little likely to cause offence(21) But even in the midst of such patriotic endeavours, which from a police point of view were entirely in order, the poet interrupts himself;

-Sed sumne ego stultus, qui rem curo publicam
Ubi sunt magistratus, quos curare oporteat?-

and taken as a whole, we can hardly imagine a comedy politically more tame than was that of Rome in the sixth century.(22) The oldest Roman comic writer of note, Gnaeus Naevius, alone forms a remarkable exception. Although he did not write exactly original Roman comedies, the few fragments of his, which we possess, are full of references to circumstances and persons in Rome. Among other liberties he not only ridiculed one Theodotus a painter by name, but even directed against the victor of Zama the following verses, of which Aristophanes need not have been ashamed:

-Etiam qui res magnas manu saepe gessit gloriose,
Cujus facta viva nunc vigent, qui apud gentes solus praestat,
Eum suus pater cum pallio uno ab amica abduxit.-

As he himself says,

-Libera lingua loquemur ludis Liberalibus,-

he may have often written at variance with police rules, and put dangerous questions, such as:

-Cedo qui vestram rem publicam tantam amisistis tam cito?-

which he answered by an enumeration of political sins, such as:

-Proveniebant oratores novi, stulti adolescentuli.-

But the Roman police was not disposed like the Attic to hold stage-invectives and political diatribes as privileged, or even to tolerate them at all. Naevius was put in prison for these and similar sallies, and was obliged to remain there, till he had publicly made amends and recantation in other comedies. These quarrels, apparently, drove him from his native land; but his successors took warning from his example—one of them indicates very plainly, that he has no desire whatever to incur an involuntary gagging like

his colleague Naevius. Thus the result was accomplished—not much less unique of its kind than the conquest of Hannibal—that, during an epoch of the most feverish national excitement, there arose a national stage utterly destitute of political tinge.

Character of the Editing of Roman Comedy Persons and Situations

But the restrictions thus stringently and laboriously imposed by custom and police on Roman poetry stifled its very breath, Not without reason might Naevius declare the position of the poet under the sceptre of the Lagidae and Seleucidae enviable as compared with his position in free Rome.(23) The degree of success in individual instances was of course determined by the quality of the original which was followed, and by the talent of the individual editor; but amidst all their individual variety the whole stock of translations must have agreed in certain leading features, inasmuch as all the comedies were adapted to similar conditions of exhibition and a similar audience. The treatment of the whole as well as of the details was uniformly in the highest degree free; and it was necessary that it should be so. While the original pieces were performed in presence of that society which they copied, and in this very fact lay their principal charm, the Roman audience of this period was so different from the Attic, that it was not even in a position rightly to understand that foreign world. The Roman comprehended neither the grace and kindliness, nor the sentimentalism and the whitened emptiness of the domestic life of the Hellenes. The slave-world was utterly different; the Roman slave was a piece of household furniture, the Attic slave was a servant. Where marriages of slaves occur or a master carries on a kindly conversation with his slave, the Roman translators ask their audience not to take offence at such things which are usual in Athens;(24) and, when at a later period comedies began to be written in Roman costume, the part of the crafty servant had to be

rejected, because the Roman public did not tolerate slaves of this sort overlooking and controlling their masters. The professional figures and those illustrative of character, which were sketched more broadly and farcically, bore the process of transference better than the polished figures of every-day life; but even of those delineations the Roman editor had to lay aside several—and these probably the very finest and most original, such as the Thais, the match-maker, the moon-conjurer, and the mendicant priest of Menander—and to keep chiefly to those foreign trades, with which the Greek luxury of the table, already very generally diffused in Rome, had made his audience familiar. If the professional cook and the jester in the comedy of Plautus are delineated with so striking vividness and so much relish, the explanation lies in the fact, that Greek cooks had even at that time daily offered their services in the Roman market, and that Cato found it necessary even to instruct his steward not to keep a jester. In like manner the translator could make no use of a very large portion of the elegant Attic conversation in his originals. The Roman citizen or farmer stood in much the same relation to the refined revelry and debauchery of Athens, as the German of a provincial town to the mysteries of the Palais Royal. A science of cookery, in the strict sense, never entered into his thoughts; the dinner-parties no doubt continued to be very numerous in the Roman imitation, but everywhere the plain Roman roast pork predominated over the variety of baked meats and the refined sauces and dishes of fish. Of the riddles and drinking songs, of the Greek rhetoric and philosophy, which played so great a part in the originals, we meet only a stray trace now and then in the Roman adaptation.

Construction of the Plot

The havoc, which the Roman editors were compelled in deference to their audience to make in the originals, drove them inevitably into methods of cancelling and amalgamating incompatible with any artistic construction.

It was usual not only to throw out whole character- parts of the original, but also to insert others taken from other comedies of the same or of another poet; a treatment indeed which, owing to the outwardly methodical construction of the originals and the recurrence of standing figures and incidents, was not quite so bad as it might seem. Moreover the poets, at least in the earlier period, allowed themselves the most singular liberties in the construction of the plot. The plot of the -Stichus- (performed in 554) otherwise so excellent turns upon the circumstance, that two sisters, whom their father urges to abandon their absent husbands, play the part of Penelopes, till the husbands return home with rich mercantile gains and with a beautiful damsel as a present for their father-in-law. In the -Casina-, which was received with quite special favour by the public, the bride, from whom the piece is named and around whom the plot revolves, does not make her appearance at all, and the denouement is quite naively described by the epilogue as "to be enacted later within." Very often the plot as it thickens is suddenly broken off, the connecting thread is allowed to drop, and other similar signs of an unfinished art appear. The reason of this is to be sought probably far less in the unskilfulness of the Roman editors, than in the indifference of the Roman public to aesthetic laws. Taste, however, gradually formed itself. In the later pieces Plautus has evidently bestowed more care on their construction, and the -Captivi- for instance, the -Pseudolus-, and the -Bacchides- are executed in a masterly manner after their kind. His successor Caecilius, none of whose pieces are extant, is said to have especially distinguished himself by the more artistic treatment of the subject.

Roman Barbarism

In the treatment of details the endeavour of the poet to bring matters as far as possible home to his Roman hearers, and the rule of police which required that the pieces should retain a foreign character, produced the most

singular contrasts. The Roman gods, the ritual, military, and juristic terms of the Romans, present a strange appearance amid the Greek world; Roman -aediles- and -tresviri- are grotesquely mingled with -agoranomi- and -demarchi-; pieces whose scene is laid in Aetolia or Epidamnus send the spectator without scruple to the Velabrum and the Capitol. Such a patchwork of Roman local tints distributed over the Greek ground is barbarism enough; but interpolations of this nature, which are often in their naive way very ludicrous, are far more tolerable than that thorough alteration of the pieces into a ruder shape, which the editors deemed necessary to suit the far from Attic culture of their audience. It is true that several even of the new Attic poets probably needed no accession to their coarseness; pieces like the -Asinaria- of Plautus cannot owe their unsurpassed dulness and vulgarity solely to the translator. Nevertheless coarse incidents so prevail in the Roman comedy, that the translators must either have interpolated them or at least have made a very one-sided selection. In the endless abundance of cudgelling and in the lash ever suspended over the back of the slaves we recognize very clearly the household-government inculcated by Cato, just as we recognize the Catonian opposition to women in the never-ending disparagement of wives. Among the jokes of their own invention, with which the Roman editors deemed it proper to season the elegant Attic dialogue, several are almost incredibly unmeaning and barbarous.(25)

Metrical Treatment

So far as concerns metrical treatment on the other hand, the flexible and sounding verse on the whole does all honour to the composers. The fact that the iambic trimeters, which predominated in the originals and were alone suitable to their moderate conversational tone, were very frequently replaced in the Latin edition by iambic or trochaic tetrameters, is to be attributed not so much to any want of skill on the part of the editors who

knew well how to handle the trimeter, as to the uncultivated taste of the Roman public which was pleased with the sonorous magnificence of the long verse even where it was not appropriate.

Scenic Arrangements

Lastly, the arrangements for the production of the pieces on the stage bore the like stamp of indifference to aesthetic requirements on the part of the managers and the public. The stage of the Greeks—which on account of the extent of the theatre and from the performances taking place by day made no pretension to acting properly so called, employed men to represent female characters, and absolutely required an artificial strengthening of the voice of the actor—was entirely dependent, in a scenic as well as acoustic point of view, on the use of facial and resonant masks. These were well known also in Rome; in amateur performances the players appeared without exception masked. But the actors who were to perform the Greek comedies in Rome were not supplied with the masks—beyond doubt much more artificial—that were necessary for them; a circumstance which, apart from all else in connection with the defective acoustic arrangements of the stage, (26) not only compelled the actor to exert his voice unduly, but drove Livius to the highly inartistic but inevitable expedient of having the portions which were to be sung performed by a singer not belonging to the staff of actors, and accompanied by the mere dumb show of the actor within whose part they fell. As little were the givers of the Roman festivals disposed to put themselves to material expense for decorations and machinery. The Attic stage regularly presented a street with houses in the background, and had no shifting decorations; but, besides various other apparatus, it possessed more especially a contrivance for pushing forward on the chief stage a smaller one representing the interior of a house. The Roman theatre, however, was not provided with this; and we can hardly therefore throw the

blame on the poet, if everything, even childbirth, was represented on the street.

Aesthetic Result

Such was the nature of the Roman comedy of the sixth century. The mode in which the Greek dramas were transferred to Rome furnishes a picture, historically invaluable, of the diversity in the culture of the two nations; but in an aesthetic and a moral point of view the original did not stand high, and the imitation stood still lower. The world of beggarly rabble, to whatever extent the Roman editors might take possession of it under the benefit of the inventory, presented in Rome a forlorn and strange aspect, shorn as it were of its delicate characteristics: comedy no longer rested on the basis of reality, but persons and incidents seemed capriciously or carelessly mingled as in a game of cards; in the original a picture from life, it became in the reproduction a caricature. Under a management which could announce a Greek agon with flute-playing, choirs of dancers, tragedians, and athletes, and eventually convert it into a boxing-match;(27) and in presence of a public which, as later poets complain, ran away en masse from the play, if there were pugilists, or rope-dancers, or even gladiators to be seen; poets such as the Roman composers were—workers for hire and of inferior social position—were obliged even perhaps against their own better judgment and their own better taste to accommodate themselves more or less to the prevailing frivolity and rudeness. It was quite possible, nevertheless, that there might arise among them individuals of lively and vigorous talent, who were able at least to repress the foreign and factitious element in poetry, and, when they had found their fitting sphere, to produce pleasing and even important creations.

Naevius

At the head of these stood Gnaeus Naevius, the first Roman who deserves to be called a poet, and, so far as the accounts preserved regarding him and the few fragments of his works allow us to form an opinion, to all appearance as regards talent one of the most remarkable and most important names in the whole range of Roman literature. He was a younger contemporary of Andronicus—his poetical activity began considerably before, and probably did not end till after, the Hannibalic war—and felt in a general sense his influence; he was, as is usually the case in artificial literatures, a worker in all the forms of art produced by his predecessor, in epos, tragedy, and comedy, and closely adhered to him in the matter of metres. Nevertheless, an immense chasm separates the poets and their poems. Naevius was neither freedman, schoolmaster, nor actor, but a citizen of unstained character although not of rank, belonging probably to one of the Latin communities of Campania, and a soldier in the first Punic war.(28) In thorough contrast to the language of Livius, that of Naevius is easy and clear, free from all stiffness and affectation, and seems even in tragedy to avoid pathos as it were on purpose; his verses, in spite of the not unfrequent -hiatus- and various other licences afterwards disallowed, have a smooth and graceful flow.(29) While the quasi-poetry of Livius proceeded, somewhat like that of Gottsched in Germany, from purely external impulses and moved wholly in the leading-strings of the Greeks, his successor emancipated Roman poetry, and with the true divining-rod of the poet struck those springs out of which alone in Italy a native poetry could well up —national history and comedy. Epic poetry no longer merely furnished the schoolmaster with a lesson-book, but addressed itself independently to the hearing and reading public. Composing for the stage had been hitherto, like the preparation of the stage costume, a subsidiary employment of the actor or a mechanical service performed for him; with Naevius the relation was inverted, and the actor now became the servant of the composer. His poetical activity is marked throughout by a national stamp. This stamp is

most distinctly impressed on his grave national drama and on his national epos, of which we shall have to speak hereafter; but it also appears in his comedies, which of all his poetic performances seem to have been the best adapted to his talents and the most successful. It was probably, as we have already said,(30) external considerations alone that induced the poet to adhere in comedy so much as he did to the Greek originals; and this did not prevent him from far outstripping his successors and probably even the insipid originals in the freshness of his mirth and in the fulness of his living interest in the present; indeed in a certain sense he reverted to the paths of the Aristophanic comedy. He felt full well, and in his epitaph expressed, what he had been to his nation:

-Immortales mortales si foret fas fieri,
Flerent divae Camenae Naevium poetam;
Itaque, postquam est Orci traditus thesauro,
Obliti sunt Romae loquier lingua Latina.-

Such proud language on the part of the man and the poet well befitted one who had witnessed and had personally taken part in the struggles with Hamilcar and with Hannibal, and who had discovered for the thoughts and feelings of that age—so deeply agitated and so elevated by mighty joy—a poetical expression which, if not exactly the highest, was sound, adroit, and national. We have already mentioned(31) the troubles into which his licence brought him with the authorities, and how, driven presumably by these troubles from Rome, he ended his life at Utica. In his instance likewise the individual life was sacrificed for the common weal, and the beautiful for the useful.

Plautus

His younger contemporary, Titus Maccius Plautus (500?-570), appears to have been far inferior to him both in outward position and in the conception

of his poetic calling. A native of the little town of Sassina, which was originally Umbrian but was perhaps by this time Latinized, he earned his livelihood in Rome at first as an actor, and then—after he had lost in mercantile speculations what he had gained by his acting—as a theatrical composer reproducing Greek comedies, without occupying himself with any other department of literature and probably without laying claim to authorship properly so called. There seems to have been at that time a considerable number of persons who made a trade of thus editing comedies in Rome; but their names, especially as they did not perhaps in general publish their works,(32) were virtually forgotten, and the pieces belonging to this stock of plays, which were preserved, passed in after times under the name of the most popular of them, Plautus. The -litteratores- of the following century reckoned up as many as 130 such "Plautine pieces"; but of these a large portion at any rate were merely revised by Plautus or had no connection with him at all; the best of them are still extant. To form a proper judgment, however, regarding the poetical character of the editor is very difficult, if not impossible, since the originals have not been preserved. That the editors reproduced good and bad pieces without selection; that they were subject and subordinate both to the police and to the public; that they were as indifferent to aesthetical requirements as their audience, and to please the latter, lowered the originals to a farcical and vulgar tone—are objections which apply rather to the whole manufacture of translations than to the individual remodeller. On the other hand we may regard as characteristic of Plautus, the masterly handling of the language and of the varied rhythms, a rare skill in adjusting and working the situation for dramatic effect, the almost always clever and often excellent dialogue, and, above all, a broad and fresh humour, which produces an irresistible comic effect with its happy jokes, its rich vocabulary of nicknames, its whimsical coinage of words, its pungent, often mimic, descriptions and situations—excellences, in which we seem to recognize the former actor. Undoubtedly

the editor even in these respects retained what was successful in the originals rather than furnished contributions of his own. Those portions of the pieces which can with certainty be traced to the translator are, to say the least, mediocre; but they enable us to understand why Plautus became and remained the true popular poet of Rome and the true centre of the Roman stage, and why even after the passing away of the Roman world the theatre has repeatedly reverted to his plays.

Caecilius

Still less are we able to form a special opinion as to the third and last—for though Ennius wrote comedies, he did so altogether unsuccessfully—comedian of note in this epoch, Statius Caecilius. He resembled Plautus in his position in life and his profession. Born in Cisalpine Gaul in the district of Mediolanum, he was brought among the Insubrian prisoners of war⁽³³⁾ to Rome, and earned a livelihood, first as a slave, afterwards as a freedman, by remodelling Greek comedies for the theatre down to his probably early death (586). His language was not pure, as was to be expected from his origin; on the other hand, he directed his efforts, as we have already said, ⁽³⁴⁾ to a more artistic construction of the plot. His pieces experienced but a dull reception from his contemporaries, and the public of later times laid aside Caecilius for Plautus and Terence; and, if nevertheless the critics of the true literary age of Rome—the Varronian and Augustan epoch—assigned to Caecilius the first place among the Roman editors of Greek comedies, this verdict appears due to the mediocrity of the connoisseur gladly preferring a kindred spirit of mediocrity in the poet to any special features of excellence. These art-critics probably took Caecilius under their wing, simply because he was more regular than Plautus and more vigorous than Terence; notwithstanding which he may very well have been far inferior to both.

Moral Result

If therefore the literary historian, while fully acknowledging the very respectable talents of the Roman comedians, cannot recognize in their mere stock of translations a product either artistically important or artistically pure, the judgment of history respecting its moral aspects must necessarily be far more severe. The Greek comedy which formed its basis was morally so far a matter of indifference, as it was simply on the same level of corruption with its audience; but the Roman drama was, at this epoch when men were wavering between the old austerity and the new corruption, the academy at once of Hellenism and of vice. This Attico-Roman comedy, with its prostitution of body and soul usurping the name of love—equally immoral in shamelessness and in sentimentality—with its offensive and unnatural generosity, with its uniform glorification of a life of debauchery, with its mixture of rustic coarseness and foreign refinement, was one continuous lesson of Romano-Hellenic demoralization, and was felt as such. A proof of this is preserved in the epilogue of the *-Captivi-* of Plautus:

-Spectators, ad pudicos mores facta haec fabulast.
Neque in hoc subigitationes sunt neque ulla amatio
Nec pueri suppositio nec argenti circumductio,
Neque ubi amans adulescens scortum liberet clam suum patrem.
Huius modi paucas poetae reperiunt comoedias,
Ubi boni meliores fiant. Nunc vos, si vobis placet,
Et si placuimus neque odio fuimus, signum hoc mittite;
Qui pudicitiae esse voltis praemium, plausum date!-

We see here the opinion entertained regarding the Greek comedy by the party of moral reform; and it may be added, that even in those rarities, moral comedies, the morality was of a character only adapted to ridicule

innocence more surely. Who can doubt that these dramas gave a practical impulse to corruption? When Alexander the Great derived no pleasure from a comedy of this sort which its author read before him, the poet excused himself by saying that the fault lay not with him, but with the king; that, in order to relish such a piece, a man must be in the habit of holding revels and of giving and receiving blows in an intrigue. The man knew his trade: if, therefore, the Roman burgesses gradually acquired a taste for these Greek comedies, we see at what a price it was bought. It is a reproach to the Roman government not that it did so little in behalf of this poetry, but that it tolerated it at all. Vice no doubt is powerful even without a pulpit; but that is no excuse for erecting a pulpit to proclaim it. To debar the Hellenic comedy from immediate contact with the persons and institutions of Rome, was a subterfuge rather than a serious means of defence. In fact, comedy would probably have been much less injurious morally, had they allowed it to have a more free course, so that the calling of the poet might have been ennobled and a Roman poetry in some measure independent might have been developed; for poetry is also a moral power, and, if it inflicts deep wounds, it can do much to heal them. As it was, in this field also the government did too little and too much; the political neutrality and moral hypocrisy of its stage-police contributed their part to the fearfully rapid breaking up of the Roman nation.

National Comedy

Titinius

But, while the government did not allow the Roman comedian to depict the state of things in his native city or to bring his fellow-citizens on the stage, a national Latin comedy was not absolutely precluded from springing up; for the Roman burgesses at this period were not yet identified with the Latin nation, and the poet was at liberty to lay the plot of his pieces in the Italian towns of Latin rights just as in Athens or Massilia. In this way, in

fact, the Latin original comedy arose (-fabula togata- (35)): the earliest known composer of such pieces, Titinius, flourished probably about the close of this period.(36)

This comedy was also based on the new Attic intrigue-piece; it was not translation, however, but imitation; the scene of the piece lay in Italy, and the actors appeared in the national dress,(37) the -toga-. Here the Latin life and doings were brought out with peculiar freshness. The pieces delineate the civil life of the middle-sized towns of Latium; the very titles, such as -Psaltria- or -Ferentinatis- , -Tibicina-, -Iurisperita-, -Fullones-, indicate this; and many particular incidents, such as that of the townsman who has his shoes made after the model of the sandals of the Alban kings, tend to confirm it. The female characters preponderate in a remarkable manner over the male.(38) With genuine national pride the poet recalls the great times of the Pyrrhic war, and looks down on his new Latin neighbours,—

-Qui Obsce et Volsce fabulantur; nam Latine nesciunt.-

This comedy belongs to the stage of the capital quite as much as did the Greek; but it was probably animated by something of that rustic antagonism to the ways and the evils of a great town, which appeared contemporaneously in Cato and afterwards in Varro. As in the German comedy, which proceeded from the French in much the same way as the Roman comedy from the Attic, the French Lisette was very soon superseded by the -Frauenzimmerchen- Franziska, so the Latin national comedy sprang up, if not with equal poetical power, at any rate with the same tendency and perhaps with similar success, by the side of the Hellenizing comedy of the capital.

Tragedies

Euripides

Greek tragedy as well as Greek comedy came in the course of this epoch to Rome. It was a more valuable, and in a certain respect also an easier, acquisition than comedy. The Greek and particularly the Homeric epos, which was the basis of tragedy, was not unfamiliar to the Romans, and was already interwoven with their own national legends; and the susceptible foreigner found himself far more at home in the ideal world of the heroic myths than in the fish-market of Athens. Nevertheless tragedy also promoted, only with less abruptness and less vulgarity, the anti-national and Hellenizing spirit; and in this point of view it was a circumstance of the most decisive importance, that the Greek tragic stage of this period was chiefly under the sway of Euripides (274-348). This is not the place for a thorough delineation of that remarkable man and of his still more remarkable influence on his contemporaries and posterity; but the intellectual movements of the later Greek and the Graeco-Roman epoch were to so great an extent affected by him, that it is indispensable to sketch at least the leading outlines of his character. Euripides was one of those poets who raise poetry doubtless to a higher level, but in this advance manifest far more the true sense of what ought to be than the power of poetically creating it. The profound saying which morally as well as poetically sums up all tragic art—that action is passion—holds true no doubt also of ancient tragedy; it exhibits man in action, but it makes no real attempt to individualize him. The unsurpassed grandeur with which the struggle between man and destiny fulfils its course in Aeschylus depends substantially on the circumstance, that each of the contending powers is only conceived broadly and generally; the essential humanity in Prometheus and Agamemnon is but slightly tinged by poetic individualizing. Sophocles seizes human nature under its general conditions, the king, the old man, the sister; but not one of his figures displays the microcosm of man in all his aspects—the features of individual character. A high stage was here reached, but not the highest; the delineation of man in his entirety and the

entwining of these individual—in themselves finished—figures into a higher poetical whole form a greater achievement, and therefore, as compared with Shakespeare, Aeschylus and Sophocles represent imperfect stages of development. But, when Euripides undertook to present man as he is, the advance was logical and in a certain sense historical rather than poetical. He was able to destroy the ancient tragedy, but not to create the modern. Everywhere he halted half-way. Masks, through which the expression of the life of the soul is, as it were, translated from the particular into the general, were as necessary for the typical tragedy of antiquity as they are incompatible with the tragedy of character; but Euripides retained them. With remarkably delicate tact the older tragedy had never presented the dramatic element, to which it was unable to allow free scope, unmixed, but had constantly fettered it in some measure by epic subjects from the superhuman world of gods and heroes and by the lyrical choruses. One feels that Euripides was impatient under these fetters: with his subjects he came down at least to semi-historic times, and his choral chants were of so subordinate importance, that they were frequently omitted in subsequent performance and hardly to the injury of the pieces; but yet he has neither placed his figures wholly on the ground of reality, nor entirely thrown aside the chorus. Throughout and on all sides he is the full exponent of an age in which, on the one hand, the grandest historical and philosophical movement was going forward, but in which, on the other hand, the primitive fountain of all poetry—a pure and homely national life—had become turbid. While the reverential piety of the older tragedians sheds over their pieces as it were a reflected radiance of heaven; while the limitation of the narrow horizon of the older Hellenes exercises its satisfying power even over the hearer; the world of Euripides appears in the pale glimmer of speculation as much denuded of gods as it is spiritualised, and gloomy passions shoot like lightnings athwart the gray clouds. The old deeply-rooted faith in destiny has disappeared; fate governs as an outwardly despotic power, and the

slaves gnash their teeth as they wear its fetters. That unbelief, which is despairing faith, speaks in this poet with superhuman power. Of necessity therefore the poet never attains a plastic conception overpowering himself, and never reaches a truly poetic effect on the whole; for which reason he was in some measure careless as to the construction of his tragedies, and indeed not unfrequently altogether spoiled them in this respect by providing no central interest either of plot or person—the slovenly fashion of weaving the plot in the prologue, and of unravelling it by a -Deus ex machina- or a similar platitude, was in reality brought into vogue by Euripides. All the effect in his case lies in the details; and with great art certainly every effort has in this respect been made to conceal the irreparable want of poetic wholeness. Euripides is a master in what are called effects; these, as a rule, have a sensuously-sentimental colouring, and often moreover stimulate the sensuous impression by a special high seasoning, such as the interweaving of subjects relating to love with murder or incest. The delineations of Polyxena willing to die and of Phaedra pining away under the grief of secret love, above all the splendid picture of the mystic ecstasies of the Bacchae, are of the greatest beauty in their kind; but they are neither artistically nor morally pure, and the reproach of Aristophanes, that the poet was unable to paint a Penelope, was thoroughly well founded. Of a kindred character is the introduction of common compassion into the tragedy of Euripides. While his stunted heroes or heroines, such as Menelaus in the -Helena-, Andromache, Electra as a poor peasant's wife, the sick and ruined merchant Telephus, are repulsive or ridiculous and ordinarily both, the pieces, on the other hand, which keep more to the atmosphere of common reality and exchange the character of tragedy for that of the touching family-piece or that almost of sentimental comedy, such as the -Iphigenia in Aulis-, the -Ion-, the -Alcestis-, produce perhaps the most pleasing effect of all his numerous works. With equal frequency, but with less success, the poet attempts to bring into play an intellectual interest. Hence springs the

complicated plot, which is calculated not like the older tragedy to move the feelings, but rather to keep curiosity on the rack; hence the dialectically pointed dialogue, to us non-Athenians often absolutely intolerable; hence the apophthegms, which are scattered throughout the pieces of Euripides like flowers in a pleasure-garden; hence above all the psychology of Euripides, which rests by no means on direct reproduction of human experience, but on rational reflection. His *Medea* is certainly in so far painted from life, that she is before departure properly provided with money for her voyage; but of the struggle in the soul between maternal love and jealousy the unbiassed reader will not find much in Euripides. But, above all, poetic effect is replaced in the tragedies of Euripides by moral or political purpose. Without strictly or directly entering on the questions of the day, and having in view throughout social rather than political questions, Euripides in the legitimate issues of his principles coincided with the contemporary political and philosophical radicalism, and was the first and chief apostle of that new cosmopolitan humanity which broke up the old Attic national life. This was the ground at once of that opposition which the ungodly and un-Attic poet encountered among his contemporaries, and of that marvellous enthusiasm, with which the younger generation and foreigners devoted themselves to the poet of emotion and of love, of apophthegm and of tendency, of philosophy and of humanity. Greek tragedy in the hands of Euripides stepped beyond its proper sphere and consequently broke down; but the success of the cosmopolitan poet was only promoted by this, since at the same time the nation also stepped beyond its sphere and broke down likewise. The criticism of Aristophanes probably hit the truth exactly both in a moral and in a poetical point of view; but poetry influences the course of history not in proportion to its absolute value, but in proportion as it is able to forecast the spirit of the age, and in this respect Euripides was unsurpassed. And thus it happened, that Alexander read him diligently; that Aristotle developed the idea of the

tragic poet with special reference to him; that the latest poetic and plastic art in Attica as it were originated from him (for the new Attic comedy did nothing but transfer Euripides into a comic form, and the school of painters which we meet with in the designs of the later vases derived its subjects no longer from the old epics, but from the Euripidean tragedy); and lastly that, the more the old Hellas gave place to the new Hellenism, the more the fame and influence of the poet increased, and Greek life abroad, in Egypt as well as in Rome, was directly or indirectly moulded in the main by Euripides.

Roman Tragedy

The Hellenism of Euripides flowed to Rome through very various channels, and probably produced a speedier and deeper effect there by indirect means than in the form of direct translation. The tragic drama in Rome was not exactly later in its rise than the comic;(39) but the far greater expense of putting a tragedy on the stage—which was undoubtedly felt as a consideration of moment, at least during the Hannibalic war—as well as the nature of the audience(40) retarded the development of tragedy. In the comedies of Plautus the allusions to tragedies are not very frequent, and most references of this kind may have been taken from the originals. The first and only influential tragedian of this epoch was the younger contemporary of Naevius and Plautus, Quintus Ennius (515-585), whose pieces were already travestied by contemporary comic writers, and were exhibited and declaimed by posterity down to the days of the empire.

The tragic drama of the Romans is far less known to us than the comic: on the whole the same features, which have been noticed in the case of comedy, are presented by tragedy also. The dramatic stock, in like manner, was mainly formed by translations of Greek pieces. The preference was given to subjects derived from the siege of Troy and the legends immediately connected with it, evidently because this cycle of myths alone

was familiar to the Roman public through instruction at school; by their side incidents of striking horror predominate, such as matricide or infanticide in the -Eumenides-, the -Alcmaeon-, the -Cresphontes-, the -Melanippe-, the -Medea-, and the immolation of virgins in the -Polyxena-, the -Erechthides-, the -Andromeda-, the -Iphigenia- —we cannot avoid recalling the fact, that the public for which these tragedies were prepared was in the habit of witnessing gladiatorial games. The female characters and ghosts appear to have made the deepest impression. In addition to the rejection of masks, the most remarkable deviation of the Roman edition from the original related to the chorus. The Roman theatre, fitted up doubtless in the first instance for comic plays without chorus, had not the special dancing-stage (-orchestra-) with the altar in the middle, on which the Greek chorus performed its part, or, to speak more correctly, the space thus appropriated among the Greeks served with the Romans as a sort of pit; accordingly the choral dance at least, with its artistic alternations and intermixture of music and declamation, must have been omitted in Rome, and, even if the chorus was retained, it had but little importance. Of course there were various alterations of detail, changes in the metres, curtailments, and disfigurements; in the Latin edition of the -Iphigenia- of Euripides, for instance, the chorus of women was—either after the model of another tragedy, or by the editor's own device—converted into a chorus of soldiers. The Latin tragedies of the sixth century cannot be pronounced good translations in our sense of the word;(41) yet it is probable that a tragedy of Ennius gave a far less imperfect image of the original of Euripides than a comedy of Plautus gave of the original of Menander.

Moral Effect of Tragedy

The historical position and influence of Greek tragedy in Rome were entirely analogous to those of Greek comedy; and while, as the difference in the two kinds of composition necessarily implied, the Hellenistic tendency

appeared in tragedy under a purer and more spiritual form, the tragic drama of this period and its principal representative Ennius displayed far more decidedly an anti-national and consciously propagandist aim. Ennius, hardly the most important but certainly the most influential poet of the sixth century, was not a Latin by birth, but on the contrary by virtue of his origin half a Greek. Of Messapian descent and Hellenic training, he settled in his thirty-fifth year at Rome, and lived there—at first as a resident alien, but after 570 as a burgess(42)—in straitened circumstances, supported partly by giving instruction in Latin and Greek, partly by the proceeds of his pieces, partly by the donations of those Roman grandees, who, like Publius Scipio, Titus Flamininus, and Marcus Fulvius Nobilior, were inclined to promote the modern Hellenism and to reward the poet who sang their own and their ancestors' praises and even accompanied some of them to the field in the character, as it were, of a poet laureate nominated beforehand to celebrate the great deeds which they were to perform. He has himself elegantly described the client-like qualities requisite for such a calling.(43) From the outset and by virtue of the whole tenor of his life a cosmopolite, he had the skill to appropriate the distinctive features of the nations among which he lived—Greek, Latin, and even Oscan—without devoting himself absolutely to any one of them; and while the Hellenism of the earlier Roman poets was the result rather than the conscious aim of their poetic activity, and accordingly they at least attempted more or less to take their stand on national ground, Ennius on the contrary is very distinctly conscious of his revolutionary tendency, and evidently labours with zeal to bring into vogue neologico-Hellenic ideas among the Italians. His most serviceable instrument was tragedy. The remains of his tragedies show that he was well acquainted with the whole range of the Greek tragic drama and with Aeschylus and Sophocles in particular; it is the less therefore the result of accident, that he has modelled the great majority of his pieces, and all those that attained celebrity, on Euripides. In the selection and treatment he was

doubtless influenced partly by external considerations. But these alone cannot account for his bringing forward so decidedly the Euripidean element in Euripides; for his neglecting the choruses still more than did his original; for his laying still stronger emphasis on sensuous effect than the Greek; nor for his taking up pieces like the *-Thyestes-* and the *-Telephus-* so well known from the immortal ridicule of Aristophanes, with their princes' woes and woful princes, and even such a piece as *Menalippa the Female Philosopher*, in which the whole plot turns on the absurdity of the national religion, and the tendency to make war on it from the physicist point of view is at once apparent. The sharpest arrows are everywhere—and that partly in passages which can be proved to have been inserted(44)—directed against faith in the miraculous, and we almost wonder that the censorship of the Roman stage allowed such tirades to pass as the following:—

-Ego deum genus esse semper dixi et dicam caelitum,
Sed eos non curare opinor, quid agat humanum genus;
Nam si curent, bene bonis sit, male malis, quod nunc abest.-

We have already remarked(45) that Ennius scientifically inculcated the same irreligion in a didactic poem of his own; and it is evident that he was in earnest with this freethinking. With this trait other features are quite accordant—his political opposition tinged with radicalism, that here and there appears;(46) his singing the praises of the Greek pleasures of the table;(47) above all his setting aside the last national element in Latin poetry, the Saturnian measure, and substituting for it the Greek hexameter. That the "multiform" poet executed all these tasks with equal neatness, that he elaborated hexameters out of a language of by no means dactylic structure, and that without checking the natural flow of his style he moved with confidence and freedom amidst unwonted measures and forms—are so many evidences of his extraordinary plastic talent, which was in fact more Greek than Roman;(48) where he offends us, the offence is owing much

more frequently to Greek alliteration(49) than to Roman ruggedness. He was not a great poet, but a man of graceful and sprightly talent, throughout possessing the vivid sensibilities of a poetic nature, but needing the tragic buskin to feel himself a poet and wholly destitute of the comic vein. We can understand the pride with which the Hellenizing poet looked down on those rude strains —

-quos olim Faunei vatesque canebant,-

and the enthusiasm with which he celebrates his own artistic poetry:

-Enni foeta, salve,

Versus propinas flammeos medullitus.-

The clever man had an instinctive assurance that he had spread his sails to a prosperous breeze; Greek tragedy became, and thenceforth remained, a possession of the Latin nation.

National Dramas

Through less frequented paths, and with a less favourable wind, a bolder mariner pursued a higher aim. Naevius not only like Ennius —although with far less success—adapted Greek tragedies for the Roman stage, but also attempted to create, independently of the Greeks, a grave national drama (-fabula praetextata-). No outward obstacles here stood in the way; he brought forward subjects both from Roman legend and from the contemporary history of the country on the stage of his native land. Such were his Nursing of Romulus and Remus or the Wolf, in which Amulius king of Alba appeared, and his -Clastidium-, which celebrated the victory of Marcellus over the Celts in 532.(49) After his example, Ennius in his -Ambracia- described from personal observation the siege of that city by his patron Nobilior in 565.(50) But the number of these national dramas

remained small, and that species of composition soon disappeared from the stage; the scanty legend and the colourless history of Rome were unable permanently to compete with the rich cycle of Hellenic legends. Respecting the poetic value of the pieces we have no longer the means of judging; but, if we may take account of the general poetical intention, there were in Roman literature few such strokes of genius as the creation of a Roman national drama. Only the Greek tragedians of that earliest period which still felt itself nearer to the gods —only poets like Phrynichus and Aeschylus— had the courage to bring the great deeds which they had witnessed, and in which they had borne a part, on the stage by the side of those of legendary times; and here, if anywhere, we are enabled vividly to realize what the Punic wars were and how powerful was their effect, when we find a poet, who like Aeschylus had himself fought in the battles which he sang, introducing the kings and consuls of Rome upon that stage on which men had hitherto been accustomed to see none but gods and heroes.

Recitative Poetry

Recitative poetry also took its rise during this epoch at Rome. Livius naturalized the custom which among the ancients held the place of our modern publication—the public reading of new works by the author—in Rome, at least to the extent of reciting them in his school. As poetry was not in this instance practised with a view to a livelihood, or at any rate not directly so, this branch of it was not regarded by public opinion with such disfavour as writing for the stage: towards the end of this epoch one or two Romans of quality had publicly come forward in this manner as poets.(51) Recitative poetry however was chiefly cultivated by those poets who occupied themselves with writing for the stage, and the former held a subordinate place as compared with the latter; in fact, a public to which read poetry might address itself can have existed only to a very limited extent at this period in Rome.

Satura

Above all, lyrical, didactic, and epigrammatic poetry found but feeble representation. The religious festival chants—as to which the annals of this period certainly have already thought it worth while to mention the author—as well as the monumental inscriptions on temples and tombs, for which the Saturnian remained the regular measure, hardly belong to literature proper. So far as the minor poetry makes its appearance at all, it presents itself ordinarily, and that as early as the time of Naevius, under the name of *-satura-*. This term was originally applied to the old stage-poem without action, which from the time of Livius was driven off the stage by the Greek drama; but in its application to recitative poetry it corresponds in some measure to our "miscellaneous poems," and like the latter denotes not any positive species or style of art, but simply poems not of an epic or dramatic kind, treating of any matters (mostly subjective), and written in any form, at the pleasure of the author. In addition to Cato's "poem on Morals" to be noticed afterwards, which was presumably written in Saturnian verses after the precedent of the older first attempts at a national didactic poetry,(52) there came under this category especially the minor poems of Ennius, which that writer, who was very fertile in this department, published partly in his collection of *-saturae-*, partly separately. Among these were brief narrative poems relating to the legendary or contemporary history of his country; editions of the religious romance of Euhemerus,(53) of the poems dealing with natural philosophy circulating in the name of Epicharmus,(54) and of the gastronomies of Archestratus of Gela, a poet who treated of the higher cookery; as also a dialogue between Life and Death, fables of Aesop, a collection of moral maxims, parodies and epigrammatic trifles—small matters, but indicative of the versatile powers as well as the neological didactic tendencies of the poet, who evidently allowed himself the freest range in this field, which the censorship did not reach.

Metrical Annals

Naevius

The attempts at a metrical treatment of the national annals lay claim to greater poetical and historical importance. Here too it was Naevius who gave poetic form to so much of the legendary as well as of the contemporary history as admitted of connected narrative; and who, more especially, recorded in the half-prosaic Saturnian national metre the story of the first Punic war simply and distinctly, with a straightforward adherence to fact, without disdaining anything at all as unpoetical, and without at all, especially in the description of historical times, going in pursuit of poetical flights or embellishments—maintaining throughout his narrative the present tense.⁽⁵⁵⁾ What we have already said of the national drama of the same poet, applies substantially to the work of which we are now speaking. The epic, like the tragic, poetry of the Greeks lived and moved essentially in the heroic period; it was an altogether new and, at least in design, an enviably grand idea—to light up the present with the lustre of poetry. Although in point of execution the chronicle of Naevius may not have been much better than the rhyming chronicles of the middle ages, which are in various respects of kindred character, yet the poet was certainly justified in regarding this work of his with an altogether peculiar complacency. It was no small achievement, in an age when there was absolutely no historical literature except official records, to have composed for his countrymen a connected account of the deeds of their own and the earlier time, and in addition to have placed before their eyes the noblest incidents of that history in a dramatic form.

Ennius

Ennius proposed to himself the very same task as Naevius; but the similarity of the subject only brings out into stronger relief the political and

poetical contrast between the national and the anti- national poet. Naevius sought out for the new subject a new form; Ennius fitted or forced it into the forms of the Hellenic epos. The hexameter took the place of the Saturnian verse; the ornate style of the Homeridae, striving after plastic vividness of delineation, took the place of the homely historic narrative. Wherever the circumstances admit, Homer is directly translated; e. g. the burial of those that fell at Heraclea is described after the model of the burial of Patroclus, and under the helmet of Marcus Livius Stolo, the military tribune who fights with the Istrians, lurks none other than the Homeric Ajax; the reader is not even spared the Homeric invocation of the Muse. The epic machinery is fully set agoing; after the battle of Cannae, for instance, Juno in a full council of the gods pardons the Romans, and Jupiter after obtaining the consent of his wife promises them a final victory over the Carthaginians. Nor do the "Annals" fail to betray the neological and Hellenistic tendencies of the author. The very employment of the gods for mere decoration bears this stamp. The remarkable vision, with which the poem opens, tells in good Pythagorean style how the soul now inhabiting Quintus Ennius had previously been domiciled in Homer and still earlier in a peacock, and then in good physicist style explains the nature of things and the relation of the body to the mind. Even the choice of the subject serves the same purpose—at any rate the Hellenic literati of all ages have found an especially suitable handle for their Graeco-cosmopolite tendencies in this very manipulation of Roman history. Ennius lays stress on the circumstance that the Romans were reckoned Greeks:

-Contendunt Graecos, Graios memorare solent sos.-

The poetical value of the greatly celebrated Annals may easily be estimated after the remarks which we have already made regarding the excellences and defects of the poet in general. It was natural that as a poet of lively sympathies, he should feel himself elevated by the enthusiastic

impulse which the great age of the Punic wars gave to the national sensibilities of Italy, and that he should not only often happily imitate Homeric simplicity, but should also and still more frequently make his lines strikingly echo the solemnity and decorum of the Roman character. But the construction of his epic was defective; indeed it must have been very lax and indifferent, when it was possible for the poet to insert a special book by way of supplement to please an otherwise forgotten hero and patron. On the whole the *Annals* were beyond question the work in which Ennius fell farthest short of his aim. The plan of making an *Iliad* pronounces its own condemnation. It was Ennius, who in this poem for the first time introduced into literature that changeling compound of epos and of history, which from that time up to the present day haunts it like a ghost, unable either to live or to die. But the poem certainly had its success. Ennius claimed to be the Roman Homer with still greater ingenuousness than Klopstock claimed to be the German, and was received as such by his contemporaries and still more so by posterity. The veneration for the father of Roman poetry was transmitted from generation to generation; even the polished Quintilian says, "Let us revere Ennius as we revere an ancient sacred grove, whose mighty oaks of a thousand years are more venerable than beautiful;" and, if any one is disposed to wonder at this, he may recall analogous phenomena in the successes of the *Aeneid*, the *Henriad*, and the *Messiad*. A mighty poetical development of the nation would indeed have set aside that almost comic official parallel between the Homeric *Iliad* and the Ennian

Annals as easily as we have set aside the comparison of Karschin with Sappho and of Willamov with Pindar; but no such development took place in Rome. Owing to the interest of the subject especially for aristocratic circles, and the great plastic talent of the poet, the *Annals* remained the oldest Roman original poem which appeared to the culture of later generations readable or worth reading; and thus, singularly enough,

posterity came to honour this thoroughly anti- national epos of a half-Greek -litterateur- as the true model poem of Rome.

Prose Literature

A prose literature arose in Rome not much later than Roman poetry, but in a very different way. It experienced neither the artificial furtherance, by which the school and the stage prematurely forced the growth of Roman poetry, nor the artificial restraint, to which Roman comedy in particular was subjected by the stern and narrow-minded censorship of the stage. Nor was this form of literary activity placed from the outset under the ban of good society by the stigma which attached to the "ballad-singer." Accordingly the prose literature, while far less extensive and less active than the contemporary poetical authorship, had a far more natural growth. While poetry was almost wholly in the hands of men of humble rank and not a single Roman of quality appears among the celebrated poets of this age, there is, on the contrary, among the prose writers of this period hardly a name that is not senatorial; and it is from the circles of the highest aristocracy, from men who had been consuls and censors—the Fabii, the Gracchi, the Scipios—that this literature throughout proceeds. The conservative and national tendency, in the nature of the case, accorded better with this prose authorship than with poetry; but here too—and particularly in the most important branch of this literature, historical composition—the Hellenistic bent had a powerful, in fact too powerful, influence both on matter and form.

Writing of History

Down to the period of the Hannibalic war there was no historical composition in Rome; for the entries in the book of Annals were of the nature of records and not of literature, and never made any attempt to develop the connection of events. It is a significant illustration of the

peculiarity of Roman character, that notwithstanding the extension of the power of the Roman community far beyond the bounds of Italy, and notwithstanding the constant contact of the noble society of Rome with the Greeks who were so fruitful in literary activity, it was not till the middle of the sixth century that there was felt the need and desire of imparting a knowledge of the deeds and fortunes of the Roman people, by means of authorship, to the contemporary world and to posterity. When at length this desire was felt, there were neither literary forms ready at hand for the use of Roman history, nor was there a public prepared to read it, and great talent and considerable time were required to create both. In the first instance, accordingly, these difficulties were in some measure evaded by writing the national history either in the mother-tongue but in that case in verse, or in prose but in that case in Greek. We have already spoken of the metrical chronicles of Naevius (written about 550?) and of Ennius (written about 581); both belong to the earliest historical literature of the Romans, and the work of Naevius may be regarded as the oldest of all Roman historical works. At nearly the same period were composed the Greek "Histories" of Quintus Fabius Pictor(56) (after 553), a man of noble family who took an active part in state affairs during the Hannibalic war, and of Publius Scipio, the son of Scipio Africanus (about 590). In the former case they availed themselves of the poetical art which was already to a certain extent developed, and addressed themselves to a public with a taste for poetry, which was not altogether wanting; in the latter case they found the Greek forms ready to their hand, and addressed themselves—as the interest of their subject stretching far beyond the bounds of Latium naturally suggested—primarily to the cultivated foreigner. The former plan was adopted by the plebeian authors, the latter by those of quality; just as in the time of Frederick the Great an aristocratic literature in the French language subsisted side by side with the native German authorship of pastors and professors, and, while men like Gleim and Ramler wrote war-songs in

German, kings and generals wrote military histories in French. Neither the metrical chronicles nor the Greek annals by Roman authors constituted Latin historical composition in the proper sense; this only began with Cato, whose "Origines," not published before the close of this epoch, formed at once the oldest historical work written in Latin and the first important prose work in Roman literature.(57)

All these works, while not coming up to the Greek conception of history, (58) were, as contrasted with the mere detached notices of the book of Annals, systematic histories with a connected narrative and a more or less regular structure. They all, so far as we can see, embraced the national history from the building of Rome down to the time of the writer, although in point of title the work of Naevius related only to the first war with Carthage, and that of Cato only to the very early history. They were thus naturally divided into the three sections of the legendary period, of earlier, and of contemporary, history.

History of the Origin of Rome

In the legendary period the history of the origin of the city of Rome was set forth with great minuteness; and in its case the peculiar difficulty had to be surmounted, that there were, as we have already shown,(59) two wholly irreconcilable versions of it in circulation: the national version, which, in its leading outlines at least, was probably already embodied in the book of Annals, and the Greek version of Timaeus, which cannot have remained unknown to these Roman chroniclers. The object of the former was to connect Rome with Alba, that of the latter to connect Rome with Troy; in the former accordingly the city was built by Romulus son of the Alban king, in the latter by the Trojan prince Aeneas. To the present epoch, probably either to Naevius or to Pictor, belongs the amalgamation of the two stories. The Alban prince Romulus remains the founder of Rome, but becomes at the same time the grandson of Aeneas; Aeneas does not found Rome, but is represented as bringing the Roman Penates to Italy and building Lavinium as their shrine, while his son Ascanius founds Alba Longa, the mother-city of Rome and the ancient metropolis of Latium. All this was a sorry and unskilful patchwork. The view that the original Penates of Rome were preserved not, as had hitherto been believed, in their temple in the Roman

Forum, but in the shrine at Lavinium, could not but be offensive to the Romans; and the Greek fiction was a still worse expedient, inasmuch as under it the gods only bestowed on the grandson what they had adjudged to the grandsire. But the redaction served its object: without exactly denying the national origin of Rome, it yet deferred to the Hellenizing tendency, and legalized in some degree that desire to claim kindred with Aeneas and his descendants which was already at this epoch greatly in vogue;(60) and thus it became the stereotyped, and was soon accepted as the official, account of the origin of the mighty community.

Apart from the fable of the origin of the city, the Greek historiographers had otherwise given themselves little or no concern as to the Roman commonwealth; so that the presentation of the further course of the national history must have been chiefly derived from native sources. But the scanty information that has reached us does not enable us to discern distinctly what sort of traditions, in addition to the book of Annals, were at the command of the earliest chroniclers, and what they may possibly have added of their own. The anecdotes inserted from Herodotus(61) were probably still foreign to these earliest annalists, and a direct borrowing of Greek materials in this section cannot be proved. The more remarkable, therefore, is the tendency, which is everywhere, even in the case of Cato the enemy of the Greeks, very distinctly apparent, not only to connect Rome with Hellas, but to represent the Italian and Greek nations as having been originally identical. To this tendency we owe the primitive-Italians or Aborigines who were immigrants from Greece, and the primitive- Greeks or Pelasgians whose wanderings brought them to Italy.

The Earlier History

The current story led with some measure of connection, though the connecting thread was but weak and loose through the regal period down to

the institution of the republic; but at that point legend dried up; and it was not merely difficult but altogether impossible to form a narrative, in any degree connected and readable, out of the lists of magistrates and the scanty notices appended to them. The poets felt this most. Naevius appears for that reason to have passed at once from the regal period to the war regarding Sicily: Ennius, who in the third of his eighteen books was still describing the regal period and in the sixth had already reached the war with Pyrrhus, must have treated the first two centuries of the republic merely in the most general outline. How the annalists who wrote in Greek managed the matter, we do not know. Cato adopted a peculiar course. He felt no pleasure, as he himself says, "in relating what was set forth on the tablet in the house of the Pontifex Maximus, how often wheat had been dear, and when the sun or moon had been eclipsed;" and so he devoted the second and third books of his historical work to accounts of the origin of the other Italian communities and of their admission to the Roman confederacy. He thus got rid of the fetters of chronicle, which reports events year by year under the heading of the magistrates for the time being; the statement in particular, that Cato's historical work narrated events "sectionally," must refer to this feature of his method. This attention bestowed on the other Italian communities, which surprises us in a Roman work, had a bearing on the political position of the author, who leaned throughout on the support of the municipal Italy in his opposition to the doings of the capital; while it furnished a sort of substitute for the missing history of Rome from the expulsion of king Tarquinius down to the Pyrrhic war, by presenting in its own way the main result of that history—the union of Italy under the hegemony of Rome.

Contemporary History

Contemporary history, again, was treated in a connected and detailed manner. Naevius described the first, and Fabius the second, war with Carthage from their own knowledge; Ennius devoted at least thirteen out of

the eighteen books of his *Annals* to the epoch from Pyrrhus down to the Istrian war;(62) Cato narrated in the fourth and fifth books of his historical work the wars from the first Punic war down to that with Perseus, and in the two last books, which probably were planned on a different and ampler scale, he related the events of the last twenty years of his life. For the Pyrrhic war Ennius may have employed Timaeus or other Greek authorities; but on the whole the accounts given were based, partly on personal observation or communications of eye-witnesses, partly on each other.

Speeches and Letters

Contemporaneously with historical literature, and in some sense as an appendage to it, arose the literature of speeches and letters. This in like manner was commenced by Cato; for the Romans possessed nothing of an earlier age except some funeral orations, most of which probably were only brought to light at a later period from family archives, such as that which the veteran Quintus Fabius, the opponent of Hannibal, delivered when an old man over his son who had died in his prime. Cato on the other hand committed to writing in his old age such of the numerous orations which he had delivered during his long and active public career as were historically important, as a sort of political memoirs, and published them partly in his historical work, partly, it would seem, as independent supplements to it. There also existed a collection of his letters.

History of Other Nations

With non-Roman history the Romans concerned themselves so far, that a certain knowledge of it was deemed indispensable for the cultivated Roman; even old Fabius is said to have been familiar not merely with the Roman, but also with foreign, wars, and it is distinctly testified that Cato diligently read Thucydides and the Greek historians in general. But, if we leave out of view the collection of anecdotes and maxims which Cato

compiled for himself as the fruits of this reading, no trace is discernible of any literary activity in this field.

Uncritical Treatment of History

These first essays in historical literature were all of them, as a matter of course, pervaded by an easy, uncritical spirit; neither authors nor readers readily took offence at inward or outward inconsistencies. King Tarquinius the Second, although he was already grown up at the time of his father's death and did not begin to reign till thirty-nine years afterwards, is nevertheless still a young man when he ascends the throne. Pythagoras, who came to Italy about a generation before the expulsion of the kings, is nevertheless set down by the Roman historians as a friend of the wise Numa. The state- envoys sent to Syracuse in the year 262 transact business with Dionysius the elder, who ascended the throne eighty-six years afterwards (348). This naive uncritical spirit is especially apparent in the treatment of Roman chronology. Since according to the Roman reckoning—the outlines of which were probably fixed in the previous epoch—the foundation of Rome took place 240 years before the consecration of the Capitoline temple⁽⁶³⁾ and 360 years before the burning of the city by the Gauls,⁽⁶⁴⁾ and the latter event, which is mentioned also in Greek historical works, fell according to these in the year of the Athenian archon Pyrgion 388 B. C. Ol. 98, i, the building of Rome accordingly fell on Ol. 8, i. This was, according to the chronology of Eratosthenes which was already recognized as canonical, the year 436 after the fall of Troy; nevertheless the common story retained as the founder of Rome the grandson of the Trojan Aeneas. Cato, who like a good financier checked the calculation, no doubt drew attention in this instance to the incongruity; but he does not appear to have proposed any mode of getting over the difficulty—the list of the Alban kings, which was afterwards inserted with this view, certainly did not proceed from him.

The same uncritical spirit, which prevailed in the early history, prevailed also to a certain extent in the representation of historical times. The accounts certainly without exception bore that strong party colouring, for which the Fabian narrative of the commencement of the second war with Carthage is censured by Polybius with the calm severity characteristic of him. Mistrust, however, is more appropriate in such circumstances than reproach. It is somewhat ridiculous to expect from the Roman contemporaries of Hannibal a just judgment on their opponents; but no conscious misrepresentation of the facts, except such as a simple-minded patriotism of itself involves, has been proved against the fathers of Roman history.

Science

The beginnings of scientific culture, and even of authorship relating to it, also fall within this epoch. The instruction hitherto given had been substantially confined to reading and writing and a knowledge of the law of the land.⁽⁶⁵⁾ But a closer contact with the Greeks gradually suggested to the Romans the idea of a more general culture; and stimulated the endeavour, if not directly to transplant this Greek culture to Rome, at any rate to modify the Roman culture to some extent after its model.

Grammar

First of all, the knowledge of the mother-tongue began to shape itself into Latin grammar; Greek philology transferred its methods to the kindred idiom of Italy. The active study of grammar began nearly at the same time with Roman authorship. About 520 Spurius Carvilius, a teacher of writing, appears to have regulated the Latin alphabet, and to have given to the letter -g, which was not previously included in it,⁽⁶⁶⁾ the place of the -z which could be dispensed with—the place which it still holds in the modern Occidental alphabets. The Roman school-masters must have been

constantly working at the settlement of orthography; the Latin Muses too never disowned their scholastic Hippocrene, and at all times applied themselves to orthography side by side with poetry. Ennius especially—resembling Klopstock in this respect also—not only practised an etymological play on assonance quite after the Alexandrian style,(67) but also introduced, in place of the simple signs for the double consonants that had hitherto been usual, the more accurate Greek double writing. Of Naevius and Plautus, it is true, nothing of the kind is known; the popular poets in Rome must have treated orthography and etymology with the indifference which is usual with poets.

Rhetoric and Philosophy

The Romans of this epoch still remained strangers to rhetoric and philosophy. The speech in their case lay too decidedly at the very heart of public life to be accessible to the handling of the foreign schoolmaster; the genuine orator Cato poured forth all the vials of his indignant ridicule over the silly Isocratean fashion of ever learning, and yet never being able, to speak. The Greek philosophy, although it acquired a certain influence over the Romans through the medium of didactic and especially of tragic poetry, was nevertheless viewed with an apprehension compounded of boorish ignorance and of instinctive misgiving. Cato bluntly called Socrates a talker and a revolutionist, who was justly put to death as an offender against the faith and the laws of his country; and the opinion, which even Romans addicted to philosophy entertained regarding it, may well be expressed in the words of Ennius:

-Philosophari est mihi necesse, at paucis, nam omnino haut placet.
Degustandum ex ea, non in eam ingurgitandum censeo.-

Nevertheless the poem on Morals and the instructions in Oratory, which were found among the writings of Cato, may be regarded as the Roman

quintessence or, if the expression be preferred, the Roman -caput mortuum- of Greek philosophy and rhetoric. The immediate sources whence Cato drew were, in the case of the poem on Morals, presumably the Pythagorean writings on morals (along with, as a matter of course, due commendation of the simple ancestral habits), and, in the case of the book on Oratory, the speeches in Thucydides and more especially the orations of Demosthenes, all of which Cato zealously studied. Of the spirit of these manuals we may form some idea from the golden oratorical rule, oftener quoted than followed by posterity, "to think of the matter and leave the words to follow from it."(68)

Medicine

Similar manuals of a general elementary character were composed by Cato on the Art of Healing, the Science of War, Agriculture, and Jurisprudence—all of which studies were likewise more or less under Greek influence. Physics and mathematics were not much studied in Rome; but the applied sciences connected with them received a certain measure of attention. This was most of all true of medicine. In 535 the first Greek physician, the Peloponnesian Archagathus, settled in Rome and there acquired such repute by his surgical operations, that a residence was assigned to him on the part of the state and he received the freedom of the city; and thereafter his colleagues flocked in crowds to Italy. Cato no doubt not only reviled the foreign medical practitioners with a zeal worthy of a better cause, but attempted, by means of his medical manual compiled from his own experience and probably in part also from the medical literature of the Greeks, to revive the good old fashion under which the father of the family was at the same time the family physician. The physicians and the public gave themselves, as was reasonable, but little concern about his obstinate invectives: at any rate the profession, one of the most lucrative

which existed in Rome, continued a monopoly in the hands of the foreigners, and for centuries there were none but Greek physicians in Rome.

Mathematics

Hitherto the measurement of time had been treated in Rome with barbarous indifference, but matters were now at least in some degree improved. With the erection of the first sundial in the Roman Forum in 491 the Greek hour (—ora—, -hora-) began to come into use at Rome: it happened, however, that the Romans erected a sundial which had been prepared for Catania situated four degrees farther to the south, and were guided by this for a whole century. Towards the end of this epoch we find several persons of quality taking an interest in mathematical studies. Manius Acilius Glabrio (consul in 563) attempted to check the confusion of the calendar by a law, which allowed the pontifical college to insert or omit intercalary months at discretion: if the measure failed in its object and in fact aggravated the evil, the failure was probably owing more to the unscrupulousness than to the want of intelligence of the Roman theologians. Marcus Fulvius Nobilior (consul in 565), a man of Greek culture, endeavoured at least to make the Roman calendar more generally known. Gaius Sulpicius Gallus (consul in 588), who not only predicted the eclipse of the moon in 586 but also calculated the distance of the moon from the earth, and who appears to have come forward even as an astronomical writer, was regarded on this account by his contemporaries as a prodigy of diligence and acuteness.

Agriculture and the Art of War

Agriculture and the art of war were, of course, primarily regulated by the standard of traditional and personal experience, as is very distinctly apparent in that one of the two treatises of Cato on Agriculture which has reached our time. But the results of Graeco- Latin, and even of Phoenician,

culture were brought to bear on these subordinate fields just as on the higher provinces of intellectual activity, and for that reason the foreign literature relating to them cannot but have attracted some measure of attention.

Jurisprudence

Jurisprudence, on the other hand, was only in a subordinate degree affected by foreign elements. The activity of the jurists of this period was still mainly devoted to the answering of parties consulting them and to the instruction of younger listeners; but this oral instruction contributed to form a traditional groundwork of rules, and literary activity was not wholly wanting. A work of greater importance for jurisprudence than the short sketch of Cato was the treatise published by Sextus Aelius Paetus, surnamed the "subtle" (-catus-), who was the first practical jurist of his time, and, in consequence of his exertions for the public benefit in this respect, rose to the consulship (556) and to the censorship (560). His treatise—the "-Tripartita-" as it was called—was a work on the Twelve Tables, which appended to each sentence of the text an explanation—chiefly, doubtless, of the antiquated and unintelligible expressions—and the corresponding formula of action. While this process of glossing undeniably indicated the influence of Greek grammatical studies, the portion treating of the formulae of action, on the contrary, was based on the older collection of Appius(69) and on the whole system of procedure developed by national usage and precedent.

Cato's Encyclopaedia

The state of science generally at this epoch is very distinctly exhibited in the collection of those manuals composed by Cato for his son which, as a sort of encyclopaedia, were designed to set forth in short maxims what a "fit man" (-vir bonus-) ought to be as orator, physician, husbandman, warrior,

and jurist. A distinction was not yet drawn between the propaedeutic and the professional study of science; but so much of science generally as seemed necessary or useful was required of every true Roman. The work did not include Latin grammar, which consequently cannot as yet have attained that formal development which is implied in a properly scientific instruction in language; and it excluded music and the whole cycle of the mathematical and physical sciences. Throughout it was the directly practical element in science which alone was to be handled, and that with as much brevity and simplicity as possible. The Greek literature was doubtless made use of, but only to furnish some serviceable maxims of experience culled from the mass of chaff and rubbish: it was one of Cato's commonplaces, that "Greek books must be looked into, but not thoroughly studied." Thus arose those household manuals of necessary information, which, while rejecting Greek subtlety and obscurity, banished also Greek acuteness and depth, but through that very peculiarity moulded the attitude of the Romans towards the Greek sciences for all ages.

Character and Historical Position of Roman Literature

Thus poetry and literature made their entrance into Rome along with the sovereignty of the world, or, to use the language of a poet of the age of Cicero:

-Poenico bello secundo Musa pennato gradu
Intulit se bellicosam Romuli in gentem feram.-

In the districts using the Sabellian and Etruscan dialects also there must have been at the same period no want of intellectual movement. Tragedies in the Etruscan language are mentioned, and vases with Oscan inscriptions show that the makers of them were acquainted with Greek comedy. The question accordingly presents itself, whether, contemporarily with Naevius and Cato, a Hellenizing literature like the Roman may not have been in

course of formation on the Arnus and Volturnus. But all information on the point is lost, and history can in such circumstances only indicate the blank.

Hellenizing Literature

The Roman literature is the only one as to which we can still form an opinion; and, however problematical its absolute worth may appear to the aesthetic judge, for those who wish to apprehend the history of Rome it remains of unique value as the mirror of the inner mental life of Italy in that sixth century—full of the din of arms and pregnant for the future—during which its distinctively Italian phase closed, and the land began to enter into the broader career of ancient civilization. In it too there prevailed that antagonism, which everywhere during this epoch pervaded the life of the nation and characterized the age of transition. No one of unprejudiced mind, and who is not misled by the venerable rust of two thousand years, can be deceived as to the defectiveness of the Hellenistico-Roman literature. Roman literature by the side of that of Greece resembles a German orangery by the side of a grove of Sicilian orange-trees; both may give us pleasure, but it is impossible even to conceive them as parallel. This holds true of the literature in the mother-tongue of the Latins still more decidedly, if possible, than of the Roman literature in a foreign tongue; to a very great extent the former was not the work of Romans at all, but of foreigners, of half-Greeks, Celts, and ere long even Africans, whose knowledge of Latin was only acquired by study. Among those who in this age came before the public as poets, none, as we have already said, can be shown to have been persons of rank; and not only so, but none can be shown to have been natives of Latium proper. The very name given to the poet was foreign; even Ennius emphatically calls himself a -poeta-(70). But not only was this poetry foreign; it was also liable to all those defects which are found to occur where schoolmasters become authors and the great multitude forms the public. We have shown how comedy was artistically debased by a

regard to the multitude, and in fact sank into vulgar coarseness; we have further shown that two of the most influential Roman authors were schoolmasters in the first instance and only became poets in the sequel, and that, while the Greek philology which only sprang up after the decline of the national literature experimented merely on the dead body, in Latium grammar and literature had their foundations laid simultaneously and went hand in hand, almost as in the case of modern missions to the heathen. In fact, if we view with an unprejudiced eye this Hellenistic literature of the sixth century—that poetry followed out professionally and destitute of all productiveness of its own, that uniform imitation of the very shallowest forms of foreign art, that repertoire of translations, that changeling of epos—we are tempted to reckon it simply one of the diseased symptoms of the epoch before us.

But such a judgment, if not unjust, would yet be just only in a very partial sense. We must first of all consider that this artificial literature sprang up in a nation which not only did not possess any national poetic art, but could never attain any such art. In antiquity, which knew nothing of the modern poetry of individual life, creative poetical activity fell mainly within the mysterious period when a nation was experiencing the fears and pleasures of growth: without prejudice to the greatness of the Greek epic and tragic poets we may assert that their poetry mainly consisted in reproducing the primitive stories of human gods and divine men. This basis of ancient poetry was totally wanting in Latium: where the world of gods remained shapeless and legend remained barren, the golden apples of poetry could not voluntarily ripen. To this falls to be added a second and more important consideration.

The inward mental development and the outward political evolution of Italy had equally reached a point at which it was no longer possible to retain the Roman nationality based on the exclusion of all higher and individual

mental culture, and to repel the encroachments of Hellenism. The propagation of Hellenism in Italy had certainly a revolutionary and a denationalizing tendency, but it was indispensable for the necessary intellectual equalization of the nations; and this primarily forms the historical and even the poetical justification of the Romano-Hellenistic literature. Not a single new and genuine work of art issued from its workshop, but it extended the intellectual horizon of Hellas over Italy. Viewed even in its mere outward aspect, Greek poetry presumes in the hearer a certain amount of positive acquired knowledge. That self-contained completeness, which is one of the most essential peculiarities of the dramas of Shakespeare for instance, was foreign to ancient poetry; a person unacquainted with the cycle of Greek legend would fail to discover the background and often even the ordinary meaning of every rhapsody and every tragedy. If the Roman public of this period was in some degree familiar, as the comedies of Plautus show, with the Homeric poems and the legends of Herakles, and was acquainted with at least the more generally current of the other myths,(71) this knowledge must have found its way to the public primarily through the stage alongside of the school, and thus have formed at least a first step towards the understanding of the Hellenic poetry. But still deeper was the effect—on which the most ingenious literary critics of antiquity justly laid emphasis—produced by the naturalization of the Greek poetic language and the Greek metres in Latium. If "conquered Greece vanquished her rude conqueror by art," the victory was primarily accomplished by elaborating from the unpliant Latin idiom a cultivated and elevated poetical language, so that instead of the monotonous and hackneyed Saturnian the senarius flowed and the hexameter rushed, and the mighty tetrameters, the jubilant anapaests, and the artfully intermingled lyrical rhythms fell on the Latin ear in the mother-tongue. Poetical language is the key to the ideal world of poetry, poetic measure the key to poetical feeling; for the man, to whom the eloquent epithet is dumb and the living

image is dead, and in whom the times of dactyls and iammbuses awaken no inward echo, Homer and Sophocles have composed in vain. Let it not be said that poetical and rhythmical feeling comes spontaneously. The ideal feelings are no doubt implanted by nature in the human breast, but they need favourable sunshine in order to germinate; and especially in the Latin nation, which was but little susceptible of poetic impulses, they needed external nurture. Nor let it be said, that, by virtue of the widely diffused acquaintance with the Greek language, its literature would have sufficed for the susceptible Roman public. The mysterious charm which language exercises over man, and which poetical language and rhythm only enhance, attaches not to any tongue learned accidentally, but only to the mother-tongue. From this point of view, we shall form a juster judgment of the Hellenistic literature, and particularly of the poetry, of the Romans of this period. If it tended to transplant the radicalism of Euripides to Rome, to resolve the gods either into deceased men or into mental conceptions, to place a denationalized Latium by the side of a denationalized Hellas, and to reduce all purely and distinctly developed national peculiarities to the problematic notion of general civilization, every one is at liberty to find this tendency pleasing or disagreeable, but none can doubt its historical necessity. From this point of view the very defectiveness of the Roman poetry, which cannot be denied, may be explained and so may in some degree be justified. It is no doubt pervaded by a disproportion between the trivial and often bungled contents and the comparatively finished form; but the real significance of this poetry lay precisely in its formal features, especially those of language and metre. It was not seemly that poetry in Rome was principally in the hands of schoolmasters and foreigners and was chiefly translation or imitation; but, if the primary object of poetry was simply to form a bridge from Latium to Hellas, Livius and Ennius had certainly a vocation to the poetical pontificate in Rome, and a translated literature was the simplest means to the end. It was still less seemly that

Roman poetry preferred to lay its hands on the most worn- out and trivial originals; but in this view it was appropriate. No one will desire to place the poetry of Euripides on a level with that of Homer; but, historically viewed, Euripides and Menander were quite as much the oracles of cosmopolitan Hellenism as the Iliad and Odyssey were the oracles of national Hellenism, and in so far the representatives of the new school had good reason for introducing their audience especially to this cycle of literature. The instinctive consciousness also of their limited poetical powers may partly have induced the Roman composers to keep mainly by Euripides and Menander and to leave Sophocles and even Aristophanes untouched; for, while poetry is essentially national and difficult to transplant, intellect and wit, on which the poetry of Euripides as well as of Menander is based, are in their very nature cosmopolitan. Moreover the fact always deserves to be honourably acknowledged, that the Roman poets of the sixth century did not attach themselves to the Hellenic literature of the day or what is called Alexandrinism, but sought their models solely in the older classical literature, although not exactly in its richest or purest fields. On the whole, however innumerable may be the false accommodations and sins against the rules of art which we can point out in them, these were just the offences which were by stringent necessity attendant on the far from scrupulous efforts of the missionaries of Hellenism; and they are, in a historical and even aesthetic point of view, outweighed in some measure by the zeal of faith equally inseparable from propagandism. We may form a different opinion from Ennius as to the value of his new gospel; but, if in the case of faith it does not matter so much what, as how, men believe, we cannot refuse recognition and admiration to the Roman poets of the sixth century. A fresh and strong sense of the power of the Hellenic world-literature, a sacred longing to transplant the marvellous tree to the foreign land, pervaded the whole poetry of the sixth century, and coincided in a peculiar manner with the thoroughly elevated spirit of that great age. The later

refined Hellenism looked down on the poetical performances of this period with some degree of contempt; it should rather perhaps have looked up to the poets, who with all their imperfection yet stood in a more intimate relation to Greek poetry, and approached nearer to genuine poetical art, than their more cultivated successors. In the bold emulation, in the sounding rhythms, even in the mighty professional pride of the poets of this age there is, more than in any other epoch of Roman literature, an imposing grandeur; and even those who are under no illusion as to the weak points of this poetry may apply to it the proud language, already quoted, in which Ennius celebrates its praise:

-Enni poeta, salve, qui mortalibus
Versus propinas flammeos medullitus.-

National Opposition

As the Hellenico-Roman literature of this period was essentially marked by a dominant tendency, so was also its antithesis, the contemporary national authorship. While the former aimed at neither more nor less than the annihilation of Latin nationality by the creation of a poetry Latin in language but Hellenic in form and spirit, the best and purest part of the Latin nation was driven to reject and place under the ban of outlawry the literature of Hellenism along with Hellenism itself. The Romans in the time of Cato stood opposed to Greek literature, very much as in the time of the Caesars they stood opposed to Christianity; freedmen and foreigners formed the main body of the poetical, as they afterwards formed the main body of the Christian, community; the nobility of the nation and above all the government saw in poetry as in Christianity an absolutely hostile power; Plautus and Ennius were ranked with the rabble by the Roman aristocracy for reasons nearly the same as those for which the apostles and bishops were put to death by the Roman government. In this field too it was Cato, of

course, who took the lead as the vigorous champion of his native country against the foreigners. The Greek literati and physicians were in his view the most dangerous scum of the radically corrupt Greek people,(72) and the Roman "ballad- singers" are treated by him with ineffable contempt.(73) He and those who shared his sentiments have been often and harshly censured on this account, and certainly the expressions of his displeasure are not unfrequently characterized by the bluntness and narrowness peculiar to him; on a closer consideration, however, we must not only confess him to have been in individual instances substantially right, but we must also acknowledge that the national opposition in this field, more than anywhere else, went beyond the manifestly inadequate line of mere negative defence. When his younger contemporary, Aulus Postumius Albinus, who was an object of ridicule to the Hellenes themselves by his offensive Hellenizing, and who, for example, even manufactured Greek verses—when this Albinus in the preface to his historical treatise pleaded in excuse for his defective Greek that he was by birth a Roman—was not the question quite in place, whether he had been doomed by authority of law to meddle with matters which he did not understand? Were the trades of the professional translator of comedies and of the poet celebrating heroes for bread and protection more honourable, perhaps, two thousand years ago than they are now? Had Cato not reason to make it a reproach against Nobilior, that he took Ennius—who, we may add, glorified in his verses the Roman potentates without respect of persons, and overloaded Cato himself with praise—along with him to Ambracia as the celebrator of his future achievements? Had he not reason to revile the Greeks, with whom he had become acquainted in Rome and Athens, as an incorrigibly wretched pack? This opposition to the culture of the age and the Hellenism of the day was well warranted; but Cato was by no means chargeable with an opposition to culture and to Hellenism in general. On the contrary it is the highest merit of the national party, that they comprehended very clearly the necessity of creating a Latin literature

and of bringing the stimulating influences of Hellenism to bear on it; only their intention was, that Latin literature should not be a mere copy taken from the Greek and intruded on the national feelings of Rome, but should, while fertilized by Greek influences, be developed in accordance with Italian nationality. With a genial instinct, which attests not so much the sagacity of individuals as the elevation of the epoch, they perceived that in the case of Rome, owing to the total want of earlier poetical productiveness, history furnished the only subject-matter for the development of an intellectual life of their own. Rome was, what Greece was not, a state; and the mighty consciousness of this truth lay at the root both of the bold attempt which Naevius made to attain by means of history a Roman epos and a Roman drama, and of the creation of Latin prose by Cato. It is true that the endeavour to replace the gods and heroes of legend by the kings and consuls of Rome resembles the attempt of the giants to storm heaven by means of mountains piled one above another: without a world of gods there is no ancient epos and no ancient drama, and poetry knows no substitutes. With greater moderation and good sense Cato left poetry proper, as a thing irremediably lost, to the party opposed to him; although his attempt to create a didactic poetry in national measure after the model of the earlier Roman productions —the Appian poem on Morals and the poem on Agriculture—remains significant and deserving of respect, in point if not of success, at least of intention. Prose afforded him a more favourable field, and accordingly he applied the whole varied power and energy peculiar to him to the creation of a prose literature in his native tongue. This effort was all the more Roman and all the more deserving of respect, that the public which he primarily addressed was the family circle, and that in such an effort he stood almost alone in his time. Thus arose his "Origines," his remarkable state-speeches, his treatises on special branches of science. They are certainly pervaded by a national spirit, and turn on national subjects; but they are far from anti-Hellenic: in fact they originated

essentially under Greek influence, although in a different sense from that in which the writings of the opposite party so originated. The idea and even the title of his chief work were borrowed from the Greek "foundation-histories" (—ktoeis—). The same is true of his oratorical authorship; he ridiculed Isocrates, but he tried to learn from Thucydides and Demosthenes. His encyclopaedia is essentially the result of his study of Greek literature. Of all the undertakings of that active and patriotic man none was more fruitful of results and none more useful to his country than this literary activity, little esteemed in comparison as it probably was by himself. He found numerous and worthy successors in oratorical and scientific authorship; and though his original historical treatise, which of its kind may be compared with the Greek logography, was not followed by any Herodotus or Thucydides, yet by and through him the principle was established that literary occupation in connection with the useful sciences as well as with history was not merely becoming but honourable in a Roman.

Architecture

Let us glance, in conclusion, at the state of the arts of architecture, sculpture, and painting. So far as concerns the former, the traces of incipient luxury were less observable in public than in private buildings. It was not till towards the close of this period, and especially from the time of the censorship of Cato (570), that the Romans began in the case of the former to have respect to the convenience as well as to the bare wants of the public; to line with stone the basins (-lacus-) supplied from the aqueducts, (570); to erect colonnades (575, 580); and above all to transfer to Rome the Attic halls for courts and business—the -basilicae- as they were called. The first of these buildings, somewhat corresponding to our modern bazaars—the Porcian or silversmiths' hall—was erected by Cato in 570 alongside of the senate-house; others were soon associated with it, till gradually along the sides of the Forum the private shops were replaced by these splendid

columnar halls. Everyday life, however, was more deeply influenced by the revolution in domestic architecture which must, at latest, be placed in this period. The hall of the house (-atrium-), court (-cavum aedium-), garden and garden colonnade (-peristylum-), the record-chamber (-tablinum-), chapel, kitchen, and bedrooms were by degrees severally provided for; and, as to the internal fittings, the column began to be applied both in the court and in the hall for the support of the open roof and also for the garden colonnades: throughout these arrangements it is probable that Greek models were copied or at any rate made use of. Yet the materials used in building remained simple; "our ancestors," says Varro, "dwelt in houses of brick, and laid merely a moderate foundation of stone to keep away damp."

Plastic Art and Painting

Of Roman plastic art we scarcely encounter any other trace than, perhaps, the embossing in wax of the images of ancestors. Painters and painting are mentioned somewhat more frequently. Manius Valerius caused the victory which he obtained over the Carthaginians and Hiero in 491 off Messana(74) to be depicted on the side wall of the senate- house—the first historical frescoes in Rome, which were followed by many of similar character, and which were in the domain of the arts of design what the national epos and the national drama became not much later in the domain of poetry. We find named as painters, one Theodotus who, as Naevius scoffingly said,

-Sedens in cella circumtectus tegetibus
Lares ludentis peni pinxit bubulo;-

Marcus Pacuvius of Brundisium, who painted in the temple of Hercules in the Forum Boarium—the same who, when more advanced in life, made himself a name as an editor of Greek tragedies; and Marcus Plautius Lyco, a native of Asia Minor, whose beautiful paintings in the temple of Juno at Ardea procured for him the freedom of that city.(75) But these very facts

clearly indicate, not only that the exercise of art in Rome was altogether of subordinate importance and more of a manual occupation than an art, but also that it fell, probably still more exclusively than poetry, into the hands of Greeks and half Greeks.

On the other hand there appeared in genteel circles the first traces of the tastes subsequently displayed by the dilettante and the collector. They admired the magnificence of the Corinthian and Athenian temples, and regarded with contempt the old-fashioned terra-cotta figures on the roofs of those of Rome: even a man like Lucius Paullus, who shared the feelings of Cato rather than of Scipio, viewed and judged the Zeus of Phidias with the eye of a connoisseur. The custom of carrying off the treasures of art from the conquered Greek cities was first introduced on a large scale by Marcus Marcellus after the capture of Syracuse (542). The practice met with severe reprobation from men of the old school of training, and the stern veteran Quintus Fabius Maximus, for instance, on the capture of Tarentum (545) gave orders that the statues in the temples should not be touched, but that the Tarentines should be allowed to retain their indignant gods. Yet the plundering of temples in this way became of more and more frequent occurrence. Titus Flamininus in particular (560) and Marcus Fulvius Nobilior (567), two leading champions of Roman Hellenism, as well as Lucius Paullus (587), were the means of filling the public buildings of Rome with the masterpieces of the Greek chisel. Here too the Romans had a dawning consciousness of the truth that an interest in art as well as an interest in poetry formed an essential part of Hellenic culture or, in other words, of modern civilization; but, while the appropriation of Greek poetry was impossible without some sort of poetical activity, in the case of art the mere beholding and procuring of its productions seemed to suffice, and therefore, while a native literature was formed in an artificial way in Rome, no attempt even was made to develop a native art.

Notes for Chapter XIV

1. A distinct set of Greek expressions, such as -stratoticus-, -machaera-, -naucerus-, -trapezita-, -danista-, -drapeta-, -oenopolium-, -bolus-, -malacus-, -morus-, -graphicus-, -logus-, -apologus-, -techna-, -schema-, forms quite a special feature in the language of Plautus. Translations are seldom attached, and that only in the case of words not embraced in the circle of ideas to which those which we have cited belong; for instance, in the -Truculentus- —in a verse, however, that is perhaps a later addition (i. 1, 60) —we find the explanation: —phronesis— -est sapientia-. Fragments of Greek also are common, as in the -Casina-, (iii. 6, 9):

—Pragmata moi parecheis— —Dabo— —mega kakon—, -ut opinor-.

Greek puns likewise occur, as in the -Bacchides- (240):

-opus est chryso Chrysalo-.

Ennius in the same way takes for granted that the etymological meaning of Alexandros and Andromache is known to the spectators (Varro, de L. L. vii. 82). Most characteristic of all are the half-Greek formations, such as -feritribax-, -plagipatida-, -pugilice-, or in the -Miles Gloriosus- (213):

-Fuge! euscheme hercle astitit sic dulice et comoedice!-

2. III. VIII. Greece Free

3. One of these epigrams composed in the name of Flamininus runs thus:

—Zenos io kraipnaisi gegathotes ipposunaisi
Kouroi, io Spartas Tundaridai basileis,

Aineadas Titos ummin upertatos opase doron
Ellenon teuxas paisin eleutherian.—

4. Such, e. g, was Chilo, the slave of Cato the Elder, who earned money on his master's behalf as a teacher of children (Plutarch, Cato Mai. 20).

5. II. IX. Ballad-Singers

6. The later rule, by which the freedman necessarily bore the praenomen- of his patron, was not yet applied in republican Rome.

7. II. VII. Capture of Tarentum

8. III. VI. Battle of Sena

9. One of the tragedies of Livius presented the line—

-Quem ego nefrendem alui lacteam immulgens opem.-

The verses of Homer (Odyssey, xii. 16):

—oud ara Kirken ex Aideo elthontes elethomen, alla mal oka elthentunamene ama d amphipoloi pheron aute siton kai krea polla kai aithopa oinon eruthron.—

are thus interpreted:

-Topper citi ad aedis—venimus Circae
Simul duona coram(?)—portant ad navis,
Milia dlia in isdem—inserinuntur.-

The most remarkable feature is not so much the barbarism as the thoughtlessness of the translator, who, instead of sending Circe to Ulysses, sends Ulysses to Circe. Another still more ridiculous mistake is the

translation of —aidoioisin edoka— (Odyss. xv. 373) by -lusi- (Festus, Ep. v. affatim, p. ii, Muller). Such traits are not in a historical point of view matters of difference; we recognize in them the stage of intellectual culture which irked these earliest Roman verse-making schoolmasters, and we at the same time perceive that, although Andronicus was born in Tarentum, Greek cannot have been properly his mother-tongue.

10. Such a building was, no doubt, constructed for the Apollinarian games in the Flaminian circus in 575 (Liv. xl. 51; Becker, Top. p. 605); but it was probably soon afterwards pulled down again (Tertull. de Spect. 10).

11. In 599 there were still no seats in the theatre (Ritschl, Parerg. i. p. xviii. xx. 214; comp. Ribbeck, Trag. p. 285); but, as not only the authors of the Plautine prologues, but Plautus himself on various occasions, make allusions to a sitting audience (Mil. Glor. 82, 83; Aulul. iv. 9, 6; Triicul. ap. fin.; Epid. ap. fin.), most of the spectators must have brought stools with them or have seated themselves on the ground.

12. III. XI. Separation of Orders in the Theatre

13. Women and children appear to have been at all times admitted to the Roman theatre (Val. Max. vi. 3, 12; Plutarch., Quaest. Rom. 14; Cicero, de Har. Resp. 12, 24; Vitruv. v. 3, i; Suetonius, Aug. 44,&c.); but slaves were - de jure- excluded (Cicero, de Har. Resp. 12, 26; Ritschl. Parerg. i. p. xix. 223), and the same must doubtless have been the case with foreigners, excepting of course the guests of the community, who took their places among or by the side of the senators (Varro, v. 155; Justin, xliii. 5. 10; Sueton. Aug. 44).

14. III. XII. Moneyed Aristocracy

15. II. IX. Censure of Art

16. It is not necessary to infer from the prologues of Plautus (Cas. 17; Amph. 65) that there was a distribution of prizes (Ritschl, Parerg. i. 229); even the passage Trin. 706, may very well belong to the Greek original, not to the translator; and the total silence of the -didascaliae- and prologues, as well as of all tradition, on the point of prize tribunals and prizes is decisive.

17. The scanty use made of what is called the middle Attic comedy does not require notice in a historical point of view, since it was nothing but the Menandrian comedy in a less developed form. There is no trace of any employment of the older comedy. The Roman tragi-comedy—after the type of the -Amphitruo- of Plautus—was no doubt styled by the Roman literary historians -fabula Rhinthonica-; but the newer Attic comedians also composed such parodies, and it is difficult to see why the Ionians should have resorted for their translations to Rhinthon and the older writers rather than to those who were nearer to their own times.

18. III. VI In Italy

19. Bacch. 24; Trin. 609; True. iii. 2, 23. Naevius also, who in fact was generally less scrupulous, ridicules the Praenestines and Lanuvini (Com. 21, Ribb.). There are indications more than once of a certain variance between the Praenestines and Romans (Liv. xxiii. 20, xlii. i); and the executions in the time of Pyrrhus (ii. 18) as well as the catastrophe in that of Sulla, were certainly connected with this variance. —Innocent jokes, such as Capt. 160, 881, of course passed uncensored. —The compliment paid to Massilia in Cas. v. 4., i, deserves notice.

20. Thus the prologue of the -Cistellaria- concludes with the following words, which may have a place here as the only contemporary mention of the Hannibalic war in the literature that has come down to us:—

-Haec res sic gesta est. Bene valete, et vincite
Virtute vera, quod fecistis antidhac;
Servate vestros socios, veteres et novos;
Augete auxilia vestris iustis legibus;
Perdite perduelles: parite laudem et lauream
Ut vobis victi Poeni poenas sufferant.-

The fourth line (-augete auxilia vestris iustis legibus-) has reference to the supplementary payments imposed on the negligent Latin colonies in 550 (Liv. xxix. 15; see ii. 350).

21. III. XIII. Increase of Amusements

22. For this reason we can hardly be too cautious in assuming allusions on the part of Plautus to the events of the times. Recent investigation has set aside many instances of mistaken acuteness of this sort; but might not even the reference to the Bacchanalia, which is found in Cas. v. 4, 11 (Ritschl, Parerg. 1. 192), have been expected to incur censure? We might even reverse the case and infer from the notices of the festival of Bacchus in the -Casina-, and some other pieces (Amph. 703; Aul. iii. i, 3; Bacch. 53, 371; Mil. Glor. 1016; and especially Men. 836), that these were written at a time when it was not yet dangerous to speak of the Bacchanalia.

23. The remarkable passage in the -Tarentilla- can have no other meaning:—

-Quae ego in theatro hic meis probavi plausibus,
Ea non audere quemquam regem rumpere:
Quanto libertatem hanc hic superat servitus!-

24. The ideas of the modern Hellas on the point of slavery are illustrated by the passage in Euripides (Ion, 854; comp. Helena, 728):—

—En gar ti tois douloisin alochunen pherei,
Tounoma ta d' alla panta ton eleutheron
Oudeis kakion doulos, ostis esthlos e.—

25. For instance, in the otherwise very graceful examination which in the -Stichus- of Plautus the father and his daughters institute into the qualities of a good wife, the irrelevant question—whether it is better to marry a virgin or a widow—is inserted, merely in order that it may be answered by a no less irrelevant and, in the mouth of the interlocutrix, altogether absurd commonplace against women. But that is a trifle compared with the following specimen. In Menander's -Plocium- a husband bewails his troubles to his friend:—

—Echo d' epikleron Lamian ouk eireka soi
Tout'; eit' ap' ouchi; kurian tes oikias
Kai ton agron kai panton ant' ekeines
Echoumen, Apollon, os chalepon chalepotaton
Apasi d' argalea 'stin, ouk emoi mono,
Tio polu mallon thugatri.—pragm' amachon legeis'
Eu oida—

In the Latin edition of Caecilius, this conversation, so elegant in its simplicity, is converted into the following uncouth dialogue:—

-Sed tua morosane uxor quaeso est?—Ua! rogas?—
Qui tandem?—Taedet rientionis, quae mihi
Ubi domum adveni ac sedi, extemplo savium
Dat jejuna anima.—Nil peccat de savio:
Ut devomas volt, quod foris polaveris.-

26. Even when the Romans built stone theatres, these had not the sounding-apparatus by which the Greek architects supported the efforts of

the actors (Vitruv. v. 5, 8).

27. III. XIII. Increase of Amusements

28. The personal notices of Naevius are sadly confused. Seeing that he fought in the first Punic war, he cannot have been born later than 495. Dramas, probably the first, were exhibited by him in 519 (Gell. xii. 21. 45). That he had died as early as 550, as is usually stated, was doubted by Varro (ap. Cic. Brut. 15, 60), and certainly with reason; if it were true, he must have made his escape during the Hannibalic war to the soil of the enemy. The sarcastic verses on Scipio (p. 150) cannot have been written before the battle of Zama. We may place his life between 490 and 560, so that he was a contemporary of the two Scipios who fell in 543 (Cic. de Rep. iv. 10), ten years younger than Andronicus, and perhaps ten years older than Plautus. His Campanian origin is indicated by Gellius, and his Latin nationality, if proof of it were needed, by himself in his epitaph. The hypothesis that he was not a Roman citizen, but possibly a burgess of Cales or of some other Latin town in Campania, renders the fact that the Roman police treated him so unscrupulously the more easy of explanation. At any rate he was not an actor, for he served in the army.

29. Compare, e. g., with the verse of Livius the fragment from Naevius' tragedy of -Lycurgus- :—

-Vos, qui regalis cordons custodias
Agitatis, ite actutum in frundiferos locos,
Ingenio arbusta ubi nata sunt, non obsita;

Or the famous words, which in the -Hector Profisciscens- Hector addresses to Priam:

-Laetus sum laudari me abs te, pater, a laudato viro;-

and the charming verse from the -Tarentilla-; —

-Alii adnutat, alii adnictat; alium amat, alium tenet.-

30. III. XIV. Political Neutrality

31. III. XIV. Political Neutrality

32. This hypothesis appears necessary, because otherwise the ancients could not have hesitated in the way they did as to the genuineness or spuriousness of the pieces of Plautus: in the case of no author, properly so called, of Roman antiquity, do we find anything like a similar uncertainty as to his literary property. In this respect, as in so many other external points, there exists the most remarkable analogy between Plautus and Shakespeare.

33. III. III. The Celts Conquered by Rome, III. VII. Measures Adopted to Check the Immigration of the Trans-Alpine Gauls

34. III. XIV. Roman Barbarism

35 -Togatus- denotes, in juristic and generally in technical language, the Italian in contradistinction not merely to the foreigner, but also to the Roman burgess. Thus especially -formula togatorum- (Corp. Inscr. Lat., I. n. 200, v. 21, 50) is the list of those Italians bound to render military service, who do not serve in the legions. The designation also of Cisalpine Gaul as -Gallia togata-, which first occurs in Hirtius and not long after disappears again from the ordinary -usus loquendi-, describes this region presumably according to its legal position, in so far as in the epoch from 665 to 705 the great majority of its communities possessed Latin rights. Virgil appears likewise in the -gens togata-, which he mentions along with the Romans (Aen. i. 282), to have thought of the Latin nation.

According to this view we shall have to recognize in the -fabula togata- the comedy which laid its plot in Latium, as the -fabula palliata- had its plot in Greece; the transference of the scene of action to a foreign land is common to both, and the comic writer is wholly forbidden to bring on the stage the city or the burgesses of Rome. That in reality the -togata- could only have its plot laid in the towns of Latin rights, is shown by the fact that all the towns in which, to our knowledge, pieces of Titinius and Afranius had their scene—Setia, Ferentinum, Velitrae, Brundisium,—demonstrably had Latin or, at any rate, allied rights down to the Social war. By the extension of the franchise to all Italy the writers of comedy lost this Latin localisation for their pieces, for Cisalpine Gaul, which -de jure- took the place of the Latin communities, lay too far off for the dramatists of the capital, and so the -fabula togata- seems in fact to have disappeared. But the -de jure- suppressed communities of Italy, such as Capua and Atella, stepped into this gap (ii. 366, iii. 148), and so far the -fabula Atellana- was in some measure the continuation of the -togata-.

36. Respecting Titinius there is an utter want of literary information; except that, to judge from a fragment of Varro, he seems to have been older than Terence (558-595, Ritschl, Parerg. i. 194) for more indeed, cannot he inferred from that passage, and though, of the two groups there compared the second (Trabea, Atilius, Caecilius) is on the whole older than the first (Titinius, Terentius, Atta), it does not exactly follow that the oldest of the junior group is to be deemed younger than the youngest of the elder.

37. II. VII. First Steps toward the Latinizing of Italy

38. Of the fifteen comedies of Titinius, with which we are acquainted, six are named after male characters (-baratus-? -coecus-, -fullones-, -Hortensius-, -Quintus-, -varus-), and nine after female (-Gemina-, -iurisperita-, -prilia-? -privigna-, -psaltria- or -Ferentinatis-, -Setina-, -

tibicina-, -Veliterna-, -Ulubrana?), two of which, the -iurisperita- and the -tibicina-, are evidently parodies of men's occupations. The feminine world preponderates also in the fragments.

39. III. XIV. Livius Andronicus

40. III. XIV. Audience

41. We subjoin, for comparison, the opening lines of the -Medea- in the original of Euripides and in the version of Ennius:—

—Eith' ophel' 'Apgous me diaptasthai skaphos
Kolchon es aian kuaneas sumplegadas
Med' en napaisi Pelion pesein pote
Tmetheisa peuke, med' epetmosai cheras
Andron arioton, oi to pagchruson deros
Pelia metelthon ou gar an despoin
Medeia purgous ges epleus Iolkias
'Eroti thumon ekplageis' 'Iasonos.—

-Utinam ne in nemore Pelio securibus
Caesa accidisset abiegna ad terram trabes,
Neve inde navis inchoandae exordium
Coepisset, quae nunc nominatur nomine
Argo, quia Argivi in ea dilecti viri
Vecti petebant pellem inauratam arietis
Colchis, imperio regis Peliae, per dolum.
Nam nunquam era errans mea domo efferret pedem
Medea, animo aegra, amot saevo saucia.-

The variations of the translation from the original are instructive —not only its tautologies and periphrases, but also the omission or explanation of

the less familiar mythological names, e. g. the Symplegades, the Iolcian land, the Argo. But the instances in which Ennius has really misunderstood the original are rare.

42. III. XI. Roman Franchise More Difficult of Acquisition

43. Beyond doubt the ancients were right in recognizing a sketch of the poet's own character in the passage in the seventh book of the Annals, where the consul calls to his side the confidant,

-quocum bene saepe libenter
Mensam sermonesque suos rerumque suarum
Congeriem partit, magnam cum lassus diei
Partem fuisset de summis rebus regundis
Consilio indu foro lato sanctoque senatu:
Cui res audacter magnas parvasque iocumque
Eloqueretur, cuncta simul malaque et bona dictu
Evomeret, si qui vellet, tutoque locaret.
Quocum multa volup ac gaudia clamque palamque,
Ingenium cui nulla malum sententia suadet
Ut faceret facinus lenis aut malus, doctus fidelis
Suavis homo facundus suo contentus beatus
Scitus secunda loquens in tempore commodus verbum
Paucum, multa tenens antiqua sepulta, vetustas
Quem fecit mores veteresque novosque tenentem,
Multorum veterum leges divumque hominumque,
Prudenter qui dicta loquive tacereve possit.-

In the line before the last we should probably read -multarum leges divumque hominumque.-

44. Euripides (Iph. in Aul. 956) defines the soothsayer as a man,

—Os olig' alethe, polla de pseuon legei
Tuchon, otan de me, tuche oioichetai—

This is turned by the Latin translator into the following diatribe against the casters of horoscopes:—

-Astrologorum signa in caelo quaesit, observat,
Iovis
Cum capra aut nepa aut exoritur lumen aliquod beluae.
Quod est ante pedes, nemo spectat: caeli scrutantur plagas.-

45. III. XII. Irreligious Spirit

46. In the -Telephus- we find him saying—

-Palam mutire plebeio piaculum est.-

47. III. XIII. Luxury

48. The following verses, excellent in matter and form, belong to the adaptation of the -Phoenix- of Euripides:—

-Sed virum virtute vera vivere animatum addecet,
Fortiterque innoxium vocare adversum adversarios.
Ea libertas est, qui pectus purum et firmum gestitat:
Aliae res obnoxiosae nocte in obscura latent.-

In the -Scipio-, which was probably incorporated in the collection of miscellaneous poems, the graphic lines occurred:—

— — -mundus caeli vastus constitit silentio,
Et Neptunus saevus undis asperis pausam dedit.

Sol equis iter repressit ungulis volantibus;
Constitere amnes perennes, arbores vento vacant.-

This last passage affords us a glimpse of the way in which the poet worked up his original poems. It is simply an expansion of the words which occur in the tragedy -Hectoris Lustra- (the original of which was probably by Sophocles) as spoken by a spectator of the combat between Hephaestus and the Scamander:—

-Constitit credo Scamander, arbores vento vacant,-

and the incident is derived from the Iliad (xxi. 381).

49. Thus in the Phoenix we find the line:—

— — -stultust, qui cupita cupiens cupienter cupit,-

and this is not the most absurd specimen of such recurring assonances. He also indulged in acrostic verses (Cic. de Div. ii. 54, iii).

50. III. III. The Celts Conquered by Rome

51. III. IX. Conflicts and Peace with the Aetolians

52. Besides Cato, we find the names of two "consulars and poets" belonging to this period (Sueton. Vita Terent. 4)—Quintus Labeo, consul in 571, and Marcus Popillius, consul in 581. But it remains uncertain whether they published their poems. Even in the case of Cato this may be doubted.

53. II. IX. Roman Historical Composition

54. III. XII. Irreligious Spirit

55. III. XII. Irreligious Spirit

56. The following fragments will give some idea of its tone. Of Dido he says:

-Blande et docte percontat—Aeneas quo pacto
Troiam urbem liquerit.-

Again of Amulius:

-Manusque susum ad caelum—sustulit suas rex
Amulius; gratulatur—divis-.

Part of a speech where the indirect construction is remarkable:

-Sin illos deserant for—tissumos virorum
Magnum stuprum populo—fieri per gentis-.

With reference to the landing at Malta in 498:

-Transit Melitam Romanus—insuiam integram
Urit populatur vastat—rem hostium concinnat.-

Lastly, as to the peace which terminated the war concerning Sicily:

-Id quoque paciscunt moenia—sint Lutatium quae
Reconcilient; captivos—plurimos idem
Sicilienses paciscit—obsides ut reddant.-

57. That this oldest prose work on the history of Rome was composed in Greek, is established beyond a doubt by Dionys. i. 6, and Cicero, de Div. i. 21, 43. The Latin Annals quoted under the same name by Quintilian and later grammarians remain involved in mystery, and the difficulty is increased by the circumstance, that there is also quoted under the same name a very detailed exposition of the pontifical law in the Latin language.

But the latter treatise will not be attributed by any one, who has traced the development of Roman literature in its connection, to an author of the age of the Hannibalic war; and even Latin annals from that age appear problematical, although it must remain a moot question whether there has been a confusion of the earlier with a later annalist, Quintus Fabius Maximus Servilianus (consul in 612), or whether there existed an old Latin edition of the Greek Annals of Fabius as well as of those of Acilius and Albinus, or whether there were two annalists of the name of Fabius Pictor.

The historical work likewise written in Greek, ascribed to Lucius Cincius Alimentus a contemporary of Fabius, seems spurious and a compilation of the Augustan age.

58. Cato's whole literary activity belonged to the period of his old age (Cicero, Cat. ii, 38; Nepos, Cato, 3); the composition even of the earlier books of the "Origines" falls not before, and yet probably not long subsequent to, 586 (Plin. H. N. iii. 14, 114).

59. It is evidently by way of contrast with Fabius that Polybius (xl. 6, 4) calls attention to the fact, that Albinus, madly fond of everything Greek, had given himself the trouble of writing history systematically [—pragmatiken iotorian—].

60. II. IX. Roman Early History of Rome

61. III. XIV. Knowledge of Languages

62. For instance the history of the siege of Gabii is compiled from the anecdotes in Herodotus as to Zopyrus and the tyrant Thrasybulus, and one version of the story of the exposure of Romulus is framed on the model of the history of the youth of Cyrus as Herodotus relates it.

63. III. VII. Measures Adopted to Check the Immigration of the Transalpine Gauls

64. II. IX. Roman Early History of Rome

65. II. IX. Registers of Magistrates

66. Plautus (Mostell. 126) says of parents, that they teach their children -litteras-, -iura-, -leges-; and Plutarch (Cato Mai. 20) testifies to the same effect.

67. II. IX. Philology

68. Thus in his Epicharmian poems Jupiter is so called, -quod iuvat-; and Ceres, -quod gerit fruges.-

69. -Rem tene, verba sequentur.-

70. II. IX. Language

71. See the lines already quoted at III. II. The War on the Coasts of Sicily and Sardinia.

The formation of the name -poeta- from the vulgar Greek —poetes— instead of —poietes— —as —epoesen— was in use among the Attic potters—is characteristic. We may add that -poeta- technically denotes only the author of epic or recitative poems, not the composer for the stage, who at this time was styled -scriba- (III. XIV. Audience; Festus, s. v., p. 333 M.).

72. Even subordinate figures from the legends of Troy and of Herakles niake their appearance, e. g. Talthybius (Stich. 305), Autolycus (Bacch. 275), Parthaon (Men. 745). Moreover the most general outlines must have been known in the case of the Theban and the Argonautic legends, and of

the stories of Bellerophon (Bacch. 810), Pentheus (Merc. 467), Procne and Philomela (Rud. 604). Sappho and Phaon (Mil. 1247).

73. "As to these Greeks," he says to his son Marcus, "I shall tell at the proper place, what I came to learn regarding them at Athens; and shall show that it is useful to look into their writings, but not to study them thoroughly. They are an utterly corrupt and ungovernable race—believe me, this is true as an oracle; if that people bring hither its culture, it will ruin everything, and most especially if it send hither its physicians. They have conspired to despatch all barbarians by their physicking, but they get themselves paid for it, that people may trust them and that they may the more easily bring us to ruin. They call us also barbarians, and indeed revile us by the still more vulgar name of Opicans. I interdict thee, therefore, from all dealings with the practitioners of the healing art."

Cato in his zeal was not aware that the name of Opicans, which had in Latin an obnoxious meaning, was in Greek quite unobjectionable, and that the Greeks had in the most innocent way come to designate the Italians by that term (I. X. Time of the Greek Immigration).

74. II. IX. Censure of Art

75. III. II. War between the Romans and Carthaginians and Syracusans

76. Plautius belongs to this or to the beginning of the following period, for the inscription on his pictures (Plin. H. N. xxxv. 10, 115), being hexametrical, cannot well be older than Ennius, and the bestowal of the citizenship of Ardea must have taken place before the Social War, through which Ardea lost its independence.

End of Book III

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THE HISTORY OF ROME: BOOK IV

The Revolution

Preparer's Note

This work contains many literal citations of and references to words, sounds, and alphabetic symbols drawn from many languages, including Gothic and Phoenician, but chiefly Latin and Greek. This English language Gutenberg edition, constrained within the scope of 7-bit ASCII code, adopts the following orthographic conventions:

1) Words and phrases regarded as "foreign imports", italicized in the original text published in 1903; but which in the intervening century have become "naturalized" into English; words such as "de jure", "en masse", etc. are not given any special typographic distinction.

2) Except for Greek, all literally cited non-English words that do not refer to texts cited as academic references, words that in the source manuscript appear italicized, are rendered with a single preceding, and a single following dash; thus, -xxxx-.

3) Greek words, first transliterated into Roman alphabetic equivalents, are rendered with a preceding and a following double-dash; thus, —xxxx—. Note that in some cases the root word itself is a compound form such as xxx-xxxx, and is rendered as —xxx-xxx—

4) Simple non-ideographic references to vocalic sounds, single letters, or alphabetic diphthongs; and prefixes, suffixes, and syllabic references are represented by a single preceding dash; thus, -x, or -xxx.

5) The following refers particularly to the complex discussion of alphabetic evolution in Ch. XIV: Measuring And Writing). Ideographic references, meaning pointers to the form of representation itself rather than to its content, are represented as -"id:xxxx"-. "id:" stands for "ideograph", and indicates that the reader should form a mental picture based on the "xxxx" following the colon. "xxxx" may represent a single symbol, a word, or an attempt at a picture composed of ASCII characters. E. g. —"id:GAMMA gamma"— indicates an uppercase Greek gamma-form Followed by the form in lowercase. Some such exotic parsing as this is necessary to explain alphabetic development because a single symbol may have been used for a number of sounds in a number of languages, or even for a number of sounds in the same language at different times. Thus, -"id:GAMMA gamma" might very well refer to a Phoenician construct that in appearance resembles the form that eventually stabilized as an uppercase Greek "gamma" juxtaposed to another one of lowercase. Also, a construct such as —"id:E" indicates a symbol that in graphic form most closely resembles an ASCII uppercase "E", but, in fact, is actually drawn more crudely.

6) The numerous subheading references, of the form "XX. XX. Topic" found in the appended section of endnotes are to be taken as "proximate" rather than topical indicators. That is, the information contained in the endnote indicates primarily the location in the main text of the closest indexing "handle", a subheading, which may or may not echo congruent subject matter.

The reason for this is that in the translation from an original paged manuscript to an unpagged "cyberscroll", page numbers are lost. In this edition subheadings are the only remaining indexing "handles" of subchapter scale. Unfortunately, in some stretches of text these subheadings may be as sparse as merely one in three pages. Therefore, it would seem to make best sense to save the reader time and temper by adopting a shortest path method to indicate the desired reference.

7) Dr. Mommsen has given his dates in terms of Roman usage, A.U.C.; that is, from the founding of Rome, conventionally taken to be 753 B. C. To the end of each volume is appended a table of conversion between the two systems.

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BOOK FOURTH

The Revolution

"-Aber sie treiben's toll;
Ich furcht', es breche."
Nicht jeden Wochenschluss
Macht Gott die Zeche-.

Goethe.

CHAPTER I

The Subject Countries Down to the Times of the Gracchi

The Subjects

With the abolition of the Macedonian monarchy the supremacy of Rome not only became an established fact from the Pillars of Hercules to the mouths of the Nile and the Orontes, but, as if it were the final decree of fate, it weighed on the nations with all the pressure of an inevitable necessity, and seemed to leave them merely the choice of perishing in hopeless resistance or in hopeless endurance. If history were not entitled to insist that the earnest reader should accompany her through good and evil days, through landscapes of winter as well as of spring, the historian might be tempted to shun the cheerless task of tracing the manifold and yet monotonous turns of this struggle between superior power and utter weakness, both in the Spanish provinces already annexed to the Roman empire and in the African, Hellenic, and Asiatic territories which were still treated as clients of Rome. But, however unimportant and subordinate the individual conflicts may appear, they have collectively a deep historical significance; and, in particular, the state of things in Italy at this period only becomes intelligible in the light of the reaction which the provinces exercised over the mother-country.

Spain

Except in the territories which may be regarded as natural appendages of Italy—in which, however, the natives were still far from being completely subdued, and, not greatly to the credit of Rome, Ligurians, Sardinians, and Corsicans were continually furnishing occasion for "village triumphs"—the formal sovereignty of Rome at the commencement of this period was established only in the two Spanish provinces, which embraced the larger eastern and southern portions of the peninsula beyond the Pyrenees. We have already⁽¹⁾ attempted to describe the state of matters in the peninsula. Iberians and Celts, Phoenicians, Hellenes, and Romans were there confusedly intermingled. The most diverse kinds and stages of civilization subsisted there simultaneously and at various points crossed each other, the ancient Iberian culture side by side with utter barbarism, the civilized relations of Phoenician and Greek mercantile cities side by side with an incipient process of Latinizing, which was especially promoted by the numerous Italians employed in the silver mines and by the large standing garrison. In this respect the Roman township of Italica (near Seville) and the Latin colony of Carteia (on the bay of Gibraltar) deserve mention—the latter being the first transmarine urban community of Latin tongue and Italian constitution. Italica was founded by the elder Scipio, before he left Spain (548), for his veterans who were inclined to remain in the peninsula—probably, however, not as a burgess-community, but merely as a market-place.⁽²⁾ Carteia was founded in 583 and owed its existence to the multitude of camp-children—the offspring of Roman soldiers and Spanish slaves—who grew up as slaves *de jure* but as free Italians *de facto*, and were now manumitted on behalf of the state and constituted, along with the old inhabitants of Carteia, into a Latin colony. For nearly thirty years after the organizing of the province of the Ebro by Tiberius Sempronius Gracchus (575, 576)⁽³⁾ the Spanish provinces, on the whole, enjoyed the blessings of peace undisturbed, although mention is made of one or two expeditions against the Celtiberians and Lusitanians.

Lusitanian War

But more serious events occurred in 600. The Lusitanians, under the leadership of a chief called Punicus, invaded the Roman territory, defeated the two Roman governors who had united to oppose them, and slew a great number of their troops. The Vettones (between the Tagus and the Upper Douro) were thereby induced to make common cause with the Lusitanians; and these, thus reinforced, were enabled to extend their excursions as far as the Mediterranean, and to pillage even the territory of the Bastulo-Phoenicians not far from the Roman capital New Carthage (Cartagena). The Romans at home took the matter seriously enough to resolve on sending a consul to Spain, a step which had not been taken since 559; and, in order to accelerate the despatch of aid, they even made the new consuls enter on office two months and a half before the legal time. For this reason the day for the consuls entering on office was shifted from the 15th of March to the 1st of January; and thus was established the beginning of the year, which we still make use of at the present day. But, before the consul Quintus Fulvius Nobilior with his army arrived, a very serious encounter took place on the right bank of the Tagus between the praetor Lucius Mummius, governor of Further Spain, and the Lusitanians, now led after the fall of Punicus by his successor Caesarus (601). Fortune was at first favourable to the Romans; the Lusitanian army was broken and their camp was taken. But the Romans, partly already fatigued by their march and partly broken up in the disorder of the pursuit, were at length completely beaten by their already vanquished antagonists, and lost their own camp in addition to that of the enemy, as well as 9000 dead.

Celtiberian War

The flame of war now blazed up far and wide. The Lusitanians on the left bank of the Tagus, led by Caucaenus, threw themselves on the Celtici

subject to the Romans (in Alentejo), and took away their town Conistorgis. The Lusitanians sent the standards taken from Mummius to the Celtiberians at once as an announcement of victory and as a warning; and among these, too, there was no want of ferment. Two small Celtiberian tribes in the neighbourhood of the powerful Arevacae (about the sources of the Douro and Tagus), the Belli and the Titthi, had resolved to settle together in Segeda, one of their towns. While they were occupied in building the walls, the Romans ordered them to desist, because the Sempronian regulations prohibited the subject communities from founding towns at their own discretion; and they at the same time required the contribution of money and men which was due by treaty but for a considerable period had not been demanded. The Spaniards refused to obey either command, alleging that they were engaged merely in enlarging, not in founding, a city, and that the contribution had not been merely suspended, but remitted by the Romans. Thereupon Nobilior appeared in Hither Spain with an army of nearly 30,000 men, including some Numidian horsemen and ten elephants. The walls of the new town of Segeda still stood unfinished: most of the inhabitants submitted. But the most resolute men fled with their wives and children to the powerful Arevacae, and summoned these to make common cause with them against the Romans. The Arevacae, emboldened by the victory of the Lusitanians over Mummius, consented, and chose Carus, one of the Segedan refugees, as their general. On the third day after his election the valiant leader had fallen, but the Roman army was defeated and nearly 6000 Roman burgesses were slain; the 23rd day of August, the festival of the Volcanalia, was thenceforth held in sad remembrance by the Romans. The fall of their general, however, induced the Arevacae to retreat into their strongest town Numantia (Guarray, a Spanish league to the north of Soria on the Douro), whither Nobilior followed them. Under the walls of the town a second engagement took place, in which the Romans at first by means of their elephants drove the Spaniards back into the town; but while doing so

they were thrown into confusion in consequence of one of the animals being wounded, and sustained a second defeat at the hands of the enemy again issuing from the walls. This and other misfortunes— such as the destruction of a corps of Roman cavalry despatched to call forth the contingents—imparted to the affairs of the Romans in the Hither province so unfavourable an aspect that the fortress of Ocilis, where the Romans had their chest and their stores, passed over to the enemy, and the Arevacae were in a position to think, although without success, of dictating peace to the Romans. These disadvantages, however, were in some measure counterbalanced by the successes which Mummius achieved in the southern province. Weakened though his army was by the disaster which it had suffered, he yet succeeded with it in defeating the Lusitanians who had imprudently dispersed themselves on the right bank of the Tagus; and passing over to the left bank, where the Lusitanians had overrun the whole Roman territory, and had even made a foray into Africa, he cleared the southern province of the enemy.

Marcellus

To the northern province in the following year (602) the senate sent considerable reinforcements and a new commander-in-chief in the place of the incapable Nobilior, the consul Marcus Claudius Marcellus, who had already, when praetor in 586, distinguished himself in Spain, and had since that time given proof of his talents as a general in two consulships. His skilful leadership, and still more his clemency, speedily changed the position of affairs: Ocilis at once surrendered to him; and even the Arevacae, confirmed by Marcellus in the hope that peace would be granted to them on payment of a moderate fine, concluded an armistice and sent envoys to Rome. Marcellus could thus proceed to the southern province, where the Vettones and Lusitanians had professed submission to the praetor Marcus Atilius so long as he remained within their bounds, but after his

departure had immediately revolted afresh and chastised the allies of Rome. The arrival of the consul restored tranquillity, and, while he spent the winter in Corduba, hostilities were suspended throughout the peninsula. Meanwhile the question of peace with the Arevacae was discussed at Rome. It is a significant indication of the relations subsisting among the Spaniards themselves, that the emissaries of the Roman party subsisting among the Arevacae were the chief occasion of the rejection of the proposals of peace at Rome, by representing that, if the Romans were not willing to sacrifice the Spaniards friendly to their interests, they had no alternative save either to send a consul with a corresponding army every year to the peninsula or to make an emphatic example now. In consequence of this, the ambassadors of the Arevacae were dismissed without a decisive answer, and it was resolved that the war should be prosecuted with vigour. Marcellus accordingly found himself compelled in the following spring (603) to resume the war against the Arevacae. But—either, as was asserted, from his unwillingness to leave to his successor, who was to be expected soon, the glory of terminating the war, or, as is perhaps more probable, from his believing like Gracchus that a humane treatment of the Spaniards was the first thing requisite for a lasting peace—the Roman general after holding a secret conference with the most influential men of the Arevacae concluded a treaty under the walls of Numantia, by which the Arevacae surrendered to the Romans at discretion, but were reinstated in their former rights according to treaty on their undertaking to pay money and furnish hostages.

Lucullus

When the new commander-in-chief, the consul Lucius Lucullus, arrived at head-quarters, he found the war which he had come to conduct already terminated by a formally concluded peace, and his hopes of bringing home honour and more especially money from Spain were apparently frustrated. But there was a means of surmounting this difficulty. Lucullus of his own

accord attacked the western neighbours of the Arevacae, the Vaccae, a Celtiberian nation still independent which was living on the best understanding with the Romans. The question of the Spaniards as to what fault they had committed was answered by a sudden attack on the town of Cauca (Coca, eight Spanish leagues to the west of Segovia); and, while the terrified town believed that it had purchased a capitulation by heavy sacrifices of money, Roman troops marched in and enslaved or slaughtered the inhabitants without any pretext at all. After this heroic feat, which is said to have cost the lives of some 20,000 defenceless men, the army proceeded on its march. Far and wide the villages and townships were abandoned or, as in the case of the strong Intercatia and Pallantia (Palencia) the capital of the Vaccae, closed their gates against the Roman army. Covetousness was caught in its own net; there was no community That would venture to conclude a capitulation with the perfidious commander, and the general flight of the inhabitants not only rendered booty scarce, but made it almost impossible for him to remain for any length of time in these inhospitable regions. In front of Intercatia, Scipio Aemilianus, an esteemed military tribune, the son of the victor of Pydna and the adopted grandson of the victor of Zama, succeeded, by pledging his word of honour when that of the general no longer availed, in inducing the inhabitants to conclude an agreement by virtue of which the Roman army departed on receiving a supply of cattle and clothing. But the siege of Pallantia had to be raised for want of provisions, and the Roman army in its retreat was pursued by the Vaccae as far as the Douro. Lucullus thereupon proceeded to the southern province, where in the same year the praetor, Servius Sulpicius Galba, had allowed himself to be defeated by the Lusitanians. They spent the winter not far from each other— Lucullus in the territory of the Turdetani, Galba at Conistorgis— And in the following year (604) jointly attacked the Lusitanians. Lucullus gained some advantages over them near the straits of Gades. Galba performed a greater achievement, for he concluded a treaty

with three Lusitanian tribes on the right bank of the Tagus and promised to transfer them to better settlements; whereupon the barbarians, who to the number of 7000 came to him for the sake of the expected lands, were separated into three divisions, disarmed, and partly carried off into slavery, partly massacred. War has hardly ever been waged with so much perfidy, cruelty, and avarice as by these two generals; who yet by means of their criminally acquired treasures escaped the one from condemnation, and the other even from impeachment. The veteran Cato in his eighty-fifth year, a few months before his death, attempted to bring Galba to account before the burgesses; but the weeping children of the general, and the gold which he had brought home with him, proved to the Roman people his innocence.

Viriathus

It was not so much the inglorious successes which Lucullus and Galba had attained in Spain, as the outbreak of the fourth Macedonian and of the third Carthaginian war in 605, which induced the Romans again to leave Spanish affairs in the first instance to the ordinary governors. Accordingly the Lusitanians, exasperated rather than humbled by the perfidy of Galba, immediately overran afresh the rich territory of the Turdetani. The Roman governor Gaius Vetilius (607-8?)(4) marched against them, and not only defeated them, but drove the whole host towards a hill where it seemed lost irretrievably. The capitulation was virtually concluded, when Viriathus—a man of humble origin, who formerly, when a youth, had bravely defended his flock from wild beasts and robbers and was now in more serious conflicts a dreaded guerilla chief, and who was one of the few that had accidentally escaped from the perfidious onslaught of Galba—warned his countrymen against relying on the Roman word of honour, and promised them deliverance if they would follow him. His language and his example produced a deep effect: the army entrusted him with the supreme command. Viriathus gave orders to the mass of his men to proceed in detached parties,

by different routes, to the appointed rendezvous; he himself formed the best mounted and most trustworthy into a corps of 1000 horse, with which he covered the departure of his men. The Romans, who wanted light cavalry, did not venture to disperse for the pursuit under the eyes of the enemy's horsemen. After Viriathus and his band had for two whole days held in check the entire Roman army he suddenly disappeared during the night and hastened to the general rendezvous. The Roman general followed him, but fell into an adroitly-laid ambush, in which he lost the half of his army and was himself captured and slain; with difficulty the rest of the troops escaped to the colony of Carteia on the Straits. In all haste 5000 men of the Spanish militia were despatched from the Ebro to reinforce the defeated Romans; but Viriathus destroyed the corps while still on its march, and commanded so absolutely the whole interior of Carpetania that the Romans did not even venture to seek him there. Viriathus, now recognized as lord and king of all the Lusitanians, knew how to combine the full dignity of his princely position with the homely habits of a shepherd. No badge distinguished him from the common soldier: he rose from the richly adorned marriage-table of his father-in-law, the prince Astolpa in Roman Spain, without having touched the golden plate and the sumptuous fare, lifted his bride on horseback, and rode back with her to his mountains. He never took more of the spoil than the share which he allotted to each of his comrades. The soldier recognized the general simply by his tall figure, by his striking sallies of wit, and above all by the fact that he surpassed every one of his men in temperance as well as in toil, sleeping always in full armour and fighting in front of all in battle. It seemed as if in that thoroughly prosaic age one of the Homeric heroes had reappeared: the name of Viriathus resounded far and wide through Spain; and the brave nation conceived that in him it had at length found the man who was destined to break the fetters of alien domination.

His Successors

Extraordinary successes in northern and in southern Spain marked the next years of his generalship. After destroying the vanguard of the praetor Gaius Plautius (608-9), Viriathus had the skill to lure him over to the right bank of the Tagus, and there to defeat him so emphatically that the Roman general went into winter quarters in the middle of summer—on which account he was afterwards charged before the people with having disgraced the Roman community, and was compelled to live in exile. In like manner the army of the governor— apparently of the Hither province—Claudius Unimanus was destroyed, that of Gaius Negidius was vanquished, and the level country was pillaged far and wide. Trophies of victory, decorated with the insignia of the Roman governors and the arms of the legions, were erected on the Spanish mountains; people at Rome heard with shame and consternation of the victories of the barbarian king. The conduct of the Spanish war was now committed to a trustworthy officer, the consul Quintus Fabius Maximus Aemilianus, the second son of the victor of Pydna (609). But the Romans no longer ventured to send the experienced veterans, who had just returned from Macedonia and Asia, forth anew to the detested Spanish war; the two legions, which Maximus brought with him, were new levies and scarcely more to be trusted than the old utterly demoralized Spanish army. After the first conflicts had again issued favourably for the Lusitanians, the prudent general kept together his troops for the remainder of the year in the camp at Urso (Osuna, south-east from Seville) without accepting the enemy's offer of battle, and only took the field afresh in the following year (610), after his troops had by petty warfare become qualified for fighting; he was then enabled to maintain the superiority, and after successful feats of arms went into winter quarters at Corduba. But when the cowardly and incapable praetor Quinctius took the command in room of Maximus, the Romans again suffered defeat after defeat, and their general in the middle of summer shut himself up in Corduba, while the bands of Viriathus overran the southern province (611).

His successor, Quintus Fabius Maximus Servilianus, the adopted brother of Maximus Aemilianus, sent to the peninsula with two fresh legions and ten elephants, endeavoured to penetrate into the Lusitanian country, but after a series of indecisive conflicts and an assault on the Roman camp, which was with difficulty repulsed, found himself compelled to retreat to the Roman territory. Viriathus followed him into the province, but as his troops after the wont of Spanish insurrectionary armies suddenly melted away, he was obliged to return to Lusitania (612). Next year (613) Servilianus resumed the offensive, traversed the districts on the Baetis and Anas, and then advancing into Lusitania occupied a number of townships. A large number of the insurgents fell into his hands; the leaders—of whom there were about 500—were executed; those who had gone over from Roman territory to the enemy had their hands cut off; the remaining mass were sold into slavery. But on this occasion also the Spanish war proved true to its fickle and capricious character. After all these successes the Roman army was attacked by Viriathus while it was besieging Erisane, defeated, and driven to a rock where it was wholly in the power of the enemy. Viriathus, however, was content, like the Samnite general formerly at the Caudine passes, to conclude a peace with Servilianus, in which the community of the Lusitanians was recognized as sovereign and Viriathus acknowledged as its king. The power of the Romans had not risen more than the national sense of honour had sunk; in the capital men were glad to be rid of the irksome war, and the senate and people ratified the treaty. But Quintus Servilius Caepio, the full brother of Servilianus and his successor in office, was far from satisfied with this complaisance; and the senate was weak enough at first to authorize the consul to undertake secret machinations against Viriathus, and then to view at least with indulgence the open breach of his pledged word for which there was no palliation. So Caepio invaded Lusitania, and traversed the land as far as the territories of the Vettones and Callaeci; Viriathus declined a conflict with the superior

force, and by dexterous movements evaded his antagonist (614). But when in the ensuing year (615) Caepio renewed the attack, and in addition the army, which had in the meantime become available in the northern province, made its appearance under Marcus Popillius in Lusitania, Viriathus sued for peace on any terms. He was required to give up to the Romans all who had passed over to him from the Roman territory, amongst whom was his own father-in-law; he did so, and the Romans ordered them to be executed or to have their hands cut off. But this was not sufficient; the Romans were not in the habit of announcing to the vanquished all at once their destined fate.

His Death

One behest after another was issued to the Lusitanians, each successive demand more intolerable than its predecessors; and at length they were required even to surrender their arms. Then Viriathus recollected the fate of his countrymen whom Galba had caused to be disarmed, and grasped his sword afresh. But it was too late. His wavering had sown the seeds of treachery among those who were immediately around him; three of his confidants, Audas, Ditalco, and Minucius from Urso, despairing of the possibility of renewed victory, procured from the king permission once more to enter into negotiations for peace with Caepio, and employed it for the purpose of selling the life of the Lusitanian hero to the foreigners in return for the assurance of personal amnesty and further rewards. On their return to the camp they assured the king of the favourable issue of their negotiations, and in the following night stabbed him while asleep in his tent. The Lusitanians honoured the illustrious chief by an unparalleled funeral solemnity at which two hundred pairs of champions fought in the funeral games; and still more highly by the fact, that they did not renounce the struggle, but nominated Tautamus as their commander-in-chief in room of the fallen hero. The plan projected by the latter for wresting Saguntum

from the Romans was sufficiently bold; but the new general possessed neither the wise moderation nor the military skill of his predecessor. The expedition utterly broke down, and the army on its return was attacked in crossing the Baetis and compelled to surrender unconditionally. Thus was Lusitania subdued, far more by treachery and assassination on the part of foreigners and natives than by honourable war.

Numantia

While the southern province was scourged by Viriathus and the Lusitanians, a second and not less serious war had, not without their help, broken out in the northern province among the Celtiberian nations. The brilliant successes of Viriathus induced the Arevacae likewise in 610 to rise against the Romans; and for this reason the consul Quintus Caecilius Metellus, who was sent to Spain to relieve Maximus Aemilianus, did not proceed to the southern province, but turned against the Celtiberians. In the contest with them, and more especially during the siege of the town of Contrebia which was deemed impregnable, he showed the same ability which he had displayed in vanquishing the Macedonian pretender; after his two years' administration (611, 612) the northern province was reduced to obedience. The two towns of Termantia and Numantia alone had not yet opened their gates to the Romans; but in their case also a capitulation had been almost concluded, and the greater part of the conditions had been fulfilled by the Spaniards. When required, however, to deliver up their arms, they were restrained like Viriathus by their genuine Spanish pride in the possession of a well-wielded sword, and they resolved to continue the war under the daring Megaravicus. It seemed folly: the consular army, the command of which was taken up in 613 by the consul Quintus Pompeius, was four times as numerous as the whole population capable of bearing arms in Numantia. But the general, who was wholly unacquainted with war, sustained defeats so severe under the walls of the two cities (613, 614), that

he preferred at length to procure by means of negotiations the peace which he could not compel. With Termantia a definitive agreement must have taken place. In the case of the Numantines the Roman general liberated their captives, and summoned the community under the secret promise of favourable treatment to surrender to him at discretion. The Numantines, weary of the war, consented, and the general actually limited his demands to the smallest possible measure. Prisoners of war, deserters, and hostages were delivered up, and the stipulated sum of money was mostly paid, when in 615 the new general Marcus Popillius Laenas arrived in the camp. As soon as Pompeius saw the burden of command devolve on other shoulders, he, with a view to escape from the reckoning that awaited him at Rome for a peace which was according to Roman ideas disgraceful, lighted on the expedient of not merely breaking, but of disowning his word; and when the Numantines came to make their last payment, in the presence of their officers and his own he flatly denied the conclusion of the agreement. The matter was referred for judicial decision to the senate at Rome. While it was discussed there, the war before Numantia was suspended, and Laenas occupied himself with an expedition to Lusitania where he helped to accelerate the catastrophe of Viriathus, and with a foray against the Lusones, neighbours of the Numantines. When at length the decision of the senate arrived, its purport was that the war should be continued—the state became thus a party to the knavery of Pompeius.

Mancinus

With unimpaired courage and increased resentment the Numantines resumed the struggle; Laenas fought against them unsuccessfully, nor was his successor Gaius Hostilius Mancinus more fortunate (617). But the catastrophe was brought about not so much by the arms of the Numantines, as by the lax and wretched military discipline of the Roman generals and by—what was its natural consequence—the annually-increasing

dissoluteness, insubordination, and cowardice of the Roman soldiers. The mere rumour, which moreover was false, that the Cantabri and Vaccaeii were advancing to the relief of Numantia, induced the Roman army to evacuate the camp by night without orders, and to seek shelter in the entrenchments constructed sixteen years before by Nobilior.⁽⁵⁾ The Numantines, informed of their sudden departure, hotly pursued the fugitive army, and surrounded it: there remained to it no choice save to fight its way with sword in hand through the enemy, or to conclude peace on the terms laid down by the Numantines. Although the consul was personally a man of honour, he was weak and little known. Tiberius Gracchus, who served in the army as quaestor, had more influence with the Celtiberians from the hereditary respect in which he was held on account of his father who had so wisely organized the province of the Ebro, and induced the Numantines to be content with an equitable treaty of peace sworn to by all the staff-officers. But the senate not only recalled the general immediately, but after long deliberation caused a proposal to be submitted to the burgesses that the convention should be treated as they had formerly treated that of Caudium, in other words, that they should refuse to ratify it and should devolve the responsibility for it on those by whom it had been concluded. By right this category ought to have included all the officers who had sworn to the treaty; but Gracchus and the others were saved by their connections. Mancinus alone, who did not belong to the circles of the highest aristocracy, was destined to pay the penalty for his own and others' guilt. Stripped of his insignia, the Roman consular was conducted to the enemy's outposts, and, when the Numantines refused to receive him that they might not on their part acknowledge the treaty as null, the late commander-in-chief stood in his shirt and with his hands tied behind his back for a whole day before the gates of Numantia, a pitiful spectacle to friend and foe. Yet the bitter lesson seemed utterly lost on the successor of Mancinus, his colleague in the consulship, Marcus Aemilius Lepidus. While the discussions as to the treaty

with Mancinus were pending in Rome, he attacked the free people of the Vaccaeii under frivolous pretexts just as Lucullus had done sixteen years before, and began in concert with the general of the Further province to besiege Pallantia (618). A decree of the senate enjoined him to desist from the war; nevertheless, under the pretext that the circumstances had meanwhile changed, he continued the siege. In doing so he showed himself as bad a soldier as he was a bad citizen. After lying so long before the large and strong city that his supplies in that rugged and hostile country failed, he was obliged to leave behind all the sick and wounded and to undertake a retreat, in which the pursuing Pallantines destroyed half of his soldiers, and, if they had not broken off the pursuit too early, would probably have utterly annihilated the Roman army, which was already in full course of dissolution. For this conduct a fine was imposed on the high-born general at his return. His successors Lucius Furius Philus (618) and Gaius Calpurnius Piso (619) had again to wage war against the Numantines; and, inasmuch as they did nothing at all, they fortunately came home without defeat.

Scipio Aemilianus

Even the Roman government began at length to perceive that matters could no longer continue on this footing; they resolved to entrust the subjugation of the small Spanish country-town, as an extraordinary measure, to the first general of Rome, Scipio Aemilianus. The pecuniary means for carrying on the war were indeed doled out to him with preposterous parsimony, and the permission to levy soldiers, which he asked, was even directly refused—a result towards which coterie-intrigues and the fear of being burdensome to the sovereign people may have cooperated. But a great number of friends and clients voluntarily accompanied him; among them was his brother Maximus Aemilianus, whose years before had commanded with distinction against Viriathus. Supported by this trusty band, which was formed into a guard for the general, Scipio began to

reorganize the deeply disordered army (620). First of all, the camp-followers had to take their departure—there were found as many as 2000 courtesans, and an endless number of soothsayers and priests of all sorts—and, if the soldier was not available for fighting, he had at least to work in the trenches and to march. During the first summer the general avoided any conflict with the Numantines; he contented himself with destroying the stores in the surrounding country, and with chastising the Vaccaeii who sold corn to the Numantines, and compelling them to acknowledge the supremacy of Rome. It was only towards winter that Scipio drew together his army round Numantia. Besides the Numidian contingent of horsemen, infantry, and twelve elephants led by the prince Jugurtha, and the numerous Spanish contingents, there were four legions, in all a force of 60,000 men investing a city whose citizens capable of bearing arms did not exceed 8000 at the most. Nevertheless the besieged frequently offered battle; but Scipio, perceiving clearly that the disorganization of many years was not to be repaired all at once, refused to accept it, and, when conflicts did occur in connection with the sallies of the besieged, the cowardly flight of the legionaries, checked with difficulty by the appearance of the general in person, justified such tactics only too forcibly. Never did a general treat his soldiers more contemptuously than Scipio treated the Numantine army; and he showed his opinion of it not only by bitter speeches, but above all by his course of action. For the first time the Romans waged war by means of mattock and spade, where it depended on themselves alone whether they should use the sword. Around the whole circuit of the city wall, which was nearly three miles in length, there was constructed a double line of circumvallation of twice that extent, provided with walls, towers, and ditches; and the river Douro, by which at first some supplies had reached the besieged through the efforts of bold boatmen and divers, was at length closed. Thus the town, which they did not venture to assault, could not well fail to be reduced through famine; the more so, as it had not been possible

for the citizens to lay in provisions during the last summer. The Numantines soon suffered from want of everything. One of their boldest men, Retogenes, cut his way with a few companions through the lines of the enemy, and his touching entreaty that kinsmen should not be allowed to perish without help produced a great effect in Lutia at least, one of the towns of the Arevacae. But before the citizens of Lutia had come to a decision, Scipio, having received information from the partisans of Rome in the town, appeared with a superior force before its walls, and compelled the authorities to deliver up to him the leaders of the movement, 400 of the flower of the youth, whose hands were all cut off by order of the Roman general. The Numantines, thus deprived of their last hope, sent to Scipio to negotiate as to their submission and called on the brave man to spare the brave; but when the envoys on their return announced that Scipio required unconditional surrender, they were torn in pieces by the furious multitude, and a fresh term elapsed before famine and pestilence had completed their work. At length a second message was sent to the Roman headquarters, that the town was now ready to submit at discretion. When the citizens were accordingly instructed to appear on the following day before the gates, they asked for some days delay, to allow those of their number who had determined not to survive the loss of liberty time to die. It was granted, and not a few took advantage of it. At last the miserable remnant appeared before the gates. Scipio chose fifty of the most eminent to form part of his triumphal procession; the rest were sold into slavery, the city was levelled with the ground, and its territory was distributed among the neighbouring towns. This occurred in the autumn of 621, fifteen months after Scipio had assumed the chief command.

The fall of Numantia struck at the root of the opposition that was still here and there stirring against Rome; military demonstrations and the imposition of fines sufficed to secure the acknowledgment of the Roman supremacy in all Hither Spain.

The Callaeci Conquered

New Organization of Spain

In Further Spain the Roman dominion was confirmed and extended by the subjugation of the Lusitanians. The consul Decimus Junius Brutus, who came in Caepio's room, settled the Lusitanian war-captives in the neighbourhood of Saguntum, and gave to their new town Valentia (Valencia), like Carteia, a Latin constitution (616); he moreover (616-618) traversed the Iberian west coast in various directions, and was the first of the Romans to reach the shore of the Atlantic Ocean. The towns of the Lusitanians dwelling there, which were obstinately defended by their inhabitants, both men and women, were subdued by him; and the hitherto independent Callaeci were united with the Roman province after a great battle, in which 50,000 of them are said to have fallen. After the subjugation of the Vaccae, Lusitanians, and Callaeci, the whole peninsula, with the exception of the north coast, was now at least nominally subject to the Romans.

A senatorial commission was sent to Spain in order to organize, in concert with Scipio, the newly-won provincial territory after the Roman method; and Scipio did what he could to obviate the effects of the infamous and stupid policy of his predecessors. The Caucani for instance, whose shameful maltreatment by Lucullus he had been obliged to witness nineteen years before when a military tribune, were invited by him to return to their town and to rebuild it. Spain began again to experience more tolerable times. The suppression of piracy, which found dangerous lurking-places in the Baleares, through the occupation of these islands by Quintus Caecilius Metellus in 631, was singularly conducive, to the prosperity of Spanish commerce; and in other respects also the fertile islands, inhabited by a dense population which was unsurpassed in the use of the sling, were a valuable possession. How numerous the Latin-speaking population in the

peninsula was even then, is shown by the settlement of 3000 Spanish Latins in the towns of Palma and Pollentia (Pollenza) in the newly-acquired islands. In spite of various grave evils the Roman administration of Spain preserved on the whole the stamp which the Catonian period, and primarily Tiberius Gracchus, had impressed on it. It is true that the Roman frontier territory had not a little to suffer from the inroads of the tribes, but half subdued or not subdued at all, on the north and west. Among the Lusitanians in particular the poorer youths regularly congregated as banditti, and in large gangs levied contributions from their countrymen or their neighbours, for which reason, even at a much later period, the isolated homesteads in this region were constructed in the style of fortresses, and were, in case of need, capable of defence; nor did the Romans succeed in putting an end to these predatory habits in the inhospitable and almost inaccessible Lusitanian mountains. But what had previously been wars assumed more and more the character of brigandage, which every tolerably efficient governor was able to repress with his ordinary resources; and in spite of such inflictions on the border districts Spain was the most flourishing and best-organized country in all the Roman dominions; the system of tenths and the middlemen were there unknown; the population was numerous, and the country was rich in corn and cattle.

The Protected States

Far more insupportable was the condition—intermediate between formal sovereignty and actual subjection—of the African, Greek, and Asiatic states which were brought within the sphere of Roman hegemony through the wars of Rome with Carthage, Macedonia, and Syria, and their consequences. An independent state does not pay too dear a price for its independence in accepting the sufferings of war when it cannot avoid them; a state which has lost its independence may find at least some compensation in the fact that its protector procures for it peace with its neighbours. But

these client states of Rome had neither independence nor peace. In Africa there practically subsisted a perpetual border-war between Carthage and Numidia. In Egypt Roman arbitration had settled the dispute as to the succession between the two brothers Ptolemy Philometor and Ptolemy the Fat; nevertheless the new rulers of Egypt and Cyrene waged war for the possession of Cyprus. In Asia not only were most of the kingdoms—Bithynia, Cappadocia, Syria—likewise torn by internal quarrels as to the succession and by the interventions of neighbouring states to which these quarrels gave rise, but various and severe wars were carried on between the Attalids and the Galatians, between the Attalids and the kings of Bithynia, and even between Rhodes and Crete. In Hellas proper, in like manner, the pigmy feuds which were customary there continued to smoulder; and even Macedonia, formerly so tranquil, consumed its strength in the intestine strife that arose out of its new democratic constitutions. It was the fault of the rulers as well as the ruled, that the last vital energies and the last prosperity of the nations were expended in these aimless feuds. The client states ought to have perceived that a state which cannot wage war against every one cannot wage war at all, and that, as the possessions and power enjoyed by all these states were practically under Roman guarantee, they had in the event of any difference no alternative but to settle the matter amicably with their neighbours or to call in the Romans as arbiters. When the Achaean diet was urged by the Rhodians and Cretans to grant them the aid of the league, and seriously deliberated as to sending it (601), it was simply a political farce; the principle which the leader of the party friendly to Rome then laid down—that the Achaeans were no longer at liberty to wage war without the permission of the Romans—expressed, doubtless with disagreeable precision, the simple truth that the sovereignty of the dependent states was merely a formal one, and that any attempt to give life to the shadow must necessarily lead to the destruction of the shadow itself. But the ruling community deserves a censure more severe than that directed

against the ruled. It is no easy task for a man—any more than for a state—to own to insignificance; it is the duty and right of the ruler either to renounce his authority, or by the display of an imposing material superiority to compel the ruled to resignation. The Roman senate did neither. Invoked and importuned on all hands, the senate interfered incessantly in the course of African, Hellenic, Asiatic, and Egyptian affairs; but it did so after so inconstant and loose a fashion, that its attempts to settle matters usually only rendered the confusion worse. It was the epoch of commissions. Commissioners of the senate were constantly going to Carthage and Alexandria, to the Achaean diet, and to the courts of the rulers of western Asia; they investigated, inhibited, reported, and yet decisive steps were not unfrequently taken in the most important matters without the knowledge, or against the wishes, of the senate. It might happen that Cyprus, for instance, which the senate had assigned to the kingdom of Cyrene, was nevertheless retained by Egypt; that a Syrian prince ascended the throne of his ancestors under the pretext that he had obtained a promise of it from the Romans, while the senate had in fact expressly refused to give it to him, and he himself had only escaped from Rome by breaking their interdict; that even the open murder of a Roman commissioner, who under the orders of the senate administered as guardian the government of Syria, passed totally unpunished. The Asiatics were very well aware that they were not in a position to resist the Roman legions; but they were no less aware that the senate was but little inclined to give the burgesses orders to march for the Euphrates or the Nile. Thus the state of these remote countries resembled that of the schoolroom when the teacher is absent or lax; and the government of Rome deprived the nations at once of the blessings of freedom and of the blessings of order. For the Romans themselves, moreover, this state of matters was so far perilous that it to a certain extent left their northern and eastern frontier exposed. In these quarters kingdoms might be formed by the aid of the inland countries situated beyond the

limits of the Roman hegemony and in antagonism to the weak states under Roman protection, without Rome being able directly or speedily to interfere, and might develop a power dangerous to, and entering sooner or later into rivalry with, Rome. No doubt the condition of the bordering nations—everywhere split into fragments and nowhere favourable to political development on a great scale—formed some sort of protection against this danger; yet we very clearly perceive in the history of the east, that at this period the Euphrates was no longer guarded by the phalanx of Seleucus and was not yet watched by the legions of Augustus. It was high time to put an end to this state of indecision. But the only possible way of ending it was by converting the client states into Roman provinces. This could be done all the more easily, that the Roman provincial constitution in substance only concentrated military power in the hands of the Roman governor, while administration and jurisdiction in the main were, or at any rate were intended to be, retained by the communities, so that as much of the old political independence as was at all capable of life might be preserved in the form of communal freedom. The necessity for this administrative reform could not well be mistaken; the only question was, whether the senate would delay and mar it, or whether it would have the courage and the power clearly to discern and energetically to execute what was needful.

Carthage and Numidia

Let us first glance at Africa. The order of things established by the Romans in Libya rested in substance on a balance of power between the Nomad kingdom of Massinissa and the city of Carthage. While the former was enlarged, confirmed, and civilized under the vigorous and sagacious government of Massinissa,(6) Carthage in consequence simply of a state of peace became once more, at least in wealth and population, what it had been at the height of its political power. The Romans saw with ill-concealed

and envious fear the apparently indestructible prosperity of their old rival; while hitherto they had refused to grant to it any real protection against the constantly continued encroachments of Massinissa, they now began openly to interfere in favour of the neighbouring prince. The dispute which had been pending for more than thirty years between the city and the king as to the possession of the province of Emporia on the Lesser Syrtis, one of the most fertile in the Carthaginian territory, was at length (about 594) decided by Roman commissioners to the effect that the Carthaginians should evacuate those towns of Eniporia which still remained in their possession, and should pay 500 talents (120,000 pounds) to the king as compensation for the illegal enjoyment of the territory. The consequence was, that Massinissa immediately seized another Carthaginian district on the western frontier of their territory, the town of Tusca and the great plains near the Bagradas; no course was left to the Carthaginians but to commence another hopeless process at Rome. After long and, beyond doubt, intentional delay a second commission appeared in Africa (597); but, when the Carthaginians were unwilling to commit themselves unconditionally to a decision to be pronounced by it as arbiter without an exact preliminary investigation into the question of legal right, and insisted on a thorough discussion of the latter question, the commissioners without further ceremony returned to Rome.

The Destruction of Carthage Resolved on at Rome

The question of right between Carthage and Massinissa thus remained unsettled; but the mission gave rise to a more important decision. The head of this commission had been the old Marcus Cato, at that time perhaps the most influential man in the senate, and, as a veteran survivor from the Hannibalic war, still filled with thorough hatred and thorough dread of the Phoenicians. With surprise and jealousy Cato had seen with his own eyes the flourishing state of the hereditary foes of Rome, the luxuriant country

and the crowded streets, the immense stores of arms in the magazines and the rich materials for a fleet; already he in spirit beheld a second Hannibal wielding all these resources against Rome. In his honest and manly, but thoroughly narrow-minded, fashion, he came to the conclusion that Rome could not be secure until Carthage had disappeared from the face of the earth, and immediately after his return set forth this view in the senate. Those of the aristocracy whose ideas were more enlarged, and especially Scipio Nasica, opposed this paltry policy with great earnestness; and showed how blind were the fears entertained regarding a mercantile city whose Phoenician inhabitants were becoming more and more disused to warlike arts and ideas, and how the existence of that rich commercial city was quite compatible with the political supremacy of Rome. Even the conversion of Carthage into a Roman provincial town would have been practicable, and indeed, compared with the present condition of the Phoenicians, perhaps even not unwelcome. Cato, however, desired not the submission, but the destruction of the hated city. His policy, as it would seem, found allies partly in the statesmen who were inclined to bring the transmarine territories into immediate dependence on Rome, partly and especially in the mighty influence of the Roman bankers and great capitalists on whom, after the destruction of the rich moneyed and mercantile city, its inheritance would necessarily devolve. The majority resolved at the first fitting opportunity—respect for public opinion required that they should wait for such—to bring about war with Carthage, or rather the destruction of the city.

War between Massinissa and Carthage

The desired occasion was soon found. The provoking violations of right on the part of Massinissa and the Romans brought to the helm in Carthage Hasdrubal and Carthalo, the leaders of the patriotic party, which was not indeed, like the Achaean, disposed to revolt against the Roman supremacy,

but was at least resolved to defend, if necessary, by arms against Massinissa the rights belonging by treaty to the Carthaginians. The patriots ordered forty of the most decided partisans of Massinissa to be banished from the city, and made the people swear that they would on no account ever permit their return; at the same time, in order to repel the attacks that might be expected from Massinissa, they formed out of the free Numidians a numerous army under Arcobarzanes, the grandson of Syphax (about 600). Massinissa, however, was prudent enough not to take arms now, but to submit himself unconditionally to the decision of the Romans respecting the disputed territory on the Bagradas; and thus the Romans could assert with some plausibility that the Carthaginian preparations must have been directed against them, and could insist on the immediate dismissal of the army and destruction of the naval stores. The Carthaginian senate was disposed to consent, but the multitude prevented the execution of the decree, and the Roman envoys, who had brought this order to Carthage, were in peril of their lives. Massinissa sent his son Gulussa to Rome to report the continuance of the Carthaginian warlike preparations by land and sea, and to hasten the declaration of war. After a further embassy of ten men had confirmed the statement that Carthage was in reality arming (602), the senate rejected the demand of Cato for an absolute declaration of war, but resolved in a secret sitting that war should be declared if the Carthaginians would not consent to dismiss their army and to burn their materials for a fleet. Meanwhile the conflict had already begun in Africa. Massinissa had sent back the men whom the Carthaginians had banished, under the escort of his son Gulussa, to the city. When the Carthaginians closed their gates against them and killed also some of the Numidians returning home, Massinissa put his troops in motion, and the patriot party in Carthage also prepared for the struggle. But Hasdrubal, who was placed at the head of their army, was one of the usual army-destroyers whom the Carthaginians were in the habit of employing as generals; strutting about in his general's

purple like a theatrical king, and pampering his portly person even in the camp, that vain and unwieldy man was little fitted to render help in an exigency which perhaps even the genius of Hamilcar and the arm of Hannibal could have no longer averted. Before the eyes of Scipio Aemilianus, who at that time a military tribune in the Spanish army, had been sent to Massinissa to bring over African elephants for his commander, and who on this occasion looked down on the conflict from a mountain "like Zeus from Ida," the Carthaginians and Numidians fought a great battle, in which the former, though reinforced by 6000 Numidian horsemen brought to them by discontented captains of Massinissa, and superior in number to the enemy, were worsted. After this defeat the Carthaginians offered to make cessions of territory and payments of money to Massinissa, and Scipio at their solicitation attempted to bring about an agreement; but the project of peace was frustrated by the refusal of the Carthaginian patriots to surrender the deserters. Hasdrubal, however, closely hemmed in by the troops of his antagonist, was compelled to grant to the latter all that he demanded—the surrender of the deserters, the return of the exiles, the delivery of arms, the marching off under the yoke, the payment of 100 talents (24,000 pounds) annually for the next fifty years. But even this agreement was not kept by the Numidians; on the contrary the disarmed remnant of the Carthaginian army was cut to pieces by them on the way home.

Declaration of War by Rome

The Romans, who had carefully abstained from preventing the war itself by seasonable interposition, had now what they wished: namely, A serviceable pretext for war—for the Carthaginians had certainly Now transgressed the stipulations of the treaty, that they should not wage war against the allies of Rome or beyond their own bounds(7)— and an antagonist already beaten beforehand. The Italian contingents were already

summoned to Rome, and the ships were assembled; the declaration of war might issue at any moment. The Carthaginians made every effort to avert the impending blow. Hasdrubal and Carthalo, the leaders of the patriot party, were condemned to death, and an embassy was sent to Rome to throw the responsibility on them. But at the same time envoys from Utica, the second city of the Libyan Phoenicians, arrived there with full powers to surrender their Community wholly to the Romans—compared with such obliging submissiveness, it seemed almost an insolence that the Carthaginians had rested content with ordering, unbidden, the execution of their most eminent men. The senate declared that the excuse of the Carthaginians was found insufficient; to the question, what in that case would suffice, the reply was given that the Carthaginians knew that themselves. They might, no doubt, have known what the Romans wished; but yet it seemed impossible to believe that the last hour of their loved native city had really come. Once more Carthaginian envoys—on this occasion thirty in number and with unlimited powers—were sent to Rome. When they arrived, war was already declared (beginning of 605), and the double consular army had embarked. Yet they even now attempted to dispel the storm by complete submission. The senate replied that Rome was ready to guarantee to the Carthaginian community its territory, its municipal freedom and its laws, its public and private property, provided that it would furnish to the consuls who had just departed for Sicily within the space of a month at Lilybaeum 300 hostages from the children of the leading families, and would fulfil the further orders which the consuls in conformity with their instructions should issue to them. The reply has been called ambiguous; but very erroneously, as even at the time clearsighted men among the Carthaginians themselves pointed out. The circumstance that everything which they could ask was guaranteed with the single exception of the city, and that nothing was said as to stopping the embarkation of the troops for Africa, showed very clearly what the Roman intentions were; the

senate acted with fearful harshness, but it did not assume the semblance of concession. The Carthaginians, however, would not open their eyes; there was no statesman found, who had the power to move the unstable multitude of the city either to thorough resistance or to thorough resignation. When they heard at the same time of the horrible decree of war and of the endurable demand for hostages, they complied immediately with the latter, and still clung to hope, because they had not the courage fully to realize the import of surrendering themselves beforehand to the arbitrary will of a mortal foe. The consuls sent back the hostages from Lilybaeum to Rome, and informed the Carthaginian envoys that they would learn further particulars in Africa. The landing was accomplished without resistance, and the provisions demanded were supplied. When the gerusia of Carthage appeared in a body at the head-quarters in Utica to receive the further orders, the consuls required in the first instance the disarming of the city. To the question of the Carthaginians, who was in that case to protect them even against their own emigrants— against the army, which had swelled to 20,000 men, under the command of Husdrubal who had saved himself from the sentence of death by flight—it was replied, that this would be the concern of the Romans. Accordingly the council of the city obsequiously appeared before the consuls, with all their fleet-material, all the military stores of the public magazines, all the arms that were found in the possession of private persons—to the number of 3000 catapults and 200,000 sets of armour—and inquired whether anything more was desired. Then the consul Lucius Marcius Censorinus rose and announced to the council, that in accordance with the instructions given by the senate the existing city was to be destroyed, but that the inhabitants were at liberty to settle anew in their territory wherever they chose, provided it were at a distance of at least ten miles from the sea.

Resistance of the Carthaginians

This fearful command aroused in the Phoenicians all the—shall we say magnanimous or frenzied?—enthusiasm, which was displayed previously by the Tyrians against Alexander, and subsequently by the Jews against Vespasian. Unparalleled as was the patience with which this nation could endure bondage and oppression, as unparalleled was now the furious rising of that mercantile and seafaring population, when the things at stake were not the state and freedom, but the beloved soil of their ancestral city and their venerated and dear home beside the sea. Hope and deliverance were out of the question; political discretion enjoined even now an unconditional submission. But the voice of the few who counselled the acceptance of what was inevitable was, like the call of the pilot during a hurricane, drowned amidst the furious yells of the multitude; which, in its frantic rage, laid hands on the magistrates of the city who had counselled the surrender of the hostages and arms, made such of the innocent bearers of the news as had ventured at all to return home expiate their terrible tidings, and tore in pieces the Italians who chanced to be sojourning in the city by way of avenging beforehand, at least on them, the destruction of its native home. No resolution was passed to defend themselves; unarmed as they were, this was a matter of course. The gates were closed; stones were carried to the battlements of the walls that had been stripped of the catapults; the chief command was entrusted to Hasdrubal, the grandson of Massinissa; the slaves in a body were declared free. The army of refugees under the fugitive Hasdrubal—which was in possession of the whole Carthaginian territory with the exception of the towns on the east coast occupied by the Romans, viz. Hadrumetum, Little Leptis, Thapsus and Achulla, and the city of Utica, and offered an invaluable support for the defence—was entreated not to refuse its aid to the commonwealth in this dire emergency. At the same time, concealing in true Phoenician style the most unbounded resentment under the cloak of humility, they attempted to deceive the enemy. A message was sent to the consuls to request a thirty days' armistice for the

despatch of an embassy to Rome. The Carthaginians were well aware that the generals neither would nor could grant this request, which had been refused once already; but the consuls were confirmed by it in the natural supposition that after the first outbreak of despair the utterly defenceless city would submit, and accordingly postponed the attack. The precious interval was employed in preparing catapults and armour; day and night all, without distinction of age or sex, were occupied in constructing machines and forging arms; the public buildings were torn down to procure timber and metal; women cut off their hair to furnish the strings indispensable for the catapults; in an incredibly short time the walls and the men were once more armed. That all this could be done without the consuls, who were but a few miles off, learning anything of it, is not the least marvellous feature in this marvellous movement sustained by a truly enthusiastic, and in fact superhuman, national hatred. When at length the consuls, weary of waiting, broke up from their camp at Utica, and thought that they should be able to scale the bare walls with ladders, they found to their surprise and horror the battlements crowned anew with catapults, and the large populous city which they had hoped to occupy like an open village, able and ready to defend itself to the last man.

Situation of Carthage

Carthage was rendered very strong both by the nature of its situation(8) and by the art of its inhabitants, who had very often to depend on the protection of its walls. Into the broad gulf of Tunis, which is bounded on the west by Cape Farina and on the east by Cape Bon, there projects in a direction from west to east a promontory, which is encompassed on three sides by the sea and is connected with the mainland only towards the west. This promontory, at its narrowest part only about two miles broad and on the whole flat, again expands towards the gulf, and terminates there in the two heights of Jebel-Khawi and Sidi bu Said, between which extends the

plain of El Mersa. On its southern portion which ends in the height of Sidi bu Said lay the city of Carthage. The pretty steep declivity of that height towards the gulf and its numerous rocks and shallows gave natural strength to the side of the city next to the gulf, and a simple circumvallation was sufficient there. On the wall along the west or landward side, on the other hand, where nature afforded no protection, every appliance within the power of the art of fortification in those times was expended. It consisted, as its recently discovered remains exactly tallying with the description of Polybius have shown, of an outer wall 6 1/2 feet thick and immense casemates attached to it behind, probably along its whole extent; these were separated from the outer wall by a covered way 6 feet broad, and had a depth of 14 feet, exclusive of the front and back walls, each of which was fully 3 feet broad.(9) This enormous wall, composed throughout of large hewn blocks, rose in two stories, exclusive of the battlements and the huge towers four stories high, to a height of 45 feet,(10) and furnished in the lower range of the casemates stables and provender-stores for 300 elephants, in the upper range stalls for horses, magazines, and barracks.(11) The citadel-hill, the Byrsa (Syriac, birtha = citadel), a comparatively considerable rock having a height of 188 feet and at its base a circumference of fully 2000 double paces,(12) was joined to this wall at its southern end, just as the rock-wall of the Capitol was joined to the city-wall of Rome. Its summit bore the huge temple of the God of Healing, resting on a basement of sixty steps. The south side of the city was washed partly by the shallow lake of Tunes towards the south-west, which was separated almost wholly from the gulf by a narrow and low tongue of land running southwards from the Carthaginian peninsula,(13) partly by the open gulf towards the south-east. At this last spot was situated the double harbour of the city, a work of human hands; the outer or commercial harbour, a longish rectangle with the narrow end turned to the sea, from whose entrance, only 70 feet wide, broad quays stretched along the water on both sides, and the

inner circular war-harbour, the Cothon,(14) with the island containing the admiral's house in the middle, which was approached through the outer harbour. Between the two passed the city wall, which turning eastward from the Byrsa excluded the tongue of land and the outer harbour, but included the war-harbour, so that the entrance to the latter must be conceived as capable of being closed like a gate. Not far from the war-harbour lay the marketplace, which was connected by three narrow streets with the citadel open on the side towards the town. To the north of, and beyond, the city proper, the pretty considerable space of the modern El Mersa, even at that time occupied in great part by villas and well-watered gardens, and then called Magalia, had a circumvallation of its own joining on to the city wall. On the opposite point of the peninsula, the Jebel-Khawi near the modern village of Ghamart, lay the necropolis. These three—the old city, the suburb, and the necropolis—together filled the whole breadth of the promontory on its side next the gulf, and were only accessible by the two highways leading to Utica and Tunes along that narrow tongue of land, which, although not closed by a wall, yet afforded a most advantageous position for the armies taking their stand under the protection of the capital with the view of protecting it in return.

The difficult task of reducing so well fortified a city was rendered still more difficult by the fact, that the resources of the capital itself and of its territory which still included 800 townships and was mostly under the power of the emigrant party on the one hand, and the numerous tribes of the free or half-free Libyans hostile to Massinissa on the other, enabled the Carthaginians simultaneously with their defence of the city to keep a numerous army in the field— an army which, from the desperate temper of the emigrants and the serviceableness of the light Numidian cavalry, the besiegers could not afford to disregard.

The Siege

The consuls accordingly had by no means an easy task to perform, when they now found themselves compelled to commence a regular siege. Manius Manilius, who commanded the land army, pitched his camp opposite the wall of the citadel, while Lucius Censorinus stationed himself with the fleet on the lake and there began operations on the tongue of land. The Carthaginian army, under Hasdrubal, encamped on the other side of the lake near the fortress of Nephheris, whence it obstructed the labours of the Roman soldiers despatched to cut timber for constructing machines, and the able cavalry-leader in particular, Himilco Phameas, slew many of the Romans. Censorinus fitted up two large battering-rams on the tongue, and made a breach with them at this weakest place of the wall; but, as evening had set in, the assault had to be postponed. During the night the besieged succeeded in filling up a great part of the breach, and in so damaging the Roman machines by a sortie that they could not work next day. Nevertheless the Romans ventured on the assault; but they found the breach and the portions of the wall and houses in the neighbourhood so strongly occupied, and advanced with such imprudence, that they were repulsed with severe loss and would have suffered still greater damage, had not the military tribune Scipio Aemilianus, foreseeing the issue of the foolhardy attack, kept together his men in front of the walls and with them intercepted the fugitives. Manilius accomplished still less against the impregnable wall of the citadel. The siege thus lingered on. The diseases engendered in the camp by the heat of summer, the departure of Censorinus the abler general, the ill-humour and inaction of Massinissa who was naturally far from pleased to see the Romans taking for themselves the booty which he had long coveted, and the death of the king at the age of ninety which ensued soon after (end of 605), utterly arrested the offensive operations of the Romans. They had enough to do in protecting their ships against the Carthaginian incendiaries and their camp against nocturnal surprises, and in securing food for their men and horses by the construction of a harbour-fort

and by forays in the neighbourhood. Two expeditions directed against Hasdrubal remained without success; and in fact the first, badly led over difficult ground, had almost terminated in a formal defeat. But, while the course of the war was inglorious for the general and the army, the military tribune Scipio achieved in it brilliant distinction. It was he who, on occasion of a nocturnal attack by the enemy on the Roman camp, starting with some squadrons of horse and taking the enemy in rear, compelled him to retreat. On the first expedition to Nopheris, when the passage of the river had taken place in opposition to his advice and had almost occasioned the destruction of the army, by a bold attack in flank he relieved the pressure on the retreating troops, and by his devoted and heroic courage rescued a division which had been given up as lost. While the other officers, and the consul in particular, by their perfidy deterred the towns and party-leaders that were inclined to negotiate, Scipio succeeded in inducing one of the ablest of the latter, Himilco Phameas, to pass over to the Romans with 2200 cavalry. Lastly, after he had in fulfilment of the charge of the dying Massinissa divided his kingdom among his three sons, Micipsa, Gulussa, and Mastanabal, he brought to the Roman army in Gulussa a cavalry-leader worthy of his father, and thereby remedied the want, which had hitherto been seriously felt, of light cavalry. His refined and yet simple demeanour, which recalled rather his own father than him whose name he bore, overcame even envy, and in the camp as in the capital the name of Scipio was on the lips of all. Even Cato, who was not liberal with his praise, a few months before his death—he died at the end of 605 without having seen the wish of his life, the destruction of Carthage, accomplished—applied to the young officer and to his incapable comrades the Homeric line:—

He only is a living man, the rest are gliding shades.(15)

While these events were passing, the close of the year had come and with it a change of commanders; the consul Lucius Piso (606) was somewhat

late in appearing and took the command of the land army, while Lucius Mancinus took charge of the fleet. But, if their predecessors had done little, these did nothing at all. Instead of prosecuting the siege of Carthage or subduing the army of Hasdrubal, Piso employed himself in attacking the small maritime towns of the Phoenicians, and that mostly without success. Clupea, for example, repulsed him, and he was obliged to retire in disgrace from Hippo Diarrhytus, after having lost the whole summer in front of it and having had his besieging apparatus twice burnt. Neapolis was no doubt taken; but the pillage of the town in opposition to his pledged word of honour was not specially favourable to the progress of the Roman arms. The courage of the Carthaginians rose. Bithyas, a Numidian sheik, passed over to them with 800 horse; Carthaginian envoys were enabled to attempt negotiations with the kings of Numidia and Mauretania and even with Philip the Macedonian pretender. It was perhaps internal intrigues—Hasdrubal the emigrant brought the general of the same name, who commanded in the city, into suspicion on account of his relationship with Massinissa, and caused him to be put to death in the senate-house—rather than the activity of the Romans, that prevented things from assuming a turn still more favourable for Carthage.

Scipio Aemilianus

With the view of producing a change in the state of African affairs, which excited uneasiness, the Romans resorted to the extraordinary measure of entrusting the conduct of the war to the only man who had as yet brought home honour from the Libyan plains, and who was recommended for this war by his very name. Instead of calling Scipio to the aedileship for which he was a candidate, they gave to him the consulship before the usual time, setting aside the laws to the contrary effect, and committed to him by special decree the conduct of the African war. He arrived (607) in Utica at a moment when much was at stake. The Roman admiral Mancinus, charged

by Piso with the nominal continuance of the siege of the capital, had occupied a steep cliff, far remote from the inhabited district and scarcely defended, on the almost inaccessible seaward side of the suburb of Magalia, and had united nearly his whole not very numerous force there, in the hope of being able to penetrate thence into the outer town. In fact the assailants had been for a moment within its gates and the camp-followers had flocked forward in a body in the hope of spoil, when they were again driven back to the cliff and, being without supplies and almost cut off, were in the greatest danger. Scipio found matters in that position. He had hardly arrived when he despatched the troops which he had brought with him and the militia of Utica by sea to the threatened point, and succeeded in saving its garrison and holding the cliff itself. After this danger was averted, the general proceeded to the camp of Piso to take over the army and bring it back to Carthage. Hasdrubal and Bithyas availed themselves of his absence to move their camp immediately up to the city, and to renew the attack on the garrison of the cliff before Magalia; but even now Scipio appeared with the vanguard of the main army in sufficient time to afford assistance to the post. Then the siege began afresh and more earnestly. First of all Scipio cleared the camp of the mass of camp-followers and sutlers and once more tightened the relaxed reins of discipline. Military operations were soon resumed with increased vigour. In an attack by night on the suburb the Romans succeeded in passing from a tower—placed in front of the walls and equal to them in height—on to the battlements, and opened a little gate through which the whole army entered. The Carthaginians abandoned the suburb and their camp before the gates, and gave the chief command of the garrison of the city, amounting to 30,000 men, to Hasdrubal. The new commander displayed his energy in the first instance by giving orders that all the Roman prisoners should be brought to the battlements and, after undergoing cruel tortures, should be thrown over before the eyes of the besieging army; and, when voices were raised in disapproval of the act, a

reign of terror was introduced with reference to the citizens also. Scipio, meanwhile, after having confined the besieged to the city itself, sought totally to cut off their intercourse with the outer world. He took up his headquarters on the ridge by which the Carthaginian peninsula was connected with the mainland, and, notwithstanding the various attempts of the Carthaginians to disturb his operations, constructed a great camp across the whole breadth of the isthmus, which completely blockaded the city from the landward side. Nevertheless ships with provisions still ran into the harbour, partly bold merchantmen allured by the great gain, partly vessels of Bithyas, who availed himself of every favourable wind to convey supplies to the city from Nepheris at the end of the lake of Tunes; whatever might now be the sufferings of the citizens, the garrison was still sufficiently provided for. Scipio therefore constructed a stone mole, 96 feet broad, running from the tongue of land between the lake and gulf into the latter, so as thus to close the mouth of the harbour. The city seemed lost, when the success of this undertaking, which was at first ridiculed by the Carthaginians as impracticable, became evident. But one surprise was balanced by another. While the Roman labourers were constructing the mole, work was going forward night and day for two months in the Carthaginian harbour, without even the deserters being able to tell what were the designs of the besieged. All of a sudden, just as the Romans had completed the bar across the entrance to the harbour, fifty Carthaginian triremes and a number of boats and skiffs sailed forth from that same harbour into the gulf—while the enemy were closing the old mouth of the harbour towards the south, the Carthaginians had by means of a canal formed in an easterly direction procured for themselves a new outlet, which owing to the depth of the sea at that spot could not possibly be closed. Had the Carthaginians, instead of resting content with a mere demonstration, thrown themselves at once and resolutely on the half-dismantled and wholly unprepared Roman fleet, it must have been lost; when they returned on the

third day to give the naval battle, they found the Romans in readiness. The conflict came off without decisive result; but on their return the Carthaginian vessels so ran foul of each other in and before the entrance of the harbour, that the damage thus occasioned was equivalent to a defeat. Scipio now directed his attacks against the outer quay, which lay outside of the city walls and was only protected for the exigency by an earthen rampart of recent construction. The machines were stationed on the tongue of land, and a breach was easily made; but with unexampled intrepidity the Carthaginians, wading through the shallows, assailed the besieging implements, chased away the covering force which ran off in such a manner that Scipio was obliged to make his own troopers cut them down, and destroyed the machines. In this way they gained time to close the breach. Scipio, however, again established the machines and set on fire the wooden towers of the enemy; by which means he obtained possession of the quay and of the outer harbour along with it. A rampart equalling the city wall in height was here constructed, and the town was now at length completely blockaded by land and sea, for the inner harbour could only be reached through the outer. To ensure the completeness of the blockade, Scipio ordered Gaius Laelius to attack the camp at Nepheris, where Diogenes now held the command; it was captured by a fortunate stratagem, and the whole countless multitude assembled there were put to death or taken prisoners. Winter had now arrived and Scipio suspended his operations, leaving famine and pestilence to complete what he had begun.

Capture of the City

How fearfully these mighty agencies had laboured in the work of destruction during the interval while Hasdrubal continued to vaunt and to gormandize, appeared so soon as the Roman army proceeded in the spring of 608 to attack the inner town. Hasdrubal gave orders to set fire to the outer harbour and made himself ready to repel the expected assault on the

Cothon; but Laelius succeeded in scaling the wall, hardly longer defended by the famished garrison, at a point farther up and thus penetrated into the inner harbour. The city was captured, but the struggle was still by no means at an end. The assailants occupied the market-place contiguous to the small harbour, and slowly pushed their way along the three narrow streets leading from this to the citadel—slowly, for the huge houses of six stories in height had to be taken one by one; on the roofs or on beams laid over the street the soldiers penetrated from one of these fortress-like buildings to that which was adjoining or opposite, and cut down whatever they encountered there. Thus six days elapsed, terrible for the inhabitants of the city and full of difficulty and danger also for the assailants; at length they arrived in front of the steep citadel-rock, whither Hasdrubal and the force still surviving had retreated. To procure a wider approach, Scipio gave orders to set fire to the captured streets and to level the ruins; on which occasion a number of persons unable to fight, who were concealed in the houses, miserably perished. Then at last the remnant of the population, crowded together in the citadel, besought for mercy. Bare life was conceded to them, and they appeared before the victor, 30,000 men and 25,000 women, not the tenth part of the former population. The Roman deserters alone, 900 in number, and the general Hasdrubal with his wife and his two children had thrown themselves into the temple of the God of Healing; for them—for soldiers who had deserted their posts, and for the murderer of the Roman prisoners—there were no terms. But when, yielding to famine, the most resolute of them set fire to the temple, Hasdrubal could not endure to face death; alone he ran forth to the victor and falling upon his knees pleaded for his life. It was granted; but, when his wife who with her children was among the rest on the roof of the temple saw him at the feet of Scipio, her proud heart swelled at this disgrace brought on her dear perishing home, and, with bitter words bidding her husband be careful to save his life, she plunged first her sons and then herself into the flames. The struggle was at an end. The joy in

the camp and at Rome was boundless; the noblest of the people alone were in secret ashamed of the most recent grand achievement of the nation. The prisoners were mostly sold as slaves; several were allowed to languish in prison; the most notable, Hasdrubal and Bithyas, were sent to the interior of Italy as Roman state-prisoners and tolerably treated. The moveable property, with the exception of gold, silver, and votive gifts, was abandoned to the pillage of the soldiers. As to the temple treasures, the booty that had been in better times carried off by the Carthaginians from the Sicilian towns was restored to them; the bull of Phalaris, for example, was returned to the Agrigentines; the rest fell to the Roman state.

Destruction of Carthage

But by far the larger portion of the city still remained standing. We may believe that Scipio desired its preservation; at least he addressed a special inquiry to the senate on the subject. Scipio Nasica once more attempted to gain a hearing for the demands of reason and honour; but in vain. The senate ordered the general to level the city of Carthage and the suburb of Magalia with the ground, and to do the same with all the townships which had held by Carthage to the last; and thereafter to pass the plough over the site of Carthage so as to put an end in legal form to the existence of the city, and to curse the soil and site for ever, that neither house nor cornfield might ever reappear on the spot. The command was punctually obeyed. The ruins burned for seventeen days: recently, when the remains of the Carthaginian city wall were excavated, they were found to be covered with a layer of ashes from four to five feet deep, filled with half-charred pieces of wood, fragments of iron, and projectiles. Where the industrious Phoenicians had bustled and trafficked for five hundred years, Roman slaves henceforth pastured the herds of their distant masters. Scipio, however, whom nature had destined for a nobler part than that of an executioner, gazed with horror on his own work; and, instead of the joy of victory, the victor himself was

haunted by a presentiment of the retribution that would inevitably follow such a misdeed.

Province of Africa

There remained the work of arranging the future organization of the country. The earlier plan of investing the allies of Rome with the transmarine possessions that she acquired was no longer viewed with favour. Micipsa and his brothers retained in substance their former territory, including the districts recently wrested from the Carthaginians on the Bagradas and in Emporia; their long-cherished hope of obtaining Carthage as a capital was for ever frustrated; the senate presented them instead with the Carthaginian libraries. The Carthaginian territory as possessed by the city in its last days— viz. The narrow border of the African coast lying immediately opposite to Sicily, from the river Tusca (near Thabraca) to Thaenae (opposite to the island of Karkenah)—became a Roman province. In the interior, where the constant encroachments of Massinissa had more and more narrowed the Carthaginian dominions and Bulla, Zama, and Aquae already belonged to the kings, the Numidians retained what they possessed. But the careful regulation of the boundary between the Roman province and the Numidian kingdom, which enclosed it on three sides, showed that Rome would by no means tolerate in reference to herself what she had permitted in reference to Carthage; while the name of the new province, Africa, on the other hand appeared to indicate that Rome did not at all regard the boundary now marked off as a definitive one. The supreme administration of the new province was entrusted to a Roman governor, who had his seat at Utica. Its frontier did not need any regular defence, as the allied Numidian kingdom everywhere separated it from the inhabitants of the desert. In the matter of taxes Rome dealt on the whole with moderation. Those communities which from the beginning of the war had taken part with Rome—viz. Only the maritime towns of Utica,

Hadrumetum, Little Leptis, Thapsus, Achulla, and Usalis, and the inland town of Theudalis— retained their territory and became free cities; which was also the case with the newly-founded community of deserters. The territory of the city of Carthage—with the exception of a tract presented to Utica—and that of the other destroyed townships became Roman domain-land, which was let on lease. The remaining townships likewise forfeited in law their property in the soil and their municipal liberties; but their land and their constitution were for the time being, and until further orders from the Roman government, left to them as a possession liable to be recalled, and the communities paid annually to Rome for the use of their soil which had become Roman a once-for-all fixed tribute (*stipendium*), which they in their turn collected by means of a property-tax levied from the individuals liable. The real gainers, however, by this destruction of the first commercial city of the west were the Roman merchants, who, as soon as Carthage lay in ashes, flocked in troops to Utica, and from this as their head-quarters began to turn to profitable account not only the Roman province, but also the Numidian and Gaetulian regions which had hitherto been closed to them.

Macedonia and the Pseudo-Phillip Victory of Metellus

Macedonia also disappeared about the same time as Carthage from the ranks of the nations. The four small confederacies, into which the wisdom of the Roman senate had parcelled out the ancient kingdom, could not live at peace either internally or one with another. How matters stood in the country appears from a single accidentally mentioned occurrence at Phacus, where the whole governing council of one of these confederacies were murdered on the instigation of one Damasippus. Neither the commissions sent by the senate (590), nor the foreign arbiters, such as Scipio Aemilianus (603) called in after the Greek fashion by the Macedonians, were able to establish any tolerable order. Suddenly there appeared in Thrace a young

man, who called himself Philip the son of king Perseus, whom he strikingly resembled, and of the Syrian Laodice. He had passed his youth in the Mysian town of Adramytium; there he asserted that he had preserved the sure proofs of his illustrious descent. With these he had, after a vain attempt to obtain recognition in his native country, resorted to Demetrius Soter, king of Syria, his mother's brother. There were in fact some who believed the Adramytene or professed to believe him, and urged the king either to reinstate the prince in his hereditary kingdom or to cede to him the crown of Syria; whereupon Demetrius, to put an end to the foolish proceedings, arrested the pretender and sent him to the Romans. But the senate attached so little importance to the man, that it confined him in an Italian town without taking steps to have him even seriously guarded. Thus he had escaped to Miletus, where the civic authorities once more seized him and asked the Roman commissioners what they should do with the prisoner. The latter advised them to let him go; and they did so. He now tried his fortune further in Thrace; and, singularly enough, he obtained recognition and support there not only from Teres the chief of the Thracian barbarians, the husband of his father's sister, and Barsabas, but also from the prudent Byzantines. With Thracian support the so-called Philip invaded Macedonia, and, although he was defeated at first, he soon gained one victory over the Macedonian militia in the district of Odomantice beyond the Strymon, followed by a second on the west side of the river, which gave him possession of all Macedonia. Apocryphal as his story sounded, and decidedly as it was established that the real Philip, the son of Perseus, had died when eighteen years of age at Alba, and that this man, so far from being a Macedonian prince, was Andriscus a fuller of Adramytium, yet the Macedonians were too much accustomed to the rule of a king not to be readily satisfied on the point of legitimacy and to return with pleasure into the old track. Messengers arrived from the Thessalians, announcing that the pretender had advanced into their territory; the Roman commissioner

Nasica, who, in the expectation that a word of earnest remonstrance would put an end to the foolish enterprise, had been sent by the senate to Macedonia without soldiers, was obliged to call out the Achaean and Pergamene troops and to protect Thessaly against the superior force by means of the Achaeans, as far as was practicable, till (605?) the praetor Juventius appeared with a legion. The latter attacked the Macedonians with his small force; but he himself fell, his army was almost wholly destroyed, and the greater part of Thessaly fell into the power of the pseudo-Philip, who conducted his government there and in Macedonia with cruelty and arrogance. At length a stronger Roman army under Quintus Caecilius Metellus appeared on the scene of conflict, and, supported by the Pergamene fleet, advanced into Macedonia. In the first cavalry combat the Macedonians retained the superiority; but soon dissensions and desertions occurred in the Macedonian army, and the blunder of the pretender in dividing his army and detaching half of it to Thessaly procured for the Romans an easy and decisive victory (606). Philip fled to the chieftain Byzes in Thrace, whither Metellus followed him and after a second victory obtained his surrender.

Province of Macedonia

The four Macedonian confederacies had not voluntarily submitted to the pretender, but had simply yielded to force. According to the policy hitherto pursued there was therefore no reason for depriving the Macedonians of the shadow of independence which the battle of Pydna had still left to them; nevertheless the kingdom of Alexander was now, by order of the senate, converted by Metellus into a Roman province. This case clearly showed that the Roman government had changed its system, and had resolved to substitute for the relation of clientship that of simple subjects; and accordingly the suppression of the four Macedonian confederacies was felt throughout the whole range of the client-states as a blow directed against

all. The possessions in Epirus which were formerly after the first Roman victories detached from Macedonia—the Ionian islands and the ports of Apollonia and Epidamnus,(16) that had hitherto been under the jurisdiction of the Italian magistrates—were now reunited with Macedonia, so that the latter, probably as early as this period, reached on the north-west to a point beyond Scodra, where Illyria began. The protectorate which Rome claimed over Greece proper likewise devolved, of itself, on the new governor of Macedonia. Thus Macedonia recovered its unity and nearly the same limits which it had in its most flourishing times. It had no longer, however, the unity of a kingdom, but that of a province, retaining its communal and even, as it would seem, its district organization, but placed under an Italian governor and quaestor, whose names make their appearance on the native coins along with the name of the country. As tribute, there was retained the old moderate land-tax, as Paullus had arranged it(17)—a sum of 100 talents (24,000 pounds) which was allocated in fixed proportions on the several communities. Yet the land could not forget its old glorious dynasty. A few years after the subjugation of the pseudo-Philip another pretended son of Perseus, Alexander, raised the banner of insurrection on the Nestus (Karasu), and had in a short time collected 1600 men; but the quaestor Lucius Tremellius mastered the insurrection without difficulty and pursued the fugitive pretender as far as Dardania (612). This was the last movement of the proud national spirit of Macedonia, which two hundred years before had accomplished so great things in Hellas and Asia. Henceforward there is scarcely anything else to be told of the Macedonians, save that they continued to reckon their inglorious years from the date at which the country received its definitive provincial organization (608).

Thenceforth the defence of the northern and eastern frontiers of Macedonia or, in other words, of the frontier of Hellenic civilization against the barbarians devolved on the Romans. It was conducted by them with inadequate forces and not, on the whole, with befitting energy; but with a

primary view to this military object the great Egnatian highway was constructed, which as early as the time of Polybius ran from Apollonia and Dyrrhachium, the two chief ports on the west coast, across the interior to Thessalonica, and was afterwards prolonged to the Hebrus (Maritza).(18) The new province became the natural basis, on the one hand for the movements against the turbulent Dalmatians, and on the other hand for the numerous expeditions against the Illyrian, Celtic, and Thracian tribes settled to the north of the Grecian peninsula, which we shall afterwards have to exhibit in their historical connection.

Greece

Greece proper had greater occasion than Macedonia to congratulate herself on the favour of the ruling power; and the Philhellenes of Rome might well be of opinion that the calamitous effects of the war with Perseus were disappearing, and that the state of things in general was improving there. The bitterest abettors of the now dominant party, Lyciscus the Aetolian, Mnasippus the Boeotian, Chrematas the Acarnanian, the infamous Epirot Charops whom honourable Romans forbade even to enter their houses, descended one after another to the grave; another generation grew up, in which the old recollections and the old antagonisms had faded. The Roman senate thought that the time for general forgiveness and oblivion had come, and in 604 released the survivors of those Achaean patriots who had been confined for seventeen years in Italy, and whose liberation the Achaean diet had never ceased to demand. Nevertheless they were mistaken. How little the Romans with all their Philhellenism had been successful in heartily conciliating Hellenic patriotism, was nowhere more clearly apparent than in the attitude of the Greeks towards the Attalids. King Eumenes II had been, as a friend of the Romans, extremely hated in Greece; (19) but scarcely had a coldness arisen between him and the Romans, when he became suddenly popular in Greece, and the Hellenic hopefuls expected

the deliverer from a foreign yoke to come now from Pergamus as formerly from Macedonia. Social disorganization more especially was visibly on the increase among the petty states of Hellas now left to themselves. The country became desolate not through war and pestilence, but through the daily increasing disinclination of the higher classes to trouble themselves with wife and children; on the other hand the criminal or the thoughtless flocked as hitherto chiefly to Greece, there to await the recruiting officer. The communities sank into daily deeper debt, and into financial dishonour and a corresponding want of credit: some cities, more especially Athens and Thebes, resorted in their financial distress to direct robbery, and plundered the neighbouring communities. The internal dissensions in the leagues also—e. g. between the voluntary and the compulsory members of the Achaean confederacy—were by no means composed. If the Romans, as seems to have been the case, believed what they wished and confided in the calm which for the moment prevailed, they were soon to learn that the younger generation in Hellas was in no respect better or wiser than the older. The Greeks directly sought an opportunity of picking a quarrel with the Romans.

Achaean War

In order to screen a foul transaction, Diaeus, the president of the Achaean league for the time being, about 605 threw out in the diet the assertion that the special privileges conceded by the Achaean league to the Lacedaemonians as members—viz. their exemption from the Achaean criminal jurisdiction, and the right to send separate embassies to Rome—were not at all guaranteed to them by the Romans. It was an audacious falsehood; but the diet naturally believed what it wished, and, when the Achaeans showed themselves ready to make good their assertions with arms in hand, the weaker Spartans yielded for the time, or, to speak more correctly, those whose surrender was demanded by the Achaeans left the

city to appear as complainants before the Roman senate. The senate answered as usual that it would send a commission to investigate the matter; but instead of reporting this reply the envoys stated in Achaia as well as in Sparta, and in both cases falsely, that the senate had decided in their favour. The Achaeans, who felt more than ever their equality with Rome as allies and their political importance on account of the aid which the league had just rendered in Thessaly against the pseudo-Philip, advanced in 606 under their -strategus- Damocritus into Laconia: in vain a Roman embassy on its way to Asia, at the suggestion of Metellus, admonished them to keep the peace and to await the commissioners of the senate. A battle took place, in which nearly 1000 Spartans fell, and Sparta might have been taken if Damocritus had not been equally incapable as an officer and as a statesman. He was superseded, and his successor Diaeus, the instigator of all this mischief, zealously continued the war, while at the same time he gave to the dreaded commandant of Macedonia assurances of the full loyalty of the Achaean league. Thereupon the long-expected Roman commission made its appearance, with Aurelius Orestes at its head; hostilities were now suspended, and the Achaean diet assembled at Corinth to receive its communications. They were of an unexpected and far from agreeable character. The Romans had resolved to cancel the unnatural and forced(20) inclusion of Sparta among the Achaean states, and generally to act with vigour against the Achaeans. Some years before (591) these had been obliged to release from their league the Aetolian town of Pleuron;(21) now they were directed to renounce all the acquisitions which they had made since the second Macedonian war—viz. Corinth, Orchomenus, Argos, Sparta in the Peloponnesus, and Heraclea near to Oeta—and to reduce their league to the condition in which it stood at the end of the Hannibalic war. When the Achaean deputies learned this, they rushed immediately to the market-place without even hearing the Romans to an end, and communicated the Roman demands to the multitude; whereupon the

governing and the governed rabble with one voice resolved to arrest at once the whole Lacedaemonians present in Corinth, because Sparta forsooth had brought on them this misfortune. The arrest accordingly took place in the most tumultuary fashion, so that the possession of Laconian names or Laconian shoes appeared sufficient ground for imprisonment: in fact they even entered the dwellings of the Roman envoys to seize the Lacedaemonians who had taken shelter there, and hard words were uttered against the Romans, although they did not lay hands on their persons. The envoys returned home in indignation, and made bitter and even exaggerated complaints in the senate; but the latter, with the same moderation which marked all its measures against the Greeks, confined itself at first to representations. In the mildest form, and hardly mentioning satisfaction for the insults which they had endured, Sextus Julius Caesar repeated the commands of the Romans at the diet in Aegium (spring of 607). But the leaders of affairs in Achaia with the new -strategus- Critolaus at their head -strategus- (from May 607 to May 608), as men versed in state affairs and familiar with political arts, merely drew from that fact the inference that the position of Rome with reference to Carthage and Viriathus could not but be very unfavourable, and continued at once to cheat and to affront the Romans. Caesar was requested to arrange a conference of deputies of the contending parties at Tegea for the settlement of the question. He did so; but, after Caesar and the Lacedaemonian envoys had waited there long in vain for the Achaeans, Critolaus at last appeared alone and informed them that the general assembly of the Achaeans was solely competent in this matter, and that it could only be settled at the diet or, in other words, in six months. Caesar thereupon returned to Rome; and the next national assembly of the Achaeans on the proposal of Critolaus formally declared war against Sparta. Even now Metellus made an attempt amicably to settle the quarrel, and sent envoys to Corinth; but the noisy -ecclesia-, consisting mostly of the populace of that wealthy commercial and manufacturing city, drowned

the voice of the Roman envoys and compelled them to leave the platform. The declaration of Critolaus, that they wished the Romans to be their friends but not their masters, was received with inexpressible delight; and, when the members of the diet wished to interpose, the mob protected the man after its own heart, and applauded the sarcasms as to the high treason of the rich and the need of a military dictatorship as well as the mysterious hints regarding an impending insurrection of countless peoples and kings against Rome. The spirit animating the movement is shown by the two resolutions, that all clubs should be permanent and all actions for debt should be suspended till the restoration of peace.

The Achaeans thus had war; and they had even actual allies, namely the Thebans and Boeotians and also the Chalcidians. At the beginning of 608 the Achaeans advanced into Thessaly to reduce to obedience Heraclea near to Oeta, which, in accordance with the decree of the senate, had detached itself from the Achaean league. The consul Lucius Mummius, whom the senate had resolved to send to Greece, had not yet arrived; accordingly Metellus undertook to protect Heraclea with the Macedonian legions. When the advance of the Romans was announced to the Achaeo-Theban army, there was no more talk of fighting; they deliberated only how they might best succeed in reaching once more the secure Peloponnesus; in all haste the army made off, and did not even attempt to hold the position at Thermopylae. But Metellus quickened the pursuit, and overtook and defeated the Greek army near Scarpheia in Locris. The loss in prisoners and dead was considerable; Critolaus was never heard of after the battle. The remains of the defeated army wandered about Greece in single troops, and everywhere sought admission in vain; the division of Patrae was destroyed in Phocis, the Arcadian select corps at Chaeronea; all northern Greece was evacuated, and only a small portion of the Achaean army and of the citizens of Thebes, who fled in a body, reached the Peloponnesus. Metellus sought by the utmost moderation to induce the Greeks to abandon their senseless

resistance, and gave orders, for example, that all the Thebans with a single exception, should be allowed their liberty; his well-meant endeavours were thwarted not by the energy of the people, but by the desperation of the leaders apprehensive for their own safety. Diaeus, who after the fall of Critolaus had resumed the chief command, summoned all men capable of bearing arms to the isthmus, and ordered 12,000 slaves, natives of Greece, to be enrolled in the army; the rich were applied to for advances, and the ranks of the friends of peace, so far as they did not purchase their lives by bribing the ruling agents in this reign of terror, were thinned by bloody prosecutions. The war accordingly was continued, and after the same style. The Achaean vanguard, which, 4000 strong, was stationed under Alcamenes at Megara, dispersed as soon as it saw the Roman standards. Metellus was just about to order an attack upon the main force on the isthmus, when the consul Lucius Mummius with a few attendants arrived at the Roman headquarters and took the command. Meanwhile the Achaeans, emboldened by a successful attack on the too incautious Roman outposts, offered battle to the Roman army, which was about twice as strong, at Leucopetra on the isthmus. The Romans were not slow to accept it. At the very first the Achaean horsemen broke off en masse before the Roman cavalry of six times their strength; the hoplites withstood the enemy till a flank attack by the Roman select corps brought confusion also into their ranks. This terminated the resistance. Diaeus fled to his home, put his wife to death, and took poison himself. All the cities submitted without opposition; and even the impregnable Corinth, into which Mummius for three days hesitated to enter because he feared an ambush, was occupied by the Romans without a blow.

Province of Achaia

The renewed regulation of the affairs of Greece was entrusted to a commission of ten senators in concert with the consul Mummius, who left

behind him on the whole a blessed memory in the conquered country. Doubtless it was, to say the least, a foolish thing in him to assume the name of "Achaicus" on account of his feats of war and victory, and to build in the fulness of his gratitude a temple to Hercules Victor; but, as he had not been reared in aristocratic luxury and aristocratic corruption but was a "new man" and comparatively without means, he showed himself an upright and indulgent administrator. The statement, that none of the Achaeans perished but Diaeus and none of the Boeotians but Pytheas, is a rhetorical exaggeration: in Chalcis especially sad outrages occurred; but yet on the whole moderation was observed in the infliction of penalties. Mummius rejected the proposal to throw down the statues of Philopoemen, the founder of the Achaean patriotic party; the fines imposed on the communities were destined not for the Roman exchequer, but for the injured Greek cities, and were mostly remitted afterwards; and the property of those traitors who had parents or children was not sold on public account, but handed over to their relatives. The works of art alone were carried away from Corinth, Thespieae, and other cities and were erected partly in the capital, partly in the country towns of Italy:(22) several pieces were also presented to the Isthmian, Delphic, and Olympic temples. In the definitive organization of the country also moderation was in general displayed. It is true that, as was implied in the very introduction of the provincial constitution,(23) the special confederacies, and the Achaean in particular, were as such dissolved; the communities were isolated; and intercourse between them was hampered by the rule that no one might acquire landed property simultaneously in two communities. Moreover, as Flamininus had already attempted,(24) the democratic constitutions of the towns were altogether set aside, and the government in each community was placed in the hands of a council composed of the wealthy. A fixed land-tax to be paid to Rome was imposed on each community; and they were all subordinated to the governor of Macedonia in such a manner that the latter,

as supreme military chief, exercised a superintendence over administration and justice, and could, for example, personally assume the decision of the more important criminal processes. Yet the Greek communities retained "freedom," that is, a formal sovereignty—reduced, doubtless, by the Roman hegemony to a name—which involved the property of the soil and the right to a distinct administration and jurisdiction of their own.(25) Some years later not only were the old confederacies again allowed to have a shadowy existence, but the oppressive restriction on the alienation of landed property was removed.

Destruction of Corinth

The communities of Thebes, Chalcis, and Corinth experienced a treatment more severe. There is no ground for censure in the fact that the two former were disarmed and converted by the demolition of their walls into open villages; but the wholly uncalled-for destruction of the flourishing Corinth, the first commercial city in Greece, remains a dark stain on the annals of Rome. By express orders from the senate the Corinthian citizens were seized, and such as were not killed were sold into slavery; the city itself was not only deprived of its walls and its citadel—a measure which, if the Romans were not disposed permanently to garrison it, was certainly inevitable—but was levelled with the ground, and all rebuilding on the desolate site was prohibited in the usual forms of accursing; part of its territory was given to Sicyon under the obligation that the latter should defray the costs of the Isthmian national festival in room of Corinth, but the greater portion was declared to be public land of Rome. Thus was extinguished "the eye of Hellas," the last precious ornament of the Grecian land, once so rich in cities. If, however, we review the whole catastrophe, the impartial historian must acknowledge— what the Greeks of this period themselves candidly confessed—that the Romans were not to blame for the war itself, but that on the contrary, the foolish perfidy and the feeble

temerity of the Greeks compelled the Roman intervention. The abolition of the mock sovereignty of the leagues and of all the vague and pernicious dreams connected with them was a blessing for the country; and the government of the Roman commander-in-chief of Macedonia, however much it fell short of what was to be wished, was yet far better than the previous confusion and misrule of Greek confederacies and Roman commissions. The Peloponnesus ceased to be the great harbour of mercenaries; it is affirmed, and may readily be believed, that with the direct government of Rome security and prosperity in some measure returned. The epigram of Themistocles, that ruin had averted ruin, was applied by the Hellenes of that day not altogether without reason to the loss of Greek independence. The singular indulgence, which Rome even now showed towards the Greeks, becomes fully apparent only when compared with the contemporary conduct of the same authorities towards the Spaniards and Phoenicians. To treat barbarians with cruelty seemed not unallowable, but the Romans of this period, like the emperor Trajan in later times, deemed it "harsh and barbarous to deprive Athens and Sparta of the shadow of freedom which they still retained." All the more marked is the contrast between this general moderation and the revolting treatment of Corinth—a treatment disapproved by the orators who defended the destruction of Numantia and Carthage, and far from justified, even according to Roman international law, by the abusive language uttered against the Roman deputies in the streets of Corinth. And yet it by no means proceeded from the brutality of any single individual, least of all of Mummius, but was a measure deliberated and resolved on by the Roman senate. We shall not err, if we recognize it as the work of the mercantile party, which even thus early began to interfere in politics by the side of the aristocracy proper, and which in destroying Corinth got rid of a commercial rival. If the great merchants of Rome had anything to say in the regulation of Greece, we can understand why Corinth was singled out for punishment, and why the Romans not only

destroyed the city as it stood, but also prohibited any future settlement on a site so pre-eminently favourable for commerce. The Peloponnesian Argos thenceforth became the rendezvous for the Roman merchants, who were very numerous even in Greece. For the Roman wholesale traffic, however, Delos was of greater importance; a Roman free port as early as 586, it had attracted a great part of the business of Rhodes,(26) and now in a similar way entered on the heritage of Corinth. This island remained for a considerable time the chief emporium for merchandise going from the east to the west.(27)

In the third and more distant continent the Roman dominion exhibited a development more imperfect than in the African and Macedono-Hellenic countries, which were separated from Italy only by narrow seas.

Kingdom of Pergamus

In Asia Minor, after the Seleucids were driven back, the kingdom of Pergamus had become the first power. Not led astray by the traditions of the Alexandrine monarchies, but sagacious and dispassionate enough to renounce what was impossible, the Attalids kept quiet; and endeavoured not to extend their bounds nor to withdraw from the Roman hegemony, but to promote the prosperity of their empire, so far as the Romans allowed, and to foster the arts of peace. Nevertheless they did not escape the jealousy and suspicion of Rome. In possession of the European shore of the Propontis, of the west coast of Asia Minor, and of its interior as far as the Cappadocian and Cilician frontiers, and in close connection with the Syrian kings—one of whom, Antiochus Epiphanes (d. 590), had ascended the throne by the aid of the Attalids—king Eumenes II had by his power, which seemed still more considerable from the more and more deep decline of Macedonia and Syria, instilled apprehension in the minds even of its founders. We have already related(28) how the senate sought to humble and weaken this ally

after the third Macedonian war by unbecoming diplomatic arts. The relations— perplexing from the very nature of the case—of the rulers of Pergamus towards the free or half-free commercial cities within their kingdom, and towards their barbarous neighbours on its borders, became complicated still more painfully by this ill humour on the part of their patrons. As it was not clear whether, according to the treaty of peace in 565, the heights of the Taurus in Pamphylia and Pisidia belonged to the kingdom of Syria or to that of Pergamus,(29) the brave Selgians, nominally recognizing, as it would seem, the Syrian supremacy, made a prolonged and energetic resistance to the kings Eumenes II and Attalus II in the hardly accessible mountains of Pisidia. The Asiatic Celts also, who for a time with the permission of the Romans had yielded allegiance to Pergamus, revolted from Eumenes and, in concert with Prusias king of Bithynia the hereditary enemy of the Attalids, suddenly began war against him about 587. The king had had no time to hire mercenary troops; all his skill and valour could not prevent the Celts from defeating the Asiatic militia and overrunning his territory; the peculiar mediation, to which the Romans condescended at the request of Eumenes, has already been mentioned.(30) But, as soon as he had found time with the help of his well-filled exchequer to raise an army capable of taking the field, he speedily drove the wild hordes back over the frontier, and, although Galatia remained lost to him, and his obstinately-continued attempts to maintain his footing there were frustrated by Roman influence,(31) he yet, in spite of all the open attacks and secret machinations which his neighbours and the Romans directed against him, at his death (about 595) left his kingdom in standing un-diminished. His brother Attalus II Philadelphus (d. 616) with Roman aid repelled the attempt of Pharnaces king of Pontus to seize the guardianship of Eumenes' son who was a minor, and reigned in the room of his nephew, like Antigonus Doson, as guardian for life. Adroit, able, pliant, a genuine Attalid, he had the art to convince the suspicious senate that the apprehensions which it had formerly

cherished were baseless. The anti-Roman party accused him of having to do with keeping the land for the Romans, and of acquiescing in every insult and exaction at their hands; but, sure of Roman protection, he was able to interfere decisively in the disputes as to the succession to the throne in Syria, Cappadocia, and Bithynia. Even from the dangerous Bithynian war, which king Prusias II, surnamed the Hunter (572?-605), a ruler who combined in his own person all the vices of barbarism and of civilization, began against him, Roman intervention saved him—although not until he had been himself besieged in his capital, and a first warning given by the Romans had remained unattended to, and had even been scoffed at, by Prusias (598-600). But, when his ward Attalus III Philometor ascended the throne (616-621), the peaceful and moderate rule of the citizen kings was replaced by the tyranny of an Asiatic sultan; under which for instance, the king, with a view to rid himself of the inconvenient counsel of his father's friends, assembled them in the palace, and ordered his mercenaries to put to death first them, and then their wives and children. Along with such recreations he wrote treatises on gardening, reared poisonous plants, and prepared wax models, till a sudden death carried him off.

Province of Asia

War against Aristonicus

With him the house of the Attalids became extinct. In such an event, according to the constitutional law which held good at least for the client-states of Rome, the last ruler might dispose of the succession by testament. Whether it was the insane rancour against his subjects which had tormented the last Attalid during life that now suggested to him the thought of bequeathing his kingdom by will to the Romans, or whether his doing so was merely a further recognition of the practical supremacy of Rome, cannot be determined. The testament was made;(32) the Romans accepted the bequest, and the question as to the land and the treasure of the Attalids

threw a new apple of contention among the conflicting political parties in Rome. In Asia also this royal testament kindled a civil war. Relying on the aversion of the Asiatics to the foreign rule which awaited them, Aristonicus, a natural son of Eumenes II, made his appearance in Leucae, a small seaport between Smyrna and Phocaea, as a pretender to the crown. Phocaea and other towns joined him, but he was defeated at sea off Cyme by the Ephesians—who saw that a steady adherence to Rome was the only possible way of preserving their privileges—and was obliged to flee into the interior. The movement was believed to have died away when he suddenly reappeared at the head of the new "citizens of the city of the sun," (33) in other words, of the slaves whom he had called to freedom en masse, mastered the Lydian towns of Thyatira and Apollonis as well as a portion of the Attalic townships, and summoned bands of Thracian free-lances to join his standard. The struggle was serious. There were no Roman troops in Asia; the Asiatic free cities and the contingents of the client-princes of Bithynia, Paphlagonia, Cappadocia, Pontus, Armenia, could not withstand the pretender; he penetrated by force of arms into Colophon, Samos, and Myndus, and already ruled over almost all his father's kingdom, when at the close of 623 a Roman army landed in Asia. Its commander, the consul and -pontifex maximus- Publius Licinius Crassus Mucianus, one of the wealthiest and at the same time one of the most cultivated men in Rome, equally distinguished as an orator and as a jurist, was about to besiege the pretender in Leucae, but during his preparations for that purpose allowed himself to be surprised and defeated by his too-much-underrated opponent, and was made a prisoner in person by a Thracian band. But he did not allow such an enemy the triumph of exhibiting the Roman commander-in-chief as a captive; he provoked the barbarians, who had captured him without knowing who he was, to put him to death (beginning of 624), and the consular was only recognised when a corpse. With him, as it would seem, fell Ariarathes king of Cappadocia. But not long after this victory

Aristonicus was attacked by Marcus Perpenna, the successor of Crassus; his army was dispersed, he himself was besieged and taken prisoner in Stratonicea, and was soon afterwards executed in Rome. The subjugation of the last towns that still offered resistance and the definitive regulation of the country were committed, after the sudden death of Perpenna, to Manius Aquillius (625). The same policy was followed as in the case of the Carthaginian territory.

The eastern portion of the kingdom of the Attalids was assigned to the client kings, so as to release the Romans from the protection of the frontier and thereby from the necessity of maintaining a standing force in Asia; Telmissus⁽³⁴⁾ went to the Lycian confederacy; the European possessions in Thrace were annexed to the province of Macedonia; the rest of the territory was organized as a new Roman province, which like that of Carthage was, not without design, designated by the name of the continent in which it lay. The land was released from the taxes which had been paid to Pergamus; and it was treated with the same moderation as Hellas and Macedonia. Thus the most considerable state in Asia Minor became a Roman province.

Western Asia Cappadocia

The numerous other small states and cities of western Asia—the kingdom of Bithynia, the Paphlagonian and Gallic principalities, the Lycian and Pamphylian confederacies, the free cities of Cyzicus and Rhodes—continued in their former circumscribed relations.

Beyond the Halys Cappadocia—after king Ariarathes V Philopator (591-624) had, chiefly by the aid of the Attalids, held his ground against his brother and rival Holophernes who was supported by Syria—followed substantially the Pergamene policy, as respected both absolute devotion to Rome and the tendency to adopt Hellenic culture. He was the means of

introducing that culture into the hitherto almost barbarous Cappadocia, and along with it its extravagancies also, such as the worship of Bacchus and the dissolute practices of the bands of wandering actors—the "artists" as they were called. In reward for the fidelity to Rome, which had cost this prince his life in the struggle with the Pergamene pretender, his youthful heir Ariarathes VI was not only protected by the Romans against the usurpation attempted by the king of Pontus, but received also the south-eastern part of the kingdom of the Attalids, Lycaonia, along with the district bordering on it to the eastward reckoned in earlier times as part of Cilicia.

Pontus

In the remote north-east of Asia Minor "Cappadocia on the sea," or more briefly the "sea-state," Pontus, increased in extent and importance. Not long after the battle of Magnesia king Pharnaces I had extended his dominion far beyond the Halys to Tius on the frontier of Bithynia, and in particular had possessed himself of the rich Sinope, which was converted from a Greek free city into the residence of the kings of Pontus. It is true that the neighbouring states endangered by these encroachments, with king Eumenes II at their head, had on that account waged war against him (571-575), and under Roman mediation had exacted from him a promise to evacuate Galatia and Paphlagonia; but the course of events shows that Pharnaces as well as his successor Mithradates V. Euergetes (598?-634), faithful allies of Rome in the third Punic war as well as in the struggle with Aristonicus, not only remained in possession beyond the Halys, but also in substance retained the protectorate over the Paphlagonian and Galatian dynasts. It is only on this hypothesis that we can explain how Mithradates, ostensibly for his brave deeds in the war against Aristonicus, but in reality for considerable sums paid to the Roman general, could receive Great Phrygia from the latter after the dissolution of the Attalid kingdom. How far on the other hand the kingdom of Pontus about this time extended in the

direction of the Caucasus and the sources of the Euphrates, cannot be precisely determined; but it seems to have embraced the western part of Armenia about Enderes and Divirigi, or what was called Lesser Armenia, as a dependent satrapy, while the Greater Armenia and Sophene formed distinct and independent kingdoms.

Syria and Egypt

While in the peninsula of Asia Minor Rome thus substantially conducted the government and, although much was done without or in opposition to her wishes, yet determined on the whole the state of possession, the wide tracts on the other hand beyond the Taurus and the Upper Euphrates as far down as the valley of the Nile continued to be mainly left to themselves. No doubt the principle which formed the basis of the regulation of Oriental affairs in 565, viz. That the Halys should form the eastern boundary of the Roman client-states,(35) was not adhered to by the senate and was in its very nature untenable. The political horizon is a self-deception as well as the physical; if the state of Syria had the number of ships of war and war-elephants allowed to it prescribed in the treaty of peace,(36) and if the Syrian army at the bidding of the Roman senate evacuated Egypt when half-won(37), these things implied a complete recognition of hegemony and of clientship. Accordingly the disputes as to the throne in Syria and in Egypt were referred for settlement to the Roman government. In the former after the death of Antiochus Epiphanes (590) Demetrius afterwards named Soter, the son of Seleucus IV, living as a hostage at Rome, and Antiochus Eupator, a minor, the son of the last king Antiochus Epiphanes, contended for the crown; in the latter Ptolemy Philometor (573-608), the elder of the two brothers who had reigned jointly since 584, had been driven from the country (590) by the younger Ptolemy Euergetes II or the Fat (d. 637), and had appeared in person at Rome to procure his restoration. Both affairs were arranged by the senate entirely through diplomatic agency, and

substantially in accordance with Roman advantage. In Syria Demetrius, who had the better title, was set aside, and Antiochus Eupator was recognized as king; while the guardianship of the royal boy was entrusted by the senate to the Roman senator Gnaeus Octavius, who, as was to be expected, governed thoroughly in the interest of Rome, reduced the war-marine and the army of elephants agreeably to the treaty of 565, and was in the fair way of completing the military ruin of the country. In Egypt not only was the restoration of Philometor accomplished, but—partly in order to put an end to the quarrel between the brothers, partly in order to weaken the still considerable power of Egypt—Cyrene was separated from that kingdom and assigned as a provision for Euergetes. "The Romans make kings of those whom they wish," a Jew wrote not long after this, "and those whom they do not wish they chase away from land and people." But this was the last occasion—for a long time—on which the Roman senate came forward in the affairs of the east with that ability and energy, which it had uniformly displayed in the complications with Philip, Antiochus, and Perseus. Though the internal decline of the government was late in affecting the treatment of foreign affairs, yet it did affect them at length. The government became unsteady and vacillating; they allowed the reins which they had just grasped to slacken and almost to slip from their hands. The guardian-regent of Syria was murdered at Laodicea; the rejected pretender Demetrius escaped from Rome and, setting aside the youthful prince, seized the government of his ancestral kingdom under the bold pretext that the Roman senate had fully empowered him to do so (592). Soon afterwards war broke out between the kings of Egypt and Cyrene respecting the possession of the island of Cyprus, which the senate had assigned first to the elder, then to the younger; and in opposition to the most recent Roman decision it finally remained with Egypt. Thus the Roman government, in the plenitude of its power and during the most profound inward and outward peace at home, had its decrees derided by the impotent kings of the east; its

name was misused, its ward and its commissioner were murdered. Seventy years before, when the Illyrians had in a similar way laid hands on Roman envoys, the senate of that day had erected a monument to the victim in the market-place, and had with an army and fleet called the murderers to account. The senate of this period likewise ordered a monument to be raised to Gnaeus Octavius, as ancestral custom prescribed; but instead of embarking troops for Syria they recognized Demetrius as king of the land. They were forsooth now so powerful, that it seemed superfluous to guard their own honour. In like manner not only was Cyprus retained by Egypt in spite of the decree of the senate to the contrary, but, when after the death of Philometor (608) Euergetes succeeded him and so reunited the divided kingdom, the senate allowed this also to take place without opposition.

India, Bactria

After such occurrences the Roman influence in these countries was practically shattered, and events pursued their course there for the present without the help of the Romans; but it is necessary for the right understanding of the sequel that we should not wholly omit to notice the history of the nearer, and even of the more remote, east. While in Egypt, shut off as it is on all sides, the status quo did not so easily admit of change, in Asia both to the west and east of the Euphrates the peoples and states underwent essential modifications during, and partly in consequence of, this temporary suspension of the Roman superintendence. Beyond the great desert of Iran there had arisen not long after Alexander the Great the kingdom of Palimbothra under Chandragupta (Sandracottus) on the Indus, and the powerful Bactrian state on the upper Oxus, both formed from a mixture of national elements with the most eastern offshoots of Hellenic civilization.

Decline of the Kingdom of Asia

To the west of these began the kingdom of Asia, which, although diminished under Antiochus the Great, still stretched its unwieldy bulk from the Hellespont to the Median and Persian provinces, and embraced the whole basin of the Euphrates and Tigris. That king had still carried his arms beyond the desert into the territory of the Parthians and Bactrians; it was only under him that the vast state had begun to melt away. Not only had western Asia been lost in consequence of the battle of Magnesia; the total emancipation of the two Cappadocias and the two Armenias—Armenia proper in the northeast and the region of Sophene in the south-west—and their conversion from principalities dependent on Syria into independent kingdoms also belong to this period.(38) Of these states Great Armenia in particular, under the Artaxiads, soon attained to a considerable position. Wounds perhaps still more dangerous were inflicted on the empire by the foolish levelling policy of his successor Antiochus Epiphanes (579-590). Although it was true that his kingdom resembled an aggregation of countries rather than a single state, and that the differences of nationality and religion among his subjects placed the most material obstacles in the way of the government, yet the plan of introducing throughout his dominions Helleno-Roman manners and Helleno-Roman worship and of equalizing the various peoples in a political as well as a religious point of view was under any circumstances a folly; and all the more so from the fact, that this caricature of Joseph II was personally far from equal to so gigantic an enterprise, and introduced his reforms in the very worst way by the pillage of temples on the greatest scale and the most insane persecution of heretics.

The Jews

One consequence of this policy was, that the inhabitants of the province next to the Egyptian frontier, the Jews, a people formerly submissive even to humility and extremely active and industrious, were driven by systematic

religious persecution to open revolt (about 587). The matter came to the senate; and, as it was just at that time with good reason indignant at Demetrius Soter and apprehensive of a combination between the Attalids and Seleucids, while the establishment of a power intermediate between Syria and Egypt was at any rate for the interest of Rome, it made no difficulty in at once recognizing the freedom and autonomy of the insurgent nation (about 593). Nothing, however, was done by Rome for the Jews except what could be done without personal exertion: in spite of the clause of the treaty concluded between the Romans and the Jews which promised Roman aid to the latter in the event of their being attacked, and in spite of the injunction addressed to the kings of Syria and Egypt not to march their troops through Judaea, it was of course entirely left to the Jews themselves to hold their ground against the Syrian kings. The brave and prudent conduct of the insurrection by the heroic family of the Maccabees and the internal dissension in the Syrian empire did more for them than the letters of their powerful allies; during the strife between the Syrian kings Trypho and Demetrius Nicator autonomy and exemption from tribute were formally accorded to the Jews (612); and soon afterwards the head of the Maccabaeian house, Simon son of Mattathias, was even formally acknowledged by the nation as well as by the Syrian great-king as high priest and prince of Israel (615).(39)

The Parthian Empire

Of still more importance in the sequel than this insurrection of the Israelites was the contemporary movement—probably originating from the same cause—in the eastern provinces, where Antiochus Epiphanes emptied the temples of the Persian gods just as he had emptied that at Jerusalem, and doubtless accorded no better treatment there to the adherents of Ahuramazda and Mithra than here to those of Jehovah. Just as in Judaea—only with a wider range and ampler proportions—the result was a reaction

on the part of the native manners and the native religion against Hellenism and the Hellenic gods; the promoters of this movement were the Parthians, and out of it arose the great Parthian empire. The "Parthwa," or Parthians, who are early met with as one of the numerous peoples merged in the great Persian empire, at first in the modern Khorasan to the south-east of the Caspian sea, appear after 500 under the Scythian, i. e. Turanian, princely race of the Arsacids as an independent state; which, however, only emerged from its obscurity about a century afterwards. The sixth Arsaces, Mithradates I (579?-618?), was the real founder of the Parthian as a great power. To him succumbed the Bactrian empire, in itself far more powerful, but already shaken to the very foundation partly by hostilities with the hordes of Scythian horsemen from Turan and with the states of the Indus, partly by internal disorders. He achieved almost equal successes in the countries to the west of the great desert. The Syrian empire was just then in the utmost disorganization, partly through the failure of the Hellenizing attempts of Antiochus Epiphanes, partly through the troubles as to the succession that occurred after his death; and the provinces of the interior were in full course of breaking off from Antioch and the region of the coast. In Commagene for instance, the most northerly province of Syria on the Cappadocian frontier, the satrap Ptolemaeus asserted his independence, as did also on the opposite bank of the Euphrates the prince of Edessa in northern Mesopotamia or the province of Osrhoene, and the satrap Timarchus in the important province of Media; in fact the latter got his independence confirmed by the Roman senate, and, supported by Armenia as his ally, ruled as far down as Seleucia on the Tigris. Disorders of this sort were permanent features of the Asiatic empire: the provinces under their partially or wholly independent satraps were in continual revolt, as was also the capital with its unruly and refractory populace resembling that of Rome or Alexandria. The whole pack of neighbouring kings—those of Egypt, Armenia, Cappadocia, Pergamus—incessantly interfered in the affairs of

Syria and fostered disputes as to the succession, so that civil war and the division of the sovereignty de facto among two or more pretenders became almost standing calamities of the country. The Roman protecting power, if it did not instigate these neighbours, was an inactive spectator. In addition to all this the new Parthian empire from the eastward pressed hard on the aliens not merely with its material power, but with the whole superiority of its national language and religion and of its national military and political organization. This is not yet the place for a description of this regenerated empire of Cyrus; it is sufficient to mention generally the fact that powerful as was the influence of Hellenism in its composition, the Parthian state, as compared with that of the Seleucids, was based on a national and religious reaction, and that the old Iranian language, the order of the Magi and the worship of Mithra, the Oriental feudatory system, the cavalry of the desert and the bow and arrow, first emerged there in renewed and superior opposition to Hellenism. The position of the imperial kings in presence of all this was really pitiable. The family of the Seleucids was by no means so enervated as that of the Lagids for instance, and individuals among them were not deficient in valour and ability; they reduced, it may be, one or another of those numerous rebels, pretenders, and intermeddlers to due bounds; but their dominion was so lacking in a firm foundation, that they were unable to impose even a temporary check on anarchy. The result was inevitable. The eastern provinces of Syria under their unprotected or even insurgent satraps fell into subjection to the Parthians; Persia, Babylonia, Media were for ever severed from the Syrian empire; the new state of the Parthians reached on both sides of the great desert from the Oxus and the Hindoo Coosh to the Tigris and the Arabian desert—once more, like the Persian empire and all the older great states of Asia, a pure continental monarchy, and once more, just like the Persian empire, engaged in perpetual feud on the one side with the peoples of Turan, on the other with the Occidentals. The Syrian state embraced at the most Mesopotamia in

addition to the region of the coast, and disappeared, more in consequence of its internal disorganization than of its diminished size, for ever from the ranks of the great states. If the danger— which was repeatedly imminent— of a total subjugation of the land by the Parthians was averted, that result must be ascribed not to the resistance of the last Seleucids and still less to the influence of Rome, but rather to the manifold internal disturbances in the Parthian empire itself, and above all to the incursions of the peoples of the Turanian steppes into its eastern provinces.

Reaction of the East against the West

This revolution in the relations of the peoples in the interior of Asia is the turning-point in the history of antiquity. The tide of national movement, which had hitherto poured from the west to the east and had found in Alexander the Great its last and highest expression, was followed by the ebb. On the establishment of the Parthian state not only were such Hellenic elements, as may still perhaps have been preserved in Bactria and on the Indus, lost, but western Iran also relapsed into the track which had been abandoned for centuries but was not yet obliterated. The Roman senate sacrificed the first essential result of the policy of Alexander, and thereby paved the way for that retrograde movement, whose last offshoots ended in the Alhambra of Granada and in the great Mosque of Constantinople. So long as the country from Ragae and Persepolis to the Mediterranean obeyed the king of Antioch, the power of Rome extended to the border of the great desert; the Parthian state could never take its place among the dependencies of the Mediterranean empire, not because it was so very powerful, but because it had its centre far from the coast, in the interior of Asia. Since the time of Alexander the world had obeyed the Occidentals alone, and the east seemed to be for these merely what America and Australia afterwards became for the Europeans; with Mithradates I the east re-entered the sphere of political movement. The world had again two masters.

Maritime Relations

Piracy

It remains that we glance at the maritime relations of this period; although there is hardly anything else to be said, than that there no longer existed anywhere a naval power. Carthage was annihilated; the war-fleet of Syria was destroyed in accordance with the treaty; the war-marine of Egypt, once so powerful, was under its present indolent rulers in deep decay. The minor states, and particularly the mercantile cities, had doubtless some armed transports; but these were not even adequate for the task—so difficult in the Mediterranean—of repressing piracy. This task necessarily devolved on Rome as the leading power in the Mediterranean. While a century previously the Romans had come forward in this matter with especial and salutary decision, and had in particular introduced their supremacy in the east by a maritime police energetically handled for the general good,(40) the complete nullity of this police at the very beginning of this period as distinctly betokens the fearfully rapid decline of the aristocratic government. Rome no longer possessed a fleet of her own; she was content to make requisitions for ships, when it seemed necessary, from the maritime towns of Italy, Asia Minor, and elsewhere. The consequence naturally was, that buccaneering became organized and consolidated. Something, perhaps, though not enough, was done towards its suppression, so far as the direct power of the Romans extended, in the Adriatic and Tyrrhene seas. The expeditions directed against the Dalmatian and Ligurian coasts at this epoch aimed especially at the suppression of piracy in the two Italian seas; for the same reason the Balearic islands were occupied in 631. (41) But in the Mauretanian and Greek waters the inhabitants along the coast and the mariners were left to settle matters with the corsairs in one way or another, as they best could; for Roman policy adhered to the principle of troubling itself as little as possible about these more remote regions. The disorganized and bankrupt commonwealths in the states along

the coast thus left to themselves naturally became places of refuge for the corsairs; and there was no want of such, especially in Asia.

Crete

A bad pre-eminence in this respect belonged to Crete, which, from its favourable situation and the weakness or laxity of the great states of the west and east, was the only one of all the Greek settlements that had preserved its independence. Roman commissions doubtless came and went to this island, but accomplished still less there than they did even in Syria and Egypt. It seemed almost as if fate had left liberty to the Cretans only in order to show what was the result of Hellenic independence. It was a dreadful picture. The old Doric rigour of the Cretan institutions had become, just as in Tarentum, changed into a licentious democracy, and the chivalrous spirit of the inhabitants into a wild love of quarrelling and plunder; a respectable Greek himself testifies, that in Crete alone nothing was accounted disgraceful that was lucrative, and even the Apostle Paul quotes with approval the saying of a Cretan poet,

—Kretes aei pseustai, kaka theria, gasteres argai—.

Perpetual civil wars, notwithstanding the Roman efforts to bring about peace, converted one flourishing township after another on the old "island of the hundred cities" into heaps of ruins. Its inhabitants roamed as robbers at home and abroad, by land and by sea; the island became the recruiting ground for the surrounding kingdoms, after that evil was no longer tolerated in the Peloponnesus, and above all the true seat of piracy; about this period, for instance, the island of Siphnus was thoroughly pillaged by a fleet of Cretan corsairs. Rhodes—which, besides, was unable to recover from the loss of its possessions on the mainland and from the blows inflicted on its commerce⁽⁴²⁾—expended its last energies in the wars which it found itself compelled to wage against the Cretans for the suppression of piracy (about

600), and in which the Romans sought to mediate, but without earnestness and apparently without success.

Cilicia

Along with Crete, Cilicia soon began to become a second home for this buccaneering system. Piracy there not only gained ground owing to the impotence of the Syrian rulers, but the usurper Diodotus Tryphon, who had risen from a slave to be king of Syria (608-615), encouraged it by all means in his chief seat, the rugged or western Cilicia, with a view to strengthen his throne by the aid of the corsairs. The uncommonly lucrative character of the traffic with the pirates, who were at once the principal captors of, and dealers in slaves, procured for them among the mercantile public, even in Alexandria, Rhodes, and Delos, a certain toleration, in which the very governments shared at least by inaction. The evil was so serious that the senate, about 611, sent its best man Scipio Aemilianus to Alexandria and Syria, in order to ascertain on the spot what could be done in the matter. But diplomatic representations of the Romans did not make weak governments strong; there was no other remedy but that of directly maintaining a fleet in these waters, and for this the Roman government lacked energy and perseverance. So all things just remained on the old footing; the piratic fleet was the only considerable naval power in the Mediterranean; the capture of men was the only trade that flourished there. The Roman government was an onlooker; but the Roman merchants, as the best customers in the slave market, kept up an active and friendly traffic with the pirate captains, as the most important wholesale dealers in that commodity, at Delos and elsewhere.

General Result

We have followed the transformation of the outward relations of Rome and the Romano-Hellenic world generally in its leading outlines, from the

battle of Pydna to the period of the Gracchi, from the Tagus and the Bagra das to the Nile and the Euphrates. It was a great and difficult problem which Rome undertook, when she undertook to govern this Romano-Hellenic world; it was not wholly misunderstood, but it was by no means solved. The untenableness of the idea of Cato's time—that the state should be limited to Italy, and that its rule beyond Italy should be only over clients—was doubtless discerned by the leading men of the following generation; and the necessity of substituting for this ruling by clientship a direct sovereignty of Rome, that should preserve the liberties of the communities, was doubtless recognized. But instead of carrying out this new arrangement firmly, speedily, and uniformly, they annexed isolated provinces just as convenience, caprice, collateral advantage, or accident led them to do so; whereas the greater portion of the territory under clientship either remained in the intolerable uncertainty of its former position, or even, as was the case with Syria especially, withdrew entirely from the influence of Rome. And even the government itself degenerated more and more into a feeble and short-sighted selfishness. They were content with governing from one day to another, and merely transacting the current business as exigency required. They were stern masters towards the weak. When the city of Mylasa in Caria sent to Publius Crassus, consul in 623, a beam for the construction of a battering-ram different from what he had asked, the chief magistrate of the town was scourged for it; and Crassus was not a bad man, and a strictly upright magistrate. On the other hand sternness was wanting in those cases where it would have been in place, as in dealing with the barbarians on the frontiers and with the pirates. When the central government renounced all superintendence and all oversight of provincial affairs, it entirely abandoned not only the interests of the subjects, but also those of the state, to the governor of the day. The events which occurred in Spain, unimportant in themselves, are instructive in this respect. In that country, where the government was less able than in other provinces to

confine itself to the part of a mere onlooker, the law of nations was directly trampled under foot by the Roman governors; and the honour of Rome was permanently dragged in the mire by a faithlessness and treachery without parallel, by the most wanton trifling with capitulations and treaties, by massacring people who had submitted and instigating the assassination of the generals of the enemy. Nor was this all; war was even waged and peace concluded against the expressed will of the supreme authority in Rome, and unimportant incidents, such as the disobedience of the Numantines, were developed by a rare combination of perversity and folly into a crisis of fatal moment for the state. And all this took place without any effort to visit it with even a serious penalty in Rome. Not only did the sympathies and rivalries of the different coteries in the senate contribute to decide the filling up of the most important places and the treatment of the most momentous political questions; but even thus early the money of foreign dynasts found its way to the senators of Rome. Timarchus, the envoy of Antiochus Epiphanes king of Syria (590), is mentioned as the first who attempted with success to bribe the Roman senate; the bestowal of presents from foreign kings on influential senators soon became so common, that surprise was excited when Scipio Aemilianus cast into the military chest the gifts from the king of Syria which reached him in camp before Numantia. The ancient principle, that rule was its own sole reward and that such rule was as much a duty and a burden as a privilege and a benefit, was allowed to fall wholly into abeyance. Thus there arose the new state-economy, which turned its eyes away from the taxation of the burgesses, but regarded the body of subjects, on the other hand, as a profitable possession of the community, which it partly worked out for the public benefit, partly handed over to be worked out by the burgesses. Not only was free scope allowed with criminal indulgence to the unscrupulous greed of the Roman merchant in the provincial administration, but even the commercial rivals who were disagreeable to him were cleared away by the armies of the state, and the

most glorious cities of neighbouring lands were sacrificed, not to the barbarism of the lust of power, but to the far more horrible barbarism of speculation. By the ruin of the earlier military organization, which certainly imposed heavy burdens on the burgesses, the state, which was solely dependent in the last resort on its military superiority, undermined its own support. The fleet was allowed to go to ruin; the system of land warfare fell into the most incredible decay. The duty of guarding the Asiatic and African frontiers was devolved on the subjects; and what could not be so devolved, such as the defence of the frontier in Italy, Macedonia, and Spain, was managed after the most wretched fashion. The better classes began to disappear so much from the army, that it was already difficult to raise the necessary number of officers for the Spanish armies. The daily increasing aversion to the Spanish war-service in particular, combined with the partiality shown by the magistrates in the levy, rendered it necessary in 602 to abandon the old practice of leaving the selection of the requisite number of soldiers from the men liable to serve to the free discretion of the officers, and to substitute for it the drawing lots on the part of all the men liable to service—certainly not to the advantage of the military esprit de corps, or of the warlike efficiency of the individual divisions. The authorities, instead of acting with vigour and sternness, extended their pitiful flattery of the people even to this field; whenever a consul in the discharge of his duty instituted rigorous levies for the Spanish service, the tribunes made use of their constitutional right to arrest him (603, 616); and it has been already observed, that Scipio's request that he should be allowed a levy for the Numantine war was directly rejected by the senate. Accordingly the Roman armies before Carthage or Numantia already remind one of those Syrian armies, in which the number of bakers, cooks, actors, and other non-combatants exceeded fourfold that of the so-called soldiers; already the Roman generals are little behind their Carthaginian colleagues in the art of ruining armies, and the wars in Africa as in Spain, in Macedonia as in Asia,

are regularly opened with defeats; the murder of Gnaeus Octavius is now passed over in silence; the assassination of Viriathus is now a masterpiece of Roman diplomacy; the conquest of Numantia is now a great achievement. How completely the idea of national and manly honour was already lost among the Romans, was shown with epigrammatic point by the statue of the stripped and bound Mancinus, which he himself, proud of his patriotic devotedness, caused to be erected in Rome. Wherever we turn our eyes, we find the internal energy as well as the external power of Rome rapidly on the decline. The ground won in gigantic struggles is not extended, nor in fact even maintained, in this period of peace. The government of the world, which it was difficult to achieve, it was still more difficult to preserve; the Roman senate had mastered the former task, but it broke down under the latter.

CHAPTER II

The Reform Movement and Tiberius Gracchus

The Roman Government before the Period of the Gracchi

For a whole generation after the battle of Pydna the Roman state enjoyed a profound calm, scarcely varied by a ripple here and there on the surface. Its dominion extended over the three continents; the lustre of the Roman power and the glory of the Roman name were constantly on the increase; all eyes rested on Italy, all talents and all riches flowed thither; it seemed as if a golden age of peaceful prosperity and intellectual enjoyment of life could not but there begin. The Orientals of this period told each other with astonishment of the mighty republic of the west, "which subdued kingdoms far and near, and whoever heard its name trembled; but it kept good faith with its friends and clients. Such was the glory of the Romans, and yet no one usurped the crown and no one paraded in purple dress; but they obeyed whomsoever from year to year they made their master, and there was among them neither envy nor discord."

Spread of Decay

So it seemed at a distance; matters wore a different aspect on a closer view. The government of the aristocracy was in full train to destroy its own work. Not that the sons and grandsons of the vanquished at Cannae and of

the victors at Zama had so utterly degenerated from their fathers and grandfathers; the difference was not so much in the men who now sat in the senate, as in the times. Where a limited number of old families of established wealth and hereditary political importance conducts the government, it will display in seasons of danger an incomparable tenacity of purpose and power of heroic self-sacrifice, just as in seasons of tranquillity it will be shortsighted, selfish, and negligent—the germs of both results are essentially involved in its hereditary and collegiate character. The morbid matter had been long in existence, but it needed the sun of prosperity to develop it. There was a profound meaning in the question of Cato, "What was to become of Rome, when she should no longer have any state to fear?" That point had now been reached. Every neighbour whom she might have feared was politically annihilated; and of the men who had been reared under the old order of things in the severe school of the Hannibalic war, and whose words still sounded as echoes of that mighty epoch so long as they survived, death called one after another away, till at length even the voice of the last of them, the veteran Cato, ceased to be heard in the senate-house and in the Forum. A younger generation came to the helm, and their policy was a sorry answer to that question of the old patriot. We have already spoken of the shape which the government of the subjects and the external policy of Rome assumed in their hands. In internal affairs they were, if possible, still more disposed to let the ship drive before the wind: if we understand by internal government more than the transaction of current business, there was at this period no government in Rome at all. The single leading thought of the governing corporation was the maintenance and, if possible, the increase of their usurped privileges. It was not the state that had a title to get the right and best man for its supreme magistracy; but every member of the coterie had an inborn title to the highest office of the state—a title not to be prejudiced either by the unfair rivalry of men of his own class or by the encroachments of the excluded.

Accordingly the clique proposed to itself, as its most important political aim, the restriction of re-election to the consulship and the exclusion of "new men"; and in fact it succeeded in obtaining the legal prohibition of the former about 603,(1) and in sufficing with a government of aristocratic nobodies. Even the inaction of the government in its outward relations was doubtless connected with this policy of the nobility, exclusive towards commoners, and distrustful towards the individual members of their own order. By no surer means could they keep commoners, whose deeds were their patent of nobility, aloof from the pure circles of the aristocracy than by giving no opportunity to any one to perform deeds at all; to the existing government of general mediocrity even an aristocratic conqueror of Syria or Egypt would have proved extremely inconvenient.

Attempts at Reform

Permanent Criminal Commissions

Vote by Ballot

Exclusion of the Senators from the Equestrian Centuries

The Public Elections

It is true that now also there was no want of opposition, and it was even to a certain extent effectual. The administration of justice was improved. The administrative jurisdiction, which the senate exercised either of itself or, on occasion, by extraordinary commissions, over the provincial magistrates, was confessedly inadequate. It was an innovation with a momentous bearing on the whole public life of the Roman community, when in 605, on the proposal of Lucius Calpurnius Piso, a standing senatorial commission (-quaestio ordinaria-) was instituted to try in judicial form the complaints of the provincials against the Roman magistrates placed over them on the score of extortion. An effort was made to emancipate the comitia from the predominant influence of the aristocracy. The panacea of Roman democracy was secret voting in the assemblies of

the burgesses, which was introduced first for the elections of magistrates by the Gabinian law (615), then for the public tribunals by the Cassian law (617), lastly for the voting on legislative proposals by the Papirian law (623). In a similar way soon afterwards (about 625) the senators were by decree of the people enjoined on admission to the senate to surrender their public horse, and thereby to renounce their privileged place in the voting of the eighteen equestrian centuries.⁽²⁾ These measures, directed to the emancipation of the electors from the ruling aristocratic order, may perhaps have seemed to the party which suggested them the first step towards a regeneration of the state; in fact they made not the slightest change in the nullity and want of freedom of the legally supreme organ of the Roman community; that nullity indeed was only the more palpably evinced to all whom it did or did not concern. Equally ostentatious and equally empty was the formal recognition accorded to the independence and sovereignty of the burgesses by the transference of their place of assembly from the old Comitium below the senate-house to the Forum (about 609). But this hostility between the formal sovereignty of the people and the practically subsisting constitution was in great part a semblance. Party phrases were in free circulation: of the parties themselves there was little trace in matters really and directly practical. Throughout the whole seventh century the annual public elections to the civil magistracies, especially to the consulship and censorship, formed the real standing question of the day and the focus of political agitation; but it was only in isolated and rare instances that the different candidates represented opposite political principles; ordinarily the question related purely to persons, and it was for the course of affairs a matter of indifference whether the majority of the votes fell to a Caecilian or to a Cornelian. The Romans thus lacked that which outweighs and compensates all the evils of party-life—the free and common movement of the masses towards what they discern as a befitting aim—and yet endured all those evils solely for the benefit of the paltry game of the ruling coteries.

It was comparatively easy for the Roman noble to enter on the career of office as quaestor or tribune of the people; but the consulship and the censorship were attainable by him only through great exertions prolonged for years. The prizes were many, but those really worth having were few; the competitors ran, as a Roman poet once said, as it were over a racecourse wide at the starting-point but gradually narrowing its dimensions. This was right, so long as the magistracy was—what it was called—an "honour" and men of military, political, or juristic ability were rival competitors for the rare chaplets; but now the practical closeness of the nobility did away with the benefit of competition, and left only its disadvantages. With few exceptions the young men belonging to the ruling families crowded into the political career, and hasty and premature ambition soon caught at means more effective than was useful action for the common good. The first requisite for a public career came to be powerful connections; and therefore that career began, not as formerly in the camp, but in the ante-chambers of influential men. A new and genteel body of clients now undertook—what had formerly been done only by dependents and freedmen—to come and wait on their patron early in the morning, and to appear publicly in his train. But the mob also is a great lord, and desires as such to receive attention. The rabble began to demand as its right that the future consul should recognize and honour the sovereign people in every ragged idler of the street, and that every candidate should in his "going round" (-ambitus-) salute every individual voter by name and press his hand. The world of quality readily entered into this degrading canvass. The true candidate cringed not only in the palace, but also on the street, and recommended himself to the multitude by flattering attentions, indulgences, and civilities more or less refined. Demagogism and the cry for reforms were sedulously employed to attract the notice and favour of the public; and they were the more effective, the more they attacked not things but persons. It became the custom for beardless youths of genteel birth to introduce themselves with -

eclat- into public life by playing afresh the part of Cato with the immature passion of their boyish eloquence, and by constituting and proclaiming themselves state-attorneys, if possible, against some man of very high standing and very great unpopularity; the Romans suffered the grave institutions of criminal justice and of political police to become a means of soliciting office. The provision or, what was still worse, the promise of magnificent popular amusements had long been the, as it were legal, prerequisite to the obtaining of the consulship;(3) now the votes of the electors began to be directly purchased with money, as is shown by the prohibition issued against this about 595. Perhaps the worst consequence of the continual courting of the favour of the multitude by the ruling aristocracy was the incompatibility of such a begging and fawning part with the position which the government should rightfully occupy in relation to the governed. The government was thus converted from a blessing into a curse for the people. They no longer ventured to dispose of the property and blood of the burgesses, as exigency required, for the good of their country. They allowed the burgesses to become habituated to the dangerous idea that they were legally exempt from the payment of direct taxes even by way of advance—after the war with Perseus no further advance had been asked from the community. They allowed their military system to decay rather than compel the burgesses to enter the odious transmarine service; how it fared with the individual magistrates who attempted to carry out the conscription according to the strict letter of the law, has already been related.(4)

Optimates and Populares

In the Rome of this epoch the two evils of a degenerate oligarchy and a democracy still undeveloped but already cankered in the bud were interwoven in a manner pregnant with fatal results. According to their party names, which were first heard during this period, the "Optimates" wished to

give effect to the will of the best, the "Populares" to that of the community; but in fact there was in the Rome of that day neither a true aristocracy nor a truly self-determining community. Both parties contended alike for shadows, and numbered in their ranks none but enthusiasts or hypocrites. Both were equally affected by political corruption, and both were in fact equally worthless. Both were necessarily tied down to the status quo, for neither on the one side nor on the other was there found any political idea—to say nothing of any political plan—reaching beyond the existing state of things; and accordingly the two parties were so entirely in agreement that they met at every step as respected both means and ends, and a change of party was a change of political tactics more than of political sentiments. The commonwealth would beyond doubt have been a gainer, if either the aristocracy had directly introduced a hereditary rotation instead of election by the burgesses, or the democracy had produced from within it a real demagogic government. But these Optimates and these Populares of the beginning of the seventh century were far too indispensable for each other to wage such internecine war; they not only could not destroy each other, but, even if they had been able to do so, they would not have been willing. Meanwhile the commonwealth was politically and morally more and more unhinged, and was verging towards utter disorganization.

Social Crisis

The crisis with which the Roman revolution was opened arose not out of this paltry political conflict, but out of the economic and social relations which the Roman government allowed, like everything else, simply to take their course, and which thus found opportunity to bring the morbid matter, that had been long fermenting, without hindrance and with fearful rapidity and violence to maturity. From a very early period the Roman economy was based on the two factors —always in quest of each other, and always at variance—the husbandry of the small farmer and the money of the

capitalist. The latter in the closest alliance with landholding on a great scale had already for centuries waged against the farmer-class a war, which seemed as though it could not but terminate in the destruction first of the farmers and thereafter of the whole commonwealth, but was broken off without being properly decided in consequence of the successful wars and the comprehensive and ample distribution of domains for which these wars gave facilities. It has already been shown(5) that in the same age, which renewed the distinction between patricians and plebeians under altered names, the disproportionate accumulation of capital was preparing a second assault on the farming system. It is true that the method was different. Formerly the small farmer had been ruined by advances of money, which practically reduced him to be the steward of his creditor; now he was crushed by the competition of transmarine, and especially of slave-grown, corn. The capitalists kept pace with the times; capital, while waging war against labour or in other words against the liberty of the person, of course, as it had always done, under the strictest form of law, waged it no longer in the unseemly fashion which converted the free man on account of debt into a slave, but, throughout, with slaves legitimately bought and paid; the former usurer of the capital appeared in a shape conformable to the times as the owner of industrial plantations. But the ultimate result was in both cases the same—the depreciation of the Italian farms; the supplanting of the petty husbandry, first in a part of the provinces and then in Italy, by the farming of large estates; the prevailing tendency to devote the latter in Italy to the rearing of cattle and the culture of the olive and vine; finally, the replacing of the free labourers in the provinces as in Italy by slaves. Just as the nobility was more dangerous than the patriciate, because the former could not, like the latter, be set aside by a change of the constitution; so this new power of capital was more dangerous than that of the fourth and fifth centuries, because nothing was to be done against it by changes in the law of the land.

Slavery and Its Consequences

Before we attempt to describe the course of this second great conflict between labour and capital, it is necessary to give here some indication of the nature and extent of the system of slavery. We have not now to do with the old, in some measure innocent, rural slavery, under which the farmer either tilled the field along with his slave, or, if he possessed more land than he could manage, placed the slave—either as steward or as a sort of lessee obliged to render up a portion of the produce—over a detached farm.(6) Such relations no doubt existed at all times—around Comum, for instance, they were still the rule in the time of the empire—but as exceptional features in privileged districts and on humanely-managed estates. What we now refer to is the system of slavery on a great scale, which in the Roman state, as formerly in the Carthaginian, grew out of the ascendancy of capital. While the captives taken in war and the hereditary transmission of slavery sufficed to keep up the stock of slaves during the earlier period, this system of slavery was, just like that of America, based on the methodically-prosecuted hunting of man; for, owing to the manner in which slaves were used with little regard to their life or propagation, the slave population was constantly on the wane, and even the wars which were always furnishing fresh masses to the slave-market were not sufficient to cover the deficit. No country where this species of game could be hunted remained exempt from visitation; even in Italy it was a thing by no means unheard of, that the poor freeman was placed by his employer among the slaves. But the Negroland of that period was western Asia,(7) where the Cretan and Cilician corsairs, the real professional slave-hunters and slave-dealers, robbed the coasts of Syria and the Greek islands; and where, emulating their feats, the Roman revenue-farmers instituted human hunts in the client states and incorporated those whom they captured among their slaves. This was done to such an extent, that about 650 the king of Bithynia declared himself unable to furnish the required contingent, because all the people capable of labour

had been dragged off from his kingdom by the revenue-farmers. At the great slave-market in Delos, where the slave-dealers of Asia Minor disposed of their wares to Italian speculators, on one day as many as 10,000 slaves are said to have been disembarked in the morning and to have been all sold before evening—a proof at once how enormous was the number of slaves delivered, and how, notwithstanding, the demand still exceeded the supply. It was no wonder. Already in describing the Roman economy of the sixth century we have explained that it was based, like all the large undertakings of antiquity generally, on the employment of slaves.(8) In whatever direction speculation applied itself, its instrument was without exception man reduced in law to a beast of burden. Trades were in great part carried on by slaves, so that the proceeds fell to the master. The levying of the public revenues in the lower grades was regularly conducted by the slaves of the associations that leased them. Servile hands performed the operations of mining, making pitch, and others of a similar kind; it became early the custom to send herds of slaves to the Spanish mines, whose superintendents readily received them and paid a high rent for them. The vine and olive harvest in Italy was not conducted by the people on the estate, but was contracted for by a slave-owner. The tending of cattle was universally performed by slaves. We have already mentioned the armed, and frequently mounted, slave-herdsmen in the great pastoral ranges of Italy;(9) and the same sort of pastoral husbandry soon became in the provinces also a favourite object of Roman speculation—Dalmatia, for instance, was hardly acquired (599) when the Roman capitalists began to prosecute the rearing of cattle there on a great scale after the Italian fashion. But far worse in every respect was the plantation-system proper—the cultivation of the fields by a band of slaves not unfrequently branded with iron, who with shackles on their legs performed the labours of the field under overseers during the day, and were locked up together by night in the common, frequently subterranean, labourers' prison. This plantation-system had migrated from

the east to Carthage,(10) and seems to have been brought by the Carthaginians to Sicily, where, probably for this reason, it appears developed earlier and more completely than in any other part of the Roman dominions.(11) We find the territory of Leontini, about 30,000 -jugera- of arable land, which was let on lease as Roman domain(12) by the censors, divided some decades after the time of the Gracchi among not more than 84 lessees, to each of whom there thus fell on an average 360 jugera, and among whom only one was a Leontine; the rest were foreign, mostly Roman, speculators. We see from this instance with what zeal the Roman speculators there walked in the footsteps of their predecessors, and what extensive dealings in Sicilian cattle and Sicilian slave-corn must have been carried on by the Roman and Non-Roman speculators who covered the fair island with their pastures and plantations. Italy however still remained for the present substantially exempt from this worst form of slave-husbandry. Although in Etruria, where the plantation-system seems to have first emerged in Italy, and where it existed most extensively at least forty years afterwards, it is extremely probable that even now -ergastula- were not wanting; yet Italian agriculture at this epoch was still chiefly carried on by free persons or at any rate by non-fettered slaves, while the greater tasks were frequently let out to contractors. The difference between Italian and Sicilian slavery is very clearly apparent from the fact, that the slaves of the Mamertine community, which lived after the Italian fashion, were the only slaves who did not take part in the Sicilian servile revolt of 619-622.

The abyss of misery and woe, which opens before our eyes in this most miserable of all proletariates, may be fathomed by those who venture to gaze into such depths; it is very possible that, compared with the sufferings of the Roman slaves, the sum of all Negro sufferings is but a drop. Here we are not so much concerned with the hardships of the slaves themselves as with the perils which they brought upon the Roman state, and with the conduct of the government in confronting them. It is plain that this

proletariate was not called into existence by the government and could not be directly set aside by it; this could only have been accomplished by remedies which would have been still worse than the disease. The duty of the government was simply, on the one hand, to avert the direct danger to property and life, with which the slave-proletariate threatened the members of the state, by an earnest system of police for securing order; and on the other hand, to aim at the restriction of the proletariate, as far as possible, by the elevation of free labour. Let us see how the Roman aristocracy executed these two tasks.

Insurrection of the Slaves The First Sicilian Slave War

The servile conspiracies and servile wars, breaking out everywhere, illustrate their management as respects police. In Italy the scenes of disorder, which were among the immediate painful consequences of the Hannibalic war,(13) seemed now to be renewed; all at once the Romans were obliged to seize and execute in the capital 150, in Minturnae 450, in Sinuessa even 4000 slaves (621). Still worse, as may be conceived, was the state of the provinces. At the great slave-market at Delos and in the Attic silver-mines about the same period the revolted slaves had to be put down by force of arms. The war against Aristonicus and his "Heliopolites" in Asia Minor was in substance a war of the landholders against the revolted slaves. (14) But worst of all, naturally, was the condition of Sicily, the chosen land of the plantation system. Brigandage had long been a standing evil there, especially in the interior; it began to swell into insurrection. Damophilus, a wealthy planter of Enna (Castrogiovanni), who vied with the Italian lords in the industrial investment of his living capital, was attacked and murdered by his exasperated rural slaves; whereupon the savage band flocked into the town of Enna, and there repeated the same process on a greater scale. The slaves rose in a body against their masters, killed or enslaved them, and

summoned to the head of the already considerable insurgent army a juggler from Apamea in Syria who knew how to vomit fire and utter oracles, formerly as a slave named Eunus, now as chief of the insurgents styled Antiochus king of the Syrians. And why not? A few years before another Syrian slave, who was not even a prophet, had in Antioch itself worn the royal diadem of the Seleucids.(15) The Greek slave Achaeus, the brave "general" of the new king, traversed the island, and not only did the wild herdsmen flock from far and near to the strange standards, but the free labourers also, who bore no goodwill to the planters, made common cause with the revolted slaves. In another district of Sicily Cleon, a Cilician slave, formerly in his native land a daring bandit, followed the example which had been set and occupied Agrigentum; and, when the leaders came to a mutual understanding, after gaining various minor advantages they succeeded in at last totally defeating the praetor Lucius Hypsaeus in person and his army, consisting mostly of Sicilian militia, and in capturing his camp. By this means almost the whole island came into the power of the insurgents, whose numbers, according to the most moderate estimates, are alleged to have amounted to 70,000 men capable of bearing arms. The Romans found themselves compelled for three successive years (620-622) to despatch consuls and consular armies to Sicily, till, after several undecided and even some unfavourable conflicts, the revolt was at length subdued by the capture of Tauromenium and of Enna. The most resolute men of the insurgents threw themselves into the latter town, in order to hold their ground in that impregnable position with the determination of men who despair of deliverance or of pardon; the consuls Lucius Calpurnius Piso and Publius Rupilius lay before it for two years, and reduced it at last more by famine than by arms.(16)

These were the results of the police system for securing order, as it was handled by the Roman senate and its officials in Italy and the provinces. While the task of getting quit of the proletariat demands and only too often

transcends the whole power and wisdom of a government, its repression by measures of police on the other hand is for any larger commonwealth comparatively easy. It would be well with states, if the unpropertied masses threatened them with no other danger than that with which they are menaced by bears and wolves; only the timid and those who trade upon the silly fears of the multitude prophesy the destruction of civil order through servile revolts or insurrections of the proletariat. But even to this easier task of restraining the oppressed masses the Roman government was by no means equal, notwithstanding the profound peace and the inexhaustible resources of the state. This was a sign of its weakness; but not of its weakness alone. By law the Roman governor was bound to keep the public roads clear and to have the robbers who were caught, if they were slaves, crucified; and naturally, for slavery is not possible without a reign of terror. At this period in Sicily a *razzia* was occasionally doubtless set on foot by the governor, when the roads became too insecure; but, in order not to disoblige the Italian planters, the captured robbers were ordinarily given up by the authorities to their masters to be punished at their discretion; and those masters were frugal people who, if their slave-herdsmen asked clothes, replied with stripes and with the inquiry whether travellers journeyed through the land naked. The consequence of such connivance accordingly was, that OH the subjugation of the slave-revolt the consul Publius Rupilius ordered all that came into his hands alive—it is said upwards of 20,000 men—to be crucified. It was in truth no longer possible to spare capital.

The Italian Farmers

The care of the government for the elevation of free labour, and by consequence for the restriction of the slave-proletariate, promised fruits far more difficult to be gained but also far richer. Unfortunately, in this respect there was nothing done at all. In the first social crisis the landlord had been

enjoined by law to employ a number of free labourers proportioned to the number of his slave labourers.(17) Now at the suggestion of the government a Punic treatise on agriculture,(18) doubtless giving instructions in the system of plantation after the Carthaginian mode, was translated into Latin for the use and benefit of Italian speculators—the first and only instance of a literary undertaking suggested by the Roman senate! The same tendency showed itself in a more important matter, or to speak more correctly in the vital question for Rome—the system of colonization. It needed no special wisdom, but merely a recollection of the course of the first social crisis in Rome, to perceive that the only real remedy against an agricultural proletariat consisted in a comprehensive and duly-regulated system of emigration;(19) for which the external relations of Rome offered the most favourable opportunity. Until nearly the close of the sixth century, in fact, the continuous diminution of the small landholders of Italy was counteracted by the continuous establishment of new farm-allotments.(20) This, it is true, was by no means done to the extent to which it might and should have been done; not only was the domain-land occupied from ancient times by private persons(21) not recalled, but further occupations of newly-won land were permitted; and other very important acquisitions, such as the territory of Capua, while not abandoned to occupation, were yet not brought into distribution, but were let on lease as usufructuary domains. Nevertheless the assignation of land had operated beneficially—giving help to many of the sufferers and hope to all. But after the founding of Luna (577) no trace of further assignations of land is to be met with for a long time, with the exception of the isolated institution of the Picenian colony of Auximum (Osimo) in 597. The reason is simple. After the conquest of the Boii and Apuani no new territory was acquired in Italy excepting the far from attractive Ligurian valleys; therefore no other land existed for distribution there except the leased or occupied domain-land, the laying hands on which was, as may easily be conceived, just as little agreeable to

the aristocracy now as it was three hundred years before. The distribution of the territory acquired out of Italy appeared for political reasons inadmissible; Italy was to remain the ruling country, and the wall of partition between the Italian masters and their provincial servants was not to be broken down. Unless the government were willing to set aside considerations of higher policy or even the interests of their order, no course was left to them but to remain spectators of the ruin of the Italian farmer-class; and this result accordingly ensued. The capitalists continued to buy out the small landholders, or indeed, if they remained obstinate, to seize their fields without title of purchase; in which case, as may be supposed, matters were not always amicably settled. A peculiarly favourite method was to eject the wife and children of the farmer from the homestead, while he was in the field, and to bring him to compliance by means of the theory of "accomplished fact." The landlords continued mainly to employ slaves instead of free labourers, because the former could not like the latter be called away to military service; and thus reduced the free proletariat to the same level of misery with the slaves. They continued to supersede Italian grain in the market of the capital, and to lessen its value over the whole peninsula, by selling Sicilian slave-corn at a mere nominal price. In Etruria the old native aristocracy in league with the Roman capitalists had as early as 620 brought matters to such a pass, that there was no longer a free farmer there. It could be said aloud in the market of the capital, that the beasts had their lairs but nothing was left to the burgesses save the air and sunshine, and that those who were styled the masters of the world had no longer a clod that they could call their own. The census lists of the Roman burgesses furnished the commentary on these words. From the end of the Hannibalic war down to 595 the numbers of the burgesses were steadily on the increase, the cause of which is mainly to be sought in the continuous and considerable distributions of domain-land:(22) after 595 again, when the census yielded 328,000 burgesses capable of bearing arms, there appears a

regular falling-off, for the list in 600 stood at 324,000, that in 607 at 322,000, that in 623 at 319,000 burgesses fit for service—an alarming result for a time of profound peace at home and abroad. If matters were to go on at this rate, the burgess-body would resolve itself into planters and slaves; and the Roman state might at length, as was the case with the Parthians, purchase its soldiers in the slave-market.

Ideas of Reform

Scipio Aemilianus

Such was the external and internal condition of Rome, when the state entered on the seventh century of its existence. Wherever the eye turned, it encountered abuses and decay; the question could not but force itself on every sagacious and well-disposed man, whether this state of things was not capable of remedy or amendment. There was no want of such men in Rome; but no one seemed more called to the great work of political and social reform than Publius Cornelius Scipio Aemilianus Africanus (570-625), the favourite son of Aemilius Paullus and the adopted grandson of the great Scipio, whose glorious surname of Africanus he bore by virtue not merely of hereditary but of personal right. Like his father, he was a man temperate and thoroughly healthy, never ailing in body, and never at a loss to resolve on the immediate and necessary course of action. Even in his youth he had kept aloof from the usual proceedings of political novices—the attending in the antechambers of prominent senators and the delivery of forensic declamations. On the other hand he loved the chase—when a youth of seventeen, after having served with distinction under his father in the campaign against Perseus, he had asked as his reward the free range of the deer forest of the kings of Macedonia which had been untouched for four years—and he was especially fond of devoting his leisure to scientific and literary enjoyment. By the care of his father he had been early initiated into that genuine Greek culture, which elevated him above the insipid

Hellenizing of the semi-culture commonly in vogue; by his earnest and apt appreciation of the good and bad qualities in the Greek character, and by his aristocratic carriage, this Roman made an impression on the courts of the east and even on the scoffing Alexandrians. His Hellenism was especially recognizable in the delicate irony of his discourse and in the classic purity of his Latin. Although not strictly an author, he yet, like Cato, committed to writing his political speeches—they were, like the letters of his adopted sister the mother of the Gracchi, esteemed by the later -litteratores- as masterpieces of model prose—and took pleasure in surrounding himself with the better Greek and Roman -litterati-, a plebeian society which was doubtless regarded with no small suspicion by those colleagues in the senate whose noble birth was their sole distinction. A man morally steadfast and trustworthy, his word held good with friend and foe; he avoided buildings and speculations, and lived with simplicity; while in money matters he acted not merely honourably and disinterestedly, but also with a tenderness and liberality which seemed singular to the mercantile spirit of his contemporaries. He was an able soldier and officer; he brought home from the African war the honorary wreath which was wont to be conferred on those who saved the lives of citizens in danger at the peril of their own, and terminated as general the war which he had begun as an officer; circumstances gave him no opportunity of trying his skill as a general on tasks really difficult. Scipio was not, any more than his father, a man of brilliant gifts—as is indicated by the very fact of his predilection for Xenophon, the sober soldier and correct author- but he was an honest and true man, who seemed pre-eminently called to stem the incipient decay by organic reforms. All the more significant is the fact that he did not attempt it. It is true that he helped, as he had opportunity and means, to redress or prevent abuses, and laboured in particular at the improvement of the administration of justice. It was chiefly by his assistance that Lucius Cassius, an able man of the old Roman austerity and uprightness, was

enabled to carry against the most vehement opposition of the Optimates his law as to voting, which introduced vote by ballot for those popular tribunals which still embraced the most important part of the criminal jurisdiction. (23) In like manner, although he had not chosen to take part in boyish impeachments, he himself in his mature years put upon their trial several of the guiltiest of the aristocracy. In a like spirit, when commanding before Carthage and Numantia, he drove forth the women and priests to the gates of the camp, and subjected the rabble of soldiers once more to the iron yoke of the old military discipline; and when censor (612), he cleared away the smooth-chinned coxcombs among the world of quality and in earnest language urged the citizens to adhere more faithfully to the honest customs of their fathers. But no one, and least of all he himself, could fail to see that increased stringency in the administration of justice and isolated interference were not even first steps towards the healing of the organic evils under which the state laboured. These Scipio did not touch. Gaius Laelius (consul in 614), Scipio's elder friend and his political instructor and confidant, had conceived the plan of proposing the resumption of the Italian domain-land which had not been given away but had been temporarily occupied, and of giving relief by its distribution to the visibly decaying Italian farmers; but he desisted from the project when he saw what a storm he was going to raise, and was thenceforth named the "Judicious." Scipio was of the same opinion. He was fully persuaded of the greatness of the evil, and with a courage deserving of honour he without respect of persons remorselessly assailed it and carried his point, where he risked himself alone; but he was also persuaded that the country could only be relieved at the price of a revolution similar to that which in the fourth and fifth centuries had sprung out of the question of reform, and, rightly or wrongly, the remedy seemed to him worse than the disease. So with the small circle of his friends he held a middle position between the aristocrats, who never forgave him for his advocacy of the Cassian law, and the democrats, whom

he neither satisfied nor wished to satisfy; solitary during his life, praised after his death by both parties, now as the champion of the aristocracy, now as the promoter of reform. Down to his time the censors on laying down their office had called upon the gods to grant greater power and glory to the state: the censor Scipio prayed that they might deign to preserve the state. His whole confession of faith lies in that painful exclamation.

Tiberius Gracchus

But where the man who had twice led the Roman army from deep decline to victory despaired, a youth without achievements had the boldness to give himself forth as the saviour of Italy. He was called Tiberius Sempronius Gracchus (591-621). His father who bore the same name (consul in 577, 591; censor in 585), was the true model of a Roman aristocrat. The brilliant magnificence of his aedilician games, not produced without oppressing the dependent communities, had drawn upon him the severe and deserved censure of the senate;(24) his interference in the pitiful process directed against the Scipios who were personally hostile to him(25) gave proof of his chivalrous feeling, and perhaps of his regard for his own order; and his energetic action against the freedmen in his censorship(26) evinced his conservative disposition. As governor, moreover, of the province of the Ebro,(27) by his bravery and above all by his integrity he rendered a permanent service to his country, and at the same time raised to himself in the hearts of the subject nation an enduring monument of reverence and affection.

His mother Cornelia was the daughter of the conqueror of Zama, who, simply on account of that generous intervention, had chosen his former opponent as a son-in-law; she herself was a highly cultivated and notable woman, who after the death of her much older husband had refused the hand of the king of Egypt and reared her three surviving children in

memory of her husband and her father. Tiberius, the elder of the two sons, was of a good and moral disposition, of gentle aspect and quiet bearing, apparently fitted for anything rather than for an agitator of the masses. In all his relations and views he belonged to the Scipionic circle, whose refined and thorough culture, Greek and national, he and his brother and sister shared. Scipio Aemilianus was at once his cousin and his sister's husband; under him Tiberius, at the age of eighteen, had taken part in the storming of Carthage, and had by his valour acquired the commendation of the stern general and warlike distinctions. It was natural that the able young man should, with all the vivacity and all the stringent precision of youth, adopt and intensify the views as to the pervading decay of the state which were prevalent in that circle, and more especially their ideas as to the elevation of the Italian farmers. Nor was it merely to the young men that the shrinking of Laelius from the execution of his ideas of reform seemed to be not judicious, but weak. Appius Claudius, who had already been consul (611) and censor (618), one of the most respected men in the senate, censured the Scipionic circle for having so soon abandoned the scheme of distributing the domain-lands with all the passionate vehemence which was the hereditary characteristic of the Claudian house; and with the greater bitterness, apparently because he had come into personal conflict with Scipio Aemilianus in his candidature for the censorship. Similar views were expressed by Publius Crassus Mucianus,(28) the -pontifex maximus- of the day, who was held in universal honour by the senate and the citizens as a man and a jurist. Even his brother Publius Mucius Scaevola, the founder of scientific jurisprudence in Rome, seemed not averse to the plan of reform; and his voice was of the greater weight, as he stood in some measure aloof from the parties. Similar were the sentiments of Quintus Metellus, the conqueror of Macedonia and of the Achaeans, but respected not so much on account of his warlike deeds as because he was a model of the old discipline and manners alike in his domestic and his public life. Tiberius

Gracchus was closely connected with these men, particularly with Appius whose daughter he had married, and with Mucianus whose daughter was married to his brother. It was no wonder that he cherished the idea of resuming in person the scheme of reform, so soon as he should find himself in a position which would constitutionally allow him the initiative. Personal motives may have strengthened this resolution. The treaty of peace which Mancinus concluded with the Numantines in 617, was in substance the work of Gracchus;(29) the recollection that the senate had cancelled it, that the general had been on its account surrendered to the enemy, and that Gracchus with the other superior officers had only escaped a like fate through the greater favour which he enjoyed among the burgesses, could not put the young, upright, and proud man in better humour with the ruling aristocracy. The Hellenic rhetoricians with whom he was fond of discussing philosophy and politics, Diophanes of Mytilene and Gaius Blossius of Cumae, nourished within his soul the ideals over which he brooded: when his intentions became known in wider circles, there was no want of approving voices, and many a public placard summoned the grandson of Africanus to think of the poor people and the deliverance of Italy.

Tribunate of Gracchus

His Agrarian Law

Tiberius Gracchus was invested with the tribunate of the people on the 10th of December, 620. The fearful consequences of the previous misgovernment, the political, military, economic, and moral decay of the burgesses, were just at that time naked and open to the eyes of all. Of the two consuls of this year one fought without success in Sicily against the revolted slaves, and the other, Scipio Aemilianus, was employed for months not in conquering, but in crushing a small Spanish country town. If Gracchus still needed a special summons to carry his resolution into effect, he found it in this state of matters which filled the mind of every patriot

with unspeakable anxiety. His father-in-law promised assistance in counsel and action; the support of the jurist Scaevola, who had shortly before been elected consul for 621, might be hoped for. So Gracchus, immediately after entering on office, proposed the enactment of an agrarian law, which in a certain sense was nothing but a renewal of the Licinio-Sextian law of 387. (30) Under it all the state-lands which were occupied and enjoyed by the possessors without remuneration—those that were let on lease, such as the territory of Capua, were not affected by the law—were to be resumed on behalf of the state; but with the restriction, that each occupier should reserve for himself 500 -jugera- and for each son 250 (so as not, however, to exceed 1000 -jugera- in all) in permanent and guaranteed possession, or should be entitled to claim compensation in land to that extent. Indemnification appears to have been granted for any improvements executed by the former holders, such as buildings and plantations. The domain-land thus resumed was to be broken up into lots of 30 jugera; and these were to be distributed partly to burgesses, partly to Italian allies, not as their own free property, but as inalienable heritable leaseholds, whose holders bound themselves to use the land for agriculture and to pay a moderate rent to the state-chest. A -collegium- of three men, who were regarded as ordinary and standing magistrates of the state and were annually elected by the assembly of the people, was entrusted with the work of resumption and distribution; to which was afterwards added the important and difficult function of legally settling what was domain-land and what was private property. The distribution was accordingly designed to go on for an indefinite period until the Italian domains which were very extensive and difficult of adjustment should be regulated. The new features in the Sempronian agrarian law, as compared with the Licinio-Sextian, were, first, the clause in favour of the hereditary possessors; secondly, the leasehold and inalienable tenure proposed for the new allotments; thirdly and especially, the regulated and permanent executive, the want of which

under the older law had been the chief reason why it had remained without lasting practical application.

War was thus declared against the great landholders, who now, as three centuries ago, found substantially their organ in the senate; and once more, after a long interval, a single magistrate stood forth in earnest opposition to the aristocratic government. It took up the conflict in the mode—sanctioned by use and wont for such cases—of paralyzing the excesses of the magistrates by means of the magistracy itself.(31) A colleague of Gracchus, Marcus Octavius, a resolute man who was seriously persuaded of the objectionable character of the proposed domain law, interposed his veto when it was about to be put to the vote; a step, the constitutional effect of which was to set aside the proposal. Gracchus in his turn suspended the business of the state and the administration of justice, and placed his seal on the public chest; the government acquiesced—it was inconvenient, but the year would draw to an end. Gracchus, in perplexity, brought his law to the vote a second time. Octavius of course repeated his -veto-; and to the urgent entreaty of his colleague and former friend, that he would not obstruct the salvation of Italy, he might reply that on that very question, as to how Italy could be saved, opinions differed, but that his constitutional right to use his veto against the proposal of his colleague was beyond all doubt. The senate now made an attempt to open up to Gracchus a tolerable retreat; two consulars challenged him to discuss the matter further in the senate house, and the tribune entered into the scheme with zeal. He sought to construe this proposal as implying that the senate had conceded the principle of distributing the domain-land; but neither was this implied in it, nor was the senate at all disposed to yield in the matter; the discussions ended without any result. Constitutional means were exhausted. In earlier times under such circumstances men were not indisposed to let the proposal go to sleep for the current year, and to take it up again in each succeeding one, till the earnestness of the demand and the pressure of public opinion overbore

resistance. Now things were carried with a higher hand. Gracchus seemed to himself to have reached the point when he must either wholly renounce his reform or begin a revolution. He chose the latter course; for he came before the burgesses with the declaration that either he or Octavius must retire from the college, and suggested to Octavius that a vote of the burgesses should be taken as to which of them they wished to dismiss. Octavius naturally refused to consent to this strange challenge; the -intercessio- existed for the very purpose of giving scope to such differences of opinion among colleagues. Then Gracchus broke off the discussion with his colleague, and turned to the assembled multitude with the question whether a tribune of the people, who acted in opposition to the people, had not forfeited his office; and the assembly, long accustomed to assent to all proposals presented to it, and for the most part composed of the agricultural proletariat which had flocked in from the country and was personally interested in the carrying of the law, gave almost unanimously an affirmative answer. Marcus Octavius was at the bidding of Gracchus removed by the lictors from the tribunes' bench; and then, amidst universal rejoicing, the agrarian law was carried and the first allotment-commissioners were nominated. The votes fell on the author of the law along with his brother Gaius, who was only twenty years of age, and his father-in-law Appius Claudius. Such a family-selection augmented the exasperation of the aristocracy. When the new magistrates applied as usual to the senate to obtain the moneys for their equipment and for their daily allowance, the former was refused, and a daily allowance was assigned to them of 24 -asses- (1 shilling). The feud spread daily more and more, and became more envenomed and more personal. The difficult and intricate task of defining, resuming, and distributing the domains carried strife into every burgess-community, and even into the allied Italian towns.

Further Plans of Gracchus

The aristocracy made no secret that, while they would acquiesce perhaps in the law because they could not do otherwise, the officious legislator should never escape their vengeance; and the announcement of Quintus Pompeius, that he would impeach Gracchus on the very day of his resigning his tribunate, was far from being the worst of the threats thrown out against the tribune. Gracchus believed, probably with reason, that his personal safety was imperilled, and no longer appeared in the Forum without a retinue of 3000 or 4000 men—a step which drew down on him bitter expressions in the senate, even from Metellus who was not averse to reform in itself. Altogether, if he had expected to reach the goal by the carrying of his agrarian law, he had now to learn that he was only at the starting-point. The "people" owed him gratitude; but he was a lost man, if he had no farther protection than this gratitude of the people, if he did not continue indispensable to them and did not constantly attach to himself fresh interests and hopes by means of other and more comprehensive proposals. Just at that time the kingdom and wealth of the Attalids had fallen to the Romans by the testament of the last king of Pergamus;(32) Gracchus proposed to the people that the Pergamene treasure should be distributed among the new landholders for the procuring of the requisite implements and stock, and vindicated generally, in opposition to the existing practice, the right of the burgesses to decide definitively as to the new province. He is said to have prepared farther popular measures, for shortening the period of service, for extending the right of appeal, for abolishing the prerogative of the senators exclusively to do duty as civil jurymen, and even for the admission of the Italian allies to Roman citizenship. How far his projects in reality reached, cannot be ascertained; this alone is certain, that Gracchus saw that his only safety lay in inducing the burgesses to confer on him for a second year the office which protected him, and that, with a view to obtain this unconstitutional prolongation, he held forth a prospect of further reforms. If at first he had risked himself in order to save the commonwealth,

he was now obliged to put the commonwealth at stake in order to his own safety.

He Solicits Re-election to the Tribunate

The tribes met to elect the tribunes for the ensuing year, and the first divisions gave their votes for Gracchus; but the opposite party in the end prevailed with their veto, so far at least that the assembly broke up without having accomplished its object, and the decision was postponed to the following day. For this day Gracchus put in motion all means legitimate and illegitimate; he appeared to the people dressed in mourning, and commended to them his youthful son; anticipating that the election would once more be disturbed by the veto, he made provision for expelling the adherents of the aristocracy by force from the place of assembly in front of the Capitoline temple. So the second day of election came on; the votes fell as on the preceding day, and again the veto was exercised; the tumult began. The burgesses dispersed; the elective assembly was practically dissolved; the Capitoline temple was closed; it was rumoured in the city, now that Tiberius had deposed all the tribunes, now that he had resolved to continue his magistracy without reelection.

Death of Gracchus

The senate assembled in the temple of Fidelity, close by the temple of Jupiter; the bitterest opponents of Gracchus spoke in the sitting; when Tiberius moved his hand towards his forehead to signify to the people, amidst the wild tumult, that his head was in danger, it was said that he was already summoning the people to adorn his brow with the regal chaplet. The consul Scaevola was urged to have the traitor put to death at once. When that temperate man, by no means averse to reform in itself, indignantly refused the equally irrational and barbarous request, the consular Publius Scipio Nasica, a harsh and vehement aristocrat, summoned those who

shared his views to arm themselves as they could and to follow him. Almost none of the country people had come into town for the elections; the people of the city timidly gave way, when they saw men of quality rushing along with fury in their eyes, and legs of chairs and clubs in their hands. Gracchus attempted with a few attendants to escape. But in his flight he fell on the slope of the Capitol, and was killed by a blow on the temples from the bludgeon of one of his furious pursuers —Publius Satureius and Lucius Rufus afterwards contested the infamous honour—before the statues of the seven kings at the temple of Fidelity; with him three hundred others were slain, not one by weapons of iron. When evening had come on, the bodies were thrown into the Tiber; Gaius vainly entreated that the corpse of his brother might be granted to him for burial. Such a day had never before been seen by Rome. The party-strife lasting for more than a century during the first social crisis had led to no such catastrophe as that with which the second began. The better portion of the aristocracy might shudder, but they could no longer recede. They had no choice save to abandon a great number of their most trusty partisans to the vengeance of the multitude, or to assume collectively the responsibility of the outrage: the latter course was adopted. They gave official sanction to the assertion that Gracchus had wished to seize the crown, and justified this latest crime by the primitive precedent of Ahala;(33) in fact, they even committed the duty of further investigation as to the accomplices of Gracchus to a special commission and made its head, the consul Publius Popillius, take care that a sort of legal stamp should be supplementarily impressed on the murder of Gracchus by bloody sentences directed against a large number of inferior persons (622). Nasica, against whom above all others the multitude breathed vengeance, and who had at least the courage openly to avow his deed before the people and to defend it, was under honourable pretexts despatched to Asia, and soon afterwards (624) invested, during his absence, with the office of Pontifex Maximus. Nor did the moderate party dissociate themselves from

these proceedings of their colleagues. Gaius Laelius bore a part in the investigations adverse to the partisans of Gracchus; Publius Scaevola, who had attempted to prevent the murder, afterwards defended it in the senate; when Scipio Aemilianus, after his return from Spain (622), was challenged publicly to declare whether he did or did not approve the killing of his brother-in-law, he gave the at least ambiguous reply that, so far as Tiberius had aspired to the crown, he had been justly put to death.

The Domain Question Viewed in Itself

Let us endeavour to form a judgment regarding these momentous events. The appointment of an official commission, which had to counteract the dangerous diminution of the farmer-class by the comprehensive establishment of new small holdings from the whole Italian landed property at the disposal of the state, was doubtless no sign of a healthy condition of the national economy; but it was, under the existing circumstances political and social, suited to its purpose. The distribution of the domains, moreover, was in itself no political party-question; it might have been carried out to the last sod without changing the existing constitution or at all shaking the government of the aristocracy. As little could there be, in that case, any complaint of a violation of rights. The state was confessedly the owner of the occupied land; the holder as a possessor on mere sufferance could not, as a rule, ascribe to himself even a bonafide proprietary tenure, and, in the exceptional instances where he could do so, he was confronted by the fact that by the Roman law prescription did not run against the state. The distribution of the domains was not an abolition, but an exercise, of the right of property; all jurists were agreed as to its formal legality. But the attempt now to carry out these legal claims of the state was far from being politically warranted by the circumstance that the distribution of the domains neither infringed the existing constitution nor involved a violation of right. Such objections as have been now and then raised in our day, when

a great landlord suddenly begins to assert in all their compass claims belonging to him in law but suffered for a long period to lie dormant in practice, might with equal and better right be advanced against the rogation of Gracchus. These occupied domains had been undeniably in heritable private possession, some of them for three hundred years; the state's proprietorship of the soil, which from its very nature loses more readily than that of the burgess the character of a private right, had in the case of these lands become virtually extinct, and the present holders had universally come to their possessions by purchase or other onerous acquisition. The jurist might say what he would; to men of business the measure appeared to be an ejection of the great landholders for the benefit of the agricultural proletariat; and in fact no statesman could give it any other name. That the leading men of the Catonian epoch formed no other judgment, is very clearly shown by their treatment of a similar case that occurred in their time. The territory of Capua and the neighbouring towns, which was annexed as domain in 543, had for the most part practically passed into private possession during the following unsettled times. In the last years of the sixth century, when in various respects, especially through the influence of Cato, the reins of government were drawn tighter, the burgesses resolved to resume the Campanian territory and to let it out for the benefit of the treasury (582). The possession in this instance rested on an occupation justified not by previous invitation but at the most by the connivance of the authorities, and had continued in no case much beyond a generation; but the holders were not dispossessed except in consideration of a compensatory sum disbursed under the orders of the senate by the urban praetor Publius Lentulus (c. 589).(34) Less objectionable perhaps, but still not without hazard, was the arrangement by which the new allotments bore the character of heritable leaseholds and were inalienable. The most liberal principles in regard to freedom of dealing had made Rome great; and it was very little consonant to the spirit of the Roman institutions, that these new

farmers were peremptorily bound down to cultivate their portions of land in a definite manner, and that their allotments were subject to rights of revocation and all the cramping measures associated with commercial restriction.

It will be granted that these objections to the Sempronian agrarian law were of no small weight. Yet they are not decisive. Such a practical eviction of the holders of the domains was certainly a great evil; yet it was the only means of checking, at least for a long time, an evil much greater still and in fact directly destructive to the state—the decline of the Italian farmer-class. We can well understand therefore why the most distinguished and patriotic men even of the conservative party, headed by Gaius Laelius and Scipio Aemilianus, approved and desired the distribution of the domains viewed in itself.

The Domain Question before the Burgesses

But, if the aim of Tiberius Gracchus probably appeared to the great majority of the discerning friends of their country good and salutary, the method which he adopted, on the other hand, did not and could not meet with the approval of a single man of note and of patriotism. Rome about this period was governed by the senate. Any one who carried a measure of administration against the majority of the senate made a revolution. It was revolution against the spirit of the constitution, when Gracchus submitted the domain question to the people; and revolution also against the letter, when he destroyed not only for the moment but for all time coming the tribunician veto—the corrective of the state machine, through which the senate constitutionally got rid of interferences with its government—by the deposition of his colleague, which he justified with unworthy sophistry. But it was not in this step that the moral and political mistake of the action of Gracchus lay. There are no set forms of high treason in history; whoever

provokes one power in the state to conflict with another is certainly a revolutionist, but he may be at the same time a discerning and praiseworthy statesman. The essential defect of the Gracchan revolution lay in a fact only too frequently overlooked—in the nature of the then existing burgess-assemblies. The agrarian law of Spurius Cassius⁽³⁵⁾ and that of Tiberius Gracchus had in the main the same tenor and the same object; but the enterprises of the two men were as different, as the former Roman burgess-body which shared the Volscian spoil with the Latins and Hernici was different from the present which erected the provinces of Asia and Africa. The former was an urban community, which could meet together and act together; the latter was a great state, as to which the attempt to unite those belonging to it in one and the same primary assembly, and to leave to this assembly the decision, yielded a result as lamentable as it was ridiculous. (36) The fundamental defect of the policy of antiquity—that it never fully advanced from the urban form of constitution to that of a state or, which is the same thing, from the system of primary assemblies to a parliamentary system—in this case avenged itself. The sovereign assembly of Rome was what the sovereign assembly in England would be, if instead of sending representatives all the electors of England should meet together as a parliament—an unwieldy mass, wildly agitated by all interests and all passions, in which intelligence was totally lost; a body, which was neither able to take a comprehensive view of things nor even to form a resolution of its own; a body above all, in which, saving in rare exceptional cases, a couple of hundred or thousand individuals accidentally picked up from the streets of the capital acted and voted in name of the burgesses. The burgesses found themselves, as a rule, nearly as satisfactorily represented by their de facto representatives in the tribes and centuries as by the thirty lictors who de jure represented them in the curies; and just as what was called the decree of the curies was nothing but a decree of the magistrate who convoked the lictors, so the decree of the tribes and centuries at this

time was in substance simply a decree of the proposing magistrate, legalised by some consentients indispensable for the occasion. But while in these voting-assemblies, the -comitia-, though they were far from dealing strictly in the matter of qualification, it was on the whole burgesses alone that appeared, in the mere popular assemblages on the other hand—the -contiones—every one in the shape of a man was entitled to take his place and to shout, Egyptians and Jews, street-boys and slaves. Such a "meeting" certainly had no significance in the eyes of the law; it could neither vote nor decree. But it practically ruled the street, and already the opinion of the street was a power in Rome, so that it was of some importance whether this confused mass received the communications made to it with silence or shouts, whether it applauded and rejoiced or hissed and howled at the orator. Not many had the courage to lord it over the populace as Scipio Aemilianus did, when they hissed him on account of his expression as to the death of his brother-in-law. "Ye," he said, "to whom Italy is not mother but step-mother, ought to keep silence!" and when their fury grew still louder, "Surely you do not think that I will fear those let loose, whom I have sent in chains to the slave-market?"

That the rusty machinery of the comitia should be made use of for the elections and for legislation, was already bad enough. But when those masses—the -comitia- primarily, and practically also the -contiones—were permitted to interfere in the administration, and the instrument which the senate employed to prevent such interferences was wrested out of its hands; when this so-called burgess-body was allowed to decree to itself lands along with all their appurtenances out of the public purse; when any one, whom circumstances and his influence with the proletariat enabled to command the streets for a few hours, found it possible to impress on his projects the legal stamp of the sovereign people's will, Rome had reached not the beginning, but the end of popular freedom—had arrived not at democracy, but at monarchy. For that reason in the previous period Cato

and those who shared his views never brought such questions before the burgesses, but discussed them solely in the senate.(37) For that reason contemporaries of Gracchus, the men of the Scipionic circle, described the Flaminian agrarian law of 522—the first step in that fatal career—as the beginning of the decline of Roman greatness. For that reason they allowed the author of the domain-distribution to fall, and saw in his dreadful end, as it were, a rampart against similar attempts in future, while yet they maintained and turned to account with all their energy the domain-distribution itself which he had carried through—so sad was the state of things in Rome that honest patriots were forced into the horrible hypocrisy of abandoning the evil-doer and yet appropriating the fruit of the evil deed. For that reason too the opponents of Gracchus were in a certain sense not wrong, when they accused him of aspiring to the crown. For him it is a fresh impeachment rather than a justification, that he himself was probably a stranger to any such thought. The aristocratic government was so thoroughly pernicious, that the citizen, who was able to depose the senate and to put himself in its place, might perhaps benefit the commonwealth more than he injured it.

Results

But such a bold player Tiberius Gracchus was not. He was a tolerably capable, thoroughly well-meaning, conservative patriot, who simply did not know what he was doing; who in the fullest belief that he was calling the people evoked the rabble, and grasped at the crown without being himself aware of it, until the inexorable sequence of events urged him irresistibly into the career of the demagogue-tyrant; until the family commission, the interferences with the public finances, the further "reforms" exacted by necessity and despair, the bodyguard from the pavement, and the conflicts in the streets betrayed the lamentable usurper more and more clearly to himself and others; until at length the unchained spirits of revolution seized

and devoured the incapable conjurer. The infamous butchery, through which he perished, condemns itself, as it condemns the aristocratic faction whence it issued; but the glory of martyrdom, with which it has embellished the name of Tiberius Gracchus, came in this instance, as usually, to the wrong man. The best of his contemporaries judged otherwise. When the catastrophe was announced to Scipio Aemilianus, he uttered the words of Homer:

"—Os apoloito kai allos, otis toiauta ge pezoi—"

and when the younger brother of Tiberius seemed disposed to come forward in the same career, his own mother wrote to him: "Shall then our house have no end of madness? Where shall be the limit? Have we not yet enough to be ashamed of, in having confused and disorganized the state?" So spoke not the anxious mother, but the daughter of the conqueror of Carthage, who knew and experienced a misfortune yet greater than the death of her children.

CHAPTER III

The Revolution and Gaius Gracchus

The Commission for Distributing the Domains

Tiberius Gracchus was dead; but his two works, the distribution of land and the revolution, survived their author. In presence of the starving agricultural proletariat the senate might venture on a murder, but it could not make use of that murder to annul the Sempronian agrarian law; the law itself had been far more strengthened than shaken by the frantic outbreak of party fury. The party of the aristocracy friendly towards reform, which openly favoured the distribution of the domains—headed by Quintus Metellus, just about this time (623) censor, and Publius Scaevola—in concert with the party of Scipio Aemilianus, which was at least not disinclined to reform, gained the upper hand for the time being even in the senate; and a decree of the senate expressly directed the triumvirs to begin their labours. According to the Sempronian law these were to be nominated annually by the community, and this was probably done: but from the nature of their task it was natural that the election should fall again and again on the same men, and new elections in the proper sense occurred only when a place became vacant through death. Thus in the place of Tiberius Gracchus there was appointed the father-in-law of his brother Gaius, Publius Crassus Mucianus; and after the fall of Mucianus in 624(1) and the death of Appius Claudius, the business of distribution was managed in

concert with the young Gaius Gracchus by two of the most active leaders of the movement party, Marcus Fulvius Flaccus and Gaius Papirius Carbo. The very names of these men are vouchers that the work of resuming and distributing the occupied domain-land was prosecuted with zeal and energy; and, in fact, proofs to that effect are not wanting. As early as 622 the consul of that year, Publius Popillius, the same who directed the prosecutions of the adherents of Tiberius Gracchus, recorded on a public monument that he was "the first who had turned the shepherds out of the domains and installed farmers in their stead"; and tradition otherwise affirms that the distribution extended over all Italy, and that in the formerly existing communities the number of farms was everywhere augmented—for it was the design of the Sempronian agrarian law to elevate the farmer- class not by the founding of new communities, but by the strengthening of those already in existence. The extent and the comprehensive effect of these distributions are attested by the numerous arrangements in the Roman art of land-measuring that go back to the Gracchan assignations of land; for instance, a due placing of boundary-stones so as to obviate future mistakes appears to have been first called into existence by the Gracchan courts for demarcation and the land- distributions. But the numbers on the burgess-rolls give the clearest evidence. The census, which was published in 623 and actually took place probably in the beginning of 622, yielded not more than 319,000 burgesses capable of bearing arms, whereas six years afterwards (629) in place of the previous falling-off(2) the number rises to 395,000, that is 76,000 of an increase—beyond all doubt solely in consequence of what the allotment-commission did for the Roman burgesses. Whether it multiplied the farms among the Italians in the same proportion maybe doubted; at any rate what it did accomplish yielded a great and beneficent result. It is true that this result was not achieved without various violations of respectable interests and existing rights. The allotment-commission, composed of the most decided partisans, and

absolute judge in its own cause, proceeded with its labours in a reckless and even tumultuary fashion; public notices summoned every one, who was able, to give information regarding the extent of the domain-lands; the old land-registers were inexorably referred to, and not only was occupation new and old revoked without distinction, but in various cases real private property, as to which the holder was unable satisfactorily to prove his tenure, was included in the confiscation. Loud and for the most part well founded as were the complaints, the senate allowed the distributors to pursue their course; it was clear that, if the domain question was to be settled at all, the matter could not be carried through without such unceremonious vigour of action.

Its Suspension by Scipio Aemilianus

But this acquiescence had its limit. The Italian domain-land was not solely in the hands of Roman burgesses; large tracts of it had been assigned in exclusive usufruct to particular allied communities by decrees of the people or senate, and other portions had been occupied with or without permission by Latin burgesses. The allotment-commission at length attacked these possessions also. The resumption of the portions simply occupied by non-burgesses was no doubt allowable in formal law, and not less presumably the resumption of the domain-land handed over by decrees of the senate or even by resolutions of the burgesses to the Italian communities, since thereby the state by no means renounced its ownership and to all appearance gave its grants to communities, just as to private persons, subject to revocation. But the complaints of these allied or subject communities, that Rome did not keep the settlements that were in force, could not be simply disregarded like the complaints of the Roman citizens injured by the action of the commissioners. Legally the former might be no better founded than the latter; but, while in the latter case the matter at stake was the private interests of members of the state, in reference to the Latin

possessions the question arose, whether it was politically right to give fresh offence to communities so important in a military point of view and already so greatly estranged from Rome by numerous disabilities *de jure* and *de facto*(3) through this keenly-felt injury to their material interests. The decision lay in the hands of the middle party; it was that party which after the fall of Gracchus had, in league with his adherents, protected reform against the oligarchy, and it alone was now able in concert with the oligarchy to set a limit to reform. The Latins resorted personally to the most prominent man of this party, Scipio Aemilianus, with a request that he would protect their rights. He promised to do so; and mainly through his influence,(4) in 625, a decree of the people withdrew from the commission its jurisdiction, and remitted the decision respecting what were domanial and what private possessions to the censors and, as proxies for them, the consuls, to whom according to the general principles of law it pertained. This was simply a suspension of further domain-distribution under a mild form. The consul Tuditanus, by no means Gracchan in his views and little inclined to occupy himself with the difficult task of agrarian definition, embraced the opportunity of going off to the Illyrian army and leaving the duty entrusted to him unfulfilled. The allotment-commission no doubt continued to subsist, but, as the judicial regulation of the domain-land was at a standstill, it was compelled to remain inactive.

Assassination of Aemilianus

The reform-party was deeply indignant. Even men like Publius Mucius and Quintus Metellus disapproved of the intervention of Scipio. Other circles were not content with expressing disapproval. Scipio had announced for one of the following days an address respecting the relations of the Latins; on the morning of that day he was found dead in his bed. He was but fifty-six years of age, and in full health and vigour; he had spoken in public the day before, and then in the evening had retired earlier than usual to his

bedchamber with a view to prepare the outline of his speech for the following day. That he had been the victim of a political assassination, cannot be doubted; he himself shortly before had publicly mentioned the plots formed to murder him. What assassin's hand had during the night slain the first statesman and the first general of his age, was never discovered; and it does not become history either to repeat the reports handed down from the contemporary gossip of the city, or to set about the childish attempt to ascertain the truth out of such materials. This much only is clear, that the instigator of the deed must have belonged to the Gracchan party; the assassination of Scipio was the democratic reply to the aristocratic massacre at the temple of Fidelity. The tribunals did not interfere. The popular party, justly fearing that its leaders Gaius Gracchus, Flaccus, and Carbo, whether guilty or not, might be involved in the prosecution, opposed with all its might the institution of an inquiry; and the aristocracy, which lost in Scipio quite as much an antagonist as an ally, was not unwilling to let the matter sleep. The multitude and men of moderate views were shocked; none more so than Quintus Metellus, who had disapproved of Scipio's interference against reform, but turned away with horror from such confederates, and ordered his four sons to carry the bier of his great antagonist to the funeral pile. The funeral was hurried over; with veiled head the last of the family of the conqueror of Zama was borne forth, without any one having been previously allowed to see the face of the deceased, and the flames of the funeral pile consumed with the remains of the illustrious man the traces at the same time of the crime.

The history of Rome presents various men of greater genius than Scipio Aemilianus, but none equalling him in moral purity, in the utter absence of political selfishness, in generous love of his country, and none, perhaps, to whom destiny has assigned a more tragic part. Conscious of the best intentions and of no common abilities, he was doomed to see the ruin of his country carried out before his eyes, and to repress within him every earnest

attempt to save it, because he clearly perceived that he should only thereby make the evil worse; doomed to the necessity of sanctioning outrages like that of Nasica, and at the same time of defending the work of the victim against his murderers. Yet he might say that he had not lived in vain. It was to him, at least quite as much as to the author of the Sempronian law, that the Roman burgesses were indebted for an increase of nearly 80,000 new farm-allotments; he it was too who put a stop to this distribution of the domains, when it had produced such benefit as it could produce. That it was time to break it off, was no doubt disputed at the moment even by well-meaning men; but the fact that Gaius Gracchus did not seriously recur to those possessions which might have been, and yet were not, distributed under the law of his brother, tells very much in favour of the belief that Scipio hit substantially the right moment. Both measures were extorted from the parties—the first from the aristocracy, the second from the friends of reform; for each its author paid with his life. It was Scipio's lot to fight for his country on many a battle-field and to return home uninjured, that he might perish there by the hand of an assassin; but in his quiet chamber he no less died for Rome than if he had fallen before the walls of Carthage.

Democratic Agitation under Carbo and Flaccus

The distribution of land was at an end; the revolution went on. The revolutionary party, which possessed in the allotment-commission as it were a constituted leadership, had even in the lifetime of Scipio skirmished now and then with the existing government. Carbo, in particular, one of the most distinguished men of his time in oratorical talent, had as tribune of the people in 623 given no small trouble to the senate; had carried voting by ballot in the burgess-assemblies, so far as it had not been introduced already;(5) and had even made the significant proposal to leave the tribunes of the people free to reappear as candidates for the same office in the year immediately following, and thus legally to remove the obstacle by which

Tiberius Gracchus had primarily been thwarted. The scheme had been at that time frustrated by the resistance of Scipio; some years later, apparently after his death, the law was reintroduced and carried through, although with limiting clauses.⁽⁶⁾ The principal object of the party, however, was to revive the action of the allotment- commission which had been practically suspended; the leaders seriously talked of removing the obstacles which the Italian allies interposed to the scheme by conferring on them the rights of citizenship, and the agitation assumed mainly that direction. In order to meet it, the senate in 628 got the tribune of the people Marcus Junius Pennus to propose the dismissal of all non-burgesses from the capital, and in spite of the resistance of the democrats, particularly of Gaius Gracchus, and of the ferment occasioned by this odious measure in the Latin communities, the proposal was carried. Marcus Fulvius Flaccus retorted in the following year (629) as consul with the proposal to facilitate the acquisition of burgess-rights by the burgesses of the allied communities, and to concede even to those who had not acquired them an appeal to the Roman comitia against penal judgments. But he stood almost alone—Carbo had meanwhile changed his colours and was now a zealous aristocrat, Gaius Gracchus was absent as quaestor in Sardinia—and the project was frustrated by the resistance not of the senate merely, but also of the burgesses, who were but little inclined to extend their privileges to still wider circles. Flaccus left Rome to undertake the supreme command against the Celts; by his Transalpine conquests he prepared the way for the great schemes of the democracy, while he at the same time withdrew out of the difficulty of having to bear arms against the allies instigated by himself.

Destruction of Fregallae

Fregellae, situated on the borders of Latium and Campania at the principal passage of the Liris in the midst of a large and fertile territory, at that time perhaps the second city of Italy and in the discussions with Rome

the usual mouthpiece of all the Latin colonies, began war against Rome in consequence of the rejection of the proposal brought in by Flaccus—the first instance which had occurred for a hundred and fifty years of a serious insurrection, not brought about by foreign powers, in Italy against the Roman hegemony. But on this occasion the fire was successfully extinguished before it had caught hold of other allied communities. Not through the superiority of the Roman arms, but through the treachery of a Fregellan Quintus Numitorius Pullus, the praetor Lucius Opimius quickly became master of the revolted city, which lost its civic privileges and its walls and was converted like Capua into a village. The colony of Fabrateria was founded on a part of its territory in 630; the remainder and the former city itself were distributed among the surrounding communities. This rapid and fearful punishment alarmed the allies, and endless impeachments for high treason pursued not only the Fregellans, but also the leaders of the popular party in Rome, who naturally were regarded by the aristocracy as accomplices in this insurrection. Meanwhile Gaius Gracchus reappeared in Rome. The aristocracy had first sought to detain the object of their dread in Sardinia by omitting to provide the usual relief, and then, when without caring for that point he returned, had brought him to trial as one of the authors of the Fregellan revolt (629-30). But the burgesses acquitted him; and now he too threw down the gauntlet, became a candidate for the tribuneship of the people, and was nominated to that office for the year 631 in an elective assembly attended by unusual numbers. War was thus declared. The democratic party, always poor in leaders of ability, had from sheer necessity remained virtually at rest for nine years; now the truce was at an end, and this time it was headed by a man who, with more honesty than Carbo and with more talent than Flaccus, was in every respect called to take the lead.

Gaius Gracchus

Gaius Gracchus (601-633) was very different from his brother, who was about nine years older. Like the latter, he had no relish for vulgar pleasures and vulgar pursuits; he was a man of thorough culture and a brave soldier; he had served with distinction before Numantia under his brother-in-law, and afterwards in Sardinia. But in talent, in character, and above all in passion he was decidedly superior to Tiberius. The clearness and self-possession, which the young man afterwards displayed amidst the pressure of all the varied labours requisite for the practical carrying out of his numerous laws, betokened his genuine statesmanly talent; as the passionate devotedness faithful even to death, with which his intimate friends clung to him, evinced the loveable nature of that noble mind. The discipline of suffering which he had undergone, and his compulsory reserve during the last nine years, augmented his energy of purpose and action; the indignation repressed within the depths of his breast only glowed there with an intensified fervour against the party which had disorganized his country and murdered his brother. By virtue of this fearful vehemence of temperament he became the foremost orator that Rome ever had; without it, we should probably have been able to reckon him among the first statesmen of all times. Among the few remains of his recorded orations several are, even in their present condition, of heart-stirring power;(7) and we can well understand how those who heard or even merely read them were carried away by the impetuous torrent of his words. Yet, great master as he was of speech, he was himself not unfrequently mastered by anger, so that the utterance of the brilliant speaker became confused or faltering. It was the true image of his political acting and suffering. In the nature of Gaius there was no vein, such as his brother had, of that somewhat sentimental but very short-sighted and confused good-nature, which would have desired to change the mind of a political opponent by entreaties and tears; with full assurance he entered on the career of revolution and strove to reach the goal of vengeance. "To me too," his mother wrote to him, "nothing seems finer

and more glorious than to retaliate on an enemy, so far as it can be done without the country's ruin. But if this is not possible, then may our enemies continue and remain what they are, a thousand times rather than that our country should perish." Cornelia knew her son; his creed was just the reverse. Vengeance he would wreak on the wretched government, vengeance at any price, though he himself and even the commonwealth were to be ruined by it—the presentiment, that fate would overtake him as certainly as his brother, drove him only to make haste like a man mortally wounded who throws himself on the foe. The mother thought more nobly; but the son—with his deeply provoked, passionately excited, thoroughly Italian nature—has been more lamented than blamed by posterity, and posterity has been right in its judgment.

Alterations on the Constituion by Gaius Gracchus

Distribution of Grain

Change in the Order of Voting

Tiberius Gracchus had come before the burgesses with a single administrative reform. What Gaius introduced in a series of separate proposals was nothing else than an entirely new constitution; the foundation-stone of which was furnished by the innovation previously carried through, that a tribune of the people should be at liberty to solicit re-election for the following year.(8) While this step enabled the popular chief to acquire a permanent position and one which protected its holder, the next object was to secure for him material power or, in other words, to attach the multitude of the capital—for that no reliance was to be placed on the country people coming only from time to time to the city, had been sufficiently apparent—with its interests steadfastly to its leader. This purpose was served, first of all, by introducing distributions of corn in the capital. The grain accruing to the state from the provincial tenths had already been frequently given away at nominal prices to the burgesses.(9)

Gracchus enacted that every burgess who should personally present himself in the capital should thenceforth be allowed monthly a definite quantity—apparently 5 -modii- (1 1/4 bushel)—from the public stores, at 6 1/3 -asses- (3d.) for the -modius-, or not quite the half of a low average price;(10) for which purpose the public corn-stores were enlarged by the construction of the new Sempronian granaries. This distribution—which consequently excluded the burgesses living out of the capital, and could not but attract to Rome the whole mass of the burgess- proletariat—was designed to bring the burgess-proletariat of the capital, which hitherto had mainly depended on the aristocracy, into dependence on the leaders of the movement-party, and thus to supply the new master of the state at once with a body-guard and with a firm majority in the comitia. For greater security as regards the latter, moreover, the order of voting still subsisting in the -comitia centuriata-, according to which the five property-classes in each tribe gave their votes one after another,(11) was done away; instead of this, all the centuries were in future to vote promiscuously in an order of succession to be fixed on each occasion by lot. While these enactments were mainly designed to procure for the new chief of the state by means of the city-proletariat the complete command of the capital and thereby of the state, the amplest control over the comitial machinery, and the possibility in case of need of striking terror into the senate and magistrates, the legislator certainly at the same time set himself with earnestness and energy to redress the existing social evils.

Agrarian Laws

Colony of Capua

Transmarine Colonialization

It is true that the Italian domain question was in a certain sense settled. The agrarian law of Tiberius and even the allotment-commission still continued legally in force; the agrarian law carried by Gracchus can have

enacted nothing new save the restoration to the commissioners of the jurisdiction which they had lost. That the object of this step was only to save the principle, and that the distribution of lands, if resumed at all, was resumed only to a very limited extent, is shown by the burgess-roll, which gives exactly the same number of persons for the years 629 and 639. Gaius beyond doubt did not proceed further in this matter, because the domain-land taken into possession by Roman burgesses was already in substance distributed, and the question as to the domains enjoyed by the Latins could only be taken up anew in connection with the very difficult question as to the extension of Roman citizenship. On the other hand he took an important step beyond the agrarian law of Tiberius, when he proposed the establishment of colonies in Italy—at Tarentum, and more especially at Capua—and by that course rendered the domain-land, which had been let on lease by the state and was hitherto excluded from distribution, liable to be also parcelled out, not, however, according to the previous method, which excluded the founding of new communities,(12) but according to the colonial system. Beyond doubt these colonies were also designed to aid in permanently defending the revolution to which they owed their existence. Still more significant and momentous was the measure, by which Gaius Gracchus first proceeded to provide for the Italian proletariat in the transmarine territories of the state. He despatched to the site on which Carthage had stood 6000 colonists selected perhaps not merely from Roman burgesses but also from the Italian allies, and conferred on the new town Junonia the rights of a Roman burgess-colony. The foundation was important, but still more important was the principle of transmarine emigration thereby laid down. It opened up for the Italian proletariat a permanent outlet, and a relief in fact more than provisional; but it certainly abandoned the principle of state-law hitherto in force, by which Italy was regarded as exclusively the governing, and the provincial territory as exclusively the governed, land.

Modifications of the Penal Law

To these measures having immediate reference to the great question of the proletariat there was added a series of enactments, which arose out of the general tendency to introduce principles milder and more accordant with the spirit of the age than the antiquated severity of the existing constitution. To this head belong the modifications in the military system. As to the length of the period of service there existed under the ancient law no other limit, except that no citizen was liable to ordinary service in the field before completing his seventeenth or after completing his forty-sixth year. When, in consequence of the occupation of Spain, the service began to become permanent,(13) it seems to have been first legally enacted that any one who had been in the field for six successive years acquired thereby a right to discharge, although this discharge did not protect him from being called out again afterwards. At a later period, perhaps about the beginning of this century, the rule arose, that a service of twenty years in the infantry or ten years in the cavalry gave exemption from further military service. (14) Gracchus renewed the rule—which presumably was often violently infringed—that no burgess should be enlisted in the army before the commencement of his eighteenth year; and also, apparently, restricted the number of campaigns requisite for full exemption from military duty. Besides, the clothing of the soldiers, the value of which had hitherto been deducted from their pay, was henceforward furnished gratuitously by the state.

To this head belongs, moreover, the tendency which is on various occasions apparent in the Gracchan legislation, if not to abolish capital punishment, at any rate to restrict it still further than had been done before—a tendency, which to some extent made itself felt even in military jurisdiction. From the very introduction of the republic the magistrate had lost the right of inflicting capital punishment on the burgess without

consulting the community, except under martial law;(15) if this right of appeal by the burgess appears soon after the period of the Gracchi available even in the camp, and the right of the general to inflict capital punishments appears restricted to allies and subjects, the source of the change is probably to be sought in the law of Gaius Gracchus -de provocatione- But the right of the community to inflict or rather to confirm sentence of death was indirectly yet essentially limited by the fact, that Gracchus withdrew the cognizance of those public crimes which most frequently gave occasion to capital sentences—poisoning and murder generally— from the burgesses, and entrusted it to permanent judicial commissions. These could not, like the tribunals of the people, be broken up by the intercession of a tribune, and there not only lay no appeal from them to the community, but their sentences were as little subject to be annulled by the community as those of the long-established civil jurymen. In the burgess-tribunals it had, especially in strictly political processes, no doubt long been the rule that the accused remained at liberty during his trial, and was allowed by surrendering his burgess-rights to save at least life and freedom; for the fine laid on property, as well as the civil condemnation, might still affect even the exiled. But preliminary arrest and complete execution of the sentence remained in such cases at least legally possible, and were still sometimes carried into effect even against persons of rank; for instance, Lucius Hostilius Tubulus, praetor of 612, who was capitally impeached for a heinous crime, was refused the privilege of exile, arrested, and executed. On the other hand the judicial commissions, which originated out of the civil procedure, probably could not at the outset touch the liberty or life of the citizen, but at the most could only pronounce sentence of exile; this, which had hitherto been a mitigation of punishment accorded to one who was found guilty, now became for the first time a formal penalty This involuntary exile however, like the voluntary, left to the person banished his property, so far as it was not exhausted in satisfying claims for

compensation and money-fines. Lastly, in the matter of debt Gaius Gracchus made no alteration; but very respectable authorities assert that he held out to those in debt the hope of a diminution or remission of claims—which, if it is correct, must likewise be reckoned among those radically popular measures.

Elevation of the Equestrian Order

While Gracchus thus leaned on the support of the multitude, which partly expected, partly received from him a material improvement of its position, he laboured with equal energy at the ruin of the aristocracy. Perceiving clearly how insecure was the rule of the head of the state built merely on the proletariat, he applied himself above all to split the aristocracy and to draw a part of it over to his interests. The elements of such a rupture were already in existence. The aristocracy of the rich, which had risen as one man against Tiberius Gracchus, consisted in fact of two essentially dissimilar bodies, which may be in some measure compared to the peerage and the city aristocracy of England. The one embraced the practically closed circle of the governing senatorial families who kept aloof from direct speculation and invested their immense capital partly in landed property, partly as sleeping partners in the great associations. The core of the second class was composed of the speculators, who, as managers of these companies, or on their own account, conducted the large mercantile and pecuniary transactions throughout the range of the Roman hegemony. We have already shown⁽¹⁶⁾ how the latter class, especially in the course of the sixth century, gradually took its place by the side of the senatorial aristocracy, and how the legal exclusion of the senators from mercantile pursuits by the Claudian enactment, suggested by Gaius Flaminius the precursor of the Gracchi, drew an outward line of demarcation between the senators and the mercantile and moneyed men. In the present epoch the mercantile aristocracy began, under the name of the -equites-, to exercise a decisive

influence in political affairs. This appellation, which originally belonged only to the burgess-cavalry on service, came gradually to be transferred, at any rate in ordinary use, to all those who, as possessors of an estate of at least 400,000 sesterces, were liable to cavalry service in general, and thus comprehended the whole of the upper society, senatorial and non-senatorial, in Rome. But not long before the time of Gaius Gracchus the law had declared a seat in the senate incompatible with service in the cavalry,(17) and the senators were thus eliminated from those qualified to be equites; and accordingly the equestrian order, taken as a whole, might be regarded as representing the aristocracy of speculators in contradistinction to the senate. Nevertheless those members of senatorial families who had not entered the senate, especially the younger members, did not cease to serve as equites and consequently to bear the name; and, in fact, the burgess-cavalry properly so called—that is, the eighteen equestrian centuries—in consequence of being made up by the censors continued to be chiefly filled up from the young senatorial aristocracy.(18)

This order of the equites—that is to say, substantially, of the wealthy merchants—in various ways came roughly into contact with the governing senate. There was a natural antipathy between the genteel aristocrats and the men to whom money had brought rank. The ruling lords, especially the better class of them, stood just as much aloof from speculations, as the men of material interests were indifferent to political questions and coterie-feuds. The two classes had already frequently come into sharp collision, particularly in the provinces; for, though in general the provincials had far more reason than the Roman capitalists had to complain of the partiality of the Roman magistrates, yet the ruling lords of the senate did not lend countenance to the greedy and unjust doings of the moneyed men, at the expense of the subjects, so thoroughly and absolutely as those capitalists desired. In spite of their concord in opposing a common foe such as was Tiberius Gracchus, a deep gulf lay between the nobility and the moneyed

aristocracy; and Gaius, more adroit than his brother, enlarged it till the alliance was broken up and the mercantile class ranged itself on his side.

Insignia of the Equites

That the external privileges, through which afterwards the men of equestrian census were distinguished from the rest of the multitude—the golden finger-ring instead of the ordinary ring of iron or copper, and the separate and better place at the burgess-festivals—were first conferred on the equites by Gaius Gracchus, is not certain, but is not improbable. For they emerged at any rate about this period, and, as the extension of these hitherto mainly senatorial privileges⁽¹⁹⁾ to the equestrian order which he brought into prominence was quite in the style of Gracchus, so it was in very truth his aim to impress on the equites the stamp of an order, similarly close and privileged, intermediate between the senatorial aristocracy and the common multitude; and this same aim was more promoted by those class-insignia, trifling though they were in themselves and though many qualified to be equites might not avail themselves of them, than by many an ordinance far more intrinsically important. But the party of material interests, though it by no means despised such honours, was yet not to be gained through these alone. Gracchus perceived well that it would doubtless duly fall to the highest bidder, but that it needed a high and substantial bidding; and so he offered to it the revenues of Asia and the jury courts.

Taxation of Asia

The system of Roman financial administration, under which the indirect taxes as well as the domain-revenues were levied by means of middlemen, in itself granted to the Roman capitalist-class the most extensive advantages at the expense of those liable to taxation. But the direct taxes consisted either, as in most provinces, of fixed sums of money payable by the communities—which of itself excluded the intervention of Roman

capitalists—or, as in Sicily and Sardinia, of a ground-tenth, the levying of which for each particular community was leased in the provinces themselves, so that wealthy provincials regularly, and the tributary communities themselves very frequently, farmed the tenth of their districts and thereby kept at a distance the dangerous Roman middlemen. Six years before, when the province of Asia had fallen to the Romans, the senate had organized it substantially according to the first system.(20) Gaius Gracchus(21) overturned this arrangement by a decree of the people, and not only burdened the province, which had hitherto been almost free from taxation, with the most extensive indirect and direct taxes, particularly the ground-tenth, but also enacted that these taxes should be exposed to auction for the province as a whole and in Rome— a rule which practically excluded the provincials from participation, and called into existence in the body of middlemen for the -decumae-, -scriptura-, and -vectigalia- of the province of Asia an association of capitalists of colossal magnitude. A significant indication, moreover, of the endeavour of Gracchus to make the order of capitalists independent of the senate was the enactment, that the entire or partial remission of the stipulated rent was no longer, as hitherto, to be granted by the senate at discretion, but was under definite contingencies to be accorded by law.

Jury Courts

While a gold mine was thus opened for the mercantile class, and the members of the new partnership constituted a great financial power imposing even for the government—a "senate of merchants"—a definite sphere of public action was at the same time assigned to them in the jury courts. The field of the criminal procedure, which by right came before the burgesses, was among the Romans from the first very narrow, and was, as we have already stated,(22) still further narrowed by Gracchus; most processes—both such as related to public crimes, and civil causes—were

decided either by single jurymen [-indices-], or by commissions partly permanent, partly extraordinary. Hitherto both the former and the latter had been exclusively taken from the senate; Gracchus transferred the functions of jurymen—both in strictly civil processes, and in the case of the standing and temporary commissions—to the equestrian order, directing a new list of jurymen to be annually formed after the analogy of the equestrian centuries from all persons of equestrian rating, and excluding the senators directly, and the young men of senatorial families by the fixing of a certain limit of age, from such judicial functions.(23) It is not improbable that the selection of jurymen was chiefly made to fall on the same men who played the leading part in the great mercantile associations, particularly those farming the revenues in Asia and elsewhere, just because these had a very close personal interest in sitting in the courts; and, if the lists of jurymen and the societies of -publicani- thus coincided as regards their chiefs, we can all the better understand the significance of the counter-senate thus constituted. The substantial effect of this was, that, while hitherto there had been only two authorities in the state—the government as the administering and controlling, and the burgesses as the legislative, authority—and the courts had been divided between them, now the moneyed aristocracy was not only united into a compact and privileged class on the solid basis of material interests, but also, as a judicial and controlling power, formed part of the state and took its place almost on a footing of equality by the side of the ruling aristocracy. All the old antipathies of the merchants against the nobility could not but thenceforth find only too practical an expression in the sentences of the jurymen; above all, when the provincial governors were called to a reckoning, the senator had to await a decision involving his civic existence at the hands no longer as formerly of his peers, but of great merchants and bankers. The feuds between the Roman capitalists and the Roman governors were transplanted from the provincial administration to the dangerous field of these processes of reckoning. Not only was the

aristocracy of the rich divided, but care was taken that the variance should always find fresh nourishment and easy expression.

Monarchical Government Substituted for That of the Senate

With his weapons—the proletariat and the mercantile class—thus prepared, Gracchus set about his main work, the overthrow of the ruling aristocracy. The overthrow of the senate meant, on the one hand, the depriving it of its essential functions by legislative alterations; and on the other hand, the ruining of the existing aristocracy by measures of a more personal and transient kind. Gracchus did both. The function of administration, in particular, had hitherto belonged exclusively to the senate; Gracchus took it away, partly by settling the most important administrative questions by means of comitial laws or, in other words, practically through tribunician dictation, partly by restricting the senate as much as possible in current affairs, partly by taking business after the most comprehensive fashion into his own hands. The measures of the former kind have been mentioned already: the new master of the state without consulting the senate dealt with the state-chest, by imposing a permanent and oppressive burden on the public finances in the distribution of corn; dealt with the domains, by sending out colonies not as hitherto by decree of the senate and people, but by decree of the people alone; and dealt with the provincial administration, by overturning through a law of the people the financial constitution given by the senate to the province of Asia and substituting for it one altogether different. One of the most important of the current duties of the senate—that of fixing at its pleasure the functions for the time being of the two consuls—was not withdrawn from it; but the indirect pressure hitherto exercised in this way over the supreme magistrates was limited by directing the senate to fix these functions before the consuls concerned were elected. With unrivalled activity, lastly, Gaius concentrated the most varied and most complicated functions of

government in his own person. He himself watched over the distribution of grain, selected the jurymen, founded the colonies in person notwithstanding that his magistracy legally chained him to the city, regulated the highways and concluded building- contracts, led the discussions of the senate, settled the consular elections—in short, he accustomed the people to the fact that one man was foremost in all things, and threw the lax and lame administration of the senatorial college into the shade by the vigour and versatility of his personal rule. Gracchus interfered with the judicial omnipotence, still more energetically than with the administration, of the senate. We have already mentioned that he set aside the senators as jurymen; the same course was taken with the jurisdiction which the senate as the supreme administrative board allowed to itself in exceptional cases. Under severe penalties he prohibited— apparently in his renewal of the law -de provocatione-(24)—the appointment of extraordinary commissions of high treason by decree of the senate, such as that which after his brother's murder had sat in judgment on his adherents. The aggregate effect of these measures was, that the senate wholly lost the power of control, and retained only so much of administration as the head of the state thought fit to leave to it. But these constitutive measures were not enough; the governing aristocracy for the time being was also directly assailed. It was a mere act of revenge, which assigned retrospective effect to the last-mentioned law and thereby compelled Publius Popillius—the aristocrat who after the death of Nasica, which had occurred in the interval, was chiefly obnoxious to the democrats—to go into exile. It is remarkable that this proposal was only carried by 18 to 17 votes in the assembly of the tribes—a sign how much the influence of the aristocracy still availed with the multitude, at least in questions of a personal interest. A similar but far less justifiable decree—the proposal, directed against Marcus Octavius, that whoever had been deprived of his office by decree of the people should be for ever incapable of filling a public post—was recalled by Gaius at the request of his mother;

and he was thus spared the disgrace of openly mocking justice by legalizing a notorious violation of the constitution, and of taking base vengeance on a man of honour, who had not spoken an angry word against Tiberius and had only acted constitutionally and in accordance with what he conceived to be his duty. But of very different importance from these measures was the scheme of Gaius—which, it is true, was hardly carried into effect—to strengthen the senate by 300 new members, that is, by just about as many as it hitherto had contained, and to have them elected from the equestrian order by the comitia—a creation of peers after the most comprehensive style, which would have reduced the senate into the most complete dependence on the chief of the state.

Character of the Constitution of Gaius Gracchus

This was the political constitution which Gaius Gracchus projected and, in its most essential points, carried out during the two years of his tribunate (631, 632), without, so far as we can see, encountering any resistance worthy of mention, and without requiring to apply force for the attainment of his ends. The order of sequence in which these measures were carried can no longer be recognized in the confused accounts handed down to us, and various questions that suggest themselves have to remain unanswered. But it does not seem as if, in what is missing, many elements of material importance have escaped us; for as to the principal matters we have quite trustworthy information, and Gaius was by no means, like his brother, urged on further and further by the current of events, but evidently had a well-considered and comprehensive plan, the substance of which he fully embodied in a series of special laws. Now the Sempronian constitution itself shows very clearly to every one who is able and willing to see, that Gaius Gracchus did not at all, as many good-natured people in ancient and modern times have supposed, wish to place the Roman republic on new democratic bases, but that on the contrary he wished to abolish it and to

introduce in its stead a -tyrannis— that is, in modern language, a monarchy not of the feudal or of the theocratic, but of the Napoleonic absolute, type—in the form of a magistracy continued for life by regular re-election and rendered absolute by an unconditional control over the formally sovereign comitia, an unlimited tribuneship of the people for life. In fact if Gracchus, as his words and still more his works plainly testify, aimed at the overthrow of the government of the senate, what other political organization but the -tyrannis- remained possible, after overthrowing the aristocratic government, in a commonwealth which had outgrown primary assemblies and for which parliamentary government did not exist? Dreamers such as was his predecessor, and knaves such as after-times produced, might call this in question; but Gaius Gracchus was a statesman, and though the formal shape, which that great man had inwardly projected for his great work, has not been handed down to us and may be conceived of very variously, yet he was beyond doubt aware of what he was doing. Little as the intention of usurping monarchical power can be mistaken, as little will those who survey the whole circumstances on this account blame Gracchus. An absolute monarchy is a great misfortune for a nation, but it is a less misfortune than an absolute oligarchy; and history cannot censure one who imposes on a nation the lesser suffering instead of the greater, least of all in the case of a nature so vehemently earnest and so far aloof from all that is vulgar as was that of Gaius Gracchus. Nevertheless it may not conceal the fact that his whole legislation was pervaded in a most pernicious way by conflicting aims; for on the one hand it aimed at the public good, while on the other hand it ministered to the personal objects and in fact the personal vengeance of the ruler. Gracchus earnestly laboured to find a remedy for social evils, and to check the spread of pauperism; yet he at the same time intentionally reared up a street proletariat of the worst kind in the capital by his distributions of corn, which were designed to be, and became, a premium to all the lazy and hungry civic rabble. Gracchus censured in the

bitterest terms the venality of the senate, and in particular laid bare with unsparing and just severity the scandalous traffic which Manius Aquillius had driven with the provinces of Asia Minor;(25) yet it was through the efforts of the same man that the sovereign populace of the capital got itself alimented, in return for its cares of government, by the body of its subjects. Gracchus warmly disapproved the disgraceful spoliation of the provinces, and not only instituted proceedings of wholesome severity in particular cases, but also procured the abolition of the thoroughly insufficient senatorial courts, before which even Scipio Aemilianus had vainly staked his whole influence to bring the most decided criminals to punishment. Yet he at the same time, by the introduction of courts composed of merchants, surrendered the provincials with their hands fettered to the party of material interests, and thereby to a despotism still more unscrupulous than that of the aristocracy had been; and he introduced into Asia a taxation, compared with which even the form of taxation current after the Carthaginian model in Sicily might be called mild and humane— just because on the one hand he needed the party of moneyed men, and on the other hand required new and comprehensive resources to meet his distributions of grain and the other burdens newly imposed on the finances. Gracchus beyond doubt desired a firm administration and a well-regulated dispensing of justice, as numerous thoroughly judicious ordinances testify; yet his new system of administration rested on a continuous series of individual usurpations only formally legalized, and he intentionally drew the judicial system—which every well-ordered state will endeavour as far as possible to place, if not above political parties, at any rate aloof from them—into the midst of the whirlpool of revolution. Certainly the blame of these conflicting tendencies in Gaius Gracchus is chargeable to a very great extent on his position rather than on himself personally. On the very threshold of the -tyrannis- he was confronted by the fatal dilemma, moral and political, that the same man had at one and the same time to maintain his ground, we may say, as a robber-

chieftain and to lead the state as its first citizen—a dilemma to which Pericles, Caesar, and Napoleon had also to make dangerous sacrifices. But the conduct of Gaius Gracchus cannot be wholly explained from this necessity; along with it there worked in him the consuming passion, the glowing revenge, which foreseeing its own destruction hurls the firebrand into the house of the foe. He has himself expressed what he thought of his ordinance as to the jurymen and similar measures intended to divide the aristocracy; he called them daggers which he had thrown into the Forum that the burgesses—the men of rank, obviously—might lacerate each other with them. He was a political incendiary. Not only was the hundred years' revolution which dates from him, so far as it was one man's work, the work of Gaius Gracchus, but he was above all the true founder of that terrible urban proletariat flattered and paid by the classes above it, which through its aggregation in the capital—the natural consequence of the largesses of corn—became at once utterly demoralized and aware of its power, and which—with its demands, sometimes stupid, sometimes knavish, and its talk of the sovereignty of the people—lay like an incubus for five hundred years upon the Roman commonwealth and only perished along with it. And yet—this greatest of political transgressors was in turn the regenerator of his country. There is scarce a structural idea in Roman monarchy, which is not traceable to Gaius Gracchus. From him proceeded the maxim—founded doubtless in a certain sense in the nature of the old traditional laws of war, but yet, in the extension and practical application now given to it, foreign to the older state-law—that all the land of the subject communities was to be regarded as the private property of the state; a maxim, which was primarily employed to vindicate the right of the state to tax that land at pleasure, as was the case in Asia, or to apply it for the institution of colonies, as was done in Africa, and which became afterwards a fundamental principle of law under the empire. From him proceeded the tactics, whereby demagogues and tyrants, leaning for support on material interests, break

down the governing Aristocracy, but subsequently legitimize the change of constitution by substituting a strict and efficient administration for the previous misgovernment. To him, in particular, are traceable the first steps towards such a reconciliation between Rome and the provinces as the establishment of monarchy could not but bring in its train; the attempt to rebuild Carthage destroyed by Italian rivalry and generally to open the way for Italian emigration towards the provinces, formed the first link in the long chain of that momentous and beneficial course of action. Right and wrong, fortune and misfortune were so inextricably blended in this singular man and in this marvellous political constellation, that it may well beseem history in this case—though it beseems her but seldom— to reserve her judgment.

The Question As to the Allies

When Gracchus had substantially completed the new constitution projected by him for the state, he applied himself to a second and more difficult work. The question as to the Italian allies was still undecided. What were the views of the democratic leaders regarding it, had been rendered sufficiently apparent.(26) They naturally desired the utmost possible extension of the Roman franchise, not merely that they might bring in the domains occupied by the Latins for distribution, but above all that they might strengthen their body of adherents by the enormous mass of the new burgesses, might bring the comitial machine still more fully under their power by widening the body of privileged electors, and generally might abolish a distinction which had now with the fall of the republican constitution lost all serious importance. But here they encountered resistance from their own party, and especially from that band which otherwise readily gave its sovereign assent to all which it did or did not understand. For the simple reason that Roman citizenship seemed to these people, so to speak, like a partnership which gave them a claim to share in

sundry very tangible profits, direct and indirect, they were not at all disposed to enlarge the number of the partners. The rejection of the Fulvian law in 629, and the insurrection of the Fregellans arising out of it, were significant indications both of the obstinate perseverance of the fraction of the burgesses that ruled the comitia, and of the impatient urgency of the allies. Towards the end of his second tribunate (632) Gracchus, probably urged by obligations which he had undertaken towards the allies, ventured on a second attempt. In concert with Marcus Flaccus—who, although a consular, had again taken the tribuneship of the people, in order now to carry the law which he had formerly proposed without success—he made a proposal to grant to the Latins the full franchise, and to the other Italian allies the former rights of the Latins. But the proposal encountered the united opposition of the senate and the mob of the capital. The nature of this coalition and its mode of conflict are clearly and distinctly seen from an accidentally preserved fragment of the speech which the consul Gaius Fannius made to the burgesses in opposition to the proposal. "Do you then think," said the Optimate, "that, if you confer the franchise on the Latins, you will be able to find a place in future—just as you are now standing there in front of me—in the burgess-assembly, or at the games and popular amusements? Do you not believe, on the contrary, that those people will occupy every spot?" Among the burgesses of the fifth century, who on one day conferred the franchise on all the Sabines, such an orator might perhaps have been hissed; those of the seventh found his reasoning uncommonly clear and the price of the assignation of the Latin domains, which was offered to it by Gracchus, far too low. The very circumstance, that the senate carried a permission to eject from the city all non-burgesses before the day for the decisive vote, showed the fate in store for the proposal. And when before the voting Livius Drusus, a colleague of Gracchus, interposed his veto against the law, the people received the veto in such a way that

Gracchus could not venture to proceed further or even to prepare for Drusus the fate of Marcus Octavius.

Overthrow of Gracchus

It was, apparently, this success which emboldened the senate to attempt the overthrow of the victorious demagogue. The weapons of attack were substantially the same with which Gracchus himself had formerly operated. The power of Gracchus rested on the mercantile class and the proletariat; primarily on the latter, which in this conflict, wherein neither side had any military reserve, acted as it were the part of an army. It was clear that the senate was not powerful enough to wrest either from the merchants or from the proletariat their new privileges; any attempt to assail the corn-laws or the new jury-arrangement would have led, under a somewhat grosser or somewhat more civilized form, to a street-riot in presence of which the senate was utterly defenceless. But it was no less clear, that Gracchus himself and these merchants and proletarians were only kept together by mutual advantage, and that the men of material interests were ready to accept their posts, and the populace strictly so called its bread, quite as well from any other as from Gaius Gracchus. The institutions of Gracchus stood, for the moment at least, immoveably firm with the exception of a single one—his own supremacy. The weakness of the latter lay in the fact, that in the constitution of Gracchus there was no relation of allegiance subsisting at all between the chief and the army; and, while the new constitution possessed all other elements of vitality, it lacked one—the moral tie between ruler and ruled, without which every state rests on a pedestal of clay. In the rejection of the proposal to admit the Latins to the franchise it had been demonstrated with decisive clearness that the multitude in fact never voted for Gracchus, but always simply for itself. The aristocracy conceived the plan of offering battle to the author of the corn-largesses and land-assignments on his own ground.

Rival Demagogism of the Senate

The Livian Laws

As a matter of course, the senate offered to the proletariat not merely the same advantages as Gracchus had already assured to it in corn and otherwise, but advantages still greater. Commissioned by the senate, the tribune of the people Marcus Livius Drusus proposed to relieve those who received land under the laws of Gracchus from the rent imposed on them, (27) and to declare their allotments to be free and alienable property; and, further, to provide for the proletariat not in transmarine, but in twelve Italian, colonies, each of 3000 colonists, for the planting of which the people might nominate suitable men; only, Drusus himself declined—in contrast with the family-complexion of the Gracchan commission—to take part in this honourable duty. Presumably the Latins were named as those who would have to bear the costs of the plan, for there does not appear to have now existed in Italy other occupied domain-land of any extent save that which was enjoyed by them. We find isolated enactments of Drusus—such as the regulation that the punishment of scourging might only be inflicted on the Latin soldier by the Latin officer set over him, and not by the Roman officer—which were to all appearance intended to indemnify the Latins for other losses. The plan was not the most refined. The attempt at rivalry was too clear; the endeavour to draw the fair bond between the nobles and the proletariat still closer by their exercising jointly a tyranny over the Latins was too transparent; the inquiry suggested itself too readily, In what part of the peninsula, now that the Italian domains had been mainly given away already—even granting that the whole domains assigned to the Latins were confiscated—was the occupied domain-land requisite for the formation of twelve new, numerous, and compact burgess-communities to be discovered? Lastly the declaration of Drusus, that he would have nothing to do with the execution of his law, was so dreadfully prudent as to border on sheer folly. But the clumsy snare was quite suited for the stupid game

which they wished to catch. There was the additional and perhaps decisive consideration, that Gracchus, on whose personal influence everything depended, was just then establishing the Carthaginian colony in Africa, and that his lieutenant in the capital, Marcus Flaccus, played into the hands of his opponents by his vehement and maladroit actings. The "people" accordingly ratified the Livian laws as readily as it had before ratified the Sempronian. It then, as usual, repaid its latest, by inflicting a gentle blow on its earlier, benefactor, declining to re-elect him when he stood for the third time as a candidate for the tribunate for the year 633; on which occasion, however, there are alleged to have been unjust proceedings on the part of the tribune presiding at the election, who had been formerly offended by Gracchus. Thus the foundation of his despotism gave way beneath him. A second blow was inflicted on him by the consular elections, which not only proved in a general sense adverse to the democracy, but which placed at the head of the state Lucius Opimius, who as praetor in 629 had conquered Fregellae, one of the most decided and least scrupulous chiefs of the strict aristocratic party, and a man firmly resolved to get rid of their dangerous antagonist at the earliest opportunity.

Attack on the Transmarine Colonialization Downfall of Gracchus

Such an opportunity soon occurred. On the 10th of December, 632, Gracchus ceased to be tribune of the people; on the 1st of January, 633, Opimius entered on his office. The first attack, as was fair, was directed against the most useful and the most unpopular measure of Gracchus, the re-establishment of Carthage. While the transmarine colonies had hitherto been only indirectly assailed through the greater allurements of the Italian, African hyaenas, it was now alleged, dug up the newly-placed boundary-stones of Carthage, and the Roman priests, when requested, certified that such signs and portents ought to form an express warning against rebuilding

on a site accursed by the gods. The senate thereby found itself in its conscience compelled to have a law proposed, which prohibited the planting of the colony of Junonia. Gracchus, who with the other men nominated to establish it was just then selecting the colonists, appeared on the day of voting at the Capitol whither the burgesses were convoked, with a view to procure by means of his adherents the rejection of the law. He wished to shun acts of violence, that he might not himself supply his opponents with the pretext which they sought; but he had not been able to prevent a great portion of his faithful partisans, who remembered the catastrophe of Tiberius and were well acquainted with the designs of the aristocracy, from appearing in arms, and amidst the immense excitement on both sides quarrels could hardly be avoided. The consul Lucius Opimius offered the usual sacrifice in the porch of the Capitoline temple; one of the attendants assisting at the ceremony, Quintus Antullius, with the holy entrails in his hand, haughtily ordered the "bad citizens" to quit the porch, and seemed as though he would lay hands on Gaius himself; whereupon a zealous Gracchan drew his sword and cut the man down. A fearful tumult arose. Gracchus vainly sought to address the people and to disclaim the responsibility for the sacrilegious murder; he only furnished his antagonists with a further formal ground of accusation, as, without being aware of it in the confusion, he interrupted a tribune in the act of speaking to the people—an offence, for which an obsolete statute, originating at the time of the old dissensions between the orders,(28) had prescribed the severest penalty. The consul Lucius Opimius took his measures to put down by force of arms the insurrection for the overthrow of the republican constitution, as they were fond of designating the events of this day. He himself passed the night in the temple of Castor in the Forum; at early dawn the Capitol was filled with Cretan archers, the senate-house and Forum with the men of the government party—the senators and the section of the equites adhering to them—who by order of the consul had all appeared in arms and each

attended by two armed slaves. None of the aristocracy were absent; even the aged and venerable Quintus Metellus, well disposed to reform, had appeared with shield and sword. An officer of ability and experience acquired in the Spanish wars, Decimus Brutus, was entrusted with the command of the armed force; the senate assembled in the senate-house. The bier with the corpse of Antullius was deposited in front of it; the senate, as if surprised, appeared en masse at the door in order to view the dead body, and then retired to determine what should be done. The leaders of the democracy had gone from the Capitol to their houses; Marcus Flaccus had spent the night in preparing for the war in the streets, while Gracchus apparently disdained to strive with destiny. Next morning, when they learned the preparations made by their opponents at the Capitol and the Forum, both proceeded to the Aventine, the old stronghold of the popular party in the struggles between the patricians and the plebeians. Gracchus went thither silent and unarmed; Flaccus called the slaves to arms and entrenched himself in the temple of Diana, while he at the same time sent his younger son Quintus to the enemy's camp in order if possible to arrange a compromise. The latter returned with the announcement that the aristocracy demanded unconditional surrender; at the same time he brought a summons from the senate to Gracchus and Flaccus to appear before it and to answer for their violation of the majesty of the tribunes. Gracchus wished to comply with the summons, but Flaccus prevented him from doing so, and repeated the equally weak and mistaken attempt to move such antagonists to a compromise. When instead of the two cited leaders the young Quintus Flaccus once more presented himself alone, the consul treated their refusal to appear as the beginning of open insurrection against the government; he ordered the messenger to be arrested and gave the signal for attack on the Aventine, while at the same time he caused proclamation to be made in the streets that the government would give to whosoever should bring the head of Gracchus or of Flaccus its literal weight in gold, and that they would

guarantee complete indemnity to every one who should leave the Aventine before the beginning of the conflict. The ranks on the Aventine speedily thinned; the valiant nobility in union with the Cretans and the slaves stormed the almost undefended mount, and killed all whom they found, about 250 persons, mostly of humble rank. Marcus Flaccus fled with his eldest son to a place of concealment, where they were soon afterwards hunted out and put to death. Gracchus had at the beginning of the conflict retired into the temple of Minerva, and was there about to pierce himself with his sword, when his friend Publius Laetorius seized his arm and besought him to preserve himself if possible for better times. Gracchus was induced to make an attempt to escape to the other bank of the Tiber; but when hastening down the hill he fell and sprained his foot. To gain time for him to escape, his two attendants turned to face his pursuers and allowed themselves to be cut down, Marcus Pomponius at the Porta Trigemina under the Aventine, Publius Laetorius at the bridge over the Tiber where Horatius Cocles was said to have once singly withstood the Etruscan army; so Gracchus, attended only by his slave Euporus, reached the suburb on the right bank of the Tiber. There, in the grove of Furrina, were afterwards found the two dead bodies; it seemed as if the slave had put to death first his master and then himself. The heads of the two fallen leaders were handed over to the government as required; the stipulated price and more was paid to Lucius Septumuleius, a man of quality, the bearer of the head of Gracchus, while the murderers of Flaccus, persons of humble rank, were sent away with empty hands. The bodies of the dead were thrown into the river; the houses of the leaders were abandoned to the pillage of the multitude. The warfare of prosecution against the partisans of Gracchus began on the grandest scale; as many as 3000 of them are said to have been strangled in prison, amongst whom was Quintus Flaccus, eighteen years of age, who had taken no part in the conflict and was universally lamented on account of his youth and his amiable disposition. On the open space beneath

the Capitol where the altar consecrated by Camillus after the restoration of internal peace(29) and other shrines erected on similar occasions to Concord were situated, these small chapels were pulled down; and out of the property of the killed or condemned traitors, which was confiscated even to the portions of their wives, a new and splendid temple of Concord with the basilica belonging to it was erected in accordance with a decree of the senate by the consul Lucius Opimius. Certainly it was an act in accordance with the spirit of the age to remove the memorials of the old, and to inaugurate a new, concord over the remains of the three grandsons of the conqueror of Zama, all of whom—first Tiberius Gracchus, then Scipio Aemilianus, and lastly the youngest and the mightiest, Gaius Gracchus—had now been engulfed by the revolution. The memory of the Gracchi remained officially proscribed; Cornelia was not allowed even to put on mourning for the death of her last son; but the passionate attachment, which very many had felt towards the two noble brothers and especially towards Gaius during their life, was touchingly displayed also after their death in the almost religious veneration which the multitude, in spite of all precautions of police, continued to pay to their memory and to the spots where they had fallen.

CHAPTER IV

The Rule of the Restoration

Vacancy in the Government

The new structure, which Gaius Gracchus had reared, became on his death a ruin. His death indeed, like that of his brother, was primarily a mere act of vengeance; but it was at the same time a very material step towards the restoration of the old constitution, when the person of the monarch was taken away from the monarchy, just as it was on the point of being established. It was all the more so in the present instance, because after the

fall of Gaius and the sweeping and bloody prosecutions of Opimius there existed at the moment absolutely no one, who, either by blood-relationship to the fallen chief of the state or by preeminent ability, might feel himself warranted in even attempting to occupy the vacant place. Gaius had departed from the world childless, and the son whom Tiberius had left behind him died before reaching manhood; the whole popular party, as it was called, was literally without any one who could be named as leader. The Gracchan constitution resembled a fortress without a commander; the walls and garrison were uninjured, but the general was wanting, and there was no one to take possession of the vacant place save the very government which had been overthrown.

The Restored Aristocracy

So it accordingly happened. After the decease of Gaius Gracchus without heirs, the government of the senate as it were spontaneously resumed its place; and this was the more natural, that it had not been, in the strict sense, formally abolished by the tribune, but had merely been reduced to a practical nullity by his exceptional proceedings. Yet we should greatly err, if we should discern in this restoration nothing further than a relapse of the state-machine into the old track which had been trodden and worn for centuries. Restoration is always revolution; but in this case it was not so much the old government as the old governor that was restored. The oligarchy made its appearance newly equipped in the armour of the - tyrannis- which had been overthrown. As the senate had beaten Gracchus from the field with his own weapons, so it continued in the most essential points to govern with the constitution of the Gracchi; though certainly with the ulterior idea, if not of setting it aside entirely, at any rate of thoroughly purging it in due time from the elements really hostile to the ruling aristocracy.

Prosecutions of the Democrats

At first the reaction was mainly directed against persons. Publius Popillius was recalled from banishment after the enactments relating to him had been cancelled (633), and a warfare of prosecution was waged against the adherents of Gracchus; whereas the attempt of the popular party to have Lucius Opimius after his resignation of office condemned for high treason was frustrated by the partisans of the government (634). The character of this government of the restoration is significantly indicated by the progress of the aristocracy in soundness of sentiment. Gaius Carbo, once the ally of the Gracchi, had for long been a convert,⁽¹⁾ and had but recently shown his zeal and his usefulness as defender of Opimius. But he remained the renegade; when the same accusation was raised against him by the democrats as against Opimius, the government were not unwilling to let him fall, and Carbo, seeing himself lost between the two parties, died by his own hand. Thus the men of the reaction showed themselves in personal questions pure aristocrats. But the reaction did not immediately attack the distributions of grain, the taxation of the province of Asia, or the Gracchan arrangement as to the jurymen and courts; on the contrary, it not only spared the mercantile class and the proletariat of the capital, but continued to render homage, as it had already done in the introduction of the Livian laws, to these powers and especially to the proletariat far more decidedly than had been done by the Gracchi. This course was not adopted merely because the Gracchan revolution still thrilled for long the minds of its contemporaries and protected its creations; the fostering and cherishing at least of the interests of the populace was in fact perfectly compatible with the personal advantage of the aristocracy, and thereby nothing further was sacrificed than merely the public weal.

The Domain Question under the Restoration

All those measures which were devised by Gaius Gracchus for the promotion of the public welfare—the best but, as may readily be conceived, also the most unpopular part of his legislation—were allowed by the aristocracy to drop. Nothing was so speedily and so successfully assailed as the noblest of his projects, the scheme of introducing a legal equality first between the Roman burgesses and Italy, and thereafter between Italy and the provinces, and—inasmuch as the distinction between the merely ruling and consuming and the merely serving and working members of the state was thus done away— at the same time solving the social question by the most comprehensive and systematic emigration known in history. With all the determination and all the peevish obstinacy of dotage the restored oligarchy obtruded the principle of deceased generations—that Italy must remain the ruling land and Rome the ruling city in Italy—afresh on the present. Even in the lifetime of Gracchus the claims of the Italian allies had been decidedly rejected, and the great idea of transmarine colonization had been subjected to a very serious attack, which became the immediate cause of Gracchus' fall. After his death the scheme of restoring Carthage was set aside with little difficulty by the government party, although the individual allotments already distributed there were left to the recipients. It is true that they could not prevent a similar foundation by the democratic party from succeeding at another point: in the course of the conquests beyond the Alps which Marcus Flaccus had begun, the colony of Narbo (Narbonne) was founded there in 636, the oldest transmarine burgess- city in the Roman empire, which, in spite of manifold attacks by the government party and in spite of a proposal directly made by the senate to abolish it, permanently held its ground, protected, as it probably was, by the mercantile interests that were concerned. But, apart from this exception—in its isolation not very important—the government was uniformly successful in preventing the assignation of land out of Italy.

The Italian domain-question was settled in a similar spirit. The Italian colonies of Gaius, especially Capua, were cancelled, and such of them as had already been planted were again broken up; only the unimportant one of Tarentum was allowed to subsist in the form of the new town Neptunia placed alongside of the former Greek community. So much of the domains as had already been distributed by non-colonial assignation remained in the hands of the recipients; the restrictions imposed on them by Gracchus in the interest of the commonwealth—the ground-rent and the prohibition of alienation—had already been abolished by Marcus Drusus. With reference on the other hand to the domains still possessed by right of occupation—which, over and above the domain-land enjoyed by the Latins, must have mostly consisted of the estates left with their holders in accordance with the Gracchan maximum(2)—it was resolved definitively to secure them to those who had hitherto been occupants and to preclude the possibility of future distribution. It was primarily from these lands, no doubt, that the 36,000 new farm-allotments promised by Drusus were to have been formed; but they saved themselves the trouble of inquiring where those hundreds of thousands of acres of Italian domain-land were to be found, and tacitly shelved the Livian colonial law, which had served its purpose;—only perhaps the small colony of Scolacium (Squillace) may be referred to the colonial law of Drusus. On the other hand by a law, which the tribune of the people Spurius Thorius carried under the instructions of the senate, the allotment-commission was abolished in 635, and there was imposed on the occupants of the domain-land a fixed rent, the proceeds of which went to the benefit of the populace of the capital—apparently by forming part of the fund for the distribution of corn; proposals going still further, including perhaps an increase of the largesses of grain, were averted by the judicious tribune of the people Gaius Marius. The final step was taken eight years afterwards (643), when by a new decree of the people(3) the occupied domain-land was directly converted into the rent-free private property of

the former occupants. It was added, that in future domain-land was not to be occupied at all, but was either to be leased or to lie open as public pasture; in the latter case provision was made by the fixing of a very low maximum of ten head of large and fifty head of small cattle, that the large herd- owner should not practically exclude the small. In these judicious regulations the injurious character of the occupation-system, which moreover was long ago given up,(4) was at length officially recognized, but unhappily they were only adopted when it had already deprived the state in substance of its domanian possessions. While the Roman aristocracy thus took care of itself and got whatever occupied land was still in its hands converted into its own property, it at the same time pacified the Italian allies, not indeed by conferring on them the property of the Latin domain-land which they and more especially their municipal aristocracy enjoyed, but by preserving unimpaired the rights in relation to it guaranteed to them by their charters. The opposite party was in the unfortunate position, that in the most important material questions the interests of the Italians ran diametrically counter to those of the opposition in the capital; in fact the Italians entered into a species of league with the Roman government, and sought and found protection from the senate against the extravagant designs of various Roman demagogues.

The Proletariate and the Equestrian Order under the Restoration

While the restored government was thus careful thoroughly to eradicate the germs of improvement which existed in the Gracchan constitution, it remained completely powerless in presence of the hostile powers that had been, not for the general weal, aroused by Gracchus. The proletariate of the capital continued to have a recognized title to aliment; the senate likewise acquiesced in the taking of the jurymen from the mercantile order, repugnant though this yoke was to the better and prouder portion of the aristocracy. The fetters which the aristocracy wore did not beseem its

dignity; but we do not find that it seriously set itself to get rid of them. The law of Marcus Aemilius Scaurus in 632, which at least enforced the constitutional restrictions on the suffrage of freedmen, was for long the only attempt—and that a very tame one—on the part of the senatorial government once more to restrain their mob-tyrants. The proposal, which the consul Quintus Caepio seventeen years after the introduction of the equestrian tribunals (648) brought in for again entrusting the trials to senatorial jurymen, showed what the government wished; but showed also how little it could do, when the question was one not of squandering domains but of carrying a measure in the face of an influential order. It broke down.(5) The government was not emancipated from the inconvenient associates who shared its power; but these measures probably contributed still further to disturb the never sincere agreement of the ruling aristocracy with the merchant- class and the proletariat. Both were very well aware, that the senate granted all its concessions only from fear and with reluctance; permanently attached to the rule of the senate by considerations neither of gratitude nor of interest, both were very ready to render similar services to any other master who offered them more or even as much, and had no objection, if an opportunity occurred, to cheat or to thwart the senate. Thus the restoration continued to govern with the desires and sentiments of a legitimate aristocracy, and with the constitution and means of government of a -tyrannis-. Its rule not only rested on the same bases as that of Gracchus, but it was equally ill, and in fact still worse, consolidated; it was strong, when in league with the populace it overthrew serviceable institutions, but it was utterly powerless, when it had to face the bands of the streets or the interests of the merchants. It sat on the vacated throne with an evil conscience and divided hopes, indignant at the institutions of the state which it ruled and yet incapable of even systematically assailing them, vacillating in all its conduct except where its own material advantage prompted a decision, a picture of faithlessness

towards its own as well as the opposite party, of inward inconsistency, of the most pitiful impotence, of the meanest selfishness—an unsurpassed ideal of misrule.

The Men of the Restoration

It could not be otherwise; the whole nation was in a state of intellectual and moral decline, but especially the upper classes. The aristocracy before the period of the Gracchi was truly not over-rich in talent, and the benches of the senate were crowded by a pack of cowardly and dissolute nobles; nevertheless there sat in it Scipio Aemilianus, Gaius Laelius, Quintus Metellus, Publius Crassus, Publius Scaevola and numerous other respectable and able men, and an observer favourably predisposed might be of opinion that the senate maintained a certain moderation in injustice and a certain decorum in misgovernment. This aristocracy had been overthrown and then reinstated; henceforth there rested on it the curse of restoration. While the aristocracy had formerly governed for good or ill, and for more than a century without any sensible opposition, the crisis which it had now passed through revealed to it, like a flash of lightning in a dark night, the abyss which yawned before its feet. Was it any wonder that henceforward rancour always, and terror wherever they durst, characterized the government of the lords of the old nobility? that those who governed confronted as an united and compact party, with far more sternness and violence than hitherto, the non-governing multitude? that family-policy now prevailed once more, just as in the worst times of the patriciate, so that e. g. the four sons and (probably) the two nephews of Quintus Metellus—with a single exception persons utterly insignificant and some of them called to office on account of their very simplicity—attained within fifteen years (631-645) all of them to the consulship, and all with one exception also to triumphs—to say nothing of sons-in-law and so forth? that the more violent and cruel the bearing of any of their partisans towards the opposite

party, he received the more signal honour, and every outrage and every infamy were pardoned in the genuine aristocrat? that the rulers and the ruled resembled two parties at war in every respect, save in the fact that in their warfare no international law was recognized? It was unhappily only too palpable that, if the old aristocracy beat the people with rods, this restored aristocracy chastised it with scorpions. It returned to power; but it returned neither wiser nor better. Never hitherto had the Roman aristocracy been so utterly deficient in men of statesmanly and military capacity, as it was during this epoch of restoration between the Gracchan and the Cinnan revolutions.

Marcus Aemilius Scaurus

A significant illustration of this is afforded by the chief of the senatorial party at this time, Marcus Aemilius Scaurus. The son of highly aristocratic but not wealthy parents, and thus compelled to make use of his far from mean talents, he raised himself to the consulship (639) and censorship (645), was long the chief of the senate and the political oracle of his order, and immortalized his name not only as an orator and author, but also as the originator of some of the principal public buildings executed in this century. But, if we look at him more closely, his greatly praised achievements amount merely to this much, that, as a general, he gained some cheap village triumphs in the Alps, and, as a statesman, won by his laws about voting and luxury some victories nearly as serious over the revolutionary spirit of the times. His real talent consisted in this, that, while he was quite as accessible and bribable as any other upright senator, he discerned with some cunning the moment when the matter began to be hazardous, and above all by virtue of his superior and venerable appearance acted the part of Fabricius before the public. In a military point of view, no doubt, we find some honourable exceptions of able officers belonging to the highest circles of the aristocracy; but the rule was, that the lords of quality, when they were

to assume the command of armies, hastily read up from the Greek military manuals and the Roman annals as much as was required for holding a military conversation, and then, when in the field, acted most wisely by entrusting the real command to an officer of humble lineage but of tried capacity and tried discretion. In fact, if a couple of centuries earlier the senate resembled an assembly of kings, these their successors played not ill the part of princes. But the incapacity of these restored aristocrats was fully equalled by their political and moral worthlessness. If the state of religion, to which we shall revert, did not present a faithful reflection of the wild dissoluteness of this epoch, and if the external history of the period did not exhibit the utter depravity of the Roman nobles as one of its most essential elements, the horrible crimes, which came to light in rapid succession among the highest circles of Rome, would alone suffice to indicate their character.

Administration under the Restoration Social State of Italy

The administration, internal and external, was what was to be expected under such a government. The social ruin of Italy spread with alarming rapidity; since the aristocracy had given itself legal permission to buy out the small holders, and in its new arrogance allowed itself with growing frequency to drive them out, the farms disappeared like raindrops in the sea. That the economic oligarchy at least kept pace with the political, is shown by the opinion expressed about 650 by Lucius Marcius Philippus, a man of moderate democratic views, that there were among the whole burgesses hardly 2000 families of substantial means. A practical commentary on this state of things was once more furnished by the servile insurrections, which during the first years of the Cimbrian war broke out annually in Italy, e. g. at Nuceria, at Capua, and in the territory of Thurii. This last conspiracy was so important that the urban praetor had to march with a legion against it and

yet overcame the insurrection not by force of arms, but only by insidious treachery. It was moreover a suspicious circumstance, that the insurrection was headed not by a slave, but by the Roman knight Titus Vettius, whom his debts had driven to the insane step of manumitting his slaves and declaring himself their king (650). The apprehensions of the government with reference to the accumulation of masses of slaves in Italy are shown by the measures of precaution respecting the gold- washings of Victumulae, which were carried on after 611 on account of the Roman government: the lessees were at first bound not to employ more than 5000 labourers, and subsequently the workings were totally stopped by decree of the senate. Under such a government as the present there was every reason in fact for fear, if, as was very possible, a Transalpine host should penetrate into Italy and summon the slaves, who were in great part of kindred lineage, to arms.

The Provinces

Occupation of Cilicia

The provinces suffered still more in comparison. We shall have an idea of the condition of Sicily and Asia, if we endeavour to realize what would be the aspect of matters in the East Indies provided the English aristocracy were similar to the Roman aristocracy of that day. The legislation, which entrusted the mercantile class with control over the magistrates, compelled the latter to make common cause to a certain extent with the former, and to purchase for themselves unlimited liberty of plundering and protection from impeachment by unconditional indulgence towards the capitalists in the provinces. In addition to these official and semi-official robbers, freebooters and pirates pillaged all the countries of the Mediterranean. In the Asiatic waters more especially the buccaneers carried their outrages so far that even the Roman government found itself under the necessity in 652 of despatching to Cilicia a fleet, mainly composed of the vessels of the dependent mercantile cities, under the praetor Marcus Antonius, who was

invested with proconsular powers. This fleet captured a number of corsair-vessels and destroyed some rock-strongholds and not only so, but the Romans even settled themselves permanently there, and in order to the suppression of piracy in its chief seat, the Rugged or western Cilicia occupied strong military positions—the first step towards the establishment of the province of Cilicia, which thenceforth appears among the Roman magistracies.(7) The design was commendable, and the scheme in itself was suitable for its purpose; only, the continuance and the increase of the evil of piracy in the Asiatic waters, and especially in Cilicia, unhappily showed with how inadequate means the pirates were combated from the newly-acquired position.

Revolt of the Slaves

But nowhere did the impotence and perversity of the Roman provincial administration come to light so conspicuously as in the insurrections of the slave proletariat, which seemed to have revived on their former footing simultaneously with the restoration of the aristocracy. These insurrections of the slaves swelling from revolts into wars— which had emerged just about 620 as one, and that perhaps the proximate, cause of the Gracchan revolution—were renewed and repeated with dreary uniformity. Again, as thirty years before, a ferment pervaded the body of slaves throughout the Roman empire. We have already mentioned the Italian conspiracies. The miners in the Attic silver-mines rose in revolt, occupied the promontory of Sunium, and issuing thence pillaged for a length of time the surrounding country. Similar movements appeared at other places.

The Second Sicilian Slave-War

But the chief seat of these fearful commotions was once more Sicily with its plantations and its hordes of slaves brought thither from Asia Minor. It is significant of the greatness of the evil, that an attempt of the government to

check the worst iniquities of the slaveholders was the immediate cause of the new insurrection. That the free proletarians in Sicily were little better than the slaves, had been shown by their attitude in the first insurrection;(8) after it was subdued, the Roman speculators took their revenge and reduced numbers of the free provincials into slavery. In consequence of a sharp enactment issued against this by the senate in 650, Publius Licinius Nerva, the governor of Sicily at the time, appointed a court for deciding on claims of freedom to sit in Syracuse. The court went earnestly to work; in a short time decision was given in eight hundred processes against the slave-owners, and the number of causes in dependence was daily on the increase. The terrified planters hastened to Syracuse, to compel the Roman governor to suspend such unparalleled administration of justice; Nerva was weak enough to let himself be terrified, and in harsh language informed the non-free persons requesting trial that they should forgo their troublesome demand for right and justice and should instantly return to those who called themselves their masters. Those who were thus dismissed, instead of doing as he bade them, formed a conspiracy and went to the mountains.

The governor was not prepared for military measures, and even the wretched militia of the island was not immediately at hand; so that he concluded an alliance with one of the best known captains of banditti in the island, and induced him by the promise of personal pardon to betray the revolted slaves into the hands of the Romans. He thus gained the mastery over this band. But another band of runaway slaves succeeded in defeating a division of the garrison of Enna (Castrogiovanni); and this first success procured for the insurgents— what they especially needed—arms and a conflux of associates. The armour of their fallen or fugitive opponents furnished the first basis of their military organization, and the number of the insurgents soon swelled to many thousands. These Syrians in a foreign land already, like their predecessors, seemed to themselves not unworthy to be governed by kings, as were their countrymen at home; and— parodying the

trumpety king of their native land down to the very name—they placed the slave Salvius at their head as king Tryphon. In the district between Enna and Leontini (Lentini) where these bands had their head-quarters, the open country was wholly in the hands of the insurgents and Morgantia and other walled towns were already besieged by them, when the Roman governor with his hastily-collected Sicilian and Italian troops fell upon the slave-army in front of Morgantia. He occupied the undefended camp; but the slaves, although surprised, made a stand. In the combat that ensued the levy of the island not only gave way at the first onset, but, as the slaves allowed every one who threw down his arms to escape unhindered, the militia almost without exception embraced the good opportunity of taking their departure, and the Roman army completely dispersed. Had the slaves in Morgantia been willing to make common cause with their comrades before the gates, the town was lost; but they preferred to accept the gift of freedom in legal form from their masters, and by their valour helped them to save the town—whereupon the Roman governor declared the promise of liberty solemnly given to the slaves by the masters to be void in law, as having been illegally extorted.

Athenion

While the revolt thus spread after an alarming manner in the interior of the island, a second broke out on the west coast. It was headed by Athenion. He had formerly been, just like Cleon, a dreaded captain of banditti in his native country of Cilicia, and had been carried thence as a slave to Sicily. He secured, just as his predecessors had done, the adherence of the Greeks and Syrians especially by prophesyings and other edifying impostures; but skilled in war and sagacious as he was, he did not, like the other leaders, arm the whole mass that flocked to him, but formed out of the men able for warfare an organized army, while he assigned the remainder to peaceful employment. In consequence of his strict discipline, which repressed all

vacillation and all insubordinate movement in his troops, and his gentle treatment of the peaceful inhabitants of the country and even of the captives, he gained rapid and great successes. The Romans were on this occasion disappointed in the hope that the two leaders would fall out; Athenion voluntarily submitted to the far less capable king Tryphon, and thus preserved unity among the insurgents. These soon ruled with virtually absolute power over the flat country, where the free proletarians again took part more or less openly with the slaves; the Roman authorities were not in a position to take the field against them, and had to rest content with protecting the towns, which were in the most lamentable plight, by means of the militia of Sicily and that of Africa brought over in all haste. The administration of justice was suspended over the whole island, and force was the only law. As no cultivator living in town ventured any longer beyond the gates, and no countryman ventured into the towns, the most fearful famine set in, and the town-population of this island which formerly fed Italy had to be supported by the Roman authorities sending supplies of grain. Moreover, conspiracies of the town-slaves everywhere threatened to break out within, while the insurgent armies lay before the walls; even Messana was within a hair's breadth of being conquered by Athenion.

Aquillius

Difficult as it was for the government during the serious war with the Cimbri to place a second army in the field, it could not avoid sending in 651 an army of 14,000 Romans and Italians, not including the transmarine militia, under the praetor Lucius Lucullus to the island. The united slave-army was stationed in the mountains above Sciacca, and accepted the battle which Lucullus offered. The better military organization of the Romans gave them the victory; Athenion was left for dead on the field, Tryphon had to throw himself into the mountain-fortress of Triocala; the insurgents deliberated earnestly whether it was possible to continue the struggle

longer. But the party, which was resolved to hold out to the last man, retained the upper hand; Athenion, who had been saved in a marvellous manner, reappeared among his troops and revived their sunken courage; above all Lucullus with incredible negligence took not the smallest step to follow up his victory; in fact, he is said to have intentionally disorganized the army and to have burned his field baggage, with a view to screen the total inefficacy of his administration and not to be cast into the shade by his successor. Whether this was true or not, his successor Gaius Servilius (652) obtained no better results; and both generals were afterwards criminally impeached and condemned for their conduct in office—which, however, was not at all a certain proof of their guilt. Athenion, who after the death of Tryphon (652) was invested with the sole command, stood victorious at the head of a considerable army, when in 653 Manius Aquillius, who had during the previous year distinguished himself under Marius in the war with the Teutones, was as consul and governor entrusted with the conduct of the war. After two years of hard conflicts—Aquillius is said to have fought in person with Athenion, and to have killed him in single combat—the Roman general at length put down the desperate resistance, and vanquished the insurgents in their last retreats by famine. The slaves on the island were prohibited from bearing arms and peace was again restored to it, or, in other words, its recent tormentors were relieved by those of former use and wont; in fact, the victor himself occupied a prominent place among the numerous and energetic robber-magistrates of this period. Any one who still required a proof of the internal quality of the government of the restored aristocracy might be referred to the origin and to the conduct of this second Sicilian slave-war, which, lasted for five years.

The Dependent States

But wherever the eye might turn throughout the wide sphere of Roman administration, the same causes and the same effects appeared. If the

Sicilian slave-war showed how far the government was from being equal to even its simplest task of keeping in check the proletariat, contemporary events in Africa displayed the skill with which the Romans now governed the client-states. About the very time when the Sicilian slave-war broke out, there was exhibited before the eyes of the astonished world the spectacle of an unimportant client-prince able to carry out a fourteen years' usurpation and insurrection against the mighty republic which had shattered the kingdoms of Macedonia and Asia with one blow of its weighty arm— and that not by means of arms, but through the pitiful character of its rulers.

Numidia

Jugurtha

The kingdom of Numidia stretched from the river Molochath to the great Syrtis,(9) bordering on the one side with the Mauretanian kingdom of Tingis (the modern Morocco) and on the other with Cyrene and Egypt, and surrounding on the west, south, and east the narrow district of coast which formed the Roman province of Africa. In addition to the old possessions of the Numidian chiefs, it embraced by far the greatest portion of the territory which Carthage had possessed in Africa during the times of its prosperity—including several important Old-Phoenician cities, such as Hippo Regius (Bona) and Great Leptis (Lebidah)—altogether the largest and best part of the rich seaboard of northern Africa. Numidia was beyond question, next to Egypt, the most considerable of all the Roman client-states. After the death of Massinissa (605), Scipio had divided the sovereign functions of that prince among his three sons, the kings Micipsa, Gulussa, and Mastanabal, in such a way that the firstborn obtained the residency and the state-chest, the second the charge of war, and the third the administration of justice.(10) Now after the death of his two brothers Massinissa's eldest son, Micipsa, (11) reigned alone, a feeble peaceful old man, who was fond of occupying himself more with the study of Greek philosophy than with affairs of state.

As his sons were not yet grown up, the reins of government were practically held by an illegitimate nephew of the king, the prince Jugurtha. Jugurtha was no unworthy grandson of Massinissa. He was a handsome man and a skilled and courageous rider and hunter; his countrymen held him in high honour as a clear and sagacious administrator, and he had displayed his military ability as leader of the Numidian contingent before Numantia under the eyes of Scipio. His position in the kingdom, and the influence which he possessed with the Roman government by means of his numerous friends and war-comrades, made it appear to king Micipsa advisable to adopt him (634), and to arrange in his testament that his own two elder sons Adherbal and Hiempsal, and his adopted son Jugurtha along with them, should jointly inherit and govern the kingdom, just as he himself had done with his two brothers. For greater security this arrangement was placed under the guarantee of the Roman government.

The War for the Numidian Succession

Soon afterwards, in 636, king Micipsa died. The testament came into force: but the two sons of Micipsa—the vehement Hiempsal still more than his weak elder brother—soon came into so violent collision with their cousin whom they looked on as an intruder into the legitimate line of succession, that the idea of a joint reign of the three kings had to be abandoned. An attempt was made to carry out a division of the heritage; but the quarrelling kings could not agree as to their quotas of land and treasure, and the protecting power, to which in this case the decisive word by right belonged, gave itself, as usual, no concern about this affair. A rupture took place; Adherbal and Hiempsal were disposed to characterize their father's testament as surreptitious and altogether to dispute Jugurtha's right of joint inheritance, while on the other hand Jugurtha came forward as a pretender to the whole kingdom. While the discussions as to the partition were still going on, Hiempsal was made away with by hired assassins; then a civil

war arose between Adherbal and Jugurtha, in which all Numidia took part. With his less numerous but better disciplined and better led troops Jugurtha conquered, and seized the whole territory of the kingdom, subjecting the chiefs who adhered to his cousin to the most cruel persecution. Adherbal escaped to the Roman province and proceeded to Rome to make his complaint there. Jugurtha had expected this, and had made his arrangements to meet the threatened intervention. In the camp before Numantia he had learned more from Rome than Roman tactics; the Numidian prince, introduced to the circles of the Roman aristocracy, had at the same time been initiated into the intrigues of Roman coteries, and had studied at the fountain-head what might be expected from Roman nobles. Even then, sixteen years before Micipsa's death, he had entered into disloyal negotiations as to the Numidian succession with Roman comrades of rank, and Scipio had been under the necessity of gravely reminding him that it was becoming in foreign princes to be on terms of friendship with the Roman state rather than with individual Roman citizens. The envoys of Jugurtha appeared in Rome, furnished with something more than words: that they had chosen the right means of diplomatic persuasion, was shown by the result. The most zealous champions of Adherbal's just title were with incredible rapidity convinced that Hiempsal had been put to death by his subjects on account of his cruelty, and that the originator of the war as to the succession was not Jugurtha, but Adherbal. Even the leading men in the senate were shocked at the scandal; Marcus Scaurus sought to check it, but in vain. The senate passed over what had taken place in silence, and ordained that the two surviving testamentary heirs should have the kingdom equally divided between them, and that, for the prevention of fresh quarrels, the division should be undertaken by a commission of the senate. This was done: the consular Lucius Opimius, well known through his services in setting aside the revolution, had embraced the opportunity of gathering the reward of his patriotism, and had got himself placed at the head of the

commission. The division turned out thoroughly in favour of Jugurtha, and not to the disadvantage of the commissioners; Cirta (Constantine) the capital with its port of Rusicade (Philippeville) was no doubt given to Adherbal, but by that very arrangement the portion which fell to him was the eastern part of the kingdom consisting almost wholly of sandy deserts, while Jugurtha obtained the fertile and populous western half (what was afterwards Mauretania Caesariensis and Sitifensis).

Siege of Cirta

This was bad; but matters soon became worse. In order to be able under the semblance of self-defence to defraud Adherbal of his portion, Jugurtha provoked him to war; but when the weak man, rendered wiser by experience, allowed Jugurtha's horsemen to ravage his territory unhindered and contented himself with lodging complaints at Rome, Jugurtha, impatient of these ceremonies, began the war even without pretext. Adherbal was totally defeated in the region of the modern Philippeville, and threw himself into his capital of Cirta in the immediate vicinity. While the siege was in progress, and Jugurtha's troops were daily skirmishing with the numerous Italians who were settled in Cirta and who took a more vigorous part in the defence of the city than the Africans themselves, the commission despatched by the Roman senate on Adherbal's first complaint made its appearance; composed, of course, of young inexperienced men, such as the government of those times regularly employed in the ordinary missions of the state. The envoys demanded that Jugurtha should allow them as deputed by the protecting power to Adherbal to enter the city, and generally that he should suspend hostilities and accept their mediation. Jugurtha summarily rejected both demands, and the envoys hastily returned home—like boys, as they were—to report to the fathers of the city. The fathers listened to the report, and allowed their countrymen in Cirta just to fight on as long as they pleased. It was not till, in the fifth month of the siege, a messenger of

Adherbal stole through the entrenchments of the enemy and a letter of the king full of the most urgent entreaties reached the senate, that the latter roused itself and actually adopted a resolution—not to declare war as the minority demanded but to send a new embassy—an embassy, however, headed by Marcus Scaurus, the great conqueror of the Taurisci and the freedmen, the imposing hero of the aristocracy, whose mere appearance would suffice to bring the refractory king to a different mind. In fact Jugurtha appeared, as he was bidden, at Utica to discuss the matter with Scaurus; endless debates were held; when at length the conference was concluded, not the slightest result had been obtained. The embassy returned to Rome without having declared war, and the king went off again to the siege of Cirta. Adherbal found himself reduced to extremities and despaired of Roman support; the Italians in Cirta moreover, weary of the siege and firmly relying for their own safety on the terror of the Roman name, urged a surrender. So the town capitulated. Jugurtha ordered his adopted brother to be executed amid cruel tortures, and all the adult male population of the town, Africans as well as Italians, to be put to the sword (642).

Roman Intervention

Treaty between Rome and Numidia

A cry of indignation rose throughout Italy. The minority in the senate itself and every one out of the senate unanimously condemned the government, with whom the honour and interest of the country seemed mere commodities for sale; loudest of all was the outcry of the mercantile class, which was most directly affected by the sacrifice of the Roman and Italian merchants at Cirta. It is true that the majority of the senate still even now struggled; they appealed to the class-interests of the aristocracy, and set in motion all the contrivances of collegiate procrastination, with a view to preserve still longer the peace which they loved. But when Gaius Memmius, designated as tribune of the people for next year, an active and

eloquent man, brought the matter publicly forward and threatened in his capacity of tribune to call the worst offenders to judicial account, the senate permitted war to be declared against Jugurtha (642-3). The step seemed taken in earnest. The envoys of Jugurtha were dismissed from Italy without being admitted to an audience; the new consul Lucius Calpurnius Bestia, who was distinguished, among the members of his order at least, by judgment and activity, prosecuted the warlike preparations with energy; Marcus Scaurus himself took the post of a commander in the African army. In a short time a Roman army was on African ground, and marching upward along the Bagradas (Mejerdah) advanced into the Numidian kingdom, where the towns most remote from the seat of the royal power, such as Great Leptis, already voluntarily sent in their submission, while Bocchus king of Mauretania, although his daughter was married to Jugurtha, offered friendship and alliance to the Romans. Jugurtha himself lost courage, and sent envoys to the Roman headquarters to request an armistice. The end of the contest seemed near, and came still more rapidly than was expected. The treaty with Bocchus broke down, because the king, unacquainted with Roman customs, had conceived that he should be able to conclude a treaty so advantageous for the Romans without any gratuity, and therefore had neglected to furnish his envoys with the usual market price of Roman alliances. Jugurtha at all events knew Roman institutions better, and had not omitted to support his proposals for an armistice by a due accompaniment of money; but he too was deceived. After the first negotiations it turned out that not an armistice merely but a peace was purchaseable at the Roman head-quarters. The royal treasury was still well filled with the savings of Massinissa; the transaction was soon settled. The treaty was concluded, after it had been for the sake of form submitted to a council of war whose consent was procured after an irregular and extremely summary discussion. Jugurtha submitted at discretion; but the victor was merciful and gave him back his kingdom undiminished, in consideration of

his paying a moderate fine and delivering up the Roman deserters and the war elephants (643); the greater part of the latter the king afterwards repurchased by bargaining with the individual Roman commandants and officers.

On the news of this peace the storm once more broke forth in Rome. Everybody knew how the peace had been brought about; even Scaurus was evidently open to bribery, only at a price higher than the ordinary senatorial average. The legal validity of the peace was seriously assailed in the senate; Gaius Memmius declared that the king, if he had really submitted unconditionally, could not refuse to appear in Rome, and that he should accordingly be summoned before them, with the view of ascertaining how the matter actually stood as to the thoroughly irregular negotiations for peace by hearing both the contracting parties. They yielded to the inconvenient demand: but at the same time granted a safe-conduct to the king inconsistently with the law, for he came not as an enemy, but as one who had made his submission. Thereupon the king actually appeared at Rome and presented himself to be heard before the assembled people, which was with difficulty induced to respect the safe-conduct and to refrain from tearing in pieces on the spot the murderer of the Italians at Cirta. But scarcely had Gaius Memmius addressed his first question to the king, when one of his colleagues interfered in virtue of his veto and enjoined the king to be silent. Here too African gold was more powerful than the will of the sovereign people and of its supreme magistrates. Meanwhile the discussions respecting the validity of the peace so concluded went on in the senate, and the new consul Spurius Postumius Albinus zealously supported the proposal to cancel it, in the expectation that in that case the chief command in Africa would devolve on him. This induced Massiva, a grandson of Massinissa living in Rome, to assert before the senate his claims to the vacant Numidian kingdom; upon which Bomilcar, one of the confidants of king Jugurtha, doubtless under his instructions made away with the rival of his

master by assassination, and, when he was prosecuted on account of it, escaped with Jugurtha's aid from Rome.

Cancelling of the Treaty
Declaration of War
Capitulation of the Romans
Second Peace

This new outrage perpetrated under the eyes of the Roman government was at least so far effectual, that the senate now cancelled the peace and dismissed the king from the city (winter of 643-644). The war was accordingly resumed, and the consul Spurius Albinus was invested with the command (644). But the African army down to its lowest ranks was in a state of disorganization corresponding to such a political and military superintendence. Not only had discipline ceased and the spoliation of Numidian townships and even of the Roman provincial territory become during the suspension of hostilities the chief business of the Roman soldiery, but not a few officers and soldiers had as well as their generals entered into secret understanding with the enemy. It is easy to see that such an army could do nothing in the field; and if Jugurtha on this occasion bribed the Roman general into inaction, as was afterwards judicially asserted against the latter, he did in truth what was superfluous. Spurius Albinus therefore contented himself with doing nothing. On the other hand his brother who after his departure assumed the interim command—the equally foolhardy and incapable Aulus Postumius—in the middle of winter fell on the idea of seizing by a bold coup de main the treasures of the king, which were kept in the town of Suthul (afterwards Calama, now Guelma) difficult of access and still more difficult of conquest. The army set out thither and reached the town; but the siege was unsuccessful and without prospect of result, and, when the king who had remained for a time with his troops in front of the town went into the desert, the Roman general

preferred to pursue him. This was precisely what Jugurtha intended in a nocturnal assault, which was favoured by the difficulties of the ground and the secret understanding which Jugurtha had with some in the Roman army, the Numidians captured the Roman camp, and drove the Romans, many of whom were unarmed, before them in the most complete and disgraceful rout. The consequence was a capitulation, the terms of which—the marching off of the Roman army under the yoke, the immediate evacuation of the whole Numidian territory, and the renewal of the treaty cancelled by the senate—were dictated by Jugurtha and accepted by the Romans (in the beginning of 645).

Dissatisfaction in the Capital

This was too much to be borne. While the Africans were exulting and the prospect—thus suddenly opened up—of such an overthrow of the alien domination as had been reckoned scarcely possible was bringing numerous tribes of the free and half-free inhabitants of the desert to the standards of the victorious king, public opinion in Italy was vehemently aroused against the equally corrupt and pernicious governing aristocracy, and broke out in a storm of prosecutions which, fostered by the exasperation of the mercantile class, swept away a succession of victims from the highest circles of the nobility. On the proposal of the tribune of the people Gaius Mamilius Limetanus, in spite of the timid attempts of the senate to avert the threatened punishment, an extraordinary jury-commission was appointed to investigate the high treason that had occurred in connection with the question of the Numidian succession; and its sentences sent the two former commanders- in-chief Gaius Bestia and Spurius Albinus as well as Lucius Opimius, the head of the first African commission and the executioner withal of Gaius Gracchus, along with numerous other less notable men of the government party, guilty and innocent, into exile. That these prosecutions, however, were only intended to appease the excitement of

public opinion, in the capitalist circles more especially, by the sacrifice of some of the persons most compromised, and that there was in them not the slightest trace of a rising of popular indignation against the government itself, void as it was of right and honour, is shown very clearly by the fact that no one ventured to attack the guiltiest of the guilty, the prudent and powerful Scaurus; on the contrary he was about this very time elected censor and also, incredible as it may seem, chosen as one of the presidents of the extraordinary commission of treason. Still less was any attempt even made to interfere with the functions of the government, and it was left solely to the senate to put an end to the Numidian scandal in a manner as gentle as possible for the aristocracy; for that it was time to do so, even the most aristocratic aristocrat probably began to perceive.

Cancelling of the Second Treaty

Metellus Appointed to the Command

Renewal of the War

The senate in the first place cancelled the second treaty of peace—to surrender to the enemy the commander who had concluded it, as was done some thirty years before, seemed according to the new ideas of the sanctity of treaties no longer necessary—and determined, this time in all earnest, to renew the war. The supreme command in Africa was entrusted, as was natural, to an aristocrat, but yet to one of the few men of quality who in a military and moral point of view were equal to the task. The choice fell on Quintus Metellus. He was, like the whole powerful family to which he belonged, in principle a rigid and unscrupulous aristocrat; as a magistrate, he, no doubt, reckoned it honourable to hire assassins for the good of the state and would presumably have ridiculed the act of Fabricius towards Pyrrhus as unpractical knight errantry, but he was an inflexible administrator accessible neither to fear nor to corruption, and a judicious and experienced warrior. In this respect he was so far free from the

prejudices of his order that he selected as his lieutenants not men of rank, but the excellent officer Publius Rutilius Rufus, who was esteemed in military circles for his exemplary discipline and as the author of an altered and improved system of drill, and the brave Latin farmer's son Gaius Marius, who had risen from the pike. Attended by these and other able officers, Metellus presented himself in the course of 645 as consul and commander-in-chief to the African army, which he found in such disorder that the generals had not hitherto ventured to lead it into the enemy's territory and it was formidable to none save the unhappy inhabitants of the Roman province. It was sternly and speedily reorganized, and in the spring of 646.(12)

Metellus led it over the Numidian frontier. When Jugurtha perceived the altered state of things, he gave himself up as lost, and, before the struggle began, made earnest proposals for an accommodation, requesting ultimately nothing more than a guarantee for his life. Metellus, however, was resolved and perhaps even instructed not to terminate the war except with the unconditional subjugation and execution of the daring client-prince; which was in fact the only issue that could satisfy the Romans. Jugurtha since the victory over Albinus was regarded as the deliverer of Libya from the rule of the hated foreigners; unscrupulous and cunning as he was, and unwieldy as was the Roman government, he might at any time even after a peace rekindle the war in his native country; tranquillity would not be secured, and the removal of the African army would not be possible, until king Jugurtha should cease to exist. Officially Metellus gave evasive answers to the proposals of the king; secretly he instigated the envoys to deliver their master living or dead to the Romans. But, when the Roman general undertook to compete with the African in the field of assassination, he there met his master; Jugurtha saw through the plan, and, when he could not do otherwise, prepared for a desperate resistance.

Battle on the Muthul

Beyond the utterly barren mountain-range, over which lay the route of the Romans into the interior, a plain of eighteen miles in breadth extended as far as the river Muthul, which ran parallel to the mountain-chain. The plain was destitute of water and of trees except in the immediate vicinity of the river, and was only intersected by a hill-ridge covered with low brushwood. On this ridge Jugurtha awaited the Roman army. His troops were arranged in two masses; the one, including a part of the infantry and the elephants, under Bomilcar at the point where the ridge abutted on the river, the other, embracing the flower of the infantry and all the cavalry, higher up towards the mountain-range, concealed by the bushes. On debouching from the mountains, the Romans saw the enemy in a position completely commanding their right flank; and, as they could not possibly remain on the bare and arid crest of the chain and were under the necessity of reaching the river, they had to solve the difficult problem of gaining the stream through the entirely open plain of eighteen miles in breadth, under the eyes of the enemy's horsemen and without light cavalry of their own. Metellus despatched a detachment under Rufus straight towards the river, to pitch a camp there; the main body marched from the defiles of the mountain-chain in an oblique direction through the plain towards the hill-ridge, with a view to dislodge the enemy from the latter. But this march in the plain threatened to become the destruction of the army; for, while Numidian infantry occupied the mountain defiles in the rear of the Romans as the latter evacuated them, the Roman attacking column found itself assailed on all sides by swarms of the enemy's horse, who charged down on it from the ridge. The constant onset of the hostile swarms hindered the advance, and the battle threatened to resolve itself into a number of confused and detached conflicts; while at the same time Bomilcar with his division detained the corps under Rufus, to prevent it from hastening to the help of the hard-pressed Roman main army. Nevertheless Metellus and

Marius with a couple of thousand soldiers succeeded in reaching the foot of the ridge; and the Numidian infantry which defended the heights, in spite of their superior numbers and favourable position, fled almost without resistance when the legionaries charged at a rapid pace up the hill. The Numidian infantry held its ground equally ill against Rufus; it was scattered at the first charge, and the elephants were all killed or captured on the broken ground. Late in the evening the two Roman divisions, each victorious on its own part and each anxious as to the fate of the other, met between the two fields of battle. It was a battle attesting alike the uncommon military talent of Jugurtha and the indestructible solidity of the Roman infantry, which alone had converted their strategical defeat into a victory. Jugurtha sent home a great part of his troops after the battle, and restricted himself to a guerilla warfare, which he likewise managed with skill.

Numidia Occupied by the Romans

The two Roman columns, the one led by Metellus, the other by Marius—who, although by birth and rank the humblest, occupied since the battle on the Muthul the first place among the chiefs of the staff—traversed the Numidian territory, occupied the towns, and, when any place did not readily open its gates, put to death the adult male population. But the most considerable among the eastern inland towns, Zama, opposed to the Romans a serious resistance, which the king energetically supported. He was even successful in surprising the Roman camp; and the Romans found themselves at last compelled to abandon the siege and to go into winter quarters. For the sake of more easily provisioning his army Metellus, leaving behind garrisons in the conquered towns, transferred it into the Roman province, and employed the opportunity of suspended hostilities to institute fresh negotiations, showing a disposition to grant to the king a peace on tolerable terms. Jugurtha readily entered into them; he had at once

bound himself to pay 200,000 pounds of silver, and had even delivered up his elephants and 300 hostages, as well as 3000 Roman deserters, who were immediately put to death. At the same time, however, the king's most confidential counsellor, Bomilcar—who not unreasonably apprehended that, if peace should ensue, Jugurtha would deliver him up as the murderer of Massiva to the Roman courts—was gained by Metellus and induced, in consideration of an assurance of impunity as respected that murder and of great rewards, to promise that he would deliver the king alive or dead into the hands of the Romans. But neither that official negotiation nor this intrigue led to the desired result. When Metellus brought forward the suggestion that the king should give himself up in person as a prisoner, the latter broke off the negotiations; Bomilcar's intercourse with the enemy was discovered, and he was arrested and executed. These diplomatic cabals of the meanest kind admit of no apology; but the Romans had every reason to aim at the possession of the person of their antagonist. The war had reached a point, at which it could neither be carried farther nor abandoned. The state of feeling in Numidia was evinced by the revolt of Vaga,⁽¹³⁾ the most considerable of the cities occupied by the Romans, in the winter of 646-7; on which occasion the whole Roman garrison, officers and men, were put to death with the exception of the commandant Titus Turpilius Silanus, who was afterwards—whether rightly or wrongly, we cannot tell—condemned to death by a Roman court-martial and executed for having an understanding with the enemy. The town was surprised by Metellus on the second day after its revolt, and given over to all the rigour of martial law; but if such was the temper of the easy to be reached and comparatively submissive dwellers on the banks of the Bagradas, what might be looked for farther inland and among the roving tribes of the desert? Jugurtha was the idol of the Africans, who readily overlooked the double fratricide in the liberator and avenger of their nation. Twenty years afterwards a Numidian corps which was fighting in Italy for the Romans had to be sent back in all haste

to Africa, when the son of Jugurtha appeared in the enemy's ranks; we may infer from this, how great was the influence which he himself exercised over his people. What prospect was there of a termination of the struggle in regions where the combined peculiarities of the population and of the soil allowed a leader, who had once secured the sympathies of the nation, to protract the war in endless guerilla conflicts, or even to let it sleep for a time in order to revive it at the right moment with renewed vigour?

War in the Desert

Mauretanian Complications

When Metellus again took the field in 647, Jugurtha nowhere held his ground against him; he appeared now at one point, now at another far distant; it seemed as if they would as easily get the better of the lions as of these horsemen of the desert. A battle was fought, a victory was won; but it was difficult to say what had been gained by the victory. The king had vanished out of sight in the distance. In the interior of the modern beylik of Tunis, close on the edge of the great desert, there lay on an oasis provided with springs the strong place Thala;(14) thither Jugurtha had retired with his children, his treasures, and the flower of his troops, there to await better times. Metellus ventured to follow the king through a desert, in which his troops had to carry water along with them in skins forty-five miles; Thala was reached and fell after a forty days' siege; but the Roman deserters destroyed the most valuable part of the booty along with the building in which they burnt themselves after the capture of the town, and—what was of more consequence—king Jugurtha escaped with his children and his chest. Numidia was no doubt virtually in the hands of the Romans; but, instead of their object being thereby gained, the war seemed only to extend over a field wider and wider. In the south the free Gaetolian tribes of the desert began at the call of Jugurtha a national war against the Romans. In the west Bocchus king of Mauretania, whose friendship the Romans had in

earlier times despised, seemed now not indisposed to make common cause with his son-in-law against them; he not only received him in his court, but, uniting to Jugurtha's followers his own numberless swarms of horsemen, he marched into the region of Cirta, where Metellus was in winter quarters. They began to negotiate: it was clear that in the person of Jugurtha he held in his hands the real prize of the struggle for Rome. But what were his intentions—whether to sell his son-in-law dear to the Romans, or to take up the national war in concert with that son-in-law—neither the Romans nor Jugurtha nor perhaps even the king himself knew; and he was in no hurry to abandon his ambiguous position.

Marius Commander-in-Chief

Thereupon Metellus left the province, which he had been compelled by decree of the people to give up to his former lieutenant Marius who was now consul; and the latter assumed the supreme command for the next campaign in 648. He was indebted for it in some degree to a revolution. Relying on the services which he had rendered and at the same time on oracles which had been communicated to him, he had resolved to come forward as a candidate for the consulship. If the aristocracy had supported the constitutional, and in other respects quite justifiable, candidature of this able man, who was not at all inclined to take part with the opposition, nothing would have come of the matter but the enrolment of a new family in the consular Fasti. Instead of this the man of non-noble birth, who aspired to the highest public dignity, was reviled by the whole governing caste as a daring innovator and revolutionist; just as the plebeian candidate had been formerly treated by the patricians, but now without any formal ground in law. The brave officer was sneered at in sharp language by Metellus—Marius was told that he might wait with his candidature till Metellus' son, a beardless boy, could be his colleague—and he was with the worst grace suffered to leave almost at the last moment, that he might

appear in the capital as a candidate for the consulship of 647. There he amply retaliated on his general the wrong which he had suffered, by criticising before the gaping multitude the conduct of the war and the administration of Metellus in Africa in a manner as unmilitary as it was disgracefully unfair; and he did not even disdain to serve up to the darling populace—always whispering about secret conspiracies equally unprecedented and indubitable on the part of their noble masters—the silly story, that Metellus was designedly protracting the war in order to remain as long as possible commander-in-chief. To the idlers of the streets this was quite clear: numerous persons unfriendly for reasons good or bad to the government, and especially the justly-indignant mercantile order, desired nothing better than such an opportunity of annoying the aristocracy in its most sensitive point: he was elected to the consulship by an enormous majority, and not only so, but, while in other cases by the law of Gaius Gracchus the decision as to the respective functions to be assigned to the consuls lay with the senate (p. 355), the arrangement made by the senate which left Metellus at his post was overthrown, and by decree of the sovereign comitia the supreme command in the African war was committed to Marius.

Conflicts without Result

Accordingly he took the place of Metellus in the course of 647; and held the command in the campaign of the following year; but his confident promise to do better than his predecessor and to deliver Jugurtha bound hand and foot with all speed at Rome was more easily given than fulfilled. Marius carried on a desultory warfare with the Gaetulians; he reduced several towns that had not previously been occupied; he undertook an expedition to Capsa (Gafsa) in the extreme south-east of the kingdom, which surpassed even that of Thala in difficulty, took the town by capitulation, and in spite of the convention caused all the adult men in it to

be slain—the only means, no doubt, of preventing the renewed revolt of that remote city of the desert; he attacked a mountain-stronghold—situated on the river Molochath, which separated the Numidian territory from the Mauretanian—whither Jugurtha had conveyed his treasure-chest, and, just as he was about to desist from the siege in despair of success, fortunately gained possession of the impregnable fastness through the coup de main of some daring climbers. Had his object merely been to harden the army by bold razzias and to procure booty for the soldiers, or even to eclipse the march of Metellus into the desert by an expedition going still farther, this method of warfare might be allowed to pass unchallenged; but the main object to be aimed at, and which Metellus had steadfastly and perseveringly kept in view—the capture of Jugurtha—was in this way utterly set aside. The expedition of Marius to Capsa was a venture as aimless, as that of Metellus to Thala had been judicious; but the expedition to the Molochath, which passed along the border of, if not into, the Mauretanian territory, was directly repugnant to sound policy. King Bocchus, in whose power it lay to bring the war to an issue favourable for the Romans or endlessly to prolong it, now concluded with Jugurtha a treaty, in which the latter ceded to him a part of his kingdom and Bocchus promised actively to support his son-in-law against Rome. The Roman army, which was returning from the river Molochath, found itself one evening suddenly surrounded by immense masses of Mauretanian and Numidian cavalry; they were obliged to fight just as the divisions stood without forming in a proper order of battle or carrying out any leading command, and had to deem themselves fortunate when their sadly-thinned troops were brought into temporary safety for the night on two hills not far remote from each other. But the culpable negligence of the Africans intoxicated with victory wrested from them its consequences; they allowed themselves to be surprised in a deep sleep during the morning twilight by the Roman troops which had been in some measure reorganized during the night, and were fortunately dispersed.

Thereupon the Roman army continued its retreat in better order and with greater caution; but it was yet again assailed simultaneously on all the four sides and was in great danger, till the cavalry officer Lucius Cornelius Sulla first dispersed the squadrons opposed to him and then, rapidly returning from their pursuit, threw himself also on Jugurtha and Bocchus at the point where they in person pressed hard on the rear of the Roman infantry. Thus this attack also was successfully repelled; Marius brought his army back to Cirta, and took up his winter quarters there (648-9).

Negotiations with Bocchus

Strange as it may seem, we can yet understand why the Romans now, after king Bocchus had commenced the war, began to make most zealous exertions to secure his friendship, which they had at first slighted and thereafter had at least not specially sought; by doing so they gained this advantage, that no formal declaration of war took place on the part of Mauretania. King Bocchus was not unwilling to return to his old ambiguous position: without dissolving his agreement with Jugurtha or dismissing him, he entered into negotiations with the Roman general respecting the terms of an alliance with Rome. When they were agreed or seemed to be so, the king requested that, for the purpose of concluding the treaty and receiving the royal captive, Marius would send to him Lucius Sulla, who was known and acceptable to the king partly from his having formerly appeared as envoy of the senate at the Mauretanian court, partly from the commendations of the Mauretanian envoys destined for Rome to whom Sulla had rendered services on their way. Marius was in an awkward position. His declining the suggestion would probably lead to a breach; his accepting it would throw his most aristocratic and bravest officer into the hands of a man more than untrustworthy, who, as every one knew, played a double game with the Romans and with Jugurtha, and who seemed almost to have contrived the scheme for the purpose of obtaining for himself provisional hostages from

both sides in the persons of Jugurtha and Sulla. But the wish to terminate the war outweighed every other consideration, and Sulla agreed to undertake the perilous task which Marius suggested to him. He boldly departed under the guidance of Volux the son of king Bocchus, nor did his resolution waver even when his guide led him through the midst of Jugurtha's camp. He rejected the pusillanimous proposals of flight that came from his attendants, and marched, with the king's son at his side, uninjured through the enemy. The daring officer evinced the same decision in the discussions with the sultan, and induced him at length seriously to make his choice.

Surrender and Execution of Jugurtha

Jugurtha was sacrificed. Under the pretext that all his requests were to be granted, he was allured by his own father-in-law into an ambush, his attendants were killed, and he himself was taken prisoner. The great traitor thus fell by the treachery of his nearest relatives. Lucius Sulla brought the crafty and restless African in chains along with his children to the Roman headquarters; and the war which had lasted for seven years was at an end. The victory was primarily associated with the name of Marius. King Jugurtha in royal robes and in chains, along with his two sons, preceded the triumphal chariot of the victor, when he entered Rome on the 1st of January 650: by his orders the son of the desert perished a few days afterwards in the subterranean city-prison, the old -tullianum- at the Capitol—the "bath of ice," as the African called it, when he crossed the threshold in order either to be strangled or to perish from cold and hunger there. But it could not be denied that Marius had the least important share in the actual successes: the conquest of Numidia up to the edge of the desert was the work of Metellus, the capture of Jugurtha was the work of Sulla, and between the two Marius played a part somewhat compromising the dignity of an ambitious upstart. Marius reluctantly tolerated the assumption by his

predecessor of the name of conqueror of Numidia; he flew into a violent rage when king Bocchus afterwards consecrated a golden effigy at the Capitol, which represented the surrender of Jugurtha to Sulla; and yet in the eyes of unprejudiced judges the services of these two threw the generalship of Marius very much into the shade—more especially Sulla's brilliant expedition to the desert, which had made his courage, his presence of mind, his acuteness, his power over men to be recognized by the general himself and by the whole army. In themselves these military rivalries would have been of little moment, if they had not been mixed up with the conflict of political parties, if the opposition had not supplanted the senatorial general by Marius, and if the party of the government had not, with the deliberate intention of exasperating, praised Metellus and still more Sulla as the military celebrities and preferred them to the nominal victor. We shall have to return to the fatal consequences of these animosities when narrating the internal history.

Reorganization of Numidia

Otherwise, this insurrection of the Numidian client-state passed away without producing any noticeable change either in political relations generally or even in those of the African province. By a deviation from the policy elsewhere followed at this period Numidia was not converted into a Roman province; evidently because the country could not be held without an army to protect the frontier against the barbarians of the desert, and the Romans were by no means disposed to maintain a standing army in Africa. They contented themselves accordingly with annexing the most westerly district of Numidia, probably the tract from the river Molochath to the harbour of Saldae (Bougie)—the later Mauretania Caesariensis (province of Algiers)—to the kingdom of Bocchus, and with handing over the kingdom of Numidia thus diminished to the last legitimate grandson of Massinissa still surviving, Gauda the half-brother of Jugurtha, feeble in body and mind,

who had already in 646 at the suggestion of Marius asserted his claims before the senate.(15) At the same time the Gaetolian tribes in the interior of Africa were received as free allies into the number of the independent nations that had treaties with Rome.

Political Issues

Of greater importance than this regulation of African clientship were the political consequences of the Jugurthine war or rather of the Jugurthine insurrection, although these have been frequently estimated too highly. Certainly all the evils of the government were therein brought to light in all their nakedness; it was now not merely notorious but, so to speak, judicially established, that among the governing lords of Rome everything was treated as venal—the treaty of peace and the right of intercession, the rampart of the camp and the life of the soldier; the African had said no more than the simple truth, when on his departure from Rome he declared that, if he had only gold enough, he would undertake to buy the city itself. But the whole external and internal government of this period bore the same stamp of miserable baseness. In our case the accidental fact, that the war in Africa is brought nearer to us by means of better accounts than the other contemporary military and political events, shifts the true perspective; contemporaries learned by these revelations nothing but what everybody knew long before and every intrepid patriot had long been in a position to support by facts. The circumstance, however, that they were now furnished with some fresh, still stronger and still more irrefutable, proofs of the baseness of the restored senatorial government—a baseness only surpassed by its incapacity—might have been of importance, had there been an opposition and a public opinion with which the government would have found it necessary to come to terms. But this war had in fact exposed the corruption of the government no less than it had revealed the utter nullity of the opposition. It was not possible to govern worse than the restoration

governed in the years 637-645; it was not possible to stand forth more defenceless and forlorn than was the Roman senate in 645: had there been in Rome a real opposition, that is to say, a party which wished and urged a fundamental alteration of the constitution, it must necessarily have now made at least an attempt to overturn the restored senate. No such attempt took place; the political question was converted into a personal one, the generals were changed, and one or two useless and unimportant people were banished. It was thus settled, that the so-called popular party as such neither could nor would govern; that only two forms of government were at all possible in Rome, a -tyrannis- or an oligarchy; that, so long as there happened to be nobody sufficiently well known, if not sufficiently important, to usurp the regency of the state, the worst mismanagement endangered at the most individual oligarchs, but never the oligarchy; that on the other hand, so soon as such a pretender appeared, nothing was easier than to shake the rotten curule chairs. In this respect the coming forward of Marius was significant, just because it was in itself so utterly unwarranted. If the burgesses had stormed the senate-house after the defeat of Albinus, it would have been a natural, not to say a proper course; but after the turn which Metellus had given to the Numidian war, nothing more could be said of mismanagement, and still less of danger to the commonwealth, at least in this respect; and yet the first ambitious officer who turned up succeeded in doing that with which the older Africanus had once threatened the government,(16) and procured for himself one of the principal military commands against the distinctly- expressed will of the governing body. Public opinion, unavailing in the hands of the so-called popular party, became an irresistible weapon in the hands of the future king of Rome. We do not mean to say that Marius intended to play the pretender, at least at the time when he canvassed the people for the supreme command in Africa; but, whether he did or did not understand what he was doing, there was evidently an end of the restored aristocratic government when the comitial

machine began to make generals, or, which was nearly the same thing, when every popular officer was able in legal fashion to nominate himself as general. Only one new element emerged in these preliminary crises; this was the introduction of military men and of military power into the political revolution. Whether the coming forward of Marius would be the immediate prelude of a new attempt to supersede the oligarchy by the -tyrannis-, or whether it would, as in various similar cases, pass away without further consequence as an isolated encroachment on the prerogative of the government, could not yet be determined; but it could well be foreseen that, if these rudiments of a second -tyrannis- should attain any development, it was not a statesman like Gaius Gracchus, but an officer that would become its head. The contemporary reorganization of the military system—which Marius introduced when, in forming his army destined for Africa, he disregarded the property-qualification hitherto required, and allowed even the poorest burgess, if he was otherwise serviceable, to enter the legion as a volunteer—may have been projected by its author on purely military grounds; but it was none the less on that account a momentous political event, that the army was no longer, as formerly, composed of those who had much, no longer even, as in the most recent times, composed of those who had something, to lose, but became gradually converted into a host of people who had nothing but their arms and what the general bestowed on them. The aristocracy ruled in 650 just as absolutely as in 620; but the signs of the impending catastrophe had multiplied, and on the political horizon the sword had begun to appear by the side of the crown.

CHAPTER V

The Peoples of the North

Relations of Rome to the North

The Country between the Alps and the Pyrenees

Conflicts with the Ligurians and the Salassi

From the close of the sixth century the Roman community ruled over the three great peninsulas projecting from the northern continent into the Mediterranean, at least taken as a whole. Even there however—in the north and west of Spain, in the valleys of the Ligurian Apennines and the Alps, and in the mountains of Macedonia and Thrace—tribes wholly or partially free continued to defy the lax Roman government. Moreover the continental communication between Spain and Italy as well as between Italy and Macedonia was very superficially provided for, and the countries beyond the Pyrenees, the Alps, and the Balkan chain—the great river basins of the Rhone, the Rhine, and the Danube—in the main lay beyond the political horizon of the Romans. We have now to set forth what steps were taken on the part of Rome to secure and to round off her empire in this direction, and how at the same time the great masses of peoples, who were ever moving to and fro behind that mighty mountain-screen, began to beat at the gates of the northern mountains and rudely to remind the Graeco-Roman world that it was mistaken in believing itself the sole possessor of the earth.

Let us first glance at the region between the western Alps and the Pyrenees. The Romans had for long commanded this part of the coast of the Mediterranean through their client city of Massilia, one of the oldest, most faithful, and most powerful of the allied communities dependent on Rome. Its maritime stations, Agatha (Agde) and Rhoda (Rosas) to the westward, and Tauroentium (Ciotat), Olbia (Hyeres?), Antipolis (Antibes), and Nicaea (Nice) on the east secured the navigation of the coast as well as the land-route from the Pyrenees to the Alps; and its mercantile and political connections reached far into the interior. An expedition into the Alps above Nice and Antibes, directed against the Ligurian Oxybii and Decietae, was undertaken by the Romans in 600 partly at the request of the Massiliots, partly in their own interest; and after hot conflicts, some of which were attended with much loss, this district of the mountains was compelled to furnish thenceforth standing hostages to the Massiliots and to pay them a yearly tribute. It is not improbable that about this same period the cultivation of the vine and olive, which flourished in this quarter after the model set by the Massiliots, was in the interest of the Italian landholders and merchants simultaneously prohibited throughout the territory beyond the Alps dependent on Massilia.(1) A similar character of financial speculation marks the war, which was waged by the Romans under the consul Appius Claudius in 611 against the Salassi respecting the gold mines and gold washings of Victumulae (in the district of Vercelli and Bard and in the whole valley of the Dorea Baltea). The great extent of these washings, which deprived the inhabitants of the country lying lower down of water for their fields, first gave rise to an attempt at mediation and then to the armed intervention of the Romans. The war, although the Romans began it like all the other wars of this period with a defeat, led at last to the subjugation of the Salassi, and the cession of the gold district to the Roman treasury. Some forty years afterwards (654) the colony of Eporedia (Ivrea) was instituted

on the territory thus gained, chiefly doubtless with a view to command the western, as Aquileia commanded the eastern, passage of the Alps.

Transalpine Relations of Rome The Arverni

These Alpine wars first assumed a more serious character, when Marcus Fulvius Flaccus, the faithful ally of Gaius Gracchus, took the chief command in this quarter as consul in 629. He was the first to enter on the career of Transalpine conquest. In the much-divided Celtic nation at this period the canton of the Bituriges had lost its real hegemony and retained merely an honorary presidency, and the actually leading canton in the region from the Pyrenees to the Rhine and from the Mediterranean to the Western Ocean was that of the Arverni;(2) so that the statement seems not quite an exaggeration, that it could bring into the field as many as 180,000 men. With them the Haedui (about Autun) carried on an unequal rivalry for the hegemony; while in north-eastern Gaul the kings of the Suessiones (about Soissons) united under their protectorate the league of the Belgic tribes extending as far as Britain. Greek travellers of that period had much to tell of the magnificent state maintained by Luerius, king of the Arvernians—how, surrounded by his brilliant train of clansmen, his huntsmen with their pack of hounds in leash and his band of wandering minstrels, he travelled in a silver-mounted chariot through the towns of his kingdom, scattering the gold with a full hand among the multitude, and gladdening above all the heart of the minstrel with the glittering shower. The descriptions of the open table which he kept in an enclosure of 1500 double paces square, and to which every one who came in the way was invited, vividly remind us of the marriage table of Camacho. In fact, the numerous Arvernian gold coins of this period still extant show that the canton of the Arvernians had attained to extraordinary wealth and a comparatively high standard of civilization.

War with Allobroges and Arverni

The attack of Flaccus, however, fell in the first instance not on the Arverni, but on the smaller tribes in the district between the Alps and the Rhone, where the original Ligurian inhabitants had become mixed with subsequent arrivals of Celtic bands, and there had arisen a Celto-Ligurian population that may in this respect be compared to the Celtiberian. He fought (629, 630) with success against the Salyes or Salluvii in the region of Aix and in the valley of the Durance, and against their northern neighbours the Vocontii (in the departments of Vaucluse and Drome); and so did his successor Gaius Sextius Calvinus (631, 632) against the Allobroges, a powerful Celtic clan in the rich valley of the Isere, which had come at the request of the fugitive king of the Salyes, Tutomotulus, to help him to reconquer his land, but was defeated in the district of Aix. When the Allobroges nevertheless refused to surrender the king of the Salyes, Gnaeus Domitius Ahenobarbus, the successor of Calvinus, penetrated into their own territory (632). Up to this period the leading Celtic tribe had been spectators of the encroachments of their Italian neighbours; the Arvernian king Betuitus, son of the Luerius already mentioned, seemed not much inclined to enter on a dangerous war for the sake of the loose relation of clientship in which the eastern cantons might stand to him. But when the Romans showed signs of attacking the Allobroges in their own territory, he offered his mediation, the rejection of which was followed by his taking the field with all his forces to help the Allobroges; whereas the Haedui embraced the side of the Romans. On receiving accounts of the rising of the Arverni, the Romans sent the consul of 633, Quintus Fabius Maximus, to meet in concert with Ahenobarbus the impending attack. On the southern border of the canton of the Allobroges at the confluence of the Isere with the Rhone, on the 8th of August 633, the battle was fought which decided the mastery of southern Gaul. King Betuitus, when he saw the innumerable hosts of the dependent clans marching over to him on the bridge of boats thrown across

the Rhone and the Romans who had not a third of their numbers forming in array against them, is said to have exclaimed that there were not enough of the latter to satisfy the dogs of the Celtic army. Nevertheless Maximus, a grandson of the victor of Pydna, achieved a decisive victory, which, as the bridge of boats broke down under the mass of the fugitives, ended in the destruction of the greater part of the Arvernian army. The Allobroges, to whom the king of the Arverni declared himself unable to render further assistance, and whom he advised to make their peace with Maximus, submitted to the consul; whereupon the latter, thenceforth called Allobrogicus, returned to Italy and left to Ahenobarbus the no longer distant termination of the Arvernian war. Ahenobarbus, personally exasperated at king Betuitus because he had induced the Allobroges to surrender to Maximus and not to him, possessed himself treacherously of the person of the king and sent him to Rome, where the senate, although disapproving the breach of fidelity, not only kept the men betrayed, but gave orders that his son, Congonnetiacus, should likewise be sent to Rome. This seems to have been the reason why the Arvernian war, already almost at an end, once more broke out, and a second appeal to arms took place at Vindalium (above Avignon) at the confluence of the Sorgue with the Rhone. The result was not different from that of the first: on this occasion it was chiefly the African elephants that scattered the Celtic army. Thereupon the Arverni submitted to peace, and tranquillity was re-established in the land of the Celts.(3)

Province of Narbo

The result of these military operations was the institution of a new Roman province between the maritime Alps and the Pyrenees. All the tribes between the Alps and the Rhone became dependent on the Romans and, so far as they did not pay tribute to Massilia, presumably became now tributary to Rome. In the country between the Rhone and the Pyrenees the

Arverni retained freedom and were not bound to pay tribute to the Romans; but they had to cede to Rome the most southerly portion of their direct or indirect territory- the district to the south of the Cevennes as far as the Mediterranean, and the upper course of the Garonne as far as Tolosa (Toulouse). As the primary object of these occupations was the establishment of a land communication between Italy and Spain, arrangements were made immediately thereafter for the construction of the road along the coast. For this purpose a belt of coast from the Alps to the Rhone, from 1 to 1 3/4 of a mile in breadth, was handed over to the Massiliots, who already had a series of maritime stations along this coast, with the obligation of keeping the road in proper condition; while from the Rhone to the Pyrenees the Romans themselves laid out a military highway, which obtained from its originator Ahenobarbus the name of the -Via Domitia-.

Roman Settlements in the Region of the Rhone

As usual, the formation of new fortresses was combined with the construction of roads. In the eastern portion the Romans chose the spot where Gaius Sextius had defeated the Celts, and where the pleasantness and fertility of the region as well as the numerous hot and cold springs invited them to settlement; a Roman township sprang up there—the "baths of Sextius," *Aquae Sextiae* (Aix). To the west of the Rhone the Romans settled in Narbo, an ancient Celtic town on the navigable river Atax (Aude) at a small distance from the sea, which is already mentioned by Hecataeus, and which even before its occupation by the Romans vied with Massilia as a place of stirring commerce, and as sharing the trade in British tin. *Aquae* did not obtain civic rights, but remained a standing camp;(4) whereas Narbo, although in like manner founded mainly as a watch and outpost against the Celts, became as "Mars' town," a Roman burgess-colony and the

usual seat of the governor of the new Transalpine Celtic province or, as it was more frequently called, the province of Narbo.

The Advance of the Romans Checked by the Policy of the Restoration

The Gracchan party, which suggested these extensions of territory beyond the Alps, evidently wished to open up there a new and immeasurable field for their plans of colonization,—a field which offered the same advantages as Sicily and Africa, and could be more easily wrested from the natives than the Sicilian and Libyan estates from the Italian capitalists. The fall of Gaius Gracchus, no doubt, made itself felt here also in the restriction of acquisitions of territory and still more of the founding of towns; but, if the design was not carried out in its full extent, it was at any rate not wholly frustrated. The territory acquired and, still more, the foundation of Narbo—a settlement for which the senate vainly endeavoured to prepare the fate of that at Carthage—remained standing as parts of an unfinished structure, exhorting the future successor of Gracchus to continue the building. It is evident that the Roman mercantile class, which was able to compete with Massilia in the Gallo-Britannic traffic at Narbo alone, protected that settlement from the assaults of the Optimates.

Illyria

Dalmatians

Their Subjugation

A problem similar to that in the north-west had to be dealt with in the north-east of Italy; it was in like manner not wholly neglected, but was solved still more imperfectly than the former. With the foundation of Aquileia (571) the Istrian peninsula came into possession of the Romans;(5) in part of Epirus and the former territory of the lords of Scodra they had already ruled for some considerable time previously. But nowhere did their dominion reach into the interior; and even on the coast they exercised

scarcely a nominal sway over the inhospitable shore-belt between Istria and Epirus, which, with its wild series of mountain-caldrons broken neither by river-valleys nor by coast-plains and arranged like scales one above another, and with its chain of rocky islands stretching along the shore, separates more than it connects Italy and Greece. Around the town of Delminium (on the Cettina near Trigl) clustered the confederacy of the Delmatians or Dalmatians, whose manners were rough as their mountains. While the neighbouring peoples had already attained a high degree of culture, the Dalmatians were as yet unacquainted with money, and divided their land, without recognizing any special right of property in it, afresh every eight years among the members of the community. Brigandage and piracy were the only native trades. These tribes had in earlier times stood in a loose relation of dependence on the rulers of Scodra, and had so far shared in the chastisement inflicted by the Roman expeditions against queen Teuta(6) and Demetrius of Pharos;(7) but on the accession of king Genthius they had revolted and had thus escaped the fate which involved southern Illyria in the fall of the Macedonian empire and rendered it permanently dependent on Rome.(8) The Romans were glad to leave the far from attractive region to itself. But the complaints of the Roman Illyrians, particularly of the Daorsi, who dwelt on the Narenta to the south of the Dalmatians, and of the inhabitants of the islands of Issa (Lissa), whose continental stations Tragyrum (Trau) and Epetium (near Spalato) suffered severely from the natives, compelled the Roman government to despatch an embassy to the latter, and on receiving the reply that the Dalmatians had neither troubled themselves hitherto about the Romans nor would do so in future, to send thither an army in 598 under the consul Gaius Marcius Figulus. He penetrated into Dalmatia, but was again driven back as far as the Roman territory. It was not till his successor Publius Scipio Nasica took the large and strong town of Delminium in 599, that the confederacy conformed and professed itself subject to the Romans. But the poor and only superficially

subdued country was not sufficiently important to be erected into a distinct province: the Romans contented themselves, as they had already done in the case of the more important possessions in Epirus, with having it administered from Italy along with Cisalpine Gaul; an arrangement which was, at least as a rule, retained even when the province of Macedonia had been erected in 608 and its north western frontier had been fixed to the northward of Scodra.(9)

The Romans in Macedonia and Thrace

But this very conversion of Macedonia into a province directly dependent on Rome gave to the relations of Rome with the peoples on the north-east greater importance, by imposing on the Romans the obligation of defending the everywhere exposed frontier on the north and east against the adjacent barbarian tribes; and in a similar way not long afterwards (621) the acquisition by Rome of the Thracian Chersonese (peninsula of Gallipoli) previously belonging to the kingdom of the Attalids devolved on the Romans the obligation hitherto resting on the kings of Pergamus to protect the Hellenes here against the Thracians. From the double basis furnished by the valley of the Po and the province of Macedonia the Romans could now advance in earnest towards the region of the headwaters of the Rhine and towards the Danube, and possess themselves of the northern mountains at least so far as was requisite for the security of the lands to the south.

The Tribes at the Sources of the Rhine and along the Danube

Helvetii

Boii

Taurisci

Cerni

Raeti, Euganei, Veneti

In these regions the most powerful nation at that time was the great Celtic people, which according to the native tradition⁽¹⁰⁾ had issued from its settlements on the Western Ocean and poured itself about the same time into the valley of the Po on the south of the main chain of the Alps and into the regions on the Upper Rhine and on the Danube to the north of that chain. Among their various tribes, both banks of the Upper Rhine were occupied by the powerful and rich Helvetii, who nowhere came into immediate contact with the Romans and so lived in peace and in treaty with them: at this time they seem to have stretched from the lake of Geneva to the river Main, and to have occupied the modern Switzerland, Suabia, and Franconia. Adjacent to them dwelt the Boii, whose settlements were probably in the modern Bavaria and Bohemia.⁽¹¹⁾ To the south-east of these we meet with another Celtic stock, which made its appearance in Styria and Carinthia under the name of the Taurisci and afterwards of the Norici, in Friuli, Carniola, and Istria under that of the Carni. Their city Noreia (not far from St. Veit to the north of Klagenfurt) was flourishing and widely known from the iron mines that were even at that time zealously worked in those regions; still more were the Italians at this very period allured thither by the rich seams of gold brought to light, till the natives excluded them and took this California of that day wholly into their own hands. These Celtic hordes streaming along on both sides of the Alps had after their fashion occupied chiefly the flat and hill country; the Alpine regions proper and likewise the districts along the Adige and the Lower Po were not occupied by them, and remained in the hands of the earlier indigenous population. Nothing certain has yet been ascertained as to the nationality of the latter; but they appear under the name of the Raeti in the mountains of East Switzerland and the Tyrol, and under that of the Euganei and Veneti about Padua and Venice; so that at this last point the two great Celtic streams almost touched each other, and only a narrow belt of native population separated the Celtic Cenomani about Brescia from the Celtic

Carnians in Friuli. The Euganei and Veneti had long been peaceful subjects of the Romans; whereas the peoples of the Alps proper were not only still free, but made regular forays down from their mountains into the plain between the Alps and the Po, where they were not content with levying contributions, but conducted themselves with fearful cruelty in the townships which they captured, not unfrequently slaughtering the whole male population down to the infant in the cradle—the practical answer, it may be presumed, to the Roman razzias in the Alpine valleys. How dangerous these Raetian inroads were, appears from the fact that one of them about 660 destroyed the considerable township of Comum.

Illyrian Peoples

Japydes

Scordisci

If these Celtic and non-Celtic tribes having their settlements upon and beyond the Alpine chain were already variously intermingled, there was, as may easily be conceived, a still more comprehensive intermixture of peoples in the countries on the Lower Danube, where there were no high mountain ranges, as in the more western regions, to serve as natural walls of partition. The original Illyrian population, of which the modern Albanians seem to be the last pure survivors, was throughout, at least in the interior, largely mixed with Celtic elements, and the Celtic armour and Celtic method of warfare were probably everywhere introduced in that quarter. Next to the Taurisci came the Japydes, who had their settlements on the Julian Alps in the modern Croatia as far down as Fiume and Zeng,—a tribe originally doubtless Illyrian, but largely mixed with Celts. Bordering with these along the coast were the already-mentioned Dalmatians, into whose rugged mountains the Celts do not seem to have penetrated; whereas in the interior the Celtic Scordisci, to whom the tribe of the Triballi formerly especially powerful in that quarter had succumbed, and who had played a

principal part in the Celtic expeditions to Delphi, were about this time the leading nation along the Lower Save as far as the Morava in the modern Bosnia and Servia. They roamed far and wide towards Moesia, Thrace, and Macedonia, and fearful tales were told of their savage valour and cruel customs. Their chief place of arms was the strong Segestica or Siscia at the point where the Kulpa falls into the Save. The peoples who were at that time settled in Hungary, Transylvania, Roumania, and Bulgaria still remained for the present beyond the horizon of the Romans; the latter came into contact only with the Thracians on the eastern frontier of Macedonia in the Rhodope mountains.

Conflicts on the Frontier

In the Alps

It would have been no easy task for a government more energetic than was the Roman government of that day to establish an organized and adequate defence of the frontier against these wide domains of barbarism; what was done for this important object under the auspices of the government ment of the restoration, did not come up to even the most moderate requirements. There seems to have been no want of expeditions against the inhabitants of the Alps: in 636 there was a triumph over the Stoeni, who were probably settled in the mountains above Verona; in 659 the consul Lucius Crassus caused the Alpine valleys far and wide to be ransacked and the inhabitants to be put to death, and yet he did not succeed in killing enough of them to enable him to celebrate a village triumph and to couple the laurels of the victor with his oratorical fame. But as the Romans remained satisfied with razzias of this sort which merely exasperated the natives without rendering them harmless, and, apparently, withdrew the troops again after every such inroad, the state of matters in the region beyond the Po remained substantially the same as before.

In Thrace

On the opposite Thracian frontier they appear to have given themselves little concern about their neighbours; except that there is mention made in 651 of conflicts with the Thracians, and in 657 of others with the Maedi in the border mountains between Macedonia and Thrace.

In Illyria

More serious conflicts took place in the Illyrian land, where complaints were constantly made as to the turbulent Dalmatians by their neighbours and those who navigated the Adriatic; and along the wholly exposed northern frontier of Macedonia, which, according to the significant expression of a Roman, extended as far as the Roman swords and spears reached, the conflicts with the barbarians never ceased. In 619 an expedition was undertaken against the Ardyaei or Vardaei and the Pleraei or Paralii, a Dalmatian tribe on the coast to the north of the mouth of the Narenta, which was incessantly perpetrating outrages on the sea and on the opposite coast: by order of the Romans they removed from the coast and settled in the interior, the modern Herzegovina, where they began to cultivate the soil, but, unused to their new calling, pined away in that inclement region. At the same time an attack was directed from Macedonia against the Scordisci, who had, it may be presumed, made common cause with the assailed inhabitants of the coast. Soon afterwards (625) the consul Tuditanus in connection with the able Decimus Brutus, the conqueror of the Spanish Callaeci, humbled the Japydes, and, after sustaining a defeat at the outset, at length carried the Roman arms into the heart of Dalmatia as far as the river Kerka, 115 miles distant from Aquileia; the Japydes thenceforth appear as a nation at peace and on friendly terms with Rome. But ten years later (635) the Dalmatians rose afresh, once more in concert with the Scordisci. While the consul Lucius Cotta fought against the latter and in

doing so advanced apparently as far as Segestica, his colleague Lucius Metellus afterwards named Dalmaticus, the elder brother of the conqueror of Numidia, marched against the Dalmatians, conquered them and passed the winter in Salona (Spalato), which town henceforth appears as the chief stronghold of the Romans in that region. It is not improbable that the construction of the Via Gabinia, which led from Salona in an easterly direction to Andetrium (near Much) and thence farther into the interior, falls within this period.

The Romans Cross the Eastern Alps and Reach the Danube

The expedition of the consul of 639, Marcus Aemilius Scaurus, against the Taurisci⁽¹²⁾ presented more the character of a war of conquest. He was the first of the Romans to cross the chain of the eastern Alps where it falls lowest between Trieste and Laybach, and contracted hospitable relations with the Taurisci; which secured a not unimportant commercial intercourse without involving the Romans, as a formal subjugation would have involved them, in the movements of the peoples to the north of the Alps. Of the conflicts with the Scordisci, which have passed almost wholly into oblivion, a page, which speaks clearly even in its isolation, has recently been brought to light through a memorial stone from the year 636 lately discovered in the neighbourhood of Thessalonica. According to it, in this year the governor of Macedonia Sextus Pompeius fell near Argos (not far from Stobi on the upper Axios or Vardar) in a battle fought with these Celts; and, after his quaestor Marcus Annius had come up with his troops and in some measure mastered the enemy, these same Celts in connection with Tipas the king of the Maedi (on the upper Strymon) soon made a fresh irruption in still larger masses, and it was with difficulty that the Romans defended themselves against the onset of the barbarians.⁽¹³⁾ Things soon assumed so threatening a shape that it became necessary to despatch consular armies to Macedonia.⁽¹⁴⁾ A few years afterwards the consul of

640 Gaius Porcius Cato was surprised in the Servian mountains by the same Scordisci, and his army completely destroyed, while he himself with a few attendants disgracefully fled; with difficulty the praetor Marcus Didius protected the Roman frontier. His successors fought with better fortune, Gaius Metellus Caprarius (641-642), Marcus Livius Drusus (642-643), the first Roman general to reach the Danube, and Quintus Minucius Rufus (644-647) who carried his arms along the Morava⁽¹⁵⁾ and thoroughly defeated the Scordisci. Nevertheless they soon afterwards in league with the Maedi and the Dardani invaded the Roman territory and plundered even the sanctuary at Delphi; it was not till then that Lucius Scipio put an end to the thirty-two years' warfare with the Scordisci and drove the remnant over to the left bank of the Danube.⁽¹⁶⁾ Thenceforth in their stead the just-named Dardani (in Servia) begin to play the first part in the territory between the northern frontier of Macedonia and the Danube.

The Cimbri

But these victories had an effect which the victors did not anticipate. For a considerable period an "unsettled people" had been wandering along the northern verge of the country occupied by the Celts on both sides of the Danube. They called themselves the Cimbri, that is, the Chempho, the champions or, as their enemies translated it, the robbers; a designation, however, which to all appearance had become the name of the people even before their migration. They came from the north, and the first Celtic people with whom they came in contact were, so far as is known, the Boii, probably in Bohemia. More exact details as to the cause and the direction of their migration have not been recorded by contemporaries,⁽¹⁷⁾ and cannot be supplied by conjecture, since the state of things in those times to the north of Bohemia and the Main and to the east of the Lower Rhine lies wholly beyond our knowledge. But the hypothesis that the Cimbri, as well as the similar horde of the Teutones which afterwards joined them,

belonged essentially not to the Celtic nation, to which the Romans at first assigned them, but to the Germanic, is supported by the most definite facts: viz., by the appearance of two small tribes of the same name—remnants apparently left behind in their primitive seats—the Cimbri in the modern Denmark, the Teutones in the north-east of Germany in the neighbourhood of the Baltic, where Pytheas, a contemporary of Alexander the Great, makes mention of them thus early in connection with the amber trade; by the insertion of the Cimbri and Teutones in the list of the Germanic peoples among the Ingaevones alongside of the Chauci; by the judgment of Caesar, who first made the Romans acquainted with the distinction between the Germans and the Celts, and who includes the Cimbri, many of whom he must himself have seen, among the Germans; and lastly, by the very names of the peoples and the statements as to their physical appearance and habits in other respects, which, while applying to the men of the north generally, are especially applicable to the Germans. On the other hand it is conceivable enough that such a horde, after having been engaged in wandering perhaps for many years and having in its movements near to or within the land of the Celts doubtless welcomed every brother-in-arms who joined it, would include a certain amount of Celtic elements; so that it is not surprising that men of Celtic name should be at the head of the Cimbri, or that the Romans should employ spies speaking the Celtic tongue to gain information among them. It was a marvellous movement, the like of which the Romans had not yet seen; not a predatory expedition of men equipped for the purpose, nor a "-ver sacrum-" of young men migrating to a foreign land, but a migratory people that had set out with their women and children, with their goods and chattels, to seek a new home. The waggon, which had everywhere among the still not fully settled peoples of the north a different importance from what it had among the Hellenes and the Italians, and which universally accompanied the Celts also in their encampments, was among the Cimbri as it were their house, where, beneath the leather covering stretched over it, a

place was found for the wife and children and even for the house-dog as well as for the furniture. The men of the south beheld with astonishment those tall lank figures with the fair locks and bright blue eyes, the hardy and stately women who were little inferior in size and strength to the men, and the children with old men's hair, as the amazed Italians called the flaxen-haired youths of the north. Their system of warfare was substantially that of the Celts of this period, who no longer fought, as the Italian Celts had formerly done, bareheaded and with merely sword and dagger, but with copper helmets often richly adorned and with a peculiar missile weapon, the *-materis-*; the large sword was retained and the long narrow shield, along with which they probably wore also a coat of mail. They were not destitute of cavalry; but the Romans were superior to them in that arm. Their order of battle was as formerly a rude phalanx professedly drawn up with just as many ranks in depth as in breadth, the first rank of which in dangerous combats not unfrequently tied together their metallic girdles with cords. Their manners were rude. Flesh was frequently devoured raw. The bravest and, if possible, the tallest man was king of the host. Not unfrequently, after the manner of the Celts and of barbarians generally, the time and place of the combat were previously arranged with the enemy, and sometimes also, before the battle began, an individual opponent was challenged to single combat. The conflict was ushered in by their insulting the enemy with unseemly gestures, and by a horrible noise—the men raising their battle-shout, and the women and children increasing the din by drumming on the leathern covers of the waggons. The Cimbrian fought bravely—death on the bed of honour was deemed by him the only death worthy of a free man—but after the victory he indemnified himself by the most savage brutality, and sometimes promised beforehand to present to the gods of battle whatever victory should place in the power of the victor. The effects of the enemy were broken in pieces, the horses were killed, the prisoners were hanged or preserved only to be sacrificed to the gods. It was the priestesses

—grey-haired women in white linen dresses and unshod—who, like Iphigenia in Scythia, offered these sacrifices, and prophesied the future from the streaming blood of the prisoner of war or the criminal who formed the victim. How much in these customs was the universal usage of the northern barbarians, how much was borrowed from the Celts, and how much was peculiar to the Germans, cannot be ascertained; but the practice of having the army accompanied and directed not by priests, but by priestesses, may be pronounced an undoubtedly Germanic custom. Thus marched the Cimbri into the unknown land—an immense multitude of various origin which had congregated round a nucleus of Germanic emigrants from the Baltic—not without resemblance to the great bodies of emigrants, that in our own times cross the ocean similarly burdened and similarly mingled, and with aims not much less vague; carrying their lumbering waggon-castle, with the dexterity which a long migratory life imparts, over streams and mountains; dangerous to more civilized nations like the sea-wave and the hurricane, and like these capricious and unaccountable, now rapidly advancing, now suddenly pausing, turning aside, or receding. They came and struck like lightning; like lightning they vanished; and unhappily, in the dull age in which they appeared, there was no observer who deemed it worth while accurately to describe the marvellous meteor. When men afterwards began to trace the chain, of which this emigration, the first Germanic movement which touched the orbit of ancient civilization, was a link, the direct and living knowledge of it had long passed away.

Cimbrian Movements and Conflicts

Defeat of Carbo

This homeless people of the Cimbri, which hitherto had been prevented from advancing to the south by the Celts on the Danube, more especially by the Boii, broke through that barrier in consequence of the attacks directed

by the Romans against the Danubian Celts; either because the latter invoked the aid of their Cimbrian antagonists against the advancing legions, or because the Roman attack prevented them from protecting as hitherto their northern frontiers. Advancing through the territory of the Scordisci into the Tauriscan country, they approached in 641 the passes of the Carnian Alps, to protect which the consul Gnaeus Papirius Carbo took up a position on the heights not far from Aquileia. Here, seventy years before, Celtic tribes had attempted to settle on the south of the Alps, but at the bidding of the Romans had evacuated without resistance the ground which they had already occupied;(18) even now the dread of the Transalpine peoples at the Roman name showed itself strongly. The Cimbri did not attack; indeed, when Carbo ordered them to evacuate the territory of the Taurisci who were in relations of hospitality with Rome—an order which the treaty with the latter by no means bound him to make—they complied and followed the guides whom Carbo had assigned to them to escort them over the frontier. But these guides were in fact instructed to lure the Cimbri into an ambush, where the consul awaited them. Accordingly an engagement took place not far from Noreia in the modern Carinthia, in which the betrayed gained the victory over the betrayer and inflicted on him considerable loss; a storm, which separated the combatants, alone prevented the complete annihilation of the Roman army. The Cimbri might have immediately directed their attack towards Italy; they preferred to turn to the westward. By treaty with the Helvetii and the Sequani rather than by force of arms they made their way to the left bank of the Rhine and over the Jura, and there some years after the defeat of Carbo once more threatened the Roman territory by their immediate vicinity.

Defeat of Silanus

With a view to cover the frontier of the Rhine and the immediately threatened territory of the Allobroges, a Roman army under Marcus Junius

Silanus appeared in 645 in Southern Gaul. The Cimbri requested that land might be assigned to them where they might peacefully settle—a request which certainly could not be granted. The consul instead of replying attacked them; he was utterly defeated and the Roman camp was taken. The new levies which were occasioned by this misfortune were already attended with so much difficulty, that the senate procured the abolition of the laws—presumably proceeding from Gaius Gracchus—which limited the obligation to military service in point of time.⁽¹⁹⁾ But the Cimbri, instead of following up their victory over the Romans, sent to the senate at Rome to repeat their request for the assignment of land, and meanwhile employed themselves, apparently, in the subjugation of the surrounding Celtic cantons.

Inroad of the Helvetii into Southern Gaul Defeat of Longinus

Thus the Roman province and the new Roman army were left for the moment undisturbed by the Germans; but a new enemy arose in Gaul itself. The Helvetii, who had suffered much in the constant conflicts with their north-eastern neighbours, felt themselves stimulated by the example of the Cimbri to seek in their turn for more quiet and fertile settlements in western Gaul, and had perhaps, even when the Cimbrian hosts marched through their land, formed an alliance with them for that purpose. Now under the leadership of Divico the forces of the Tougeni (position unknown) and of the Tigorini (on the lake of Murten) crossed the Jura,⁽²⁰⁾ and reached the territory of the Nitiobroges (about Agen on the Garonne). The Roman army under the consul Lucius Cassius Longinus, which they here encountered, allowed itself to be decoyed by the Helvetii into an ambush, in which the general himself and his legate, the consular Lucius Piso, along with the greater portion of the soldiers met their death; Gaius Popillius, the interim commander-in-chief of the force which had escaped to the camp, was allowed to withdraw under the yoke on condition of surrendering half the

property which the troops carried with them and furnishing hostages (647). So perilous was the state of things for the Romans, that one of the most important towns in their own province, Tolosa, rose against them and placed the Roman garrison in chains.

But, as the Cimbri continued to employ themselves elsewhere, and the Helvetii did not further molest for the moment the Roman province, the new Roman commander-in-chief, Quintus Servilius Caepio, had full time to recover possession of the town of Tolosa by treachery and to empty at leisure the immense treasures accumulated in the old and famous sanctuary of the Celtic Apollo. It was a desirable gain for the embarrassed exchequer, but unfortunately the gold and silver vessels on the way from Tolosa to Massilia were taken from the weak escort by a band of robbers, and totally disappeared: the consul himself and his staff were, it was alleged, the instigators of this onset (648). Meanwhile they confined themselves to the strictest defensive as regarded the chief enemy, and guarded the Roman province with three strong armies, till it should please the Cimbri to repeat their attack.

Defeat of Arausio

They came in 649 under their king Boiorix, on this occasion seriously meditating an inroad into Italy. They were opposed on the right bank of the Rhone by the proconsul Caepio, on the left by the consul Gnaeus Mallius Maximus and by his legate, the consular Marcus Aurelius Scaurus, under him at the head of a detached corps. The first onset fell on the latter; he was totally defeated and brought in person as a prisoner to the enemy's headquarters, where the Cimbrian king, indignant at the proud warning given to him by the captive Roman not to venture with his army into Italy, put him to death. Maximus thereupon ordered his colleague to bring his army over the Rhone: the latter complying with reluctance at length appeared at

Arausio (Orange) on the left bank of the river, where the whole Roman force now stood confronting the Cimbrian army, and is alleged to have made such an impression by its considerable numbers that the Cimbri began to negotiate. But the two leaders lived in the most vehement discord. Maximus, an insignificant and incapable man, was as consul the legal superior of his prouder and better born, but not better qualified, proconsular colleague Caepio; but the latter refused to occupy a common camp and to devise operations in concert with him, and still, as formerly, maintained his independent command. In vain deputies from the Roman senate endeavoured to effect a reconciliation; a personal conference between the generals, on which the officers insisted, only widened the breach. When Caepio saw Maximus negotiating with the envoys of the Cimbri, he fancied that the latter wished to gain the sole credit of their subjugation, and threw himself with his portion of the army alone in all haste on the enemy. He was utterly annihilated, so that even his camp fell into the hands of the enemy (6 Oct. 649); and his destruction was followed by the no less complete defeat of the second Roman army. It is asserted that 80,000 Roman soldiers and half as many of the immense and helpless body of camp-followers perished, and that only ten men escaped: this much is certain, that only a few out of the two armies succeeded in escaping, for the Romans had fought with the river in their rear. It was a calamity which materially and morally far surpassed the day of Cannae. The defeats of Carbo, of Silanus, and of Longinus had passed without producing any permanent impression on the Italians. They were accustomed to open every war with disasters; the invincibleness of the Roman arms was so firmly established, that it seemed superfluous to attend to the pretty numerous exceptions. But the battle of Arausio, the alarming proximity of the victorious Cimbrian army to the undefended passes of the Alps, the insurrections breaking out afresh and with increased force both in the Roman territory beyond the Alps and among the Lusitanians, the defenceless condition of Italy, produced a

sudden and fearful awakening from these dreams. Men recalled the never wholly forgotten Celtic inroads of the fourth century, the day on the Allia and the burning of Rome: with the double force at once of the oldest remembrance and of the freshest alarm the terror of the Gauls came upon Italy; through all the west people seemed to be aware that the Roman empire was beginning to totter. As after the battle of Cannae, the period of mourning was shortened by decree of the senate.(21) The new enlistments brought out the most painful scarcity of men. All Italians capable of bearing arms had to swear that they would not leave Italy; the captains of the vessels lying in the Italian ports were instructed not to take on board any man fit for service. It is impossible to tell what might have happened, had the Cimbri immediately after their double victory advanced through the gates of the Alps into Italy. But they first overran the territory of the Arverni, who with difficulty defended themselves in their fortresses against the enemy; and soon, weary of sieges, set out from thence, not to Italy, but westward to the Pyrenees.

The Roman Opposition Warfare of Prosecutions

If the torpid organism of the Roman polity could still of itself reach a crisis of wholesome reaction, that reaction could not but set in now, when, by one of the marvellous pieces of good fortune, in which the history of Rome is so rich, the danger was sufficiently imminent to rouse all the energy and all the patriotism of the burgesses, and yet did not burst upon them so suddenly as to leave no space for the development of their resources. But the very same phenomena, which had occurred four years previously after the African defeats, presented themselves afresh. In fact the African and Gallic disasters were essentially of the same kind. It may be that primarily the blame of the former fell more on the oligarchy as a whole, that of the latter more on individual magistrates; but public opinion justly

recognized in both, above all things, the bankruptcy of the government, which in its progressive development imperilled first the honour and now the very existence of the state. People just as little deceived themselves then as now regarding the true seat of the evil, but as little now as then did they make even an attempt to apply the remedy at the proper point. They saw well that the system was to blame; but on this occasion also they adhered to the method of calling individuals to account—only no doubt this second storm discharged itself on the heads of the oligarchy so much the more heavily, as the calamity of 649 exceeded in extent and peril that of 645. The sure instinctive feeling of the public, that there was no resource against the oligarchy except the -tyrannis-, was once more apparent in their readily entering into every attempt by officers of note to force the hand of the government and, under one form or another, to overturn the oligarchic rule by a dictatorship.

It was against Quintus Caepio that their attacks were first directed; and justly, in so far as he had primarily occasioned the defeat of Arausio by his insubordination, even apart from the probably well-founded but not proved charge of embezzling the Tolosan booty; but the fury which the opposition displayed against him was essentially augmented by the fact, that he had as consul ventured on an attempt to wrest the posts of jurymen from the capitalists.(22) On his account the old venerable principle, that the sacredness of the magistracy should be respected even in the person of its worst occupant, was violated; and, while the censure due to the author of the calamitous day of Cannae had been silently repressed within the breast, the author of the defeat of Arausio was by decree of the people unconstitutionally deprived of his proconsulship, and—what had not occurred since the crisis in which the monarchy had perished—his property was confiscated to the state-chest (649?). Not long afterwards he was by a second decree of the burgesses expelled from the senate (650). But this was not enough; more victims were desired, and above all Caepio's blood. A

number of tribunes of the people favourable to the opposition, with Lucius Appuleius Saturninus and Gaius Norbanus at their head, proposed in 651 to appoint an extraordinary judicial commission in reference to the embezzlement and treason perpetrated in Gaul; in spite of the de facto abolition of arrest during investigation and of the punishment of death for political offences, Caepio was arrested and the intention of pronouncing and executing in his case sentence of death was openly expressed. The government party attempted to get rid of the proposal by tribunician intervention; but the interceding tribunes were violently driven from the assembly, and in the furious tumult the first men of the senate were assailed with stones. The investigation could not be prevented, and the warfare of prosecutions pursued its course in 651 as it had done six years before; Caepio himself, his colleague in the supreme command Gnaeus Mallius Maximus, and numerous other men of note were condemned: a tribune of the people, who was a friend of Caepio, with difficulty succeeded by the sacrifice of his own civic existence in saving at least the life of the chief persons accused.(23)

Marius Commander-in-Chief

Of more importance than this measure of revenge was the question how the dangerous war beyond the Alps was to be further carried on, and first of all to whom the supreme command in it was to be committed. With an unprejudiced treatment of the matter it was not difficult to make a fitting choice. Rome was doubtless, in comparison with earlier times, not rich in military notabilities; yet Quintus Maximus had commanded with distinction in Gaul, Marcus Aemilius Scaurus and Quintus Minucius in the regions of the Danube, Quintus Metellus, Publius Rutilius Rufus, Gaius Marius in Africa; and the object proposed was not to defeat a Pyrrhus or a Hannibal, but again to make good the often-tried superiority of Roman arms and Roman tactics in opposition to the barbarians of the north—an object which

required no genius, but merely a stern and capable soldier. But it was precisely a time when nothing was so difficult as the unprejudiced settlement of a question of administration. The government was, as it could not but be and as the Jugurthine war had already shown, so utterly bankrupt in public opinion, that its ablest generals had to retire in the full career of victory, whenever it occurred to an officer of mark to revile them before the people and to get himself as the candidate of the opposition appointed by the latter to the head of affairs. It was no wonder that what took place after the victories of Metellus was repeated on a greater scale after the defeats of Gnaeus Mallius and Quintus Caepio. Once more Gaius Marius came forward, in spite of the law which prohibited the holding of the consulship more than once, as a candidate for the supreme magistracy; and not only was he nominated as consul and charged with the chief command in the Gallic war, while he was still in Africa at the head of the army there, but he was reinvested with the consulship for five years in succession (650-654)—in a way, which looked like an intentional mockery of the exclusive spirit that the nobility had exhibited in reference to this very man in all its folly and shortsightedness, but was also unparalleled in the annals of the republic, and in fact absolutely incompatible with the spirit of the free constitution of Rome. In the Roman military system in particular—the transformation of which from a burgess-militia into a body of mercenaries, begun in the African war, was continued and completed by Marius during his five years of a supreme command unlimited through the exigencies of the time still more than through the terms of his appointment—the profound traces of this unconstitutional commandership-in-chief of the first democratic general remained visible for all time.

Roman Defensive

The new commander-in-chief, Gaius Marius, appeared in 650 beyond the Alps, followed by a number of experienced officers—among whom the

bold captor of Jugurtha, Lucius Sulla, soon acquired fresh distinction— and by a numerous host of Italian and allied soldiers. At first he did not find the enemy against whom he was sent. The singular people, who had conquered at Arausio, had in the meantime (as we have already mentioned), after plundering the country to the west of the Rhone, crossed the Pyrenees and were carrying on a desultory warfare in Spain with the brave inhabitants of the northern coast and of the interior; it seemed as if the Germans wished at their very first appearance in the field of history to display their lack of persistent grasp. So Marius found ample time on the one hand to reduce the revolted Tectosages to obedience, to confirm afresh the wavering fidelity of the subject Gallic and Ligurian cantons, and to obtain support and contingents within and without the Roman province from the allies who were equally with the Romans placed in peril by the Cimbri, such as the Massiliots, the Allobroges, and the Sequani; and on the other hand, to discipline the army entrusted to him by strict training and impartial justice towards all whether high or humble, and to prepare the soldiers for the more serious labours of war by marches and extensive works of entrenching— particularly the construction of a canal of the Rhone, afterwards handed over to the Massiliots, for facilitating the transit of the supplies sent from Italy to the army. He maintained a strictly defensive attitude, and did not cross the bounds of the Roman province.

The Cimbri, Teutones, and Helvetii Unite
Expedition to Italy Resolved on
Teutones in the Province of Gaul

At length, apparently in the course of 651, the wave of the Cimbri, after having broken itself in Spain on the brave resistance of the native tribes and especially of the Celtiberians, flowed back again over the Pyrenees and thence, as it appears, passed along the shore of the Atlantic Ocean, where everything from the Pyrenees to the Seine submitted to the terrible invaders.

There, on the confines of the brave confederacy of the Belgae, they first encountered serious resistance; but there also, while they were in the territory of the Vellocassi (near Rouen), considerable reinforcements reached them. Not only three cantons of the Helvetii, including the Tigorini and Tougeni who had formerly fought against the Romans at the Garonne, associated themselves, apparently about this period, with the Cimbri, but these were also joined by the kindred Teutones under their king Teutobod, who had been driven by events which tradition has not recorded from their home on the Baltic sea to appear now on the Seine.(24) But even the united hordes were unable to overcome the brave resistance of the Belgae. The leaders accordingly resolved, now that their numbers were thus swelled, to enter in all earnest on the expedition to Italy which they had several times contemplated. In order not to encumber themselves with the spoil which they had heretofore collected, they left it behind under the protection of a division of 6000 men, which after many wanderings subsequently gave rise to the tribe of the Aduatuci on the Sambre. But, whether from the difficulty of finding supplies on the Alpine routes or from other reasons, the mass again broke up into two hosts, one of which, composed of the Cimbri and Tigorini, was to recross the Rhine and to invade Italy through the passes of the eastern Alps already reconnoitred in 641, and the other, composed of the newly-arrived Teutones, the Tougeni, and the Ambrones—the flower of the Cimbrian host already tried in the battle of Arausio—was to invade Italy through Roman Gaul and the western passes. It was this second division, which in the summer of 652 once more crossed the Rhone without hindrance, and on its left bank resumed, after a pause of nearly three years, the struggle with the Romans. Marius awaited them in a well-chosen and well-provisioned camp at the confluence of the Isere with the Rhone, in which position he intercepted the passage of the barbarians by either of the only two military routes to Italy then practicable, that over the Little St. Bernard, and that along the coast. The Teutones attacked the camp which

obstructed their passage; for three consecutive days the assault of the barbarians raged around the Roman entrenchments, but their wild courage was thwarted by the superiority of the Romans in fortress-warfare and by the prudence of the general. After severe loss the bold associates resolved to give up the assault, and to march onward to Italy past the camp. For six successive days they continued to defile—a proof of the cumbrousness of their baggage still more than of the immensity of their numbers. The general permitted the march to proceed without attacking them. We can easily understand why he did not allow himself to be led astray by the insulting inquiries of the enemy whether the Romans had no commissions for their wives at home; but the fact, that he did not take advantage of this audacious defiling of the hostile columns in front of the concentrated Roman troops for the purpose of attack, shows how little he trusted his unpractised soldiers.

Battle of Aquae Sextiae

When the march was over, he broke up his encampment and followed in the steps of the enemy, preserving rigorous order and carefully entrenching himself night after night. The Teutones, who were striving to gain the coast road, marching down the banks of the Rhone reached the district of Aquae Sextiae, followed by the Romans. The light Ligurian troops of the Romans, as they were drawing water, here came into collision with the Celtic rear-guard, the Ambrones; the conflict soon became general; after a hot struggle the Romans conquered and pursued the retreating enemy up to their waggon-stronghold. This first successful collision elevated the spirits of the general as well as of the soldiers; on the third day after it Marius drew up his array for a decisive battle on the hill, the summit of which bore the Roman camp. The Teutones, long impatient to measure themselves against their antagonists, immediately rushed up the hill and began the conflict. It was severe and protracted: up to midday the Germans stood like walls; but

the unwonted heat of the Provengal sun relaxed their energies, and a false alarm in their rear, where a band of Roman camp-boys ran forth from a wooded ambuscade with loud shouts, utterly decided the breaking up of the wavering ranks. The whole horde was scattered, and, as was to be expected in a foreign land, either put to death or taken prisoners. Among the captives was king Teutobod; among the killed a multitude of women, who, not unacquainted with the treatment which awaited them as slaves, had caused themselves to be slain in desperate resistance at their waggons, or had put themselves to death in captivity, after having vainly requested to be dedicated to the service of the gods and of the sacred virgins of Vesta (summer of 652).

Cimbrians in Italy

Thus Gaul was relieved from the Germans; and it was time, for their brothers-in-arms were already on the south side of the Alps. In alliance with the Helvetii, the Cimbri had without difficulty passed from the Seine to the upper valley of the Rhine, had crossed the chain of the Alps by the Brenner pass, and had descended thence through the valleys of the Eisach and Adige into the Italian plain. Here the consul Quintus Lutatius Catulus was to guard the passes; but not fully acquainted with the country and afraid of having his flank turned, he had not ventured to advance into the Alps themselves, but had posted himself below Trent on the left bank of the Adige, and had secured in any event his retreat to the right bank by the construction of a bridge. When the Cimbri, however, pushed forward in dense masses from the mountains, a panic seized the Roman army, and legionaries and horsemen ran off, the latter straight for the capital, the former to the nearest height which seemed to afford security. With great difficulty Catulus brought at least the greater portion of his army by a stratagem back to the river and over the bridge, before the enemy, who commanded the upper course of the Adige and were already floating down trees and beams against

the bridge, succeeded in destroying it and thereby cutting off the retreat of the army. But the general had to leave behind a legion on the other bank, and the cowardly tribune who led it was already disposed to capitulate, when the centurion Gnaeus Petreius of Atina, struck him down and cut his way through the midst of the enemy to the main army on the right bank of the Adige. Thus the army, and in some degree even the honour of their arms, was saved; but the consequences of the neglect to occupy the passes and of the too hasty retreat were yet very seriously felt Catulus was obliged to withdraw to the right bank of the Po and to leave the whole plain between the Po and the Alps in the power of the Cimbri, so that communication was maintained with Aquileia only by sea. This took place in the summer of 652, about the same time when the decisive battle between the Teutones and the Romans occurred at Aquae Sextiae. Had the Cimbri continued their attack without interruption, Rome might have been greatly embarrassed; but on this occasion also they remained faithful to their custom of resting in winter, and all the more, because the rich country, the unwonted quarters under the shelter of a roof, the warm baths, and the new and abundant supplies for eating and drinking invited them to make themselves comfortable for the moment. Thereby the Romans gained time to encounter them with united forces in Italy. It was no season to resume—as the democratic general would perhaps otherwise have done—the interrupted scheme of conquest in Gaul, such as Gaius Gracchus had probably projected. From the battle-field of Aix the victorious army was conducted to the Po; and after a brief stay in the capital, where Marius refused the triumph offered to him until he had utterly subdued the barbarians, he arrived in person at the united armies. In the spring of 653 they again crossed the Po, 50,000 strong, under the consul Marius and the proconsul Catulus, and marched against the Cimbri, who on their part seem to have marched up the river with a view to cross the mighty stream at its source.

Battle on the Raudine Plain

The two armies met below Vercellae not far from the confluence of the Sesia with the Po,(25) just at the spot where Hannibal had fought his first battle on Italian soil. The Cimbri desired battle, and according to their custom sent to the Romans to settle the time and place for it; Marius gratified them and named the next day—it was the 30th July 653—and the Raudine plain, a wide level space, which the superior Roman cavalry found advantageous for their movements. Here they fell upon the enemy expecting them and yet taken by surprise; for in the dense morning mist the Cimbrian cavalry found itself in hand-to-hand conflict with the stronger cavalry of the Romans before it anticipated attack, and was thereby thrown back upon the infantry which was just making its dispositions for battle. A complete victory was gained with slight loss, and the Cimbri were annihilated. Those might be deemed fortunate who met death in the battle, as most did, including the brave king Boiorix; more fortunate at least than those who afterwards in despair laid hands on themselves, or were obliged to seek in the slave-market of Rome the master who might retaliate on the individual Northman for the audacity of having coveted the beautiful south before it was time. The Tigorini, who had remained behind in the passes of the Alps with the view of subsequently following the Cimbri, ran off on the news of the defeat to their native land. The human avalanche, which for thirteen years had alarmed the nations from the Danube to the Ebro, from the Seine to the Po, rested beneath the sod or toiled under the yoke of slavery; the forlorn hope of the German migrations had performed its duty; the homeless people of the Cimbri and their comrades were no more.

The Victory and the Parties

The political parties of Rome continued their pitiful quarrels over the carcase, without troubling themselves about the great chapter in the world's

history the first page of which was thus opened, without even giving way to the pure feeling that on this day Rome's aristocrats as well as Rome's democrats had done their duty. The rivalry of the two generals—who were not only political antagonists, but were also set at variance in a military point of view by the so different results of the two campaigns of the previous year—broke out immediately after the battle in the most offensive form. Catulus might with justice assert that the centre division which he commanded had decided the victory, and that his troops had captured thirty-one standards, while those of Marius had brought in only two, his soldiers led even the deputies of the town of Parma through the heaps of the dead to show to them that Marius had slain his thousand, but Catulus his ten thousand. Nevertheless Marius was regarded as the real conqueror of the Cimbri, and justly; not merely because by virtue of his higher rank he had held the chief command on the decisive day, and was in military gifts and experience beyond doubt far superior to his colleague, but especially because the second victory at Vercellae had in fact been rendered possible only by the first victory at Aquae Sextiae. But at that period it was considerations of political partisanship rather than of military merit which attached the glory of having saved Rome from the Cimbri and Teutones entirely to the name of Marius. Catulus was a polished and clever man, so graceful a speaker that his euphonious language sounded almost like eloquence, a tolerable writer of memoirs and occasional poems, and an excellent connoisseur and critic of art; but he was anything but a man of the people, and his victory was a victory of the aristocracy. The battles of the rough farmer on the other hand, who had been raised to honour by the common people and had led the common people to victory, were not merely defeats of the Cimbri and Teutones, but also defeats of the government: there were associated with them hopes far different from that of being able once more to carry on mercantile transactions on the one side of the Alps or to cultivate the fields without molestation on the other. Twenty years had

elapsed since the bloody corpse of Gaius Gracchus had been flung into the Tiber; for twenty years the government of the restored oligarchy had been endured and cursed; still there had risen no avenger for Gracchus, no second master to prosecute the building which he had begun. There were many who hated and hoped, many of the worst and many of the best citizens of the state: was the man, who knew how to accomplish this vengeance and these wishes, found at last in the son of the day-labourer of Arpinum? Were they really on the threshold of the new much-dreaded and much-desired second revolution?

CHAPTER VI

The Attempt of Marius at Revolution and the Attempt of Drusus at Reform

Marius

Gaius Marius, the son of a poor day-labourer, was born in 599 at the village of Cereatae then belonging to Arpinum, which afterwards obtained municipal rights as Cereatae Marianae and still at the present day bears the name of "Marius' home" (Casamare). He was reared at the plough, in circumstances so humble that they seemed to preclude him from access even to the municipal offices of Arpinum: he learned early—what he practised afterwards even when a general—to bear hunger and thirst, the heat of summer and the cold of winter, and to sleep on the hard ground. As soon as his age allowed him, he had entered the army and through service in the severe school of the Spanish wars had rapidly risen to be an officer. In Scipio's Numantine war he, at that time twenty-three years of age, attracted the notice of the stern general by the neatness with which he kept his horse and his accoutrements, as well as by his bravery in combat and his decorous demeanour in camp. He had returned home with honourable scars and warlike distinctions, and with the ardent wish to make himself a name in the career on which he had gloriously entered; but, as matters then stood, a man of even the highest merit could not attain those political offices, which alone led to the higher military posts, without wealth and without connections. The young officer acquired both by fortunate commercial

speculations and by his union with a maiden of the ancient patrician clan of the Julii. So by dint of great efforts and after various miscarriages he succeeded, in 639, in attaining the praetorship, in which he found opportunity of displaying afresh his military ability as governor of Further Spain. How he thereafter in spite of the aristocracy received the consulship in 647 and, as proconsul (648, 649), terminated the African war; and how, called after the calamitous day of Arausio to the superintendence of the war against the Germans, he had his consulship renewed for four successive years from 650 to 653 (a thing unexampled in the annals of the republic) and vanquished and annihilated the Cimbri in Cisalpine, and the Teutones in Transalpine, Gaul—has been already related. In his military position he had shown himself a brave and upright man, who administered justice impartially, disposed of the spoil with rare honesty and disinterestedness, and was thoroughly incorruptible; a skilful organizer, who had brought the somewhat rusty machinery of the Roman military system once more into a state of efficiency; an able general, who kept the soldier under discipline and withal in good humour and at the same time won his affections in comrade-like intercourse, but looked the enemy boldly in the face and joined issue with him at the proper time. He was not, as far as we can judge, a man of eminent military capacity; but the very respectable qualities which he possessed were quite sufficient under the existing circumstances to procure for him the reputation of such capacity, and by virtue of it he had taken his place in a fashion of unparalleled honour among the consulars and the triumphators. But he was none the better fitted on that account for the brilliant circle. His voice remained harsh and loud, and his look wild, as if he still saw before him Libyans or Cimbrians, and not well-bred and perfumed colleagues. That he was superstitious like a genuine soldier of fortune; that he was induced to become a candidate for his first consulship, not by the impulse of his talents, but primarily by the utterances of an Etruscan -haruspex-; and that in the campaign with the Teutones a Syrian

prophetess Martha lent the aid of her oracles to the council of war,—these things were not, in the strict sense, unaristocratic: in such matters, then as at all times, the highest and lowest strata of society met. But the want of political culture was unpardonable; it was commendable, no doubt, that he had the skill to defeat the barbarians, but what was to be thought of a consul who was so ignorant of constitutional etiquette as to appear in triumphal costume in the senate! In other respects too the plebeian character clung to him. He was not merely—according to aristocratic phraseology—a poor man, but, what was worse, frugal and a declared enemy of all bribery and corruption. After the manner of soldiers he was not nice, but was fond of his cups, especially in his later years; he knew not the art of giving feasts, and kept a bad cook. It was likewise awkward that the consular understood nothing but Latin and had to decline conversing in Greek; that he felt the Greek plays wearisome might pass—he was presumably not the only one who did so—but to confess to the feeling of weariness was naive. Thus he remained throughout life a countryman cast adrift among aristocrats, and annoyed by the keenly-felt sarcasms and still more keenly—felt commiseration of his colleagues, which he had not the self-command to despise as he despised themselves.

Political Position of Marius

Marius stood aloof from the parties not much less than from society. The measures which he carried in his tribunate of the people (635)—a better control over the delivery of the voting-tablets with a view to do away with the scandalous frauds that were therein practised, and the prevention of extravagant proposals for largesses to the people(1)—do not bear the stamp of a party, least of all that of the democratic, but merely show that he hated what was unjust and irrational; and how could a man like this, a farmer by birth and a soldier by inclination, have been from the first a revolutionist? The hostile attacks of the aristocracy had no doubt driven him subsequently

into the camp of the opponents of the government; and there he speedily found himself elevated in the first instance to be general of the opposition, and destined perhaps for still higher things hereafter. But this was far more the effect of the stringent force of circumstances and of the general need which the opposition had for a chief, than his own work; he had at any rate since his departure for Africa in 647-8 hardly tarried, in passing, for a brief period in the capital. It was not till the latter half of 653 that he returned to Rome, victor over the Teutones as over the Cimbri, to celebrate his postponed triumph now with double honours—decidedly the first man in Rome, and yet at the same time a novice in politics. It was certain beyond dispute, not only that Marius had saved Rome, but that he was the only man who could have saved it; his name was on every one's lips; the men of quality acknowledged his services; with the people he was more popular than any one before or after him, popular alike by his virtues and by his faults, by his unaristocratic disinterestedness no less than by his boorish roughness; he was called by the multitude a third Romulus and a second Camillus; libations were poured forth to him like the gods. It was no wonder that the head of the peasant's son grew giddy at times with all this glory; that he compared his march from Africa to Gaul to the victorious processions of Dionysus from continent to continent, and had a cup—none of the smallest—manufactured for his use after the model of that of Bacchus. There was just as much of hope as of gratitude in this delirious enthusiasm of the people, which might well have led astray a man of colder blood and more mature political experience. The work of Marius seemed to his admirers by no means finished. The wretched government oppressed the land more heavily than did the barbarians: on him, the first man of Rome, the favourite of the people, the head of the opposition, devolved the task of once more delivering Rome. It is true that to one who was a rustic and a soldier the political proceedings of the capital were strange and incongruous: he spoke as ill as he commanded well, and displayed a far

firmer bearing in presence of the lances and swords of the enemy than in presence of the applause or hisses of the multitude; but his inclinations were of little moment. The hopes of which he was the object constrained him. His military and political position was such that, if he would not break with the glorious past, if he would not deceive the expectations of his party and in fact of the nation, if he would not be unfaithful to his own sense of duty, he must check the maladministration of public affairs and put an end to the government of the restoration; and if he only possessed the internal qualities of a head of the people, he might certainly dispense with those which he lacked as a popular leader.

The New Military Organization

He held in his hand a formidable weapon in the newly organized army. Previously to his time the fundamental principle of the Servian constitution—by which the levy was limited entirely to the burgesses possessed of property, and the distinctions as to armour were regulated solely by the property qualification⁽²⁾—had necessarily been in various respects relaxed. The minimum census of 11,000 -asses- (43 pounds), which bound its possessor to enter the burgess-army, had been lowered to 4000 (17 pounds; ⁽³⁾). The older six property-classes, distinguished by their respective kinds of armour, had been restricted to three; for, while in accordance with the Servian organization they selected the cavalry from the wealthiest, and the light-armed from the poorest, of those liable to serve, they arranged the middle class, the proper infantry of the line, no longer according to property but according to age of service, in the three divisions of -hastati-, -principes-, and -triarii-. They had, moreover, long ago brought in the Italian allies to share to a very great extent in war-service; but in their case too, just as among the Roman burgesses, military duty was chiefly imposed on the propertied classes. Nevertheless the Roman military system down to the time of Marius rested in the main on that primitive organization of the

burgess-militia. But it was no longer suited for the altered circumstances. The better classes of society kept aloof more and more from service in the army, and the Roman and Italic middle class in general was disappearing; while on the other hand the considerable military resources of the extra-Italian allies and subjects had become available, and the Italian proletariat also, properly applied, afforded at least a very useful material for military objects. The burgess-cavalry,(4) which was meant to be formed from the class of the wealthy, had practically ceased from service in the field even before the time of Marius. It is last mentioned as an actual corps d'armee in the Spanish campaign of 614, when it drove the general to despair by its insolent arrogance and its insubordination, and a war broke out between the troopers and the general, waged on both sides with equal unscrupulousness. In the Jugurthine war it continues to appear merely as a sort of guard of honour for the general and foreign princes; thenceforth it wholly disappears. In like manner the filling up of the complement of the legions with properly qualified persons bound to serve proved in the ordinary course of things difficult; so that exertions, such as were necessary after the battle of Arausio, would have been in all probability really impracticable with the retention of the existing rules as to the obligation of service. On the other hand even before the time of Marius, especially in the cavalry and the light infantry, extra-Italian subjects—the heavy mounted troopers of Thrace, the light African cavalry, the excellent light infantry of the nimble Ligurians, the slingers from the Baleares—were employed in ever-increasing numbers even beyond their own provinces for the Roman armies; and at the same time, while there was a want of qualified burgess-recruits, the non-qualified poorer burgesses pressed forward unbidden to enter the army; in fact, from the mass of the civic rabble without work or averse to it, and from the considerable advantages which the Roman war-service yielded, the enlistment of volunteers could not be difficult. It was therefore simply a necessary consequence of the political and social changes in the state, that

its military arrangements should exhibit a transition from the system of the burgess-levy to the system of contingents and enlisting; that the cavalry and light troops should be essentially formed out of the contingents of the subjects—in the Cimbrian campaign, for instance, contingents were summoned from as far as Bithynia; and that in the case of the infantry of the line, while the former arrangement of obligation to service was not abolished, every free-born burgess should at the same time be permitted voluntarily to enter the army as was first done by Marius in 647.

To this was added the reducing the infantry of the line to a level, which is likewise to be referred to Marius. The Roman method of aristocratic classification had hitherto prevailed also within the legion. Each of the four divisions of the -velites-, the -hastati-, the -principes-, and the -triarii—or, as we may say, the vanguard, the first, second, and third line—had hitherto possessed its special qualification for service, as respected property or age, and in great part also its distinctive equipment; each had its definite place once for all assigned in the order of battle; each had its definite military rank and its own standard. All these distinctions were now superseded. Any one admitted as a legionary at all needed no further qualification in order to serve in any division; the discretion of the officers alone decided as to his place. All distinctions of armour were set aside, and consequently all recruits were uniformly trained. Connected, doubtless, with this change were the various improvements which Marius introduced in the armament, the carrying of the baggage, and similar matters, and which furnish an honourable evidence of his insight into the practical details of the business of war and of his care for his soldiers; and more especially the new method of drill devised by Publius Rutilius Rufus (consul 649) the comrade of Marius in the African war. It is a significant fact, that this method considerably increased the military culture of the individual soldier, and was essentially based upon the training of the future gladiators which was usual in the fighting- schools of the time. The arrangement of the legion

became totally different. The thirty companies (-manipuli-) of heavy infantry, which— each in two sections (-centuriae-) composed respectively of 60 men in the first two, and of 30 men in the third, division—had hitherto formed the tactical unit, were replaced by 10 cohorts (-cohortes-) each with its own standard and each of 6, or often only of 5, sections of 100 men apiece; so that, although at the same time 1200 men were saved by the suppression of the light infantry of the legion, yet the total numbers of the legion were raised from 4200 to from 5000 to 6000 men. The custom of fighting in three divisions was retained, but, while previously each division had formed a distinct corps, it was in future left to the general to distribute the cohorts, of which he had the disposal, in the three lines as he thought best. Military rank was determined solely by the numerical order of the soldiers and of the divisions. The four standards of the several parts of the legion—the wolf, the ox with a man's head, the horse, the boar—which had hitherto probably been carried before the cavalry and the three divisions of heavy infantry, disappeared; there came instead the ensigns of the new cohorts, and the new standard which Marius gave to the legion as a whole—the silver eagle. While within the legion every trace of the previous civic and aristocratic classification thus disappeared, and the only distinctions henceforth occurring among the legionaries were purely military, accidental circumstances had some decades earlier given rise to a privileged division of the army alongside of the legions—the bodyguard of the general. Hitherto selected men from the allied contingents had formed the personal escort of the general; the employment of Roman legionaries, or even men voluntarily offering themselves, for personal service with him was at variance with the stern disciplinary obligations of the mighty commonwealth. But when the Numantine war had reared an army demoralized beyond parallel, and Scipio Aemilianus, who was called to check the wild disorder, had not been able to prevail on the government to call entirely new troops under arms, he was at least allowed to form, in

addition to a number of men whom the dependent kings and free cities outside of the Roman bounds placed at his disposal, a personal escort of 500 men composed of volunteer Roman burgesses (p. 230). This cohort drawn partly from the better classes, partly from the humbler personal clients of the general, and hence called sometimes that of the friends, sometimes that of the headquarters (-praetoriani-), had the duty of serving in the latter (-praetorium-) in return for which it was exempt from camp and entrenching service and enjoyed higher pay and greater repute.

Political Significance of the Marian Military Reform

This complete revolution in the constitution of the Roman army seems certainly in substance to have originated from purely military motives; and on the whole to have been not so much the work of an individual, least of all of a man of calculating ambition, as the remodelling which the force of circumstances enjoined in arrangements which had become untenable. It is probable that the introduction of the system of inland enlistment by Marius saved the state in a military point of view from destruction, just as several centuries afterwards Arbogast and Stilicho prolonged its existence for a time by the introduction of foreign enlistment. Nevertheless, it involved a complete—although not yet developed—political revolution. The republican constitution was essentially based on the view that the citizen was at the same time a soldier, and that the soldier was above all a citizen; there was an end of it, so soon as a soldier-class was formed. To this issue the new system of drill, with its routine borrowed from the professional gladiator, could not but lead; the military service became gradually a profession. Far more rapid was the effect of the admission—though but limited—of the proletariat to participate in military service; especially in connection with the primitive maxims, which conceded to the general an arbitrary right of rewarding his soldiers compatible only with very solid republican institutions, and gave to the capable and successful soldier a sort

of title to demand from the general a share of the moveable spoil and from the state a portion of the soil that had been won. While the burgess or farmer called out under the levy saw in military service nothing but a burden to be undertaken for the public good, and in the gains of war nothing but a slight compensation for the far more considerable loss brought upon him by serving, it was otherwise with the enlisted proletarian. Not only was he for the moment solely dependent upon his pay, but, as there was no Hotel des Invalides nor even a poorhouse to receive him after his discharge, for the future also he could not but wish to abide by his standard, and not to leave it otherwise than with the establishment of his civic status. His only home was the camp, his only science war, his only hope the general—what this implied, is clear. When Marius after the engagement on the Raudine plain unconstitutionally gave Roman citizenship on the very field of battle to two cohorts of Italian allies en masse for their brave conduct, he justified himself afterwards by saying that amidst the noise of battle he had not been able to distinguish the voice of the laws. If once in more important questions the interest of the army and that of the general should concur to produce unconstitutional demands, who could be security that then other laws also would not cease to be heard amid the clashing of swords? They had now the standing army, the soldier-class, the bodyguard; as in the civil constitution, so also in the military, all the pillars of the future monarchy were already in existence: the monarch alone was wanting. When the twelve eagles circled round the Palatine hill, they ushered in the reign of the Kings; the new eagle which Gaius Marius bestowed on the legions proclaimed the near advent of the Emperors.

Political Projects of Marius

There is hardly any doubt that Marius entered into the brilliant prospects which his military and political position opened up to him. It was a sad and troubled time. Men had peace, but they were not glad of having it; the state

of things was not now such as it had formerly been after the first mighty onset of the men of the north on Rome, when, so soon as the crisis was over, all energies were roused anew in the fresh consciousness of recovered health, and had by their vigorous development rapidly and amply made up for what was lost. Every one felt that, though able generals might still once and again avert immediate destruction, the commonwealth was only the more surely on the way to ruin under the government of the restored oligarchy; but every one felt also that the time was past when in such cases the burgess-body came to its own help, and that there was no amendment so long as the place of Gaius Gracchus remained empty. How deeply the multitude felt the blank that was left after the disappearance of those two illustrious youths who had opened the gates to revolution, and how childish in fact it grasped at any shadow of a substitute, was shown by the case of the pretended son of Tiberius Gracchus, who, although the very sister of the two Gracchi charged him with fraud in the open Forum, was yet chosen by the people in 655 as tribune solely on account of his usurped name. In the same spirit the multitude exulted in the presence of Gaius Marius; how should it not? He, if any one, seemed the right man—he was at any rate the first general and the most popular name of his time, confessedly brave and upright, and recommended as regenerator of the state by his very position aloof from the proceedings of party—how should not the people, how should not he himself, have held that he was so! Public opinion as decidedly as possible favoured the opposition. It was a significant indication of this, that the proposal to have the vacant stalls in the chief priestly colleges filled up by the burgesses instead of the colleges themselves—which the government had frustrated in the comitia in 609 by the suggestion of religious scruples—was carried in 650 by Gnaeus Domitius without the senate having been able even to venture a serious resistance. On the whole it seemed as if nothing was wanted but a chief,

who should give to the opposition a firm rallying point and a practical aim; and this was now found in Marius.

For the execution of his task two methods of operation offered themselves; Marius might attempt to overthrow the oligarchy either as - emperor- at the head of the army, or in the mode prescribed by the constitution for constitutional changes: his own past career pointed to the former course, the precedent of Gracchus to the latter. It is easy to understand why he did not adopt the former plan, perhaps did not even think of the possibility of adopting it. The senate was or seemed so powerless and helpless, so hated and despised, that Marius conceived himself scarcely to need any other support in opposing it than his immense popularity, but hoped in case of necessity to find such a support, notwithstanding the dissolution of the army, in the soldiers discharged and waiting for their rewards. It is probable that Marius, looking to Gracchus' easy and apparently almost complete victory and to his own resources far surpassing those of Gracchus, deemed the overthrow of a constitution four hundred years old, and intimately bound up with the manifold habits and interests of the body-politic arranged in a complicated hierarchy, a far easier task than it was. But any one, who looked more deeply into the difficulties of the enterprise than Marius probably did, might reflect that the army, although in the course of transition from a militia to a body of mercenaries, was still during this state of transition by no means adapted for the blind instrument of a coup d'etat, and that an attempt to set aside the resisting elements by military means would have probably augmented the power of resistance in his antagonists. To mix up the organized armed force in the struggle could not but appear at the first glance superfluous and at the second hazardous; they were just at the beginning of the crisis, and the antagonistic elements were still far from having reached their last, shortest, and simplest expression.

The Popular Party

Marius therefore discharged the army after his triumph in accordance with the existing regulation, and entered on the course traced out by Gaius Gracchus for procuring to himself supremacy in the state by undertaking its constitutional magistracies. In this enterprise he found himself dependent for support on what was called the popular party, and sought his allies in its leaders for the time being all the more, that the victorious general by no means possessed the gifts and experiences requisite for the command of the streets. Thus the democratic party after long insignificance suddenly regained political importance. It had, in the long interval from Gaius Gracchus to Marius, materially deteriorated. Perhaps the dissatisfaction with the senatorial government was not now less than it was then; but several of the hopes, which had brought to the Gracchi their most faithful adherents, had in the meanwhile been recognized as illusory, and there had sprung up in many minds a misgiving that this Gracchan agitation tended towards an issue whither a very large portion of the discontented were by no means willing to follow it. In fact, amidst the chase and turmoil of twenty years there had been rubbed off and worn away very much of the fresh enthusiasm, the steadfast faith, the moral purity of effort, which mark the early stages of revolutions. But, if the democratic party was no longer what it had been under Gaius Gracchus, the leaders of the intervening period were now as far beneath their party as Gaius Gracchus had been exalted above it. This was implied in the nature of the case. Until there should emerge a man having the boldness like Gaius Gracchus to grasp at the supremacy of the state, the leaders could only be stopgaps: either political novices, who gave furious vent to their youthful love of opposition and then, when duly accredited as fiery declaimers and favourite speakers, effected with more or less dexterity their retreat to the camp of the government party; or people who had nothing to lose in respect of property and influence, and usually not even anything to gain in respect of honour,

and who made it their business to obstruct and annoy the government from personal exasperation or even from the mere pleasure of creating a noise. To the former sort belonged, for instance, Gaius Memmius(5) and the well-known orator Lucius Crassus, who turned the oratorical laurels which they had won in the ranks of the opposition to account in the sequel as zealous partisans of the government.

Glaucia
Saturninus

But the most notable leaders of the popular party about this time were men of the second sort. Such were Gaius Servilius Glaucia, called by Cicero the Roman Hyperbolus, a vulgar fellow of the lowest origin and of the most shameless street-eloquence, but effective and even dreaded by reason of his pungent wit; and his better and abler associate, Lucius Appuleius Saturninus, who even according to the accounts of his enemies was a fiery and impressive speaker, and was at least not guided by motives of vulgar selfishness. When he was quaestor, the charge of the importation of corn, which had fallen to him in the usual way, had been withdrawn from him by decree of the senate, not so much perhaps on account of maladministration, as in order to confer this—just at that time popular—office on one of the heads of the government party, Marcus Scaurus, rather than upon an unknown young man belonging to none of the ruling families. This mortification had driven the aspiring and sensitive man into the ranks of the opposition; and as tribune of the people in 651 he repaid what he had received with interest. One scandalous affair had at that time followed hard upon another. He had spoken in the open market of the briberies practised in Rome by the envoys of king Mithradates—these revelations, compromising in the highest degree the senate, had wellnigh cost the bold tribune his life. He had excited a tumult against the conqueror of Numidia, Quintus Metellus, when he was a candidate for the censorship in 652, and

kept him besieged in the Capitol till the equites liberated him not without bloodshed; the retaliatory measure of the censor Metellus—the expulsion with infamy of Saturninus and of Glaucia from the senate on occasion of the revision of the senatorial roll—had only miscarried through the remissness of the colleague assigned to Metellus. Saturninus mainly had carried that exceptional commission against Caepio and his associates(6) in spite of the most vehement resistance by the government party; and in opposition to the same he had carried the keenly-contested re-election of Marius as consul for 652. Saturninus was decidedly the most energetic enemy of the senate and the most active and eloquent leader of the popular party since Gaius Gracchus; but he was also violent and unscrupulous beyond any of his predecessors, always ready to descend into the street and to refute his antagonist with blows instead of words.

Such were the two leaders of the so-called popular party, who now made common cause with the victorious general. It was natural that they should do so; their interests and aims coincided, and even in the earlier candidatures of Marius Saturninus at least had most decidedly and most effectively taken his side. It was agreed between them that for 654 Marius should become a candidate for a sixth consulship, Saturninus for a second tribunate, Glaucia for the praetorship, in order that, possessed of these offices, they might carry out the intended revolution in the state. The senate acquiesced in the nomination of the less dangerous Glaucia, but did what it could to hinder the election of Marius and Saturninus, or at least to associate with the former a determined antagonist in the person of Quintus Metellus as his colleague in the consulship. All appliances, lawful and unlawful, were put in motion by both parties; but the senate was not successful in arresting the dangerous conspiracy in the bud. Marius did not disdain in person to solicit votes and, it was said, even to purchase them; in fact, at the tribunician elections when nine men from the list of the government party were proclaimed, and the tenth place seemed already

secured for a respectable man of the same complexion Quintus Nunnus, the latter was set upon and slain by a savage band, which is said to have been mainly composed of discharged soldiers of Marius. Thus the conspirators gained their object, although by the most violent means. Marius was chosen as consul, Glaucia as praetor, Saturninus as tribune of the people for 654; the second consular place was obtained not by Quintus Metellus, but by an insignificant man, Lucius Valerius Flaccus: the confederates might proceed to put into execution the further schemes which they contemplated and to complete the work broken off in 633.

The Appuleian Laws

Let us recall the objects which Gaius Gracchus pursued, and the means by which he pursued them. His object was to break down the oligarchy within and without. He aimed, on the one hand, to restore the power of the magistrates, which had become completely dependent on the senate, to its original sovereign rights, and to re-convert the senatorial assembly from a governing into a deliberative board; and, on the other hand, to put an end to the aristocratic division of the state into the three classes of the ruling burgesses, the Italian allies, and the subjects, by the gradual equalization of those distinctions which were incompatible with a government not oligarchical. These ideas the three confederates revived in the colonial laws, which Saturninus as tribune of the people had partly introduced already (651), partly now introduced (654).⁽⁷⁾ As early as the former year the interrupted distribution of the Carthaginian territory had been resumed primarily for the benefit of the soldiers of Marius—not the burgesses only but, as it would seem, also the Italian allies—and each of these veterans had been promised an allotment of 100 -jugera-, or about five times the size of an ordinary Italian farm, in the province of Africa. Now not only was the provincial land already available claimed in its widest extent for the Romano-Italian emigration, but also all the land of the still independent

Celtic tribes beyond the Alps, by virtue of the legal fiction that through the conquest of the Cimbri all the territory occupied by these had been acquired *de jure* by the Romans. Gaius Marius was called to conduct the assignations of land and the farther measures that might appear necessary in this behalf; and the temple-treasures of Tolosa, which had been embezzled but were refunded or had still to be refunded by the guilty aristocrats, were destined for the outfit of the new receivers of land. This law therefore not only revived the plans of conquest beyond the Alps and the projects of Transalpine and transmarine colonization, which Gaius Gracchus and Flaccus had sketched, on the most extensive scale; but, by admitting the Italians along with the Romans to emigration and yet undoubtedly prescribing the erection of all the new communities as burgess-colonies, it formed a first step towards satisfying the claims—to which it was so difficult to give effect, and which yet could not be in the long run refused—of the Italians to be placed on an equality with the Romans. First of all, however, if the law passed and Marius was called to the independent carrying out of these immense schemes of conquest and assignation, he would become practically—until those plans should be realized or rather, considering their indefinite and unlimited character, for his lifetime—monarch of Rome; with which view it may be presumed that Marius intended to have his consulship annually renewed, like the tribunate of Gracchus. But, amidst the agreement of the political positions marked out for the younger Gracchus and for Marius in all other essential particulars, there was yet a very material distinction between the land-assigning tribune and the land-assigning consul in the fact, that the former was to occupy a purely civil position, the latter a military position as well; a distinction, which partly but by no means solely arose out of the personal circumstances under which the two men had risen to the head of the state. While such was the nature of the aim which Marius and his comrades had proposed to themselves, the next question related to the means by which they purposed

to break down the resistance—which might be anticipated to be obstinate—of the government party. Gaius Gracchus had fought his battles with the aid of the capitalist class and the proletariat. His successors did not neglect to make advances likewise to these. The equites were not only left in possession of the tribunals, but their power as jurymen was considerably increased, partly by a stricter ordinance regarding the standing commission—especially important to the merchants—as to extortions on the part of the public magistrates in the provinces, which Glaucia carried probably in this year, partly by the special tribunal, appointed doubtless as early as 651 on the proposal of Saturninus, respecting the embezzlements and other official malversations that had occurred during the Cimbrian movement in Gaul. For the benefit, moreover, of the proletariat of the capital the sum below cost price, which hitherto had to be paid on occasion of the distributions of grain for the -modius-, was lowered from 6 1/3 -asses- to a mere nominal charge of 5/6 of an -as-. But although they did not despise the alliance with the equites and the proletariat of the capital, the real power by which the confederates enforced their measures lay not in these, but in the discharged soldiers of the Marian army, who for that very reason had been provided for in the colonial laws themselves after so extravagant a fashion. In this also was evinced the predominating military character, which forms the chief distinction between this attempt at revolution and that which preceded it.

Violent Proceedings in the Voting

They went to work accordingly. The corn and colonial laws encountered, as was to be expected, the keenest opposition from the government. They proved in the senate by striking figures, that the former must make the public treasury bankrupt; Saturninus did not trouble himself about that. They brought tribunician intercession to bear against both laws; Saturninus ordered the voting to go on. They informed the magistrates presiding at the voting that a peal of thunder had been heard, a portent by which according

to ancient belief the gods enjoined the dismissal of the public assembly; Saturninus remarked to the messengers that the senate would do well to keep quiet, otherwise the thunder might very easily be followed by hail. Lastly the urban quaestor, Quintus Caepio, the son, it may be presumed, of the general condemned three years before,(8) and like his father a vehement antagonist of the popular party, with a band of devoted partisans dispersed the comitia by violence. But the tough soldiers of Marius, who had flocked in crowds to Rome to vote on this occasion, quickly rallied and dispersed the city bands, and on the voting ground thus reconquered the vote on the Appuleian laws was successfully brought to an end. The scandal was grievous; but when it came to the question whether the senate would comply with the clause of the law that within five days after its passing every senator should on pain of forfeiting his senatorial seat take an oath faithfully to observe it, all the senators took the oath with the single exception of Quintus Metellus, who preferred to go into exile. Marius and Saturninus were not displeased to see the best general and the ablest man among the opposing party removed from the state by voluntary banishment.

The Fall of the Revolutionary Party

Their object seemed to be attained; but even now to those who saw more clearly the enterprise could not but appear a failure. The cause of the failure lay mainly in the awkward alliance between a politically incapable general and a street-demagogue, capable but recklessly violent, and filled with passion rather than with the aims of a statesman. They had agreed excellently, so long as the question related only to plans. But when the plans came to be executed, it was very soon apparent that the celebrated general was in politics utterly incapable; that his ambition was that of the farmer who would cope with and, if possible, surpass the aristocrats in titles, and not that of the statesman who desires to govern because he feels within him the power to do so; that every enterprise, which was based on his personal

standing as a politician, must necessarily even under the most favourable circumstances be ruined by himself.

Opposition of the Whole Aristocracy

He knew neither the art of gaining his antagonists, nor that of keeping his own party in subjection. The opposition against him and his comrades was even of itself sufficiently considerable; for not only did the government party belong to it in a body, but also a great part of the burgesses, who guarded with jealous eyes their exclusive privileges against the Italians; and by the course which things took the whole class of the wealthy was also driven over to the government. Saturninus and Glaucia were from the first masters and servants of the proletariat and therefore not at all on a good footing with the moneyed aristocracy, which had no objection now and then to keep the senate in check by means of the rabble, but had no liking for street-riots and violent outrages. As early as the first tribunate of Saturninus his armed bands had their skirmishes with the equites; the vehement opposition which his election as tribune for 654 encountered shows clearly how small was the party favourable to him. It should have been the endeavour of Marius to avail himself of the dangerous help of such associates only in moderation, and to convince all and sundry that they were destined not to rule, but to serve him as the ruler. As he did precisely the contrary, and the matter came to look quite as if the object was to place the government in the hands not of an intelligent and vigorous master, but of the mere -canaille-, the men of material interests, terrified to death at the prospect of such confusion, again attached themselves closely to the senate in presence of this common danger. While Gaius Gracchus, clearly perceiving that no government could be overthrown by means of the proletariat alone, had especially sought to gain over to his side the propertied classes, those who desired to continue his work began by producing a reconciliation between the aristocracy and the bourgeoisie.

Variance between Marius and the Demagogues

But the ruin of the enterprise was brought about, still more rapidly than by this reconciliation of enemies, through the dissension which the more than ambiguous behaviour of Marius necessarily produced among its promoters. While the decisive proposals were brought forward by his associates and carried after a struggle by his soldiers, Marius maintained an attitude wholly passive, just as if the political leader was not bound quite as much as the military, when the brunt of battle came, to present himself everywhere and foremost in person. Nor was this all; he was terrified at, and fled from the presence of, the spirits which he had himself evoked. When his associates resorted to expedients which an honourable man could not approve, but without which in fact the object of their efforts could not be attained, he attempted, in the fashion usual with men whose ideas of political morality are confused, to wash his hands of participation in those crimes and at the same time to profit by their results. There is a story that the general once conducted secret negotiations in two different rooms of his house, with Saturninus and his partisans in the one, and with the deputies of the oligarchy in the other, talking with the former of striking a blow against the senate, and with the latter of interfering against the revolt, and that under a pretext which was in keeping with the anxiety of the situation he went to and fro between the two conferences—a story as certainly invented, and as certainly appropriate, as any incident in Aristophanes. The ambiguous attitude of Marius became notorious in the question of the oath. At first he seemed as though he would himself refuse the oath required by the Appuleian laws on account of the informalities that had occurred at their passing, and then swore it with the reservation, "so far as the laws were really valid"; a reservation which annulled the oath itself, and which of course all the senators likewise adopted in swearing, so that by this mode of taking the oath the validity of the laws was not secured, but on the contrary was for the first time really called in question.

The consequences of this behaviour—stupid beyond parallel—on the part of the celebrated general soon developed themselves. Saturninus and Glaucia had not undertaken the revolution and procured for Marius the supremacy of the state, in order that they might be disowned and sacrificed by him; if Glaucia, the favourite jester of the people, had hitherto lavished on Marius the gayest flowers of his jovial eloquence, the garlands which he now wove for him were by no means redolent of roses and violets. A total rupture took place, by which both parties were lost; for Marius had not a footing sufficiently firm singly to maintain the colonial law which he had himself called in question and to possess himself of the position which it assigned to him, nor were Saturninus and Glaucia in a condition to continue on their own account the work which Marius had begun.

Saturninus Isolated

Saturninus Assailed and Overpowered

But the two demagogues were so compromised that they could not recede; they had no alternative save to resign their offices in the usual way and thereby to deliver themselves with their hands bound to their exasperated opponents, or now to grasp the sceptre for themselves, although they felt that they could not bear its weight. They resolved on the latter course; Saturninus would come forward once more as a candidate for the tribunate of the people for 655, Glaucia, although praetor and not eligible for the consulship till two years had elapsed, would become a candidate for the latter. In fact the tribunician elections were decided entirely to their mind, and the attempt of Marius to prevent the spurious Tiberius Gracchus from soliciting the tribuneship served only to show the celebrated man what was now the worth of his popularity; the multitude broke the doors of the prison in which Gracchus was confined, bore him in triumph through the streets, and elected him by a great majority as their tribune. Saturninus and Glaucia sought to control the more important consular election by the

expedient for the removal of inconvenient competitors which had been tried in the previous year; the counter-candidate of the government party, Gaius Memmius—the same who eleven years before had led the opposition against them(9)—was suddenly assailed by a band of ruffians and beaten to death. But the government party had only waited for a striking event of this sort in order to employ force. The senate required the consul Gaius Marius to interfere, and the latter in reality professed his readiness now to draw for the conservative party the sword, which he had obtained from the democracy and had promised to wield on its behalf. The young men were hastily called out, equipped with arms from the public buildings, and drawn up in military array; the senate itself appeared under arms in the Forum, with its venerable chief Marcus Scaurus at its head. The opposite party were doubtless superior in a street-riot, but were not prepared for such an attack; they had now to defend themselves as they could. They broke open the doors of the prisons, and called the slaves to liberty and to arms; they proclaimed— so it was said at any rate—Saturninus as king or general; on the day when the new tribunes of the people had to enter on their office, the 10th of December 654, a battle occurred in the great market-place—the first which, since Rome existed, had ever been fought within the walls of the capital. The issue was not for a moment doubtful. The Populares were beaten and driven up to the Capitol, where the supply of water was cut off from them and they were thus compelled to surrender. Marius, who held the chief command, would gladly have saved the lives of his former allies who were now his prisoners; Saturninus proclaimed to the multitude that all which he had proposed had been done in concert with the consul: even a worse man than Marius was could not but shudder at the inglorious part which he played on this day. But he had long ceased to be master of affairs. Without orders the youth of rank climbed the roof of the senate-house in the Forum where the prisoners were temporarily confined, stripped off the tiles, and with these stoned their victims. Thus Saturninus perished with most of

the more notable prisoners. Glaucia was found in a lurking-place and likewise put to death. Without sentence or trial there died on this day four magistrates of the Roman people—a praetor, a quaestor, and two tribunes of the people—and a number of other well-known men, some of whom belonged to good families. In spite of the grave faults by which the chiefs had invited on themselves this bloody retribution, we may nevertheless lament them: they fell like advanced posts, which are left unsupported by the main army and are forced to perish without aim in a conflict of despair.

Ascendency of the Government Marius Politically Annihilated

Never had the government party achieved a more complete victory, never had the opposition suffered a more severe defeat, than on this 10th of December. It was the least part of the success that they had got rid of some troublesome brawlers, whose places might be supplied any day by associates of a like stamp; it was of greater moment that the only man, who was then in a position to become dangerous to the government, had publicly and completely effected his own annihilation; and most important of all that the two elements of the opposition, the capitalist order and the proletariat, emerged from the strife wholly at variance. It is true that this was not the work of the government; the fabric which had been put together by the adroit hands of Gaius Gracchus had been broken up, partly by the force of circumstances, partly and especially by the coarse and boorish management of his incapable successor; but in the result it mattered not whether calculation or good fortune helped the government to its victory. A more pitiful position can hardly be conceived than that occupied by the hero of Aquae and Vercellae after such a disaster—all the more pitiful, because people could not but compare it with the lustre which only a few months before surrounded the same man. No one either on the aristocratic or the democratic side any longer thought of the victorious general on occasion of

filling up the magistracies; the hero of six consulships could not even venture to become a candidate in 656 for the censorship. He went away to the east, ostensibly for the purpose of fulfilling a vow there, but in reality that he might not be a witness of the triumphant return of his mortal foe Quintus Metellus; he was allowed to go. He returned and opened his house; his halls stood empty. He always hoped that conflicts and battles would occur and that the people would once more need his experienced arm; he thought to provide himself with an opportunity for war in the east, where the Romans might certainly have found sufficient occasion for energetic interference. But this also miscarried, like every other of his wishes; profound peace continued to prevail. Yet the longing after honours once aroused within him, the oftener it was disappointed, ate the more deeply into his heart. Superstitious as he was, he cherished in his bosom an old oracular saying which had promised him seven consulships, and in gloomy meditation brooded over the means by which this utterance was to obtain its fulfilment and he his revenge, while he appeared to all, himself alone excepted, insignificant and innocuous.

The Equestrian Party

Still more important in its consequences than the setting aside of the dangerous man was the deep exasperation against the *Populares*, as they were called, which the insurrection of Saturninus left behind in the party of material interests. With the most remorseless severity the equestrian tribunals condemned every one who professed oppositional views; Sextus Titius, for instance, was condemned not so much on account of his agrarian law as because he had in his house a statue of Saturninus; Gaius Appuleius Decianus was condemned, because he had as tribune of the people characterized the proceedings against Saturninus as illegal. Even for earlier injuries inflicted by the *Populares* on the aristocracy satisfaction was now demanded, not without prospect of success, before the equestrian tribunals.

Because Gaius Norbanus had eight years previously in concert with Saturninus driven the consular Quintus Caepio into exile⁽¹⁰⁾ he was now (659) on the ground of his own law accused of high treason, and the jurymen hesitated long—not whether the accused was guilty or innocent, but whether his ally Saturninus or his enemy Caepio was to be regarded as the most deserving of their hate—till at last they decided for acquittal. Even if people were not more favourably disposed towards the government in itself than before, yet, after having found themselves, although but for a moment, on the verge of a real mob-rule, all men who had anything to lose viewed the existing government in a different light; it was notoriously wretched and pernicious for the state, but the anxious dread of the still more wretched and still more pernicious government of the proletariat had conferred on it a relative value. The current now set so much in that direction that the multitude tore in pieces a tribune of the people who had ventured to postpone the return of Quintus Metellus, and the democrats began to seek their safety in league with murderers and poisoners—ridding themselves, for example, of the hated Metellus by poison—or even in league with the public enemy, several of them already taking refuge at the court of king Mithradates who was secretly preparing for war against Rome. External relations also assumed an aspect favourable for the government. The Roman arms were employed but little in the period from the Cimbrian to the Social war, but everywhere with honour. The only serious conflict was in Spain, where, during the recent years so trying for Rome (649 seq.), the Lusitanians and Celtiberians had risen with unwonted vehemence against the Romans. In the years 656-661 the consul Titus Didius in the northern and the consul Publius Crassus in the southern province not only re-established with valour and good fortune the ascendancy of the Roman arms, but also razed the refractory towns and, where it seemed necessary, transplanted the population of the strong mountain-towns to the plains. We shall show in the sequel that about the

same time the Roman government again directed its attention to the east which had been for a generation neglected, and displayed greater energy than had for long been heard of in Cyrene, Syria, and Asia Minor. Never since the commencement of the revolution had the government of the restoration been so firmly established, or so popular. Consular laws were substituted for tribunician; restrictions on liberty replaced measures of progress. The cancelling of the laws of Saturninus was a matter of course; the transmarine colonies of Marius disappeared down to a single petty settlement on the barbarous island of Corsica. When the tribune of the people Sextus Titius—a caricatured Alcibiades, who was greater in dancing and ball-playing than in politics, and whose most prominent talent consisted in breaking the images of the gods in the streets at night—re-introduced and carried the Appuleian agrarian law in 655, the senate was able to annul the new law on a religious pretext without any one even attempting to defend it; the author of it was punished, as we have already mentioned, by the equites in their tribunals. Next year (656) a law brought in by the two consuls made the usual four-and-twenty days' interval between the introduction and the passing of a project of law obligatory, and forbade the combination of several enactments different in their nature in one proposal; by which means the unreasonable extension of the initiative in legislation was at least somewhat restricted, and the government was prevented from being openly taken by surprise with new laws. It became daily more evident that the Gracchan constitution, which had survived the fall of its author, was now, since the multitude and the moneyed aristocracy no longer went together, tottering to its foundations. As that constitution had been based on division in the ranks of the aristocracy, so it seemed that dissensions in the ranks of the opposition could not but bring about its fall. Now, if ever, the time had come for completing the unfinished work of restoration of 633, for making the Gracchan constitution share the fate of the tyrant, and for replacing the governing oligarchy in the sole possession of political power.

Collision between the Senate and Equites in the Administration of the Provinces

Everything depended on recovering the nomination of the jurymen. The administration of the provinces—the chief foundation of the senatorial government—had become dependent on the jury courts, more particularly on the commission regarding exactions, to such a degree that the governor of a province seemed to administer it no longer for the senate, but for the order of capitalists and merchants. Ready as the moneyed aristocracy always was to meet the views of the government when measures against the democrats were in question, it sternly resented every attempt to restrict it in this its well-acquired right of unlimited sway in the provinces. Several such attempts were now made; the governing aristocracy began again to come to itself, and its very best men reckoned themselves bound, at least for their own part, to oppose the dreadful maladministration in the provinces. The most resolute in this respect was Quintus Mucius Scaevola, like his father Publius -pontifex maximus- and in 659 consul, the foremost jurist and one of the most excellent men of his time. As praetorian governor (about 656) of Asia, the richest and worst-abused of all the provinces, he—in concert with his older friend, distinguished as an officer, jurist, and historian, the consular Publius Rutilius Rufus— set a severe and deterring example. Without making any distinction between Italians and provincials, noble and ignoble, he took up every complaint, and not only compelled the Roman merchants and state-lessees to give full pecuniary compensation for proven injuries, but, when some of their most important and most unscrupulous agents were found guilty of crimes deserving death, deaf to all offers of bribery he ordered them to be duly crucified. The senate approved his conduct, and even made it an instruction afterwards to the governors of Asia that they should take as their model the principles of Scaevola's administration; but the equites, although they did not venture to meddle with that highly aristocratic and influential statesman himself, brought to

trial his associates and ultimately (about 662) even the most considerable of them, his legate Publius Rufus, who was defended only by his merits and recognized integrity, not by family connection. The charge that such a man had allowed himself to perpetrate exactions in Asia, almost broke down under its own absurdity and under the infamy of the accuser, one Apicius; yet the welcome opportunity of humbling the consular was not allowed to pass, and, when the latter, disdaining false rhetoric, mourning robes, and tears, defended himself briefly, simply, and to the point, and proudly refused the homage which the sovereign capitalists desired, he was actually condemned, and his moderate property was confiscated to satisfy fictitious claims for compensation. The condemned resorted to the province which he was alleged to have plundered, and there, welcomed by all the communities with honorary deputations, and praised and beloved during his lifetime, he spent in literary leisure his remaining days. And this disgraceful condemnation, while perhaps the worst, was by no means the only case of the sort. The senatorial party was exasperated, not so much perhaps by such abuse of justice in the case of men of stainless walk but of new nobility, as by the fact that the purest nobility no longer sufficed to cover possible stains on its honour. Scarcely was Rufus out of the country, when the most respected of all aristocrats, for twenty years the chief of the senate, Marcus Scaurus at seventy years of age was brought to trial for exactions; a sacrilege according to aristocratic notions, even if he were guilty. The office of accuser began to be exercised professionally by worthless fellows, and neither irreproachable character, nor rank, nor age longer furnished protection from the most wicked and most dangerous attacks. The commission regarding exactions was converted from a shield of the provincials into their worst scourge; the most notorious robber escaped with impunity, if he only indulged his fellow-robbers and did not refuse to allow part of the sums exacted to reach the jury; but any attempt to respond to the equitable demands of the provincials for right and justice sufficed for

condemnation. It seemed as if the intention was to bring the Roman government into the same dependence on the controlling court, as that in which the college of judges at Carthage had formerly held the council there. The prescient expression of Gaius Gracchus was finding fearful fulfilment, that with the dagger of his law as to the jurymen the world of quality would lacerate itself.

Livius Drusus

An attack on the equestrian courts was inevitable. Every one in the government party who was still alive to the fact that governing implies not merely rights but also duties, every one in fact who still felt any nobler or prouder ambition within him, could not but rise in revolt against this oppressive and disgraceful political control, which precluded any possibility of upright administration. The scandalous condemnation of Rutilius Rufus seemed a summons to begin the attack at once, and Marcus Livius Drusus, who was tribune of the people in 663, regarded that summons as specially addressed to himself. Son of the man of the same name, who thirty years before had primarily caused the overthrow of Gaius Gracchus⁽¹¹⁾ and had afterwards made himself a name as an officer by the subjugation of the Scordisci,⁽¹²⁾ Drusus was, like his father, of strictly conservative views, and had already given practical proof that such were his sentiments in the insurrection of Saturninus. He belonged to the circle of the highest nobility, and was the possessor of a colossal fortune; in disposition too he was a genuine aristocrat—a man emphatically proud, who scorned to bedeck himself with the insignia of his offices, but declared on his death-bed that there would not soon arise a citizen like to him; a man with whom the beautiful saying, that nobility implies obligation, was and continued to be the rule of his life. With all the vehement earnestness of his temperament he had turned away from the frivolity and venality that marked the nobles of the common stamp; trustworthy and strict in morals, he was respected

rather than properly beloved on the part of the common people, to whom his door and his purse were always open, and notwithstanding his youth, he was through the personal dignity of his character a man of weight in the senate as in the Forum. Nor did he stand alone. Marcus Scaurus had the courage on occasion of his defence in the trial for extortion publicly to summon Drusus to undertake a reform of the judicial arrangements; he and the famous orator, Lucius Crassus, were in the senate the most zealous champions of his proposals, and were perhaps associated with him in originating them. But the mass of the governing aristocracy was by no means of the same mind with Drusus, Scaurus, and Crassus. There were not wanting in the senate decided adherents of the capitalist party, among whom in particular a conspicuous place belonged to the consul of the day, Lucius Marcius Philippus, who maintained the cause of the equestrian order as he had formerly maintained that of the democracy⁽¹³⁾ with zeal and prudence, and to the daring and reckless Quintus Caepio, who was induced to this opposition primarily by his personal hostility to Drusus and Scaurus. More dangerous, however, than these decided opponents was the cowardly and corrupt mass of the aristocracy, who no doubt would have preferred to plunder the provinces alone, but in the end had not much objection to share the spoil with the equites, and, instead of taking in hand the grave and perilous struggle against the haughty capitalists, reckoned it far more equitable and easy to purchase impunity at their hands by fair words and by an occasional prostration or even by a round sum. The result alone could show how far success would attend the attempt to carry along with the movement this body, without which it was impossible to attain the desired end.

Attempt at Reform on the Part of the Moderate Party

Drusus drew up a proposal to withdraw the functions of jurymen from the burgesses of equestrian rating and to restore them to the senate, which at

the same time was to be put in a position to meet its increased obligations by the admission of 300 new members; a special criminal commission was to be appointed for pronouncing judgment in the case of those jurymen who had been or should be guilty of accepting bribes. By this means the immediate object was gained; the capitalists were deprived of their political exclusive rights, and were rendered responsible for the perpetration of injustice. But the proposals and designs of Drusus were by no means limited to this; his projects were not measures adapted merely for the occasion, but a comprehensive and thoroughly-considered plan of reform. He proposed, moreover, to increase the largesses of grain and to cover the increased expense by the permanent issue of a proportional number of copper plated, alongside of the silver, -denarii-; and then to set apart all the still undistributed arable land of Italy—thus including in particular the Campanian domains—and the best part of Sicily for the settlement of burgess-colonists. Lastly, he entered into the most distinct obligations towards the Italian allies to procure for them the Roman franchise. Thus the very same supports of power and the very same ideas of reform, on which the constitution of Gaius Gracchus had rested, presented themselves now on the side of the aristocracy—a singular, and yet easily intelligible coincidence. It was only to be expected that, as the -tyrannis- had rested for its support against the oligarchy, so the latter should rest for its support against the moneyed aristocracy, on the paid and in some degree organized proletariat; while the government had formerly accepted the feeding of the proletariat at the expense of the state as an inevitable evil, Drusus now thought of employing it, at least for the moment, against the moneyed aristocracy. It was only to be expected that the better part of the aristocracy, just as it formerly consented to the agrarian law of Tiberius Gracchus, would now readily consent to all those measures of reform, which, without touching the question of a supreme head, only aimed at the cure of the old evils of the state. In the question of emigration and colonization, it is true,

they could not go so far as the democracy, since the power of the oligarchy mainly rested on their free control over the provinces and was endangered by any permanent military command; the ideas of equalizing Italy and the provinces and of making conquests beyond the Alps were not compatible with conservative principles. But the senate might very well sacrifice the Latin and even the Campanian domains as well as Sicily in order to raise the Italian farmer class, and yet retain the government as before; to which fell to be added the consideration, that they could not more effectually obviate future agitations than by providing that all the land at all disposable should be brought to distribution by the aristocracy itself, and that according to Drusus' own expression, nothing should be left for future demagogues to distribute but "the street-dirt and the daylight." In like manner it was for the government—whether that might be a monarch, or a close number of ruling families—very much a matter of indifference whether the half or the whole of Italy possessed the Roman franchise; and hence the reforming men on both sides probably could not but coincide in the idea of averting the danger of a recurrence of the insurrection of Fregellae on a larger scale by a judicious and reasonable extension of the franchise, and of seeking allies, moreover, for their plans in the numerous and influential Italians. Sharply as in the question of the headship of the state the views and designs of the two great political parties differed, the best men of both camps had many points of contact in their means of operation and in their reforming tendencies; and, as Scipio Aemilianus may be named alike among the adversaries of Tiberius Gracchus and among the promoters of his reforming efforts, so Drusus was the successor and disciple no less than the antagonist of Gaius. The two high-born and high-minded youthful reformers had a greater resemblance than was apparent at the first glance; and, personally also, the two were not unworthy to meet, as respects the substance of their patriotic endeavours, in purer and higher views above the obscuring mists of prejudiced partisanship.

Discussions on the Livian Laws

The question at stake was the passing of the laws drawn up by Drusus. Of these the proposer, just like Gaius Gracchus, kept in reserve for the moment the hazardous project of conferring the Roman franchise on the Italian allies, and brought forward at first only the laws as to the jurymen, the assignation of land, and the distribution of grain. The capitalist party offered the most vehement resistance, and, in consequence of the irresolution of the greater part of the aristocracy and the vacillation of the comitia, would beyond question have carried the rejection of the law as to jurymen, if it had been put to the vote by itself. Drusus accordingly embraced all his proposals in one law; and, as thus all the burgesses interested in the distributions of grain and land were compelled to vote also for the law as to jurymen, he succeeded in carrying the law with their help and that of the Italians, who stood firmly by Drusus with the exception of the large landowners, particularly those in Umbria and Etruria, whose domanial possessions were threatened. It was not carried, however, until Drusus had caused the consul Philippus, who would not desist from opposition, to be arrested and carried off to prison by a bailiff. The people celebrated the tribune as their benefactor, and received him in the theatre by rising up and applauding; but the voting had not so much decided the struggle as transferred it to another ground, for the opposite party justly characterized the proposal of Drusus as contrary to the law of 656(14) and therefore as null.

CHAPTER VII

The Revolt of the Italian Subjects, and the Sulpician Revolution

Romans and Italians

From the time when the defeat of Pyrrhus had put an end to the last war which the Italians had waged for their independence—or, in other words, for nearly two hundred years—the Roman primacy had now subsisted in Italy, without having been once shaken in its foundations even under circumstances of the utmost peril. Vainly had the heroic family of the Barcides, vainly had the successors of Alexander the Great and of the Achaemenids, endeavoured to rouse the Italian nation to contend with the too powerful capital; it had obsequiously appeared in the fields of battle on the Guadalquivir and on the Mejerdah, at the pass of Tempe and at Mount Sipylus, and with the best blood of its youth had helped its masters to achieve the subjugation of three continents. Its own position meanwhile had changed, but had deteriorated rather than improved. In a material point of view, doubtless, it had in general not much ground to complain. Though the small and intermediate landholders throughout Italy suffered in consequence of the injudicious Roman legislation as to corn, the larger landlords and still more the mercantile and capitalist class were flourishing, for the Italians enjoyed, as respected the turning of the provinces to financial account, substantially the same protection and the same privileges as Roman burgesses, and thus shared to a great extent in the material

advantages of the political ascendancy of the Romans. In general, the economic and social condition of Italy was not primarily dependent on political distinctions; there were allied districts, such as Umbria and Etruria, in which the class of free farmers had mostly disappeared, while in others, such as the valleys of the Abruzzi, the same class had still maintained a tolerable footing or remained almost unaffected—just as a similar diversity could be pointed out in the different Roman burgess-districts. On the other hand the political inferiority of Italy was daily displayed more harshly and more abruptly. No formal open breach of right indeed occurred, at least in the principal questions. The communal freedom, which under the name of sovereignty was accorded by treaty to the Italian communities, was on the whole respected by the Roman government; the attack, which the Roman reform party at the commencement of the agrarian agitation made on the Roman domains guaranteed to the communities of better position, had not only been earnestly opposed by the strictly conservative as well as by the middle party in Rome, but had been very soon abandoned by the Roman opposition itself.

Disabilities and Wrongs of the Subjects

But the rights, which belonged and could not but belong to Rome as the leading community—the supreme conduct of war-affairs, and the superintendence of the whole administration—were exercised in a way which was almost as bad as if the allies had been directly declared to be subjects devoid of rights. The numerous modifications of the fearfully severe martial law of Rome, which were introduced there in the course of the seventh century, seem to have remained on the whole limited to the Roman burgess-soldiers: this is certain as to the most important, the abolition of executions by martial law,⁽¹⁾ and we may easily conceive the impression which was produced when, as happened in the Jugurthine war, Latin officers of repute were beheaded by sentence of the Roman council of

war, while the lowest burgess-soldier had in the like case the right of presenting an appeal to the civil tribunals of Rome. The proportions in which the burgesses and Italian allies were to be drawn for military service had, as was fair, remained undefined by treaty; but, while in earlier times the two had furnished on an average equal numbers of soldiers,(2) now, although the proportions of the population had changed probably in favour of the burgesses rather than to their disadvantage, the demands on the allies were by degrees increased disproportionately,(3) so that on the one hand they had the chief burden of the heavier and more costly service imposed on them, and on the other hand there were two allies now regularly levied for one burgess. In like manner with this military supremacy the civil superintendence, which (including the supreme administrative jurisdiction which could hardly be separated from it) the Roman government had always and rightly reserved to itself over the dependent Italian communities, was extended in such a way that the Italians were hardly less than the provincials abandoned without protection to the caprice of any one of the numberless Roman magistrates. In Teanum Sidicinum, one of the most considerable of the allied towns, a consul had ordered the chief magistrate of the town to be scourged with rods at the stake in the marketplace, because, on the consul's wife expressing a desire to bathe in the men's bath, the municipal officers had not driven forth the bathers quickly enough, and the bath appeared to her not to be clean. Similar scenes had taken place in Ferentinum, likewise a town holding the best position in law, and even in the old and important Latin colony of Cales. In the Latin colony of Venusia a free peasant had been seized by a young Roman diplomatist not holding office but passing through the town, on account of a jest which he had allowed himself to make on the Roman's litter, had been thrown down, and whipped to death with the straps of the litter. These occurrences are incidentally mentioned about the time of the Fregellan insurrection; it admits of no doubt that similar outrages frequently occurred,

and of as little that no real satisfaction for such misdeeds could anywhere be obtained, whereas the right of appeal—not lightly violated with impunity—protected in some measure at least the life and limbs of the Roman burgess. In consequence of this treatment of the Italians on the part of the Roman government, the variance, which the wisdom of their ancestors had carefully fostered between the Latin and the other Italian communities, could not fail, if not to disappear, at any rate to undergo abatement.(4) The curb-fortresses of Rome and the districts kept to their allegiance by these fortresses lived now under the like oppression; the Latin could remind the Picentine that they were both in like manner "subject to the fasces"; the overseers and the slaves of former days were now united by a common hatred towards the common despot.

While the present state of the Italian allies was thus transformed from a tolerable relation of dependence into the most oppressive bondage, they were at the same time deprived of every prospect of obtaining better rights. With the subjugation of Italy the Roman burgess-body had closed its ranks; the bestowal of the franchise on whole communities was totally given up, its bestowal on individuals was greatly restricted.(5) They now advanced a step farther: on occasion of the agitation which contemplated the extension of the Roman franchise to all Italy in the years 628, 632, the right of migration to Rome was itself attacked, and all the non-burgesses resident in Rome were directly ejected by decree of the people and of the senate from the capital(6)—a measure as odious on account of its illiberality, as dangerous from the various private interests which it injuriously affected. In short, while the Italian allies had formerly stood to the Romans partly in the relation of brothers under tutelage, protected rather than ruled and not destined to perpetual minority, partly in that of slaves tolerably treated and not utterly deprived of the hope of manumission, they were now all of them subject nearly in equal degree, and with equal hopelessness, to the rods and axes of their Roman masters, and might at the utmost presume like

privileged slaves to transmit the kicks received from their masters onward to the poor provincials.

The Rupture

Fregellan War

Difficulty of a General Insurrection

It belongs to the nature of such differences that, restrained by the sense of national unity and by the remembrance of dangers surmounted in common, they make their appearance at first gently and as it were modestly, till the breach gradually widens and the relation between the rulers, whose might is their sole right, and the ruled, whose obedience reaches no farther than their fears, manifests at length undisguisedly the character of force. Down to the revolt and razing of Fregellae in 629, which as it were officially attested the altered character of the Roman rule, the ferment among the Italians did not properly wear a revolutionary character. The longing after equal rights had gradually risen from a silent wish to a loud request, only to be the more decidedly rejected, the more distinctly it was put forward. It was very soon apparent that a voluntary concession was not to be hoped for, and the wish to extort what was refused would not be wanting; but the position of Rome at that time hardly permitted them to entertain any idea of realizing that wish. Although the numerical proportions of the burgesses and non-burgesses in Italy cannot be properly ascertained, it may be regarded as certain that the number of the burgesses was not very much less than that of the Italian allies; for nearly 400,000 burgesses capable of bearing arms there were at least 500,000, probably 600,000 allies.⁽⁷⁾ So long as with such proportions the burgesses were united and there was no outward enemy worthy of mention, the Italian allies, split up into an endless number of isolated urban and cantonal communities, and connected with Rome by a thousand relations public and private, could never attain to common action; and with moderate prudence the government could not fail to control their

troublesome and indignant subjects partly by the compact mass of the burgesses, partly by the very considerable resources which the provinces afforded, partly by setting one community against another.

The Italian and the Roman Parties

Accordingly the Italians kept themselves quiet, till the revolution began to shake Rome; but, as soon as this had broken out, they too mingled in the movements and agitations of the Roman parties, with a view to obtain equality of rights by means of the one or the other. They had made common cause first with the popular and then with the senatorial party, and gained equally little by either. They had been driven to the conviction that, while the best men of both parties acknowledged the justice and equity of their claims, these best men, aristocrats as well as Populares, had equally little power to procure a hearing for those claims with the mass of their party. They had also observed that the most gifted, most energetic, and most celebrated statesmen of Rome had found themselves, at the very moment when they came forward as advocates of the Italians, deserted by their own adherents and had been accordingly overthrown. In all the vicissitudes of the thirty years of revolution and restoration governments enough had been installed and deposed, but, however the programme might vary, a short-sighted and narrow-minded spirit sat always at the helm.

The Italians and the Oligarchy

The Licinio-Mucian Law

Above all, the recent occurrences had clearly shown how vain was the expectation of the Italians that their claims would be attended to by Rome. So long as the demands of the Italians were mixed up with those of the revolutionary party and had in the hands of the latter been thwarted by the folly of the masses, they might still resign themselves to the belief that the oligarchy had been hostile merely to the proposers, not to the proposal

itself, and that there was still a possibility that the mere intelligent senate would accept a measure which was compatible with the nature of the oligarchy and salutary for the state. But the recent years, in which the senate once more ruled almost absolutely, had shed only too disagreeable a light on the designs of the Roman oligarchy also. Instead of the expected modifications, there was issued in 659 a consular law which most strictly prohibited the non-burgesses from laying claim to the franchise and threatened transgressors with trial and punishment—a law which threw back a large number of most respectable persons who were deeply interested in the question of equalization from the ranks of Romans into those of Italians, and which in point of indisputable legality and of political folly stands completely on a parallel with that famous act which laid the foundation for the separation of North America from the mother-country; in fact it became, just like that act, the proximate cause of the civil war. It was only so much the worse, that the authors of this law by no means belonged to the obstinate and incorrigible Optimates; they were no other than the sagacious and universally honoured Quintus Scaevola, destined, like George Grenville, by nature to be a jurist and by fate to be a statesman—who by his equally honourable and pernicious rectitude inflamed more than any one else first the war between senate and equites, and then that between Romans and Italians—and the orator Lucius Crassus, the friend and ally of Drusus and altogether one of the most moderate and judicious of the Optimates.

The Italians and Drusus

Amidst the vehement ferment, which this law and the numerous processes arising out of it called forth throughout Italy, the star of hope once more appeared to arise for the Italians in the person of Marcus Drusus. That which had been deemed almost impossible—that a conservative should take up the reforming ideas of the Gracchi, and should become the

champion of equal rights for the Italians—had nevertheless occurred; a man of the high aristocracy had resolved to emancipate the Italians from the Sicilian Straits to the Alps and the government at one and the same time, and to apply all his earnest zeal, all his trusty devotedness to these generous plans of reform. Whether he actually, as was reported, placed himself at the head of a secret league, whose threads ramified through Italy and whose members bound themselves by an oath(8) to stand by each other for Drusus and for the common cause, cannot be ascertained; but, even if he did not lend himself to acts so dangerous and in fact unwarrantable for a Roman magistrate, yet it is certain that he did not keep to mere general promises, and that dangerous connections were formed in his name, although perhaps without his consent and against his will. With joy the Italians heard that Drusus had carried his first proposals with the consent of the great majority of the senate; with still greater joy all the communities of Italy celebrated not long afterwards the recovery of the tribune, who had been suddenly attacked by severe illness. But as the further designs of Drusus became unveiled, a change took place; he could not venture to bring in his chief law; he had to postpone, he had to delay, he had soon to retire. It was reported that the majority of the senate were vacillating and threatened to fall away from their leader; in rapid succession the tidings ran through the communities of Italy, that the law which had passed was annulled, that the capitalists ruled more absolutely than ever, that the tribune had been struck by the hand of an assassin, that he was dead (autumn of 663).

Preparations for General Revolt against Rome

The last hope that the Italians might obtain admission to Roman citizenship by agreement was buried with Marcus Drusus. A measure, which that conservative and energetic man had not been able under the most favourable circumstances to induce his own party to adopt, was not to be gained at all by amicable means. The Italians had no course left save to

submit patiently or to repeat once more, and if possible with their united strength, the attempt which had been crushed in the bud five-and-thirty years before by the destruction of Fregellae—so as by force of arms either to destroy Rome and succeed to her heritage, or at least to compel her to grant equality of rights. The latter resolution was no doubt a resolution of despair; as matters stood, the revolt of the isolated urban communities against the Roman government might well appear still more hopeless than the revolt of the American colonies against the British empire; to all appearance the Roman government might with moderate attention and energy of action prepare for this second insurrection the fate of its predecessor. But was it less a resolution of despair, to sit still and allow things to take their course? When they recollected how the Romans had been in the habit of behaving in Italy without provocation, what could they expect now that the most considerable men in every Italian town had or were alleged to have had—the consequences on either supposition being pretty much the same—an understanding with Drusus, which was immediately directed against the party now victorious and might well be characterized as treason? All those who had taken part in this secret league, all in fact who might be merely suspected of participation, had no choice left save to begin the war or to bend their neck beneath the axe of the executioner.

Moreover, the present moment presented comparatively favourable prospects for a general insurrection throughout Italy. We are not exactly informed how far the Romans had carried out the dissolution of the larger Italian confederacies;(9) but it is not improbable that the Marsians, the Paelignians, and perhaps even the Samnites and Lucanians still were associated in their old communal leagues, though these had lost their political significance and were in some cases probably reduced to mere fellowship of festivals and sacrifices. The insurrection, if it should now begin, would still find a rallying point in these unions; but who could say

how soon the Romans would for that very reason proceed to abolish these also? The secret league, moreover, which was alleged to be headed by Drusus, had lost in him its actual or expected chief, but it continued to exist and afforded an important nucleus for the political organization of the insurrection; while its military organization might be based on the fact that each allied town possessed its own armament and experienced soldiers. In Rome on the other hand no serious preparations had been made. It was reported, indeed, that restless movements were occurring in Italy, and that the communities of the allies maintained a remarkable intercourse with each other; but instead of calling the citizens in all haste to arms, the governing corporation contented itself with exhorting the magistrates in the customary fashion to watchfulness and with sending out spies to learn farther particulars. The capital was so totally undefended, that a resolute Marsian officer Quintus Pompaedius Silo, one of the most intimate friends of Drusus, is said to have formed the design of stealing into the city at the head of a band of trusty associates carrying swords under their clothes, and of seizing it by a coup de main. Preparations were accordingly made for a revolt; treaties were concluded, and arming went on silently but actively, till at last, as usual, the insurrection broke out through an accident somewhat earlier than the leading men had intended.

Outbreak of the Insurrection in Asculum

Marsians and Sabellians

Central and Southern Italy

The Roman praetor with proconsular powers, Gaius Servilius, informed by his spies that the town of Asculum (Ascoli) in the Abruzzi was sending hostages to the neighbouring communities, proceeded thither with his legate Fonteius and a small escort, and addressed to the multitude, which was just then assembled in the theatre for the celebration of the great games, a

vehement and menacing harangue. The sight of the axes known only too well, the proclamation of threats that were only too seriously meant, threw the spark into the fuel of bitter hatred that had been accumulating for centuries; the Roman magistrates were torn to pieces by the multitude in the theatre itself, and immediately, as if it were their intention by a fearful outrage to break down every bridge of reconciliation, the gates were closed by command of the magistracy, all the Romans residing in Asculum were put to death, and their property was plundered. The revolt ran through the peninsula like the flame through the steppe. The brave and numerous people of the Marsians took the lead, in connection with the small but hardy confederacies in the Abruzzi—the Paeligni, Marrucini, Frentani, and Vestini. The brave and sagacious Quintus Silo, already mentioned, was here the soul of the movement. The Marsians were the first formally to declare against the Romans, whence the war retained afterwards the name of the Marsian war. The example thus given was followed by the Samnite communities, and generally by the mass of the communities from the Liris and the Abruzzi down to Calabria and Apulia; so that all Central and Southern Italy was soon in arms against Rome.

Italians Friendly to Rome

The Etruscans and Umbrians on the other hand held by Rome, as they had already taken part with the equites against Drusus.(10) It is a significant fact, that in these regions the landed and moneyed aristocracy had from ancient times preponderated and the middle class had totally disappeared, whereas among and near the Abruzzi the farmer-class had preserved its purity and vigour better than anywhere else in Italy: it was from the farmers accordingly and the middle class in general that the revolt substantially proceeded, whereas the municipal aristocracy still went hand in hand with the government of the capital. This also readily explains the fact, that there were in the insurgent districts isolated communities, and in the insurgent

communities minorities, adhering to the Roman alliance; the Vestinian town Pinna, for instance, sustained a severe siege for Rome, and a corps of loyalists that was formed in the Hirpinian country under Minatius Magius of Aeclanum supported the Roman operations in Campania. Lastly, there adhered to Rome the allied communities of best legal position—in Campania Nola and Nuceria and the Greek maritime towns Neapolis and Rhegium, and in like manner at least most of the Latin colonies, such as Alba and Aesernia—just as in the Hannibalic war the Latin and Greek towns on the whole had taken part with, and the Sabellian towns against, Rome. The forefathers of the city had based their dominion over Italy on an aristocratic classification, and with skilful adjustment of the degrees of dependence had kept in subjection the less privileged communities by means of those with better rights, and the burgesses within each community by means of the municipal aristocracy. It was only now, under the incomparably wretched government of the oligarchy, that the solidity and strength with which the statesmen of the fourth and fifth centuries had joined together the stones of their structure were thoroughly put to the test; the building, though shaken in various ways, still held out against this storm. When we say, however, that the towns of better position did not at the first shock abandon Rome, we by no means affirm that they would now, as in the Hannibalic war, hold out for a length of time and after severe defeats, without wavering in their allegiance to Rome; that fiery trial had not yet been endured.

Impression As to the Insurrection in Rome
Rejection of the Proposals for an Accomodation
Commission of High Treason

The first blood was thus shed, and Italy was divided into two great military camps. It is true, as we have seen, that the insurrection was still very far from being a general rising of the Italian allies; but it had already

acquired an extent exceeding perhaps the hopes of the leaders themselves, and the insurgents might without arrogance think of offering to the Roman government a fair accommodation. They sent envoys to Rome, and bound themselves to lay down their arms in return for admission to citizenship; it was in vain. The public spirit, which had been so long wanting in Rome, seemed suddenly to have returned, when the question was one of obstructing with stubborn narrow-mindedness a demand of the subjects just in itself and now supported by a considerable force. The immediate effect of the Italian insurrection was, just as was the case after the defeats which the policy of the government had suffered in Africa and Gaul,(11) the commencement of a warfare of prosecutions, by means of which the aristocracy of judges took vengeance on those men of the government whom they, rightly or wrongly, looked upon as the primary cause of this mischief. On the proposal of the tribune Quintus Varius, in spite of the resistance of the Optimates and in spite of tribunician interference, a special commission of high treason—formed, of course, from the equestrian order which contended for the proposal with open violence—was appointed for the investigation of the conspiracy instigated by Drusus and widely ramified in Italy as well as in Rome, out of which the insurrection had originated, and which now, when the half of Italy was under arms, appeared to the whole of the indignant and alarmed burgesses as undoubted treason. The sentences of this commission largely thinned the ranks of the senatorial party favourable to mediation: among other men of note Drusus' intimate friend, the young and talented Gaius Cotta, was sent into banishment, and with difficulty the grey-haired Marcus Scaurus escaped the same fate. Suspicion went so far against the senators favourable to the reforms of Drusus, that soon afterwards the consul Lupus reported from the camp to the senate regarding the communications that were constantly maintained between the Optimates in his camp and the enemy; a suspicion which, it is true, was soon shown to be unfounded by the arrest of Marsian spies. So far

king Mithradates might not without reason assert, that the mutual enmities of the factions were more destructive to the Roman state than the Social War itself.

Energetic Decrees

In the first instance, however, the outbreak of the insurrection, and the terrorism which the commission of high treason exercised, produced at least a semblance of unity and vigour. Party feuds were silent; able officers of all shades—democrats like Gaius Marius, aristocrats like Lucius Sulla, friends of Drusus like Publius Sulpicius Rafus—placed themselves at the disposal of the government. The largesses of corn were, apparently about this time, materially abridged by decree of the people with a view to husband the financial resources of the state for the war; which was the more necessary, as, owing to the threatening attitude of king Mithradates, the province of Asia might at any moment fall into the hand of the enemy and thus one of the chief sources of the Roman revenue be dried up. The courts, with the exception of the commission of high treason, in accordance with a decree of the senate temporarily suspended their action; all business stood still, and nothing was attended to but the levying of soldiers and the manufacture of arms.

Political Organization of the Insurrection Opposition—Rome

While the leading state thus collected its energies in the prospect of the severe war impending, the insurgents had to solve the more difficult task of acquiring political organization during the struggle. In the territory of the Paeligni situated in the centre of the Marsian, Samnite, Marrucinian, and Vestinian cantons and consequently in the heart of the insurgent districts, in the beautiful plain on the river Pescara, the town of Corfinium was selected as the Opposition-Rome or city of Italia, whose citizenship was conferred

on the burgesses of all the insurgent communities; there a Forum and a senate-house were staked off on a suitable scale. A senate of five hundred members was charged with the settlement of the constitution and the superintendence of the war. In accordance with its directions the burgesses selected from the men of senatorial rank two consuls and twelve praetors, who, just like the two consuls and six praetors of Rome, were invested with the supreme authority in war and peace. The Latin language, which was even then the prevailing language among the Marsians and Picentes, continued in official use, but the Samnite language which predominated in Southern Italy was placed side by side with it on a footing of equality; and the two were made use of alternately on the silver pieces which the new Italian state began to coin in its own name after Roman models and after the Roman standard, thus appropriating likewise the monopoly of coinage which Rome had exercised for two centuries. It is evident from these arrangements—and was, indeed a matter of course—that the Italians now no longer thought of wresting equality of rights from the Romans, but purposed to annihilate or subdue them and to form a new state. But it is also obvious that their constitution was nothing but a pure copy of that of Rome or, in other words, was the ancient polity handed down by tradition among the Italian nations from time immemorial:—the organization of a city instead of the constitution of a state, with primary assemblies as unwieldy and useless as the Roman comitia, with a governing corporation which contained within it the same elements of oligarchy as the Roman senate, with an executive administered in like manner by a plurality of coordinate supreme magistrates. This imitation descended to the minutest details; for instance, the title of consul or praetor held by the magistrate in chief command was after a victory exchanged by the general of the Italians also for the title of Imperator. Nothing in fact was changed but the name; on the coins of the insurgents the same image of the gods appears, the inscription only being changed from Roma to Italia. This Rome of the insurgents was

distinguished—not to its advantage—from the original Rome merely by the circumstance, that, while the latter had at any rate an urban development, and its unnatural position intermediate between a city and a state had formed itself at least in a natural way, the new Italia was nothing at all but a place of congress for the insurgents, and it was by a pure fiction of law that the inhabitants of the peninsula were stamped as burgesses of this new capital. But it is significant that in this case, where the sudden amalgamation of a number of isolated cantons into a new political unity might have so naturally suggested the idea of a representative constitution in the modern sense, no trace of any such idea occurs; in fact the very opposite course was followed,(12) and the communal organization was simply reproduced in a far more absurd manner than before. Nowhere perhaps is it so clearly apparent as in this instance, that in the view of antiquity a free constitution was inseparable from the appearance of the sovereign people in person in the primary assemblies, or from a city; and that the great fundamental idea of the modern republican-constitutional state, viz. the expression of the sovereignty of the people by a representative assembly—an idea without which a free state would be a chaos—is wholly modern. Even the Italian polity, although in its somewhat representative senates and in the diminished importance of the comitia it approximated to a free state, never was able in the case either of Rome or of Italia to cross the boundary-line.

Warlike Preparations

Thus began, a few months after the death of Drusus, in the winter of 663-4, the struggle—as one of the coins of the insurgents represents it—of the Sabellian ox against the Roman she-wolf. Both sides made zealous preparations: in Italia great stores of arms, provisions, and money were accumulated; in Rome the requisite supplies were drawn from the provinces and particularly from Sicily, and the long-neglected walls were put in a state

of defence against any contingency. The forces were in some measure equally balanced. The Romans filled up the blanks in their Italian contingents partly by increased levies from the burgesses and from the inhabitants—already almost wholly Romanized— of the Celtic districts on the south of the Alps, of whom 10,000 served in the Campanian army alone, (13) partly by the contingents of the Numidians and other transmarine nations; and with the aid of the free cities in Greece and Asia Minor they collected a war fleet.(14) On both sides, without reckoning garrisons, as many as 100,000 soldiers were brought into the field,(15) and in the ability of their men, in military tactics and armament, the Italians were nowise inferior to the Romans.

Subdivision of the Armies on Either Side

The conduct of the war was very difficult both for the insurgents and for the Romans, because the territory in revolt was very extensive and a great number of fortresses adhering to Rome were scattered up and down in it: so that on the one hand the insurgents found themselves compelled to combine a siege-warfare, which broke up their forces and consumed their time, with the protection of an extended frontier; and on the other hand the Romans could not well do otherwise than combat the insurrection, which had no proper centre, simultaneously in all the insurgent districts. In a military point of view the insurgent country fell into two divisions; in the northern, which reached from Picenum and the Abruzzi to the northern border of Campania and embraced the districts speaking Latin, the chief command was held on the Italian side by the Marsian Quintus Silo, on the Roman side by Publius Rutilius Lupus, both as consuls; in the southern, which included Campania, Samnium, and generally the regions speaking Sabellian, the Samnite Gaius Papius Mutilus commanded as consul of the insurgents, and Lucius Julius Caesar as the Roman consul. With each of the two commanders-in-chief there were associated on the Italian side six, on the

Roman side five, lieutenant-commanders, each of whom conducted the attack or defence in a definite district, while the consular armies were destined to act more freely and to strike the decisive blow. The most esteemed Roman officers, such as Gaius Marius, Quintus Catulus, and the two consulars of experience in the Spanish war, Titus Didius and Publius Crassus, placed themselves at the disposal of the consuls for these posts; and though the Italians had not names so celebrated to oppose to them, yet the result showed that their leaders were in a military point of view nowise inferior to the Romans.

The offensive in this thoroughly desultory war was on the whole on the side of the Romans, but was nowhere decisively assumed even on their part. It is surprising that the Romans did not collect their troops for the purpose of attacking the insurgents with a superior force, and that the insurgents made no attempt to advance into Latium and to throw themselves on the hostile capital. We are however too little acquainted with their respective circumstances to judge whether or how they could have acted otherwise, or to what extent the remissness of the Roman government on the one hand and the looseness of the connection among the federate communities on the other contributed to this want of unity in the conduct of the war. It is easy to see that with such a system there would doubtless be victories and defeats, but the final settlement might be very long delayed; and it is no less plain that a clear and vivid picture of such a war—which resolved itself into a series of engagements on the part of individual corps operating at the same time, sometimes separately, sometimes in combination—cannot be prepared out of the remarkably fragmentary accounts which have come down to us.

Commencement of the War

The Fortresses

Caesar in Campania and Samnium

Aesernia Taken by the Insurgents

As also Nola

Campania for the Most Part Lost to the Romans

The first assault, as a matter of course, fell on the fortresses adhering to Rome in the insurgent districts, which in all haste closed their gates and carried in their moveable property from the country. Silo threw himself on the fortress designed to hold in check the Marsians, the strong Alba, Mutilus on the Latin town of Aesernia established in the heart of Samnium: in both cases they encountered the most resolute resistance. Similar conflicts probably raged in the north around Firmum, Atria, Pinna, in the south around Luceria, Beneventum, Nola, Paestum, before and while the Roman armies gathered on the borders of the insurgent country. After the southern army under Caesar had assembled in the spring of 664 in Campania which for the most part held by Rome, and had provided Capua—with its domain so important for the Roman finances—as well as the more important allied cities with garrisons, it attempted to assume the offensive and to come to the aid of the smaller divisions sent on before it to Samnium and Lucania under Marcus Marcellus and Publius Crassus. But Caesar was repulsed by the Samnites and Marsians under Publius Vettius Scato with severe loss, and the important town of Venafrum thereupon passed over to the insurgents, into whose hands it delivered its Roman garrison. By the defection of this town, which lay on the military road from Campania to Samnium, Aesernia was isolated, and that fortress already vigorously assailed found itself now exclusively dependent on the courage and perseverance of its defenders and their commandant Marcellus. It is true that an incursion, which Sulla happily carried out with the same artful audacity as formerly his expedition to Bocchus, relieved the hard-pressed Aesernians for a moment; nevertheless they were after an obstinate resistance compelled by the extremity of famine to capitulate towards the end of the year. In Lucania too Publius Crassus was defeated by Marcus Lamponius, and compelled to shut himself up in Grumentum, which fell

after a long and obstinate siege. With these exceptions, they had been obliged to leave Apulia and the southern districts totally to themselves. The insurrection spread; when Mutilus advanced into Campania at the head of the Samnite army, the citizens of Nola surrendered to him their city and delivered up the Roman garrison, whose commander was executed by the orders of Mutilus, while the men were distributed through the victorious army. With the single exception of Nuceria, which adhered firmly to Rome, all Campania as far as Vesuvius was lost to the Romans; Salernum, Stabiae, Pompeii, Herculaneum declared for the insurgents; Mutilus was able to advance into the region to the north of Vesuvius, and to besiege Acerrae with his Samnito-Lucanian army. The Numidians, who were in great numbers in Caesar's army, began to pass over in troops to Mutilus or rather to Oxyntas, the son of Jugurtha, who on the surrender of Venusia had fallen into the hands of the Samnites and now appeared among their ranks in regal purple; so that Caesar found himself compelled to send home the whole African corps. Mutilus ventured even to attack the Roman camp; but he was repulsed, and the Samnites, who while retreating were assailed in the rear by the Roman cavalry, left nearly 6000 dead on the field of battle. It was the first notable success which the Romans gained in this war; the army proclaimed the general -imperator-, and the sunken courage of the capital began to revive. It is true that not long afterwards the victorious army was attacked in crossing a river by Marius Egnatius, and so emphatically defeated that it had to retreat as far as Teanum and to be reorganized there; but the exertions of the active consul succeeded in restoring his army to a serviceable condition even before the arrival of winter, and he reoccupied his old position under the walls of Acerrae, which the Samnite main army under Mutilus continued to besiege.

Combats with the Marsians
Defeat and Death of Lupus

At the same time operations had also begun in Central Italy, where the revolt of the Abruzzi and the region of the Fucine lake threatened the capital in dangerous proximity. An independent corps under Gnaeus Pompeius Strabo was sent into Picenum in order that, resting for support on Firmum and Falerio, it might threaten Asculum; but the main body of the Roman northern army took its position under the consul Lupus on the borders of the Latin and Marsian territories, where the Valerian and Salarian highways brought the enemy nearest to the capital; the rivulet Tolenus (Turano), which crosses the Valerian road between Tibur and Alba and falls into the Velino at Rieti, separated the two armies. The consul Lupus impatiently pressed for a decision, and did not listen to the disagreeable advice of Marius that he should exercise his men—unaccustomed to service—in the first instance in petty warfare. At the very outset the division of Gaius Perpenna, 10,000 strong, was totally defeated. The commander-in-chief deposed the defeated general from his command and united the remnant of the corps with that which was under the orders of Marius, but did not allow himself to be deterred from assuming the offensive and crossing the Tolenus in two divisions, led partly by himself, partly by Marius, on two bridges constructed not far from each other. Publius Scato with the Marsians confronted them; he had pitched his camp at the spot where Marius crossed the brook, but, before the passage took place, he had withdrawn thence, leaving behind the mere posts that guarded the camp, and had taken a position in ambush farther up the river. There he attacked the other Roman corps under Lupus unexpectedly during the crossing, and partly cut it down, partly drove it into the river (11th June 664). The consul in person and 8000 of his troops fell. It could scarcely be called a compensation that Marius, becoming at length aware of Scato's departure, had crossed the river and not without loss to the enemy occupied their camp. Yet this passage of the river, and a victory at the same time obtained over the Paelignians by the general Servius Sulpicius, compelled the Marsians to draw their line of defence

somewhat back, and Marius, who by decree of the senate succeeded Lupus as commander-in-chief, at least prevented the enemy from gaining further successes. But, when Quintus Caepio was soon afterwards associated in the command with equal powers, not so much on account of a conflict which he had successfully sustained, as because he had recommended himself to the equites then leading the politics of Rome by his vehement opposition to Drusus, he allowed himself to be lured into an ambush by Silo on the pretext that the latter wished to betray to him his army, and was cut to pieces with a great part of his force by the Marsians and Vestinians. Marius, after Caepio's fall once more sole commander-in-chief, through his tenacious resistance prevented his antagonist from profiting by the advantages which he had gained, and gradually penetrated far into the Marsian territory. He long refused battle; when he at length gave it, he vanquished his impetuous opponent, who left on the battle—field among other dead Herius Asinius the chieftain of the Marrucini. In a second engagement the army of Marius and the corps of Sulla which belonged to the army of the south co-operated to inflict on the Marsians a still more considerable defeat, which cost them 6000 men; but the glory of this day remained with the younger officer, for, while Marius had given and gained the battle, Sulla had intercepted the retreat of the fugitives and destroyed them.

Picene War

While the conflict was proceeding thus warmly and with varying success at the Fucine lake, the Picene corps under Strabo had also fought with alternations of fortune. The insurgent chiefs, Gaius Iudacilius from Asculum, Publius Vettius Scato, and Titus Lafrenius, had assailed it with their united forces, defeated it, and compelled it to throw itself into Firmum, where Lafrenius kept Strabo besieged, while Iudacilius moved into Apulia and induced Canusium, Venusia, and the other towns still adhering to Rome

in that quarter to join the insurgents. But on the Roman side Servius Sulpicius by his victory over the Paeligni cleared the way for his advancing into Picenum and rendering aid to Strabo; Lafrenius was attacked by Strabo in front and taken in rear by Sulpicius, and his camp was set on fire; he himself fell, the remnant of his troops fled in disorder and threw themselves into Asculum. So completely had the state of affairs changed in Picenum, that the Italians now found themselves confined to Asculum as the Romans were previously to Firmum, and the war was thus once more converted into a siege.

Umbro-Etruscan Conflicts

Lastly, there was added in the course of the year to the two difficult and stragglings wars in southern and central Italy a third in the north. The state of matters apparently so dangerous for Rome after the first months of the war had induced a great portion of the Umbrian, and isolated Etruscan, communities to declare for the insurrection; so that it became necessary to despatch against the Umbrians Aulus Plotius, and against the Etruscans Lucius Porcius Cato. Here however the Romans encountered a far less energetic resistance than in the Marsian and Samnite countries, and maintained a most decided superiority in the field.

Disadvantageous Aggregate Result of the First Year of the War

Thus the severe first year of the war came to an end, leaving behind it, both in a military and political point of view, sorrowful memories and dubious prospects. In a military point of view both armies of the Romans, the Marsian as well as the Campanian, had been weakened and discouraged by severe defeats; the northern army had been compelled especially to attend to the protection of the capital, the southern army at Neapolis had been seriously threatened in its communications, as the insurgents could without much difficulty break forth from the Marsian or Samnite territory

and establish themselves between Rome and Naples; for which reason it was found necessary to draw at least a chain of posts from Cumae to Rome. In a political point of view, the insurrection had gained ground on all sides during this first year of the war; the secession of Nola, the rapid capitulation of the strong and large Latin colony of Venusia, and the Umbro-Etruscan revolt were suspicious signs that the Roman symmachy was tottering to its very base and was not in a position to hold out against this last trial. They had already made the utmost demands on the burgesses; they had already, with a view to form that chain of posts along the Latino-Campanian coast, incorporated nearly 6000 freedmen in the burgess-militia; they had already required the severest sacrifices from the allies that still remained faithful; it was not possible to draw the string of the bow any tighter without hazarding everything.

Despondency of the Romans

The temper of the burgesses was singularly depressed. After the battle on the Tolenus, when the dead bodies of the consul and the numerous citizens of note who had fallen with him were brought back from the neighbouring battlefield to the capital and were buried there; when the magistrates in token of public mourning laid aside their purple and insignia; when the government issued orders to the inhabitants of the capital to arm en masse; not a few had resigned themselves to despair and given up all as lost. It is true that the worst despondency had somewhat abated after the victories achieved by Caesar at Acerrae and by Strabo in Picenum: on the news of the former the wardress in the capital had been once more exchanged for the dress of the citizen, on the news of the second the signs of public mourning had been laid aside; but it was not doubtful that on the whole the Romans had been worsted in this passage of arms: and above all the senate and the burgesses had lost the spirit, which had formerly borne them to victory through all the crises of the Hannibalic war. They still doubtless

began war with the same defiant arrogance as then, but they knew not how to end it as they had then done; rigid obstinacy, tenacious persistence had given place to a remiss and cowardly disposition. Already after the first year of war their outward and inward policy became suddenly changed, and betook itself to compromise. There is no doubt that in this they did the wisest thing which could be done; not however because, compelled by the immediate force of arms, they could not avoid acquiescing in disadvantageous conditions, but because the subject-matter of dispute—the perpetuation of the political precedence of the Romans over the other Italians—was injurious rather than beneficial to the commonwealth itself. It sometimes happens in public life that one error compensates another; in this case cowardice in some measure remedied the mischief which obstinacy had incurred.

Revolution in Political Processes

The year 664 had begun with a most abrupt rejection of the compromise offered by the insurgents and with the opening of a war of prosecutions, in which the most passionate defenders of patriotic selfishness, the capitalists, took vengeance on all those who were suspected of having counselled moderation and seasonable concession. On the other hand the tribune Marcus Plautius Silvanus, who entered on his office on the 10th of December of the same year, carried a law which took the commission of high treason out of the hands of the capitalist jurymen, and entrusted it to other jurymen who were nominated by the free choice of the tribes without class—qualification; the effect of which was, that this commission was converted from a scourge of the moderate party into a scourge of the ultras, and sent into exile among others its own author, Quintus Varius, who was blamed by the public voice for the worst democratic outrages—the poisoning of Quintus Metellus and the murder of Drusus.

Bestowal of the Franchise on the Italians Who Remained Faithful— or Submitted

Of greater importance than this singularly candid political recantation, was the change in the course of their policy toward the Italians. Exactly three hundred years had passed since Rome had last been obliged to submit to the dictation of peace; Rome was now worsted once more, and the peace which she desired could only be got by yielding in part at least to the terms of her antagonists. With the communities, doubtless, which had already risen in arms to subdue and to destroy Rome, the feud had become too bitter for the Romans to prevail on themselves to make the required concessions; and, had they done so, these terms would now perhaps have been rejected by the other side. But, if the original demands were conceded under certain limitations to the communities that had hitherto remained faithful, such a course would on the one hand preserve the semblance of voluntary concession, while on the other hand it would prevent the otherwise inevitable consolidation of the confederacy and thereby pave the way for its subjugation. Accordingly the gates of Roman citizenship, which had so long remained closed against entreaty, now suddenly opened when the sword knocked at them; yet even now not fully and wholly, but in a manner reluctant and annoying even for those admitted. A law carried by the consul Lucius Caesar(16) conferred the Roman franchise on the burgesses of all those communities of Italian allies which had not up to that time openly declared against Rome; a second, emanating from the tribunes of the people Marcus Plautius Silvanus and Gaius Papirius Carbo, laid down for every man who had citizenship and domicile in Italy a term of two months, within which he was to be allowed to acquire the Roman franchise by presenting himself before a Roman magistrate. But these new burgesses were to be restricted as to the right of voting in a way similar to the freedmen, inasmuch as they could only be enrolled in eight, as the freedmen only in

four, of the thirty-five tribes; whether the restriction was personal or, as it would seem, hereditary, cannot be determined with certainty.

Bestowal of Latin Rights on the Italian Celts

This measure related primarily to Italy proper, which at that time extended northward little beyond Ancona and Florence. In Cisalpine Gaul, which was in the eye of the law a foreign country, but in administration and colonization had long passed as part of Italy, all the Latin colonies were treated like the Italian communities. Otherwise on the south side of the Po the greatest portion of the soil was, after the dissolution of the old Celtic tribal communities, not organized according to the municipal system, but remained withal in the ownership of Roman burgesses mostly dwelling together in market- villages (-fora-). The not numerous allied townships to the south of the Po, particularly Ravenna, as well as the whole country between the Po and the Alps was, in consequence of a law brought in by the consul Strabo in 665, organized after the Italian urban constitution, so that the communities not adapted for this, more especially the townships in the Alpine valleys, were assigned to particular towns as dependent and tributary villages. These new town-communities, however, were not presented with the Roman franchise, but, by means of the legal fiction that they were Latin colonies, were invested with those rights which had hitherto belonged to the Latin towns of inferior legal position. Thus Italy at that time ended practically at the Po, while the Transpadane country was treated as an outlying dependency. Here to the north of the Po, with the exception of Cremona, Eporedia and Aquileia, there were no burgess or Latin colonies, and even the native tribes here had been by no means dislodged as they were to the south of the Po. The abolition of the Celtic cantonal, and the introduction of the Italian urban, constitution paved the way for the Romanizing of the rich and important territory; this was the first step in the long and momentous transformation of the Gallic stock— which once stood

contrasted with Italy, and the assaults of which Italy had rallied to repel—into comrades of their Italian masters.

Considerable as these concessions were, if we compare them with the rigid exclusiveness which the Roman burgess-body had retained for more than a hundred and fifty years, they were far from involving a capitulation with the actual insurgents; they were on the contrary intended partly to retain the communities that were wavering and threatening to revolt, partly to draw over as many deserters as possible from the ranks of the enemy. To what extent these laws and especially the most important of them—that of Caesar—were applied, cannot be accurately stated, as we are only able to specify in general terms the extent of the insurrection at the time when the law was issued. The main matter at any rate was that the communities hitherto Latin—not only the survivors of the old Latin confederacy, such as Tibur and Praeneste, but more especially the Latin colonies, with the exception of the few that passed over to the insurgents—were thereby admitted to Roman citizenship. Besides, the law was applied to the allied cities that remained faithful in Etruria and especially in Southern Italy, such as Nuceria and Neapolis. It was natural that individual communities, hitherto specially privileged, should hesitate as to the acceptance of the franchise; that Neapolis, for example, should scruple to give up its former treaty with Rome—which guaranteed to its citizens exemption from land-service and their Greek constitution, and perhaps domanial advantages besides—for the restricted rights of new burgesses. It was probably in virtue of conventions concluded on account of these scruples that this city, as well as Rhegium and perhaps other Greek communities in Italy, even after their admission to Roman citizenship retained unchanged their former communal constitution and Greek as their official language. At all events, as a consequence of these laws, the circle of Roman burgesses was extraordinarily enlarged by the merging into it of numerous and important urban communities scattered from the Sicilian Straits to the Po; and, further,

the country between the Po and the Alps was, by the bestowal of the best rights of allies, as it were invested with the legal expectancy of full citizenship.

Second Year of the War

Etruria and Umbria Tranquillized

On the strength of these concessions to the wavering communities, the Romans resumed with fresh courage the conflict against the insurgent districts. They had pulled down as much of the existing political institutions as seemed necessary to arrest the extension of the conflagration; the insurrection thenceforth at least spread no farther. In Etruria and Umbria especially, where it was just beginning, it was subdued with singular rapidity, still more, probably, by means of the Julian law than through the success of the Roman arms. In the former Latin colonies, and in the thickly-peopled region of the Po, there were opened up copious and now trustworthy sources of aid: with these, and with the resources of the burgesses themselves, they could proceed to subdue the now isolated conflagration. The two former commanders-in-chief returned to Rome, Caesar as censor elect, Marius because his conduct of the war was blamed as vacillating and slow, and the man of sixty-six was declared to be in his dotage. This objection was very probably groundless; Marius showed at least his bodily vigour by appearing daily in the circus at Rome, and even as commander-in-chief he seems to have displayed on the whole his old ability in the last campaign; but he had not achieved the brilliant successes by which alone after his political bankruptcy he could have rehabilitated himself in public opinion, and so the celebrated champion was to his bitter vexation now, even as an officer, unceremoniously laid aside as useless. The place of Marius in the Marsian army was taken by the consul of this year, Lucius Porcius Cato, who had fought with distinction in Etruria, and that of Caesar in the Campanian army by his lieutenant, Lucius Sulla, to whom

were due some of the most material successes of the previous campaign; Gnaeus Strabo retained— now as consul—the command which he had held so successfully in the Picenian territory.

War in Picenum
Asculum Besieged
And Conquered
Subjugation of the Sabellians and Marsians

Thus began the second campaign in 665. The insurgents opened it, even before winter was over, by the bold attempt—recalling the grand passages of the Samnite wars—to send a Marsian army of 15,000 men to Etruria with a view to aid the insurrection brewing in Northern Italy. But Strabo, through whose district it had to pass, intercepted and totally defeated it; only a few got back to their far distant home. When at length the season allowed the Roman armies to assume the offensive, Cato entered the Marsian territory and advanced, successfully encountering the enemy there; but he fell in the region of the Fucine lake during an attack on the enemy's camp, so that the exclusive superintendence of the operations in Central Italy devolved on Strabo. The latter employed himself partly in continuing the siege of Asculum, partly in the subjugation of the Marsian, Sabellian, and Apulian districts. To relieve his hard-pressed native town, Iudacilius appeared before Asculum with the Picentine levy and attacked the besieging army, while at the same time the garrison sallied forth and threw itself on the Roman lines. It is said that 75,000 Romans fought on this day against 60,000 Italians. Victory remained with the Romans, but Iudacilius succeeded in throwing himself with a part of the relieving army into the town. The siege resumed its course; it was protracted⁽¹⁷⁾ by the strength of the place and the desperate defence of the inhabitants, who fought with a recollection of the terrible declaration of war within its walls. When Iudacilius at length after a brave defence of several months saw the day of capitulation approach, he

ordered the chiefs of that section of the citizens which was favourable to Rome to be put to death under torture, and then died by his own hand. So the gates were opened, and Roman executions were substituted for Italian; all officers and all the respectable citizens were executed, the rest were driven forth to beggary, and all their property was confiscated on account of the state. During the siege and after the fall of Asculum numerous Roman corps marched through the adjacent rebel districts, and induced one after another to submit. The Marrucini yielded, after Servius Sulpicius had defeated them decidedly at Teate (Chieti). The praetor Gaius Cosconius penetrated into Apulia, took Salapia and Cannae, and besieged Canusium. A Samnite corps under Marius Egnatius came to the help of the unwarlike region and actually drove back the Romans, but the Roman general succeeded in defeating it at the passage of the Aufidus; Egnatius fell, and the rest of the army had to seek shelter behind the walls of Canusium. The Romans again advanced as far as Venusia and Rubi, and became masters of all Apulia. Along the Fucine lake also and at the Majella mountains—the chief seats of the insurrection—the Romans re-established their mastery; the Marsians succumbed to Strabo's lieutenants, Quintus Metellus Pius and Gaius Cinna, the Vestinians and Paelignians in the following year (666) to Strabo himself; Italia the capital of the insurgents became once more the modest Paelignian country-town of Corfinium; the remnant of the Italian senate fled to the Samnite territory.

Subjugation of Campania As Far As Nola Sulla in Samnium

The Roman southern army, which was now under the command of Lucius Sulla, had at the same time assumed the offensive and had penetrated into southern Campania which was occupied by the enemy. Stabiae was taken and destroyed by Sulla in person (30 April 665) and Herculaneum by Titus Didius, who however fell himself (11 June)

apparently at the assault on that city. Pompeii resisted longer. The Samnite general Lucius Cluentius came up to bring relief to the town, but he was repulsed by Sulla; and when, reinforced by bands of Celts, he renewed his attempt, he was, chiefly owing to the wavering of these untrustworthy associates, so totally defeated that his camp was taken and he himself was cut down with the greater part of his troops on their flight towards Nola. The grateful Roman army conferred on its general the grass-wreath—the homely badge with which the usage of the camp decorated the soldier who had by his capacity saved a division of his comrades. Without pausing to undertake the siege of Nola and of the other Campanian towns still occupied by the Samnites, Sulla at once advanced into the interior, which was the head-quarters of the insurrection. The speedy capture and fearful punishment of Aeclanum spread terror throughout the Hirpinian country; it submitted even before the arrival of the Lucanian contingent which had set itself in motion to render help, and Sulla was able to advance unhindered as far as the territory of the Samnite confederacy. The pass, where the Samnite militia under Mutilus awaited him, was turned, the Samnite army was attacked in rear, and defeated; the camp was lost, the general escaped wounded to Aesernia. Sulla advanced to Bovianum, the capital of the Samnite country, and compelled it to surrender by a second victory achieved beneath its walls. The advanced season alone put an end to the campaign there.

The Insurrection on the Whole Overpowered

The position of affairs had undergone a most complete change. Powerful, victorious, aggressive as was the insurrection when it began the campaign of 665, it emerged from it deeply humbled, everywhere beaten, and utterly hopeless. All northern Italy was pacified. In central Italy both coasts were wholly in the Roman power, and the Abruzzi almost entirely; Apulia as far as Venusia, and Campania as far as Nola, were in the hands of the Romans;

and by the occupation of the Hirpinian territory the communication was broken off between the only two regions still persevering in open resistance, the Samnite and the Lucano-Bruttian. The field of the insurrection resembled the scene of an immense conflagration dying out; everywhere the eye fell on ashes and ruins and smouldering brands; here and there the flame still blazed up among the ruins, but the fire was everywhere mastered, and there was no further threatening of danger. It is to be regretted that we no longer sufficiently discern in the superficial accounts handed down to us the causes of this sudden revolution. While undoubtedly the dexterous leadership of Strabo and still more of Sulla, and especially the more energetic concentration of the Roman forces, and their more rapid offensive contributed materially to that result, political causes may have been at work along with the military in producing the singularly rapid fall of the power of the insurgents; the law of Silvanus and Carbo may have fulfilled its design in carrying defection and treason to the common cause into the ranks of the enemy; and misfortune, as has so frequently happened, may have fallen as an apple of discord among the loosely-connected insurgent communities.

Perseverance of the Samnites

We see only—and this fact points to an internal breaking up of Italia, that must certainly have been attended by violent convulsions—that the Samnites, perhaps under the leadership of the Marsian Quintus Silo who had been from the first the soul of the insurrection and after the capitulation of the Marsians had gone as a fugitive to the neighbouring people, now assumed another organization purely confined to their own land, and, after "Italia" was vanquished, undertook to continue the struggle as "Safini" or Samnites.(18) The strong Aesernia was converted from the fortress that had curbed, into the last retreat that sheltered, Samnite freedom; an army assembled consisting, it was said, of 30,000 infantry and 1000 cavalry, and

was strengthened by the manumission and incorporation of 20,000 slaves; five generals were placed at its head, among whom Silo was the first and Mutilus next to him. With astonishment men saw the Samnite wars beginning anew after a pause of two hundred years, and the resolute nation of farmers making a fresh attempt, just as in the fifth century, after the Italian confederation was shattered, to force Rome with their own hand to recognize their country's independence. But this resolution of the bravest despair made not much change in the main result; although the mountain-war in Samnium and Lucania might still require some time and some sacrifices, the insurrection was nevertheless already substantially at an end.

Outbreak of the Mithradatic War

In the meanwhile, certainly, there had occurred a fresh complication, for the Asiatic difficulties had rendered it imperatively necessary to declare war against Mithradates king of Pontus, and for next year (666) to destine the one consul and a consular army to Asia Minor. Had this war broken out a year earlier, the contemporary revolt of the half of Italy and of the most important of the provinces would have formed an immense peril to the Roman state. Now that the marvellous good fortune of Rome had once more been evinced in the rapid collapse of the Italian insurrection, this Asiatic war just beginning was, notwithstanding its being mixed up with the expiring Italian struggle, not of a really dangerous character; and the less so, because Mithradates in his arrogance refused the invitation of the Italians that he should afford them direct assistance. Still it was in a high degree inconvenient. The times had gone by, when they without hesitation carried on simultaneously an Italian and a transmarine war, the state-treasury was already after two years of warfare utterly exhausted, and the formation of a new army in addition to that already in the field seemed scarcely practicable. But they resorted to such expedients as they could. The sale of the sites that had from ancient times⁽¹⁹⁾ remained unoccupied on and near

the citadel to persons desirous of building, which yielded 9000 pounds of gold (360,000 pounds), furnished the requisite pecuniary means. No new army was formed, but that which was under Sulla in Campania was destined to embark for Asia, as soon as the state of things in southern Italy should allow its departure; which might be expected, from the progress of the army operating in the north under Strabo, to happen soon.

Third Campaign

Capture of Venusia

Fall of Silo

So the third campaign in 666 began amidst favourable prospects for Rome. Strabo put down the last resistance which was still offered in the Abruzzi. In Apulia the successor of Cosconius, Quintus Metellus Pius, son of the conqueror of Numidia and not unlike his father in his strongly conservative views as well as in military endowments, put an end to the resistance by the capture of Venusia, at which 3000 armed men were taken prisoners. In Samnium Silo no doubt succeeded in retaking Bovianum; but in a battle, in which he engaged the Roman general Mamercus Aemilius, the Romans conquered, and—what was more important than the victory itself—Silo was among the 6000 dead whom the Samnites left on the field. In Campania the smaller townships, which the Samnites still occupied, were wrested from them by Sulla, and Nola was invested. The Roman general Aulus Gabinius penetrated also into Lucania and gained no small advantages; but, after he had fallen in an attack on the enemy's camp, Lamponius the insurgent leader and his followers once more held almost undisturbed command over the wide and desolate Lucano-Bruttian country. He even made an attempt to seize Rhegium, which was frustrated, however, by the Sicilian governor Gaius Norbanus. Notwithstanding isolated mischances the Romans were constantly drawing nearer to the attainment of their end; the fall of Nola, the submission of Samnium, the possibility of

rendering considerable forces available for Asia appeared no longer distant, when the turn taken by affairs in the capital unexpectedly gave fresh life to the well-nigh extinguished insurrection.

Ferment in Rome

The Bestowal of the Franchise and Its Limitations

Secondary Effect of the Political Prosecutions

Marius

Rome was in a fearful ferment. The attack of Drusus upon the equestrian courts and his sudden downfall brought about by the equestrian party, followed by the two-edged Varian warfare of prosecutions, had sown the bitterest discord between the aristocracy and the bourgeoisie as well as between the moderates and the ultras. Events had completely justified the party of concession; what it had proposed voluntarily to bestow, men had been more than half compelled to concede; but the mode in which the concession was made bore, just like the earlier refusal, the stamp of obstinate and shortsighted envy. Instead of granting equality of rights to all Italian communities, they had only expressed the inferiority in another form. They had received a great number of Italian communities into Roman citizenship, but had attached to what they thus conferred an offensive stigma, by placing the new burgesses alongside of the old on nearly the same footing as the freedmen occupied alongside of the freeborn. They had irritated rather than pacified the communities between the Po and the Alps by the concession of Latin rights. Lastly, they had withheld the franchise from a considerable, and that not the worst, portion of the Italians—the whole of the insurgent communities which had again submitted; and not only so, but, instead of legally re-establishing the former treaties annulled by the insurrection, they had at most renewed them as a matter of favour and subject to revocation at pleasure.(20) The disability as regarded the right of voting gave the deeper offence, that it was—as the comitia were

then constituted—politically absurd, and the hypocritical care of the government for the unstained purity of the electors appeared to every unprejudiced person ridiculous; but all these restrictions were dangerous, inasmuch as they invited every demagogue to carry his ulterior objects by taking up the more or less just demands of the new burgesses and of the Italians excluded from the franchise. While accordingly the more clear-seeing of the aristocracy could not but find these partial and grudging concessions as inadequate as did the new burgesses and the excluded themselves, they further painfully felt the absence from their ranks of the numerous and excellent men whom the Varian commission of high treason had exiled, and whom it was the more difficult to recall because they had been condemned by the verdict not of the people but of the jury-courts; for, while there was little hesitation as to cancelling a decree of the people even of a judicial character by means of a second, the cancelling of a verdict of jurymen by the people appeared to the better portion of the aristocracy as a very dangerous precedent. Thus neither the ultras nor the moderates were content with the issue of the Italian crisis. But still deeper indignation swelled the heart of the old man, who had gone forth to the Italian war with freshened hopes and had come back from it reluctantly, with the consciousness of having rendered new services and of having received in return new and most severe mortifications, with the bitter feeling of being no longer dreaded but despised by his enemies, with that gnawing spirit of vengeance in his heart, which feeds on its own poison. It was true of him also, as of the new burgesses and the excluded; incapable and awkward as he had shown himself to be, his popular name was still a formidable weapon in the hand of a demagogue.

Decay of Military Discipline

With these elements of political convulsion was combined the rapidly spreading decay of decorous soldierly habits and of military discipline. The

seeds, which were sown by the enrolment of the proletariat in the army, developed themselves with alarming rapidity during the demoralizing insurrectionary war, which compelled Rome to admit to the service every man capable of bearing arms without distinction, and which above all carried political partizanship directly into the headquarters and into the soldiers' tent. The effects soon appeared in the slackening of all the bonds of the military hierarchy. During the siege of Pompeii the commander of the Sullan besieging corps, the consular Aulus Postumius Albinus, was put to death with stones and bludgeons by his soldiers, who believed themselves betrayed by their general to the enemy; and Sulla the commander-in-chief contented himself with exhorting the troops to efface the memory of that occurrence by their brave conduct in presence of the enemy. The authors of that deed were the marines, from of old the least respectable of the troops. A division of legionaries raised chiefly from the city populace soon followed the example thus given. Instigated by Gaius Titius, one of the heroes of the market-place, it laid hands on the consul Cato. By an accident he escaped death on this occasion; Titius was arrested, but was not punished. When Cato soon afterwards actually perished in a combat, his own officers, and particularly the younger Gaius Marius, were—whether justly or unjustly, cannot be ascertained—designated as the authors of his death.

Economic Crisis

Murder of Asellio

To the political and military crisis thus beginning fell to be added the economic crisis—perhaps still more terrible—which set in upon the Roman capitalists in consequence of the Social war and the Asiatic troubles. The debtors, unable even to raise the interest due and yet inexorably pressed by their creditors, had on the one hand entreated from the proper judicial authority, the urban praetor Asellio, a respite to enable them to dispose of

their possessions, and on the other hand had searched out once more the old obsolete laws as to usury(21) and, according to the rule established in olden times, had sued their creditors for fourfold the amount of the interest paid to them contrary to the law. Asellio lent himself to bend the actually existing law into conformity with the letter, and put into shape in the usual way the desired actions for interest; whereupon the offended creditors assembled in the Forum under the leadership of the tribune of the people Lucius Cassius, and attacked and killed the praetor in front of the temple of Concord, just as in his priestly robes he was presenting a sacrifice—an outrage which was not even made a subject of investigation (665). On the other hand it was said in the circles of the debtors, that the suffering multitude could not be relieved otherwise than by "new account-books," that is, by legally cancelling the claims of all creditors against all debtors. Matters stood again exactly as they had stood during the strife of the orders; once more the capitalists in league with the prejudiced aristocracy made war against, and prosecuted, the oppressed multitude and the middle party which advised a modification of the rigour of the law; once more Rome stood on the verge of that abyss into which the despairing debtor drags his creditor along with him. Only, since that time the simple civil and moral organization of a great agricultural city had been succeeded by the social antagonisms of a capital of many nations, and by that demoralization in which the prince and the beggar meet; now all incongruities had come to be on a broader, more abrupt, and fearfully grander scale. When the Social war brought all the political and social elements fermenting among the citizens into collision with each other, it laid the foundation for a new resolution. An accident led to its outbreak.

The Sulpician Laws
Sulpicius Rufus

It was the tribune of the people Publius Sulpicius Rufus who in 666 proposed to the burgesses to declare that every senator, who owed more than 2000 -denarii- (82 pounds), should forfeit his seat in the senate; to grant to the burgesses condemned by non-free jury courts liberty to return home; to distribute the new burgesses among all the tribes, and likewise to allow the right of voting in all tribes to the freedmen. They were proposals which from the mouth of such a man were at least somewhat surprising. Publius Sulpicius Rufus (born in 630) owed his political importance not so much to his noble birth, his important connections, and his hereditary wealth, as to his remarkable oratorical talent, in which none of his contemporaries equalled him. His powerful voice, his lively gestures sometimes bordering on theatrical display, the luxuriant copiousness of his flow of words arrested, even if they did not convince, his hearers. As a partisan he was from the outset on the side of the senate, and his first public appearance (659) had been the impeachment of Norbanus who was mortally hated by the government party.(22) Among the conservatives he belonged to the section of Crassus and Drusus. We do not know what primarily gave occasion to his soliciting the tribuneship of the people for 666, and on its account renouncing his patrician nobility; but he seems to have been by no means rendered a revolutionist through the fact that he, like the whole middle party, had been persecuted as revolutionary by the conservatives, and to have by no means intended an overthrow of the constitution in the sense of Gaius Gracchus. It would rather seem that, as the only man of note belonging to the party of Crassus and Drusus who had come forth uninjured from the storm of the Varian prosecutions, he felt himself called on to complete the work of Drusus and finally to set aside the still subsisting disabilities of the new burgesses—for which purpose he needed the tribunate. Several acts of his even during his tribuneship are mentioned, which betray the very opposite of demagogic designs. For instance, he prevented by his veto one of his colleagues from cancelling through a

decree of the people the sentences of jurymen issued under the Varian law; and when the late aedile Gaius Caesar, passing over the praetorship, unconstitutionally became a candidate for the consulship for 667, with the design, it was alleged, of getting the charge of the Asiatic war afterwards entrusted to him, Sulpicius opposed him more resolutely and sharply than any one else. Entirely in the spirit of Drusus, he thus demanded from himself as from others primarily and especially the maintenance of the constitution. But in fact he was as little able as was Drusus to reconcile things that were incompatible, and to carry out in strict form of law the change of the constitution which he had in view—a change judicious in itself, but never to be obtained from the great majority of the old burgesses by amicable means. His breach with the powerful family of the Julii—among whom in particular the consular Lucius Caesar, the brother of Gaius, was very influential in the senate— and with the section of the aristocracy adhering to it, beyond doubt materially cooperated and carried the irascible man through personal exasperation beyond his original design.

Tendency of These Laws

Yet the proposals brought in by him were of such a nature as to be by no means out of keeping with the personal character and the previous party-position of their author. The equalization of the new burgesses with the old was simply a partial resumption of the proposals drawn up by Drusus in favour of the Italians; and, like these, only carried out the requirements of a sound policy. The recall of those condemned by the Varian jurymen no doubt sacrificed the principle of the inviolability of such a sentence, in defence of which Sulpicius himself had just practically interposed; but it mainly benefited in the first instance the members of the proposer's own party, the moderate conservatives, and it may be very well conceived that so impetuous a man might when first coming forward decidedly combat such a measure and then, indignant at the resistance which he encountered,

propose it himself. The measure against the insolvency of senators was doubtless called forth by the exposure of the economic condition of the ruling families—so deeply embarrassed notwithstanding all their outward splendour—on occasion of the last financial crisis. It was painful doubtless, but yet of itself conducive to the rightly understood interest of the aristocracy, if, as could not but be the effect of the Sulpician proposal, all individuals should withdraw from the senate who were unable speedily to meet their liabilities, and if the coterie-system, which found its main support in the insolvency of many senators and their consequent dependence on their wealthy colleagues, should be checked by the removal of the notoriously venal pack of the senators. At the same time, of course, we do not mean to deny that such a purification of the senate-house so abruptly and invidiously exposing the senate, as Rufus proposed, would certainly never have been proposed without his personal quarrels with the ruling coterie-heads. Lastly, the regulation in favour of the freedmen had undoubtedly for its primary object to make its proposer master of the street; but in itself it was neither unwarranted nor incompatible with the aristocratic constitution. Since the freedmen had begun to be drawn upon for military service, their demand for the right of voting was so far justified, as the right of voting and the obligation of service had always gone hand in hand. Moreover, looking to the nullity of the comitia, it was politically of very little moment whether one sewer more emptied itself into that slough. The difficulty which the oligarchy felt in governing with the comitia was lessened rather than increased by the unlimited admission of the freedmen, who were to a very great extent personally and financially dependent on the ruling families and, if rightly used, might quite furnish the government with a means of controlling the elections more thoroughly than before. This measure certainly, like every other political favour shown to the proletariat, ran counter to the tendencies of the aristocracy friendly to reform; but it was for Rufus hardly anything else than what the corn-law

had been for Drusus—a means of drawing the proletariat over to his side and of breaking down with its aid the opposition against the truly beneficial reforms which he meditated. It was easy to foresee that this opposition would not be slight; that the narrow-minded aristocracy and the narrow-minded bourgeoisie would display the same stupid jealousy after the subduing of the insurrection as they had displayed before its outbreak; that the great majority of all parties would secretly or even openly characterize the partial concessions made at the moment of the most formidable danger as unseasonable compliances, and would passionately resist every attempt to extend them. The example of Drusus had shown what came of undertaking to carry conservative reforms solely in reliance on the majority of the senate; it was a course quite intelligible, that his friend who shared his views should attempt to carry out kindred designs in opposition to that majority and under the forms of demagogism. Rufus accordingly gave himself no trouble to gain the senate over to his views by the bait of the jury courts. He found a better support in the freedmen and above all in the armed retinue—consisting, according to the report of his opponents, of 3000 hired men and an "opposition-senate" of 600 young men from the better class—with which he appeared in the streets and in the Forum.

Resistance of the Government

Riots

Position of Sulla

His proposals accordingly met with the most decided resistance from the majority of the senate, which first, to gain time, induced the consuls Lucius Cornelius Sulla and Quintus Pompeius Rufus, both declared opponents of demagogism, to enjoin extraordinary religious observances, during which the popular assemblies were suspended. Sulpicius replied by a violent tumult, in which among other victims the young Quintus Pompeius, son of the one and son-in-law of the other consul, met his death and the lives of

both consuls themselves were seriously threatened—Sulla is said even to have escaped only by Marius opening to him his house. They were obliged to yield; Sulla agreed to countermand the announced solemnities, and the Sulpician proposals now passed without further difficulty. But this was far from determining their fate. Though the aristocracy in the capital might own its defeat, there was now—for the first time since the commencement of the revolution—yet another power in Italy which could not be overlooked, viz. the two strong and victorious armies of the proconsul Strabo and the consul Sulla. The political position of Strabo might be ambiguous, but Sulla, although he had given way to open violence for the moment, was on the best terms with the majority of the senate; and not only so, but he had, immediately after countermanding the solemnities, departed for Campania to join his army. To terrify the unarmed consul by bludgeon-men or the defenceless capital by the swords of the legions, amounted to the same thing in the end: Sulpicius assumed that his opponent, now when he could, would requite violence with violence and return to the capital at the head of his legions to overthrow the conservative demagogue and his laws along with him. Perhaps he was mistaken. Sulla was just as eager for the war against Mithradates as he was probably averse to the political exhalations of the capital; considering his original spirit of indifference and his unrivalled political nonchalance, there is great probability that he by no means intended the coup d'etat which Sulpicius expected, and that, if he had been let alone, he would have embarked without delay with his troops for Asia so soon as he had captured Nola, with the siege of which he was still occupied.

Marius Nominated Commander-in-Chief in Sulla's Stead

But, be this as it might, Sulpicius, with a view to parry the presumed blow, conceived the scheme of taking the supreme command from Sulla; and for this purpose joined with Marius, whose name was still sufficiently popular to make a proposal to transfer to him the chief command in the

Asiatic war appear plausible to the multitude, and whose military position and ability might prove a support in the event of a rupture with Sulla. Sulpicius probably did not overlook the danger involved in placing that old man—not less incapable than vengeful and ambitious—at the head of the Campanian army, and as little the scandalous irregularity of entrusting an extraordinary supreme command by decree of the people to a private man; but the very tried incapacity of Marius as a statesman gave a sort of guarantee that he would not be able seriously to endanger the constitution, and above all the personal position of Sulpicius, if he formed a correct estimate of Sulla's designs, was one of so imminent peril that such considerations could hardly be longer heeded. That the worn-out hero himself readily met the wishes of any one who would employ him as a -condottiere-, was a matter of course; his heart had now for many years longed for the command in an Asiatic war, and not less perhaps for an opportunity of once settling accounts thoroughly with the majority of the senate. Accordingly on the proposal of Sulpicius Gaius Marius was by decree of the people invested with extraordinary supreme, or as it was called proconsular, power, and obtained the command of the Campanian army and the superintendence of the war against Mithradates; and two tribunes of the people were despatched to the camp at Nola, to take over the army from Sulla.

Sulla's Recall

Sulla was not the man to yield to such a summons. If any one had a vocation to the chief command in the Asiatic war, it was Sulla. He had a few years before commanded with the greatest success in the same theatre of war; he had contributed more than any other man to the subjugation of the dangerous Italian insurrection; as consul of the year in which the Asiatic war broke out, he had been invested with the command in it after the customary way and with the full consent of his colleague, who was on

friendly terms with him and related to him by marriage. It was expecting a great deal to suppose that he would, in accordance with a decree of the sovereign burgesses of Rome, give up a command undertaken in such circumstances to an old military and political antagonist, in whose hands the army might be turned to none could tell what violent and preposterous proceedings. Sulla was neither good-natured enough to comply voluntarily with such an order, nor dependent enough to need to do so. His army was—partly in consequence of the alterations of the military system which originated with Marius, partly from the moral laxity and the military strictness of its discipline in the hands of Sulla—little more than a body of mercenaries absolutely devoted to their leader and indifferent to political affairs. Sulla himself was a hardened, cool, and clearheaded man, in whose eyes the sovereign Roman burgesses were a rabble, the hero of Aquae Sextiae a bankrupt swindler, formal legality a phrase, Rome itself a city without a garrison and with its walls half in ruins, which could be far more easily captured than Nola.

Sulla's March on Rome

On these views he acted. He assembled his soldiers—there were six legions, or about 35,000 men—and explained to them the summons that had arrived from Rome, not forgetting to hint that the new commander-in-chief would undoubtedly lead to Asia Minor not the army as it stood, but another formed of fresh troops. The superior officers, who still had more of the citizen than the soldier, kept aloof, and only one of them followed the general towards the capital; but the soldiers, who in accordance with earlier experiences⁽²³⁾ hoped to find in Asia an easy war and endless booty, were furious; in a moment the two tribunes that had come from Rome were torn in pieces, and from all sides the cry arose that the general should lead them to Rome. Without delay the consul started, and forming a junction with his like-minded colleague by the way, he arrived by quick marches—little

troubling himself about the deputies who hastened from Rome to meet and attempted to detain him—beneath the walls of the capital. Suddenly the Romans beheld columns of Sulla's army take their station at the bridge over the Tiber and at the Colline and Esquiline gates; and then two legions in battle array, with their standards at their head, passed the sacred ring-wall within which the law had forbidden war to enter. Many a worse quarrel, many an important feud had been brought to a settlement within those walls, without any need for a Roman army breaking the sacred peace of the city; that step was now taken, primarily for the sake of the miserable question whether this or that officer was called to command in the east.

Rome Occupied

The entering legions advanced as far as the height of the Esquiline; when the missiles and stones descending in showers from the roofs made the soldiers waver and they began to give way, Sulla himself brandished a blazing torch, and with firebrands and threats of setting the houses on fire the legions cleared their way to the Esquiline market-place (not far from S. Maria Maggiore). There the force hastily collected by Marius and Sulpicius awaited them, and by its superior numbers repelled the first invading columns. But reinforcements came up from the gates; another division of the Sullans made preparations for turning the defenders by the street of the Subura; the latter were obliged to retire. At the temple of Tellus, where the Esquiline begins to slope towards the great Forum, Marius attempted once more to make a stand; he adjured the senate and equites and all the citizens to throw themselves across the path of the legions. But he himself had transformed them from citizens to mercenaries; his own work turned against him: they obeyed not the government, but their general. Even when the slaves were summoned to arm under the promise of freedom, not more than three of them appeared. Nothing remained for the leaders but to escape in all haste through the still unoccupied gates; after a few hours Sulla was

absolute master of Rome. That night the watchfires of the legions blazed in the great market-place of the capital.

First Sullan Restoration

Death of Sulpicius

Flight of Marius

The first military intervention in civil feuds had made it quite evident, not only that the political struggles had reached the point at which nothing save open and direct force proves decisive, but also that the power of the bludgeon was of no avail against the power of the sword. It was the conservative party which first drew the sword, and which accordingly in due time experienced the truth of the ominous words of the Gospel as to those who first have recourse to it. For the present it triumphed completely and might put the victory into formal shape at its pleasure. As a matter of course, the Sulpician laws were characterized as legally null. Their author and his most notable adherents had fled; they were, twelve in number, proscribed by the senate for arrest and execution as enemies of their country. Publius Sulpicius was accordingly seized at Laurentum and put to death; and the head of the tribune, sent to Sulla, was by his orders exposed in the Forum at the very rostra where he himself had stood but a few days before in the full vigour of youth and eloquence. The rest of the proscribed were pursued; the assassins were on the track of even the old Gaius Marius. Although the general might have clouded the memory of his glorious days by a succession of pitiful proceedings, now that the deliverer of his country was running for his life, he was once more the victor of Vercellae, and with breathless suspense all Italy listened to the incidents of his marvellous flight. At Ostia he had gone on board a transport with the view of sailing for Africa; but adverse winds and want of provisions compelled him to land at the Circeian promontory and to wander at random. With few attendants and without trusting himself under a roof, the grey-haired consular, often

suffering from hunger, found his way on foot to the neighbourhood of the Roman colony of Minturnae at the mouth of the Garigliano. There the pursuing cavalry were seen in the distance; with great difficulty he reached the shore, and a trading— vessel lying there withdrew him from his pursuers; but the timid mariners soon put him ashore again and made off, while Marius stole along the beach. His pursuers found him in the salt-marsh of Minturnae sunk to the girdle in the mud and with his head concealed amidst a quantity of reeds, and delivered him to the civic authorities of Minturnae. He was placed in prison, and the town-executioner, a Cimbrian slave, was sent to put him to death; but the German trembled before the flashing eyes of his old conqueror and the axe fell from his hands, when the general with his powerful voice haughtily demanded whether he dared to kill Gaius Marius. When they learned this, the magistrates of Minturnae were ashamed that the deliverer of Rome should meet with greater reverence from slaves to whom he had brought bondage than from his fellow-citizens to whom he had brought freedom; they loosed his fetters, gave him a vessel and money for travelling expenses, and sent him to Aenaria (Ischia). The proscribed with the exception of Sulpicius gradually met in those waters; they landed at Eryx and at what was formerly Carthage, but the Roman magistrates both in Sicily and in Africa sent them away. So they escaped to Numidia, whose desert sand-dunes gave them a place of refuge for the winter. But the king Hiempsal II, whom they hoped to gain and who had seemed for a while willing to unite with them, had only done so to lull them into security, and now attempted to seize their persons. With great difficulty the fugitives escaped from his cavalry, and found a temporary refuge in the little island of Cercina (Kerkena) on the coast of Tunis. We know not whether Sulla thanked his fortunate star that he had been spared the odium of putting to death the victor of the Cimbrians; at any rate it does not appear that the magistrates of Minturnae were punished.

Legislation of Sulla

With a view to remove existing evils and to prevent future revolutions, Sulla suggested a series of new legislative enactments. For the hard-pressed debtors nothing seems to have been done, except that the rules as to the maximum of interest were enforced;(24) directions moreover were given for the sending out of a number of colonies. The senate which had been greatly thinned by the battles and prosecutions of the Social war was filled up by the admission of 300 new senators, who were naturally selected in the interest of the Optimates. Lastly, material changes were adopted in respect to the mode of election and the initiative of legislation. The old Servian arrangement for voting in the centuriate comitia, under which the first class, with an estate of 100,000 sesterces (1000 pounds) or upwards, alone possessed almost half of the votes, again took the place of the arrangements introduced in 513 to mitigate the preponderance of the first class.(25) Practically there was thus introduced for the election of consuls, praetors, and censors, a census which really excluded the non-wealthy from exercising the suffrage. The legislative initiative in the case of the tribunes of the people was restricted by the rule, that every proposal had henceforth to be submitted by them in the first instance to the senate and could only come before the people in the event of the senate approving it.

These enactments which were called forth by the Sulpician attempt at revolution from the man who then came forward as the shield and sword of the constitutional party—the consul Sulla—bear an altogether peculiar character. Sulla ventured, without consulting the burgesses or jurymen, to pronounce sentence of death on twelve of the most distinguished men, including magistrates actually in office and the most famous general of his time, and publicly to defend these proscriptions; a violation of the venerable and sacred laws of appeal, which met with severe censure even from very

conservative men, such as Quintus Scaevola. He ventured to overthrow an arrangement as to the elections which had subsisted for a century and a half, and to re-establish the electoral census which had been long obsolete and proscribed. He ventured practically to withdraw the right of legislation from its two primitive factors, the magistrates and the comitia, and to transfer it to a board which had at no time possessed formally any other privilege in this respect than that of being asked for its advice.(26) Hardly had any democrat ever exercised justice in forms so tyrannical, or disturbed and remodelled the foundations of the constitution with so reckless an audacity, as this conservative reformer. But if we look at the substance instead of the form, we reach very different results. Revolutions have nowhere ended, and least of all in Rome, without demanding a certain number of victims, who under forms more or less borrowed from justice atone for the fault of being vanquished as though it were a crime. Any one who recalls the succession of prosecutions carried on by the victorious party after the fall of the Gracchi and Saturninus(27) will be inclined to yield to the victor of the Esquiline market the praise of candour and comparative moderation, in so far as, first he without ceremony accepted as war what was really such and proscribed the men who were defeated as enemies beyond the pale of the law, and, secondly, he limited as far as possible the number of victims and allowed at least no offensive outbreak of fury against inferior persons. A similar moderation appears in the political arrangements. The innovation as respects legislation—the most important and apparently the most comprehensive—in fact only brought the letter of the constitution into harmony with its spirit. The Roman legislation, under which any consul, praetor, or tribune could propose to the burgesses any measure at pleasure and bring it to the vote without debate, had from the first been, irrational and had become daily more so with the growing nullity of the comitia; it was only tolerated, because in practice the senate had claimed for itself the right of previous deliberation and regularly crushed any proposal, if put to

the vote without such previous deliberation, by means of the political or religious veto.(28) The revolution had swept away these barriers; and in consequence that absurd system now began fully to develop its results, and to put it in the power of any petulant knave to overthrow the state in due form of law. What was under such circumstances more natural, more necessary, more truly conservative, than now to recognize formally and expressly the legislation of the senate to which effect had been hitherto given by a circuitous process? Something similar may be said of the renewal of the electoral census. The earlier constitution was throughout based on it; even the reform of 513 had merely restricted the privileges of the men of wealth. But since that year there had occurred an immense financial revolution, which might well justify a raising of the electoral census. The new timocracy thus changed the letter of the constitution only to remain faithful to its spirit, while it at the same time in the mildest possible form attempted at least to check the disgraceful purchase of votes with all the evils therewith connected. Lastly, the regulations in favour of debtors and the resumption of the schemes of colonization gave express proof that Sulla, although not disposed to approve the impetuous proposals of Sulpicius, was yet, like Sulpicius and Drusus and all the more far-seeing aristocrats in general, favourable to material reforms in themselves; as to which we may not overlook the circumstance, that he proposed these measures after the victory and entirely of his own free will. If we combine with such considerations the fact, that Sulla allowed the principal foundations of the Gracchan constitution to stand and disturbed neither the equestrian courts nor the largesses of grain, we shall find warrant for the opinion that the Sullan arrangement of 666 substantially adhered to the status quo subsisting since the fall of Gaius Gracchus; he merely, on the one hand, altered as the times required the traditional rules that primarily threatened danger to the existing government, and, on the other hand, sought to remedy according to his power the existing social evils, so far as

either could be done without touching ills that lay deeper. Emphatic contempt for constitutional formalism in connection with a vivid appreciation of the intrinsic value of existing arrangements, clear perceptions, and praiseworthy intentions mark this legislation throughout. But it bears also a certain frivolous and superficial character; it needed in particular a great amount of good nature to believe that the fixing a maximum of interest would remedy the confused relations of credit, and that the right of previous deliberation on the part of the senate would prove more capable of resisting future demagogism than the right of veto and religion had previously been.

New Complications

Cinna

Strabo

Sulla Embarks for Asia

In reality new clouds very soon began to overcast the clear sky of the conservatives. The relations of Asia assumed daily a more threatening character. The state had already suffered the utmost injury through the delay which the Sulpician revolution had occasioned in the departure of the army for Asia; the embarkation could on no account be longer postponed. Meanwhile Sulla hoped to leave behind him guarantees against a new assault on the oligarchy in Italy, partly in the consuls who would be elected under the new electoral arrangement, partly and especially in the armies employed in suppressing the remains of the Italian insurrection. In the consular comitia, however, the choice did not fall on the candidates set up by Sulla, but Lucius Cornelius Cinna, who belonged to the most determined opposition, was associated with Gnaeus Octavius, a man certainly of strictly Optimate views. It may be presumed that it was chiefly the capitalist party, which by this choice retaliated on the author of the law as to interest. Sulla accepted the unpleasant election with the declaration that he was glad to see

the burgesses making use of their constitutional liberty of choice, and contented himself with exacting from both consuls an oath that they would faithfully observe the existing constitution. Of the armies, the one on which the matter chiefly depended was that of the north, as the greater part of the Campanian army was destined to depart for Asia. Sulla got the command of the former entrusted by decree of the people to his devoted colleague Quintus Rufus, and procured the recall of the former general Gnaeus Strabo in such a manner as to spare as far as possible his feelings—the more so, because the latter belonged to the equestrian party and his passive attitude during the Sulpician troubles had occasioned no small anxiety to the aristocracy. Rufus arrived at the army and took the chief command in Strabo's stead; but a few days afterwards he was killed by the soldiers, and Strabo returned to the command which he had hardly abdicated. He was regarded as the instigator of the murder; it is certain that he was a man from whom such a deed might be expected, that he reaped the fruits of the crime, and that he punished the well-known originators of it only with words. The removal of Rufus and the commandership of Strabo formed a new and serious danger for Sulla; yet he did nothing to deprive the latter of his command. Soon afterwards, when his consulship expired, he found himself on the one hand urged by his successor Cinna to depart at length for Asia where his presence was certainly urgently needed, and on the other hand cited by one of the new tribunes before the bar of the people; it was clear to the dullest eye, that a new attack on him and his party was in preparation, and that his opponents wished his removal. Sulla had no alternative save either to push the matter to a breach with Cinna and perhaps with Strabo and once more to march on Rome, or to leave Italian affairs to take their course and to remove to another continent. Sulla decided—whether more from patriotism or more from indifference, will never be ascertained—for the latter alternative; handed over the corps left behind in Samnium to the trustworthy and experienced soldier, Quintus Metellus Pius, who was

invested in Sulla's stead with the proconsular commandership-in-chief over Lower Italy; gave the conduct of the siege of Nola to the proprætor Appius Claudius; and in the beginning of 667 embarked with his legions for the Hellenic East.

CHAPTER VIII

The East and King Mithradates

State of the East

The state of breathless excitement, in which the revolution kept the Roman government by perpetually renewing the alarm of fire and the cry to quench it, made them lose sight of provincial matters generally; and that most of all in the case of the Asiatic lands, whose remote and unwarlike nations did not thrust themselves so directly on the attention of the government as Africa, Spain, and its Transalpine neighbours. After the annexation of the kingdom of Attalus, which took place contemporaneously with the outbreak of the revolution, for a whole generation there is hardly any evidence of Rome taking a serious part in Oriental affairs—with the exception of the establishment of the province of Cilicia in 652,(1) to which the Romans were driven by the boundless audacity of the Cilician pirates, and which was in reality nothing more than the institution of a permanent station for a small division of the Roman army and fleet in the eastern waters. It was not till the downfall of Marius in 654 had in some measure consolidated the government of the restoration, that the Roman authorities began anew to bestow some attention on the events in the east

Cyrene Romans

In many respects matters still stood as they had done thirty years ago. The kingdom of Egypt with its two appendages of Cyrene and Cyprus was broken up, partly de jure, partly de facto, on the death of Euergetes II (637). Cyrene went to his natural son, Ptolemaeus Apion, and was for ever separated from Egypt. The sovereignty of the latter formed a subject of contention between the widow of the last king Cleopatra (665), and his two sons Soter II Lathyrus (673) and Alexander I (666); which gave occasion to Cyprus also to separate itself for a considerable period from Egypt. The Romans did not interfere in these complications; in fact, when the Cyrenaean kingdom fell to them in 658 by the testament of the childless king Apion, while not directly rejecting the acquisition, they left the country in substance to itself by declaring the Greek towns of the kingdom, Cyrene, Ptolemais, and Berenice, free cities and even handing over to them the use of the royal domains. The supervision of the governor of Africa over this territory was from its remoteness merely nominal, far more so than that of the governor of Macedonia over the Hellenic free cities. The consequences of this measure—which beyond doubt originated not in Philhellenism, but simply in the weakness and negligence of the Roman government—were substantially similar to those which had occurred under the like circumstances in Hellas; civil wars and usurpations so rent the land that, when a Roman officer of rank accidentally made his appearance there in 668, the inhabitants urgently besought him to regulate their affairs and to establish a permanent government among them.

In Syria also during the interval there had not been much change, and still less any improvement. During the twenty years' war of succession between the two half-brothers Antiochus Grypus (658) and Antiochus of Cyzicus (659), which after their death was inherited by their sons, the kingdom which was the object of contention became almost an empty name, inasmuch as the Cilician sea-kings, the Arab sheiks of the Syrian desert, the princes of the Jews, and the magistrates of the larger towns had

ordinarily more to say than the wearers of the diadem. Meanwhile the Romans established themselves in western Cilicia, and the important Mesopotamia passed over definitively to the Parthians.

The Parthian State Armenia

The monarchy of the Arsacids had to pass through a dangerous crisis about the time of the Gracchi, chiefly in consequence of the inroads of Turanian tribes. The ninth Arsacid, Mithradates II or the Great (630?-667?), had recovered for the state its position of ascendancy in the interior of Asia, repulsed the Scythians, and advanced the frontier of the kingdom towards Syria and Armenia; but towards the end of his life new troubles disturbed his reign; and, while the grandees of the kingdom including his own brother Orodes rebelled against the king and at length that brother overthrew him and had put him to death, the hitherto unimportant Armenia rose into power. This country, which since its declaration of independence⁽²⁾ had been divided into the north-eastern portion or Armenia proper, the kingdom of the Artaxiads, and the south-western or Sophene, the kingdom of the Zariadrids, was for the first time united into one kingdom by the Artaxiad Tigranes (who had reigned since 660); and this doubling of his power on the one hand, and the weakness of the Parthian rule on the other, enabled the new king of all Armenia not only to free himself from dependence on the Parthians and to recover the provinces formerly ceded to them, but even to bring to Armenia the titular supremacy of Asia, as it had passed from the Achaemenids to the Seleucids and from the Seleucids to the Arsacids.

Asia Minor

Lastly in Asia Minor the territorial arrangements, which had been made under Roman influence after the dissolution of the kingdom of Attalus,⁽³⁾ still subsisted in the main unchanged. In the condition of the dependent

states—the kingdoms of Bithynia, Cappadocia, Pontus, the principalities of Paphlagonia and Galatia, the numerous city-leagues and free towns—no outward change was at first discernible. But, intrinsically, the character of the Roman rule had certainly undergone everywhere a material alteration. Partly through the constant growth of oppression naturally incident to every tyrannic government, partly through the indirect operation of the Roman revolution—in the seizure, for instance, of the property of the soil in the province of Asia by Gaius Gracchus, in the Roman tenths and customs, and in the human hunts which the collectors of the revenue added to their other avocations there—the Roman rule, barely tolerable even from the first, pressed so heavily on Asia that neither the crown of the king nor the hut of the peasant there was any longer safe from confiscation, that every stalk of corn seemed to grow for the Roman -decumanus-, and every child of free parents seemed to be born for the Roman slave-drivers. It is true that the Asiatic bore even this torture with his inexhaustible passive endurance; but it was not patience and reflection that made him bear it peacefully. It was rather the peculiarly Oriental lack of initiative; and in these peaceful lands, amidst these effeminate nations, strange and terrible things might happen, if once there should appear among them a man who knew how to give the signal for revolt.

Mithradates Eupator

There reigned at that time in the kingdom of Pontus Mithradates VI surnamed Eupator (born about 624, 691) who traced back his lineage on the father's side in the sixteenth generation to king Darius the son of Hystaspes and in the eighth to Mithradates I the founder of the Pontic kingdom, and was on the mother's side descended from the Alexandrids and the Seleucids. After the early death of his father Mithradates Euergetes, who fell by the hand of an assassin at Sinope, he had received the title of king about 634, when a boy of eleven years of age; but the diadem brought to him only

trouble and danger. His guardians, and even as it would seem his own mother called to take a part in the government by his father's will, conspired against the boy-king's life. It is said that, in order to escape from the daggers of his legal protectors, he became of his own accord a wanderer, and during seven years, changing his resting-place night after night, a fugitive in his own kingdom, led the homeless life of a hunter. Thus the boy grew into a powerful man. Although our accounts regarding him are in substance traceable to written records of contemporaries, yet the legendary tradition, which is generated in the east with the rapidity of lightning, early adorned the mighty king with many of the traits of its Samsons and Rustems. These traits, however, belong to the character, just as the crown of clouds belongs to the character of the highest mountain-peaks; the outlines of the figure appear in both cases only more coloured and fantastic, not disturbed or essentially altered. The armour, which fitted the gigantic frame of king Mithradates, excited the wonder of the Asiatics and still more that of the Italians. As a runner he overtook the swiftest deer; as a rider he broke in the wild steed, and was able by changing horses to accomplish 120 miles in a day; as a charioteer he drove with sixteen in hand, and gained in competition many a prize—it was dangerous, no doubt, in such sport to carry off victory from the king. In hunting on horseback, he hit the game at full gallop and never missed his aim. He challenged competition at table also—he arranged banqueting matches and carried off in person the prizes proposed for the most substantial eater and the hardest drinker—and not less so in the pleasures of the harem, as was shown among other things by the licentious letters of his Greek mistresses, which were found among his papers. His intellectual wants he satisfied by the wildest superstition—the interpretation of dreams and the Greek mysteries occupied not a few of the king's hours— and by a rude adoption of Hellenic civilization. He was fond of Greek art and music; that is to say, he collected precious articles, rich furniture, old Persian and Greek objects of luxury—his cabinet of rings was

famous—he had constantly Greek historians, philosophers, and poets in his train, and proposed prizes at his court-festivals not only for the greatest eaters and drinkers, but also for the merriest jester and the best singer. Such was the man; the sultan corresponded. In the east, where the relation between the ruler and the ruled bears the character of natural rather than of moral law, the subject resembles the dog alike in fidelity and in falsehood, the ruler is cruel and distrustful. In both respects Mithradates has hardly been surpassed. By his orders there died or pined in perpetual captivity for real or alleged treason his mother, his brother, his sister espoused to him, three of his sons and as many of his daughters. Still more revolting perhaps is the fact, that among his secret papers were found sentences of death, drawn up beforehand, against several of his most confidential servants. In like manner it was a genuine trait of the sultan, that he afterwards, for the mere purpose of withdrawing from his enemies the trophies of victory, caused his two Greek wives, his sister and his whole harem to be put to death, and merely left to the women the choice of the mode of dying. He prosecuted the experimental study of poisons and antidotes as an important branch of the business of government, and tried to inure his body to particular poisons. He had early learned to look for treason and assassination at the hands of everybody and especially of his nearest relatives, and he had early learned to practise them against everybody and most of all against those nearest to him; of which the necessary consequence—attested by all his history—was, that all his undertakings finally miscarried through the perfidy of those whom he trusted. At the same time we doubtless meet with isolated traits of high-minded justice: when he punished traitors, he ordinarily spared those who had become involved in the crime simply from their personal relations with the leading culprit; but such fits of equity are not wholly wanting in every barbarous tyrant. What really distinguishes Mithradates amidst the multitude of similar sultans, is his boundless activity. He disappeared one fine morning

from his palace and remained unheard of for months, so that he was given over as lost; when he returned, he had wandered incognito through all western Asia and reconnoitred everywhere the country and the people. In like manner he was not only in general a man of fluent speech, but he administered justice to each of the twenty-two nations over which he ruled in its own language without needing an interpreter—a trait significant of the versatile ruler of the many-tongued east. His whole activity as a ruler bears the same character. So far as we know (for our authorities are unfortunately altogether silent as to his internal administration) his energies, like those of every other sultan, were spent in collecting treasures, in assembling armies—which were usually, in his earlier years at least, led against the enemy not by the king in person, but by some Greek -condottiere—in efforts to add new satrapies to the old. Of higher elements—desire to advance civilization, earnest leadership of the national opposition, special gifts of genius—there are found, in our traditional accounts at least, no distinct traces in Mithradates, and we have no reason to place him on a level even with the great rulers of the Osmons, such as Mohammed II and Suleiman. Notwithstanding his Hellenic culture, which sat on him not much better than the Roman armour sat on his Cappadocians, he was throughout an Oriental of the ordinary stamp, coarse, full of the most sensual appetites, superstitious, cruel, perfidious, and unscrupulous, but so vigorous in organization, so powerful in physical endowments, that his defiant laying about him and his unshaken courage in resistance look frequently like talent, sometimes even like genius. Granting that during the death-struggle of the republic it was easier to offer resistance to Rome than in the times of Scipio or Trajan, and that it was only the complication of the Asiatic events with the internal commotions of Italy which rendered it possible for Mithradates to resist the Romans twice as long as Jugurtha did, it remains nevertheless true that before the Parthian wars he was the only enemy who gave serious trouble to the Romans in the east, and that he defended himself

against them as the lion of the desert defends himself against the hunter. Still we are not entitled, in accordance with what we know, to recognize in him more than the resistance to be expected from so vigorous a nature. But, whatever judgment we may form as to the individual character of the king, his historical position remains in a high degree significant. The Mithradatic wars formed at once the last movement of the political opposition offered by Hellas to Rome, and the beginning of a revolt against the Roman supremacy resting on very different and far deeper grounds of antagonism—the national reaction of the Asiatics against the Occidentals. The empire of Mithradates was, like himself, Oriental; polygamy and the system of the harem prevailed at court and generally among persons of rank; the religion of the inhabitants of the country as well as the official religion of the court was pre-eminently the old national worship; the Hellenism there was little different from the Hellenism of the Armenian Tigranids and the Arsacids of the Parthian empire. The Greeks of Asia Minor might imagine for a brief moment that they had found in this king a support for their political dreams; his battles were really fought for matters very different from those which were decided on the fields of Magnesia and Pydna. They formed—after a long truce—a new passage in the huge duel between the west and the east, which has been transmitted from the conflicts at Marathon to the present generation and will perhaps reckon its future by thousands of years as it has reckoned its past.

The Nationalities of Asia Minor

Manifest however as is the foreign and un-Hellenic character of the whole life and action of the Cappadocian king, it is difficult definitely to specify the national element preponderating in it, nor will research perhaps ever succeed in getting beyond generalities or in attaining clear views on this point. In the whole circle of ancient civilization there is no region where the stocks subsisting side by side or crossing each other were so

numerous, so heterogeneous, so variously from the remotest times intermingled, and where in consequence the relations of the nationalities were less clear than in Asia Minor. The Semitic population continued in an unbroken chain from Syria to Cyprus and Cilicia, and to it the original stock of the population along the west coast in the regions of Caria and Lydia seems also to have belonged, while the north-western point was occupied by the Bithynians, who were akin to the Thracians in Europe. The interior and the north coast, on the other hand, were filled chiefly by Indo-Germanic peoples most nearly cognate to the Iranian. In the case of the Armenian and Phrygian languages(4) it is ascertained, in that of the Cappadocian it is highly probable, that they had immediate affinity with the Zend; and the statement made as to the Mysians, that among them the Lydian and Phrygian languages met, just denotes a mixed Semitic-Iranian population that may be compared perhaps with that of Assyria. As to the regions stretching between Cilicia and Caria, more especially Lydia, there is still, notwithstanding the full remains of the native language and writing that are in this particular instance extant, a want of assured results, and it is merely probable that these tribes ought to be reckoned among the Indo-Germans rather than the Semites. How all this confused mass of peoples was overlaid first with a net of Greek mercantile cities, and then with the Hellenism called into life by the military as well as intellectual ascendancy of the Greek nation, has been set forth in outline already.

Pontus

In these regions ruled king Mithradates, and that first of all in Cappadocia on the Black Sea or Pontus as it was called, a district in which, situated as it was at the northeastern extremity of Asia Minor towards Armenia and in constant contact with the latter, the Iranian nationality presumably preserved itself with less admixture than anywhere else in Asia Minor. Not even Hellenism had penetrated far into that region. With the

exception of the coast where several originally Greek settlements subsisted—especially the important commercial marts Trapezus, Amisus, and above all Sinope, the birthplace and residence of Mithradates and the most flourishing city of the empire—the country was still in a very primitive condition. Not that it had lain waste; on the contrary, as the region of Pontus is still one of the most fertile on the face of the earth, with its fields of grain alternating with forests of wild fruit trees, it was beyond doubt even in the time of Mithradates well cultivated and also comparatively populous. But there were hardly any towns properly so called; the country possessed nothing but strongholds, which served the peasants as places of refuge and the king as treasuries for the custody of the revenues which accrued to him; in the Lesser Armenia alone, in fact, there were counted seventy-five of these little royal forts. We do not find that Mithradates materially contributed to promote the growth of towns in his empire; and situated as he was,—in practical, though not perhaps on his own part quite conscious, reaction against Hellenism,—this is easily conceivable.

Acquisitions of Territory by Mithradates

Colchis

Northern Shores of the Black Sea

He appears more actively employed—likewise quite in the Oriental style—in enlarging on all sides his kingdom, which was even then not small, though its compass is probably over-stated at 2300 miles; we find his armies, his fleets, and his envoys busy along the Black Sea as well as towards Armenia and towards Asia Minor. But nowhere did so free and ample an arena present itself to him as on the eastern and northern shores of the Black Sea, the state of which at that time we must not omit to glance at, however difficult or in fact impossible it is to give a really distinct idea of it. On the eastern coast of the Black Sea—which, previously almost unknown, was first opened up to more general knowledge by Mithradates—the region

of Colchis on the Phasis (Mingrelia and Imeretia) with the important commercial town of Dioscurias was wrested from the native princes and converted into a satrapy of Pontus. Of still greater moment were his enterprises in the northern regions.(5) The wide steppes destitute of hills and trees, which stretch to the north of the Black Sea, of the Caucasus, and of the Caspian, are by reason of their natural conditions—more especially from the variations of temperature fluctuating between the climate of Stockholm and that of Madeira, and from the absolute destitution of rain or snow which occurs not unfrequently and lasts for a period of twenty-two months or longer—little adapted for agriculture or for permanent settlement at all; and they always were so, although two thousand years ago the state of the climate was presumably somewhat less unfavourable than it is at the present day.(6) The various tribes, whose wandering impulse led them into these regions, submitted to this ordinance of nature and led (and still to some extent lead) a wandering pastoral life with their herds of oxen or still more frequently of horses, changing their places of abode and pasture, and carrying their effects along with them in waggon-houses. Their equipment and style of fighting were consonant to this mode of life; the inhabitants of these steppes fought in great measure on horseback and always in loose array, equipped with helmet and coat of mail of leather and leather-covered shield, armed with sword, lance, and bow—the ancestors of the modern Cossacks. The Scythians originally settled there, who seem to have been of Mongolian race and akin in their habits and physical appearance to the present inhabitants of Siberia, had been followed up by Sarmatian tribes advancing from east to west,—Sauromatae, Roxolani, Jazyges,—who are commonly reckoned of Slavonian descent, although the proper names, which we are entitled to ascribe to them, show more affinity with Median and Persian names and those peoples perhaps belonged rather to the great Zend stock. Thracian tribes moved in the opposite direction, particularly the Getae, who reached as far as the Dniester. Between the two there intruded

themselves—probably as offsets of the great Germanic migration, the main body of which seems not to have touched the Black Sea—the Celts, as they were called, on the Dnieper, the Bastarnae in the same quarter, and the Peucini at the mouth of the Danube. A state, in the proper sense, was nowhere formed; every tribe lived by itself under its princes and elders.

Hellenism in That Quarter

In sharp contrast to all these barbarians stood the Hellenic settlements, which at the time of the mighty impetus given to Greek commerce had been founded chiefly by the efforts of Miletus on these coasts, partly as trading-marts, partly as stations for prosecuting important fisheries and even for agriculture, for which, as we have already said, the north-western shores of the Black Sea presented in antiquity conditions less unfavourable than at the present day. For the use of the soil the Hellenes paid here, like the Phoenicians in Libya, tax and ground-rent to the native rulers. The most important of these settlements were the free city of Chersonesus (not far from Sebastopol), built on the territory of the Scythians in the Tauric peninsula (Crimea), and maintaining itself in moderate prosperity, under circumstances far from favourable, by virtue of its good constitution and the public spirit of its citizens; and Panticapaeum (Kertch) at the opposite side of the peninsula on the straits leading from the Black Sea to the Sea of Azov, governed since the year 457 by hereditary burgomasters, afterwards called kings of the Bosphorus, the Archaeonactidae, Spartocidae, and Paerisadae. The culture of corn and the fisheries of the Sea of Azov had rapidly raised the city to prosperity. Its territory still in the time of Mithradates embraced the lesser eastern division of the Crimea including the town of Theodosia, and on the opposite Asiatic continent the town of Phanagoria and the district of Sindica. In better times the lords of Panticapaeum had by land ruled the peoples on the east coast of the Sea of Azov and the valley of the Kuban, and had commanded the Black Sea with

their fleet; but Panticapaeum was no longer what it had been. Nowhere was the sad decline of the Hellenic nation felt more deeply than at these distant outposts. Athens in its good times had been the only Greek state which fulfilled there the duties of a leading power—duties which certainly were specially brought home to the Athenians by their need of Pontic grain. After the downfall of the Attic maritime power these regions were, on the whole, left to themselves. The Greek land-powers never got so far as to intervene seriously there, although Philip the father of Alexander and Lysimachus sometimes attempted it; and the Romans, on whom with the conquest of Macedonia and Asia Minor devolved the political obligation of becoming the strong protectors of Greek civilization at the point where it needed such protection, utterly neglected the summons of interest as well as of honour. The fall of Sinope, the decline of Rhodes, completed the isolation of the Hellenes on the northern shore of the Black Sea. A vivid picture of their position with reference to the roving barbarians is given to us by an inscription of Olbia (near Oczakow not far from the mouth of the Dnieper), which apparently may be placed not long before the time of Mithradates. The citizens had not only to send annual tribute to the court-camp of the barbarian king, but also to make him a gift when he encamped before the town or even simply passed by, and in a similar way to buy off minor chieftains and in fact sometimes the whole horde with presents; and it fared ill with them if the gift appeared too small. The treasury of the town was bankrupt and they had to pledge the temple-jewels. Meanwhile the savage tribes were thronging without in front of the gates; the territory was laid waste, the field-labourers were dragged away en masse, and, what was worst of all, the weaker of their barbarian neighbours, the Scythians, sought, in order to shelter themselves from the pressure of the more savage Celts, to obtain possession of the walled town, so that numerous citizens were leaving it and the inhabitants already contemplated its entire surrender.

Mithradates Master of the Bosphoran Kingdom

Such was the state in which Mithradates found matters, when his Macedonian phalanx crossing the ridge of the Caucasus descended into the valleys of the Kuban and Terek and his fleet at the same time appeared in the Crimean waters. No wonder that here too, as had already been the case in Dioscurias, the Hellenes everywhere received the king of Pontus with open arms and regarded the half-Hellene and his Cappadocians armed in Greek fashion as their deliverers. What Rome had here neglected, became apparent. The demands on the rulers of Panticapaeum for tribute had just then been raised to an exorbitant height; the town of Chersonesus found itself hard pressed by Scilurus king of the Scythians dwelling in the peninsula and his fifty sons; the former were glad to surrender their hereditary lordship, and the latter their long-preserved freedom, in order to save their last possession, their Hellenism. It was not in vain. Mithradates' brave generals, Diophantus and Neoptolemus, and his disciplined troops easily got the better of the peoples of the steppes. Neoptolemus defeated them at the straits of Panticapaeum partly by water, partly in winter on the ice; Chersonesus was delivered, the strongholds of the Taurians were broken, and the possession of the peninsula was secured by judiciously constructed fortresses. Diophantus marched against the Reuxinales or, as they were afterwards called, the Roxolani (between the Dnieper and Don) who came forward to the aid of the Taurians; 50,000 of them fled before his 6000 phalangites, and the Pontic arms penetrated as far as the Dnieper.(7) Thus Mithradates acquired here a second kingdom combined with that of Pontus and, like the latter, mainly based on a number of Greek commercial towns. It was called the kingdom of the Bosphorus; it embraced the modern Crimea with the opposite Asiatic promontory, and annually furnished to the royal chests and magazines 200 talents (48,000 pounds) and 270,000 bushels of grain. The tribes of the steppe themselves from the north slope of the Caucasus to the mouth of the Danube entered, at least in great part, into relations of dependence on, or treaty with, the Pontic king and, if they

furnished him with no other aid, afforded at any rate an inexhaustible field for recruiting his armies.

Lesser Armenia Alliance with Tigranes

While thus the most important successes were gained towards the north, the king at the same time extended his dominions towards the east and the west. The Lesser Armenia was annexed by him and converted from a dependent principality into an integral part of the Pontic kingdom; but still more important was the close connection which he formed with the king of the Greater Armenia. He not only gave his daughter Cleopatra in marriage to Tigranes, but it was mainly through his support that Tigranes shook off the yoke of the Arsacids and took their place in Asia. An agreement seems to have been made between the two to the effect that Tigranes should take in hand to occupy Syria and the interior of Asia, and Mithradates Asia Minor and the coasts of the Black Sea, under promise of mutual support; and it was beyond doubt the more active and capable Mithradates who brought about this agreement with a view to cover his rear and to secure a powerful ally.

Paphlagonia and Cappadocia Acquired

Lastly, in Asia Minor the king turned his eyes towards the interior of Paphlagonia—the coast had for long belonged to the Pontic empire— and towards Cappadocia.⁽⁸⁾ The former was claimed on the part of Pontus as having been bequeathed by the testament of the last of the Pylaemenids to king Mithradates Euergetes: against this, however, legitimate or illegitimate pretenders and the land itself protested. As to Cappadocia, the Pontic rulers had not forgotten that this country and Cappadocia on the sea had been formerly united, and continually cherished ideas of reunion. Paphlagonia was occupied by Mithradates in concert with Nicomedes king of Bithynia,

with whom he shared the land. When the senate raised objections to this course, Mithradates yielded to its remonstrance, while Nicomedes equipped one of his sons with the name of Pylaemenes and under this title retained the country to himself. The policy of the allies adopted still worse expedients in Cappadocia. King Ariarathes VI was killed by Gordius, it was said by the orders, at any rate in the interest, of Ariarathes' brother-in-law Mithradates Eupator: his young son Ariarathes knew no means of meeting the encroachments of the king of Bithynia except the ambiguous help of his uncle, in return for which the latter then suggested to him that he should allow the murderer of his father, who had taken flight, to return to Cappadocia. This led to a rupture and to war; but when the two armies confronted each other ready for battle, the uncle requested a previous conference with the nephew and thereupon cut down the unarmed youth with his own hand. Gordius, the murderer of the father, then undertook the government by the directions of Mithradates; and although the indignant population rose against him and called the younger son of the last king to the throne, the latter was unable to offer any permanent resistance to the superior forces of Mithradates. The speedy death of the youth placed by the people on the throne gave to the Pontic king the greater liberty of action, because with that youth the Cappadocian royal house became extinct. A pseudo-Ariarathes was proclaimed as nominal regent, just as had been done in Paphlagonia; under whose name Gordius administered the kingdom as lieutenant of Mithradates.

Empire of Mithradates

Mightier than any native monarch for many a day had been, Mithradates bore rule alike over the northern and the southern shores of the Black Sea and far into the interior of Asia Minor. The resources of the king for war by land and by sea seemed immeasurable. His recruiting field stretched from the mouth of the Danube to the Caucasus and the Caspian Sea; Thracians,

Scythians, Sauromatae, Bastarnae, Colchians, Iberians (in the modern Georgia) crowded under his banners; above all he recruited his war-hosts from the brave Bastarnae. For his fleet the satrapy of Colchis supplied him with the most excellent timber, which was floated down from the Caucasus, besides flax, hemp, pitch, and wax; pilots and officers were hired in Phoenicia and Syria. The king, it was said, had marched into Cappadocia with 600 scythe-chariots, 10,000 horse, 80,000 foot; and he had by no means mustered for this war all his resources. In the absence of any Roman or other naval power worth mentioning, the Pontic fleet, with Sinope and the ports of the Crimea as its rallying points, had exclusive command of the Black Sea.

The Romans and Mithradates

Intervention of the Senate

That the Roman senate asserted its general policy—of keeping down the states more or less dependent on it—also in dealing with that of Pontus, is shown by its attitude on occasion of the succession to the throne after the sudden death of Mithradates V. From the boy in minority who followed him there was taken away Great Phrygia, which had been conferred on his father for his taking part in the war against Aristonicus or rather for his good money,(9) and this region was added to the territory immediately subject to Rome.(10) But, after this boy had at length attained majority, the same senate showed utter passiveness towards his aggressions on all sides and towards the formation of this imposing power, the development of which occupies perhaps a period of twenty years. It was passive, while one of its dependent states became developed into a great military power, having at command more than a hundred thousand armed men; while the ruler of that state entered into the closest connection with the new great-king of the east, who was placed partly by his aid at the head of the states in the interior of Asia; while he annexed the neighbouring Asiatic kingdoms and

principalities under pretexts which sounded almost like a mockery of the ill-informed and far-distant protecting power; while, in fine, he even established himself in Europe and ruled as king over the Tauric peninsula, and as lord-protector almost to the Macedono-Thracian frontier. These circumstances indeed formed the subject of discussion in the senate; but when the illustrious corporation consoled itself in the affair of the Paphlagonian succession with the fact that Nicomedes appealed to his pseudo-Pylaemenes, it was evidently not so much deceived as grateful for any pretext which spared it from serious interference. Meanwhile the complaints became daily more numerous and more urgent. The princes of the Tauric Scythians, whom Mithradates had driven from the Crimea, turned for help to Rome; those of the senators who at all reflected on the traditional maxims of Roman policy could not but recollect that formerly, under circumstances so wholly different, the crossing of king Antiochus to Europe and the occupation of the Thracian Chersonese by his troops had become the signal for the Asiatic war,(11) and could not but see that the occupation of the Tauric Chersonese by the Pontic king ought still less to be tolerated now. The scale was at last turned by the practical reunion of the kingdom of Cappadocia, respecting which, moreover, Nicomedes of Bithynia—who on his part had hoped to gain possession of Cappadocia by another pseudo-Ariarathes, and now saw that the Pontic pretender excluded his own—would hardly fail to urge the Roman government to intervention. The senate resolved that Mithradates should reinstate the Scythian princes—so far were they driven out of the track of right policy by their negligent style of government, that instead of supporting the Hellenes against the barbarians they had now on the contrary to support the Scythians against those who were half their countrymen. Paphlagonia was declared independent, and the pseudo-Pylaemenes of Nicomedes was directed to evacuate the country. In like manner the pseudo-Ariarathes of Mithradates was to retire from Cappadocia, and, as the representatives of the country

refused the freedom proffered to it, a king was once more to be appointed by free popular election.

Sulla Sent to Cappadocia

The decrees sounded energetic enough; only it was an error, that instead of sending an army they directed the governor of Cilicia, Lucius Sulla, with the handful of troops whom he commanded there against the pirates and robbers, to intervene in Cappadocia. Fortunately the remembrance of the former energy of the Romans defended their interests in the east better than their present government did, and the energy and dexterity of the governor supplied what the senate lacked in both respects. Mithradates kept back and contented himself with inducing Tigranes the great-king of Armenia, who held a more free position with reference to the Romans than he did, to send troops to Cappadocia. Sulla quickly collected his forces and the contingents of the Asiatic allies, crossed the Taurus, and drove the governor Gordius along with his Armenian auxiliaries out of Cappadocia. This proved effectual. Mithradates yielded on all points; Gordius had to assume the blame of the Cappadocian troubles, and the pseudo-Ariarathes disappeared; the election of king, which the Pontic faction had vainly attempted to direct towards Gordius, fell on the respected Cappadocian Ariobarzanes.

First Contact between the Romans and the Parthians

When Sulla in following out his expedition arrived in the region of the Euphrates, in whose waters the Roman standards were then first mirrored, the Romans came for the first time into contact with the Parthians, who in consequence of the variance between them and Tigranes had occasion to make approaches to the Romans. On both sides there seemed a feeling that it was of some moment, in this first contact between the two great powers of the east and the west, that neither should renounce its claims to the sovereignty of the world; but Sulla, bolder than the Parthian envoy,

assumed and maintained in the conference the place of honour between the king of Cappadocia and the Parthian ambassador. Sulla's fame was more increased by this greatly celebrated conference on the Euphrates than by his victories in the east; on its account the Parthian envoy afterwards forfeited his life to his masters resentment. But for the moment this contact had no further result. Nicomedes in reliance on the favour of the Romans omitted to evacuate Paphlagonia, but the decrees adopted by the senate against Mithradates were carried further into effect, the reinstatement of the Scythian chieftains was at least promised by him; the earlier status quo in the east seemed to be restored (662).

New Aggressions of Mithradates

So it was alleged; but in fact there was little trace of any real return of the former order of things. Scarce had Sulla left Asia, when Tigranes king of Great Armenia fell upon Ariobarzanes the new king of Cappadocia, expelled him, and reinstated in his stead the Pontic pretender Ariarathes. In Bithynia, where after the death of the old king Nicomedes II (about 663) his son Nicomedes III Philopator had been recognized by the people and by the Roman senate as legitimate king, his younger brother Socrates came forward as pretender to the crown and possessed himself of the sovereignty. It was clear that the real author of the Cappadocian as of the Bithynian troubles was no other than Mithradates, although he refrained from taking any open part. Every one knew that Tigranes only acted at his beck; but Socrates also had marched into Bithynia with Pontic troops, and the legitimate king's life was threatened by the assassins of Mithradates. In the Crimea even and the neighbouring countries the Pontic king had no thought of receding, but on the contrary carried his arms farther and farther.

Aquillius Sent to Asia

The Roman government, appealed to for aid by the kings Ariobarzanes and Nicomedes in person, despatched to Asia Minor in support of Lucius Cassius who was governor there the consular Manius Aquillius—an officer tried in the Cimbrian and Sicilian wars—not, however, as general at the head of an army, but as an ambassador, and directed the Asiatic client states and Mithradates in particular to lend armed assistance in case of need. The result was as it had been two years before. The Roman officer accomplished the commission entrusted to him with the aid of the small Roman corps which the governor of the province of Asia had at his disposal, and of the levy of the Phrygians and Galatians; king Nicomedes and king Ariobarzanes again ascended their tottering thrones; Mithradates under various pretexts evaded the summons to furnish contingents, but gave to the Romans no open resistance; on the contrary the Bithynian pretender Socrates was even put to death by his orders (664).

The State of Things Intermediate between War and Peace

It was a singular complication. Mithradates was fully convinced that he could do nothing against the Romans in open conflict, and was therefore firmly resolved not to allow matters to come to an open rupture and war with them. Had he not been so resolved, there was no more favourable opportunity for beginning the struggle than the present: just at the time when Aquillius marched into Bithynia and Cappadocia, the Italian insurrection was at the height of its power and might encourage even the weak to declare against Rome; yet Mithradates allowed the year 664 to pass without profiting by the opportunity. Nevertheless he pursued with equal tenacity and activity his plan of extending his territory in Asia Minor. This strange combination of a policy of peace at any price with a policy of conquest was certainly in itself untenable, and was simply a fresh proof that Mithradates did not belong to the class of genuine statesmen; he knew neither how to prepare for conflict like king Philip nor how to submit like

king Attalus, but in the true style of a sultan was perpetually fluctuating between a greedy desire of conquest and the sense of his own weakness. But even in this point of view his proceedings can only be understood, when we recollect that Mithradates had become acquainted by twenty years' experience with the Roman policy of that day. He knew very well that the Roman government were far from desirous of war; that they in fact, looking to the serious danger which threatened their rule from any general of reputation, and with the fresh remembrance of the Cimbrian war and Marius, dreaded war still more if possible than he did himself. He acted accordingly. He was not afraid to demean himself in a way which would have given to any energetic government not fettered by selfish considerations manifold ground and occasion for declaring war; but he carefully avoided any open rupture which would have placed the senate under the necessity of declaring it. As soon as men appeared to be in earnest he drew back, before Sulla as well as before Aquillius; he hoped, doubtless, that he would not always be confronted by energetic generals, that he too would, as well as Jugurtha, fall in with his Scaurus or Albinus. It must be owned that this hope was not without reason; although the very example of Jugurtha had on the other hand shown how foolish it was to confound the bribery of a Roman commander and the corruption of a Roman army with the conquest of the Roman people.

Aquillius Brings about War Nicomedes

Thus matters stood between peace and war, and looked quite as if they would drag on for long in the same indecisive position. But it was not the intention of Aquillius to allow this; and, as he could not compel his government to declare war against Mithradates, he made use of Nicomedes for that purpose. The latter, who was under the power of the Roman general and was, moreover, his debtor for the accumulated war expenses and for

sums promised to the general in person, could not avoid complying with the suggestion that he should begin war with Mithradates. The declaration of war by Bithynia took place; but, even when the vessels of Nicomedes closed the Bosphorus against those of Pontus, and his troops marched into the frontier districts of Pontus and laid waste the region of Amastris, Mithradates remained still unshaken in his policy of peace; instead of driving the Bithynians over the frontier, he lodged a complaint with the Roman envoys and asked them either to mediate or to allow him the privilege of self-defence. But he was informed by Aquillius, that he must under all circumstances refrain from war against Nicomedes. That indeed was plain. They had employed exactly the same policy against Carthage; they allowed the victim to be set upon by the Roman hounds and forbade its defending itself against them. Mithradates reckoned himself lost, just as the Carthaginians had done; but, while the Phoenicians yielded from despair, the king of Sinope did the very opposite and assembled his troops and ships. "Does not even he who must succumb," he is reported to have said, "defend himself against the robber?" His son Ariobarzanes received orders to advance into Cappadocia; a message was sent once more to the Roman envoys to inform them of the step to which necessity had driven the king, and to demand their ultimatum. It was to the effect which was to be anticipated. Although neither the Roman senate nor king Mithradates nor king Nicomedes had desired the rupture, Aquillius desired it and war ensued (end of 665).

Preparations of Mithradates

Mithradates prosecuted the political and military preparations for the passage of arms thus forced upon him with all his characteristic energy. First of all he drew closer his alliance with Tigranes king of Armenia, and obtained from him the promise of an auxiliary army which was to march into western Asia and to take possession of the soil there for king

Mithradates and of the moveable property for king Tigranes. The Parthian king, offended by the haughty carriage of Sulla, though not exactly coming forward as an antagonist to the Romans, did not act as their ally. To the Greeks the king endeavoured to present himself in the character of Philip and Perseus, as the defender of the Greek nation against the alien rule of the Romans. Pontic envoys were sent to the king of Egypt and to the last remnant of free Greece, the league of the Cretan cities, and adjured those for whom Rome had already forged her chains to rise now at the last moment and save Hellenic nationality; the attempt was in the case of Crete at least not wholly in vain, and numerous Cretans took service in the Pontic army. Hopes were entertained that the lesser and least of the protected states—Numidia, Syria, the Hellenic republics—would successively rebel, and that the provinces would revolt, particularly the west of Asia Minor, the victim of unbounded oppression. Efforts were made to excite a Thracian rising, and even to arouse Macedonia to revolt. Piracy, which even previously was flourishing, was now everywhere let loose as a most welcome ally, and with alarming rapidity squadrons of corsairs, calling themselves Pontic privateers, filled the Mediterranean far and wide. With eagerness and delight accounts were received of the commotions among the Roman burgesses, and of the Italian insurrection subdued yet far from extinguished. No direct relations, however, were formed with the discontented and the insurgents in Italy; except that a foreign corps armed and organized in the Roman fashion was created in Asia, the flower of which consisted of Roman and Italian refugees. Forces like those of Mithradates had not been seen in Asia since the Persian wars. The statements that, leaving out of account the Armenian auxiliary army, he took the field with 250,000 infantry and 40,000 cavalry, and that 300 Pontic decked and 100 open vessels put to sea, seem not too exaggerated in the case of a warlike sovereign who had at his disposal the numberless inhabitants of the steppes. His generals, particularly the brothers

Neoptolemus and Archelaus, were experienced and cautious Greek captains; among the soldiers of the king there was no want of brave men who despised death; and the armour glittering with gold and silver and the rich dresses of the Scythians and Medes mingled gaily with the bronze and steel of the Greek troopers. No unity of military organization, it is true, bound together these party-coloured masses; the army of Mithradates was just one of those unwieldy Asiatic war-machines, which had so often already—on the last occasion exactly a century before at Magnesia—succumbed to a superior military organization; but still the east was in arms against the Romans, while in the western half of the empire also matters looked far from peaceful.

Weak Counterpreparations of the Romans

However much it was in itself a political necessity for Rome to declare war against Mithradates, yet the particular moment was as unhappily chosen as possible; and for this reason it is very probable that Manius Aquillius brought about the rupture between Rome and Mithradates at this precise time primarily from regard to his own interests. For the moment they had no other troops at their disposal in Asia than the small Roman division under Lucius Cassius and the militia of western Asia, and, owing to the military and financial distress in which they were placed at home in consequence of the insurrectionary war, a Roman army could not in the most favourable case land in Asia before the summer of 666. Hitherto the Roman magistrates there had a difficult position; but they hoped to protect the Roman province and to be able to hold their ground as they stood—the Bithynian army under king Nicomedes in its position taken up in the previous year in the Paphlagonian territory between Amastris and Sinope, and the divisions under Lucius Cassius, Manius Aquillius, and Quintus Oppius, farther back in the Bithynian, Galatian, and Cappadocian

territories, while the Bithyno-Roman fleet continued to blockade the Bosphorus.

Mithradates Occupies Asia Minor Anti-Roman Movements There

In the beginning of the spring of 666 Mithradates assumed the offensive. On a tributary of the Halys, the Amnias (near the modern Tesch Kopri), the Pontic vanguard of cavalry and light-armed troops encountered the Bithynian army, and notwithstanding its very superior numbers so broke it at the first onset that the beaten army dispersed and the camp and military chest fell into the hands of the victors. It was mainly to Neoptolemus and Archelaus that the king was indebted for this brilliant success. The far more wretched Asiatic militia, stationed farther back, thereupon gave themselves up as vanquished, even before they encountered the enemy; when the generals of Mithradates approached them, they dispersed. A Roman division was defeated in Cappadocia; Cassius sought to keep the field in Phrygia with the militia, but he discharged it again without venturing on a battle, and threw himself with his few trustworthy troops into the townships on the upper Maeander, particularly into Apamea. Oppius in like manner evacuated Pamphylia and shut himself up in the Phrygian Laodicea; Aquillius was overtaken while retreating at the Sangarius in the Bithynian territory, and so totally defeated that he lost his camp and had to seek refuge at Pergamus in the Roman province; the latter also was soon overrun, and Pergamus itself fell into the hands of the king, as likewise the Bosphorus and the ships that were there. After each victory Mithradates had dismissed all the prisoners belonging to the militia of Asia Minor, and had neglected no step to raise to a higher pitch the national sympathies that were from the first turned towards him. Now the whole country as far as the Maeander was with the exception of a few fortresses in his power; and news at the same time arrived, that a new revolution had broken out at Rome, that the

consul Sulla destined to act against Mithradates had instead of embarking for Asia marched on Rome, that the most celebrated Roman generals were fighting battles with each other in order to settle to whom the chief command in the Asiatic war should belong. Rome seemed zealously employed in the work of self-destruction: it is no wonder that, though even now minorities everywhere adhered to Rome, the great body of the natives of Asia Minor joined the Pontic king. Hellenes and Asiatics united in the rejoicing which welcomed the deliverer; it became usual to compliment the king, in whom as in the divine conqueror of the Indians Asia and Hellas once more found a common meeting-point, under the name of the new Dionysus. The cities and islands sent messengers to meet him, wherever he went, and to invite "the delivering god" to visit them; and in festal attire the citizens flocked forth in front of their gates to receive him. Several places delivered the Roman officers sojourning among them in chains to the king; Laodicea thus surrendered Quintus Oppius, the commandant of the town, and Mytilene in Lesbos the consular Manius Aquillius.(12) The whole fury of the barbarian, who gets the man before whom he has trembled into his power, discharged itself on the unhappy author of the war. The aged man was led throughout Asia Minor, sometimes on foot chained to a powerful mounted Bastarnian, sometimes bound on an ass and proclaiming his own name; and, when at length the pitiful spectacle again arrived at the royal quarters in Pergamus, by the king's orders molten gold was poured down his throat—in order to satiate his avarice, which had really occasioned the war — till he expired in torture.

Orders Issued from Ephesus for a General Massacre

But the king was not content with this savage mockery, which alone suffices to erase its author's name from the roll of true nobility. From Ephesus king Mithradates issued orders to all the governors and cities dependent on him to put to death on one and the same day all Italians

residing within their bounds, whether free or slaves, without distinction of sex or age, and on no account, under severe penalties, to aid any of the proscribed to escape; to cast forth the corpses of the slain as a prey to the birds; to confiscate their property and to hand over one half of it to the murderers, and the other half to the king. The horrible orders were—excepting in a few districts, such as the island of Cos—punctually executed, and eighty, or according to other accounts one hundred and fifty, thousand—if not innocent, at least defenceless—men, women, and children were slaughtered in cold blood in one day in Asia Minor; a fearful execution, in which the good opportunity of getting rid of debts and the Asiatic servile willingness to perform any executioner's office at the bidding of the sultan had at least as much part as the comparatively noble feeling of revenge. In a political point of view this measure was not only without any rational object—for its financial purpose might have been attained without this bloody edict, and the natives of Asia Minor were not to be driven into warlike zeal even by the consciousness of the most blood-stained guilt—but even opposed to the king's designs, for on the one hand it compelled the Roman senate, so far as it was still capable of energy at all, to an energetic prosecution of the war, and on the other hand it struck at not the Romans merely, but the king's natural allies as well, the non-Roman Italians. This Ephesian massacre was altogether a mere meaningless act of brutally blind revenge, which obtains a false semblance of grandeur simply through the colossal proportions in which the character of sultanic rule was here displayed.

Organization of the Conquered Provinces

The king's views altogether grew high; he had begun the war from despair, but the unexpectedly easy victory and the non-arrival of the dreaded Sulla occasioned a transition to the most highflown hopes. He set up his home in the west of Asia Minor; Pergamus the seat of the Roman

governor became his new capital, the old kingdom of Sinope was handed over to the king's son Mithradates to be administered as a viceroyship; Cappadocia, Phrygia, Bithynia were organized as Pontic satrapies. The grandees of the empire and the king's favourites were loaded with rich gifts and fiefs, and not only were the arrears of taxes remitted, but exemption from taxation for five years was promised, to all the communities- a measure which was as much a mistake as the massacre of the Romans, if the king expected thereby to secure the fidelity of the inhabitants of Asia Minor.

The king's treasury was, no doubt, copiously replenished otherwise by the immense sums which accrued from the property of the Italians and other confiscations; for instance in Cos alone 800 talents (195,000 pounds) which the Jews had deposited there were carried off by Mithradates. The northern portion of Asia Minor and most of the islands belonging to it were in the king's power; except some petty Paphlagonian dynasts, there was hardly a district which still adhered to Rome; the whole Aegean Sea was commanded by his fleets. The south-west alone, the city-leagues of Caria and Lycia and the city of Rhodes, resisted him. In Caria, no doubt, Stratonicea was reduced by force of arms; but Magnesia on the Sipylus successfully withstood a severe siege, in which Mithradates' ablest officer Archelaus was defeated and wounded. Rhodes, the asylum of the Romans who had escaped from Asia with the governor Lucius Cassius among them, was assailed on the part of Mithradates by sea and land with immense superiority of force. But his sailors, courageously as they did their duty under the eyes of the king, were awkward novices, and so Rhodian squadrons vanquished those of Pontus four times as strong and returned home with captured vessels. By land also the siege made no progress; after a part of the works had been destroyed, Mithradates abandoned the enterprise, and the important island as well as the mainland opposite remained in the hands of the Romans.

Pontic Invasion of Europe
Predatory Inroads of the Thracians
Thrace and Macedonia Occupied by the Pontic Armies
Pontic Fleet in the Aegean

But not only was the Asiatic province occupied by Mithradates almost without defending itself, chiefly in consequence of the Sulpician revolution breaking out at a most unfavourable time; Mithradates even directed an attack against Europe. Already since 662 the neighbours of Macedonia on her northern and eastern frontier had been renewing their incursions with remarkable vehemence and perseverance; in the years 664, 665 the Thracians overran Macedonia and all Epirus and plundered the temple of Dodona. Still more singular was the circumstance, that with these movements was combined a renewed attempt to place a pretender on the Macedonian throne in the person of one Euphenes. Mithradates, who from the Crimea maintained connections with the Thracians, was hardly a stranger to all these events. The praetor Gaius Sentius defended himself, it is true, against these intruders with the aid of the Thracian Dentheletae; but it was not long before mightier opponents came against him. Mithradates, carried away by his successes, had formed the bold resolution that he would, like Antiochus, bring the war for the sovereignty of Asia to a decision in Greece, and had by land and sea directed thither the flower of his troops. His son Ariarathes penetrated from Thrace into the weakly-defended Macedonia, subduing the country as he advanced and parcelling it into Pontic satrapies. Abdera and Philippi became the principal bases for the operations of the Pontic arms in Europe. The Pontic fleet, commanded by Mithradates' best general Archelaus, appeared in the Aegean Sea, where scarce a Roman sail was to be found. Delos, the emporium of the Roman commerce in those waters, was occupied and nearly 20,000 men, mostly Italians, were massacred there; Euboea suffered a similar fate; all the islands to the east of the Malean promontory were soon in the hands of the

enemy; they might proceed to attack the mainland itself. The assault, no doubt, which the Pontic fleet made from Euboea on the important Demetrias, was repelled by Bruttius Sura, the brave lieutenant of the governor of Macedonia, with his handful of troops and a few vessels hurriedly collected, and he even occupied the island of Sciathus; but he could not prevent the enemy from establishing himself in Greece proper.

The Pontic Proceedings in Greece

There Mithradates carried on his operations not only by arms, but at the same time by national propagandism. His chief instrument for Athens was one Aristion, by birth an Attic slave, by profession formerly a teacher of the Epicurean philosophy, now a minion of Mithradates; an excellent master of persuasion, who by the brilliant career which he pursued at court knew how to dazzle the mob, and with due gravity to assure them that help was already on the way to Mithradates from Carthage, which had been for about sixty years lying in ruins. These addresses of the new Pericles were so far effectual that, while the few persons possessed of judgment escaped from Athens, the mob and one or two literati whose heads were turned formally renounced the Roman rule. So the ex-philosopher became a despot who, supported by his bands of Pontic mercenaries, commenced an infamous and bloody rule; and the Piraeus was converted into a Pontic harbour. As soon as the troops of Mithradates gained a footing on the Greek continent, most of the small free states—the Achaeans, Laconians, Boeotians—as far as Thessaly joined them. Sura, after having drawn some reinforcements from Macedonia, advanced into Boeotia to bring help to the besieged Thespieae and engaged in conflicts with Archelaus and Aristion during three days at Chaeronea; but they led to no decision and Sura was obliged to retire when the Pontic reinforcements from the Peloponnesus approached (end of 666, beg. of 667). So commanding was the position of Mithradates, particularly by sea, that an embassy of Italian insurgents could invite him to make an

attempt to land in Italy; but their cause was already by that time lost, and the king rejected the suggestion.

Position of the Romans

The position of the Roman government began to be critical. Asia Minor and Hellas were wholly, Macedonia to a considerable extent, in the enemy's hands; by sea the Pontic flag ruled without a rival. Then there was the Italian insurrection, which, though baffled on the whole, still held the undisputed command of wide districts of Italy; the barely hushed revolution, which threatened every moment to break out afresh and more formidably; and, lastly, the alarming commercial and monetary crisis⁽¹³⁾ occasioned by the internal troubles of Italy and the enormous losses of the Asiatic capitalists, and the want of trustworthy troops. The government would have required three armies, to keep down the revolution in Rome, to crush completely the insurrection in Italy, and to wage war in Asia; it had but one, that of Sulla; for the northern army was, under the untrustworthy Gnaeus Strabo, simply an additional embarrassment. Sulla had to choose which of these three tasks he would undertake; he decided, as we have seen, for the Asiatic war. It was no trifling matter—we should perhaps say, it was a great act of patriotism—that in this conflict between the general interest of his country and the special interest of his party the former retained the ascendancy; and that Sulla, in spite of the dangers which his removal from Italy involved for his constitution and his party, landed in the spring of 667 on the coast of Epirus.

Sulla's Landing Greece Occupied

But he came not, as Roman commanders-in-chief had been wont to make their appearance in the East. That his army of five legions or of at most 30,000 men,⁽¹⁴⁾ was little stronger than an ordinary consular army, was the

least element of difference. Formerly in the eastern wars a Roman fleet had never been wanting, and had in fact without exception commanded the sea; Sulla, sent to reconquer two continents and the islands of the Aegean sea, arrived without a single vessel of war. Formerly the general had brought with him a full chest and drawn the greatest portion of his supplies by sea from home; Sulla came with empty hands—for the sums raised with difficulty for the campaign of 666 were expended in Italy—and found himself exclusively left dependent on requisitions. Formerly the general had found his only opponent in the enemy's camp, and since the close of the struggle between the orders political factions had without exception been united in opposing the public foe; but Romans of note fought under the standards of Mithradates, large districts of Italy desired to enter into alliance with him, and it was at least doubtful whether the democratic party would follow the glorious example that Sulla had set before it, and keep truce with him so long as he was fighting against the Asiatic king. But the vigorous general, who had to contend with all these embarrassments, was not accustomed to trouble himself about more remote dangers before finishing the task immediately in hand. When his proposals of peace addressed to the king, which substantially amounted to a restoration of the state of matters before the war, met with no acceptance, he advanced just as he had landed, from the harbours of Epirus to Boeotia, defeated the generals of the enemy Archelaus and Aristion there at Mount Tilphossium, and after that victory possessed himself almost without resistance of the whole Grecian mainland with the exception of the fortresses of Athens and the Piraeus, into which Aristion and Archelaus had thrown themselves, and which he failed to carry by a coup de main. A Roman division under Lucius Hortensius occupied Thessaly and made incursions into Macedonia; another under Munatius stationed itself before Chalcis, to keep off the enemy's corps under Neoptolemus in Euboea; Sulla himself formed a camp at Eleusis and Megara, from which he commanded Greece and the Peloponnesus, and

prosecuted the siege of the city and harbour of Athens. The Hellenic cities, governed as they always were by their immediate fears, submitted unconditionally to the Romans, and were glad when they were allowed to ransom themselves from more severe punishment by supplying provisions and men and paying fines.

Protracted Siege of Athens and the Piraeus Athens Falls

The sieges in Attica advanced less rapidly. Sulla found himself compelled to prepare all sorts of heavy besieging implements for which the trees of the Academy and the Lyceum had to supply the timber. Archelaus conducted the defence with equal vigour and judgment; he armed the crews of his vessels, and thus reinforced repelled the attacks of the Romans with superior strength and made frequent and not seldom successful sorties. The Pontic army of Dromichaetes advancing to the relief of the city was defeated under the walls of Athens by the Romans after a severe struggle, in which Sulla's brave legate Lucius Licinius Murena particularly distinguished himself; but the siege did not on that account advance more rapidly. From Macedonia, where the Cappadocians had meanwhile definitively established themselves, plentiful and regular supplies arrived by sea, which Sulla was not in a condition to cut off from the harbour- fortress; in Athens no doubt provisions were beginning to fail, but from the proximity of the two fortresses Archelaus was enabled to make various attempts to throw quantities of grain into Athens, which were not wholly unsuccessful. So the winter of 667-8 passed away tediously without result. As soon as the season allowed, Sulla threw himself with vehemence on the Piraeus; he in fact succeeded by missiles and mines in making a breach in part of the strong walls of Pericles, and immediately the Romans advanced to the assault; but it was repulsed, and on its being renewed crescent-shaped entrenchments were found constructed behind the fallen walls, from which

the invaders found themselves assailed on three sides with missiles and compelled to retire. Sulla then raised the siege, and contented himself with a blockade. In the meanwhile the provisions in Athens were wholly exhausted; the garrison attempted to procure a capitulation, but Sulla sent back their fluent envoys with the hint that he stood before them not as a student but as a general, and would accept only unconditional surrender. When Aristion, well knowing what fate was in store for him, delayed compliance, the ladders were applied and the city, hardly any longer defended, was taken by storm (1 March 668). Aristion threw himself into the Acropolis, where he soon afterwards surrendered. The Roman general left the soldiery to murder and plunder in the captured city and the more considerable ringleaders of the revolt to be executed; but the city itself obtained back from him its liberty and its possessions— even the important Delos,—and was thus once more saved by its illustrious dead.

Critical Position of Sulla

Want of a Fleet

The Epicurean schoolmaster had thus been vanquished; but the position of Sulla remained in the highest degree difficult, and even desperate. He had now been more than a year in the field without having advanced a step worth mentioning; a single port mocked all his exertions, while Asia was utterly left to itself, and the conquest of Macedonia by Mithradates' lieutenants had recently been completed by the capture of Amphipolis. Without a fleet—it was becoming daily more apparent—it was not only impossible to secure his communications and supplies in presence of the ships of the enemy and the numerous pirates, but impossible to recover even the Piraeus, to say nothing of Asia and the islands; and yet it was difficult to see how ships of war were to be got. As early as the winter of 667-8 Sulla had despatched one of his ablest and most dexterous officers, Lucius Licinius Lucullus, into the eastern waters, to raise ships there if

possible. Lucullus put to sea with six open boats, which he had borrowed from the Rhodians and other small communities; he himself merely by an accident escaped from a piratic squadron, which captured most of his boats; deceiving the enemy by changing his vessels he arrived by way of Crete and Cyrene at Alexandria; but the Egyptian court rejected his request for the support of ships of war with equal courtesy and decision. Hardly anything illustrates so clearly as does this fact the sad decay of the Roman state, which had once been able gratefully to decline the offer of the kings of Egypt to assist the Romans with all their naval force, and now itself seemed to the Alexandrian statesmen bankrupt. To all this fell to be added the financial embarrassment; Sulla had already been obliged to empty the treasuries of the Olympian Zeus, of the Delphic Apollo, and of the Epidaurian Asklepios, for which the gods were compensated by the moiety, confiscated by way of penalty, of the Theban territory. But far worse than all this military and financial perplexity was the reaction of the political revolution in Rome; the rapid, sweeping, violent accomplishment of which had far surpassed the worst apprehensions. The revolution conducted the government in the capital; Sulla had been deposed, his Asiatic command had been entrusted to the democratic consul Lucius Valerius Flaccus, who might be daily looked for in Greece. The soldiers had no doubt adhered to Sulla, who made every effort to keep them in good humour; but what could be expected, when money and supplies were wanting, when the general was deposed and proscribed, when his successor was on the way, and, in addition to all this, the war against the tough antagonist who commanded the sea was protracted without prospect of a close?

Pontic Armies Enter Greece

Evacuation of the Piraeus

King Mithradates undertook to deliver his antagonist from his perilous position. He it was, to all appearance, who disapproved the defensive

system of his generals and sent orders to them to vanquish the enemy with the utmost speed. As early as 667 his son Ariarathes had started from Macedonia to combat Sulla in Greece proper; only the sudden death, which overtook the prince on the march at the Tisaeon promontory in Thessaly, had at that time led to the abandonment of the expedition. His successor Taxiles now appeared (668), driving before him the Roman corps stationed in Thessaly, with an army of, it is said, 100,000 infantry and 10,000 cavalry at Thermopylae. Dromichaetes joined him. Archelaus also—compelled, apparently, not so much by Sulla's arms as by his master's orders—evacuated the Piraeus first partially and then entirely, and joined the Pontic main army in Boeotia. Sulla, after the Piraeus with all its greatly-admired fortifications had been by his orders destroyed, followed the Pontic army, in the hope of being able to fight a pitched battle before the arrival of Flaccus. In vain Archelaus advised that they should avoid such a battle, but should keep the sea and the coast occupied and the enemy in suspense. Now just as formerly under Darius and Antiochus, the masses of the Orientals, like animals terrified in the midst of a fire, flung themselves hastily and blindly into battle; and did so on this occasion more foolishly than ever, since the Asiatics might perhaps have needed to wait but a few months in order to be the spectators of a battle between Sulla and Flaccus.

Battle of Chaerones

In the plain of the Cephissus not far from Chaeronea, in March 668, the armies met. Even including the division driven back from Thessaly, which had succeeded in accomplishing its junction with the Roman main army, and including the Greek contingents, the Roman army found itself opposed to a foe three times as strong and particularly to a cavalry far superior and from the nature of the field of battle very dangerous, against which Sulla found it necessary to protect his flanks by digging trenches, while in front he caused a chain of palisades to be introduced between his first and second

lines for protection against the enemy's war-chariots. When the war chariots rolled on to open the battle, the first line of the Romans withdrew behind this row of stakes: the chariots, rebounding from it and scared by the Roman slingers and archers, threw themselves on their own line and carried confusion both into the Macedonian phalanx and into the corps of the Italian refugees. Archelaus brought up in haste his cavalry from both flanks and sent it to engage the enemy, with a view to gain time for rearranging his infantry; it charged with great fury and broke through the Roman ranks; but the Roman infantry rapidly formed in close masses and courageously withstood the horsemen assailing them on every side. Meanwhile Sulla himself on the right wing led his cavalry against the exposed flank of the enemy; the Asiatic infantry gave way before it was even properly engaged, and its giving way carried confusion also into the masses of the cavalry. A general attack of the Roman infantry, which through the wavering demeanour of the hostile cavalry gained time to breathe, decided the victory. The closing of the gates of the camp which Archelaus ordered to check the flight, only increased the slaughter, and when the gates at length were opened, the Romans entered at the same time with the Asiatics. It is said that Archelaus brought not a twelfth part of his force in safety to Chalcis; Sulla followed him to the Euripus; he was not in a position to cross that narrow arm of the sea.

Slight Effect of the Victory

Sulla and Flaccus

It was a great victory, but the results were trifling, partly because of the want of a fleet, partly because the Roman conqueror, instead of pursuing the vanquished, was under the necessity in the first instance of protecting himself against his own countrymen. The sea was still exclusively covered by Pontic squadrons, which now showed themselves even to the westward of the Malean promontory; even after the battle of Chaeronea Archelaus

landed troops on Zacynthus and made an attempt to establish himself on that island. Moreover Lucius Flaccus had in the meanwhile actually landed with two legions in Epirus, not without having sustained severe loss on the way from storms and from the war-vessels of the enemy cruising in the Adriatic; his troops were already in Thessaly; thither Sulla had in the first instance to turn. The two Roman armies encamped over against each other at Melitaea on the northern slope of Mount Othrys; a collision seemed inevitable. But Flaccus, after he had opportunity of convincing himself that Sulla's soldiers were by no means inclined to betray their victorious leader to the totally unknown democratic commander-in chief, but that on the contrary his own advanced guard began to desert to Sulla's camp, evaded a conflict to which he was in no respect equal, and set out towards the north, with the view of getting through Macedonia and Thrace to Asia and there paving the way for further results by subduing Mithradates. That Sulla should have allowed his weaker opponent to depart without hindrance, and instead of following him should have returned to Athens, where he seems to have passed the winter of 668-9, is in a military point of view surprising. We may suppose perhaps that in this also he was guided by political motives, and that he was sufficiently moderate and patriotic in his views willingly to forgo a victory over his countrymen, at least so long as they had still the Asiatics to deal with, and to find the most tolerable solution of the unhappy dilemma in allowing the armies of the revolution in Asia and of the oligarchy in Europe to fight against the common foe.

Second Pontic Army Sent to Greece

Battle of Orchomenus

In the spring of 669 there was again fresh work in Europe. Mithradates, who continued his preparations indefatigably in Asia Minor, had sent an army not much less than that which had been extirpated at Chaeronea, under Dorylaeus to Euboea; thence it had, after a junction with the remains

of the army of Archelaus, passed over the Euripus to Boeotia. The Pontic king, who judged of what his army could do by the standard of victories over the Bithynian and Cappadocian militia, did not understand the unfavourable turn which things had taken in Europe; the circles of the courtiers were already whispering as to the treason of Archelaus; peremptory orders were issued to fight a second battle at once with the new army, and not to fail on this occasion to annihilate the Romans. The master's will was carried out, if not in conquering, at least in fighting. The Romans and Asiatics met once more in the plain of the Cephissus, near Orchomenus. The numerous and excellent cavalry of the latter flung itself impetuously on the Roman infantry, which began to waver and give way: the danger was so urgent, that Sulla seized a standard and advancing with his adjutants and orderlies against the enemy called out with a loud voice to the soldiers that, if they should be asked at home where they had abandoned their general, they might reply—at Orchomenus. This had its effect; the legions rallied and vanquished the enemy's horse, after which the infantry were overthrown with little difficulty. On the following day the camp of the Asiatics was surrounded and stormed; far the greatest portion of them fell or perished in the Copaic marshes; a few only, Archelaus among the rest, reached Euboea. The Boeotian communities had severely to pay for their renewed revolt from Rome, some of them even to annihilation. Nothing opposed the advance into Macedonia and Thrace; Philippi was occupied, Abdera was voluntarily evacuated by the Pontic garrison, the European continent in general was cleared of the enemy. At the end of the third year of the war (669) Sulla was able to take up winter-quarters in Thessaly, with a view to begin the Asiatic campaign in the spring of 670,(15) for which purpose he gave orders to build ships in the Thessalian ports.

Reaction in Asia Minor against Mithradates

Meanwhile the circumstances of Asia Minor also had undergone a material change. If king Mithradates had once come forward as the liberator of the Hellenes, if he had introduced his rule with the recognition of civic independence and with remission of taxes, they had after this brief ecstasy been but too rapidly and too bitterly undeceived. He had very soon emerged in his true character, and had begun to exercise a despotism far surpassing the tyranny of the Roman governors—a despotism which drove even the patient inhabitants of Asia Minor to open revolt. The sultan again resorted to the most violent expedients. His decrees granted independence to the townships which turned to him, citizenship to the -metoeci-, full remission of debts to the debtors, lands to those that had none, freedom to the slaves; nearly 15,000 such manumitted slaves fought in the army of Archelaus. The most fearful scenes were the result of this high-handed subversion of all existing order. The most considerable mercantile cities, Smyrna, Colophon, Ephesus, Tralles, Sardes, closed their gates against the king's governors or put them to death, and declared for Rome.(16) On the other hand the king's lieutenant Diodorus, a philosopher of note like Aristion, of another school, but equally available for the worst subservience, under the instructions of his master caused the whole town-council of Adramyttium to be put to death. The Chians, who were suspected of an inclination to Rome, were fined in the first instance in 2000 talents (480,000 pounds) and, when the payment was found not correct, they were en masse put on board ship and deported in chains under the charge of their own slaves to the coast of Colchis, while their island was occupied with Pontic colonists. The king gave orders that the chiefs of the Celts in Asia Minor should all be put to death along with their wives and children in one day, and that Galatia should be converted into a Pontic satrapy. Most of these bloody edicts were carried into effect either at Mithradates' own headquarters or in Galatia, but the few who escaped placed themselves at the head of their powerful tribes and expelled Eumachus, the governor of the king, out of their bounds. It

may readily be conceived that such a king would be pursued by the daggers of assassins; sixteen hundred men were condemned to death by the royal courts of inquisition as having been implicated in such conspiracies.

Lucullus and the Fleet on the Asiatic Coast

While the king was thus by his suicidal fury provoking his temporary subjects to rise in arms against him, he was at the same time hard pressed by the Romans in Asia, both by sea and by land. Lucullus, after the failure of his attempt to lead forth the Egyptian fleet against Mithradates, had with better success repeated his efforts to procure vessels of war in the Syrian maritime towns, and reinforced his nascent fleet in the ports of Cyprus, Pamphylia, and Rhodes till he found himself strong enough to proceed to the attack. He dexterously avoided measuring himself against superior forces and yet obtained no inconsiderable advantages. The Cnidian island and peninsula were occupied by him, Samos was assailed, Colophon and Chios were wrested from the enemy.

Flaccus Arrives in Asia

Fimbria

Fimbria's Victory at Miletropolis

Perilous Position of Mithradates

Meanwhile Flaccus had proceeded with his army through Macedonia and Thrace to Byzantium, and thence, passing the straits, had reached Chalcedon (end of 668). There a military insurrection broke out against the general, ostensibly because he embezzled the spoil from the soldiers. The soul of it was one of the chief officers of the army, a man whose name had become a proverb in Rome for a true mob-orator, Gaius Flavius Fimbria, who, after having differed with his commander-in-chief, transferred the demagogic practices which he had begun in the Forum to the camp. Flaccus was deposed by the army and soon afterwards put to death at Nicomedia,

not far from Chalcedon; Fimbria was installed by decree of the soldiers in his stead. As a matter of course he allowed his troops every indulgence; in the friendly Cyzicus, for instance, the citizens were ordered to surrender all their property to the soldiers on pain of death, and by way of warning example two of the most respectable citizens were at once executed. Nevertheless in a military point of view the change of commander-in-chief was a gain; Fimbria was not, like Flaccus, an incapable general, but energetic and talented. At Miletopolis (on the Rhyndacus to the west of Brussa) he defeated the younger Mithradates, who as governor of the satrapy of Pontus had marched against him, completely in a nocturnal assault, and by this victory opened his way to Pergamus, the capital formerly of the Roman province and now of the Pontic king, whence he dislodged the king and compelled him to take flight to the port of Pitane not far off, with the view of there embarking. Just at that moment Lucullus appeared in those waters with his fleet; Fimbria adjured him to render assistance so that he might be enabled to capture the king. But the Optimate was stronger in Lucullus than the patriot; he sailed onward and the king escaped to Mitylene. The situation of Mithradates was even thus sufficiently embarrassed. At the end of 669 Europe was lost, Asia Minor was partly in rebellion against him, partly occupied by a Roman army; and he was himself threatened by the latter in his immediate vicinity. The Roman fleet under Lucullus had maintained its position on the Trojan coast by two successful naval engagements at the promontory of Lectum and at the island of Tenedos; it was joined there by the ships which had in the meanwhile been built by Sulla's orders in Thessaly, and by its position commanding the Hellespont it secured to the general of the Roman senatorial army a safe and easy passage next spring to Asia.

Negotiations for Peace

Mithradates attempted to negotiate. Under other circumstances no doubt the author of the edict for the Ephesian massacre could never have cherished the hope of being admitted at all to terms of peace with Rome; but amidst the internal convulsions of the Roman republic, when the ruling government had declared the general sent against Mithradates an outlaw and subjected his partisans at home to the most fearful persecutions, when one Roman general opposed the other and yet both stood opposed to the same foe, he hoped that he should be able to obtain not merely a peace, but a favourable peace. He had the choice of applying to Sulla or to Fimbria; he caused negotiations to be instituted with both, yet it seems from the first to have been his design to come to terms with Sulla, who, at least from the king's point of view, seemed decidedly superior to his rival. His general Archelaus, as instructed by his master, asked Sulla to cede Asia to the king and to expect in return the king's aid against the democratic party in Rome. But Sulla, cool and clear as ever, while urgently desiring a speedy settlement of Asiatic affairs on account of the position of things in Italy, estimated the advantages of the Cappadocian alliance for the war impending over him in Italy as very slight, and was altogether too much of a Roman to consent to so disgraceful and so injurious a concession.

Preliminaries of Delium

In the peace conferences, which took place in the winter of 669-70, at Delium on the coast of Boeotia opposite to Euboea, Sulla distinctly refused to cede even a foot's-breadth of land, but, with good reason faithful to the old Roman custom of not increasing after victory the demands made before battle, did not go beyond the conditions previously laid down. He required the restoration of all the conquests made by the king and not wrested from him again—Cappadocia, Paphlagonia, Galatia, Bithynia, Asia Minor and the islands—the surrender of prisoners and deserters, the delivering up of the eighty war-vessels of Archelaus to reinforce the still insignificant

Roman fleet; lastly, pay and provisions for the army and the very moderate sum of 3000 talents (720,000 pounds) as indemnity for the expenses of the war. The Chians carried off to the Black Sea were to be sent home, the families of the Macedonians who were friendly to Rome and had become refugees were to be restored, and a number of war-vessels were to be delivered to the cities in alliance with Rome. Respecting Tigranes, who in strictness should likewise have been included in the peace, there was silence on both sides, since neither of the contracting parties cared for the endless further steps which would be occasioned by making him a party. The king thus retained the state of possession which he had before the war, nor was he subjected to any humiliation affecting his honour.⁽¹⁷⁾ Archelaus, clearly perceiving that much comparatively beyond expectation was obtained and that more was not obtainable, concluded the preliminaries and an armistice on these conditions, and withdrew the troops from the places which the Asiatics still possessed in Europe.

New Difficulties

Sulla Proceeds to Asia

But Mithradates rejected the peace and demanded at least that the Romans should not insist on the surrender of the war-vessels and should concede to him Paphlagonia; while he at the same time asserted that Fimbria was ready to grant him far more favourable conditions. Sulla, offended by this placing of his offers on an equal footing with those of an unofficial adventurer, and having already gone to the utmost measure of concession, broke off the negotiations. He had employed the interval to reorganize Macedonia and to chastise the Dardani, Sinti, and Maedi, in doing which he at once procured booty for his army and drew nearer Asia; for he was resolved at any rate to go thither, in order to come to a reckoning with Fimbria. He now at once put his legions stationed in Thrace as well as his fleet in motion towards the Hellespont. Then at length Archelaus

succeeded in wringing from his obstinate master a reluctant consent to the treaty; for which he was subsequently regarded with an evil eye at court as the author of the injurious peace, and even accused of treason, so that some time afterwards he found himself compelled to leave the country and to take refuge with the Romans, who readily received him and loaded him with honours. The Roman soldiers also murmured; their disappointment doubtless at not receiving the expected spoil of Asia probably contributed to that murmuring more than their indignation—in itself very justifiable—that the barbarian prince, who had murdered eighty thousand of their countrymen and had brought unspeakable misery on Italy and Asia, should be allowed to return home unpunished with the greatest part of the treasures which he had collected by the pillage of Asia. Sulla himself may have been painfully sensible that the political complications thwarted in a most vexatious way a task which was in a military point of view so simple, and compelled him after such victories to content himself with such a peace. But the self-denial and the sagacity with which he had conducted this whole war were only displayed afresh in the conclusion of this peace; for war with a prince, to whom almost the whole coast of the Black Sea belonged, and whose obstinacy was clearly displayed by the very last negotiations, would still under the most favourable circumstances require years, and the situation of Italy was such that it seemed almost too late even for Sulla to oppose the party in power there with the few legions which he possessed.(18) Before this could be done, however, it was absolutely necessary to overthrow the bold officer who was at the head of the democratic army in Asia, in order that he might not at some future time come from Asia to the help of the Italian revolution, just as Sulla now hoped to return from Asia and crush it. At Cypsela on the Hebrus Sulla obtained accounts of the ratification of the peace by Mithradates; but the march to Asia went on. The king, it was said, desired personally to confer with the Roman general and to cement the peace with him; it may be

presumed that this was simply a convenient pretext for transferring the army to Asia and there putting an end to Fimbria.

Peace at Dardanus
Sulla against Fimbria
Fimbria's Death

So Sulla, attended by his legions and by Archelaus, crossed the Hellespont; after he had met with Mithradates on its Asiatic shore at Dardanus and had orally concluded the treaty, he made his army continue its march till he came upon the camp of Fimbria at Thyatira not far from Pergamus, and pitched his own close beside it. The Sullan soldiers, far superior to the Fimbrians in number, discipline, leadership, and ability, looked with contempt on the dispirited and demoralized troops and their uncalled commander-in- chief. Desertions from the ranks of the Fimbrians became daily more numerous. When Fimbria ordered an attack, the soldiers refused to fight against their fellow-citizens, or even to take the oath which he required that they would stand faithfully by each other in battle. An attempt to assassinate Sulla miscarried; at the conference which Fimbria requested Sulla did not make his appearance, but contented himself with suggesting to him through one of his officers a means of personal escape. Fimbria was of an insolent temperament, but he was no poltroon; instead of accepting the vessel which Sulla offered to him and fleeing to the barbarians, he went to Pergamus and fell on his own sword in the temple of Asklepios. Those who were most compromised in his army resorted to Mithradates or to the pirates, with whom they found ready reception; the main body placed itself under the orders of Sulla.

Regulation of Asiatic Affairs

Sulla determined to leave these two legions, whom he did not trust for the impending war, behind in Asia, where the fearful crisis left for long its

lingering traces in the several cities and districts. The command of this corps and the governorship of Roman Asia he committed to his best officer, Lucius Licinius Murena. The revolutionary measures of Mithradates, such as the liberation of the slaves and the annulling of debts, were of course cancelled; a restoration, which in many places could not be carried into effect without force of arms. The towns of the territory on the eastern frontier underwent a comprehensive reorganization, and reckoned from the year 670 as the date of their being constituted. Justice moreover was exercised, as the victors understood the term. The most noted adherents of Mithradates and the authors of the massacre of the Italians were punished with death. The persons liable to taxes were obliged immediately to pay down in cash according to valuation the whole arrears of tenths and customs for the last five years; besides which they had to pay a war-indemnity of 20,000 talents (4,800,000 pounds), for the collection of which Lucius Lucullus was left behind. These were measures fearful in their rigour and dreadful in their effects; but when we recall the Ephesian decree and its execution, we feel inclined to regard them as a comparatively mild retaliation. That the exactions in other respects were not unusually oppressive, is shown by the value of the spoil afterwards carried in triumph, which amounted in precious metal to only about 1,000,000 pounds. The few communities on the other hand that had remained faithful—particularly the island of Rhodes, the region of Lycia, Magnesia on the Maeander—were richly rewarded: Rhodes received back at least a portion of the possessions withdrawn from it after the war against Perseus.(19) In like manner compensation was made as far as possible by free charters and special favours to the Chians for the hardships which they had borne, and to the Ilienses for the insanely cruel maltreatment inflicted on them by Fimbria on account of the negotiations into which they had entered with Sulla. Sulla had already brought the kings of Bithynia and Cappadocia to meet the Pontic king at Dardanus, and had made them all promise to live in peace

and good neighbourhood; on which occasion, however, the haughty Mithradates had refused to admit Ariobarzanes who was not descended of royal blood—the slave, as he called him—to his presence. Gaius Scribonius Curio was commissioned to superintend the restoration of the legal order of things in the two kingdoms evacuated by Mithradates.

Sulla Embarks for Italy

The goal was thus attained. After four years of war the Pontic king was again a client of the Romans, and a single and settled government was re-established in Greece, Macedonia, and Asia Minor; the requirements of interest and honour were satisfied, if not adequately, yet so far as circumstances would allow; Sulla had not only brilliantly distinguished himself as a soldier and general, but had the skill, in his path crossed by a thousand obstacles, to preserve the difficult mean between bold perseverance and prudent concession. Almost like Hannibal he had fought and conquered, in order that with the forces, which the first victory gave him, he might prepare forthwith for a second and severer struggle. After he had in some degree compensated his soldiers for the fatigues which they had undergone by luxurious winter-quarters in the rich west of Asia Minor, he in the spring of 671 transferred them in 1600 vessels from Ephesus to the Piraeus and thence by the land route to Patrae, where the vessels again lay ready to convey the troops to Brundisium. His arrival was preceded by a report addressed to the senate respecting his campaigns in Greece and Asia, the writer of which appeared to know nothing of his deposition; it was the mute herald of the impending restoration.

CHAPTER IX

Cinna and Sulla

Ferment in Italy

This state of suspense and uncertainty existing in Italy when Sulla took his departure for Greece in the beginning of 667 has been already described: the half-suppressed insurrection, the principal army under the more than half-usurped command of a general whose politics were very doubtful, the confusion and the manifold activity of intrigue in the capital. The victory of the oligarchy by force of arms had, in spite or because of its moderation, engendered manifold discontent. The capitalists, painfully affected by the blows of the most severe financial crisis which Rome had yet witnessed, were indignant at the government on account of the law which it had issued as to interest, and on account of the Italian and Asiatic wars which it had not prevented. The insurgents, so far as they had laid down their arms, bewailed not only the disappointment of their proud hopes of obtaining equal rights with the ruling burgesses, but also the forfeiture of their venerable treaties, and their new position as subjects utterly destitute of rights. The communities between the Alps and the Po were likewise discontented with the partial concessions made to them, and the new burgesses and freedmen were exasperated by the cancelling of the Sulpician laws. The populace of the city suffered amid the general distress, and found it intolerable that the government of the sabre was no longer disposed to

acquiesce in the constitutional rule of the bludgeon. The adherents, resident in the capital, of those outlawed after the Sulpician revolution— adherents who remained very numerous in consequence of the remarkable moderation of Sulla—laboured zealously to procure permission for the outlaws to return home; and in particular some ladies of wealth and distinction spared for this purpose neither trouble nor money. None of these grounds of ill-humour were such as to furnish any immediate prospect of a fresh violent collision between the parties; they were in great part of an aimless and temporary nature; but they all fed the general discontent, and had already been more or less concerned in producing the murder of Rufus, the repeated attempts to assassinate Sulla, the issue of the consular and tribunician elections for 667 partly in favour of the opposition.

Cinna

Carbo

Sertorius

The name of the man whom the discontented had summoned to the head of the state, Lucius Cornelius Cinna, had been hitherto scarcely heard of, except so far as he had borne himself well as an officer in the Social war. We have less information regarding the personality and the original designs of Cinna than regarding those of any other party leader in the Roman revolution. The reason is, to all appearance, simply that this man, altogether vulgar and guided by the lowest selfishness, had from the first no ulterior political plans whatever. It was asserted at his very first appearance that he had sold himself for a round sum of money to the new burgesses and the coterie of Marius, and the charge looks very credible; but even were it false, it remains nevertheless significant that a suspicion of the sort, such as was never expressed against Saturninus and Sulpicius, attached to Cinna. In fact the movement, at the head of which he put himself, has altogether the appearance of worthlessness both as to motives and as to aims. It proceeded

not so much from a party as from a number of malcontents without proper political aims or notable support, who had mainly undertaken to effect the recall of the exiles by legal or illegal means. Cinna seems to have been admitted into the conspiracy only by an afterthought and merely because the intrigue, which in consequence of the restriction of the tribunician powers needed a consul to bring forward its proposals, saw in him among the consular candidates for 667 its fittest instrument and so pushed him forward as consul. Among the leaders appearing in the second rank of the movement were some abler heads; such was the tribune of the people Gnaeus Papirius Carbo, who had made himself a name by his impetuous popular eloquence, and above all Quintus Sertorius, one of the most talented of Roman officers and a man in every respect excellent, who since his candidature for the tribunate of the people had been a personal enemy to Sulla and had been led by this quarrel into the ranks of the disaffected to which he did not at all by nature belong. The proconsul Strabo, although at variance with the government, was yet far from going along with this faction.

Outbreak of the Cinna Revolution

Victory of the Government

So long as Sulla was in Italy, the confederates for good reasons remained quiet. But when the dreaded proconsul, yielding not to the exhortations of the consul Cinna but to the urgent state of matters in the east, had embarked, Cinna, supported by the majority of the college of tribunes, immediately submitted the projects of law which had been concerted as a partial reaction against the Sullan restoration of 666. They embraced the political equalization of the new burgesses and the freedmen, as Sulpicius had proposed it, and the restitution of those who had been banished in consequence of the Sulpician revolution to their former status. The new burgesses flocked en masse to the capital, that along with the freedmen they

might terrify, and in case of need force, their opponents into compliance. But the government party was determined not to yield, consul stood against consul, Gnaeus Octavius against Lucius Cinna, and tribune against tribune; both sides appeared in great part armed on the day and at the place of voting. The tribunes of the senatorial party interposed their veto; when swords were drawn against them even on the rostra, Octavius employed force against force. His compact bands of armed men not only cleared the Via Sacra and the Forum, but also, disregarding the commands of their more gentle-minded leader, exercised horrible atrocities against the assembled multitude. The Forum swam with blood on this "Octavius' day," as it never did before or afterwards—the number of corpses was estimated at ten thousand. Cinna called on the slaves to purchase freedom for themselves by sharing in the struggle; but his appeal was as unsuccessful as the like appeal of Marius in the previous year, and no course was left to the leaders of the movement but to take flight. The constitution supplied no means of proceeding farther against the chiefs of the conspiracy, so long as their year of office lasted. But a prophet presumably more loyal than pious had announced that the banishment of the consul Cinna and of the six tribunes of the people adhering to him would restore peace and tranquillity to the country; and, in conformity not with the constitution but with this counsel of the gods fortunately laid hold of by the custodiers of oracles, the consul Cinna was by decree of the senate deprived of his office, Lucius Cornelius Merula was chosen in his stead, and outlawry was pronounced against the chiefs who had fled. It seemed as if the whole crisis were about to end in a few additions to the number of the men who were exiles in Numidia.

The Cinnans in Italy

Landing of Marius

Beyond doubt nothing further would have come of the movement, had not the senate on the one hand with its usual remissness omitted to compel the fugitives at least rapidly to quit Italy, and had the latter on the other hand been, as champions of the emancipation of the new burgesses, in a position to renew to some extent in their own favour the revolt of the Italians. Without obstruction they appeared in Tibur, in Praeneste, in all the important communities of new burgesses in Latium and Campania, and asked and obtained everywhere money and men for the furtherance of the common cause. Thus supported, they made their appearance at the army besieging Nola. The armies of this period were democratic and revolutionary in their views, wherever the general did not attach them to himself by the weight of his personal influence; the speeches of the fugitive magistrates, some of whom, especially Cinna and Sertorius, were favourably remembered by the soldiers in connection with the last campaigns, made a deep impression; the unconstitutional deposition of the popular consul and the interference of the senate with the rights of the sovereign people told on the common soldier, and the gold of the consul or rather of the new burgesses made the breach of the constitution clear to the officers. The Campanian army recognized Cinna as consul and swore the oath of fidelity to him man by man; it became a nucleus for the bands that flocked in from the new burgesses and even from the allied communities; a considerable army, though consisting mostly of recruits, soon moved from Campania towards the capital. Other bands approached it from the north. On the invitation of Cinna those who had been banished in the previous year had landed at Telamon on the Etruscan coast. There were not more than some 500 armed men, for the most part slaves of the refugees and enlisted Numidian horsemen; but, as Gaius Marius had in the previous year been willing to fraternize with the rabble of the capital, so he now ordered the -ergastula- in which the landholders of this region shut up their field-labourers during the night to be broken open, and the arms which he offered

to these for the purpose of achieving their freedom were not despised. Reinforced by these men and the contingents of the new burgesses, as well as by the exiles who flocked to him with their partisans from all sides, he soon numbered 6000 men under his eagles and was able to man forty ships, which took their station before the mouth of the Tiber and gave chase to the corn-ships sailing towards Rome. With these he placed himself at the disposal of the "consul" Cinna. The leaders of the Campanian army hesitated; the more sagacious, Sertorius in particular, seriously pointed out the danger of too closely connecting themselves with a man whose name would necessarily place him at the head of the movement, and who yet was notoriously incapable of any statesmanlike action and haunted by an insane thirst for revenge; but Cinna disregarded these scruples, and confirmed Marius in the supreme command in Etruria and at sea with proconsular powers.

Dubious Attitude of Strabo

The Cinnans around Rome

Thus the storm gathered around the capital, and the government could no longer delay bringing forward their troops to protect it.(1) But the forces of Metellus were detained by the Italians in Samnium and before Nola; Strabo alone was in a position to hasten to the help of the capital. He appeared and pitched his camp at the Colline gate: with his numerous and experienced army he might doubtless have rapidly and totally annihilated the still weak bands of insurgents; but this seemed to be no part of his design. On the contrary he allowed Rome to be actually invested by the insurgents. Cinna with his corps and that of Carbo took post on the right bank of the Tiber opposite to the Janiculum, Sertorius on the left bank confronting Pompeius over against the Servian wall. Marius with his band which had gradually increased to three legions, and in possession of a number of war-vessels, occupied one place on the coast after another till at length even Ostia fell

into his hands through treachery, and, by way of prelude as it were to the approaching reign of terror, was abandoned by the general to the savage band for massacre and pillage. The capital was placed, even by the mere obstruction of traffic, in great danger; by command of the senate the walls and gates were put in a state of defence and the burgess-levy was ordered to the Janiculum. The inaction of Strabo excited among all classes alike surprise and indignation. The suspicion that he was negotiating secretly with Cinna was natural, but was probably without foundation. A serious conflict in which he engaged the band of Sertorius, and the support which he gave to the consul Octavius when Marius had by an understanding with one of the officers of the garrison penetrated into the Janiculum, and by which in fact the insurgents were successfully beaten off again with much loss, showed that he was far from intending to unite with, or rather to place himself under, the leaders of the insurgents. It seems rather to have been his design to sell his assistance in subduing the insurrection to the alarmed government and citizens of the capital at the price of the consulship for the next year, and thereby to get the reins of government into his own hands.

Negotiations of Parties with the Italians

Death of Strabo

The senate was not, however, inclined to throw itself into the arms of one usurper in order to escape from another, and sought help elsewhere. The franchise was by decree of the senate supplementarily conferred on all the Italian communities involved in the Social war, which had laid down their arms and had in consequence thereof forfeited their old alliance.(2) It seemed as it were their intention officially to demonstrate that Rome in the war against the Italians had staked her existence for the sake not of a great object but of her own vanity: in the first momentary embarrassment, for the purpose of bringing into the field an additional thousand or two of soldiers, she sacrificed everything which had been gained at so terribly dear a cost in

the Social war. In fact, troops arrived from the communities who were benefited by this concession; but instead of the many legions promised, their contingent on the whole amounted to not more than, at most, ten thousand men. It would have been of more moment that an agreement should be come to with the Samnites and Nolans, so that the troops of the thoroughly trustworthy Metellus might be employed for the protection of the capital. But the Samnites made demands which recalled the yoke of Caudium—restitution of the spoil taken from the Samnites and of their prisoners and deserters, renunciation of the booty wrested by the Samnites from the Romans, the bestowal of the franchise on the Samnites themselves as well as on the Romans who had passed over to them. The senate rejected even in this emergency terms of peace so disgraceful, but instructed Metellus to leave behind a small division and to lead in person all the troops that could at all be dispensed with in southern Italy as quickly as possible to Rome. He obeyed. But the consequence was, that the Samnites attacked and defeated Plautius the legate left behind by Metellus and his weak band; that the garrison of Nola marched out and set on fire the neighbouring town of Abella in alliance with Rome; that Cinna and Marius, moreover, granted to the Samnites everything they asked—what mattered Roman honour to them!—and a Samnite contingent reinforced the ranks of the insurgents. It was a severe loss also, when after a combat unfavourable to the troops of the government Ariminum was occupied by the insurgents and thus the important communication between Rome and the valley of the Po, whence men and supplies were expected, was interrupted. Scarcity and famine set in. The large populous city numerously garrisoned with troops was but inadequately supplied with provisions; and Marius in particular took care to cut off its supplies more and more. He had already blocked up the Tiber by a bridge of ships; now by the capture of Antium, Lanuvium, Aricia, and other townships he gained control over the means of land communication still open, and at the same time appeased temporarily his revenge by

causing all the citizens, wherever resistance was offered, to be put to the sword with the exception of those who had possibly betrayed to him the town. Contagious diseases followed on the distress and committed dreadful ravages among the masses of soldiers densely crowded round the capital; of Strabo's veteran army 11,000, and of the troops of Octavius 6000 are said to have fallen victims to them. Yet the government did not despair; and the sudden death of Strabo was a fortunate event for it. He died of the pestilence;(3) the masses, exasperated on many grounds against him, tore his corpse from the bier and dragged it through the streets. The remnant of his troops was incorporated by the consul Octavius with his army.

Vacillation of the Government Rome Capitulates

After the arrival of Metellus and the decease of Strabo the army of the government was again at least a match for its antagonists, and was able to array itself for battle against the insurgents at the Alban Mount. But the minds of the soldiers of the government were deeply agitated; when Cinna appeared in front of them, they received him with acclamation as if he were still their general and consul; Metellus deemed it advisable not to allow the battle to come on, but to lead back the troops to their camp. The Optimates themselves wavered, and fell at variance with each other. While one party, with the honourable but stubborn and shortsighted consul Octavius at their head, perseveringly opposed all concession, Metellus more experienced in war and more judicious attempted to bring about a compromise; but his conference with Cinna excited the wrath of the extreme men on both sides: Cinna was called by Marius a weakling, Metellus was called by Octavius a traitor. The soldiers, unsettled otherwise and not without cause distrusting the leadership of the untried Octavius, suggested to Metellus that he should assume the chief command, and, when he refused, began in crowds to throw away their arms or even to desert to the enemy. The temper of the burgesses

became daily more depressed and troublesome. On the proclamation of the heralds of Cinna guaranteeing freedom to the slaves who should desert, these flocked in troops from the capital to the enemy's camp. But the proposal that the senate should guarantee freedom to the slaves willing to enter the army was decidedly resisted by Octavius. The government could not conceal from itself that it was defeated, and that nothing remained but to come to terms if possible with the leaders of the band, as the overpowered traveller comes to terms with the captain of banditti. Envoys went to Cinna; but, while they foolishly made difficulties as to recognizing him as consul, and Cinna in the interval thus prolonged transferred his camp close to the city-gates, the desertion spread to so great an extent that it was no longer possible to settle any terms. The senate submitted itself unconditionally to the outlawed consul, adding only a request that he would refrain from bloodshed, Cinna promised this, but refused to ratify his promise by an oath; Marius, who kept by his side during the negotiations, maintained a sullen silence.

Marian Reign of Terror

The gates of the capital were opened. The consul marched in with his legions; but Marius, scoffingly recalling the law of outlawry, refused to set foot in the city until the law allowed him to do so and the burgesses hastily assembled in the Forum to pass the annulling decree. He then entered, and with him the reign of terror. It was determined not to select individual victims, but to have all the notable men of the Optimate party put to death and to confiscate their property. The gates were closed; for five days and five nights the slaughter continued without interruption; even afterwards the execution of individuals who had escaped or been overlooked was of daily occurrence, and for months the bloody persecution went on throughout Italy. The consul Gnaeus Octavius was the first victim. True to his often-expressed principle, that he would rather suffer death than make the

smallest concession to men acting illegally, he refused even now to take flight, and in his consular robes awaited at the Janiculum the assassin, who was not slow to appear. Among the slain were Lucius Caesar (consul in 664) the celebrated victor of Acerrae;(4) his brother Gaius, whose unseasonable ambition had provoked the Sulpician tumult,(5) well known as an orator and poet and as an amiable companion; Marcus Antonius (consul in 655), after the death of Lucius Crassus beyond dispute the first pleader of his time; Publius Crassus (consul in 657) who had commanded with distinction in the Spanish and in the Social wars and also during the siege of Rome; and a multitude of the most considerable men of the government party, among whom the wealthy were traced out with especial zeal by the greedy executioners. Peculiarly sad seemed the death of Lucius Merula, who very much against his own wish had become Cinna's successor, and who now, when criminally impeached on that account and cited before the comitia, in order to anticipate the inevitable condemnation opened his veins, and at the altar of the Supreme Jupiter whose priest he was, after laying aside the priestly headband as the religious duty of the dying Flamen required, breathed his last; and still more the death of Quintus Catulus (consul in 652), once in better days the associate of the most glorious victory and triumph of that same Marius who now had no other answer for the suppliant relatives of his aged colleague than the monosyllabic order, "He must die."

The Last Days of Marius

The originator of all these outrages was Gaius Marius. He designated the victims and the executioners—only in exceptional cases, as in those of Merula and Catulus, was any form of law observed; not unfrequently a glance or the silence with which he received those who saluted him formed the sentence of death, which was always executed at once. His revenge was not satisfied even with the death of his victim; he forbade the burial of the

dead bodies: he gave orders—anticipated, it is true, in this respect by Sulla—that the heads of the senators slain should be fixed to the rostra in the Forum; he ordered particular corpses to be dragged through the Forum, and that of Gaius Caesar to be stabbed afresh at the tomb of Quintus Varius, whom Caesar presumably had once impeached;(6) he publicly embraced the man who delivered to him as he sat at table the head of Antonius, whom he had been with difficulty restrained from seeking out in his hiding-place, and slaying with his own hand. His legions of slaves, and in particular a division of Ardyaeans,(7) chiefly served as his executioners, and did not neglect, amidst these Saturnalia of their new freedom, to plunder the houses of their former masters and to dishonour and murder all whom they met with there. His own associates were in despair at this insane fury; Sertorius adjured the consul to put a stop to it at any price, and even Cinna was alarmed. But in times such as these were, madness itself becomes a power; man hurls himself into the abyss, to save himself from giddiness. It was not easy to restrain the furious old man and his band, and least of all had Cinna the courage to do so; on the contrary, he chose Marius as his colleague in the consulship for the next year. The reign of terror alarmed the more moderate of the victors not much less than the defeated party; the capitalists alone were not displeased to see that another hand lent itself to the work of thoroughly humbling for once the haughty oligarchs, and that at the same time, in consequence of the extensive confiscations and auctions, the best part of the spoil came to themselves—in these times of terror they acquired from the people the surname of the "hoarders."

Death of Marius

Fate had thus granted to the author of this reign of terror, the old Gaius Marius, his two chief wishes. He had taken vengeance on the whole genteel pack that had embittered his victories and envenomed his defeats; he had been enabled to retaliate for every sarcasm by a stroke of the dagger.

Moreover he entered on the new year once more as consul; the vision of a seventh consulate, which the oracle had promised him, and which he had sought for thirteen years to grasp, had now been realized. The gods had granted to him what he wished; but now too, as in the old legendary period, they practised the fatal irony of destroying man by the fulfilment of his wishes. In his early consulates the pride, in his sixth the laughing-stock, of his fellow-citizens, he was now in his seventh loaded with the execration of all parties, with the hatred of the whole nation; he, the originally upright, capable, gallant man, was branded as the crackbrained chief of a reckless band of robbers. He himself seemed to feel it. His days were passed as in delirium, and by night his couch denied him rest, so that he grasped the wine-cup in order merely to drown thought. A burning fever seized him; after being stretched for seven days on a sick bed, in the wild fancies of which he was fighting on the fields of Asia Minor the battles of which the laurels were destined for Sulla, he expired on the 13th Jan. 668. He died, more than seventy years old, in full possession of what he called power and honour, and in his bed; but Nemesis assumes various shapes, and does not always expiate blood with blood. Was there no sort of retaliation in the fact, that Rome and Italy now breathed more freely on the news of the death of the famous saviour of the people than at the tidings of the battle on the Raudine plain?

Even after his death individual incidents no doubt occurred, which recalled that time of terror; Gaius Fimbria, for instance, who more than any other during the Marian butcheries had dipped his hand in blood, made an attempt at the very funeral of Marius to kill the universally revered - pontifex maximus- Quintus Scaevola (consul in 659) who had been spared even by Marius, and then, when Scaevola recovered from the wound he had received, indicted him criminally on account of the offence, as Fimbria jestingly expressed it, of having not been willing to let himself be murdered. But the orgies of murder at any rate were over. Sertorius called

together the Marian bandits, under pretext of giving them their pay, surrounded them with his trusty Celtic troops, and caused them to be cut down en masse to the number, according to the lowest estimate, of 4000.

Government of Cinna

Along with the reign of terror came the -tyrannis-. Cinna not only stood at the head of the state for four years in succession (667-670) as consul, but he regularly nominated himself and his colleagues without consulting the people; it seemed as if these democrats set aside the sovereign popular assembly with intentional contempt. No other chief of the popular party, before or afterwards, possessed so perfectly absolute a power in Italy and in the greater part of the provinces for so long a time almost undisturbed, as Cinna; but no one can be named, whose government was so utterly worthless and aimless. The law proposed by Sulpicius and thereafter by Cinna himself, which promised to the new burgesses and the freedmen equality of suffrage with the old burgesses, was naturally revived; and it was formally confirmed by a decree of the senate as valid in law (670). Censors were nominated (668) for the purpose of distributing all the Italians, in accordance with it, into the thirty-five burgess-districts—by a singular conjuncture, in consequence of a want of qualified candidates for the censorship the same Philippus, who when consul in 663 had chiefly occasioned the miscarriage of the plan of Drusus for bestowing the franchise on the Italians,(8) was now selected as censor to inscribe them in the burgess-rolls. The reactionary institutions established by Sulla in 666 were of course overthrown. Some steps were taken to please the proletariat—for instance, the restrictions on the distribution of grain introduced some years ago,(9) were probably now once more removed; the design of Gaius Gracchus to found a colony at Capua was in reality carried out in the spring of 671 on the proposal of the tribune of the people, Marcus Junius Brutus; Lucius Valerius Flaccus the younger introduced a law as to debt, which

reduced every private claim to the fourth part of its nominal amount and cancelled three fourths in favour of the debtors. But these measures, the only positive ones during the whole Cinna government, were without exception the dictates of the moment; they were based—and this is perhaps the most shocking feature in this whole catastrophe—not on a plan possibly erroneous, but on no political plan at all. The populace were caressed, and at the same time offended in a very unnecessary way by a meaningless disregard of the constitutional arrangements for election. The capitalist party might have furnished a support, but it was injured in the most sensitive point by the law as to debt. The true mainstay of the government was—wholly without any cooperation on its part—the new burgesses; their assistance was acquiesced in, but nothing was done to regulate the strange position of the Samnites, who were now nominally Roman citizens, but evidently regarded their country's independence as practically the real object and prize of the struggle and remained in arms to defend it against all and sundry. Illustrious senators were struck down like mad dogs; but not the smallest step was taken to reorganize the senate in the interest of the government, or even permanently to terrify it; so that the government was by no means sure of its aid. Gaius Gracchus had not understood the fall of the oligarchy as implying that the new master might conduct himself on his self-created throne, as legitimate cipher-kings think proper to do. But this Cinna had been elevated to power not by his will, but by pure accident; was there any wonder that he remained where the storm-wave of revolution had washed him up, till a second wave came to sweep him away again?

Cinna and Sulla

Italy and the Provinces in Favour of the Government

The same union of the mightiest plenitude of power with the most utter impotence and incapacity in those who held it, was apparent in the warfare waged by the revolutionary government against the oligarchy—a warfare

on which withal its existence primarily depended. In Italy it ruled with absolute sway. Of the old burgesses a very large portion were on principle favourable to democratic views; and the still greater mass of quiet people, while disapproving the Marian horrors, saw in an oligarchic restoration simply the commencement of a second reign of terror by the opposite party. The impression of the outrages of 667 on the nation at large had been comparatively slight, as they had chiefly affected the mere aristocracy of the capital; and it was moreover somewhat effaced by the three years of tolerably peaceful government that ensued. Lastly the whole mass of the new burgesses—three-fifths perhaps of the Italians—were decidedly, if not favourable to the present government, yet opposed to the oligarchy.

Like Italy, most of the provinces adhered to the oligarchy— Sicily, Sardinia, the two Gauls, the two Spains. In Africa Quintus Metellus, who had fortunately escaped the murderers, made an attempt to hold that province for the Optimates; Marcus Crassus, the youngest son of the Publius Crassus who had perished in the Marian massacre, resorted to him from Spain, and reinforced him by a band which he had collected there. But on their quarrelling with each other they were obliged to yield to Gaius Fabius Hadrianus, the governor appointed by the revolutionary government. Asia was in the hands of Mithradates; consequently the province of Macedonia, so far as it was in the power of Sulla, remained the only asylum of the exiled oligarchy. Sulla's wife and children who had with difficulty escaped death, and not a few senators who had made their escape, sought refuge there, so that a sort of senate was soon formed at his head-quarters.

Measures against Sulla

The government did not fail to issue decrees against the oligarchic proconsul. Sulla was deprived by the comitia of his command and of his other honours and dignities and outlawed, as was also the case with

Metellus, Appius Claudius, and other refugees of note; his house in Rome was razed, his country estates were laid waste. But such proceedings did not settle the matter. Had Gaius Marius lived longer, he would doubtless have marched in person against Sulla to those fields whither the fevered visions of his death-bed drew him; the measures which the government took after his death have been stated already. Lucius Valerius Flaccus the younger,(10) who after Marius' death was invested with the consulship and the command in the east (668), was neither soldier nor officer; Gaius Fimbria who accompanied him was not without ability, but insubordinate; the army assigned to them was even in numbers three times weaker than the army of Sulla. Tidings successively arrived, that Flaccus, in order not to be crushed by Sulla, had marched past him onward to Asia (668); that Fimbria had set him aside and installed himself in his room (beg. of 669); that Sulla had concluded peace with Mithradates (669-670). Hitherto Sulla had been silent so far as the authorities ruling in the capital were concerned. Now a letter from him reached the senate, in which he reported the termination of the war and announced his return to Italy; he stated that he would respect the rights conferred on the new burgesses, and that, while penal measures were inevitable, they would light not on the masses, but on the authors of the mischief. This announcement frightened Cinna out of his inaction: while he had hitherto taken no step against Sulla except the placing some men under arms and collecting a number of vessels in the Adriatic, he now resolved to cross in all haste to Greece.

Attempts at a Compromise

Death of Cinna

Carbo and the New Burgesses Arm against Sulla

On the other hand Sulla's letter, which in the circumstances might be called extremely moderate, awakened in the middle-party hopes of a peaceful adjustment. The majority of the senate resolved, on the proposal of

the elder Flaccus, to set on foot an attempt at reconciliation, and with that view to summon Sulla to come under the guarantee of a safe-conduct to Italy, and to suggest to the consuls Cinna and Carbo that they should suspend their preparations till the arrival of Sulla's answer. Sulla did not absolutely reject the proposals. Of course he did not come in person, but he sent a message that he asked nothing but the restoration of the banished to their former status and the judicial punishment of the crimes that had been perpetrated, and moreover that he did not desire security to be provided for himself, but proposed to bring it to those who were at home. His envoys found the state of things in Italy essentially altered. Cinna had, without concerning himself further about that decree of the senate, immediately after the termination of its sitting proceeded to the army and urged its embarkation. The summons to trust themselves to the sea at that unfavourable season of the year provoked among the already dissatisfied troops in the head-quarters at Ancona a mutiny, to which Cinna fell a victim (beg. of 670); whereupon his colleague Carbo found himself compelled to bring back the divisions that had already crossed and, abandoning the idea of taking up the war in Greece, to enter into winter-quarters in Ariminum. But Sulla's offers met no better reception on that account; the senate rejected his proposals without even allowing the envoys to enter Rome, and enjoined him summarily to lay down arms. It was not the coterie of the Marians which primarily brought about this resolute attitude. That faction was obliged to abandon its hitherto usurped occupation of the supreme magistracy at the very time when it was of moment, and again to institute consular elections for the decisive year 671. The suffrages on this occasion were united not in favour of the former consul Carbo or of any of the able officers of the hitherto ruling clique, such as Quintus Sertorius or Gaius Marius the younger, but in favour of Lucius Scipio and Gaius Norbanus, two incapables, neither of whom knew how to fight and Scipio not even how to speak; the former of these recommended himself to the multitude

only as the great-grandson of the conqueror of Antiochus, and the latter as a political opponent of the oligarchy.(11) The Marians were not so much abhorred for their misdeeds as despised for their incapacity; but if the nation would have nothing to do with these, the great majority of it would have still less to do with Sulla and an oligarchic restoration. Earnest measures of self-defence were contemplated. While Sulla crossed to Asia and induced such defection in the army of Fimbria that its leader fell by his own hand, the government in Italy employed the further interval of a year granted to it by these steps of Sulla in energetic preparations; it is said that at Sulla's landing 100,000 men, and afterwards even double that number of troops, were arrayed in arms against him.

Difficult Position of Sulla

Against this Italian force Sulla had nothing to place in the scale except his five legions, which, even including some contingents levied in Macedonia and the Peloponnesus, probably amounted to scarce 40,000 men. It is true that this army had been, during its seven years' conflicts in Italy, Greece, and Asia, weaned from politics, and adhered to its general—who pardoned everything in his soldiers, debauchery, brutality, even mutiny against their officers, required nothing but valour and fidelity towards their general, and set before them the prospect of the most extravagant rewards in the event of victory—with all that soldierly enthusiasm, which is the more powerful that the noblest and the meanest passions often combine to produce it in the same breast. The soldiers of Sulla voluntarily according to the Roman custom swore mutual oaths that they would stand firmly by each other, and each voluntarily brought to the general his savings as a contribution to the costs of the war. But considerable as was the weight of this solid and select body of troops in comparison with the masses of the enemy, Sulla saw very well that Italy could not be subdued with five legions if it remained united in resolute resistance. To settle accounts with

the popular party and their incapable autocrats would not have been difficult; but he saw opposed to him and united with that party the whole mass of those who desired no oligarchic restoration with its terrors, and above all the whole body of new burgesses—both those who had been withheld by the Julian law from taking part in the insurrection, and those whose revolt a few years before had brought Rome to the brink of ruin.

His Moderation

Sulla fully surveyed the situation of affairs, and was far removed from the blind exasperation and the obstinate rigour which characterized the majority of his party. While the edifice of the state was in flames, while his friends were being murdered, his houses destroyed, his family driven into exile, he had remained undisturbed at his post till the public foe was conquered and the Roman frontier was secured. He now treated Italian affairs in the same spirit of patriotic and judicious moderation, and did whatever he could to pacify the moderate party and the new burgesses, and to prevent the civil war from assuming the far more dangerous form of a fresh war between the Old Romans and the Italian allies. The first letter which Sulla addressed to the senate had asked nothing but what was right and just, and had expressly disclaimed a reign of terror. In harmony with its terms, he now presented the prospect of unconditional pardon to all those who should even now break off from the revolutionary government, and caused his soldiers man by man to swear that they would meet the Italians thoroughly as friends and fellow-citizens. The most binding declarations secured to the new burgesses the political rights which they had acquired; so that Carbo, for that reason, wished hostages to be furnished to him by every civic community in Italy, but the proposal broke down under general indignation and under the opposition of the senate. The chief difficulty in the position of Sulla really consisted in the fact, that in consequence of the faithlessness and perfidy which prevailed the new burgesses had every

reason, if not to suspect his personal designs, to doubt at any rate whether he would be able to induce his party to keep their word after the victory.

Sulla Lands in Italy And Is Reinforced by Partisans and Deserters

In the spring of 671 Sulla landed with his legions in the port of Brundisium. The senate, on receiving the news, declared the commonwealth in danger, and committed to the consuls unlimited powers; but these incapable leaders had not looked before them, and were surprised by a landing which had nevertheless been foreseen for years. The army was still at Ariminum, the ports were not garrisoned, and—what is almost incredible—there was not a man under arms at all along the whole south-eastern coast. The consequences were soon apparent Brundisium itself, a considerable community of new burgesses, at once opened its gates without resistance to the oligarchic general, and all Messapia and Apulia followed its example. The army marched through these regions as through a friendly country, and mindful of its oath uniformly maintained the strictest discipline. From all sides the scattered remnant of the Optimate party flocked to the camp of Sulla. Quintus Metellus came from the mountain ravines of Liguria, whither he had made his escape from Africa, and resumed, as colleague of Sulla, the proconsular command committed to him in 667,(12) and withdrawn from him by the revolution. Marcus Crassus in like manner appeared from Africa with a small band of armed men. Most of the Optimates, indeed, came as emigrants of quality with great pretensions and small desire for fighting, so that they had to listen to bitter language from Sulla himself regarding the noble lords who wished to have themselves preserved for the good of the state and could not even be brought to arm their slaves. It was of more importance, that deserters already made their appearance from the democratic camp—for instance, the refined and respected Lucius Philippus, who was, along with one or two

notoriously incapable persons, the only consular that had come to terms with the revolutionary government and accepted offices under it. He met with the most gracious reception from Sulla, and obtained the honourable and easy charge of occupying for him the province of Sardinia. Quintus Lucretius Ofella and other serviceable officers were likewise received and at once employed; even Publius Cethegus, one of the senators banished after the Sulpician -emeute- by Sulla, obtained pardon and a position in the army.

Pompeius

Still more important than these individual accessions was the gain of the district of Picenum, which was substantially due to the son of Strabo, the young Gnaeus Pompeius. The latter, like his father originally no adherent of the oligarchy, had acknowledged the revolutionary government and even taken service in Cinna's army; but in his case the fact was not forgotten, that his father had borne arms against the revolution; he found himself assailed in various forms and even threatened with the loss of his very considerable wealth by an indictment charging him to give up the booty which was, or was alleged to have been, embezzled by his father after the capture of Asculum. The protection of the consul Carbo, who was personally attached to him, still more than the eloquence of the consular Lucius Philippus and of the young Quintus Hortensius, averted from him financial ruin; but the dissatisfaction remained. On the news of Sulla's landing he went to Picenum, where he had extensive possessions and the best municipal connections derived from his father and the Social war, and set up the standard of the Optimate party in Auximum (Osimo). The district, which was mostly inhabited by old burgesses, joined him; the young men, many of whom had served with him under his father, readily ranged themselves under the courageous leader who, not yet twenty-three years of age, was as much soldier as general, sprang to the front of his cavalry in combat, and

vigorously assailed the enemy along with them. The corps of Picenian volunteers soon grew to three legions; divisions under Cloelius, Gaius Carrinas, Lucius Junius Brutus Damasippus,(13) were despatched from the capital to put down the Picenian insurrection, but the extemporized general, dexterously taking advantage of the dissensions that arose among them, had the skill to evade them or to beat them in detail and to effect his junction with the main army of Sulla, apparently in Apulia. Sulla saluted him as -imperator-, that is, as an officer commanding in his own name and not subordinate but co-ordinate, and distinguished the youth by marks of honour such as he showed to none of his noble clients—presumably not without the collateral design of thereby administering an indirect rebuke to the lack of energetic character among his own partisans.

Sulla in Campania Opposed by Norbanus and Scipio
Sulla Gains a Victory over Norbanus at Mount Tifata
Defection of Scipio's Army

Reinforced thus considerably both in a moral and material point of view, Sulla and Metellus marched from Apulia through the still insurgent Samnite districts towards Campania. The main force of the enemy also proceeded thither, and it seemed as if the matter could not but there be brought to a decision. The army of the consul Gaius Norbanus was already at Capua, where the new colony had just established itself with all democratic pomp; the second consular army was likewise advancing along the Appian road. But, before it arrived, Sulla was in front of Norbanus. A last attempt at mediation, which Sulla made, led only to the arrest of his envoys. With fresh indignation his veteran troops threw themselves on the enemy; their vehement charge down from Mount Tifata at the first onset broke the enemy drawn up in the plain; with the remnant of his force Norbanus threw himself into the revolutionary colony of Capua and the new-burgess town of Neapolis, and allowed himself to be blockaded there. Sulla's troops, hitherto

not without apprehension as they compared their weak numbers with the masses of the enemy, had by this victory gained a full conviction of their military superiority, instead of pausing to besiege the remains of the defeated army, Sulla left the towns where they took shelter to be invested, and advanced along the Appian highway against Teanum, where Scipio was posted. To him also, before beginning battle, he made fresh proposals for peace; apparently in good earnest. Scipio, weak as he was, entered into them; an armistice was concluded; between Cales and Teanum the two generals, both members of the same noble -gens-, both men of culture and refinement and for many years colleagues in the senate, met in personal conference; they entered upon the several questions; they had already made such progress, that Scipio despatched a messenger to Capua to procure the opinion of his colleague. Meanwhile the soldiers of the two camps mingled; the Sullans, copiously furnished with money by their general, had no great difficulty in persuading the recruits—not too eager for warfare—over their cups that it was better to have them as comrades than as foes; in vain Sertorius warned the general to put a stop to this dangerous intercourse. The agreement, which had seemed so near, was not effected; it was Scipio who denounced the armistice. But Sulla maintained that it was too late and that the agreement had been already concluded; whereupon Scipio's soldiers, under the pretext that their general had wrongfully denounced the armistice, passed over en masse to the ranks of the enemy. The scene closed with an universal embracing, at which the commanding officers of the revolutionary army had to look on. Sulla gave orders that the consul should be summoned to resign his office—which he did—and should along with his staff be escorted by his cavalry to whatever point they desired; but Scipio was hardly set at liberty when he resumed the insignia of his dignity and began afresh to collect troops, without however executing anything further of moment. Sulla and Metellus took up winter-quarters in Campania and, after

the failure of a second attempt to come to terms with Norbanus, maintained the blockade of Capua during the winter.

Preparations on Either Side

The results of the first campaign in favour of Sulla were the submission of Apulia, Picenum, and Campania, the dissolution of the one, and the vanquishing and blockading of the other, consular army. The Italian communities, compelled severally to choose between their twofold oppressors, already in numerous instances entered into negotiations with him, and caused the political rights, which had been won from the opposition party, to be guaranteed to them by formal separate treaties on the part of the general of the oligarchy. Sulla cherished the distinct expectation, and intentionally made boast of it, that he would overthrow the revolutionary government in the next campaign and again march into Rome.

But despair seemed to furnish the revolution with fresh energies. The consulship was committed to two of its most decided leaders, to Carbo for the third time and to Gaius Marius the younger; the circumstance that the latter, who was just twenty years of age, could not legally be invested with the consulship, was as little heeded as any other point of the constitution. Quintus Sertorius, who in this and other matters proved an inconvenient critic, was ordered to proceed to Etruria with a view to procure new levies, and thence to his province Hither Spain. To replenish the treasury, the senate was obliged to decree the melting down of the gold and silver vessels of the temples in the capital; how considerable the produce was, is clear from the fact that after several months' warfare there was still on hand nearly 600,000 pounds (14,000 pounds of gold and 6000 pounds of silver). In the considerable portion of Italy, which still voluntarily or under compulsion adhered to the revolution, warlike preparations were prosecuted

with vigour. Newly-formed divisions of some strength came from Etruria, where the communities of new burgesses were very numerous, and from the region of the Po. The veterans of Marius in great numbers ranged themselves under the standards at the call of his son. But nowhere were preparations made for the struggle against Sulla with such eagerness as in the insurgent Samnium and some districts of Lucania. It was owing to anything but devotion towards the revolutionary Roman government, that numerous contingents from the Oscan districts reinforced their armies; but it was well understood there that an oligarchy restored by Sulla would not acquiesce, like the lax Cinnan government, in the independence of these lands as now de facto subsisting; and therefore the primitive rivalry between the Sabellians and the Latins was roused afresh in the struggle against Sulla. For Samnium and Latium this war was as much a national struggle as the wars of the fifth century; they strove not for a greater or less amount of political rights, but for the purpose of appeasing long-suppressed hate by the annihilation of their antagonist. It was no wonder, therefore, that the war in this region bore a character altogether different from the conflicts elsewhere, that no compromise was attempted there, that no quarter was given or taken, and that the pursuit was continued to the very uttermost.

Thus the campaign of 672 was begun on both sides with augmented military resources and increased animosity. The revolution in particular threw away the scabbard: at the suggestion of Carbo the Roman comitia outlawed all the senators that should be found in Sulla's camp. Sulla was silent; he probably thought that they were pronouncing sentence beforehand on themselves.

Sulla Proceeds to Latium to Oppose the Younger Marius
His Victory at Sacriportus
Democratic Massacres in Rome

The army of the Optimates was divided. The proconsul Metellus undertook, resting on the support of the Picenian insurrection, to advance to Upper Italy, while Sulla marched from Campania straight against the capital. Carbo threw himself in the way of the former; Marius would encounter the main army of the enemy in Latium. Advancing along the Via Latina, Sulla fell in with the enemy not far from Signia; they retired before him as far as the so-called "Port of Sacer," between Signia and the chief stronghold of the Marians, the strong Praeneste. There Marius drew up his force for battle. His army was about 40,000 strong, and he was in savage fury and personal bravery the true son of his father; but his troops were not the well trained bands with which the latter had fought his battles, and still less might this inexperienced young man bear comparison with the old master of war. His troops soon gave way; the defection of a division even during the battle accelerated the defeat. More than the half of the Marians were dead or prisoners; the remnant, unable either to keep the field or to gain the other bank of the Tiber, was compelled to seek protection in the neighbouring fortresses; the capital, which they had neglected to provision, was irrecoverably lost. In consequence of this Marius gave orders to Lucius Brutus Damasippus, the praetor commanding there, to evacuate it, but before doing so to put to death all the esteemed men, hitherto spared, of the opposite party. This injunction, by which the son even outdid the proscriptions of his father, was carried into effect; Damasippus made a pretext for convoking the senate, and the marked men were struck down partly in the sitting itself, partly on their flight from the senate-house. Notwithstanding the thorough clearance previously effected, there were still found several victims of note. Such were the former aedile Publius Antistius, the father-in-law of Gnaeus Pompeius, and the former praetor Gaius Carbo, son of the well-known friend and subsequent opponent of the Gracchi,(14) since the death of so many men of more distinguished talent the two best orators in the judicial courts of the desolated Forum; the

consular Lucius Domitius, and above all the venerable -pontifex maximus- Quintus Scaevola, who had escaped the dagger of Fimbria only to bleed to death during these last throes of the revolution in the vestibule of the temple of Vesta entrusted to his guardianship. With speechless horror the multitude saw the corpses of these last victims of the reign of terror dragged through the streets, and thrown into the river.

Siege of Praeneste Occupation of Rome

The broken bands of Marius threw themselves into the neighbouring and strong cities of new burgesses Norba and Praeneste: Marius in person with the treasure and the greater part of the fugitives entered the latter. Sulla left an able officer, Quintus Ofella, before Praeneste just as he had done in the previous year before Capua, with instructions not to expend his strength in the siege of the strong town, but to enclose it with an extended line of blockade and starve it into surrender. He himself advanced from different sides upon the capital, which as well as the whole surrounding district he found abandoned by the enemy, and occupied without resistance. He barely took time to compose the minds of the people by an address and to make the most necessary arrangements, and immediately passed on to Etruria, that in concert with Metellus he might dislodge his antagonists from Northern Italy.

Metellus against Carbo in Northern Italy Carbo Assailed on Three Sides of Etruria

Metellus had meanwhile encountered and defeated Carbo's lieutenant Carrinas at the river Aesis (Esino between Ancona and Sinigaglia), which separated the district of Picenum from the Gallic province; when Carbo in person came up with his superior army, Metellus had been obliged to abstain from any farther advance. But on the news of the battle at

Sacriportus, Carbo, anxious about his communications, had retreated to the Flaminian road, with a view to take up his headquarters at the meeting-point of Ariminum, and from that point to hold the passes of the Apennines on the one hand and the valley of the Po on the other. In this retrograde movement different divisions fell into the hands of the enemy, and not only so, but Sena Gallica was stormed and Carbo's rearguard was broken in a brilliant cavalry engagement by Pompeius; nevertheless Carbo attained on the whole his object. The consular Norbanus took the command in the valley of the Po; Carbo himself proceeded to Etruria. But the march of Sulla with his victorious legions to Etruria altered the position of affairs; soon three Sullan armies from Gaul, Umbria, and Rome established communications with each other. Metellus with the fleet went past Ariminum to Ravenna, and at Faventia cut off the communication between Ariminum and the valley of the Po, into which he sent forward a division along the great road to Placentia under Marcus Lucullus, the quaestor of Sulla and brother of his admiral in the Mithradatic war. The young Pompeius and his contemporary and rival Crassus penetrated from Picenum by mountain-paths into Umbria and gained the Flaminian road at Spoletium, where they defeated Carbo's legate Carrinas and shut him up in the town; he succeeded, however, in escaping from it on a rainy night and making his way, though not without loss, to the army of Carbo. Sulla himself marched from Rome into Etruria with his army in two divisions, one of which advancing along the coast defeated the corps opposed to it at Saturnia (between the rivers Ombrone and Albegna); the second led by Sulla in person fell in with the army of Carbo in the valley of the Clanis, and sustained a successful conflict with his Spanish cavalry. But the pitched battle which was fought between Carbo and Sulla in the region of Chiusi, although it ended without being properly decisive, was so far at any rate in favour of Carbo that Sulla's victorious advance was checked.

Conflicts about Praeneste

In the vicinity of Rome also events appeared to assume a more favourable turn for the revolutionary party, and the war seemed as if it would again be drawn chiefly towards this region. For, while the oligarchic party were concentrating all their energies on Etruria, the democracy everywhere put forth the utmost efforts to break the blockade of Praeneste. Even the governor of Sicily Marcus Perpenna set out for that purpose; it does not appear, however, that he reached Praeneste. Nor was the very considerable corps under Marcius, detached by Carbo, more successful in this; assailed and defeated by the troops of the enemy which were at Spoletium, demoralized by disorder, want of supplies, and mutiny, one portion went back to Carbo, another to Ariminum; the rest dispersed. Help in earnest on the other hand came from Southern Italy. There the Samnites under Pontius of Telesia, and the Lucanians under their experienced general Marcus Lamponius, set out without its being possible to prevent their departure, were joined in Campania where Capua still held out by a division of the garrison under Gutta, and thus to the number, it was said, of 70,000 marched upon Praeneste. Thereupon Sulla himself, leaving behind a corps against Carbo, returned to Latium and took up a well-chosen position in the defiles in front of Praeneste, where he barred the route of the relieving army.⁽¹⁵⁾ In vain the garrison attempted to break through the lines of Ofella, in vain the relieving army attempted to dislodge Sulla; both remained immovable in their strong positions, even after Damasippus, sent by Carbo, had reinforced the relieving army with two legions.

Successes of the Sullans in Upper Italy Etruria Occupied by the Sullans

But while the war stood still in Etruria and in Latium, matters came to a decision in the valley of the Po. There the general of the democracy, Gaius Norbanus, had hitherto maintained the upper hand, had attacked Marcus Lucullus the legate of Metellus with superior force and compelled him to

shut himself up in Placentia, and had at length turned against Metellus in person. He encountered the latter at Faventia, and immediately made his attack late in the afternoon with his troops fatigued by their march; the consequence was a complete defeat and the total breaking up of his corps, of which only about 1000 men returned to Etruria. On the news of this battle Lucullus sallied from Placentia, and defeated the division left behind to oppose him at Fidentia (between Piacenza and Parma). The Lucanian troops of Albinovanus deserted in a body: their leader made up for his hesitation at first by inviting the chief officers of the revolutionary army to banquet with him and causing them to be put to death; in general every one, who at all could, now concluded his peace. Ariminum with all its stores and treasures fell into the power of Metellus; Norbanus embarked for Rhodes; the whole land between the Alps and Apennines acknowledged the government of the Optimates. The troops hitherto employed there were enabled to turn to the attack of Etruria, the last province where their antagonists still kept the field. When Carbo received this news in the camp at Clusium, he lost his self-command; although he had still a considerable body of troops under his orders, he secretly escaped from his headquarters and embarked for Africa. Part of his abandoned troops followed the example which their general had set, and went home; part of them were destroyed by Pompeius: Carrinas gathered together the remainder and led them to Latium to join the army of Praeneste. There no change had in the meanwhile taken place; and the final decision drew nigh. The troops of Carrinas were not numerous enough to shake Sulla's position; the vanguard of the army of the oligarchic party, hitherto employed in Etruria, was approaching under Pompeius; in a few days the net would be drawn tight around the army of the democrats and the Samnites.

The Samnites and Democrats Attack Rome

Battle at the Colline Gate

Slaughter of the Prisoners

Its leaders then determined to desist from the relief of Praeneste and to throw themselves with all their united strength on Rome, which was only a good day's march distant. By so doing they were, in a military point of view, ruined; their line of retreat, the Latin road, would by such a movement fall into Sulla's hands; and even if they got possession of Rome, they would be infallibly crushed there, enclosed within a city by no means fitted for defence, and wedged in between the far superior armies of Metellus and Sulla. Safety, however, was no longer thought of; revenge alone dictated this march to Rome, the last outbreak of fury in the passionate revolutionists and especially in the despairing Sabellian nation. Pontius of Telesia was in earnest, when he called out to his followers that, in order to get rid of the wolves which had robbed Italy of freedom, the forest in which they harboured must be destroyed. Never was Rome in a more fearful peril than on the 1st November 672, when Pontius, Lamponius, Carrinas, Damasippus advanced along the Latin road towards Rome, and encamped about a mile from the Colline gate. It was threatened with a day like the 20th July 365 u. c. or the 15th June 455 a. d.— the days of the Celts and the Vandals. The time was gone by when a coup de main against Rome was a foolish enterprise, and the assailants could have no want of connections in the capital. The band of volunteers which sallied from the city, mostly youths of quality, was scattered like chaff before the immense superiority of force. The only hope of safety rested on Sulla. The latter, on receiving accounts of the departure of the Samnite army in the direction of Rome, had likewise set out in all haste to the assistance of the capital. The appearance of his foremost horsemen under Balbus in the course of the morning revived the sinking courage of the citizens; about midday he appeared in person with his main force, and immediately drew up his ranks for battle at the temple of the Erycine Aphrodite before the Colline gate (not far from Porta Pia). His lieutenants adjured him not to send the troops exhausted by the forced march at once into action; but Sulla

took into consideration what the night might bring on Rome, and, late as it was in the afternoon, ordered the attack. The battle was obstinately contested and bloody. The left wing of Sulla, which he led in person, gave way as far as the city wall, so that it became necessary to close the city gates; stragglers even brought accounts to Ofella that the battle was lost. But on the right wing Marcus Crassus overthrew the enemy and pursued him as far as Antemnae; this somewhat relieved the left wing also, and an hour after sunset it in turn began to advance. The fight continued the whole night and even on the following morning; it was only the defection of a division of 3000 men, who immediately turned their arms against their former comrades, that put an end to the struggle. Rome was saved. The army of the insurgents, for which there was no retreat, was completely extirpated. The prisoners taken in the battle—between 3000 and 4000 in number, including the generals Damasippus, Carrinas, and the severely-wounded Pontius— were by Sulla's orders on the third day after the battle brought to the Villa Publica in the Campus Martius and there massacred to the last man, so that the clatter of arms and the groans of the dying were distinctly heard in the neighbouring temple of Bellona, where Sulla was just holding a meeting of the senate. It was a ghastly execution, and it ought not to be excused; but it is not right to forget that those very men who perished there had fallen like a band of robbers on the capital and the burgesses, and, had they found time, would have destroyed them as far as fire and sword can destroy a city and its citizens.

Sieges

Praeneste

Norba

Nola

With this battle the war was, in the main, at an end. The garrison of Praeneste surrendered, when it learned the issue of the battle of Rome from

the heads of Carrinas and other officers thrown over the walls. The leaders, the consul Gaius Marius and the son of Pontius, after having failed in an attempt to escape, fell on each other's swords. The multitude cherished the hope, in which it was confirmed by Cethegus, that the victor would even now have mercy upon them. But the times of mercy were past. The more unconditionally Sulla had up to the last moment granted full pardon to those who came over to him, the more inexorable he showed himself toward the leaders and communities that had held out to the end. Of the Praenestine prisoners, 12,000 in number, most of the Romans and individual Praenestines as well as the women and children were released, but the Roman senators, almost all the Praenestines and the whole of the Samnites, were disarmed and cut to pieces; and the rich city was given up to pillage. It was natural that, after such an occurrence, the cities of new burgesses which had not yet passed over should continue their resistance with the utmost obstinacy. In the Latin town of Norba for instance, when Aemilius Lepidus got into it by treason, the citizens killed each other and set fire themselves to their town, solely in order to deprive their executioners of vengeance and of booty. In Lower Italy Neapolis had already been taken by assault, and Capua had, as it would seem, been voluntarily surrendered; but Nola was only evacuated by the Samnites in 674. On his flight from Nola the last surviving leader of note among the Italians, the consul of the insurgents in the hopeful year 664, Gaius Papius Mutilus, disowned by his wife to whom he had stolen in disguise and with whom he had hoped to find an asylum, fell on his sword in Teanum before the door of his own house. As to the Samnites, the dictator declared that Rome would have no rest so long as Samnium existed, and that the Samnite name must therefore be extirpated from the earth; and, as he verified these words in terrible fashion on the prisoners taken before Rome and in Praeneste, so he appears to have also undertaken a raid for the purpose of laying waste the country, to have captured Aesernia(16) (674?), and to have converted that hitherto

flourishing and populous region into the desert which it has since remained. In the same manner Tuder in Umbria was stormed by Marcus Crassus. A longer resistance was offered in Etruria by Populonium and above all by the impregnable Volaterrae, which gathered out of the remains of the beaten party an army of four legions, and stood a two years' siege conducted first by Sulla in person and then by the former praetor Gaius Carbo, the brother of the democratic consul, till at length in the third year after the battle at the Colline gate (675) the garrison capitulated on condition of free departure. But in this terrible time neither military law nor military discipline was regarded; the soldiers raised a cry of treason and stoned their too compliant general; a troop of horse sent by the Roman government cut down the garrison as it withdrew in terms of the capitulation. The victorious army was distributed throughout Italy, and all the insecure townships were furnished with strong garrisons: under the iron hand of the Sullan officers the last palpitations of the revolutionary and national opposition slowly died away.

The Provinces

There was still work to be done in the provinces. Sardinia had been speedily wrested by Lucius Philippus from the governor of the revolutionary government Quintus Antonius (672), and Transalpine Gaul offered little or no resistance; but in Sicily, Spain, and Africa the cause of the party defeated in Italy seemed still by no means lost. Sicily was held for them by the trustworthy governor Marcus Perpenna. Quintus Sertorius had the skill to attach to himself the provincials in Hither Spain, and to form from among the Romans settled in that quarter a not inconsiderable army, which in the first instance closed the passes of the Pyrenees: in this he had given fresh proof that, wherever he was stationed, he was in his place, and amidst all the incapables of the revolution was the only man practically useful. In Africa the governor Hadrianus, who followed out the work of

revolutionizing too thoroughly and began to give liberty to the slaves, had been, on occasion of a tumult instigated by the Roman merchants of Utica, attacked in his official residence and burnt with his attendants (672); nevertheless the province adhered to the revolutionary government, and Cinna's son-in-law, the young and able Gnaeus Domitius Ahenobarbus, was invested with the supreme command there. Propagandism had even been carried from thence into the client-states, Numidia and Mauretania. Their legitimate rulers, Hiempsal II son of Gauda, and Bogud son of Bocchus, adhered doubtless to Sulla; but with the aid of the Cinnans the former had been dethroned by the democratic pretender Hiarbas, and similar feuds agitated the Mauretanian kingdom. The consul Carbo who had fled from Italy tarried on the island Cossyra (Pantellaria) between Africa and Sicily, at a loss, apparently, whether he should flee to Egypt or should attempt to renew the struggle in one of the faithful provinces.

Spain

Sertorius Embarks

Sulla sent to Spain Gaius Annius and Gaius Valerius Flaccus, the former as governor of Further Spain, the latter as governor of the province of the Ebro. They were spared the difficult task of opening up the passes of the Pyrenees by force, in consequence of the general who was sent thither by Sertorius having been killed by one of his officers and his troops having thereafter melted away. Sertorius, much too weak to maintain an equal struggle, hastily collected the nearest divisions and embarked at New Carthage—for what destination he knew not himself, perhaps for the coast of Africa, or for the Canary Islands—it mattered little whither, provided only Sulla's arm did not reach him. Spain then willingly submitted to the Sullan magistrates (about 673) and Flaccus fought successfully with the Celts, through whose territory he marched, and with the Spanish Celtiberians (674).

Sicily

Gnaeus Pompeius was sent as *propraetor* to Sicily, and, when he appeared on the coast with 120 sail and six legions, the island was evacuated by Perpenna without resistance. Pompeius sent a squadron thence to Cossyra, which captured the Marian officers sojourning there. Marcus Brutus and the others were immediately executed; but Pompeius had enjoined that the consul Carbo should be brought before himself at Lilybaeum in order that, unmindful of the protection accorded to him in a season of peril by that very man,⁽¹⁷⁾ he might personally hand him over to the executioner (672).

Africa

Having been ordered to go on to Africa, Pompeius with his army which was certainly far more numerous, defeated the not inconsiderable forces collected by Ahenobarbus and Hiarbas, and, declining for the time to be saluted as *-imperator-*, he at once gave the signal for assault on the hostile camp. He thus became master of the enemy in one day; Ahenobarbus was among the fallen: with the aid of king Bogud, Hiarbas was seized and slain at Bulla, and Hiempsal was reinstated in his hereditary kingdom; a great *razzia* against the inhabitants of the desert, among whom a number of Gaetolian tribes recognized as free by Marius were made subject to Hiempsal, revived in Africa also the fallen repute of the Roman name: in forty days after the landing of Pompeius in Africa all was at an end (674?). The senate instructed him to break up his army— an implied hint that he was not to be allowed a triumph, to which as an extraordinary magistrate he could according to precedent make no claim. The general murmured secretly, the soldiers loudly; it seemed for a moment as if the African army would revolt against the senate and Sulla would have to take the field against his son-in-law. But Sulla yielded, and allowed the young man to

boast of being the only Roman who had become a triumphator before he was a senator (12 March 675); in fact the "Fortunate," not perhaps without a touch of irony, saluted the youth on his return from these easy exploits as the "Great."

Fresh Difficulties with Mithradates

In the east also, after the embarkation of Sulla in the spring of 671, there had been no cessation of warfare. The restoration of the old state of things and the subjugation of individual towns cost in Asia as in Italy various bloody struggles. Against the free city of Mytilene in particular Lucius Lucullus was obliged at length to bring up troops, after having exhausted all gentler measures; and even a victory in the open field did not put an end to the obstinate resistance of the citizens.

Meanwhile the Roman governor of Asia, Lucius Murena, had fallen into fresh difficulties with king Mithradates. The latter had since the peace busied himself in strengthening anew his rule, which was shaken even in the northern provinces; he had pacified the Colchians by appointing his able son Mithradates as their governor; he had then made away with that son, and was now preparing for an expedition into his Bosporan kingdom. The assurances of Archelaus who had meanwhile been obliged to seek an asylum with Murena,(18) that these preparations were directed against Rome, induced Murena, under the pretext that Mithradates still kept possession of Cappadocian frontier districts, to move his troops towards the Cappadocian Comana and thus to violate the Pontic frontier (671). Mithradates contented himself with complaining to Murena and, when this was in vain, to the Roman government. In fact commissioners from Sulla made their appearance to dissuade the governor, but he did not submit; on the contrary he crossed the Halys and entered on the undisputed territory of Pontus, whereupon Mithradates resolved to repel force by force. His

general Gordius had to detain the Roman army till the king came up with far superior forces and compelled battle; Murena was vanquished and with great loss driven back over the Roman frontier to Phrygia, and the Roman garrisons were expelled from all Cappadocia. Murena had the effrontery, no doubt, to call himself the victor and to assume the title of -imperator- on account of these events (672); but the sharp lesson and a second admonition from Sulla induced him at last to push the matter no farther; the peace between Rome and Mithradates was renewed (673).

Second Peace

Capture of Mytilene

This foolish feud, while it lasted, had postponed the reduction of the Mytilenaeans; it was only after a long siege by land and by sea, in which the Bithynian fleet rendered good service, that Murena's successor succeeded in taking the city by storm (675).

General Peace

The ten years' revolution and insurrection were at an end in the west and in the east; the state had once more unity of government and peace without and within. After the terrible convulsions of the last years even this rest was a relief. Whether it was to furnish more than a mere relief; whether the remarkable man, who had succeeded in the difficult task of vanquishing the public foe and in the more difficult work of subduing the revolution, would be able to meet satisfactorily the most difficult task of all— the re-establishing of social and political order shaken to its very foundations— could not but be speedily decided

CHAPTER X

The Sullan Constitution

The Restoration

About the time when the first pitched battle was fought between Romans and Romans, in the night of the 6th July 671, the venerable temple, which had been erected by the kings, dedicated by the youthful republic, and spared by the storms of five hundred years— the temple of the Roman Jupiter in the Capitol—perished in the flames. It was no augury, but it was an image of the state of the Roman constitution. This, too, lay in ruins and needed reconstruction. The revolution was no doubt vanquished, but the victory was far from implying as a matter of course the restoration of the old government. The mass of the aristocracy certainly was of opinion that now, after the death of the two revolutionary consuls, it would be sufficient to make arrangements for the ordinary supplemental election and to leave it to the senate to take such steps as should seem farther requisite for the rewarding of the victorious army, for the punishment of the most guilty revolutionists, and possibly also for the prevention of similar outbreaks. But Sulla, in whose hands the victory had concentrated for the moment all power, formed a more correct judgment of affairs and of men. The aristocracy of Rome in its best epoch had not risen above an adherence— partly noble and partly narrow—to traditional forms; how should the clumsy collegiate government of this period be in a position to carry out

with energy and thoroughness a comprehensive reform of the state? And at the present moment, when the last crisis had swept away almost all the leading men of the senate, the vigour and intelligence requisite for such an enterprise were less than ever to be found there. How thoroughly useless was the pure aristocratic blood, and how little doubt Sulla had as to its worthlessness, is shown by the fact that, with the exception of Quintus Metellus who was related to him by marriage, he selected all his instruments out of what was previously the middle party and the deserters from the democratic camp—such as Lucius Flaccus, Lucius Philippus, Quintus Ofella, Gnaeus Pompeius. Sulla was as much in earnest about the re-establishment of the old constitution as the most vehement aristocratic emigrant; he understood however, not perhaps to the full extent—for how in that case could he have put hand to the work at all?—but better at any rate than his party, the enormous difficulties which attended this work of restoration. Comprehensive concessions so far as concession was possible without affecting the essence of oligarchy, and the establishment of an energetic system of repression and prevention, were regarded by him as unavoidable; and he saw clearly that the senate as it stood would refuse or mutilate every concession, and would parliamenterarily ruin every systematic reconstruction. If Sulla had already after the Sulpician revolution carried out what he deemed necessary in both respects without asking much of their advice, he was now determined, under circumstances of far more severe and intense excitement, to restore the oligarchy—not with the aid, but in spite, of the oligarchs—by his own hand.

Sulla Regent of Rome

Sulla, however, was not now consul as he had been then, but was furnished merely with proconsular, that is to say, purely military power: he needed an authority keeping as near as possible to constitutional forms, but yet extraordinary, in order to impose his reform on friends and foes. In a

letter to the senate he announced to them that it seemed to him indispensable that they should place the regulation of the state in the hands of a single man equipped with unlimited plenitude of power, and that he deemed himself qualified to fulfil this difficult task. This proposal, disagreeable as it was to many, was under the existing circumstances a command. By direction of the senate its chief, the interrex Lucius Valerius Flaccus the father, as interim holder of the supreme power, submitted to the burgesses the proposal that the proconsul Lucius Cornelius Sulla should receive for the past a supplementary approval of all the official acts performed by him as consul and proconsul, and should for the future be empowered to adjudicate without appeal on the life and property of the burgesses, to deal at his pleasure with the state-domains, to shift at discretion the boundaries of Rome, of Italy, and of the state, to dissolve or establish urban communities in Italy, to dispose of the provinces and dependent states, to confer the supreme -imperium- instead of the people and to nominate proconsuls and propraetors, and lastly to regulate the state for the future by means of new laws; that it should be left to his own judgment to determine when he had fulfilled his task and might deem it time to resign this extraordinary magistracy; and, in fine, that during its continuance it should depend on his pleasure whether the ordinary supreme magistracy should subsist side by side with his own or should remain in abeyance. As a matter of course, the proposal was adopted without opposition (Nov. 672); and now the new master of the state, who hitherto had as proconsul avoided entering the capital, appeared for the first time within the walls of Rome. This new office derived its name from the dictatorship, which had been practically abolished since the Hannibalic war; (1) but, as besides his armed retinue he was preceded by twice as many lictors as the dictator of earlier times, this new "dictatorship for the making of laws and the regulation of the commonwealth," as its official title ran, was in fact altogether different from the earlier magistracy which had been

limited in point of duration and of powers, had not excluded appeal to the burgesses, and had not annulled the ordinary magistracy. It much more resembled that of the -decemviri legibus scribundis-, who likewise came forward as an extraordinary government with unlimited fulness of powers superseding the ordinary magistracy, and practically at least administered their office as one which was unlimited in point of time. Or, we should rather say, this new office, with its absolute power based on a decree of the people and restrained by no set term or colleague, was no other than the old monarchy, which in fact just rested on the free engagement of the burgesses to obey one of their number as absolute lord. It was urged even by contemporaries in vindication of Sulla that a king is better than a bad constitution,(2) and presumably the title of dictator was only chosen to indicate that, as the former dictatorship implied a reassumption with various limitations,(3) so this new dictatorship involved a complete reassumption, of the regal power. Thus, singularly enough, the course of Sulla here also coincided with that on which Gaius Gracchus had entered with so wholly different a design. In this respect too the conservative party had to borrow from its opponents; the protector of the oligarchic constitution had himself to come forward as a tyrant, in order to avert the ever-impending -tyrannis-. There was not a little of defeat in this last victory of the oligarchy.

Executions

Sulla had not sought and had not desired the difficult and dreadful labour of the work of restoration; out, as no other choice was left to him but either to leave it to utterly incapable hands or to undertake it in person, he set himself to it with remorseless energy. First of all a settlement had to be effected in respect to the guilty. Sulla was personally inclined to pardon. Sanguine as he was in temperament, he could doubtless break forth into violent rage, and well might those beware who saw his eye gleam and his cheeks colour; but the chronic vindictiveness, which characterized Marius

in the embitterment of his old age, was altogether foreign to Sulla's easy disposition. Not only had he borne himself with comparatively great moderation after the revolution of 666;(4) even the second revolution, which had perpetrated so fearful outrages and had affected him in person so severely, had not disturbed his equilibrium. At the same time that the executioner was dragging the bodies of his friends through the streets of the capital, he had sought to save the life of the blood-stained Fimbria, and, when the latter died by his own hand, had given orders for his decent burial. On landing in Italy he had earnestly offered to forgive and to forget, and no one who came to make his peace had been rejected. Even after the first successes he had negotiated in this spirit with Lucius Scipio; it was the revolutionary party, which had not only broken off these negotiations, but had subsequently, at the last moment before their downfall, resumed the massacres afresh and more fearfully than ever, and had in fact conspired with the inveterate foes of their country for the destruction of the city of Rome. The cup was now full. By virtue of his new official authority Sulla, immediately after assuming the regency, outlawed as enemies of their country all the civil and military officials who had taken an active part in favour of the revolution after the convention with Scipio (which according to Sulla's assertion was validly concluded), and such of the other burgesses as had in any marked manner aided its cause. Whoever killed one of these outlaws was not only exempt from punishment like an executioner duly fulfilling his office, but also obtained for the execution a compensation of 12,000 -denarii- (480 pounds); any one on the contrary who befriended an outlaw, even the nearest relative, was liable to the severest punishment. The property of the proscribed was forfeited to the state like the spoil of an enemy; their children and grandchildren were excluded from a political career, and yet, so far as they were of senatorial rank, were bound to undertake their share of senatorial burdens. The last enactments also applied to the estates and the descendants of those who had fallen in conflict for the

revolution—penalties which went even beyond those enjoined by the earliest law in the case of such as had borne arms against their fatherland. The most terrible feature in this system of terror was the indefiniteness of the proposed categories, against which there was immediate remonstrance in the senate, and which Sulla himself sought to remedy by directing the names of the proscribed to be publicly posted up and fixing the 1st June 673 as the final term for closing the lists of proscription.

Proscription-Lists

Much as this bloody roll, swelling from day to day and amounting at last to 4700 names,(5) excited the just horror of the multitude, it at any rate checked in some degree the mere caprice of the executioners. It was not at least to the personal resentment of the regent that the mass of these victims were sacrificed; his furious hatred was directed solely against the Marians, the authors of the hideous massacres of 667 and 672. By his command the tomb of the victor of Aquae Sextiae was broken open and his ashes were scattered in the Anio, the monuments of his victories over Africans and Germans were overthrown, and, as death had snatched himself and his son from Sulla's vengeance, his adopted nephew Marcus Marius Gratidianus, who had been twice praetor and was a great favourite with the Roman burgesses, was executed amid the most cruel tortures at the tomb of Catulus, who most deserved to be regretted of all the Marian victims. In other cases also death had already swept away the most notable of his opponents: of the leaders there survived only Gaius Norbanus, who laid hands on himself at Rhodes, while the -ecclesia- was deliberating on his surrender; Lucius Scipio, for whom his insignificance and probably also his noble birth procured indulgence and permission to end his days in peace at his retreat in Massilia; and Quintus Sertorius, who was wandering about as an exile on the coast of Mauretania. But yet the heads of slaughtered senators were piled up at the Servilian Basin, at the point where the -Vicus

Jugarius- opened into the Forum, where the dictator had ordered them to be publicly exposed; and among men of the second and third rank in particular death reaped a fearful harvest. In addition to those who were placed on the list for their services in or on behalf of the revolutionary army with little discrimination, sometimes on account of money advanced to one of its officers or on account of relations of hospitality formed with such an one, the retaliation fell specially on those capitalists who had sat in judgment on the senators and had speculated in Marian confiscations—the "hoarders"; about 1600 of the equites, as they were called,(6) were inscribed on the proscription- list. In like manner the professional accusers, the worst scourge of the nobility, who made it their trade to bring men of the senatorial order before the equestrian courts, had now to suffer for it—"how comes it to pass," an advocate soon after asked, "that they have left to us the courts, when they were putting to death the accusers and judges?" The most savage and disgraceful passions raged without restraint for many months throughout Italy. In the capital a Celtic band was primarily charged with the executions, and Sullan soldiers and subaltern officers traversed for the same purpose the different districts of Italy; but every volunteer was also welcome, and the rabble high and low pressed forward not only to earn the rewards of murder, but also to gratify their own vindictive or covetous dispositions under the mantle of political prosecution. It sometimes happened that the assassination did not follow, but preceded, the placing of the name on the list of the proscribed. One example shows the way in which these executions took place. At Larinum, a town of new burgesses and favourable to Marian views, one Statius Albius Oppianicus, who had fled to Sulla's headquarters to avoid a charge of murder, made his appearance after the victory as commissioner of the regent, deposed the magistrates of the town, installed himself and his friends in their room, and caused the person who had threatened to accuse him, along with his nearest relatives and friends, to be outlawed and killed. Countless persons—including not a few

decided adherents of the oligarchy—thus fell as the victims of private hostility or of their own riches: the fearful confusion, and the culpable indulgence which Sulla displayed in this as in every instance towards those more closely connected with him, prevented any punishment even of the ordinary crimes that were perpetrated amidst the disorder.

Confiscations

The confiscated property was dealt with in a similar way. Sulla from political considerations sought to induce the respectable burgesses to take part in its purchase; a great portion of them, moreover, voluntarily pressed forward, and none more zealously than the young Marcus Crassus. Under the existing circumstances the utmost depreciation was inevitable; indeed, to some extent it was the necessary result of the Roman plan of selling the property confiscated by the state for a round sum payable in ready money. Moreover, the regent did not forget himself; while his wife Metella more especially and other persons high and low closely connected with him, even freedmen and boon-companions, were sometimes allowed to purchase without competition, sometimes had the purchase-money wholly or partially remitted. One of his freedmen, for instance, is said to have purchased a property of 6,000,000 sesterces (60,000 pounds) for 2000 (20 pounds), and one of his subalterns is said to have acquired by such speculations an estate of 10,000,000 sesterces (100,000 pounds). The indignation was great and just; even during Sulla's regency an advocate asked whether the nobility had waged civil war solely for the purpose of enriching their freedmen and slaves. But in spite of this depreciation the whole proceeds of the confiscated estates amounted to not less than 350,000,000 sesterces (3,500,000 pounds), which gives an approximate idea of the enormous extent of these confiscations falling chiefly on the wealthiest portion of the burgesses. It was altogether a fearful punishment. There was no longer any process or any pardon; mute terror lay like a

weight of lead on the land, and free speech was silenced in the market-place alike of the capital and of the country-town. The oligarchic reign of terror bore doubtless a different stamp from that of the revolution; while Marius had glutted his personal vengeance in the blood of his enemies, Sulla seemed to account terrorism in the abstract, if we may so speak, a thing necessary to the introduction of the new despotism, and to prosecute and make others prosecute the work of massacre almost with indifference. But the reign of terror presented an appearance all the more horrible, when it proceeded from the conservative side and was in some measure devoid of passion; the commonwealth seemed all the more irretrievably lost, when the frenzy and the crime on both sides were equally balanced.

Maintenance of the Burgess-Rights Previously Conferred

In regulating the relations of Italy and of the capital, Sulla— although he otherwise in general treated as null all state-acts done during the revolution except in the transaction of current business— firmly adhered to the principle, which it had laid down, that every burgess of an Italian community was by that very fact a burgess also of Rome; the distinctions between burgesses and Italian allies, between old burgesses with better, and new burgesses with more restricted, rights, were abolished, and remained so. In the case of the freedmen alone the unrestricted right of suffrage was again withdrawn, and for them the old state of matters was restored. To the aristocratic ultras this might seem a great concession; Sulla perceived that it was necessary to wrest these mighty levers out of the hands of the revolutionary chiefs, and that the rule of the oligarchy was not materially endangered by increasing the number of the burgesses.

Punishments Inflicted on Particular Communities

But with this concession in principle was combined a most rigid inquisition, conducted by special commissioners with the co-operation of

the garrisons distributed throughout Italy, in respect to particular communities in all districts of the land. Several towns were rewarded; for instance Brundisium, the first community which had joined Sulla, now obtained the exemption from customs so important for such a seaport; more were punished. The less guilty were required to pay fines, to pull down their walls, to raze their citadels; in the case of those whose opposition had been most obstinate the regent confiscated a part of their territory, in some cases even the whole of it—as it certainly might be regarded in law as forfeited, whether they were to be treated as burgess-communities which had borne arms against their fatherland, or as allied states which had waged war with Rome contrary to their treaties of perpetual peace. In this case all the dispossessed burgesses—but these only—were deprived of their municipal, and at the same time of the Roman, franchise, receiving in return the lowest Latin rights.(7) Sulla thus avoided furnishing the opposition with a nucleus in Italian subject-communities of inferior rights; the homeless dispossessed of necessity were soon lost in the mass of the proletariat. In Campania not only was the democratic colony of Capua done away and its domain given back to the state, as was naturally to be expected, but the island of Aenaria (Ischia) was also, probably about this time, withdrawn from the community of Neapolis. In Latium the whole territory of the large and wealthy city of Praeneste and presumably of Norba also was confiscated, as was likewise that of Spoletium in Umbria. Sulmo in the Paelignian district was even razed. But the iron arm of the regent fell with especial weight on the two regions which had offered a serious resistance up to the end and even after the battle at the Colline gate—Etruria and Samnium. There a number of the most considerable communes, such as Florentia, Faesulae, Arretium, Volaterrae, were visited with total confiscation. Of the fate of Samnium we have already spoken; there was no confiscation there, but the land was laid waste for ever, its flourishing towns, even the former Latin colony of

Aesernia, were left in ruins, and the country was placed on the same footing with the Bruttian and Lucanian regions.

Assignations to the Soldiers

These arrangements as to the property of the Italian soil placed on the one hand those Roman domain-lands which had been handed over in usufruct to the former allied communities and now on their dissolution reverted to the Roman government, and on the other hand the confiscated territories of the communities incurring punishment, at the disposal of the regent; and he employed them for the purpose of settling thereon the soldiers of the victorious army. Most of these new settlements were directed towards Etruria, as for instance to Faesulae and Arretium, others to Latium and Campania, where Praeneste and Pompeii among other places became Sullan colonies. To repeople Samnium was, as we have said, no part of the regent's design. A great part of these assignations took place after the Gracchan mode, so that the settlers were attached to an already-existing urban community. The comprehensiveness of this settlement is shown by the number of land-allotments distributed, which is stated at 120,000; while yet some portions of land withal were otherwise applied, as in the case of the lands bestowed on the temple of Diana at Mount Tifata; others, such as the Volaterran domain and a part of the Arretine, remained undistributed; others in fine, according to the old abuse legally forbidden(8) but now reviving, were taken possession of on the part of Sulla's favourites by the right of occupation. The objects which Sulla aimed at in this colonization were of a varied kind. In the first place, he thereby redeemed the pledge given to his soldiers. Secondly, he in so doing adopted the idea, in which the reform-party and the moderate conservatives concurred, and in accordance with which he had himself as early as 666 arranged the establishment of a number of colonies—the idea namely of augmenting the number of the small agricultural proprietors in Italy by a breaking up of the

larger possessions on the part of the government; how seriously he had this at heart is shown by the renewed prohibition of the throwing together of allotments. Lastly and especially, he saw in these settled soldiers as it were standing garrisons, who would protect his new constitution along with their own right of property. For this reason, where the whole territory was not confiscated, as at Pompeii, the colonists were not amalgamated with the urban-community, but the old burgesses and the colonists were constituted as two bodies of burgesses associated within the same enclosing wall. In other respects these colonial foundations were based, doubtless, like the older ones, on a decree of the people, but only indirectly, in so far as the regent constituted them by virtue of the clause of the Valerian law to that effect; in reality they originated from the ruler's plenitude of power, and so far recalled the freedom with which the former regal authority disposed of the state-property. But, in so far as the contrast between the soldier and the burgess, which was in other instances done away by the very sending out of the soldiers or colonists, was intended to remain, and did remain, in force in the Sullan colonies even after their establishment, and these colonists formed, as it were, the standing array of the senate, they are not incorrectly designated, in contradistinction to the older ones, as military colonies.

The Cornelian Freedmen in Rome

Akin to this practical constituting of a standing army for the senate was the measure by which the regent selected from the slaves of the proscribed upwards of 10,000 of the youngest and most vigorous men, and manumitted them in a body. These new Cornelians, whose civil existence was linked to the legal validity of the institutions of their patron, were designed to be a sort of bodyguard for the oligarchy and to help it to command the city populace, on which, indeed, in the absence of a garrison everything in the capital now primarily depended.

Abolition of the Gracchan Institutions

These extraordinary supports on which the regent made the oligarchy primarily to rest, weak and ephemeral as they doubtless might appear even to their author, were yet its only possible buttresses, unless expedients were to be resorted to—such as the formal institution of a standing army in Rome and other similar measures—which would have put an end to the oligarchy far sooner than the attacks of demagogues. The permanent foundation of the ordinary governing power of the oligarchy of course could not but be the senate, with a power so increased and so concentrated that it presented a superiority to its non-organized opponents at every single point of attack. The system of compromises followed for forty years was at an end. The Gracchan constitution, still spared in the first Sullan reform of 666, was now utterly set aside. Since the time of Gaius Gracchus the government had conceded, as it were, the right of -'emeute- to the proletariat of the capital, and bought it off by regular distributions of corn to the burgesses domiciled there; Sulla abolished these largesses. Gaius Gracchus had organized and consolidated the order of capitalists by the letting of the tenths and customs of the province of Asia in Rome; Sulla abolished the system of middlemen, and converted the former contributions of the Asiatics into fixed taxes, which were assessed on the several districts according to the valuation-rolls drawn up for the purpose of gathering in the arrears.(9) Gaius Gracchus had by entrusting the posts of jurymen to men of equestrian census procured for the capitalist class an indirect share in administering and in governing, which proved itself not seldom stronger than the official administration and government; Sulla abolished the equestrian and restored the senatorial courts. Gaius Gracchus or at any rate the Gracchan period had conceded to the equites a special place at the popular festivals, such as the senators had for long possessed;(10) Sulla abolished it and relegated the equites to the plebeian benches.(11) The equestrian order, created as such by Gaius Gracchus, was deprived of its political existence by Sulla. The senate was to

exercise the supreme power in legislation, administration, and jurisdiction, unconditionally, indivisibly, and permanently, and was to be distinguished also by outward tokens not merely as a privileged, but as the only privileged, order.

Reorganization of the Senate

Its Complement Filled Up by Extraordinary Election

Admission to the Senate through the Quaestorship

Abolition of the Censorial Supervision of the Senate

For this purpose the governing board had, first of all, to have its ranks filled up and to be itself placed on a footing of independence. The numbers of the senators had been fearfully reduced by the recent crises. Sulla no doubt now gave to those who were exiled by the equestrian courts liberty to return, for instance to the consular Publius Rutilius Rufus,(12) who however made no use of the permission, and to Gaius Cotta the friend of Drusus;(13) but this made only slight amends for the gaps which the revolutionary and reactionary reigns of terror had created in the ranks of the senate. Accordingly by Sulla's directions the senate had its complement extraordinarily made up by about 300 new senators, whom the assembly of the tribes had to nominate from among men of equestrian census, and whom they selected, as may be conceived, chiefly from the younger men of the senatorial houses on the one hand, and from Sullan officers and others brought into prominence by the last revolution on the other. For the future also the mode of admission to the senate was regulated anew and placed on an essentially different basis. As the constitution had hitherto stood, men entered the senate either through the summons of the censors, which was the proper and ordinary way, or through the holding of one of the three curule magistracies—the consulship, the praetorship, or the aedileship—to which since the passing of the Ovinian law a seat and vote in the senate had been de jure attached.(14) The holding of an inferior magistracy, of the

tribunate or the quaestorship, gave doubtless a claim de facto to a place in the senate—inasmuch as the censorial selection especially turned towards the men who had held such offices—but by no means a reversion de jure. Of these two modes of admission, Sulla abolished the former by setting aside—at least practically—the censorship, and altered the latter to the effect that the right of admission to the senate was attached to the quaestorship instead of the aedileship, and at the same time the number of quaestors to be annually nominated was raised to twenty.(15) The prerogative hitherto legally pertaining to the censors, although practically no longer exercised in its original serious sense—of deleting any senator from the roll, with a statement of the reasons for doing so, at the revisals which took place every five years (16)—likewise fell into abeyance for the future; the irremoveable character which had hitherto de facto belonged to the senators was thus finally fixed by Sulla. The total number of senators, which hitherto had presumably not much exceeded the old normal number of 300 and often perhaps had not even reached it, was by these means considerably augmented, perhaps on an average doubled(17)—an augmentation which was rendered necessary by the great increase of the duties of the senate through the transference to it of the functions of jurymen. As, moreover, both the extraordinarily admitted senators and the quaestors were nominated by the -comitia tributa-, the senate, hitherto resting indirectly on the election of the people,(18) was now based throughout on direct popular election; and thus made as close an approach to a representative government as was compatible with the nature of the oligarchy and the notions of antiquity generally. The senate had in course of time been converted from a corporation intended merely to advise the magistrates into a board commanding the magistrates and self-governing; it was only a consistent advance in the same direction, when the right of nominating and cancelling senators originally belonging to the magistrates was withdrawn from them, and the senate was placed on the same legal

basis on which the magistrates' power itself rested. The extravagant prerogative of the censors to revise the list of the senate and to erase or add names at pleasure was in reality incompatible with an organized oligarchic constitution. As provision was now made for a sufficient regular recruiting of its ranks by the election of the quaestors, the censorial revisions became superfluous; and by their abeyance the essential principle at the bottom of every oligarchy, the irremovable character and life-tenure of the members of the ruling order who obtained seat and vote, was definitively consolidated.

Regulations As to the Burgesses

In respect to legislation Sulla contented himself with reviving the regulations made in 666, and securing to the senate the legislative initiative, which had long belonged to it practically, by legal enactment at least as against the tribunes. The burgess-body remained formally sovereign; but so far as its primary assemblies were concerned, while it seemed to the regent necessary carefully to preserve the form, he was still more careful to prevent any real activity on their part. Sulla dealt even with the franchise itself in the most contemptuous manner; he made no difficulty either in conceding it to the new burgess-communities, or in bestowing it on Spaniards and Celts en masse; in fact, probably not without design, no steps were taken at all for the adjustment of the burgess-roll, which nevertheless after so violent revolutions stood in urgent need of a revision, if the government was still at all in earnest with the legal privileges attaching to it. The legislative functions of the comitia, however, were not directly restricted; there was no need in fact for doing so, for in consequence of the better-secured initiative of the senate the people could not readily against the will of the government intermeddle with administration, finance, or criminal jurisdiction, and its legislative co-operation was once more

reduced in substance to the right of giving assent to alterations of the constitution.

Co-optation Restored in the Priestly Colleges Regulating of the Qualifications for Office

Of greater moment was the participation of the burgesses in the elections—a participation, with which they seemed not to be able to dispense without disturbing more than Sulla's superficial restoration could or would disturb. The interferences of the movement party in the sacerdotal elections were set aside; not only the Domitian law of 650, which transferred the election of the supreme priesthoods generally to the people,(19) but also the similar older enactments as to the -Pontifex Maximus- and the -Curio Maximus-(20) were cancelled by Sulla, and the colleges of priests received back the right of self-completion in its original absoluteness. In the case of elections to the offices of state, the mode hitherto pursued was on the whole retained; except in so far as the new regulation of the military command to be mentioned immediately certainly involved as its consequence a material restriction of the powers of the burgesses, and indeed in some measure transferred the right of bestowing the appointment of generals from the burgesses to the senate. It does not even appear that Sulla now resumed the previously attempted restoration of the Servian voting-arrangement;(21) whether it was that he regarded the particular composition of the voting-divisions as altogether a matter of indifference, or whether it was that this older arrangement seemed to him to augment the dangerous influence of the capitalists. Only the qualifications were restored and partially raised. The limit of age requisite for the holding of each office was enforced afresh; as was also the enactment that every candidate for the consulship should have previously held the praetorship, and every candidate for the praetorship should have previously held the quaestorship, whereas the aedileship was allowed to be passed over. The various attempts that had been recently

made to establish a -tyrannis- under the form of a consulship continued for several successive years led to special rigour in dealing with this abuse; and it was enacted that at least two years should elapse between the holding of one magistracy and the holding of another, and at least ten years should elapse before the same office could be held a second time. In this latter enactment the earlier ordinance of 412 (22) was revived, instead of the absolute prohibition of all re-election to the consulship, which had been the favourite idea of the most recent ultra-oligarchical epoch.(23) On the whole, however, Sulla left the elections to take their course, and sought merely to fetter the power of the magistrates in such a way that—let the incalculable caprice of the comitia call to office whomsoever it might—the person elected should not be in a position to rebel against the oligarchy.

Weakening of the Tribune of the People

The supreme magistrates of the state were at this period practically the three colleges of the tribunes of the people, the consuls and praetors, and the censors. They all emerged from the Sullan restoration with materially diminished rights, more especially the tribunician office, which appeared to the regent an instrument indispensable doubtless for senatorial government, but yet— as generated by revolution and having a constant tendency to generate fresh revolutions in its turn—requiring to be rigorously and permanently shackled. The tribunician authority had arisen out of the right to annul the official acts of the magistrates by veto, and, eventually, to fine any one who should oppose that right and to take steps for his farther punishment; this was still left to the tribunes, excepting that a heavy fine, destroying as a rule a man's civil existence, was imposed on the abuse of the right of intercession. The further prerogative of the tribune to have dealings with the people at pleasure, partly for the purpose of bringing up accusations and especially of calling former magistrates to account at the bar of the people, partly for the purpose of submitting laws to the vote, had

been the lever by which the Gracchi, Saturninus, and Sulpicius had revolutionized the state; it was not abolished, but its exercise was probably made dependent on a permission to be previously requested from the senate.(24) Lastly it was added that the holding of the tribunate should in future disqualify for the undertaking of a higher office—an enactment which, like many other points in Sulla's restoration, once more reverted to the old patrician maxims, and, just as in the times before the admission of the plebeians to the civil magistracies, declared the tribunate and the curule offices to be mutually incompatible. In this way the legislator of the oligarchy hoped to check tribunician demagogism and to keep all ambitious and aspiring men aloof from the tribunate, but to retain it as an instrument of the senate both for mediating between it and the burgesses, and, should circumstances require, for keeping in check the magistrates; and, as the authority of the king and afterwards of the republican magistrates over the burgesses scarcely anywhere comes to light so clearly as in the principle that they exclusively had the right of addressing the people, so the supremacy of the senate, now first legally established, is most distinctly apparent in this permission which the leader of the people had to ask from the senate for every transaction with his constituents.

Limitation of the Supreme Magistracy

Regulation of the Consular and Praetorian Functions before—

The Time of Sulla

The consulship and praetorship also, although viewed by the aristocratic regenerator of Rome with a more favourable eye than the tribunate liable in itself to be regarded with suspicion, by no means escaped that distrust towards its own instruments which is throughout characteristic of oligarchy. They were restricted with more tenderness in point of form, but in a way very sensibly felt. Sulla here began with the partition of functions. At the beginning of this period the arrangement in that respect stood as follows. As

formerly there had devolved on the two consuls the collective functions of the supreme magistracy, so there still devolved on them all those official duties for which distinct functionaries had not been by law established. This latter course had been adopted with the administration of justice in the capital, in which the consuls, according to a rule inviolably adhered to, might not interfere, and with the transmarine provinces then existing—Sicily, Sardinia, and the two Spains—in which, while the consul might no doubt exercise his *-imperium-*, he did so only exceptionally. In the ordinary course of things, accordingly, the six fields of special jurisdiction—the two judicial appointments in the capital and the four transmarine provinces—were apportioned among the six praetors, while there devolved on the two consuls, by virtue of their general powers, the management of the non-judicial business of the capital and the military command in the continental possessions. Now as this field of general powers was thus doubly occupied, the one consul in reality remained at the disposal of the government; and in ordinary times accordingly those eight supreme annual magistrates fully, and in fact amply, sufficed. For extraordinary cases moreover power was reserved on the one hand to conjoin the non-military functions, and on the other hand to prolong the military powers beyond the term of their expiry (*-prorogare-*). It was not unusual to commit the two judicial offices to the same praetor, and to have the business of the capital, which in ordinary circumstances had to be transacted by the consuls, managed by the *-praetor urbanus-*; whereas, as far as possible, the combination of several commands in the same hand was judiciously avoided. For this case in reality a remedy was provided by the rule that there was no interregnum in the military *-imperium-*, so that, although it had its legal term, it yet continued after the arrival of that term *de jure*, until the successor appeared and relieved his predecessor of the command; or—which is the same thing—the commanding consul or praetor after the expiry of his term of office, if a successor did not appear, might continue to act, and was bound to do so, in

the consul's or praetor's stead. The influence of the senate on this apportionment of functions consisted in its having by use and wont the power of either giving effect to the ordinary rule—so that the six praetors allotted among themselves the six special departments and the consuls managed the continental non-judicial business—or prescribing some deviation from it; it might assign to the consul a transmarine command of especial importance at the moment, or include an extraordinary military or judicial commission—such as the command of the fleet or an important criminal inquiry—among the departments to be distributed, and might arrange the further cumulations and extensions of term thereby rendered necessary. In this case, however, it was simply the demarcation of the respective consular and praetorian functions on each occasion which belonged to the senate, not the designation of the persons to assume the particular office; the latter uniformly took place by agreement among the magistrates concerned or by lot. The burgesses in the earlier period were doubtless resorted to for the purpose of legitimising by special decree of the community the practical prolongation of command that was involved in the non-arrival of relief;(25) but this was required rather by the spirit than by the letter of the constitution, and soon the burgesses ceased from intervention in the matter. In the course of the seventh century there were gradually added to the six special departments already existing six others, viz. the five new governorships of Macedonia, Africa, Asia, Narbo, and Cilicia, and the presidency of the standing commission respecting exactions.(26) With the daily extending sphere of action of the Roman government, moreover, it was a case of more and more frequent occurrence, that the supreme magistrates were called to undertake extraordinary military or judicial commissions. Nevertheless the number of the ordinary supreme annual magistrates was not enlarged; and there thus devolved on eight magistrates to be annually nominated—apart from all else—at least twelve special departments to be annually occupied. Of course it was no mere

accident, that this deficiency was not covered once for all by the creation of new praetorships. According to the letter of the constitution all the supreme magistrates were to be nominated annually by the burgesses; according to the new order or rather disorder—under which the vacancies that arose were filled up mainly by prolonging the term of office, and a second year was as a rule added by the senate to the magistrates legally serving for one year, but might also at discretion be refused—the most important and most lucrative places in the state were filled up no longer by the burgesses, but by the senate out of a list of competitors formed by the burgess-elections. Since among these positions the transmarine commands were especially sought after as being the most lucrative, it was usual to entrust a transmarine command on the expiry of their official year to those magistrates whom their office confined either in law or at any rate in fact to the capital, that is, to the two praetors administering justice in the city and frequently also to the consuls; a course which was compatible with the nature of prorogation, since the official authority of supreme magistrates acting in Rome and in the provinces respectively, although differently entered on, was not in strict state-law different in kind.

Regulation of Their Functions by Sulla

Separation of the Political and Military Authority

Cisalpine Gaul Erected into a Province

Such was the state of things which Sulla found existing, and which formed the basis of his new arrangement. Its main principles were, a complete separation between the political authority which governed in the burgess-districts and the military authority which governed in the non-burgess-districts, and an uniform extension of the duration of the supreme magistracy from one year to two, the first of which was devoted to civil, and the second to military affairs. Locally the civil and the military authority had certainly been long separated by the constitution, and the

former ended at the -pomerium-, where the latter began; but still the same man held the supreme political and the supreme military power united in his hand. In future the consul and praetor were to deal with the senate and burgesses, the proconsul and proprætor were to command the army; but all military power was cut off by law from the former, and all political action from the latter. This primarily led to the political separation of the region of Northern Italy from Italy proper. Hitherto they had stood doubtless in a national antagonism, inasmuch as Northern Italy was inhabited chiefly by Ligurians and Celts, Central and Southern Italy by Italians; but, in a political and administrative point of view, the whole continental territory of the Roman state from the Straits to the Alps including the Illyrian possessions—burgess, Latin, and non-Italian communities without exception—was in the ordinary course of things under the administration of the supreme magistrates who were acting in Rome, as in fact her colonial foundations extended through all this territory. According to Sulla's arrangement Italy proper, the northern boundary of which was at the same time changed from the Aesis to the Rubico, was—as a region now inhabited without exception by Roman citizens—made subject to the ordinary Roman authorities; and it became one of the fundamental principles of Roman state-law, that no troops and no commandant should ordinarily be stationed in this district. The Celtic country south of the Alps on the other hand, in which a military command could not be dispensed with on account of the continued incursions of the Alpine tribes, was constituted a distinct governorship after the model of the older transmarine commands.(27)

Lastly, as the number of praetors to be nominated yearly was raised from six to eight, the new arrangement of the duties was such, that the ten chief magistrates to be nominated yearly devoted themselves, during their first year of office, as consuls or praetors to the business of the capital—the two consuls to government and administration, two of the praetors to the administration of civil law, the remaining six to the reorganized administration of criminal justice—and, during their second year of office, were as proconsuls or propraeors invested with the command in one of the ten governorships: Sicily, Sardinia, the two Spains, Macedonia, Asia, Africa, Narbo, Cilicia, and Italian Gaul. The already-mentioned augmentation of the number of quaestors by Sulla to twenty was likewise connected with this arrangement.(28)

Better Arrangement of Business

Increase of the Power of the Senate

By this plan, in the first instance, a clear and fixed rule was substituted for the irregular mode of distributing offices hitherto adopted, a mode which invited all manner of vile manoeuvres and intrigues; and, secondly, the excesses of magisterial authority were as far as possible obviated and the influence of the supreme governing board was materially increased. According to the previous arrangement the only legal distinction in the empire was that drawn between the city which was surrounded by the ring-wall, and the country beyond the -pomerium-; the new arrangement substituted for the city the new Italy henceforth, as in perpetual peace, withdrawn from the regular -imperium-,(29) and placed in contrast to it the continental and transmarine territories, which were, on the other hand, necessarily placed under military commandants—the provinces as they were henceforth called. According to the former arrangement the same man had very frequently remained two, and often more years in the same office.

The new arrangement restricted the magistracies of the capital as well as the governorships throughout to one year; and the special enactment that every governor should without fail leave his province within thirty days after his successor's arrival there, shows very clearly—particularly if we take along with it the formerly-mentioned prohibition of the immediate re-election of the late magistrate to the same or another public office—what the tendency of these arrangements was. It was the time-honoured maxim by which the senate had at one time made the monarchy subject to it, that the limitation of the magistracy in point of function was favourable to democracy, and its limitation in point of time favourable to oligarchy. According to the previous arrangement Gaius Marius had acted at once as head of the senate and as commander-in-chief of the state; if he had his own unskilfulness alone to blame for his failure to overthrow the oligarchy by means of this double official power, care seemed now taken to prevent some possibly wiser successor from making a better use of the same lever. According to the previous arrangement the magistrate immediately nominated by the people might have had a military position; the Sullan arrangement, on the other hand, reserved such a position exclusively for those magistrates whom the senate confirmed in their official authority by prolonging their term of office. No doubt this prolongation of office had now become a standing usage; but it still—so far as respects the auspices and the name, and constitutional form in general—continued to be treated as an extraordinary extension of their term. This was no matter of indifference. The burgesses alone could depose the consul or praetor from his office; the proconsul and proprætor were nominated and dismissed by the senate, so that by this enactment the whole military power, on which withal everything ultimately depended, became formally at least dependent on the senate.

Shelving of the Censorship

Lastly we have already observed that the highest of all magistracies, the censorship, though not formally abolished, was shelved in the same way as the dictatorship had previously been. Practically it might certainly be dispensed with. Provision was otherwise made for filling up the senate. From the time that Italy was practically tax-free and the army was substantially formed by enlistment, the register of those liable to taxation and service lost in the main its significance; and, if disorder prevailed in the equestrian roll or the list of those entitled to the suffrage, that disorder was probably not altogether unwelcome. There thus remained only the current financial functions which the consuls had hitherto discharged when, as frequently happened, no election of censors had taken place, and which they now took as a part of their ordinary official duties. Compared with the substantial gain that by the shelving of the censorship the magistracy lost its crowning dignity, it was a matter of little moment and was not at all prejudicial to the sole dominion of the supreme governing corporation, that—with a view to satisfy the ambition of the senators now so much more numerous—the number of the pontifices and that of the augurs was increased from nine,(30) that of the custodiers of oracles from ten,(31) to fifteen each, and that of the banquet-masters from three(32) to seven.

Regulation of the Finances

In financial matters even under the former constitution the decisive voice lay with the senate; the only point to be dealt with, accordingly, was the re-establishment of an orderly administration. Sulla had found himself at first in no small difficulty as to money; the sums brought with him from Asia Minor were soon expended for the pay of his numerous and constantly swelling army. Even after the victory at the Colline gate the senate, seeing that the state-chest had been carried off to Praeneste, had been obliged to resort to urgent measures. Various building-sites in the capital and several portions of the Campanian domains were exposed to sale, the client kings,

the freed and allied communities, were laid under extraordinary contribution, their landed property and their customs-revenues were in some cases confiscated, and in others new privileges were granted to them for money. But the residue of nearly 600,000 pounds found in the public chest on the surrender of Praeneste, the public auctions which soon began, and other extraordinary resources, relieved the embarrassment of the moment. Provision was made for the future not so much by the reform in the Asiatic revenues, under which the tax-payers were the principal gainers, and the state chest was perhaps at most no loser, as by the resumption of the Campanian domains, to which Aenaria was now added,(33) and above all by the abolition of the largesses of grain, which since the time of Gaius Gracchus had eaten like a canker into the Roman finances.

Reorganization of the Judicial System.

Previous Arrangements

Ordinary Procedure

Permanent and Special -Quaestiones-

Centumviral Court

The judicial system on the other hand was essentially revolutionized, partly from political considerations, partly with a view to introduce greater unity and usefulness into the previous very insufficient and unconnected legislation on the subject. According to the arrangements hitherto subsisting, processes fell to be decided partly by the burgesses, partly by jurymen. The judicial cases in which the whole burgesses decided on appeal from the judgment of the magistrate were, down to the time of Sulla, placed in the hands primarily of the tribunes of the people, secondarily of the aediles, inasmuch as all the processes, through which a person entrusted with an office or commission by the community was brought to answer for his conduct of its affairs, whether they involved life and limb or money-fines, had to be in the first instance dealt with by the tribunes of the people,

and all the other processes in which ultimately the people decided, were in the first instance adjudicated on, in the second presided over, by the curule or plebeian aediles. Sulla, if he did not directly abolish the tribunician process of calling to account, yet made it dependent, just like the initiative of the tribunes in legislation, on the previous consent of the senate, and presumably also limited in like manner the aedilician penal procedure. On the other hand he enlarged the jurisdiction of the jury courts. There existed at that time two sorts of procedure before jurymen. The ordinary procedure, which was applicable in all cases adapted according to our view for a criminal or civil process with the exception of crimes immediately directed against the state, consisted in this, that one of the two praetors of the capital technically adjusted the cause and a juryman (-iudex-) nominated by him decided it on the basis of this adjustment. The extraordinary jury-procedure again was applicable in particular civil or criminal cases of importance, for which, instead of the single jurymen, a special jury-court had been appointed by special laws. Of this sort were the special tribunals constituted for individual cases;(34) the standing commissional tribunals, such as had been appointed for exactions,(35) for poisoning and murder,(36) perhaps also for bribery at elections and other crimes, in the course of the seventh century; and lastly, the two courts of the "Ten-men" for processes affecting freedom, and the "Hundred and five," or more briefly, the "Hundred-men," for processes affecting inheritance, also called, from the shaft of a spear employed in all disputes as to property, the "spear-court" (-hasta-). The court of Ten-men (-decemviri litibus iudicandis-) was a very ancient institution for the protection of the plebeians against their masters.(37) The period and circumstances in which the spear-court originated are involved in obscurity; but they must, it may be presumed, have been nearly the same as in the case of the essentially similar criminal commissions mentioned above. As to the presidency of these different tribunals there were different regulations in the respective ordinances appointing them: thus there

presided over the tribunal as to exactions a praetor, over the court for murder a president specially nominated from those who had been aediles, over the spear-court several directors taken from the former quaestors. The jurymen at least for the ordinary as for the extraordinary procedure were, in accordance with the Gracchan arrangement, taken from the non-senatorial men of equestrian census; the selection belonged in general to the magistrates who had the conducting of the courts, yet on such a footing that they, in entering upon their office, had to set forth once for all the list of jurymen, and then the jury for an individual case was formed from these, not by free choice of the magistrate, but by drawing lots, and by rejection on behalf of the parties. From the choice of the people there came only the "Ten-men" for procedure affecting freedom.

Sullan -Quaestiones-

Sulla's leading reforms were of a threefold character. First, he very considerably increased the number of the jury-courts. There were henceforth separate judicial commissions for exactions; for murder, including arson and perjury; for bribery at elections; for high treason and any dishonour done to the Roman name; for the most heinous cases of fraud—the forging of wills and of money; for adultery; for the most heinous violations of honour, particularly for injuries to the person and disturbance of the domestic peace; perhaps also for embezzlement of public moneys, for usury and other crimes; and at least the greater number of these courts were either found in existence or called into life by Sulla, and were provided by him with special ordinances setting forth the crime and form of criminal procedure. The government, moreover, was not deprived of the right to appoint in case of emergency special courts for particular groups of crimes. As a result of these arrangements, the popular tribunals were in substance done away with, processes of high treason in particular were consigned to the new high treason commission, and the ordinary jury procedure was

considerably restricted, for the more serious falsifications and injuries were withdrawn from it. Secondly, as respects the presidency of the courts, six praetors, as we have already mentioned, were now available for the superintendence of the different jury-courts, and to these were added a number of other directors in the care of the commission which was most frequently called into action—that for dealing with murder. Thirdly, the senators were once more installed in the office of jurymen in room of the Gracchan equites.

The political aim of these enactments—to put an end to the share which the equites had hitherto had in the government—is clear as day; but it as little admits of doubt, that these were not mere measures of a political tendency, but that they formed the first attempt to amend the Roman criminal procedure and criminal law, which had since the struggle between the orders fallen more and more into confusion. From this Sullan legislation dates the distinction—substantially unknown to the earlier law—between civil and criminal causes, in the sense which we now attach to these expressions; henceforth a criminal cause appears as that which comes before the bench of jurymen under the presidency of the praetor, a civil cause as the procedure, in which the jurymen do not discharge their duties under praetorian presidency. The whole body of the Sullan ordinances as to the *-quaestiones-* may be characterized at once as the first Roman code after the Twelve Tables, and as the first criminal code ever specially issued at all. But in the details also there appears a laudable and liberal spirit. Singular as it may sound regarding the author of the proscriptions, it remains nevertheless true that he abolished the punishment of death for political offences; for, as according to the Roman custom which even Sulla retained unchanged the people only, and not the jury-commission, could sentence to forfeiture of life or to imprisonment,(38) the transference of processes of high treason from the burgesses to a standing commission amounted to the abolition of capital punishment for such

offences. On the other hand, the restriction of the pernicious special commissions for particular cases of high treason, of which the Varian commission(39) in the Social war had been a specimen, likewise involved an improvement. The whole reform was of singular and lasting benefit, and a permanent monument of the practical, moderate, statesmanly spirit, which made its author well worthy, like the old decemvirs, to step forward between the parties as sovereign mediator with his code of law.

Police Laws

We may regard as an appendix to these criminal laws the police ordinances, by which Sulla, putting the law in place of the censor, again enforced good discipline and strict manners, and, by establishing new maximum rates instead of the old ones which had long been antiquated, attempted to restrain luxury at banquets, funerals, and otherwise.

The Roman Municipal System

Lastly, the development of an independent Roman municipal system was the work, if not of Sulla, at any rate of the Sullan epoch. The idea of organically incorporating the community as a subordinate political unit in the higher unity of the state was originally foreign to antiquity; the despotism of the east knew nothing of urban commonwealths in the strict sense of the word, and city and state were throughout the Helleno-Italic world necessarily coincident. In so far there was no proper municipal system from the outset either in Greece or in Italy. The Roman polity especially adhered to this view with its peculiar tenacious consistency; even in the sixth century the dependent communities of Italy were either, in order to their keeping their municipal constitution, constituted as formally sovereign states of non-burgesses, or, if they obtained the Roman franchise, were—although not prevented from organizing themselves as collective bodies—deprived of properly municipal rights, so that in all burgess-

colonies and burgess—municipia- even the administration of justice and the charge of buildings devolved on the Roman praetors and censors. The utmost to which Rome consented was to allow at least the most urgent lawsuits to be settled on the spot by a deputy (-praefectus-) of the praetor nominated from Rome.(40) The provinces were similarly dealt with, except that the governor there came in place of the authorities of the capital. In the free, that is, formally sovereign towns the civil and criminal jurisdiction was administered by the municipal magistrates according to the local statutes; only, unless altogether special privileges stood in the way, every Roman might either as defendant or as plaintiff request to have his cause decided before Italian judges according to Italian law. For the ordinary provincial communities the Roman governor was the only regular judicial authority, on whom devolved the direction of all processes. It was a great matter when, as in Sicily, in the event of the defendant being a Sicilian, the governor was bound by the provincial statute to give a native jurymen and to allow him to decide according to local usage; in most of the provinces this seems to have depended on the pleasure of the directing magistrate.

In the seventh century this absolute centralization of the public life of the Roman community in the one focus of Rome was given up, so far as Italy at least was concerned. Now that Italy was a single civic community and the civic territory reached from the Arnus and Rubico down to the Sicilian Straits,(41) it was necessary to consent to the formation of smaller civic communities within that larger unit. So Italy was organized into communities of full burgesses; on which occasion also the larger cantons that were dangerous from their size were probably broken up, so far as this had not been done already, into several smaller town-districts.(42) The position of these new communities of full burgesses was a compromise between that which had belonged to them hitherto as allied states, and that which by the earlier law would have belonged to them as integral parts of the Roman community. Their basis was in general the constitution of the

former formally sovereign Latin community, or, so far as their constitution in its principles resembled the Roman, that of the Roman old-patrician-consular community; only care was taken to apply to the same institutions in the -municipium- names different from, and inferior to, those used in the capital, or, in other words, in the state. A burgess-assembly was placed at the head, with the prerogative of issuing municipal statutes and nominating the municipal magistrates. A municipal council of a hundred members acted the part of the Roman senate. The administration of justice was conducted by four magistrates, two regular judges corresponding to the two consuls, and two market-judges corresponding to the curule aediles. The functions of the censorship, which recurred, as in Rome, every five years and, to all appearance, consisted chiefly in the superintendence of public buildings, were also undertaken by the supreme magistrates of the community, namely the ordinary -duumviri-, who in this case assumed the distinctive title of -duumviri- "with censorial or quinquennial power." The municipal funds were managed by two quaestors. Religious functions primarily devolved on the two colleges of men of priestly lore alone known to the earliest Latin constitution, the municipal pontifices and augurs.

Relation of the -Municipium- to the State

With reference to the relation of this secondary political organism to the primary organism of the state, political prerogatives in general belonged completely to the former as well as to the latter, and consequently the municipal decree and the -imperium- of the municipal magistrates bound the municipal burgess just as the decree of the people and the consular -imperium- bound the Roman. This led, on the whole, to a co-ordinate exercise of power by the authorities of the state and of the town; both had, for instance, the right of valuation and taxation, so that in the case of any municipal valuations and taxes those prescribed by Rome were not taken into account, and vice versa; public buildings might be instituted both by

the Roman magistrates throughout Italy and by the municipal authorities in their own district, and so in other cases. In the event of collision, of course the community yielded to the state and the decree of the people invalidated the municipal decree. A formal division of functions probably took place only in the administration of justice, where the system of pure co-ordination would have led to the greatest confusion. In criminal procedure presumably all capital causes, and in civil procedure those more difficult cases which presumed an independent action on the part of the directing magistrate, were reserved for the authorities and jurymen of the capital, and the Italian municipal courts were restricted to the minor and less complicated lawsuits, or to those which were very urgent.

Rise of the -Municipium-

The origin of this Italian municipal system has not been recorded by tradition. It is probable that its germs may be traced to exceptional regulations for the great burgess-colonies, which were founded at the end of the sixth century;(43) at least several, in themselves indifferent, formal differences between burgess-colonies and burgess—municipia- tend to show that the new burgess-colony, which at that time practically took the place of the Latin, had originally a better position in state-law than the far older burgess- -municipium-, and the advantage doubtless can only have consisted in a municipal constitution approximating to the Latin, such as afterwards belonged to all burgess-colonies and burgess—municipia-. The new organization is first distinctly demonstrable for the revolutionary colony of Capua;(44) and it admits of no doubt that it was first fully applied, when all the hitherto sovereign towns of Italy had to be organized, in consequence of the Social war, as burgess- communities. Whether it was the Julian law, or the censors of 668, or Sulla, that first arranged the details, cannot be determined: the entrusting of the censorial functions to the - duumviri- seems indeed to have been introduced after the analogy of the

Sullan ordinance superseding the censorship, but may be equally well referred to the oldest Latin constitution to which also the censorship was unknown. In any case this municipal constitution— inserted in, and subordinate to, the state proper—is one of the most remarkable and momentous products of the Sullan period, and of the life of the Roman state generally. Antiquity was certainly as little able to dovetail the city into the state as to develop of itself representative government and other great principles of our modern state-life; but it carried its political development up to those limits at which it outgrows and bursts its assigned dimensions, and this was the case especially with Rome, which in every respect stands on the line of separation and connection between the old and the new intellectual worlds. In the Sullan constitution the primary assembly and the urban character of the commonwealth of Rome, on the one hand, vanished almost into a meaningless form; the community subsisting within the state on the other hand was already completely developed in the Italian - municipium-. Down to the name, which in such cases no doubt is the half of the matter, this last constitution of the free republic carried out the representative system and the idea of the state built upon the basis of the municipalities.

The municipal system in the provinces was not altered by this movement; the municipal authorities of the non-free towns continued— special exceptions apart—to be confined to administration and police, and to such jurisdiction as the Roman authorities did not prefer to take into their own hands.

Impression Produced by the Sullan Reorganization Opposition of the Officers

Such was the constitution which Lucius Cornelius Sulla gave to the commonwealth of Rome. The senate and equestrian order, the burgesses

and proletariat, Italians and provincials, accepted it as it was dictated to them by the regent, if not without grumbling, at any rate without rebelling: not so the Sullan officers. The Roman army had totally changed its character. It had certainly been rendered by the Marian reform more ready for action and more militarily useful than when it did not fight before the walls of Numantia; but it had at the same time been converted from a bourgeois force into a set of mercenaries who showed no fidelity to the state at all, and proved faithful to the officer only if he had the skill personally to gain their attachment. The civil war had given fearful evidence of this total revolution in the spirit of the army: six generals in command, Albinus,(45) Cato,(46) Rufus,(47) Flaccus,(48) Cinna,(49) and Gaius Carbo,(50) had fallen during its course by the hands of their soldiers: Sulla alone had hitherto been able to retain the mastery of the dangerous crew, and that only, in fact, by giving the rein to all their wild desires as no Roman general before him had ever done. If the blame of destroying the old military discipline is on this account attached to him, the censure is not exactly without ground, but yet without justice; he was indeed the first Roman magistrate who was only enabled to discharge his military and political task by coming forward as a -condottiere-. He had not however taken the military dictatorship for the purpose of making the state subject to the soldiery, but rather for the purpose of compelling everything in the state, and especially the army and the officers, to submit once more to the authority of civil order. When this became evident, an opposition arose against him among his own staff. The oligarchy might play the tyrant as respected other citizens; but that the generals also, who with their good swords had replaced the overthrown senators in their seats, should now be summoned to yield implicit obedience to this very senate, seemed intolerable. The very two officers in whom Sulla had placed most confidence resisted the new order of things. When Gnaeus Pompeius, whom Sulla had entrusted with the conquest of Sicily and Africa and had selected

for his son-in-law, after accomplishing his task received orders from the senate to dismiss his army, he omitted to comply and fell little short of open insurrection.

Quintus Ofella, to whose firm perseverance in front of Praeneste the success of the last and most severe campaign was essentially due in equally open violation of the newly issued ordinances became a candidate for the consulship without having held the inferior magistracies. With Pompeius there was effected, if not a cordial reconciliation, at any rate a compromise. Sulla, who knew his man sufficiently not to fear him, did not resent the impertinent remark which Pompeius uttered to his face, that more people concerned themselves with the rising than with the setting sun; and accorded to the vain youth the empty marks of honour to which his heart clung.⁽⁵¹⁾ If in this instance he appeared lenient, he showed on the other hand in the case of Ofella that he was not disposed to allow his marshals to take advantage of him; as soon as the latter had appeared unconstitutionally as candidate, Sulla had him cut down in the public market-place, and then explained to the assembled citizens that the deed was done by his orders and the reason for doing it. So this significant opposition of the staff to the new order of things was no doubt silenced for the present; but it continued to subsist and furnished the practical commentary on Sulla's saying, that what he did on this occasion could not be done a second time.

Re-establishment of Constitutional Order

One thing still remained—perhaps the most difficult of all: to bring the exceptional state of things into accordance with the paths prescribed by the new or old laws. It was facilitated by the circumstance, that Sulla never lost sight of this as his ultimate aim. Although the Valerian law gave him absolute power and gave to each of his ordinances the force of law, he had nevertheless availed himself of this extraordinary prerogative only in the

case of measures, which were of transient importance, and to take part in which would simply have uselessly compromised the senate and burgesses, especially in the case of the proscriptions.

Sulla Resigns the Regency

Ordinarily he had himself observed those regulations, which he prescribed for the future. That the people were consulted, we read in the law as to the quaestors which is still in part extant; and the same is attested of other laws, e. g. the sumptuary law and those regarding the confiscation of domains. In like manner the senate was previously consulted in the more important administrative acts, such as in the sending forth and recall of the African army and in the conferring of the charters of towns. In the same spirit Sulla caused consuls to be elected even for 673, through which at least the odious custom of dating officially by the regency was avoided; nevertheless the power still lay exclusively with the regent, and the election was directed so as to fall on secondary personages. But in the following year (674) Sulla revived the ordinary constitution in full efficiency, and administered the state as consul in concert with his comrade in arms Quintus Metellus, retaining the regency, but allowing it for the time to lie dormant. He saw well how dangerous it was for his own very institutions to perpetuate the military dictatorship. When the new state of things seemed likely to hold its ground and the largest and most important portion of the new arrangements had been completed, although various matters, particularly in colonization, still remained to be done, he allowed the elections for 675 to have free course, declined re-election to the consulship as incompatible with his own ordinances, and at the beginning of 675 resigned the regency, soon after the new consuls Publius Servilius and Appius Claudius had entered on office. Even callous hearts were impressed, when the man who had hitherto dealt at his pleasure with the life and property of millions, at whose nod so many heads had fallen, who had

mortal enemies dwelling in every street of Rome and in every town of Italy, and who without an ally of equal standing and even, strictly speaking, without the support of a fixed party had brought to an end his work of reorganizing the state, a work offending a thousand interests and opinions—when this man appeared in the market-place of the capital, voluntarily renounced his plenitude of power, discharged his armed attendants, dismissed his lictors, and summoned the dense throng of burgesses to speak, if any one desired from him a reckoning. All were silent: Sulla descended from the rostra, and on foot, attended only by his friends, returned to his dwelling through the midst of that very populace which eight years before had razed his house to the ground.

Character of Sulla

Posterity has not justly appreciated either Sulla himself or his work of reorganization, as indeed it is wont to judge unfairly of persons who oppose themselves to the current of the times. In fact Sulla is one of the most marvellous characters—we may even say a unique phenomenon—in history. Physically and mentally of sanguine temperament, blue-eyed, fair, of a complexion singularly white but blushing with every passionate emotion—though otherwise a handsome man with piercing eyes—he seemed hardly destined to be of more moment to the state than his ancestors, who since the days of his great-great-grandfather Publius Cornelius Rufinus (consul in 464, 477), one of the most distinguished generals and at the same time the most ostentatious man of the times of Pyrrhus, had remained in second-rate positions. He desired from life nothing but serene enjoyment. Reared in the refinement of such cultivated luxury as was at that time naturalized even in the less wealthy senatorial families of Rome, he speedily and adroitly possessed himself of all the fulness of sensuous and intellectual enjoyments which the combination of Hellenic polish and Roman wealth could secure. He was equally welcome

as a pleasant companion in the aristocratic saloon and as a good comrade in the tented field; his acquaintances, high and low, found in him a sympathizing friend and a ready helper in time of need, who gave his gold with far more pleasure to his embarrassed comrade than to his wealthy creditor. Passionate was his homage to the wine-cup, still more passionate to women; even in his later years he was no longer the regent, when after the business of the day was finished he took his place at table. A vein of irony—we might perhaps say of buffoonery—pervaded his whole nature. Even when regent he gave orders, while conducting the public sale of the property of the proscribed, that a donation from the spoil should be given to the author of a wretched panegyric which was handed to him, on condition that the writer should promise never to sing his praises again. When he justified before the burgesses the execution of Ofella, he did so by relating to the people the fable of the countryman and the lice. He delighted to choose his companions among actors, and was fond of sitting at wine not only with Quintus Roscius—the Roman Talma—but also with far inferior players; indeed he was himself not a bad singer, and even wrote farces for performance within his own circle. Yet amidst these jovial Bacchanalia he lost neither bodily nor mental vigour, in the rural leisure of his last years he was still zealously devoted to the chase, and the circumstance that he brought the writings of Aristotle from conquered Athens to Rome attests withal his interest in more serious reading. The specific type of Roman character rather repelled him. Sulla had nothing of the blunt hauteur which the grandees of Rome were fond of displaying in presence of the Greeks, or of the pomposity of narrow-minded great men; on the contrary he freely indulged his humour, appeared, to the scandal doubtless of many of his countrymen, in Greek towns in the Greek dress, or induced his aristocratic companions to drive their chariots personally at the games. He retained still less of those half-patriotic, half-selfish hopes, which in countries of free constitution allure every youth of talent into the political arena, and which

he too like all others probably at one time felt. In such a life as his was, oscillating between passionate intoxication and more than sober awaking, illusions are speedily dissipated. Wishing and striving probably appeared to him folly in a world which withal was absolutely governed by chance, and in which, if men were to strive after anything at all, this chance could be the only aim of their efforts. He followed the general tendency of the age in addicting himself at once to unbelief and to superstition. His whimsical credulity was not the plebeian superstition of Marius, who got a priest to prophesy to him for money and determined his actions accordingly; still less was it the sullen belief of the fanatic in destiny; it was that faith in the absurd, which necessarily makes its appearance in every man who has out and out ceased to believe in a connected order of things—the superstition of the fortunate player, who deems himself privileged by fate to throw on each and every occasion the right number. In practical questions Sulla understood very well how to satisfy ironically the demands of religion. When he emptied the treasuries of the Greek temples, he declared that the man could never fail whose chest was replenished by the gods themselves. When the Delphic priests reported to him that they were afraid to send the treasures which he asked, because the harp of the god emitted a clear sound when they touched it, he returned the reply that they might now send them all the more readily, as the god evidently approved his design. Nevertheless he fondly flattered himself with the idea that he was the chosen favourite of the gods, and in an altogether special manner of that goddess, to whom down to his latest years he assigned the pre- eminence, Aphrodite. In his conversations as well as in his autobiography he often plumed himself on the intercourse which the immortals held with him in dreams and omens. He had more right than most men to be proud of his achievements he was not so, but he was proud of his uniquely faithful fortune. He was wont to say that every improvised enterprise turned out better with him than those which were systematically planned; and one of his strangest whims— that

of regularly stating the number of those who had fallen on his side in battle as nil—was nothing but the childishness of a child of fortune. It was but the utterance of his natural disposition, when, having reached the culminating point of his career and seeing all his contemporaries at a dizzy depth beneath him, he assumed the designation of the Fortunate—Sulla Felix—as a formal surname, and bestowed corresponding appellations on his children,

Sulla's Political Career

Nothing lay farther from Sulla than systematic ambition. He had too much sense to regard, like the average aristocrats of his time, the inscription of his name in the roll of the consuls as the aim of his life; he was too indifferent and too little of an ideologue to be disposed voluntarily to engage in the reform of the rotten structure of the state. He remained—where birth and culture placed him—in the circle of genteel society, and passed through the usual routine of offices; he had no occasion to exert himself, and left such exertion to the political working bees, of whom there was in truth no lack. Thus in 647, on the allotment of the quaestorial places, accident brought him to Africa to the headquarters of Gaius Marius. The untried man-of-fashion from the capital was not very well received by the rough boorish general and his experienced staff. Provoked by this reception Sulla, fearless and skilful as he was, rapidly made himself master of the profession of arms, and in his daring expedition to Mauretania first displayed that peculiar combination of audacity and cunning with reference to which his contemporaries said of him that he was half lion half fox, and that the fox in him was more dangerous than the lion. To the young, highborn, brilliant officer, who was confessedly the real means of ending the vexatious Numidian war, the most splendid career now lay open; he took part also in the Cimbrian war, and manifested his singular talent for organization in the management of the difficult task of providing supplies; yet even now the pleasures of life in the capital had far more attraction for

him than war or even politics. During his praetorship, which office he held in 661 after having failed in a previous candidature, it once more chanced that in his province, the least important of all, the first victory over king Mithradates and the first treaty with the mighty Arsacids, as well as their first humiliation, occurred. The Civil war followed. It was Sulla mainly, who decided the first act of it—the Italian insurrection—in favour of Rome, and thus won for himself the consulship by his sword; it was he, moreover, who when consul suppressed with energetic rapidity the Sulpician revolt. Fortune seemed to make it her business to eclipse the old hero Marius by means of this younger officer. The capture of Jugurtha, the vanquishing of Mithradates, both of which Marius had striven for in vain, were accomplished in subordinate positions by Sulla: in the Social war, in which Marius lost his renown as a general and was deposed, Sulla established his military reputation and rose to the consulship; the revolution of 666, which was at the same time and above all a personal conflict between the two generals, ended with the outlawry and flight of Marius. Almost without desiring it, Sulla had become the most famous general of his time and the shield of the oligarchy. New and more formidable crises ensued—the Mithradatic war, the Cinnan revolution; the star of Sulla continued always in the ascendant. Like the captain who seeks not to quench the flames of his burning ship but continues to fire on the enemy, Sulla, while the revolution was raging in Italy, persevered unshaken in Asia till the public foe was subdued. So soon as he had done with that foe, he crushed anarchy and saved the capital from the firebrands of the desperate Samnites and revolutionists. The moment of his return home was for Sulla an overpowering one in joy and in pain: he himself relates in his memoirs that during his first night in Rome he had not been able to close an eye, and we may well believe it. But still his task was not at an end; his star was destined to rise still higher. Absolute autocrat as was ever any king, and yet constantly abiding on the ground of formal right, he bridled the ultra-

reactionary party, annihilated the Gracchan constitution which had for forty years limited the oligarchy, and compelled first the powers of the capitalists and of the urban proletariat which had entered into rivalry with the oligarchy, and ultimately the arrogance of the sword which had grown up in the bosom of his own staff, to yield once more to the law which he strengthened afresh. He established the oligarchy on a more independent footing than ever, placed the magisterial power as a ministering instrument in its hands, committed to it the legislation, the courts, the supreme military and financial power, and furnished it with a sort of bodyguard in the liberated slaves and with a sort of army in the settled military colonists. Lastly, when the work was finished, the creator gave way to his own creation; the absolute autocrat became of his own accord once more a simple senator. In all this long military and political career Sulla never lost a battle, was never compelled to retrace a single step, and, led astray neither by friends nor by foes, brought his work to the goal which he had himself proposed. He had reason, indeed, to thank his star. The capricious goddess of fortune seemed in his case for once to have exchanged caprice for steadfastness, and to have taken a pleasure in loading her favourite with successes and honours— whether he desired them or not. But history must be more just towards him than he was towards himself, and must place him in a higher rank than that of the mere favourites of fortune.

Sulla and His Work

We do not mean that the Sullan constitution was a work of political genius, such as those of Gracchus and Caesar. There does not occur in it—as is, indeed, implied in its very nature as a restoration—a single new idea in statesmanship. All its most essential features— admission to the senate by the holding of the quaestorship, the abolition of the censorial right to eject a senator from the senate, the initiative of the senate in legislation, the conversion of the tribunician office into an instrument of the senate for

fettering the -imperium-, the prolonging of the duration of the supreme office to two years, the transference of the command from the popularly-elected magistrate to the senatorial proconsul or proprætor, and even the new criminal and municipal arrangements— were not created by Sulla, but were institutions which had previously grown out of the oligarchic government, and which he merely regulated and fixed. And even as to the horrors attaching to his restoration, the proscriptions and confiscations—are they, compared with the doings of Nasica, Popilius, Opimius, Caepio and so on, anything else than the legal embodiment of the customary oligarchic mode of getting rid of opponents? On the Roman oligarchy of this period no judgment can be passed save one of inexorable and remorseless condemnation; and, like everything, else connected with it, the Sullan constitution is completely involved in that condemnation. To accord praise which the genius of a bad man bribes us into bestowing is to sin against the sacred character of history; but we may be allowed to bear in mind that Sulla was far less answerable for the Sullan restoration than the body of the Roman aristocracy, which had ruled as a clique for centuries and had every year become more enervated and embittered by age, and that all that was hollow and all that was nefarious therein is ultimately traceable to that aristocracy. Sulla reorganized the state—not, however, as the master of the house who puts his shattered estate and household in order according to his own discretion, but as the temporary business-manager who faithfully complies with his instructions; it is superficial and false in such a case to devolve the final and essential responsibility from the master upon the manager. We estimate the importance of Sulla much too highly, or rather we dispose of those terrible proscriptions, ejections, and restorations—for which there never could be and never was any reparation—on far too easy terms, when we regard them as the work of a bloodthirsty tyrant whom accident had placed at the head of the state. These and the terrorism of the restoration were the deeds of the aristocracy, and Sulla was nothing more in

the matter than, to use the poet's expression, the executioner's axe following the conscious thought as its unconscious instrument. Sulla carried out that part with rare, in fact superhuman, perfection; but within the limits which it laid down for him, his working was not only grand but even useful. Never has any aristocracy deeply decayed and decaying still farther from day to day, such as was the Roman aristocracy of that time, found a guardian so willing and able as Sulla to wield for it the sword of the general and the pen of the legislator without any regard to the gain of power for himself. There is no doubt a difference between the case of an officer who refuses the sceptre from public spirit and that of one who throws it away from a cloyed appetite; but, so far as concerns the total absence of political selfishness—although, it is true, in this one respect only—Sulla deserves to be named side by side with Washington.

Value of the Sullan Constitution

But the whole country—and not the aristocracy merely—was more indebted to him than posterity was willing to confess. Sulla definitely terminated the Italian revolution, in so far as it was based on the disabilities of individual less privileged districts as compared with others of better rights, and, by compelling himself and his party to recognize the equality of the rights of all Italians in presence of the law, he became the real and final author of the full political unity of Italy—a gain which was not too dearly purchased by ever so many troubles and streams of blood. Sulla however did more. For more than half a century the power of Rome had been declining, and anarchy had been her permanent condition: for the government of the senate with the Gracchan constitution was anarchy, and the government of Cinna and Carbo was a yet far worse illustration of the absence of a master- hand (the sad image of which is most clearly reflected in that equally confused and unnatural league with the Samnites), the most uncertain, most intolerable, and most mischievous of all conceivable

political conditions—in fact the beginning of the end. We do not go too far when we assert that the long-undermined Roman commonwealth must have necessarily fallen to pieces, had not Sulla by his intervention in Asia and Italy saved its existence. It is true that the constitution of Sulla had as little endurance as that of Cromwell, and it was not difficult to see that his structure was no solid one; but it is arrant thoughtlessness to overlook the fact that without Sulla most probably the very site of the building would have been swept away by the waves; and even the blame of its want of stability does not fall primarily on Sulla. The statesman builds only so much as in the sphere assigned to him he can build. What a man of conservative views could do to save the old constitution, Sulla did; and he himself had a foreboding that, while he might doubtless erect a fortress, he would be unable to create a garrison, and that the utter worthlessness of the oligarchs would render any attempt to save the oligarchy vain. His constitution resembled a temporary dike thrown into the raging breakers; it was no reproach to the builder, if some ten years afterwards the waves swallowed up a structure at variance with nature and not defended even by those whom it sheltered. The statesman has no need to be referred to highly commendable isolated reforms, such as those of the Asiatic revenue-system and of criminal justice, that he may not summarily dismiss Sulla's ephemeral restoration: he will admire it as a reorganization of the Roman commonwealth judiciously planned and on the whole consistently carried out under infinite difficulties, and he will place the deliverer of Rome and the accomplisher of Italian unity below, but yet by the side of, Cromwell.

Immoral and Superficial Nature of the Sullan Restoration

It is not, however, the statesman alone who has a voice in judging the dead; and with justice outraged human feeling will never reconcile itself to what Sulla did or suffered others to do. Sulla not only established his despotic power by unscrupulous violence, but in doing so called things by

their right name with a certain cynical frankness, through which he has irreparably offended the great mass of the weakhearted who are more revolted at the name than at the thing, but through which, from the cool and dispassionate character of his crimes, he certainly appears to the moral judgment more revolting than the criminal acting from passion. Outlawries, rewards to executioners, confiscations of goods, summary procedure with insubordinate officers had occurred a hundred times, and the obtuse political morality of ancient civilization had for such things only lukewarm censure; but it was unexampled that the names of the outlaws should be publicly posted up and their heads publicly exposed, that a set sum should be fixed for the bandits who slew them and that it should be duly entered in the public account-books, that the confiscated property should be brought to the hammer like the spoil of an enemy in the public market, that the general should order a refractory officer to be at once cut down and acknowledge the deed before all the people. This public mockery of humanity was also a political error; it contributed not a little to envenom later revolutionary crises beforehand, and on that account even now a dark shadow deservedly rests on the memory of the author of the proscriptions.

Sulla may moreover be justly blamed that, while in all important matters he acted with remorseless vigour, in subordinate and more especially in personal questions he very frequently yielded to his sanguine temperament and dealt according to his likings or dislikings. Wherever he really felt hatred, as for instance against the Marians, he allowed it to take its course without restraint even against the innocent, and boasted of himself that no one had better requited friends and foes.⁽⁵²⁾ He did not disdain on occasion of his plenitude of power to accumulate a colossal fortune. The first absolute monarch of the Roman state, he verified the maxim of absolutism—that the laws do not bind the prince—forthwith in the case of those laws which he himself issued as to adultery and extravagance. But his lenity towards his own party and his own circle was more pernicious for the state

than his indulgence towards himself. The laxity of his military discipline, although it was partly enjoined by his political exigencies, may be reckoned as coming under this category; but far more pernicious was his indulgence towards his political adherents. The extent of his occasional forbearance is hardly credible: for instance Lucius Murena was not only released from punishment for defeats which he sustained through arrant perversity and insubordination,(53) but was even allowed a triumph; Gnaeus Pompeius, who had behaved still worse, was still more extravagantly honoured by Sulla.(54) The extensive range and the worst enormities of the proscriptions and confiscations probably arose not so much from Sulla's own wish as from this spirit of indifference, which in his position indeed was hardly more pardonable. That Sulla with his intrinsically energetic and yet withal indifferent temperament should conduct himself very variously, sometimes with incredible indulgence, sometimes with inexorable severity, may readily be conceived. The saying repeated a thousand times, that he was before his regency a good-natured, mild man, but when regent a bloodthirsty tyrant, carries in it its own refutation; if he as regent displayed the reverse of his earlier gentleness, it must rather be said that he punished with the same careless nonchalance with which he pardoned. This half-ironical frivolity pervades his whole political action. It is always as if the victor, just as it pleased him to call his merit in gaining victory good fortune, esteemed the victory itself of no value; as if he had a partial presentiment of the vanity and perishableness of his own work; as if after the manner of a steward he preferred making repairs to pulling down and rebuilding, and allowed himself in the end to be content with a sorry plastering to conceal the flaws.

Sulla after His Retirement

But, such as he was, this Don Juan of politics was a man of one mould. His whole life attests the internal equilibrium of his nature; in the most

diverse situations Sulla remained unchangeably the same. It was the same temper, which after the brilliant successes in Africa made him seek once more the idleness of the capital, and after the full possession of absolute power made him find rest and refreshment in his Cuman villa. In his mouth the saying, that public affairs were a burden which he threw off so soon as he might and could, was no mere phrase. After his resignation he remained entirely like himself, without peevishness and without affectation, glad to be rid of public affairs and yet interfering now and then when opportunity offered. Hunting and fishing and the composition of his memoirs occupied his leisure hours; by way of interlude he arranged, at the request of the discordant citizens, the internal affairs of the neighbouring colony of Puteoli as confidently and speedily as he had formerly arranged those of the capital. His last action on his sickbed had reference to the collection of a contribution for the rebuilding of the Capitoline temple, of which he was not allowed to witness the completion.

Death of Sulla

Little more than a year after his retirement, in the sixtieth year of his life, while yet vigorous in body and mind, he was overtaken by death; after a brief confinement to a sick-bed—he was writing at his autobiography two days even before his death—the rupture of a blood-vessel⁽⁵⁵⁾ carried him off (676). His faithful fortune did not desert him even in death. He could have no wish to be drawn once more into the disagreeable vortex of party struggles, and to be obliged to lead his old warriors once more against a new revolution; yet such was the state of matters at his death in Spain and in Italy, that he could hardly have been spared this task had his life been prolonged. Even now when it was suggested that he should have a public funeral in the capital, numerous voices there, which had been silent in his lifetime, were raised against the last honour which it was proposed to show to the tyrant. But his memory was still too fresh and the dread of his old

soldiers too vivid: it was resolved that the body should be conveyed to the capital and that the obsequies should be celebrated there.

His Funeral

Italy never witnessed a grander funeral solemnity. In every place through which the deceased was borne in regal attire, with his well-known standards and fasces before him, the inhabitants and above all his old soldiers joined the mourning train: it seemed as if the whole army would once more meet round the hero in death, who had in life led it so often and never except to victory. So the endless funeral procession reached the capital, where the courts kept holiday and all business was suspended, and two thousand golden chaplets awaited the dead—the last honorary gifts of the faithful legions, of the cities, and of his more intimate friends. Sulla, faithful to the usage of the Cornelian house, had ordered that his body should be buried without being burnt; but others were more mindful than he was of what past days had done and future days might do: by command of the senate the corpse of the man who had disturbed the bones of Marius from their rest in the grave was committed to the flames. Headed by all the magistrates and the whole senate, by the priests and priestesses in their official robes and the band of noble youths in equestrian armour, the procession arrived at the great market-place; at this spot, filled by his achievements and almost by the sound as yet of his dreaded words, the funeral oration was delivered over the deceased; and thence the bier was borne on the shoulders of senators to the Campus Martius, where the funeral pile was erected. While the flames were blazing, the equites and the soldiers held their race of honour round the corpse; the ashes of the regent were deposited in the Campus Martius beside the tombs of the old kings, and the Roman women mourned him for a year.

CHAPTER XI

The Commonwealth and Its Economy

External and Internal Bankruptcy of the Roman State

We have traversed a period of ninety years—forty years of profound peace, fifty of an almost constant revolution. It is the most inglorious epoch known in Roman history. It is true that the Alps were crossed both in an easterly and westerly direction,(1) and the Roman arms reached in the Spanish peninsula as far as the Atlantic Ocean(2) and in the Macedono-Grecian peninsula as far as the Danube;(3) but the laurels thus gained were as cheap as they were barren. The circle of the "extraneous peoples under the will, sway, dominion, or friendship of the Roman burgesses,"(4) was not materially extended; men were content to realize the gains of a better age and to bring the communities, annexed to Rome in laxer forms of dependence, more and more into full subjection. Behind the brilliant screen of provincial reunions was concealed a very sensible decline of Roman power. While the whole ancient civilization was daily more and more distinctly embraced in the Roman state, and embodied there in forms of more general validity, the nations excluded from it began simultaneously beyond the Alps and beyond the Euphrates to pass from defence to aggression. On the battle-fields of Aquae Sextiae and Vercellae, of Chaeronea and Orchomenus, were heard the first peals of that thunderstorm, which the Germanic tribes and the Asiatic hordes were

destined to bring upon the Italo- Grecian world, and the last dull rolling of which has reached almost to our own times. But in internal development also this epoch bears the same character. The old organization collapses irretrievably. The Roman commonwealth was planned as an urban community, which through its free burgess-body gave to itself rulers and laws; which was governed by these well-advised rulers within these legal limits with kingly freedom; and around which the Italian confederacy, as an aggregate of free urban communities essentially homogeneous and cognate with the Roman, and the body of extra-Italian allies, as an aggregate of Greek free cities and barbaric peoples and principalities—both more superintended, than domineered over, by the community of Rome—formed a double circle. It was the final result of the revolution—and both parties, the nominally conservative as well as the democratic party, had co- operated towards it and concurred in it—that of this venerable structure, which at the beginning of the present epoch, though full of chinks and tottering, still stood erect, not one stone was at its close left upon another. The holder of sovereign power was now either a single man, or a close oligarchy—now of rank, now of riches. The burgesses had lost all legitimate share in the government. The magistrates were instruments without independence in the hands of the holder of power for the time being. The urban community of Rome had broken down by its unnatural enlargement. The Italian confederacy had been merged in the urban community. The body of extra-Italian allies was in full course of being converted into a body of subjects. The whole organic classification of the Roman commonwealth had gone to wreck, and nothing was left but a crude mass of more or less disparate elements.

The Prospect

The state of matters threatened to end in utter anarchy and in the inward and outward dissolution of the state. The political movement tended

thoroughly towards the goal of despotism; the only point still in dispute was whether the close circle of the families of rank, or the senate of capitalists, or a monarch was to be the despot. The political movement followed thoroughly the paths that led to despotism; the fundamental principle of a free commonwealth—that the contending powers should reciprocally confine themselves to indirect coercion—had become effete in the eyes of all parties alike, and on both sides the fight for power began to be carried on first by the bludgeon, and soon by the sword. The revolution, at an end in so far as the old constitution was recognized by both sides as finally set aside and the aim and method of the new political development were clearly settled, had yet up to this time discovered nothing but provisional solutions for this problem of the reorganization of the state; neither the Gracchan nor the Sullan constitution of the community bore the stamp of finality. But the bitterest feature of this bitter time was that even hope and effort failed the clear-seeing patriot. The sun of freedom with all its endless store of blessings was constantly drawing nearer to its setting, and the twilight was settling over the very world that was still so brilliant. It was no accidental catastrophe which patriotism and genius might have warded off; it was ancient social evils—at the bottom of all, the ruin of the middle class by the slave proletariat—that brought destruction on the Roman commonwealth. The most sagacious statesman was in the plight of the physician to whom it is equally painful to prolong or to abridge the agony of his patient. Beyond doubt it was the better for the interests of Rome, the more quickly and thoroughly a despot set aside all remnants of the ancient free constitution, and invented new forms and expressions for the moderate measure of human prosperity for which in absolutism there is room: the intrinsic advantage, which belonged to monarchy under the given circumstances as compared with any oligarchy, lay mainly in the very circumstance that such a despotism, energetic in pulling down and energetic in building up, could never be exercised by a collegiate board. But such calm considerations do

not mould history; it is not reason it is passion alone, that builds for the future. The Romans had just to wait and to see how long their commonwealth would continue unable to live and unable to die, and whether it would ultimately find its master and, so far as might be possible, its regenerator, in a man of mighty gifts, or would collapse in misery and weakness.

Finances of the State

It remains that we should notice the economic and social relations of the period before us, so far as we have not already done so.

Italian Revenues

The finances of the state were from the commencement of this epoch substantially dependent on the revenues from the provinces. In Italy the land-tax, which had always occurred there merely as an extraordinary impost by the side of the ordinary domanial and other revenues, had not been levied since the battle of Pydna, so that absolute freedom from land-tax began to be regarded as a constitutional privilege of the Roman landowner. The royalties of the state, such as the salt monopoly⁽⁵⁾ and the right of coinage, were not now at least, if ever at all, treated as sources of income. The new tax on inheritance⁽⁶⁾ was allowed to fall into abeyance or was perhaps directly abolished. Accordingly the Roman exchequer drew from Italy including Cisalpine Gaul nothing but the produce of the domains, particularly of the Campanian territory and of the gold mines in the land of the Celts, and the revenue from manumissions and from goods imported by sea into the Roman civic territory not for the personal consumption of the importer. Both of these may be regarded essentially as taxes on luxury, and they certainly must have been considerably augmented by the extension of the field of Roman citizenship and at the same time of Roman customs-dues to all Italy, probably including Cisalpine Gaul.

Provincial Revenues

In the provinces the Roman state claimed directly as its private property, on the one hand, in the states annulled by martial law the whole domain, on the other hand in those states, where the Roman government came in room of the former rulers, the landed property possessed by the latter. By virtue of this right the territories of Leontini, Carthage, and Corinth, the domanial property of the kings of Macedonia, Pergamus, and Cyrene, the mines in Spain and Macedonia were regarded as Roman domains; and, in like manner with the territory of Capua, were leased by the Roman censors to private contractors in return for the delivery of a proportion of the produce or a fixed sum of money. We have already explained that Gaius Gracchus went still farther, claimed the whole land of the provinces as domain, and in the case of the province of Asia practically carried out this principle; inasmuch as he legally justified the -decumae-, -scriptura-, and -vectigalia- levied there on the ground of the Roman state's right of property in the land, pasture, and coasts of the province, whether these had previously belonged to the king or private persons.(7)

There do not appear to have been at this period any royalties from which the state derived profit, as respected the provinces; the prohibition of the culture of the vine and olive in Transalpine Gaul did not benefit the state-chest as such. On the other hand direct and indirect taxes were levied to a great extent. The client states recognized as fully sovereign—such as the kingdoms of Numidia and Cappadocia, the allied states (-civitates foederatae-) of Rhodes, Messana, Tauromenium, Massilia, Gades—were legally exempt from taxation, and merely bound by their treaties to support the Roman republic in times of war by regularly furnishing a fixed number of ships or men at their own expense, and, as a matter of course in case of need, by rendering extraordinary aid of any kind.

Taxes

The rest of the provincial territory on the other hand, even including the free cities, was throughout liable to taxation; the only exceptions were the cities invested with the Roman franchise, such as Narbo, and the communities on which immunity from taxation was specially conferred (-civitates immunes-), such as Centuripa in Sicily. The direct taxes consisted partly—as in Sicily and Sardinia—of a title to the tenth⁽⁸⁾ of the sheaves and other field produce as of grapes and olives, or, if the land lay in pasture, to a corresponding -scriptura-; partly—as in Macedonia, Achaia, Cyrene, the greater part of Africa, the two Spains, and by Sulla's arrangements also in Asia—of a fixed sum of money to be paid annually by each community to Rome (-stipendium-, -tributum-). This amounted, e. g. for all Macedonia, to 600,000 -denarii- (24,000 pounds), for the small island of Gyaros near Andros to 150 -denarii- (6 pounds, 10 shillings), and was apparently on the whole low and less than the tax paid before the Roman rule. Those ground-tenths and pasture-moneys the state farmed out to private contractors on condition of their paying fixed quantities of grain or fixed sums of money; with respect to the latter money-payments the state drew upon the respective communities, and left it to these to assess the amount, according to the general principles laid down by the Roman government, on the persons liable, and to collect it from them.⁽⁹⁾

Customs

The indirect taxes consisted—apart from the subordinate moneys levied from roads, bridges, and canals—mainly of customs-duties. The customs-duties of antiquity were, if not exclusively, at any rate principally port-dues, less frequently frontier-dues, on imports and exports destined for sale, and were levied by each community in its ports and its territory at discretion. The Romans recognized this principle generally, in so far as their original

customs-domain did not extend farther than the range of the Roman franchise and the limit of the customs was by no means coincident with the limits of the empire, so that a general imperial tariff was unknown: it was only by means of state-treaty that a total exemption from customs-dues in the client communities was secured for the Roman state, and in various cases at least favourable term for the Roman burgess. But in those districts, which had not been admitted to alliance with Rome but were in the condition of subjects proper and had not acquired immunity, the customs fell as a matter of course to the proper sovereign, that is, to the Roman community; and in consequence of this several larger regions within the empire were constituted as separate Roman customs-districts, in which the several communities allied or privileged with immunity were marked off as exempt from Roman customs. Thus Sicily even from the Carthaginian period formed a closed customs-district, on the frontier of which a tax of 5 per cent on the value was levied from all imports or exports; thus on the frontiers of Asia there was levied in consequence of the Sempronian law⁽¹⁰⁾ a similar tax of 21 per cent; in like manner the province of Narbo, exclusively the domain of the Roman colony, was organized as a Roman customs- district This arrangement, besides its fiscal objects, may have been partly due to the commendable purpose of checking the confusion inevitably arising out of a variety of communal tolls by a uniform regulation of frontier-dues. The levying of the customs, like that of the tenths, was without exception leased to middlemen.

Costs of Collection

The ordinary burdens of Roman taxpayers were limited to these imposts; but we may not overlook the fact, that the expenses of collection were very considerable, and the contributors paid an amount disproportionately great as compared with what the Roman government received. For, while the system of collecting taxes by middlemen, and especially by general lessees,

is in itself the most expensive of all, in Rome effective competition was rendered extremely difficult in consequence of the slight extent to which the lettings were subdivided and the immense association of capital.

Requisitions

To these ordinary burdens, however, fell to be added in the first place the requisitions which were made. The costs of military administration were in law defrayed by the Roman community. It provided the commandants of every province with the means of transport and all other requisites; it paid and provisioned the Roman soldiers in the province. The provincial communities had to furnish merely shelter, wood, hay, and similar articles free of cost to the magistrates and soldiers; in fact the free towns were even ordinarily exempted from the winter quartering of the troops— permanent camps were not yet known. If the governor therefore needed grain, ships, slaves to man them, linen, leather, money, or aught else, he was no doubt absolutely at liberty in time of war—nor was it far otherwise in time of peace—to demand such supplies according to his discretion and exigencies from the subject- communities or the sovereign protected states; but these supplies were, like the Roman land-tax, treated legally as purchases or advances, and the value was immediately or afterwards made good by the Roman exchequer. Nevertheless these requisitions became, if not in the theory of state-law, at any rate practically, one of the most oppressive burdens of the provincials; and the more so, that the amount of compensation was ordinarily settled by the government or even by the governor after a one-sided fashion. We meet indeed with several legislative restrictions on this dangerous right of requisition of the Roman superior magistrates: for instance, the rule already mentioned, that in Spain there should not be taken from the country people by requisitions for grain more than the twentieth sheaf, and that the price even of this should be equitably ascertained;(11) the fixing of a maximum quantity of grain to be demanded

by the governor for the wants of himself and his retinue; the previous adjustment of a definite and high rate of compensation for the grain which was frequently demanded, at least from Sicily, for the wants of the capital. But, while by fixing such rules the pressure of those requisitions on the economy of the communities and of individuals in the province was doubtless mitigated here and there, it was by no means removed. In extraordinary crises this pressure unavoidably increased and often went beyond all bounds, for then in fact the requisitions not unfrequently assumed the form of a punishment imposed or that of voluntary contributions enforced, and compensation was thus wholly withheld. Thus Sulla in 670-671 compelled the provincials of Asia Minor, who certainly had very gravely offended against Rome, to furnish to every common soldier quartered among them forty-fold pay (per day 16 -denarii- = 11 shillings), to every centurion seventy-five-fold pay, in addition to clothing and meals along with the right to invite guests at pleasure; thus the same Sulla soon afterwards imposed a general contribution on the client and subject communities,(12) in which case nothing, of course, was said of repayment.

Local Burdens

Further the local public burdens are not to be left out of view. They must have been, comparatively, very considerable;(13) for the costs of administration, the keeping of the public buildings in repair, and generally all civil expenses were borne by the local budget, and the Roman government simply undertook to defray the military expenses from their coffers. But even of this military budget considerable items were devolved on the communities—such as the expense of making and maintaining the non-Italian military roads, the costs of the fleets in the non-Italian seas, nay even in great part the outlays for the army, inasmuch as the forces of the client-states as well as those of the subjects were regularly liable to serve at

the expense of their communities within their province, and began to be employed with increasing frequency even beyond it—Thracians in Africa, Africans in Italy, and so on—at the discretion of the Romans.(14) If the provinces only and not Italy paid direct taxes to the government, this was equitable in a financial, if not in a political, aspect so long as Italy alone bore the burdens and expense of the military system; but from the time that this system was abandoned, the provincials were, in a financial point of view, decidedly overburdened.

Extortions

Lastly we must not forget the great chapter of injustice by which in manifold ways the Roman magistrates and farmers of the revenue augmented the burden of taxation on the provinces. Although every present which the governor took might be treated legally as an exaction, and even his right of purchase might be restricted by law, yet the exercise of his public functions offered to him, if he was disposed to do wrong, pretexts more than enough for doing so. The quartering of the troops; the free lodging of the magistrates and of the host of adjutants of senatorial or equestrian rank, of clerks, lictors, heralds, physicians, and priests; the right which the messengers of the state had to be forwarded free of cost; the approval of, and providing transport for, the contributions payable in kind; above all the forced sales and the requisitions—gave all magistrates opportunity to bring home princely fortunes from the provinces. And the plundering became daily more general, the more that the control of the government appeared to be worthless and that of the capitalist-courts to be in reality dangerous to the upright magistrate alone. The institution of a standing commission regarding the exactions of magistrates in the provinces, occasioned by the frequency of complaints as to such cases, in 605,(15) and the laws as to extortion following each other so rapidly and

constantly augmenting its penalties, show the daily increasing height of the evil, as the Nilometer shows the rise of the flood.

Under all these circumstances even a taxation moderate in theory might become extremely oppressive in its actual operation; and that it was so is beyond doubt, although the financial oppression, which the Italian merchants and bankers exercised over the provinces, was probably felt as a far heavier burden than the taxation with all the abuses that attached to it.

Aggregate Financial Result

If we sum up, the income which Rome drew from the provinces was not properly a taxation of the subjects in the sense which we now attach to that expression, but rather in the main a revenue that may be compared with the Attic tributes, by means of which the leading state defrayed the expense of the military system which it maintained. This explains the surprisingly small amount of the gross as well as of the net proceeds. There exists a statement, according to which the income of Rome, exclusive, it may be presumed, of the Italian revenues and of the grain delivered in kind to Italy by the -decumani- up to 691 amounted to not more than 200 millions of sesterces (2,000,000 pounds); that is, but two-thirds of the sum which the king of Egypt drew from his country annually. The proportion can only seem strange at the first glance. The Ptolemies turned to account the valley of the Nile as great, plantation-owners, and drew immense sums from their monopoly of the commercial intercourse with the east; the Roman treasury was not much more than the joint military chest of the communities united under Rome's protection. The net produce was probably still less in proportion. The only provinces yielding a considerable surplus were perhaps Sicily, where the Carthaginian system of taxation prevailed, and more especially Asia from the time that Gaius Gracchus, in order to provide for his largesses of corn, had carried out the confiscation of the soil and a

general domanial taxation there. According to manifold testimonies the finances of the Roman state were essentially dependent on the revenues of Asia. The assertion sounds quite credible that the other provinces on an average cost nearly as much as they brought in; in fact those which required a considerable garrison, such as the two Spains, Transalpine Gaul, and Macedonia, probably often cost more than they yielded. On the whole certainly the Roman treasury in ordinary times possessed a surplus, which enabled them amply to defray the expense of the buildings of the state and city, and to accumulate a reserve-fund; but even the figures appearing for these objects, when compared with the wide domain of the Roman rule, attest the small amount of the net proceeds of the Roman taxes. In a certain sense therefore the old principle equally honourable and judicious— that the political hegemony should not be treated as a privilege yielding profit— still governed the financial administration of the provinces as it had governed that of Rome in Italy. What the Roman community levied from its transmarine subjects was, as a rule, re- expended for the military security of the transmarine possessions; and if these Roman imposts fell more heavily on those who paid them than the earlier taxation, in so far as they were in great part expended abroad, the substitution, on the other hand, of a single ruler and a centralized military administration for the many petty rulers and armies involved a very considerable financial saving. It is true, however, that this principle of a previous better age came from the very first to be infringed and mutilated by the numerous exceptions which were allowed to prevail. The ground- tenth levied by Hiero and Carthage in Sicily went far beyond the amount of an annual war-contribution. With justice moreover Scipio Aemilianus says in Cicero, that it was unbecoming for the Roman burgess-body to be at the same time the ruler and the tax-gatherer of the nations. The appropriation of the customs-dues was not compatible with the principle of disinterested hegemony, and the high rates of the customs as well as the vexatious mode of levying them were not fitted to allay the

sense of the injustice thereby inflicted. Even as early probably as this period the name of publican became synonymous among the eastern peoples with that of rogue and robber: no burden contributed so much as this to make the Roman name offensive and odious especially in the east. But when Gaius Gracchus and those who called themselves the "popular party" in Rome came to the helm, political sovereignty was declared in plain terms to be a right which entitled every one who shared in it to a number of bushels of corn, the hegemony was converted into a direct ownership of the soil, and the most complete system of making the most of that ownership was not only introduced but with shameless candour legally justified and proclaimed. It was certainly not a mere accident, that the hardest lot in this respect fell precisely to the two least warlike provinces, Sicily and Asia.

The Finances and Public Buildings

An approximate measure of the condition of Roman finance at this period is furnished, in the absence of definite statements, first of all by the public buildings. In the first decades of this epoch these were prosecuted on the greatest scale, and the construction of roads in particular had at no time been so energetically pursued. In Italy the great southern highway of presumably earlier origin, which as a prolongation of the Appian road ran from Rome by way of Capua, Beneventum, and Venusia to the ports of Tarentum and Brundisium, had attached to it a branch-road from Capua to the Sicilian straits, a work of Publius Popillius, consul in 622. On the east coast, where hitherto only the section from Fanum to Ariminum had been constructed as part of the Flaminian highway (ii. 229), the coast road was prolonged southward as far as Brundisium, northward by way of Atria on the Po as far as Aquileia, and the portion at least from Ariminum to Atria was formed by the Popillius just mentioned in the same year. The two great Etruscan highways—the coast or Aurelian road from Rome to Pisa and Luna, which was in course of formation in 631, and the Cassian road

leading by way of Sutrium and Clusium to Arretium and Florentia, which seems not to have been constructed before 583—may as Roman public highways belong only to this age. About Rome itself new projects were not required; but the Mulvian bridge (Ponte Molle), by which the Flaminian road crossed the Tiber not far from Rome, was in 645 reconstructed of stone. Lastly in Northern Italy, which hitherto had possessed no other artificial road than the Flaminio-Aemilian terminating at Placentia, the great Postumian road was constructed in 606, which led from Genua by way of Dertona, where probably a colony was founded at the same time, and onward by way of Placentia, where it joined the Flaminio-Aemilian road, and of Cremona and Verona to Aquileia, and thus connected the Tyrrhenian and Adriatic seas; to which was added the communication established in 645 by Marcus Aemilius Scaurus between Luna and Genua, which connected the Postumian road directly with Rome. Gaius Gracchus exerted himself in another way for the improvement of the Italian roads. He secured the due repair of the great rural roads by assigning, on occasion of his distribution of lands, pieces of ground alongside of the roads, to which was attached the obligation of keeping them in repair as an heritable burden. To him, moreover, or at any rate to the allotment-commission, the custom of erecting milestones appears to be traceable, as well as that of marking the limits of fields by regular boundary-stones. Lastly he provided for good *viae vicinales*-, with the view of thereby promoting agriculture. But of still greater moment was the construction of the imperial highways in the provinces, which beyond doubt began in this epoch. The Domitian highway after long preparations⁽¹⁶⁾ furnished a secure land-route from Italy to Spain, and was closely connected with the founding of *Aquae Sextiae* and *Narbo*;⁽¹⁷⁾ the Gabinian⁽¹⁸⁾ and the Egnatian ⁽¹⁹⁾ led from the principal places on the east coast of the Adriatic sea—the former from *Salona*, the latter from *Apollonia* and *Dyrrhachium*—into the interior; the network of roads laid out by *Manius Aquillius* immediately after the erection of the

Asiatic province in 625 led from the capital Ephesus in different directions towards the frontier. Of the origin of these works no mention is to be found in the fragmentary tradition of this epoch, but they were nevertheless undoubtedly connected with the consolidation of the Roman rule in Gaul, Dalmatia, Macedonia, and Asia Minor, and came to be of the greatest importance for the centralization of the state and the civilizing of the subjugated barbarian districts.

In Italy at least great works of drainage were prosecuted as well as the formation of roads. In 594 the drying of the Pomptine marshes—a vital matter for Central Italy—was set about with great energy and at least temporary success; in 645 the draining of the low-lying lands between Parma and Placentia was effected in connection with the construction of the north Italian highway. Moreover, the government did much for the Roman aqueducts, as indispensable for the health and comfort of the capital as they were costly. Not only were the two that had been in existence since the years 442 and 492—the Appian and the Anio aqueducts—thoroughly repaired in 610, but two new ones were formed; the Marcian in 610, which remained afterwards unsurpassed for the excellence and abundance of the water, and the Tepula as it was called, nineteen years later. The power of the Roman exchequer to execute great operations by means of payments in pure cash without making use of the system of credit, is very clearly shown by the way in which the Marcian aqueduct was created: the sum required for it of 180,000,000 sesterces (in gold nearly 2,000,000 pounds) was raised and applied within three years. This leads us to infer a very considerable reserve in the treasury: in fact at the very beginning of this period it amounted to almost 860,000 pounds,(20) and was doubtless constantly on the increase.

All these facts taken together certainly lead to the inference that the position of the Roman finances at this epoch was on the whole favourable. Only we may not in a financial point of view overlook the fact that, while

the government during the two earlier thirds of this period executed splendid and magnificent buildings, it neglected to make other outlays at least as necessary. We have already indicated how unsatisfactory were its military provisions; the frontier countries and even the valley of the Po(21) were pillaged by barbarians, and bands of robbers made havoc in the interior even of Asia Minor, Sicily, and Italy. The fleet even was totally neglected; there was hardly any longer a Roman vessel of war; and the war-vessels, which the subject cities were required to build and maintain, were not sufficient, so that Rome was not only absolutely unable to carry on a naval war, but was not even in a position to check the trade of piracy. In Rome itself a number of the most necessary improvements were left untouched, and the river- buildings in particular were singularly neglected. The capital still possessed no other bridge over the Tiber than the primitive wooden gangway, which led over the Tiber island to the Janiculum; the Tiber was still allowed to lay the streets every year under water, and to demolish houses and in fact not unfrequently whole districts, without anything being done to strengthen the banks; mighty as was the growth of transmarine commerce, the roadstead of Ostia—already by nature bad—was allowed to become more and more sanded up. A government, which under the most favourable circumstances and in an epoch of forty years of peace abroad and at home neglected such duties, might easily allow taxes to fall into abeyance and yet obtain an annual surplus of income over expenditure and a considerable reserve; but such a financial administration by no means deserves commendation for its mere semblance of brilliant results, but rather merits the same censure— in respect of laxity, want of unity in management, mistaken flattery of the people—as falls to be brought in every other sphere of political life against the senatorial government of this epoch.

The Finances in the Revolution

The financial condition of Rome of course assumed a far worse aspect, when the storms of revolution set in. The new and, even in a mere financial point of view, extremely oppressive burden imposed upon the state by the obligation under which Gaius Gracchus placed it to furnish corn at nominal rates to the burgesses of the capital, was certainly counterbalanced at first by the newly-opened sources of income in the province of Asia. Nevertheless the public buildings seem from that time to have almost come to a standstill. While the public works which can be shown to have been constructed from the battle of Pydna down to the time of Gaius Gracchus were numerous, from the period after 632 there is scarcely mention of any other than the projects of bridges, roads, and drainage which Marcus Aemilius Scaurus organized as censor in 645. It must remain a moot point whether this was the effect of the largesses of grain or, as is perhaps more probable, the consequence of the system of increased savings, such as befitted a government which became daily more and more a rigid oligarchy, and such as is indicated by the statement that the Roman reserve reached its highest point in 663. The terrible storm of insurrection and revolution, in combination with the five years' deficit of the revenues of Asia Minor, was the first serious trial to which the Roman finances were subjected after the Hannibalic war: they failed to sustain it. Nothing perhaps so clearly marks the difference of the times as the circumstance that in the Hannibalic war it was not till the tenth year of the struggle, when the burgesses were almost sinking under taxation, that the reserve was touched;(22) whereas the Social war was from the first supported by the balance in hand, and when this was expended after two campaigns to the last penny, they preferred to sell by auction the public sites in the capital(23) and to seize the treasures of the temples(24) rather than levy a tax on the burgesses. The storm however, severe as it was, passed over; Sulla, at the expense doubtless of enormous economic sacrifices imposed on the subjects and Italian revolutionists in particular, restored order to the finances and, by abolishing the largesses of

corn and retaining although in a reduced form the Asiatic revenues, secured for the commonwealth a satisfactory economic condition, at least in the sense of the ordinary expenditure remaining far below the ordinary income.

Private Economics

Agriculture

In the private economics of this period hardly any new feature emerges; the advantages and disadvantages formerly set forth as incident to the social circumstances of Italy⁽²⁵⁾ were not altered, but merely farther and more distinctly developed. In agriculture we have already seen that the growing power of Roman capital was gradually absorbing the intermediate and small landed estates in Italy as well as in the provinces, as the sun sucks up the drops of rain. The government not only looked on without preventing, but even promoted this injurious division of the soil by particular measures, especially by prohibiting the production of wine and oil beyond the Alps with a view to favour the great Italian landlords and merchants.⁽²⁶⁾ It is true that both the opposition and the section of the conservatives that entered into ideas of reform worked energetically to counteract the evil; the two Gracchi, by carrying out the distribution of almost the whole domain land, gave to the state 80,000 new Italian farmers; Sulla, by settling 120,000 colonists in Italy, filled up at least in part the gaps which the revolution and he himself had made in the ranks of the Italian yeomen. But, when a vessel is emptying itself by constant efflux, the evil is to be remedied not by pouring in even considerable quantities, but only by the establishment of a constant influx—a remedy which was on various occasions attempted, but not with success. In the provinces, not even the smallest effort was made to save the farmer class there from being bought out by the Roman speculators; the provincials, forsooth, were merely men, and not a party. The consequence was, that even the rents of the soil beyond Italy flowed more and more to Rome. Moreover the plantation- system, which about the

middle of this epoch had already gained the ascendant even in particular districts of Italy, such as Etruria, had, through the co-operation of an energetic and methodical management and abundant pecuniary resources, attained to a state of high prosperity after its kind. The production of Italian wine in particular, which was artificially promoted partly by the opening of forced markets in a portion of the provinces, partly by the prohibition of foreign wines in Italy as expressed for instance in the sumptuary law of 593, attained very considerable results: the Aminean and Falernian wine began to be named by the side of the Thasian and Chian, and the "Opimian wine" of 633, the Roman vintage "Eleven," was long remembered after the last jar was exhausted.

Trades

Of trades and manufactures there is nothing to be said, except that the Italian nation in this respect persevered in an inaction bordering on barbarism. They destroyed the Corinthian factories, the depositories of so many valuable industrial traditions—not however that they might establish similar factories for themselves, but that they might buy up at extravagant prices such Corinthian vases of earthenware or copper and similar "antique works" as were preserved in Greek houses. The trades that were still somewhat prosperous, such as those connected with building, were productive of hardly any benefit for the commonwealth, because here too the system of employing slaves in every more considerable undertaking intervened: in the construction of the Marcian aqueduct, for instance, the government concluded contracts for building and materials simultaneously with 3000 master-tradesmen, each of whom then performed the work contracted for with his band of slaves.

Money-Dealing and Commerce

The most brilliant, or rather the only brilliant, side of Roman private economics was money-dealing and commerce. First of all stood the leasing of the domains and of the taxes, through which a large, perhaps the larger, part of the income of the Roman state flowed into the pockets of the Roman capitalists. The money-dealings, moreover, throughout the range of the Roman state were monopolized by the Romans; every penny circulated in Gaul, it is said in a writing issued soon after the end of this period, passes through the books of the Roman merchants, and so it was doubtless everywhere. The co-operation of rude economic conditions and of the unscrupulous employment of Rome's political ascendancy for the benefit of the private interests of every wealthy Roman rendered a usurious system of interest universal, as is shown for example by the treatment of the war-tax imposed by Sulla on the province of Asia in 670, which the Roman capitalists advanced; it swelled with paid and unpaid interest within fourteen years to sixfold its original amount. The communities had to sell their public buildings, their works of art and jewels, parents had to sell their grown-up children, in order to meet the claims of the Roman creditor: it was no rare occurrence for the debtor to be not merely subjected to moral torture, but directly placed upon the rack. To these sources of gain fell to be added the wholesale traffic. The exports and imports of Italy were very considerable. The former consisted chiefly of wine and oil, with which Italy and Greece almost exclusively—for the production of wine in the Massiliot and Turdetanian territories can at that time have been but small—supplied the whole region of the Mediterranean; Italian wine was sent in considerable quantities to the Balearic islands and Celtiberia, to Africa, which was merely a corn and pasture country, to Narbo and into the interior of Gaul. Still more considerable was the import to Italy, where at that time all luxury was concentrated, and whither most articles of luxury for food, drink, or clothing, ornaments, books, household furniture, works of art were imported by sea. The traffic in slaves, above all, received through the ever-

increasing demand of the Roman merchants an impetus to which no parallel had been known in the region of the Mediterranean, and which stood in the closest connection with the flourishing of piracy. All lands and all nations were laid under contribution for slaves, but the places where they were chiefly captured were Syria and the interior of Asia Minor.(27)

Ostia

Puteoli

In Italy the transmarine imports were chiefly concentrated in the two great emporia on the Tyrrhene sea, Ostia and Puteoli. The grain destined for the capital was brought to Ostia, which was far from having a good roadstead, but, as being the nearest port to Rome, was the most appropriate mart for less valuable wares; whereas the traffic in luxuries with the east was directed mainly to Puteoli, which recommended itself by its good harbour for ships with valuable cargoes, and presented to merchants a market in its immediate neighbourhood little inferior to that of the capital—the district of Baiae, which came to be more and more filled with villas. For a long time this latter traffic was conducted through Corinth and after its destruction through Delos, and in this sense accordingly Puteoli is called by Lucilius the Italian "Little Delos"; but after the catastrophe which befel Delos in the Mithradatic war,(28) and from which it never recovered, the Puteolans entered into direct commercial connections with Syria and Alexandria, and their city became more and more decidedly the first seat of transmarine commerce in Italy. But it was not merely the gain which was made by the Italian exports and imports, that fell mainly to the Italians; at Narbo they competed in the Celtic trade with the Massiliots, and in general it admits of no doubt that the Roman merchants to be met with everywhere, floating or settled, took to themselves the best share of all speculations.

Capitalist Oligarchy

Putting together these phenomena, we recognize as the most prominent feature in the private economy of this epoch the financial oligarchy of Roman capitalists standing alongside of, and on a par with, the political oligarchy. In their hands were united the rents of the soil of almost all Italy and of the best portions of the provincial territory, the proceeds at usury of the capital monopolized by them, the commercial gain from the whole empire, and lastly, a very considerable part of the Roman state-revenue in the form of profits accruing from the lease of that revenue. The daily-increasing accumulation of capital is evident in the rise of the average rate of wealth: 3,000,000 sesterces (30,000 pounds) was now a moderate senatorial, 2,000,000 (20,000 pounds) was a decent equestrian fortune; the property of the wealthiest man of the Gracchan age, Publius Crassus consul in 623 was estimated at 100,000,000 sesterces (1,000,000 pounds). It is no wonder, that this capitalist order exercised a preponderant influence on external policy; that it destroyed out of commercial rivalry Carthage and Corinth⁽²⁹⁾ as the Etruscans had formerly destroyed Alalia and the Syracusans Caere; that it in spite of the senate upheld the colony of Narbo.⁽³⁰⁾ It is likewise no wonder, that this capitalist oligarchy engaged in earnest and often victorious competition with the oligarchy of the nobles in internal politics. But it is also no wonder, that ruined men of wealth put themselves at the head of bands of revolted slaves,⁽³¹⁾ and rudely reminded the public that the transition is easy from the haunts of fashionable debauchery to the robber's cave. It is no wonder, that that financial tower of Babel, with its foundation not purely economic but borrowed from the political ascendancy of Rome, tottered at every serious political crisis nearly in the same way as our very similar fabric of a paper currency. The great financial crisis, which in consequence of the Italo-Asiatic commotions of 664 f. set in upon the Roman capitalist-class, the bankruptcy of the state and of private persons, the general depreciation of landed property and of partnership-shares, can no longer be traced out in detail; but their general

nature and their importance are placed beyond doubt by their results—the murder of the praetor by a band of creditors,(32) the attempt to eject from the senate all the senators not free of debt,(33) the renewal of the maximum of interest by Sulla,(34) the cancelling of 75 per cent of all debts by the revolutionary party.(35) The consequence of this system was naturally general impoverishment and depopulation in the provinces, whereas the parasitic population of migratory or temporarily settled Italians was everywhere on the increase. In Asia Minor 80,000 men of Italian origin are said to have perished in one day.(36) How numerous they were in Delos, is evident from the tombstones still extant on the island and from the statement that 20,000 foreigners, mostly Italian merchants, were put to death there by command of Mithradates.(37) In Africa the Italians were so many, that even the Numidian town of Cirta could be defended mainly by them against Jugurtha.(38) Gaul too, it is said, was filled with Roman merchants; in the case of Spain alone—perhaps not accidentally—no statements of this sort are found. In Italy itself, on the other hand, the condition of the free population at this epoch had on the whole beyond doubt retrograded. To this result certainly the civil wars essentially contributed, which, according to statements of a general kind and but little trustworthy, are alleged to have swept away from 100,000 to 150,000 of the Roman burgesses and 300,000 of the Italian population generally; but still worse was the effect of the economic ruin of the middle class, and of the boundless extent of the mercantile emigration which induced a great portion of the Italian youth to spend their most vigorous years abroad.

A compensation of very dubious value was afforded by the free parasitic Helleno-Oriental population, which sojourned in the capital as diplomatic agents for kings or communities, as physicians, schoolmasters, priests, servants, parasites, and in the myriad employments of sharpers and swindlers, or, as traders and mariners, frequented especially Ostia, Puteoli, and Brundisium. Still more hazardous was the disproportionate increase of

the multitude of slaves in the peninsula. The Italian burgesses by the census of 684 numbered 910,000 men capable of bearing arms, to which number, in order to obtain the amount of the free population in the peninsula, those accidentally passed over in the census, the Latins in the district between the Alps and the Po, and the foreigners domiciled in Italy, have to be added, while the Roman burgesses domiciled abroad are to be deducted. It will therefore be scarcely possible to estimate the free population of the peninsula at more than from 6 to 7 millions. If its whole population at this time was equal to that of the present day, we should have to assume accordingly a mass of slaves amounting to 13 or 14 millions. It needs however no such fallacious calculations to render the dangerous tension of this state of things apparent; this is loudly enough attested by the partial servile insurrections, and by the appeal which from the beginning of the revolutions was at the close of every outbreak addressed to the slaves to take up arms against their masters and to fight out their liberty. If we conceive of England with its lords, its squires, and above all its City, but with its freeholders and lessees converted into proletarians, and its labourers and sailors converted into slaves, we shall gain an approximate image of the population of the Italian peninsula in those days.

The economic relations of this epoch are clearly mirrored to us even now in the Roman monetary system. Its treatment shows throughout the sagacious merchant. For long gold and silver stood side by side as general means of payment on such a footing that, while for the purpose of general cash-balances a fixed ratio of value was legally laid down between the two metals,(39) the giving one metal for the other was not, as a rule, optional, but payment was to be in gold or silver according to the tenor of the bond. In this way the great evils were avoided, that are otherwise inevitably associated with the setting up of two precious metals; the severe gold crises—as about 600, for instance, when in consequence of the discovery of the Tauriscan gold-seams(40) gold as compared with silver fell at once in Italy

about $33 \frac{1}{3}$ per cent—exercised at least no direct influence on the silver money and retail transactions. The nature of the case implied that, the more transmarine traffic extended, gold the more decidedly rose from the second place to the first; and that it did so, is confirmed by the statements as to the balances in the treasury and as to its transactions; but the government was not thereby induced to introduce gold into the coinage. The coining of gold attempted in the exigency of the Hannibalic war⁽⁴¹⁾ had been long allowed to fall into abeyance; the few gold pieces which Sulla struck as regent were scarcely more than pieces coined for the occasion of his triumphal presents. Silver still as before circulated exclusively as actual money; gold, whether it, as was usual, circulated in bars or bore the stamp of a foreign or possibly even of an inland mint, was taken solely by weight. Nevertheless gold and silver were on a par as means of exchange, and the fraudulent alloying of gold was treated in law, like the issuing of spurious silver money, as a monetary offence. They thus obtained the immense advantage of precluding, in the case of the most important medium of payment, even the possibility of monetary fraud and monetary adulteration. Otherwise the coinage was as copious as it was of exemplary purity. After the silver piece had been reduced in the Hannibalic war from $\frac{1}{72}$ ⁽⁴²⁾ to $\frac{1}{84}$ of a pound, ⁽⁴³⁾ it retained for more than three centuries quite the same weight and the same quality; no alloying took place. The copper money became about the beginning of this period quite restricted to small change, and ceased to be employed as formerly in large transactions; for this reason the -as- was no longer coined after perhaps the beginning of the seventh century, and the copper coinage was confined to the smaller values of a -semis- ($\frac{1}{4}$ pence) and under, which could not well be represented in silver. The sorts of coins were arranged according to a simple principle, and in the then smallest coin of the ordinary issue—the -quadrans- ($\frac{1}{8}$ pence)—carried down to the limit of appreciable value. It was a monetary system, which, for the judicious principles on which it was based and for the iron rigour with

which they were applied, stands alone in antiquity and has been but rarely paralleled even in modern times.

Yet it had also its weak point. According to a custom, common in all antiquity, but which reached its highest development at Carthage,(44) the Roman government issued along with the good silver -denarii- also -denarii- of copper plated with silver, which had to be accepted like the former and were just a token-money analogous to our paper currency, with compulsory circulation and recourse on the public chest, inasmuch as it also was not entitled to reject the plated pieces. This was no more an official adulteration of the coinage than our manufacture of paper-money, for they practised the thing quite openly; Marcus Drusus proposed in 663, with the view of gaining the means for his largesses of grain, the sending forth of one plated -denarius- for every seven silver ones issuing fresh from the mint; nevertheless this measure not only offered a dangerous handle to private forgery, but designedly left the public uncertain whether it was receiving silver or token money, and to what total amount the latter was in circulation. In the embarrassed period of the civil war and of the great financial crisis they seem to have so unduly availed themselves of plating, that a monetary crisis accompanied the financial one, and the quantity of spurious and really worthless pieces rendered dealings extremely insecure. Accordingly during the Cinnan government an enactment was passed by the praetors and tribunes, primarily by Marcus Marius Gratidianus,(45) for redeeming all the token-money by silver, and for that purpose an assay-office was established. How far the calling-in was accomplished, tradition has not told us; the coining of token-money itself continued to subsist.

As to the provinces, in accordance with the setting aside of gold money on principle, the coining of gold was nowhere permitted, not even in the client-states; so that a gold coinage at this period occurs only where Rome had nothing at all to say, especially among the Celts to the north of the

Cevennes and among the states in revolt against Rome; the Italians, for instance, as well as Mithradates Eupator struck gold coins. The government seems to have made efforts to bring the coinage of silver also more and more into its hands, particularly in the west. In Africa and Sardinia the Carthaginian gold and silver money may have remained in circulation even after the fall of the Carthaginian state; but no coinage of precious metals took place there after either the Carthaginian or the Roman standard, and certainly very soon after the Romans took possession, the -denarius- introduced from Italy acquired the predominance in the transactions of the two countries. In Spain and Sicily, which came earlier to the Romans and experienced altogether a milder treatment, silver was no doubt coined under the Roman rule, and indeed in the former country the silver coinage was first called into existence by the Romans and based on the Roman standard; (46) but there exist good grounds for the supposition, that even in these two countries, at least from the beginning of the seventh century, the provincial and urban mints were obliged to restrict their issues to copper small money. Only in Narbonese Gaul the right of coining silver could not be withdrawn from the old-allied and considerable free city of Massilia; and the same was presumably true of the Greek cities in Illyria, Apollonia and Dyrrhachium. But the privilege of these communities to coin money was restricted indirectly by the fact, that the three-quarter -denarius-, which by ordinance of the Roman government was coined both at Massilia and in Illyria, and which had been under the name of -victoriatus- received into the Roman monetary system,(47) was about the middle of the seventh century set aside in the latter; the effect of which necessarily was, that the Massiliot and Illyrian currency was driven out of Upper Italy and only remained in circulation, over and above its native field, perhaps in the regions of the Alps and the Danube. Such progress had thus been made already in this epoch, that the standard of the -denarius- exclusively prevailed in the whole western division of the Roman state; for Italy, Sicily—of which it is as

respects the beginning of the next period expressly attested, that no other silver money circulated there but the -denarius—Sardinia, Africa, used exclusively Roman silver money, and the provincial silver still current in Spain as well as the silver money of the Massiliots and Illyrians were at least struck after the standard of the -denarius-.

It was otherwise in the east. Here, where the number of the states coining money from olden times and the quantity of native coin in circulation were very considerable, the -denarius- did not make its way into wider acceptance, although it was perhaps declared a legal tender. On the contrary either the previous monetary standard continued in use, as in Macedonia for instance, which still as a province—although partially adding the names of the Roman magistrates to that of the country—struck its Attic -tetradrachmae- and certainly employed in substance no other money; or a peculiar money-standard corresponding to the circumstances was introduced under Roman authority, as on the institution of the province of Asia, when a new -stater-, the -cistophorus- as it was called, was prescribed by the Roman government and was thenceforth struck by the district-capitals there under Roman superintendence. This essential diversity between the Occidental and Oriental systems of currency came to be of the greatest historical importance: the Romanizing of the subject lands found one of its mightiest levers in the adoption of Roman money, and it was not through mere accident that what we have designated at this epoch as the field of the -denarius- became afterwards the Latin, while the field of the -drachma- became afterwards the Greek, half of the empire. Still at the present day the former field substantially represents the sum of Romanic culture, whereas the latter has severed itself from European civilization.

It is easy to form a general conception of the aspect which under such economic conditions the social relations must have assumed; but to follow out in detail the increase of luxury, of prices, of fastidiousness and frivolity

is neither pleasant nor instructive. Extravagance and sensuous enjoyment formed the main object with all, among the parvenus as well as among the Licinii and Metelli; not the polished luxury which is the acme of civilization, but that sort of luxury which had developed itself amidst the decaying Hellenic civilization of Asia Minor and Alexandria, which degraded everything beautiful and significant to the purpose of decoration and studied enjoyment with a laborious pedantry, a precise punctiliousness, rendering it equally nauseous to the man of fresh feeling as to the man of fresh intellect. As to the popular festivals, the importation of transmarine wild beasts prohibited in the time of Cato(48) was, apparently about the middle of this century, formally permitted anew by a decree of the burgesses proposed by Gnaeus Aufidius; the effect of which was, that animal- hunts came into enthusiastic favour and formed a chief feature of the burgess-festivals. Several lions first appeared in the Roman arena about 651, the first elephants about 655; Sulla when praetor exhibited a hundred lions in 661. The same holds true of gladiatorial games. If the forefathers had publicly exhibited representations of great battles, their grandchildren began to do the same with their gladiatorial games, and by means of such leading or state performances of the age to make themselves a laughing-stock to their descendants. What sums were spent on these and on funeral solemnities generally, may be inferred from the testament of Marcus Aemilius Lepidus (consul in 567, 579; 602); he gave orders to his children, forasmuch as the true last honours consisted not in empty pomp but in the remembrance of personal and ancestral services, to expend on his funeral not more than 1,000,000 -asses- (4000 pounds). Luxury was on the increase also as respected buildings and gardens; the splendid town house of the orator Crassus (663), famous especially for the old trees of its garden, was valued with the trees at 6,000,000 sesterces (60,000 pounds), without them at the half; while the value of an ordinary dwelling-house in Rome may be estimated perhaps at 60,000 sesterces (600 pounds).(49) How quickly the

prices of ornamental estates increased, is shown by the instance of the Misenian villa, for which Cornelia, the mother of the Gracchi, paid 75,000 sesterces (750 pounds), and Lucius Lucullus, consul in 680, thirty-three times that price. The villas and the luxurious rural and sea-bathing life rendered Baiae and generally the district around the Bay of Naples the El Dorado of noble idleness. Games of hazard, in which the stake was no longer as in the Italian dice-playing a trifle, became common, and as early as 639 a censorial edict was issued against them. Gauze fabrics, which displayed rather than concealed the figure, and silken clothing began to displace the old woollen dresses among women and even among men. Against the insane extravagance in the employment of foreign perfumery the sumptuary laws interfered in vain.

But the real focus in which the brilliance of this genteel life was concentrated was the table. Extravagant prices—as much as 100,000 sesterces (1000 pounds)—were paid for an exquisite cook. Houses were constructed with special reference to this object, and the villas in particular along the coast were provided with salt-water tanks of their own, in order that they might furnish marine fishes and oysters at any time fresh to the table. A dinner was already described as poor, at which the fowls were served up to the guests entire and not merely the choice portions, and at which the guests were expected to eat of the several dishes and not simply to taste them. They procured at a great expense foreign delicacies and Greek wine, which had to be sent round at least once at every respectable repast. At banquets above all the Romans displayed their hosts of slaves ministering to luxury, their bands of musicians, their dancing-girls, their elegant furniture, their carpets glittering with gold or pictorially embroidered, their purple hangings, their antique bronzes, their rich silver plate. Against such displays the sumptuary laws were primarily directed, which were issued more frequently (593, 639, 665, 673) and in greater detail than ever; a number of delicacies and wines were therein totally

prohibited, for others a maximum in weight and price was fixed; the quantity of silver plate was likewise restricted by law, and lastly general maximum rates were prescribed for the expenses of ordinary and festal meals; these, for example, were fixed in 593 at 10 and 100 sesterces (2 shillings and 1 pound) in 673 at 30 and 300 sesterces (6 shillings and 3 pounds) respectively. Unfortunately truth requires us to add that, of all the Romans of rank, not more than three—and these not including the legislators themselves—are said to have complied with these imposing laws; and in the case of these three it was the law of the Stoa, and not that of the state, that curtailed the bill of fare.

It is worth while to dwell for a moment on the luxury that went on increasing in defiance of these laws, as respects silver plate. In the sixth century silver plate for the table was, with the exception of the traditionary silver salt-dish, a rarity; the Carthaginian ambassadors jested over the circumstance, that at every house to which they were invited they had encountered the same silver plate.⁽⁵⁰⁾ Scipio Aemilianus possessed not more than 32 pounds (120 pounds) in wrought silver; his nephew Quintus Fabius (consul in 633) first brought his plate up to 1000 pounds (4000 pounds), Marcus Drusus (tribune of the people in 663) reached 10,000 pounds (40,000 pounds); in Sulla's time there were already counted in the capital about 150 silver state-dishes weighing 100 pounds each, several of which brought their possessors into the lists of proscription. To judge of the sums expended on these, we must recollect that the workmanship also was paid for at enormous rates; for instance Gaius Gracchus paid for choice articles of silver fifteen times, and Lucius Crassus, consul in 659, eighteen times the value of the metal, and the latter gave for a pair of cups by a noted silversmith 100,000 sesterces (1000 pounds). So it was in proportion everywhere.

How it fared with marriage and the rearing of children, is shown by the Gracchan agrarian laws, which first placed a premium on these.(51) Divorce, formerly in Rome almost unheard of, was now an everyday occurrence; while in the oldest Roman marriage the husband had purchased his wife, it might have been proposed to the Romans of quality in the present times that, with the view of bringing the name into accordance with the reality, they should introduce marriage for hire. Even a man like Metellus Macedonicus, who for his honourable domestic life and his numerous host of children was the admiration of his contemporaries, when censor in 623 enforced the obligation of the burgesses to live in a state of matrimony by describing it as an oppressive public burden, which patriots ought nevertheless to undertake from a sense of duty.(52)

There were, certainly, exceptions. The circles of the rural towns, and particularly those of the larger landholders, had preserved more faithfully the old honourable habits of the Latin nation. In the capital, however, the Catonian opposition had become a mere form of words; the modern tendency bore sovereign sway, and though individuals of firm and refined organization, such as Scipio Aemilianus, knew the art of combining Roman manners with Attic culture, Hellenism was among the great multitude synonymous with intellectual and moral corruption. We must never lose sight of the reaction exercised by these social evils on political life, if we would understand the Roman revolution. It was no matter of indifference, that of the two men of rank, who in 662 acted as supreme masters of morals to the community, the one publicly reproached the other with having shed tears over the death of a -muraena- the pride of his fishpond, and the latter retaliated on the former that he had buried three wives and had shed tears over none of them. It was no matter of indifference, that in 593 an orator could make sport in the open Forum with the following description of a senatorial civil juryman, whom the time fixed for the cause finds amidst the circle of his boon-companions. "They play at hazard, delicately perfumed,

surrounded by their mistresses. As the afternoon advances, they summon the servant and bid him make enquiries on the Comitium, as to what has occurred in the Forum, who has spoken in favour of or against the new project of law, what tribes have voted for and what against it. At length they go themselves to the judgment-seat, just early enough not to bring the process down on their own neck. On the way there is no opportunity in any retired alley which they do not avail themselves of, for they have gorged themselves with wine. Reluctantly they come to the tribunal and give audience to the parties. Those who are concerned bring forward their cause. The juryman orders the witnesses to come forward; he himself steps aside. When he returns, he declares that he has heard everything, and asks for the documents. He looks into the writings; he can hardly keep his eyes open for wine. When he thereupon withdraws to consider his sentence, he says to his boon-companions, 'What concern have I with these tiresome people? why should we not rather go to drink a cup of mulse mixed with Greek wine, and accompany it with a fat fieldfare and a good fish, a veritable pike from the Tiber island?' Those who heard the orator laughed; but was it not a very serious matter, that such things were subjects for laughter?"

CHAPTER XII

Nationality, Religion, and Education

Paramount Ascendency of Latinism and Hellenism

In the great struggle of the nationalities within the wide circuit of the Roman empire, the secondary nations seem at this period on the wane or disappearing. The most important of them all, the Phoenician, received through the destruction of Carthage a mortal wound from which it slowly bled to death. The districts of Italy which had hitherto preserved their old language and manners, Etruria and Samnium, were not only visited by the heaviest blows of the Sullan reaction, but were compelled also by the political levelling of Italy to adopt the Latin language and customs in public intercourse, so that the old native languages were reduced to popular dialects rapidly decaying. There no longer appears throughout the bounds of the Roman state any nationality entitled even to compete with the Roman and the Greek.

Latinism

On the other hand the Latin nationality was, as respected both the extent of its diffusion and the depth of its hold, in the most decided ascendant. As after the Social war any portion of Italian soil might belong to any Italian in full Roman ownership, and any god of an Italian temple might receive

Roman gifts; as in all Italy, with the exception of the region beyond the Po, the Roman law thenceforth had exclusive authority, superseding all other civic and local laws; so the Roman language at that time became the universal language of business, and soon likewise the universal language of cultivated intercourse, in the whole peninsula from the Alps to the Sicilian Straits. But it no longer restricted itself to these natural limits. The mass of capital accumulating in Italy, the riches of its products, the intelligence of its agriculturists, the versatility of its merchants, found no adequate scope in the peninsula; these circumstances and the public service carried the Italians in great numbers to the provinces.(1) Their privileged position there rendered the Roman language and the Roman law privileged also, even where Romans were not merely transacting business with each other.(2) Everywhere the Italians kept together as compact and organized masses, the soldiers in their legions, the merchants of every larger town as special corporations, the Roman burgesses domiciled or sojourning in the particular provincial court-district as "circuits" (-conventus civium Romanorum-) with their own list of jurymen and in some measure with a communal constitution; and, though these provincial Romans ordinarily returned sooner or later to Italy, they nevertheless gradually laid the foundations of a fixed population in the provinces, partly Roman, partly mixed, attaching itself to the Roman settlers. We have already mentioned that it was in Spain, where the Roman army first became a standing one, that distinct provincial towns with Italian constitution were first organized—Carteia in 583,(3) Valentia in 616,(4) and at a later date Palma and Pollentia.(5) Although the interior was still far from civilized,—the territory of the Vaccaeans, for instance, being still mentioned long after this time as one of the rudest and most repulsive places of abode for the cultivated Italian—authors and inscriptions attest that as early as the middle of the seventh century the Latin language was in common use around New Carthage and elsewhere along the coast. Gracchus first distinctly developed the idea of colonizing,

or in other words of Romanizing, the provinces of the Roman state by Italian emigration, and endeavoured to carry it out; and, although the conservative opposition resisted the bold project, destroyed for the most part its attempted beginnings, and prevented its continuation, yet the colony of Narbo was preserved, important even of itself as extending the domain of the Latin tongue, and far more important still as the landmark of a great idea, the foundation- stone of a mighty structure to come. The ancient Gallic, and in fact the modern French, type of character, sprang out of that settlement, and are in their ultimate origin creations of Gaius Gracchus. But the Latin nationality not only filled the bounds of Italy and began to pass beyond them; it came also to acquire intrinsically a deeper intellectual basis. We find it in the course of creating a classical literature, and a higher instruction of its own; and, though in comparison with the Hellenic classics and Hellenic culture we may feel ourselves tempted to attach little value to the feeble hothouse products of Italy, yet, so far as its historical development was primarily concerned, the quality of the Latin classical literature and the Latin culture was of far less moment than the fact that they subsisted side by side with the Greek; and, sunken as were the contemporary Hellenes in a literary point of view, one might well apply in this case also the saying of the poet, that the living day-labourer is better than the dead Achilles.

Hellenism

But, however rapidly and vigorously the Latin language and nationality gain ground, they at the same time recognize the Hellenic nationality as having an entirely equal, indeed an earlier and better title, and enter everywhere into the closest alliance with it or become intermingled with it in a joint development. The Italian revolution, which otherwise levelled all the non-Latin nationalities in the peninsula, did not disturb the Greek cities of Tarentum, Rhegium, Neapolis, Locri.(6) In like manner Massilia,

although now enclosed by Roman territory, remained continuously a Greek city and, just as such, firmly connected with Rome. With the complete Latinizing of Italy the growth of Hellenizing went hand in hand. In the higher circles of Italian society Greek training became an integral element of their native culture. The consul of 623, the -pontifex maximus- Publius Crassus, excited the astonishment even of the native Greeks, when as governor of Asia he delivered his judicial decisions, as the case required, sometimes in ordinary Greek, sometimes in one of the four dialects which had become written languages. And if the Italian literature and art for long looked steadily towards the east, Hellenic literature and art now began to look towards the west. Not only did the Greek cities in Italy continue to maintain an active intellectual intercourse with Greece, Asia Minor, and Egypt, and confer on the Greek poets and actors who had acquired celebrity there the like recognition and the like honours among themselves; in Rome also, after the example set by the destroyer of Corinth at his triumph in 608, the gymnastic and aesthetic recreations of the Greeks— competitions in wrestling as well as in music, acting, reciting, and declaiming—came into vogue.(7) Greek men of letters even thus early struck root in the noble society of Rome, especially in the Scipionic circle, the most prominent Greek members of which—the historian Polybius and the philosopher Panaetius—belong rather to the history of Roman than of Greek development. But even in other less illustrious circles similar relations occur; we may mention another contemporary of Scipio, the philosopher Clitomachus, because his life at the same time presents a vivid view of the great intermingling of nations at this epoch. A native of Carthage, then a disciple of Carneades at Athens, and afterwards his successor in his professorship, Clitomachus held intercourse from Athens with the most cultivated men of Italy, the historian Aulus Albinus and the poet Lucilius, and dedicated on the one hand a scientific work to Lucius Censorinus the Roman consul who opened the siege of Carthage, and on the other hand a

philosophic consolatory treatise to his fellow-citizens who were conveyed to Italy as slaves. While Greek literary men of note had hitherto taken up their abode temporarily in Rome as ambassadors, exiles, or otherwise, they now began to settle there; for instance, the already-mentioned Panaetius lived in the house of Scipio, and the hexameter-maker Archias of Antioch settled at Rome in 652 and supported himself respectably by the art of improvising and by epic poems on Roman consuls. Even Gaius Marius, who hardly understood a line of his -carmen- and was altogether as ill adapted as possible for a Maecenas, could not avoid patronizing the artist in verse. While intellectual and literary life thus brought the more genteel, if not the purer, elements of the two nations into connection with each other, on the other hand the arrival of troops of slaves from Asia Minor and Syria and the mercantile immigration from the Greek and half-Greek east brought the coarsest strata of Hellenism—largely alloyed with Oriental and generally barbaric ingredients—into contact with the Italian proletariat, and gave to that also a Hellenic colouring. The remark of Cicero, that new phrases and new fashions first make their appearance in maritime towns, probably had a primary reference to the semi-Hellenic character of Ostia, Puteoli, and Brundisium, where with foreign wares foreign manners also first found admission and became thence more widely diffused.

Mixture of Peoples

The immediate result of this complete revolution in the relations of nationality was certainly far from pleasing. Italy swarmed with Greeks, Syrians, Phoenicians, Jews, Egyptians, while the provinces swarmed with Romans; sharply defined national peculiarities everywhere came into mutual contact, and were visibly worn off; it seemed as if nothing was to be left behind but the general impress of utilitarianism. What the Latin character gained in diffusion it lost in freshness; especially in Rome itself, where the middle class disappeared the soonest and most entirely, and

nothing was left but the grandees and the beggars, both in like measure cosmopolitan. Cicero assures us that about 660 the general culture in the Latin towns stood higher than in Rome; and this is confirmed by the literature of this period, whose most pleasing, healthiest, and most characteristic products, such as the national comedy and the Lucilian satire, are with greater justice described as Latin, than as Roman. That the Italian Hellenism of the lower orders was in reality nothing but a repulsive cosmopolitanism tainted at once with all the extravagances of culture and with a superficially whitewashed barbarism, is self-evident; but even in the case of the better society the fine taste of the Scipionic circle did not remain the permanent standard. The more the mass of society began to take interest in Greek life, the more decidedly it resorted not to the classical literature, but to the most modern and frivolous productions of the Greek mind; instead of moulding the Roman character in the Hellenic spirit, they contented themselves with borrowing that sort of pastime which set their own intellect to work as little as possible. In this sense the Arpinate landlord Marcus Cicero, the father of the orator, said that among the Romans, just as among Syrian slaves, each was the less worth, the more he understood Greek.

National Decomposition

This national decomposition is, like the whole age, far from pleasing, but also like that age significant and momentous. The circle of peoples, which we are accustomed to call the ancient world, advances from an outward union under the authority of Rome to an inward union under the sway of the modern culture resting essentially on Hellenic elements. Over the ruins of peoples of the second rank the great historical compromise between the two ruling nations is silently completed; the Greek and Latin nationalities conclude mutual peace. The Greeks renounce exclusive claims for their language in the field of culture, as do the Romans for theirs in the field of

politics; in instruction Latin is allowed to stand on a footing of equality—restricted, it is true, and imperfect— with Greek; on the other hand Sulla first allows foreign ambassadors to speak Greek before the Roman senate without an interpreter. The time heralds its approach, when the Roman commonwealth will pass into a bilingual state and the true heir of the throne and the ideas of Alexander the Great will arise in the west, at once a Roman and a Greek.

The suppression of the secondary, and the mutual interpenetration of the two primary nationalities, which are thus apparent on a general survey of national relations, now fall to be more precisely exhibited in detail in the several fields of religion, national education, literature, and art.

Religion

The Roman religion was so intimately interwoven with the Roman commonwealth and the Roman household—so thoroughly in fact the pious reflection of the Roman burgess-world—that the political and social revolution necessarily overturned also the fabric of religion. The ancient Italian popular faith fell to the ground; over its ruins rose—like the oligarchy and the -tyrannis- rising over the ruins of the political commonwealth—on the one side unbelief, state-religion, Hellenism, and on the other side superstition, sectarianism, the religion of the Orientals, The germs certainly of both, as indeed the germs of the politico-social revolution also, may be traced back to the previous epoch (iii. 109-117). Even then the Hellenic culture of the higher circles was secretly undermining their ancestral faith; Ennius introduced the allegorizing and historical versions of the Hellenic religion into Italy; the senate, which subdued Hannibal, had to sanction the transference of the worship of Cybele from Asia Minor to Rome, and to take the most serious steps against other still worse superstitions, particularly the Bacchanalian scandal. But, as

during the preceding period the revolution generally was rather preparing its way in men's minds than assuming outward shape, so the religious revolution was in substance, at any rate, the work only of the Gracchan and Sullan age.

Greek Philosophy

Let us endeavour first to trace the tendency associating itself with Hellenism. The Hellenic nation, which bloomed and faded far earlier than the Italian, had long ago passed the epoch of faith and thenceforth moved exclusively in the sphere of speculation and reflection; for long there had been no religion there—nothing but philosophy. But even the philosophic activity of the Hellenic mind had, when it began to exert influence on Rome, already left the epoch of productive speculation far behind it, and had arrived at the stage at which there is not only no origination of truly new systems, but even the power of apprehending the more perfect of the older systems begins to wane and men restrict themselves to the repetition, soon passing into the scholastic tradition, of the less complete dogmas of their predecessors; at that stage, accordingly, when philosophy, instead of giving greater depth and freedom to the mind, rather renders it shallow and imposes on it the worst of all chains—chains of its own forging. The enchanted draught of speculation, always dangerous, is, when diluted and stale, certain poison. The contemporary Greeks presented it thus flat and diluted to the Romans, and these had not the judgment either to refuse it or to go back from the living schoolmasters to the dead masters. Plato and Aristotle, to say nothing of the sages before Socrates, remained without material influence on the Roman culture, although their illustrious names were freely used, and their more easily understood writings were probably read and translated. Accordingly the Romans became in philosophy simply inferior scholars of bad teachers.

Leading Schools
Newer Academy
Epicurus and Zeno

Besides the historico-rationalistic conception of religion, which resolved the myths into biographies of various benefactors of the human race living in the grey dawn of early times whom superstition had transformed into gods, or Euhemerism as it was called,(8) there were chiefly three philosophical schools that came to be of importance for Italy; viz. the two dogmatic schools of Epicurus (484) and Zeno (491) and the sceptical school of Arcesilaus (513) and Carneades (541-625), or, to use the school-names, Epicureanism, the Stoa, and the newer Academy. The last of these schools, which started from the impossibility of assured knowledge and in its stead conceded as possible only a provisional opinion sufficient for practical needs, presented mainly a polemical aspect, seeing that it caught every proposition of positive faith or of philosophic dogmatism in the meshes of its dilemmas. So far it stands nearly on a parallel with the older method of the sophists; except that, as may be conceived, the sophists made war more against the popular faith, Carneades and his disciples more against their philosophical colleagues. On the other hand Epicurus and Zeno agreed both in their aim of rationally explaining the nature of things, and in their physiological method, which set out from the conception of matter. They diverged, in so far as Epicurus, following the atomic theory of Democritus, conceived the first principle as rigid matter, and evolved the manifoldness of things out of this matter merely by mechanical variations; whereas Zeno, forming his views after the Ephesian Heraclitus, introduces even into his primordial matter a dynamic antagonism and a movement of fluctuation up and down. From this are derived the further distinctions—that in the Epicurean system the gods as it were did not exist or were at the most a dream of dreams, while the Stoical gods formed the ever-active soul of the world, and were as spirit, as sun, as God powerful over the body, the earth,

and nature; that Epicurus did not, while Zeno did, recognize a government of the world and a personal immortality of the soul; that the proper object of human aspiration was according to Epicurus an absolute equilibrium disturbed neither by bodily desire nor by mental conflict, while it was according to Zeno a manly activity always increased by the constant antagonistic efforts of the mind and body, and striving after a harmony with nature perpetually in conflict and perpetually at peace. But in one point all these schools were agreed with reference to religion, that faith as such was nothing, and had necessarily to be supplemented by reflection— whether this reflection might consciously despair of attaining any result, as did the Academy; or might reject the conceptions of the popular faith, as did the school of Epicurus; or might partly retain them with explanation of the reasons for doing so, and partly modify them, as did the Stoics.

Carneades at Rome

It was accordingly only a natural result, that the first contact of Hellenic philosophy with the Roman nation equally firm in faith and adverse to speculation should be of a thoroughly hostile character. The Roman religion was entirely right in disdaining alike the assaults and the reasoned support of these philosophical systems, both of which did away with its proper character. The Roman state, which instinctively felt itself assailed when religion was attacked, reasonably assumed towards the philosophers the attitude which a fortress assumes towards the spies of the army advancing to besiege it, and as early as 593 dismissed the Greek philosophers along with the rhetoricians from Rome. In fact the very first debut of philosophy on a great scale in Rome was a formal declaration of war against faith and morals. It was occasioned by the occupation of Oropus by the Athenians, a step which they commissioned three of the most esteemed professors of philosophy, including Carneades the master of the modern sophistical school, to justify before the senate (599). The selection was so far

appropriate, as the utterly scandalous transaction defied any justification in common sense; whereas it was quite in keeping with the circumstances of the case, when Carneades proved by thesis and counter-thesis that exactly as many and as cogent reasons might be adduced in praise of injustice as in praise of justice, and when he showed in the best logical form that with equal propriety the Athenians might be required to surrender Oropus and the Romans to confine themselves once more to their old straw huts on the Palatine. The young men who were masters of the Greek language were attracted in crowds by the scandal as well as by the rapid and emphatic delivery of the celebrated man; but on this occasion at least Cato could not be found fault with, when he not only bluntly enough compared the dialectic arguments of the philosophers to the tedious dirges of the wailing-women, but also insisted on the senate dismissing a man who understood the art of making right wrong and wrong right, and whose defence was in fact nothing but a shameless and almost insulting confession of wrong. But such dismissals had no great effect, more especially as the Roman youth could not be prevented from hearing philosophic discourses at Rhodes and Athens. Men became accustomed first to tolerate philosophy at least as a necessary evil, and ere long to seek for the Roman religion, which in its simplicity was no longer tenable, a support in foreign philosophy—a support which no doubt ruined it as faith, but in return at any rate allowed the man of culture decorously to retain in some measure the names and forms of the popular creed. But this support could neither be Euhemerism, nor the system of Carneades or of Epicurus.

Euhemerism Not an Adequate Support

The historical version of the myths came far too rudely into collision with the popular faith, when it declared the gods directly to be men; Carneades called even their existence in question, and Epicurus denied to them at least any influence on the destinies of men. Between these systems

and the Roman religion no alliance was possible; they were proscribed and remained so. Even in the writings of Cicero it is declared the duty of a citizen to resist Euhemerism as prejudicial to religious worship; and if the Academic and the Epicurean appear in his dialogues, the former has to plead the excuse that, while as a philosopher he is a disciple of Carneades, as a citizen and -pontifex- he is an orthodox confessor of the Capitoline Jupiter, and the Epicurean has even ultimately to surrender and be converted. No one of these three systems became in any proper sense popular. The plain intelligible character of Euhemerism exerted doubtless a certain power of attraction over the Romans, and in particular produced only too deep an effect on the conventional history of Rome with its at once childish and senile conversion of fable into history; but it remained without material influence on the Roman religion, because the latter from the first dealt only in allegory and not in fable, and it was not possible in Rome as in Hellas to write biographies of Zeus the first, second, and third. The modern sophistry could only succeed where, as in Athens, clever volubility was indigenous, and where, moreover, the long series of philosophical systems that had come and gone had accumulated huge piles of intellectual rubbish. Against the Epicurean quietism, in fine, everything revolted that was sound and honest in the Roman character so thoroughly addressing itself to action. Yet it found more partisans than Euhemerism and the sophistic school, and this was probably the reason why the police continued to wage war against it longest and most seriously. But this Roman Epicureanism was not so much a philosophic system as a sort of philosophic mask, under which—very much against the design of its strictly moral founder— thoughtless sensual enjoyment disguised itself for good society; one of the earliest adherents of this sect, for instance, Titus Albucius, figures in the poems of Lucilius as the prototype of a Roman Hellenizing to bad purpose.

Roman Stoa

Far different were the position and influence of the Stoic philosophy in Italy. In direct contrast to these schools it attached itself to the religion of the land as closely as science can at all accommodate itself to faith. To the popular faith with its gods and oracles the Stoic adhered on principle, in so far as he recognized in it an instinctive knowledge, to which scientific knowledge was bound to have regard and even in doubtful cases to subordinate itself. He believed in a different way from the people rather than in different objects; the essentially true and supreme God was in his view doubtless the world-soul, but every manifestation of the primitive God was in its turn divine, the stars above all, but also the earth, the vine, the soul of the illustrious mortal whom the people honoured as a hero, and in fact every departed spirit of a former man. This philosophy was really better adapted for Rome than for the land where it first arose. The objection of the pious believer, that the god of the Stoic had neither sex nor age nor corporeality and was converted from a person into a conception, had a meaning in Greece, but not in Rome. The coarse allegorizing and moral purification, which were characteristic of the Stoical doctrine of the gods, destroyed the very marrow of the Hellenic mythology; but the plastic power of the Romans, scanty even in their epoch of simplicity, had produced no more than a light veil enveloping the original intuition or the original conception, out of which the divinity had arisen—a veil that might be stripped off without special damage. Pallas Athene might be indignant, when she found herself suddenly transmuted into the conception of memory: Minerva had hitherto been in reality not much more. The supernatural Stoic, and the allegoric Roman, theology coincided on the whole in their result. But, even if the philosopher was obliged to designate individual propositions of the priestly lore as doubtful or as erroneous—as when the Stoics, for example, rejecting the doctrine of apotheosis, saw in Hercules, Castor, and Pollux nothing but the spirits of distinguished men, or as when they could not allow the images of the gods to be regarded as

representations of divinity—it was at least not the habit of the adherents of Zeno to make war on these erroneous doctrines and to overthrow the false gods; on the contrary, they everywhere evinced respect and reverence for the religion of the land even in its weaknesses. The inclination also of the Stoa towards a casuistic morality and towards a systematic treatment of the professional sciences was quite to the mind of the Romans, especially of the Romans of this period, who no longer like their fathers practised in unsophisticated fashion self-government and good morals, but resolved the simple morality of their ancestors into a catechism of allowable and non-allowable actions; whose grammar and jurisprudence, moreover, urgently demanded a methodical treatment, without possessing the ability to develop such a treatment of themselves.

Wide Influence of Stoicism

Panaetius

So this philosophy thoroughly incorporated itself, as a plant borrowed no doubt from abroad but acclimatized on Italian soil, with the Roman national economy, and we meet its traces in the most diversified spheres of action. Its earliest appearance beyond doubt goes further back; but the Stoa was first raised to full influence in the higher ranks of Roman society by means of the group which gathered round Scipio Aemilianus. Panaetius of Rhodes, the instructor of Scipio and of all Scipio's intimate friends in the Stoic philosophy, who was constantly in his train and usually attended him even on journeys, knew how to adapt the system to clever men of the world, to keep its speculative side in the background, and to modify in some measure the dryness of the terminology and the insipidity of its moral catechism, more particularly by calling in the aid of the earlier philosophers, among whom Scipio himself had an especial predilection for the Socrates of Xenophon. Thenceforth the most noted statesmen and scholars professed the Stoic philosophy—among others Stilo and Quintus Scaevola, the

founders of scientific philology and of scientific jurisprudence. The scholastic formality of system, which thenceforth prevails at least externally in these professional sciences and is especially associated with a fanciful, charade-like, insipid method of etymologizing, descends from the Stoa. But infinitely more important was the new state-philosophy and state-religion, which emanated from the blending of the Stoic philosophy and the Roman religion. The speculative element, from the first impressed with but little energy on the system of Zeno, and still further weakened when that system found admission to Rome—after the Greek schoolmasters had already for a century been busied in driving this philosophy into boys' heads and thereby driving the spirit out of it—fell completely into the shade in Rome, where nobody speculated but the money-changers; little more was said as to the ideal development of the God ruling in the soul of man, or of the divine world-law. The Stoic philosophers showed themselves not insensible to the very lucrative distinction of seeing their system raised into the semi-official Roman state-philosophy, and proved altogether more pliant than from their rigorous principles we should have expected. Their doctrine as to the gods and the state soon exhibited a singular family resemblance to the actual institutions of those who gave them bread; instead of illustrating the cosmopolitan state of the philosopher, they made their meditations turn on the wise arrangement of the Roman magistracies; and while the more refined Stoics such as Panaetius had left the question of divine revelation by wonders and signs open as a thing conceivable but uncertain, and had decidedly rejected astrology, his immediate successors contended for that doctrine of revelation or, in other words, for the Roman augural discipline as rigidly and firmly as for any other maxim of the school, and made extremely unphilosophical concessions even to astrology. The leading feature of the system came more and more to be its casuistic doctrine of duties. It suited itself to the hollow pride of virtue, in which the Romans of this period sought their compensation amidst the various humbling

circumstances of their contact with the Greeks; and it put into formal shape a befitting dogmatism of morality, which, like every well-bred system of morals, combined with the most rigid precision as a whole the most complaisant indulgence in the details.(9) Its practical results can hardly be estimated as much more than that, as we have said, two or three families of rank ate poor fare to please the Stoa.

State-Religion

Closely allied to this new state-philosophy—or, strictly speaking, its other side—was the new state-religion; the essential characteristic of which was the conscious retention, for reasons of outward convenience, of the principles of the popular faith, which were recognized as irrational. One of the most prominent men of the Scipionic circle, the Greek Polybius, candidly declares that the strange and ponderous ceremonial of Roman religion was invented solely on account of the multitude, which, as reason had no power over it, required to be ruled by signs and wonders, while people of intelligence had certainly no need of religion. Beyond doubt the Roman friends of Polybius substantially shared these sentiments, although they did not oppose science and religion to each other in so gross and downright a fashion. Neither Laelius nor Scipio Aemilianus can have looked on the augural discipline, which Polybius has primarily in view, as anything else than a political institution; yet the national spirit in them was too strong and their sense of decorum too delicate to have permitted their coming forward in public with such hazardous explanations. But even in the following generation the -pontifex maximus- Quintus Scaevola (consul in 659;(10)) set forth at least in his oral instructions in law without hesitation the propositions, that there were two sorts of religion—one philosophic, adapted to the intellect, and one traditional, not so adapted; that the former was not fitted for the religion of the state, as it contained various things which it was useless or even injurious for the people to know; and that

accordingly the traditional religion of the state ought to remain as it stood. The theology of Varro, in which the Roman religion is treated throughout as a state institution, is merely a further development of the same principle. The state, according to his teaching, was older than the gods of the state as the painter is older than the picture; if the question related to making the gods anew, it would certainly be well to make and to name them after a manner more befitting and more in theoretic accordance with the parts of the world-soul, and to lay aside the images of the gods which only excited erroneous ideas,(11) and the mistaken system of sacrifice; but, since these institutions had been once established, every good citizen ought to own and follow them and do his part, that the "common man" might learn rather to set a higher value on, than to condemn, the gods. That the common man, for whose benefit the grandees thus surrendered their judgment, now despised this faith and sought his remedy elsewhere, was a matter of course and will be seen in the sequel. Thus then the Roman "high church" was ready, a sanctimonious body of priests and Levites, and an unbelieving people. The more openly the religion of the land was declared a political institution, the more decidedly the political parties regarded the field of the state-church as an arena for attack and defence; which was especially, in a daily-increasing measure, the case with augural science and with the elections to the priestly colleges. The old and natural practice of dismissing the burgess-assembly, when a thunderstorm came on, had in the hands of the Roman augurs grown into a prolix system of various celestial omens and rules of conduct associated therewith; in the earlier portion of this period it was even directly enacted by the Aelian and Fufian law, that every popular assembly should be compelled to disperse if it should occur to any of the higher magistrates to look for signs of a thunderstorm in the sky; and the Roman oligarchy was proud of the cunning device which enabled them thenceforth by a single pious fraud to impress the stamp of invalidity on any decree of the people.

Priestly Colleges

Conversely, the Roman opposition rebelled against the ancient practice under which the four principal colleges of priests filled up their own ranks when vacancies arose, and demanded the extension of popular election to the stalls themselves, as it had been previously introduced with reference to the presidents, of these colleges.(12) This was certainly inconsistent with the spirit of these corporations; but they had no right to complain of it, after they had become themselves untrue to their spirit, and had played into the hands of the government at its request by furnishing religious pretexts for the annulling of political proceedings. This affair became an apple of contention between the parties: the senate beat off the first attack in 609, on which occasion the Scipionic circle especially turned the scale for the rejection of the proposal; on the other hand the project passed in 650 with the proviso already made in reference to the election of the presidents for the benefit of scrupulous consciences, that not the whole burgesses but only the lesser half of the tribes should make the election;(13) finally Sulla restored the right of co-optation in its full extent.(14)

Practical Use Made of Religion

With this care on the part of the conservatives for the pure national religion, it was of course quite compatible that the circles of the highest rank should openly make a jest of it. The practical side of the Roman priesthood was the priestly cuisine; the augural and pontifical banquets were as it were the official gala-days in the life of a Roman epicure, and several of them formed epochs in the history of gastronomy: the banquet on the accession of the augur Quintus Hortensius for instance brought roast peacocks into vogue. Religion was also found very useful in giving greater zest to scandal. It was a favourite recreation of the youth of quality to disfigure or mutilate the images of the gods in the streets by night.(15) Ordinary love affairs had for long been common, and intrigues with married women began to become so; but an amour with a Vestal virgin was as

piquant as the intrigues with nuns and the cloister-adventures in the world of the Decamerone. The scandalous affair of 640 seq. is well known, in which three Vestals, daughters of the noblest families, and their paramours, young men likewise of the best houses, were brought to trial for unchastity first before the pontifical college, and then, when it sought to hush up the matter, before an extraordinary court instituted by special decree of the people, and were all condemned to death. Such scandals, it is true, sedate people could not approve; but there was no objection to men finding positive religion to be a folly in their familiar circle; the augurs might, when one saw another performing his functions, smile in each other's face without detriment to their religious duties. We learn to look favourably on the modest hypocrisy of kindred tendencies, when we compare with it the coarse shamelessness of the Roman priests and Levites. The official religion was quite candidly treated as a hollow framework, now serviceable only for political machinists; in this respect with its numerous recesses and trapdoors it might and did serve either party, as it happened. Most of all certainly the oligarchy recognized its palladium in the state- religion, and particularly in the augural discipline; but the opposite party also made no resistance in point of principle to an institute, which had now merely a semblance of life; they rather regarded it, on the whole, as a bulwark which might pass from the possession of the enemy into their own.

Oriental Religions in Italy

In sharp contrast to this ghost of religion which we have just described stand the different foreign worships, which this epoch cherished and fostered, and which were at least undeniably possessed of a very decided vitality. They meet us everywhere, among genteel ladies and lords as well as among the circles of the slaves, in the general as in the trooper, in Italy as in the provinces. It is incredible to what a height this superstition already reached. When in the Cimbrian war a Syrian prophetess, Martha, offered to

furnish the senate with ways and means for the vanquishing of the Germans, the senate dismissed her with contempt; nevertheless the Roman matrons and Marius' own wife in particular despatched her to his headquarters, where the general readily received her and carried her about with him till the Teutones were defeated. The leaders of very different parties in the civil war, Marius, Octavius, Sulla, coincided in believing omens and oracles. During its course even the senate was under the necessity, in the troubles of 667, of consenting to issue directions in accordance with the fancies of a crazy prophetess. It is significant of the ossification of the Romano-Hellenic religion as well as of the increased craving of the multitude after stronger religious stimulants, that superstition no longer, as in the Bacchic mysteries, associates itself with the national religion; even the Etruscan mysticism is already left behind; the worships matured in the sultry regions of the east appear throughout in the foremost rank. The copious introduction of elements from Asia Minor and Syria into the population, partly by the import of slaves, partly by the augmented traffic of Italy with the east, contributed very greatly to this result.

The power of these foreign religions is very distinctly apparent in the revolts of the Sicilian slaves, who for the most part were natives of Syria. Eunus vomited fire, Athenion read the stars; the plummets thrown by the slaves in these wars bear in great part the names of gods, those of Zeus and Artemis, and especially that of the mysterious Mother who had migrated from Crete to Sicily and was zealously worshipped there. A similar effect was produced by commercial intercourse, particularly after the wares of Berytus and Alexandria were conveyed directly to the Italian ports; Ostia and Puteoli became the great marts not only for Syrian unguents and Egyptian linen, but also for the faith of the east. Everywhere the mingling of religions was constantly on the increase along with the mingling of nations. Of all allowed worships the most popular was that of the Pessinuntine Mother of the Gods, which made a deep impression on the

multitude by its eunuch-celibacy, its banquets, its music, its begging processions, and all its sensuous pomp; the collections from house to house were already felt as an economic burden. In the most dangerous time of the Cimbrian war Battaces the high-priest of Pessinus appeared in person at Rome, in order to defend the interests of the temple of his goddess there which was alleged to have been profaned, addressed the Roman people by the special orders of the Mother of the Gods, and performed also various miracles. Men of sense were scandalized, but the women and the great multitude were not to be debarred from escorting the prophet at his departure in great crowds. Vows of pilgrimage to the east were already no longer uncommon; Marius himself, for instance, thus undertook a pilgrimage to Pessinus; in fact even thus early (first in 653) Roman burgesses devoted themselves to the eunuch-priesthood.

Secret Worships

But the unallowed and secret worships were naturally still more popular. As early as Cato's time the Chaldean horoscope-caster had begun to come into competition with the Etruscan -haruspex- and the Marsian bird-seer; (16) star-gazing and astrology were soon as much at home in Italy as in their dreamy native land. In 615 the Roman -praetor peregrinus- directed all the Chaldeans to evacuate Rome and Italy within ten days. The same fate at the same time befel the Jews, who had admitted Italian proselytes to their sabbath. In like manner Scipio had to clear the camp before Numantia from soothsayers and pious impostors of every sort. Some forty years afterwards (657) it was even found necessary to prohibit human sacrifices. The wild worship of the Cappadocian Ma, or, as the Romans called her, Bellona, to whom the priests in their festal processions shed their own blood as a sacrifice, and the gloomy Egyptian worships began to make their appearance; the former Cappadocian goddess appeared in a dream to Sulla, and of the later Roman communities of Isis and Osiris the oldest traced their

origin to the Sullan period. Men had become perplexed not merely as to the old faith, but as to their very selves; the fearful crises of a fifty years' revolution, the instinctive feeling that the civil war was still far from being at an end, increased the anxious suspense, the gloomy perplexity of the multitude. Restlessly the wandering imagination climbed every height and fathomed every abyss, where it fancied that it might discover new prospects or new light amidst the fatalities impending, might gain fresh hopes in the desperate struggle against destiny, or perhaps might find merely fresh alarms. A portentous mysticism found in the general distraction— political, economic, moral, religious—the soil which was adapted for it, and grew with alarming rapidity; it was as if gigantic trees had grown by night out of the earth, none knew whence or whither, and this very marvellous rapidity of growth worked new wonders and seized like an epidemic on all minds not thoroughly fortified.

Education

Just as in the sphere of religion, the revolution begun in the previous epoch was now completed also in the sphere of education and culture. We have already shown how the fundamental idea of the Roman system—civil equality—had already during the sixth century begun to be undermined in this field also. Even in the time of Pictor and Cato Greek culture was widely diffused in Rome, and there was a native Roman culture; but neither of them had then got beyond the initial stage. Cato's encyclopaedia shows tolerably what was understood at this period by a Romano-Greek model training;(16) it was little more than an embodiment of the knowledge of the old Roman householder, and truly, when compared with the Hellenic culture of the period, scanty enough. At how low a stage the average instruction of youth in Rome still stood at the beginning of the seventh century, may be inferred from the expressions of Polybius, who in this one respect prominently censures the criminal indifference of the Romans as

compared with the intelligent private and public care of his countrymen; no Hellene, not even Polybius himself, could rightly enter into the deeper idea of civil equality that lay at the root of this indifference.

Now the case was altered. Just as the naive popular faith was superseded by an enlightened Stoic supernaturalism, so in education alongside of the simple popular instruction a special training, an exclusive -humanitas-, developed itself and eradicated the last remnants of the old social equality. It will not be superfluous to cast a glance at the aspect assumed by the new instruction of the young, both the Greek and the higher Latin.

Greek Instruction

It was a singular circumstance that the same man, who in a political point of view definitively vanquished the Hellenic nation, Lucius Aemilius Paullus, was at the same time the first or one of the first who fully recognized the Hellenic civilization as— what it has thenceforth continued to be beyond dispute—the civilization of the ancient world. He was himself indeed an old man before it was granted to him, with the Homeric poems in his mind, to stand before the Zeus of Phidias; but his heart was young enough to carry home the full sunshine of Hellenic beauty and the unconquerable longing after the golden apples of the Hesperides in his soul; poets and artists had found in the foreigner a more earnest and cordial devotee than was any of the wise men of the Greece of those days. He made no epigram on Homer or Phidias, but he had his children introduced into the realms of intellect. Without neglecting their national education, so far as there was such, he made provision like the Greeks for the physical development of his boys, not indeed by gymnastic exercises which were according to Roman notions inadmissible, but by instruction in the chase, which was among the Greeks developed almost like an art; and he elevated their Greek instruction in such a way that the language was no longer

merely learned and practised for the sake of speaking, but after the Greek fashion the whole subject-matter of general higher culture was associated with the language and developed out of it—embracing, first of all, the knowledge of Greek literature with the mythological and historical information necessary for understanding it, and then rhetoric and philosophy. The library of king Perseus was the only portion of the Macedonian spoil that Paullus took for himself, with the view of presenting it to his sons. Even Greek painters and sculptors were found in his train and completed the aesthetic training of his children. That the time was past when men could in this field preserve a merely repellent attitude as regarded Hellenism, had been felt even by Cato; the better classes had probably now a presentiment that the noble substance of Roman character was less endangered by Hellenism as a whole, than by Hellenism mutilated and misshapen: the mass of the upper society of Rome and Italy went along with the new mode. There had been for long no want of Greek schoolmasters in Rome; now they arrived in troops—and as teachers not merely of the language but of literature and culture in general—at the newly-opened lucrative market for the sale of their wisdom. Greek tutors and teachers of philosophy, who, even if they were not slaves, were as a rule accounted as servants,(17) were now permanent inmates in the palaces of Rome; people speculated in them, and there is a statement that 200,000 sesterces (2000 pounds) were paid for a Greek literary slave of the first rank. As early as 593 there existed in the capital a number of special establishments for the practice of Greek declamation. Several distinguished names already occur among these Roman teachers; the philosopher Panaetius has been already mentioned;(18) the esteemed grammarian Crates of Mallus in Cilicia, the contemporary and equal rival of Aristarchus, found about 585 at Rome an audience for the recitation and illustration, language, and matter of the Homeric poems. It is true that this new mode of juvenile instruction, revolutionary and anti-national as it was, encountered partially

the resistance of the government; but the edict of dismissal, which the authorities in 593 fulminated against rhetoricians and philosophers, remained (chiefly owing to the constant change of the Roman chief magistrates) like all similar commands without any result worth mentioning, and after the death of old Cato there were still doubtless frequent complaints in accordance with his views, but there was no further action. The higher instruction in Greek and in the sciences of Greek culture remained thenceforth recognized as an essential part of Italian training.

Latin Instruction

Public Readings of Classical Works

But by its side there sprang up also a higher Latin instruction. We have shown in the previous epoch how Latin elementary instruction raised its character; how the place of the Twelve Tables was taken by the Latin Odyssey as a sort of improved primer, and the Roman boy was now trained to the knowledge and delivery of his mother-tongue by means of this translation, as the Greek by means of the original: how noted teachers of the Greek language and literature, Andronicus, Ennius, and others, who already probably taught not children properly so called, but boys growing up to maturity and young men, did not disdain to give instruction in the mother-tongue along with the Greek. These were the first steps towards a higher Latin instruction, but they did not as yet form such an instruction itself. Instruction in a language cannot go beyond the elementary stage, so long as it lacks a literature. It was not until there were not merely Latin schoolbooks but a Latin literature, and this literature already somewhat rounded-off in the works of the classics of the sixth century, that the mother-tongue and the native literature truly entered into the circle of the elements of higher culture; and the emancipation from the Greek schoolmasters was now not slow to follow. Stirred up by the Homeric prelections of Crates, cultivated Romans began to read the recitative works

of their own literature, the Punic War of Naevius, the Annals of Ennius, and subsequently also the Poems of Lucilius first to a select circle, and then in public on set days and in presence of a great concourse, and occasionally also to treat them critically after the precedent of the Homeric grammarians. These literary prelections, which cultivated -dilettanti- (-litterati-) held gratuitously, were not formally a part of juvenile instruction, but were yet an essential means of introducing the youth to the understanding and the discussion of the classic Latin literature.

Rhetorical Exercises

The formation of Latin oratory took place in a similar way. The Roman youth of rank, who were even at an early age incited to come forward in public with panegyrics and forensic speeches, can never have lacked exercises in oratory; but it was only at this epoch, and in consequence of the new exclusive culture, that there arose a rhetoric properly so called. Marcus Lepidus Porcina (consul in 617) is mentioned as the first Roman advocate who technically handled the language and subject-matter; the two famous advocates of the Marian age, the masculine and vigorous Marcus Antonius (611- 667) and the polished and chaste orator Lucius Crassus (614-663) were already complete rhetoricians. The exercises of the young men in speaking increased naturally in extent and importance, but still remained, just like the exercises in Latin literature, essentially limited to the personal attendance of the beginner on the master of the art so as to be trained by his example and his instructions.

Formal instruction both in Latin literature and in Latin rhetoric was given first about 650 by Lucius Aelius Praeconinus of Lanuvium, called the "penman" (-Stilo-), a distinguished Roman knight of strict conservative views, who read Plautus and similar works with a select circle of younger men—including Varro and Cicero—and sometimes also went over outlines

of speeches with the authors, or put similar outlines into the hands of his friends. This was instruction, but Stilo was not a professional schoolmaster; he taught literature and rhetoric, just as jurisprudence was taught at Rome, in the character of a senior friend of aspiring young men, not of a man hired and holding himself at every one's command.

Course of Literature and Rhetoric

But about his time began also the scholastic higher instruction in Latin, separated as well from elementary Latin as from Greek instruction, and imparted in special establishments by paid masters, ordinarily manumitted slaves. That its spirit and method were throughout borrowed from the exercises in the Greek literature and language, was a matter of course; and the scholars also consisted, as at these exercises, of youths, and not of boys. This Latin instruction was soon divided like the Greek into two courses; in so far as the Latin literature was first the subject of scientific lectures, and then a technical introduction was given to the preparation of panegyrics, public, and forensic orations. The first Roman school of literature was opened about Stilo's time by Marcus Saevius Nicanor Postumus, the first separate school for Latin rhetoric about 660 by Lucius Plotius Gallus; but ordinarily instructions in rhetoric were also given in the Latin schools of literature. This new Latin school-instruction was of the most comprehensive importance. The introduction to the knowledge of Latin literature and Latin oratory, such as had formerly been imparted by connoisseurs and masters of high position, had preserved a certain independence in relation to the Greeks. The judges of language and the masters of oratory were doubtless under the influence of Hellenism, but not absolutely under that of the Greek school-grammar and school-rhetoric; the latter in particular was decidedly an object of dread. The pride as well as the sound common sense of the Romans demurred to the Greek assertion that the ability to speak of things, which the orator understood and felt, intelligibly and attractively to his

peers in the mother-tongue could be learned in the school by school-rules. To the solid practical advocate the procedure of the Greek rhetoricians, so totally estranged from life, could not but appear worse for the beginner than no preparation at all; to the man of thorough culture and matured by the experience of life, the Greek rhetoric seemed shallow and repulsive; while the man of serious conservative views did not fail to observe the close affinity between a professionally developed rhetoric and the trade of the demagogue. Accordingly the Scipionic circle had shown the most bitter hostility to the rhetoricians, and, if Greek declamations before paid masters were tolerated doubtless primarily as exercises in speaking Greek, Greek rhetoric did not thereby find its way either into Latin oratory or into Latin oratorical instruction. But in the new Latin rhetorical schools the Roman youths were trained as men and public orators by discussing in pairs rhetorical themes; they accused Ulysses, who was found beside the corpse of Ajax with the latter's bloody sword, of the murder of his comrade in arms, or upheld his innocence; they charged Orestes with the murder of his mother, or undertook to defend him; or perhaps they helped Hannibal with a supplementary good advice as to the question whether he would do better to comply with the invitation to Rome, or to remain in Carthage, or to take flight. It was natural that the Catonian opposition should once more bestir itself against these offensive and pernicious conflicts of words. The censors of 662 issued a warning to teachers and parents not to allow the young men to spend the whole day in exercises, whereof their ancestors had known nothing; and the man, from whom this warning came, was no less than the first forensic orator of his age, Lucius Licinius Crassus. Of course the Cassandra spoke in vain; declamatory exercises in Latin on the current themes of the Greek schools became a permanent ingredient in the education of Roman youth, and contributed their part to educate the very boys as forensic and political players and to stifle in the bud all earnest and true eloquence.

As the aggregate result of this modern Roman education there sprang up the new idea of "humanity," as it was called, which consisted partly of a more or less superficial appropriation of the aesthetic culture of the Hellenes, partly of a privileged Latin culture as an imitation or mutilated copy of the Greek. This new humanity, as the very name indicates, renounced the specific characteristics of Roman life, nay even came forward in opposition to them, and combined in itself, just like our closely kindred "general culture," a nationally cosmopolitan and socially exclusive character. Here too we trace the revolution, which separated classes and blended nations.

CHAPTER XIII

Literature and Art

Literary Reaction

The sixth century was, both in a political and a literary point of view, a vigorous and great age. It is true that we do not find in the field of authorship any more than in that of politics a man of the first rank; Naevius, Ennius, Plautus, Cato, gifted and lively authors of distinctly-marked individuality, were not in the highest sense men of creative talent; nevertheless we perceive in the soaring, stirring, bold strain of their dramatic, epic, and historic attempts, that these rest on the gigantic struggles of the Punic wars. Much is only artificially transplanted, there are various faults in delineation and colouring, the form of art and the language are deficient in purity of treatment, Greek and national elements are quaintly conjoined; the whole performance betrays the stamp of its scholastic origin and lacks independence and completeness; yet there exists in the poets and authors of that age, if not the full power to reach their high aim, at any rate the courage to compete with and the hope of rivalling the Greeks. It is otherwise in the epoch before us. The morning mists fell; what had been begun in the fresh feeling of the national strength hardened amidst war, with youthful want of insight into the difficulty of the undertaking and into the measure of their own talent, but also with youthful delight in and love to the work, could not be carried farther now, when on the one hand

the dull sultriness of the approaching revolutionary storm began to fill the air, and on the other hand the eyes of the more intelligent were gradually opened to the incomparable glory of Greek poetry and art and to the very modest artistic endowments of their own nation. The literature of the sixth century had arisen from the influence of Greek art on half-cultivated, but excited and susceptible minds. The increased Hellenic culture of the seventh called forth a literary reaction, which destroyed the germs of promise contained in those simple imitative attempts by the winter-frost of reflection, and rooted up the wheat and the tares of the older type of literature together.

Scipionic Circle

This reaction proceeded primarily and chiefly from the circle which assembled around Scipio Aemilianus, and whose most prominent members among the Roman world of quality were, in addition to Scipio himself, his elder friend and counsellor Gaius Laelius (consul in 614) and Scipio's younger companions, Lucius Furius Philus (consul in 618) and Spurius Mummius, the brother of the destroyer of Corinth, among the Roman and Greek literati the comedian Terence, the satirist Lucilius, the historian Polybius, and the philosopher Panaetius. Those who were familiar with the Iliad, with Xenophon, and with Menander, could not be greatly impressed by the Roman Homer, and still less by the bad translations of the tragedies of Euripides which Ennius had furnished and Pacuvius continued to furnish. While patriotic considerations might set bounds to criticism in reference to the native chronicles, Lucilius at any rate directed very pointed shafts against "the dismal figures from the complicated expositions of Pacuvius"; and similar severe, but not unjust criticisms of Ennius, Plautus, Pacuvius—all those poets "who appeared to have a licence to talk pompously and to reason illogically"—are found in the polished author of the Rhetoric dedicated to Herennius, written at the close of this period. People shrugged

their shoulders at the interpolations, with which the homely popular wit of Rome had garnished the elegant comedies of Philemon and Diphilus. Half smiling, half envious, they turned away from the inadequate attempts of a dull age, which that circle probably regarded somewhat as a mature man regards the poetical effusions of his youth; despairing of the transplantation of the marvellous tree, they allowed the higher species of art in poetry and prose substantially to fall into abeyance, and restricted themselves in these departments to an intelligent enjoyment of foreign masterpieces. The productiveness of this epoch displayed itself chiefly in the subordinate fields of the lighter comedy, the poetical miscellany, the political pamphlet, and the professional sciences. The literary cue was correctness, in the style of art and especially in the language, which, as a more limited circle of persons of culture became separated from the body of the people, was in its turn divided into the classical Latin of higher society and the vulgar Latin of the common people. The prologues of Terence promise "pure Latin"; warfare against faults of language forms a chief element of the Lucilian satire; and with this circumstance is connected the fact, that composition in Greek among the Romans now falls decidedly into the shade. In so far certainly there is an improvement; inadequate efforts occur in this epoch far less frequently; performances in their kind complete and thoroughly pleasing occur far oftener than before or afterwards; in a linguistic point of view Cicero calls the age of Laelius and Scipio the golden age of pure unadulterated Latin. In like manner literary activity gradually rises in public opinion from a trade to an art. At the beginning of this period the preparation of theatrical pieces at any rate, if not the publication of recitative poems, was still regarded as not becoming for the Roman of quality; Pacuvius and Terence lived by their pieces; the writing of dramas was entirely a trade, and not one of golden produce. About the time of Sulla the state of matters had entirely changed. The remuneration given to actors at this time proves that even the favourite dramatic poet might then lay

claim to a payment, the high amount of which removed the stigma. By this means composing for the stage was raised into a liberal art; and we accordingly find men of the highest aristocratic circles, such as Lucius Caesar (aedile in 664, 667), engaged in writing for the Roman stage and proud of sitting in the Roman "poet's club" by the side of the ancestorless Accius. Art gains in sympathy and honour; but the enthusiasm has departed in life and in literature. The fearless self-confidence, which makes the poet a poet, and which is very decidedly apparent in Plautus especially, is found in none of those that follow; the Epigoni of the men that fought with Hannibal are correct, but feeble.

Tragedy

Pacuvius

Let us first glance at the Roman dramatic literature and the stage itself. Tragedy has now for the first time her specialists; the tragic poets of this epoch do not, like those of the preceding, cultivate comedy and epos side by side. The appreciation of this branch of art among the writing and reading circles was evidently on the increase, but tragic poetry itself hardly improved. We now meet with the national tragedy (-praetexta-), the creation of Naevius, only in the hands of Pacuvius to be mentioned immediately—an after-growth of the Ennian epoch. Among the probably numerous poets who imitated Greek tragedies two alone acquired a considerable name. Marcus Pacuvius from Brundisium (535-c. 625) who in his earlier years earned his livelihood in Rome by painting and only composed tragedies when advanced in life, belongs as respects both his years and his style to the sixth rather than the seventh century, although his poetical activity falls within the latter. He composed on the whole after the manner of his countryman, uncle, and master Ennius. Polishing more carefully and aspiring to a higher strain than his predecessor, he was regarded by favourable critics of art afterwards as a model of artistic poetry and of rich

style: in the fragments, however, that have reached us proofs are not wanting to justify the censure of the poet's language by Cicero and the censure of his taste by Lucilius; his language appears more rugged than that of his predecessor, his style of composition pompous and punctilious.(1) There are traces that he like Ennius attached more value to philosophy than to religion; but he did not at any rate, like the latter, prefer dramas chiming in with neological views and preaching sensuous passion or modern enlightenment, and drew without distinction from Sophocles or from Euripides—of that poetry with a decided special aim, which almost stamps Ennius with genius, there can have been no vein in the younger poet.

Accius

More readable and adroit imitations of Greek tragedy were furnished by Pacuvius' younger contemporary, Lucius Accius, son of a freedman of Pisaurum (584-after 651), with the exception of Pacuvius the only notable tragic poet of the seventh century. An active author also in the field of literary history and grammar, he doubtless laboured to introduce instead of the crude manner of his predecessors greater purity of language and style into Latin tragedy; yet even his inequality and incorrectness were emphatically censured by men of strict observance like Lucilius.

Greek Comedy

Terence

Far greater activity and far more important results are apparent in the field of comedy. At the very commencement of this period a remarkable reaction set in against the sort of comedy hitherto prevalent and popular. Its representative Terentius (558-595) is one of the most interesting phenomena, in a historical point of view, in Roman literature. Born in Phoenician Africa, brought in early youth as a slave to Rome and there introduced to the Greek culture of the day, he seemed from the very first

destined for the vocation of giving back to the new Attic comedy that cosmopolitan character, which in its adaptation to the Roman public under the rough hands of Naevius, Plautus, and their associates it had in some measure lost. Even in the selection and employment of models the contrast is apparent between him and that predecessor whom alone we can now compare with him. Plautus chooses his pieces from the whole range of the newer Attic comedy, and by no means disdains the livelier and more popular comedians, such as Philemon; Terence keeps almost exclusively to Menander, the most elegant, polished, and chaste of all the poets of the newer comedy. The method of working up several Greek pieces into one Latin is retained by Terence, because in fact from the state of the case it could not be avoided by the Roman editors; but it is handled with incomparably more skill and carefulness. The Plautine dialogue beyond doubt departed very frequently from its models; Terence boasts of the verbal adherence of his imitations to the originals, by which however we are not to understand a verbal translation in our sense. The not unfrequently coarse, but always effective laying on of Roman local tints over the Greek ground-work, which Plautus was fond of, is completely and designedly banished from Terence; not an allusion puts one in mind of Rome, not a proverb, hardly a reminiscence;(2) even the Latin titles are replaced by Greek. The same distinction shows itself in the artistic treatment. First of all the players receive back their appropriate masks, and greater care is observed as to the scenic arrangements, so that it is no longer the case, as with Plautus, that everything needs to take place on the street, whether belonging to it or not. Plautus ties and unties the dramatic knot carelessly and loosely, but his plot is droll and often striking; Terence, far less effective, keeps everywhere account of probability, not unfrequently at the cost of suspense, and wages emphatic war against the certainly somewhat flat and insipid standing expedients of his predecessors, e. g. against allegoric dreams.(3) Plautus paints his characters with broad strokes, often

after a stock-model, always with a view to the gross effect from a distance and on the whole; Terence handles the psychological development with a careful and often excellent miniature-painting, as in the *-Adelphi-* for instance, where the two old men—the easy bachelor enjoying life in town, and the sadly harassed not at all refined country-landlord—form a masterly contrast. The springs of action and the language of Plautus are drawn from the tavern, those of Terence from the household of the good citizen. The lazy Plautine hostelry, the very unconstrained but very charming damsels with the hosts duly corresponding, the sabre-rattling troopers, the menial world painted with an altogether peculiar humour, whose heaven is the cellar, and whose fate is the lash, have disappeared in Terence or at any rate undergone improvement. In Plautus we find ourselves, on the whole, among incipient or thorough rogues, in Terence again, as a rule, among none but honest men; if occasionally a *-leno-* is plundered or a young man taken to the brothel, it is done with a moral intent, possibly out of brotherly love or to deter the boy from frequenting improper haunts. The Plautine pieces are pervaded by the significant antagonism of the tavern to the house; everywhere wives are visited with abuse, to the delight of all husbands temporarily emancipated and not quite sure of an amiable salutation at home. The comedies of Terence are pervaded by a conception not more moral, but doubtless more becoming, of the feminine nature and of married life. As a rule, they end with a virtuous marriage, or, if possible, with two—just as it was the glory of Menander that he compensated for every seduction by a marriage. The eulogies of a bachelor life, which are so frequent in Menander, are repeated by his Roman remodeller only with characteristic shyness,(4) whereas the lover in his agony, the tender husband at the *-accouchement-*, the loving sister by the death-bed in the *-Eunuchus-* and the *-Andria-* are very gracefully delineated; in the *-Hecyra-* there even appears at the close as a delivering angel a virtuous courtesan, likewise a genuine Menandrian figure, which the Roman public, it is true,

very properly hissed. In Plautus the fathers throughout only exist for the purpose of being jeered and swindled by their sons; with Terence in the -*Heauton Timorumenos*- the lost son is reformed by his father's wisdom, and, as in general he is full of excellent instructions as to education, so the point of the best of his pieces, the -*Adelphi*-, turns on finding the right mean between the too liberal training of the uncle and the too rigid training of the father. Plautus writes for the great multitude and gives utterance to profane and sarcastic speeches, so far as the censorship of the stage at all allowed; Terence on the contrary describes it as his aim to please the good and, like Menander, to offend nobody. Plautus is fond of vigorous, often noisy dialogue, and his pieces require a lively play of gesture in the actors; Terence confines himself to "quiet conversation." The language of Plautus abounds in burlesque turns and verbal witticisms, in alliterations, in comic coinages of new terms, Aristophanic combinations of words, pithy expressions of the day jestingly borrowed from the Greek. Terence knows nothing of such caprices; his dialogue moves on with the purest symmetry, and its points are elegant epigrammatic and sententious turns. The comedy of Terence is not to be called an improvement, as compared with that of Plautus, either in a poetical or in a moral point of view. Originality cannot be affirmed of either, but, if possible, there is less of it in Terence; and the dubious praise of more correct copying is at least outweighed by the circumstance that, while the younger poet reproduced the agreeableness, he knew not how to reproduce the merriment of Menander, so that the comedies of Plautus imitated from Menander, such as the -*Stichus*-, the -*Cistellaria*-, the -*Bacchides*-, probably preserve far more of the flowing charm of the original than the comedies of the "-dimidiatus Menander-." And, while the aesthetic critic cannot recognize an improvement in the transition from the coarse to the dull, as little can the moralist in the transition from the obscenity and indifference of Plautus to the accommodating morality of Terence. But in point of language an

improvement certainly took place. Elegance of language was the pride of the poet, and it was owing above all to its inimitable charm that the most refined judges of art in aftertimes, such as Cicero, Caesar, and Quintilian, assigned the palm to him among all the Roman poets of the republican age. In so far it is perhaps justifiable to date a new era in Roman literature—the real essence of which lay not in the development of Latin poetry, but in the development of the Latin language—from the comedies of Terence as the first artistically pure imitation of Hellenic works of art. The modern comedy made its way amidst the most determined literary warfare. The Plautine style of composing had taken root among the Roman bourgeoisie; the comedies of Terence encountered the liveliest opposition from the public, which found their "insipid language," their "feeble style," intolerable. The, apparently, pretty sensitive poet replied in his prologues—which properly were not intended for any such purpose—with counter-criticisms full of defensive and offensive polemics; and appealed from the multitude, which had twice run off from his *-Hecyra-* to witness a band of gladiators and rope-dancers, to the cultivated circles of the genteel world. He declared that he only aspired to the approval of the "good"; in which doubtless there was not wanting a hint, that it was not at all seemly to undervalue works of art which had obtained the approval of the "few." He acquiesced in or even favoured the report, that persons of quality aided him in composing with their counsel or even with their cooperation.⁽⁵⁾ In reality he carried his point; even in literature the oligarchy prevailed, and the artistic comedy of the exclusives supplanted the comedy of the people: we find that about 620 the pieces of Plautus disappeared from the set of stock plays. This is the more significant, because after the early death of Terence no man of conspicuous talent at all further occupied this field. Respecting the comedies of Turpilius (651 at an advanced age) and other stop-gaps wholly or almost wholly forgotten, a connoisseur already at the close of this period

gave it as his opinion, that the new comedies were even much worse than the bad new pennies.(6)

National Comedy

Afranius

We have formerly shown(7) that in all probability already in the course of the sixth century a national Roman comedy (-togata-) was added to the Graeco-Roman (-palliata-), as a portraiture not of the distinctive life of the capital, but of the ways and doings of the Latin land. Of course the Terentian school rapidly took possession of this species of comedy also; it was quite in accordance with its spirit to naturalise Greek comedy in Italy on the one hand by faithful translation, and on the other hand by pure Roman imitation. The chief representative of this school was Lucius Afranius (who flourished about 66). The fragments of his comedies remaining give no distinct impression, but they are not inconsistent with what the Roman critics of art remark regarding him. His numerous national comedies were in their construction thoroughly formed on the model of the Greek intrigue-piece; only, as was natural in imitation, they were simpler and shorter. In the details also he borrowed what pleased him partly from Menander, partly from the older national literature. But of the Latin local tints, which are so distinctly marked in Titinius the creator of this species of art, we find not much in Afranius;(8) his subjects retain a very general character, and may well have been throughout imitations of particular Greek comedies with merely an alteration of costume. A polished eclecticism and adroitness in composition— literary allusions not unfrequently occur—are characteristic of him as of Terence: the moral tendency too, in which his pieces approximated to the drama, their inoffensive tenor in a police point of view, their purity of language are common to him with the latter. Afranius is sufficiently indicated as of a kindred spirit with Menander and Terence by the judgment of posterity that he wore the -toga- as Menander

would have worn it had he been an Italian, and by his own expression that to his mind Terence surpassed all other poets.

Atellanae

The farce appeared afresh at this period in the field of Roman literature. It was in itself very old:(9) long before Rome arose, the merry youths of Latium may have improvised on festal occasions in the masks once for all established for particular characters. These pastimes obtained a fixed local background in the Latin "asylum of fools," for which they selected the formerly Oscan town of Atella, which was destroyed in the Hannibalic war and was thereby handed over to comic use; thenceforth the name of "Oscan plays" or "plays of Atella" was commonly used for these exhibitions.(10) But these pleasantries had nothing to do with the stage(11) and with literature; they were performed by amateurs where and when they pleased, and the text was not written or at any rate was not published. It was not until the present period that the Atellan piece was handed over to actors properly so called,(12) and was employed, like the Greek satyric drama, as an afterpiece particularly after tragedies; a change which naturally suggested the extension of literary activity to that field. Whether this authorship developed itself altogether independently, or whether possibly the art-farce of Lower Italy, in various respects of kindred character, gave the impulse to this Roman farce,(13) can no longer be determined; that the several pieces were uniformly original works, is certain. The founder of this new species of literature, Lucius Pomponius from the Latin colony of Bononia, appeared in the first half of the seventh century;(14) and along with his pieces those of another poet Novius soon became favourites. So far as the few remains and the reports of the old -litteratores- allow us to form an opinion, they were short farces, ordinarily perhaps of one act, the charm of which depended less on the preposterous and loosely constructed plot than on the drastic portraiture of particular classes and situations. Festal

days and public acts were favourite subjects of comic delineation, such as the "Marriage," the "First of March," "Harlequin Candidate"; so were also foreign nationalities—the Transalpine Gauls, the Syrians; above all, the various trades frequently appear on the boards. The sacristan, the soothsayer, the bird-seer, the physician, the publican, the painter, fisherman, baker, pass across the stage; the public criers were severely assailed and still more the fullers, who seem to have played in the Roman fool-world the part of our tailors. While the varied life of the city thus received its due attention, the farmer with his joys and sorrows was also represented in all aspects. The copiousness of this rural repertory may be guessed from the numerous titles of that nature, such as "the Cow," "the Ass," "the Kid," "the Sow," "the Swine," "the Sick Boar," "the Farmer," "the Countryman," "Harlequin Countryman," "the Cattle-herd," "the Vinedresser," "the Fig-gatherer," "Woodcutting," "Pruning," "the Poultry-yard." In these pieces it was always the standing figures of the stupid and the artful servant, the good old man, the wise man, that delighted the public; the first in particular might never be wanting—the -Pulcinello- of this farce—the gluttonous filthy -Maccus-, hideously ugly and yet eternally in love, always on the point of stumbling across his own path, set upon by all with jeers and with blows and eventually at the close the regular scapegoat. The titles "-Maccus Miles-," "-Maccus Copo-," "-Maccus Virgo-," "-Maccus Exul-," "-Macci Gemini-" may furnish the good-humoured reader with some conception of the variety of entertainment in the Roman masquerade. Although these farces, at least after they came to be written, accommodated themselves to the general laws of literature, and in their metres for instance followed the Greek stage, they yet naturally retained a far more Latin and more popular stamp than even the national comedy. The farce resorted to the Greek world only under the form of travestied tragedy;(15) and this style appears to have been cultivated first by Novius, and not very frequently in any case. The farce of this poet moreover ventured, if not to trespass on Olympus, at least

to touch the most human of the gods, Hercules: he wrote a -Hercules Auctionator-. The tone, as a matter of course, was not the most refined; very unambiguous ambiguities, coarse rustic obscenities, ghosts frightening and occasionally devouring children, formed part of the entertainment, and offensive personalities, even with the mention of names, not unfrequently crept in. But there was no want also of vivid delineation, of grotesque incidents, of telling jokes, and of pithy sayings; and the harlequinade rapidly won for itself no inconsiderable position in the theatrical life of the capital and even in literature.

Dramatic Arrangements

Lastly as regards the development of dramatic arrangements we are not in a position to set forth in detail—what is clear on the whole—that the general interest in dramatic performances was constantly on the increase, and that they became more and more frequent and magnificent. Not only was there hardly any ordinary or extraordinary popular festival that was now celebrated without dramatic exhibitions; even in the country-towns and in private houses representations by companies of hired actors were common. It is true that, while probably various municipal towns already at this time possessed theatres built of stone, the capital was still without one; the building of a theatre, already contracted for, had been again prohibited by the senate in 599 on the suggestion of Publius Scipio Nasica. It was quite in the spirit of the sanctimonious policy of this age, that the building of a permanent theatre was prohibited out of respect for the customs of their ancestors, but nevertheless theatrical entertainments were allowed rapidly to increase, and enormous sums were expended annually in erecting and decorating structures of boards for them. The arrangements of the stage became visibly better. The improved scenic arrangements and the reintroduction of masks about the time of Terence are doubtless connected with the fact, that the erection and maintenance of the stage and stage-

apparatus were charged in 580 on the public chest.(16) The plays which Lucius Mummius produced after the capture of Corinth (609) formed an epoch in the history of the theatre. It was probably then that a theatre acoustically constructed after the Greek fashion and provided with seats was first erected, and more care generally was expended on the exhibitions. (17) Now also there is frequent mention of the bestowal of a prize of victory—which implies the competition of several pieces—of the audience taking a lively part for or against the leading actors, of cliques and -claqueurs-. The decorations and machinery were improved; moveable scenery artfully painted and audible theatrical thunder made their appearance under the aedileship of Gaius Claudius Pulcher in 655;(18) and twenty years later (675) under the aedileship of the brothers Lucius and Marcus Lucullus came the changing of the decorations by shifting the scenes. To the close of this epoch belongs the greatest of Roman actors, the freedman Quintus Roscius (d. about 692 at a great age), throughout several generations the ornament and pride of the Roman stage,(19) the friend and welcome boon-companion of Sulla—to whom we shall have to recur in the sequel.

Satura

In recitative poetry the most surprising circumstance is the insignificance of the Epos, which during the sixth century had occupied decidedly the first place in the literature destined for reading; it had numerous representatives in the seventh, but not a single one who had even temporary success. From the present epoch there is hardly anything to be reported save a number of rude attempts to translate Homer, and some continuations of the Ennian Annals, such as the "Istrian War" of Hostius and the "Annals (perhaps) of the Gallic War" by Aulus Furius (about 650), which to all appearance took up the narrative at the very point where Ennius had broken off—the description of the Istrian war of 576 and 577. In didactic and elegiac poetry

no prominent name appears. The only successes which the recitative poetry of this period has to show, belong to the domain of what was called -Satura—a species of art, which like the letter or the pamphlet allowed of any form and admitted any sort of contents, and accordingly in default of all proper generic characters derived its individual shape wholly from the individuality of each poet, and occupied a position not merely on the boundary between poetry and prose, but even more than half beyond the bounds of literature proper. The humorous poetical epistles, which one of the younger men of the Scipionic circle, Spurius Mummius, the brother of the destroyer of Corinth, sent home from the camp of Corinth to his friends, were still read with pleasure a century afterwards; and numerous poetical pleasantries of that sort not destined for publication probably proceeded at that time from the rich social and intellectual life of the better circles of Rome.

Lucilius

Its representative in literature is Gaius Lucilius (606-651) sprung of a respectable family in the Latin colony of Suessa, and likewise a member of the Scipionic circle. His poems are, as it were, open letters to the public. Their contents, as a clever successor gracefully says, embrace the whole life of a cultivated man of independence, who looks upon the events passing on the political stage from the pit and occasionally from the side-scenes; who converses with the best of his epoch as his equals; who follows literature and science with sympathy and intelligence without wishing personally to pass for a poet or scholar; and who, in fine, makes his pocket-book the confidential receptacle for everything good and bad that he meets with, for his political experiences and expectations, for grammatical remarks and criticisms on art, for incidents of his own life, visits, dinners, journeys, as well as for anecdotes which he has heard. Caustic, capricious, thoroughly individual, the Lucilian poetry has yet the distinct stamp of an oppositional

and, so far, didactic aim in literature as well as in morals and politics; there is in it something of the revolt of the country against the capital; the Suessan's sense of his own purity of speech and honesty of life asserts itself in antagonism to the great Babel of mingled tongues and corrupt morals. The aspiration of the Scipionic circle after literary correctness, especially in point of language, finds critically its most finished and most clever representative in Lucilius. He dedicated his very first book to Lucius Stilo, the founder of Roman philology,(20) and designated as the public for which he wrote not the cultivated circles of pure and classical speech, but the Tarentines, the Bruttians, the Siculi, or in other words the half-Greeks of Italy, whose Latin certainly might well require a corrective. Whole books of his poems are occupied with the settlement of Latin orthography and prosody, with the combating of Praenestine, Sabine, Etruscan provincialisms, with the exposure of current solecisms; along with which, however, the poet by no means forgets to ridicule the insipidly systematic Isocratean purism of words and phrases,(21) and even to reproach his friend Scipio in right earnest jest with the exclusive fineness of his language.(22) But the poet inculcates purity of morals in public and private life far more earnestly than he preaches pure and simple Latinity. For this his position gave him peculiar advantages. Although by descent, estate, and culture on a level with the genteel Romans of his time and possessor of a handsome house in the capital, he was yet not a Roman burgess, but a Latin; even his position towards Scipio, under whom he had served in his early youth during the Numantine war, and in whose house he was a frequent visitor, may be connected with the fact, that Scipio stood in varied relations to the Latins and was their patron in the political feuds of the time.(23) He was thus precluded from a public life, and he disdained the career of a speculator—he had no desire, as he once said, to "cease to be Lucilius in order to become an Asiatic revenue-farmer." So he lived in the sultry age of the Gracchan reforms and the agitations preceding the Social war,

frequenting the palaces and villas of the Roman grandees and yet not exactly their client, at once in the midst of the strife of political coteries and parties and yet not directly taking part with one or another; in a way similar to Beranger, of whom there is much that reminds us in the political and poetical position of Lucilius. From this position he uttered his comments on public life with a sound common sense that was not to be shaken, with a good humour that was inexhaustible, and with a wit perpetually gushing:

-Nunc vero a mane ad noctem, festo atque profesto
Toto itidem pariterque die populusque patresque
Iactare indu foro se omnes, decedere nusquam.
Uni se atque eidem studio omnes dedere et arti;
Verba dare ut caute possint, pugnare dolose,
Blanditia certare, bonum simulare virum se,
Insidias facere ut si hostes sint omnibus omnes-.

The illustrations of this inexhaustible text remorselessly, without omitting his friends or even the poet himself, assailed the evils of the age, the coterie-system, the endless Spanish war-service, and the like; the very commencement of his Satires was a great debate in the senate of the Olympian gods on the question, whether Rome deserved to enjoy the continued protection of the celestials. Corporations, classes, individuals, were everywhere severally mentioned by name; the poetry of political polemics, shut out from the Roman stage, was the true element and life-breath of the Lucilian poems, which by the power of the most pungent wit illustrated with the richest imagery—a power which still entrances us even in the remains that survive—pierce and crush their adversary "as by a drawn sword." In this—in the moral ascendancy and the proud sense of freedom of the poet of Suessa—lies the reason why the refined Venusian, who in the Alexandrian age of Roman poetry revived the Lucilian satire, in spite of all his superiority in formal skill with true modesty yields to the

earlier poet as "his better." The language is that of a man of thorough culture, Greek and Latin, who freely indulges his humour; a poet like Lucilius, who is alleged to have made two hundred hexameters before dinner and as many after it, is in far too great a hurry to be nice; useless prolixity, slovenly repetition of the same turn, culpable instances of carelessness frequently occur: the first word, Latin or Greek, is always the best. The metres are similarly treated, particularly the very predominant hexameter: if we transpose the words—his clever imitator says—no man would observe that he had anything else before him than simple prose; in point of effect they can only be compared to our doggerel verses.(24) The poems of Terence and those of Lucilius stand on the same level of culture, and have the same relation to each other as a carefully prepared and polished literary work has to a letter written on the spur of the moment. But the incomparably higher intellectual gifts and the freer view of life, which mark the knight of Suessa as compared with the African slave, rendered his success as rapid and brilliant as that of Terence had been laborious and doubtful; Lucilius became immediately the favourite of the nation, and he like Beranger could say of his poems that "they alone of all were read by the people." The uncommon popularity of the Lucilian poem is, in a historical point of view, a remarkable event; we see from it that literature was already a power, and beyond doubt we should fall in with various traces of its influence, if a thorough history of this period had been preserved. Posterity has only confirmed the judgment of contemporaries; the Roman judges of art who were opposed to the Alexandrian school assigned to Lucilius the first rank among all the Latin poets. So far as satire can be regarded as a distinct form of art at all, Lucilius created it; and in it created the only species of art which was peculiar to the Romans and was bequeathed by them to posterity.

Of poetry attaching itself to the Alexandrian school nothing occurs in Rome at this epoch except minor poems translated from or modelled on

Alexandrian epigrams, which deserve notice not on their own account, but as the first harbingers of the later epoch of Roman literature. Leaving out of account some poets little known and whose dates cannot be fixed with certainty, there belong to this category Quintus Catulus, consul in 652(25) and Lucius Manlius, an esteemed senator, who wrote in 657. The latter seems to have been the first to circulate among the Romans various geographical tales current among the Greeks, such as the Delian legend of Latona, the fables of Europa and of the marvellous bird Phoenix; as it was likewise reserved for him on his travels to discover at Dodona and to copy that remarkable tripod, on which might be read the oracle imparted to the Pelasgians before their migration into the land of the Siceli and Aborigines—a discovery which the Roman annals did not neglect devoutly to register.

Historical Composition

Polybius

In historical composition this epoch is especially marked by the emergence of an author who did not belong to Italy either by birth or in respect of his intellectual and literary standpoint, but who first or rather alone brought literary appreciation and description to bear on Rome's place in the world, and to whom all subsequent generations, and we too, owe the best part of our knowledge of the Roman development. Polybius (c. 546-c. 627) of Megalopolis in the Peloponnesus, son of the Achaean statesman Lycortas, took part apparently as early as 565 in the expedition of the Romans against the Celts of Asia Minor, and was afterwards on various occasions, especially during the third Macedonian war, employed by his countrymen in military and diplomatic affairs. After the crisis occasioned by that war in Hellas he was carried off along with the other Achaean hostages to Italy,(26) where he lived in exile for seventeen years (587-604) and was introduced by the sons of Paullus to the genteel circles of the capital. By the sending back of the Achaean hostages(27) he was restored to

his home, where he thenceforth acted as permanent mediator between his confederacy and the Romans. He was present at the destruction of Carthage and of Corinth (608). He seemed educated, as it were, by destiny to comprehend the historical position of Rome more clearly than the Romans of that day could themselves. From the place which he occupied, a Greek statesman and a Roman prisoner, esteemed and occasionally envied for his Hellenic culture by Scipio Aemilianus and the first men of Rome generally, he saw the streams, which had so long flowed separately, meet together in the same channel and the history of the states of the Mediterranean resolve itself into the hegemony of Roman power and Greek culture. Thus Polybius became the first Greek of note, who embraced with serious conviction the comprehensive view of the Scipionic circle, and recognized the superiority of Hellenism in the sphere of intellect and of the Roman character in the sphere of politics as facts, regarding which history had given her final decision, and to which people on both sides were entitled and bound to submit. In this spirit he acted as a practical statesman, and wrote his history. If in his youth he had done homage to the honourable but impracticable local patriotism of the Achaeans, during his later years, with a clear discernment of inevitable necessity, he advocated in the community to which he belonged the policy of the closest adherence to Rome. It was a policy in the highest degree judicious and beyond doubt well-intentioned, but it was far from being high-spirited or proud. Nor was Polybius able wholly to disengage himself from the vanity and paltriness of the Hellenic statesmanship of the time. He was hardly released from exile, when he proposed to the senate that it should formally secure to the released their former rank in their several homes; whereupon Cato aptly remarked, that this looked to him as if Ulysses were to return to the cave of Polyphemos to request from the giant his hat and girdle. He often made use of his relations with the great men in Rome to benefit his countrymen; but the way in which he submitted to, and boasted of, the illustrious protection somewhat

approaches fawning servility. His literary activity breathes throughout the same spirit as his practical action. It was the task of his life to write the history of the union of the Mediterranean states under the hegemony of Rome. From the first Punic war down to the destruction of Carthage and Corinth his work embraces the fortunes of all the civilized states—namely Greece, Macedonia, Asia Minor, Syria, Egypt, Carthage, and Italy—and exhibits in causal connection the mode in which they came under the Roman protectorate; in so far he describes it as his object to demonstrate the fitness and reasonableness of the Roman hegemony. In design as in execution, this history stands in clear and distinct contrast with the contemporary Roman as well as with the contemporary Greek historiography. In Rome history still remained wholly at the stage of chronicle; there existed doubtless important historical materials, but what was called historical composition was restricted—with the exception of the very respectable but purely individual writings of Cato, which at any rate did not reach beyond the rudiments of research and narration—partly to nursery tales, partly to collections of notices. The Greeks had certainly exhibited historical research and had written history; but the conceptions of nation and state had been so completely lost amidst the distracted times of the Diadochi, that none of the numerous historians succeeded in following the steps of the great Attic masters in spirit and in truth, or in treating from a general point of view the matter of world-wide interest in the history of the times.

Their histories were either purely outward records, or they were pervaded by the verbiage and sophistries of Attic rhetoric and only too often by the venality and vulgarity, the sycophancy and the bitterness of the age. Among the Romans as among the Greeks there was nothing but histories of cities or of tribes. Polybius, a Peloponnesian, as has been justly remarked, and holding intellectually a position at least as far aloof from the Attics as from the Romans, first stepped beyond these miserable limits, treated the Roman

materials with mature Hellenic criticism, and furnished a history, which was not indeed universal, but which was at any rate dissociated from the mere local states and laid hold of the Romano-Greek state in the course of formation. Never perhaps has any historian united within himself all the advantages of an author drawing from original sources so completely as Polybius. The compass of his task is completely clear and present to him at every moment; and his eye is fixed throughout on the real historical connection of events. The legend, the anecdote, the mass of worthless chronicle-notices are thrown aside; the description of countries and peoples, the representation of political and mercantile relations—all the facts of so infinite importance, which escape the annalist because they do not admit of being nailed to a particular year—are put into possession of their long-suspended rights. In the procuring of historic materials Polybius shows a caution and perseverance such as are not perhaps paralleled in antiquity; he avails himself of documents, gives comprehensive attention to the literature of different nations, makes the most extensive use of his favourable position for collecting the accounts of actors and eye-witnesses, and, in fine, methodically travels over the whole domain of the Mediterranean states and part of the coast of the Atlantic Ocean.(28) Truthfulness is his nature. In all great matters he has no interest for one state or against another, for this man or against that, but is singly and solely interested in the essential connection of events, to present which in their true relation of causes and effects seems to him not merely the first but the sole task of the historian. Lastly, the narrative is a model of completeness, simplicity, and clearness. Still all these uncommon advantages by no means constitute a historian of the first rank. Polybius grasps his literary task, as he grasped his practical, with great understanding, but with the understanding alone. History, the struggle of necessity and liberty, is a moral problem; Polybius treats it as if it were a mechanical one. The whole alone has value for him, in nature as in the state; the particular event, the individual man, however wonderful they may

appear, are yet properly mere single elements, insignificant wheels in the highly artificial mechanism which is named the state. So far Polybius was certainly qualified as no other was to narrate the history of the Roman people, which actually solved the marvellous problem of raising itself to unparalleled internal and external greatness without producing a single statesman of genius in the highest sense, and which resting on its simple foundations developed itself with wonderful almost mathematical consistency. But the element of moral freedom bears sway in the history of every people, and it was not neglected by Polybius in the history of Rome with impunity. His treatment of all questions, in which right, honour, religion are involved, is not merely shallow, but radically false. The same holds true wherever a genetic construction is required; the purely mechanical attempts at explanation, which Polybius substitutes, are sometimes altogether desperate; there is hardly, for instance, a more foolish political speculation than that which derives the excellent constitution of Rome from a judicious mixture of monarchical, aristocratic, and democratic elements, and deduces the successes of Rome from the excellence of her constitution. His conception of relations is everywhere dreadfully jejune and destitute of imagination: his contemptuous and over-wise mode of treating religious matters is altogether offensive. The narrative, preserving throughout an intentional contrast to the usual Greek historiography with its artistic style, is doubtless correct and clear, but flat and languid, digressing with undue frequency into polemical discussions or into biographical, not seldom very self-sufficient, description of his own experiences. A controversial vein pervades the whole work; the author destined his treatise primarily for the Romans, and yet found among them only a very small circle that understood him; he felt that he remained in the eyes of the Romans a foreigner, in the eyes of his countrymen a renegade, and that with his grand conception of his subject he belonged more to the future than to the present. Accordingly he was not exempt from a certain ill-humour and

personal bitterness, which frequently appear after a quarrelsome and paltry fashion in his attacks upon the superficial or even venal Greek and the uncritical Roman historians, so that he degenerates from the tone of the historian to that of the reviewer. Polybius is not an attractive author; but as truth and truthfulness are of more value than all ornament and elegance, no other author of antiquity perhaps can be named to whom we are indebted for so much real instruction. His books are like the sun in the field of Roman history; at the point where they begin the veil of mist which still envelops the Samnite and Pyrrhic wars is raised, and at the point where they end a new and, if possible, still more vexatious twilight begins.

Roman Chroniclers

In singular contrast to this grand conception and treatment of Roman history by a foreigner stands the contemporary historical literature of native growth. At the beginning of this period we still find some chronicles written in Greek such as that already mentioned(29) of Aulus Postumius (consul in 603), full of wretched rationalizing, and that of Gaius Acilius (who closed it at an advanced age about 612). Yet under the influence partly of Catonian patriotism, partly of the more refined culture of the Scipionic circle, the Latin language gained so decided an ascendancy in this field, that of the later historical works not more than one or two occur written in Greek;(30) and not only so, but the older Greek chronicles were translated into Latin and were probably read mainly in these translations. Unhappily beyond the employment of the mother-tongue there is hardly anything else deserving of commendation in the chronicles of this epoch composed in Latin. They were numerous and detailed enough—there are mentioned, for example, those of Lucius Cassius Hemina (about 608), of Lucius Calpurnius Piso (consul in 621), of Gaius Sempronius Tuditanus (consul in 625), of Gaius Fannius (consul in 632). To these falls to be added the digest of the official annals of the city in eighty books, which Publius Mucius Scaevola (consul

in 621), a man esteemed also as a jurist, prepared and published as -pontifex maximus-, thereby closing the city-chronicle in so far as thenceforth the pontifical records, although not exactly discontinued, were no longer at any rate, amidst the increasing diligence of private chroniclers, taken account of in literature. All these annals, whether they gave themselves forth as private or as official works, were substantially similar compilations of the extant historical and quasi-historical materials; and the value of their authorities as well as their formal value declined beyond doubt in the same proportion as their amplitude increased. Chronicle certainly nowhere presents truth without fiction, and it would be very foolish to quarrel with Naevius and Pictor because they have not acted otherwise than Hecataeus and Saxo Grammaticus; but the later attempts to build houses out of such castles in the air put even the most tried patience to a severe test. No blank in tradition presents so wide a chasm, but that this system of smooth and downright invention will fill it up with playful facility. The eclipses of the sun, the numbers of the census, family-registers, triumphs, are without hesitation carried back from the current year up to the year One; it stands duly recorded, in what year, month, and day king Romulus went up to heaven, and how king Servius Tullius triumphed over the Etruscans first on the 25th November 183, and again on the 25th May 187, In entire harmony with such details accordingly the vessel in which Aeneas had voyaged from Ilion to Latium was shown in the Roman docks, and even the identical sow, which had served as a guide to Aeneas, was preserved well pickled in the Roman temple of Vesta. With the lying disposition of a poet these chroniclers of rank combine all the tiresome exactness of a notary, and treat their great subject throughout with the dulness which necessarily results from the elimination at once of all poetical and all historical elements. When we read, for instance, in Piso that Romulus avoided indulging in his cups when he had a sitting of the senate next day; or that Tarpeia betrayed the Capitol to the Sabines out of patriotism, with a view to deprive the

enemy of their shields; we cannot be surprised at the judgment of intelligent contemporaries as to all this sort of scribbling, "that it was not writing history, but telling stories to children." Of far greater excellence were isolated works on the history of the recent past and of the present, particularly the history of the Hannibalic war by Lucius Caelius Antipater (about 633) and the history of his own time by Publius Sempronius Asellio, who was a little younger. These exhibited at least valuable materials and an earnest spirit of truth, in the case of Antipater also a lively, although strongly affected, style of narrative; yet, judging from all testimonies and fragments, none of these books came up either in pithy form or in originality to the "Origines" of Cato, who unhappily created as little of a school in the field of history as in that of politics.

Memoirs and Speeches

The subordinate, more individual and ephemeral, species of historical literature—memoirs, letters, and speeches—were strongly represented also, at least as respects quantity. The first statesmen of Rome already recorded in person their experiences: such as Marcus Scaurus (consul in 639), Publius Rufus (consul in 649), Quintus Catulus (consul in 652), and even the regent Sulla; but none of these productions seem to have been of importance for literature otherwise than by the substance of their contents. The collection of letters of Cornelia, the mother of the Gracchi, was remarkable partly for the classical purity of the language and the high spirit of the writer, partly as the first correspondence published in Rome, and as the first literary production of a Roman lady. The literature of speeches preserved at this period the stamp impressed on it by Cato; advocates' pleadings were not yet looked on as literary productions, and such speeches as were published were political pamphlets. During the revolutionary commotions this pamphlet-literature increased in extent and importance, and among the mass of ephemeral productions there were some which, like the *Philippics* of Demosthenes and the fugitive pieces of *Courier*, acquired a permanent place in literature from the important position of their authors or from their own weight. Such were the political speeches of Gaius Laelius and of Scipio Aemilianus, masterpieces of excellent Latin as of the noblest patriotism; such were the gushing speeches of Gaius Titius, from whose pungent pictures of the place and the time—his description of the senatorial juryman has been given already⁽³¹⁾—the national comedy borrowed various points; such above all were the numerous orations of Gaius Gracchus, whose fiery words preserved in a faithful mirror the impassioned earnestness, the aristocratic bearing, and the tragic destiny of that lofty nature.

Sciences

In scientific literature the collection of juristic opinions by Marcus Brutus, which was published about the year 600, presents a remarkable attempt to transplant to Rome the method usual among the Greeks of handling professional subjects by means of dialogue, and to give to his treatise an artistic semi-dramatic form by a machinery of conversation in which the persons, time, and place were distinctly specified. But the later men of science, such as Stilo the philologist and Scaevola the jurist, laid aside this method, more poetical than practical, both in the sciences of general culture and in the special professional sciences. The increasing value of science as such, and the preponderance of a material interest in it at Rome, are clearly reflected in this rapid rejection of the fetters of artistic form. We have already spoken⁽³²⁾ in detail of the sciences of general liberal culture, grammar or rather philology, rhetoric and philosophy, in so far as these now became essential elements of the usual Roman training and thereby first began to be dissociated from the professional sciences properly so called.

Philology

In the field of letters Latin philology flourished vigorously, in close association with the philological treatment—long ago placed on a sure basis—of Greek literature. It was already mentioned that about the beginning of this century the Latin epic poets found their *-diaskeuastae-* and revisers of their text;⁽³³⁾ it was also noticed, that not only did the Scipionic circle generally insist on correctness above everything else, but several also of the most noted poets, such as Accius and Lucilius, busied themselves with the regulation of orthography and of grammar. At the same period we find isolated attempts to develop archaeology from the historical side; although the dissertations of the unwieldy annalists of this age, such as those of

Hemina "on the Censors" and of Tuditanus "on the Magistrates," can hardly have been better than their chronicles. Of more interest were the treatise on the Magistracies by Marcus Junius the friend of Gaius Gracchus, as the first attempt to make archaeological investigation serviceable for political objects,(34) and the metrically composed -Didascaliae- of the tragedian Accius, an essay towards a literary history of the Latin drama. But those early attempts at a scientific treatment of the mother-tongue still bear very much a dilettante stamp, and strikingly remind us of our orthographic literature in the Bodmer- Klopstock period; and we may likewise without injustice assign but a modest place to the antiquarian researches of this epoch.

Stilo

The Roman, who established the investigation of the Latin language and antiquities in the spirit of the Alexandrian masters on a scientific basis, was Lucius Aelius Stilo about 650.(35) He first went back to the oldest monuments of the language, and commented on the Salian litanies and the Twelve Tables. He devoted his special attention to the comedy of the sixth century, and first formed a list of the pieces of Plautus which in his opinion were genuine. He sought, after the Greek fashion, to determine historically the origin of every single phenomenon in the Roman life and dealings and to ascertain in each case the "inventor," and at the same time brought the whole annalistic tradition within the range of his research. The success, which he had among his contemporaries, is attested by the dedication to him of the most important poetical, and the most important historical, work of his time, the Satires of Lucilius and the Annals of Antipater; and this first Roman philologist influenced the studies of his nation for the future by transmitting his spirit of investigation both into words and into things to his disciple Varro.

Rhetoric

The literary activity in the field of Latin rhetoric was, as might be expected, of a more subordinate kind. There was nothing here to be done but to write manuals and exercise-books after the model of the Greek compendia of Hermagoras and others; and these accordingly the schoolmasters did not fail to supply, partly on account of the need for them, partly on account of vanity and money. Such a manual of rhetoric has been preserved to us, composed under Sulla's dictatorship by an unknown author, who according to the fashion then prevailing⁽³⁶⁾ taught simultaneously Latin literature and Latin rhetoric, and wrote on both; a treatise remarkable not merely for its terse, clear, and firm handling of the subject, but above all for its comparative independence in presence of Greek models. Although in method entirely dependent on the Greeks, the Roman yet distinctly and even abruptly rejects all "the useless matter which the Greeks had gathered together, solely in order that the science might appear more difficult to learn." The bitterest censure is bestowed on the hair-splitting dialectics—that "loquacious science of inability to speak"—whose finished master, for sheer fear of expressing himself ambiguously, at last no longer ventures to pronounce his own name. The Greek school-terminology is throughout and intentionally avoided. Very earnestly the author points out the danger of many teachers, and inculcates the golden rule that the scholar ought above all to be induced by the teacher to help himself; with equal earnestness he recognizes the truth that the school is a secondary, and life the main, matter, and gives in his examples chosen with thorough independence an echo of those forensic speeches which during the last decades had excited notice in the Roman advocate-world. It deserves attention, that the opposition to the extravagances of Hellenism, which had formerly sought to prevent the rise of a native Latin rhetoric,⁽³⁷⁾ continued to influence it after it arose, and thereby secured to Roman eloquence, as compared with the contemporary

eloquence of the Greeks, theoretically and practically a higher dignity and a greater usefulness.

Philosophy

Philosophy, in fine, was not yet represented in literature, since neither did an inward need develop a national Roman philosophy nor did outward circumstances call forth a Latin philosophical authorship. It cannot even be shown with certainty that there were Latin translations of popular summaries of philosophy belonging to this period; those who pursued philosophy read and disputed in Greek.

Professional Sciences

Jurisprudence

In the professional sciences there was but little activity. Well as the Romans understood how to farm and how to calculate, physical and mathematical research gained no hold among them. The consequences of neglecting theory appeared practically in the low state of medical knowledge and of a portion of the military sciences. Of all the professional sciences jurisprudence alone was flourishing. We cannot trace its internal development with chronological accuracy. On the whole ritual law fell more and more into the shade, and at the end of this period stood nearly in the same position as the canon law at the present day. The finer and more profound conception of law, on the other hand, which substitutes for outward criteria the motive springs of action within—such as the development of the ideas of offences arising from intention and from carelessness respectively, and of possession entitled to temporary protection—was not yet in existence at the time of the Twelve Tables, but was so in the age of Cicero, and probably owed its elaboration substantially to the present epoch. The reaction of political relations on the development of law has been already indicated on several occasions; it was not always

advantageous. By the institution of the tribunal of the -Centumviri- to deal with inheritance,(38) for instance, there was introduced in the law of property a college of jurymen, which, like the criminal authorities, instead of simply applying the law placed itself above it and with its so-called equity undermined the legal institutions; one consequence of which among others was the irrational principle, that any one, whom a relative had passed over in his testament, was at liberty to propose that the testament should be annulled by the court, and the court decided according to its discretion.

The development of juristic literature admits of being more distinctly recognized. It had hitherto been restricted to collections of formularies and explanations of terms in the laws; at this period there was first formed a literature of opinions (-responsa-), which answers nearly to our modern collections of precedents. These opinions—which were delivered no longer merely by members of the pontifical college, but by every one who found persons to consult him, at home or in the open market-place, and with which were already associated rational and polemical illustrations and the standing controversies peculiar to jurisprudence—began to be noted down and to be promulgated in collections about the beginning of the seventh century. This was done first by the younger Cato (d. about 600) and by Marcus Brutus (nearly contemporary); and these collections were, as it would appear, arranged in the order of matters.(39) A strictly systematic treatment of the law of the land soon followed. Its founder was the -pontifex maximus- Quintus Mucius Scaevola (consul in 659, d. 672),(40) in whose family jurisprudence was, like the supreme priesthood, hereditary. His eighteen books on the -Ius Civile-, which embraced the positive materials of jurisprudence—legislative enactments, judicial precedents, and authorities—partly from the older collections, partly from oral tradition in as great completeness as possible, formed the starting-point and the model of the detailed systems of Roman law; in like manner his compendious treatise of "Definitions" (—*oroi*—) became the basis of juristic summaries

and particularly of the books of Rules. Although this development of law proceeded of course in the main independently of Hellenism, yet an acquaintance with the philosophico-practical scheme-making of the Greeks beyond doubt gave a general impulse to the more systematic treatment of jurisprudence, as in fact the Greek influence is in the case of the last-mentioned treatise apparent in the very title. We have already remarked that in several more external matters Roman jurisprudence was influenced by the Stoa.(41)

Art exhibits still less pleasing results. In architecture, sculpture, and painting there was, no doubt, a more and more general diffusion of a dilettante interest, but the exercise of native art retrograded rather than advanced. It became more and more customary for those sojourning in Grecian lands personally to inspect the works of art; for which in particular the winter-quarters of Sulla's army in Asia Minor in 670-671 formed an epoch. Connoisseur-ship developed itself also in Italy. They had commenced with articles in silver and bronze; about the commencement of this epoch they began to esteem not merely Greek statues, but also Greek pictures. The first picture publicly exhibited in Rome was the Bacchus of Aristides, which Lucius Mummius withdrew from the sale of the Corinthian spoil, because king Attalus offered as much as 6000 -denarii- (260 pounds) for it. The buildings became more splendid; and in particular transmarine, especially Hymettian, marble (Cipollino) came into use for that purpose—the Italian marble quarries were not yet in operation. A magnificent colonnade still admired in the time of the empire, which Quintus Metellus (consul in 611) the conqueror of Macedonia constructed in the Campus Martius, enclosed the first marble temple which the capital had seen; it was soon followed by similar structures built on the Capitol by Scipio Nasica (consul in 616), and near to the Circus by Gnaeus Octavius (consul in 626). The first private house adorned with marble columns was that of the orator Lucius Crassus (d. 663) on the Palatine.(42) But where they could plunder

or purchase, instead of creating for themselves, they did so; it was a wretched indication of the poverty of Roman architecture, that it already began to employ the columns of the old Greek temples; the Roman Capitol, for instance, was embellished by Sulla with those of the temple of Zeus at Athens. The works, that were produced in Rome, proceeded from the hands of foreigners; the few Roman artists of this period, who are particularly mentioned, are without exception Italian or transmarine Greeks who had migrated thither. Such was the case with the architect Hermodorus from the Cyprian Salamis, who among other works restored the Roman docks and built for Quintus Metellus (consul in 611) the temple of Jupiter Stator in the basilica constructed by him, and for Decimus Brutus (consul in 616) the temple of Mars in the Flaminian circus; with the sculptor Pasiteles (about 665) from Magna Graecia, who furnished images of the gods in ivory for Roman temples; and with the painter and philosopher Metrodorus of Athens, who was summoned to paint the pictures for the triumph of Lucius Paullus (587). It is significant that the coins of this epoch exhibit in comparison with those of the previous period a greater variety of types, but a retrogression rather than an improvement in the cutting of the dies.

Finally, music and dancing passed over in like manner from Hellas to Rome, solely in order to be there applied to the enhancement of decorative luxury. Such foreign arts were certainly not new in Rome; the state had from olden time allowed Etruscan flute-players and dancers to appear at its festivals, and the freedmen and the lowest class of the Roman people had previously followed this trade. But it was a novelty that Greek dances and musical performances should form the regular accompaniment of a genteel banquet. Another novelty was a dancing-school, such as Scipio Aemilianus full of indignation describes in one of his speeches, in which upwards of five hundred boys and girls—the dregs of the people and the children of magistrates and of dignitaries mixed up together—received instruction from a ballet-master in far from decorous castanet-dances, in corresponding

songs, and in the use of the proscribed Greek stringed instruments. It was a novelty too— not so much that a consular and -pontifex maximus- like Publius Scaevola (consul in 621) should catch the balls in the circus as nimbly as he solved the most complicated questions of law at home— as that young Romans of rank should display their jockey-arts before all the people at the festal games of Sulla. The government occasionally attempted to check such practices; as for instance in 639, when all musical instruments, with the exception of the simple flute indigenous in Latium, were prohibited by the censors. But Rome was no Sparta; the lax government by such prohibitions rather drew attention to the evils than attempted to remedy them by a sharp and consistent application of the laws.

If, in conclusion, we glance back at the picture as a whole which the literature and art of Italy unfold to our view from the death of Ennius to the beginning of the Ciceronian age, we find in these respects as compared with the preceding epoch a most decided decline of productiveness. The higher kinds of literature—such as epos, tragedy, history—have died out or have been arrested in their development. The subordinate kinds—the translation and imitation of the intrigue-piece, the farce, the poetical and prose brochure—alone are successful; in this last field of literature swept by the full hurricane of revolution we meet with the two men of greatest literary talent in this epoch, Gaius Gracchus and Gaius Lucilius, who stand out amidst a number of more or less mediocre writers just as in a similar epoch of French literature Courier and Beranger stand out amidst a multitude of pretentious nullities. In the plastic and delineative arts likewise the production, always weak, is now utterly null. On the other hand the receptive enjoyment of art and literature flourished; as the Epigoni of this period in the political field gathered in and used up the inheritance that fell to their fathers, we find them in this field also as diligent frequenters of plays, as patrons of literature, as connoisseurs and still more as collectors in art. The most honourable aspect of this activity was its learned research,

which put forth a native intellectual energy, more especially in jurisprudence and in linguistic and antiquarian investigation. The foundation of these sciences which properly falls within the present epoch, and the first small beginnings of an imitation of the Alexandrian hothouse poetry, already herald the approaching epoch of Roman Alexandrinism. All the productions of the present epoch are smoother, more free from faults, more systematic than the creations of the sixth century. The literati and the friends of literature of this period not altogether unjustly looked down on their predecessors as bungling novices: but while they ridiculed or censured the defective labours of these novices, the very men who were the most gifted among them may have confessed to themselves that the season of the nation's youth was past, and may have ever and anon perhaps felt in the still depths of the heart a secret longing to stray once more in the delightful paths of youthful error.

NOTES FOR VOLUME IV

Chapter I

1. III. VII. The State of Culture in Spain.

2. Italica must have been intended by Scipio to be what was called in Italy *forum et -conciliabulum civium Romanorum*; *Aquae Sextiae* in Gaul had a similar origin afterwards. The formation of transmarine burgess-communities only began at a later date with Carthage and Narbo: yet it is remarkable that Scipio already made a first step, in a certain sense, in that direction.

3. III. VII. Gracchus

4. The chronology of the war with Viriathus is far from being precisely settled. It is certain that the appearance of Viriathus dates from the conflict with Vetilius (Appian, *Hisp.* 61; Liv. *lii.*; Oros. *v.* 4), and that he perished in 615 (Diod. *Vat.* p. 110, etc.); the duration of his rule is reckoned at eight (Appian, *Hisp.* 63), ten (Justin, *xliv.* 2), eleven (Diodorus, p. 597), fifteen (Liv. *liv.*; Eutrop. *iv.* 16; Oros. *v.* 4; Flor. *i.* 33), and twenty years (Vellei. *ii.* 90). The first estimate possesses some probability, because the appearance of Viriathus is connected both in Diodorus (p. 591; *Vat.* p. 107, 108) and in Orosius (*v.* 4) with the destruction of Corinth. Of the Roman governors, with whom Viriathus fought, several undoubtedly belong to the northern

province; for though Viriathus was at work chiefly in the southern, he was not exclusively so (Liv. lii.); consequently we must not calculate the number of the years of his generalship by the number of these names.

5. IV. I. Celtiberian War

6. III. VII. Massinissa

7. III. VI. Peace, III. VII. Carthage

8. The line of the coast has been in the course of centuries so much changed that the former local relations are but imperfectly recognizable on the ancient site. The name of the city is preserved by Cape Cartagena—also called from the saint's tomb found there Ras Sidi bu Said—the eastern headland of the peninsula, projecting into the gulf with its highest point rising to 393 feet above the level of the sea.

9. The dimensions given by Beule (Fouilles a Carthage, 1861) are as follows in metres and in Greek feet (1=0.309 metre):—

Outer wall 2 metres = 6 1/2 feet.

Corridor 1.9 " = 6 "

Front wall of casemates 1 " = 3 1/4 "

Casemate rooms 4.2 " = 14 "

Back wall of casemates 1 " = 3 1/4 "

Whole breadth of the walls 10.1 metres = 33 feet.

Or, as Diodorus (p. 522) states it, 22 cubits (1 Greek cubit = 1 1/2 feet), while Livy (ap. Oros. iv. 22) and Appian (Pun. 95), who seem to have had before them another less accurate passage of Polybius, state the breadth of the walls at 30 feet. The triple wall of Appian—as to which a false idea has

hitherto been diffused by Floras (i. 31)—denotes the outer wall, and the front and back walls of the casemates. That this coincidence is not accidental, and that we have here in reality the remains of the famed walls of Carthage before us, will be evident to every one: the objections of Davis (*Carthage and her Remains*, p. 370 et seq.) only show how little even the utmost zeal can adduce in opposition to the main results of Beule. Only we must maintain that all the ancient authorities give the statements of which we are now speaking with reference not to the citadel-wall, but to the city-wall on the landward side, of which the wall along the south side of the citadel-hill was an integral part (*Oros.* iv. 22). In accordance with this view, the excavations at the citadel-hill on the east, north, and west, have shown no traces of fortifications, whereas on the south side they have brought to light the very remains of this great wall. There is no reason for regarding these as the remains of a separate fortification of the citadel distinct from the city wall; it may be presumed that further excavations at a corresponding depth—the foundation of the city wall discovered at the Byrsa lies fifty-six feet beneath the present surface—will bring to light like, or at any rate analogous, foundations along the whole landward side, although it is probable that at the point where the walled suburb of Magalia rested on the main wall the fortification was either weaker from the first or was early neglected. The length of the wall as a whole cannot be stated with precision; but it must have been very considerable, for three hundred elephants were stabled there, and the stores for their fodder and perhaps other spaces also as well as the gates are to be taken into account. It is easy to conceive how the inner city, within the walls of which the Byrsa was included, should, especially by way of contrast to the suburb of Magalia which had its separate circumvallation, be sometimes itself called Byrsa (*App. Pun.* 117; *Nepos, ap. Serv. Aen.* i. 368).

10. Such is the height given by Appian, l. c.; Diodorus gives the height, probably inclusive of the battlements, at 40 cubits or 60 feet. The remnant

preserved is still from 13 to 16 feet (4-5 metres) high.

11. The rooms of a horse-shoe shape brought to light in excavation have a depth of 14, and a breadth of 11, Greek feet; the width of the entrances is not specified. Whether these dimensions and the proportions of the corridor suffice for our recognizing them as elephants' stalls, remains to be settled by a more accurate investigation. The partition-walls, which separate the apartments, have a thickness of 1.1 metre = 3 1/2 feet.

12. Oros. iv. 22. Fully 2000 paces, or—as Polybius must have said—16 stadia, are=about 3000 metres. The citadel-hill, on which the church of St. Louis now stands, measures at the top about 1400, half-way up about 2600, metres in circumference (Beule, p. 22); for the circumference at the base that estimate will very well suffice.

13. It now bears the fort Goletta.

14. That this Phoenician word signifies a basin excavated in a circular shape, is shown both by Diodorus (iii. 44), and by its being employed by the Greeks to denote a "cup." It thus suits only the inner harbour of Carthage, and in that sense it is used by Strabo (xvii. 2, 14, where it is strictly applied to the admiral's island) and Fest. Ep. v. -cothones-, p. 37. Appian (Pun. 127) is not quite accurate in describing the rectangular harbour in front of the Cothon as part of it.

15. —Oios pepnutai, toi de skiai aissousin—.

16. III. III. Acquisition of Territory in Illyria, III. IX. Macedonia

17. III. X. Macedonia Broken Up

18. This road was known already by the author of the pseudo-Aristotelian treatise *De Mirabilibus* as a commercial route between the

Adriatic and Black seas, viz. As that along which the wine jars from Corcyra met halfway those from Thasos and Lesbos. Even now it runs substantially in the same direction from Durazzo, cutting through the mountains of Bagora (Candavian chain) near the lake of Ochrida (Lychnitis), by way of Monastir to Salonica.

19. III. X. Greek National Party

20. III. IX. The Achaeans

21. III. IX. The Achaeans

22. At Sabine townships, at Parma, and even at Italica in Spain (p. 214), several pediments marked with the name of Mummius have been brought to light, which once supported gifts forming part of the spoil.

23. III. III. Organization of the Provinces

24. III. VIII. Final Regulation of Greece

25. The question whether Greece did or did not become a Roman province in 608, virtually runs into a dispute about words. It is certain that the Greek communities throughout remained "free" (C. I. Gr. 1543, 15; Caesar, B. C. iii. 5; Appian, Mithr. 58; Zonar. ix. 31). But it is no less certain that Greece was then "taken possession of" by the Romans (Tac. Ann. xiv. 21; 1 Maccab. viii. 9, 10); that thenceforth each community paid a fixed tribute to Rome (Pausan. vii. 16, 6; comp. Cic. De Prov. Cons. 3, 5), the little island of Gyarus, for instance, paying 150 —drachmae— annually (Strabo, x. 485); that the "rods and axes" of the Roman governor thenceforth ruled in Greece (Polyb. xxxviii. l. c.; comp. Cic. Verr. l. i. 21, 55), and that he thenceforth exercised the superintendence over the constitutions of the cities (C. I. Gr. 1543), as well as in certain cases the

criminal jurisdiction (C. I. Gr. 1543; Plut. Cim. 2), just as the senate had hitherto done; and that, lastly, the Macedonian provincial era was also in use in Greece. Between these facts there is no inconsistency, or at any rate none further than is involved in the position of the free cities generally, which are spoken of sometimes as if excluded from the province (e. g. Sueton. Cats., 25; Colum. xi. 3, 26), sometimes as assigned to it (e. g. Joseph. Ant. Jud. xiv. 4, 4). The Roman domanial possessions in Greece were, no doubt, restricted to the territory of Corinth and possibly some portions of Euboea (C. I. Gr. 5879), and there were no subjects in the strict sense there at all; yet if we look to the relations practically subsisting between the Greek communities and the Macedonian governor, Greece may be reckoned as included in the province of Macedonia in the same manner as Massilia in the province of Narbo or Dyrrhachium in that of Macedonia. We find even cases that go much further: Cisalpine Gaul consisted after 665 of mere burgess or Latin communities and was yet made a province by Sulla, and in the time of Caesar we meet with regions which consisted exclusively of burgess-communities and yet by no means ceased to be provinces. In these cases the fundamental idea of the Roman -provincia- comes out very clearly; it was primarily nothing but a "command," and all the administrative and judicial functions of the commandant were originally collateral duties and corollaries of his military position.

On the other hand, if we look to the formal sovereignty of the free communities, it must be granted that the position of Greece was not altered in point of constitutional law by the events of 608. It was a difference *de facto* rather than *de jure*, when instead of the Achaean league the individual communities of Achaia now appeared by the side of Rome as tributary protected states, and when, after the erection of Macedonia as a separate Roman province, the latter relieved the authorities of the capital of the superintendence over the Greek client-states. Greece therefore may or may not be regarded as a part of the "command" of Macedonia, according as the

practical or the formal point of view preponderates; but the preponderance is justly conceded to the former.

26. III. X. Intervention in the Syro-Egyptian War

27. A remarkable proof of this is found in the names employed to designate the fine bronze and copper wares of Greece, which in the time of Cicero were called indiscriminately "Corinthian" or "Delian" copper. Their designation in Italy was naturally derived not from the places of manufacture but from those of export (Plin. H. N. xxxiv. 2, 9); although, of course, we do not mean to deny that similar vases were manufactured in Corinth and Delos themselves.

28. III. X. Course Pursued with Pergamus

29. III. IX. Extension of the Kingdom of Pergamus

30. III. X. Course Pursued with Pergamus

31. Several letters recently brought to light (Munchener Sitzungsberichte, 1860, p. 180 et seq.) from the kings Eumenes II, and Attalus II to the priest of Pessinus, who was uniformly called Attis (comp. Polyb. xxii. 20), very clearly illustrate these relations. The earliest of these and the only one with a date, written in the 34th year of the reign of Eumenes on the 7th day before the end of Gorpiaeus, and therefore in 590-1 u. c. offers to the priest military aid in order to wrest from the Pesongi (not otherwise known) temple-land occupied by them. The following, likewise from Eumenes, exhibits the king as a party in the feud between the priest of Pessinus and his brother Aiorix. Beyond doubt both acts of Eumenes were included among those which were reported at Rome in 590 et seq. as attempts on his part to interfere further in Gallic affairs, and to support his partisans in that quarter (Polyb. xxxi. 6, 9; xxxii. 3, 5). On the other hand it is plain from one

of the letters of his successor Attalus that the times had changed and his wishes had lowered their tone. The priest Attis appears to have at a conference at Apamea obtained once more from Attalus the promise of armed assistance; but afterwards the king writes to him that in a state council held for the purpose, at which Athenaeus (certainly the known brother of the king), Sosander, Menogenes, Chlorus, and other relatives (—*anagkaioi*—) had been present, after long hesitation the majority had at length acceded to the opinion of Chlorus that nothing should be done without previously consulting the Romans; for, even if a success were obtained, they would expose themselves to its being lost again, and to the evil suspicion "which they had cherished also against his brother" (Eumenes II.).

32. In the same testament the king gave to his city Pergamus "freedom," that is the —*demokratia*—, urban self-government. According to the tenor of a remarkable document that has recently been found there (*Staatsrecht*, iii(3). p. 726) after the testament was opened, but before its confirmation by the Romans, the *Demos* thus constituted resolved to confer urban burgess-rights on the classes of the population hitherto excluded from them, especially on the *-paroeci-* entered in the census and on the soldiers dwelling in town and country, including the Macedonians, in order thus to bring about a good understanding among the whole population. Evidently the burgesses, in confronting the Romans with this comprehensive reconciliation as an accomplished fact, desired, before the Roman rule was properly introduced, to prepare themselves against it and to take away from the foreign rulers the possibility of using the differences of rights within the population for breaking up its municipal freedom.

33. These strange "Heliopolites" may, according to the probable opinion which a friend has expressed to me, be accounted for by supposing that the liberated slaves constituted themselves citizens of a town Heliopolis—not

otherwise mentioned or perhaps having an existence merely in imagination for the moment—which derived its name from the God of the Sun so highly honoured in Syria.

34. III. IX. Extension of the Kingdom of Pergamus

35. III. IX. Extension of the Kingdom of Pergamus

36. III. IX. Extension of the Kingdom of Pergamus

37. III. X. Intervention in the Syro-Egyptian War

38. III. IX. Armenia

39. From him proceed the coins with the inscription "Shekel Israel," and the date of the "holy Jerusalem," or the "deliverance of Sion." The similar coins with the name of Simon, the prince (Nessi) of Israel, belong not to him, but to Bar-Cochba the leader of the insurgents in the time of Hadrian.

40. III. III. Illyrian Piracy

41. IV. I. New Organization of Spain

42. III. X. Intervention in the Syro-Egyptian War

Chapter II

1. In 537 the law restricting re-election to the consulship was suspended during the continuance of the war in Italy, that is, down to 551 (p. 14; Liv. xxvii. 6). But after the death of Marcellus in 546 re-elections to the consulship, if we do not include the abdicating consuls of 592, only occurred in the years 547, 554, 560, 579, 585, 586, 591, 596, 599, 602;

consequently not oftener in those fifty-six years than, for instance, in the ten years 401-410. Only one of these, and that the very last, took place in violation of the ten years' interval (i. 402); and beyond doubt the singular election of Marcus Marcellus who was consul in 588 and 599 to a third consulship in 602, with the special circumstances of which we are not acquainted, gave occasion to the law prohibiting re-election to the consulship altogether (Liv. Ep. 56); especially as this proposal must have been introduced before 605, seeing that it was supported by Cato (p. 55, Jordan).

2. III. XI. The Nobility in Possession of the Equestrian Centuries

3. III. XI. Festivals

4. IV. I. General Results

5. III. XII. Results

6. I. XIII. Landed Proprietors

7. It was asserted even then, that the human race in that quarter was pre-eminently fitted for slavery by its especial power of endurance. Plautus (Trin. 542) commends the Syrians: -genus quod patientissimum est hominum-.

8. III. XII. Rural Slaves ff., III. XII. Culture of Oil and Wine, and Rearing of Cattle

9. III. XII. Pastoral Husbandry

10. III. I. The Carthaginian Dominion in Africa

11. The hybrid Greek name for the workhouse (-ergastulum-, from —ergaszomai—, after the analogy of -stabulum-, -operculum-) is an indication that this mode of management came to the Romans from a region where the Greek language was used, but at a period when a thorough Hellenic culture was not yet attained.

12. III. VI. Guerilla War in Sicily

13. III. XII. Falling Off in the Population

14. IV. I. War against Aristonicus

15. IV. I. Cilicia

16. Even now there are not unfrequently found in front of Castrogiovanni, at the point where the ascent is least abrupt, Roman projectiles with the name of the consul of 621: L. Piso L. f. cos.

17. II. III. Licinio-Sextian Laws

18. III. I. Capital and Its Power in Carthage

19. II. III. Influence of the Extension of the Roman Dominion in Elevating the Farmer-Class

20. III. XI. Assignations of Land

21. II. II. Public Land

22. III. XII. Falling Off of the Population

23. IV. II. Permanent Criminal Commissions

24. III. XI. Position of the Governors

25. III. IX. Death of Scipio

26. III. XI. Reform of the Centuries

27. III. VII. Gracchus

28. IV. I. War against Aristonicus

29. IV. I. Mancinus

30. II. III. Licinio-Sextian Laws

31. II. III. Its Influence in Legislation

32. IV. I. War against Aristonicus

33. II. III. Attempts at Counter-Revolution

34. This fact, hitherto only partially known from Cicero (De L. Agr. ii. 31. 82; comp. Liv. xlii. 2, 19), is now more fully established by the fragments of Licinianus, p. 4. The two accounts are to be combined to this effect, that Lentulus ejected the possessors in consideration of a compensatory sum fixed by him, but accomplished nothing with real landowners, as he was not entitled to dispossess them and they would not consent to sell.

35. II. II. Agrarian Law of Spurius Cassius

36. III. XI. Rise of A City Rabble

37. III. IX. Nullity of the Comitia

Chapter III

1. IV. I. War against Aristonicus

2. IV. II. Ideas of Reform

3. III. VI. The African Expedition of Scipio

4. To this occasion belongs his oration -*contra legem iudiciariam*- Ti. Gracchi—which we are to understand as referring not, as has been asserted, to a law as to the -*indicia publica*-, but to the supplementary law annexed to his agrarian rogation: -*ut triumviri iudicarent*-, *qua publicus ager, qua privatus esset* (Liv. Ep. lviii.; see IV. II. Tribunate of Gracchus above).

5. IV. II. Vote by Ballot

6. The restriction, that the continuance should only be allowable if there was a want of other qualified candidates (Appian, B. C. i. 21), was not difficult of evasion. The law itself seems not to have belonged to the older regulations (Staatsrecht, i. 473), but to have been introduced for the first time by the Gracchans.

7. Such are the words spoken on the announcement of his projects of law:—"If I were to speak to you and ask of you—seeing that I am of noble descent and have lost my brother on your account, and that there is now no survivor of the descendants of Publius Africanus and Tiberius Gracchus excepting only myself and a boy—to allow me to take rest for the present, in order that our stock may not be extirpated and that an offset of this family may still survive; you would perhaps readily grant me such a request."

8. IV. III. Democratic Agitation under Carbo and Flaccus

9. III. XII. Results. Competition of Transmarine Corn

10. III. XII. Prices of Italian Corn

11. III. XI. Reform of the Centuries

12. IV. III. The Commission for Distributing the Domains

13. III. VII. The Romans Maintain A Standing Army in Spain

14. Thus the statement of Appian (Hisp. 78) that six years' service entitled a man to demand his discharge, may perhaps be reconciled with the better known statement of Polybius (vi. 19), respecting which Marquardt (Handbuch, vi. 381) has formed a correct judgment. The time, at which the two alterations were introduced, cannot be determined further, than that the first was probably in existence as early as 603 (Nitzsch, Gracchen, p. 231), and the second certainly as early as the time of Polybius. That Gracchus reduced the number of the legal years of service, seems to follow from Asconius in Cornel, p. 68; comp. Plutarch, Ti. Gracch. 16; Dio, Fr. 83, 7, Bekk.

15. II. I. Right of Appeal; II. VIII. Changes in Procedure

16. III. XII. Moneyed Aristocracy

17. IV. II. Exclusion of the Senators from the Equestrian Centuries

18. III. XI. The Censorship A Prop of the Nobility

19. III. XI. Patricio-Plebeian Nobility, III. XI. Family Government

20. IV. I. Western Asia

21. That he, and not Tiberius, was the author of this law, now appears from Fronto in the letters to Verus, *init. Comp. Gracchus ap. Gell. xi. 10; Cic. de. Rep. iii. 29, and Verr. iii. 6, 12; Vellei. ii. 6.*

22. IV. III. Modifications of the Penal Law

23. We still possess a great portion of the new judicial ordinance—primarily occasioned by this alteration in the personnel of the judges—for the standing commission regarding extortion; it is known under the name of the Servilian, or rather Acilian, law *-de repetundis-*.

24. This and the law *-ne quis iudicio circumveniat-* may have been identical.

25. A considerable fragment of a speech of Gracchus, still extant, relates to this trafficking about the possession of Phrygia, which after the annexation of the kingdom of Attalus was offered for sale by Manius Aquillius to the kings of Bithynia and of Pontus, and was bought by the latter as the highest bidder.(p. 280) In this speech he observes that no senator troubled himself about public affairs for nothing, and adds that with reference to the law under discussion (as to the bestowal of Phrygia on king Mithradates) the senate was divisible into three classes, viz. Those who were in favour of it, those who were against it, and those who were silent: that the first were bribed by king Mithradates, the second by king Nicomedes, while the third were the most cunning, for they accepted money from the envoys of both kings and made each party believe that they were silent in its interest.

26. IV. III. Democratic Agitation under Carbo and Flaccus

27. IV. II. Tribune of Gracchus

28. II. II. Legislation

29. II. III. Political Abolition of the Patriciate

Chapter IV

1. IV. III. Democratic Agitation under Carbo and Flaccus

2. IV. II. Tribune of Gracchus

3. It is in great part still extant and known under the erroneous name, which has now been handed down for three hundred years, of the Thorian agrarian law.

4. II. VII. Attempts at Peace

5. II. VII. Attempts at Peace

6. This is apparent, as is well known, from the further course of events. In opposition to this view stress has been laid on the fact that in Valerius Maximus, vi. 9, 13, Quintus Caepio is called patron of the senate; but on the one hand this does not prove enough, and on the other hand what is there narrated does not at all suit the consul of 648, so that there must be an error either in the name or in the facts reported.

7. It is assumed in many quarters that the establishment of the province of Cilicia only took place after the Cilician expedition of Publius Servilius in 676 et seq., but erroneously; for as early as 662 we find Sulla (Appian, Mithr. 57; B. C. i. 77; Victor, 75), and in 674, 675, Gnaeus Dolabella (Cic. Verr. i. 1, 16, 44) as governors of Cilicia—which leaves no alternative but to place the establishment of the province in 652. This view is further

supported by the fact that at this time the expeditions of the Romans against the corsairs—e. g. the Balearic, Ligurian, and Dalmatian expeditions—appear to have been regularly directed to the occupation of the points of the coast whence piracy issued; and this was natural, for, as the Romans had no standing fleet, the only means of effectually checking piracy was the occupation of the coasts. It is to be remembered, moreover, that the idea of a -provincia- did not absolutely involve possession of the country, but in itself implied no more than an independent military command; it is very possible, that the Romans in the first instance occupied nothing in this rugged country save stations for their vessels and troops.

The plain of eastern Cilicia remained down to the war against Tigranes attached to the Syrian empire (Appian, Syr. 48); the districts to the north of the Taurus formerly reckoned as belonging to Cilicia— Cappadocian Cilicia, as it was called, and Cataonia—belonged to Cappadocia, the former from the time of the breaking up of the kingdom of Attalus (Justin, xxxvii. 1; see above, IV. I. War against Aristonicus), the latter probably even from the time of the peace with Antiochus.

8. IV. II. Insurrections of the Slaves				
9. III. VII. Numidians				
10. IV. I The Siege				
11. The following table exhibits the genealogy of the Numidian princes:				
—				
Massinissa	516-605		(238-149)	
————— Micipsa				
Gulussa Mastanabal	d. 636	d. bef. 636	d. bef. 636	(118) (118) (118)
—————				

Adherbal Hiempsal I Micipsa Massiva Gauda Jugurtha d. 642 d. c. 637
(Diod. d. 643 d.bef. 666 d. 650 (112) (117) p. 607) (111) (88) (104)
————— ———— Hiempsal II Oxyntas ———— Juba I ———— Juba II

12. In the exciting and clever description of this war by Sallust the chronology has been unduly neglected. The war terminated in the summer of 649 (c. 114); if therefore Marius began his management of the war as consul in 647, he held the command there in three campaigns. But the narrative describes only two, and rightly so. For, just as Metellus to all appearance went to Africa as early as 645, but, since he arrived late (c. 37, 44), and the reorganization of the army cost time (c. 44), only began his operations in the following year, in like manner Marius, who was likewise detained for a considerable time in Italy by his military preparations (c. 84), entered on the chief command either as consul in 647 late in the season and after the close of the campaign, or only as proconsul in 648; so that the two campaigns of Metellus thus fall in 646, 647, and those of Marius in 648, 649. It is in keeping with this that Metellus did not triumph till the year 648 (Eph. epigr. iv. p. 277). With this view the circumstance also very well accords, that the battle on the Muthul and the siege of Zama must, from the relation in which they stand to Marius' candidature for the consulship, be necessarily placed in 646. In no case can the author be pronounced free from inaccuracies; Marius, for instance, is even spoken of by him as consul in 649.

The prolongation of the command of Metellus, which Sallust reports (lxii. 10), can in accordance with the place at which it stands only refer to the year 647; when in the summer of 646 on the footing of the Sempronian law the provinces of the consuls to be elected for 647 were to be fixed, the senate destined two other provinces and thus left Numidia to Metellus. This resolve of the senate was overturned by the plebiscitum mentioned at lxxii. 7. The following words which are transmitted to us defectively in the best

manuscripts of both families, -sed paulo... decreverat; ea res frustra fuit,- must either have named the provinces destined for the consuls by the senate, possibly -sed paulo [ante ut consulibus Italia et Gallia provinciae essent senatus] decreverat- or have run according to the way of filling up the passage in the ordinary manuscripts; -sed paulo [ante senatus Metello Numidiam] decreverat-.

13. Now Beja on the Mejerdah.

14. The locality has not been discovered. The earlier supposition that Thelepte (near Feriana, to the northward of Capsa) was meant, is arbitrary; and the identification with a locality still at the present day named Thala to the east of Capsa is not duly made out.

15. Sallust's political genre-painting of the Jugurthine war—the only picture that has preserved its colours fresh in the otherwise utterly faded and blanched tradition of this epoch—closes with the fall of Jugurtha, faithful to its style of composition, poetical, not historical; nor does there elsewhere exist any connected account of the treatment of the Numidian kingdom. That Gauda became Jugurtha's successor is indicated by Sallust, c. 65 and Dio. Fr. 79, 4, Bekk., and confirmed by an inscription of Carthagera (Orell. 630), which calls him king and father of Hiempsal II. That on the east the frontier relations subsisting between Numidia on the one hand and Roman Africa and Cyrene on the other remained unchanged, is shown by Caesar (B. C. ii. 38; B. Afr. 43, 77) and by the later provincial constitution. On the other hand the nature of the case implied, and Sallust (c. 97, 102, 111) indicates, that the kingdom of Bocchus was considerably enlarged; with which is undoubtedly connected the fact, that Mauretania, originally restricted to the region of Tingis (Morocco), afterwards extended to the region of Caesarea (province of Algiers) and to that of Sitifis (western half of the province of Constantine). As Mauretania was twice enlarged by

the Romans, first in 649 after the surrender of Jugurtha, and then in 708 after the breaking up of the Numidian kingdom, it is probable that the region of Caesarea was added on the first, and that of Sitifis on the second augmentation.

16. III. VIII. Interference of the Community with the Finances

Chapter V

1. If Cicero has not allowed himself to fall into an anachronism when he makes Africanus say this as early as 625 (*de Rep.* iii. 9), the view indicated in the text remains perhaps the only possible one. This enactment did not refer to Northern Italy and Liguria, as the cultivation of the vine by the Genuates in 637 (III. XII. Culture Of Oil and Wine, and Rearing of Cattle, note) proves; and as little to the immediate territory of Massilia (*Just.* xliii 4; *Posidon. Fr.* 25, *Mull.*; *Strabo*, iv. 179). The large export of wine and oil from Italy to the region of the Rhone in the seventh century of the city is well known.

2. In Auvergne. Their capital, Nemetum or Nemossus, lay not far from Clermont.

3. The battle at Vindalium is placed by the epitomator of Livy and by Orosius before that on the Isara; but the reverse order is supported by Floras and Strabo (iv. 191), and is confirmed partly by the circumstance that Maximus, according to the epitome of Livy and Pliny, *H. N.* vii. 50, conquered the Gauls when consul, partly and especially by the Capitoline Fasti, according to which Maximus not only triumphed before Ahenobarbus, but the former triumphed over the Allobroges and the king of the Arverni, the latter only over the Arverni. It is clear that the battle with

the Allobroges and Arverni must have taken place earlier than that with the Arverni alone.

4. Aquae was not a colony, as Livy says (Ep. 61), but a -castellum- (Strabo, iv. 180; Velleius, i. 15; Madvig, Opusc. i. 303). The same holds true of Italica (p. 214), and of many other places—Vindonissa, for instance, never was in law anything else than a Celtic village, but was withal a fortified Roman camp, and a township of very considerable importance.

5. III. VII. Measures Adopted to Check the Immigrations of the Transalpine Gauls

6. III. III. Expedition against Scodra

7. III. III. Impression in Greece and Macedonia

8. III. X. Humiliation of the Greeks in General

9. IV. I. Province of Macedonia. the Pirustae in the valleys of the Drin belonged to the province of Macedonia, but made forays into the neighbouring Illyricum (Caesar, B. G. v. 1).

10. II. IV. the Celts Assail the Etruscans in Northern Italy

11. "The Helvetii dwelt," Tacitus says (Germ. 28), "between the Hercynian Forest (i. e. here probably the Rauhe Alp), the Rhine, and the Main; the Boii farther on." Posidonius also (ap. Strab. vii. 293) states that the Boii, at the time when they repulsed the Cimbri, inhabited the Hercynian Forest, i. e. the mountains from the Rauhe Alp to the Bohmerwald The circumstance that Caesar transplants them "beyond the Rhine" (B. G. i. 5) is by no means inconsistent with this, for, as he there speaks from the Helvetian point of view, he may very well mean the country to the north-east of the lake of Constance; which quite accords with

the fact, that Strabo (vii. 292) describes the former Boian country as bordering on the lake of Constance, except that he is not quite accurate in naming along with them the Vindelici as dwelling by the lake of Constance, for the latter only established themselves there after the Boii had evacuated these districts. From these seats of theirs the Boii were dispossessed by the Marcomani and other Germanic tribes even before the time of Posidonius, consequently before 650; detached portions of them in Caesar's time roamed about in Carinthia (B. G. i. 5), and came thence to the Helvetii and into western Gaul; another swarm found new settlements on the Plattensee, where it was annihilated by the Getae; but the district—the "Boian desert," as it was called—preserved the name of this the most harassed of all the Celtic peoples (III. VII. Colonizing of The Region South of The Po, note).

12. They are called in the Triumphal Fasti -Galli Karni-; and in Victor -Ligures Taurisci- (for such should be the reading instead of the received -Ligures et Caurisci-).

13. The quaestor of Macedonia M. Annius P. f., to whom the town of Lete (Aivati four leagues to the north-west of Thessalonica) erected in the year 29 of the province and 636 of the city this memorial stone (Dittenberger, Syll. 247), is not otherwise known; the praetor Sex. Pompeius whose fall is mentioned in it can be no other than the grandfather of the Pompeius with whom Caesar fought and the brother-in-law of the poet Lucilius. The enemy are designated as —Galaton ethnos—. It is brought into prominence that Annius in order to spare the provincials omitted to call out their contingents and repelled the barbarians with the Roman troops alone. To all appearance Macedonia even at that time required a de facto standing Roman garrison.

14. If Quintus Fabius Maximus Eburnus consul in 638 went to Macedonia (C. I. Gr. 1534; Zumpt, Comm. Epigr. ii. 167), he too must have

suffered a misfortune there, since Cicero, in *Pison.* 16, 38, says: -ex (Macedonia) aliquot praetorio imperio, consulari quidem nemo rediit, qui incolumis fuerit, quin triumpharit-; for the triumphal list, which is complete for this epoch, knows only the three Macedonian triumphs of Metellus in 643, of Drusus in 644, and of Minucius in 648.

15. As, according to Frontinus (*ii.* 43), Velleius and Eutropius, the tribe conquered by Minucius was the Scordisci, it can only be through an error on the part of Florus that he mentions the Hebrus (the Maritza) instead of the Margus (Morava).

16. This annihilation of the Scordisci, while the Maedi and Dardani were admitted to treaty, is reported by Appian (*Illyr.* 5), and in fact thence forth the Scordisci disappear from this region. If the final subjugation took place in the 32nd year —apo teis proteis es Keltous peiras—, it would seem that this must be understood of a thirty-two years' war between the Romans and the Scordisci, the commencement of which presumably falls not long after the constituting of the province of Macedonia (608) and of which the incidents in arms above recorded, 636-647, are a part. It is obvious from Appian's narrative that the conquest ensued shortly before the outbreak of the Italian civil wars, and so probably at the latest in 663. It falls between 650 and 656, if a triumph followed it, for the triumphal list before and after is complete; it is possible however that for some reason there was no triumph. The victor is not further known; perhaps it was no other than the consul of the year 671; since the latter may well have been late in attaining the consulate in consequence of the Cinna-Marian troubles.

17. The account that large tracts on the coasts of the North Sea had been torn away by inundations, and that this had occasioned the migration of the Cimbri in a body (*Strabo*, vii. 293), does not indeed appear to us fabulous,

as it seemed to those who recorded it; but whether it was based on tradition or on conjecture, cannot be decided.

18. III. VII. Measures Adopted to Check the Immigrations of the Transalpine Gauls

19. IV. III. Modifications of the Penal Law

20. The usual hypothesis, that the Tougeni and Tigorini had advanced at the same time with the Cimbri into Gaul, cannot be supported by Strabo (vii. 293), and is little in harmony with the separate part acted by the Helvetii. Our traditional accounts of this war are, besides, so fragmentary that, just as in the case of the Samnite wars, a connected historical narration can only lay claim to approximate accuracy.

21. To this, beyond doubt, the fragment of Diodorus (Vat. p. 122) relates.

22. IV. IV. The Proletariate and Equestrian Order under the Restoration

23. The deposition from office of the proconsul Caepio, with which was combined the confiscation of his property (Liv. Ep. 67), was probably pronounced by the assembly of the people immediately after the battle of Arausio (6th October 649). That some time elapsed between the deposition and his proper downfall, is clearly shown by the proposal made in 650, and aimed at Caepio, that deposition from office should involve the forfeiture of a seat in the senate (Asconius in Cornel, p. 78). The fragments of Licinianus (p. 10; -Cn. Manilius ob eandem causam quam et Caepio L. Saturnini rogatione e civitate est cito [?] eiectus-; which clears up the allusion in Cic. de Or. ii. 28, 125) now inform us that a law proposed by Lucius Appuleius Saturninus brought about this catastrophe. This is evidently no other than the Appuleian law as to the -minuta maiestas- of the Roman state (Cic. de Or. ii. 25, 107; 49, 201), or, as its tenor was already formerly explained (ii.

p. 143 of the first edition [of the German]), the proposal of Saturninus for the appointment of an extraordinary commission to investigate the treasons that had taken place during the Cimbrian troubles. The commission of inquiry as to the gold of Tolosa (Cic. de N. D. iii. 30, 74) arose in quite a similar way out of the Appuleian law, as the special courts of inquiry—further mentioned in that passage—as to a scandalous bribery of judges out of the Mucian law of 613, as to the occurrences with the Vestals out of the Peducaean law of 641, and as to the Jugurthine war out of the Mamilian law of 644. A comparison of these cases also shows that in such special commissions—different in this respect from the ordinary ones—even punishments affecting life and limb might be and were inflicted. If elsewhere the tribune of the people, Gaius Norbanus, is named as the person who set agoing the proceedings against Caepio and was afterwards brought to trial for doing so (Cic. de Or. ii. 40, 167; 48, 199; 49, 200; Or. Part. 30, 105, et al.), this is not inconsistent with the view given above; for the proposal proceeded as usual from several tribunes of the people (ad Herenn. i. 14, 24; Cic. de Or. ii. 47, 197), and, as Saturninus was already dead when the aristocratic party was in a position to think of retaliation, they fastened on his colleague. As to the period of this second and final condemnation of Caepio, the usual very inconsiderate hypothesis, which places it in 659, ten years after the battle of Arausio, has been already rejected. It rests simply on the fact that Crassus when consul, consequently in 659, spoke in favour of Caepio (Cic. Brut. 44, 162); which, however, he manifestly did not as his advocate, but on the occasion when Norbanus was brought to account by Publius Sulpicius Rufus for his conduct toward Caepio in 659. Formerly the year 650 was assumed for this second accusation; now that we know that it originated from a proposal of Saturninus, we can only hesitate between 651, when he was tribune of the people for the first time (Plutarch, Mar. 14; Oros, v. 17; App. i. 28; Diodor. p. 608, 631), and 654, when he held that office a second time. There are not

materials for deciding the point with entire certainty, but the great preponderance of probability is in favour of the former year; partly because it was nearer to the disastrous events in Gaul, partly because in the tolerably full accounts of the second tribunate of Saturninus there is no mention of Quintus Caepio the father and the acts of violence directed against him. The circumstance, that the sums paid back to the treasury in consequence of the verdicts as to the embezzlement of the Tolosan booty were claimed by Saturninus in his second tribunate for his schemes of colonization (*De Viris Ill.* 73, 5, and thereon Orelli, *Ind. Legg.* p. 137), is not in itself decisive, and may, moreover, have been easily transferred by mistake from the first African to the second general agrarian law of Saturninus.

The fact that afterwards, when Norbanus was impeached, his impeachment proceeded on the very ground of the law which he had taken part in suggesting, was an ironical incident common in the Roman political procedure of this period (*Cic. Brut.* 89, 305) and should not mislead us into the belief that the Appuleian law was, like the later Cornelian, a general law of high treason.

24. The view here presented rests in the main on the comparatively trustworthy account in the Epitome of Livy (where we should read *-reversi in Gallium in Vellocassis se Teutonis coniunxerunt*) and in *Obsequens*; to the disregard of authorities of lesser weight, which make the Teutones appear by the side of the Cimbri at an earlier date, some of them, such as Appian, *Celt.* 13, even as early as the battle of Noreia. With these we connect the notices in Caesar (*B. G.* i. 33; ii. 4, 29); as the invasion of the Roman province and of Italy by the Cimbri can only mean the expedition of 652.

25. It is injudicious to deviate from the traditional account and to transfer the field of battle to Verona: in so doing the fact is overlooked that a whole

winter and various movements of troops intervened between the conflicts on the Adige and the decisive engagement, and that Catulus, according to express statement (Plut. Mar. 24), had retreated as far as the right bank of the Po. The statements that the Cimbri were defeated on the Po (Hier. Chron.), and that they were defeated where Stilicho afterwards defeated the Getae, i. e. at Cherasco on the Tanaro, although both inaccurate, point at least to Vercellae much rather than to Verona.

Chapter VI

1. IV. IV. The Domain Question under the Restoration

2. I. VI. The Servian Constitution, II. III. Its Composition

3. III. XI. Reforms in the Military Service

4. III. XI. The Nobility in Possession of the Equestrian Centuries

5. IV. IV. Treaty between Rome and Numidia

6. IV. V. Warfare of Prosecutions

7. It is not possible to distinguish exactly what belongs to the first and what to the second tribunate of Saturninus; the more especially, as in both he evidently followed out the same Gracchan tendencies. The African agrarian law is definitely placed by the treatise *De Viris Ill.* 73, 1 in 651; and this date accords with the termination, which had taken place just shortly before, of the Jugurthine war. The second agrarian law belongs beyond doubt to 654. The treason-law and the corn-law have been only conjecturally placed, the former in 651 (p. 442 note), the latter in 654.

8. All indications point to this conclusion. The elder Quintus Caepio was consul in 648, the younger quaestor in 651 or 654, the former consequently was born about or before 605, the latter about 624 or 627. The fact that the former died without leaving sons (Strabo, iv. 188) is not inconsistent with this view, for the younger Caepio fell in 664, and the elder, who ended his life in exile at Smyrna, may very well have survived him.

9. IV. IV. Treaty between Rome and Numidia

10. IV. V. Warfare of Prosecutions

11. IV. IV. Rival Demagogism of the Senate. The Livian Laws

12. IV. V. And Reach the Danube

13. IV. IV. Administration under the Restoration

14. IV. VI. Collision between the Senate and Equites in the Administration of the Provinces

Chapter VII

1. IV. III. Modifications of the Penal Law

2. I. VII. Relation of Rome to Latium, II. V. As to the Officering of the Army

3. II. VII. Furnishing of Contingents; III. XI. Latins

4. III. XI. Roman Franchise More Difficult of Acquisition

5. III. XI. Roman Franchise More Difficult of Acquisition

6. IV. III. Democratic Agitation under Carbo and Flaccus, IV. III.
Overthrow of Gracchus

7. These figures are taken from the numbers of the census of 639 and 684; there were in the former year 394, 336 burgesses capable of bearing arms, in the latter 910,000 (according to Phlegon Fr. 12 Mull., which statement Clinton and his copyists erroneously refer to the census of 668; according to Liv. Ep. 98 the number was—by the correct reading— 900,000 persons). The only figures known between these two—those of the census of 668, which according to Hieronymus gave 463,000 persons— probably turned out so low only because the census took place amidst the crisis of the revolution. As an increase of the population of Italy is not conceivable in the period from 639 to 684, and even the Sullan assignments of land can at the most have but filled the gaps which the war had made, the surplus of fully 500,000 men capable of bearing arms may be referred with certainty to the reception of the allies which had taken place in the interval. But it is possible, and even probable, that in these fateful years the total amount of the Italian population may have retrograded rather than advanced: if we reckon the total deficit at 100,000 men capable of bearing arms, which seems not excessive, there were at the time of the Social War in Italy three non- burgesses for two burgesses.

8. The form of oath is preserved (in Diodor. Vat. p. 116); it runs thus: "I swear by the Capitoline Jupiter and by the Roman Vesta and by the hereditary Mars and by the generative Sun and by the nourishing Earth and by the divine founders and enlargers (the Penates) of the City of Rome, that he shall be my friend and he shall be my foe who is friend or foe to Drusus; also that I will spare neither mine own life nor the life of my children or of my parents, except in so far as it is for the good of Drusus and those who share this oath. But if I should become a burgess by the law of Drusus, I will esteem Rome as my home and Drusus as the greatest of my

benefactors. I shall tender this oath to as many of my fellow-citizens as I can; and if I swear truly, may it fare with me well; if I swear falsely, may it fare with me ill." But we shall do well to employ this account with caution; it is derived either from the speeches delivered against Drusus by Philippus (which seems to be indicated by the absurd title "oath of Philippus" prefixed by the extractor of the formula) or at best from the documents of criminal procedure subsequently drawn up respecting this conspiracy in Rome; and even on the latter hypothesis it remains questionable, whether this form of oath was elicited from the accused or imputed to them in the inquiry.

9. II. VII. Dissolution of National Leagues

10. IV. VI. Discussions on the Livian Laws

11. IV. IV. Dissatisfaction in the Capital, IV. V. Warfare of Prosecutions

12. Even from our scanty information, the best part of which is given by Diodorus, p. 538 and Strabo, v. 4, 2, this is very distinctly apparent; for example, the latter expressly says that the burgess-body chose the magistrates. That the senate of Italia was meant to be formed in another manner and to have different powers from that of Rome, has been asserted, but has not been proved. Of course in its first composition care would be taken to have a representation in some degree uniform of the insurgent cities; but that the senators were to be regularly deputed by the communities, is nowhere stated. As little does the commission given to the senate to draw up a constitution exclude its promulgation by the magistrates and ratification by the assembly of the people.

13. The bullets found at Asculum show that the Gauls were very numerous also in the army of Strabo.

14. We still have a decree of the Roman senate of 22 May 676, which grants honours and advantages on their discharge to three Greek ship-captains of Carystus, Clazomenae, and Miletus for faithful services rendered since the commencement of the Italian war (664). Of the same nature is the account of Memnon, that two triremes were summoned from Heraclea on the Black Sea for the Italian war, and that they returned in the eleventh year with rich honorary gifts.

15. That this statement of Appian is not exaggerated, is shown by the bullets found at Asculum which name among others the fifteenth legion.

16. The Julian law must have been passed in the last months of 664, for during the good season of the year Caesar was in the field; the Plautian was probably passed, as was ordinarily the rule with tribunician proposals, immediately after the tribunes entered on office, consequently in Dec. 664 or Jan. 665.

17. Lead bullets with the name of the legion which threw them, and sometimes with curses against the "runaway slaves"—and accordingly Roman—or with the inscription "hit the Picentes" or "hit Pompeius"—the former Roman, the latter Italian—are even now sometimes found, belonging to that period, in the region of Ascoli.

18. The rare -denarii- with -Safinim- and -G. Mutil- in Oscan characters must belong to this period; for, as long as the designation -Italia- was retained by the insurgents, no single canton could, as a sovereign power, coin money with its own name.

19. I. VII. Servian Wall

20. Licinianus (p. 15) under the year 667 says: -dediticiis omnibus [ci]vita[s] data; qui polliciti mult[a] milia militum vix XV... cohortes

miserunt-; a statement in which Livy's account (Epit. 80): -Italicis populis a senatu civitas data est- reappears in a somewhat more precise shape. The -dediticii- were according to Roman state-law those -peregrini liberi- (Gaius i. 13-15, 25, Ulp. xx. 14, xxii. 2) who had become subject to the Romans and had not been admitted to alliance. They not merely retain life, liberty, and property, but may be formed into communities with a constitution of their own. —Apolides—, -nullius certae civitatis cives- (Ulp. xx. 14; comp. Dig. xlviii. 19, 17, i), were only the freedmen placed by legal fiction on the same footing with the -dediticii qui dediticiorum numero sunt-, only by erroneous usage and rarely by the better authors called directly -dediticii-; (Gai. i. 12, Ulp. i. 14, Paul. iv. 12, 6) as well as the kindred -liberti Latini Iuniani-. But the -dediticii- nevertheless were destitute of rights as respected the Roman state, in so far as by Roman state-law every -deditio- was necessarily unconditional (Polyb, xxi. 1; comp. xx. 9, 10, xxxvi. 2) and all the privileges expressly or tacitly conceded to them were conceded only -precario- and therefore revocable at pleasure (Appian, Hisp. 44); so that the Roman state, what ever it might immediately or afterwards decree regarding its -dediticii-, could never perpetrate as respected them a violation of rights. This destitution of rights only ceased on the conclusion of a treaty of alliance (Liv. xxxiv. 57). Accordingly -deditio- and -foedus- appear in constitutional law as contrasted terms excluding each other (Liv. iv. 30, xxviii. 34; Cod. Theod. vii. 13, 16 and Gothofr. thereon), and of precisely the same nature is the distinction current among the jurists between the -quasi- dediticii- and the -quasi Latini-, for the Latins are just the -foederati- in an eminent sense (Cic. pro Balb. 24, 54).

According to the older constitutional law there were, with the exception of the not numerous communities that were declared to have forfeited their treaties in consequence of the Hannibalic war (p. 24), no Italian -dediticii-; in the Plautian law of 664-5 the description: -qui foederatis civitatibus adscripti fuerunt- (Cic. pro Arch. 4, 7) still included in substance all

Italians. But as the -dediticii- who received the franchise supplementary in 667 cannot reasonably be understood as embracing merely the Bruttii and Picentes, we may assume that all the insurgents, so far as they had laid down their arms and had not acquired the franchise under the Plautio-Papirian law were treated as -dediticii-, or—which is the same thing— that their treaties cancelled as a matter of course by the insurrection (hence -qui foederati fuerunt- in the passage of Cicero cited) were not legally renewed to them on their surrender.

21. II. III. Laws Imposing Taxes

22. IV. VI. The Equestrian Party

23. II. XI. Squandering of the Spoil

24. It is not clear, what the -lex unciaria- of the consuls Sulla and Rufus in the year 666 prescribed in this respect; but the simplest hypothesis is that which regards it as a renewal of the law of 397 (i. 364), so that the highest allowable rate of interest was again $1 \frac{1}{12}$ th of the capital for the year of ten months or 10 per cent for the year of twelve months.

25. III. XI. Reform of the Centuries

26. II. III. Powers of the Senate

27. IV. II. Death of Gracchus, IV. III. Attack on The Transmarine Colonization. Downfall of Gracchus, IV. VI. Saturninus Assailed

28. II. III. The Tribunate of the People As an Instrument of Government

Chapter VIII

1. IV. VIII. Occupation of Cilicia

2. III. IX. Armenia

3. IV. I. Western Asia

4. The words quoted as Phrygian —Bagaios— = Zeus and the old royal name —Manis— have been beyond doubt correctly referred to the Zend -bagha- = God and the Germanic -Mannus-, Indian -Manus- (Lassen, -Zeitschrift der deutschen morgenland-. Gesellschaft, vol. x. p. 329 f.).

5. They are here grouped together, because, though they were in part doubtless not executed till between the first and the second war with Rome, they to some extent preceded even the first (Memn. 30; Justin, xxxviii. 7 ap. fin.; App. Mithr. 13; Eutrop. v. 5) and a narrative in chronological order is in this case absolutely impracticable. Even the recently found decree of Chersonesus (p. 17) has given no information in this respect According to it Diophantus was twice sent against the Taurian Scythians; but that the second insurrection of these is connected with the decree of the Roman senate in favour of the Scythian princes (p. 21) is not clear from the document, and is not even probable.

6. It is very probable that the extraordinary drought, which is the chief obstacle now to agriculture in the Crimea and in these regions generally, has been greatly increased by the disappearance of the forests of central and southern Russia, which formerly to some extent protected the coast-provinces from the parching northeast wind.

7. The recently discovered decree of the town of Chersonesus in honour of this Diophantus (Dittenberger, Syll. n. 252) thoroughly confirms the traditional account. It shows us the city in the immediate vicinity—the port of Balaclava must at that time have been in the power of the Tauri and

Simferopol in that of the Scythians—hard pressed partly by the Tauri on the south coast of the Crimea, partly and especially by the Scythians who held in their power the whole interior of the peninsula and the mainland adjoining; it shows us further how the general of king Mithradates relieves on all sides the Greek city, defeats the Tauri, and erects in their territory a stronghold (probably Eupatorion), restores the connection between the western and the eastern Hellenes of the peninsula, overpowers in the west the dynasty of Scilurus, and in the east Saumacus prince of the Scythians, pursues the Scythians even to the mainland, and at length conquers them with the Reuxinales—such is the name given to the later Roxolani here, where they first appear—in the great pitched battle, which is mentioned also in the traditional account. There does not seem to have been any formal subordination of the Greek city under the king; Mithradates appears only as protecting ally, who fights the battles against the Scythians that passed as invincible (—*tous anupostatous dokountas eimen*—), on behalf of the Greek city, which probably stood to him nearly in the relation of Massilia and Athens to Rome. The Scythians on the other hand in the Crimea become subjects (—*upakooi*—) of Mithradates.

8. The chronology of the following events can only be determined approximately. Mithradates Eupator seems to have practically entered on the government somewhere about 640; Sulla's intervention took place in 662 (Liv. Ep. 70) with which accords the calculation assigning to the Mithradatic wars a period of thirty years (662-691) (Plin. H. N. vii. 26, 97). In the interval fell the quarrels as to the Paphlagonian and Cappadocian succession, with which the bribery attempted by Mithradates in Rome (Diod. 631) apparently in the first tribunate of Saturninus in 651 (IV. VI. Saturninus) was probably connected. Marius, who left Rome in 665 and did not remain long in the east, found Mithradates already in Cappadocia and negotiated with him regarding his aggressions (Cic. ad Brut. i. 5; Plut. Mar. 31); Ariarathes VI had consequently been by that time put to death.

9. IV. III. Character of the Constitution of Gaius Gracchus

10. A decree of the senate of the year 638 recently found in the village Aresti to the south of Synnada (Viereck, -Sermo Graecus quo senatus Romanus usus sit-, p. 51) confirms all the regulations made by the king up to his death and thus shows that Great Phrygia after the death of the father was not merely taken from the son, as Appian also states, but was thereby brought directly under Roman allegiance.

11. III. IX. Rupture between Antiochus and the Romans

12. Retribution came upon the authors of the arrest and surrender of Aquillius twenty-five years afterwards, when after Mithradates' death his son Pharnaces handed them over to the Romans.

13. IV. VII. Economic Crisis

14. We must recollect that after the outbreak of the Social War the legion had at least not more than half the number of men which it had previously, as it was no longer accompanied by Italian contingents.

15. The chronology of these events is, like all their details, enveloped in an obscurity which investigation is able to dispel, at most, only partially. That the battle of Chaeronea took place, if not on the same day as the storming of Athens (Pausan, i. 20), at any rate soon afterwards, perhaps in March 668, is tolerably certain. That the succeeding Thessalian and the second Boeotian campaign took up not merely the remainder of 668 but also the whole of 669, is in itself probable and is rendered still more so by the fact that Sulla's enterprises in Asia are not sufficient to fill more than a single campaign. Licinianus also appears to indicate that Sulla returned to Athens for the winter of 668-669 and there took in hand the work of investigation and punishment; after which he relates the battle of

Orchomenus. The crossing of Sulla to Asia has accordingly been placed not in 669, but in 670.

16. The resolution of the citizens of Ephesus to this effect has recently been found (Waddington, Additions to Lebas, Inscr. iii. 136 a). They had, according to their own declaration, fallen into the power of Mithradates "the king of Cappadocia," being frightened by the magnitude of his forces and the suddenness of his attack; but, when opportunity offered, they declared war against him "for the rule (—egemonia—) of the Romans and the common weal."

17. The statement that Mithradates in the peace stipulated for impunity to the towns which had embraced his side (Memnon, 35) seems, looking to the character of the victor and of the vanquished, far from credible, and it is not given by Appian or by Licinianus. They neglected to draw up the treaty of peace in writing, and this neglect afterwards left room for various misrepresentations.

18. Armenian tradition also is acquainted with the first Mithradatic war. Ardasches king of Armenia—Moses of Chorene tells us—was not content with the second rank which rightfully belonged to him in the Persian (Parthian) empire, but compelled the Parthian king Arsachagan to cede to him the supreme power, whereupon he had a palace built for himself in Persia and had coins struck there with his own image. He appointed Arsachagan viceroy of Persia and his son Dicran (Tigranes) viceroy of Armenia, and gave his daughter Ardaschama in marriage to the great-prince of the Iberians Mihrdates (Mithradates) who was descended from Mihrdates satrap of Darius and governor appointed by Alexander over the conquered Iberians, and ruled in the northern mountains as well as over the Black Sea. Ardasches then took Croesus the king of the Lydians prisoner, subdued the mainland between the two great seas (Asia Minor), and crossed the sea with

innumerable vessels to subjugate the west. As there was anarchy at that time in Rome, he nowhere encountered serious resistance, but his soldiers killed each other and Ardasches fell by the hands of his own troops. After Ardasches' death his successor Dicran marched against the army of the Greeks (i. e. the Romans) who now in turn invaded the Armenian land; he set a limit to their advance, handed over to his brother-in-law Mihrdates the administration of Madschag (Mazaca in Cappadocia) and of the interior along with a considerable force, and returned to Armenia. Many years afterwards there were still pointed out in the Armenian towns statues of Greek gods by well-known masters, trophies of this campaign.

We have no difficulty in recognizing here various facts of the first Mithradatic war, but the whole narrative is evidently confused, furnished with heterogeneous additions, and in particular transferred by patriotic falsification to Armenia. In just the same way the victory over Crassus is afterwards attributed to the Armenians. These Oriental accounts are to be received with all the greater caution, that they are by no means mere popular legends; on the contrary the accounts of Josephus, Eusebius, and other authorities current among the Christians of the fifth century have been amalgamated with the Armenian traditions, and the historical romances of the Greeks and beyond doubt the patriotic fancies also of Moses himself have been laid to a considerable extent under contribution. Bad as is our Occidental tradition in itself, to call in the aid of Oriental tradition in this and similar cases—as has been attempted for instance by the uncritical Saint-Martin—can only lead to still further confusion.

19. III. X. Intervention in the Syro-Egyptian War

Chapter IX

1. The whole of the representation that follows is based in substance on the recently discovered account of Licinianus, which communicates a number of facts previously unknown, and in particular enables us to perceive the sequence and connection of these events more clearly than was possible before.

2. IV. VII. The Bestowal of the Franchise and Its Limitations. That there was no confirmation by the comitia, is clear from Cic. Phil. xii. 11, 27. The senate seems to have made use of the form of simply prolonging the term of the Plautio- Papirian law (IV. VII. Bestowal of Latin Rights on the Italian Celts), a course which by use and wont (i. 409) was open to it and practically amounted to conferring the franchise on all Italians.

3. "-Ad flatus sidere-," as Livy (according to Obsequens, 56) expresses it, means "seized by the pestilence" (Petron. Sat. 2; Plin. H. N. ii. 41, 108; Liv. viii. 9, 12), not "struck by lightning," as later writers have misunderstood it.

4. IV. VII. Combats with the Marsians

5. IV. VII. Sulpicius Rufus

6. IV. VII. Bestowal of Latin Rights on the Italian Celts

7. IV. V. In Illyria

8. IV. VI. Discussions on the Livian Laws

9. IV. VII. Energetic Decrees

10. Lucius Valerius Flaccus, whom the Fasti name as consul in 668, was not the consul of 654, but a younger man of the same name, perhaps son of the preceding. For, first, the law which prohibited re-election to the consulship remained legally in full force from c. 603 (IV. II. Attempts at

Reform) to 673, and it is not probable that what was done in the case of Scipio Aemilianus and Marius was done also for Flaccus. Secondly, there is no mention anywhere, when either Flaccus is named, of a double consulship, not even where it was necessary as in Cic. pro Flacc. 32, 77. Thirdly, the Lucius Valerius Flaccus who was active in Rome in 669 as -princeps senatus- and consequently of consular rank (Liv. 83), cannot have been the consul of 668, for the latter had already at that time departed for Asia and was probably already dead. The consul of 654, censor in 657, is the person whom Cicero (ad Att. viii. 3, 6) mentions among the consulars present in Rome in 667; he was in 669 beyond doubt the oldest of the old censors living and thus fitted to be -princeps senatus-; he was also the -interrex- and the -magister equitum- of 672. On the other hand, the consul of 668, who Perished at Nicomedia (p. 47), was the father of the Lucius Flaccus defended by Cicero (pro Flacc. 25, 61, comp. 23, 55. 32, 77).

11. IV. VI. The Equestrian Party

12. IV. VII. Sulla Embarks for Asia

13. We can only suppose this to be the Brutus referred to, since Marcus Brutus the father of the so-called Liberator was tribune of the people in 671, and therefore could not command in the field.

14. IV. IV. Prosecutions of the Democrats

15. It is stated, that Sulla occupied the defile by which alone Praeneste was accessible (App. i. 90); and the further events showed that the road to Rome was open to him as well as to the relieving army. Beyond doubt Sulla posted himself on the cross road which turns off from the Via Latina, along which the Samnites advanced, at Valmontone towards Palestrina; in this case Sulla communicated with the capital by the Praenestine, and the enemy by the Latin or Labican, road.

16. Hardly any other name can well be concealed under the corrupt reading in Liv. 89 -miam in Samnio-; comp. Strabo, v. 3, 10.

17. IV. IX. Pompeius

18. IV. VIII. New Difficulties

Chapter X

1. III. XI. Abolition of the Dictatorship

2. -Satus est uti regibus quam uti malis legibus- (Ad Herenn. ii. 36).

3. II. I. The Dictator, II. II. The Valerio-Horatian Laws, II. III. Limitation of the Dictatorship

4. IV. VII. Legislation of Sulla

5. This total number is given by Valerius Maximus, ix. 2. 1. According to Appian (B. C. i. 95), there were proscribed by Sulla nearly 40 senators, which number subsequently received some additions, and about 1600 equites; according to Florus (ii. 9, whence Augustine de Civ. Dei, iii. 28), 2000 senators and equites. According to Plutarch (Sull. 31), 520 names were placed on the list in the first three days; according to Orosius (v. 21), 580 names during the first days. there is no material contradiction between these various reports, for it was not senators and equites alone that were put to death, and the list remained open for months. When Appian, at another passage (i. 103), mentions as put to death or banished by Sulla, 15 consulars, 90 senators, 2600 equites, he there confounds, as the connection shows, the victims of the civil war throughout with the victims of Sulla. The 15 consulars were— Quintus Catulus, consul in 652; Marcus Antonius, 655;

Publius Crassus, 657; Quintus Scaevola, 659; Lucius Domitius, 660; Lucius Caesar, 664; Quintus Rufus, 666; Lucius Cinna, 667-670; Gnaeus Octavius, 667; Lucius Merula, 667; Lucius Flaccus, 668; Gnaeus Carbo, 669, 670, 672; Gaius Norbanus, 671; Lucius Scipio, 671; Gaius Marius, 672; of whom fourteen were killed, and one, Lucius Scipio, was banished. When, on the other hand, the Livian account in Eutropius (v. 9) and Orosius (v. 22) specifies as swept away (-consumpti-) in the Social and Civil wars, 24 consulars, 7 praetorians, 60 aedilicians, 200 senators, the calculation includes partly the men who fell in the Italian war, such as the consulars Aulus Albinus, consul in 655; Titus Didius, 656; Publius Lupus, 664; Lucius Cato, 665; partly perhaps Quintus Metellus Numidicus (IV. VI. Violent Proceedings in The Voting), Manius Aquillius, Gaius Marius the father, Gnaeus Strabo, whom we may certainly regard as also victims of that period, or other men whose fate is unknown to us. Of the fourteen consulars killed, three—Rufus, Cinna, and Flaccus—fell through military revolts, while eight Sullan and three Marian consulars fell as victims to the opposite party. On a comparison of the figures given above, 50 senators and 1000 equites were regarded as victims of Marius, 40 senators and 1600 equites as victims of Sulla; this furnishes a standard—at least not altogether arbitrary—for estimating the extent of the crimes on both sides.

6. The Sextus Alfenus, frequently mentioned in Cicero's oration on behalf of Publius Quinctius, was one of these.

7. II. VII. Latins. To this was added the peculiar aggravation that, while in other instances the right of the Latins, like that of the -peregrini-, implied membership in a definite Latin or foreign community, in this case—just as with the later freedmen of Latin and deditician rights (comp. IV. VII. The Bestowal of the Franchise and Its Limitations. n.)—it was without any such right of urban membership. The consequence was, that these Latins were destitute of the privileges attaching to an urban constitution, and, strictly

speaking, could not even make a testament, since no one could execute a testament otherwise than according to the law of his town; they could doubtless, however, acquire under Roman testaments, and among the living could hold dealings with each other and with Romans or Latins in the forms of Roman law.

8. IV. IV. The Domain Question under the Restoration

9. That Sulla's assessment of the five years' arrears and of the war expenses levied on the communities of Asia (Appian, *Mithr.* 62 et al.) formed a standard for the future, is shown by the facts, that the distribution of Asia into forty districts is referred to Sulla (Cassiodor. *Chron.* 670) and that the Sullan apportionment was assumed as a basis in the case of subsequent imposts (Cic. *pro Flacc.* 14, 32), and by the further circumstance, that on occasion of building a fleet in 672 the sums applied for that purpose were deducted from the payment of tribute (-ex pecunia vectigali populo Romano-: Cic. *Verr.* l. i. 35, 89). Lastly, Cicero (*ad Q. fr.* i. i, ii, 33) directly says, that the Greeks "were not in a position of themselves to pay the tax imposed on them by Sulla without -publicani-."

10. III. XI. Separation of the Orders in the Theatre

11. IV. III. Insignia of the Equites. Tradition has not indeed informed us by whom that law was issued, which rendered it necessary that the earlier privilege should be renewed by the Roscian theatre-law of 687 (Becker-Friedlander, iv, 531); but under the circumstances the author of that law was undoubtedly Sulla.

12. IV. VI. Livius Drusus

13. IV. VII. Rejection of the Proposals for an Accommodation

14. III. XI. The Nobility in Possession of the Senate

15. How many quaestors had been hitherto chosen annually, is not known. In 487 the number stood at eight—two urban, two military, and four naval, quaestors (II. VII. Quaestors of the Fleet, II. VII. Intermediate Functions); to which there fell to be added the quaestors employed in the provinces (III. III. Provincial Praetors). For the naval quaestors at Ostia, Cales, and so forth were by no means discontinued, and the military quaestors could not be employed elsewhere, since in that case the consul, when he appeared as commander-in-chief, would have been without a quaestor. Now, as down to Sulla's time there were nine provinces, and moreover two quaestors were sent to Sicily, he may possibly have found as many as eighteen quaestors in existence. But as the number of the supreme magistrates of this period was considerably less than that of their functions (p. 120), and the difficulty thus arising was constantly remedied by extension of the term of office and other expedients, and as generally the tendency of the Roman government was to limit as much as possible the number of magistrates, there may have been more quaestorial functions than quaestors, and it may be even that at this period no quaestor at all was sent to small provinces such as Cilicia. Certainly however there were, already before Sulla's time, more than eight quaestors.

16. III. XI. The Censorship A Prop of the Nobility

17. We cannot strictly speak at all of a fixed number of senators. Though the censors before Sulla prepared on each occasion a list of 300 persons, there always fell to be added to this list those non-senators who filled a curule office between the time when the list was drawn up and the preparation of the next one; and after Sulla there were as many senators as there were surviving quaestorians. But it may be probably assumed that Sulla meant to bring the senate up to 500 or 600 members; and this number

results, if we assume that 20 new members, at an average age of 30, were admitted annually, and we estimate the average duration of the senatorial dignity at from 25 to 30 years. At a numerously attended sitting of the senate in Cicero's time 417 members were present.

18. II. III. The Senate. Its Composition

19. IV. VI. Political Projects of Marius

20. III. XI. Interference of the Community in War and Administration

21. IV. VII. Legislation of Sulla

22. II. III. Restrictions As to the Accumulation and the Reoccupation of Offices

23. IV. II. Attempts at Reform

24. To this the words of Lepidus in Sallust (Hist. i. 41, 11 Dietsch) refer: -populus Romanus excitus... iure agitandi-, to which Tacitus (Ann. iii. 27) alludes: -statim turbidis Lepidi rogationibus neque multo post tribunis reddita licentia quoquo vellent populum agitandi-. That the tribunes did not altogether lose the right of discussing matters with the people is shown by Cic. De Leg. iii. 4, 10 and more clearly by the -plebiscitum de Thermensibus-, which however in the opening formula also designates itself as issued -de senatus sententia-. That the consuls on the other hand could under the Sullan arrangements submit proposals to the people without a previous resolution of the senate, is shown not only by the silence of the authorities, but also by the course of the revolutions of 667 and 676, whose leaders for this very reason were not tribunes but consuls. Accordingly we find at this period consular laws upon secondary questions of

administration, such as the corn law of 681, for which at other times we should have certainly found -plebiscita-.

25. II. III. Influence of the Elections

26. IV. II. Vote by Ballot

27. For this hypothesis there is no other proof, except that the Italian Celt-land was as decidedly not a province—in the sense in which the word signifies a definite district administered by a governor annually changed—in the earlier times, as it certainly was one in the time of Caesar (comp. Licin. p. 39; -data erat et Sullae provincia Gallia Cisalpina-).

The case is much the same with the advancement of the frontier; we know that formerly the Aesis, and in Caesar's time the Rubico, separated the Celtic land from Italy, but we do not know when the boundary was shifted. From the circumstance indeed, that Marcus Terentius Varro Lucullus as proprætor undertook a regulation of the frontier in the district between the Aesis and Rubico (Orelli, Inscr. 570), it has been inferred that that must still have been provincial land at least in the year after Lucullus' prætorship 679, since the proprætor had nothing to do on Italian soil. But it was only within the -pomerium- that every prolonged -imperium- ceased of itself; in Italy, on the other hand, such a prolonged -imperium- was even under Sulla's arrangement—though not regularly existing—at any rate allowable, and the office held by Lucullus was in any case an extraordinary one. But we are able moreover to show when and how Lucullus held such an office in this quarter. He was already before the Sullan reorganization in 672 active as commanding officer in this very district (p. 87), and was probably, just like Pompeius, furnished by Sulla with proprætorian powers; in this character he must have regulated the boundary in question in 672 or 673 (comp. Appian, i. 95). No inference therefore may be drawn from this inscription as to the legal position of North Italy, and least of all for the time

after Sulla's dictatorship. On the other hand a remarkable hint is contained in the statement, that Sulla advanced the Roman -pomerium- (Seneca, de brev. vitae, 14; Dio, xliii. 50); which distinction was by Roman state-law only accorded to one who had advanced the bounds not of the empire, but of the city—that is, the bounds of Italy (i. 128).

28. As two quaestors were sent to Sicily, and one to each of the other provinces, and as moreover the two urban quaestors, the two attached to the consuls in conducting war, and the four quaestors of the fleet continued to subsist, nineteen magistrates were annually required for this office. The department of the twentieth quaestor cannot be ascertained.

29. The Italian confederacy was much older (II. VII. Italy and The Italians); but it was a league of states, not, like the Sullan Italy, a state-domain marked off as an unit within the Roman empire.

30. II. III. Complete Opening Up of Magistracies and Priesthoods

31. II. III. Combination of The Plebian Aristocracy and The Farmers against The Nobility

32. III. XIII. Religious Economy

33. IV. X. Punishments Inflicted on Particular Communities

34. e. g. IV. IV. Dissatisfaction in the Capital, IV. V. Warfare of Prosecutions

35. IV. II. Vote by Ballot

36. IV. III. Modifications of the Penal Law

37. II. II. Intercession

38. IV. III. Modifications of the Penal Law

39. IV. VII. Rejection of the Proposals for an Accommodation

40. II. VII. Subject Communities

41. IV. X. Cisalpine Gaul Erected into A Province

42. IV. VII. Preparations for General Revolt against Rome

43. III. XI. Roman Franchise More Difficult of Acquisition

44. IV. IX. Government of Cinna

45. IV. VII. Decay of Military Discipline

46. IV. VII. Economic Crisis

47. IV. VII. Strabo

48. IV. VIII. Flaccus Arrives in Asia

49. IV. IX. Death of Cinna

50. IV. IX. Nola

51. IV. IX. Fresh Difficulties with Mithradates

52. Euripides, Medea, 807:— —Meideis me phaulein kasthenei nomizeto
Meid eisuchaian, alla thateron tropou Bareian echthrois kai philoisin
eumenei—.

53. IV. IX. Fresh Difficulties with Mithradates

54. IV. IX. Fresh Difficulties with Mithradates, IV. X. Re-establishment of Constitutional Order

55. Not -pthiriasis-, as another account states; for the simple reason that such a disease is entirely imaginary.

Chapter XI

1. IV. V. Transalpine Relations of Rome, IV. V. The Romans Cross the Eastern Alps

2. IV. I. The Callaeci Conquered

3. IV. V. And Reach the Danube

4. -Exerae nationes in arbitrato dicione potestate amicitiae populi Romani- (lex repet. v. i), the official designation of the non-Italian subjects and clients as contrasted with the Italian "allies and kinsmen" (-socii nominisve Latini-).

5. III. XI. As to the Management of the Finances

6. III. XII. Mercantile Spirit

7. IV. III. Jury Courts, IV. III. Character of the Constitution of Gaius Gracchus

8. This tax-tenth, which the state levied from private landed property, is to be clearly distinguished from the proprietor's tenth, which it imposed on the domain-land. The former was let in Sicily, and was fixed once for all; the latter—especially that of the territory of Leontini—was let by the

censors in Rome, and the proportion of produce payable and other conditions were regulated at their discretion (Cic. Verr. iii. 6, 13; v. 21, 53; de leg. agr. i. 2, 4; ii. 18, 48). Comp, my Staatsrecht, iii. 730.

9. The mode of proceeding was apparently as follows. The Roman government fixed in the first instance the kind and the amount of the tax. Thus in Asia, for instance, according to the arrangement of Sulla and Caesar the tenth sheaf was levied (Appian. B. C. v. 4); thus the Jews by Caesar's edict contributed every second year a fourth of the seed (Joseph, iv. 10, 6; comp. ii. 5); thus in Cilicia and Syria subsequently there was paid 5 per cent from estate (Appian. Syr. 50), and in Africa also an apparently similar tax was paid—in which case, we may add, the estate seems to have been valued according to certain presumptive indications, e. g. the size of the land occupied, the number of doorways, the number of head of children and slaves (-exactio capitem atque ostiorum-, Cicero, Ad Fam. iii. 8, 5, with reference to Cilicia; —phoros epi tei gei kai tois somasin—, Appian. Pun. 135, with reference to Africa). In accordance with this regulation the magistrates of each community under the superintendence of the Roman governor (Cic. ad Q. Fr. i. 1, 8; SC. de Asclep. 22, 23) settled who were liable to the tax, and what was to be paid by each tributary (-imperata- —epikephalia—, Cic. ad Att. v. 16); if any one did not pay this in proper time, his tax-debt was sold just as in Rome, i. e. it was handed over to a contractor with an adjudication to collect it (-venditio tributorum-, Cic. Ad Fam. iii. 8, 5; —onas— -omnium venditas-, Cic. ad Att. v. 16). The produce of these taxes flowed into the coffers of the leading communities—the Jews, for instance, had to send their corn to Sidon—and from these coffers the fixed amount in money was then conveyed to Rome. These taxes also were consequently raised indirectly, and the intermediate agent either retained, according to circumstances, a part of the produce of the taxes for himself, or advanced it from his own substance; the distinction between this mode of raising and the other by means of the -publicani- lay merely in the

circumstance, that in the former the public authorities of the contributors, in the latter Roman private contractors, constituted the intermediate agency.

10. IV. III. Jury Courts

11. III. VII. Administration of Spain

12. IV. X. Regulation of the Finances

13. For example, in Judaea the town of Joppa paid 26,075 -modii- of corn, the other Jews the tenth sheaf, to the native princes; to which fell to be added the temple-tribute and the Sidonian payment destined for the Romans. In Sicily too, in addition to the Roman tenth, a very considerable local taxation was raised from property.

14. IV. VI. The New Military Organization

15. IV. II. Vote by Ballot

16. III. VII. Liguria

17. IV. V. Province of Narbo

18. IV. V. In Illyria

19. IV. I. Province of Macedonia

20. III. XI. Italian Subjects, III. XII. Roman Wealth

21. IV. V. Taurisci

22. III. IV. Pressure of the War

23. IV. VII. Outbreak of the Mithradatic War

24. IV. IX. Preparations on Either Side

25. III. XII. The Management of Land and of Capital

26. IV. V. Conflicts with the Ligurians. With this may be connected the remark of the Roman agriculturist, Saserna, who lived after Cato and before Varro (ap. Colum. i. 1, 5), that the culture of the vine and olive was constantly moving farther to the north.—The decree of the senate as to the translation of the treatise of Mago (IV. II. The Italian Farmers) belongs also to this class of measures.

27. IV. II. Slavery and Its Consequences

28. IV. VIII. Thrace and Macedonia Occupied by the Pontic Armies.

29. IV. I. Destruction of Carthage, IV. I. Destruction of Corinth

30. IV. V. The Advance of the Romans Checked by the Policy of the Restoration

31. IV. IV. The Provinces

32. IV. VII. Economic Crisis

33. IV. VII. The Sulpician Laws

34. IV. VII. Legislation of Sulla

35. IV. IX. Government of Cinna

36. IV. VIII. Orders Issued from Ephesus for A General Massacre

37. IV. VIII. Thrace and Macedonia Occupied by the Pontic Armies.

38. IV. VI. Roman Intervention

39. III. XII. Roman Wealth

40. IV. V. Taurisci

41. III. VI. Pressure of the War

42. II. VIII. Silver Standard of Value

43. III. VI. Pressure of the War

44. III. I. Comparison between Carthage and Rome

45. IV. X. Proscription-Lists

46. III. III. Autonomy, III. VII. the State of Culture in Spain, III. XII. Coins and Moneys

47. III. XII. Coins and Moneys

48. III. XIII. Increase of Amusements

49. In the house, which Sulla inhabited when a young man, he paid for the ground-floor a rent of 3000 sesterces, and the tenant of the upper story a rent of 2000 sesterces (Plutarch, Sull. 1); which, capitalized at two-thirds of the usual interest on capital, yields nearly the above amount. This was a cheap dwelling. That a rent of 6000 sesterces (60 pounds) in the capital is called a high one in the case of the year 629 (Vell. ii. 10) must have been due to special circumstances.

50. III. I. Comparison between Carthage and Rome

51. IV. II. Tribune of Gracchus

52. "If we could, citizens"—he said in his speech—"we should indeed all keep clear of this burden. But, as nature has so arranged it that we cannot either live comfortably with wives or live at all without them, it is proper to have regard rather to the permanent weal than to our own brief comfort."

Chapter XII

1. IV. XI. Money-Dealing and Commerce

2. IV. X. The Roman Municipal System

3. IV. I. The Subjects

4. IV. I. The Callaeci Conquered

5. IV. I. The New Organization of Spain

6. IV. VII. Second Year of the War

7. The statement that no "Greek games" were exhibited in Rome before 608 (Tac. Ann. xiv. 21) is not accurate: Greek artists (—technitai—) and athletes appeared as early as 568 (Liv. xxxix. 22), and Greek flute-players, tragedians, and pugilists in 587 (Pol. xxx, 13).

8. III. XIII. Irreligious Spirit

9. A delightful specimen may be found in Cicero de Officiis, iii. 12, 13.

10. IV. VI. Collision between the Senate and Equites in the Administration of the Provinces; IV. IX. Siege of Praeneste

11. In Varro's satire, "The Aborigines," he sarcastically set forth how the primitive men had not been content with the God who alone is recognized by thought, but had longed after puppets and effigies.

12. III. XI. Interference of The Community in War and Administration

13. IV. VI. Political Projects of Marius

14. IV. X. Co-optation Restored in the Priestly Colleges

15. IV. VI. The Equestrian Party

16. III. XIV. Cato's Encyclopedia

17. Cicero says that he treated his learned slave Dionysius more respectfully than Scipio treated Panaetius, and in the same sense it is said in Lucilius:—

-Paenula, si quaeris, canteriu', servu', segestre Utilior mihi, quam sapiens-.

18. IV. XII. Panaetius

Chapter XIII

1. Thus in the -Paulus-, an original piece, the following line occurred, probably in the description of the pass of Pythium (III. X. Perseus Is Driven Back to Pydna):—

-Qua vix caprigeno generi gradilis gressio est-.

And in another piece the hearers are expected to understand the following description—

-Quadrupes tardigrada agrestis humilis aspera, Capite brevi, cervice anguina, aspectu truci, Eviscerata inanima cum animali sono-.

To which they naturally reply—

-Ita saeptuosa dictione abs te datur, Quod conjectura sapiens aegre contuit; Non intellegimus, nisi si aperte dixeris-.

Then follows the confession that the tortoise is referred to. Such enigmas, moreover, were not wanting even among the Attic tragedians, who on that account were often and sharply taken to task by the Middle Comedy.

2. Perhaps the only exception is in the -Andria- (iv. 5) the answer to the question how matters go:—

"-Sic Ut quimus," aiunt, "quando ut volumus non licet-"

in allusion to the line of Caecilius, which is, indeed, also imitated from a Greek proverb:—

-Vivas ut possis, quando non quis ut velis-.

The comedy is the oldest of Terence's, and was exhibited by the theatrical authorities on the recommendation of Caecilius. The gentle expression of gratitude is characteristic.

3. A counterpart to the hind chased by dogs and with tears calling on a young man for help, which Terence ridicules (Phorm. prol. 4), may be recognized in the far from ingenious Plautine allegory of the goat and the

ape (Merc, ii. 1). Such excrescences are ultimately traceable to the rhetoric of Euripides (e. g. Eurip. Hec. 90).

4. Micio in the -Adelphi- (i. i) praises his good fortune in life, more particularly because he has never had a wife, "which those (the Greeks) reckon a piece of good fortune."

5. In the prologue of the -Heauton Timorumenos- he puts the objection into the mouth of his censors:—

-Repente ad studium hunc se applicasse musicum Amicum ingenio fretum, haud natura sua-.

And in the later prologue (594) to the -Adelphi- he says—

-Nam quod isti dicunt malevoli, homines nobiles Eum adiutare, adsidueque una scribere; Quod illi maledictum vehemens esse existimant Eam laudem hic ducit maximam, quum illis placet Qui vobis universis et populo placent; Quorum opera in bello, in otio, in negotio, Suo quisque tempore usus est sine superbia-.

As early as the time of Cicero it was the general supposition that Laelius and Scipio Aemilianus were here meant: the scenes were designated which were alleged to proceed from them; stories were told of the journeys of the poor poet with his genteel patrons to their estates near Rome; and it was reckoned unpardonable that they should have done nothing at all for the improvement of his financial circumstances. But the power which creates legend is, as is well known, nowhere more potent than in the history of literature. It is clear, and even judicious Roman critics acknowledged, that these lines could not possibly apply to Scipio who was then twenty-five years of age, and to his friend Laelius who was not much older. Others with at least more judgment thought of the poets of quality Quintus Labeo

(consul in 571) and Marcus Popillius (consul in 581), and of the learned patron of art and mathematician, Lucius Sulpicius Gallus (consul in 588); but this too is evidently mere conjecture. That Terence was in close relations with the Scipionic house cannot, however, be doubted: it is a significant fact, that the first exhibition of the -Adelphi- and the second of the -Hecyra- took place at the funeral games of Lucius Paullus, which were provided by his sons Scipio and Fabius.

6. IV. XI. Token-Money

7. III. XIV. National Comedy

8. External circumstances also, it may be presumed, co-operated in bringing about this change. After all the Italian communities had obtained the Roman franchise in consequence of the Social war, it was no longer allowable to transfer the scene of a comedy to any such community, and the poet had either to keep to general ground or to choose places that had fallen into ruin or were situated abroad. Certainly this circumstance, which was taken into account even in the production of the older comedies, exercised an unfavourable effect on the national comedy.

9. I. XV. Masks

10. With these names there has been associated from ancient times a series of errors. The utter mistake of Greek reporters, that these farces were played at Rome in the Oscan language, is now with justice universally rejected; but it is, on a closer consideration, little short of impossible to bring these pieces, which are laid in the midst of Latin town and country life, into relation with the national Oscan character at all. The appellation of "Atellan play" is to be explained in another way. The Latin farce with its fixed characters and standing jests needed a permanent scenery: the fool-world everywhere seeks for itself a local habitation. Of course under the

Roman stage-police none of the Roman communities, or of the Latin communities allied with Rome, could be taken for this purpose, although it was allowable to transfer the -togatae- to these. But Atella, which, although destroyed de jure along with Capua in 543 (III. VI. Capua Capitulates, III. VI. In Italy), continued practically to subsist as a village inhabited by Roman farmers, was adapted in every respect for the purpose. This conjecture is changed into certainty by our observing that several of these farces are laid in other communities within the domain of the Latin tongue, which existed no longer at all, or no longer at any rate in the eye of the law—such as the -Campani- of Pomponius and perhaps also his -Adelphi- and his -Quinquatria- in Capua, and the -Milites Pometinenses- of Novius in Suessa Pometia—while no existing community was subjected to similar maltreatment. The real home of these pieces was therefore Latium, their poetical stage was the Latinized Oscan land; with the Oscan nation they have no connection. The statement that a piece of Naevius (d. after 550) was for want of proper actors performed by "Atellan players" and was therefore called -personata- (Festus, s. v.), proves nothing against this view: the appellation "Atellan players" comes to stand here proleptically, and we might even conjecture from this passage that they were formerly termed "masked players" (-personati-).

An explanation quite similar may be given of the "lays of Fescennium," which likewise belong to the burlesque poetry of the Romans and were localized in the South Etruscan village of Fescennium; it is not necessary on that account to class them with Etruscan poetry any more than the Atellanae with Oscan. That Fescennium was in historical times not a town but a village, cannot certainly be directly proved, but is in the highest degree probable from the way in which authors mention the place and from the silence of inscriptions.

11. The close and original connection, which Livy in particular represents as subsisting between the Atellan farce and the -satura- with the drama thence developed, is not at all tenable. The difference between the -histrio- and the Atellan player was just about as great as is at present the difference between a professional actor and a man who goes to a masked ball; between the dramatic piece, which down to Terence's time had no masks, and the Atellan, which was essentially based on the character-mask, there subsisted an original distinction in no way to be effaced. The drama arose out of the flute-piece, which at first without any recitation was confined merely to song and dance, then acquired a text (-satura-), and lastly obtained through Andronicus a libretto borrowed from the Greek stage, in which the old flute-lays occupied nearly the place of the Greek chorus. This course of development nowhere in its earlier stages comes into contact with the farce, which was performed by amateurs.

12. In the time of the empire the Atellana was represented by professional actors (Friedlander in Becker's Handbuch. vi. 549). The time at which these began to engage in it is not reported, but it can hardly have been other than the time at which the Atellan was admitted among the regular stage-plays, i. e. the epoch before Cicero (Cic. ad Fam. ix. 16). This view is not inconsistent with the circumstance that still in Livy's time (vii. 2) the Atellan players retained their honorary rights as contrasted with other actors; for the statement that professional actors began to take part in performing the Atellana for pay does not imply that the Atellana was no longer performed, in the country towns for instance, by unpaid amateurs, and the privilege therefore still remained applicable,

13. It deserves attention that the Greek farce was not only especially at home in Lower Italy, but that several of its pieces (e. g. among those of Sopater, the "Lentile-Porridge," the "Wooers of Bacchis," the "Valet of Mystakos," the "Bookworms," the "Physiologist") strikingly remind us of

the Atellanae. This composition of farces must have reached down to the time at which the Greeks in and around Neapolis formed a circle enclosed within the Latin-speaking Campania; for one of these writers of farces, Blaesus of Capreae, bears even a Roman name and wrote a farce "Saturnus."

14. According to Eusebius, Pomponius flourished about 664; Velleius calls him a contemporary of Lucius Crassus (614-663) and Marcus Antonius (611-667). The former statement is probably about a generation too late; the reckoning by -victoriati- (p. 182) which was discontinued about 650 still occurs in his -Pictores-, and about the end of this period we already meet the mimes which displaced the Atellanae from the stage.

15. It was probably merry enough in this form. In the -Phoenissae- of Novius, for instance, there was the line:—

-Sume arma, iam te occidam clava scirpea-, Just as Menander's —Pseudeirakleis— makes his appearance.

16. Hitherto the person providing the play had been obliged to fit up the stage and scenic apparatus out of the round sum assigned to him or at his own expense, and probably much money would not often be expended on these. But in 580 the censors made the erection of the stage for the games of the praetors and aediles a matter of special contract (Liv. xli. 27); the circumstance that the stage- apparatus was now no longer erected merely for a single performance must have led to a perceptible improvement of it.

17. The attention given to the acoustic arrangements of the Greeks may be inferred from Vitruv. v. 5, 8. Ritschl (Parerg. i. 227, xx.) has discussed the question of the seats; but it is probable (according to Plautus, Capt. prol. 11) that those only who were not -capite censi- had a claim to a seat. It is probable, moreover, that the words of Horace that "captive Greece led

captive her conqueror" primarily refer to these epoch-making theatrical games of Mummius (Tac. Ann. xiv. 21).

18. The scenery of Pulcher must have been regularly painted, since the birds are said to have attempted to perch on the tiles (Plin. H. N. xxxv. 4, 23; Val. Max. ii. 4, 6). Hitherto the machinery for thunder had consisted in the shaking of nails and stones in a copper kettle; Pulcher first produced a better thunder by rolling stones, which was thenceforth named "Claudian thunder" (Festus, v. Claudiana, p. 57).

19. Among the few minor poems preserved from this epoch there occurs the following epigram on this illustrious actor:—

-Constiteram, exorientem Auroram forte salutans, Cum subito a laeva Roscius exoritur. Pace mihi liceat, coelestes, dicere vestra;
Mortalis visust pulchrior esse deo-.

The author of this epigram, Greek in its tone and inspired by Greek enthusiasm for art, was no less a man than the conqueror of the Cimbri, Quintus Lutatius Catulus, consul in 652.

20. IV. XII. Course of Literature and Rhetoric

21. -Quam lepide —legeis— compostae ut tesserulae omnes Arte pavimento atque emblemate vermiculato-.

22. The poet advises him—

-Quo facetior videare et scire plus quant ceteri—to say not -pertaesum- but -pertisum-.

23. IV. III. Its Suspension by Scipio Aemilianus

24. The following longer fragment is a characteristic specimen of the style and metrical treatment, the loose structure of which cannot possibly be reproduced in German hexameters:—

-Virtus, Albine, est pretium persolvere verum
Queis in versamur, queis vivimu' rebu' potesse;
Virtus est homini scire quo quaeque habeat res;
Virtus scire homini rectum, utile, quid sit honestum,
Quae bona, quae mala item, quid inutile, turpe, inhonestum;
Virtus quaerendae finem rei scire modumque;
Virtus divitiis pretium persolvere posse;
Virtus id dare quod re ipsa debetur honori,
Hostem esse atque inimicum hominum morumque malorum,
Contra defensorem hominum morumque bonorum,
Hos magni facere, his bene velle, his vivere amicum;
Commoda praeterea patriai prima putare,
Deinde parentum, tertia iam postremaque nostra-.

25. IV. XIII. Dramatic Arrangements, second note

26. III. X. Measures of Security in Greece

27. IV. I. Greece

28. Such scientific travels were, however, nothing uncommon among the Greeks of this period. Thus in Plautus (Men. 248, comp. 235) one who has navigated the whole Mediterranean asks—

-Quin nos hinc domum Redimus, nisi si historiam scripturi sumus-?

29. III. XIV. National Opposition

30. The only real exception, so far as we know, is the Greek history of Gnaeus Aufidius, who flourished in Cicero's boyhood (*Tusc.* v. 38, 112), that is, about 660. The Greek memoirs of Publius Rutilius Rufus (consul in 649) are hardly to be regarded as an exception, since their author wrote them in exile at Smyrna.

31. IV. XI. Hellenism and Its Results

32. IV. XII. Education

33. IV. XII. Latin Instruction

34. The assertion, for instance, that the quaestors were nominated in the regal period by the burgesses, not by the king, is as certainly erroneous as it bears on its face the impress of a partisan character.

35. IV. XII. Course of Literature and Rhetoric

36. IV. XII. Course of Literature and Rhetoric

37. IV. XII. Course of Literature and Rhetoric

38. IV. X. Permanent and Special -Quaestiones-

39. Cato's book probably bore the title -*De iuris disciplina*- (*Gell.* xiii. 20), that of Brutus the title -*De iure civili*- (*Cic. pro Cluent.* 51, 141; *De Orat.* ii. 55, 223); that they were essentially collections of opinions, is shown by Cicero (*De Orat.* ii. 33, 142).

40. IV. VI. Collision between the Senate and Equites in the Administration of the Provinces, pp. 84, 205

41. IV. XII. Roman Stoa f.

42. IV. XI. Buildings

End of Book IV

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THE HISTORY OF ROME: BOOK V

The Establishment of the Military Monarchy

Preparer's Notes

This work contains many literal citations of and references to words, sounds, and alphabetic symbols drawn from many languages, including Gothic and Phoenician, but chiefly Latin and Greek. This English language Gutenberg edition, constrained within the scope of 7-bit ASCII code, adopts the following orthographic conventions:

1) Words and phrases regarded as "foreign imports", italicized in the original text published in 1903; but which in the intervening century have become "naturalized" into English; words such as "de jure", "en masse", etc. are not given any special typographic distinction.

2) Except for Greek, all literally cited non-English words that do not refer to texts cited as academic references, words that in the source manuscript

appear italicized, are rendered with a single preceding, and a single following dash; thus, -xxxx-.

3) Greek words, first transliterated into Roman alphabetic equivalents, are rendered with a preceding and a following double-dash; thus, —xxxx—. Note that in some cases the root word itself is a compound form such as xxx-xxxx, and is rendered as —xxx-xxx—

4) Simple non-ideographic references to vocalic sounds, single letters, or alphabetic diphthongs; and prefixes, suffixes, and syllabic references are represented by a single preceding dash; thus, -x, or -xxx.

5) The following refers particularly to the complex discussion of alphabetic evolution in Ch. XIV: Measuring and Writing). Ideographic references, meaning pointers to the form of representation itself rather than to its content, are represented as -"id:xxxx"-. "id:" stands for "ideograph", and indicates that the reader should form a mental picture based on the "xxxx" following the colon. "xxxx" may represent a single symbol, a word, or an attempt at a picture composed of ASCII characters. E. g. —"id:GAMMA gamma"— indicates an uppercase Greek gamma-form Followed by the form in lowercase. Such exotic parsing is necessary to explain alphabetic development because a single symbol may have been used for a number of sounds in a number of languages, or even for a number of sounds in the same language at different times. Thus, -"id:GAMMA gamma" might very well refer to a Phoenician construct that in appearance resembles the form that eventually stabilized as an uppercase Greek "gamma" juxtaposed to another one of lowercase. Also, a construct such as —"id:E" indicates a symbol that in graphic form most closely resembles an ASCII uppercase "E", but, in fact, is actually drawn more crudely.

6) The numerous subheading references, of the form "XX. XX. Topic" found in the appended section of endnotes are to be taken as "proximate" rather than topical indicators. That is, the information contained in the endnote indicates primarily the location in the main text of the closest indexing "handle", a subheading, which may or may not echo congruent subject matter.

The reason for this is that in the translation from an original paged manuscript to an unpagged "cyberscroll", page numbers are lost. In this edition subheadings are the only remaining indexing "handles" of sub-chapter scale. Unfortunately, in some stretches of text these subheadings may be as sparse as merely one in three pages. Therefore, it would seem to make best sense to save the reader time and temper by adopting a shortest path method to indicate the desired reference.

7) The attentive reader will notice occasional typographic or syntactic anomalies and errors. In almost all cases this conscious and due to an editorial decision for the first Gutenberg edition to transmit transparently all but the most egregious flaws found in the source text Scribner edition of 1903. Furthermore, a number of sentences may be virtually unintelligible to the English reader due to the architecture of relative clauses, prepositions, and verbs as carried over from the original German. It is the preparer's ambition for a second Gutenberg edition of the History of Rome to reconstruct and clarify the most turgid specimens.

8) Dr. Mommsen has given his dates in terms of Roman usage, A.U.C.; that is, from the founding of Rome, conventionally taken to be 753 B. C. To the end of each volume is appended a table of conversion between the two systems.

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BOOK FIFTH

The Establishment of the Military Monarchy

Wie er sich sieht so um und um,
Kehrt es ihm fast den Kopf herum,
Wie er wollt' Worte zu allem finden?
Wie er mocht' so viel Schwall verbinden?
Wie er mocht' immer muthig bleiben
So fort und weiter fort zu schreiben?

Goethe.

CHAPTER I

Marcus Lepidus and Quintus Sertorius

The Opposition

Jurists

Aristocrats Friendly to Reform

Democrats

When Sulla died in the year 676, the oligarchy which he had restored ruled with absolute sway over the Roman state; but, as it had been established by force, it still needed force to maintain its ground against its numerous secret and open foes. It was opposed not by any single party with objects clearly expressed and under leaders distinctly acknowledged, but by a mass of multifarious elements, ranging themselves doubtless under the general name of the popular party, but in reality opposing the Sullan organization of the commonwealth on very various grounds and with very different designs. There were the men of positive law who neither mingled in nor understood politics, but who detested the arbitrary procedure of Sulla in dealing with the lives and property of the burgesses. Even during Sulla's lifetime, when all other opposition was silent, the strict jurists resisted the regent; the Cornelian laws, for example, which deprived various Italian communities of the Roman franchise, were treated in judicial decisions as null and void; and in like manner the courts held that, where a burgess had been made a prisoner of war and sold into slavery during the revolution, his

franchise was not forfeited. There was, further, the remnant of the old liberal minority in the senate, which in former times had laboured to effect a compromise with the reform party and the Italians, and was now in a similar spirit inclined to modify the rigidly oligarchic constitution of Sulla by concessions to the Populares. There were, moreover, the Populares strictly so called, the honestly credulous narrow-minded radicals, who staked property and life for the current watchwords of the party-programme, only to discover with painful surprise after the victory that they had been fighting not for a reality, but for a phrase. Their special aim was to re-establish the tribunician power, which Sulla had not abolished but had divested of its most essential prerogatives, and which exercised over the multitude a charm all the more mysterious, because the institution had no obvious practical use and was in fact an empty phantom—the mere name of tribune of the people, more than a thousand years later, revolutionized Rome.

Transpadanes

Freedmen

Capitalists

Proletarians of the Capital

The Dispossessed

The Proscribed and Their Adherents

There were, above all, the numerous and important classes whom the Sullan restoration had left unsatisfied, or whose political or private interests it had directly injured. Among those who for such reasons belonged to the opposition ranked the dense and prosperous population of the region between the Po and the Alps, which naturally regarded the bestowal of Latin rights in 665(1) as merely an instalment of the full Roman franchise, and so afforded a ready soil for agitation. To this category belonged also the freedmen, influential in numbers and wealth, and specially dangerous

through their aggregation in the capital, who could not brook their having been reduced by the restoration to their earlier, practically useless, suffrage. In the same position stood, moreover, the great capitalists, who maintained a cautious silence, but still as before preserved their tenacity of resentment and their equal tenacity of power. The populace of the capital, which recognized true freedom in free bread-corn, was likewise discontented. Still deeper exasperation prevailed among the burgess-bodies affected by the Sullan confiscations—whether they like those of Pompeii, lived on their property curtailed by the Sullan colonists, within the same ring-wall with the latter, and at perpetual variance with them; or, like the Arretines and Volaterrans, retained actual possession of their territory, but had the Damocles' sword of confiscation suspended over them by the Roman people; or, as was the case in Etruria especially, were reduced to be beggars in their former abodes, or robbers in the woods. Finally, the agitation extended to the whole family connections and freedmen of those democratic chiefs who had lost their lives in consequence of the restoration, or who were wandering along the Mauretanian coasts, or sojourning at the court and in the army of Mithradates, in all the misery of emigrant exile; for, according to the strict family-associations that governed the political feeling of this age, it was accounted a point of honour⁽²⁾ that those who were left behind should endeavour to procure for exiled relatives the privilege of returning to their native land, and, in the case of the dead, at least a removal of the stigma attaching to their memory and to their children, and a restitution to the latter of their paternal estate. More especially the immediate children of the proscribed, whom the regent had reduced in point of law to political Pariahs,⁽³⁾ had thereby virtually received from the law itself a summons to rise in rebellion against the existing order of things.

Men of Ruined Fortunes

Men of Ambition

To all these sections of the opposition there was added the whole body of men of ruined fortunes. All the rabble high and low, whose means and substance had been spent in refined or in vulgar debauchery; the aristocratic lords, who had no farther mark of quality than their debts; the Sullan troopers whom the regent's fiat could transform into landholders but not into husbandmen, and who, after squandering the first inheritance of the proscribed, were longing to succeed to a second—all these waited only the unfolding of the banner which invited them to fight against the existing order of things, whatever else might be inscribed on it. From a like necessity all the aspiring men of talent, in search of popularity, attached themselves to the opposition; not only those to whom the strictly closed circle of the Optimates denied admission or at least opportunities for rapid promotion, and who therefore attempted to force their way into the phalanx and to break through the laws of oligarchic exclusiveness and seniority by means of popular favour, but also the more dangerous men, whose ambition aimed at something higher than helping to determine the destinies of the world within the sphere of collegiate intrigues. On the advocates' platform in particular—the only field of legal opposition left open by Sulla—even in the regent's lifetime such aspirants waged lively war against the restoration with the weapons of formal jurisprudence and combative oratory: for instance, the adroit speaker Marcus Tullius Cicero (born 3rd January 648), son of a landholder of Arpinum, speedily made himself a name by the mingled caution and boldness of his opposition to the dictator. Such efforts were not of much importance, if the opponent desired nothing farther than by their means to procure for himself a curule chair, and then to sit in it in contentment for the rest of his life. No doubt, if this chair should not satisfy a popular man and Gaius Gracchus should find a successor, a struggle for life or death was inevitable; but for the present at least no name could be mentioned, the bearer of which had proposed to himself any such lofty aim.

Power of the Opposition

Such was the sort of opposition with which the oligarchic government instituted by Sulla had to contend, when it had, earlier than Sulla himself probably expected, been thrown by his death on its own resources. The task was in itself far from easy, and it was rendered more difficult by the other social and political evils of this age—especially by the extraordinary double difficulty of keeping the military chiefs in the provinces in subjection to the supreme civil magistracy, and of dealing with the masses of the Italian and extra-Italian populace accumulating in the capital, and of the slaves living there to a great extent in de facto freedom, without having troops at disposal. The senate was placed as it were, in a fortress exposed and threatened on all sides, and serious conflicts could not fail to ensue. But the means of resistance organized by Sulla were considerable and lasting; and although the majority of the nation was manifestly disinclined to the government which Sulla had installed, and even animated by hostile feelings towards it, that government might very well maintain itself for a long time in its stronghold against the distracted and confused mass of an opposition which was not agreed either as to end or means, and, having no head, was broken up into a hundred fragments. Only it was necessary that it should be determined to maintain its position, and should bring at least a spark of that energy, which had built the fortress, to its defence; for in the case of a garrison which will not defend itself, the greatest master of fortification constructs his walls and moats in vain.

Want of Leaders

Coterie-Systems

The more everything ultimately depended on the personality of the leading men on both sides, it was the more unfortunate that both, strictly speaking, lacked leaders. The politics of this period were thoroughly under the sway of the coterie-system in its worst form. This, indeed, was nothing new; close unions of families and clubs were inseparable from an

aristocratic organization of the state, and had for centuries prevailed in Rome. But it was not till this epoch that they became all-powerful, for it was only now (first in 690) that their influence was attested rather than checked by legal measures of repression.

All persons of quality, those of popular leanings no less than the oligarchy proper, met in Hetaeriae; the mass of the burgesses likewise, so far as they took any regular part in political events at all, formed according to their voting-districts close unions with an almost military organization, which found their natural captains and agents in the presidents of the districts, "tribe- distributors" (-divisores tribuum-). With these political clubs everything was bought and sold; the vote of the elector especially, but also the votes of the senator and the judge, the fists too which produced the street riot, and the ringleaders who directed it—the associations of the upper and of the lower ranks were distinguished merely in the matter of tariff. The Hetaeria decided the elections, the Hetaeria decreed the impeachments, the Hetaeria conducted the defence; it secured the distinguished advocate, and in case of need it contracted for an acquittal with one of the speculators who pursued on a great scale lucrative dealings in judges' votes. The Hetaeria commanded by its compact bands the streets of the capital, and with the capital but too often the state. All these things were done in accordance with a certain rule, and, so to speak, publicly; the system of Hetaeriae was better organized and managed than any branch of state administration; although there was, as is usual among civilized swindlers, a tacit understanding that there should be no direct mention of the nefarious proceedings, nobody made a secret of them, and advocates of repute were not ashamed to give open and intelligible hints of their relation to the Hetaeriae of their clients. If an individual was to be found here or there who kept aloof from such doings and yet did not forgo public life, he was assuredly, like Marcus Cato, a political Don Quixote. Parties and party-strife were superseded by the clubs and their rivalry; government was

superseded by intrigue. A more than equivocal character, Publius Cethegus, formerly one of the most zealous Marians, afterwards as a deserter received into favour by Sulla,(4) acted a most influential part in the political doings of this period—unrivalled as a cunning tale-bearer and mediator between the sections of the senate, and as having a statesman's acquaintance with the secrets of all cabals: at times the appointment to the most important posts of command was decided by a word from his mistress Praecia. Such a plight was only possible where none of the men taking part in politics rose above mediocrity: any man of more than ordinary talent would have swept away this system of factions like cobwebs; but there was in reality the saddest lack of men of political or military capacity.

Phillipus

Metellus, Catulus, the Luculli

Of the older generation the civil wars had left not a single man of repute except the old shrewd and eloquent Lucius Philippus (consul in 663), who, formerly of popular leanings,(5) thereafter leader of the capitalist party against the senate,(6) and closely associated with the Marians,(7) and lastly passing over to the victorious oligarchy in sufficient time to earn thanks and commendation,(8) had managed to escape between the parties. Among the men of the following generation the most notable chiefs of the pure aristocracy were Quintus Metellus Pius (consul in 674), Sulla's comrade in dangers and victories; Quintus Lutatius Catulus, consul in the year of Sulla's death, 676, the son of the victor of Vercellae; and two younger officers, the brothers Lucius and Marcus Lucullus, of whom the former had fought with distinction under Sulla in Asia, the latter in Italy; not to mention Optimates like Quintus Hortensius (640-704), who had importance only as a pleader, or men like Decimus Junius Brutus (consul in 677), Mamercus Aemilius Lepidus Livianus (consul in 677), and other such nullities, whose best quality was a euphonious aristocratic name. But even those four men

rose little above the average calibre of the Optimates of this age. Catulus was like his father a man of refined culture and an honest aristocrat, but of moderate talents and, in particular, no soldier. Metellus was not merely estimable in his personal character, but an able and experienced officer; and it was not so much on account of his close relations as a kinsman and colleague with the regent as because of his recognized ability that he was sent in 675, after resigning the consulship, to Spain, where the Lusitanians and the Roman emigrants under Quintus Sertorius were bestirring themselves afresh. The two Luculli were also capable officers—particularly the elder, who combined very respectable military talents with thorough literary culture and leanings to authorship, and appeared honourable also as a man. But, as statesmen, even these better aristocrats were not much less remiss and shortsighted than the average senators of the time. In presence of an outward foe the more eminent among them, doubtless, proved themselves useful and brave; but no one of them evinced the desire or the skill to solve the problems of politics proper, and to guide the vessel of the state through the stormy sea of intrigues and factions as a true pilot. Their political wisdom was limited to a sincere belief in the oligarchy as the sole means of salvation, and to a cordial hatred and courageous execration of demagogism as well as of every individual authority which sought to emancipate itself. Their petty ambition was contented with little. The stories told of Metellus in Spain—that he not only allowed himself to be delighted with the far from harmonious lyre of the Spanish occasional poets, but even wherever he went had himself received like a god with libations of wine and odours of incense, and at table had his head crowned by descending Victories amidst theatrical thunder with the golden laurel of the conqueror — are no better attested than most historical anecdotes; but even such gossip reflects the degenerate ambition of the generations of Epigoni. Even the better men were content when they had gained not power and influence, but the consulship and a triumph and a place of honour in the senate; and at

the very time when with right ambition they would have just begun to be truly useful to their country and their party, they retired from the political stage to be lost in princely luxury. Men like Metellus and Lucius Lucullus were, even as generals, not more attentive to the enlargement of the Roman dominion by fresh conquests of kings and peoples than to the enlargement of the endless game, poultry, and dessert lists of Roman gastronomy by new delicacies from Africa and Asia Minor, and they wasted the best part of their lives in more or less ingenious idleness. The traditional aptitude and the individual self-denial, on which all oligarchic government is based, were lost in the decayed and artificially restored Roman aristocracy of this age; in its judgment universally the spirit of clique was accounted as patriotism, vanity as ambition, and narrow-mindedness as consistency. Had the Sullan constitution passed into the guardianship of men such as have sat in the Roman College of Cardinals or the Venetian Council of Ten, we cannot tell whether the opposition would have been able to shake it so soon; with such defenders every attack involved, at all events, a serious peril.

Pompeius

Of the men, who were neither unconditional adherents nor open opponents of the Sullan constitution, no one attracted more the eyes of the multitude than the young Gnaeus Pompeius, who was at the time of Sulla's death twenty-eight years of age (born 29th September 648). The fact was a misfortune for the admired as well as for the admirers; but it was natural. Sound in body and mind, a capable athlete, who even when a superior officer vied with his soldiers in leaping, running, and lifting, a vigorous and skilled rider and fencer, a bold leader of volunteer bands, the youth had become Imperator and triumphator at an age which excluded him from every magistracy and from the senate, and had acquired the first place next to Sulla in public opinion; nay, had obtained from the indulgent regent himself—half in recognition, half in irony— the surname of the Great.

Unhappily, his mental endowments by no means corresponded with these unprecedented successes. He was neither a bad nor an incapable man, but a man thoroughly ordinary, created by nature to be a good sergeant, called by circumstances to be a general and a statesman. An intelligent, brave and experienced, thoroughly excellent soldier, he was still, even in his military capacity, without trace of any higher gifts. It was characteristic of him as a general, as well as in other respects, to set to work with a caution bordering on timidity, and, if possible, to give the decisive blow only when he had established an immense superiority over his opponent. His culture was the average culture of the time; although entirely a soldier, he did not neglect, when he went to Rhodes, dutifully to admire, and to make presents to, the rhetoricians there. His integrity was that of a rich man who manages with discretion his considerable property inherited and acquired. He did not disdain to make money in the usual senatorial way, but he was too cold and too rich to incur special risks, or draw down on himself conspicuous disgrace, on that account. The vice so much in vogue among his contemporaries, rather than any virtue of his own, procured for him the reputation—comparatively, no doubt, well warranted—of integrity and disinterestedness. His "honest countenance" became almost proverbial, and even after his death he was esteemed as a worthy and moral man; he was in fact a good neighbour, who did not join in the revolting schemes by which the grandees of that age extended the bounds of their domains through forced sales or measures still worse at the expense of their humbler neighbours, and in domestic life he displayed attachment to his wife and children: it redounds moreover to his credit that he was the first to depart from the barbarous custom of putting to death the captive kings and generals of the enemy, after they had been exhibited in triumph. But this did not prevent him from separating from his beloved wife at the command of his lord and master Sulla, because she belonged to an outlawed family, nor from ordering with great composure that men who had stood by him and

helped him in times of difficulty should be executed before his eyes at the nod of the same master:(9) he was not cruel, though he was reproached with being so, but—what perhaps was worse— he was cold and, in good as in evil, unimpassioned. In the tumult of battle he faced the enemy fearlessly; in civil life he was a shy man, whose cheek flushed on the slightest occasion; he spoke in public not without embarrassment, and generally was angular, stiff, and awkward in intercourse. With all his haughty obstinacy he was— as indeed persons ordinarily are, who make a display of their independence—a pliant tool in the hands of men who knew how to manage him, especially of his freedmen and clients, by whom he had no fear of being controlled. For nothing was he less qualified than for a statesman. Uncertain as to his aims, unskilful in the choice of his means, alike in little and great matters shortsighted and helpless, he was wont to conceal his irresolution and indecision under a solemn silence, and, when he thought to play a subtle game, simply to deceive himself with the belief that he was deceiving others. By his military position and his territorial connections he acquired almost without any action of his own a considerable party personally devoted to him, with which the greatest things might have been accomplished; but Pompeius was in every respect incapable of leading and keeping together a party, and, if it still kept together, it did so—in like manner without his action—through the sheer force of circumstances. In this, as in other things, he reminds us of Marius; but Marius, with his nature of boorish roughness and sensuous passion, was still less intolerable than this most tiresome and most starched of all artificial great men. His political position was utterly perverse. He was a Sullan officer and under obligation to stand up for the restored constitution, and yet again in opposition to Sulla personally as well as to the whole senatorial government. The gens of the Pompeii, which had only been named for some sixty years in the consular lists, had by no means acquired full standing in the eyes of the aristocracy; even the father of this Pompeius had occupied a very invidious equivocal

position towards the senate,(10) and he himself had once been in the ranks of the Cinnans(11)—recollections which were suppressed perhaps, but not forgotten. The prominent position which Pompeius acquired for himself under Sulla set him at inward variance with the aristocracy, quite as much as it brought him into outward connection with it. Weak-headed as he was, Pompeius was seized with giddiness on the height of glory which he had climbed with such dangerous rapidity and ease. Just as if he would himself ridicule his dry prosaic nature by the parallel with the most poetical of all heroic figures, he began to compare himself with Alexander the Great, and to account himself a man of unique standing, whom it did not beseem to be merely one of the five hundred senators of Rome. In reality, no one was more fitted to take his place as a member of an aristocratic government than Pompeius. His dignified outward appearance, his solemn formality, his personal bravery, his decorous private life, his want of all initiative might have gained for him, had he been born two hundred years earlier, an honourable place by the side of Quintus Maximus and Publius Decius: this mediocrity, so characteristic of the genuine Optimate and the genuine Roman, contributed not a little to the elective affinity which subsisted at all times between Pompeius and the mass of the burgesses and the senate. Even in his own age he would have had a clearly defined and respectable position had he contented himself with being the general of the senate, for which he was from the outset destined. With this he was not content, and so he fell into the fatal plight of wishing to be something else than he could be. He was constantly aspiring to a special position in the state, and, when it offered itself, he could not make up his mind to occupy it; he was deeply indignant when persons and laws did not bend unconditionally before him, and yet he everywhere bore himself with no mere affectation of modesty as one of many peers, and trembled at the mere thought of undertaking anything unconstitutional. Thus constantly at fundamental variance with, and yet at the same time the obedient servant of, the oligarchy, constantly

tormented by an ambition which was frightened at its own aims, his much-agitated life passed joylessly away in a perpetual inward contradiction.

Crassus

Marcus Crassus cannot, any more than Pompeius, be reckoned among the unconditional adherents of the oligarchy. He is a personage highly characteristic of this epoch. Like Pompeius, whose senior he was by a few years, he belonged to the circle of the high Roman aristocracy, had obtained the usual education befitting his rank, and had like Pompeius fought with distinction under Sulla in the Italian war. Far inferior to many of his peers in mental gifts, literary culture, and military talent, he outstripped them by his boundless activity, and by the perseverance with which he strove to possess everything and to become all-important. Above all, he threw himself into speculation. Purchases of estates during the revolution formed the foundation of his wealth; but he disdained no branch of gain; he carried on the business of building in the capital on a great scale and with prudence; he entered into partnership with his freedmen in the most varied undertakings; he acted as banker both in and out of Rome, in person or by his agents; he advanced money to his colleagues in the senate, and undertook— as it might happen—to execute works or to bribe the tribunals on their account. He was far from nice in the matter of making profit. On occasion of the Sullan proscriptions a forgery in the lists had been proved against him, for which reason Sulla made no more use of him thenceforward in the affairs of state: he did not refuse to accept an inheritance, because the testamentary document which contained his name was notoriously forged; he made no objection, when his bailiffs by force or by fraud dislodged the petty holders from lands which adjoined his own. He avoided open collisions, however, with criminal justice, and lived himself like a genuine moneyed man in homely and simple style. In this way Crassus rose in the course of a few years from a man of ordinary senatorial fortune to be the master of wealth

which not long before his death, after defraying enormous extraordinary expenses, still amounted to 170,000,000 sesterces (1,700,000 pounds). He had become the richest of Romans and thereby, at the same time, a great political power. If, according to his expression, no one might call himself rich who could not maintain an army from his revenues, one who could do this was hardly any longer a mere citizen. In reality the views of Crassus aimed at a higher object than the possession of the best-filled money-chest in Rome. He grudged no pains to extend his connections. He knew how to salute by name every burgess of the capital. He refused to no suppliant his assistance in court. Nature, indeed, had not done much for him as an orator: his speaking was dry, his delivery monotonous, he had difficulty of hearing; but his tenacity of purpose, which no wearisomeness deterred and no enjoyment distracted, overcame such obstacles. He never appeared unprepared, he never extemporized, and so he became a pleader at all times in request and at all times ready; to whom it was no derogation that a cause was rarely too bad for him, and that he knew how to influence the judges not merely by his oratory, but also by his connections and, on occasion, by his gold. Half the senate was in debt to him; his habit of advancing to "friends" money without interest revocable at pleasure rendered a number of influential men dependent on him, and the more so that, like a genuine man of business, he made no distinction among the parties, maintained connections on all hands, and readily lent to every one who was able to pay or otherwise useful. The most daring party-leaders, who made their attacks recklessly in all directions, were careful not to quarrel with Crassus; he was compared to the bull of the herd, whom it was advisable for none to provoke. That such a man, so disposed and so situated, could not strive after humble aims is clear; and, in a very different way from Pompeius, Crassus knew exactly like a banker the objects and the means of political speculation. From the origin of Rome capital was a political power there; the age was of such a sort, that everything seemed accessible to gold as to

iron. If in the time of revolution a capitalist aristocracy might have thought of overthrowing the oligarchy of the gentes, a man like Crassus might raise his eyes higher than to the -fasces- and embroidered mantle of the triumphators. For the moment he was a Sullan and adherent of the senate; but he was too much of a financier to devote himself to a definite political party, or to pursue aught else than his personal advantage. Why should Crassus, the wealthiest and most intriguing man in Rome, and no penurious miser but a speculator on the greatest scale, not speculate also on the crown? Alone, perhaps, he could not attain this object; but he had already carried out various great transactions in partnership; it was not impossible that for this also a suitable partner might present himself. It is a trait characteristic of the time, that a mediocre orator and officer, a politician who took his activity for energy and his covetousness for ambition, one who at bottom had nothing but a colossal fortune and the mercantile talent of forming connections—that such a man, relying on the omnipotence of coteries and intrigues, could deem himself on a level with the first generals and statesmen of his day, and could contend with them for the highest prize which allures political ambition.

Leaders of the Democrats

In the opposition proper, both among the liberal conservatives and among the Populares, the storms of revolution had made fearful havoc. Among the former, the only surviving man of note was Gaius Cotta (630-c. 681), the friend and ally of Drusus, and as such banished in 663,(12) and then by Sulla's victory brought back to his native land;(13) he was a shrewd man and a capable advocate, but not called, either by the weight of his party or by that of his personal standing, to act more than a respectable secondary part. In the democratic party, among the rising youth, Gaius Julius Caesar, who was twenty-four years of age (born 12 July 652?(14)), drew towards him the eyes of friend and foe. His relationship with Marius and Cinna (his

father's sister had been the wife of Marius, he himself had married Cinna's daughter); the courageous refusal of the youth who had scarce outgrown the age of boyhood to send a divorce to his young wife Cornelia at the bidding of the dictator, as Pompeius had in the like case done; his bold persistence in the priesthood conferred upon him by Marius, but revoked by Sulla; his wanderings during the proscription with which he was threatened, and which was with difficulty averted by the intercession of his relatives; his bravery in the conflicts before Mytilene and in Cilicia, a bravery which no one had expected from the tenderly reared and almost effeminately foppish boy; even the warnings of Sulla regarding the "boy in the petticoat" in whom more than a Marius lay concealed—all these were precisely so many recommendations in the eyes of the democratic party. But Caesar could only be the object of hopes for the future; and the men who from their age and their public position would have been called now to seize the reins of the party and the state, were all dead or in exile.

Lepidus

Thus the leadership of the democracy, in the absence of a man with a true vocation for it, was to be had by any one who might please to give himself forth as the champion of oppressed popular freedom; and in this way it came to Marcus Aemilius Lepidus, a Sullan, who from motives more than ambiguous deserted to the camp of the democracy. Once a zealous Optimate, and a large purchaser at the auctions of the proscribed estates, he had, as governor of Sicily, so scandalously plundered the province that he was threatened with impeachment, and, to evade it, threw himself into opposition. It was a gain of doubtful value. No doubt the opposition thus acquired a well-known name, a man of quality, a vehement orator in the Forum; but Lepidus was an insignificant and indiscreet personage, who did not deserve to stand at the head either in council or in the field. Nevertheless the opposition welcomed him, and the new leader of the

democrats succeeded not only in deterring his accusers from prosecuting the attack on him which they had begun, but also in carrying his election to the consulship for 676; in which, we may add, he was helped not only by the treasures exacted in Sicily, but also by the foolish endeavour of Pompeius to show Sulla and the pure Sullans on this occasion what he could do. Now that the opposition had, on the death of Sulla, found a head once more in Lepidus, and now that this their leader had become the supreme magistrate of the state, the speedy outbreak of a new revolution in the capital might with certainty be foreseen.

The Emigrants in Spain Sertorius

But even before the democrats moved in the capital, the democratic emigrants had again bestirred themselves in Spain. The soul of this movement was Quintus Sertorius. This excellent man, a native of Nursia in the Sabine land, was from the first of a tender and even soft organization—as his almost enthusiastic love for his mother, Raia, shows—and at the same time of the most chivalrous bravery, as was proved by the honourable scars which he brought home from the Cimbrian, Spanish, and Italian wars. Although wholly untrained as an orator, he excited the admiration of learned advocates by the natural flow and the striking self-possession of his address. His remarkable military and statesmanly talent had found opportunity of shining by contrast, more particularly in the revolutionary war which the democrats so wretchedly and stupidly mismanaged; he was confessedly the only democratic officer who knew how to prepare and to conduct war, and the only democratic statesman who opposed the insensate and furious doings of his party with statesmanlike energy. His Spanish soldiers called him the new Hannibal, and not merely because he had, like that hero, lost an eye in war. He in reality reminds us of the great Phoenician by his equally cunning and courageous strategy, by his rare

talent of organizing war by means of war, by his adroitness in attracting foreign nations to his interest and making them serviceable to his ends, by his prudence in success and misfortune, by the quickness of his ingenuity in turning to good account his victories and averting the consequences of his defeats. It may be doubted whether any Roman statesman of the earlier period, or of the present, can be compared in point of versatile talent to Sertorius. After Sulla's generals had compelled him to quit Spain,(15) he had led a restless life of adventure along the Spanish and African coasts, sometimes in league, sometimes at war, with the Cilician pirates who haunted these seas, and with the chieftains of the roving tribes of Libya. The victorious Roman restoration had pursued him even thither: when he was besieging Tingis (Tangiers), a corps under Pacciaecus from Roman Africa had come to the help of the prince of the town; but Pacciaecus was totally defeated, and Tingis was taken by Sertorius. On the report of such achievements by the Roman refugee spreading abroad, the Lusitanians, who, notwithstanding their pretended submission to the Roman supremacy, practically maintained their independence, and annually fought with the governors of Further Spain, sent envoys to Sertorius in Africa, to invite him to join them, and to commit to him the command of their militia.

Renewed Outbreak of the Spanish Insurrection

Metellus Sent to Spain

Sertorius, who twenty years before had served under Titus Didius in Spain and knew the resources of the land, resolved to comply with the invitation, and, leaving behind a small detachment on the Mauretanian coast, embarked for Spain (about 674). The straits separating Spain and Africa were occupied by a Roman squadron commanded by Cotta; to steal through it was impossible; so Sertorius fought his way through and succeeded in reaching the Lusitanians. There were not more than twenty Lusitanian communities that placed themselves under his orders; and even

of "Romans" he mustered only 2600 men, a considerable part of whom were deserters from the army of Pacciaecus or Africans armed after the Roman style. Sertorius saw that everything depended on his associating with the loose guerilla-bands a strong nucleus of troops possessing Roman organization and discipline: for this end he reinforced the band which he had brought with him by levying 4000 infantry and 700 cavalry, and with this one legion and the swarms of Spanish volunteers advanced against the Romans. The command in Further Spain was held by Lucius Fufidius, who through his absolute devotion to Sulla—well tried amidst the proscriptions—had risen from a subaltern to be proprætor; he was totally defeated on the Baetis; 2000 Romans covered the field of battle. Messengers in all haste summoned the governor of the adjoining province of the Ebro, Marcus Domitius Calvinus, to check the farther advance of the Sertorians; and there soon appeared (675) also the experienced general Quintus Metellus, sent by Sulla to relieve the incapable Fufidius in southern Spain. But they did not succeed in mastering the revolt. In the Ebro province not only was the army of Calvinus destroyed and he himself slain by the lieutenant of Sertorius, the quaestor Lucius Hirtuleius, but Lucius Manlius, the governor of Transalpine Gaul, who had crossed the Pyrenees with three legions to the help of his colleague, was totally defeated by the same brave leader. With difficulty Manlius escaped with a few men to Ilerda (Lerida) and thence to his province, losing on the march his whole baggage through a sudden attack of the Aquitanian tribes. In Further Spain Metellus penetrated into the Lusitanian territory; but Sertorius succeeded during the siege of Longobriga (not far from the mouth of the Tagus) in alluring a division under Aquinus into an ambush, and thereby compelling Metellus himself to raise the siege and to evacuate the Lusitanian territory. Sertorius followed him, defeated on the Anas (Guadiana) the corps of Thorius, and inflicted vast damage by guerilla warfare on the army of the commander-in-chief himself. Metellus, a methodical and somewhat clumsy tactician, was in

despair as to this opponent, who obstinately declined a decisive battle, but cut off his supplies and communications and constantly hovered round him on all sides.

Organizations of Sertorius

These extraordinary successes obtained by Sertorius in the two Spanish provinces were the more significant, that they were not achieved merely by arms and were not of a mere military nature. The emigrants as such were not formidable; nor were isolated successes of the Lusitanians under this or that foreign leader of much moment. But with the most decided political and patriotic tact Sertorius acted, whenever he could do so, not as condottiere of the Lusitanians in revolt against Rome, but as Roman general and governor of Spain, in which capacity he had in fact been sent thither by the former rulers. He began⁽¹⁶⁾ to form the heads of the emigration into a senate, which was to increase to 300 members and to conduct affairs and to nominate magistrates in Roman form. He regarded his army as a Roman one, and filled the officers' posts, without exception, with Romans. When facing the Spaniards, he was the governor, who by virtue of his office levied troops and other support from them; but he was a governor who, instead of exercising the usual despotic sway, endeavoured to attach the provincials to Rome and to himself personally. His chivalrous character rendered it easy for him to enter into Spanish habits, and excited in the Spanish nobility the most ardent enthusiasm for the wonderful foreigner who had a spirit so kindred with their own. According to the warlike custom of personal following which subsisted in Spain as among the Celts and the Germans, thousands of the noblest Spaniards swore to stand faithfully by their Roman general unto death; and in them Sertorius found more trustworthy comrades than in his countrymen and party-associates. He did not disdain to turn to account the superstition of the ruder Spanish tribes, and to have his plans of war brought to him as commands of Diana by the white fawn of the

goddess. Throughout he exercised a just and gentle rule. His troops, at least so far as his eye and his arm reached, had to maintain the strictest discipline. Gentle as he generally was in punishing, he showed himself inexorable when any outrage was perpetrated by his soldiers on friendly soil. Nor was he inattentive to the permanent alleviation of the condition of the provincials; he reduced the tribute, and directed the soldiers to construct winter barracks for themselves, so that the oppressive burden of quartering the troops was done away and thus a source of unspeakable mischief and annoyance was stopped. For the children of Spaniards of quality an academy was erected at Osca (Huesca), in which they received the higher instruction usual in Rome, learning to speak Latin and Greek, and to wear the toga—a remarkable measure, which was by no means designed merely to take from the allies in as gentle a form as possible the hostages that in Spain were inevitable, but was above all an emanation from, and an advance on the great project of Gaius Gracchus and the democratic party for gradually Romanizing the provinces. It was the first attempt to accomplish their Romanization not by extirpating the old inhabitants and filling their places with Italian emigrants, but by Romanizing the provincials themselves. The Optimates in Rome sneered at the wretched emigrant, the runaway from the Italian army, the last of the robber-band of Carbo; the sorry taunt recoiled upon its authors. The masses that had been brought into the field against Sertorius were reckoned, including the Spanish general levy, at 120,000 infantry, 2000 archers and slingers, and 6000 cavalry. Against this enormous superiority of force Sertorius had not only held his ground in a series of successful conflicts and victories, but had also reduced the greater part of Spain under his power. In the Further province Metellus found himself confined to the districts immediately occupied by his troops; here all the tribes, who could, had taken the side of Sertorius. In the Hither province, after the victories of Hirtuleius, there no longer existed a Roman army. Emissaries of Sertorius roamed through the whole territory of Gaul;

there, too, the tribes began to stir, and bands gathering together began to make the Alpine passes insecure. Lastly the sea too belonged quite as much to the insurgents as to the legitimate government, since the allies of the former—the pirates—were almost as powerful in the Spanish waters as the Roman ships of war. At the promontory of Diana (now Denia, between Valencia and Alicante) Sertorius established for the corsairs a fixed station, where they partly lay in wait for such Roman ships as were conveying supplies to the Roman maritime towns and the army, partly carried away or delivered goods for the insurgents, and partly formed their medium of intercourse with Italy and Asia Minor. The constant readiness of these men moving to and fro to carry everywhere sparks from the scene of conflagration tended in a high degree to excite apprehension, especially at a time when so much combustible matter was everywhere accumulated in the Roman empire.

Death of Sulla and Its Consequences

Amidst this state of matters the sudden death of Sulla took place (676). So long as the man lived, at whose voice a trained and trustworthy army of veterans was ready any moment to rise, the oligarchy might tolerate the almost (as it seemed) definite abandonment of the Spanish provinces to the emigrants, and the election of the leader of the opposition at home to be supreme magistrate, at all events as transient misfortunes; and in their shortsighted way, yet not wholly without reason, might cherish confidence either that the opposition would not venture to proceed to open conflict, or that, if it did venture, he who had twice saved the oligarchy would set it up a third time. Now the state of things was changed. The democratic Hotspurs in the capital, long impatient of the endless delay and inflamed by the brilliant news from Spain, urged that a blow should be struck; and Lepidus, with whom the decision for the moment lay, entered into the proposal with all the zeal of a renegade and with his own characteristic frivolity. For a

moment it seemed as if the torch which kindled the funeral pile of the regent would also kindle civil war; but the influence of Pompeius and the temper of the Sullan veterans induced the opposition to let the obsequies of the regent pass over in peace.

Insurrection of Lepidus

Yet all the more openly were arrangements thenceforth made to introduce a fresh revolution. Daily the Forum resounded with accusations against the "mock Romulus" and his executioners. Even before the great potentate had closed his eyes, the overthrow of the Sullan constitution, the re-establishment of the distributions of grain, the reinstating of the tribunes of the people in their former position, the recall of those who were banished contrary to law, the restoration of the confiscated lands, were openly indicated by Lepidus and his adherents as the objects at which they aimed. Now communications were entered into with the proscribed; Marcus Perpenna, governor of Sicily in the days of Cinna,(17) arrived in the capital. The sons of those whom Sulla had declared guilty of treason—on whom the laws of the restoration bore with intolerable severity—and generally the more noted men of Marian views were invited to give their accession. Not a few, such as the young Lucius Cinna, joined the movement; others, however, followed the example of Gaius Caesar, who had returned home from Asia on receiving the accounts of the death of Sulla and of the plans of Lepidus, but after becoming more accurately acquainted with the character of the leader and of the movement prudently withdrew. Carousing and recruiting went on in behalf of Lepidus in the taverns and brothels of the capital. At length a conspiracy against the new order of things was concocted among the Etruscan malcontents.(18)

All this took place under the eyes of the government. The consul Catulus as well as the more judicious Optimates urged an immediate decisive

interference and suppression of the revolt in the bud; the indolent majority, however, could not make up their minds to begin the struggle, but tried to deceive themselves as long as possible by a system of compromises and concessions. Lepidus also on his part at first entered into it. The suggestion, which proposed a restoration of the prerogatives taken away from the tribunes of the people, he as well as his colleague Catulus repelled. On the other hand, the Gracchan distribution of grain was to a limited extent re-established. According to it not all (as according to the Sempronian law) but only a definite number—presumably 40,000—of the poorer burgesses appear to have received the earlier largesses, as Gracchus had fixed them, of five -modii- monthly at the price of 6 1/3 -asses- (3 pence)—a regulation which occasioned to the treasury an annual net loss of at least 40,000 pounds.(19) The opposition, naturally as little satisfied as it was decidedly emboldened by this partial concession, displayed all the more rudeness and violence in the capital; and in Etruria, the true centre of all insurrections of the Italian proletariat, civil war already broke out, the dispossessed Faesulans resumed possession of their lost estates by force of arms, and several of the veterans settled there by Sulla perished in the tumult. The senate on learning what had occurred resolved to send the two consuls thither, in order to raise troops and suppress the insurrection.(20) It was impossible to adopt a more irrational course. The senate, in presence of the insurrection, evinced its pusillanimity and its fears by the re-establishment of the corn-law; in order to be relieved from a street-riot, it furnished the notorious head of the insurrection with an army; and, when the two consuls were bound by the most solemn oath which could be contrived not to turn the arms entrusted to them against each other, it must have required the superhuman obduracy of oligarchic consciences to think of erecting such a bulwark against the impending insurrection. Of course Lepidus armed in Etruria not for the senate, but for the insurrection—sarcastically declaring that the oath which he had taken bound him only for the current year. The

senate put the oracular machinery in motion to induce him to return, and committed to him the conduct of the impending consular elections; but Lepidus evaded compliance, and, while messengers passed to and fro and the official year drew to an end amidst proposals of accommodation, his force swelled to an army. When at length, in the beginning of the following year (677), the definite order of the senate was issued to Lepidus to return without delay, the proconsul haughtily refused obedience, and demanded in his turn the renewal of the former tribunician power, the reinstatement of those who had been forcibly ejected from their civic rights and their property, and, besides this, his own re-election as consul for the current year or, in other words, the -tyrannis- in legal form.

Outbreak of the War

Lepidus Defeated

Death of Lepidus

Thus war was declared. The senatorial party could reckon, in addition to the Sullan veterans whose civil existence was threatened by Lepidus, upon the army assembled by the proconsul Catulus; and so, in compliance with the urgent warnings of the more sagacious, particularly of Philippus, Catulus was entrusted by the senate with the defence of the capital and the repelling of the main force of the democratic party stationed in Etruria. At the same time Gnaeus Pompeius was despatched with another corps to wrest from his former protege the valley of the Po, which was held by Lepidus' lieutenant, Marcus Brutus. While Pompeius speedily accomplished his commission and shut up the enemy's general closely in Mutina, Lepidus appeared before the capital in order to conquer it for the revolution as Marius had formerly done by storm. The right bank of the Tiber fell wholly into his power, and he was able even to cross the river. The decisive battle was fought on the Campus Martius, close under the walls of the city. But Catulus conquered; and Lepidus was compelled to retreat to Etruria, while

another division, under his son Scipio, threw itself into the fortress of Alba. Thereupon the rising was substantially at an end. Mutina surrendered to Pompeius; and Brutus was, notwithstanding the safe-conduct promised to him, subsequently put to death by order of that general. Alba too was, after a long siege, reduced by famine, and the leader there was likewise executed. Lepidus, pressed on two sides by Catulus and Pompeius, fought another engagement on the coast of Etruria in order merely to procure the means of retreat, and then embarked at the port of Cosa for Sardinia from which point he hoped to cut off the supplies of the capital, and to obtain communication with the Spanish insurgents. But the governor of the island opposed to him a vigorous resistance; and he himself died, not long after his landing, of consumption (677), whereupon the war in Sardinia came to an end. A part of his soldiers dispersed; with the flower of the insurrectionary army and with a well-filled chest the late praetor, Marcus Perpenna, proceeded to Liguria, and thence to Spain to join the Sertorians.

Pompeius Extorts the Command in Spain

The oligarchy was thus victorious over Lepidus; but it found itself compelled by the dangerous turn of the Sertorian war to concessions, which violated the letter as well as the spirit of the Sullan constitution. It was absolutely necessary to send a strong army and an able general to Spain; and Pompeius indicated, very plainly, that he desired, or rather demanded, this commission. The pretension was bold. It was already bad enough that they had allowed this secret opponent again to attain an extraordinary command in the pressure of the Lepidian revolution; but it was far more hazardous, in disregard of all the rules instituted by Sulla for the magisterial hierarchy, to invest a man who had hitherto filled no civil office with one of the most important ordinary provincial governorships, under circumstances in which the observance of the legal term of a year was not to be thought of. The oligarchy had thus, even apart from the respect due to their general

Metellus, good reason to oppose with all earnestness this new attempt of the ambitious youth to perpetuate his exceptional position. But this was not easy. In the first place, they had not a single man fitted for the difficult post of general in Spain. Neither of the consuls of the year showed any desire to measure himself against Sertorius; and what Lucius Philippus said in a full meeting of the senate had to be admitted as too true—that, among all the senators of note, not one was able and willing to command in a serious war. Yet they might, perhaps, have got over this, and after the manner of oligarchs, when they had no capable candidate, have filled the place with some sort of makeshift, if Pompeius had merely desired the command and had not demanded it at the head of an army. He had already lent a deaf ear to the injunctions of Catulus that he should dismiss the army; it was at least doubtful whether those of the senate would find a better reception, and the consequences of a breach no one could calculate—the scale of aristocracy might very easily mount up, if the sword of a well-known general were thrown into the opposite scale. So the majority resolved on concession. Not from the people, which constitutionally ought to have been consulted in a case where a private man was to be invested with the supreme magisterial power, but from the senate, Pompeius received proconsular authority and the chief command in Hither Spain; and, forty days after he had received it, crossed the Alps in the summer of 677.

Pompeius in Gaul

First of all the new general found employment in Gaul, where no formal insurrection had broken out, but serious disturbances of the peace had occurred at several places; in consequence of which Pompeius deprived the cantons of the Volcae-Arecomici and the Helvii of their independence, and placed them under Massilia. He also laid out a new road over the Cottian Alps (Mont Genevre,(21)), and so established a shorter communication between the valley of the Po and Gaul. Amidst this work the best season of

the year passed away; it was not till late in autumn that Pompeius crossed the Pyrenees.

Appearance of Pompeius in Spain

Sertorius had meanwhile not been idle. He had despatched Hirtuleius into the Further province to keep Metellus in check, and had himself endeavoured to follow up his complete victory in the Hither province, and to prepare for the reception of Pompeius. The isolated Celtiberian towns there, which still adhered to Rome, were attacked and reduced one after another; at last, in the very middle of winter, the strong Contrebia (south-east of Saragossa) had fallen. In vain the hard-pressed towns had sent message after message to Pompeius; he would not be induced by any entreaties to depart from his wonted rut of slowly advancing. With the exception of the maritime towns, which were defended by the Roman fleet, and the districts of the Indigetes and Laletani in the north-east corner of Spain, where Pompeius established himself after he had at length crossed the Pyrenees, and made his raw troops bivouac throughout the winter to inure them to hardships, the whole of Hither Spain had at the end of 677 become by treaty or force dependent on Sertorius, and the district on the upper and middle Ebro thenceforth continued the main stay of his power. Even the apprehension, which the fresh Roman force and the celebrated name of the general excited in the army of the insurgents, had a salutary effect on it. Marcus Perpenna, who hitherto as the equal of Sertorius in rank had claimed an independent command over the force which he had brought with him from Liguria, was, on the news of the arrival of Pompeius in Spain, compelled by his soldiers to place himself under the orders of his abler colleague.

For the campaign of 678 Sertorius again employed the corps of Hirtuleius against Metellus, while Perpenna with a strong army took up his position

along the lower course of the Ebro to prevent Pompeius from crossing the river, if he should march, as was to be expected, in a southerly direction with the view of effecting a junction with Metellus, and along the coast for the sake of procuring supplies for his troops. The corps of Gaius Herennius was destined to the immediate support of Perpenna; farther inland on the upper Ebro, Sertorius in person prosecuted meanwhile the subjugation of several districts friendly to Rome, and held himself at the same time ready to hasten according to circumstances to the aid of Perpenna or Hirtuleius. It was still his intention to avoid any pitched battle, and to annoy the enemy by petty conflicts and cutting off supplies.

Pompeius Defeated

Pompeius, however, forced the passage of the Ebro against Perpenna and took up a position on the river Pallantias, near Saguntum, whence, as we have already said, the Sertorians maintained their communications with Italy and the east. It was time that Sertorius should appear in person, and throw the superiority of his numbers and of his genius into the scale against the greater excellence of the soldiers of his opponent. For a considerable time the struggle was concentrated around the town of Lauro (on the Xucar, south of Valencia), which had declared for Pompeius and was on that account besieged by Sertorius. Pompeius exerted himself to the utmost to relieve it; but, after several of his divisions had already been assailed separately and cut to pieces, the great warrior found himself—just when he thought that he had surrounded the Sertorians, and when he had already invited the besieged to be spectators of the capture of the besieging army—all of a sudden completely outmanoeuvred; and in order that he might not be himself surrounded, he had to look on from his camp at the capture and reduction to ashes of the allied town and at the carrying off of its inhabitants to Lusitania—an event which induced a number of towns that had been wavering in middle and eastern Spain to adhere anew to Sertorius.

Victories of Metellus

Meanwhile Metellus fought with better fortune. In a sharp engagement at Italica (not far from Seville), which Hirtuleius had imprudently risked, and in which both generals fought hand to hand and Hirtuleius was wounded, Metellus defeated him and compelled him to evacuate the Roman territory proper, and to throw himself into Lusitania. This victory permitted Metellus to unite with Pompeius. The two generals took up their winter-quarters in 678-79 at the Pyrenees, and in the next campaign in 679 they resolved to make a joint attack on the enemy in his position near Valentia. But while Metellus was advancing, Pompeius offered battle beforehand to the main army of the enemy, with a view to wipe out the stain of Lauro and to gain the expected laurels, if possible, alone. With joy Sertorius embraced the opportunity of fighting with Pompeius before Metellus arrived.

Battle on the Sucro

The armies met on the river Sucro (Xucar): after a sharp conflict Pompeius was beaten on the right wing, and was himself carried from the field severely wounded. Afranius no doubt conquered with the left and took the camp of the Sertorians, but during its pillage he was suddenly assailed by Sertorius and compelled also to give way. Had Sertorius been able to renew the battle on the following day, the army of Pompeius would perhaps have been annihilated. But meanwhile Metellus had come up, had overthrown the corps of Perpenna ranged against him, and taken his camp: it was not possible to resume the battle against the two armies united. The successes of Metellus, the junction of the hostile forces, the sudden stagnation after the victory, diffused terror among the Sertorians; and, as not unfrequently happened with Spanish armies, in consequence of this turn of things the greater portion of the Sertorian soldiers dispersed. But the despondency passed away as quickly as it had come; the white fawn, which

represented in the eyes of the multitude the military plans of the general, was soon more popular than ever; in a short time Sertorius appeared with a new army confronting the Romans in the level country to the south of Saguntum (Murviedro), which firmly adhered to Rome, while the Sertorian privateers impeded the Roman supplies by sea, and scarcity was already making itself felt in the Roman camp. Another battle took place in the plains of the river Turia (Guadalaviar), and the struggle was long undecided. Pompeius with the cavalry was defeated by Sertorius, and his brother-in-law and quaestor, the brave Lucius Memmius, was slain; on the other hand Metellus vanquished Perpenna, and victoriously repelled the attack of the enemy's main army directed against him, receiving himself a wound in the conflict. Once more the Sertorian army dispersed. Valentia, which Gaius Herennius held for Sertorius, was taken and razed to the ground. The Romans, probably for a moment, cherished a hope that they were done with their tough antagonist. The Sertorian army had disappeared; the Roman troops, penetrating far into the interior, besieged the general himself in the fortress Clunia on the upper Douro. But while they vainly invested this rocky stronghold, the contingents of the insurgent communities assembled elsewhere; Sertorius stole out of the fortress and even before the expiry of the year stood once more as general at the head of an army.

Again the Roman generals had to take up their winter quarters with the cheerless prospect of an inevitable renewal of their Sisyphean war-toils. It was not even possible to choose quarters in the region of Valentia, so important on account of the communication with Italy and the east, but fearfully devastated by friend and foe; Pompeius led his troops first into the territory of the Vascones⁽²²⁾ (Biscay) and then spent the winter in the territory of the Vaccaeii (about Valladolid), and Metellus even in Gaul.

Indefinite and Perilous Character of the Sertorian War

For five years the Sertorian war thus continued, and still there seemed no prospect of its termination. The state suffered from it beyond description. The flower of the Italian youth perished amid the exhausting fatigues of these campaigns. The public treasury was not only deprived of the Spanish revenues, but had annually to send to Spain for the pay and maintenance of the Spanish armies very considerable sums, which the government hardly knew how to raise. Spain was devastated and impoverished, and the Roman civilization, which unfolded so fair a promise there, received a severe shock; as was naturally to be expected in the case of an insurrectionary war waged with so much bitterness, and but too often occasioning the destruction of whole communities. Even the towns which adhered to the dominant party in Rome had countless hardships to endure; those situated on the coast had to be provided with necessities by the Roman fleet, and the situation of the faithful communities in the interior was almost desperate. Gaul suffered hardly less, partly from the requisitions for contingents of infantry and cavalry, for grain and money, partly from the oppressive burden of the winter-quarters, which rose to an intolerable degree in consequence of the bad harvest of 680; almost all the local treasuries were compelled to betake themselves to the Roman bankers, and to burden themselves with a crushing load of debt. Generals and soldiers carried on the war with reluctance. The generals had encountered an opponent far superior in talent, a tough and protracted resistance, a warfare of very serious perils and of successes difficult to be attained and far from brilliant; it was asserted that Pompeius was scheming to get himself recalled from Spain and entrusted with a more desirable command somewhere else. The soldiers, too, found little satisfaction in a campaign in which not only was there nothing to be got save hard blows and worthless booty, but their very pay was doled out to them with extreme irregularity. Pompeius reported to the senate, at the end of 679, that the pay was two years in arrear, and that the army was threatening to break up. The Roman

government might certainly have obviated a considerable portion of these evils, if they could have prevailed on themselves to carry on the Spanish war with less remissness, to say nothing of better will. In the main, however, it was neither their fault nor the fault of their generals that a genius so superior as that of Sertorius was able to carry on this petty warfare year after year, despite of all numerical and military superiority, on ground so thoroughly favourable to insurrectionary and piratical warfare. So little could its end be foreseen, that the Sertorian insurrection seemed rather as if it would become intermingled with other contemporary revolts and thereby add to its dangerous character. Just at that time the Romans were contending on every sea with piratical fleets, in Italy with the revolted slaves, in Macedonia with the tribes on the lower Danube; and in the east Mithradates, partly induced by the successes of the Spanish insurrection, resolved once more to try the fortune of arms. That Sertorius had formed connections with the Italian and Macedonian enemies of Rome, cannot be distinctly affirmed, although he certainly was in constant intercourse with the Marians in Italy. With the pirates, on the other hand, he had previously formed an avowed league, and with the Pontic king—with whom he had long maintained relations through the medium of the Roman emigrants staying at his court—he now concluded a formal treaty of alliance, in which Sertorius ceded to the king the client-states of Asia Minor, but not the Roman province of Asia, and promised, moreover, to send him an officer qualified to lead his troops, and a number of soldiers, while the king, in turn, bound himself to transmit to Sertorius forty ships and 3000 talents (720,000 pounds). The wise politicians in the capital were already recalling the time when Italy found itself threatened by Philip from the east and by Hannibal from the west; they conceived that the new Hannibal, just like his predecessor, after having by himself subdued Spain, could easily arrive with the forces of Spain in Italy sooner than Pompeius, in order that, like the

Phoenician formerly, he might summon the Etruscans and Samnites to arms against Rome.

Collapse of the Power of Sertorius

But this comparison was more ingenious than accurate. Sertorius was far from being strong enough to renew the gigantic enterprise of Hannibal. He was lost if he left Spain, where all his successes were bound up with the peculiarities of the country and the people; and even there he was more and more compelled to renounce the offensive. His admirable skill as a leader could not change the nature of his troops. The Spanish militia retained its character, untrustworthy as the wave or the wind; now collected in masses to the number of 150,000, now melting away again to a mere handful. The Roman emigrants, likewise, continued insubordinate, arrogant, and stubborn. Those kinds of armed force which require that a corps should keep together for a considerable time, such as cavalry especially, were of course very inadequately represented in his army. The war gradually swept off his ablest officers and the flower of his veterans; and even the most trustworthy communities, weary of being harassed by the Romans and maltreated by the Sertorian officers, began to show signs of impatience and wavering allegiance. It is remarkable that Sertorius, in this respect also like Hannibal, never deceived himself as to the hopelessness of his position; he allowed no opportunity for bringing about a compromise to pass, and would have been ready at any moment to lay down his staff of command on the assurance of being allowed to live peacefully in his native land. But political orthodoxy knows nothing of compromise and conciliation. Sertorius might not recede or step aside; he was compelled inevitably to move on along the path which he had once entered, however narrow and giddy it might become.

The representations which Pompeius addressed to Rome, and which derived emphasis from the behaviour of Mithradates in the east, were successful. He had the necessary supplies of money sent to him by the senate and was reinforced by two fresh legions. Thus the two generals went to work again in the spring of 680 and once more crossed the Ebro. Eastern Spain was wrested from the Sertorians in consequence of the battles on the Xucar and Guadalaviar; the struggle thenceforth became concentrated on the upper and middle Ebro around the chief strongholds of the Sertorians—Calagurris, Osca, Ilerda. As Metellus had done best in the earlier campaigns, so too on this occasion he gained the most important successes. His old opponent Hirtuleius, who again confronted him, was completely defeated and fell himself along with his brother—an irreparable loss for the Sertorians. Sertorius, whom the unfortunate news reached just as he was on the point of assailing the enemy opposed to him, cut down the messenger, that the tidings might not discourage his troops; but the news could not be long concealed. One town after another surrendered, Metellus occupied the Celtiberian towns of Segobriga (between Toledo and Cuenca) and Bilbilis (near Calatayud). Pompeius besieged Pallantia (Palencia above Valladolid), but Sertorius relieved it, and compelled Pompeius to fall back upon Metellus; in front of Calagurris (Calahorra, on the upper Ebro), into which Sertorius had thrown himself, they both suffered severe losses. Nevertheless, when they went into winter-quarters—Pompeius to Gaul, Metellus to his own province—they were able to look back on considerable results; a great portion of the insurgents had submitted or had been subdued by arms.

In a similar way the campaign of the following year (681) ran its course; in this case it was especially Pompeius who slowly but steadily restricted the field of the insurrection.

Internal Dissension among the Sertorians

The discomfiture sustained by the arms of the insurgents failed not to react on the tone of feeling in their camp. The military successes of Sertorius became like those of Hannibal, of necessity less and less considerable; people began to call in question his military talent: he was no longer, it was alleged, what he had been; he spent the day in feasting or over his cups, and squandered money as well as time. The number of the deserters, and of communities falling away, increased. Soon projects formed by the Roman emigrants against the life of the general were reported to him; they sounded credible enough, especially as various officers of the insurgent army, and Perpenna in particular, had submitted with reluctance to the supremacy of Sertorius, and the Roman governors had for long promised amnesty and a high reward to any one who should kill him. Sertorius, on hearing such allegations, withdrew the charge of guarding his person from the Roman soldiers and entrusted it to select Spaniards. Against the suspected themselves he proceeded with fearful but necessary severity, and condemned various of the accused to death without resorting, as in other cases, to the advice of his council; he was now more dangerous—it was thereupon affirmed in the circles of the malcontents—to his friends than to his foes.

Assassination of Sertorius

A second conspiracy was soon discovered, which had its seat in his own staff; whoever was denounced had to take flight or die; but all were not betrayed, and the remaining conspirators, including especially Perpenna, found in the circumstances only a new incentive to make haste. They were in the headquarters at Osca. There, on the instigation of Perpenna, a brilliant victory was reported to the general as having been achieved by his troops; and at the festal banquet arranged by Perpenna to celebrate this victory Sertorius accordingly appeared, attended, as was his wont, by his Spanish retinue. Contrary to former custom in the Sertorian headquarters, the feast

soon became a revel; wild words passed at table, and it seemed as if some of the guests sought opportunity to begin an altercation. Sertorius threw himself back on his couch, and seemed desirous not to hear the disturbance. Then a wine-cup was dashed on the floor; Perpenna had given the concerted sign. Marcus Antonius, Sertorius' neighbour at table, dealt the first blow against him, and when Sertorius turned round and attempted to rise, the assassin flung himself upon him and held him down till the other guests at table, all of them implicated in the conspiracy, threw themselves on the struggling pair, and stabbed the defenceless general while his arms were pinioned (682). With him died his faithful attendants. So ended one of the greatest men, if not the very greatest man, that Rome had hitherto produced — a man who under more fortunate circumstances would perhaps have become the regenerator of his country—by the treason of the wretched band of emigrants whom he was condemned to lead against his native land. History loves not the Coriolani; nor has she made any exception even in the case of this the most magnanimous, most gifted, most deserving to be regretted of them all.

Perpenna Succeeds Sertorius

The murderers thought to succeed to the heritage of the murdered. After the death of Sertorius, Perpenna, as the highest among the Roman officers of the Spanish army, laid claim to the chief command. The army submitted, but with mistrust and reluctance. However men had murmured against Sertorius in his lifetime, death reinstated the hero in his rights, and vehement was the indignation of the soldiers when, on the publication of his testament, the name of Perpenna was read forth among the heirs. A part of the soldiers, especially the Lusitanians, dispersed; the remainder had a presentiment that with the death of Sertorius their spirit and their fortune had departed.

Pompeius Puts an End to the Insurrection

Accordingly, at the first encounter with Pompeius, the wretchedly led and despondent ranks of the insurgents were utterly broken, and Perpenna, among other officers, was taken prisoner. The wretch sought to purchase his life by delivering up the correspondence of Sertorius, which would have compromised numerous men of standing in Italy; but Pompeius ordered the papers to be burnt unread, and handed him, as well as the other chiefs of the insurgents, over to the executioner. The emigrants who had escaped dispersed; and most of them went into the Mauretanian deserts or joined the pirates. Soon afterwards the Plotian law, which was zealously supported by the young Caesar in particular, opened up to a portion of them the opportunity of returning home; but all those who had taken part in the murder of Sertorius, with but a single exception, died a violent death. Osca, and most of the towns which had still adhered to Sertorius in Hither Spain, now voluntarily opened their gates to Pompeius; Uxama (Osma), Clunia, and Calagurris alone had to be reduced by force. The two provinces were regulated anew; in the Further province, Metellus raised the annual tribute of the most guilty communities; in the Hither, Pompeius dispensed reward and punishment: Calagurris, for example, lost its independence and was placed under Osca. A band of Sertorian soldiers, which had collected in the Pyrenees, was induced by Pompeius to surrender, and was settled by him to the north of the Pyrenees near Lugudunum (St. Bertrand, in the department Haute-Garonne), as the community of the "congregated" (-convenae-). The Roman emblems of victory were erected at the summit of the pass of the Pyrenees; at the close of 683, Metellus and Pompeius marched with their armies through the streets of the capital, to present the thanks of the nation to Father Jovis at the Capitol for the conquest of the Spaniards. The good fortune of Sulla seemed still to be with his creation after he had been laid in the grave, and to protect it better than the incapable and negligent watchmen appointed to guard it. The opposition in Italy had broken down

from the incapacity and precipitation of its leader, and that of the emigrants from dissension within their own ranks. These defeats, although far more the result of their own perverseness and discordance than of the exertions of their opponents, were yet so many victories for the oligarchy. The curule chairs were rendered once more secure.

CHAPTER II

Rule of the Sullan Restoration

External Relations

When the suppression of the Cinnan revolution, which threatened the very existence of the senate, rendered it possible for the restored senatorial government to devote once more the requisite attention to the internal and external security of the empire, there emerged affairs enough, the settlement of which could not be postponed without injuring the most important interests and allowing present inconveniences to grow into future dangers. Apart from the very serious complications in Spain, it was absolutely necessary effectually to check the barbarians in Thrace and the regions of the Danube, whom Sulla on his march through Macedonia had only been able superficially to chastise,(1) and to regulate, by military intervention, the disorderly state of things along the northern frontier of the Greek peninsula; thoroughly to suppress the bands of pirates infesting the seas everywhere, but especially the eastern waters; and lastly to introduce better order into the unsettled relations of Asia Minor. The peace which Sulla had concluded in 670 with Mithradates, king of Pontus,(2) and of which the treaty with Murena in 673(3) was essentially a repetition, bore throughout the stamp of a provisional arrangement to meet the exigencies of the moment; and the relations of the Romans with Tigranes, king of Armenia, with whom they had de facto waged war, remained wholly untouched in

this peace. Tigranes had with right regarded this as a tacit permission to bring the Roman possessions in Asia under his power. If these were not to be abandoned, it was necessary to come to terms amicably or by force with the new great-king of Asia.

In the preceding chapter we have described the movements in Italy and Spain connected with the proceedings of the democracy, and their subjugation by the senatorial government. In the present chapter we shall review the external government, as the authorities installed by Sulla conducted or failed to conduct it.

Dalmato-Macedonian Expeditions

We still recognize the vigorous hand of Sulla in the energetic measures which, in the last period of his regency, the senate adopted almost simultaneously against the Sertorians, the Dalmatians and Thracians, and the Cilician pirates.

The expedition to the Graeco-Illyrian peninsula was designed partly to reduce to subjection or at least to tame the barbarous tribes who ranged over the whole interior from the Black Sea to the Adriatic, and of whom the Bessi (in the great Balkan) especially were, as it was then said, notorious as robbers even among a race of robbers; partly to destroy the corsairs in their haunts, especially along the Dalmatian coast. As usual, the attack took place simultaneously from Dalmatia and from Macedonia, in which province an army of five legions was assembled for the purpose. In Dalmatia the former praetor Gaius Cosconius held the command, marched through the country in all directions, and took by storm the fortress of Salona after a two years' siege. In Macedonia the proconsul Appius Claudius (676-678) first attempted along the Macedono-Thracian frontier to make himself master of the mountain districts on the left bank of the Karasu. On both sides the war was conducted with savage ferocity; the Thracians destroyed the townships

which they took and massacred their captives, and the Romans returned like for like. But no results of importance were attained; the toilsome marches and the constant conflicts with the numerous and brave inhabitants of the mountains decimated the army to no purpose; the general himself sickened and died. His successor, Gaius Scribonius Curio (679-681), was induced by various obstacles, and particularly by a not inconsiderable military revolt, to desist from the difficult expedition against the Thracians, and to turn himself instead to the northern frontier of Macedonia, where he subdued the weaker Dardani (in Servia) and reached as far as the Danube. The brave and able Marcus Lucullus (682, 683) was the first who again advanced eastward, defeated the Bessi in their mountains, took their capital Uscudama (Adrianople), and compelled them to submit to the Roman supremacy. Sadalas king of the Odrysians, and the Greek towns on the east coast to the north and south of the Balkan chain—Istropolis, Tomi, Callatis, Odessus (near Varna), Mesembria, and others—became dependent on the Romans. Thrace, of which the Romans had hitherto held little more than the Attalic possessions on the Chersonese, now became a portion—though far from obedient—of the province of Macedonia.

Piracy

But the predatory raids of the Thracians and Dardani, confined as they were to a small part of the empire, were far less injurious to the state and to individuals than the evil of piracy, which was continually spreading farther and acquiring more solid organization. The commerce of the whole Mediterranean was in its power. Italy could neither export its products nor import grain from the provinces; in the former the people were starving, in the latter the cultivation of the corn-fields ceased for want of a vent for the produce. No consignment of money, no traveller was longer safe: the public treasury suffered most serious losses; a great many Romans of standing were captured by the corsairs, and compelled to pay heavy sums for their

ransom, if it was not even the pleasure of the pirates to execute on individuals the sentence of death, which in that case was seasoned with a savage humour. The merchants, and even the divisions of Roman troops destined for the east, began to postpone their voyages chiefly to the unfavourable season of the year, and to be less afraid of the winter storms than of the piratical vessels, which indeed even at this season did not wholly disappear from the sea. But severely as the closing of the sea was felt, it was more tolerable than the raids made on the islands and coasts of Greece and Asia Minor. Just as afterwards in the time of the Normans, piratical squadrons ran up to the maritime towns, and either compelled them to buy themselves off with large sums, or besieged and took them by storm. When Samothrace, Clazomenae, Samos, Iassus were pillaged by the pirates (670) under the eyes of Sulla after peace was concluded with Mithradates, we may conceive how matters went where neither a Roman army nor a Roman fleet was at hand. All the old rich temples along the coasts of Greece and Asia Minor were plundered one after another; from Samothrace alone a treasure of 1000 talents (240,000 pounds) is said to have been carried off. Apollo, according to a Roman poet of this period, was so impoverished by the pirates that, when the swallow paid him a visit, he could no longer produce to it out of all his treasures even a drachm of gold. More than four hundred townships were enumerated as having been taken or laid under contribution by the pirates, including cities like Cnidus, Samos, Colophon; from not a few places on islands or the coast, which were previously flourishing, the whole population migrated, that they might not be carried off by the pirates. Even inland districts were no longer safe from their attacks; there were instances of their assailing townships distant one or two days' march from the coast. The fearful debt, under which subsequently all the communities of the Greek east succumbed, proceeded in great part from these fatal times.

Organization of Piracy

Piracy had totally changed its character. The pirates were no longer bold freebooters, who levied their tribute from the large Italo-Oriental traffic in slaves and luxuries, as it passed through the Cretan waters between Cyrene and the Peloponnesus—in the language of the pirates the "golden sea"; no longer even armed slave-catchers, who prosecuted "war, trade, and piracy" equally side by side; they formed now a piratical state, with a peculiar esprit de corps, with a solid and very respectable organization, with a home of their own and the germs of a symmachy, and doubtless also with definite political designs. The pirates called themselves Cilicians; in fact their vessels were the rendezvous of desperadoes and adventurers from all countries—discharged mercenaries from the recruiting-grounds of Crete, burgesses from the destroyed townships of Italy, Spain, and Asia, soldiers and officers from the armies of Fimbria and Sertorius, in a word the ruined men of all nations, the hunted refugees of all vanquished parties, every one that was wretched and daring—and where was there not misery and outrage in this unhappy age? It was no longer a gang of robbers who had flocked together, but a compact soldier-state, in which the freemasonry of exile and crime took the place of nationality, and within which crime redeemed itself, as it so often does in its own eyes, by displaying the most generous public spirit. In an abandoned age, when cowardice and insubordination had relaxed all the bonds of social order, the legitimate commonwealths might have taken a pattern from this state—the mongrel offspring of distress and violence—within which alone the inviolable determination to stand side by side, the sense of comradeship, respect for the pledged word and the self-chosen chiefs, valour and adroitness seemed to have taken refuge. If the banner of this state was inscribed with vengeance against the civil society which, rightly or wrongly, had ejected its members, it might be a question whether this device was much worse than those of the Italian oligarchy and the Oriental sultaniship which seemed in the fair way of dividing the world between them. The corsairs at least felt themselves on a level with any

legitimate state; their robber-pride, their robber-pomp, and their robber-humour are attested by many a genuine pirate's tale of mad merriment and chivalrous bandittism: they professed, and made it their boast, to live at righteous war with all the world: what they gained in that warfare was designated not as plunder, but as military spoil; and, while the captured corsair was sure of the cross in every Roman seaport, they too claimed the right of executing any of their captives.

Its Military-Political Power

Their military-political organization, especially since the Mithradatic war, was compact. Their ships, for the most part -myopiarones-, that is, small open swift-sailing barks, with a smaller proportion of biremes and triremes, now regularly sailed associated in squadrons and under admirals, whose barges were wont to glitter in gold and purple. To a comrade in peril, though he might be totally unknown, no pirate captain refused the requested aid; an agreement concluded with any one of them was absolutely recognized by the whole society, and any injury inflicted on one was avenged by all. Their true home was the sea from the pillars of Hercules to the Syrian and Egyptian waters; the refuges which they needed for themselves and their floating houses on the mainland were readily furnished to them by the Mauretanian and Dalmatian coasts, by the island of Crete, and, above all, by the southern coast of Asia Minor, which abounded in headlands and lurking-places, commanded the chief thoroughfare of the maritime commerce of that age, and was virtually without a master. The league of Lycian cities there, and the Pamphylian communities, were of little importance; the Roman station, which had existed in Cilicia since 652, was far from adequate to command the extensive coast; the Syrian dominion over Cilicia had always been but nominal, and had recently been superseded by the Armenian, the holder of which, as a true great-king, gave himself no concern at all about the sea and readily abandoned it to the

pillage of the Cilicians. It was nothing wonderful, therefore, that the corsairs flourished there as they had never done anywhere else. Not only did they possess everywhere along the coast signal-places and stations, but further inland—in the most remote recesses of the impassable and mountainous interior of Lycia, Pamphylia, and Cilicia—they had built their rock-castles, in which they concealed their wives, children, and treasures during their own absence at sea, and, doubtless, in times of danger found an asylum themselves. Great numbers of such corsair-castles existed especially in the Rough Cilicia, the forests of which at the same time furnished the pirates with the most excellent timber for shipbuilding; and there, accordingly, their principal dockyards and arsenals were situated. It was not to be wondered at that this organized military state gained a firm body of clients among the Greek maritime cities, which were more or less left to themselves and managed their own affairs: these cities entered into traffic with the pirates as with a friendly power on the basis of definite treaties, and did not comply with the summons of the Roman governors to furnish vessels against them. The not inconsiderable town of Side in Pamphylia, for instance, allowed the pirates to build ships on its quays, and to sell the free men whom they had captured in its market.

Such a society of pirates was a political power; and as a political power it gave itself out and was accepted from the time when the Syrian king Tryphon first employed it as such and rested his throne on its support.⁽⁴⁾ We find the pirates as allies of king Mithradates of Pontus as well as of the Roman democratic emigrants; we find them giving battle to the fleets of Sulla in the eastern and in the western waters; we find individual pirate princes ruling over a series of considerable coast towns. We cannot tell how far the internal political development of this floating state had already advanced; but its arrangements undeniably contained the germ of a sea-kingdom, which was already beginning to establish itself, and out of which,

under favourable circumstances, a permanent state might have been developed.

Nullity of the Roman Marine Police

This state of matters clearly shows, as we have partly indicated already, (5) how the Romans kept—or rather did not keep—order on "their sea." The protectorate of Rome over the provinces consisted essentially in military guardianship; the provincials paid tax or tribute to the Romans for their defence by sea and land, which was concentrated in Roman hands. But never, perhaps, did a guardian more shamelessly defraud his ward than the Roman oligarchy defrauded the subject communities. Instead of Rome equipping a general fleet for the empire and centralizing her marine police, the senate permitted the unity of her maritime superintendence—without which in this matter nothing could at all be done—to fall into abeyance, and left it to each governor and each client state to defend themselves against the pirates as each chose and was able. Instead of Rome providing for the fleet, as she had bound herself to do, exclusively with her own blood and treasure and with those of the client states which had remained formally sovereign, the senate allowed the Italian war-marine to fall into decay, and learned to make shift with the vessels which the several mercantile towns were required to furnish, or still more frequently with the coast-guards everywhere organized—all the cost and burden falling, in either case, on the subjects. The provincials might deem themselves fortunate, if their Roman governor applied the requisitions which he raised for the defence of the coast in reality solely to that object, and did not intercept them for himself; or if they were not, as very frequently happened, called on to pay ransom for some Roman of rank captured by the buccaneers. Measures undertaken perhaps with judgment, such as the occupation of Cilicia in 652, were sure to be spoilt in the execution. Any Roman of this period, who was not wholly carried away by the current intoxicating idea of the national

greatness, must have wished that the ships' beaks might be torn down from the orator's platform in the Forum, that at least he might not be constantly reminded by them of the naval victories achieved in better times.

Expedition to the South Coast of Asia Minor
Publius Servilius Isauricus
Zenictes Vanquished
The Isaurians Subdued

Nevertheless Sulla, who in the war against Mithradates had the opportunity of acquiring an adequate conviction of the dangers which the neglect of the fleet involved, took various steps seriously to check the evil. It is true that the instructions which he had left to the governors whom he appointed in Asia, to equip in the maritime towns a fleet against the pirates, had borne little fruit, for Murena preferred to begin war with Mithradates, and Gnaeus Dolabella, the governor of Cilicia, proved wholly incapable. Accordingly the senate resolved in 675 to send one of the consuls to Cilicia; the lot fell on the capable Publius Servilius. He defeated the piratical fleet in a bloody engagement, and then applied himself to destroy those towns on the south coast of Asia Minor which served them as anchorages and trading stations. The fortresses of the powerful maritime prince Zenictes—Olympus, Corycus, Phaselis in eastern Lycia, Attalia in Pamphylia—were reduced, and the prince himself met his death in the flames of his stronghold Olympus. A movement was next made against the Isaurians, who in the north-west corner of the Rough Cilicia, on the northern slope of Mount Taurus, inhabited a labyrinth of steep mountain ridges, jagged rocks, and deeply-cut valleys, covered with magnificent oak forests—a region which is even at the present day filled with reminiscences of the old robber times. To reduce these Isaurian fastnesses, the last and most secure retreats of the freebooters, Servilius led the first Roman army over the Taurus, and broke up the strongholds of the enemy, Oroanda, and above all Isaura itself

—the ideal of a robber-town, situated on the summit of a scarcely accessible mountain-ridge, and completely overlooking and commanding the wide plain of Iconium. The war, not ended till 679, from which Publius Servilius acquired for himself and his descendants the surname of Isauricus, was not without fruit; a great number of pirates and piratical vessels fell in consequence of it into the power of the Romans; Lycia, Pamphylia, West Cilicia were severely devastated, the territories of the destroyed towns were confiscated, and the province of Cilicia was enlarged by their addition to it. But, in the nature of the case, piracy was far from being suppressed by these measures; on the contrary, it simply betook itself for the time to other regions, and particularly to Crete, the oldest harbour for the corsairs of the Mediterranean.(6) Nothing but repressive measures carried out on a large scale and with unity of purpose—nothing, in fact, but the establishment of a standing maritime police—could in such a case afford thorough relief.

Asiatic Relations

Tigranes and the New Great-Kingdom of Armenia

The affairs of the mainland of Asia Minor were connected by various relations with this maritime war. The variance which existed between Rome and the kings of Pontus and Armenia did not abate, but increased more and more. On the one hand Tigranes, king of Armenia, pursued his aggressive conquests in the most reckless manner. The Parthians, whose state was at this period torn by internal dissensions and enfeebled, were by constant hostilities driven farther and farther back into the interior of Asia. Of the countries between Armenia, Mesopotamia, and Iran, the kingdoms of Corduene (northern Kurdistan), and Media Atropatene (Azerbaijan), were converted from Parthian into Armenian fiefs, and the kingdom of Nineveh (Mosul), or Adiabene, was likewise compelled, at least temporarily, to become a dependency of Armenia. In Mesopotamia, too, particularly in and around Nisibis, the Armenian rule was established; but the southern half,

which was in great part desert, seems not to have passed into the firm possession of the new great- king, and Seleucia, on the Tigris, in particular, appears not to have become subject to him. The kingdom of Edessa or Osrhoene he handed over to a tribe of wandering Arabs, which he transplanted from southern Mesopotamia and settled in this region, with the view of commanding by its means the passage of the Euphrates and the great route of traffic.(7)

Cappadocia Armenian

But Tigranes by no means confined his conquests to the eastern bank of the Euphrates. Cappadocia especially was the object of his attacks, and, defenceless as it was, suffered destructive blows from its too potent neighbour. Tigranes wrested the eastern province Melitene from Cappadocia, and united it with the opposite Armenian province Sophene, by which means he obtained command of the passage of the Euphrates with the great thoroughfare of traffic between Asia Minor and Armenia. After the death of Sulla the Armenians even advanced into Cappadocia proper, and carried off to Armenia the inhabitants of the capital Mazaca (afterwards Caesarea) and eleven other towns of Greek organization.

Syria under Tigranes

Nor could the kingdom of the Seleucids, already in full course of dissolution, oppose greater resistance to the new great-king. Here the south from the Egyptian frontier to Straton's Tower (Caesarea) was under the rule of the Jewish prince Alexander Jannaeus, who extended and strengthened his dominion step by step in conflict with his Syrian, Egyptian, and Arabic neighbours and with the imperial cities. The larger towns of Syria—Gaza, Straton's Tower, Ptolemais, Beroea—attempted to maintain themselves on their own footing, sometimes as free communities, sometimes under so-called tyrants; the capital, Antioch, in particular, was virtually independent.

Damascus and the valleys of Lebanon had submitted to the Nabataean prince, Aretas of Petra. Lastly, in Cilicia the pirates or the Romans bore sway. And for this crown breaking into a thousand fragments the Seleucid princes continued perseveringly to quarrel with each other, as though it were their object to make royalty a jest and an offence to all; nay more, while this family, doomed like the house of Laius to perpetual discord, had its own subjects all in revolt, it even raised claims to the throne of Egypt vacant by the decease of king Alexander II without heirs. Accordingly king Tigranes set to work there without ceremony. Eastern Cilicia was easily subdued by him, and the citizens of Soli and other towns were carried off, just like the Cappadocians, to Armenia. In like manner the province of Upper Syria, with the exception of the bravely-defended town of Seleucia at the mouth of the Orontes, and the greater part of Phoenicia were reduced by force; Ptolemais was occupied by the Armenians about 680, and the Jewish state was already seriously threatened by them. Antioch, the old capital of the Seleucids, became one of the residences of the great-king. Already from 671, the year following the peace between Sulla and Mithradates, Tigranes is designated in the Syrian annals as the sovereign of the country, and Cilicia and Syria appear as an Armenian satrapy under Magadates, the lieutenant of the great-king. The age of the kings of Nineveh, of the Salmanezers and Sennacheribs, seemed to be renewed; again oriental despotism pressed heavily on the trading population of the Syrian coast, as it did formerly on Tyre and Sidon; again great states of the interior threw themselves on the provinces along the Mediterranean; again Asiatic hosts, said to number half a million combatants, appeared on the Cilician and Syrian coasts. As Salmanezer and Nebuchadnezzar had formerly carried the Jews to Babylon, so now from all the frontier provinces of the new kingdom—from Corduene, Adiabene, Assyria, Cilicia, Cappadocia—the inhabitants, especially the Greek or half-Greek citizens of the towns, were compelled to settle with their whole goods and chattels (under penalty of

the confiscation of everything that they left behind) in the new capital, one of those gigantic cities proclaiming rather the nothingness of the people than the greatness of the rulers, which sprang up in the countries of the Euphrates on every change in the supreme sovereignty at the fiat of the new grand sultan. The new "city of Tigranes," Tigrano-certa, founded on the borders of Armenia and Mesopotamia, and destined as the capital of the territories newly acquired for Armenia, became a city like Nineveh and Babylon, with walls fifty yards high, and the appendages of palace, garden, and park that were appropriate to sultanism. In other respects, too, the new great-king proved faithful to his part. As amidst the perpetual childhood of the east the childlike conceptions of kings with real crowns on their heads have never disappeared, Tigranes, when he showed himself in public, appeared in the state and the costume of a successor of Darius and Xerxes, with the purple caftan, the half-white half-purple tunic, the long plaited trousers, the high turban, and the royal diadem—attended moreover and served in slavish fashion, wherever he went or stood, by four "kings."

Mithradates

King Mithradates acted with greater moderation. He refrained from aggressions in Asia Minor, and contented himself with— what no treaty forbade—placing his dominion along the Black Sea on a firmer basis, and gradually bringing into more definite dependence the regions which separated the Bosporan kingdom, now ruled under his supremacy by his son Machares, from that of Pontus. But he too applied every effort to render his fleet and army efficient, and especially to arm and organize the latter after the Roman model; in which the Roman emigrants, who sojourned in great numbers at his court, rendered essential service.

Demeanor of the Romans in the East

Egypt not Annexed

The Romans had no desire to become further involved in Oriental affairs than they were already. This appears with striking clearness in the fact, that the opportunity, which at this time presented itself, of peacefully bringing the kingdom of Egypt under the immediate dominion of Rome was spurned by the senate. The legitimate descendants of Ptolemaeus son of Lagus had come to an end, when the king installed by Sulla after the death of Ptolemaeus Soter II Lathyrus—Alexander II, a son of Alexander I—was killed, a few days after he had ascended the throne, on occasion of a tumult in the capital (673). This Alexander had in his testament(8) appointed the Roman community his heir. The genuineness of this document was no doubt disputed; but the senate acknowledged it by assuming in virtue of it the sums deposited in Tyre on account of the deceased king. Nevertheless it allowed two notoriously illegitimate sons of king Lathyrus, Ptolemaeus XI, who was styled the new Dionysos or the Flute-blower (Auletes), and Ptolemaeus the Cyprian, to take practical possession of Egypt and Cyprus respectively. They were not indeed expressly recognized by the senate, but no distinct summons to surrender their kingdoms was addressed to them. The reason why the senate allowed this state of uncertainty to continue, and did not commit itself to a definite renunciation of Egypt and Cyprus, was undoubtedly the considerable rent which these kings, ruling as it were on sufferance, regularly paid for the continuance of the uncertainty to the heads of the Roman coteries. But the motive for waiving that attractive acquisition altogether was different. Egypt, by its peculiar position and its financial organization, placed in the hands of any governor commanding it a pecuniary and naval power and generally an independent authority, which were absolutely incompatible with the suspicious and feeble government of the oligarchy: in this point of view it was judicious to forgo the direct possession of the country of the Nile.

Non-Intervention in Asia Minor and Syria

Less justifiable was the failure of the senate to interfere directly in the affairs of Asia Minor and Syria. The Roman government did not indeed recognize the Armenian conqueror as king of Cappadocia and Syria; but it did nothing to drive him back, although the war, which under pressure of necessity it began in 676 against the pirates in Cilicia, naturally suggested its interference more especially in Syria. In fact, by tolerating the loss of Cappadocia and Syria without declaring war, the government abandoned not merely those committed to its protection, but the most important foundations of its own powerful position. It adopted a hazardous course, when it sacrificed the outworks of its dominion in the Greek settlements and kingdoms on the Euphrates and Tigris; but, when it allowed the Asiatics to establish themselves on the Mediterranean which was the political basis of its empire, this was not a proof of love of peace, but a confession that the oligarchy had been rendered by the Sullan restoration more oligarchical doubtless, but neither wiser nor more energetic, and it was for Rome's place as a power in the world the beginning of the end.

On the other side, too, there was no desire for war. Tigranes had no reason to wish it, when Rome even without war abandoned to him all its allies. Mithradates, who was no mere sultan and had enjoyed opportunity enough, amidst good and bad fortune, of gaining experience regarding friends and foes, knew very well that in a second Roman war he would very probably stand quite as much alone as in the first, and that he could follow no more prudent course than to keep quiet and to strengthen his kingdom in the interior. That he was in earnest with his peaceful declarations, he had sufficiently proved in the conference with Murena.(9) He continued to avoid everything which would compel the Roman government to abandon its passive attitude.

Apprehensions of Rome

But as the first Mithradatic war had arisen without any of the parties properly desiring it, so now there grew out of the opposition of interests mutual suspicion, and out of this suspicion mutual preparations for defence; and these, by their very gravity, ultimately led to an open breach. That distrust of her own readiness to fight and preparation for fighting, which had for long governed the policy of Rome—a distrust, which the want of standing armies and the far from exemplary character of the collegiate rule rendered sufficiently intelligible—made it, as it were, an axiom of her policy to pursue every war not merely to the vanquishing, but to the annihilation of her opponent; in this point of view the Romans were from the outset as little content with the peace of Sulla, as they had formerly been with the terms which Scipio Africanus had granted to the Carthaginians. The apprehension often expressed that a second attack by the Pontic king was imminent, was in some measure justified by the singular resemblance between the present circumstances and those which existed twelve years before. Once more a dangerous civil war coincided with serious armaments of Mithradates; once more the Thracians overran Macedonia, and piratical fleets covered the Mediterranean; emissaries were coming and going—as formerly between Mithradates and the Italians—so now between the Roman emigrants in Spain and those at the court of Sinope. As early as the beginning of 677 it was declared in the senate that the king was only waiting for the opportunity of falling upon Roman Asia during the Italian civil war; the Roman armies in Asia and Cilicia were reinforced to meet possible emergencies.

Apprehensions of Mithradates

Bithynia Roman

Cyrene a Roman Province

Outbreak of the Mithradatic War

Mithradates on his part followed with growing apprehension the development of the Roman policy. He could not but feel that a war between the Romans and Tigranes, however much the feeble senate might dread it, was in the long run almost inevitable, and that he would not be able to avoid taking part in it. His attempt to obtain from the Roman senate the documentary record of the terms of peace, which was still wanting, had fallen amidst the disturbances attending the revolution of Lepidus and remained without result; Mithradates found in this an indication of the impending renewal of the conflict. The expedition against the pirates, which indirectly concerned also the kings of the east whose allies they were, seemed the preliminary to such a war. Still more suspicious were the claims which Rome held in suspense over Egypt and Cyprus: it is significant that the king of Pontus betrothed his two daughters Mithradatis and Nyssa to the two Ptolemies, to whom the senate continued to refuse recognition. The emigrants urged him to strike: the position of Sertorius in Spain, as to which Mithradates despatched envoys under convenient pretexts to the headquarters of Pompeius to obtain information, and which was about this very time really imposing, opened up to the king the prospect of fighting not, as in the first Roman war, against both the Roman parties, but in concert with the one against the other. A more favourable moment could hardly be hoped for, and after all it was always better to declare war than to let it be declared against him. In 679 Nicomedes III Philopator king of Bithynia, died, and as the last of his race—for a son borne by Nysa was, or was said to be, illegitimate—left his kingdom by testament to the Romans, who delayed not to take possession of this region bordering on the Roman province and long ago filled with Roman officials and merchants. At the same time Cyrene, which had been already bequeathed to the Romans in 658,(10) was at length constituted a province, and a Roman governor was sent thither (679). These measures, in connection with the attacks carried out about the same time against the pirates on the south coast of Asia

Minor, must have excited apprehensions in the king; the annexation of Bithynia in particular made the Romans immediate neighbours of the Pontic kingdom; and this, it may be presumed, turned the scale. The king took the decisive step and declared war against the Romans in the winter of 679-680.

Preparations of Mithradates

Gladly would Mithradates have avoided undertaking so arduous a work singlehanded. His nearest and natural ally was the great-king Tigranes; but that shortsighted man declined the proposal of his father-in-law. So there remained only the insurgents and the pirates. Mithradates was careful to place himself in communication with both, by despatching strong squadrons to Spain and to Crete. A formal treaty was concluded with Sertorius,⁽¹¹⁾ by which Rome ceded to the king Bithynia, Paphlagonia, Galatia, and Cappadocia— all of them, it is true, acquisitions which needed to be ratified on the field of battle. More important was the support which the Spanish general gave to the king, by sending Roman officers to lead his armies and fleets. The most active of the emigrants in the east, Lucius Magius and Lucius Fannius, were appointed by Sertorius as his representatives at the court of Sinope. From the pirates also came help; they flocked largely to the kingdom of Pontus, and by their means especially the king seems to have succeeded in forming a naval force imposing by the number as well as by the quality of the ships. His main support still lay in his own forces, with which the king hoped, before the Romans should arrive in Asia, to make himself master of their possessions there; especially as the financial distress produced in the province of Asia by the Sullan war-tribute, the aversion of Bithynia towards the new Roman government, and the elements of combustion left behind by the desolating war recently brought to a close in Cilicia and Pamphylia, opened up favourable prospects to a Pontic invasion. There was no lack of stores; 2,000,000 -medimni- of grain lay in the royal granaries. The fleet and the men were numerous and well exercised,

particularly the Bastarnian mercenaries, a select corps which was a match even for Italian legionaries. On this occasion also it was the king who took the offensive. A corps under Diophantus advanced into Cappadocia, to occupy the fortresses there and to close the way to the kingdom of Pontus against the Romans; the leader sent by Sertorius, the propraetor Marcus Marius, went in company with the Pontic officer Eumachus to Phrygia, with a view to rouse the Roman province and the Taurus mountains to revolt; the main army, above 100,000 men with 16,000 cavalry and 100 scythe-chariots, led by Taxiles and Hermocrates under the personal superintendence of the king, and the war-fleet of 400 sail commanded by Aristonicus, moved along the north coast of Asia Minor to occupy Paphlagonia and Bithynia.

Roman Preparations

On the Roman side there was selected for the conduct of the war in the first rank the consul of 680, Lucius Lucullus, who as governor of Asia and Cilicia was placed at the head of the four legions stationed in Asia Minor and of a fifth brought by him from Italy, and was directed to penetrate with this army, amounting to 30,000 infantry and 1600 cavalry, through Phrygia into the kingdom of Pontus. His colleague Marcus Cotta proceeded with the fleet and another Roman corps to the Propontis, to cover Asia and Bithynia. Lastly, a general arming of the coasts and particularly of the Thracian coast more immediately threatened by the Pontic fleet, was enjoined; and the task of clearing all the seas and coasts from the pirates and their Pontic allies was, by extraordinary decree, entrusted to a single magistrate, the choice falling on the praetor Marcus Antonius, the son of the man who thirty years before had first chastised the Cilician corsairs.⁽¹²⁾ Moreover, the senate placed at the disposal of Lucullus a sum of 72,000,000 sesterces (700,000 pounds), in order to build a fleet; which, however, Lucullus declined. From all this we see that the Roman government recognized the root of the evil in

the neglect of their marine, and showed earnestness in the matter at least so far as their decrees reached.

Beginning of the War

Thus the war began in 680 at all points. It was a misfortune for Mithradates, that at the very moment of his declaring war the Sertorian struggle reached its crisis, by which one of his principal hopes was from the outset destroyed, and the Roman government was enabled to apply its whole power to the maritime and Asiatic contest. In Asia Minor on the other hand Mithradates reaped the advantages of the offensive, and of the great distance of the Romans from the immediate seat of war. A considerable number of cities in Asia Minor opened their gates to the Sertorian propraetor who was placed at the head of the Roman province, and they massacred, as in 666, the Roman families settled among them: the Pisidians, Isaurians, and Cilicians took up arms against Rome. The Romans for the moment had no troops at the points threatened. Individual energetic men attempted no doubt at their own hand to check this mutiny of the provincials; thus on receiving accounts of these events the young Gaius Caesar left Rhodes where he was staying on account of his studies, and with a hastily-collected band opposed himself to the insurgents; but not much could be effected by such volunteer corps. Had not Deiotarus, the brave tetrarch of the Tolistobogii—a Celtic tribe settled around Pessinus—embraced the side of the Romans and fought with success against the Pontic generals, Lucullus would have had to begin with recapturing the interior of the Roman province from the enemy. But even as it was, he lost in pacifying the province and driving back the enemy precious time, for which the slight successes achieved by his cavalry were far from affording compensation. Still more unfavourable than in Phrygia was the aspect of things for the Romans on the north coast of Asia Minor. Here the great Pontic army and the fleet had completely mastered Bithynia, and compelled

the Roman consul Cotta to take shelter with his far from numerous force and his ships within the walls and port of Chalcedon, where Mithradates kept them blockaded.

The Romans Defeated at Chalcedon

This blockade, however, was so far a favourable event for the Romans, as, if Cotta detained the Pontic army before Chalcedon and Lucullus proceeded also thither, the whole Roman forces might unite at Chalcedon and compel the decision of arms there rather than in the distant and impassable region of Pontus. Lucullus did take the route for Chalcedon; but Cotta, with the view of executing a great feat at his own hand before the arrival of his colleague, ordered his admiral Publius Rutilius Nudus to make a sally, which not only ended in a bloody defeat of the Romans, but also enabled the Pontic force to attack the harbour, to break the chain which closed it, and to burn all the Roman vessels of war which were there, nearly seventy in number. On the news of these misfortunes reaching Lucullus at the river Sangarius, he accelerated his march to the great discontent of his soldiers, in whose opinion Cotta was of no moment, and who would far rather have plundered an undefended country than have taught their comrades to conquer. His arrival made up in part for the misfortunes sustained: the king raised the siege of Chalcedon, but did not retreat to Pontus; he went southward into the old Roman province, where he spread his army along the Propontis and the Hellespont, occupied Lampsacus, and began to besiege the large and wealthy town of Cyzicus. He thus entangled himself more and more deeply in the blind alley which he had chosen to enter, instead of—which alone promised success for him—bringing the wide distances into play against the Romans.

Mithradates Besieges Cyzicus

In few places had the old Hellenic adroitness and aptitude preserved themselves so pure as in Cyzicus; its citizens, although they had suffered great loss of ships and men in the unfortunate double battle of Chalcedon, made the most resolute resistance. Cyzicus lay on an island directly opposite the mainland and connected with it by a bridge. The besiegers possessed themselves not only of the line of heights on the mainland terminating at the bridge and of the suburb situated there, but also of the celebrated Dindymene heights on the island itself; and alike on the mainland and on the island the Greek engineers put forth all their art to pave the way for an assault. But the breach which they at length made was closed again during the night by the besieged, and the exertions of the royal army remained as fruitless as did the barbarous threat of the king to put to death the captured Cyzicenes before the walls, if the citizens still refused to surrender. The Cyzicenes continued the defence with courage and success; they fell little short of capturing the king himself in the course of the siege.

Destruction of the Pontic Army

Meanwhile Lucullus had possessed himself of a very strong position in rear of the Pontic army, which, although not permitting him directly to relieve the hard-pressed city, gave him the means of cutting off all supplies by land from the enemy. Thus the enormous army of Mithradates, estimated with the camp-followers at 300,000 persons, was not in a position either to fight or to march, firmly wedged in between the impregnable city and the immoveable Roman army, and dependent for all its supplies solely on the sea, which fortunately for the Pontic troops was exclusively commanded by their fleet. But the bad season set in; a storm destroyed a great part of the siege-works; the scarcity of provisions and above all of fodder for the horses began to become intolerable. The beasts of burden and the baggage were sent off under convoy of the greater portion of the Pontic cavalry, with orders to steal away or break through at any cost; but at the river

Rhyndacus, to the east of Cyzicus, Lucullus overtook them and cut to pieces the whole body. Another division of cavalry under Metrophanes and Lucius Fannius was obliged, after wandering long in the west of Asia Minor, to return to the camp before Cyzicus. Famine and disease made fearful ravages in the Pontic ranks. When spring came on (681), the besieged redoubled their exertions and took the trenches constructed on Dindymon: nothing remained for the king but to raise the siege and with the aid of his fleet to save what he could. He went in person with the fleet to the Hellespont, but suffered considerable loss partly at its departure, partly through storms on the voyage. The land army under Hermaeus and Marius likewise set out thither, with the view of embarking at Lampsacus under the protection of its walls. They left behind their baggage as well as the sick and wounded, who were all put to death by the exasperated Cyzicenes. Lucullus inflicted on them very considerable loss by the way at the passage of the rivers Aesepus and Granicus; but they attained their object. The Pontic ships carried off the remains of the great army and the citizens of Lampsacus themselves beyond the reach of the Romans.

Maritime War

Mithradates Driven Back to Pontus

The consistent and discreet conduct of the war by Lucullus had not only repaired the errors of his colleague, but had also destroyed without a pitched battle the flower of the enemy's army— it was said 200,000 soldiers. Had he still possessed the fleet which was burnt in the harbour of Chalcedon, he would have annihilated the whole army of his opponent. As it was, the work of destruction continued incomplete; and while he was obliged to remain passive, the Pontic fleet notwithstanding the disaster of Cyzicus took its station in the Propontis, Perinthus and Byzantium were blockaded by it on the European coast and Priapus pillaged on the Asiatic, and the headquarters of the king were established in the Bithynian port of

Nicomedia. In fact a select squadron of fifty sail, which carried 10,000 select troops including Marcus Marius and the flower of the Roman emigrants, sailed forth even into the Aegean; the report went that it was destined to effect a landing in Italy and there rekindle the civil war. But the ships, which Lucullus after the disaster off Chalcedon had demanded from the Asiatic communities, began to appear, and a squadron ran forth in pursuit of the enemy's fleet which had gone into the Aegean. Lucullus himself, experienced as an admiral,(13) took the command. Thirteen quinqueremes of the enemy on their voyage to Lemnos, under Isidorus, were assailed and sunk off the Achaean harbour in the waters between the Trojan coast and the island of Tenedos. At the small island of Neae, between Lemnos and Scyros, at which little-frequented point the Pontic flotilla of thirty-two sail lay drawn up on the shore, Lucullus found it, immediately attacked the ships and the crews scattered over the island, and possessed himself of the whole squadron. Here Marcus Marius and the ablest of the Roman emigrants met their death, either in conflict or subsequently by the axe of the executioner. The whole Aegean fleet of the enemy was annihilated by Lucullus. The war in Bithynia was meanwhile continued by Cotta and by the legates of Lucullus, Voconius, Gaius Valerius Triarius, and Barba, with the land army reinforced by fresh arrivals from Italy, and a squadron collected in Asia. Barba captured in the interior Prusias on Olympus and Nicaea while Triarius along the coast captured Apamea (formerly Myrlea) and Prusias on the sea (formerly Cius). They then united for a joint attack on Mithradates himself in Nicomedia; but the king without even attempting battle escaped to his ships and sailed homeward, and in this he was successful only because the Roman admiral Voconius, who was entrusted with the blockade of the port of Nicomedia, arrived too late. On the voyage the important Heraclea was indeed betrayed to the king and occupied by him; but a storm in these waters sank more than sixty of his ships and dispersed the rest; the king arrived almost alone at

Sinope. The offensive on the part of Mithradates ended in a complete defeat—not at all honourable, least of all for the supreme leader—of the Pontic forces by land and sea.

Invasion of Pontus by Lucullus

Lucullus now in turn proceeded to the aggressive. Triarius received the command of the fleet, with orders first of all to blockade the Hellespont and lie in wait for the Pontic ships returning from Crete and Spain; Cotta was charged with the siege of Heraclea; the difficult task of providing supplies was entrusted to the faithful and active princes of the Galatians and to Ariobarzanes king of Cappadocia; Lucullus himself advanced in the autumn of 681 into the favoured land of Pontus, which had long been untrodden by an enemy. Mithradates, now resolved to maintain the strictest defensive, retired without giving battle from Sinope to Amisus, and from Amisus to Cabira (afterwards Neocaesarea, now Niksar) on the Lycus, a tributary of the Iris; he contented himself with drawing the enemy after him farther and farther into the interior, and obstructing their supplies and communications. Lucullus rapidly followed; Sinope was passed by; the Halys, the old boundary of the Roman dominion, was crossed and the considerable towns of Amisus, Eupatoria (on the Iris), and Themiscyra (on the Thermodon) were invested, till at length winter put an end to the onward march, though not to the investments of the towns. The soldiers of Lucullus murmured at the constant advance which did not allow them to reap the fruits of their exertions, and at the tedious and—amidst the severity of that season—burdensome blockades. But it was not the habit of Lucullus to listen to such complaints: in the spring of 682 he immediately advanced against Cabira, leaving behind two legions before Amisus under Lucius Murena. The king had made fresh attempts during the winter to induce the great-king of Armenia to take part in the struggle; they remained like the former ones fruitless, or led only to empty promises. Still less did the Parthians show

any desire to interfere in the forlorn cause. Nevertheless a considerable army, chiefly raised by enlistments in Scythia, had again assembled under Diophantus and Taxiles at Cabira. The Roman army, which still numbered only three legions and was decidedly inferior to the Pontic in cavalry, found itself compelled to avoid as far as possible the plains, and arrived, not without toil and loss, by difficult bypaths in the vicinity of Cabira. At this town the two armies lay for a considerable period confronting each other. The chief struggle was for supplies, which were on both sides scarce: for this purpose Mithradates formed the flower of his cavalry and a division of select infantry under Diophantus and Taxiles into a flying corps, which was intended to scour the country between the Lycus and the Halys and to seize the Roman convoys of provisions coming from Cappadocia. But the lieutenant of Lucullus, Marcus Fabius Hadrianus, who escorted such a train, not only completely defeated the band which lay in wait for him in the defile where it expected to surprise him, but after being reinforced from the camp defeated also the army of Diophantus and Taxiles itself, so that it totally broke up. It was an irreparable loss for the king, when his cavalry, on which alone he relied, was thus overthrown.

Victory of Cabira

As soon as he received through the first fugitives that arrived at Cabira from the field of battle—significantly enough, the beaten generals themselves—the fatal news, earlier even than Lucullus got tidings of the victory, he resolved on an immediate farther retreat. But the resolution taken by the king spread with the rapidity of lightning among those immediately around him; and, when the soldiers saw the confidants of the king packing in all haste, they too were seized with a panic. No one was willing to be the hindmost in decamping; all, high and low, ran pell-mell like startled deer; no authority, not even that of the king, was longer heeded; and the king himself was carried away amidst the wild tumult. Lucullus,

perceiving the confusion, made his attack, and the Pontic troops allowed themselves to be massacred almost without offering resistance. Had the legions been able to maintain discipline and to restrain their eagerness for spoil, hardly a man would have escaped them, and the king himself would doubtless have been taken. With difficulty Mithradates escaped along with a few attendants through the mountains to Comana (not far from Tocat and the source of the Iris); from which, however, a Roman corps under Marcus Pompeius soon scared him off and pursued him, till, attended by not more than 2000 cavalry, he crossed the frontier of his kingdom at Talaura in Lesser Armenia. In the empire of the great-king he found a refuge, but nothing more (end of 682). Tigranes, it is true, ordered royal honours to be shown to his fugitive father-in-law; but he did not even invite him to his court, and detained him in the remote border-province to which he had come in a sort of decorous captivity.

Pontus Becomes Roman Sieges of the Pontic Cities

The Roman troops overran all Pontus and Lesser Armenia, and as far as Trapezus the flat country submitted without resistance to the conqueror. The commanders of the royal treasure-houses also surrendered after more or less delay, and delivered up their stores of money. The king ordered that the women of the royal harem—his sisters, his numerous wives and concubines—as it was not possible to secure their flight, should all be put to death by one of his eunuchs at Pharnacea (Kerasunt). The towns alone offered obstinate resistance. It is true that the few in the interior—Cabira, Amasia, Eupatoria—were soon in the power of the Romans; but the larger maritime towns, Amisus and Sinope in Pontus, Amastris in Paphlagonia, Tius and the Pontic Heraclea in Bithynia, defended themselves with desperation, partly animated by attachment to the king and to their free Hellenic constitution which he had protected, partly overawed by the bands of corsairs whom the

king had called to his aid. Sinope and Heraclea even sent forth vessels against the Romans; and the squadron of Sinope seized a Roman flotilla which was bringing corn from the Tauric peninsula for the army of Lucullus. Heraclea did not succumb till after a two years' siege, when the Roman fleet had cut off the city from intercourse with the Greek towns on the Tauric peninsula and treason had broken out in the ranks of the garrison. When Amisus was reduced to extremities, the garrison set fire to the town, and under cover of the flames took to their ships. In Sinope, where the daring pirate-captain Seleucus and the royal eunuch Bacchides conducted the defence, the garrison plundered the houses before it withdrew, and set on fire the ships which it could not take along with it; it is said that, although the greater portion of the defenders were enabled to embark, 8000 corsairs were there put to death by Lucullus. These sieges of towns lasted for two whole years and more after the battle of Cabira (682-684); Lucullus prosecuted them in great part by means of his lieutenants, while he himself regulated the affairs of the province of Asia, which demanded and obtained a thorough reform.

Remarkable, in an historical point of view, as was that obstinate resistance of the Pontic mercantile towns to the victorious Romans, it was of little immediate use; the cause of Mithradates was none the less lost. The great-king had evidently, for the present at least, no intention at all of restoring him to his kingdom. The Roman emigrants in Asia had lost their best men by the destruction of the Aegean fleet; of the survivors not a few, such as the active leaders Lucius Magius and Lucius Fannius, had made their peace with Lucullus; and with the death of Sertorius, who perished in the year of the battle of Cabira, the last hope of the emigrants vanished. Mithradates' own power was totally shattered, and one after another his remaining supports gave way; his squadrons returning from Crete and Spain, to the number of seventy sail, were attacked and destroyed by Triarius at the island of Tenedos; even the governor of the Bosporan

kingdom, the king's own son Machares, deserted him, and as independent prince of the Tauric Chersonese concluded on his own behalf peace and friendship with the Romans (684). The king himself, after a not too glorious resistance, was confined in a remote Armenian mountain-stronghold, a fugitive from his kingdom and almost a prisoner of his son-in-law. Although the bands of corsairs might still hold out in Crete, and such as had escaped from Amisus and Sinope might make their way along the hardly-accessible east coast of the Black Sea to the Sanigae and Lazi, the skilful conduct of the war by Lucullus and his judicious moderation, which did not disdain to remedy the just grievances of the provincials and to employ the repentant emigrants as officers in his army, had at a moderate sacrifice delivered Asia Minor from the enemy and annihilated the Pontic kingdom, so that it might be converted from a Roman client-state into a Roman province. A commission of the senate was expected, to settle in concert with the commander-in-chief the new provincial organization.

Beginning of the Armenian War

But the relations with Armenia were not yet settled. That declaration of war by the Romans against Tigranes was in itself justified and even demanded, we have already shown. Lucullus, who looked at the state of affairs from a nearer point of view and with a higher spirit than the senatorial college in Rome, perceived clearly the necessity of confining Armenia to the other side of the Tigris and of re-establishing the lost dominion of Rome over the Mediterranean. He showed himself in the conduct of Asiatic affairs no unworthy successor of his instructor and friend Sulla. A Philhellene above most Romans of his time, he was not insensible to the obligation which Rome had come under when taking up the heritage of Alexander—the obligation to be the shield and sword of the Greeks in the east. Personal motives—the wish to earn laurels also beyond the Euphrates, irritation at the fact that the great-king in a letter to him had

omitted the title of Imperator—may doubtless have partly influenced Lucullus; but it is unjust to assume paltry and selfish motives for actions, which motives of duty quite suffice to explain. The Roman governing college at any rate—timid, indolent, ill informed, and above all beset by perpetual financial embarrassments—could never be expected, without direct compulsion, to take the initiative in an expedition so vast and costly. About the year 682 the legitimate representatives of the Seleucid dynasty, Antiochus called the Asiatic and his brother, moved by the favourable turn of the Pontic war, had gone to Rome to procure a Roman intervention in Syria, and at the same time a recognition of their hereditary claims on Egypt. If the latter demand might not be granted, there could not, at any rate, be found a more favourable moment or occasion for beginning the war which had long been necessary against Tigranes. But the senate, while it recognized the princes doubtless as the legitimate kings of Syria, could not make up its mind to decree the armed intervention. If the favourable opportunity was to be employed, and Armenia was to be dealt with in earnest, Lucullus had to begin the war, without any proper orders from the senate, at his own hand and his own risk; he found himself, just like Sulla, placed under the necessity of executing what he did in the most manifest interest of the existing government, not with its sanction, but in spite of it. His resolution was facilitated by the relations of Rome towards Armenia, for long wavering in uncertainty between peace and war, which screened in some measure the arbitrariness of his proceedings, and failed not to suggest formal grounds for war. The state of matters in Cappadocia and Syria afforded pretexts enough; and already in the pursuit of the king of Pontus Roman troops had violated the territory of the great-king. As, however, the commission of Lucullus related to the conduct of the war against Mithradates and he wished to connect what he did with that commission, he preferred to send one of his officers, Appius Claudius, to the great-king at

Antioch to demand the surrender of Mithradates, which in fact could not but lead to war.

Difficulties to Be Encountered

The resolution was a grave one, especially considering the condition of the Roman army. It was indispensable during the campaign in Armenia to keep the extensive territory of Pontus strongly occupied, for otherwise the army stationed in Armenia might lose its communications with home; and besides it might be easily foreseen that Mithradates would attempt an inroad into his former kingdom. The army, at the head of which Lucullus had ended the Mithradatic war, amounting to about 30,000 men, was obviously inadequate for this double task. Under ordinary circumstances the general would have asked and obtained from his government the despatch of a second army; but as Lucullus wished, and was in some measure compelled, to take up the war over the head of the government, he found himself necessitated to renounce that plan and—although he himself incorporated the captured Thracian mercenaries of the Pontic king with his troops—to carry the war over the Euphrates with not more than two legions, or at most 15,000 men. This was in itself hazardous; but the smallness of the number might be in some degree compensated by the tried valour of the army consisting throughout of veterans. A far worse feature was the temper of the soldiers, to which Lucullus, in his high aristocratic fashion, had given far too little heed. Lucullus was an able general, and—according to the aristocratic standard— an upright and kindly-disposed man, but very far from being a favourite with his soldiers. He was unpopular, as a decided adherent of the oligarchy; unpopular, because he had vigorously checked the monstrous usury of the Roman capitalists in Asia Minor; unpopular, on account of the toils and fatigues which he inflicted on his troops; unpopular, because he demanded strict discipline in his soldiers and prevented as far as possible the pillage of the Greek towns by his men, but withal caused many

a waggon and many a camel to be laden with the treasures of the east for himself; unpopular too on account of his manner, which was polished, haughty, Hellenizing, not at all familiar, and inclining, wherever it was possible, to ease and pleasure. There was no trace in him of the charm which weaves a personal bond between the general and the soldier. Moreover, a large portion of his ablest soldiers had every reason to complain of the unmeasured prolongation of their term of service. His two best legions were the same which Flaccus and Fimbria had led in 668 to the east;(14) notwithstanding that shortly after the battle of Cabira they had been promised their discharge well earned by thirteen campaigns, Lucullus now led them beyond the Euphrates to face a new incalculable war—it seemed as though the victors of Cabira were to be treated worse than the vanquished of Cannae.(15) It was in fact more than rash that, with troops so weak and so much out of humour, a general should at his own hand and, strictly speaking, at variance with the constitution, undertake an expedition to a distant and unknown land, full of rapid streams and snow-clad mountains—a land which from the very vastness of its extent rendered any lightly-undertaken attack fraught with danger. The conduct of Lucullus was therefore much and not unreasonably censured in Rome; only, amidst the censure the fact should not have been concealed, that the perversity of the government was the prime occasion of this venturesome project of the general, and, if it did not justify it, rendered it at least excusable.

Lucullus Crosses the Euphrates

The mission of Appius Claudius was designed not only to furnish a diplomatic pretext for the war, but also to induce the princes and cities of Syria especially to take arms against the great-king: in the spring of 685 the formal attack began. During the winter the king of Cappadocia had silently provided vessels for transport; with these the Euphrates was crossed at Melitene, and the further march was directed by way of the Taurus-passes

to the Tigris. This too Lucullus crossed in the region of Amida (Diarbekr), and advanced towards the road which connected the second capital Tigranocerta,(16) recently founded on the south frontier of Armenia, with the old metropolis Artaxata. At the former was stationed the great-king, who had shortly before returned from Syria, after having temporarily deferred the prosecution of his plans of conquest on the Mediterranean on account of the embroilment with the Romans. He was just projecting an inroad into Roman Asia from Cilicia and Lycaonia, and was considering whether the Romans would at once evacuate Asia or would previously give him battle, possibly at Ephesus, when the news was brought to him of the advance of Lucullus, which threatened to cut off his communications with Artaxata. He ordered the messenger to be hanged, but the disagreeable reality remained unaltered; so he left the new capital and resorted to the interior of Armenia, in order there to raise a force—which had not yet been done—against the Romans. Meanwhile Mithrobarzanes with the troops actually at his disposal and in concert with the neighbouring Bedouin tribes, who were called out in all haste, was to give employment to the Romans. But the corps of Mithrobarzanes was dispersed by the Roman vanguard, and the Arabs by a detachment under Sextilius; Lucullus gained the road leading from Tigranocerta to Artaxata, and, while on the right bank of the Tigris a Roman detachment pursued the great-king retreating northwards, Lucullus himself crossed to the left and marched forward to Tigranocerta.

Siege and Battle of Tigranocerta

The exhaustless showers of arrows which the garrison poured upon the Roman army, and the setting fire to the besieging machines by means of naphtha, initiated the Romans into the new dangers of Iranian warfare; and the brave commandant Mancaeus maintained the city, till at length the great royal army of relief had assembled from all parts of the vast empire and the adjoining countries that were open to Armenian recruiting officers, and had

advanced through the north-eastern passes to the relief of the capital. The leader Taxiles, experienced in the wars of Mithradates, advised Tigranes to avoid a battle, and to surround and starve out the small Roman army by means of his cavalry. But when the king saw the Roman general, who had determined to give battle without raising the siege, move out with not much more than 10,000 men against a force twenty times superior, and boldly cross the river which separated the two armies; when he surveyed on the one side this little band, "too many for an embassy, too few for an army," and on the other side his own immense host, in which the peoples from the Black Sea and the Caspian met with those of the Mediterranean and of the Persian Gulf, in which the dreaded iron-clad lancers alone were more numerous than the whole army of Lucullus, and in which even infantry armed after the Roman fashion were not wanting; he resolved promptly to accept the battle desired by the enemy. But while the Armenians were still forming their array, the quick eye of Lucullus perceived that they had neglected to occupy a height which commanded the whole position of their cavalry. He hastened to occupy it with two cohorts, while at the same time his weak cavalry by a flank attack diverted the attention of the enemy from this movement; and as soon as he had reached the height, he led his little band against the rear of the enemy's cavalry. They were totally broken and threw themselves on the not yet fully formed infantry, which fled without even striking a blow. The bulletin of the victor—that 100,000 Armenians and five Romans had fallen and that the king, throwing away his turban and diadem, had galloped off unrecognized with a few horsemen—is composed in the style of his master Sulla. Nevertheless the victory achieved on the 6th October 685 before Tigranocerta remains one of the most brilliant stars in the glorious history of Roman warfare; and it was not less momentous than brilliant.

All the Armenian Conquests Pass into the Hands of the Romans

All the provinces wrested from the Parthians or Syrians to the south of the Tigris were by this means strategically lost to the Armenians, and passed, for the most part, without delay into the possession of the victor. The newly-built second capital itself set the example. The Greeks, who had been forced in large numbers to settle there, rose against the garrison and opened to the Roman army the gates of the city, which was abandoned to the pillage of the soldiers. It had been created for the new great-kingdom, and, like this, was effaced by the victor. From Cilicia and Syria all the troops had already been withdrawn by the Armenian satrap Magadates to reinforce the relieving army before Tigranocerta. Lucullus advanced into Commagene, the most northern province of Syria, and stormed Samosata, the capital; he did not reach Syria proper, but envoys arrived from the dynasts and communities as far as the Red Sea—from Hellenes, Syrians, Jews, Arabs—to do homage to the Romans as their sovereigns. Even the prince of Corduene, the province situated to the east of Tigranocerta, submitted; while, on the other hand, Guras the brother of the great-king maintained himself in Nisibis, and thereby in Mesopotamia. Lucullus came forward throughout as the protector of the Hellenic princes and municipalities: in Commagene he placed Antiochus, a prince of the Seleucid house, on the throne; he recognized Antiochus Asiaticus, who after the withdrawal of the Armenians had returned to Antioch, as king of Syria; he sent the forced settlers of Tigranocerta once more away to their homes. The immense stores and treasures of the great-king—the grain amounted to 30,000,000 -medimni-, the money in Tigranocerta alone to 8000 talents (nearly 2,000,000 pounds)—enabled Lucullus to defray the expenses of the war without making any demand on the state-treasury, and to bestow on each of his soldiers, besides the amplest maintenance, a present of 800 -denarii- (33 pounds).

Tigranes and Mithradates

The great-king was deeply humbled. He was of a feeble character, arrogant in prosperity, faint-hearted in adversity. Probably an agreement would have been come to between him and Lucullus— an agreement which there was every reason that the great-king should purchase by considerable sacrifices, and the Roman general should grant under tolerable conditions— had not the old Mithradates been in existence. The latter had taken no part in the conflicts around Tigranocerta. Liberated after twenty months' captivity about the middle of 684 in consequence of the variance that had occurred between the great-king and the Romans, he had been despatched with 10,000 Armenian cavalry to his former kingdom, to threaten the communications of the enemy. Recalled even before he could accomplish anything there, when the great-king summoned his whole force to relieve the capital which he had built, Mithradates was met on his arrival before Tigranocerta by the multitudes just fleeing from the field of battle. To every one, from the great-king down to the common soldier, all seemed lost. But if Tigranes should now make peace, not only would Mithradates lose the last chance of being reinstated in his kingdom, but his surrender would be beyond doubt the first condition of peace; and certainly Tigranes would not have acted otherwise towards him than Bocchus had formerly acted towards Jugurtha. The king accordingly staked his whole personal weight to prevent things from taking this turn, and to induce the Armenian court to continue the war, in which he had nothing to lose and everything to gain; and, fugitive and dethroned as was Mithradates, his influence at this court was not slight. He was still a stately and powerful man, who, although already upwards of sixty years old, vaulted on horseback in full armour, and in hand-to-hand conflict stood his ground like the best. Years and vicissitudes seemed to have steeled his spirit: while in earlier times he sent forth generals to lead his armies and took no direct part in war himself, we find him henceforth as an old man commanding in person and fighting in person on the field of battle. To one who, during his fifty years of rule, had

witnessed so many unexampled changes of fortune, the cause of the great-king appeared by no means lost through the defeat of Tigranocerta; whereas the position of Lucullus was very difficult, and, if peace should not now take place and the war should be judiciously continued, even in a high degree precarious.

Renewal of the War

The veteran of varied experience, who stood towards the great-king almost as a father, and was now able to exercise a personal influence over him, overpowered by his energy that weak man, and induced him not only to resolve on the continuance of the war, but also to entrust Mithradates with its political and military management. The war was now to be changed from a cabinet contest into a national Asiatic struggle; the kings and peoples of Asia were to unite for this purpose against the domineering and haughty Occidentals. The greatest exertions were made to reconcile the Parthians and Armenians with each other, and to induce them to make common cause against Rome. At the suggestion of Mithradates, Tigranes offered to give back to the Arsacid Phraates the God (who had reigned since 684) the provinces conquered by the Armenians— Mesopotamia, Adiabene, the "great valleys"—and to enter into friendship and alliance with him. But, after all that had previously taken place, this offer could scarcely reckon on a favourable reception; Phraates preferred to secure the boundary of the Euphrates by a treaty not with the Armenians, but with the Romans, and to look on, while the hated neighbour and the inconvenient foreigner fought out their strife. Greater success attended the application of Mithradates to the peoples of the east than to the kings. It was not difficult to represent the war as a national one of the east against the west, for such it was; it might very well be made a religious war also, and the report might be spread that the object aimed at by the army of Lucullus was the temple of the Persian Nanaea or Anaitis in Elymais or the modern Luristan, the most celebrated

and the richest shrine in the whole region of the Euphrates.(17) From far and near the Asiatics flocked in crowds to the banner of the kings, who summoned them to protect the east and its gods from the impious foreigners. But facts had shown not only that the mere assemblage of enormous hosts was of little avail, but that the troops really capable of marching and fighting were by their very incorporation in such a mass rendered useless and involved in the general ruin. Mithradates sought above all to develop the arm which was at once weakest among the Occidentals and strongest among the Asiatics, the cavalry; in the army newly formed by him half of the force was mounted. For the ranks of the infantry he carefully selected, out of the mass of recruits called forth or volunteering, those fit for service, and caused them to be drilled by his Pontic officers. The considerable army, however, which soon assembled under the banner of the great- king was destined not to measure its strength with the Roman veterans on the first chance field of battle, but to confine itself to defence and petty warfare. Mithradates had conducted the last war in his empire on the system of constantly retreating and avoiding battle; similar tactics were adopted on this occasion, and Armenia proper was destined as the theatre of war—the hereditary land of Tigranes, still wholly untouched by the enemy, and excellently adapted for this sort of warfare both by its physical character and by the patriotism of its inhabitants.

Dissatisfaction with Lucullus in the Capital and in the Army

The year 686 found Lucullus in a position of difficulty, which daily assumed a more dangerous aspect. In spite of his brilliant victories, people in Rome were not at all satisfied with him. The senate felt the arbitrary nature of his conduct: the capitalist party, sorely offended by him, set all means of intrigue and corruption at work to effect his recall. Daily the Forum echoed with just and unjust complaints regarding the foolhardy, the covetous, the un-Roman, the traitorous general. The senate so far yielded to

the complaints regarding the union of such unlimited power—two ordinary governorships and an important extraordinary command—in the hands of such a man, as to assign the province of Asia to one of the praetors, and the province of Cilicia along with three newly-raised legions to the consul Quintus Marcius Rex, and to restrict the general to the command against Mithradates and Tigranes.

These accusations springing up against the general in Rome found a dangerous echo in the soldiers' quarters on the Iris and on the Tigris; and the more so that several officers including the general's own brother-in-law, Publius Clodius, worked upon the soldiers with this view. The report beyond doubt designedly circulated by these, that Lucullus now thought of combining with the Pontic-Armenian war an expedition against the Parthians, fed the exasperation of the troops.

Lucullus Advances into Armenia

But while the troublesome temper of the government and of the soldier thus threatened the victorious general with recall and mutiny, he himself continued like a desperate gambler to increase his stake and his risk. He did not indeed march against the Parthians but when Tigranes showed himself neither ready to make peace nor disposed, as Lucullus wished, to risk a second pitched battle, Lucullus resolved to advance from Tigranocerta, through the difficult mountain-country along the eastern shore of the lake of Van, into the valley of the eastern Euphrates (or the Arsanias, now Myrad-Chai), and thence into that of the Araxes, where, on the northern slope of Ararat, lay Artaxata the capital of Armenia proper, with the hereditary castle and the harem of the king. He hoped, by threatening the king's hereditary residence, to compel him to fight either on the way or at any rate before Artaxata. It was inevitably necessary to leave behind a division at Tigranocerta; and, as the marching army could not possibly be further

reduced, no course was left but to weaken the position in Pontus and to summon troops thence to Tigranocerta. The main difficulty, however, was the shortness of the Armenian summer, so inconvenient for military enterprises. On the tableland of Armenia, which lies 5000 feet and more above the level of the sea, the corn at Erzeroum only germinates in the beginning of June, and the winter sets in with the harvest in September; Artaxata had to be reached and the campaign had to be ended in four months at the utmost.

At midsummer, 686, Lucullus set out from Tigranocerta, and, marching doubtless through the pass of Bitlis and farther to the westward along the lake of Van—arrived on the plateau of Musch and at the Euphrates. The march went on—amidst constant and very troublesome skirmishing with the enemy's cavalry, and especially with the mounted archers—slowly, but without material hindrance; and the passage of the Euphrates, which was seriously defended by the Armenian cavalry, was secured by a successful engagement; the Armenian infantry showed itself, but the attempt to involve it in the conflict did not succeed. Thus the army reached the tableland, properly so called, of Armenia, and continued its march into the unknown country. They had suffered no actual misfortune; but the mere inevitable delaying of the march by the difficulties of the ground and the horsemen of the enemy was itself a very serious disadvantage. Long before they had reached Artaxata, winter set in; and when the Italian soldiers saw snow and ice around them, the bow of military discipline that had been far too tightly stretched gave way.

Lucullus Retreats to Mesopotamia

Capture of Nisibus

A formal mutiny compelled the general to order a retreat, which he effected with his usual skill. When he had safely reached Mesopotamia

where the season still permitted farther operations, Lucullus crossed the Tigris, and threw himself with the mass of his army on Nisibis, the last city that here remained to the Armenians. The great-king, rendered wiser by the experience acquired before Tigranocerta, left the city to itself: notwithstanding its brave defence it was stormed in a dark, rainy night by the besiegers, and the army of Lucullus found there booty not less rich and winter- quarters not less comfortable than the year before in Tigranocerta.

Conflicts in Pontus and at Tigranocerta

But, meanwhile, the whole weight of the enemy's offensive fell on the weak Roman divisions left behind in Pontus and in Armenia. Tigranes compelled the Roman commander of the latter corps, Lucius Fannius—the same who had formerly been the medium of communication between Sertorius and Mithradates (18)—to throw himself into a fortress, and kept him beleaguered there. Mithradates advanced into Pontus with 4000 Armenian horsemen and 4000 of his own, and as liberator and avenger summoned the nation to rise against the common foe. All joined him; the scattered Roman soldiers were everywhere seized and put to death: when Hadrianus, the Roman commandant in Pontus,(19) led his troops against him, the former mercenaries of the king and the numerous natives of Pontus following the army as slaves made common cause with the enemy. For two successive days the unequal conflict lasted; it was only the circumstance that the king after receiving two wounds had to be carried off from the field of battle, which gave the Roman commander the opportunity of breaking off the virtually lost battle, and throwing himself with the small remnant of his troops into Cabira. Another of Lucullus' lieutenants who accidentally came into this region, the resolute Triarius, again gathered round him a body of troops and fought a successful engagement with the king; but he was much too weak to expel him afresh from Pontic soil, and had to acquiesce while the king took up winter-quarters in Comana.

Farther Retreat to Pontus

So the spring of 687 came on. The reunion of the army in Nisibis, the idleness of winter-quarters, the frequent absence of the general, had meanwhile increased the insubordination of the troops; not only did they vehemently demand to be led back, but it was already tolerably evident that, if the general refused to lead them home, they would break up of themselves. The supplies were scanty; Fannius and Triarius, in their distress, sent the most urgent entreaties to the general to furnish aid. With a heavy heart Lucullus resolved to yield to necessity, to give up Nisibis and Tigranocerta, and, renouncing all the brilliant hopes of his Armenian expedition, to return to the right bank of the Euphrates. Fannius was relieved; but in Pontus the help was too late. Triarius, not strong enough to fight with Mithradates, had taken up a strong position at Gaziura (Turksal on the Iris, to the west of Tokat), while the baggage was left behind at Dadasa. But when Mithradates laid siege to the latter place, the Roman soldiers, apprehensive for their property, compelled their leader to leave his secure position, and to give battle to the king between Gaziura and Ziela (Zilleh) on the Scotian heights.

Defeat of the Romans in Pontus at Ziela

What Triarius had foreseen, occurred. In spite of the stoutest resistance the wing which the king commanded in person broke the Roman line and huddled the infantry together into a clayey ravine, where it could make neither a forward nor a lateral movement and was cut to pieces without pity. The king indeed was dangerously wounded by a Roman centurion, who sacrificed his life for it; but the defeat was not the less complete. The Roman camp was taken; the flower of the infantry, and almost all the staff and subaltern officers, strewed the ground; the dead were left lying unburied on the field of battle, and, when Lucullus arrived on the right bank

of the Euphrates, he learned the defeat not from his own soldiers, but through the reports of the natives.

Mutiny of the Soldiers

Along with this defeat came the outbreak of the military conspiracy. At this very time news arrived from Rome that the people had resolved to grant a discharge to the soldiers whose legal term of service had expired, to wit, to the Fimbrians, and to entrust the chief command in Pontus and Bithynia to one of the consuls of the current year: the successor of Lucullus, the consul Manius Acilius Glabrio, had already landed in Asia Minor. The disbanding of the bravest and most turbulent legions and the recall of the commander-in-chief, in connection with the impression produced by the defeat of Ziela, dissolved all the bonds of authority in the army just when the general had most urgent need of their aid. Near Talaura in Lesser Armenia he confronted the Pontic troops, at whose head Tigranes' son-in-law, Mithradates of Media, had already engaged the Romans successfully in a cavalry conflict; the main force of the great-king was advancing to the same point from Armenia. Lucullus sent to Quintus Marcius the new governor of Cilicia, who had just arrived on the way to his province with three legions in Lycaonia, to obtain help from him; Marcius declared that his soldiers refused to march to Armenia. He sent to Glabrio with the request that he would take up the supreme command committed to him by the people; Glabrio showed still less inclination to undertake this task, which had now become so difficult and hazardous. Lucullus, compelled to retain the command, with the view of not being obliged to fight at Talaura against the Armenian and the Pontic armies conjoined, ordered a movement against the advancing Armenians.

Farther Retreat to Asia Minor

The soldiers obeyed the order to march; but, when they reached the point where the routes to Armenia and Cappadocia diverged, the bulk of the army took the latter, and proceeded to the province of Asia. There the Fimbrians demanded their immediate discharge; and although they desisted from this at the urgent entreaty of the commander-in-chief and the other corps, they yet persevered in their purpose of disbanding if the winter should come on without an enemy confronting them; which accordingly was the case. Mithradates not only occupied once more almost his whole kingdom, but his cavalry ranged over all Cappadocia and as far as Bithynia; king Ariobarzanes sought help equally in vain from Quintus Marcius, from Lucullus, and from Glabrio. It was a strange, almost incredible issue for a war conducted in a manner so glorious. If we look merely to military achievements, hardly any other Roman general accomplished so much with so trifling means as Lucullus; the talent and the fortune of Sulla seemed to have devolved on this his disciple. That under the circumstances the Roman army should have returned from Armenia to Asia Minor uninjured, is a military miracle which, so far as we can judge, far excels the retreat of Xenophon; and, although mainly doubtless to be explained by the solidity of the Roman, and the inefficiency of the Oriental, system of war, it at all events secures to the leader of this expedition an honourable name in the foremost rank of men of military capacity. If the name of Lucullus is not usually included among these, it is to all appearance simply owing to the fact that no narrative of his campaigns which is in a military point of view even tolerable has come down to us, and to the circumstance that in everything and particularly in war, nothing is taken into account but the final result; and this, in reality, was equivalent to a complete defeat. Through the last unfortunate turn of things, and principally through the mutiny of the soldiers, all the results of an eight years' war had been lost; in the winter of 687-688 the Romans again stood exactly at the same spot as in the winter of 679-680.

War with the Pirates

The maritime war against the pirates, which began at the same time with the continental war and was all along most closely connected with it, yielded no better results. It has been already mentioned (20) that the senate in 680 adopted the judicious resolution to entrust the task of clearing the seas from the corsairs to a single admiral in supreme command, the praetor Marcus Antonius. But at the very outset they had made an utter mistake in the choice of the leader; or rather those, who had carried this measure so appropriate in itself, had not taken into account that in the senate all personal questions were decided by the influence of Cethegus(21) and similar coterie-considerations. They had moreover neglected to furnish the admiral of their choice with money and ships in a manner befitting his comprehensive task, so that with his enormous requisitions he was almost as burdensome to the provincials whom he befriended as were the corsairs.

Defeat of Antonius off Cydonia

The results were corresponding. In the Campanian waters the fleet of Antonius captured a number of piratical vessels. But an engagement took place with the Cretans, who had entered into friendship and alliance with the pirates and abruptly rejected his demand that they should desist from such fellowship; and the chains, with which the foresight of Antonius had provided his vessels for the purpose of placing the captive buccaneers in irons, served to fasten the quaestor and the other Roman prisoners to the masts of the captured Roman ships, when the Cretan generals Lasthenes and Panares steered back in triumph to Cydonia from the naval combat in which they had engaged the Romans off their island. Antonius, after having squandered immense sums and accomplished not the slightest result by his inconsiderate mode of warfare, died in 683 at Crete. The ill success of his expedition, the costliness of building a fleet, and the repugnance of the

oligarchy to confer any powers of a more comprehensive kind on the magistrates, led them, after the practical termination of this enterprise by Antonius' death, to make no farther nomination of an admiral-in-chief, and to revert to the old system of leaving each governor to look after the suppression of piracy in his own province: the fleet equipped by Lucullus for instance(22) was actively employed for this purpose in the Aegean sea.

Cretan War

So far however as the Cretans were concerned, a disgrace like that endured off Cydonia seemed even to the degenerate Romans of this age as if it could be answered only by a declaration of war. Yet the Cretan envoys, who in the year 684 appeared in Rome with the request that the prisoners might be taken back and the old alliance reestablished, had almost obtained a favourable decree of the senate; what the whole corporation termed a disgrace, the individual senator was ready to sell for a substantial price. It was not till a formal resolution of the senate rendered the loans of the Cretan envoys among the Roman bankers non-actionable—that is, not until the senate had incapacitated itself for undergoing bribery—that a decree passed to the effect that the Cretan communities, if they wished to avoid war, should hand over not only the Roman deserters but the authors of the outrage perpetrated off Cydonia—the leaders Lasthenes and Panares—to the Romans for befitting punishment, should deliver up all ships and boats of four or more oars, should furnish 400 hostages, and should pay a fine of 4000 talents (975,000 pounds). When the envoys declared that they were not empowered to enter into such terms, one of the consuls of the next year was appointed to depart on the expiry of his official term for Crete, in order either to receive there what was demanded or to begin the war.

Metellus Subdues Crete

Accordingly in 685 the proconsul Quintus Metellus appeared in the Cretan waters. The communities of the island, with the larger towns Gortyna, Cnossus, Cydonia at their head, were resolved rather to defend themselves in arms than to submit to those excessive demands. The Cretans were a nefarious and degenerate people,(23) with whose public and private existence piracy was as intimately associated as robbery with the commonwealth of the Aetolians; but they resembled the Aetolians in valour as in many other respects, and accordingly these two were the only Greek communities that waged a courageous and honourable struggle for independence. At Cydonia, where Metellus landed his three legions, a Cretan army of 24,000 men under Lasthenes and Panares was ready to receive him; a battle took place in the open field, in which the victory after a hard struggle remained with the Romans. Nevertheless the towns bade defiance from behind their walls to the Roman general; Metellus had to make up his mind to besiege them in succession. First Cydonia, in which the remains of the beaten army had taken refuge, was after a long siege surrendered by Panares in return for the promise of a free departure for himself. Lasthenes, who had escaped from the town, had to be besieged a second time in Cnossus; and, when this fortress also was on the point of falling, he destroyed its treasures and escaped once more to places which still continued their defence, such as Lyctus, Eleuthera, and others. Two years (686, 687) elapsed, before Metellus became master of the whole island and the last spot of free Greek soil thereby passed under the control of the dominant Romans; the Cretan communities, as they were the first of all Greek commonwealths to develop the free urban constitution and the dominion of the sea, were also to be the last of all those Greek maritime states that formerly filled the Mediterranean to succumb to the Roman continental power.

The Pirates in the Mediterranean

All the legal conditions were fulfilled for celebrating another of the usual pompous triumphs; the gens of the Metelli could add to its Macedonian, Numidian, Dalmatian, Balearic titles with equal right the new title of Creticus, and Rome possessed another name of pride. Nevertheless the power of the Romans in the Mediterranean was never lower, that of the corsairs never higher, than in those years. Well might the Cilicians and Cretans of the seas, who are said to have numbered at this time 1000 ships, mock the Isauricus and the Creticus, and their empty victories. With what effect the pirates interfered in the Mithradatic war, and how the obstinate resistance of the Pontic maritime towns derived its best resources from the corsair-state, has been already related. But that state transacted business on a hardly less grand scale on its own behoof. Almost under the eyes of the fleet of Lucullus, the pirate Athenodorus surprised in 685 the island of Delos, destroyed its far-famed shrines and temples, and carried off the whole population into slavery. The island Lipara near Sicily paid to the pirates a fixed tribute annually, to remain exempt from like attacks. Another pirate chief Heracleon destroyed in 682 the squadron equipped in Sicily against him, and ventured with no more than four open boats to sail into the harbour of Syracuse. Two years later his colleague Pyrganion even landed at the same port, established himself there and sent forth flying parties into the island, till the Roman governor at last compelled him to re-embark. People grew at length quite accustomed to the fact that all the provinces equipped squadrons and raised coastguards, or were at any rate taxed for both; and yet the pirates appeared to plunder the provinces with as much regularity as the Roman governors. But even the sacred soil of Italy was now no longer respected by the shameless transgressors: from Croton they carried off with them the temple-treasures of the Lacinian Hera; they landed in Brundisium, Misenum, Caieta, in the Etruscan ports, even in Ostia itself; they seized the most eminent Roman officers as captives, among others the admiral of the Cilician army and two praetors with their whole retinue, with

the dreaded -fasces- themselves and all the insignia of their dignity; they carried away from a villa at Misenum the very sister of the Roman admiral-in-chief Antonius, who was sent forth to annihilate the pirates; they destroyed in the port of Ostia the Roman war fleet equipped against them and commanded by a consul. The Latin husbandman, the traveller on the Appian highway, the genteel bathing visitor at the terrestrial paradise of Baiae were no longer secure of their property or their life for a single moment; all traffic and all intercourse were suspended; the most dreadful scarcity prevailed in Italy, and especially in the capital, which subsisted on transmarine corn. The contemporary world and history indulge freely in complaints of insupportable distress; in this case the epithet may have been appropriate.

Servile Disturbances

We have already described how the senate restored by Sulla carried out its guardianship of the frontier in Macedonia, its discipline over the client kings of Asia Minor, and lastly its marine police; the results were nowhere satisfactory. Nor did better success attend the government in another and perhaps even more urgent matter, the supervision of the provincial, and above all of the Italian, proletariat. The gangrene of a slave-proletariate Gnawed at the vitals of all the states of antiquity, and the more so, the more vigorously they had risen and prospered; for the power and riches of the state regularly led, under the existing circumstances, to a disproportionate increase of the body of slaves. Rome naturally suffered more severely from this cause than any other state of antiquity. Even the government of the sixth century had been under the necessity of sending troops against the gangs of runaway herdsmen and rural slaves. The plantation-system, spreading more and more among the Italian speculators had infinitely increased the dangerous evil: in the time of the Gracchan and Marian crises and in close connection with them servile revolts had taken place at

numerous points of the Roman empire, and in Sicily had even grown into two bloody wars (619-622 and 652-654;(24)). But the ten years of the rule of the restoration after Sulla's death formed the golden age both for the buccaneers at sea and for bands of a similar character on land, above all in the Italian peninsula, which had hitherto been comparatively well regulated. The land could hardly be said any longer to enjoy peace. In the capital and the less populous districts of Italy robberies were of everyday occurrence, murders were frequent. A special decree of the people was issued—perhaps at this epoch— against kidnapping of foreign slaves and of free men; a special summary action was about this time introduced against violent deprivation of landed property. These crimes could not but appear specially dangerous, because, while they were usually perpetrated by the proletariat, the upper class were to a great extent also concerned in them as moral originators and partakers in the gain. The abduction of men and of estates was very frequently suggested by the overseers of the large estates and carried out by the gangs of slaves, frequently armed, that were collected there: and many a man even of high respectability did not disdain what one of his officious slave-overseers thus acquired for him as Mephistopheles acquired for Faust the lime trees of Philemon. The state of things is shown by the aggravated punishment for outrages on property committed by armed bands, which was introduced by one of the better Optimates, Marcus Lucullus, as presiding over the administration of justice in the capital about the year 676,(25) with the express object of inducing the proprietors of large bands of slaves to exercise a more strict superintendence over them and thereby avoid the penalty of seeing them judicially condemned. Where pillage and murder were thus carried on by order of the world of quality, it was natural for these masses of slaves and proletarians to prosecute the same business on their own account; a spark was sufficient to set fire to so inflammable materials, and to convert the proletariat into an insurrectionary army. An occasion was soon found.

Outbreak of the Gladiatorial War in Italy

Spartacus

The gladiatorial games, which now held the first rank among the popular amusements in Italy, had led to the institution of numerous establishments, more especially in and around Capua, designed partly for the custody, partly for the training of those slaves who were destined to kill or be killed for the amusement of the sovereign multitude. These were naturally in great part brave men captured in war, who had not forgotten that they had once faced the Romans in the field. A number of these desperadoes broke out of one of the Capuan gladiatorial schools (681), and sought refuge on Mount Vesuvius. At their head were two Celts, who were designated by their slave-names Crixus and Oenomaus, and the Thracian Spartacus. The latter, perhaps a scion of the noble family of the Spartocids which attained even to royal honours in its Thracian home and in Panticapaeum, had served among the Thracian auxiliaries in the Roman army, had deserted and gone as a brigand to the mountains, and had been there recaptured and destined for the gladiatorial games.

The Insurrection Takes Shape

The inroads of this little band, numbering at first only seventy-four persons, but rapidly swelling by concourse from the surrounding country, soon became so troublesome to the inhabitants of the rich region of Campania, that these, after having vainly attempted themselves to repel them, sought help against them from Rome. A division of 3000 men hurriedly collected appeared under the leadership of Clodius Glaber, and occupied the approaches to Vesuvius with the view of starving out the slaves. But the brigands in spite of their small number and their defective armament had the boldness to scramble down steep declivities and to fall upon the Roman posts; and when the wretched militia saw the little band of

desperadoes unexpectedly assail them, they took to their heels and fled on all sides. This first success procured for the robbers arms and increased accessions to their ranks. Although even now a great portion of them carried nothing but pointed clubs, the new and stronger division of the militia—two legions under the praetor Publius Varinius—which advanced from Rome into Campania, found them encamped almost like a regular army in the plain. Varinius had a difficult position. His militia, compelled to bivouac opposite the enemy, were severely weakened by the damp autumn weather and the diseases which it engendered; and, worse than the epidemics, cowardice and insubordination thinned the ranks. At the very outset one of his divisions broke up entirely, so that the fugitives did not fall back on the main corps, but went straight home. Thereupon, when the order was given to advance against the enemy's entrenchments and attack them, the greater portion of the troops refused to comply with it. Nevertheless Varinius set out with those who kept their ground against the robber-band; but it was no longer to be found where he sought it. It had broken up in the deepest silence and had turned to the south towards Picentia (Vicenza near Amain), where Varinius overtook it indeed, but could not prevent it from retiring over the Silarus into the interior of Lucania, the chosen land of shepherds and robbers. Varinius followed thither, and there at length the despised enemy arrayed themselves for battle. All the circumstances under which the combat took place were to the disadvantage of the Romans: the soldiers, vehemently as they had demanded battle a little before, fought ill; Varinius was completely vanquished; his horse and the insignia of his official dignity fell with the Roman camp itself into the enemy's hand. The south-Italian slaves, especially the brave half-savage herdsmen, flocked in crowds to the banner of the deliverers who had so unexpectedly appeared; according to the most moderate estimates the number of armed insurgents rose to 40,000 men. Campania, just evacuated, was speedily reoccupied, and the Roman corps which was left behind there under Gaius Thoranius, the quaestor of

Varinius, was broken and destroyed. In the whole south and south-west of Italy the open country was in the hands of the victorious bandit- chiefs; even considerable towns, such as Consentia in the Bruttian country, Thurii and Metapontum in Lucania, Nola and Nuceria in Campania, were stormed by them, and suffered all the atrocities which victorious barbarians could inflict on defenceless civilized men, and unshackled slaves on their former masters. That a conflict like this should be altogether abnormal and more a massacre than a war, was unhappily a matter of course: the masters duly crucified every captured slave; the slaves naturally killed their prisoners also, or with still more sarcastic retaliation even compelled their Roman captives to slaughter each other in gladiatorial sport; as was subsequently done with three hundred of them at the obsequies of a robber-captain who had fallen in combat.

Great Victories of Spartacus

In Rome people were with reason apprehensive as to the destructive conflagration which was daily spreading. It was resolved next year (682) to send both consuls against the formidable leaders of the gang. The praetor Quintus Arrius, a lieutenant of the consul Lucius Gellius, actually succeeded in seizing and destroying at Mount Garganus in Apulia the Celtic band, which under Crixus had separated from the mass of the robber-army and was levying contributions at its own hand. But Spartacus achieved all the more brilliant victories in the Apennines and in northern Italy, where first the consul Gnaeus Lentulus who had thought to surround and capture the robbers, then his colleague Gellius and the so recently victorious praetor Arrius, and lastly at Mutina the governor of Cisalpine Gaul Gaius Cassius (consul 681) and the praetor Gnaeus Manlius, one after another succumbed to his blows. The scarcely- armed gangs of slaves were the terror of the legions; the series of defeats recalled the first years of the Hannibalic war.

Internal Dissension among the Insurgents

What might have come of it, had the national kings from the mountains of Auvergne or of the Balkan, and not runaway gladiatorial slaves, been at the head of the victorious bands, it is impossible to say; as it was, the movement remained notwithstanding its brilliant victories a rising of robbers, and succumbed less to the superior force of its opponents than to internal discord and the want of definite plan. The unity in confronting the common foe, which was so remarkably conspicuous in the earlier servile wars of Sicily, was wanting in this Italian war—a difference probably due to the fact that, while the Sicilian slaves found a quasi-national point of union in the common Syrohellenism, the Italian slaves were separated into the two bodies of Helleno-Barbarians and Celto-Germans. The rupture between the Celtic Crixus and the Thracian Spartacus—Oenomaus had fallen in one of the earliest conflicts—and other similar quarrels crippled them in turning to account the successes achieved, and procured for the Romans several important victories. But the want of a definite plan and aim produced far more injurious effects on the enterprise than the insubordination of the Celto-Germans. Spartacus doubtless—to judge by the little which we learn regarding that remarkable man—stood in this respect above his party. Along with his strategic ability he displayed no ordinary talent for organization, as indeed from the very outset the uprightness, with which he presided over his band and distributed the spoil, had directed the eyes of the multitude to him quite as much at least as his valour. To remedy the severely felt want of cavalry and of arms, he tried with the help of the herds of horses seized in Lower Italy to train and discipline a cavalry, and, so soon as he got the port of Thurii into his hands, to procure from that quarter iron and copper, doubtless through the medium of the pirates. But in the main matters he was unable to induce the wild hordes whom he led to pursue any fixed ulterior aims. Gladly would he have checked the frantic orgies of cruelty, in which the robbers indulged on

the capture of towns, and which formed the chief reason why no Italian city voluntarily made common cause with the insurgents; but the obedience which the bandit-chief found in the conflict ceased with the victory, and his representations and entreaties were in vain. After the victories obtained in the Apennine in 682 the slave army was free to move in any direction. Spartacus himself is said to have intended to cross the Alps, with a view to open to himself and his followers the means of return to their Celtic or Thracian home: if the statement is well founded, it shows how little the conqueror overrated his successes and his power. When his men refused so speedily to turn their backs on the riches of Italy, Spartacus took the route for Rome, and is said to have meditated blockading the capital. The troops, however, showed themselves also averse to this desperate but yet methodical enterprise; they compelled their leader, when he was desirous to be a general, to remain a mere captain of banditti and aimlessly to wander about Italy in search of plunder. Rome might think herself fortunate that the matter took this turn; but even as it was, the perplexity was great. There was a want of trained soldiers as of experienced generals; Quintus Metellus and Gnaeus Pompeius were employed in Spain, Marcus Lucullus in Thrace, Lucius Lucullus in Asia Minor; and none but raw militia and, at best, mediocre officers were available. The extraordinary supreme command in Italy was given to the praetor Marcus Crassus, who was not a general of much reputation, but had fought with honour under Sulla and had at least character; and an army of eight legions, imposing if not by its quality, at any rate by its numbers, was placed at his disposal. The new commander-in-chief began by treating the first division, which again threw away its arms and fled before the banditti, with all the severity of martial law, and causing every tenth man in it to be executed; whereupon the legions in reality grew somewhat more manly. Spartacus, vanquished in the next engagement, retreated and sought to reach Rhegium through Lucania.

Conflicts in the Bruttian Country

Just at that time the pirates commanded not merely the Sicilian waters, but even the port of Syracuse;(26) with the help of their boats Spartacus proposed to throw a corps into Sicily, where the slaves only waited an impulse to break out a third time. The march to Rhegium was accomplished; but the corsairs, perhaps terrified by the coastguards established in Sicily by the praetor Gaius Verres, perhaps also bribed by the Romans, took from Spartacus the stipulated hire without performing the service for which it was given. Crassus meanwhile had followed the robber-army nearly as far as the mouth, of the Crathis, and, like Scipio before Numantia, ordered his soldiers, seeing that they did not fight as they ought, to construct an entrenched wall of the length of thirty-five miles, which shut off the Bruttian peninsula from the rest of Italy,(27) intercepted the insurgent army on the return from Rhegium, and cut off its supplies. But in a dark winter night Spartacus broke through the lines of the enemy, and in the spring of 683(28) was once more in Lucania. The laborious work had thus been in vain. Crassus began to despair of accomplishing his task and demanded that the senate should for his support recall to Italy the armies stationed in Macedonia under Marcus Lucullus and in Hither Spain under Gnaeus Pompeius.

Disruption of the Rebels and Their Subjugation

This extreme step however was not needed; the disunion and the arrogance of the robber-bands sufficed again to frustrate their successes. Once more the Celts and Germans broke off from the league of which the Thracian was the head and soul, in order that, under leaders of their own nation Gannicus and Castus, they might separately fall victims to the sword of the Romans. Once, at the Lucanian lake the opportune appearance of Spartacus saved them, and thereupon they pitched their camp near to his; nevertheless Crassus succeeded in giving employment to Spartacus by means of the cavalry, and meanwhile surrounded the Celtic bands and

compelled them to a separate engagement, in which the whole body—numbering it is said 12,300 combatants—fell fighting bravely all on the spot and with their wounds in front. Spartacus then attempted to throw himself with his division into the mountains round Petelia (near Strongoli in Calabria), and signally defeated the Roman vanguard, which followed his retreat. But this victory proved more injurious to the victor than to the vanquished. Intoxicated by success, the robbers refused to retreat farther, and compelled their general to lead them through Lucania towards Apulia to face the last decisive struggle. Before the battle Spartacus stabbed his horse: as in prosperity and adversity he had faithfully kept by his men, he now by that act showed them that the issue for him and for all was victory or death. In the battle also he fought with the courage of a lion; two centurions fell by his hand; wounded and on his knees he still wielded his spear against the advancing foes. Thus the great robber-captain and with him the best of his comrades died the death of free men and of honourable soldiers (683). After the dearly-bought victory the troops who had achieved it, and those of Pompeius that had meanwhile after conquering the Sertorians arrived from Spain, instituted throughout Apulia and Lucania a manhunt, such as there had never been before, to crush out the last sparks of the mighty conflagration. Although in the southern districts, where for instance the little town of Tempa was seized in 683 by a gang of robbers, and in Etruria, which was severely affected by Sulla's evictions, there was by no means as yet a real public tranquillity, peace was officially considered as re-established in Italy. At least the disgracefully lost eagles were recovered—after the victory over the Celts alone five of them were brought in; and along the road from Capua to Rome the six thousand crosses bearing captured slaves testified to the re-establishment of order, and to the renewed victory of acknowledged law over its living property that had rebelled.

The Government of the Restoration as a Whole

Let us look back on the events which fill up the ten years of the Sullan restoration. No one of the movements, external or internal, which occurred during this period—neither the insurrection of Lepidus, nor the enterprises of the Spanish emigrants, nor the wars in Thrace and Macedonia and in Asia Minor, nor the risings of the pirates and the slaves—constituted of itself a mighty danger necessarily affecting the vital sinews of the nation; and yet the state had in all these struggles well-nigh fought for its very existence. The reason was that the tasks were everywhere left unperformed, so long as they might still have been performed with ease; the neglect of the simplest precautionary measures produced the most dreadful mischiefs and misfortunes, and transformed dependent classes and impotent kings into antagonists on a footing of equality. The democracy and the servile insurrection were doubtless subdued; but such as the victories were, the victor was neither inwardly elevated nor outwardly strengthened by them. It was no credit to Rome, that the two most celebrated generals of the government party had during a struggle of eight years marked by more defeats than victories failed to master the insurgent chief Sertorius and his Spanish guerillas, and that it was only the dagger of his friends that decided the Sertorian war in favour of the legitimate government. As to the slaves, it was far less an honour to have conquered them than a disgrace to have confronted them in equal strife for years. Little more than a century had elapsed since the Hannibalic war; it must have brought a blush to the cheek of the honourable Roman, when he reflected on the fearfully rapid decline of the nation since that great age. Then the Italian slaves stood like a wall against the veterans of Hannibal; now the Italian militia were scattered like chaff before the bludgeons of their runaway serfs. Then every plain captain acted in case of need as general, and fought often without success, but always with honour; now it was difficult to find among all the officers of rank a leader of even ordinary efficiency. Then the government preferred to take the last farmer from the plough rather than forgo the acquisition of

Spain and Greece; now they were on the eve of again abandoning both regions long since acquired, merely that they might be able to defend themselves against the insurgent slaves at home. Spartacus too as well as Hannibal had traversed Italy with an army from the Po to the Sicilian straits, beaten both consuls, and threatened Rome with blockade; the enterprise which had needed the greatest general of antiquity to conduct it against the Rome of former days could be undertaken against the Rome of the present by a daring captain of banditti. Was there any wonder that no fresh life sprang out of such victories over insurgents and robber-chiefs?

The external wars, however, had produced a result still less gratifying. It is true that the Thraco-Macedonian war had yielded a result not directly unfavourable, although far from corresponding to the considerable expenditure of men and money. In the wars in Asia Minor and with the pirates on the other hand, the government had exhibited utter failure. The former ended with the loss of the whole conquests made in eight bloody campaigns, the latter with the total driving of the Romans from "their own sea." Once Rome, fully conscious of the irresistibleness of her power by land, had transferred her superiority also to the other element; now the mighty state was powerless at sea and, as it seemed, on the point of also losing its dominion at least over the Asiatic continent. The material benefits which a state exists to confer— security of frontier, undisturbed peaceful intercourse, legal protection, and regulated administration—began all of them to vanish for the whole of the nations united in the Roman state; the gods of blessing seemed all to have mounted up to Olympus and to have left the miserable earth at the mercy of the officially called or volunteer plunderers and tormentors. Nor was this decay of the state felt as a public misfortune merely perhaps by such as had political rights and public spirit; the insurrection of the proletariat, and the brigandage and piracy which remind us of the times of the Neapolitan Ferdinands, carried the sense of this decay into the remotest valley and the humblest hut of Italy, and made

every one who pursued trade and commerce, or who bought even a bushel of wheat, feel it as a personal calamity.

If inquiry was made as to the authors of this dreadful and unexampled misery, it was not difficult to lay the blame of it with good reason on many. The slaveholders whose heart was in their money-bags, the insubordinate soldiers, the generals cowardly, incapable, or foolhardy, the demagogues of the market-place mostly pursuing a mistaken aim, bore their share of the blame; or, to speak more truly, who was there that did not share in it? It was instinctively felt that this misery, this disgrace, this disorder were too colossal to be the work of any one man. As the greatness of the Roman commonwealth was the work not of prominent individuals, but rather of a soundly-organized burgess-body, so the decay of this mighty structure was the result not of the destructive genius of individuals, but of a general disorganization. The great majority of the burgesses were good for nothing, and every rotten stone in the building helped to bring about the ruin of the whole; the whole nation suffered for what was the whole nation's fault. It was unjust to hold the government, as the ultimate tangible organ of the state, responsible for all its curable and incurable diseases; but it certainly was true that the government contributed after a very grave fashion to the general culpability. In the Asiatic war, for example, where no individual of the ruling lords conspicuously failed, and Lucullus, in a military point of view at least, behaved with ability and even glory, it was all the more clear that the blame of failure lay in the system and in the government as such—primarily, so far as that war was concerned, in the remissness with which Cappadocia and Syria were at first abandoned, and in the awkward position of the able general with reference to a governing college incapable of any energetic resolution. In maritime police likewise the true idea which the senate had taken up as to a general hunting out of the pirates was first spoilt by it in the execution and then totally dropped, in order to revert to the old foolish system of sending legions against the coursers of the sea. The

expeditions of Servilius and Marcius to Cilicia, and of Metellus to Crete, were undertaken on this system; and in accordance with it Triarius had the island of Delos surrounded by a wall for protection against the pirates. Such attempts to secure the dominion of the seas remind us of that Persian great-king, who ordered the sea to be scourged with rods to make it subject to him. Doubtless therefore the nation had good reason for laying the blame of its failure primarily on the government of the restoration. A similar misrule had indeed always come along with the re-establishment of the oligarchy, after the fall of the Gracchi as after that of Marius and Saturninus; yet never before had it shown such violence and at the same time such laxity, never had it previously emerged so corrupt and pernicious. But, when a government cannot govern, it ceases to be legitimate, and whoever has the power has also the right to overthrow it. It is, no doubt, unhappily true that an incapable and flagitious government may for a long period trample under foot the welfare and honour of the land, before the men are found who are able and willing to wield against that government the formidable weapons of its own forging, and to evoke out of the moral revolt of the good and the distress of the many the revolution which is in such a case legitimate. But if the game attempted with the fortunes of nations may be a merry one and may be played perhaps for a long time without molestation, it is a treacherous game, which in its own time entraps the players; and no one then blames the axe, if it is laid to the root of the tree that bears such fruits. For the Roman oligarchy this time had now come. The Pontic-Armenian war and the affair of the pirates became the proximate causes of the overthrow of the Sullan constitution and of the establishment of a revolutionary military dictatorship.

CHAPTER III

The Fall of the Oligarchy and the Rule of Pompeius

Continued Subsistence of the Sullan Constitution

The Sullan constitution still stood unshaken. The assault, which Lepidus and Sertorius had ventured to make on it, had been repulsed with little loss. The government had neglected, it is true, to finish the half-completed building in the energetic spirit of its author. It is characteristic of the government, that it neither distributed the lands which Sulla had destined for allotment but had not yet parcelled out, nor directly abandoned the claim to them, but tolerated the former owners in provisional possession without regulating their title, and indeed even allowed various still undistributed tracts of Sullan domain-land to be arbitrarily taken possession of by individuals according to the old system of occupation, which was de jure and de facto set aside by the Gracchan reforms.(1) Whatever in the Sullan enactments was indifferent or inconvenient for the Optimates, was without scruple ignored or cancelled; for instance, the sentences under which whole communities were deprived of the right of citizenship, the prohibition against conjoining the new farms, and several of the privileges conferred by Sulla on particular communities—of course, without giving back to the communities the sums paid for these exemptions. But though these violations of the ordinances of Sulla by the government itself contributed to

shake the foundations of his structure, the Sempronian laws were substantially abolished and remained so.

Attacks of the Democracy

Corn-Laws

Attempts to Restore the Tribunician Power

There was no lack, indeed, of men who had in view the re-establishment of the Gracchan constitution, or of projects to attain piecemeal in the way of constitutional reform what Lepidus and Sertorius had attempted by the path of revolution. The government had already under the pressure of the agitation of Lepidus immediately after the death of Sulla consented to a limited revival of the largesses of grain (676); and it did, moreover, what it could to satisfy the proletariat of the capital in regard to this vital question. When, notwithstanding those distributions, the high price of grain occasioned chiefly by piracy produced so oppressive a dearth in Rome as to lead to a violent tumult in the streets in 679, extraordinary purchases of Sicilian grain on account of the government relieved for the time the most severe distress; and a corn-law brought in by the consuls of 681 regulated for the future the purchases of Sicilian grain and furnished the government, although at the expense of the provincials, with better means of obviating similar evils. But the less material points of difference also—the restoration of the tribunician power in its old compass, and the setting aside of the senatorial tribunals—ceased not to form subjects of popular agitation; and in their case the government offered more decided resistance. The dispute regarding the tribunician magistracy was opened as early as 678, immediately after the defeat of Lepidus, by the tribune of the people Lucius Sicinius, perhaps a descendant of the man of the same name who had first filled this office more than four hundred years before; but it failed before the resistance offered to it by the active consul Gaius Curio. In 680 Lucius Quinctius resumed the agitation, but was induced by the authority of the

consul Lucius Lucullus to desist from his purpose. The matter was taken up in the following year with greater zeal by Gaius Licinius Macer, who—in a way characteristic of the period—carried his literary studies into public life, and, just as he had read in the *Annals*, counselled the burgesses to refuse the conscription.

Attacks on the Senatorial Tribunals

Complaints also, only too well founded, prevailed respecting the bad administration of justice by the senatorial jurymen. The condemnation of a man of any influence could hardly be obtained. Not only did colleague feel reasonable compassion for colleague, those who had been or were likely to be accused for the poor sinner under accusation at the moment; the sale also of the votes of jurymen was hardly any longer exceptional. Several senators had been judicially convicted of this crime: men pointed with the finger at others equally guilty; the most respected Optimates, such as Quintus Catulus, granted in an open sitting of the senate that the complaints were quite well founded; individual specially striking cases compelled the senate on several occasions, e. g. in 680, to deliberate on measures to check the venality of juries, but only of course till the first outcry had subsided and the matter could be allowed to slip out of sight. The consequences of this wretched administration of justice appeared especially in a system of plundering and torturing the provincials, compared with which even previous outrages seemed tolerable and moderate. Stealing and robbing had been in some measure legitimized by custom; the commission on extortions might be regarded as an institution for taxing the senators returning from the provinces for the benefit of their colleagues that remained at home. But when an esteemed Siceliot, because he had not been ready to help the governor in a crime, was by the latter condemned to death in his absence and unheard; when even Roman burgesses, if they were not equites or senators, were in the provinces no longer safe from the rods and axes of the

Roman magistrate, and the oldest acquisition of the Roman democracy—security of life and person—began to be trodden under foot by the ruling oligarchy; then even the public in the Forum at Rome had an ear for the complaints regarding its magistrates in the provinces, and regarding the unjust judges who morally shared the responsibility of such misdeeds. The opposition of course did not omit to assail its opponents in—what was almost the only ground left to it—the tribunals. The young Gaius Caesar, who also, so far as his age allowed, took zealous part in the agitation for the re-establishment of the tribunician power, brought to trial in 677 one of the most respected partisans of Sulla the consular Gnaeus Dolabella, and in the following year another Sullan officer Gaius Antonius; and Marcus Cicero in 684 called to account Gaius Verres, one of the most wretched of the creatures of Sulla, and one of the worst scourges of the provincials. Again and again were the pictures of that dark period of the proscriptions, the fearful sufferings of the provincials, the disgraceful state of Roman criminal justice, unfolded before the assembled multitude with all the pomp of Italian rhetoric, and with all the bitterness of Italian sarcasm, and the mighty dead as well as his living instruments were unrelentingly exposed to their wrath and scorn. The re-establishment of the full tribunician power, with the continuance of which the freedom, might, and prosperity of the republic seemed bound up as by a charm of primeval sacredness, the reintroduction of the "stern" equestrian tribunals, the renewal of the censorship, which Sulla had set aside, for the purifying of the supreme governing board from its corrupt and pernicious elements, were daily demanded with a loud voice by the orators of the popular party.

Want of Results from the Democratic Agitation

But with all this no progress was made. There was scandal and outcry enough, but no real result was attained by this exposure of the government according to and beyond its deserts. The material power still lay, so long as

there was no military interference, in the hands of the burgesses of the capital; and the "people" that thronged the streets of Rome and made magistrates and laws in the Forum, was in fact nowise better than the governing senate. The government no doubt had to come to terms with the multitude, where its own immediate interest was at stake; this was the reason for the renewal of the Sempronian corn-law. But it was not to be imagined that this populace would have displayed earnestness on behalf of an idea or even of a judicious reform. What Demosthenes said of his Athenians was justly applied to the Romans of this period—the people were very zealous for action, so long as they stood round the platform and listened to proposals of reforms; but when they went home, no one thought further of what he had heard in the market-place. However those democratic agitators might stir the fire, it was to no purpose, for the inflammable material was wanting. The government knew this, and allowed no sort of concession to be wrung from it on important questions of principle; at the utmost it consented (about 682) to grant amnesty to a portion of those who had become exiles with Lepidus. Any concessions that did take place, came not so much from the pressure of the democracy as from the attempts at mediation of the moderate aristocracy. But of the two laws which the single still surviving leader of this section Gaius Cotta carried in his consulate of 679, that which concerned the tribunals was again set aside in the very next year; and the second, which abolished the Sullan enactment that those who had held the tribunate should be disqualified for undertaking other magistracies, but allowed the other limitations to continue, merely—like every half-measure—excited the displeasure of both parties.

The party of conservatives friendly to reform which lost its most notable head by the early death of Cotta occurring soon after (about 681) dwindled away more and more—crushed between the extremes, which were becoming daily more marked. But of these the party of the government,

wretched and remiss as it was, necessarily retained the advantage in presence of the equally wretched and equally remiss opposition.

Quarrel between the Government and Their General Pompeius

But this state of matters so favourable to the government was altered, when the differences became more distinctly developed which subsisted between it and those of its partisans, whose hopes aspired to higher objects than the seat of honour in the senate and the aristocratic villa. In the first rank of these stood Gnaeus Pompeius. He was doubtless a Sullan; but we have already shown⁽²⁾ how little he was at home among his own party, how his lineage, his past history, his hopes separated him withal from the nobility as whose protector and champion he was officially regarded. The breach already apparent had been widened irreparably during the Spanish campaigns of the general (677-683). With reluctance and semi-compulsion the government had associated him as colleague with their true representative Quintus Metellus; and in turn he accused the senate, probably not without ground, of having by its careless or malicious neglect of the Spanish armies brought about their defeats and placed the fortunes of the expedition in jeopardy. Now he returned as victor over his open and his secret foes, at the head of an army inured to war and wholly devoted to him, desiring assignments of land for his soldiers, a triumph and the consulship for himself. The latter demands came into collision with the law. Pompeius, although several times invested in an extraordinary way with supreme official authority, had not yet administered any ordinary magistracy, not even the quaestorship, and was still not a member of the senate; and none but one who had passed through the round of lesser ordinary magistracies could become consul, none but one who had been invested with the ordinary supreme power could triumph. The senate was legally entitled, if he became a candidate for the consulship, to bid him begin with the quaestorship; if he requested a triumph, to remind him of the great Scipio,

who under like circumstances had renounced his triumph over conquered Spain. Nor was Pompeius less dependent constitutionally on the good will of the senate as respected the lands promised to his soldiers. But, although the senate—as with its feebleness even in animosity was very conceivable—should yield those points and concede to the victorious general, in return for his executioner's service against the democratic chiefs, the triumph, the consulate, and the assignations of land, an honourable annihilation in senatorial indolence among the long series of peaceful senatorial Imperators was the most favourable lot which the oligarchy was able to hold in readiness for the general of thirty-six. That which his heart really longed for—the command in the Mithradatic war—he could never expect to obtain from the voluntary bestowal of the senate: in their own well-understood interest the oligarchy could not permit him to add to his Africa and European trophies those of a third continent; the laurels which were to be plucked copiously and easily in the east were reserved at all events for the pure aristocracy. But if the celebrated general did not find his account in the ruling oligarchy, there remained—for neither was the time ripe, nor was the temperament of Pompeius at all fitted, for a purely personal outspoken dynastic policy—no alternative save to make common cause with the democratic party. No interest of his own bound him to the Sullan constitution; he could pursue his personal objects quite as well, if not better, with one more democratic. On the other hand he found all that he needed in the democratic party. Its active and adroit leaders were ready and able to relieve the resourceless and somewhat wooden hero of the trouble of political leadership, and yet much too insignificant to be able or even wishful to dispute with the celebrated general the first place and especially the supreme military control. Even Gaius Caesar, by far the most important of them, was simply a young man whose daring exploits and fashionable debts far more than his fiery democratic eloquence had gained him a name, and who could not but feel himself greatly honoured when the world-

renowned Emperor allowed him to be his political adjutant. That popularity, to which men like Pompeius, with pretensions greater than their abilities, usually attach more value than they are willing to confess to themselves, could not but fall in the highest measure to the lot of the young general whose accession gave victory to the almost forlorn cause of the democracy. The reward of victory claimed by him for himself and his soldiers would then follow of itself. In general it seemed, if the oligarchy were overthrown, that amidst the total want of other considerable chiefs of the opposition it would depend solely on Pompeius himself to determine his future position. And of this much there could hardly be a doubt, that the accession of the general of the army, which had just returned victorious from Spain and still stood compact and unbroken in Italy, to the party of opposition must have as its consequence the fall of the existing order of things. Government and opposition were equally powerless; so soon as the latter no longer fought merely with the weapons of declamation, but had the sword of a victorious general ready to back its demands, the government would be in any case overcome, perhaps even without a struggle.

Coalition of the Military Chiefs and the Democracy

Pompeius and the democrats thus found themselves urged into coalition. Personal dislikes were probably not wanting on either side: it was not possible that the victorious general could love the street orators, nor could these hail with pleasure as their chief the executioner of Carbo and Brutus; but political necessity outweighed at least for the moment all moral scruples.

The democrats and Pompeius, however, were not the sole parties to the league. Marcus Crassus was in a similar situation with Pompeius. Although a Sullan like the latter, his politics were quite as in the case of Pompeius preeminently of a personal kind, and by no means those of the ruling

oligarchy; and he too was now in Italy at the head of a large and victorious army, with which he had just suppressed the rising of the slaves. He had to choose whether he would ally himself with the oligarchy against the coalition, or enter that coalition: he chose the latter, which was doubtless the safer course. With his colossal wealth and his influence on the clubs of the capital he was in any case a valuable ally; but under the prevailing circumstances it was an incalculable gain, when the only army, with which the senate could have met the troops of Pompeius, joined the attacking force. The democrats moreover, who were probably somewhat uneasy at their alliance with that too powerful general, were not displeased to see a counterpoise and perhaps a future rival associated with him in the person of Marcus Crassus.

Thus in the summer of 683 the first coalition took place between the democracy on the one hand, and the two Sullan generals Gnaeus Pompeius and Marcus Crassus on the other. The generals adopted the party-programme of the democracy; and they were promised immediately in return the consulship for the coming year, while Pompeius was to have also a triumph and the desired allotments of land for his soldiers, and Crassus as the conqueror of Spartacus at least the honour of a solemn entrance into the capital.

To the two Italian armies, the great capitalists, and the democracy, which thus came forward in league for the overthrow of the Sullan constitution, the senate had nothing to oppose save perhaps the second Spanish army under Quintus Metellus Pius. But Sulla had truly predicted that what he did would not be done a second time; Metellus, by no means inclined to involve himself in a civil war, had discharged his soldiers immediately after crossing the Alps. So nothing was left for the oligarchy but to submit to what was inevitable. The senate granted the dispensations requisite for the consulship and triumph; Pompeius and Crassus were, without opposition,

elected consuls for 684, while their armies, on pretext of awaiting their triumph, encamped before the city. Pompeius thereupon, even before entering on office, gave his public and formal adherence to the democratic programme in an assembly of the people held by the tribune Marcus Lollius Palicanus. The change of the constitution was thus in principle decided.

Re-establishing of the Tribunician Power

They now went to work in all earnest to set aside the Sullan institutions. First of all the tribunician magistracy regained its earlier authority. Pompeius himself as consul introduced the law which gave back to the tribunes of the people their time-honoured prerogatives, and in particular the initiative of legislation— a singular gift indeed from the hand of a man who had done more than any one living to wrest from the community its ancient privileges.

New Arrangement as to Jurymen

With respect to the position of jurymen, the regulation of Sulla, that the roll of the senators was to serve as the list of jurymen, was no doubt abolished; but this by no means led to a simple restoration of the Gracchan equestrian courts. In future—so it was enacted by the new Aurelian law—the colleges of jurymen were to consist one-third of senators and two-thirds of men of equestrian census, and of the latter the half must have filled the office of district-presidents, or so-called *-tribuni aerarii-*. This last innovation was a farther concession made to the democrats, inasmuch as according to it at least a third part of the criminal jurymen were indirectly derived from the elections of the tribes. The reason, again, why the senate was not totally excluded from the courts is probably to be sought partly in the relations of Crassus to the senate, partly in the accession of the senatorial middle party to the coalition; with which is doubtless connected

the circumstance that this law was brought in by the praetor Lucius Cotta, the brother of their lately deceased leader.

Renewal of the Asiatic Revenue-Farming

Not less important was the abolition of the arrangements as to taxation established for Asia by Sulla,(3) which presumably likewise fell to this year. The governor of Asia at that time, Lucius Lucullus, was directed to reestablish the system of farming the revenue introduced by Gaius Gracchus; and thus this important source of money and power was restored to the great capitalists.

Renewal of the Censorship

Lastly, the censorship was revived. The elections for it, which the new consuls fixed shortly after entering on their office, fell, in evident mockery of the senate, on the two consuls of 682, Gnaeus Lentulus Clodianus and Lucius Gellius, who had been removed by the senate from their commands on account of their wretched management of the war against Spartacus.(4) It may readily be conceived that these men put in motion all the means which their important and grave office placed at their command, for the purpose of doing homage to the new-holders of power and of annoying the senate. At least an eighth part of the senate, sixty-four senators, a number hitherto unparalleled, were deleted from the roll, including Gaius Antonius, formerly impeached without success by Gaius Caesar,(5) and Publius Lentulus Sura, the consul of 683, and presumably also not a few of the most obnoxious creatures of Sulla.

The New Constitution

Thus in 684 they had reverted in the main to the arrangements that subsisted before the Sullan restoration.

Again the multitude of the capital was fed from the state-chest, in other words by the provinces;(6) again the tribunician authority gave to every demagogue a legal license to overturn the arrangements of the state; again the moneyed nobility, as farmers of the revenue and possessed of the judicial control over the governors, raised their heads alongside of the government as powerfully as ever; again the senate trembled before the verdict of jurymen of the equestrian order and before the censorial censure. The system of Sulla, which had based the monopoly of power by the nobility on the political annihilation of the mercantile aristocracy and of demagogism, was thus completely overthrown. Leaving out of view some subordinate enactments, the abolition of which was not overtaken till afterwards, such as the restoration of the right of self-completion to the priestly colleges,(7) nothing of the general ordinances of Sulla survived except, on the one hand, the concessions which he himself found it necessary to make to the opposition, such as the recognition of the Roman franchise of all the Italians, and, on the other hand, enactments without any marked partisan tendency, and with which therefore even judicious democrats found no fault—such as, among others, the restriction of the freedmen, the regulation of the functional spheres of the magistrates, and the material alterations in criminal law.

The coalition was more agreed regarding these questions of principle than with respect to the personal questions which such a political revolution raised. As might be expected, the democrats were not content with the general recognition of their programme; but they too now demanded a restoration in their sense—revival of the commemoration of their dead, punishment of the murderers, recall of the proscribed from exile, removal of the political disqualification that lay on their children, restoration of the estates confiscated by Sulla, indemnification at the expense of the heirs and assistants of the dictator. These were certainly the logical consequences which ensued from a pure victory of the democracy; but the victory of the

coalition of 683 was very far from being such. The democracy gave to it their name and their programme, but it was the officers who had joined the movement, and above all Pompeius, that gave to it power and completion; and these could never yield their consent to a reaction which would not only have shaken the existing state of things to its foundations, but would have ultimately turned against themselves—men still had a lively recollection who the men were whose blood Pompeius had shed, and how Crassus had laid the foundation of his enormous fortune. It was natural therefore, but at the same time significant of the weakness of the democracy, that the coalition of 683 took not the slightest step towards procuring for the democrats revenge or even rehabilitation. The supplementary collection of all the purchase money still outstanding for confiscated estates bought by auction, or even remitted to the purchasers by Sulla— for which the censor Lentulus provided in a special law— can hardly be regarded as an exception; for though not a few Sullans were thereby severely affected in their personal interests, yet the measure itself was essentially a confirmation of the confiscations undertaken by Sulla.

Impending Military Dictatorship of Pompeius

The work of Sulla was thus destroyed; but what the future order of things was to be, was a question raised rather than decided by that destruction. The coalition, kept together solely by the common object of setting aside the work of restoration, dissolved of itself, if not formally, at any rate in reality, when that object was attained; while the question, to what quarter the preponderance of power was in the first instance to fall, seemed approaching an equally speedy and violent solution. The armies of Pompeius and Crassus still lay before the gates of the city. The former had indeed promised to disband his soldiers after his triumph (last day of Dec. 683); but he had at first omitted to do so, in order to let the revolution in the state be completed without hindrance under the pressure which the Spanish

army in front of the capital exercised over the city and the senate—a course, which in like manner applied to the army of Crassus. This reason now existed no longer; but still the dissolution of the armies was postponed. In the turn taken by matters it looked as if one of the two generals allied with the democracy would seize the military dictatorship and place oligarchs and democrats in the same chains. And this one could only be Pompeius. From the first Crassus had played a subordinate part in the coalition; he had been obliged to propose himself, and owed even his election to the consulship mainly to the proud intercession of Pompeius. Far the stronger, Pompeius was evidently master of the situation; if he availed himself of it, it seemed as if he could not but become what the instinct of the multitude even now designated him—the absolute ruler of the mightiest state in the civilized world. Already the whole mass of the servile crowded around the future monarch. Already his weaker opponents were seeking their last resource in a new coalition; Crassus, full of old and recent jealousy towards the younger rival who so thoroughly outstripped him, made approaches to the senate and attempted by unprecedented largesses to attach to himself the multitude of the capital—as if the oligarchy which Crassus himself had helped to break down, and the ever ungrateful multitude, would have been able to afford any protection whatever against the veterans of the Spanish army. For a moment it seemed as if the armies of Pompeius and Crassus would come to blows before the gates of the capital.

Retirement of Pompeius

But the democrats averted this catastrophe by their sagacity and their pliancy. For their party too, as well as for the senate and Crassus, it was all-important that Pompeius should not seize the dictatorship; but with a truer discernment of their own weakness and of the character of their powerful opponent their leaders tried the method of conciliation. Pompeius lacked no condition for grasping at the crown except the first of all—proper kingly

courage. We have already described the man—with his effort to be at once loyal republican and master of Rome, with his vacillation and indecision, with his pliancy that concealed itself under the boasting of independent resolution. This was the first great trial to which destiny subjected him; and he failed to stand it. The pretext under which Pompeius refused to dismiss the army was, that he distrusted Crassus and therefore could not take the initiative in disbanding the soldiers. The democrats induced Crassus to make gracious advances in the matter, and to offer the hand of peace to his colleague before the eyes of all; in public and in private they besought the latter that to the double merit of having vanquished the enemy and reconciled the parties he would add the third and yet greater service of preserving internal peace to his country, and banishing the fearful spectre of civil war with which they were threatened. Whatever could tell on a vain, unskilful, vacillating man—all the flattering arts of diplomacy, all the theatrical apparatus of patriotic enthusiasm—was put in motion to obtain the desired result; and—which was the main point—things had by the well-timed compliance of Crassus assumed such a shape, that Pompeius had no alternative but either to come forward openly as tyrant of Rome or to retire. So he at length yielded and consented to disband the troops. The command in the Mithradatic war, which he doubtless hoped to obtain when he had allowed himself to be chosen consul for 684, he could not now desire, since Lucullus seemed to have practically ended that war with the campaign of 683. He deemed it beneath his dignity to accept the consular province assigned to him by the senate in accordance with the Sempronian law, and Crassus in this followed his example. Accordingly when Pompeius after discharging his soldiers resigned his consulship on the last day of 684, he retired for the time wholly from public affairs, and declared that he wished thenceforth to live a life of quiet leisure as a simple citizen. He had taken up such a position that he was obliged to grasp at the crown; and, seeing that

he was not willing to do so, no part was left to him but the empty one of a candidate for a throne resigning his pretensions to it.

Senate, Equites, and Populares

The retirement of the man, to whom as things stood the first place belonged, from the political stage reproduced in the first instance nearly the same position of parties, which we found in the Gracchan and Marian epochs. Sulla had merely strengthened the senatorial government, not created it; so, after the bulwarks erected by Sulla had fallen, the government nevertheless remained primarily with the senate, although, no doubt, the constitution with which it governed—in the main the restored Gracchan constitution— was pervaded by a spirit hostile to the oligarchy. The democracy had effected the re-establishment of the Gracchan constitution; but without a new Gracchus it was a body without a head, and that neither Pompeius nor Crassus could be permanently such a head, was in itself clear and had been made still clearer by the recent events. So the democratic opposition, for want of a leader who could have directly taken the helm, had to content itself for the time being with hampering and annoying the government at every step. Between the oligarchy, however, and the democracy there rose into new consideration the capitalist party, which in the recent crisis had made common cause with the latter, but which the oligarchs now zealously endeavoured to draw over to their side, so as to acquire in it a counterpoise to the democracy. Thus courted on both sides the moneyed lords did not neglect to turn their advantageous position to profit, and to have the only one of their former privileges which they had not yet regained—the fourteen benches reserved for the equestrian order in the theatre—now (687) restored to them by decree of the people. On the whole, without abruptly breaking with the democracy, they again drew closer to the government. The very relations of the senate to Crassus and his clients point in this direction; but a better understanding between the senate

and the moneyed aristocracy seems to have been chiefly brought about by the fact, that in 686 the senate withdrew from Lucius Lucullus the ablest of the senatorial officers, at the instance of the capitalists whom he had sorely annoyed, the administration of the province of Asia so important for their purposes.(8)

The Events in the East, and Their Reaction on Rome

But while the factions of the capital were indulging in their wonted mutual quarrels, which they were never able to bring to any proper decision, events in the east followed their fatal course, as we have already described; and it was these events that brought the dilatory course of the politics of the capital to a crisis. The war both by land and by sea had there taken a most unfavourable turn. In the beginning of 687 the Pontic army of the Romans was destroyed, and their Armenian army was utterly breaking up on its retreat; all their conquests were lost, the sea was exclusively in the power of the pirates, and the price of grain in Italy was thereby so raised that they were afraid of an actual famine. No doubt, as we saw, the faults of the generals, especially the utter incapacity of the admiral Marcus Antonius and the temerity of the otherwise able Lucius Lucullus, were in part the occasion of these calamities; no doubt also the democracy had by its revolutionary agitations materially contributed to the breaking up of the Armenian army. But of course the government was now held cumulatively responsible for all the mischief which itself and others had occasioned, and the indignant hungry multitude desired only an opportunity to settle accounts with the senate.

Reappearance of Pompeius

It was a decisive crisis. The oligarchy, though degraded and disarmed, was not yet overthrown, for the management of public affairs was still in the hands of the senate; but it would fall, if its opponents should appropriate

to themselves that management, and more especially the superintendence of military affairs; and now this was possible. If proposals for another and better management of the war by land and sea were now submitted to the comitia, the senate was obviously—looking to the temper of the burgesses — not in a position to prevent their passing; and an interference of the burgesses in these supreme questions of administration was practically the deposition of the senate and the transference of the conduct of the state to the leaders of opposition. Once more the concatenation of events brought the decision into the hands of Pompeius. For more than two years the famous general had lived as a private citizen in the capital. His voice was seldom heard in the senate-house or in the Forum; in the former he was unwelcome and without decisive influence, in the latter he was afraid of the stormy proceedings of the parties. But when he did show himself, it was with the full retinue of his clients high and low, and the very solemnity of his reserve imposed on the multitude. If he, who was still surrounded with the full lustre of his extraordinary successes, should now offer to go to the east, he would beyond doubt be readily invested by the burgesses with all the plenitude of military and political power which he might himself ask. For the oligarchy, which saw in the political-military dictatorship their certain ruin, and in Pompeius himself since the coalition of 683 their most hated foe, this was an overwhelming blow; but the democratic party also could have little comfort in the prospect. However desirable the putting an end to the government of the senate could not but be in itself, it was, if it took place in this way, far less a victory for their party than a personal victory for their over-powerful ally. In the latter there might easily arise a far more dangerous opponent to the democratic party than the senate had been. The danger fortunately avoided a few years before by the disbanding of the Spanish army and the retirement of Pompeius would recur in increased measure, if Pompeius should now be placed at the head of the armies of the east.

Overthrow of the Senatorial Rule, and New Power of Pompeius

On this occasion, however, Pompeius acted or at least allowed others to act in his behalf. In 687 two projects of law were introduced, one of which, besides decreeing the discharge— long since demanded by the democracy—of the soldiers of the Asiatic army who had served their term, decreed the recall of its commander-in-chief Lucius Lucullus and the supplying of his place by one of the consuls of the current year, Gaius Piso or Manius Glabrio; while the second revived and extended the plan proposed seven years before by the senate itself for clearing the seas from the pirates. A single general to be named by the senate from the consulars was to be appointed, to hold by sea exclusive command over the whole Mediterranean from the Pillars of Hercules to the coasts of Pontus and Syria, and to exercise by land, concurrently with the respective Roman governors, supreme command over the whole coasts for fifty miles inland. The office was secured to him for three years. He was surrounded by a staff, such as Rome had never seen, of five-and-twenty lieutenants of senatorial rank, all invested with praetorian insignia and praetorian powers, and of two under-treasurers with quaestorian prerogatives, all of them selected by the exclusive will of the general commanding-in-chief. He was allowed to raise as many as 120,000 infantry, 5000 cavalry, 500 ships of war, and for this purpose to dispose absolutely of the means of the provinces and client-states; moreover, the existing vessels of war and a considerable number of troops were at once handed over to him. The treasures of the state in the capital and in the provinces as well as those of the dependent communities were to be placed absolutely at his command, and in spite of the severe financial distress a sum of; 1,400,000 pounds (144,000,000 sesterces) was at once to be paid to him from the state-chest.

Effect of the Projects of Law

It is clear that by these projects of law, especially by that which related to the expedition against the pirates, the government of the senate was set aside. Doubtless the ordinary supreme magistrates nominated by the burgesses were of themselves the proper generals of the commonwealth, and the extraordinary magistrates needed, at least according to strict law, confirmation by the burgesses in order to act as generals; but in the appointment to particular commands no influence constitutionally belonged to the community, and it was only on the proposition of the senate, or at any rate on that of a magistrate entitled in himself to hold the office of general, that the comitia had hitherto now and again interfered in this matter and conferred such special functions. In this field, ever since there had existed a Roman free state, the practically decisive voice pertained to the senate, and this its prerogative had in the course of time obtained full recognition. No doubt the democracy had already assailed it; but even in the most doubtful of the cases which had hitherto occurred—the transference of the African command to Gaius Marius in 647(9)—it was only a magistrate constitutionally entitled to hold the office of general that was entrusted by the resolution of the burgesses with a definite expedition.

But now the burgesses were to invest any private man at their pleasure not merely with the extraordinary authority of the supreme magistracy, but also with a sphere of office definitely settled by them. That the senate had to choose this man from the ranks of the consulars, was a mitigation only in form; for the selection was left to it simply because there was really no choice, and in presence of the vehemently excited multitude the senate could entrust the chief command of the seas and coasts to no other save Pompeius alone. But more dangerous still than this negation in principle of the senatorial control was its practical abolition by the institution of an office of almost unlimited military and financial powers. While the office of general was formerly restricted to a term of one year, to a definite province, and to military and financial resources strictly measured out, the new

extraordinary office had from the outset a duration of three years secured to it—which of course did not exclude a farther prolongation; had the greater portion of all the provinces, and even Italy itself which was formerly free from military jurisdiction, subordinated to it; had the soldiers, ships, treasures of the state placed almost without restriction at its disposal. Even the primitive fundamental principle in the state-law of the Roman republic, which we have just mentioned—that the highest military and civil authority could not be conferred without the co-operation of the burgesses—was infringed in favour of the new commander-in-chief. Inasmuch as the law conferred beforehand on the twenty-five adjutants whom he was to nominate praetorian rank and praetorian prerogatives,(10) the highest office of republican Rome became subordinate to a newly created office, for which it was left to the future to find the fitting name, but which in reality even now involved in it the monarchy. It was a total revolution in the existing order of things, for which the foundation was laid in this project of law.

Pompeius and the Gabinian Laws

These measures of a man who had just given so striking proofs of his vacillation and weakness surprise us by their decisive energy. Nevertheless the fact that Pompeius acted on this occasion more resolutely than during his consulate is very capable of explanation. The point at issue was not that he should come forward at once as monarch, but only that he should prepare the way for the monarchy by a military exceptional measure, which, revolutionary as it was in its nature, could still be accomplished under the forms of the existing constitution, and which in the first instance carried Pompeius so far on the way towards the old object of his wishes, the command against Mithradates and Tigranes. Important reasons of expediency also might be urged for the emancipation of the military power from the senate. Pompeius could not have forgotten that a plan designed on

exactly similar principles for the suppression of piracy had a few years before failed through the mismanagement of the senate, and that the issue of the Spanish war had been placed in extreme jeopardy by the neglect of the armies on the part of the senate and its injudicious conduct of the finances; he could not fail to see what were the feelings with which the great majority of the aristocracy regarded him as a renegade Sullan, and what fate was in store for him, if he allowed himself to be sent as general of the government with the usual powers to the east. It was natural therefore that he should indicate a position independent of the senate as the first condition of his undertaking the command, and that the burgesses should readily agree to it. It is moreover in a high degree probable that Pompeius was on this occasion urged to more rapid action by those around him, who were, it may be presumed, not a little indignant at his retirement two years before. The projects of law regarding the recall of Lucullus and the expedition against the pirates were introduced by the tribune of the people Aulus Gabinus, a man ruined in finances and morals, but a dexterous negotiator, a bold orator, and a brave soldier. Little as the assurance of Pompeius, that he had no wish at all for the chief command in the war with the pirates and only longed for domestic repose, were meant in earnest, there was probably this much of truth in them, that the bold and active client, who was in confidential intercourse with Pompeius and his more immediate circle and who completely saw through the situation and the men, took the decision to a considerable extent out of the hands of his shortsighted and resourceless patron.

The Parties in Relation to the Gabinian Laws

The democracy, discontented as its leaders might be in secret, could not well come publicly forward against the project of law. It would, to all appearance, have been in no case able to hinder the carrying of the law; but it would by opposition have openly broken with Pompeius and thereby

compelled him either to make approaches to the oligarchy or regardlessly to pursue his personal policy in the face of both parties. No course was left to the democrats but still even now to adhere to their alliance with Pompeius, hollow as it was, and to embrace the present opportunity of at least definitely overthrowing the senate and passing over from opposition into government, leaving the ulterior issue to the future and to the well-known weakness of Pompeius' character. Accordingly their leaders—the praetor Lucius Quinctius, the same who seven years before had exerted himself for the restoration of the tribunician power,(11) and the former quaestor Gaius Caesar— supported the Gabinian proposals.

The privileged classes were furious—not merely the nobility, but also the mercantile aristocracy, which felt its exclusive rights endangered by so thorough a state-revolution and once more recognized its true patron in the senate. When the tribune Gabinius after the introduction of his proposals appeared in the senate-house, the fathers of the city were almost on the point of strangling him with their own hands, without considering in their zeal how extremely disadvantageous for them this method of arguing must have ultimately proved. The tribune escaped to the Forum and summoned the multitude to storm the senate-house, when just at the right time the sitting terminated. The consul Piso, the champion of the oligarchy, who accidentally fell into the hands of the multitude, would have certainly become a victim to popular fury, had not Gabinius come up and, in order that his certain success might not be endangered by unseasonable acts of violence, liberated the consul. Meanwhile the exasperation of the multitude remained undiminished and constantly found fresh nourishment in the high prices of grain and the numerous rumours more or less absurd which were in circulation—such as that Lucius Lucullus had invested the money entrusted to him for carrying on the war at interest in Rome, or had attempted with its aid to make the praetor Quinctius withdraw from the cause of the people; that the senate intended to prepare for the "second

Romulus," as they called Pompeius, the fate of the first,(12) and other reports of a like character.

The Vote

Thereupon the day of voting arrived. The multitude stood densely packed in the Forum; all the buildings, whence the rostra could be seen, were covered up to the roofs with men. All the colleagues of Gabinius had promised their veto to the senate; but in presence of the surging masses all were silent except the single Lucius Trebellius, who had sworn to himself and the senate rather to die than yield. When the latter exercised his veto, Gabinius immediately interrupted the voting on his projects of law and proposed to the assembled people to deal with his refractory colleague, as Octavius had formerly been dealt with on the proposition of Tiberius Gracchus,(13) namely, to depose him immediately from office. The vote was taken and the reading out of the voting tablets began; when the first seventeen tribes, which came to be read out, had declared for the proposal and the next affirmative vote would give to it the majority, Trebellius, forgetting his oath, pusillanimously withdrew his veto. In vain the tribune Otho then endeavoured to procure that at least the collegiate principle might be preserved, and two generals elected instead of one; in vain the aged Quintus Catulus, the most respected man in the senate, exerted his last energies to secure that the lieutenant-generals should not be nominated by the commander-in-chief, but chosen by the people. Otho could not even procure a hearing amidst the noise of the multitude; the well-calculated complaisance of Gabinius procured a hearing for Catulus, and in respectful silence the multitude listened to the old man's words; but they were none the less thrown away. The proposals were not merely converted into law with all the clauses unaltered, but the supplementary requests in detail made by Pompeius were instantaneously and completely agreed to.

Successes of Pompeius in the East

With high-strung hopes men saw the two generals Pompeius and Glabrio depart for their places of destination. The price of grain had fallen immediately after the passing of the Gabinian laws to the ordinary rates—an evidence of the hopes attached to the grand expedition and its glorious leader. These hopes were, as we shall have afterwards to relate, not merely fulfilled, but surpassed: in three months the clearing of the seas was completed. Since the Hannibalic war the Roman government had displayed no such energy in external action; as compared with the lax and incapable administration of the oligarchy, the democratic—military opposition had most brilliantly made good its title to grasp and wield the reins of the state. The equally unpatriotic and unskilful attempts of the consul Piso to put paltry obstacles in the way of the arrangements of Pompeius for the suppression of piracy in Narbonese Gaul only increased the exasperation of the burgesses against the oligarchy and their enthusiasm for Pompeius; it was nothing but the personal intervention of the latter, that prevented the assembly of the people from summarily removing the consul from his office.

Meanwhile the confusion on the Asiatic continent had become still worse. Glabrio, who was to take up in the stead of Lucullus the chief command against Mithradates and Tigranes, had remained stationary in the west of Asia Minor and, while instigating the soldiers by various proclamations against Lucullus, had not entered on the supreme command, so that Lucullus was forced to retain it. Against Mithradates, of course, nothing was done; the Pontic cavalry plundered fearlessly and with impunity in Bithynia and Cappadocia. Pompeius had been led by the piratical war to proceed with his army to Asia Minor; nothing seemed more natural than to invest him with the supreme command in the Pontic-Armenian war, to which he himself had long aspired. But the democratic

party did not, as may be readily conceived, share the wishes of its general, and carefully avoided taking the initiative in the matter. It is very probable that it had induced Gabinius not to entrust both the war with Mithradates and that with the pirates from the outset to Pompeius, but to entrust the former to Glabrio; upon no account could it now desire to increase and perpetuate the exceptional position of the already too-powerful general. Pompeius himself retained according to his custom a passive attitude; and perhaps he would in reality have returned home after fulfilling the commission which he had received, but for the occurrence of an incident unexpected by all parties.

The Manillian Law

One Gaius Manilius, an utterly worthless and insignificant man had when tribune of the people by his unskilful projects of legislation lost favour both with the aristocracy and with the democracy. In the hope of sheltering himself under the wing of the powerful general, if he should procure for the latter what every one knew that he eagerly desired but had not the boldness to ask, Manilius proposed to the burgesses to recall the governors Glabrio from Bithynia and Pontus and Marcius Rex from Cilicia, and to entrust their offices as well as the conduct of the war in the east, apparently without any fixed limit as to time and at any rate with the freest authority to conclude peace and alliance, to the proconsul of the seas and coasts in addition to his previous office (beg. of 688). This occurrence very clearly showed how disorganized was the machinery of the Roman constitution, when the power of legislation was placed as respected the initiative in the hands of any demagogue however insignificant, and as respected the final determination in the hands of the incapable multitude, while it at the same time was extended to the most important questions of administration. The Manilian proposal was acceptable to none of the political parties; yet it scarcely anywhere encountered serious resistance. The democratic leaders, for the

same reasons which had forced them to acquiesce in the Gabinian law, could not venture earnestly to oppose the Manilian; they kept their displeasure and their fears to themselves and spoke in public for the general of the democracy. The moderate Optimates declared themselves for the Manilian proposal, because after the Gabinian law resistance in any case was vain, and far-seeing men already perceived that the true policy for the senate was to make approaches as far as possible to Pompeius and to draw him over to their side on occasion of the breach which might be foreseen between him and the democrats. Lastly the trimmers blessed the day when they too seemed to have an opinion and could come forward decidedly without losing favour with either of the parties— it is significant that Marcus Cicero first appeared as an orator on the political platform in defence of the Manilian proposal. The strict Optimates alone, with Quintus Catulus at their head, showed at least their colours and spoke against the proposition. Of course it was converted into law by a majority bordering on unanimity. Pompeius thus obtained, in addition to his earlier extensive powers, the administration of the most important provinces of Asia Minor— so that there scarcely remained a spot of land within the wide Roman bounds that had not to obey him—and the conduct of a war as to which, like the expedition of Alexander, men could tell where and when it began, but not where and when it might end. Never since Rome stood had such power been united in the hands of a single man.

The Democratic-Military Revolution

The Gabinio-Manilian proposals terminated the struggle between the senate and the popular party, which the Sempronian laws had begun sixty-seven years before. As the Sempronian laws first constituted the revolutionary party into a political opposition, the Gabinio- Manilian first converted it from an opposition into the government; and as it had been a great moment when the first breach in the existing constitution was made

by disregarding the veto of Octavius, it was a moment no less full of significance when the last bulwark of the senatorial rule fell with the withdrawal of Trebellius. This was felt on both sides and even the indolent souls of the senators were convulsively roused by this death-struggle; but yet the war as to the constitution terminated in a very different and far more pitiful fashion than it had begun. A youth in every sense noble had commenced the revolution; it was concluded by pert intriguers and demagogues of the lowest type. On the other hand, while the Optimates had begun the struggle with a measured resistance and with a defence which earnestly held out even at the forlorn posts, they ended with taking the initiative in club-law, with grandiloquent weakness, and with pitiful perjury. What had once appeared a daring dream, was now attained; the senate had ceased to govern. But when the few old men who had seen the first storms of revolution and heard the words of the Gracchi, compared that time with the present they found that everything had in the interval changed—countrymen and citizens, state-law and military discipline, life and manners; and well might those painfully smile, who compared the ideals of the Gracchan period with their realization. Such reflections however belonged to the past. For the present and perhaps also for the future the fall of the aristocracy was an accomplished fact. The oligarchs resembled an army utterly broken up, whose scattered bands might serve to reinforce another body of troops, but could no longer themselves keep the field or risk a combat on their own account. But as the old struggle came to an end, a new one was simultaneously beginning—the struggle between the two powers hitherto leagued for the overthrow of the aristocratic constitution, the civil-democratic opposition and the military power daily aspiring to greater ascendancy. The exceptional position of Pompeius even under the Gabinian, and much more under the Manilian, law was incompatible with a republican organization. He had been as even then his opponents urged with good reason, appointed by the Gabinian law not as admiral, but as regent of

the empire; not unjustly was he designated by a Greek familiar with eastern affairs "king of kings." If he should hereafter, on returning from the east once more victorious and with increased glory, with well-filled chests, and with troops ready for battle and devoted to his cause, stretch forth his hand to seize the crown—who would then arrest his arm? Was the consular Quintus Catulus, forsooth, to summon forth the senators against the first general of his time and his experienced legions? or was the designated aedile Gaius Caesar to call forth the civic multitude, whose eyes he had just feasted on his three hundred and twenty pairs of gladiators with their silver equipments? Soon, exclaimed Catulus, it would be necessary once more to flee to the rocks of the Capitol, in order to save liberty. It was not the fault of the prophet, that the storm came not, as he expected, from the east, but that on the contrary fate, fulfilling his words more literally than he himself anticipated, brought on the destroying tempest a few years later from Gaul.

CHAPTER IV

Pompeius and the East

Pompeius Suppresses Piracy

We have already seen how wretched was the state of the affairs of Rome by land and sea in the east, when at the commencement of 687 Pompeius, with an almost unlimited plenitude of power, undertook the conduct of the war against the pirates. He began by dividing the immense field committed to him into thirteen districts and assigning each of these districts to one of his lieutenants, for the purpose of equipping ships and men there, of searching the coasts, and of capturing piratical vessels or chasing them into the meshes of a colleague. He himself went with the best part of the ships of war that were available—among which on this occasion also those of Rhodes were distinguished—early in the year to sea, and swept in the first place the Sicilian, African, and Sardinian waters, with a view especially to re-establish the supply of grain from these provinces to Italy. His lieutenants meanwhile addressed themselves to the clearing of the Spanish and Gallic coasts. It was on this occasion that the consul Gaius Piso attempted from Rome to prevent the levies which Marcus Pomponius, the legate of Pompeius, instituted by virtue of the Gabinian law in the province of Narbo—an imprudent proceeding, to check which, and at the same time to keep the just indignation of the multitude against the consul within legal bounds, Pompeius temporarily reappeared in Rome.(1) When at the end of

forty days the navigation had been everywhere set free in the western basin of the Mediterranean, Pompeius proceeded with sixty of his best vessels to the eastern seas, and first of all to the original and main seat of piracy, the Lycian and Cilician waters. On the news of the approach of the Roman fleet the piratical barks everywhere disappeared from the open sea; and not only so, but even the strong Lycian fortresses of Anticragus and Cragus surrendered without offering serious resistance. The well-calculated moderation of Pompeius helped even more than fear to open the gates of these scarcely accessible marine strongholds. His predecessors had ordered every captured freebooter to be nailed to the cross; without hesitation he gave quarter to all, and treated in particular the common rowers found in the captured piratical vessels with unusual indulgence. The bold Cilician sea-kings alone ventured on an attempt to maintain at least their own waters by arms against the Romans; after having placed their children and wives and their rich treasures for security in the mountain-fortresses of the Taurus, they awaited the Roman fleet at the western frontier of Cilicia, in the offing of Coracesium. But here the ships of Pompeius, well manned and well provided with all implements of war, achieved a complete victory. Without farther hindrance he landed and began to storm and break up the mountain-castles of the corsairs, while he continued to offer to themselves freedom and life as the price of submission. Soon the great multitude desisted from the continuance of a hopeless war in their strongholds and mountains, and consented to surrender. Forty-nine days after Pompeius had appeared in the eastern seas, Cilicia was subdued and the war at an end.

The rapid suppression of piracy was a great relief, but not a grand achievement; with the resources of the Roman state, which had been called forth in lavish measure, the corsairs could as little cope as the combined gangs of thieves in a great city can cope with a well-organized police. It was a naive proceeding to celebrate such a razzia as a victory. But when compared with the prolonged continuance and the vast and daily increasing

extent of the evil, it was natural that the surprisingly rapid subjugation of the dreaded pirates should make a most powerful impression on the public; and the more so, that this was the first trial of rule centralized in a single hand, and the parties were eagerly waiting to see whether that hand would understand the art of ruling better than the collegiate body had done. Nearly 400 ships and boats, including 90 war vessels properly so called, were either taken by Pompeius or surrendered to him; in all about 1300 piratical vessels are said to have been destroyed; besides which the richly-filled arsenals and magazines of the buccaneers were burnt. Of the pirates about 10,000 perished; upwards of 20,000 fell alive into the hands of the victor; while Publius Clodius the admiral of the Roman army stationed in Cilicia, and a multitude of other individuals carried off by the pirates, some of them long believed at home to be dead, obtained once more their freedom through Pompeius. In the summer of 687, three months after the beginning of the campaign, commerce resumed its wonted course and instead of the former famine abundance prevailed in Italy.

Dissensions between Pompeius and Metellus as to Crete

A disagreeable interlude in the island of Crete, however, disturbed in some measure this pleasing success of the Roman arms. There Quintus Metellus was stationed in the second year of his command, and was employed in finishing the subjugation-already substantially effected—of the island,(2) when Pompeius appeared in the eastern waters. A collision was natural, for according to the Gabinian law the command of Pompeius extended concurrently with that of Metellus over the whole island, which stretched to a great length but was nowhere more than ninety miles broad; (3) but Pompeius was considerate enough not to assign it to any of his lieutenants. The still resisting Cretan communities, however, who had seen their subdued countrymen taken to task by Metellus with the most cruel severity and had learned on the other hand the gentle terms which Pompeius

was in the habit of imposing on the townships which surrendered to him in the south of Asia Minor, preferred to give in their joint surrender to Pompeius. He accepted it in Pamphylia, where he was just at the moment, from their envoys, and sent along with them his legate Lucius Octavius to announce to Metellus the conclusion of the conventions and to take over the towns. This proceeding was, no doubt, not like that of a colleague; but formal right was wholly on the side of Pompeius, and Metellus was most evidently in the wrong when, utterly ignoring the convention of the cities with Pompeius, he continued to treat them as hostile. In vain Octavius protested; in vain, as he had himself come without troops, he summoned from Achaia Lucius Sisenna, the lieutenant of Pompeius stationed there; Metellus, not troubling himself about either Octavius or Sisenna, besieged Eleutherna and took Lappa by storm, where Octavius in person was taken prisoner and ignominiously dismissed, while the Cretans who were taken with him were consigned to the executioner. Accordingly formal conflicts took place between the troops of Sisenna, at whose head Octavius placed himself after that leader's death, and those of Metellus; even when the former had been commanded to return to Achaia, Octavius continued the war in concert with the Cretan Aristion, and Hierapytna, where both made a stand, was only subdued by Metellus after the most obstinate resistance.

In reality the zealous Optimate Metellus had thus begun formal civil war at his own hand against the generalissimo of the democracy. It shows the indescribable disorganization in the Roman state, that these incidents led to nothing farther than a bitter correspondence between the two generals, who a couple of years afterwards were sitting once more peacefully and even "amicably" side by side in the senate.

Pompeius Takes the Supreme Command against Mithradates

Pompeius during these events remained in Cilicia; preparing for the next year, as it seemed, a campaign against the Cretans or rather against Metellus, in reality waiting for the signal which should call him to interfere in the utterly confused affairs of the mainland of Asia Minor. The portion of the Lucullan army that was still left after the losses which it had suffered and the departure of the Fimbrian legions remained inactive on the upper Halys in the country of the Trocmi bordering on the Pontic territory. Lucullus still held provisionally the chief command, as his nominated successor Glabrio continued to linger in the west of Asia Minor. The three legions commanded by Quintus Marcius Rex lay equally inactive in Cilicia. The Pontic territory was again wholly in the power of king Mithradates, who made the individuals and communities that had joined the Romans, such as the town of Eupatoria, pay for their revolt with cruel severity. The kings of the east did not proceed to any serious offensive movement against the Romans, either because it formed no part of their plan, or—as was asserted— because the landing of Pompeius in Cilicia induced Mithradates and Tigranes to desist from advancing farther. The Manilian law realized the secretly-cherished hopes of Pompeius more rapidly than he probably himself anticipated; Glabrio and Rex were recalled and the governorships of Pontus-Bithynia and Cilicia with the troops stationed there, as well as the management of the Pontic-Armenian war along with authority to make war, peace, and alliance with the dynasts of the east at his own discretion, were transferred to Pompeius. Amidst the prospect of honours and spoils so ample Pompeius was glad to forgo the chastising of an ill-humoured Optimate who enviously guarded his scanty laurels; he abandoned the expedition against Crete and the farther pursuit of the corsairs, and destined his fleet also to support the attack which he projected on the kings of Pontus and Armenia. Yet amidst this land-war he by no means wholly lost sight of piracy, which was perpetually raising its head afresh. Before he left Asia (691) he caused the necessary ships to be fitted out there against the

corsairs; on his proposal in the following year a similar measure was resolved on for Italy, and the sum needed for the purpose was granted by the senate. They continued to protect the coasts with guards of cavalry and small squadrons, and though as the expeditions to be mentioned afterwards against Cyprus in 696 and Egypt in 699 show, piracy was not thoroughly mastered, it yet after the expedition of Pompeius amidst all the vicissitudes and political crises of Rome could never again so raise its head and so totally dislodge the Romans from the sea, as it had done under the government of the mouldering oligarchy.

War Preparations of Pompeius

Alliance with the Parthians

Variance between Mithradates and Tigranes

The few months which still remained before the commencement of the campaign in Asia Minor, were employed by the new commander-in-chief with strenuous activity in diplomatic and military preparations. Envoys were sent to Mithradates, rather to reconnoitre than to attempt a serious mediation. There was a hope at the Pontic court that Phraates king of the Parthians would be induced by the recent considerable successes which the allies had achieved over Rome to enter into the Pontic-Armenian alliance. To counteract this, Roman envoys proceeded to the court of Ctesiphon; and the internal troubles, which distracted the Armenian ruling house, came to their aid. A son of the great-king Tigranes, bearing the same name had rebelled against his father, either because he was unwilling to wait for the death of the old man, or because his father's suspicion, which had already cost several of his brothers their lives, led him to discern his only chance of safety in open insurrection. Vanquished by his father, he had taken refuge with a number of Armenians of rank at the court of the Arsacid, and intrigued against his father there. It was partly due to his exertions, that Phraates preferred to take the reward which was offered to him by both

sides for his accession—the secured possession of Mesopotamia—from the hand of the Romans, renewed with Pompeius the agreement concluded with Lucullus respecting the boundary of the Euphrates,(4) and even consented to operate in concert with the Romans against Armenia. But the younger Tigranes occasioned still greater mischief than that which arose out of his promoting the alliance between the Romans and the Parthians, for his insurrection produced a variance between the kings Tigranes and Mithradates themselves. The great-king cherished in secret the suspicion that Mithradates might have had a hand in the insurrection of his grandson—Cleopatra the mother of the younger Tigranes was the daughter of Mithradates— and, though no open rupture took place, the good understanding between the two monarchs was disturbed at the very moment when it was most urgently needed.

At the same time Pompeius prosecuted his warlike preparations with energy. The Asiatic allied and client communities were warned to furnish the stipulated contingents. Public notices summoned the discharged veterans of the legions of Fimbria to return to the standards as volunteers, and by great promises and the name of Pompeius a considerable portion of them were induced in reality to obey the call. The whole force united under the orders of Pompeius may have amounted, exclusive of the auxiliaries, to between 40,000 and 50,000 men.(5)

Pompeius and Lucullus

In the spring of 688 Pompeius proceeded to Galatia, to take the chief command of the troops of Lucullus and to advance with them into the Pontic territory, whither the Cilician legions were directed to follow. At Danala, a place belonging to the Trocmi, the two generals met; but the reconciliation, which mutual friends had hoped to effect, was not accomplished. The preliminary courtesies soon passed into bitter

discussions, and these into violent altercation: they parted in worse mood than they had met. As Lucullus continued to make honorary gifts and to distribute lands just as if he were still in office, Pompeius declared all the acts performed by his predecessor subsequent to his own arrival null and void. Formally he was in the right; customary tact in the treatment of a meritorious and more than sufficiently mortified opponent was not to be looked for from him.

Invasion of Pontus

Retreat of Mithradates

So soon as the season allowed, the Roman troops crossed the frontier of Pontus. There they were opposed by king Mithradates with 30,000 infantry and 3000 cavalry. Left in the lurch by his allies and attacked by Rome with reinforced power and energy, he made an attempt to procure peace; but he would hear nothing of the unconditional submission which Pompeius demanded—what worse could the most unsuccessful campaign bring to him? That he might not expose his army, mostly archers and horsemen, to the formidable shock of the Roman infantry of the line, he slowly retired before the enemy, and compelled the Romans to follow him in his various cross-marches; making a stand at the same time, wherever there was opportunity, with his superior cavalry against that of the enemy, and occasioning no small hardship to the Romans by impeding their supplies. At length Pompeius in his impatience desisted from following the Pontic army, and, letting the king alone, proceeded to subdue the land; he marched to the upper Euphrates, crossed it, and entered the eastern provinces of the Pontic empire. But Mithradates followed along the left bank of the Euphrates, and when he had arrived in the Anaitic or Acilisenian province, he intercepted the route of the Romans at the castle of Dasteira, which was strong and well provided with water, and from which with his light troops he commanded the plain. Pompeius, still wanting the Cilician legions and not strong

enough to maintain himself in this position without them, had to retire over the Euphrates and to seek protection from the cavalry and archers of the king in the wooded ground of Pontic Armenia extensively intersected by rocky ravines and deep valleys. It was not till the troops from Cilicia arrived and rendered it possible to resume the offensive with a superiority of force, that Pompeius again advanced, invested the camp of the king with a chain of posts of almost eighteen miles in length, and kept him formally blockaded there, while the Roman detachments scoured the country far and wide. The distress in the Pontic camp was great; the draught animals even had to be killed; at length after remaining for forty-five days the king caused his sick and wounded, whom he could not save and was unwilling to leave in the hands of the enemy, to be put to death by his own troops, and departed during the night with the utmost secrecy towards the east. Cautiously Pompeius followed through the unknown land: the march was now approaching the boundary which separated the dominions of Mithradates and Tigranes. When the Roman general perceived that Mithradates intended not to bring the contest to a decision within his own territory, but to draw the enemy away after him into the far distant regions of the east, he determined not to permit this.

Battle at Nicopolis

The two armies lay close to each other. During the rest at noon the Roman army set out without the enemy observing the movement, made a circuit, and occupied the heights, which lay in front and commanded a defile to be passed by the enemy, on the southern bank of the river Lycus (Jeschil-Irmak) not far from the modern Enderes, at the point where Nicopolis was afterwards built. The following morning the Pontic troops broke up in their usual manner, and, supposing that the enemy was as hitherto behind them, after, accomplishing the day's march they pitched their camp in the very valley whose encircling heights the Romans had

occupied. Suddenly in the silence of the night there sounded all around them the dreaded battle-cry of the legions, and missiles from all sides poured on the Asiatic host, in which soldiers and camp-followers, chariots, horses, and camels jostled each other; and amidst the dense throng, notwithstanding the darkness, not a missile failed to take effect. When the Romans had expended their darts, they charged down from the heights on the masses which had now become visible by the light of the newly-risen moon, and which were abandoned to them almost defenceless; those that did not fall by the steel of the enemy were trodden down in the fearful pressure under the hoofs and wheels. It was the last battle-field on which the gray-haired king fought with the Romans. With three attendants—two of his horsemen, and a concubine who was accustomed to follow him in male attire and to fight bravely by his side—he made his escape thence to the fortress of Sinoria, whither a portion of his trusty followers found their way to him. He divided among them his treasures preserved there, 6000 talents of gold (1,400,000 pounds); furnished them and himself with poison; and hastened with the band that was left to him up the Euphrates to unite with his ally, the great-king of Armenia.

Tigranes Breaks with Mithradates Mithradates Crosses the Phasis

This hope likewise was vain; the alliance, on the faith of which Mithradates took the route for Armenia, already by that time existed no longer. During the conflicts between Mithradates and Pompeius just narrated, the king of the Parthians, yielding to the urgency of the Romans and above all of the exiled Armenian prince, had invaded the kingdom of Tigranes by force of arms, and had compelled him to withdraw into the inaccessible mountains. The invading army began even the siege of the capital Artaxata; but, on its becoming protracted, king Phraates took his departure with the greater portion of his troops; whereupon Tigranes

overpowered the Parthian corps left behind and the Armenian emigrants led by his son, and re-established his dominion throughout the kingdom. Naturally, however, the king was under such circumstances little inclined to fight with the freshly-victorious Romans, and least of all to sacrifice himself for Mithradates; whom he trusted less than ever, since information had reached him that his rebellious son intended to betake himself to his grandfather. So he entered into negotiations with the Romans for a separate peace; but he did not wait for the conclusion of the treaty to break off the alliance which linked him to Mithradates. The latter, when he had arrived at the frontier of Armenia, was doomed to learn that the great-king Tigranes had set a price of 100 talents (24,000 pounds) on his head, had arrested his envoys, and had delivered them to the Romans. King Mithradates saw his kingdom in the hands of the enemy, and his allies on the point of coming to an agreement with them; it was not possible to continue the war; he might deem himself fortunate, if he succeeded in effecting his escape along the eastern and northern shores of the Black Sea, in perhaps dislodging his son Machares—who had revolted and entered into connection with the Romans(6)—once more from the Bosporan kingdom, and in finding on the Maeotis a fresh soil for fresh projects. So he turned northward. When the king in his flight had crossed the Phasis, the ancient boundary of Asia Minor, Pompeius for the time discontinued his pursuit; but instead of returning to the region of the sources of the Euphrates, he turned aside into the region of the Araxes to settle matters with Tigranes.

Pompeius at Artaxata

Peace with Tigranes

Almost without meeting resistance he arrived in the region of Artaxata (not far from Erivan) and pitched his camp thirteen miles from the city. There he was met by the son of the great-king, who hoped after the fall of his father to receive the Armenian diadem from the hand of the Romans,

and therefore had endeavoured in every way to prevent the conclusion of the treaty between his father and the Romans. The great-king was only the more resolved to purchase peace at any price. On horseback and without his purple robe, but adorned with the royal diadem and the royal turban, he appeared at the gate of the Roman camp and desired to be conducted to the presence of the Roman general. After having given up at the bidding of the lictors, as the regulations of the Roman camp required, his horse and his sword, he threw himself in barbarian fashion at the feet of the proconsul and in token of unconditional surrender placed the diadem and tiara in his hands. Pompeius, highly delighted at a victory which cost nothing, raised up the humbled king of kings, invested him again with the insignia of his dignity, and dictated the peace. Besides a payment of; 1,400,000 pounds (6000 talents) to the war-chest and a present to the soldiers, out of which each of them received 50 -denarii- (2 pounds 2 shillings), the king ceded all the conquests which he had made, not merely his Phoenician, Syrian, Cilician, and Cappadocian possessions, but also Sophene and Corduene on the right bank of the Euphrates; he was again restricted to Armenia proper, and his position of great-king was, of course, at an end. In a single campaign Pompeius had totally subdued the two mighty kings of Pontus and Armenia. At the beginning of 688 there was not a Roman soldier beyond the frontier of the old Roman possessions; at its close king Mithradates was wandering as an exile and without an army in the ravines of the Caucasus, and king Tigranes sat on the Armenian throne no longer as king of kings, but as a vassal of Rome. The whole domain of Asia Minor to the west of the Euphrates unconditionally obeyed the Romans; the victorious army took up its winter-quarters to the east of that stream on Armenian soil, in the country from the upper Euphrates to the river Kur, from which the Italians then for the first time watered their horses.

The Tribes of the Caucasus

Iberians

Albanians

But the new field, on which the Romans here set foot, raised up for them new conflicts. The brave peoples of the middle and eastern Caucasus saw with indignation the remote Occidentals encamping on their territory. There—in the fertile and well-watered tableland of the modern Georgia—dwelt the Iberians, a brave, well-organized, agricultural nation, whose clan-cantons under their patriarchs cultivated the soil according to the system of common possession, without any separate ownership of the individual cultivators. Army and people were one; the people were headed partly by the ruler- clans—out of which the eldest always presided over the whole Iberian nation as king, and the next eldest as judge and leader of the army—partly by special families of priests, on whom chiefly devolved the duty of preserving a knowledge of the treaties concluded with other peoples and of watching over their observance. The mass of the non-freemen were regarded as serfs of the king. Their eastern neighbours, the Albanians or Alans, who were settled on the lower Kur as far as the Caspian Sea, were in a far lower stage of culture. Chiefly a pastoral people they tended, on foot or on horseback, their numerous herds in the luxuriant meadows of the modern Shirvan; their few tilled fields were still cultivated with the old wooden plough without iron share. Coined money was unknown, and they did not count beyond a hundred. Each of their tribes, twenty-six in all, had its own chief and spoke its distinct dialect. Far superior in number to the Iberians, the Albanians could not at all cope with them in bravery. The mode of fighting was on the whole the same with both nations; they fought chiefly with arrows and light javelins, which they frequently after the Indian fashion discharged from their lurking-places in the woods behind the trunks of trees, or hurled down from the tops of trees on the foe; the Albanians had also numerous horsemen partly mailed after the Medo-Armenian manner with heavy cuirasses and greaves. Both nations lived on their lands and pastures in a complete independence preserved from time

immemorial. Nature itself as it were, seems to have raised the Caucasus between Europe and Asia as a rampart against the tide of national movements; there the arms of Cyrus and of Alexander had formerly found their limit; now the brave garrison of this partition-wall set themselves to defend it also against the Romans.

Albanians Conquered by Pompeius Iberians Conquered

Alarmed by the information that the Roman commander-in-chief intended next spring to cross the mountains and to pursue the Pontic king beyond the Caucasus—for Mithradates, they heard, was passing the winter in Dioscurias (Iskuria between Suchum Kale and Anaklia) on the Black Sea—the Albanians under their prince Oroizes first crossed the Kur in the middle of the winter of 688-689 and threw themselves on the army, which was divided for the sake of its supplies into three larger corps under Quintus Metellus Celer, Lucius Flaccus, and Pompeius in person. But Celer, on whom the chief attack fell, made a brave stand, and Pompeius, after having delivered himself from the division sent to attack him, pursued the barbarians beaten at all points as far as the Kur. Artoces the king of the Iberians kept quiet and promised peace and friendship; but Pompeius, informed that he was secretly arming so as to fall upon the Romans on their march in the passes of the Caucasus, advanced in the spring of 689, before resuming the pursuit of Mithradates, to the two fortresses just two miles distant from each other, Harmozica (Horum Ziche or Armazi) and Seusamora (Tsumar) which a little above the modern Tiflis command the two valleys of the river Kur and its tributary the Aragua, and with these the only passes leading from Armenia to Iberia. Artoces, surprised by the enemy before he was aware of it, hastily burnt the bridge over the Kur and retreated negotiating into the interior. Pompeius occupied the fortresses and followed the Iberians to the other bank of the Kur; by which he hoped to

induce them to immediate submission. But Artoces retired farther and farther into the interior, and, when at length he halted on the river Pelorus, he did so not to surrender but to fight. The Iberian archers however withstood not for a moment the onset of the Roman legions, and, when Artoces saw the Pelorus also crossed by the Romans, he submitted at length to the conditions which the victor proposed, and sent his children as hostages.

Pompeius Proceeds to Colchis

Pompeius now, agreeably to the plan which he had formerly projected, marched through the Sarapana pass from the region of the Kur to that of the Phasis and thence down that river to the Black Sea, where on the Colchian coast the fleet under Servilius already awaited him. But it was for an uncertain idea, and an aim almost unsubstantial, that the army and fleet were thus brought to the richly fabled shores of Colchis. The laborious march just completed through unknown and mostly hostile nations was nothing when compared with what still awaited them, and if they should really succeed in conducting the force from the mouth of the Phasis to the Crimea, through warlike and poor barbarian tribes, on inhospitable and unknown waters, along a coast where at certain places the mountains sink perpendicularly into the sea and it would have been absolutely necessary to embark in the ships— if such a march should be successfully accomplished, which was perhaps more difficult than the campaigns of Alexander and Hannibal— what was gained by it even at the best, corresponding at all to its toils and dangers? The war doubtless was not ended, so long as the old king was still among the living; but who could guarantee that they would really succeed in catching the royal game for the sake of which this unparalleled chase was to be instituted? Was it not better even at the risk of Mithradates once more throwing the torch of war into Asia Minor, to desist from a pursuit which promised so little gain and so many dangers?

Doubtless numerous voices in the army, and still more numerous voices in the capital, urged the general to continue the pursuit incessantly and at any price; but they were the voices partly of foolhardy Hotspurs, partly of those perfidious friends, who would gladly at any price have kept the too-powerful Imperator aloof from the capital and entangled him amidst interminable undertakings in the east. Pompeius was too experienced and too discreet an officer to stake his fame and his army in obstinate adherence to so injudicious an expedition; an insurrection of the Albanians in rear of the army furnished the pretext for abandoning the further pursuit of the king and arranging its return. The fleet received instructions to cruise in the Black Sea, to protect the northern coast of Asia Minor against any hostile invasion, and strictly to blockade the Cimmerian Bosphorus under the threat of death to any trader who should break the blockade. Pompeius conducted the land troops not without great hardships through the Colchian and Armenian territory to the lower course of the Kur and onward, crossing the stream, into the Albanian plain.

Fresh Conflicts with the Albanians

For several days the Roman army had to march in the glowing heat through this almost waterless flat country, without encountering the enemy; it was only on the left bank of the Abas (probably the river elsewhere named Alazonius, now Alasan) that the force of the Albanians under the leadership of Coses, brother of the king Oroizes, was drawn up against the Romans; they are said to have amounted, including the contingent which had arrived from the inhabitants of the Transcaucasian steppes, to 60,000 infantry and 12,000 cavalry. Yet they would hardly have risked the battle, unless they had supposed that they had merely to fight with the Roman cavalry; but the cavalry had only been placed in front, and, on its retiring, the masses of Roman infantry showed themselves from their concealment behind. After a short conflict the army of the barbarians was driven into the

woods, which Pompeius gave orders to invest and set on fire. The Albanians thereupon consented to make peace; and, following the example of the more powerful peoples, all the tribes settled between the Kur and the Caspian concluded a treaty with the Roman general. The Albanians, Iberians, and generally the peoples settled to the south along, and at the foot of, the Caucasus, thus entered at least for the moment into a relation of dependence on Rome. When, on the other hand, the peoples between the Phasis and the Maeotis—Colchians, Soani, Heniochi, Zygi, Achaeans, even the remote Bastarnae—were inscribed in the long list of the nations subdued by Pompeius, the notion of subjugation was evidently employed in a manner very far from exact. The Caucasus once more verified its significance in the history of the world; the Roman conquest, like the Persian and the Hellenic, found its limit there.

Mithradates Goes to Panticapaeum

Accordingly king Mithradates was left to himself and to destiny. As formerly his ancestor, the founder of the Pontic state had first entered his future kingdom as a fugitive from the executioners of Antigonos and attended only by six horsemen, so had the grandson now been compelled once more to cross the bounds of his kingdom and to turn his back on his own and his fathers' conquests. But for no one had the dice of fate turned up the highest gains and the greatest losses more frequently and more capriciously than for the old sultan of Sinope; and the fortunes of men change rapidly and incalculably in the east. Well might Mithradates now in the evening of his life accept each new vicissitude with the thought that it too was only in its turn paving the way for a fresh revolution, and that the only thing constant was the perpetual change of fortune. Inasmuch as the Roman rule was intolerable for the Orientals at the very core of their nature, and Mithradates himself was in good and in evil a true prince of the east, amidst the laxity of the rule exercised by the Roman senate over the

provinces, and amidst the dissensions of the political parties in Rome fermenting and ripening into civil war, Mithradates might, if he was fortunate enough to bide his time, doubtless re-establish his dominion yet a third time. For this very reason—because he hoped and planned while still there was life in him—he remained dangerous to the Romans so long as he lived, as an aged refugee no less than when he had marched forth with his hundred thousands to wrest Hellas and Macedonia from the Romans. The restless old man made his way in the year 689 from Dioscurias amidst unspeakable hardships partly by land partly by sea to the kingdom of Panticapaeum, where by his reputation and his numerous retainers he drove his renegade son Machares from the throne and compelled him to put himself to death. From this point he attempted once more to negotiate with the Romans; he besought that his paternal kingdom might be restored to him, and declared himself ready to recognize the supremacy of Rome and to pay tribute as a vassal. But Pompeius refused to grant the king a position in which he would have begun the old game afresh, and insisted on his personal submission.

His Last Preparations against Rome

Mithradates, however, had no thought of delivering himself into the hands of the enemy, but was projecting new and still more extravagant plans. Straining all the resources with which the treasures that he had saved and the remnant of his states supplied him, he equipped a new army of 36,000 men consisting partly of slaves which he armed and exercised after the Roman fashion, and a war-fleet; according to rumour he designed to march westward through Thrace, Macedonia, and Pannonia, to carry along with him the Scythians in the Sarmatian steppes and the Celts on the Danube as allies, and with this avalanche of peoples to throw himself on Italy. This has been deemed a grand idea, and the plan of war of the Pontic king has been compared with the military march of Hannibal; but the same

project, which in a gifted man is a stroke of genius, becomes folly in one who is wrong-headed. This intended invasion of Italy by the Orientals was simply ridiculous, and nothing but a product of the impotent imagination of despair. Through the prudent coolness of their leader the Romans were prevented from Quixotically pursuing their Quixotic antagonist and warding off in the distant Crimea an attack, which, if it were not nipped of itself in the bud, would still have been soon enough met at the foot of the Alps.

Revolt against Mithradates

In fact, while Pompeius, without troubling himself further as to the threats of the impotent giant, was employed in organizing the territory which he had gained, the destinies of the aged king drew on to their fulfilment without Roman aid in the remote north. His extravagant preparations had produced the most violent excitement among the Bosporans, whose houses were torn down, and whose oxen were taken from the plough and put to death, in order to procure beams and sinews for constructing engines of war. The soldiers too were disinclined to enter on the hopeless Italian expedition. Mithradates had constantly been surrounded by suspicion and treason; he had not the gift of calling forth affection and fidelity among those around him. As in earlier years he had compelled his distinguished general Archelaus to seek protection in the Roman camp; as during the campaigns of Lucullus his most trusted officers Diodes, Phoenix, and even the most notable of the Roman emigrants had passed over to the enemy; so now, when his star grew pale and the old, infirm, embittered sultan was accessible to no one else save his eunuchs, desertion followed still more rapidly on desertion. Castor, the commandant of the fortress Phanagoria (on the Asiatic coast opposite Kertch), first raised the standard of revolt; he proclaimed the freedom of the town and delivered the sons of Mithradates that were in the fortress into the hands of the Romans. While

the insurrection spread among the Bosporan towns, and Chersonesus (not far from Sebastopol), Theudosia (Kaffa), and others joined the Phanagorites, the king allowed his suspicion and his cruelty to have free course. On the information of despicable eunuchs his most confidential adherents were nailed to the cross; the king's own sons were the least sure of their lives. The son who was his father's favourite and was probably destined by him as his successor, Pharnaces, took his resolution and headed the insurgents. The servants whom Mithradates sent to arrest him, and the troops despatched against him, passed over to his side; the corps of Italian deserters, perhaps the most efficient among the divisions of Mithradates' army, and for that very reason the least inclined to share in the romantic—and for the deserters peculiarly hazardous—expedition against Italy, declared itself en masse for the prince; the other divisions of the army and the fleet followed the example thus set.

Death of Mithadates

After the country and the army had abandoned the king, the capital Panticapaeum at length opened its gates to the insurgents and delivered over to them the old king enclosed in his palace. From the high wall of his castle the latter besought his son at least to grant him life and not imbrue his hands in his father's blood; but the request came ill from the lips of a man whose own hands were stained with the blood of his mother and with the recently-shed blood of his innocent son Xiphares; and in heartless severity and inhumanity Pharnaces even outstripped his father. Seeing therefore he had now to die, the sultan resolved at least to die as he had lived; his wives, his concubines and his daughters, including the youthful brides of the kings of Egypt and Cyprus, had all to suffer the bitterness of death and drain the poisoned cup, before he too took it, and then, when the draught did not take effect quickly enough, presented his neck for the fatal stroke to a Celtic mercenary Betuitus. So died in 691 Mithradates Eupator, in the sixty-eighth

year of his life and the fifty-seventh of his reign, twenty-six years after he had for the first time taken the field against the Romans. The dead body, which king Pharnaces sent as a voucher of his merits and of his loyalty to Pompeius, was by order of the latter laid in the royal sepulchre of Sinope.

The death of Mithradates was looked on by the Romans as equivalent to a victory: the messengers who reported to the general the catastrophe appeared crowned with laurel, as if they had a victory to announce, in the Roman camp before Jericho. In him a great enemy was borne to the tomb, a greater than had ever yet withstood the Romans in the indolent east. Instinctively the multitude felt this: as formerly Scipio had triumphed even more over Hannibal than over Carthage, so the conquest of the numerous tribes of the east and of the great-king himself was almost forgotten in the death of Mithradates; and at the solemn entry of Pompeius nothing attracted more the eyes of the multitude than the pictures, in which they saw king Mithradates as a fugitive leading his horse by the rein and thereafter sinking down in death between the dead bodies of his daughters. Whatever judgment may be formed as to the idiosyncrasy of the king, he is a figure of great significance—in the full sense of the expression—for the history of the world. He was not a personage of genius, probably not even of rich endowments; but he possessed the very respectable gift of hating, and out of this hatred he sustained an unequal conflict against superior foes throughout half a century, without success doubtless, but with honour. He became still more significant through the position in which history had placed him than through his individual character. As the forerunner of the national reaction of the Orientals against the Occidentals, he opened the new conflict of the east against the west; and the feeling remained with the vanquished as with the victors, that his death was not so much the end as the beginning.

Pompeius Proceeds to Syria

Meanwhile Pompeius, after his warfare in 689 with the peoples of the Caucasus, had returned to the kingdom of Pontus, and there reduced the last castles still offering resistance; these were razed in order to check the evils of brigandage, and the castle wells were rendered unserviceable by rolling blocks of rock into them. Thence he set out in the summer of 690 for Syria, to regulate its affairs.

State of Syria

It is difficult to present a clear view of the state of disorganization which then prevailed in the Syrian provinces. It is true that in consequence of the attacks of Lucullus the Armenian governor Magadates had evacuated these provinces in 685,(7) and that the Ptolemies, gladly as they would have renewed the attempts of their predecessors to attach the Syrian coast to their kingdom, were yet afraid to provoke the Roman government by the occupation of Syria; the more so, as that government had not yet regulated their more than doubtful legal title even in the case of Egypt, and had been several times solicited by the Syrian princes to recognize them as the legitimate heirs of the extinct house of the Lagids. But, though the greater powers all at the moment refrained from interference in the affairs of Syria, the land suffered far more than it would have suffered amidst a great war, through the endless and aimless feuds of the princes, knights, and cities.

Arabian Princes

The actual masters in the Seleucid kingdom were at this time the Bedouins, the Jews, and the Nabataeans. The inhospitable sandy steppe destitute of springs and trees, which, stretching from the Arabian peninsula up to and beyond the Euphrates, reaches towards the west as far as the Syrian mountain-chain and its narrow belt of coast, toward the east as far as the rich lowlands of the Tigris and lower Euphrates—this Asiatic Sahara—was the primitive home of the sons of Ishmael; from the commencement of

tradition we find the "Bedawi," the "son of the desert," pitching his tents there and pasturing his camels, or mounting his swift horse in pursuit now of the foe of his tribe, now of the travelling merchant. Favoured formerly by king Tigranes, who made use of them for his plans half commercial half political,(8) and subsequently by the total absence of any master in the Syrian land, these children of the desert spread themselves over northern Syria. Wellnigh the leading part in a political point of view was enacted by those tribes, which had appropriated the first rudiments of a settled existence from the vicinity of the civilized Syrians. The most noted of these emirs were Abgarus, chief of the Arab tribe of the Mardani, whom Tigranes had settled about Edessa and Carrhae in upper Mesopotamia;(9) then to the west of the Euphrates Sampsiceramus, emir of the Arabs of Hemesa (Homs) between Damascus and Antioch, and master of the strong fortress Arethusa; Azizus the head of another horde roaming in the same region; Alchaudonius, the prince of the Rhambaeans, who had already put himself into communication with Lucullus; and several others.

Robber-Chiefs

Alongside of these Bedouin princes there had everywhere appeared bold cavaliers, who equalled or excelled the children of the desert in the noble trade of waylaying. Such was Ptolemaeus son of Mennaëus, perhaps the most powerful among these Syrian robber- chiefs and one of the richest men of this period, who ruled over the territory of the Ityraeans—the modern Druses—in the valleys of the Libanus as well as on the coast and over the plain of Massyas to the northward with the cities of Heliopolis (Baalbec) and Chalcis, and maintained 8000 horsemen at his own expense; such were Dionysius and Cinyras, the masters of the maritime cities Tripolis (Tarablus) and Byblus (between Tarablus and Beyrout); such was the Jew Silas in Lysias, a fortress not far from Apamea on the Orontes.

Jews

In the south of Syria, on the other hand, the race of the Jews seemed as though it would about this time consolidate itself into a political power. Through the devout and bold defence of the primitive Jewish national worship, which was imperilled by the levelling Hellenism of the Syrian kings, the family of the Hasmonaeans or the Makkabi had not only attained to their hereditary principality and gradually to kingly honours;(10) but these princely high-priests had also spread their conquests to the north, east, and south. When the brave Jannaeus Alexander died (675), the Jewish kingdom stretched towards the south over the whole Philistian territory as far as the frontier of Egypt, towards the south-east as far as that of the Nabataean kingdom of Petra, from which Jannaeus had wrested considerable tracts on the right bank of the Jordan and the Dead Sea, towards the north over Samaria and Decapolis up to the lake of Gennesareth; here he was already making arrangements to occupy Ptolemais (Acco) and victoriously to repel the aggressions of the Ityraeans. The coast obeyed the Jews from Mount Carmel as far as Rhinocorura, including the important Gaza—Ascalon alone was still free; so that the territory of the Jews, once almost cut off from the sea, could now be enumerated among the asylums of piracy. Now that the Armenian invasion, just as it approached the borders of Judaea, was averted from that land by the intervention of Lucullus,(11) the gifted rulers of the Hasmonaeon house would probably have carried their arms still farther, had not the development of the power of that remarkable conquering priestly state been nipped in the bud by internal divisions.

Pharisees

Sadducees

The spirit of religious independence, and the spirit of national independence—the energetic union of which had called the Maccabee state into life—speedily became once more dissociated and even antagonistic. The Jewish orthodoxy or Pharisaism, as it was called, was content with the free exercise of religion, as it had been asserted in defiance of the Syrian rulers; its practical aim was a community of Jews, composed of the orthodox in the lands of all rulers, essentially irrespective of the secular government— a community which found its visible points of union in the tribute for the temple at Jerusalem, which was obligatory on every conscientious Jew, and in the schools of religion and spiritual courts. Overagainst this orthodoxy, which turned away from political life and became more and more stiffened into theological formalism and painful ceremonial service, were arrayed the defenders of the national independence, invigorated amidst successful struggles against foreign rule, and advancing towards the ideal of a restoration of the Jewish state, the representatives of the old great families—the so-called Sadducees—partly on dogmatic grounds, in so far as they acknowledged only the sacred books themselves and conceded authority merely, not canonicity, to the "bequests of the scribes," that is, to canonical tradition;(12) partly and especially on political grounds, in so far as, instead of a fatalistic waiting for the strong arm of the Lord of Zebaoth, they taught that the salvation of the nation was to be expected from the weapons of this world, and from the inward and outward strengthening of the kingdom of David as re-established in the glorious times of the Maccabees. Those partisans of orthodoxy found their support in the priesthood and the multitude; they contested with the Hasmonaeans the legitimacy of their high- priesthood, and fought against the noxious heretics with all the reckless implacability, with which the pious are often found to contend for the possession of earthly goods. The state-party on the other hand relied for support on intelligence brought into contact with the influences of Hellenism, on the army, in which numerous

Pisidian and Cilician mercenaries served, and on the abler kings, who here strove with the ecclesiastical power much as a thousand years later the Hohenstaufen strove with the Papacy. Jannaeus had kept down the priesthood with a strong hand; under his two sons there arose (685 et seq.) a civil and fraternal war, since the Pharisees opposed the vigorous Aristobulus and attempted to obtain their objects under the nominal rule of his brother, the good-natured and indolent Hyrcanus. This dissension not merely put a stop to the Jewish conquests, but gave also foreign nations opportunity to interfere and thereby obtain a commanding position in southern Syria.

Nabataeans

This was the case first of all with the Nabataeans. This remarkable nation has often been confounded with its eastern neighbours, the wandering Arabs, but it is more closely related to the Aramaean branch than to the proper children of Ishmael. This Aramaean or, according to the designation of the Occidentals, Syrian stock must have in very early times sent forth from its most ancient settlements about Babylon a colony, probably for the sake of trade, to the northern end of the Arabian gulf; these were the Nabataeans on the Sinaitic peninsula, between the gulf of Suez and Aila, and in the region of Petra (Wadi Mousa). In their ports the wares of the Mediterranean were exchanged for those of India; the great southern caravan-route, which ran from Gaza to the mouth of the Euphrates and the Persian gulf, passed through the capital of the Nabataeans—Petra—whose still magnificent rock-palaces and rock-tombs furnish clearer evidence of the Nabataean civilization than does an almost extinct tradition. The leaders of the Pharisees, to whom after the manner of priests the victory of their faction seemed not too dearly bought at the price of the independence and integrity of their country, solicited Aretas the king of the Nabataeans for aid against Aristobulus, in return for which they promised to give back to him all the conquests wrested from him by Jannaeus. Thereupon Aretas had advanced with, it was said, 50,000 men into Judaea and, reinforced by the adherents of the Pharisees, he kept king Aristobulus besieged in his capital.

Syrian Cities

Amidst the system of violence and feud which thus prevailed from one end of Syria to another, the larger cities were of course the principal sufferers, such as Antioch, Seleucia, Damascus, whose citizens found themselves paralysed in their husbandry as well as in their maritime and caravan trade. The citizens of Byblus and Berytus (Beyrout) were unable to

protect their fields and their ships from the Ityraeans, who issuing from their mountain and maritime strongholds rendered land and sea equally insecure. Those of Damascus sought to ward off the attacks of the Ityraeans and Ptolemaeus by handing themselves over to the more remote kings of the Nabataeans or of the Jews. In Antioch Sampsicramus and Azizus mingled in the internal feuds of the citizens, and the Hellenic great city had wellnigh become even now the seat of an Arab emir. The state of things reminds us of the kingless times of the German middle ages, when Nuremberg and Augsburg found their protection not in the king's law and the king's courts, but in their own walls alone; impatiently the merchant-citizens of Syria awaited the strong arm, which should restore to them peace and security of intercourse.

The Last Seleucids

There was no want, however, of a legitimate king in Syria; there were even two or three of them. A prince Antiochus from the house of the Seleucids had been appointed by Lucullus as ruler of the most northerly province in Syria, Commagene.⁽¹³⁾ Antiochus Asiaticus, whose claims on the Syrian throne had met with recognition both from the senate and from Lucullus,⁽¹⁴⁾ had been received in Antioch after the retreat of the Armenians and there acknowledged as king. A third Seleucid prince Philippus had immediately confronted him there as a rival; and the great population of Antioch, excitable and delighting in opposition almost like that of Alexandria, as well as one or two of the neighbouring Arab emirs had interfered in the family strife which now seemed inseparable from the rule of the Seleucids. Was there any wonder that legitimacy became ridiculous and loathsome to its subjects, and that the so-called rightful kings were of even somewhat less importance in the land than the petty princes and robber-chiefs?

Annexation of Syria

To create order amidst this chaos did not require either brilliance of conception or a mighty display of force, but it required a clear insight into the interests of Rome and of her subjects, and vigour and consistency in establishing and maintaining the institutions recognized as necessary. The policy of the senate in support of legitimacy had sufficiently degraded itself; the general, whom the opposition had brought into power, was not to be guided by dynastic considerations, but had only to see that the Syrian kingdom should not be withdrawn from the clientship of Rome in future either by the quarrels of pretenders or by the Covetousness of neighbours. But to secure this end there was only one course; that the Roman community should send a satrap to grasp with a vigorous hand the reins of government, which had long since practically slipped from the hands of the kings of the ruling house more even through their own fault than through outward misfortunes. This course Pompeius took. Antiochus the Asiatic, on requesting to be acknowledged as the hereditary ruler of Syria, received the answer that Pompeius would not give back the sovereignty to a king who knew neither how to maintain nor how to govern his kingdom, even at the request of his subjects, much less against their distinctly expressed wishes. With this letter of the Roman proconsul the house of Seleucus was ejected from the throne which it had occupied for two hundred and fifty years. Antiochus soon after lost his life through the artifice of the emir Sampsiceramus, as whose client he played the ruler in Antioch; thenceforth there is no further mention of these mock-kings and their pretensions.

Military Pacification of Syria

But, to establish the new Roman government and introduce any tolerable order into the confusion of affairs, it was further necessary to advance into Syria with a military force and to terrify or subdue all the disturbers of the

peace, who had sprung up during the many years of anarchy, by means of the Roman legions. Already during the campaigns in the kingdom of Pontus and on the Caucasus Pompeius had turned his attention to the affairs of Syria and directed detached commissioners and corps to interfere, where there was need. Aulus Gabinius—the same who as tribune of the people had sent Pompeius to the east—had in 689 marched along the Tigris and then across Mesopotamia to Syria, to adjust the complicated affairs of Judaea. In like manner the severely pressed Damascus had already been occupied by Lollius and Metellus. Soon afterwards another adjutant of Pompeius, Marcus Scaurus, arrived in Judaea, to allay the feuds ever breaking out afresh there. Lucius Afranius also, who during the expedition of Pompeius to the Caucasus held the command of the Roman troops in Armenia, had proceeded from Corduene (the northern Kurdistan) to upper Mesopotamia, and, after he had successfully accomplished the perilous march through the desert with the sympathizing help of the Hellenes settled in Carrhae, brought the Arabs in Osrhoene to submission. Towards the end of 690 Pompeius in person arrived in Syria,(15) and remained there till the summer of the following year, resolutely interfering and regulating matters for the present and the future. He sought to restore the kingdom to its state in the better times of the Seleucid rule; all usurped powers were set aside, the robber-chiefs were summoned to give up their castles, the Arab sheiks were again restricted to their desert domains, the affairs of the several communities were definitely regulated.

The Robber-Chiefs Chastised

The legions stood ready to procure obedience to these stern orders, and their interference proved especially necessary against the audacious robber-chiefs. Silas the ruler of Lysias, Dionysius the ruler of Tripolis, Cinyras the ruler of Byblus were taken prisoners in their fortresses and executed, the mountain and maritime strongholds of the Ityraeans were broken up,

Ptolemaeus son of Mennaëus in Chalcis was forced to purchase his freedom and his lordship with a ransom of 1000 talents (240,000 pounds). Elsewhere the commands of the new master met for the most part with unresisting obedience.

Negotiations and Conflicts with the Jews

The Jews alone hesitated. The mediators formerly sent by Pompeius, Gabinius and Scaurus, had—both, as it was said, bribed with considerable sums—in the dispute between the brothers Hyrcanus and Aristobulus decided in favour of the latter, and had also induced king Aretas to raise the siege of Jerusalem and to proceed homeward, in doing which he sustained a defeat at the hands of Aristobulus. But, when Pompeius arrived in Syria, he cancelled the orders of his subordinates and directed the Jews to resume their old constitution under high-priests, as the senate had recognized it about 593,(16) and to renounce along with the hereditary principality itself all the conquests made by the Hasmonæan princes. It was the Pharisees, who had sent an embassy of two hundred of their most respected men to the Roman general and procured from him the overthrow of the kingdom; not to the advantage of their own nation, but doubtless to that of the Romans, who from the nature of the case could not but here revert to the old rights of the Seleucids, and could not tolerate a conquering power like that of Jannæus within the limits of their empire. Aristobulus was uncertain whether it was better patiently to acquiesce in his inevitable doom or to meet his fate with arms in hand; at one time he seemed on the point of submitting to Pompeius, at another he seemed as though he would summon the national party among the Jews to a struggle with the Romans. When at length, with the legions already at the gates, he yielded to the enemy, the more resolute or more fanatical portion of his army refused to comply with the orders of a king who was not free. The capital submitted; the steep temple-rock was defended by that fanatical band for three months with an

obstinacy ready to brave death, till at last the besiegers effected an entrance while the besieged were resting on the Sabbath, possessed themselves of the sanctuary, and handed over the authors of that desperate resistance, so far as they had not fallen under the sword of the Romans, to the axes of the lictors. Thus ended the last resistance of the territories newly annexed to the Roman state.

The New Relations of the Romans in the East

The work begun by Lucullus had been completed by Pompeius; the hitherto formally independent states of Bithynia, Pontus, and Syria were united with the Roman state; the exchange—which had been recognized for more than a hundred years as necessary— of the feeble system of a protectorate for that of direct sovereignty over the more important dependent territories,(17) had at length been realized, as soon as the senate had been overthrown and the Gracchan party had come to the helm. Rome had obtained in the east new frontiers, new neighbours, new friendly and hostile relations. There were now added to the indirect territories of Rome the kingdom of Armenia and the principalities of the Caucasus, and also the kingdom on the Cimmerian Bosphorus, the small remnant of the extensive conquests of Mithradates Eupator, now a client-state of Rome under the government of his son and murderer Pharnaces; the town of Phanagoria alone, whose commandant Castor had given the signal for the revolt, was on that account recognized by the Romans as free and independent.

Conflicts with the Nabataeans

No like successes could be boasted of against the Nabataeans. King Aretas had indeed, yielding to the desire of the Romans, evacuated Judaea; but Damascus was still in his hands, and the Nabataean land had not yet been trodden by any Roman soldier. To subdue that region or at least to show to their new neighbours in Arabia that the Roman eagles were now

dominant on the Orontes and on the Jordan, and that the time had gone by when any one was free to levy contributions in the Syrian lands as a domain without a master, Pompeius began in 691 an expedition against Petra; but detained by the revolt of the Jews, which broke out during this expedition, he was not reluctant to leave to his successor Marcus Scaurus the carrying out of the difficult enterprise against the Nabataean city situated far off amidst the desert.(18) In reality Scaurus also soon found himself compelled to return without having accomplished his object. He had to content himself with making war on the Nabataeans in the deserts on the left bank of the Jordan, where he could lean for support on the Jews, but yet bore off only very trifling successes. Ultimately the adroit Jewish minister Antipater from Idumaea persuaded Aretas to purchase a guarantee for all his possessions, Damascus included, from the Roman governor for a sum of money; and this is the peace celebrated on the coins of Scaurus, where king Aretas appears—leading his camel—as a suppliant offering the olive branch to the Roman.

Difficulty with the Parthians

Far more fraught with momentous effects than these new relations of the Romans to the Armenians, Iberians, Bosporans, and Nabataeans was the proximity into which through the occupation of Syria they were brought with the Parthian state. Complaisant as had been the demeanour of Roman diplomacy towards Phraates while the Pontic and Armenian states still subsisted, willingly as both Lucullus and Pompeius had then conceded to him the possession of the regions beyond the Euphrates,(19) the new neighbour now sternly took up his position by the side of the Arsacids; and Phraates, if the royal art of forgetting his own faults allowed him, might well recall now the warning words of Mithradates that the Parthian by his alliance with the Occidentals against the kingdoms of kindred race paved the way first for their destruction and then for his own. Romans and

Parthians in league had brought Armenia to ruin; when it was overthrown, Rome true to her old policy now reversed the parts and favoured the humbled foe at the expense of the powerful ally. The singular preference, which the father Tigranes experienced from Pompeius as contrasted with his son the ally and son-in-law of the Parthian king, was already part of this policy; it was a direct offence, when soon afterwards by the orders of Pompeius the younger Tigranes and his family were arrested and were not released even on Phraates interceding with the friendly general for his daughter and his son-in-law. But Pompeius paused not here. The province of Corduene, to which both Phraates and Tigranes laid claim, was at the command of Pompeius occupied by Roman troops for the latter, and the Parthians who were found in possession were driven beyond the frontier and pursued even as far as Arbela in Adiabene, without the government of Ctesiphon having even been previously heard (689). Far the most suspicious circumstance however was, that the Romans seemed not at all inclined to respect the boundary of the Euphrates fixed by treaty. On several occasions Roman divisions destined from Armenia for Syria marched across Mesopotamia; the Arab emir Abgarus of Osrhoene was received under singularly favourable conditions into Roman protection; nay, Oruros, situated in Upper Mesopotamia somewhere between Nisibis and the Tigris 220 miles eastward from the Commagenian passage of the Euphrates, was designated as the eastern limit of the Roman dominion—presumably their indirect dominion, inasmuch as the larger and more fertile northern half of Mesopotamia had been assigned by the Romans in like manner with Corduene to the Armenian empire. The boundary between Romans and Parthians thus became the great Syro-Mesopotamian desert instead of the Euphrates; and this too seemed only provisional. To the Parthian envoys, who came to insist on the maintenance of the agreements—which certainly, as it would seem, were only concluded orally—respecting the Euphrates boundary, Pompeius gave the ambiguous reply that the territory of Rome

extended as far as her rights. The remarkable intercourse between the Roman commander-in-chief and the Parthian satraps of the region of Media and even of the distant province Elymais (between Susiana, Media, and Persia, in the modern Luristan) seemed a commentary on this speech.(20) The viceroys of this latter mountainous, warlike, and remote land had always exerted themselves to acquire a position independent of the great-king; it was the more offensive and menacing to the Parthian government, when Pompeius accepted the proffered homage of this dynast. Not less significant was the fact that the title of "king of kings," which had been hitherto conceded to the Parthian king by the Romans in official intercourse, was now all at once exchanged by them for the simple title of king. This was even more a threat than a violation of etiquette. Since Rome had entered on the heritage of the Seleucids, it seemed almost as if the Romans had a mind to revert at a convenient moment to those old times, when all Iran and Turan were ruled from Antioch, and there was as yet no Parthian empire but merely a Parthian satrapy. The court of Ctesiphon would thus have had reason enough for going to war with Rome; it seemed the prelude to its doing so, when in 690 it declared war on Armenia on account of the question of the frontier. But Phraates had not the courage to come to an open rupture with the Romans at a time when the dreaded general with his strong army was on the borders of the Parthian empire. When Pompeius sent commissioners to settle amicably the dispute between Parthia and Armenia, Phraates yielded to the Roman mediation forced upon him and acquiesced in their award, which assigned to the Armenians Corduene and northern Mesopotamia. Soon afterwards his daughter with her son and her husband adorned the triumph of the Roman general. Even the Parthians trembled before the superior power of Rome; and, if they had not, like the inhabitants of Pontus and Armenia, succumbed to the Roman arms, the reason seemed only to be that they had not ventured to stand the conflict.

Organization of the Provinces

There still devolved on the general the duty of regulating the internal relations of the newly-acquired provinces and of removing as far as possible the traces of a thirteen years' desolating war. The work of organization begun in Asia Minor by Lucullus and the commission associated with him, and in Crete by Metellus, received its final conclusion from Pompeius. The former province of Asia, which embraced Mysia, Lydia, Phrygia, and Caria, was converted from a frontier province into a central one. The newly-erected provinces were, that of Bithynia and Pontus, which was formed out of the whole former kingdom of Nicomedes and the western half of the former Pontic state as far as and beyond the Halys; that of Cilicia, which indeed was older, but was now for the first time enlarged and organized in a manner befitting its name, and comprehended also Pamphylia and Isauria; that of Syria, and that of Crete. Much was no doubt wanting to render that mass of countries capable of being regarded as the territorial possession of Rome in the modern sense of the term. The form and order of the government remained substantially as they were; only the Roman community came in place of the former monarchs. Those Asiatic provinces consisted as formerly of a motley mixture of domanial possessions, urban territories de facto or de jure autonomous, lordships pertaining to princes and priests, and kingdoms, all of which were as regards internal administration more or less left to themselves, and in other respects were dependent, sometimes in milder sometimes in stricter forms, on the Roman government and its proconsuls very much as formerly on the great-king and his satraps.

Feudatory Kings

Cappadocia

Commagene

Galatia

The first place, in rank at least, among the dependent dynasts was held by the king of Cappadocia, whose territory Lucullus had already enlarged by investing him with the province of Melitene (about Malatia) as far as the Euphrates, and to whom Pompeius farther granted on the western frontier some districts taken off Cilicia from Castabala as far as Derbe near Iconium, and on the eastern frontier the province of Sophene situated on the left bank of the Euphrates opposite Melitene and at first destined for the Armenian prince Tigranes; so that the most important passage of the Euphrates thus came wholly into the power of the Cappadocian prince. The small province of Commagene between Syria and Cappadocia with its capital Samosata (Samsat) remained a dependent kingdom in the hands of the already-named Seleucid Antiochus;(21) to him too were assigned the important fortress of Seleucia (near Biradjik) commanding the more southern passage of the Euphrates, and the adjoining tracts on the left bank of that river; and thus care was taken that the two chief passages of the Euphrates with a corresponding territory on the eastern bank were left in the hands of two dynasts wholly dependent on Rome. Alongside of the kings of Cappadocia and Commagene, and in real power far superior to them, the new king Deiotarus ruled in Asia Minor. One of the tetrarchs of the Celtic stock of the Tolistobogii settled round Pessinus, and summoned by Lucullus and Pompeius to render military service with the other small Roman clients, Deiotarus had in these campaigns so brilliantly proved his trustworthiness and his energy as contrasted with all the indolent Orientals that the Roman generals conferred upon him, in addition to his Galatian heritage and his possessions in the rich country between Amisus and the mouth of the Halys, the eastern half of the former Pontic empire with the maritime towns of Pharnacia and Trapezus and the Pontic Armenia as far as the frontier of Colchis and the Greater Armenia, to form the kingdom of Lesser Armenia. Soon afterwards he increased his already considerable territory by the country of the Celtic Troceni, whose tetrarch he dispossessed. Thus the petty

feudatory became one of the most powerful dynasts of Asia Minor, to whom might be entrusted the guardianship of an important part of the frontier of the empire.

Princes and Chiefs

Vassals of lesser importance were, the other numerous Galatian tetrarchs, one of whom, Bogodiatarus prince of the Troceni, was on account of his tried valour in the Mithradatic war presented by Pompeius with the formerly Pontic frontier-town of Mithradatium; Attalus prince of Paphlagonia, who traced back his lineage to the old ruling house of the Pylaemenids; Aristarchus and other petty lords in the Colchian territory; Tarcondimotus who ruled in eastern Cilicia in the mountain-valleys of the Amanus; Ptolemaeus son of Mennaëus who continued to rule in Chalcis on the Libanus; Aretas king of the Nabataeans as lord of Damascus; lastly, the Arabic emirs in the countries on either side of the Euphrates, Abgarus in Osroene, whom the Romans endeavoured in every way to draw over to their interest with the view of using him as an advanced post against the Parthians, Sampsiceramus in Hemesa, Alchaudonius the Rhambæan, and another emir in Bostra.

Priestly Princes

To these fell to be added the spiritual lords who in the east frequently ruled over land and people like secular dynasts, and whose authority firmly established in that native home of fanaticism the Romans prudently refrained from disturbing, as they refrained from even robbing the temples of their treasures: the high-priest of the Goddess Mother in Pessinus; the two high-priests of the goddess Ma in the Cappadocian Comana (on the upper Sarus) and in the Pontic city of the same name (Gumene near Tocat), both lords who were in their countries inferior only to the king in power, and each of whom even at a much later period possessed extensive

estates with special jurisdiction and about six thousand temple-slaves—Archelaus, son of the general of that name who passed over from Mithradates to the Romans, was invested by Pompeius with the Pontic high-priesthood—the high-priest of the Venasian Zeus in the Cappadocian district of Morimene, whose revenues amounted annually to 3600 pounds (15 talents); the "archpriest and lord" of that territory in Cilicia Trachea, where Teucer the son of Ajax had founded a temple to Zeus, over which his descendants presided by virtue of hereditary right; the "arch-priest and lord of the people" of the Jews, to whom Pompeius, after having razed the walls of the capital and the royal treasuries and strongholds in the land, gave back the presidency of the nation with a serious admonition to keep the peace and no longer to aim at conquests.

Urban Communities

Alongside of these secular and spiritual potentates stood the urban communities. These were partly associated into larger unions which rejoiced in a comparative independence, such as in particular the league of the twenty-three Lycian cities, which was well organized and constantly, for instance, kept aloof from participation in the disorders of piracy; whereas the numerous detached communities, even if they had self-government secured by charter, were in practice wholly dependent on the Roman governors.

Elevation of Urban Life in Asia

The Romans failed not to see that with the task of representing Hellenism and protecting and extending the domain of Alexander in the east there devolved on them the primary duty of elevating the urban system; for, while cities are everywhere the pillars of civilization, the antagonism between Orientals and Occidentals was especially and most sharply embodied in the contrast between the Oriental, military-despotic, feudal hierarchy and the

Helleno- Italic urban commonwealth prosecuting trade and commerce. Lucullus and Pompeius, however little they in other respects aimed at the reduction of things to one level in the east, and however much the latter was disposed in questions of detail to censure and alter the arrangements of his predecessor, were yet completely agreed in the principle of promoting as far as they could an urban life in Asia Minor and Syria. Cyzicus, on whose vigorous resistance the first violence of the last war had spent itself, received from Lucullus a considerable extension of its domain. The Pontic Heraclea, energetically as it had resisted the Romans, yet recovered its territory and its harbours; and the barbarous fury of Cotta against the unhappy city met with the sharpest censure in the senate. Lucullus had deeply and sincerely regretted that fate had refused him the happiness of rescuing Sinope and Amisus from devastation by the Pontic soldiery and his own: he did at least what he could to restore them, extended considerably their territories, peopled them afresh—partly with the old inhabitants, who at his invitation returned in troops to their beloved homes, partly with new settlers of Hellenic descent—and provided for the reconstruction of the buildings destroyed. Pompeius acted in the same spirit and on a greater scale. Already after the subjugation of the pirates he had, instead of following the example of his predecessors and crucifying his prisoners, whose number exceeded 20,000, settled them partly in the desolated cities of the Plain Cilicia, such as Mallus, Adana, Epiphaneia, and especially in Soli, which thenceforth bore the name of Pompeius' city (Pompeiupolis), partly at Dyme in Achaia, and even at Tarentum. This colonizing by means of pirates met with manifold censure,(22) as it seemed in some measure to set a premium on crime; in reality it was, politically and morally, well justified, for, as things then stood, piracy was something different from robbery and the prisoners might fairly be treated according to martial law.

New Towns Established

But Pompeius made it his business above all to promote urban life in the new Roman provinces. We have already observed how poorly provided with towns the Pontic empire was:(23) most districts of Cappadocia even a century after this had no towns, but merely mountain fortresses as a refuge for the agricultural population in war; the whole east of Asia Minor, apart from the sparse Greek colonies on the coasts, must have been at this time in a similar plight. The number of towns newly established by Pompeius in these provinces is, including the Cilician settlements, stated at thirty- nine, several of which attained great prosperity. The most notable of these townships in the former kingdom of Pontus were Nicopolis, the "city of victory," founded on the spot where Mithradates sustained the last decisive defeat(24)—the fairest memorial of a general rich in similar trophies; Megalopolis, named from Pompeius' surname, on the frontier of Cappadocia and Lesser Armenia, the subsequent Sebasteia (now Siwas); Ziela, where the Romans fought the unfortunate battle,(25) a township which had arisen round the temple of Anaitis there and hitherto had belonged to its high- priest, and to which Pompeius now gave the form and privileges of a city; Diopolis, formerly Cabira, afterwards Neocaesarea (Niksar), likewise one of the battle-fields of the late war; Magnopolis or Pompeiupolis, the restored Eupatoria at the confluence of the Lycus and the Iris, originally built by Mithradates, but again destroyed by him on account of the defection of the city to the Romans;(26) Neapolis, formerly Phazemon, between Amasia and the Halys. Most of the towns thus established were formed not by bringing colonists from a distance, but by the suppression of villages and the collection of their inhabitants within the new ring-wall; only in Nicopolis Pompeius settled the invalids and veterans of his army, who preferred to establish a home for themselves there at once rather than afterwards in Italy. But at other places also there arose on the suggestion of the regent new centres of Hellenic civilization. In Paphlagonia a third Pompeiupolis marked the spot where the army of

Mithradates in 666 achieved the great victory over the Bithynians.(27) In Cappadocia, which perhaps had suffered more than any other province by the war, the royal residence Mazaca (afterwards Caesarea, now Kaisarieh) and seven other townships were re-established by Pompeius and received urban institutions. In Cilicia and Coelesyria there were enumerated twenty towns laid out by Pompeius. In the districts ceded by the Jews, Gadara in the Decapolis rose from its ruins at the command of Pompeius, and the city of Seleucis was founded. By far the greatest portion of the domain-land at his disposal on the Asiatic continent must have been applied by Pompeius for his new settlements; whereas in Crete, about which Pompeius troubled himself little or not at all, the Roman domanial possessions seem to have continued tolerably extensive.

Pompeius was no less intent on regulating and elevating the existing communities than on founding new townships. The abuses and usurpations which prevailed were done away with as far as lay in his power; detailed ordinances drawn up carefully for the different provinces regulated the particulars of the municipal system. A number of the most considerable cities had fresh privileges conferred on them. Autonomy was bestowed on Antioch on the Orontes, the most important city of Roman Asia and but little inferior to the Egyptian Alexandria and to the Bagdad of antiquity, the city of Seleucia in the Parthian empire; as also on the neighbour of Antioch, the Pierian Seleucia, which was thus rewarded for its courageous resistance to Tigranes; on Gaza and generally on all the towns liberated from the Jewish rule; on Mytilene in the west of Asia Minor; and on Phanagoria on the Black Sea.

Aggregate Results

Thus was completed the structure of the Roman state in Asia, which with its feudatory kings and vassals, its priests made into princes, and its series

of free and half-free cities puts us vividly in mind of the Holy Roman Empire of the German nation. It was no miraculous work, either as respects the difficulties overcome or as respects the consummation attained; nor was it made so by all the high-sounding words, which the Roman world of quality lavished in favour of Lucullus and the artless multitude in praise of Pompeius. Pompeius in particular consented to be praised, and praised himself, in such a fashion that people might almost have reckoned him still more weak-minded than he really was. If the Mytilenaeans erected a statue to him as their deliverer and founder, as the man who had as well by land as by sea terminated the wars with which the world was filled, such a homage might not seem too extravagant for the vanquisher of the pirates and of the empires of the east. But the Romans this time surpassed the Greeks. The triumphal inscriptions of Pompeius himself enumerated 12 millions of people as subjugated and 1538 cities and strongholds as conquered—it seemed as if quantity was to make up for quality— and made the circle of his victories extend from the Maeotic Sea to the Caspian and from the latter to the Red Sea, when his eyes had never seen any one of the three; nay farther, if he did not exactly say so, he at any rate induced the public to suppose that the annexation of Syria, which in truth was no heroic deed, had added the whole east as far as Bactria and India to the Roman empire— so dim was the mist of distance, amidst which according to his statements the boundary-line of his eastern conquests was lost. The democratic servility, which has at all times rivalled that of courts, readily entered into these insipid extravagances. It was not satisfied by the pompous triumphal procession, which moved through the streets of Rome on the 28th and 29th Sept. 693— the forty-sixth birthday of Pompeius the Great—adorned, to say nothing of jewels of all sorts, by the crown insignia of Mithradates and by the children of the three mightiest kings of Asia, Mithradates, Tigranes, and Phraates; it rewarded its general, who had conquered twenty-two kings, with regal honours and bestowed on him the golden chaplet and the insignia

of the magistracy for life. The coins struck in his honour exhibit the globe itself placed amidst the triple laurels brought home from the three continents, and surmounted by the golden chaplet conferred by the burgesses on the man who had triumphed over Africa, Spain, and Asia. It need excite no surprise, if in presence of such childish acts of homage voices were heard of an opposite import. Among the Roman world of quality it was currently affirmed that the true merit of having subdued the east belonged to Lucullus, and that Pompeius had only gone thither to supplant Lucullus and to wreath around his own brow the laurels which another hand had plucked. Both statements were totally erroneous: it was not Pompeius but Glabrio that was sent to Asia to relieve Lucullus, and, bravely as Lucullus had fought, it was a fact that, when Pompeius took the supreme command, the Romans had forfeited all their earlier successes and had not a foot's breadth of Pontic soil in their possession. More pointed and effective was the ridicule of the inhabitants of the capital, who failed not to nickname the mighty conqueror of the globe after the great powers which he had conquered, and saluted him now as "conqueror of Salem," now as "emir" (-Arabarches-), now as the Roman Sampsiceramus.

Lucullus and Pompeius as Administrators

The unprejudiced judge will not agree either with those exaggerations or with these disparagements. Lucullus and Pompeius, in subduing and regulating Asia, showed themselves to be, not heroes and state-creators, but sagacious and energetic army-leaders and governors. As general Lucullus displayed no common talents and a self-confidence bordering on rashness, while Pompeius displayed military judgment and a rare self-restraint; for hardly has any general with such forces and a position so wholly free ever acted so cautiously as Pompeius in the east. The most brilliant undertakings, as it were, offered themselves to him on all sides; he was free to start for the Cimmerian Bosphorus and for the Red Sea; he had opportunity of declaring

war against the Parthians; the revolted provinces of Egypt invited him to dethrone king Ptolemaeus who was not recognized by the Romans, and to carry out the testament of Alexander; but Pompeius marched neither to Panticapaeum nor to Petra, neither to Ctesiphon nor to Alexandria; throughout he gathered only those fruits which of themselves fell to his hand. In like manner he fought all his battles by sea and land with a crushing superiority of force. Had this moderation proceeded from the strict observance of the instructions given to him, as Pompeius was wont to profess, or even from a perception that the conquests of Rome must somewhere find a limit and that fresh accessions of territory were not advantageous to the state, it would deserve a higher praise than history confers on the most talented officer; but constituted as Pompeius was, his self-restraint was beyond doubt solely the result of his peculiar want of decision and of initiative—defects, indeed, which were in his case far more useful to the state than the opposite excellences of his predecessor. Certainly very grave errors were perpetrated both by Lucullus and by Pompeius. Lucullus reaped their fruits himself, when his imprudent conduct wrested from him all the results of his victories; Pompeius left it to his successors to bear the consequences of his false policy towards the Parthians. He might either have made war on the Parthians, if he had had the courage to do so, or have maintained peace with them and recognized, as he had promised, the Euphrates as boundary; he was too timid for the former course, too vain for the latter, and so he resorted to the silly perfidy of rendering the good neighbourhood, which the court of Ctesiphon desired and on its part practised, impossible through the most unbounded aggressions, and yet allowing the enemy to choose of themselves the time for rupture and retaliation. As administrator of Asia Lucullus acquired a more than princely wealth; and Pompeius also received as reward for its organization large sums in cash and still more considerable promissory notes from the king of Cappadocia, from the rich city of Antioch, and from

other lords and communities. But such exactions had become almost a customary tax; and both generals showed themselves at any rate to be not altogether venal in questions of greater importance, and, if possible, got themselves paid by the party whose interests coincided with those of Rome. Looking to the state of the times, this does not prevent us from characterizing the administration of both as comparatively commendable and conducted primarily in the interest of Rome, secondarily in that of the provincials.

The conversion of the clients into subjects, the better regulation of the eastern frontier, the establishment of a single and strong government, were full of blessing for the rulers as well as for the ruled. The financial gain acquired by Rome was immense; the new property tax, which with the exception of some specially exempted communities all those princes, priests, and cities had to pay to Rome, raised the Roman state-revenues almost by a half above their former amount. Asia indeed suffered severely. Pompeius brought in money and jewels an amount of 2,000,000 pounds (200,000,000 sesterces) into the state-chest and distributed 3,900,000 pounds (16,000 talents) among his officers and soldiers; if we add to this the considerable sums brought home by Lucullus, the non-official exactions of the Roman army, and the amount of the damage done by the war, the financial exhaustion of the land may be readily conceived. The Roman taxation of Asia was perhaps in itself not worse than that of its earlier rulers, but it formed a heavier burden on the land, in so far as the taxes thenceforth went out of the country and only the lesser portion of the proceeds was again expended in Asia; and at any rate it was, in the old as well as the newly-acquired provinces, based on a systematic plundering of the provinces for the benefit of Rome. But the responsibility for this rests far less on the generals personally than on the parties at home, whom these had to consider; Lucullus had even exerted himself energetically to set limits to the usurious dealings of the Roman capitalists in Asia, and this essentially

contributed to bring about his fall. How much both men earnestly sought to revive the prosperity of the reduced provinces, is shown by their action in cases where no considerations of party policy tied their hands, and especially in their care for the cities of Asia Minor. Although for centuries afterwards many an Asiatic village lying in ruins recalled the times of the great war, Sinope might well begin a new era with the date of its re-establishment by Lucullus, and almost all the more considerable inland towns of the Pontic kingdom might gratefully honour Pompeius as their founder. The organization of Roman Asia by Lucullus and Pompeius may with all its undeniable defects be described as on the whole judicious and praiseworthy; serious as were the evils that might still adhere to it, it could not but be welcome to the sorely tormented Asiatics for the very reason that it came attended by the inward and outward peace, the absence of which had been so long and so painfully felt.

The East after the Departure of Pompeius

Peace continued substantially in the east, till the idea—merely indicated by Pompeius with his characteristic timidity—of joining the regions eastward of the Euphrates to the Roman empire was taken up again energetically but unsuccessfully by the new triumvirate of Roman regents, and soon thereafter the civil war drew the eastern provinces as well as all the rest into its fatal vortex. In the interval the governors of Cilicia had to fight constantly with the mountain-tribes of the Amanus and those of Syria with the hordes of the desert, and in the latter war against the Bedouins especially many Roman troops were destroyed; but these movements had no farther significance. More remarkable was the obstinate resistance, which the tough Jewish nation opposed to the conquerors. Alexander, son of the deposed king Aristobulus, and Aristobulus himself who after some time succeeded in escaping from captivity, excited during the governorship of Aulus Gabinius (697-700) three different revolts against the new rulers, to

each of which the government of the high-priest Hyrcanus installed by Rome impotently succumbed. It was not political conviction, but the invincible repugnance of the Oriental towards the unnatural yoke, which compelled them to kick against the pricks; as indeed the last and most dangerous of these revolts, for which the withdrawal of the Syrian army of occupation in consequence of the Egyptian crisis furnished the immediate impulse, began with the murder of the Romans settled in Palestine. It was not without difficulty that the able governor succeeded in rescuing the few Romans, who had escaped this fate and found a temporary refuge on Mount Gerizim, from the insurgents who kept them blockaded there, and in overpowering the revolt after several severely contested battles and tedious sieges. In consequence of this the monarchy of the high-priests was abolished and the Jewish land was broken up as Macedonia had formerly been, into five independent districts administered by governing colleges with an Optimate organization; Samaria and other townships razed by the Jews were re-established, to form a counterpoise to Jerusalem; and lastly a heavier tribute was imposed on the Jews than on the other Syrian subjects of Rome.

The Kingdom of Egypt

It still remains that we should glance at the kingdom of Egypt along with the last dependency that remained to it of the extensive acquisitions of the Lagids, the fair island of Cyprus. Egypt was now the only state of the Hellenic east that was still at least nominally independent; just as formerly, when the Persians established themselves along the eastern half of the Mediterranean, Egypt was their last conquest, so now the mighty conquerors from the west long delayed the annexation of that opulent and peculiar country. The reason lay, as was already indicated, neither in any fear of the resistance of Egypt nor in the want of a fitting occasion. Egypt was just about as powerless as Syria, and had already in 673 fallen in all

due form of law to the Roman community.(28) The control exercised over the court of Alexandria by the royal guard—which appointed and deposed ministers and occasionally kings, took for itself what it pleased, and, if it was refused a rise of pay, besieged the king in his palace— was by no means liked in the country or rather in the capital (for the country with its population of agricultural slaves was hardly taken into account); and at least a party there wished for the annexation of Egypt by Rome, and even took steps to procure it But the less the kings of Egypt could think of contending in arms against Rome, the more energetically Egyptian gold set itself to resist the Roman plans of union; and in consequence of the peculiar despotico- communistic centralization of the Egyptian finances the revenues of the court of Alexandria were still nearly equal to the public income of Rome even after its augmentation by Pompeius. The suspicious jealousy of the oligarchy, which was chary of allowing any individual either to conquer or to administer Egypt, operated in the same direction. So the de facto rulers of Egypt and Cyprus were enabled by bribing the leading men in the senate not merely to respite their tottering crowns, but even to fortify them afresh and to purchase from the senate the confirmation of their royal title. But with this they had not yet obtained their object. Formal state-law required a decree of the Roman burgesses; until this was issued, the Ptolemies were dependent on the caprice of every democratic holder of power, and they had thus to commence the warfare of bribery also against the other Roman party, which as the more powerful stipulated for far higher prices.

Cyprus Annexed

The result in the two cases was different. The annexation of Cyprus was decreed in 696 by the people, that is, by the leaders of the democracy, the support given to piracy by the Cypriots being alleged as the official reason why that course should now be adopted. Marcus Cato, entrusted by his

opponents with the execution of this measure, came to the island without an army; but he had no need of one. The king took poison; the inhabitants submitted without offering resistance to their inevitable fate, and were placed under the governor of Cilicia. The ample treasure of nearly 7000 talents (1,700,000 pounds), which the equally covetous and miserly king could not prevail on himself to apply for the bribes requisite to save his crown, fell along with the latter to the Romans, and filled after a desirable fashion the empty vaults of their treasury.

Ptolemaeus in Egypt Recognized but Expelled by His Subjects

On the other hand the brother who reigned in Egypt succeeded in purchasing his recognition by decree of the people from the new masters of Rome in 695; the purchase-money is said to have amounted to 6000 talents (1,460,000 pounds). The citizens indeed, long exasperated against their good flute-player and bad ruler, and now reduced to extremities by the definitive loss of Cyprus and the pressure of the taxes which were raised to an intolerable degree in consequence of the transactions with the Romans (696), chased him on that account out of the country. When the king thereupon applied, as if on account of his eviction from the estate which he had purchased, to those who sold it, these were reasonable enough to see that it was their duty as honest men of business to get back his kingdom for Ptolemaeus; only the parties could not agree as to the person to whom the important charge of occupying Egypt by force along with the perquisites thence to be expected should be assigned. It was only when the triumvirate was confirmed anew at the conference of Luca, that this affair was also arranged, after Ptolemaeus had agreed to a further payment of 10,000 talents (2,400,000 pounds); the governor of Syria, Aulus Gabinius, now obtained orders from those in power to take the necessary steps immediately for bringing back the king. The citizens of Alexandria had meanwhile placed the crown on the head of Berenice the eldest daughter of

the ejected king, and given to her a husband in the person of one of the spiritual princes of Roman Asia, Archelaus the high-priest of Comana,(29) who possessed ambition enough to hazard his secure and respectable position in the hope of mounting the throne of the Lagids. His attempts to gain the Roman regents to his interests remained without success; but he did not recoil before the idea of being obliged to maintain his new kingdom with arms in hand even against the Romans.

And Brought Back by Gabinius

A Roman Garrison Remains in Alexandria

Gabinius, without ostensible powers to undertake war against Egypt but directed to do so by the regents, made a pretext out of the alleged furtherance of piracy by the Egyptians and the building of a fleet by Archelaus, and started without delay for the Egyptian frontier (699). The march through the sandy desert between Gaza and Pelusium, in which so many invasions previously directed against Egypt had broken down, was on this occasion successfully accomplished—a result especially due to the quick and skilful leader of the cavalry Marcus Antonius. The frontier fortress of Pelusium also was surrendered without resistance by the Jewish garrison stationed there. In front of this city the Romans met the Egyptians, defeated them—on which occasion Antonius again distinguished himself—and arrived, as the first Roman army, at the Nile. Here the fleet and army of the Egyptians were drawn up for the last decisive struggle; but the Romans once more conquered, and Archelaus himself with many of his followers perished in the combat. Immediately after this battle the capital surrendered, and therewith all resistance was at an end. The unhappy land was handed over to its legitimate oppressor; the hanging and beheading, with which, but for the intervention of the chivalrous Antonius, Ptolemaeus would have already in Pelusium begun to celebrate the restoration of the legitimate government, now took its course unhindered, and first of all the innocent

daughter was sent by her father to the scaffold. The payment of the reward agreed upon with the regents broke down through the absolute impossibility of exacting from the exhausted land the enormous sums required, although they took from the poor people the last penny; but care was taken that the country should at least be kept quiet by the garrison of Roman infantry and Celtic and German cavalry left in the capital, which took the place of the native praetorians and otherwise emulated them not unsuccessfully. The previous hegemony of Rome over Egypt was thus converted into a direct military occupation, and the nominal continuance of the native monarchy was not so much a privilege granted to the land as a double burden imposed on it.

CHAPTER V

The Struggle of Parties During the Absence of Pompeius.

The Defeated Aristocracy

With the passing of the Gabinian law the parties in the capital changed positions. From the time that the elected general of the democracy held in his hand the sword, his party, or what was reckoned such, had the preponderance in the capital. The nobility doubtless still stood in compact array, and still as before there issued from the comitial machinery none but consuls, who according to the expression of the democrats were already designated to the consulate in their cradles; to command the elections and break down the influence of the old families over them was beyond the power even of the holders of power. But unfortunately the consulate, at the very moment when they had got the length of virtually excluding the "new men" from it, began itself to grow pale before the newly-risen star of the exceptional military power. The aristocracy felt this, though they did not exactly confess it; they gave themselves up as lost. Except Quintus Catulus, who with honourable firmness persevered at his far from pleasant post as champion of a vanquished party down to his death (694), no Optimate could be named from the highest ranks of the nobility, who would have sustained the interests of the aristocracy with courage and steadfastness. Their very men of most talent and fame, such as Quintus Metellus Pius and Lucius Lucullus, practically abdicated and retired, so far as they could at all do so

with propriety, to their villas, in order to forget as much as possible the Forum and the senate-house amidst their gardens and libraries, their aviaries and fish-ponds. Still more, of course, was this the case with the younger generation of the aristocracy, which was either wholly absorbed in luxury and literature or turning towards the rising sun.

Cato

There was among the younger men a single exception; it was Marcus Porcius Cato (born in 659), a man of the best intentions and of rare devotedness, and yet one of the most Quixotic and one of the most cheerless phenomena in this age so abounding in political caricatures. Honourable and steadfast, earnest in purpose and in action, full of attachment to his country and to its hereditary constitution, but dull in intellect and sensuously as well as morally destitute of passion, he might certainly have made a tolerable state-accountant. But unfortunately he fell early under the power of formalism, and swayed partly by the phrases of the Stoa, which in their abstract baldness and spiritless isolation were current among the genteel world of that day, partly by the example of his great-grandfather whom he deemed it his especial task to reproduce, he began to walk about in the sinful capital as a model burgess and mirror of virtue, to scold at the times like the old Cato, to travel on foot instead of riding, to take no interest, to decline badges of distinction as a soldier, and to introduce the restoration of the good old days by going after the precedent of king Romulus without a shirt. A strange caricature of his ancestor—the gray-haired farmer whom hatred and anger made an orator, who wielded in masterly style the plough as well as the sword, who with his narrow, but original and sound common sense ordinarily hit the nail on the head—was this young unimpassioned pedant from whose lips dropped scholastic wisdom and who was everywhere seen sitting book in hand, this philosopher who understood neither the art of war nor any other art

whatever, this cloud-walker in the realm of abstract morals. Yet he attained to moral and thereby even to political importance. In an utterly wretched and cowardly age his courage and his negative virtues told powerfully on the multitude; he even formed a school, and there were individuals—it is true they were but few—who in their turn copied and caricatured afresh the living pattern of a philosopher. On the same cause depended also his political influence. As he was the only conservative of note who possessed if not talent and insight, at any rate integrity and courage, and was always ready to throw himself into the breach whether it was necessary to do so or not, he soon became the recognized champion of the Optimate party, although neither his age nor his rank nor his intellect entitled him to be so. Where the perseverance of a single resolute man could decide, he no doubt sometimes achieved a success, and in questions of detail, more particularly of a financial character, he often judiciously interfered, as indeed he was absent from no meeting of the senate; his quaestorship in fact formed an epoch, and as long as he lived he checked the details of the public budget, regarding which he maintained of course a constant warfare with the farmers of the taxes. For the rest, he lacked simply every ingredient of a statesman. He was incapable of even comprehending a political aim and of surveying political relations; his whole tactics consisted in setting his face against every one who deviated or seemed to him to deviate from the traditionary moral and political catechism of the aristocracy, and thus of course he worked as often into the hands of his opponents as into those of his own party. The Don Quixote of the aristocracy, he proved by his character and his actions that at this time, while there was certainly still an aristocracy in existence, the aristocratic policy was nothing more than a chimera.

Democratic Attacks

To continue the conflict with this aristocracy brought little honour. Of course the attacks of the democracy on the vanquished foe did not on that account cease. The pack of the Populares threw themselves on the broken ranks of the nobility like the sutlers on a conquered camp, and the surface at least of politics was by this agitation ruffled into high waves of foam. The multitude entered into the matter the more readily, as Gaius Caesar especially kept them in good humour by the extravagant magnificence of his games (689)—in which all the equipments, even the cages of the wild beasts, appeared of massive silver—and generally by a liberality which was all the more princely that it was based solely on the contraction of debt. The attacks on the nobility were of the most varied kind. The abuses of aristocratic rule afforded copious materials; magistrates and advocates who were liberal or assumed a liberal hue, like Gaius Cornelius, Aulus Gabinius, Marcus Cicero, continued systematically to unveil the most offensive and scandalous aspects of the Optimate doings and to propose laws against them. The senate was directed to give access to foreign envoys on set days, with the view of preventing the usual postponement of audiences. Loans raised by foreign ambassadors in Rome were declared non-actionable, as this was the only means of seriously checking the corruptions which formed the order of the day in the senate (687). The right of the senate to give dispensation in particular cases from the laws was restricted (687); as was also the abuse whereby every Roman of rank, who had private business to attend to in the provinces, got himself invested by the senate with the character of a Roman envoy thither (691). They heightened the penalties against the purchase of votes and electioneering intrigues (687, 691); which latter were especially increased in a scandalous fashion by the attempts of the individuals ejected from the senate⁽¹⁾ to get back to it through re-election.

What had hitherto been simply understood as matter of course was now expressly laid down as a law, that the praetors were bound to administer

justice in conformity with the rules set forth by them, after the Roman fashion, at their entering on office (687).

Transpadanes

Freedmen

But, above all, efforts were made to complete the democratic restoration and to realize the leading ideas of the Gracchan period in a form suitable to the times. The election of the priests by the comitia, which Gnaeus Domitius had introduced⁽²⁾ and Sulla had again done away,⁽³⁾ was established by a law of the tribune of the people Titus Labienus in 691. The democrats were fond of pointing out how much was still wanting towards the restoration of the Sempronian corn-laws in their full extent, and at the same time passed over in silence the fact that under the altered circumstances—with the straitened condition of the public finances and the great increase in the number of fully-privileged Roman citizens—that restoration was absolutely impracticable. In the country between the Po and the Alps they zealously fostered the agitation for political equality with the Italians. As early as 686 Gaius Caesar travelled from place to place there for this purpose; in 689 Marcus Crassus as censor made arrangements to enrol the inhabitants directly in the burgess-roll—which was only frustrated by the resistance of his colleague; in the following censorships this attempt seems regularly to have been repeated. As formerly Gracchus and Flaccus had been the patrons of the Latins, so the present leaders of the democracy gave themselves forth as protectors of the Transpadanes, and Gaius Piso (consul in 687) had bitterly to regret that he had ventured to outrage one of these clients of Caesar and Crassus. On the other hand the same leaders appeared by no means disposed to advocate the political equalization of the freedmen; the tribune of the people Gaius Manilius, who in a thinly attended assembly had procured the renewal (31 Dec. 687) of the Sulpician law as to the suffrage of freedmen,⁽⁴⁾ was immediately disavowed by the

leading men of the democracy, and with their consent the law was cancelled by the senate on the very day after its passing. In the same spirit all the strangers, who possessed neither Roman nor Latin burgess- rights, were ejected from the capital by decree of the people in 689. It is obvious that the intrinsic inconsistency of the Gracchan policy—in abetting at once the effort of the excluded to obtain admission into the circle of the privileged, and the effort of the privileged to maintain their distinctive rights—had passed over to their successors; while Caesar and his friends on the one hand held forth to the Transpadanes the prospect of the franchise, they on the other hand gave their assent to the continuance of the disabilities of the freedmen, and to the barbarous setting aside of the rivalry which the industry and trading skill of the Hellenes and Orientals maintained with the Italians in Italy itself.

Process against Rabirius

The mode in which the democracy dealt with the ancient criminal jurisdiction of the comitia was characteristic. It had not been properly abolished by Sulla, but practically the jury-commissions on high treason and murder had superseded it,(5) and no rational man could think of seriously re-establishing the old procedure which long before Sulla had been thoroughly unpractical. But as the idea of the sovereignty of the people appeared to require a recognition at least in principle of the penal jurisdiction of the burgesses, the tribune of the people Titus Labienus in 691 brought the old man, who thirty-eight years before had slain or was alleged to have slain the tribune of the people Lucius Saturninus,(6) before the same high court of criminal jurisdiction, by virtue of which, if the annals reported truly, king Tullus had procured the acquittal of the Horatius who had killed his sister. The accused was one Gaius Rabirius, who, if he had not killed Saturninus, had at least paraded with his cut-off head at the tables of men of rank, and who moreover was notorious among the Apulian

landholders for his kidnapping and his bloody deeds. The object, if not of the accuser himself, at any rate of the more sagacious men who backed him, was not at all to make this pitiful wretch die the death of the cross; they were not unwilling to acquiesce, when first the form of the impeachment was materially modified by the senate, and then the assembly of the people called to pronounce sentence on the guilty was dissolved under some sort of pretext by the opposite party—so that the whole procedure was set aside. At all events by this process the two palladia of Roman freedom, the right of the citizens to appeal and the inviolability of the tribunes of the people, were once more established as practical rights, and the legal basis on which the democracy rested was adjusted afresh.

Personal Attacks

The democratic reaction manifested still greater vehemence in all personal questions, wherever it could and dared. Prudence indeed enjoined it not to urge the restoration of the estates confiscated by Sulla to their former owners, that it might not quarrel with its own allies and at the same time fall into a conflict with material interests, for which a policy with a set purpose is rarely a match; the recall of the emigrants was too closely connected with this question of property not to appear quite as unadvisable. On the other hand great exertions were made to restore to the children of the proscribed the political rights withdrawn from them (691), and the heads of the senatorial party were incessantly subjected to personal attacks. Thus Gaius Memmius set on foot a process aimed at Marcus Lucullus in 688. Thus they allowed his more famous brother to wait for three years before the gates of the capital for his well-deserved triumph (688-691). Quintus Rex and the conqueror of Crete Quintus Metellus were similarly insulted.

It produced a still greater sensation, when the young leader of the democracy Gaius Caesar in 691 not merely presumed to compete with the two most distinguished men of the nobility, Quintus Catulus and Publius Servilius the victor of Isaura, in the candidature for the supreme pontificate, but even carried the day among the burgesses. The heirs of Sulla, especially his son Faustus, found themselves constantly threatened with an action for the refunding of the public moneys which, it was alleged, had been embezzled by the regent. They talked even of resuming the democratic impeachments suspended in 664 on the basis of the Varian law.(7) The individuals who had taken part in the Sullan executions were, as may readily be conceived, judicially prosecuted with the utmost zeal. When the quaestor Marcus Cato, in his pedantic integrity, himself made a beginning by demanding back from them the rewards which they had received for murder as property illegally alienated from the state (689), it can excite no surprise that in the following year (690) Gaius Caesar, as president of the commission regarding murder, summarily treated the clause in the Sullan ordinance, which declared that a proscribed person might be killed with impunity, as null and void, and caused the most noted of Sulla's executioners, Lucius Catilina, Lucius Bellienus, Lucius Luscus to be brought before his jurymen and, partially, to be condemned.

Rehabilitation of Saturninus and Marius

Lastly, they did not hesitate now to name once more in public the long-proscribed names of the heroes and martyrs of the democracy, and to celebrate their memory. We have already mentioned how Saturninus was rehabilitated by the process directed against his murderer. But a different sound withal had the name of Gaius Marius, at the mention of which all hearts once had throbbed; and it happened that the man, to whom Italy owed her deliverance from the northern barbarians, was at the same time the uncle of the present leader of the democracy. Loudly had the multitude

rejoiced, when in 686 Gaius Caesar ventured in spite of the prohibitions publicly to show the honoured features of the hero in the Forum at the interment of the widow of Marius. But when, three years afterwards (689), the emblems of victory, which Marius had caused to be erected in the Capitol and Sulla had ordered to be thrown down, one morning unexpectedly glittered afresh in gold and marble at the old spot, the veterans from the African and Cimbrian wars crowded, with tears in their eyes, around the statue of their beloved general; and in presence of the rejoicing masses the senate did not venture to seize the trophies which the same bold hand had renewed in defiance of the laws.

Worthlessness of the Democratic Successes

But all these doings and disputes, however much noise they made, were, politically considered, of but very subordinate importance. The oligarchy was vanquished; the democracy had attained the helm. That underlings of various grades should hasten to inflict an additional kick on the prostrate foe; that the democrats also should have their basis in law and their worship of principles; that their doctrinaires should not rest till the whole privileges of the community were in all particulars restored, and should in that respect occasionally make themselves ridiculous, as legitimists are wont to do—all this was just as much to be expected as it was matter of indifference. Taken as a whole, the agitation was aimless; and we discern in it the perplexity of its authors to find an object for their activity, for it turned almost wholly on things already essentially settled or on subordinate matters.

Impending Collision between the Democrats and Pompeius

It could not be otherwise. In the struggle with the aristocracy the democrats had remained victors; but they had not conquered alone, and the fiery trial still awaited them—the reckoning not with their former foe, but with their too powerful ally, to whom in the struggle with the aristocracy

they were substantially indebted for victory, and to whose hands they had now entrusted an unexampled military and political power, because they dared not refuse it to him. The general of the east and of the seas was still employed in appointing and deposing kings. How long time he would take for that work, or when he would declare the business of the war to be ended, no one could tell but himself; since like everything else the time of his return to Italy, or in other words the day of decision, was left in his own hands. The parties in Rome meanwhile sat and waited. The Optimates indeed looked forward to the arrival of the dreaded general with comparative calmness; by the rupture between Pompeius and the democracy, which they saw to be approaching, they could not lose, but could only gain. The democrats on the contrary waited with painful anxiety, and sought, during the interval still allowed to them by the absence of Pompeius, to lay a countermine against the impending explosion.

Schemes for Appointing a Democratic Military Dictatorship

In this policy they again coincided with Crassus, to whom no course was left for encountering his envied and hated rival but that of allying himself afresh, and more closely than before, with the democracy. Already in the first coalition a special approximation had taken place between Caesar and Crassus as the two weaker parties; a common interest and a common danger tightened yet more the bond which joined the richest and the most insolvent of Romans in closest alliance. While in public the democrats described the absent general as the head and pride of their party and seemed to direct all their arrows against the aristocracy, preparations were secretly made against Pompeius; and these attempts of the democracy to escape from the impending military dictatorship have historically a far higher significance than the noisy agitation, for the most part employed only as a mask, against the nobility. It is true that they were carried on amidst a darkness, upon which our tradition allows only some stray gleams of light to fall; for not

the present alone, but the succeeding age also had its reasons for throwing a veil over the matter. But in general both the course and the object of these efforts are completely clear. The military power could only be effectually checkmated by another military power. The design of the democrats was to possess themselves of the reins of government after the example of Marius and Cinna, then to entrust one of their leaders either with the conquest of Egypt or with the governorship of Spain or some similar ordinary or extraordinary office, and thus to find in him and his military force a counterpoise to Pompeius and his army. For this they required a revolution, which was directed immediately against the nominal government, but in reality against Pompeius as the designated monarch;(8) and, to effect this revolution, there was from the passing of the Gabinio-Manilian laws down to the return of Pompeius (688-692) perpetual conspiracy in Rome. The capital was in anxious suspense; the depressed temper of the capitalists, the suspensions of payment, the frequent bankruptcies were heralds of the fermenting revolution, which seemed as though it must at the same time produce a totally new position of parties. The project of the democracy, which pointed beyond the senate at Pompeius, suggested an approximation between that general and the senate. But the democracy in attempting to oppose to the dictatorship of Pompeius that of a man more agreeable to it, recognized, strictly speaking, on its part also the military government, and in reality drove out Satan by Beelzebub; the question of principles became in its hands a question of persons.

League of the Democrats and the Anarchists

The first step towards the revolution projected by the leaders of the democracy was thus to be the overthrow of the existing government by means of an insurrection primarily instigated in Rome by democratic conspirators. The moral condition of the lowest as of the highest ranks of society in the capital presented the materials for this purpose in lamentable

abundance. We need not here repeat what was the character of the free and the servile proletariat of the capital. The significant saying was already heard, that only the poor man was qualified to represent the poor; the idea was thus suggested, that the mass of the poor might constitute itself an independent power as well as the oligarchy of the rich, and instead of allowing itself to be tyrannized over, might perhaps in its own turn play the tyrant. But even in the circles of the young men of rank similar ideas found an echo. The fashionable life of the capital shattered not merely the fortunes of men, but also their vigour of body and mind. That elegant world of fragrant ringlets, of fashionable mustachios and ruffles—merry as were its doings in the dance and with the harp, and early and late at the wine-cup—yet concealed in its bosom an alarming abyss of moral and economic ruin, of well or ill concealed despair, and frantic or knavish resolves. These circles sighed without disguise for a return of the time of Cinna with its proscriptions and confiscations and its annihilation of account-books for debt; there were people enough, including not a few of no mean descent and unusual abilities, who only waited the signal to fall like a gang of robbers on civil society and to recruit by pillage the fortune which they had squandered. Where a band gathers, leaders are not wanting; and in this case the men were soon found who were fitted to be captains of banditti.

Catalina

The late praetor Lucius Catilina, and the quaestor Gnaeus Piso, were distinguished among their fellows not merely by their genteel birth and their superior rank. They had broken down the bridge completely behind them, and impressed their accomplices by their dissoluteness quite as much as by their talents. Catilina especially was one of the most wicked men in that wicked age. His villanies belong to the records of crime, not to history; but his very outward appearance—the pale countenance, the wild glance, the gait by turns sluggish and hurried—betrayed his dismal past. He possessed

in a high degree the qualities which are required in the leader of such a band — the faculty of enjoying all pleasures and of bearing all privations, courage, military talent, knowledge of men, the energy of a felon, and that horrible mastery of vice, which knows how to bring the weak to fall and how to train the fallen to crime.

To form out of such elements a conspiracy for the overthrow of the existing order of things could not be difficult to men who possessed money and political influence. Catilina, Piso, and their fellows entered readily into any plan which gave the prospect of proscriptions and cancelling of debtor-books; the former had moreover special hostility to the aristocracy, because it had opposed the candidature of that infamous and dangerous man for the consulship. As he had formerly in the character of an executioner of Sulla hunted the proscribed at the head of a band of Celts and had killed among others his own aged father-in-law with his own hand, he now readily consented to promise similar services to the opposite party. A secret league was formed. The number of individuals received into it is said to have exceeded 400; it included associates in all the districts and urban communities of Italy; besides which, as a matter of course, numerous recruits would flock unbidden from the ranks of the dissolute youth to an insurrection, which inscribed on its banner the seasonable programme of wiping out debts.

Failure of the First Plans of Conspiracy

In December 688—so we are told—the leaders of the league thought that they had found the fitting occasion for striking a blow. The two consuls chosen for 689, Publius Cornelius Sulla and Publius Autronius Paetus, had recently been judicially convicted of electoral bribery, and therefore had according to legal rule forfeited their expectancy of the highest office. Both thereupon joined the league. The conspirators resolved to procure the

consulship for them by force, and thereby to put themselves in possession of the supreme power in the state. On the day when the new consuls should enter on their office—the 1st Jan. 689—the senate-house was to be assailed by armed men, the new consuls and the victims otherwise designated were to be put to death, and Sulla and Paetus were to be proclaimed as consuls after the cancelling of the judicial sentence which excluded them. Crassus was then to be invested with the dictatorship and Caesar with the mastership of the horse, doubtless with a view to raise an imposing military force, while Pompeius was employed afar off at the Caucasus. Captains and common soldiers were hired and instructed; Catilina waited on the appointed day in the neighbourhood of the senate-house for the concerted signal, which was to be given him by Caesar on a hint from Crassus. But he waited in vain; Crassus was absent from the decisive sitting of the senate, and for this time the projected insurrection failed. A similar still more comprehensive plan of murder was then concerted for the 5th Feb.; but this too was frustrated, because Catilina gave the signal too early, before the bandits who were bespoken had all arrived. Thereupon the secret was divulged. The government did not venture openly to proceed against the conspiracy, but it assigned a guard to the consuls who were primarily threatened, and it opposed to the band of the conspirators a band paid by the government. To remove Piso, the proposal was made that he should be sent as quaestor with praetorian powers to Hither Spain; to which Crassus consented, in the hope of securing through him the resources of that important province for the insurrection. Proposals going farther were prevented by the tribunes.

So runs the account that has come down to us, which evidently gives the version current in the government circles, and the credibility of which in detail must, in the absence of any means of checking it, be left an open question. As to the main matter—the participation of Caesar and Crassus—the testimony of their political opponents certainly cannot be regarded as

sufficient evidence of it. But their notorious action at this epoch corresponds with striking exactness to the secret action which this report ascribes to them. The attempt of Crassus, who in this year was censor, officially to enrol the Transpadanes in the burgess-list(9) was of itself directly a revolutionary enterprise. It is still more remarkable, that Crassus on the same occasion made preparations to enrol Egypt and Cyprus in the list of Roman domains,(10) and that Caesar about the same time (689 or 690) got a proposal submitted by some tribunes to the burgesses to send him to Egypt, in order to reinstate king Ptolemaeus whom the Alexandrians had expelled. These machinations suspiciously coincide with the charges raised by their antagonists. Certainty cannot be attained on the point; but there is a great probability that Crassus and Caesar had projected a plan to possess themselves of the military dictatorship during the absence of Pompeius; that Egypt was selected as the basis of this democratic military power; and that, in fine, the insurrectionary attempt of 689 had been contrived to realize these projects, and Catilina and Piso had thus been tools in the hands of Crassus and Caesar.

Resumption of the Conspiracy

For a moment the conspiracy came to a standstill. The elections for 690 took place without Crassus and Caesar renewing their attempt to get possession of the consulate; which may have been partly owing to the fact that a relative of the leader of the democracy, Lucius Caesar, a weak man who was not unfrequently employed by his kinsman as a tool, was on this occasion a candidate for the consulship. But the reports from Asia urged them to make haste. The affairs of Asia Minor and Armenia were already completely arranged. However clearly democratic strategists showed that the Mithradatic war could only be regarded as terminated by the capture of the king, and that it was therefore necessary to undertake the pursuit round the Black Sea, and above all things to keep aloof from Syria(11)—

Pompeius, not concerning himself about such talk, had set out in the spring of 690 from Armenia and marched towards Syria. If Egypt was really selected as the headquarters of the democracy, there was no time to be lost; otherwise Pompeius might easily arrive in Egypt sooner than Caesar. The conspiracy of 688, far from being broken up by the lax and timid measures of repression, was again astir when the consular elections for 691 approached. The persons were, it may be presumed, substantially the same, and the plan was but little altered. The leaders of the movement again kept in the background. On this occasion they had set up as candidates for the consulship Catilina himself and Gaius Antonius, the younger son of the orator and a brother of the general who had an ill repute from Crete. They were sure of Catilina; Antonius, originally a Sullan like Catilina and like the latter brought to trial on that account some years before by the democratic party and ejected from the senate⁽¹²⁾—otherwise an indolent, insignificant man, in no respect called to be a leader, and utterly bankrupt—willingly lent himself as a tool to the democrats for the prize of the consulship and the advantages attached to it. Through these consuls the heads of the conspiracy intended to seize the government, to arrest the children of Pompeius, who remained behind in the capital, as hostages, and to take up arms in Italy and the provinces against Pompeius. On the first news of the blow struck in the capital, the governor Gnaeus Piso was to raise the banner of insurrection in Hither Spain. Communication could not be held with him by way of the sea, since Pompeius commanded the seas. For this purpose they reckoned on the Transpadanes the old clients of the democracy—among whom there was great agitation, and who would of course have at once received the franchise—and, further, on different Celtic tribes.⁽¹³⁾ The threads of this combination reached as far as Mauretania. One of the conspirators, the Roman speculator Publius Sittius from Nuceria, compelled by financial embarrassments to keep aloof from Italy, had armed a troop of

desperadoes there and in Spain, and with these wandered about as a leader of free-lances in western Africa, where he had old commercial connections.

Consular Elections

Cicero Elected instead of Catalina

The party put forth all its energies for the struggle of the election. Crassus and Caesar staked their money—whether their own or borrowed—and their connections to procure the consulship for Catilina and Antonius; the comrades of Catilina strained every nerve to bring to the helm the man who promised them the magistracies and priesthoods, the palaces and country-estates of their opponents, and above all deliverance from their debts, and who, they knew, would keep his word. The aristocracy was in great perplexity, chiefly because it was not able even to start counter-candidates. That such a candidate risked his head, was obvious; and the times were past when the post of danger allured the burgess—now even ambition was hushed in presence of fear. Accordingly the nobility contented themselves with making a feeble attempt to check electioneering intrigues by issuing a new law respecting the purchase of votes—which, however, was thwarted by the veto of a tribune of the people—and with turning over their votes to a candidate who, although not acceptable to them, was at least inoffensive. This was Marcus Cicero, notoriously a political trimmer,(14) accustomed to flirt at times with the democrats, at times with Pompeius, at times from a somewhat greater distance with the aristocracy, and to lend his services as an advocate to every influential man under impeachment without distinction of person or party (he numbered even Catilina among his clients); belonging properly to no party or—which was much the same—to the party of material interests, which was dominant in the courts and was pleased with the eloquent pleader and the courtly and witty companion. He had connections enough in the capital and the country towns to have a chance alongside of the candidates proposed by the democracy; and as the nobility,

although with reluctance, and the Pompeians voted for him, he was elected by a great majority. The two candidates of the democracy obtained almost the same number of votes; but a few more fell to Antonius, whose family was of more consideration than that of his fellow-candidate. This accident frustrated the election of Catilina and saved Rome from a second Cinna. A little before this Piso had—it was said at the instigation of his political and personal enemy Pompeius—been put to death in Spain by his native escort. (15) With the consul Antonius alone nothing could be done; Cicero broke the loose bond which attached him to the conspiracy, even before they entered on their offices, inasmuch as he renounced his legal privilege of having the consular provinces determined by lot, and handed over to his deeply-embarrassed colleague the lucrative governorship of Macedonia. The essential preliminary conditions of this project also had therefore miscarried.

New Projects of the Conspirators

Meanwhile the development of Oriental affairs grew daily more perilous for the democracy. The settlement of Syria rapidly advanced; already invitations had been addressed to Pompeius from Egypt to march thither and occupy the country for Rome; they could not but be afraid that they would next hear of Pompeius in person having taken possession of the valley of the Nile. It was by this very apprehension probably that the attempt of Caesar to get himself sent by the people to Egypt for the purpose of aiding the king against his rebellious subjects(16) was called forth; it failed, apparently, through the disinclination of great and small to undertake anything whatever against the interest of Pompeius. His return home, and the probable catastrophe which it involved, were always drawing the nearer; often as the string of the bow had been broken, it was necessary that there should be a fresh attempt to bend it. The city was in sullen ferment;

frequent conferences of the heads of the movement indicated that some step was again contemplated.

The Servilian Agrarian Law

What they wished became manifest when the new tribunes of the people entered on their office (10 Dec. 690), and one of them, Publius Servilius Rullus, immediately proposed an agrarian law, which was designed to procure for the leaders of the democrats a position similar to that which Pompeius occupied in consequence of the Gabinio-Manilian proposals. The nominal object was the founding of colonies in Italy. The ground for these, however, was not to be gained by dispossession; on the contrary all existing private rights were guaranteed, and even the illegal occupations of the most recent times⁽¹⁷⁾ were converted into full property. The leased Campanian domain alone was to be parcelled out and colonized; in other cases the government was to acquire the land destined for assignation by ordinary purchase. To procure the sums necessary for this purpose, the remaining Italian, and more especially all the extra-Italian, domain-land was successively to be brought to sale; which was understood to include the former royal hunting domains in Macedonia, the Thracian Chersonese, Bithynia, Pontus, Cyrene, and also the territories of the cities acquired in full property by right of war in Spain, Africa, Sicily, Hellas, and Cilicia. Everything was likewise to be sold which the state had acquired in moveable and immoveable property since the year 666, and of which it had not previously disposed; this was aimed chiefly at Egypt and Cyprus. For the same purpose all subject communities, with the exception of the towns with Latin rights and the other free cities, were burdened with very high rates of taxes and tithes. Lastly there was likewise destined for those purchases the produce of the new provincial revenues, to be reckoned from 692, and the proceeds of the whole booty not yet legally applied; which regulations had reference to the new sources of taxation opened up by

Pompeius in the east and to the public moneys that might be found in the hands of Pompeius and the heirs of Sulla. For the execution of this measure decemvirs with a special jurisdiction and special -imperium- were to be nominated, who were to remain five years in office and to surround themselves with 200 subalterns from the equestrian order; but in the election of the decemvirs only those candidates who should personally announce themselves were to be taken into account, and, as in the elections of priests,(18) only seventeen tribes to be fixed by lot out of the thirty-five were to make the election. It needed no great acuteness to discern that in this decemviral college it was intended to create a power after the model of that of Pompeius, only with somewhat less of a military and more of a democratic hue. The jurisdiction was especially needed for the sake of deciding the Egyptian question, the military power for the sake of arming against Pompeius; the clause, which forbade the choice of an absent person, excluded Pompeius; and the diminution of the tribes entitled to vote as well as the manipulation of the balloting were designed to facilitate the management of the election in accordance with the views of the democracy.

But this attempt totally missed its aim. The multitude, finding it more agreeable to have their corn measured out to them under the shade of Roman porticoes from the public magazines than to cultivate it for themselves in the sweat of their brow, received even the proposal in itself with complete indifference. They soon came also to feel that Pompeius would never acquiesce in such a resolution offensive to him in every respect, and that matters could not stand well with a party which in its painful alarm condescended to offers so extravagant. Under such circumstances it was not difficult for the government to frustrate the proposal; the new consul Cicero perceived the opportunity of exhibiting here too his talent for giving a finishing stroke to the beaten party; even before the tribunes who stood ready exercised their veto, the author himself withdrew his proposal (1 Jan. 691). The democracy had gained nothing but

the unpleasant lesson, that the great multitude out of love or fear still continued to adhere to Pompeius, and that every proposal was certain to fail which the public perceived to be directed against him.

Preparations of the Anarchists in Etruria

Wearied by all this vain agitation and scheming without result, Catilina determined to push the matter to a decision and make an end of it once for all. He took his measures in the course of the summer to open the civil war. Faesulae (Fiesole), a very strong town situated in Etruria—which swarmed with the impoverished and conspirators—and fifteen years before the centre of the rising of Lepidus, was again selected as the headquarters of the insurrection. Thither were despatched the consignments of money, for which especially the ladies of quality in the capital implicated in the conspiracy furnished the means; there arms and soldiers were collected; and there an old Sullan captain, Gaius Manlius, as brave and as free from scruples of conscience as was ever any soldier of fortune, took temporarily the chief command. Similar though less extensive warlike preparations were made at other points of Italy. The Transpadanes were so excited that they seemed only waiting for the signal to strike. In the Bruttian country, on the east coast of Italy, in Capua—wherever great bodies of slaves were accumulated—a second slave insurrection like that of Spartacus seemed on the eve of arising. Even in the capital there was something brewing; those who saw the haughty bearing with which the summoned debtors appeared before the urban praetor, could not but remember the scenes which had preceded the murder of Asellio.⁽¹⁹⁾ The capitalists were in unutterable anxiety; it seemed needful to enforce the prohibition of the export of gold and silver, and to set a watch over the principal ports. The plan of the conspirators was—on occasion of the consular election for 692, for which Catilina had again announced himself— summarily to put to death the consul conducting the election as well as the inconvenient rival candidates,

and to carry the election of Catilina at any price; in case of necessity, even to bring armed bands from Faesulae and the other rallying points against the capital, and with their help to crush resistance.

Election of Catalina as Consul again Frustrated

Cicero, who was always quickly and completely informed by his agents male and female of the transactions of the conspirators, on the day fixed for the election (20 Oct.) denounced the conspiracy in the full senate and in presence of its principal leaders. Catilina did not condescend to deny it; he answered haughtily that, if the election for consul should fall on him, the great headless party would certainly no longer want a leader against the small party led by wretched heads. But as palpable evidences of the plot were not before them, nothing farther was to be got from the timid senate, except that it gave its previous sanction in the usual way to the exceptional measures which the magistrates might deem suitable (21 Oct.). Thus the election battle approached—on this occasion more a battle than an election; for Cicero too had formed for himself an armed bodyguard out of the younger men, more especially of the mercantile order; and it was his armed force that covered and dominated the Campus Martius on the 28th October, the day to which the election had been postponed by the senate. The conspirators were not successful either in killing the consul conducting the election, or in deciding the elections according to their mind.

Outbreak of the Insurrection in Etruria Repressive Measures of the Government

But meanwhile the civil war had begun. On the 27th Oct. Gaius Manlius had planted at Faesulae the eagle round which the army of the insurrection was to flock—it was one of the Marian eagles from the Cimbrian war—and he had summoned the robbers from the mountains as well as the country people to join him. His proclamations, following the old traditions of the

popular party, demanded liberation from the oppressive load of debt and a modification of the procedure in insolvency, which, if the amount of the debt actually exceeded the estate, certainly still involved in law the forfeiture of the debtor's freedom. It seemed as though the rabble of the capital, in coming forward as if it were the legitimate successor of the old plebeian farmers and fighting its battles under the glorious eagles of the Cimbrian war, wished to cast a stain not only on the present but on the past of Rome. This rising, however, remained isolated; at the other places of rendezvous the conspiracy did not go beyond the collection of arms and the institution of secret conferences, as resolute leaders were everywhere wanting. This was fortunate for the government; for, although the impending civil war had been for a considerable time openly announced, its own irresolution and the clumsiness of the rusty machinery of administration had not allowed it to make any military preparations whatever. It was only now that the general levy was called out, and superior officers were ordered to the several regions of Italy that each might suppress the insurrection in his own district; while at the same time the gladiatorial slaves were ejected from the capital, and patrols were ordered on account of the apprehension of incendiarism.

The Conspirators in Rome

Catilina was in a painful position. According to his design there should have been a simultaneous rising in the capital and in Etruria on occasion of the consular elections; the failure of the former and the outbreak of the latter movement endangered his person as well as the whole success of his undertaking. Now that his partisans at Faesulae had once risen in arms against the government, he could no longer remain in the capital; and yet not only did everything depend on his inducing the conspirators of the capital now at least to strike quickly, but this had to be done even before he left Rome—for he knew his helpmates too well to rely on them for that

matter. The more considerable of the conspirators—Publius Lentulus Sura consul in 683, afterwards expelled from the senate and now, in order to get back into the senate, praetor for the second time, and the two former praetors Publius Autronius and Lucius Cassius—were incapable men; Lentulus an ordinary aristocrat of big words and great pretensions, but slow in conception and irresolute in action; Autronius distinguished for nothing but his powerful screaming voice; while as to Lucius Cassius no one comprehended how a man so corpulent and so simple had fallen among the conspirators. But Catilina could not venture to place his abler partisans, such as the young senator Gaius Cethegus and the equites Lucius Statilius and Publius Gabinus Capito, at the head of the movement; for even among the conspirators the traditional hierarchy of rank held its ground, and the very anarchists thought that they should be unable to carry the day unless a consular or at least a praetorian were at their head. Therefore, however urgently the army of the insurrection might long for its general, and however perilous it was for the latter to remain longer at the seat of government after the outbreak of the revolt, Catilina nevertheless resolved still to remain for a time in Rome. Accustomed to impose on his cowardly opponents by his audacious insolence, he showed himself publicly in the Forum and in the senate-house and replied to the threats which were there addressed to him, that they should beware of pushing him to extremities; that, if they should set the house on fire, he would be compelled to extinguish the conflagration in ruins. In reality neither private persons nor officials ventured to lay hands on the dangerous man; it was almost a matter of indifference when a young nobleman brought him to trial on account of violence, for long before the process could come to an end, the question could not but be decided elsewhere. But the projects of Catilina failed; chiefly because the agents of the government had made their way into the circle of the conspirators and kept it accurately informed of every detail of the plot. When, for instance, the conspirators appeared before the strong

Praeneste (1 Nov.), which they had hoped to surprise by a -coup de main-, they found the inhabitants warned and armed; and in a similar way everything miscarried. Catilina with all his temerity now found it advisable to fix his departure for one of the ensuing days; but previously on his urgent exhortation, at a last conference of the conspirators in the night between the 6th and 7th Nov. it was resolved to assassinate the consul Cicero, who was the principal director of the countermines, before the departure of their leader, and, in order to obviate any treachery, to carry the resolve at once into execution. Early on the morning of the 7th Nov., accordingly, the selected murderers knocked at the house of the consul; but they found the guard reinforced and themselves repulsed—on this occasion too the spies of the government had outdone the conspirators.

Catilina Proceed to Etruria

On the following day (8 Nov.) Cicero convoked the senate. Even now Catilina ventured to appear and to attempt a defence against the indignant attacks of the consul, who unveiled before his face the events of the last few days; but men no longer listened to him, and in the neighbourhood of the place where he sat the benches became empty. He left the sitting, and proceeded, as he would doubtless have done even apart from this incident, in accordance with the agreement, to Etruria. Here he proclaimed himself consul, and assumed an attitude of waiting, in order to put his troops in motion against the capital on the first announcement of the outbreak of the insurrection there. The government declared the two leaders Catilina and Manlius, as well as those of their comrades who should not have laid down their arms by a certain day, to be outlaws, and called out new levies; but at the head of the army destined against Catilina was placed the consul Gaius Antonius, who was notoriously implicated in the conspiracy, and with whose character it was wholly a matter of accident whether he would lead his troops against Catilina or over to his side. They seemed to have directly

laid their plans towards converting this Antonius into a second Lepidus. As little were steps taken against the leaders of the conspiracy who had remained behind in the capital, although every one pointed the finger at them and the insurrection in the capital was far from being abandoned by the conspirators—on the contrary the plan of it had been settled by Catilina himself before his departure from Rome. A tribune was to give the signal by calling an assembly of the people; in the following night Cethegus was to despatch the consul Cicero; Gabinius and Statilius were to set the city simultaneously on fire at twelve places; and a communication was to be established as speedily as possible with the army of Catilina, which should have meanwhile advanced. Had the urgent representations of Cethegus borne fruit and had Lentulus, who after Catilina's departure was placed at the head of the conspirators, resolved on rapidly striking a blow, the conspiracy might even now have been successful. But the conspirators were just as incapable and as cowardly as their opponents; weeks elapsed and the matter came to no decisive issue.

Conviction and Arrest of the Conspirators in the Capital

At length the countermine brought about a decision. Lentulus in his tedious fashion, which sought to cover negligence in regard to what was immediate and necessary by the projection of large and distant plans, had entered into relations with the deputies of a Celtic canton, the Allobroges, now present in Rome; had attempted to implicate these—the representatives of a thoroughly disorganized commonwealth and themselves deeply involved in debt—in the conspiracy; and had given them on their departure messages and letters to his confidants. The Allobroges left Rome, but were arrested in the night between 2nd and 3rd Dec. close to the gates by the Roman authorities, and their papers were taken from them. It was obvious that the Allobrogian deputies had lent themselves as spies to the Roman government, and had carried on the negotiations only with a view to convey

into the hands of the latter the desired proofs implicating the ringleaders of the conspiracy. On the following morning orders were issued with the utmost secrecy by Cicero for the arrest of the most dangerous leaders of the plot, and executed in regard to Lentulus, Cethegus, Gabinius, and Statilius, while some others escaped from seizure by flight. The guilt of those arrested as well as of the fugitives was completely evident. Immediately after the arrest the letters seized, the seals and handwriting of which the prisoners could not avoid acknowledging, were laid before the senate, and the captives and witnesses were heard; further confirmatory facts, deposits of arms in the houses of the conspirators, threatening expressions which they had employed, were presently forthcoming; the actual subsistence of the conspiracy was fully and validly established, and the most important documents were immediately on the suggestion of Cicero published as news-sheets.

The indignation against the anarchist conspiracy was general. Gladly would the oligarchic party have made use of the revelations to settle accounts with the democracy generally and Caesar in particular, but it was far too thoroughly broken to be able to accomplish this, and to prepare for him the fate which it had formerly prepared for the two Gracchi and Saturninus; in this respect the matter went no farther than good will. The multitude of the capital was especially shocked by the incendiary schemes of the conspirators. The merchants and the whole party of material interests naturally perceived in this war of the debtors against the creditors a struggle for their very existence; in tumultuous excitement their youth crowded, with swords in their hands, round the senate-house and brandished them against the open and secret partisans of Catilina. In fact, the conspiracy was for the moment paralyzed; though its ultimate authors perhaps were still at liberty, the whole staff entrusted with its execution were either captured or had fled; the band assembled at Faesulae could not possibly accomplish much, unless supported by an insurrection in the capital.

Discussions in the Senate as to the Execution of Those Arrested

In a tolerably well-ordered commonwealth the matter would now have been politically at an end, and the military and the tribunals would have undertaken the rest. But in Rome matters had come to such a pitch, that the government was not even in a position to keep a couple of noblemen of note in safe custody. The slaves and freedmen of Lentulus and of the others arrested were stirring; plans, it was alleged, were contrived to liberate them by force from the private houses in which they were detained; there was no lack— thanks to the anarchist doings of recent years—of ringleaders in Rome who contracted at a certain rate for riots and deeds of violence; Catilina, in fine, was informed of what had occurred, and was near enough to attempt a coup de main with his bands. How much of these rumours was true, we cannot tell; but there was ground for apprehension, because, agreeably to the constitution, neither troops nor even a respectable police force were at the command of the government in the capital, and it was in reality left at the mercy of every gang of banditti. The idea was suggested of precluding all possible attempts at liberation by the immediate execution of the prisoners. Constitutionally, this was not possible. According to the ancient and sacred right of appeal, a sentence of death could only be pronounced against the Roman burgess by the whole body of burgesses, and not by any other authority; and, as the courts formed by the body of burgesses had themselves become antiquated, a capital sentence was no longer pronounced at all. Cicero would gladly have rejected the hazardous suggestion; indifferent as in itself the legal question might be to the advocate, he knew well how very useful it is to an advocate to be called liberal, and he showed little desire to separate himself for ever from the democratic party by shedding this blood. But those around him, and particularly his genteel wife, urged him to crown his services to his country by this bold step; the consul like all cowards anxiously endeavouring to avoid the appearance of cowardice, and yet trembling before the formidable

responsibility, in his distress convoked the senate, and left it to that body to decide as to the life or death of the four prisoners. This indeed had no meaning; for as the senate was constitutionally even less entitled to act than the consul, all the responsibility still devolved rightfully on the latter: but when was cowardice ever consistent? Caesar made every exertion to save the prisoners, and his speech, full of covert threats as to the future inevitable vengeance of the democracy, made the deepest impression. Although all the consulars and the great majority of the senate had already declared for the execution, most of them, with Cicero at their head, seemed now once more inclined to keep within the limits of the law. But when Cato in pettifogging fashion brought the champions of the milder view into suspicion of being accomplices of the plot, and pointed to the preparations for liberating the prisoners by a street-riot, he succeeded in throwing the waverers into a fresh alarm, and in securing a majority for the immediate execution of the transgressors.

Execution of the Catalinarians

The execution of the decree naturally devolved on the consul, who had called it forth. Late on the evening of the 5th of December the prisoners were brought from their previous quarters, and conducted across the market-place still densely crowded by men to the prison in which criminals condemned to death were wont to be kept. It was a subterranean vault, twelve feet deep, at the foot of the Capitol, which formerly had served as a well-house. The consul himself conducted Lentulus, and praetors the others, all attended by strong guards; but the attempt at rescue, which had been expected, did not take place. No one knew whether the prisoners were being conveyed to a secure place of custody or to the scene of execution. At the door of the prison they were handed over to the -tresviri- who conducted the executions, and were strangled in the subterranean vault by torchlight. The consul had waited before the door till the executions were accomplished,

and then with his loud well-known voice proclaimed over the Forum to the multitude waiting in silence, "They are dead." Till far on in the night the crowds moved through the streets and exultingly saluted the consul, to whom they believed that they owed the security of their houses and their property. The senate ordered public festivals of gratitude, and the first men of the nobility, Marcus Cato and Quintus Catulus, saluted the author of the sentence of death with the name—now heard for the first time—of a "father of his fatherland."

But it was a dreadful deed, and all the more dreadful that it appeared to a whole people great and praiseworthy. Never perhaps has a commonwealth more lamentably declared itself bankrupt, than did Rome through this resolution—adopted in cold blood by the majority of the government and approved by public opinion—to put to death in all haste a few political prisoners, who were no doubt culpable according to the laws, but had not forfeited life; because, forsooth, the security of the prisons was not to be trusted, and there was no sufficient police. It was the humorous trait seldom wanting to a historical tragedy, that this act of the most brutal tyranny had to be carried out by the most unstable and timid of all Roman statesmen, and that the "first democratic consul" was selected to destroy the palladium of the ancient freedom of the Roman commonwealth, the right of *provocatio*.

Suppression of the Etruscan Insurrection

After the conspiracy had been thus stifled in the capital even before it came to an outbreak, there remained the task of putting an end to the insurrection in Etruria. The army amounting to about 2000 men, which Catilina found on his arrival, had increased nearly fivefold by the numerous recruits who flocked in, and already formed two tolerably full legions, in which however only about a fourth part of the men were sufficiently armed.

Catilina had thrown himself with his force into the mountains and avoided a battle with the troops of Antonius, with the view of completing the organization of his bands and awaiting the outbreak of the insurrection in Rome. But the news of its failure broke up the army of the insurgents; the mass of the less compromised thereupon returned home. The remnant of resolute, or rather desperate, men that were left made an attempt to cut their way through the Apennine passes into Gaul; but when the little band arrived at the foot of the mountains near Pistoria (Pistoja), it found itself here caught between two armies. In front of it was the corps of Quintus Metellus, which had come up from Ravenna and Ariminum to occupy the northern slope of the Apennines; behind it was the army of Antonius, who had at length yielded to the urgency of his officers and agreed to a winter campaign. Catilina was wedged in on both sides, and his supplies came to an end; nothing was left but to throw himself on the nearest foe, which was Antonius. In a narrow valley enclosed by rocky mountains the conflict took place between the insurgents and the troops of Antonius, which the latter, in order not to be under the necessity of at least personally performing execution on his former allies, had under a pretext entrusted for this day to a brave officer who had grown gray under arms, Marcus Petreius. The superior strength of the government army was of little account, owing to the nature of the field of battle. Both Catilina and Petreius placed their most trusty men in the foremost ranks; quarter was neither given nor received. The conflict lasted long, and many brave men fell on both sides; Catilina, who before the beginning of the battle had sent back his horse and those of all his officers, showed on this day that nature had destined him for no ordinary things, and that he knew at once how to command as a general and how to fight as a soldier. At length Petreius with his guard broke the centre of the enemy, and, after having overthrown this, attacked the two wings from within. This decided the victory. The corpses of the Catilinarians—there were counted 3000 of them—covered, as it were in rank and file, the

ground where they had fought; the officers and the general himself had, when all was lost, thrown themselves headlong on the enemy and thus sought and found death (beginning of 692). Antonius was on account of this victory stamped by the senate with the title of Imperator, and new thanksgiving-festivals showed that the government and the governed were beginning to become accustomed to civil war.

Attitude of Crassus and Caesar toward the Anarchists

The anarchist plot had thus been suppressed in the capital as in Italy with bloody violence; people were still reminded of it merely by the criminal processes which in the Etruscan country towns and in the capital thinned the ranks of those affiliated to the beaten party, and by the large accessions to the robber-bands of Italy— one of which, for instance, formed out of the remains of the armies of Spartacus and Catilina, was destroyed by a military force in 694 in the territory of Thurii. But it is important to keep in view that the blow fell by no means merely on the anarchists proper, who had conspired to set the capital on fire and had fought at Pistoria, but on the whole democratic party. That this party, and in particular Crassus and Caesar, had a hand in the game on the present occasion as well as in the plot of 688, may be regarded—not in a juristic, but in a historical, point of view — as an ascertained fact. The circumstance, indeed, that Catulus and the other heads of the senatorial party accused the leader of the democrats of complicity in the anarchist plot, and that the latter as senator spoke and voted against the brutal judicial murder contemplated by the oligarchy, could only be urged by partisan sophistry as any valid proof of his participation in the plans of Catilina. But a series of other facts is of more weight. According to express and irrefragable testimonies it was especially Crassus and Caesar that supported the candidature of Catilina for the consulship. When Caesar in 690 brought the executioners of Sulla before the commission for murder⁽²⁰⁾ he allowed the rest to be condemned, but

the most guilty and infamous of all, Catilina, to be acquitted. In the revelations of the 3rd of December, it is true, Cicero did not include among the names of the conspirators of whom he had information those of the two influential men; but it is notorious that the informers denounced not merely those against whom subsequently investigation was directed, but "many innocent" persons besides, whom the consul Cicero thought proper to erase from the list; and in later years, when he had no reason to disguise the truth, he expressly named Caesar among the accomplices. An indirect but very intelligible inculpation is implied also in the circumstance, that of the four persons arrested on the 3rd of December the two least dangerous, Statilius and Gabinius, were handed over to be guarded by the senators Caesar and Crassus; it was manifestly intended that these should either, if they allowed them to escape, be compromised in the view of public opinion as accessories, or, if they really detained them, be compromised in the view of their fellow-conspirators as renegades.

The following scene which occurred in the senate shows significantly how matters stood. Immediately after the arrest of Lentulus and his comrades, a messenger despatched by the conspirators in the capital to Catilina was seized by the agents of the government, and, after having been assured of impunity, was induced to make a comprehensive confession in a full meeting of the senate. But when he came to the critical portions of his confession and in particular named Crassus as having commissioned him, he was interrupted by the senators, and on the suggestion of Cicero it was resolved to cancel the whole statement without farther inquiry, but to imprison its author notwithstanding the amnesty assured to him, until such time as he should have not merely retracted the statement, but should have also confessed who had instigated him to give such false testimony! Here it is abundantly clear, not merely that that man had a very accurate knowledge of the state of matters who, when summoned to make an attack upon Crassus, replied that he had no desire to provoke the bull of the herd, but

also that the majority of the senate with Cicero at their head were agreed in not permitting the revelations to go beyond a certain limit. The public was not so nice; the young men, who had taken up arms to ward off the incendiaries, were exasperated against no one so much as against Caesar, on the 5th of December, when he left the senate, they pointed their swords at his breast and even now he narrowly escaped with his life on the same spot where the fatal blow fell on him seventeen years afterwards; he did not again for a considerable time enter the senate-house. Any one who impartially considers the course of the conspiracy will not be able to resist the suspicion that during all this time Catilina was backed by more powerful men, who—relying on the want of a legally complete chain of evidence and on the lukewarmness and cowardice of the majority of the senate, which was but half-initiated and greedily caught at any pretext for inaction—knew how to hinder any serious interference with the conspiracy on the part of the authorities, to procure free departure for the chief of the insurgents, and even so to manage the declaration of war and the sending of troops against the insurrection that it was almost equivalent to the sending of an auxiliary army. While the course of the events themselves thus testifies that the threads of the Catilinarian plot reached far higher than Lentulus and Catilina, it deserves also to be noticed, that at a much later period, when Caesar had got to the head of the state, he was in the closest alliance with the only Catilinarian still surviving, Publius Sittius the leader of the Mauretanian free bands, and that he modified the law of debt quite in the sense that the proclamations of Manlius demanded.

All these pieces of evidence speak clearly enough; but, even were it not so, the desperate position of the democracy in presence of the military power—which since the Gabinio-Manilian laws assumed by its side an attitude more threatening than ever—renders it almost a certainty that, as usually happens in such cases, it sought a last resource in secret plots and in alliance with anarchy. The circumstances were very similar to those of the

Cinnan times. While in the east Pompeius occupied a position nearly such as Sulla then did, Crassus and Caesar sought to raise over against him a power in Italy like that which Marius and Cinna had possessed, with the view of employing it if possible better than they had done. The way to this result lay once more through terrorism and anarchy, and to pave that way Catilina was certainly the fitting man. Naturally the more reputable leaders of the democracy kept themselves as far as possible in the background, and left to their unclean associates the execution of the unclean work, the political results of which they hoped afterwards to appropriate. Still more naturally, when the enterprise had failed, the partners of higher position applied every effort to conceal their participation in it. And at a later period, when the former conspirator had himself become the target of political plots, the veil was for that very reason drawn only the more closely over those darker years in the life of the great man, and even special apologies for him were written with that very object.(21)

Total Destruction of the Democratic Party

For five years Pompeius stood at the head of his armies and fleets in the east; for five years the democracy at home conspired to overthrow him. The result was discouraging. With unspeakable exertions they had not merely attained nothing, but had suffered morally as well as materially enormous loss. Even the coalition of 683 could not but be for democrats of pure water a scandal, although the democracy at that time only coalesced with two distinguished men of the opposite party and bound these to its programme.

But now the democratic party had made common cause with a band of murderers and bankrupts, who were almost all likewise deserters from the camp of the aristocracy; and had at least for the time being accepted their programme, that is to say, the terrorism of Cinna. The party of material interests, one of the chief elements of the coalition of 683, was thereby

estranged from the democracy, and driven into the arms of the Optimates in the first instance, or of any power at all which would and could give protection against anarchy. Even the multitude of the capital, who, although having no objection to a street-riot, found it inconvenient to have their houses set on fire over their heads, became in some measure alarmed. It is remarkable that in this very year (691) the full re-establishment of the Sempronian corn-largesses took place, and was effected by the senate on the proposal of Cato. The league of the democratic leaders with anarchy had obviously created a breach between the former and the burgesses of the city; and the oligarchy sought, not without at least momentary success, to enlarge this chasm and to draw over the masses to their side. Lastly, Gnaeus Pompeius had been partly warned, partly exasperated, by all these cabals; after all that had occurred, and after the democracy had itself virtually torn asunder the ties which connected it with Pompeius, it could no longer with propriety make the request— which in 684 had had a certain amount of reason on its side— that he should not himself destroy with the sword the democratic power which he had raised, and which had raised him.

Thus the democracy was disgraced and weakened; but above all it had become ridiculous through the merciless exposure of its perplexity and weakness. Where the humiliation of the overthrown government and similar matters of little moment were concerned, it was great and potent; but every one of its attempts to attain a real political success had proved a downright failure. Its relation to Pompeius was as false as pitiful. While it was loading him with panegyrics and demonstrations of homage, it was concocting against him one intrigue after another; and one after another, like soap-bubbles, they burst of themselves. The general of the east and of the seas, far from standing on his defence against them, appeared not even to observe all the busy agitation, and to obtain his victories over the democracy as Herakles gained his over the Pygmies, without being himself aware of it. The attempt to kindle civil war had miserably failed; if the anarchist section

had at least displayed some energy, the pure democracy, while knowing doubtless how to hire conspirators, had not known how to lead them or to save them or to die with them. Even the old languid oligarchy, strengthened by the masses passing over to it from the ranks of the democracy and above all by the—in this affair unmistakeable—identity of its interests and those of Pompeius, had been enabled to suppress this attempt at revolution and thereby to achieve yet a last victory over the democracy. Meanwhile king Mithradates was dead, Asia Minor and Syria were regulated, and the return of Pompeius to Italy might be every moment expected. The decision was not far off; but was there in fact still room to speak of a decision between the general who returned more famous and mightier than ever, and the democracy humbled beyond parallel and utterly powerless? Crassus prepared to embark his family and his gold and to seek an asylum somewhere in the east; and even so elastic and so energetic a nature as that of Caesar seemed on the point of giving up the game as lost. In this year (691) occurred his candidature for the place of -pontifex maximus-;(22) when he left his dwelling on the morning of the election, he declared that, if he should fail in this also, he would never again cross the threshold of his house.

CHAPTER VI

Retirement of Pompeius and Coalition of the Pretenders

Pompeius in the East

When Pompeius, after having transacted the affairs committed to his charge, again turned his eyes homeward, he found for the second time the diadem at his feet. For long the development of the Roman commonwealth had been tending towards such a catastrophe; it was evident to every unbiassed observer, and had been remarked a thousand times, that, if the rule of the aristocracy should be brought to an end, monarchy was inevitable. The senate had now been overthrown at once by the civic liberal opposition and by the power of the soldiery; the only question remaining was to settle the persons, names, and forms for the new order of things; and these were already clearly enough indicated in the partly democratic, partly military elements of the revolution. The events of the last five years had set, as it were, the final seal on this impending transformation of the commonwealth. In the newly-erected Asiatic provinces, which gave regal honours to their organizer as the successor of Alexander the Great, and already received his favoured freedmen like princes, Pompeius had laid the foundations of his dominion, and found at once the treasures, the army, and the halo of glory which the future prince of the Roman state required. The anarchist conspiracy, moreover, in the capital, and the civil war connected with it, had made it palpably clear to every one who studied political or

even merely material interests, that a government without authority and without military power, such as that of the senate, exposed the state to the equally ludicrous and formidable tyranny of political sharpers, and that a change of constitution, which should connect the military power more closely with the government, was an indispensable necessity if social order was to be maintained. So the ruler had arisen in the east, the throne had been erected in Italy; to all appearance the year 692 was the last of the republic, the first of monarchy.

The Opponents of the Future Monarchy

This goal, it is true, was not to be reached without a struggle. The constitution, which had endured for five hundred years, and under which the insignificant town on the Tiber had risen to unprecedented greatness and glory, had sunk its roots into the soil to a depth beyond human ken, and no one could at all calculate to what extent the attempt to overthrow it would penetrate and convulse civil society. Several rivals had been outrun by Pompeius in the race towards the great goal, but had not been wholly set aside. It was not at all beyond reach of calculation that all these elements might combine to overthrow the new holder of power, and that Pompeius might find Quintus Catulus and Marcus Cato united in opposition to him with Marcus Crassus, Gaius Caesar, and Titus Labienus. But the inevitable and undoubtedly serious struggle could not well be undertaken under circumstances more favourable. It was in a high degree probable that, under the fresh impression of the Catilinarian revolt, a rule which promised order and security, although at the price of freedom, would receive the submission of the whole middle party—embracing especially the merchants who concerned themselves only about their material interests, but including also a great part of the aristocracy, which, disorganized in itself and politically hopeless, had to rest content with securing for itself riches, rank, and influence by a timely compromise with the prince; perhaps even a portion

of the democracy, so sorely smitten by the recent blows, might submit to hope for the realization of a portion of its demands from a military chief raised to power by itself. But, whatever might be the position of party-relations, of what importance, in the first instance at least, were the parties in Italy at all in presence of Pompeius and his victorious army? Twenty years previously Sulla, after having concluded a temporary peace with Mithradates, had with his five legions been able to carry a restoration running counter to the natural development of things in the face of the whole liberal party, which had been arming en masse for years, from the moderate aristocrats and the liberal mercantile class down to the anarchists. The task of Pompeius was far less difficult. He returned, after having fully and conscientiously performed his different functions by sea and land. He might expect to encounter no other serious opposition save that of the various extreme parties, each of which by itself could do nothing, and which even when leagued together were no more than a coalition of factions still vehemently hostile to each other and inwardly at thorough variance. Completely unarmed, they were without a military force and without a head, without organization in Italy, without support in the provinces, above all, without a general; there was in their ranks hardly a soldier of note—to say nothing of an officer—who could have ventured to call forth the burgesses to a conflict with Pompeius. The circumstance might further be taken into account, that the volcano of revolution, which had been now incessantly blazing for seventy years and feeding on its own flame, was visibly burning out and verging of itself to extinction. It was very doubtful whether the attempt to arm the Italians for party interests would now succeed, as it had succeeded with Cinna and Carbo. If Pompeius exerted himself, how could he fail to effect a revolution of the state, which was chalked out by a certain necessity of nature in the organic development of the Roman commonwealth?

Mission of Nepos to Rome

Pompeius had seized the right moment, when he undertook his mission to the east; he seemed desirous to go forward. In the autumn of 691, Quintus Metellus Nepos arrived from the camp of Pompeius in the capital, and came forward as a candidate for the tribuneship, with the express design of employing that position to procure for Pompeius the consulship for the year 693 and more immediately, by special decree of the people, the conduct of the war against Catilina. The excitement in Rome was great. It was not to be doubted that Nepos was acting under the direct or indirect commission of Pompeius; the desire of Pompeius to appear in Italy as general at the head of his Asiatic legions, and to administer simultaneously the supreme military and the supreme civil power there, was conceived to be a farther step on the way to the throne, and the mission of Nepos a semi-official proclamation of the monarchy.

Pompeius in Relation to the Parties

Everything turned on the attitude which the two great political parties should assume towards these overtures; their future position and the future of the nation depended on this. But the reception which Nepos met with was itself in its turn determined by the then existing relation of the parties to Pompeius, which was of a very peculiar kind. Pompeius had gone to the east as general of the democracy. He had reason enough to be discontented with Caesar and his adherents, but no open rupture had taken place. It is probable that Pompeius, who was at a great distance and occupied with other things, and who besides was wholly destitute of the gift of calculating his political bearings, by no means saw through, at least at that time, the extent and mutual connection of the democratic intrigues contrived against him; perhaps even in his haughty and shortsighted manner he had a certain pride in ignoring these underground proceedings. Then there came the fact, which with a character of the type of Pompeius had much weight, that the democracy never lost sight of outward respect for the great man, and even

now (691) unsolicited (as he preferred it so) had granted to him by a special decree of the people unprecedented honours and decorations.(1) But, even if all this had not been the case, it lay in Pompeius' own well-understood interest to continue his adherence, at least outwardly, to the popular party; democracy and monarchy stand so closely related that Pompeius, in aspiring to the crown, could scarcely do otherwise than call himself, as hitherto, the champion of popular rights. While personal and political reasons, therefore, co-operated to keep Pompeius and the leaders of the democracy, despite of all that had taken place, in their previous connection, nothing was done on the opposite side to fill up the chasm which separated him since his desertion to the camp of the democracy from his Sullan partisans. His personal quarrel with Metellus and Lucullus transferred itself to their extensive and influential coteries. A paltry opposition of the senate — but, to a character of so paltry a mould, all the more exasperating by reason of its very paltriness—had attended him through his whole career as a general. He felt it keenly, that the senate had not taken the smallest step to honour the extraordinary man according to his desert, that is, by extraordinary means. Lastly, it is not to be forgotten, that the aristocracy was just then intoxicated by its recent victory and the democracy deeply humbled, and that the aristocracy was led by the pedantically stiff and half-witless Cato, and the democracy by the supple master of intrigue, Caesar.

Rupture between Pompeius and the Aristocracy

Such was the state of parties amidst which the emissary sent by Pompeius appeared. The aristocracy not only regarded the proposals which he announced in favour of Pompeius as a declaration of war against the existing constitution, but treated them openly as such, and took not the slightest pains to conceal their alarm and their indignation. With the express design of combating these proposals, Marcus Cato had himself elected as tribune of the people along with Nepos, and abruptly repelled the repeated

attempts of Pompeius to approach him personally. Nepos naturally after this found himself under no inducement to spare the aristocracy, but attached himself the more readily to the democrats, when these, pliant as ever, submitted to what was inevitable and chose freely to concede the office of general in Italy as well as the consulate rather than let the concession be wrung from them by force of arms. The cordial understanding soon showed itself. Nepos publicly accepted (Dec. 691) the democratic view of the executions recently decreed by the majority of the senate, as unconstitutional judicial murders; and that his lord and master looked on them in no other light, was shown by his significant silence respecting the voluminous vindication of them which Cicero had sent to him. On the other hand, the first act with which Caesar began his praetorship was to call Quintus Catulus to account for the moneys alleged to have been embezzled by him at the rebuilding of the Capitoline temple, and to transfer the completion of the temple to Pompeius. This was a masterstroke. Catulus had already been building at the temple for fifteen years, and seemed very much disposed to die as he had lived superintendent of the Capitoline buildings; an attack on this abuse of a public commission—an abuse covered only by the reputation of the noble commissioner—was in reality entirely justified and in a high degree popular. But when the prospect was simultaneously opened up to Pompeius of being allowed to delete the name of Catulus and engrave his own on this proudest spot of the first city of the globe, there was offered to him the very thing which most of all delighted him and did no harm to the democracy—abundant but empty honour; while at the same time the aristocracy, which could not possibly allow its best man to fall, was brought into the most disagreeable collision with Pompeius.

Meanwhile Nepos had brought his proposals concerning Pompeius before the burgesses. On the day of voting Cato and his friend and colleague, Quintus Minucius, interposed their veto. When Nepos did not

regard this and continued the reading out, a formal conflict took place; Cato and Minucius threw themselves on their colleague and forced him to stop; an armed band liberated him, and drove the aristocratic section from the Forum; but Cato and Minucius returned, now supported likewise by armed bands, and ultimately maintained the field of battle for the government. Encouraged by this victory of their bands over those of their antagonist, the senate suspended the tribune Nepos as well as the praetor Caesar, who had vigorously supported him in the bringing in of the law, from their offices; their deposition, which was proposed in the senate, was prevented by Cato, more, doubtless, because it was unconstitutional than because it was injudicious. Caesar did not regard the decree, and continued his official functions till the senate used violence against him. As soon as this was known, the multitude appeared before his house and placed itself at his disposal; it was to depend solely on him whether the struggle in the streets should begin, or whether at least the proposals made by Metellus should now be resumed and the military command in Italy desired by Pompeius should be procured for him; but this was not in Caesar's interest, and so he induced the crowds to disperse, whereupon the senate recalled the penalty decreed against him. Nepos himself had, immediately after his suspension, left the city and embarked for Asia, in order to report to Pompeius the result of his mission.

Retirement of Pompeius

Pompeius had every reason to be content with the turn which things had taken. The way to the throne now lay necessarily through civil war; and he owed it to Cato's incorrigible perversity that he could begin this war with good reason. After the illegal condemnation of the adherents of Catilina, after the unparalleled acts of violence against the tribune of the people Metellus, Pompeius might wage war at once as defender of the two palladia of Roman public freedom— the right of appeal and the inviolability of the

tribunate of the people—against the aristocracy, and as champion of the party of order against the Catilinarian band. It seemed almost impossible that Pompeius should neglect this opportunity and with his eyes open put himself a second time into the painful position, in which the dismissal of his army in 684 had placed him, and from which only the Gabinian law had released him. But near as seemed the opportunity of placing the white chaplet around his brow, and much as his own soul longed after it, when the question of action presented itself, his heart and his hand once more failed him. This man, altogether ordinary in every respect excepting only his pretensions, would doubtless gladly have placed himself beyond the law, if only he could have done so without forsaking legal ground. His very lingering in Asia betrayed a misgiving of this sort. He might, had he wished, have very well arrived in January 692 with his fleet and army at the port of Brundisium, and have received Nepos there. His tarrying the whole winter of 691-692 in Asia had proximately the injurious consequence, that the aristocracy, which of course accelerated the campaign against Catilina as it best could, had meanwhile got rid of his bands, and had thus set aside the most feasible pretext for keeping together the Asiatic legions in Italy. For a man of the type of Pompeius, who for want of faith in himself and in his star timidly clung in public life to formal right, and with whom the pretext was nearly of as much importance as the motive, this circumstance was of serious weight. He probably said to himself, moreover, that, even if he dismissed his army, he did not let it wholly out of his hand, and could in case of need still raise a force ready for battle sooner at any rate than any other party-chief; that the democracy was waiting in submissive attitude for his signal, and that he could deal with the refractory senate even without soldiers; and such further considerations as suggested themselves, in which there was exactly enough of truth to make them appear plausible to one who wished to deceive himself. Once more the very peculiar temperament of Pompeius naturally turned the scale. He was one of those men who are

capable it may be of a crime, but not of insubordination; in a good as in a bad sense, he was thoroughly a soldier. Men of mark respect the law as a moral necessity, ordinary men as a traditional everyday rule; for this very reason military discipline, in which more than anywhere else law takes the form of habit, fetters every man not entirely self-reliant as with a magic spell. It has often been observed that the soldier, even where he has determined to refuse obedience to those set over him, involuntarily when that obedience is demanded resumes his place in the ranks. It was this feeling that made Lafayette and Dumouriez hesitate at the last moment before the breach of faith and break down; and to this too Pompeius succumbed.

In the autumn of 692 Pompeius embarked for Italy. While in the capital all was being prepared for receiving the new monarch, news came that Pompeius, when barely landed at Brundisium, had broken up his legions and with a small escort had entered on his journey to the capital. If it is a piece of good fortune to gain a crown without trouble, fortune never did more for mortal than it did for Pompeius; but on those who lack courage the gods lavish every favour and every gift in vain.

Pompeius without Influence

The parties breathed freely. For the second time Pompeius had abdicated; his already-vanquished competitors might once more begin the race—in which doubtless the strangest thing was, that Pompeius was again a rival runner. In January 693 he came to Rome. His position was an awkward one and vacillated with so much uncertainty between the parties, that people gave him the nickname of Gnaeus Cicero. He had in fact lost favour with all. The anarchists saw in him an adversary, the democrats an inconvenient friend, Marcus Crassus a rival, the wealthy class an untrustworthy protector, the aristocracy a declared foe.⁽²⁾ He was still indeed the most powerful man

in the state; his military adherents scattered through all Italy, his influence in the provinces, particularly those of the east, his military fame, his enormous riches gave him a weight such as no other possessed; but instead of the enthusiastic reception on which he had counted, the reception which he met with was more than cool, and still cooler was the treatment given to the demands which he presented. He requested for himself, as he had already caused to be announced by Nepos, a second consulship; demanding also, of course, a confirmation of the arrangements made by him in the east and a fulfilment of the promise which he had given to his soldiers to furnish them with lands. Against these demands a systematic opposition arose in the senate, the chief elements of which were furnished by the personal exasperation of Lucullus and Metellus Creticus, the old resentment of Crassus, and the conscientious folly of Cato. The desired second consulship was at once and bluntly refused. The very first request which the returning general addressed to the senate, that the election of the consuls for 693 might be put off till after his entry into the capital, had been rejected; much less was there any likelihood of obtaining from the senate the necessary dispensation from the law of Sulla as to re-election.(3) As to the arrangements which he had made in the eastern provinces, Pompeius naturally asked their confirmation as a whole; Lucullus carried a proposal that every ordinance should be separately discussed and voted upon, which opened the door for endless annoyances and a multitude of defeats in detail. The promise of a grant of land to the soldiers of the Asiatic army was ratified indeed in general by the senate, but was at the same time extended to the Cretan legions of Metellus; and—what was worse—it was not executed, because the public chest was empty and the senate was not disposed to meddle with the domains for this purpose. Pompeius, in despair of mastering the persistent and spiteful opposition of the senate, turned to the burgesses. But he understood still less how to conduct his movements on this field. The democratic leaders, although they did not openly oppose

him, had no cause at all to make his interests their own, and so kept aloof. Pompeius' own instruments—such as the consuls elected by his influence and partly by his money, Marcus Pupius Piso for 693 and Lucius Afranius for 694—showed themselves unskilful and useless. When at length the assignation of land for the veterans of Pompeius was submitted to the burgesses by the tribune of the people Lucius Flavius in the form of a general agrarian law, the proposal, not supported by the democrats, openly combated by the aristocrats, was left in a minority (beg. of 694). The exalted general now sued almost humbly for the favour of the masses, for it was on his instigation that the Italian tolls were abolished by a law introduced by the praetor Metellus Nepos (694). But he played the demagogue without skill and without success; his reputation suffered from it, and he did not obtain what he desired. He had completely run himself into a noose. One of his opponents summed up his political position at that time by saying that he had endeavoured "to conserve by silence his embroidered triumphal mantle." In fact nothing was left for him but to fret.

Rise of Caesar

Then a new combination offered itself. The leader of the democratic party had actively employed in his own interest the political calm which had immediately followed on the retirement of the previous holder of power. When Pompeius returned from Asia, Caesar had been little more than what Catilina was—the chief of a political party which had dwindled almost into a club of conspirators, and a bankrupt. But since that event he had, after administering the praetorship (692), been invested with the governorship of Further Spain, and thereby had found means partly to rid himself of his debts, partly to lay the foundation for his military repute. His old friend and ally Crassus had been induced by the hope of finding the support against Pompeius, which he had lost in Piso,(4) once more in Caesar, to relieve him even before his departure to the province from the

most oppressive portion of his load of debt. He himself had energetically employed his brief sojourn there. Returning from Spain in the year 694 with filled chests and as Imperator with well-founded claims to a triumph, he came forward for the following year as a candidate for the consulship; for the sake of which, as the senate refused him permission to announce himself as a candidate for the consular election in absence, he without hesitation abandoned the honour of the triumph. For years the democracy had striven to raise one of its partisans to the possession of the supreme magistracy, that by way of this bridge it might attain a military power of its own. It had long been clear to discerning men of all shades that the strife of parties could not be settled by civil conflict, but only by military power; but the course of the coalition between the democracy and the powerful military chiefs, through which the rule of the senate had been terminated, showed with inexorable clearness that every such alliance ultimately issued in a subordination of the civil under the military elements, and that the popular party, if it would really rule, must not ally itself with generals properly foreign and even hostile to it, but must make generals of its own leaders themselves. The attempts made with this view to carry the election of Catilina as consul, and to gain a military support in Spain or Egypt, had failed; now a possibility presented itself of procuring for their most important man the consulship and the consular province in the usual constitutional way, and of rendering themselves independent of their dubious and dangerous ally Pompeius by the establishment, if we may so speak, of a home power in their own democratic household.

Second Coalition of Pompeius, Crassus, and Caesar

But the more the democracy could not but desire to open up for itself this path, which offered not so much the most favourable as the only prospect of real successes, the more certainly it might reckon on the resolute resistance of its political opponents. Everything depended on whom it found opposed

to it in this matter. The aristocracy isolated was not formidable; but it had just been rendered evident in the Catilinarian affair that it could certainly still exert some influence, where it was more or less openly supported by the men of material interests and by the adherents of Pompeius. It had several times frustrated Catilina's candidature for the consulship, and that it would attempt the like against Caesar was sufficiently certain. But, even though Caesar should perhaps be chosen in spite of it, his election alone did not suffice. He needed at least some years of undisturbed working out of Italy, in order to gain a firm military position; and the nobility assuredly would leave no means untried to thwart his plans during this time of preparation. The idea naturally occurred, whether the aristocracy might not be again successfully isolated as in 683-684, and an alliance firmly based on mutual advantage might not be established between the democrats with their ally Crassus on the one side and Pompeius and the great capitalists on the other. For Pompeius such a coalition was certainly a political suicide. His weight hitherto in the state rested on the fact, that he was the only party-leader who at the same time disposed of legions— which, though now dissolved, were still in a certain sense at his disposal. The plan of the democracy was directed to the very object of depriving him of this preponderance, and of placing by his side in their own chief a military rival. Never could he consent to this, and least of all personally help to a post of supreme command a man like Caesar, who already as a mere political agitator had given him trouble enough and had just furnished the most brilliant proofs also of military capacity in Spain. But on the other hand, in consequence of the cavilling opposition of the senate and the indifference of the multitude to Pompeius and Pompeius' wishes, his position, particularly with reference to his old soldiers, had become so painful and so humiliating, that people might well expect from his character to gain him for such a coalition at the price of releasing him from that disagreeable situation. And as to the so-called equestrian party, it was to be found on

whatever side the power lay; and as a matter of course it would not let itself be long waited for, if it saw Pompeius and the democracy combining anew in earnest. It happened moreover, that on account of Cato's severity—otherwise very laudable—towards the lessees of the taxes, the great capitalists were just at this time once more at vehement variance with the senate.

Change in the Position of Caesar

So the second coalition was concluded in the summer of 694. Caesar was assured of the consulship for the following year and a governorship in due course; to Pompeius was promised the ratification of his arrangements made in the east, and an assignation of lands for the soldiers of the Asiatic army; to the equites Caesar likewise promised to procure for them by means of the burgesses what the senate had refused; Crassus in fine—the inevitable—was allowed at least to join the league, although without obtaining definite promises for an accession which he could not refuse. It was exactly the same elements, and indeed the same persons, who concluded the league with one another in the autumn of 683 and in the summer of 694; but how entirely different was the position of the parties then and now! Then the democracy was nothing but a political party, while its allies were victorious generals at the head of their armies; now the leader of the democracy was himself an Emperor crowned with victory and full of magnificent military schemes, while his allies were retired generals without any army. Then the democracy conquered in questions of principle, and in return for that victory conceded the highest offices of state to its two confederates; now it had become more practical and grasped the supreme civil and military power for itself, while concessions were made to its allies only in subordinate points and, significantly enough, not even the old demand of Pompeius for a second consulship was attended to. Then the democracy sacrificed itself to its allies; now these had to entrust themselves

to it. All the circumstances were completely changed, most of all, however, the character of the democracy itself. No doubt it had, ever since it existed at all, contained at its very core a monarchic element; but the ideal of a constitution, which floated in more or less clear outline before its best intellects, was always that of a civil commonwealth, a Periclean organization of the state, in which the power of the prince rested on the fact that he represented the burgesses in the noblest and most accomplished manner, and the most accomplished and noblest part of the burgesses recognized him as the man in whom they thoroughly confided. Caesar too set out with such views; but they were simply ideals, which might have some influence on realities, but could not be directly realized. Neither the simple civil power, as Gaius Gracchus possessed it, nor the arming of the democratic party, such as Cinna though in a very inadequate fashion had attempted, was able to maintain a permanent superiority in the Roman commonwealth; the military machine fighting not for a party but for a general, the rude force of the condottieri—after having first appeared on the stage in the service of the restoration—soon showed itself absolutely superior to all political parties. Caesar could not but acquire a conviction of this amidst the practical workings of party, and accordingly he matured the momentous resolution of making this military machine itself serviceable to his ideals, and of erecting such a commonwealth, as he had in his view, by the power of condottieri. With this design he concluded in 683 the league with the generals of the opposite party, which, notwithstanding that they had accepted the democratic programme, yet brought the democracy and Caesar himself to the brink of destruction. With the same design he himself came forward eleven years afterwards as a condottiere. It was done in both cases with a certain naivete—with good faith in the possibility of his being able to found a free commonwealth, if not by the swords of others, at any rate by his own. We perceive without difficulty that this faith was fallacious, and that no one takes an evil spirit into his service without

becoming himself enslaved to it; but the greatest men are not those who err the least. If we still after so many centuries bow in reverence before what Caesar willed and did, it is not because he desired and gained a crown (to do which is, abstractly, as little of a great thing as the crown itself) but because his mighty ideal—of a free commonwealth under one ruler—never forsook him, and preserved him even when monarch from sinking into vulgar royalty.

Caesar Consul

The election of Caesar as consul for 695 was carried without difficulty by the united parties. The aristocracy had to rest content with giving to him—by means of a bribery, for which the whole order of lords contributed the funds, and which excited surprise even in that period of deepest corruption—a colleague in the person of Marcus Bibulus, whose narrow-minded obstinacy was regarded in their circles as conservative energy, and whose good intentions at least were not at fault if the genteel lords did not get a fit return for their patriotic expenditure.

Caesar's Agrarian Law

As consul Caesar first submitted to discussion the requests of his confederates, among which the assignation of land to the veterans of the Asiatic army was by far the most important. The agrarian law projected for this purpose by Caesar adhered in general to the principles set forth in the project of law, which was introduced in the previous year at the suggestion of Pompeius but not carried.⁽⁵⁾ There was destined for distribution only the Italian domain-land, that is to say, substantially, the territory of Capua, and, if this should not suffice, other Italian estates were to be purchased out of the revenue of the new eastern provinces at the taxable value recorded in the censorial rolls; all existing rights of property and heritable possession thus remained unaffected. The individual allotments were small. The

receivers of land were to be poor burgesses, fathers of at least three children; the dangerous principle, that the rendering of military service gave a claim to landed estate, was not laid down, but, as was reasonable and had been done at all times, the old soldiers as well as the temporary lessees to be ejected were simply recommended to the special consideration of the land-distributors. The execution of the measure was entrusted to a commission of twenty men, into which Caesar distinctly declared that he did not wish to be himself elected.

Opposition of the Aristocracy

The opposition had a difficult task in resisting this proposal. It could not rationally be denied, that the state-finances ought after the erection of the provinces of Pontus and Syria to be in a position to dispense with the moneys from the Campanian leases; that it was unwarrantable to withhold one of the finest districts of Italy, and one peculiarly fitted for small holdings, from private enterprise; and, lastly, that it was as unjust as it was ridiculous, after the extension of the franchise to all Italy, still to withhold municipal rights from the township of Capua. The whole proposal bore the stamp of moderation, honesty, and solidity, with which a democratic party-character was very dexterously combined; for in substance it amounted to the re-establishment of the Capuan colony founded in the time of Marius and again done away by Sulla.(6) In form too Caesar observed all possible consideration. He laid the project of the agrarian law, as well as the proposal to ratify collectively the ordinances issued by Pompeius in the east, and the petition of the farmers of the taxes for remission of a third of the sums payable by them, in the first instance before the senate for approval, and declared himself ready to entertain and discuss proposals for alterations. The corporation had now opportunity of convincing itself how foolishly it had acted in driving Pompeius and the equites into the arms of the adversary by refusing these requests. Perhaps it was the secret sense of

this, that drove the high-born lords to the most vehement opposition, which contrasted ill with the calm demeanour of Caesar. The agrarian law was rejected by them nakedly and even without discussion. The decree as to the arrangements of Pompeius in Asia found quite as little favour in their eyes. Cato attempted, in accordance with the disreputable custom of Roman parliamentary debate, to kill the proposal regarding the farmers of the taxes by speaking, that is, to prolong his speech up to the legal hour for closing the sitting; when Caesar threatened to have the stubborn man arrested, this proposal too was at length rejected.

Proposals before the Burgesses

Of course all the proposals were now brought before the burgesses. Without deviating far from the truth, Caesar could tell the multitude that the senate had scornfully rejected most rational and most necessary proposals submitted to it in the most respectful form, simply because they came from the democratic consul. When he added that the aristocrats had contrived a plot to procure the rejection of the proposals, and summoned the burgesses, and more especially Pompeius himself and his old soldiers, to stand by him against fraud and force, this too was by no means a mere invention. The aristocracy, with the obstinate weak creature Bibulus and the unbending dogmatical fool Cato at their head, in reality intended to push the matter to open violence. Pompeius, instigated by Caesar to proclaim his position with reference to the pending question, declared bluntly, as was not his wont on other occasions, that if any one should venture to draw the sword, he too would grasp his, and in that case would not leave the shield at home; Crassus expressed himself to the same effect. The old soldiers of Pompeius were directed to appear on the day of the vote—which in fact primarily concerned them—in great numbers, and with arms under their dress, at the place of voting.

The nobility however left no means untried to frustrate the proposals of Caesar. On each day when Caesar appeared before the people, his colleague Bibulus instituted the well-known political observations of the weather which interrupted all public business;(7) Caesar did not trouble himself about the skies, but continued to prosecute his terrestrial occupation. The tribunician veto was interposed; Caesar contented himself with disregarding it. Bibulus and Cato sprang to the rostra, harangued the multitude, and instigated the usual riot; Caesar ordered that they should be led away by lictors from the Forum, and took care that otherwise no harm should befall them—it was for his interest that the political comedy should remain such as it was.

The Agrarian Law Carried Passive Resistance of the Aristocracy

Notwithstanding all the chicanery and all the blustering of the nobility, the agrarian law, the confirmation of the Asiatic arrangements, and the remission to the lessees of taxes were adopted by the burgesses; and the commission of twenty was elected with Pompeius and Crassus at its head, and installed in office. With all their exertions the aristocracy had gained nothing, save that their blind and spiteful antagonism had drawn the bonds of the coalition still tighter, and their energy, which they were soon to need for matters more important, had exhausted itself on these affairs that were at bottom indifferent. They congratulated each other on the heroic courage which they had displayed; the declaration of Bibulus that he would rather die than yield, the peroration which Cato still continued to deliver when in the hands of the lictors, were great patriotic feats; otherwise they resigned themselves to their fate. The consul Bibulus shut himself up for the remainder of the year in his house, while he at the same time intimated by public placard that he had the pious intention of watching the signs of the sky on all the days appropriate for public assemblies during that year. His

colleagues once more admired the great man who, as Ennius had said of the old Fabius, "saved the state by wise delay," and they followed his example; most of them, Cato included, no longer appeared in the senate, but within their four walls helped their consul to fret over the fact that the history of the world went on in spite of political astronomy. To the public this passive attitude of the consul as well as of the aristocracy in general appeared, as it fairly might, a political abdication; and the coalition were naturally very well content that they were left to take their farther steps almost undisturbed.

Caesar Governor of the Two Gauls

The most important of these steps was the regulating of the future position of Caesar. Constitutionally it devolved on the senate to fix the functions of the second consular year of office before the election of the consuls took place; accordingly it had, in prospect of the election of Caesar, selected with that view for 696 two provinces in which the governor should find no other employment than the construction of roads and other such works of utility. Of course the matter could not so remain; it was determined among the confederates, that Caesar should obtain by decree of the people an extraordinary command formed on the model of the Gabinio-Manilian laws. Caesar however had publicly declared that he would introduce no proposal in his own favour; the tribune of the people Publius Vatinius therefore undertook to submit the proposal to the burgesses, who naturally gave their unconditional assent. By this means Caesar obtained the governorship of Cisalpine Gaul and the supreme command of the three legions which were stationed there and were already experienced in border warfare under Lucius Afranius, along with the same rank of *propraetor* for his adjutants which those of Pompeius had enjoyed; this office was secured to him for five years—a longer period than had ever before been assigned to any general whose appointment was limited to a definite time at all. The

Transpadanes, who for years had in hope of the franchise been the clients of the democratic party in Rome and of Caesar in particular,(8) formed the main portion of his province. His jurisdiction extended south as far as the Arnus and the Rubico, and included Luca and Ravenna. Subsequently there was added to Caesar's official district the province of Narbo with the one legion stationed there—a resolution adopted by the senate on the proposal of Pompeius, that it might at least not see this command also pass to Caesar by extraordinary decree of the burgesses. What was wished was thus attained. As no troops could constitutionally be stationed in Italy proper,(9) the commander of the legions of northern Italy and Gaul dominated at the same time Italy and Rome for the next five years; and he who was master for five years was master for life. The consulship of Caesar had attained its object. As a matter of course, the new holders of power did not neglect withal to keep the multitude in good humour by games and amusements of all sorts, and they embraced every opportunity of filling their exchequer; in the case of the king of Egypt, for instance, the decree of the people, which recognized him as legitimate ruler,(10) was sold to him by the coalition at a high price, and in like manner other dynasts and communities acquired charters and privileges on this occasion.

Measures Adopted by the Allies for Their Security

The permanence of the arrangements made seemed also sufficiently secured. The consulship was, at least for the next year, entrusted to safe hands. The public believed at first, that it was destined for Pompeius and Crassus themselves; the holders of power however preferred to procure the election of two subordinate but trustworth men of their party—Aulus Gabinius, the best among Pompeius' adjutants, and Lucius Piso, who was less important but was Caesar's father-in-law— as consuls for 696. Pompeius personally undertook to watch over Italy, where at the head of the commission of twenty he prosecuted the execution of the agrarian law and

furnished nearly 20,000 burgesses, in great part old soldiers from his army, with land in the territory of Capua. Caesar's north-Italian legions served to back him against the opposition in the capital. There existed no prospect, immediately at least, of a rupture among the holders of power themselves. The laws issued by Caesar as consul, in the maintenance of which Pompeius was at least as much interested as Caesar, formed a guarantee for the continuance of the breach between Pompeius and the aristocracy—whose heads, and Cato in particular, continued to treat these laws as null—and thereby a guarantee for the subsistence of the coalition. Moreover, the personal bonds of connection between its chiefs were drawn closer. Caesar had honestly and faithfully kept his word to his confederates without curtailing or cheating them of what he had promised, and in particular had fought to secure the agrarian law proposed in the interest of Pompeius, just as if the case had been his own, with dexterity and energy; Pompeius was not insensible to upright dealing and good faith, and was kindly disposed towards the man who had helped him to get quit at a blow of the sorry part of a suppliant which he had been playing for three years. Frequent and familiar intercourse with a man of the irresistible amiableness of Caesar did what was farther requisite to convert the alliance of interests into an alliance of friendship. The result and the pledge of this friendship—at the same time, doubtless, a public announcement which could hardly be misunderstood of the newly established conjoint rule—was the marriage of Pompeius with Caesar's only daughter, three-and-twenty years of age. Julia, who had inherited the charm of her father, lived in the happiest domestic relations with her husband, who was nearly twice as old; and the burgesses longing for rest and order after so many troubles and crises, saw in this nuptial alliance the guarantee of a peaceful and prosperous future.

Situation of the Aristocracy

The more firmly and closely the alliance was thus cemented between Pompeius and Caesar, the more hopeless grew the cause of the aristocracy. They felt the sword suspended over their head and knew Caesar sufficiently to have no doubt that he would, if necessary, use it without hesitation. "On all sides," wrote one of them, "we are checkmated; we have already through fear of death or of banishment despaired of 'freedom'; every one sighs, no one ventures to speak." More the confederates could not desire. But though the majority of the aristocracy was in this desirable frame of mind, there was, of course, no lack of Hotspurs among this party. Hardly had Caesar laid down the consulship, when some of the most violent aristocrats, Lucius Domitius and Gaius Memmius, proposed in a full senate the annulling of the Julian laws. This indeed was simply a piece of folly, which redounded only to the benefit of the coalition; for, when Caesar now himself insisted that the senate should investigate the validity of the laws assailed, the latter could not but formally recognize their legality. But, as may readily be conceived, the holders of power found in this a new call to make an example of some of the most notable and noisiest of their opponents, and thereby to assure themselves that the remainder would adhere to that fitting policy of sighing and silence. At first there had been a hope that the clause of the agrarian law, which as usual required all the senators to take an oath to the new law on pain of forfeiting their political rights, would induce its most vehement opponents to banish themselves, after the example of Metellus Numidicus,⁽¹¹⁾ by refusing the oath. But these did not show themselves so complaisant; even the rigid Cato submitted to the oath, and his Sanchos followed him. A second, far from honourable, attempt to threaten the heads of the aristocracy with criminal impeachments on account of an alleged plot for the murder of Pompeius, and so to drive them into exile, was frustrated by the incapacity of the instruments; the informer, one Vettius, exaggerated and contradicted himself so grossly, and the tribune Vatinius, who directed the foul scheme, showed his complicity with

that Vettius so clearly, that it was found advisable to strangle the latter in prison and to let the whole matter drop. On this occasion however they had obtained sufficient evidence of the total disorganization of the aristocracy and the boundless alarm of the genteel lords: even a man like Lucius Lucullus had thrown himself in person at Caesar's feet and publicly declared that he found himself compelled by reason of his great age to withdraw from public life.

Cato and Cicero Removed

Ultimately therefore they were content with a few isolated victims. It was of primary importance to remove Cato, who made no secret of his conviction as to the nullity of all the Julian laws, and who was a man to act as he thought. Such a man Marcus Cicero was certainly not, and they did not give themselves the trouble to fear him. But the democratic party, which played the leading part in the coalition, could not possibly after its victory leave unpunished the judicial murder of the 5th December 691, which it had so loudly and so justly censured. Had they wished to bring to account the real authors of the fatal decree, they ought to have seized not on the pusillanimous consul, but on the section of the strict aristocracy which had urged the timorous man to that execution. But in formal law it was certainly not the advisers of the consul, but the consul himself, that was responsible for it, and it was above all the gentler course to call the consul alone to account and to leave the senatorial college wholly out of the case; for which reason in the grounds of the proposal directed against Cicero the decree of the senate, in virtue of which he ordered the execution, was directly described as supposititious. Even against Cicero the holders of power would gladly have avoided steps that attracted attention; but he could not prevail on himself either to give to those in power the guarantees which they required, or to banish himself from Rome under one of the feasible pretexts on several occasions offered to him, or even to keep silence. With the

utmost desire to avoid any offence and the most sincere alarm, he yet had not self-control enough to be prudent; the word had to come out, when a petulant witticism stung him, or when his self-conceit almost rendered crazy by the praise of so many noble lords gave vent to the well-cadenced periods of the plebeian advocate.

Clodius

The execution of the measures resolved on against Cato and Cicero was committed to the loose and dissolute, but clever and pre-eminently audacious Publius Clodius, who had lived for years in the bitterest enmity with Cicero, and, with the view of satisfying that enmity and playing a part as demagogue, had got himself converted under the consulship of Caesar by a hasty adoption from a patrician into a plebeian, and then chosen as tribune of the people for the year 696. To support Clodius, the proconsul Caesar remained in the immediate vicinity of the capital till the blow was struck against the two victims. Agreeably to the instructions which he had received, Clodius proposed to the burgesses to entrust Cato with the regulation of the complicated municipal affairs of the Byzantines and with the annexation of the kingdom of Cyprus, which as well as Egypt had fallen to the Romans by the testament of Alexander II, but had not like Egypt bought off the Roman annexation, and the king of which, moreover, had formerly given personal offence to Clodius. As to Cicero, Clodius brought in a project of law which characterized the execution of a burgess without trial and sentence as a crime to be punished with banishment. Cato was thus removed by an honourable mission, while Cicero was visited at least with the gentlest possible punishment and, besides, was not designated by name in the proposal. But they did not refuse themselves the pleasure, on the one hand, of punishing a man notoriously timid and belonging to the class of political weathercocks for the conservative energy which he displayed, and, on the other hand, of investing the bitter opponent of all interferences of the

burgesses in administration and of all extraordinary commands with such a command conferred by decree of the burgesses themselves; and with similar humour the proposal respecting Cato was based on the ground of the abnormal virtue of the man, which made him appear pre-eminently qualified to execute so delicate a commission, as was the confiscation of the considerable crown treasure of Cyprus, without embezzlement. Both proposals bear generally the same character of respectful deference and cool irony, which marks throughout the bearing of Caesar in reference to the senate. They met with no resistance. It was naturally of no avail, that the majority of the senate, with the view of protesting in some way against the mockery and censure of their decree in the matter of Catilina, publicly put on mourning, and that Cicero himself, now when it was too late, fell on his knees and besought mercy from Pompeius; he had to banish himself even before the passing of the law which debarred him from his native land (April 696). Cato likewise did not venture to provoke sharper measures by declining the commission which he had received, but accepted it and embarked for the east.(12) What was most immediately necessary was done; Caesar too might leave Italy to devote himself to more serious tasks.

CHAPTER VII

The Subjugation of the West

The Romanizing of the West

When the course of history turns from the miserable monotony of the political selfishness, which fought its battles in the senate-house and in the streets of the capital, to matters of greater importance than the question whether the first monarch of Rome should be called Gnaeus, Gaius, or Marcus, we may well be allowed—on the threshold of an event, the effects of which still at the present day influence the destinies of the world—to look round us for a moment, and to indicate the point of view under which the conquest of what is now France by the Romans, and their first contact with the inhabitants of Germany and of Great Britain, are to be apprehended in their bearing on the general history of the world.

By virtue of the law, that a people which has grown into a state absorbs its neighbours who are in political nonage, and a civilized people absorbs its neighbours who are in intellectual nonage— by virtue of this law, which is as universally valid and as much a law of nature as the law of gravity—the Italian nation (the only one in antiquity which was able to combine a superior political development and a superior civilization, though it presented the latter only in an imperfect and external manner) was entitled to reduce to subjection the Greek states of the east which were ripe for

destruction, and to dispossess the peoples of lower grades of culture in the west—Libyans, Iberians, Celts, Germans—by means of its settlers; just as England with equal right has in Asia reduced to subjection a civilization of rival standing but politically impotent, and in America and Australia has marked and ennobled, and still continues to mark and ennoble, extensive barbarian countries with the impress of its nationality. The Roman aristocracy had accomplished the preliminary condition required for this task—the union of Italy; the task itself it never solved, but always regarded the extra-Italian conquests either as simply a necessary evil, or as a fiscal possession virtually beyond the pale of the state. It is the imperishable glory of the Roman democracy or monarchy—for the two coincide—to have correctly apprehended and vigorously realized this its highest destination. What the irresistible force of circumstances had paved the way for, through the senate establishing against its will the foundations of the future Roman dominion in the west as in the east; what thereafter the Roman emigration to the provinces—which came as a public calamity, no doubt, but also in the western regions at any rate as a pioneer of a higher culture—pursued as matter of instinct; the creator of the Roman democracy, Gaius Gracchus, grasped and began to carry out with statesmanlike clearness and decision. The two fundamental ideas of the new policy—to reunite the territories under the power of Rome, so far as they were Hellenic, and to colonize them, so far as they were not Hellenic—had already in the Gracchan age been practically recognized by the annexation of the kingdom of Attalus and by the Transalpine conquests of Flaccus: but the prevailing reaction once more arrested their application. The Roman state remained a chaotic mass of countries without thorough occupation and without proper limits. Spain and the Graeco-Asiatic possessions were separated from the mother country by wide territories, of which barely the borders along the coast were subject to the Romans; on the north coast of Africa the domains of Carthage and Cyrene alone were occupied like oases; large tracts even of

the subject territory, especially in Spain, were but nominally subject to the Romans. Absolutely nothing was done on the part of the government towards concentrating and rounding off their dominion, and the decay of the fleet seemed at length to dissolve the last bond of connection between the distant possessions. The democracy no doubt attempted, so soon as it again raised its head, to shape its external policy in the spirit of Gracchus—Marius in particular cherished such ideas—but as it did not for any length of time attain the helm, its projects were left unfulfilled. It was not till the democracy practically took in hand the government on the overthrow of the Sullan constitution in 684, that a revolution in this respect occurred. First of all their sovereignty on the Mediterranean was restored—the most vital question for a state like that of Rome. Towards the east, moreover, the boundary of the Euphrates was secured by the annexation of the provinces of Pontus and Syria. But there still remained beyond the Alps the task of at once rounding off the Roman territory towards the north and west, and of gaining a fresh virgin soil there for Hellenic civilization and for the yet unbroken vigour of the Italic race.

Historical Significance of the Conquests of Caesar

This task Gaius Caesar undertook. It is more than an error, it is an outrage upon the sacred spirit dominant in history, to regard Gaul solely as the parade ground on which Caesar exercised himself and his legions for the impending civil war. Though the subjugation of the west was for Caesar so far a means to an end that he laid the foundations of his later height of power in the Transalpine wars, it is the especial privilege of a statesman of genius that his means themselves are ends in their turn. Caesar needed no doubt for his party aims a military power, but he did not conquer Gaul as a partisan. There was a direct political necessity for Rome to meet the perpetually threatened invasion of the Germans thus early beyond the Alps, and to construct a rampart there which should secure the peace of the

Roman world. But even this important object was not the highest and ultimate reason for which Gaul was conquered by Caesar. When the old home had become too narrow for the Roman burgesses and they were in danger of decay, the senate's policy of Italian conquest saved them from ruin. Now the Italian home had become in its turn too narrow; once more the state languished under the same social evils repeating themselves in similar fashion only on a greater scale. It was a brilliant idea, a grand hope, which led Caesar over the Alps—the idea and the confident expectation that he should gain there for his fellow-burgesses a new boundless home, and regenerate the state a second time by placing it on a broader basis.

Caesar in Spain

The campaign which Caesar undertook in 693 in Further Spain, may be in some sense included among the enterprises which aimed at the subjugation of the west. Long as Spain had obeyed the Romans, its western shore had remained substantially independent of them even after the expedition of Decimus Brutus against the Callaeci(1), and they had not even set foot on the northern coast; while the predatory raids, to which the subject provinces found themselves continually exposed from those quarters, did no small injury to the civilization and Romanizing of Spain. Against these the expedition of Caesar along the west coast was directed. He crossed the chain of the Herminian mountains (Sierra de Estrella) bounding the Tagus on the north; after having conquered their inhabitants and transplanted them in part to the plain, he reduced the country on both sides of the Douro and arrived at the northwest point of the peninsula, where with the aid of a flotilla brought up from Gades he occupied Brigantium (Corunna). By this means the peoples adjoining the Atlantic Ocean, Lusitanians and Callaecians, were forced to acknowledge the Roman supremacy, while the conqueror was at the same time careful to render the position of the subjects generally more tolerable by reducing the

tribute to be paid to Rome and regulating the financial affairs of the communities.

But, although in this military and administrative debut of the great general and statesman the same talents and the same leading ideas are discernible which he afterwards evinced on a greater stage, his agency in the Iberian peninsula was much too transient to have any deep effect; the more especially as, owing to its physical and national peculiarities, nothing but action steadily continued for a considerable time could exert any durable influence there.

Gaul

A more important part in the Romanic development of the west was reserved by destiny for the country which stretches between the Pyrenees and the Rhine, the Mediterranean and the Atlantic Ocean, and which since the Augustan age has been especially designated by the name of the land of the Celts—Gallia—although strictly speaking the land of the Celts was partly narrower, partly much more extensive, and the country so called never formed a national unity, and did not form a political unity before Augustus. For this very reason it is not easy to present a clear picture of the very heterogeneous state of things which Caesar encountered on his arrival there in 696.

The Roman Province Wars and Revolts There

In the region on the Mediterranean, which, embracing approximately Languedoc on the west of the Rhone, on the east Dauphine and Provence, had been for sixty years a Roman province, the Roman arms had seldom been at rest since the Cimbrian invasion which had swept over it. In 664 Gaius Caelius had fought with the Salyes about Aquae Sextiae, and in 674

Gaius Flaccus,(2) on his march to Spain, with other Celtic nations. When in the Sertorian war the governor Lucius Manlius, compelled to hasten to the aid of his colleagues beyond the Pyrenees, returned defeated from Ilerda (Lerida) and on his way home was vanquished a second time by the western neighbours of the Roman province, the Aquitani (about 676;(3)), this seems to have provoked a general rising of the provincials between the Pyrenees and the Rhone, perhaps even of those between the Rhone and Alps. Pompeius had to make his way with the sword through the insurgent Gaul to Spain,(4) and by way of penalty for their rebellion gave the territories of the Volcae-Arecomici and the Helvii (dep. Gard and Ardeche) over to the Massiliots; the governor Manius Fonteius (678-680) carried out these arrangements and restored tranquillity in the province by subduing the Vocontii (dep. Drome), protecting Massilia from the insurgents, and liberating the Roman capital Narbo which they invested. Despair, however, and the financial embarrassment which the participation in the sufferings of the Spanish war(5) and generally the official and non-official exactions of the Romans brought upon the Gallic provinces, did not allow them to be tranquil; and in particular the canton of the Allobroges, the most remote from Narbo, was in a perpetual ferment, which was attested by the "pacification" that Gaius Piso undertook there in 688 as well as by the behaviour of the Allobrogian embassy in Rome on occasion of the anarchist plot in 691,(6) and which soon afterwards (693) broke into open revolt. Catagnatus the leader of the Allobroges in this war of despair, who had at first fought not unsuccessfully, was conquered at Solonium after a glorious resistance by the governor Gaius Pomptinus.

Bounds

Relations to Rome

Notwithstanding all these conflicts the bounds of the Roman territory were not materially advanced; Lugudunum Convenarum, where Pompeius

had settled the remnant of the Sertorian army,(7) Tolosa, Vienna and Genava were still the most remote Roman townships towards the west and north. But at the same time the importance of these Gallic possessions for the mother country was continually on the increase. The glorious climate, akin to that of Italy, the favourable nature of the soil, the large and rich region lying behind so advantageous for commerce with its mercantile routes reaching as far as Britain, the easy intercourse by land and sea with the mother country, rapidly gave to southern Gaul an economic importance for Italy, which much older possessions, such as those in Spain, had not acquired in the course of centuries; and as the Romans who had suffered political shipwreck at this period sought an asylum especially in Massilia, and there found once more Italian culture and Italian luxury, voluntary emigrants from Italy also were attracted more and more to the Rhone and the Garonne. "The province of Gaul," it was said in a sketch drawn ten years before Caesar's arrival, "is full of merchants; it swarms with Roman burgesses. No native of Gaul transacts a piece of business without the intervention of a Roman; every penny, that passes from one hand to another in Gaul, goes through the account books of the Roman burgesses." From the same description it appears that in addition to the colonists of Narbo there were Romans cultivating land and rearing cattle, resident in great numbers in Gaul; as to which, however, it must not be overlooked that most of the provincial land possessed by Romans, just like the greater part of the English possessions in the earliest times in America, was in the hands of the high nobility living in Italy, and those farmers and graziers consisted for the most part of their stewards—slaves or freedmen.

Incipient Romanizing

It is easy to understand how under such circumstances civilization and Romanizing rapidly spread among the natives. These Celts were not fond of agriculture; but their new masters compelled them to exchange the sword

for the plough, and it is very credible that the embittered resistance of the Allobroges was provoked in part by some such injunctions. In earlier times Hellenism had also to a certain degree dominated those regions; the elements of a higher culture, the stimulus to the cultivation of the vine and the olive,(8) to the use of writing(9) and to the coining of money, came to them from Massilia. The Hellenic culture was in this case far from being set aside by the Romans; Massilia gained through them more influence than it lost; and even in the Roman period Greek physicians and rhetoricians were publicly employed in the Gallic cantons. But, as may readily be conceived, Hellenism in southern Gaul acquired through the agency of the Romans the same character as in Italy; the distinctively Hellenic civilization gave place to the Latino-Greek mixed culture, which soon made proselytes here in great numbers. The "Gauls in the breeches," as the inhabitants of southern Gaul were called by way of contrast to the "Gauls in the toga" of northern Italy, were not indeed like the latter already completely Romanized, but they were even now very perceptibly distinguished from the "longhaired Gauls" of the northern regions still unsubdued. The semiculture becoming naturalized among them furnished, doubtless, materials enough for ridicule of their barbarous Latin, and people did not fail to suggest to any one suspected of Celtic descent his "relationship with the breeches"; but this bad Latin was yet sufficient to enable even the remote Allobroges to transact business with the Roman authorities, and even to give testimony in the Roman courts without an interpreter.

While the Celtic and Ligurian population of these regions was thus in the course of losing its nationality, and was languishing and pining withal under a political and economic oppression, the intolerable nature of which is sufficiently attested by their hopeless insurrections, the decline of the native population here went hand in hand with the naturalizing of the same higher culture which we find at this period in Italy. Aquae Sextiae and still more Narbo were considerable townships, which might probably be named by the

side of Beneventum and Capua; and Massilia, the best organized, most free, most capable of self-defence, and most powerful of all the Greek cities dependent on Rome, under its rigorous aristocratic government to which the Roman conservatives probably pointed as the model of a good urban constitution, in possession of an important territory which had been considerably enlarged by the Romans and of an extensive trade, stood by the side of those Latin towns as Rhegium and Neapolis stood in Italy by the side of Beneventum and Capua.

Free Gaul

Matters wore a different aspect, when one crossed the Roman frontier. The great Celtic nation, which in the southern districts already began to be crushed by the Italian immigration, still moved to the north of the Cevennes in its time-hallowed freedom. It is not the first time that we meet it: the Italians had already fought with the offsets and advanced posts of this vast stock on the Tiber and on the Po, in the mountains of Castile and Carinthia, and even in the heart of Asia Minor; but it was here that the main stock was first assailed at its very core by their attacks. The Celtic race had on its settlement in central Europe diffused itself chiefly over the rich river-valleys and the pleasant hill-country of the present France, including the western districts of Germany and Switzerland, and from thence had occupied at least the southern part of England, perhaps even at this time all Great Britain and Ireland;(10) it formed here more than anywhere else a broad, geographically compact, mass of peoples. In spite of the differences in language and manners which naturally were to be found within this wide territory, a close mutual intercourse, an innate sense of fellowship, seems to have knit together the tribes from the Rhone and Garonne to the Rhine and the Thames; whereas, although these doubtless were in a certain measure locally connected with the Celts in Spain and in the modern Austria, the mighty mountain barriers of the Pyrenees and the Alps on the one hand, and

the encroachments of the Romans and the Germans which also operated here on the other, interrupted the intercourse and the intrinsic connection of the cognate peoples far otherwise than the narrow arm of the sea interrupted the relations of the continental and the British Celts. Unhappily we are not permitted to trace stage by stage the history of the internal development of this remarkable people in these its chief seats; we must be content with presenting at least some outline of its historical culture and political condition, as it here meets us in the time of Caesar.

Population

Agriculture and the Rearing of Cattle

Gaul was, according to the reports of the ancients, comparatively well peopled. Certain statements lead us to infer that in the Belgic districts there were some 200 persons to the square mile— a proportion such as nearly holds at present for Wales and for Livonia—in the Helvetic canton about 245;(11) it is probable that in the districts which were more cultivated than the Belgic and less mountainous than the Helvetian, as among the Bituriges, Arverni, Haedui, the number rose still higher. Agriculture was no doubt practised in Gaul—for even the contemporaries of Caesar were surprised in the region of the Rhine by the custom of manuring with marl,(12) and the primitive Celtic custom of preparing beer (-cervesia-) from barley is likewise an evidence of the early and wide diffusion of the culture of grain—but it was not held in estimation. Even in the more civilized south it was reckoned not becoming for the free Celts to handle the plough. In far higher estimation among the Celts stood pastoral husbandry, for which the Roman landholders of this epoch very gladly availed themselves both of the Celtic breed of cattle, and of the brave Celtic slaves skilled in riding and familiar with the rearing of animals.(13) Particularly in the northern Celtic districts pastoral husbandry was thoroughly predominant. Brittany was in Caesar's time a country poor in corn. In the north-east dense forests, attaching

themselves to the heart of the Ardennes, stretched almost without interruption from the German Ocean to the Rhine; and on the plains of Flanders and Lorraine, now so fertile, the Menapian and Treverian herdsman then fed his half-wild swine in the impenetrable oak-forest. Just as in the valley of the Po the Romans made the production of wool and the culture of corn supersede the Celtic feeding of pigs on acorns, so the rearing of sheep and the agriculture in the plains of the Scheldt and the Maas are traceable to their influence. In Britain even the threshing of corn was not yet usual; and in its more northern districts agriculture was not practised, and the rearing of cattle was the only known mode of turning the soil to account. The culture of the olive and vine, which yielded rich produce to the Massiliots, was not yet prosecuted beyond the Cevennes in the time of Caesar.

Urban Life

The Gauls were from the first disposed to settle in groups; there were open villages everywhere, and the Helvetic canton alone numbered in 696 four hundred of these, besides a multitude of single homesteads. But there were not wanting also walled towns, whose walls of alternate layers surprised the Romans both by their suitableness and by the elegant interweaving of timber and stones in their construction; while, it is true, even in the towns of the Allobroges the buildings were erected solely of wood. Of such towns the Helvetii had twelve and the Suessiones an equal number; whereas at all events in the more northern districts, such as among the Nervii, while there were doubtless also towns, the population during war sought protection in the morasses and forests rather than behind their walls, and beyond the Thames the primitive defence of the wooden barricade altogether took the place of towns and was in war the only place of refuge for men and herds.

Intercourse

In close association with the comparatively considerable development of urban life stands the activity of intercourse by land and by water. Everywhere there were roads and bridges. The river-navigation, which streams like the Rhone, Garonne, Loire, and Seine, of themselves invited, was considerable and lucrative. But far more remarkable was the maritime navigation of the Celts. Not only were the Celts, to all appearance, the nation that first regularly navigated the Atlantic ocean, but we find that the art of building and of managing vessels had attained among them a remarkable development. The navigation of the peoples of the Mediterranean had, as may readily be conceived from the nature of the waters traversed by them, for a comparatively long period adhered to the oar; the war-vessels of the Phoenicians, Hellenes, and Romans were at all times oared galleys, in which the sail was applied only as an occasional aid to the oar; the trading vessels alone were in the epoch of developed ancient civilization "sailers" properly so called.(14) On the other hand the Gauls doubtless employed in the Channel in Caesar's time, as for long afterwards, a species of portable leathern skiffs, which seem to have been in the main common oared boats, but on the west coast of Gaul the Santones, the Pictones, and above all the Veneti sailed in large though clumsily built ships, which were not impelled by oars but were provided with leathern sails and iron anchor-chains; and they employed these not only for their traffic with Britain, but also in naval combat. Here therefore we not only meet for the first time with navigation in the open ocean, but we find that here the sailing vessel first fully took the place of the oared boat—an improvement, it is true, which the declining activity of the old world did not know how to turn to account, and the immeasurable results of which our own epoch of renewed culture is employed in gradually reaping.

Commerce

Manufactures

With this regular maritime intercourse between the British and Gallic coasts, the very close political connection between the inhabitants on both sides of the Channel is as easily explained as the flourishing of transmarine commerce and of fisheries. It was the Celts of Brittany in particular, that brought the tin of the mines of Cornwall from England and carried it by the river and land routes of Gaul to Narbo and Massilia. The statement, that in Caesar's time certain tribes at the mouth of the Rhine subsisted on fish and birds' eggs, may probably refer to the circumstance that marine fishing and the collection of the eggs of sea-birds were prosecuted there on an extensive scale. When we put together and endeavour to fill up the isolated and scanty statements which have reached us regarding the Celtic commerce and intercourse, we come to see why the tolls of the river and maritime ports play a great part in the budgets of certain cantons, such as those of the Haedui and the Veneti, and why the chief god of the nation was regarded by them as the protector of the roads and of commerce, and at the same time as the inventor of manufactures. Accordingly the Celtic industry cannot have been wholly undeveloped; indeed the singular dexterity of the Celts, and their peculiar skill in imitating any model and executing any instructions, are noticed by Caesar. In most branches, however, their handicraft does not appear to have risen above the ordinary level; the manufacture of linen and woollen stuffs, that subsequently flourished in central and northern Gaul, was demonstrably called into existence only by the Romans. The elaboration of metals forms an exception, and so far as we know the only one. The copper implements not unfrequently of excellent workmanship and even now malleable, which are brought to light in the tombs of Gaul, and the carefully adjusted Arvernian gold coins, are still at the present day striking witnesses of the skill of the Celtic workers in copper and gold; and with this the reports of the ancients well accord, that the Romans learned

the art of tinning from the Bituriges and that of silvering from the Alesini—inventions, the first of which was naturally suggested by the traffic' in tin, and both of which were probably made in the period of Celtic freedom.

Mining

Hand in hand with dexterity in the elaboration of the metals went the art of procuring them, which had attained, more especially in the iron mines on the Loire, such a degree of professional skill that the miners played an important part in the sieges. The opinion prevalent among the Romans of this period, that Gaul was one of the richest gold countries in the world, is no doubt refuted by the well-known nature of the soil and by the character of the articles found in the Celtic tombs, in which gold appears but sparingly and with far less frequency than in the similar repositories of the true native regions of gold; this conception no doubt had its origin merely from the descriptions which Greek travellers and Roman soldiers, doubtless not without strong exaggeration, gave to their countrymen of the magnificence of the Arvernian kings,(15) and of the treasures of the Tolosan temples.(16) But their stories were not pure fictions. It may well be believed that in and near the rivers which flow from the Alps and the Pyrenees gold-washing and searches for gold, which are unprofitable at the present value of labour, were worked with profit and on a considerable scale in ruder times and with a system of slavery; besides, the commercial relations of Gaul may, as is not unfrequently the case with half-civilized peoples, have favoured the accumulation of a dead stock of the precious metals.

Art and Science

The low state of the arts of design is remarkable, and is the more striking by the side of this mechanical skill in handling the metals. The fondness for parti-coloured and brilliant ornaments shows the want of a proper taste,

which is sadly confirmed by the Gallic coins with their representations sometimes exceedingly simple, sometimes odd, but always childish in design, and almost without exception rude beyond parallel in their execution. It is perhaps unexampled that a coinage practised for centuries with a certain technical skill should have essentially limited itself to always imitating two or three Greek dies, and always with increasing deformity. On the other hand the art of poetry was highly valued by the Celts, and intimately blended with the religious and even with the political institutions of the nation; we find religious poetry, as well as that of the court and of the mendicant, flourishing.(17) Natural science and philosophy also found, although subject to the forms and fetters of the theology of the country, a certain amount of attention among the Celts; and Hellenic humanism met with a ready reception wherever and in whatever shape it approached them. The knowledge of writing was general at least among the priests. For the most part in free Gaul the Greek writing was made use of in Caesar's time, as was done among others by the Helvetii; but in its most southern districts even then, in consequence of intercourse with the Romanized Celts, the Latin attained predominance—we meet with it, for instance, on the Arvernian coins of this period.

Political Organization

Cantonal Constitution

The political development of the Celtic nation also presents very remarkable phenomena. The constitution of the state was based in this case, as everywhere, on the clan-canton, with its prince, its council of the elders, and its community of freemen capable of bearing arms; but the peculiarity in this case was that it never got beyond this cantonal constitution. Among the Greeks and Romans the canton was very early superseded by the ring-wall as the basis of political unity; where two cantons found themselves together within the same walls, they amalgamated into one commonwealth;

where a body of burgesses assigned to a portion of their fellow- burgesses a new ring-wall, there regularly arose in this way a new state connected with the mother community only by ties of piety and, at most, of clientship. Among the Celts on the other hand the "burgess-body" continued at all times to be the clan; prince and council presided over the canton and not over any town, and the general diet of the canton formed the authority of last resort in the state. The town had, as in the east, merely mercantile and strategic, not political importance; for which reason the Gallic townships, even when walled and very considerable such as Vienna and Genava, were in the view of the Greeks and Romans nothing but villages. In the time of Caesar the original clan-constitution still subsisted substantially unaltered among the insular Celts and in the northern cantons of the mainland; the general assembly held the supreme authority; the prince was in essential questions bound by its decrees; the common council was numerous—it numbered in certain clans six hundred members—but does not appear to have had more importance than the senate under the Roman kings. In the more stirring southern portion of the land, again, one or two generations before Caesar—the children of the last kings were still living in his time—there had occurred, at least among the larger clans, the Arverni, Haedui, Sequani, Helvetii, a revolution which set aside the royal dominion and gave the power into the hands of the nobility.

Development of Knighthood

Breaking Up of the Old Cantonal Constitution

It is simply the reverse side of the total want of urban commonwealths among the Celts just noticed, that the opposite pole of political development, knighthood, so thoroughly preponderates in the Celtic clan-constitution. The Celtic aristocracy was to all appearance a high nobility, for the most part perhaps the members of the royal or formerly royal families; as indeed it is remarkable that the heads of the opposite parties in

the same clan very frequently belong to the same house. These great families combined in their hands financial, warlike, and political ascendancy. They monopolized the leases of the profitable rights of the state. They compelled the free commons, who were oppressed by the burden of taxation, to borrow from them, and to surrender their freedom first de facto as debtors, then de jure as bondmen. They developed the system of retainers, that is, the privilege of the nobility to surround themselves with a number of hired mounted servants— the -ambacti- as they were called (18)—and thereby to form a state within the state; and, resting on the support of these troops of their own, they defied the legal authorities and the common levy and practically broke up the commonwealth. If in a clan, which numbered about 80,000 men capable of arms, a single noble could appear at the diet with 10,000 retainers, not reckoning the bondmen and the debtors, it is clear that such an one was more an independent dynast than a burgess of his clan. Moreover, the leading families of the different clans were closely connected and through intermarriages and special treaties formed virtually a compact league, in presence of which the single clan was powerless. Therefore the communities were no longer able to maintain the public peace, and the law of the strong arm reigned throughout. The dependent found protection only from his master, whom duty and interest compelled to redress the injury inflicted on his client; the state had no longer the power to protect those who were free, and consequently these gave themselves over in numbers to some powerful man as clients.

Abolition of the Monarchy

The common assembly lost its political importance; and even the power of the prince, which should have checked the encroachments of the nobility, succumbed to it among the Celts as well as in Latium. In place of the king came the "judgment-worker" or -Vergobretus-, (19) who was like the Roman

consul nominated only for a year. So far as the canton still held together at all, it was led by the common council, in which naturally the heads of the aristocracy usurped the government. Of course under such circumstances there was agitation in the several clans much in the same way as there had been agitation in Latium for centuries after the expulsion of the kings: while the nobility of the different communities combined to form a separate alliance hostile to the power of the community, the multitude ceased not to desire the restoration of the monarchy; and not unfrequently a prominent nobleman attempted, as Spurius Cassius had done in Rome, with the support of the mass of those belonging to the canton to break down the power of his peers, and to reinstate the crown in its rights for his own special benefit.

Efforts towards National Unity

While the individual cantons were thus irremediably declining, the sense of unity was at the same time powerfully stirring in the nation and seeking in various ways to take shape and hold. That combination of the whole Celtic nobility in contradistinction to the individual canton-unions, while disturbing the existing order of things, awakened and fostered the conception of the collective unity of the nation. The attacks directed against the nation from without, and the continued diminution of its territory in war with its neighbours, operated in the same direction. Like the Hellenes in their wars with the Persians, and the Italians in their wars with the Celts, the Transalpine Gauls seem to have become conscious of the existence and the power of their national unity in the wars against Rome. Amidst the dissensions of rival clans and all their feudal quarrelling there might still be heard the voices of those who were ready to purchase the independence of the nation at the cost of the independence of the several cantons, and even at that of the seignorial rights of the knights. The thorough popularity of the opposition to a foreign yoke was shown by the wars of Caesar, with

reference to whom the Celtic patriot party occupied a position entirely similar to that of the German patriots towards Napoleon; its extent and organization are attested, among other things, by the telegraphic rapidity with which news was communicated from one point to another.

Religious Union of the Nation

Druids

The universality and the strength of the Celtic national feeling would be inexplicable but for the circumstance that, amidst the greatest political disruption, the Celtic nation had for long been centralized in respect of religion and even of theology. The Celtic priesthood or, to use the native name, the corporation of the Druids, certainly embraced the British islands and all Gaul, and perhaps also other Celtic countries, in a common religious- national bond. It possessed a special head elected by the priests themselves; special schools, in which its very comprehensive tradition was transmitted; special privileges, particularly exemption from taxation and military service, which every clan respected; annual councils, which were held near Chartres at the "centre of the Celtic earth"; and above all, a believing people, who in painful piety and blind obedience to their priests seem to have been nowise inferior to the Irish of modern times. It may readily be conceived that such a priesthood attempted to usurp, as it partially did usurp, the secular government; where the annual monarchy subsisted, it conducted the elections in the event of an interregnum; it successfully laid claim to the right of excluding individuals and whole communities from religious, and consequently also from civil, society; it was careful to draw to itself the most important civil causes, especially processes as to boundaries and inheritance; on the ground, apparently, of its right to exclude from the community, and perhaps also of the national custom that criminals should be by preference taken for the usual human sacrifices, it developed an extensive priestly criminal jurisdiction, which

was co-ordinate with that of the kings and vergobrets; it even claimed the right of deciding on war and peace. The Gauls were not far removed from an ecclesiastical state with its pope and councils, its immunities, interdicts, and spiritual courts; only this ecclesiastical state did not, like that of recent times, stand aloof from the nations, but was on the contrary pre-eminently national.

Want of Political Centralization

The Canton-Leagues

But while the sense of mutual relationship was thus vividly awakened among the Celtic tribes, the nation was still precluded from attaining a basis of political centralization such as Italy found in the Roman burgesses, and the Hellenes and Germans in the Macedonian and Frank kings. The Celtic priesthood and likewise the nobility—although both in a certain sense represented and combined the nation—were yet, on the one hand, incapable of uniting it in consequence of their particular class-interests, and, on the other hand, sufficiently powerful to allow no king and no canton to accomplish the work of union. Attempts at this work were not wanting; they followed, as the cantonal constitution suggested, the system of hegemony. A powerful canton induced a weaker to become subordinate, on such a footing that the leading canton acted for the other as well as for itself in its external relations and stipulated for it in state-treaties, while the dependent canton bound itself to render military service and sometimes also to pay a tribute. In this way a series of separate leagues arose; but there was no leading canton for all Gaul—no tie, however loose, combining the nation as a whole.

The Belgic League

The Maritime Cantons

The Leagues of Central Gaul

It has been already mentioned(20) that the Romans at the commencement of their Transalpine conquests found in the north a Britanno-Belgic league under the leadership of the Suessiones, and in central and southern Gaul the confederation of the Arverni, with which latter the Haedui, although having a weaker body of clients, carried on a rivalry. In Caesar's time we find the Belgae in north-eastern Gaul between the Seine and the Rhine still forming such an association, which, however, apparently no longer extends to Britain; by their side there appears, in the modern Normandy and Brittany, the league of the Aremorican or the maritime cantons: in central or proper Gaul two parties as formerly contended for the hegemony, the one headed by the Haedui, the other by the Sequani after the Arvernians weakened by the wars with Rome had retired. These different confederacies subsisted independently side by side; the leading states of central Gaul appear never to have extended their clientship to the north-east nor, seriously, perhaps even to the north-west of Gaul.

Character of Those Leagues

The impulse of the nation towards freedom found doubtless a certain gratification in these cantonal unions; but they were in every respect unsatisfactory. The union was of the loosest kind, constantly fluctuating between alliance and hegemony; the representation of the whole body in peace by the federal diets, in war by the general,(21) was in the highest degree feeble. The Belgian confederacy alone seems to have been bound together somewhat more firmly; the national enthusiasm, from which the successful repulse of the Cimbri proceeded,(22) may have proved beneficial to it. The rivalries for the hegemony made a breach in every league, which time did not close but widened, because the victory of one competitor still left his opponent in possession of political existence, and it always remained open to him, even though he had submitted to clientship, subsequently to renew the struggle. The rivalry among the more powerful

cantons not only set these at variance, but spread into every dependent clan, into every village, often indeed into every house, for each individual chose his side according to his personal relations. As Hellas exhausted its strength not so much in the struggle of Athens against Sparta as in the internal strife of the Athenian and Lacedaemonian factions in every dependent community, and even in Athens itself, so the rivalry of the Arverni and Haedui with its repetitions on a smaller and smaller scale destroyed the Celtic people.

The Celtic Military System

Cavalry

The military capability of the nation felt the reflex influence of these political and social relations. The cavalry was throughout the predominant arm; alongside of which among the Belgae, and still more in the British islands, the old national war-chariots appear in remarkable perfection. These equally numerous and efficient bands of combatants on horseback and in chariots were formed from the nobility and its vassals; for the nobles had a genuine knightly delight in dogs and horses, and were at much expense to procure noble horses of foreign breed. It is characteristic of the spirit and the mode of fighting of these nobles that, when the levy was called out, whoever could keep his seat on horseback, even the gray-haired old man, took the field, and that, when on the point of beginning a combat with an enemy of whom they made little account, they swore man by man that they would keep aloof from house and homestead, unless their band should charge at least twice through the enemy's line. Among the hired warriors the free-lance spirit prevailed with all its demoralized and stolid indifference towards their own life and that of others. This is apparent from the stories— however anecdotic their colouring—of the Celtic custom of tilting by way of sport and now and then fighting for life or death at a banquet, and of the usage (which prevailed among the Celts, and outdid

even the Roman gladiatorial games) of selling themselves to be killed for a set sum of money or a number of casks of wine, and voluntarily accepting the fatal blow stretched on their shield before the eyes of the whole multitude.

Infantry

By the side of these mounted warriors the infantry fell into the background. In the main it essentially resembled the bands of Celts, with whom the Romans had fought in Italy and Spain. The large shield was, as then, the principal weapon of defence; among the offensive arms, on the other hand, the long thrusting lance now played the chief part in room of the sword. Where several cantons waged war in league, they naturally encamped and fought clan against clan; there is no trace of their giving to the levy of each canton military organization and forming smaller and more regular tactical subdivisions. A long train of waggons still dragged the baggage of the Celtic army; instead of an entrenched camp, such as the Romans pitched every night, the poor substitute of a barricade of waggons still sufficed. In the case of certain cantons, such as the Nervii, the efficiency of their infantry is noticed as exceptional; it is remarkable that these had no cavalry, and perhaps were not even a Celtic but an immigrant German tribe. But in general the Celtic infantry of this period appears as an unwarlike and unwieldy levy en masse; most of all in the more southern provinces, where along with barbarism valour had also disappeared. The Celt, says Caesar, ventures not to face the German in battle. The Roman general passed a censure still more severe than this judgment on the Celtic infantry, seeing that, after having become acquainted with them in his first campaign, he never again employed them in connection with Roman infantry.

Stage of Development of the Celtic Civilization

If we survey the whole condition of the Celts as Caesar found it in the Transalpine regions, there is an unmistakeable advance in civilization, as compared with the stage of culture at which the Celts came before us a century and a half previously in the valley of the Po. Then the militia, excellent of its kind, thoroughly preponderated in their armies;(23) now the cavalry occupies the first place. Then the Celts dwelt in open villages; now well-constructed walls surrounded their townships. The objects too found in the tombs of Lombardy are, especially as respects articles of copper and glass, far inferior to those of northern Gaul. Perhaps the most trustworthy measure of the increase of culture is the sense of a common relationship in the nation; so little of it comes to light in the Celtic battles fought on the soil of what is now Lombardy, while it strikingly appears in the struggles against Caesar. To all appearance the Celtic nation, when Caesar encountered it, had already reached the maximum of the culture allotted to it, and was even now on the decline. The civilization of the Transalpine Celts in Caesar's time presents, even for us who are but very imperfectly informed regarding it, several aspects that are estimable, and yet more that are interesting; in some respects it is more akin to the modern than to the Hellenic-Roman culture, with its sailing vessels, its knighthood, its ecclesiastical constitution, above all with its attempts, however imperfect, to build the state not on the city, but on the tribe and in a higher degree on the nation. But just because we here meet the Celtic nation at the culminating point of its development, its lesser degree of moral endowment or, which is the same thing, its lesser capacity of culture, comes more distinctly into view. It was unable to produce from its own resources either a national art or a national state; it attained at the utmost a national theology and a peculiar type of nobility. The original simple valour was no more; the military courage based on higher morality and judicious organization, which comes in the train of increased civilization, had only made its appearance in a very stunted form among the knights. Barbarism in the

strict sense was doubtless outlived; the times had gone by, when in Gaul the fat haunch was assigned to the bravest of the guests, but each of his fellow-guests who thought himself offended thereby was at liberty to challenge the receiver on that score to combat, and when the most faithful retainers of a deceased chief were burnt along with him. But human sacrifices still continued, and the maxim of law, that torture was inadmissible in the case of the free man but allowable in that of the free woman as well as of slaves, throws a far from pleasing light on the position which the female sex held among the Celts even in their period of culture. The Celts had lost the advantages which specially belong to the primitive epoch of nations, but had not acquired those which civilization brings with it when it intimately and thoroughly pervades a people.

External Relations

Celts and Iberians

Such was the internal condition of the Celtic nation. It remains that we set forth their external relations with their neighbours, and describe the part which they sustained at this moment in the mighty rival race and rival struggle of the nations, in which it is everywhere still more difficult to maintain than to acquire. Along the Pyrenees the relations of the peoples had for long been peaceably settled, and the times had long gone by when the Celts there pressed hard on, and to some extent supplanted, the Iberian, that is, the Basque, original population. The valleys of the Pyrenees as well as the mountains of Bearn and Gascony, and also the coast- steppes to the south of the Garonne, were at the time of Caesar in the undisputed possession of the Aquitani, a great number of small tribes of Iberian descent, coming little into contact with each other and still less with the outer world; in this quarter only the mouth of the Garonne with the important port of Burdigala (Bordeaux) was in the hands of a Celtic tribe, the Bituriges-Vivisci.

Celts and Romans

Advance of Roman Trade and Commerce into Free Gaul

Of far greater importance was the contact of the Celtic nation with the Roman people, and with the Germans. We need not here repeat— what has been related already—how the Romans in their slow advance had gradually pressed back the Celts, had at last occupied the belt of coast between the Alps and the Pyrenees, and had thereby totally cut them off from Italy, Spain and the Mediterranean Sea—a catastrophe, for which the way had already been prepared centuries before by the laying out of the Hellenic stronghold at the mouth of the Rhone. But we must here recall the fact that it was not merely the superiority of the Roman arms which pressed hard on the Celts, but quite as much that of Roman culture, which likewise reaped the ultimate benefit of the respectable beginnings of Hellenic civilization in Gaul. Here too, as so often happens, trade and commerce paved the way for conquest. The Celt after northern fashion was fond of fiery drinks; the fact that like the Scythian he drank the generous wine unmingled and to intoxication, excited the surprise and the disgust of the temperate southern; but the trader has no objection to deal with such customers. Soon the trade with Gaul became a mine of gold for the Italian merchant; it was nothing unusual there for a jar of wine to be exchanged for a slave. Other articles of luxury, such as Italian horses, found advantageous sale in Gaul. There were instances even already of Roman burgesses acquiring landed property beyond the Roman frontier, and turning it to profit after the Italian fashion; there is mention, for example, of Roman estates in the canton of the Segusiavi (near Lyons) as early as about 673. Beyond doubt it was a consequence of this that, as already mentioned(24) in free Gaul itself, e. g. among the Arverni, the Roman language was not unknown even before the conquest; although this knowledge was presumably still restricted to few, and even the men of rank in the allied canton of the Haedui had to be conversed with through interpreters. Just as the traffickers in fire-water and

the squatters led the way in the occupation of North America, so these Roman wine-traders and landlords paved the way for, and beckoned onward, the future conqueror of Gaul. How vividly this was felt even on the opposite side, is shown by the prohibition which one of the most energetic tribes of Gaul, the canton of the Nervii, like some German peoples, issued against trafficking with the Romans.

Celts and Germans

Still more violent even than the pressure of the Romans from the Mediterranean was that of the Germans downward from the Baltic and the North Sea—a fresh stock from the great cradle of peoples in the east, which made room for itself by the side of its elder brethren with youthful vigour, although also with youthful rudeness. Though the tribes of this stock dwelling nearest to the Rhine—the Usipetes, Tencteri, Sugambri, Ubii—had begun to be in some degree civilized, and had at least ceased voluntarily to change their abodes, all accounts yet agree that farther inland agriculture was of little importance, and the several tribes had hardly yet attained fixed abodes. It is significant in this respect that their western neighbours at this time hardly knew how to name any one of the peoples of the interior of Germany by its cantonal name; these were only known to them under the general appellations of the Suebi, that is, the roving people or nomads, and the Marcomani, that is, the land-guard⁽²⁵⁾—names which were hardly cantonal names in Caesar's time, although they appeared as such to the Romans and subsequently became in various cases names of cantons.

The Right Bank of the Rhine Lost to the Celts

The most violent onset of this great nation fell upon the Celts. The struggles, in which the Germans probably engaged with the Celts for the possession of the regions to the east of the Rhine, are wholly withdrawn from our view. We are only able to perceive, that about the end of the seventh century of Rome all the land as far as the Rhine was already lost to the Celts; that the Boii, who were probably once settled in Bavaria and Bohemia,(26) were homeless wanderers; and that even the Black Forest formerly possessed by the Helvetii,(27) if not yet taken possession of by the German tribes dwelling in the vicinity, was at least waste debateable borderland, and was presumably even then, what it was afterwards called, the Helvetian desert. The barbarous strategy of the Germans—which secured them from hostile attacks by laying waste the neighbourhood for miles—seems to have been applied here on the greatest scale.

German Tribes on the Left Bank of the Rhine

But the Germans had not remained stationary at the Rhine. The march of the Cimbrian and Teutonic host, composed, as respects its flower, of German tribes, which had swept with such force fifty years before over Pannonia, Gaul, Italy, and Spain, seemed to have been nothing but a grand reconnaissance. Already different German tribes had formed permanent settlements to the west of the Rhine, especially of its lower course; having intruded as conquerors, these settlers continued to demand hostages and to levy annual tribute from the Gallic inhabitants in their neighbourhood, as if from subjects. Among these German tribes were the Aduatuci, who from a fragment of the Cimbrian horde(28) had grown into a considerable canton, and a number of other tribes afterwards comprehended under the name of the Tungri on the Maas in the region of Liege; even the Treveri (about Treves) and the Nervii (in Hainault), two of the largest and most powerful

peoples of this region, are directly designated by respectable authorities as Germans. The complete credibility of these accounts must certainly remain doubtful, since, as Tacitus remarks in reference to the two peoples last mentioned, it was subsequently, at least in these regions, reckoned an honour to be descended of German blood and not to belong to the little-esteemed Celtic nation; yet the population in the region of the Scheldt, Maas, and Moselle seems certainly to have become, in one way or another, largely mingled with German elements, or at any rate to have come under German influences. The German settlements themselves were perhaps small; they were not unimportant, for amidst the chaotic obscurity, through which we see the stream of peoples on the right bank of the Rhine ebbing and flowing about this period, we can well perceive that larger German hordes were preparing to cross the Rhine in the track of these advanced posts. Threatened on two sides by foreign domination and torn by internal dissension, it was scarcely to be expected that the unhappy Celtic nation would now rally and save itself by its own vigour. Dismemberment, and decay in virtue of dismemberment, had hitherto been its history; how should a nation, which could name no day like those of Marathon and Salamis, of Aricia and the Raudine plain—a nation which, even in its time of vigour, had made no attempt to destroy Massilia by a united effort—now when evening had come, defend itself against so formidable foes?

The Roman Policy with Reference to the German Invasion

The less the Celts, left to themselves, were a match for the Germans, the more reason had the Romans carefully to watch over the complications in which the two nations might be involved. Although the movements thence arising had not up to the present time directly affected them, they and their most important interests were yet concerned in the issue of those movements. As may readily be conceived, the internal demeanour of the Celtic nation had become speedily and permanently influenced by its

outward relations. As in Greece the Lacedaemonian party combined with Persia against the Athenians, so the Romans from their first appearance beyond the Alps had found a support against the Arverni, who were then the ruling power among the southern Celts, in their rivals for the hegemony, the Haedui: and with the aid of these new "brothers of the Roman nation" they had not merely reduced to subjection the Allobroges and a great portion of the indirect territory of the Arverni, but had also, in the Gaul that remained free, occasioned by their influence the transference of the hegemony from the Arverni to these Haedui. But while the Greeks were threatened with danger to their nationality only from one side, the Celts found themselves hard pressed simultaneously by two national foes; and it was natural that they should seek from the one protection against the other, and that, if the one Celtic party attached itself to the Romans, their opponents should on the contrary form alliance with the Germans. This course was most natural for the Belgae, who were brought by neighbourhood and manifold intermixture into closer relation to the Germans who had crossed the Rhine, and moreover, with their less-developed culture, probably felt themselves at least as much akin to the Suebian or alien race as to their cultivated Allobrogian or Helvetic countryman. But the southern Celts also, among whom now as already mentioned, the considerable canton of the Sequani (about Besangon) stood at the head of the party hostile to the Romans, had every reason at this very time to call in the Germans against the Romans who immediately threatened them; the remiss government of the senate and the signs of the revolution preparing in Rome, which had not remained unknown to the Celts, made this very moment seem suitable for ridding themselves of the Roman influence and primarily for humbling the Roman clients, the Haedui. A rupture had taken place between the two cantons respecting the tolls on the Saone, which separated the territory of the Haedui from that of the Sequani, and about the year 683 the German prince

Ariovistus with some 15,000 armed men had crossed the Rhine as condottiere of the Sequani.

Ariovistus on the Middle Rhine

The war was prolonged for some years with varying success; on the whole the results were unfavourable to the Haedui. Their leader Eporedorix at length called out their whole clients, and marched forth with an enormous superiority of force against the Germans. These obstinately refused battle, and kept themselves under cover of morasses and forests. It was not till the clans, weary of waiting, began to break up and disperse, that the Germans appeared in the open field, and then Ariovistus compelled a battle at Admagetobriga, in which the flower of the cavalry of the Haedui were left on the field. The Haedui, forced by this defeat to conclude peace on the terms which the victor proposed, were obliged to renounce the hegemony, and to consent with their whole adherents to become clients of the Sequani; they had to bind themselves to pay tribute to the Sequani or rather to Ariovistus, and to furnish the children of their principal nobles as hostages; and lastly they had to swear that they would never demand back these hostages nor invoke the intervention of the Romans.

Inaction of the Romans

This peace was concluded apparently about 693.(29) Honour and advantage enjoined the Romans to come forward in opposition to it; the noble Haeduan Divitiacus, the head of the Roman party in his clan, and for that reason now banished by his countrymen, went in person to Rome to solicit their intervention. A still more serious warning was the insurrection of the Allobroges in 693(30)— the neighbours of the Sequani—which was beyond doubt connected with these events. In reality orders were issued to the Gallic governors to assist the Haedui; they talked of sending consuls and consular armies over the Alps; but the senate, to whose decision these

affairs primarily fell, at length here also crowned great words with little deeds. The insurrection of the Allobroges was suppressed by arms, but nothing was done for the Haedui; on the contrary, Ariovistus was even enrolled in 695 in the list of kings friendly with the Romans.(31)

Foundation of a German Empire in Gaul

The German warrior-prince naturally took this as a renunciation by the Romans of the Celtic land which they had not occupied; he accordingly took up his abode there, and began to establish a German principality on Gallic soil. It was his intention that the numerous bands which he had brought with him, and the still more numerous bands that afterwards followed at his call from home—it was reckoned that up to 696 some 120,000 Germans had crossed the Rhine—this whole mighty immigration of the German nation, which poured through the once opened sluices like a stream over the beautiful west, should become settled there and form a basis on which he might build his dominion over Gaul. The extent of the German settlements which he called into existence on the left bank of the Rhine cannot be determined; beyond doubt it was great, and his projects were far greater still. The Celts were treated by him as a wholly subjugated nation, and no distinction was made between the several cantons. Even the Sequani, as whose hired commander-in-chief he had crossed the Rhine, were obliged, as if they were vanquished enemies, to cede to him for his people a third of their territory—presumably upper Alsace afterwards inhabited by the Triboci—where Ariovistus permanently settled with his followers; nay, as if this were not enough, a second third was afterwards demanded of them for the Harudes who arrived subsequently. Ariovistus seemed as if he wished to take up in Gaul the part of Philip of Macedonia, and to play the master over the Celts who were friendly to the Germans no less than over those who adhered to the Romans.

The Germans on the Lower Rhine

The Germans on the Upper Rhine

Spread of the Helvetian Invasion to the Interior of Gaul

The appearance of the energetic German prince in so dangerous proximity, which could not but in itself excite the most serious apprehension in the Romans, appeared still more threatening, inasmuch as it stood by no means alone. The Usipetes and Tencteri settled on the right bank of the Rhine, weary of the incessant devastation of their territory by the overbearing Suebian tribes, had, the year before Caesar arrived in Gaul (695), set out from their previous abodes to seek others at the mouth of the Rhine. They had already taken away from the Menapii there the portion of their territory situated on the right bank, and it might be foreseen that they would make the attempt to establish themselves also on the left. Suebian bands, moreover, assembled between Cologne and Mayence, and threatened to appear as uninvited guests in the opposite Celtic canton of the Treveri. Lastly, the territory of the most easterly clan of the Celts, the warlike and numerous Helvetii, was visited with growing frequency by the Germans, so that the Helvetii, who perhaps even apart from this were suffering from over-population through the reflux of their settlers from the territory which they had lost to the north of the Rhine, and besides were liable to be completely isolated from their kinsmen by the settlement of Ariovistus in the territory of the Sequani, conceived the desperate resolution of voluntarily evacuating the territory hitherto in their possession to the Germans, and acquiring larger and more fertile abodes to the west of the Jura, along with, if possible, the hegemony in the interior of Gaul—a plan which some of their districts had already formed and attempted to execute during the Cimbrian invasion.(32) the Rauraci whose territory (Basle and southern Alsace) was similarly threatened, the remains, moreover, of the Boii who had already at an earlier period been compelled by the Germans to forsake their homes and were now unsettled wanderers, and other smaller

tribes, made common cause with the Helvetii. As early as 693 their flying parties came over the Jura and even as far as the Roman province; their departure itself could not be much longer delayed; inevitably German settlers would then advance into the important region between the lakes of Constance and Geneva forsaken by its defenders. From the sources of the Rhine to the Atlantic Ocean the German tribes were in motion; the whole line of the Rhine was threatened by them; it was a moment like that when the Alamanni and the Franks threw themselves on the falling empire of the Caesars; and even now there seemed on the eve of being carried into effect against the Celts that very movement which was successful five hundred years afterwards against the Romans.

Caesar Proceeds to Gaul

Caesar's Army

Under these circumstances the new governor Gaius Caesar arrived in the spring of 696 in Narbonese Gaul, which had been added by decree of the senate to his original province embracing Cisalpine Gaul along with Istria and Dalmatia. His office, which was committed to him first for five years (to the end of 700), then in 699 for five more (to the end of 705), gave him the right to nominate ten lieutenants of *propraetorian* rank, and (at least according to his own interpretation) to fill up his legions, or even to form new ones at his discretion out of the burgess-population—who were especially numerous in Cisalpine Gaul—of the territory under his sway. The army, which he received in the two provinces, consisted, as regards infantry of the line, of four legions trained and inured to war, the seventh, eighth, ninth, and tenth, or at the utmost 24,000 men, to which fell to be added, as usual, the contingents of the subjects. The cavalry and light-armed troops, moreover, were represented by horsemen from Spain, and by Numidian, Cretan, and Balearic archers and slingers. The staff of Caesar—the elite of the democracy of the capital—contained, along with not a few useless

young men of rank, some able officers, such as Publius Crassus the younger son of the old political ally of Caesar, and Titus Labienus, who followed the chief of the democracy as a faithful adjutant from the Forum to the battlefield. Caesar had not received definite instructions; to one who was discerning and courageous these were implied in the circumstances with which he had to deal. Here too the negligence of the senate had to be retrieved, and first of all the stream of migration of the German peoples had to be checked.

Repulse of the Helvetii

Just at this time the Helvetic invasion, which was closely interwoven with the German and had been in preparation for years, began. That they might not make a grant of their abandoned huts to the Germans and might render their own return impossible, the Helvetii had burnt their towns and villages; and their long trains of waggons, laden with women, children, and the best part of their moveables, arrived from all sides at the Lemane lake near Geneva (Geneva), where they and their comrades had fixed their rendezvous for the 28th of March(33) of this year. According to their own reckoning the whole body consisted of 368,000 persons, of whom about a fourth part were able to bear arms. As the mountain chain of the Jura, stretching from the Rhine to the Rhone, almost completely closed in the Helvetic country towards the west, and its narrow defiles were as ill adapted for the passage of such a caravan as they were well adapted for defence, the leaders had resolved to go round in a southerly direction, and to open up for themselves a way to the west at the point, where the Rhone has broken through the mountain-chain between the south-western and highest part of the Jura and the Savoy mountains, near the modern Fort de l'Ecluse. But on the right bank here the rocks and precipices come so close to the river that there remained only a narrow path which could easily be blocked up, and the Sequani, to whom this bank belonged, could with ease intercept the

route of the Helvetii. They preferred therefore to pass over, above the point where the Rhone breaks through, to the left Allobrogian bank, with the view of regaining the right bank further down the stream where the Rhone enters the plain, and then marching on towards the level west of Gaul; there the fertile canton of the Santones (Saintonge, the valley of the Charente) on the Atlantic Ocean was selected by the wanderers for their new abode. This march led, where it touched the left bank of the Rhone, through Roman territory; and Caesar, otherwise not disposed to acquiesce in the establishment of the Helvetii in western Gaul, was firmly resolved not to permit their passage. But of his four legions three were stationed far off at Aquileia; although he called out in haste the militia of the Transalpine province, it seemed scarcely possible with so small a force to hinder the innumerable Celtic host from crossing the Rhone, between its exit from the Lemman lake at Geneva and the point of its breaking through the mountains, over a distance of more than fourteen miles. Caesar, however, by negotiations with the Helvetii, who would gladly have effected by peaceable means the crossing of the river and the march through the Allobrogian territory, gained a respite of fifteen days, which was employed in breaking down the bridge over the Rhone at Geneva, and barring the southern bank of the Rhone against the enemy by an entrenchment nearly nineteen miles long: it was the first application of the system—afterwards carried out on so immense a scale by the Romans—of guarding the frontier of the empire in a military point of view by a chain of forts placed in connection with each other by ramparts and ditches. The attempts of the Helvetii to gain the other bank at different places in boats or by means of fords were successfully frustrated by the Romans in these lines, and the Helvetii were compelled to desist from the passage of the Rhone.

The Helvetii Move towards Gaul

On the other hand, the party in Gaul hostile to the Romans, which hoped to obtain a powerful reinforcement in the Helvetii, more especially the Haeduan Dumnorix brother of Divitiacus, and at the head of the national party in his canton as the latter was at the head of the Romans, procured for them a passage through the passes of the Jura and the territory of the Sequani. The Romans had no legal title to forbid this; but other and higher interests were at stake for them in the Helvetic expedition than the question of the formal integrity of the Roman territory— interests which could only be guarded, if Caesar, instead of confining himself, as all the governors of the senate and even Marius⁽³⁴⁾ had done, to the modest task of watching the frontier, should cross what had hitherto been the frontier at the head of a considerable army. Caesar was general not of the senate, but of the state; he showed no hesitation. He had immediately proceeded from Geneva in person to Italy, and with characteristic speed brought up the three legions cantoned there as well as two newly-formed legions of recruits.

The Helvetian War

These troops he united with the corps stationed at Geneva, and crossed the Rhone with his whole force. His unexpected appearance in the territory of the Haedui naturally at once restored the Roman party there to power, which was not unimportant as regarded supplies. He found the Helvetii employed in crossing the Saone, and moving from the territory of the Sequani into that of the Haedui; those of them that were still on the left bank of the Saone, especially the corps of the Tigorini, were caught and destroyed by the Romans rapidly advancing. The bulk of the expedition, however, had already crossed to the right bank of the river; Caesar followed them and in twenty-four hours effected the passage, which the unwieldy host of the Helvetii had not been able to accomplish in twenty days. The Helvetii, prevented by this passage of the river on the part of the Roman army from continuing their march westward, turned in a northerly direction,

doubtless under the supposition that Caesar would not venture to follow them far into the interior of Gaul, and with the intention, if he should desist from following them, of turning again toward their proper destination. For fifteen days the Roman army marched behind that of the enemy at a distance of about four miles, clinging to its rear, and hoping for an advantageous opportunity of assailing the Helvetic host under conditions favourable to victory, and destroying it. But this moment came not: unwieldy as was the march of the Helvetic caravan, the leaders knew how to guard against a surprise, and appeared to be copiously provided with supplies as well as most accurately informed by their spies of every event in the Roman camp. On the other hand the Romans began to suffer from want of necessities, especially when the Helvetii removed from the Saone and the means of river-transport ceased. The non-arrival of the supplies promised by the Haedui, from which this embarrassment primarily arose, excited the more suspicion, as both armies were still moving about in their territory. Moreover the considerable Roman cavalry, numbering almost 4000 horse, proved utterly untrustworthy—which doubtless admitted of explanation, for they consisted almost wholly of Celtic horsemen, especially of the mounted retainers of the Haedui, under the command of Dumnorix the well-known enemy of the Romans, and Caesar himself had taken them over still more as hostages than as soldiers. There was good reason to believe that a defeat which they suffered at the hands of the far weaker Helvetic cavalry was occasioned by themselves, and that the enemy was informed by them of all occurrences in the Roman camp. The position of Caesar grew critical; it was becoming disagreeably evident, how much the Celtic patriot party could effect even with the Haedui in spite of their official alliance with Rome, and of the distinctive interests of this canton inclining it towards the Romans; what was to be the issue, if they ventured deeper and deeper into a country full of excitement, and if they removed daily farther from their means of communication? The armies were just

marching past Bibracte (Autun), the capital of the Haedui, at a moderate distance; Caesar resolved to seize this important place by force before he continued his march into the interior; and it is very possible, that he intended to desist altogether from farther pursuit and to establish himself in Bibracte. But when he ceased from the pursuit and turned against Bibracte, the Helvetii thought that the Romans were making preparations for flight, and now attacked in their turn.

Battle at Bibracte

Caesar desired nothing better. The two armies posted themselves on two parallel chains of hills; the Celts began the engagement, broke up the Roman cavalry which had advanced into the plain, and rushed on against the Roman legions posted on the slope of the hill, but were there obliged to give way before Caesar's veterans. When the Romans thereupon, following up their advantage, descended in their turn to the plain, the Celts again advanced against them, and a reserved Celtic corps took them at the same time in flank. The reserve of the Roman attacking column was pushed forward against the latter; it forced it away from the main body towards the baggage and the barricade of waggons, where it was destroyed. The bulk of the Helvetic host was at length brought to give way, and compelled to beat a retreat in an easterly direction—the opposite of that towards which their expedition led them. This day had frustrated the scheme of the Helvetii to establish for themselves new settlements on the Atlantic Ocean, and handed them over to the pleasure of the victor; but it had been a hot day also for the conquerors. Caesar, who had reason for not altogether trusting his staff of officers, had at the very outset sent away all the officers' horses, so as to make the necessity of holding their ground thoroughly clear to his troops; in fact the battle, had the Romans lost it, would have probably brought about the annihilation of the Roman army. The Roman troops were too much exhausted to pursue the conquered with vigour; but in consequence of the

proclamation of Caesar that he would treat all who should support the Helvetii as like the Helvetii themselves enemies of the Romans, all support was refused to the beaten army whithersoever it went—in the first instance, in the canton of the Lingones (about Langres)—and, deprived of all supplies and of their baggage and burdened by the mass of camp-followers incapable of fighting, they were under the necessity of submitting to the Roman general.

The Helvetii Sent back to Their Original Abode

The lot of the vanquished was a comparatively mild one. The Haedui were directed to concede settlements in their territory to the homeless Boii; and this settlement of the conquered foe in the midst of the most powerful Celtic cantons rendered almost the services of a Roman colony. The survivors of the Helvetii and Rauraci, something more than a third of the men that had marched forth, were naturally sent back to their former territory. It was incorporated with the Roman province, but the inhabitants were admitted to alliance with Rome under favourable conditions, in order to defend, under Roman supremacy, the frontier along the upper Rhine against the Germans. Only the south-western point of the Helvetic canton was directly taken into the possession of the Romans, and there subsequently, on the charming shore of the Lemane lake, the old Celtic town Noviodunum (now Nyon) was converted into a Roman frontier-fortress, the "Julian equestrian colony." (35)

Caesar and Ariovistus Negotiations

Thus the threatening invasion of the Germans on the upper Rhine was obviated, and, at the same time, the party hostile to the Romans among the Celts was humbled. On the middle Rhine also, where the Germans had already crossed years ago, and where the power of Ariovistus which vied

with that of Rome in Gaul was daily spreading, there was need of similar action, and the occasion for a rupture was easily found. In comparison with the yoke threatened or already imposed on them by Ariovistus, the Roman supremacy probably now appeared to the greater part of the Celts in this quarter the lesser evil; the minority, who retained their hatred of the Romans, had at least to keep silence. A diet of the Celtic tribes of central Gaul, held under Roman influence, requested the Roman general in name of the Celtic nation for aid against the Germans. Caesar consented. At his suggestion the Haedui stopped the payment of the tribute stipulated to be paid to Ariovistus, and demanded back the hostages furnished; and when Ariovistus on account of this breach of treaty attacked the clients of Rome, Caesar took occasion thereby to enter into direct negotiation with him and specially to demand, in addition to the return of the hostages and a promise to keep peace with the Haedui, that Ariovistus should bind himself to allure no more Germans over the Rhine. The German general replied to the Roman, in the full consciousness of equality of rights, that northern Gaul had become subject to him by right of war as fairly as southern Gaul to the Romans; and that, as he did not hinder the Romans from taking tribute from the Allobroges, so they should not prevent him from taxing his subjects. In later secret overtures it appeared that the prince was well aware of the circumstances of the Romans; he mentioned the invitations which had been addressed to him from Rome to put Caesar out of the way, and offered, if Caesar would leave to him northern Gaul, to assist him in turn to obtain the sovereignty of Italy—as the party-quarrels of the Celtic nation had opened up an entrance for him into Gaul, he seemed to expect from the party-quarrels of the Italian nation the consolidation of his rule there. For centuries no such language of power completely on a footing of equality and bluntly and carelessly expressing its independence had been held in presence of the Romans, as was now heard from the king of the German host; he summarily refused to come, when the Roman general suggested

that he should appear personally before him according to the usual practice with client-princes.

Ariovistus Attacked And Beaten

It was the more necessary not to delay; Caesar immediately set out against Ariovistus. A panic seized his troops, especially his officers when they were to measure their strength with the flower of the German troops that for fourteen years had not come under shelter of a roof: it seemed as if the deep decay of Roman moral and military discipline would assert itself and provoke desertion and mutiny even in Caesar's camp. But the general, while declaring that in case of need he would march with the tenth legion alone against the enemy, knew not merely how to influence these by such an appeal to honour, but also how to bind the other regiments to their eagles by warlike emulation, and to inspire the troops with something of his own energy. Without leaving them time for reflection, he led them onward in rapid marches, and fortunately anticipated Ariovistus in the occupation of Vesontio (Besancon), the capital of the Sequani. A personal conference between the two generals, which took place at the request of Ariovistus, seemed as if solely meant to cover an attempt against the person of Caesar; arms alone could decide between the two oppressors of Gaul. The war came temporarily to a stand. In lower Alsace somewhere in the region of Muhlhausen, five miles from the Rhine,(36) the two armies lay at a little distance from each other, till Ariovistus with his very superior force succeeded in marching past the Roman camp, placing himself in its rear, and cutting off the Romans from their base and their supplies. Caesar attempted to free himself from his painful situation by a battle; but Ariovistus did not accept it. Nothing remained for the Roman general but, in spite of his inferior strength, to imitate the movement of the Germans, and to recover his communications by making two legions march past the

enemy and take up a position beyond the camp of the Germans, while four legions remained behind in the former camp. Ariovistus, when he saw the Romans divided, attempted an assault on their lesser camp; but the Romans repulsed it. Under the impression made by this success, the whole Roman army was brought forward to the attack; and the Germans also placed themselves in battle array, in a long line, each tribe for itself, the cars of the army with the baggage and women being placed behind them to render flight more difficult. The right wing of the Romans, led by Caesar himself, threw itself rapidly on the enemy, and drove them before it; the right wing of the Germans was in like manner successful. The balance still stood equal; but the tactics of the reserve, which had decided so many other conflicts with barbarians, decided the conflict with the Germans also in favour of the Romans; their third line, which Publius Crassus seasonably sent to render help, restored the battle on the left wing and thereby decided the victory. The pursuit was continued to the Rhine; only a few, including the king, succeeded in escaping to the other bank (696).

German Settlements on the Left Bank of the Rhine

Thus brilliantly the Roman rule announced its advent to the mighty stream, which the Italian soldiers here saw for the first time; by a single fortunate battle the line of the Rhine was won. The fate of the German settlements on the left bank of the Rhine lay in the hands of Caesar; the victor could destroy them, but he did not do so. The neighbouring Celtic cantons—the Sequani, Leuci, Mediomatrici—were neither capable of self-defence nor trustworthy; the transplanted Germans promised to become not merely brave guardians of the frontier but also better subjects of Rome, for their nationality severed them from the Celts, and their own interest in the preservation of their newly-won settlements severed them from their countrymen across the Rhine, so that in their isolated position they could not avoid adhering to the central power. Caesar here, as everywhere,

preferred conquered foes to doubtful friends; he left the Germans settled by Ariovistus along the left bank of the Rhine—the Triboci about Strassburg, the Nemetes about Spire, the Vangiones about Worms—in possession of their new abodes, and entrusted them with the guarding of the Rhine-frontier against their countrymen.(37) The Suebi, who threatened the territory of the Treveri on the middle Rhine, on receiving news of the defeat of Ariovistus, again retreated into the interior of Germany; on which occasion they sustained considerable loss by the way at the hands of the adjoining tribes.

The Rhine Boundary

The consequences of this one campaign were immense; they were felt for many centuries after. The Rhine had become the boundary of the Roman empire against the Germans. In Gaul, which was no longer able to govern itself, the Romans had hitherto ruled on the south coast, while lately the Germans had attempted to establish themselves farther up. The recent events had decided that Gaul was to succumb not merely in part but wholly to the Roman supremacy, and that the natural boundary presented by the mighty river was also to become the political boundary. The senate in its better times had not rested, till the dominion of Rome had reached the natural bounds of Italy—the Alps and the Mediterranean—and its adjacent islands. The enlarged empire also needed a similar military rounding off; but the present government left the matter to accident, and sought at most to see, not that the frontiers were capable of defence, but that they should not need to be defended directly by itself. People felt that now another spirit and another arm began to guide the destinies of Rome.

Subjugation of Gaul

Belgic Expedition

The foundations of the future edifice were laid; but in order to finish the building and completely to secure the recognition of the Roman rule by the Gauls, and that of the Rhine-frontier by the Germans, very much still remained to be done. All central Gaul indeed from the Roman frontier as far up as Chartres and Treves submitted without objection to the new ruler; and on the upper and middle Rhine also no attack was for the present to be apprehended from the Germans. But the northern provinces—as well the Aremorican cantons in Brittany and Normandy as the more powerful confederation of the Belgae—were not affected by the blows directed against central Gaul, and found no occasion to submit to the conqueror of Ariovistus. Moreover, as was already remarked, very close relations subsisted between the Belgae and the Germans over the Rhine, and at the mouth of the Rhine also Germanic tribes made themselves ready to cross the stream. In consequence of this Caesar set out with his army, now increased to eight legions, in the spring of 697 against the Belgic cantons. Mindful of the brave and successful resistance which fifty years before they had with united strength presented to the Cimbri on the borders of their land,(38) and stimulated by the patriots who had fled to them in numbers from central Gaul, the confederacy of the Belgae sent their whole first levy—300,000 armed men under the leadership of Galba the king of the Suessiones—to their southern frontier to receive Caesar there. A single canton alone, that of the powerful Remi (about Rheims) discerned in this invasion of the foreigners an opportunity to shake off the rule which their neighbours the Suessiones exercised over them, and prepared to take up in the north the part which the Haedui had played in central Gaul. The Roman and the Belgic armies arrived in their territory almost at the same time.

Conflicts on the Aisne

Submission of the Western Cantons

Caesar did not venture to give battle to the brave enemy six times as strong; to the north of the Aisne, not far from the modern Pontavert between Rheims and Laon, he pitched his camp on a plateau rendered almost unassailable on all sides partly by the river and by morasses, partly by fosses and redoubts, and contented himself with thwarting by defensive measures the attempts of the Belgae to cross the Aisne and thereby to cut him off from his communications. When he counted on the likelihood that the coalition would speedily collapse under its own weight, he had reckoned rightly. King Galba was an honest man, held in universal respect; but he was not equal to the management of an army of 300,000 men on hostile soil. No progress was made, and provisions began to fail; discontent and dissension began to insinuate themselves into the camp of the confederates. The Bellovaci in particular, equal to the Suessiones in power, and already dissatisfied that the supreme command of the confederate army had not fallen to them, could no longer be detained after news had arrived that the Haedui as allies of the Romans were making preparations to enter the Bellovacic territory. They determined to break up and go home; though for honour's sake all the cantons at the same time bound themselves to hasten with their united strength to the help of the one first attacked, the miserable dispersion of the confederacy was but miserably palliated by such impracticable stipulations. It was a catastrophe which vividly reminds us of that which occurred almost on the same spot in 1792; and, just as with the campaign in Champagne, the defeat was all the more severe that it took place without a battle. The bad leadership of the retreating army allowed the Roman general to pursue it as if it were beaten, and to destroy a portion of the contingents that had remained to the last. But the consequences of the victory were not confined to this. As Caesar advanced into the western cantons of the Belgae, one after another gave themselves up as lost almost without resistance; the powerful Suessiones (about Soissons), as well as their rivals, the Bellovaci (about Beauvais) and the Ambiani (about

Amiens). The towns opened their gates when they saw the strange besieging machines, the towers rolling up to their walls; those who would not submit to the foreign masters sought a refuge beyond the sea in Britain.

The Conflict with the Nervii

But in the eastern cantons the national feeling was more energetically roused. The Viromandui (about Arras), the Atrebates (about St. Quentin), the German Aduatuci (about Namur), but above all the Nervii (in Hainault) with their not inconsiderable body of clients, little inferior in number to the Suessiones and Bellovaci, far superior to them in valour and vigorous patriotic spirit, concluded a second and closer league, and assembled their forces on the upper Sambre. Celtic spies informed them most accurately of the movements of the Roman army; their own local knowledge, and the high tree-barricades which were formed everywhere in these districts to obstruct the bands of mounted robbers who often visited them, allowed the allies to conceal their own operations for the most part from the view of the Romans. When these arrived on the Sambre not far from Bavay, and the legions were occupied in pitching their camp on the crest of the left bank, while the cavalry and light infantry were exploring the opposite heights, the latter were all at once assailed by the whole mass of the enemy's forces and driven down the hill into the river. In a moment the enemy had crossed this also, and stormed the heights of the left bank with a determination that braved death. Scarcely was there time left for the entrenching legionaries to exchange the mattock for the sword; the soldiers, many without helmets, had to fight just as they stood, without line of battle, without plan, without proper command; for, owing to the suddenness of the attack and the intersection of the ground by tall hedges, the several divisions had wholly lost their communications. Instead of a battle there arose a number of unconnected conflicts. Labienus with the left wing overthrew the Atrebates and pursued them even across the river. The Roman central division forced

the Viromandui down the declivity. But the right wing, where the general himself was present, was outflanked by the far more numerous Nervii the more easily, as the central division carried away by its own success had evacuated the ground alongside of it, and even the half-ready camp was occupied by the Nervii; the two legions, each separately rolled together into a dense mass and assailed in front and on both flanks, deprived of most of their officers and their best soldiers, appeared on the point of being broken and cut to pieces. The Roman camp-followers and the allied troops were already fleeing in all directions; of the Celtic cavalry whole divisions, like the contingent of the Treveri, galloped off at full speed, that from the battle-field itself they might announce at home the welcome news of the defeat which had been sustained. Everything was at stake. The general himself seized his shield and fought among the foremost; his example, his call even now inspiring enthusiasm, induced the wavering ranks to rally. They had already in some measure extricated themselves and had at least restored the connection between the two legions of this wing, when help came up—partly down from the crest of the bank, where in the interval the Roman rearguard with the baggage had arrived, partly from the other bank of the river, where Labienus had meanwhile penetrated to the enemy's camp and taken possession of it, and now, perceiving at length the danger that menaced the right wing, despatched the victorious tenth legion to the aid of his general. The Nervii, separated from their confederates and simultaneously assailed on all sides, now showed, when fortune turned, the same heroic courage as when they believed themselves victors; still over the pile of corpses of their fallen comrades they fought to the last man. According to their own statement, of their six hundred senators only three survived this day.

Subjugation of the Belgae

After this annihilating defeat the Nervii, Atrebates, and Viromandui could not but recognize the Roman supremacy. The Aduatuci, who arrived too late to take part in the fight on the Sambre, attempted still to hold their ground in the strongest of their towns (on the mount Falhize near the Maas not far from Huy), but they too soon submitted. A nocturnal attack on the Roman camp in front of the town, which they ventured after the surrender, miscarried; and the perfidy was avenged by the Romans with fearful severity. The clients of the Aduatuci, consisting of the Eburones between the Maas and Rhine and other small adjoining tribes, were declared independent by the Romans, while the Aduatuci taken prisoners were sold under the hammer en masse for the benefit of the Roman treasury. It seemed as if the fate which had befallen the Cimbri still pursued even this last Cimbrian fragment. Caesar contented himself with imposing on the other subdued tribes a general disarmament and furnishing of hostages. The Remi became naturally the leading canton in Belgic, like the Haedui in central Gaul; even in the latter several clans at enmity with the Haedui preferred to rank among the clients of the Remi. Only the remote maritime cantons of the Morini (Artois) and the Menapii (Flanders and Brabant), and the country between the Scheldt and the Rhine inhabited in great part by Germans, remained still for the present exempt from Roman invasion and in possession of their hereditary freedom.

Expeditions against the Maritime Cantons Venetian War

The turn of the Aremorican cantons came. In the autumn of 697 Publius Crassus was sent thither with a Roman corps; he induced the Veneti—who as masters of the ports of the modern Morbihan and of a respectable fleet occupied the first place among all the Celtic cantons in navigation and commerce—and generally the coast-districts between the Loire and Seine, to submit to the Romans and give them hostages. But they soon repented.

When in the following winter (697-698) Roman officers came to these legions to levy requisitions of grain there, they were detained by the Veneti as counter-hostages. The example thus set was quickly followed not only by the Aremorican cantons, but also by the maritime cantons of the Belgae that still remained free; where, as in some cantons of Normandy, the common council refused to join the insurrection, the multitude put them to death and attached itself with redoubled zeal to the national cause. The whole coast from the mouth of the Loire to that of the Rhine rose against Rome; the most resolute patriots from all the Celtic cantons hastened thither to co-operate in the great work of liberation; they already calculated on the rising of the whole Belgic confederacy, on aid from Britain, on the arrival of Germans from beyond the Rhine.

Caesar sent Labienus with all the cavalry to the Rhine, with a view to hold in check the agitation in the Belgic province, and in case of need to prevent the Germans from crossing the river; another of his lieutenants, Quintus Titurius Sabinus, went with three legions to Normandy, where the main body of the insurgents assembled. But the powerful and intelligent Veneti were the true centre of the insurrection; the chief attack by land and sea was directed against them. Caesar's lieutenant, Decimus Brutus, brought up the fleet formed partly of the ships of the subject Celtic cantons, partly of a number of Roman galleys hastily built on the Loire and manned with rowers from the Narbonese province; Caesar himself advanced with the flower of his infantry into the territory of the Veneti. But these were prepared beforehand, and had with equal skill and resolution availed themselves of the favourable circumstances which the nature of the ground in Brittany and the possession of a considerable naval power presented. The country was much intersected and poorly furnished with grain, the towns were situated for the most part on cliffs and tongues of land, and were accessible from the mainland only by shallows which it was difficult to cross; the provision of supplies and the conducting of sieges were equally

difficult for the army attacking by land, while the Celts by means of their vessels could furnish the towns easily with everything needful, and in the event of the worst could accomplish their evacuation. The legions expended their time and strength in the sieges of the Venetian townships, only to see the substantial fruits of victory ultimately carried off in the vessels of the enemy.

Naval Battle between the Romans and the Veneti Submission of the Maritime Cantons

Accordingly when the Roman fleet, long detained by storms at the mouth of the Loire, arrived at length on the coast of Brittany, it was left to decide the struggle by a naval battle. The Celts, conscious of their superiority on this element, brought forth their fleet against that of the Romans commanded by Brutus. Not only did it number 220 sail, far more than the Romans had been able to bring up, but their high-decked strong sailing-vessels with flat bottoms were also far better adapted for the high-running waves of the Atlantic Ocean than the low, lightly-built oared galleys of the Romans with their sharp keels. Neither the missiles nor the boarding-bridges of the Romans could reach the high deck of the enemy's vessels, and the iron beaks recoiled powerless from the strong oaken planks. But the Roman mariners cut the ropes, by which the yards were fastened to the masts, by means of sickles fastened to long poles; the yards and sails fell down, and, as they did not know how to repair the damage speedily, the ship was thus rendered a wreck just as it is at the present day by the falling of the masts, and the Roman boats easily succeeded by a joint attack in mastering the maimed vessel of the enemy. When the Gauls perceived this manoeuvre, they attempted to move from the coast on which they had taken up the combat with the Romans, and to gain the high seas, whither the Roman galleys could not follow them; but unhappily for them there suddenly set in a dead calm, and the immense fleet, towards the equipment

of which the maritime cantons had applied all their energies, was almost wholly destroyed by the Romans. Thus was this naval battle—so far as historical knowledge reaches, the earliest fought on the Atlantic Ocean—just like the engagement at Mylae two hundred years before,(39) notwithstanding the most unfavourable circumstances, decided in favour of the Romans by a lucky invention suggested by necessity. The consequence of the victory achieved by Brutus was the surrender of the Veneti and of all Brittany. More with a view to impress the Celtic nation, after so manifold evidences of clemency towards the vanquished, by an example of fearful severity now against those whose resistance had been obstinate, than with the view of punishing the breach of treaty and the arrest of the Roman officers, Caesar caused the whole common council to be executed and the people of the Venetian canton to the last man to be sold into slavery. By this dreadful fate, as well as by their intelligence and their patriotism, the Veneti have more than any other Celtic clan acquired a title to the sympathy of posterity.

Sabinus meanwhile opposed to the levy of the coast-states assembled on the Channel the same tactics by which Caesar had in the previous year conquered the Belgic general levy on the Aisne; he stood on the defensive till impatience and want invaded the ranks of the enemy, and then managed by deceiving them as to the temper and strength of his troops, and above all by means of their own impatience, to allure them to an imprudent assault upon the Roman camp, in which they were defeated; whereupon the militia dispersed and the country as far as the Seine submitted.

Expeditins against the Morini and Menapii

The Morini and Menapii alone persevered in withholding their recognition of the Roman supremacy. To compel them to this, Caesar appeared on their borders; but, rendered wiser by the experiences of their

countrymen, they avoided accepting battle on the borders of their land, and retired into the forests which then stretched almost without interruption from the Ardennes towards the German Ocean. The Romans attempted to make a road through the forest with the axe, ranging the felled trees on each side as a barricade against the enemy's attacks; but even Caesar, daring as he was, found it advisable after some days of most laborious marching, especially as it was verging towards winter, to order a retreat, although but a small portion of the Morini had submitted and the powerful Menapii had not been reached at all. In the following year (699) while Caesar himself was employed in Britain the greater part of the army was sent afresh against these tribes; but this expedition also remained in the main unsuccessful. Nevertheless the result of the last campaigns was the almost complete reduction of Gaul under the dominion of the Romans. While central Gaul had submitted to it without resistance, during the campaign of 697 the Belgic, and during that of the following year the maritime, cantons had been compelled by force of arms to acknowledge the Roman rule. The lofty hopes, with which the Celtic patriots had begun the last campaign, had nowhere been fulfilled. Neither Germans nor Britons had come to their aid; and in Belgica the presence of Labienus had sufficed to prevent the renewal of the conflicts of the previous year.

Establishment of Communications with Italy by the Valais

While Caesar was thus forming the Roman domain in the west by force of arms into a compact whole, he did not neglect to open up for the newly-conquered country—which was destined in fact to fill up the wide gap in that domain between Italy and Spain—communications both with the Italian home and with the Spanish provinces. The communication between Gaul and Italy had certainly been materially facilitated by the military road laid out by Pompeius in 677 over Mont Genevre;⁽⁴⁰⁾ but since the whole of Gaul had been subdued by the Romans, there was need of a route crossing

the ridge of the Alps from the valley of the Po, not in a westerly but in a northerly direction, and furnishing a shorter communication between Italy and central Gaul. The way which leads over the Great St. Bernard into the Valais and along the lake of Geneva had long served the merchant for this purpose; to get this road into his power, Caesar as early as the autumn of 697 caused Octodurum (Martigny) to be occupied by Servius Galba, and the inhabitants of the Valais to be reduced to subjection—a result which was, of course, merely postponed, not prevented, by the brave resistance of these mountain-peoples.

And with Spain

To gain communication with Spain, moreover, Publius Crassus was sent in the following year (698) to Aquitania with instructions to compel the Iberian tribes dwelling there to acknowledge the Roman rule. The task was not without difficulty; the Iberians held together more compactly than the Celts and knew better than these how to learn from their enemies. The tribes beyond the Pyrenees, especially the valiant Cantabri, sent a contingent to their threatened countrymen; with this there came experienced officers trained under the leadership of Sertorius in the Roman fashion, who introduced as far as possible the principles of the Roman art of war, and especially of encampment, among the Aquitanian levy already respectable from its numbers and its valour. But the excellent officer who led the Romans knew how to surmount all difficulties, and after some hardly-contested but successful battles he induced the peoples from the Garonne to the vicinity of the Pyrenees to submit to the new masters.

Fresh Violations of the Rhine-Boundary by the Germans The Usipetes and Tencteri

One of the objects which Caesar had proposed to himself—the subjugation of Gaul—had been in substance, with exceptions scarcely

worth mentioning, attained so far as it could be attained at all by the sword. But the other half of the work undertaken by Caesar was still far from being satisfactorily accomplished, and the Germans had by no means as yet been everywhere compelled to recognize the Rhine as their limit. Even now, in the winter of 698-699, a fresh crossing of the boundary had taken place on the lower course of the river, whither the Romans had not yet penetrated. The German tribes of the Usipetes and Tencteri whose attempts to cross the Rhine in the territory of the Menapii have been already mentioned,(41) had at length, eluding the vigilance of their opponents by a feigned retreat, crossed in the vessels belonging to the Menapii—an enormous host, which is said, including women and children, to have amounted to 430,000 persons. They still lay, apparently, in the region of Nimeguen and Cleves; but it was said that, following the invitations of the Celtic patriot party, they intended to advance into the interior of Gaul; and the rumour was confirmed by the fact that bands of their horsemen already roamed as far as the borders of the Treveri. But when Caesar with his legions arrived opposite to them, the sorely- harassed emigrants seemed not desirous of fresh conflicts, but very ready to accept land from the Romans and to till it in peace under their supremacy. While negotiations as to this were going on, a suspicion arose in the mind of the Roman general that the Germans only sought to gain time till the bands of horsemen sent out by them had returned. Whether this suspicion was well founded or not, we cannot tell; but confirmed in it by an attack, which in spite of the de facto suspension of arms a troop of the enemy made on his vanguard, and exasperated by the severe loss thereby sustained, Caesar believed himself entitled to disregard every consideration of international law. When on the second morning the princes and elders of the Germans appeared in the Roman camp to apologize for the attack made without their knowledge, they were arrested, and the multitude anticipating no assault and deprived of their leaders were suddenly fallen upon by the Roman army. It was rather a manhunt than a

battle; those that did not fall under the swords of the Romans were drowned in the Rhine; almost none but the divisions detached at the time of the attack escaped the massacre and succeeded in recrossing the Rhine, where the Sugambri gave them an asylo in their territory, apparently on the Lippe. The behaviour of Caesar towards these German immigrants met with severe and just censure in the senate; but, however little it can be excused, the German encroachments were emphatically checked by the terror which it occasioned.

Caesar on the Right Bank of the Rhine

Caesar however found it advisable to take yet a further step and to lead the legions over the Rhine. He was not without connections beyond the river. the Germans at the stage of culture which they had then reached, lacked as yet any national coherence; in political distraction they—though from other causes—fell nothing short of the Celts. The Ubii (on the Sieg and Lahn), the most civilized among the German tribes, had recently been made subject and tributary by a powerful Suebian canton of the interior, and had as early as 697 through their envoys entreated Caesar to free them like the Gauls from the Suebian rule. It was not Caesar's design seriously to respond to this suggestion, which would have involved him in endless enterprises; but it seemed advisable, with the view of preventing the appearance of the Germanic arms on the south of the Rhine, at least to show the Roman arms beyond it. The protection which the fugitive Usipetes and Tencteri had found among the Sugambri afforded a suitable occasion. In the region, apparently between Coblentz and Andernach, Caesar erected a bridge of piles over the Rhine and led his legions across from the Treverian to the Ubian territory. Some smaller cantons gave in their submission; but the Sugambri, against whom the expedition was primarily directed, withdrew, on the approach of the Roman army, with those under their protection into the interior. In like manner the powerful Suebian canton

which oppressed the Ubii—presumably the same which subsequently appears under the name of the Chatti—caused the districts immediately adjoining the Ubian territory to be evacuated and the non-combatant portion of the people to be placed in safety, while all the men capable of arms were directed to assemble at the centre of the canton. The Roman general had neither occasion nor desire to accept this challenge; his object—partly to reconnoitre, partly to produce an impressive effect if possible upon the Germans, or at least on the Celts and his countrymen at home, by an expedition over the Rhine—was substantially attained; after remaining eighteen days on the right bank of the Rhine he again arrived in Gaul and broke down the Rhine bridge behind him (699).

Expeditions to Britain

There remained the insular Celts. From the close connection between them and the Celts of the continent, especially the maritime cantons, it may readily be conceived that they had at least sympathized with the national resistance, and that if they did not grant armed assistance to the patriots, they gave at any rate an honourable asylum in their sea-protected isle to every one who was no longer safe in his native land. This certainly involved a danger, if not for the present, at any rate for the future; it seemed judicious—if not to undertake the conquest of the island itself—at any rate to conduct there also defensive operations by offensive means, and to show the islanders by a landing on the coast that the arm of the Romans reached even across the Channel. The first Roman officer who entered Brittany, Publius Crassus had already (697) crossed thence to the "tin-islands" at the south-west point of England (Stilly islands); in the summer of 699 Caesar himself with only two legions crossed the Channel at its narrowest part.(42) He found the coast covered with masses of the enemy's troops and sailed onward with his vessels; but the British war- chariots moved on quite as fast by land as the Roman galleys by sea, and it was only with the utmost

difficulty that the Roman soldiers succeeded in gaining the shore in the face of the enemy, partly by wading, partly in boats, under the protection of the ships of war, which swept the beach with missiles thrown from machines and by the hand. In the first alarm the nearest villages submitted; but the islanders soon perceived how weak the enemy was, and how he did not venture to move far from the shore. The natives disappeared into the interior and returned only to threaten the camp; and the fleet, which had been left in the open roads, suffered very considerable damage from the first tempest that burst upon it. The Romans had to reckon themselves fortunate in repelling the attacks of the barbarians till they had bestowed the necessary repairs on the ships, and in regaining with these the Gallic coast before the bad season of the year came on.

Caesar himself was so dissatisfied with the results of this expedition undertaken inconsiderately and with inadequate means, that he immediately (in the winter of 699-700) ordered a transport fleet of 800 sail to be fitted out, and in the spring of 700 sailed a second time for the Kentish coast, on this occasion with five legions and 2000 cavalry. The forces of the Britons, assembled this time also on the shore, retired before the mighty armada without risking a battle; Caesar immediately set out on his march into the interior, and after some successful conflicts crossed the river Stour; but he was obliged to halt very much against his will, because the fleet in the open roads had been again half destroyed by the storms of the Channel. Before they got the ships drawn up upon the beach and the extensive arrangements made for their repair, precious time was lost, which the Celts wisely turned to account.

Cassivellaunus

The brave and cautious prince Cassivellaunus, who ruled in what is now Middlesex and the surrounding district—formerly the terror of the Celts to

the south of the Thames, but now the protector and champion of the whole nation—had headed the defence of the land. He soon saw that nothing at all could be done with the Celtic infantry against the Roman, and that the mass of the general levy— which it was difficult to feed and difficult to control— was only a hindrance to the defence; he therefore dismissed it and retained only the war-chariots, of which he collected 4000, and in which the warriors, accustomed to leap down from their chariots and fight on foot, could be employed in a twofold manner like the burgess- cavalry of the earliest Rome. When Caesar was once more able to continue his march, he met with no interruption to it; but the British war-chariots moved always in front and alongside of the Roman army, induced the evacuation of the country (which from the absence of towns proved no great difficulty), prevented the sending out of detachments, and threatened the communications. The Thames was crossed—apparently between Kingston and Brentford above London—by the Romans; they moved forward, but made no real progress; the general achieved no victory, the soldiers made no booty, and the only actual result, the submission of the Trinobante in the modern Essex, was less the effect of a dread of the Romans than of the deep hostility between this canton and Cassivellaunus. The danger increased with every onward step, and the attack, which the princes of Kent by the orders of Cassivellaunus made on the Roman naval camp, although it was repulsed, was an urgent warning to turn back. The taking by storm of a great British tree-barricade, in which a multitude of cattle fell into the hands of the Romans, furnished a passable conclusion to the aimless advance and a tolerable pretext for returning. Cassivellaunus was sagacious enough not to drive the dangerous enemy to extremities, and promised, as Caesar desired him, to abstain from disturbing the Trinobantes, to pay tribute and to furnish hostages; nothing was said of delivering up arms or leaving behind a Roman garrison, and even those promises were, it may be presumed, so far as they concerned the future, neither given nor received in

earnest. After receiving the hostages Caesar returned to the naval camp and thence to Gaul. If he, as it would certainly seem, had hoped on this occasion to conquer Britain, the scheme was totally thwarted partly by the wise defensive system of Cassivellaunus, partly and chiefly by the unserviceableness of the Italian oared fleet in the waters of the North Sea; for it is certain that the stipulated tribute was never paid. But the immediate object—of rousing the islanders out of their haughty security and inducing them in their own interest no longer to allow their island to be a rendezvous for continental emigrants— seems certainly to have been attained; at least no complaints are afterwards heard as to the bestowal of such protection.

The Conspiracy of the Patriots

The work of repelling the Germanic invasion and of subduing the continental Celts was completed. But it is often easier to subdue a free nation than to keep a subdued one in subjection. The rivalry for the hegemony, by which more even than by the attacks of Rome the Celtic nation had been ruined, was in some measure set aside by the conquest, inasmuch as the conqueror took the hegemony to himself. Separate interests were silent; under the common oppression at any rate they felt themselves again as one people; and the infinite value of that which they had with indifference gambled away when they possessed it—freedom and nationality— was now, when it was too late, fully appreciated by their infinite longing. But was it, then, too late? With indignant shame they confessed to themselves that a nation, which numbered at least a million of men capable of arms, a nation of ancient and well- founded warlike renown, had allowed the yoke to be imposed upon it by, at the most, 50,000 Romans. The submission of the confederacy of central Gaul without having struck even a blow; the submission of the Belgic confederacy without having done more than merely shown a wish to strike; the heroic fall on the other hand of the Nervii and the Veneti, the sagacious and successful

resistance of the Morini, and of the Britons under Cassivellaunus— all that in each case had been done or neglected, had failed or had succeeded— spurred the minds of the patriots to new attempts, if possible, more united and more successful. Especially among the Celtic nobility there prevailed an excitement, which seemed every moment as if it must break out into a general insurrection. Even before the second expedition to Britain in the spring of 700 Caesar had found it necessary to go in person to the Treveri, who, since they had compromised themselves in the Nervian conflict in 697, had no longer appeared at the general diets and had formed more than suspicious connections with the Germans beyond the Rhine. At that time Caesar had contented himself with carrying the men of most note among the patriot party, particularly Indutiomarus, along with him to Britain in the ranks of the Treverian cavalry-contingent; he did his utmost to overlook the conspiracy, that he might not by strict measures ripen it into insurrection. But when the Haeduan Dumnorix, who likewise was present in the army destined for Britain, nominally as a cavalry officer, but really as a hostage, peremptorily refused to embark and rode home instead, Caesar could not do otherwise than have him pursued as a deserter; he was accordingly overtaken by the division sent after him and, when he stood on his defence, was cut down (700). That the most esteemed knight of the most powerful and still the least dependent of the Celtic cantons should have been put to death by the Romans, was a thunder-clap for the whole Celtic nobility; every one who was conscious of similar sentiments—and they formed the great majority— saw in that catastrophe the picture of what was in store for himself.

Insurrection

If patriotism and despair had induced the heads of the Celtic nobility to conspire, fear and self-defence now drove the conspirators to strike. In the winter of 700-701, with the exception of a legion stationed in Brittany and a

second in the very unsettled canton of the Carnutes (near Chartres), the whole Roman army numbering six legions was encamped in the Belgic territory. The scantiness of the supplies of grain had induced Caesar to station his troops farther apart than he was otherwise wont to do—in six different camps constructed in the cantons of the Bellovaci, Ambiani, Morini, Nervii, Remi, and Eburones. The fixed camp placed farthest towards the east in the territory of the Eburones, probably not far from the later Aduatuca (the modern Tongern), the strongest of all, consisting of a legion under one of the most respected of Caesar's leaders of division, Quintus Titurius Sabinus, besides different detachments led by the brave Lucius Aurunculeius Cotta⁽⁴³⁾ and amounting together to the strength of half a legion, found itself all of a sudden surrounded by the general levy of the Eburones under the kings Ambiorix and Catuvolcus. The attack came so unexpectedly, that the very men absent from the camp could not be recalled and were cut off by the enemy; otherwise the immediate danger was not great, as there was no lack of provisions, and the assault, which the Eburones attempted, recoiled powerless from the Roman intrenchments. But king Ambiorix informed the Roman commander that all the Roman camps in Gaul were similarly assailed on the same day, and that the Romans would undoubtedly be lost if the several corps did not quickly set out and effect a junction; that Sabinus had the more reason to make haste, as the Germans too from beyond the Rhine were already advancing against him; that he himself out of friendship for the Romans would promise them a free retreat as far as the nearest Roman camp, only two days' march distant. Some things in these statements seemed no fiction; that the little canton of the Eburones specially favoured by the Romans⁽⁴⁴⁾ should have undertaken the attack of its own accord was in reality incredible, and, owing to the difficulty of effecting a communication with the other far-distant camps, the danger of being attacked by the whole mass of the insurgents and destroyed in detail was by no means to be esteemed slight; nevertheless it could not

admit of the smallest doubt that both honour and prudence required them to reject the capitulation offered by the enemy and to maintain the post entrusted to them. Yet, although in the council of war numerous voices and especially the weighty voice of Lucius Aurunculeius Cotta supported this view, the commandant determined to accept the proposal of Ambiorix. The Roman troops accordingly marched off next morning; but when they had arrived at a narrow valley about two miles from the camp they found themselves surrounded by the Eburones and every outlet blocked. They attempted to open a way for themselves by force of arms; but the Eburones would not enter into any close combat, and contented themselves with discharging their missiles from their unassailable positions into the dense mass of the Romans. Bewildered, as if seeking deliverance from treachery at the hands of the traitor, Sabinus requested a conference with Ambiorix; it was granted, and he and the officers accompanying him were first disarmed and then slain. After the fall of the commander the Eburones threw themselves from all sides at once on the exhausted and despairing Romans, and broke their ranks; most of them, including Cotta who had already been wounded, met their death in this attack; a small portion, who had succeeded in regaining the abandoned camp, flung themselves on their own swords during the following night. The whole corps was annihilated.

Cicero Attacked

This success, such as the insurgents themselves had hardly ventured to hope for, increased the ferment among the Celtic patriots so greatly that the Romans were no longer sure of a single district with the exception of the Haedui and Remi, and the insurrection broke out at the most diverse points. First of all the Eburones followed up their victory. Reinforced by the levy of the Aduatuci, who gladly embraced the opportunity of requiting the injury done to them by Caesar, and of the powerful and still unsubdued Menapii, they appeared in the territory of the Nervii, who immediately

joined them, and the whole host thus swelled to 60,000 moved forward to confront the Roman camp formed in the Nervian canton. Quintus Cicero, who commanded there, had with his weak corps a difficult position, especially as the besiegers, learning from the foe, constructed ramparts and trenches, -testudines- and moveable towers after the Roman fashion, and showered fire-balls and burning spears over the straw-covered huts of the camp. The only hope of the besieged rested on Caesar, who lay not so very far off with three legions in his winter encampment in the region of Amiens. But—a significant proof of the feeling that prevailed in Gaul- for a considerable time not the slightest hint reached the general either of the disaster of Sabinus or of the perilous situation of Cicero.

Caesar Proceeds to His Relief

The Insurrection Checked

At length a Celtic horseman from Cicero's camp succeeded in stealing through the enemy to Caesar. On receiving the startling news Caesar immediately set out, although only with two weak legions, together numbering about 7000, and 400 horsemen; nevertheless the announcement that Caesar was advancing sufficed to induce the insurgents to raise the siege. It was time; not one tenth of the men in Cicero's camp remained unwounded. Caesar, against whom the insurgent army had turned, deceived the enemy, in the way which he had already on several occasions successfully applied, as to his strength; under the most unfavourable circumstances they ventured an assault upon the Roman camp and in doing so suffered a defeat. It is singular, but characteristic of the Celtic nation, that in consequence of this one lost battle, or perhaps rather in consequence of Caesar's appearance in person on the scene of conflict, the insurrection, which had commenced so victoriously and extended so widely, suddenly and pitiably broke off the war. The Nervii, Menapii, Aduatuci, Eburones, returned to their homes. The forces of the maritime cantons, who had made

preparations for assailing the legion in Brittany, did the same. The Treveri, through whose leader Indutiomarus the Eburones, the clients of the powerful neighbouring canton, had been chiefly induced to that so successful attack, had taken arms on the news of the disaster of Aduatuca and advanced into the territory of the Remi with the view of attacking the legion cantoned there under the command of Labienus; they too desisted for the present from continuing the struggle. Caesar not unwillingly postponed farther measures against the revolted districts till the spring, in order not to expose his troops which had suffered much to the whole severity of the Gallic winter, and with the view of only reappearing in the field when the fifteen cohorts destroyed should have been replaced in an imposing manner by the levy of thirty new cohorts which he had ordered. The insurrection meanwhile pursued its course, although there was for the moment a suspension of arms. Its chief seats in central Gaul were, partly the districts of the Carnutes and the neighbouring Senones (about Sens), the latter of whom drove the king appointed by Caesar out of their country; partly the region of the Treveri, who invited the whole Celtic emigrants and the Germans beyond the Rhine to take part in the impending national war, and called out their whole force, with a view to advance in the spring a second time into the territory of the Remi, to capture the corps of Labienus, and to seek a communication with the insurgents on the Seine and Loire. The deputies of these three cantons remained absent from the diet convoked by Caesar in central Gaul, and thereby declared war just as openly as a part of the Belgic cantons had done by the attacks on the camps of Sabinus and Cicero.

And Suppressed

The winter was drawing to a close when Caesar set out with his army, which meanwhile had been considerably reinforced, against the insurgents. The attempts of the Treveri to concentrate the revolt had not succeeded; the

agitated districts were kept in check by the marching in of Roman troops, and those in open rebellion were attacked in detail. First the Nervii were routed by Caesar in person. The Senones and Carnutes met the same fate. The Menapii, the only canton which had never submitted to the Romans, were compelled by a grand attack simultaneously directed against them from three sides to renounce their long-preserved freedom. Labienus meanwhile was preparing the same fate for the Treveri. Their first attack had been paralyzed, partly by the refusal of the adjoining German tribes to furnish them with mercenaries, partly by the fact that Indutiomarus, the soul of the whole movement had fallen in a skirmish with the cavalry of Labienus. But they did not on this account abandon their projects. With their whole levy they appeared in front of Labienus and waited for the German bands that were to follow, for their recruiting agents found a better reception than they had met with from the dwellers on the Rhine, among the warlike tribes of the interior of Germany, especially, as it would appear, among the Chatti. But when Labienus seemed as if he wished to avoid these and to march off in all haste, the Treveri attacked the Romans even before the Germans arrived and in a most unfavourable spot, and were completely defeated. Nothing remained for the Germans who came up too late but to return, nothing for the Treverian canton but to submit; its government reverted to the head of the Roman party Cingetorix, the son-in-law of Indutiomarus. After these expeditions of Caesar against the Menapii and of Labienus against the Treveri the whole Roman army was again united in the territory of the latter. With the view of rendering the Germans disinclined to come back, Caesar once more crossed the Rhine, in order if possible to strike an emphatic blow against the troublesome neighbours; but, as the Chatti, faithful to their tried tactics, assembled not on their western boundary, but far in the interior, apparently at the Harz mountains, for the defence of the land, he immediately turned back and contented himself with leaving behind a garrison at the passage of the Rhine.

Retaliatory Expedition against the Eburones

Accounts had thus been settled with all the tribes that took part in the rising; the Eburones alone were passed over but not forgotten. Since Caesar had met with the disaster of Aduatuca, he had worn mourning and had sworn that he would only lay it aside when he should have avenged his soldiers, who had not fallen in honourable war, but had been treacherously murdered. Helpless and passive the Eburones sat in their huts and looked on as the neighbouring cantons one after another submitted to the Romans, till the Roman cavalry from the Treverian territory advanced through the Ardennes into their land. So little were they prepared for the attack, that the cavalry had almost seized the king Ambiorix in his house; with great difficulty, while his attendants sacrificed themselves on his behalf, he escaped into the neighbouring thicket. Ten Roman legions soon followed the cavalry. At the same time a summons was issued to the surrounding tribes to hunt the outlawed Eburones and pillage their land in concert with the Roman soldiers; not a few complied with the call, including even an audacious band of Sugambrian horsemen from the other side of the Rhine, who for that matter treated the Romans no better than the Eburones, and had almost by a daring coup de main surprised the Roman camp at Aduatuca. The fate of the Eburones was dreadful. However they might hide themselves in forests and morasses, there were more hunters than game. Many put themselves to death like the gray-haired prince Catuvolcus; only a few saved life and liberty, but among these few was the man whom the Romans sought above all to seize, the prince Ambiorix; with but four horsemen he escaped over the Rhine. This execution against the canton which had transgressed above all the rest was followed in the other districts by processes of high treason against individuals. The season for clemency was past. At the bidding of the Roman proconsul the eminent Carnutic knight Acco was beheaded by Roman lictors (701) and the rule of the - fasces- was thus formally inaugurated. Opposition was silent; tranquillity

everywhere prevailed. Caesar went as he was wont towards the end of the year (701) over the Alps, that through the winter he might observe more closely the daily-increasing complications in the capital.

Second Insurrection

The sagacious calculator had on this occasion miscalculated. The fire was smothered, but not extinguished. The stroke, under which the head of Acco fell, was felt by the whole Celtic nobility. At this very moment the position of affairs presented better prospects than ever. The insurrection of the last winter had evidently failed only through Caesar himself appearing on the scene of action; now he was at a distance, detained on the Po by the imminence of civil war, and the Gallic army, which was collected on the upper Seine, was far separated from its dreaded leader. If a general insurrection now broke out in central Gaul, the Roman army might be surrounded, and the almost undefended old Roman province be overrun before Caesar reappeared beyond the Alps, even if the Italian complications did not altogether prevent him from further concerning himself about Gaul.

The Carnutes

The Arverni

Conspirators from all the cantons of central Gaul assembled; the Carnutes, as most directly affected by the execution of Acco, offered to take the lead. On a set day in the winter of 701-702 the Carnutic knights Gutruatus and Conconnetodumnus gave at Cenabum (Orleans) the signal for the rising, and put to death in a body the Romans who happened to be there. The most vehement agitation seized the length and breadth of the great Celtic land; the patriots everywhere bestirred themselves. But nothing stirred the nation so deeply as the insurrection of the Arverni. The government of this community, which had formerly under its kings been the first in southern Gaul, and had still after the fall of its principality

occasioned by the unfortunate wars against Rome(45) continued to be one of the wealthiest, most civilized, and most powerful in all Gaul, had hitherto inviolably adhered to Rome. Even now the patriot party in the governing common council was in the minority; an attempt to induce it to join the insurrection was in vain. The attacks of the patriots were therefore directed against the common council and the existing constitution itself; and the more so, that the change of constitution which among the Arverni had substituted the common council for the prince(46) had taken place after the victories of the Romans and probably under their influence.

Vercingetorix

The leader of the Arvernian patriots Vercingetorix, one of those nobles whom we meet with among the Celts, of almost regal repute in and beyond his canton, and a stately, brave, sagacious man to boot, left the capital and summoned the country people, who were as hostile to the ruling oligarchy as to the Romans, at once to re-establish the Arvernian monarchy and to go to war with Rome. The multitude quickly joined him; the restoration of the throne of Luerius and Betuitus was at the same time the declaration of a national war against Rome. The centre of unity, from the want of which all previous attempts of the nation to shake off the foreign yoke had failed, was now found in the new self-nominated king of the Arverni. Vercingetorix became for the Celts of the continent what Cassivellaunus was for the insular Celts; the feeling strongly pervaded the masses that he, if any one, was the man to save the nation.

Spread of the Insurrection

Appearance of Caesar

The west from the mouth of the Garonne to that of the Seine was rapidly infected by the insurrection, and Vercingetorix was recognized by all the cantons there as commander-in-chief; where the common council made any

difficulty, the multitude compelled it to join the movement; only a few cantons, such as that of the Bituriges, required compulsion to join it, and these perhaps only for appearance' sake. The insurrection found a less favourable soil in the regions to the east of the upper Loire. Everything here depended on the Haedui; and these wavered. The patriotic party was very strong in this canton; but the old antagonism to the leading of the Arverni counterbalanced their influence—to the most serious detriment of the insurrection, as the accession of the eastern cantons, particularly of the Sequani and Helvetii, was conditional on the accession of the Haedui, and generally in this part of Gaul the decision rested with them. While the insurgents were thus labouring partly to induce the cantons that still hesitated, especially the Haedui, to join them, partly to get possession of Narbo—one of their leaders, the daring Lucterius, had already appeared on the Tarn within the limits of the old province—the Roman commander-in-chief suddenly presented himself in the depth of winter, unexpected alike by friend and foe, on this side of the Alps. He quickly made the necessary preparations to cover the old province, and not only so, but sent also a corps over the snow-covered Cevennes into the Arvernian territory; but he could not remain here, where the accession of the Haedui to the Gallic alliance might any moment cut him off from his army encamped about Sens and Langres. With all secrecy he went to Vienna, and thence, attended by only a few horsemen, through the territory of the Haedui to his troops. The hopes, which had induced the conspirators to declare themselves, vanished; peace continued in Italy, and Caesar stood once more at the head of his army.

The Gallic Plan of War

But what were they to do? It was folly under such circumstances to let the matter come to the decision of arms; for these had already decidedly irrevocably. They might as well attempt to shake the Alps by throwing stones at them as to shake the legions by means of the Celtic bands, whether

these might be congregated in huge masses or sacrificed in detail canton after canton. Vercingetorix despaired of defeating the Romans. He adopted a system of warfare similar to that by which Cassivellaunus had saved the insular Celts. The Roman infantry was not to be vanquished; but Caesar's cavalry consisted almost exclusively of the contingent of the Celtic nobility, and was practically dissolved by the general revolt. It was possible for the insurrection, which was in fact essentially composed of the Celtic nobility, to develop such a superiority in this arm, that it could lay waste the land far and wide, burn down towns and villages, destroy the magazines, and endanger the supplies and the communications of the enemy, without his being able seriously to hinder it. Vercingetorix accordingly directed all his efforts to the increase of his cavalry, and of the infantry-archers who were according to the mode of fighting of that time regularly associated with it. He did not send the immense and self-obstructing masses of the militia of the line to their homes, but he did not allow them to face the enemy, and attempted to impart to them gradually some capacity of intrenching, marching, and manoeuvring, and some perception that the soldier is not destined merely for hand-to-hand combat. Learning from the enemy, he adopted in particular the Roman system of encampment, on which depended the whole secret of the tactical superiority of the Romans; for in consequence of it every Roman corps combined all the advantages of the garrison of a fortress with all the advantages of an offensive army.(47) It is true that a system completely adapted to Britain which had few towns and to its rude, resolute, and on the whole united inhabitants was not absolutely transferable to the rich regions on the Loire and their indolent inhabitants on the eve of utter political dissolution. Vercingetorix at least accomplished this much, that they did not attempt as hitherto to hold every town with the result of holding none; they agreed to destroy the townships not capable of defence before attack reached them, but to defend with all their might the strong fortresses. At the same time the Arvernian king did what he could to

bind to the cause of their country the cowardly and backward by stern severity, the hesitating by entreaties and representations, the covetous by gold, the decided opponents by force, and to compel or allure the rabble high or low to some manifestation of patriotism.

Beginning of the Struggle

Even before the winter was at an end, he threw himself on the Boii settled by Caesar in the territory of the Haedui, with the view of annihilating these, almost the sole trustworthy allies of Rome, before Caesar came up. The news of this attack induced Caesar, leaving behind the baggage and two legions in the winter quarters of Agedincum (Sens), to march immediately and earlier than he would doubtless otherwise have done, against the insurgents. He remedied the sorely-felt want of cavalry and light infantry in some measure by gradually bringing up German mercenaries, who instead of using their own small and weak ponies were furnished with Italian and Spanish horses partly bought, partly procured by requisition of the officers. Caesar, after having by the way caused Cenabum, the capital of the Carnutes, which had given the signal for the revolt, to be pillaged and laid in ashes, moved over the Loire into the country of the Bituriges. He thereby induced Vercingetorix to abandon the siege of the town of the Boii, and to resort likewise to the Bituriges. Here the new mode of warfare was first to be tried. By order of Vercingetorix more than twenty townships of the Bituriges perished in the flames on one day; the general decreed a similar self-devastation as to the neighbour cantons, so far as they could be reached by the Roman foraging parties.

Caesar before Arvaricum

According to his intention, Avaricum (Bourges), the rich and strong capital of the Bituriges, was to meet the same fate; but the majority of the war-council yielded to the suppliant entreaties of the Biturigian authorities,

and resolved rather to defend that city with all their energy. Thus the war was concentrated in the first instance around Avaricum, Vercingetorix placed his infantry amidst the morasses adjoining the town in a position so unapproachable, that even without being covered by the cavalry they needed not to fear the attack of the legions. The Celtic cavalry covered all the roads and obstructed the communication. The town was strongly garrisoned, and the connection between it and the army before the walls was kept open. Caesar's position was very awkward. The attempt to induce the Celtic infantry to fight was unsuccessful; it stirred not from its unassailable lines. Bravely as his soldiers in front of the town trenched and fought, the besieged vied with them in ingenuity and courage, and they had almost succeeded in setting fire to the siege apparatus of their opponents. The task withal of supplying an army of nearly 60,000 men with provisions in a country devastated far and wide and scoured by far superior bodies of cavalry became daily more difficult. The slender stores of the Boii were soon used up; the supply promised by the Haedui failed to appear; the corn was already consumed, and the soldier was placed exclusively on flesh-rations. But the moment was approaching when the town, with whatever contempt of death the garrison fought, could be held no longer. Still it was not impossible to withdraw the troops secretly by night and destroy the town, before the enemy occupied it. Vercingetorix made arrangements for this purpose, but the cry of distress raised at the moment of evacuation by the women and children left behind attracted the attention of the Romans; the departure miscarried.

Avaricum Conquered Caesar Divides His Army

On the following gloomy and rainy day the Romans scaled the walls, and, exasperated by the obstinate defence, spared neither age nor sex in the conquered town. The ample stores, which the Celts had accumulated in it,

were welcome to the starved soldiers of Caesar. With the capture of Avaricum (spring of 702), a first success had been achieved over the insurrection, and according to former experience Caesar might well expect that it would now dissolve, and that it would only be requisite to deal with the cantons individually. After he had therefore shown himself with his whole army in the canton of the Haedui and had by this imposing demonstration compelled the patriot party in a ferment there to keep quiet at least for the moment, he divided his army and sent Labienus back to Agedincum, that in combination with the troops left there he might at the head of four legions suppress in the first instance the movement in the territory of the Carnutes and Senones, who on this occasion once more took the lead; while he himself with the six remaining legions turned to the south and prepared to carry the war into the Arvernian mountains, the proper territory of Vercingetorix.

Labienus before Lutetia

Labienus moved from Agedincum up the left bank of the Seine with a view to possess himself of Lutetia (Paris), the town of the Parisii situated on an island in the Seine, and from this well-secured position in the heart of the insurgent country to reduce it again to subjection. But behind Melodunum (Melun), he found his route barred by the whole army of the insurgents, which had here taken up a position between unassailable morasses under the leadership of the aged Camulogenus. Labienus retreated a certain distance, crossed the Seine at Melodunum, and moved up its right bank unhindered towards Lutetia; Camulogenus caused this town to be burnt and the bridges leading to the left bank to be broken down, and took up a position over against Labienus, in which the latter could neither bring him to battle nor effect a passage under the eyes of the hostile army.

Caesar before Gergovia

Fruitless Blockade

The Roman main army in its turn advanced along the Allier down into the canton of the Arverni. Vercingetorix attempted to prevent it from crossing to the left bank of the Allier, but Caesar overreached him and after some days stood before the Arvernian capital Gergovia.(48) Vercingetorix, however, doubtless even while he was confronting Caesar on the Allier, had caused sufficient stores to be collected in Gergovia and a fixed camp provided with strong stone ramparts to be constructed for his troops in front of the walls of the town, which was situated on the summit of a pretty steep hill; and, as he had a sufficient start, he arrived before Caesar at Gergovia and awaited the attack in the fortified camp under the wall of the fortress. Caesar with his comparatively weak army could neither regularly besiege the place nor even sufficiently blockade it; he pitched his camp below the rising ground occupied by Vercingetorix, and was compelled to preserve an attitude as inactive as his opponent. It was almost a victory for the insurgents, that Caesar's career of advance from triumph to triumph had been suddenly checked on the Seine as on the Allier. In fact the consequences of this check for Caesar were almost equivalent to those of a defeat.

The Haedui Waver

The Haedui, who had hitherto continued vacillating, now made preparations in earnest to join the patriotic party; the body of men, whom Caesar had ordered to Gergovia, had on the march been induced by its officers to declare for the insurgents; at the same time they had begun in the canton itself to plunder and kill the Romans settled there. Caesar, who had gone with two-thirds of the blockading army to meet that corps of the Haedui which was being brought up to Gergovia, had by his sudden

appearance recalled it to nominal obedience; but it was more than ever a hollow and fragile relation, the continuance of which had been almost too dearly purchased by the great peril of the two legions left behind in front of Gergovia. For Vercingetorix, rapidly and resolutely availing himself of Caesar's departure, had during his absence made an attack on them, which had wellnigh ended in their being overpowered, and the Roman camp being taken by storm. Caesar's unrivalled celerity alone averted a second catastrophe like that of Aduatuca. Though the Haedui made once more fair promises, it might be foreseen that, if the blockade should still be prolonged without result, they would openly range themselves on the side of the insurgents and would thereby compel Caesar to raise it; for their accession would interrupt the communication between him and Labienus, and expose the latter especially in his isolation to the greatest peril. Caesar was resolved not to let matters come to this pass, but, however painful and even dangerous it was to retire from Gergovia without having accomplished his object, nevertheless, if it must be done, rather to set out immediately and by marching into the canton of the Haedui to prevent at any cost their formal desertion.

Caesar Defeated before Gergovia

Before entering however on this retreat, which was far from agreeable to his quick and confident temperament, he made yet a last attempt to free himself from his painful perplexity by a brilliant success. While the bulk of the garrison of Gergovia was occupied in intrenching the side on which the assault was expected, the Roman general watched his opportunity to surprise another access less conveniently situated but at the moment left bare. In reality the Roman storming columns scaled the camp-wall, and occupied the nearest quarters of the camp; but the whole garrison was already alarmed, and owing to the small distances Caesar found it not advisable to risk the second assault on the city-wall. He gave the signal for

retreat; but the foremost legions, carried away by the impetuosity of victory, heard not or did not wish to hear, and pushed forward without halting, up to the city-wall, some even into the city. But masses more and more dense threw themselves in front of the intruders; the foremost fell, the columns stopped; in vain centurions and legionaries fought with the most devoted and heroic courage; the assailants were chased with very considerable loss out of the town and down the hill, where the troops stationed by Caesar in the plain received them and prevented greater mischief. The expected capture of Gergovia had been converted into a defeat, and the considerable loss in killed and wounded—there were counted 700 soldiers that had fallen, including 46 centurions—was the least part of the misfortune suffered.

Renewed Insurrection

Rising of the Haedui

Rising of the Belgae

The imposing position of Caesar in Gaul depended essentially on the halo of victory that surrounded him; and this began to grow pale. The conflicts around Avaricum, Caesar's vain attempts to compel the enemy to fight, the resolute defence of the city and its almost accidental capture by storm bore a stamp different from that of the earlier Celtic wars, and had strengthened rather than impaired the confidence of the Celts in themselves and their leader. Moreover, the new system of warfare—the making head against the enemy in intrenched camps under the protection of fortresses—had completely approved itself at Lutetia as well as at Gergovia. Lastly, this defeat, the first which Caesar in person had suffered from the Celts crowned their success, and it accordingly gave as it were the signal for a second outbreak of the insurrection. The Haedui now broke formally with Caesar and entered into union with Vercingetorix. Their contingent, which was still with Caesar's army, not only deserted from it, but also took occasion to

carry off the depots of the army of Caesar at Noviodunum on the Loire, whereby the chests and magazines, a number of remount-horses, and all the hostages furnished to Caesar, fell into the hands of the insurgents. It was of at least equal importance, that on this news the Belgae, who had hitherto kept aloof from the whole movement, began to bestir themselves. The powerful canton of the Bellovaci rose with the view of attacking in the rear the corps of Labienus, while it confronted at Lutetia the levy of the surrounding cantons of central Gaul. Everywhere else too men were taking to arms; the strength of patriotic enthusiasm carried along with it even the most decided and most favoured partisans of Rome, such as Commius king of the Atrebates, who on account of his faithful services had received from the Romans important privileges for his community and the hegemony over the Morini. The threads of the insurrection ramified even into the old Roman province: they cherished the hope, perhaps not without ground, of inducing the Allobroges themselves to take arms against the Romans. With the single exception of the Remi and of the districts—dependent immediately on the Remi—of the Suessiones, Leuci, and Lingones, whose peculiar isolation was not affected even amidst this general enthusiasm, the whole Celtic nation from the Pyrenees to the Rhine was now in reality, for the first and for the last time, in arms for its freedom and nationality; whereas, singularly enough, the whole German communities, who in the former struggles had held the foremost rank, kept aloof. In fact, the Treveri, and as it would seem the Menapii also, were prevented by their feuds with the Germans from taking an active part in the national war.

Caesar's Plan of War

Caesar Unites with Labienus

It was a grave and decisive moment, when after the retreat from Gergovia and the loss of Noviodunum a council of war was held in Caesar's headquarters regarding the measures now to be adopted. Various voices

expressed themselves in favour of a retreat over the Cevennes into the old Roman province, which now lay open on all sides to the insurrection and certainly was in urgent need of the legions that had been sent from Rome primarily for its protection. But Caesar rejected this timid strategy suggested not by the position of affairs, but by government-instructions and fear of responsibility. He contented himself with calling the general levy of the Romans settled in the province to arms, and having the frontiers guarded by that levy to the best of its ability. On the other hand he himself set out in the opposite direction and advanced by forced marches to Agedincum, to which he ordered Labienus to retreat in all haste. The Celts naturally endeavoured to prevent the junction of the two Roman armies. Labienus might by crossing the Marne and marching down the right bank of the Seine have reached Agedincum, where he had left his reserve and his baggage; but he preferred not to allow the Celts again to behold the retreat of Roman troops. He therefore instead of crossing the Marne crossed the Seine under the eyes of the deluded enemy, and on its left bank fought a battle with the hostile forces, in which he conquered, and among many others the Celtic general himself, the old Camulogenus, was left on the field. Nor were the insurgents more successful in detaining Caesar on the Loire; Caesar gave them no time to assemble larger masses there, and without difficulty dispersed the militia of the Haedui, which alone he found at that point

Position of the Insurgents at Alesia

Thus the junction of the two divisions of the army was happily accomplished. The insurgents meanwhile had consulted as to the farthe conduct of the war at Bibracte (Autun) the capital of the Haedui the soul of these consultations was again Vercingetorix, to whom the nation was enthusiastically attached after the victory of Gergovia. Particular interests were not, it is true, even now silent; the Haedui still in this death-struggle of

the nation asserted their claims to the hegemony, and made a proposal in the national assembly to substitute a leader of their own for Vercingetorix. But the national representatives had not merely declined this and confirmed Vercingetorix in the supreme command, but had also adopted his plan of war without alteration. It was substantially the same as that on which he had operated at Avaricum and at Gergovia. As the base of the new position there was selected the strong city of the Mandubii, Alesia (Alise Sainte Reine near Semur in the department Cote d'Or)(49) and another entrenched camp was constructed under its walls. Immense stores were here accumulated, and the army was ordered thither from Gergovia, having its cavalry raised by resolution of the national assembly to 15,000 horse. Caesar with the whole strength of his army after it was reunited at Agedincum took the direction of Besancon, with the view of now approaching the alarmed province and protecting it from an invasion, for in fact bands of insurgents had already shown themselves in the territory of the Helvii on the south slope of the Cevennes. Alesia lay almost on his way; the cavalry of the Celts, the only arm with which Vercingetorix chose to operate, attacked him on the route, but to the surprise of all was worsted by the new German squadrons of Caesar and the Roman infantry drawn up in support of them.

Caesar in Front of Alesia

Siege of Alesia

Vercingetorix hastened the more to shut himself up in Alesia; and if Caesar was not disposed altogether to renounce the offensive, no course was left to him but for the third time in this campaign to proceed by way of attack with a far weaker force against an army encamped under a well-garrisoned and well-provisioned fortress and supplied with immense masses of cavalry. But, while the Celts had hitherto been opposed by only a part of the Roman legions, the whole forces of Caesar were united in the lines round Alesia, and Vercingetorix did not succeed, as he had succeeded at

Avaricum and Gergovia, in placing his infantry under the protection of the walls of the fortress and keeping his external communications open for his own benefit by his cavalry, while he interrupted those of the enemy. The Celtic cavalry, already discouraged by that defeat inflicted on them by their lightly esteemed opponents, was beaten by Caesar's German horse in every encounter. The line of circumvallation of the besiegers extending about nine miles invested the whole town, including the camp attached to it. Vercingetorix had been prepared for a struggle under the walls, but not for being besieged in Alesia; in that point of view the accumulated stores, considerable as they were, were yet far from sufficient for his army—which was said to amount to 80,000 infantry and 15,000 cavalry—and for the numerous inhabitants of the town. Vercingetorix could not but perceive that his plan of warfare had on this occasion turned to his own destruction, and that he was lost unless the whole nation hastened up to the rescue of its blockaded general. The existing provisions were still, when the Roman circumvallation was closed, sufficient for a month and perhaps something more; at the last moment, when there was still free passage at least for horsemen, Vercingetorix dismissed his whole cavalry, and sent at the same time to the heads of the nation instructions to call out all their forces and lead them to the relief of Alesia. He himself, resolved to bear in person the responsibility for the plan of war which he had projected and which had miscarried, remained in the fortress, to share in good or evil the fate of his followers. But Caesar made up his mind at once to besiege and to be besieged. He prepared his line of circumvallation for defence also on its outer side, and furnished himself with provisions for a longer period. The days passed; they had no longer a boll of grain in the fortress, and they were obliged to drive out the unhappy inhabitants of the town to perish miserably between the entrenchments of the Celts and of the Romans, pitilessly rejected by both.

Attempt at Relief

Conflicts before Alesia

At the last hour there appeared behind Caesar's lines the interminable array of the Celto-Belgic relieving array, said to amount to 250,000 infantry and 8000 cavalry, from the Channel to the Cevennes the insurgent cantons had strained every nerve to rescue the flower of their patriots and the general of their choice—the Bellovaci alone had answered that they were doubtless disposed to fight against the Romans, but not beyond their own bounds. The first assault, which the besieged of Alesia and the relieving troops without made on the Roman double line, was repulsed; but, when after a day's rest it was repeated, the Celts succeeded—at a spot where the line of circumvallation ran over the slope of a hill and could be assailed from the height above—in filling up the trenches and hurling the defenders down from the rampart. Then Labienus, sent thither by Caesar, collected the nearest cohorts and threw himself with four legions on the foe. Under the eyes of the general, who himself appeared at the most dangerous moment, the assailants were driven back in a desperate hand-to-hand conflict, and the squadrons of cavalry that came with Caesar taking the fugitives in rear completed the defeat.

Alesia Capitulates

It was more than a great victory; the fate of Alesia, and indeed of the Celtic nation, was thereby irrevocably decided. The Celtic army, utterly disheartened, dispersed at once from the battle-field and went home. Vercingetorix might perhaps have even now taken to flight, or at least have saved himself by the last means open to a free man; he did not do so, but declared in a council of war that, since he had not succeeded in breaking off the alien yoke, he was ready to give himself up as a victim and to avert as far as possible destruction from the nation by bringing it on his own head.

This was done. The Celtic officers delivered their general—the solemn choice of the whole nation—over to the energy of their country for such punishment as might be thought fit. Mounted on his steed and in full armour the king of the Arverni appeared before the Roman proconsul and rode round his tribunal; then he surrendered his horse and arms, and sat down in silence on the steps at Caesar's feet (702).

Vercingetorix Executed

Five years afterwards he was led in triumph through the streets of the Italian capital, and, while his conqueror was offering solemn thanks to the gods on the summit of the Capitol, Vercingetorix was beheaded at its foot as guilty of high treason against the Roman nation. As after a day of gloom the sun may perhaps break through the clouds at its setting, so destiny may bestow on nations in their decline yet a last great man. Thus Hannibal stands at the close of the Phoenician history, and Vercingetorix at the close of the Celtic. They were not able to save the nations to which they belonged from a foreign yoke, but they spared them the last remaining disgrace—an inglorious fall. Vercingetorix, just like the Carthaginian, was obliged to contend not merely against the public foe, but also and above all against that anti-national opposition of wounded egotists and startled cowards, which regularly accompanies a degenerate civilization; for him too a place in history is secured, not by his battles and sieges, but by the fact that he was able to furnish in his own person a centre and rallying-point to a nation distracted and ruined by the rivalry of individual interests. And yet there can hardly be a more marked contrast than between the sober townsman of the Phoenician mercantile city, whose plans were directed towards one great object with unchanging energy throughout fifty years, and the bold prince of the Celtic land, whose mighty deeds and high-minded self-sacrifice fall within the compass of one brief summer. The whole ancient world presents no more genuine knight, whether as regards his essential character or his

outward appearance. But man ought not to be a mere knight, and least of all the statesman. It was the knight, not the hero, who disdained to escape from Alesia, when for the nation more depended on him than on a hundred thousand ordinary brave men. It was the knight, not the hero, who gave himself up as a sacrifice, when the only thing gained by that sacrifice was that the nation publicly dishonoured itself and with equal cowardice and absurdity employed its last breath in proclaiming that its great historical death-struggle was a crime against its oppressor. How very different was the conduct of Hannibal in similar positions! It is impossible to part from the noble king of the Arverni without a feeling of historical and human sympathy; but it is a significant trait of the Celtic nation, that its greatest man was after all merely a knight.

The Last Conflicts

With the Bituriges and Carnutes

The fall of Alesia and the capitulation of the army enclosed in it were fearful blows for the Celtic insurrection; but blows quite as heavy had befallen the nation and yet the conflict had been renewed. The loss of Vercingetorix, however, was irreparable. With him unity had come to the nation; with him it seemed also to have departed. We do not find that the insurgents made any attempt to continue their joint defence and to appoint another generalissimo; the league of patriots fell to pieces of itself, and every clan was left to fight or come to terms with the Romans as it pleased. Naturally the desire after rest everywhere prevailed. Caesar too had an interest in bringing the war quickly to an end. Of the ten years of his governorship seven had elapsed, and the last was called in question by his political opponents in the capital; he could only reckon with some degree of certainty on two more summers, and, while his interest as well as his honour required that he should hand over the newly-acquired regions to his successor in a condition of tolerable peace and tranquillity, there was in

truth but scanty time to bring about such a state of things. To exercise mercy was in this case still more a necessity for the victor than for the vanquished; and he might thank his stars that the internal dissensions and the easy temperament of the Celts met him in this respect half way. Where—as in the two most eminent cantons of central Gaul, those of the Haedui and Arverni—there existed a strong party well disposed to Rome, the cantons obtained immediately after the fall of Alesia a complete restoration of their former relations with Rome, and even their captives, 20,000 in number, were released without ransom, while those of the other clans passed into the hard bondage of the victorious legionaries. The greater portion of the Gallic districts submitted like the Haedui and Arverni to their fate, and allowed their inevitable punishment to be inflicted without farther resistance. But not a few clung in foolish frivolity or sullen despair to the lost cause, till the Roman troops of execution appeared within their borders. Such expeditions were in the winter of 702-703 undertaken against the Bituriges and the Carnutes.

With the Bellovaci

More serious resistance was offered by the Bellovaci, who in the previous year had kept aloof from the relief of Alesia; they seem to have wished to show that their absence on that decisive day at least did not proceed from want of courage or of love for freedom. The Atrebates, Ambiani, Caletes, and other Belgic cantons took part in this struggle; the brave king of the Atrebates Commius, whose accession to the insurrection the Romans had least of all forgiven, and against whom recently Labienus had even directed an atrocious attempt at assassination, brought to the Bellovaci 500 German horse, whose value the campaign of the previous year had shown. The resolute and talented Bellovacian Correus, to whom the chief conduct of the war had fallen, waged warfare as Vercingetorix had waged it, and with no small success. Although Caesar had gradually

brought up the greater part of his army, he could neither bring the infantry of the Bellovaci to a battle, nor even prevent it from taking up other positions which afforded better protection against his augmented forces; while the Roman horse, especially the Celtic contingents, suffered most severe losses in various combats at the hands of the enemy's cavalry, especially of the German cavalry of Commius. But after Correus had met his death in a skirmish with the Roman foragers, the resistance here too was broken; the victor proposed tolerable conditions, to which the Bellovaci along with their confederates submitted. The Treveri were reduced to obedience by Labienus, and incidentally the territory of the outlawed Eburones was once more traversed and laid waste. Thus the last resistance of the Belgic confederacy was broken.

On the Loire

The maritime cantons still made an attempt to defend themselves against the Roman domination in concert with their neighbours on the Loire. Insurgent bands from the Andian, Carnutic, and other surrounding cantons assembled on the lower Loire and besieged in Lemonum (Poitiers) the prince of the Pictones who was friendly to the Romans. But here too a considerable Roman force soon appeared against them; the insurgents abandoned the siege, and retreated with the view of placing the Loire between themselves and the enemy, but were overtaken on the march and defeated; whereupon the Carnutes and the other revolted cantons, including even the maritime ones, sent in their submission.

And in Uxellodunum

The resistance was at an end; save that an isolated leader of free bands still here and there upheld the national banner. The bold Drappes and the brave comrade in arms of Vercingetorix Lucterius, after the breaking up of the army united on the Loire, gathered together the most resolute men, and

with these threw themselves into the strong mountain-town of Uxellodunum on the Lot,(50) which amidst severe and fatal conflicts they succeeded in sufficiently provisioning. In spite of the loss of their leaders, of whom Drappes had been taken prisoner, and Lucterius had been cut off from the town, the garrison resisted to the uttermost; it was not till Caesar appeared in person, and under his orders the spring from which the besieged derived their water was diverted by means of subterranean drains, that the fortress, the last stronghold of the Celtic nation, fell. To distinguish the last champions of the cause of freedom, Caesar ordered that the whole garrison should have their hands cut off and should then be dismissed, each one to his home. Caesar, who felt it all-important to put an end at least to open resistance throughout Gaul, allowed king Commius, who still held out in the region of Arras and maintained desultory warfare with the Roman troops there down to the winter of 703-704, to make his peace, and even acquiesced when the irritated and justly distrustful man haughtily refused to appear in person in the Roman camp. It is very probable that Caesar in a similar way allowed himself to be satisfied with a merely nominal submission, perhaps even with a de facto armistice, in the less accessible districts of the north-west and north-east of Gaul.(51)

Gaul Subdued

Thus was Gaul—or, in other words, the land west of the Rhine and north of the Pyrenees—rendered subject after only eight years of conflict (696-703) to the Romans. Hardly a year after the full pacification of the land, at the beginning of 705, the Roman troops had to be withdrawn over the Alps in consequence of the civil war, which had now at length broken out in Italy, and there remained nothing but at the most some weak divisions of recruits in Gaul. Nevertheless the Celts did not again rise against the foreign yoke; and, while in all the old provinces of the empire there was fighting against Caesar, the newly-acquired country alone remained continuously

obedient to its conqueror. Even the Germans did not during those decisive years repeat their attempts to conquer new settlements on the left bank of the Rhine. As little did there occur in Gaul any national insurrection or German invasion during the crises that followed, although these offered the most favourable opportunities. If disturbances broke out anywhere, such as the rising of the Bellovaci against the Romans in 708, these movements were so isolated and so unconnected with the complications in Italy, that they were suppressed without material difficulty by the Roman governors. Certainly this state of peace was most probably, just as was the peace of Spain for centuries, purchased by provisionally allowing the regions that were most remote and most strongly pervaded by national feeling—Brittany, the districts on the Scheldt, the region of the Pyrenees—to withdraw themselves *de facto* in a more or less definite manner from the Roman allegiance. Nevertheless the building of Caesar—however scanty the time which he found for it amidst other and at the moment still more urgent labours, however unfinished and but provisionally rounded off he may have left it—in substance stood the test of this fiery trial, as respected both the repelling of the Germans and the subjugation of the Celts.

Organization

Roman Taxation

As to administration in chief, the territories newly acquired by the governor of Narbonese Gaul remained for the time being united with the province of Narbo; it was not till Caesar gave up this office (710) that two new governorships—Gaul proper and Belgica—were formed out of the territory which he conquered. That the individual cantons lost their political independence, was implied in the very nature of conquest. They became throughout tributary to the Roman community. Their system of tribute however was, of course, not that by means of which the nobles and financial aristocracy turned Asia to profitable account; but, as was the case

in Spain, a tribute fixed once for all was imposed on each individual community, and the levying of it was left to itself. In this way forty million sesterces (400,000 pounds) flowed annually from Gaul into the chests of the Roman government; which, no doubt, undertook in return the cost of defending the frontier of the Rhine. Moreover, the masses of gold accumulated in the temples of the gods and the treasuries of the grandees found their way, as a matter of course, to Rome; when Caesar offered his Gallic gold throughout the Roman empire and brought such masses of it at once into the money market that gold as compared with silver fell about 25 per cent, we may guess what sums Gaul lost through the war.

Indulgences towards Existing Arrangements

The former cantonal constitutions with their hereditary kings, or their presiding feudal-oligarchies, continued in the main to subsist after the conquest, and even the system of clientship, which made certain cantons dependent on others more powerful, was not abolished, although no doubt with the loss of political independence its edge was taken off. The sole object of Caesar was, while making use of the existing dynastic, feudalist, and hegemonic divisions, to arrange matters in the interest of Rome, and to bring everywhere into power the men favourably disposed to the foreign rule. Caesar spared no pains to form a Roman party in Gaul; extensive rewards in money and specially in confiscated estates were bestowed on his adherents, and places in the common council and the first offices of state in their cantons were procured for them by Caesar's influence. Those cantons in which a sufficiently strong and trustworthy Roman party existed, such as those of the Remi, the Lingones, the Haedui, were favoured by the bestowal of a freer communal constitution—the right of alliance, as it was called—and by preferences in the regulation of the matter of hegemony. The national worship and its priests seem to have been spared by Caesar from the outset as far as possible; no trace is found in his case of measures such

as were adopted in later times by the Roman rulers against the Druidical system, and with this is probably connected the fact that his Gallic wars, so far as we see, do not at all bear the character of religious warfare after the fashion which formed so prominent a feature of the Britannic wars subsequently.

Introduction of the Romanizing of the Country

While Caesar thus showed to the conquered nation every allowable consideration and spared their national, political, and religious institutions as far as was at all compatible with their subjection to Rome, he did so, not as renouncing the fundamental idea of his conquest, the Romanization of Gaul, but with a view to realize it in the most indulgent way. He did not content himself with letting the same circumstances, which had already in great part Romanized the south province, produce their effect likewise in the north; but, like a genuine statesman, he sought to stimulate the natural course of development and, moreover, to shorten as far as possible the always painful period of transition. To say nothing of the admission of a number of Celts of rank into Roman citizenship and even of several perhaps into the Roman senate, it was probably Caesar who introduced, although with certain restrictions, the Latin instead of the native tongue as the official language within the several cantons in Gaul, and who introduced the Roman instead of the national monetary system on the footing of reserving the coinage of gold and of denarii to the Roman authorities, while the smaller money was to be coined by the several cantons, but only for circulation within the cantonal bounds, and this too in accordance with the Roman standard. We may smile at the Latin jargon, which the dwellers by the Loire and the Seine henceforth employed in accordance with orders;(52) but these barbarisms were pregnant with a greater future than the correct Latin of the capital. Perhaps too, if the cantonal constitution in Gaul afterwards appears more closely approximated to the Italian urban

constitution, and the chief places of the canton as well as the common councils attain a more marked prominence in it than was probably the case in the original Celtic organization, the change may be referred to Caesar. No one probably felt more than the political heir of Gaius Gracchus and of Marius, how desirable in a military as well as in a political point of view it would have been to establish a series of Transalpine colonies as bases of support for the new rule and starting-points of the new civilization. If nevertheless he confined himself to the settlement of his Celtic or German horsemen in Noviodunum(53) and to that of the Boii in the canton of the Haedui (54)—which latter settlement already rendered quite the services of a Roman colony in the war with Vercingetorix(55)—the reason was merely that his farther plans did not permit him to put the plough instead of the sword into the hands of his legions. What he did in later years for the old Roman province in this respect, will be explained in its own place; it is probable that the want of time alone prevented him from extending the same system to the regions which he had recently subdued.

The Catastrophe of the Celtic Nation Traits Common to the Celts and Irish

All was over with the Celtic nation. Its political dissolution had been completed by Caesar; its national dissolution was begun and in course of regular progress. This was no accidental destruction, such as destiny sometimes prepares even for peoples capable of development, but a self-incurred and in some measure historically necessary catastrophe. The very course of the last war proves this, whether we view it as a whole or in detail. When the establishment of the foreign rule was in contemplation, only single districts— mostly, moreover, German or half-German—offered energetic resistance. When the foreign rule was actually established, the attempts to shake it off were either undertaken altogether without judgment, or they were to an undue extent the work of certain prominent nobles, and

were therefore immediately and entirely brought to an end with the death or capture of an Indutiomarus, Camulogenus, Vercingetorix, or Correus. The sieges and guerilla warfare, in which elsewhere the whole moral depth of national struggles displays itself, were throughout this Celtic struggle of a peculiarly pitiable character. Every page of Celtic history confirms the severe saying of one of the few Romans who had the judgment not to despise the so-called barbarians—that the Celts boldly challenge danger while future, but lose their courage before its presence. In the mighty vortex of the world's history, which inexorably crushes all peoples that are not as hard and as flexible as steel, such a nation could not permanently maintain itself; with reason the Celts of the continent suffered the same fate at the hands of the Romans, as their kinsmen in Ireland suffer down to our own day at the hands of the Saxons—the fate of becoming merged as a leaven of future development in a politically superior nationality. On the eve of parting from this remarkable nation we may be allowed to call attention to the fact, that in the accounts of the ancients as to the Celts on the Loire and Seine we find almost every one of the characteristic traits which we are accustomed to recognize as marking the Irish. Every feature reappears: the laziness in the culture of the fields; the delight in tippling and brawling; the ostentation—we may recall that sword of Caesar hung up in the sacred grove of the Arverni after the victory of Gergovia, which its alleged former owner viewed with a smile at the consecrated spot and ordered the sacred property to be carefully spared; the language full of comparisons and hyperboles, of allusions and quaint turns; the droll humour—an excellent example of which was the rule, that if any one interrupted a person speaking in public, a substantial and very visible hole should be cut, as a measure of police, in the coat of the disturber of the peace; the hearty delight in singing and reciting the deeds of past ages, and the most decided gifts of rhetoric and poetry; the curiosity—no trader was allowed to pass, before he had told in the open street what he knew, or did not know, in the

shape of news— and the extravagant credulity which acted on such accounts, for which reason in the better regulated cantons travellers were prohibited on pain of severe punishment from communicating unauthenticated reports to others than the public magistrates; the childlike piety, which sees in the priest a father and asks for his counsel in all things; the unsurpassed fervour of national feeling, and the closeness with which those who are fellow-countrymen cling together almost like one family in opposition to strangers; the inclination to rise in revolt under the first chance-leader that presents himself and to form bands, but at the same time the utter incapacity to preserve a self-reliant courage equally remote from presumption and from pusillanimity, to perceive the right time for waiting and for striking a blow, to attain or even barely to tolerate any organization, any sort of fixed military or political discipline. It is, and remains, at all times and all places the same indolent and poetical, irresolute and fervid, inquisitive, credulous, amiable, clever, but—in a political point of view—thoroughly useless nation; and therefore its fate has been always and everywhere the same.

The Beginnings of Romanic Development

But the fact that this great people was ruined by the Transalpine wars of Caesar, was not the most important result of that grand enterprise; far more momentous than the negative was the positive result. It hardly admits of a doubt that, if the rule of the senate had prolonged its semblance of life for some generations longer, the migration of peoples, as it is called, would have occurred four hundred years sooner than it did, and would have occurred at a time when the Italian civilization had not become naturalized either in Gaul, or on the Danube, or in Africa and Spain. Inasmuch as the great general and statesman of Rome with sure glance perceived in the German tribes the rival antagonists of the Romano-Greek world; inasmuch as with firm hand he established the new system of aggressive defence

down even to its details, and taught men to protect the frontiers of the empire by rivers or artificial ramparts, to colonize the nearest barbarian tribes along the frontier with the view of warding off the more remote, and to recruit the Roman army by enlistment from the enemy's country; he gained for the Hellenico-Italian culture the interval necessary to civilize the west just as it had already civilized the east. Ordinary men see the fruits of their action; the seed sown by men of genius germinates slowly. Centuries elapsed before men understood that Alexander had not merely erected an ephemeral kingdom in the east, but had carried Hellenism to Asia; centuries again elapsed before men understood that Caesar had not merely conquered a new province for the Romans, but had laid the foundation for the Romanizing of the regions of the west. It was only a late posterity that perceived the meaning of those expeditions to England and Germany, so inconsiderate in a military point of view, and so barren of immediate result. An immense circle of peoples, whose existence and condition hitherto were known barely through the reports—mingling some truth with much fiction—of the mariner and the trader, was disclosed by this means to the Greek and Roman world. "Daily," it is said in a Roman writing of May 698, "the letters and messages from Gaul are announcing names of peoples, cantons, and regions hitherto unknown to us." This enlargement of the historical horizon by the expeditions of Caesar beyond the Alps was as significant an event in the world's history as the exploring of America by European bands. To the narrow circle of the Mediterranean states were added the peoples of central and northern Europe, the dwellers on the Baltic and North seas; to the old world was added a new one, which thenceforth was influenced by the old and influenced it in turn. What the Gothic Theodoric afterwards succeeded in, came very near to being already carried out by Ariovistus. Had it so happened, our civilization would have hardly stood in any more intimate relation to the Romano-Greek than to the Indian and Assyrian culture. That there is a bridge connecting the past glory of Hellas and Rome

with the prouder fabric of modern history; that Western Europe is Romanic, and Germanic Europe classic; that the names of Themistocles and Scipio have to us a very different sound from those of Asoka and Salmanassar; that Homer and Sophocles are not merely like the Vedas and Kalidasa attractive to the literary botanist, but bloom for us in our own garden—all this is the work of Caesar; and, while the creation of his great predecessor in the east has been almost wholly reduced to ruin by the tempests of the Middle Ages, the structure of Caesar has outlasted those thousands of years which have changed religion and polity for the human race and even shifted for it the centre of civilization itself, and it stands erect for what we may designate as eternity.

The Countries on the Danube

To complete the sketch of the relations of Rome to the peoples of the north at this period, it remains that we cast a glance at the countries which stretch to the north of the Italian and Greek peninsulas, from the sources of the Rhine to the Black Sea. It is true that the torch of history does not illumine the mighty stir and turmoil of peoples which probably prevailed at that time there, and the solitary gleams of light that fall on this region are, like a faint glimmer amidst deep darkness, more fitted to bewilder than to enlighten. But it is the duty of the historian to indicate also the gaps in the record of the history of nations; he may not deem it beneath him to mention, by the side of Caesar's magnificent system of defence, the paltry arrangements by which the generals of the senate professed to protect on this side the frontier of the empire.

Alpine Peoples

North-eastern Italy was still as before⁽⁵⁶⁾ left exposed to the attacks of the Alpine tribes. The strong Roman army encamped at Aquileia in 695, and the triumph of the governor of Cisalpine Gaul Lucius Afranius, lead us to

infer, that about this time an expedition to the Alps took place, and it may have been in consequence of this that we find the Romans soon afterwards in closer connection with a king of the Noricans. But that even subsequently Italy was not at all secure on this side, is shown by the sudden assault of the Alpine barbarians on the flourishing town of Tergeste in 702, when the Transalpine insurrection had compelled Caesar to divest upper Italy wholly of troops.

Illyria

The turbulent peoples also, who had possession of the district along the Illyrian coast, gave their Roman masters constant employment. The Dalmatians, even at an earlier period the most considerable people of this region, enlarged their power so much by admitting their neighbours into their union, that the number of their townships rose from twenty to eighty. When they refused to give up once more the town of Promona (not far from the river Kerka), which they had wrested from the Liburnians, Caesar after the battle of Pharsalia gave orders to march against them; but the Romans were in the first instance worsted, and in consequence of this Dalmatia became for some time a rendezvous of the party hostile to Caesar, and the inhabitants in concert with the Pompeians and with the pirates offered an energetic resistance to the generals of Caesar both by land and by water.

Macedonia

Lastly Macedonia along with Epirus and Hellas lay in greater desolation and decay than almost any other part of the Roman empire. Dyrrhachium, Thessalonica, and Byzantium had still some trade and commerce; Athens attracted travellers and students by its name and its philosophical school; but on the whole there lay over the formerly populous little towns of Hellas, and her seaports once swarming with men, the calm of the grave. But if the Greeks stirred not, the inhabitants of the hardly accessible Macedonian

mountains on the other hand continued after the old fashion their predatory raids and feuds; for instance about 697-698 Agraeans and Dolopians overran the Aetolian towns, and in 700 the Pirustae dwelling in the valleys of the Drin overran southern Illyria. The neighbouring peoples did likewise. The Dardani on the northern frontier as well as the Thracians in the east had no doubt been humbled by the Romans in the eight years' conflicts from 676 to 683; the most powerful of the Thracian princes, Cotys, the ruler of the old Odrysian kingdom, was thenceforth numbered among the client kings of Rome. Nevertheless the pacified land had still as before to suffer invasions from the north and east. The governor Gaius Antonius was severely handled both by the Dardani and by the tribes settled in the modern Dobrudscha, who, with the help of the dreaded Bastarnae brought up from the left bank of the Danube, inflicted on him an important defeat (692-693) at Istropolis (Istere, not far from Kustendji). Gaius Octavius fought with better fortune against the Bessi and Thracians (694). Marcus Piso again (697-698) as general-in-chief wretchedly mismanaged matters; which was no wonder, seeing that for money he gave friends and foes whatever they wished. The Thracian Denteletae (on the Strymon) under his governorship plundered Macedonia far and wide, and even stationed their posts on the great Roman military road leading from Dyrrhachium to Thessalonica; the people in Thessalonica made up their minds to stand a siege from them, while the strong Roman army in the province seemed to be present only as an onlooker when the inhabitants of the mountains and neighbouring peoples levied contributions from the peaceful subjects of Rome.

The New Dacian Kingdom

Such attacks could not indeed endanger the power of Rome, and a fresh disgrace had long ago ceased to occasion concern. But just about this period a people began to acquire political consolidation beyond the Danube in the wide Dacian steppes—a people which seemed destined to play a different

part in history from that of the Bessi and the Dentheletae. Among the Getae or Dacians in primeval times there had been associated with the king of the people a holy man called Zalmoxis, who, after having explored the ways and wonders of the gods in distant travel in foreign lands, and having thoroughly studied in particular the wisdom of the Egyptian priests and of the Greek Pythagoreans, had returned to his native country to end his life as a pious hermit in a cavern of the "holy mountain." He remained accessible only to the king and his servants, and gave forth to the king and through him to the people his oracles with reference to every important undertaking. He was regarded by his countrymen at first as priest of the supreme god and ultimately as himself a god, just as it is said of Moses and Aaron that the Lord had made Aaron the prophet and Moses the god of the prophet. This had become a permanent institution; there was regularly associated with the king of the Getae such a god, from whose mouth everything which the king ordered proceeded or appeared to proceed. This peculiar constitution, in which the theocratic idea had become subservient to the apparently absolute power of the king, probably gave to the kings of the Getae some such position with respect to their subjects as the caliphs had with respect to the Arabs; and one result of it was the marvellous religious-political reform of the nation, which was carried out about this time by the king of the Getae, Burebistas, and the god Dekeaneos. The people, which had morally and politically fallen into utter decay through unexampled drunkenness, was as it were metamorphosed by the new gospel of temperance and valour; with his hands under the influence, so to speak, of puritanic discipline and enthusiasm king Burebistas founded within a few years a mighty kingdom, which extended along both banks of the Danube and reached southward far into Thrace, Illyria, and Noricum. No direct contact with the Romans had yet taken place, and no one could tell what might come out of this singular state, which reminds us of the early times of Islam; but this much it needed

no prophetic gift to foretell, that proconsuls like Antonius and Piso were not called to contend with gods.

CHAPTER VIII

The Joint Rule of Pompeius and Caesar

Pompeius and Caesar in Juxtaposition

Among the democratic chiefs, who from the time of the consulate of Caesar were recognized officially, so to speak, as the joint rulers of the commonwealth, as the governing "triumvirs," Pompeius according to public opinion occupied decidedly the first place. It was he who was called by the Optimates the "private dictator"; it was before him that Cicero prostrated himself in vain; against him were directed the sharpest sarcasms in the wall-placards of Bibulus, and the most envenomed arrows of the talk in the saloons of the opposition. This was only to be expected. According to the facts before the public Pompeius was indisputably the first general of his time; Caesar was a dexterous party-leader and party-orator, of undeniable talents, but as notoriously of unwarlike and indeed of effeminate temperament. Such opinions had been long current; it could not be expected of the rabble of quality that it should trouble itself about the real state of things and abandon once established platitudes because of obscure feats of heroism on the Tagus. Caesar evidently played in the league the mere part of the adjutant who executed for his chief the work which Flavius, Afranius, and other less capable instruments had attempted and not performed. Even his governorship seemed not to alter this state of things. Afranius had but recently occupied a very similar position, without thereby acquiring any

special importance; several provinces at once had been of late years repeatedly placed under one governor, and often far more than four legions had been united in one hand; as matters were again quiet beyond the Alps and prince Ariovistus was recognized by the Romans as a friend and neighbour, there was no prospect of conducting a war of any moment there. It was natural to compare the position which Pompeius had obtained by the Gabinio-Manilian law with that which Caesar had obtained by the Vatinian; but the comparison did not turn out to Caesar's advantage. Pompeius ruled over nearly the whole Roman empire; Caesar over two provinces. Pompeius had the soldiers and the treasures of the state almost absolutely at his disposal; Caesar had only the sums assigned to him and an army of 24,000 men. It was left to Pompeius himself to fix the point of time for his retirement; Caesar's command was secured to him for a long period no doubt, but yet only for a limited term. Pompeius, in fine, had been entrusted with the most important undertakings by sea and land; Caesar was sent to the north, to watch over the capital from upper Italy and to take care that Pompeius should rule it undisturbed.

Pompeius and the Capital Anarchy

But when Pompeius was appointed by the coalition to be ruler of the capital, he undertook a task far exceeding his powers. Pompeius understood nothing further of ruling than may be summed up in the word of command. The waves of agitation in the capital were swelled at once by past and by future revolutions; the problem of ruling this city—which in every respect might be compared to the Paris of the nineteenth century—without an armed force was infinitely difficult, and for that stiff and stately pattern-soldier altogether insoluble. Very soon matters reached such a pitch that friends and foes, both equally inconvenient to him, could, so far as he was concerned, do what they pleased; after Caesar's departure from Rome the

coalition ruled doubtless still the destinies of the world, but not the streets of the capital. The senate too, to whom there still belonged a sort of nominal government, allowed things in the capital to follow their natural course; partly because the section of this body controlled by the coalition lacked the instructions of the regents, partly because the angry opposition kept aloof out of indifference or pessimism, but chiefly because the whole aristocratic corporation began to feel at any rate, if not to comprehend, its utter impotence. For the moment therefore there was nowhere at Rome any power of resistance in any sort of government, nowhere a real authority. Men were living in an interregnum between the ruin of the aristocratic, and the rise of the military, rule; and, if the Roman commonwealth has presented all the different political functions and organizations more purely and normally than any other in ancient or modern times, it has also exhibited political disorganization-anarchy— with an unenviable clearness. It is a strange coincidence that in the same years, in which Caesar was creating beyond the Alps a work to last for ever, there was enacted in Rome one of the most extravagant political farces that was ever produced upon the stage of the world's history. The new regent of the commonwealth did not rule, but shut himself up in his house and sulked in silence. The former half-deposed government likewise did not rule, but sighed, sometimes in private amidst the confidential circles of the villas, sometimes in chorus in the senate-house. The portion of the burgesses which had still at heart freedom and order was disgusted with the reign of confusion, but utterly without leaders and counsel it maintained a passive attitude—not merely avoiding all political activity, but keeping aloof, as far as possible, from the political Sodom itself.

The Anarchists

On the other hand the rabble of every sort never had better days, never found a merrier arena. The number of little great men was legion.

Demagogism became quite a trade, which accordingly did not lack its professional insignia—the threadbare mantle, the shaggy beard, the long streaming hair, the deep bass voice; and not seldom it was a trade with golden soil. For the standing declamations the tried gargles of the theatrical staff were an article in much request;(1) Greeks and Jews, freedmen and slaves, were the most regular attenders and the loudest criers in the public assemblies; frequently, even when it came to a vote, only a minority of those voting consisted of burgesses constitutionally entitled to do so. "Next time," it is said in a letter of this period, "we may expect our lackeys to outvote the emancipation-tax." The real powers of the day were the compact and armed bands, the battalions of anarchy raised by adventurers of rank out of gladiatorial slaves and blackguards. Their possessors had from the outset been mostly numbered among the popular party; but since the departure of Caesar, who alone understood how to impress the democracy, and alone knew how to manage it, all discipline had departed from them and every partisan practised politics at his own hand. Even now, no doubt, these men fought with most pleasure under the banner of freedom; but, strictly speaking, they were neither of democratic nor of anti-democratic views; they inscribed on the—in itself indispensable—banner, as it happened, now the name of the people, anon that of the senate or that of a party-chief; Clodius for instance fought or professed to fight in succession for the ruling democracy, for the senate, and for Crassus. The leaders of these bands kept to their colours only so far as they inexorably persecuted their personal enemies—as in the case of Clodius against Cicero and Milo against Clodius—while their partisan position served them merely as a handle in these personal feuds. We might as well seek to set a charivari to music as to write the history of this political witches' revel; nor is it of any moment to enumerate all the deeds of murder, besiegings of houses, acts of incendiarism and other scenes of violence within a great capital, and to reckon up how often the gamut was traversed from hissing and shouting

to spitting on and trampling down opponents, and thence to throwing stones and drawing swords.

Clodius

The principal performer in this theatre of political rascality was that Publius Clodius, of whose services, as already mentioned,(2) the regents availed themselves against Cato and Cicero. Left to himself, this influential, talented, energetic and—in his trade—really exemplary partisan pursued during his tribunate, of the people (696) an ultra-democratic policy, gave the citizens corn gratis, restricted the right of the censors to stigmatize immoral burgesses, prohibited the magistrates from obstructing the course of the comitial machinery by religious formalities, set aside the limits which had shortly before (690), for the purpose of checking the system of bands, been imposed on the right of association of the lower classes, and reestablished the "street-clubs" (-collegia compitalicia-) at that time abolished, which were nothing else than a formal organization—subdivided according to the streets, and with an almost military arrangement—of the whole free or slave proletariat of the capital. If in addition the further law, which Clodius had likewise already projected and purposed to introduce when praetor in 702, should give to freedmen and to slaves living in de facto possession of freedom the same political rights with the freeborn, the author of all these brave improvements of the constitution might declare his work complete, and as a second Numa of freedom and equality might invite the sweet rabble of the capital to see him celebrate high mass in honour of the arrival of the democratic millennium in the temple of Liberty which he had erected on the site of one of his burnings at the Palatine. Of course these exertions in behalf of freedom did not exclude a traffic in decrees of the burgesses; like Caesar himself, Caesar's ape kept governorships and other posts great and small on sale for the benefit of his fellow-citizens, and

sold the sovereign rights of the state for the benefit of subject kings and cities.

Quarrel of Pompeius with Clodius

At all these things Pompeius looked on without stirring. If he did not perceive how seriously he thus compromised himself, his opponent perceived it. Clodius had the hardihood to engage in a dispute with the regent of Rome on a question of little moment, as to the sending back of a captive Armenian prince; and the variance soon became a formal feud, in which the utter helplessness of Pompeius was displayed. The head of the state knew not how to meet the partisan otherwise than with his own weapons, only wielded with far less dexterity. If he had been tricked by Clodius respecting the Armenian prince, he offended him in turn by releasing Cicero, who was preeminently obnoxious to Clodius, from the exile into which Clodius had sent him; and he attained his object so thoroughly, that he converted his opponent into an implacable foe. If Clodius made the streets insecure with his bands, the victorious general likewise set slaves and pugilists to work; in the frays which ensued the general naturally was worsted by the demagogue and defeated in the street, and Gaius Cato was kept almost constantly under siege in his garden by Clodius and his comrades. It is not the least remarkable feature in this remarkable spectacle, that the regent and the rogue amidst their quarrel vied in courting the favour of the fallen government; Pompeius, partly to please the senate, permitted Cicero's recall, Clodius on the other hand declared the Julian laws null and void, and called on Marcus Bibulus publicly to testify to their having been unconstitutionally passed.

Naturally no positive result could issue from this imbroglio of dark passions; its most distinctive character was just its utterly ludicrous want of object. Even a man of Caesar's genius had to learn by experience that

democratic agitation was completely worn out, and that even the way to the throne no longer lay through demagogism. It was nothing more than a historical makeshift, if now, in the interregnum between republic and monarchy, some whimsical fellow dressed himself out with the prophet's mantle and staff which Caesar had himself laid aside, and the great ideals of Gaius Gracchus came once more upon the stage distorted into a parody; the so-called party from which this democratic agitation proceeded was so little such in reality, that afterwards it had not even a part falling to it in the decisive struggle. It cannot even be asserted that by means of this anarchical state of things the desire after a strong government based on military power had been vividly kindled in the minds of those who were indifferent to politics. Even apart from the fact that such neutral burgesses were chiefly to be sought outside of Rome, and thus were not directly affected by the rioting in the capital, those minds which could be at all influenced by such motives had been already by their former experiences, and especially by the Catilinarian conspiracy, thoroughly converted to the principle of authority; but those that were really alarmed were affected far more emphatically by a dread of the gigantic crisis inseparable from an overthrow of the constitution, than by dread of the mere continuance of the—at bottom withal very superficial—anarchy in the capital. The only result of it which historically deserves notice was the painful position in which Pompeius was placed by the attacks of the Clodians, and which had a material share in determining his farther steps.

Pompeius in Relation to the Gallic Victories of Caesar

Little as Pompeius liked and understood taking the initiative, he was yet on this occasion compelled by the change of his position towards both Clodius and Caesar to depart from his previous inaction. The irksome and disgraceful situation to which Clodius had reduced him, could not but at length arouse even his sluggish nature to hatred and anger. But far more

important was the change which took place in his relation to Caesar. While, of the two confederate regents, Pompeius had utterly failed in the functions which he had undertaken, Caesar had the skill to turn his official position to an account which left all calculations and all fears far behind. Without much inquiry as to permission, Caesar had doubled his army by levies in his southern province inhabited in great measure by Roman burgesses; had with this army crossed the Alps instead of keeping watch over Rome from Northern Italy; had crushed in the bud a new Cimbrian invasion, and within two years (696, 697) had carried the Roman arms to the Rhine and the Channel. In presence of such facts even the aristocratic tactics of ignoring and disparaging were baffled. He who had often been scoffed at as effeminate was now the idol of the army, the celebrated victory-crowned hero, whose fresh laurels outshone the faded laurels of Pompeius, and to whom even the senate as early as 697 accorded the demonstrations of honour usual after successful campaigns in richer measure than had ever fallen to the share of Pompeius. Pompeius stood towards his former adjutant precisely as after the Gabinio-Manilian laws the latter had stood towards him. Caesar was now the hero of the day and the master of the most powerful Roman army; Pompeius was an ex-general who had once been famous. It is true that no collision had yet occurred between father-in-law and son-in-law, and the relation was externally undisturbed; but every political alliance is inwardly broken up, when the relative proportions of the power of the parties are materially altered. While the quarrel with Clodius was merely annoying, the change in the position of Caesar involved a very serious danger for Pompeius; just as Caesar and his confederates had formerly sought a military support against him, he found himself now compelled to seek a military support against Caesar, and, laying aside his haughty privacy, to come forward as a candidate for some extraordinary magistracy, which would enable him to hold his place by the side of the governor of the two Gauls with equal and, if possible, with superior power.

His tactics, like his position, were exactly those of Caesar during the Mithradatic war. To balance the military power of a superior but still remote adversary by the obtaining of a similar command, Pompeius required in the first instance the official machinery of government. A year and a half ago this had been absolutely at his disposal. The regents then ruled the state both by the comitia, which absolutely obeyed them as the masters of the street, and by the senate, which was energetically overawed by Caesar; as representative of the coalition in Rome and as its acknowledged head, Pompeius would have doubtless obtained from the senate and from the burgesses any decree which he wished, even if it were against Caesar's interest. But by the awkward quarrel with Clodius, Pompeius had lost the command of the streets, and could not expect to carry a proposal in his favour in the popular assembly. Things were not quite so unfavourable for him in the senate; but even there it was doubtful whether Pompeius after that long and fatal inaction still held the reins of the majority firmly enough in hand to procure such a decree as he needed.

The Republican Opposition among the Public

The position of the senate also, or rather of the nobility generally, had meanwhile undergone a change. From the very fact of its complete abasement it drew fresh energy. In the coalition of 694 various things had come to light, which were by no means as yet ripe for it. The banishment of Cato and Cicero—which public opinion, however much the regents kept themselves in the background and even professed to lament it, referred with unerring tact to its real authors—and the marriage-relationship formed between Caesar and Pompeius suggested to men's minds with disagreeable clearness monarchical decrees of banishment and family alliances. The larger public too, which stood more aloof from political events, observed the foundations of the future monarchy coming more and more distinctly into view. From the moment when the public perceived that Caesar's object

was not a modification of the republican constitution, but that the question at stake was the existence or non-existence of the republic, many of the best men, who had hitherto reckoned themselves of the popular party and honoured in Caesar its head, must infallibly have passed over to the opposite side. It was no longer in the saloons and the country houses of the governing nobility alone that men talked of the "three dynasts," of the "three-headed monster." The dense crowds of people listened to the consular orations of Caesar without a sound of acclamation or approval; not a hand stirred to applaud when the democratic consul entered the theatre. But they hissed when one of the tools of the regents showed himself in public, and even staid men applauded when an actor uttered an anti-monarchic sentence or an allusion against Pompeius. Nay, when Cicero was to be banished, a great number of burgesses— it is said twenty thousand— mostly of the middle classes, put on mourning after the example of the senate. "Nothing is now more popular," it is said in a letter of this period, "than hatred of the popular party."

Attempts of the Regents to Check It

The regents dropped hints, that through such opposition the equites might easily lose their new special places in the theatre, and the commons their bread-corn; people were therefore somewhat more guarded perhaps in the expression of their displeasure, but the feeling remained the same. The lever of material interests was applied with better success. Caesar's gold flowed in streams. Men of seeming riches whose finances were in disorder, influential ladies who were in pecuniary embarrassment, insolvent young nobles, merchants and bankers in difficulties, either went in person to Gaul with the view of drawing from the fountain-head, or applied to Caesar's agents in the capital; and rarely was any man outwardly respectable— Caesar avoided dealings with vagabonds who were utterly lost—rejected in either quarter. To this fell to be added the enormous buildings which Caesar

caused to be executed on his account in the capital—and by which a countless number of men of all ranks from the consular down to the common porter found opportunity of profiting—as well as the immense sums expended for public amusements. Pompeius did the same on a more limited scale; to him the capital was indebted for the first theatre of stone, and he celebrated its dedication with a magnificence never seen before. Of course such distributions reconciled a number of men who were inclined towards opposition, more especially in the capital, to the new order of things up to a certain extent; but the marrow of the opposition was not to be reached by this system of corruption. Every day more and more clearly showed how deeply the existing constitution had struck root among the people, and how little, in particular, the circles more aloof from direct party-agitation, especially the country towns, were inclined towards monarchy or even simply ready to let it take its course.

Increasing Importance of the Senate

If Rome had had a representative constitution, the discontent of the burgesses would have found its natural expression in the elections, and have increased by so expressing itself; under the existing circumstances nothing was left for those true to the constitution but to place themselves under the senate, which, degraded as it was, still appeared the representative and champion of the legitimate republic. Thus it happened that the senate, now when it had been overthrown, suddenly found at its disposal an army far more considerable and far more earnestly faithful, than when in its power and splendour it overthrew the Gracchi and under the protection of Sulla's sword restored the state. The aristocracy felt this; it began to bestir itself afresh. Just at this time Marcus Cicero, after having bound himself to join the obsequious party in the senate and not only to offer no opposition, but to work with all his might for the regents, had obtained from them permission to return. Although Pompeius in this matter only made an incidental

concession to the oligarchy, and intended first of all to play a trick on Clodius, and secondly to acquire in the fluent consular a tool rendered pliant by sufficient blows, the opportunity afforded by the return of Cicero was embraced for republican demonstrations, just as his banishment had been a demonstration against the senate. With all possible solemnity, protected moreover against the Clodians by the band of Titus Annius Milo, the two consuls, following out a resolution of the senate, submitted a proposal to the burgesses to permit the return of the consular Cicero, and the senate called on all burgesses true to the constitution not to be absent from the vote. An unusual number of worthy men, especially from the country towns, actually assembled in Rome on the day of voting (4 Aug. 697). The journey of the consular from Brundisium to the capital gave occasion to a series of similar, but not less brilliant manifestations of public feeling. The new alliance between the senate and the burgesses faithful to the constitution was on this occasion as it were publicly proclaimed, and a sort of review of the latter was held, the singularly favourable result of which contributed not a little to revive the sunken courage of the aristocracy.

Helplessness of Pompeius

The helplessness of Pompeius in presence of these daring demonstrations, as well as the undignified and almost ridiculous position into which he had fallen with reference to Clodius, deprived him and the coalition of their credit; and the section of the senate which adhered to the regents, demoralized by the singular inaptitude of Pompeius and helplessly left to itself, could not prevent the republican-aristocratic party from regaining completely the ascendancy in the corporation. The game of this party really at that time (697) was still by no means desperate for a courageous and dexterous player. It had now—what it had not possessed for a century past—a firm support in the people; if it trusted the people and

itself, it might attain its object in the shortest and most honourable way. Why not attack the regents openly and avowedly? Why should not a resolute and eminent man at the head of the senate cancel the extraordinary powers as unconstitutional, and summon all the republicans of Italy to arms against the tyrants and their following? It was possible perhaps in this way once more to restore the rule of the senate. Certainly the republicans would thus play a bold game; but perhaps in this case, as often, the most courageous resolution might have been at the same time the most prudent. Only, it is true, the indolent aristocracy of this period was scarcely capable of so simple and bold a resolution. There was however another way perhaps more sure, at any rate better adapted to the character and nature of these constitutionalists; they might labour to set the two regents at variance and through this variance to attain ultimately to the helm themselves. The relations between the two men ruling the state had become altered and relaxed, now that Caesar had acquired a standing of preponderant power by the side of Pompeius and had compelled the latter to canvass for a new position of command; it was probable that, if he obtained it, there would arise in one way or other a rupture and struggle between them. If Pompeius remained unsupported in this, his defeat was scarcely doubtful, and the constitutional party would in that event find themselves after the close of the conflict under the rule of one master instead of two. But if the nobility employed against Caesar the same means by which the latter had won his previous victories, and entered into alliance with the weaker competitor, victory would probably, with a general like Pompeius, and with an army such as that of the constitutionalists, fall to the coalition; and to settle matters with Pompeius after the victory could not— judging from the proofs of political incapacity which he had already given—appear a specially difficult task.

Attempts of Pompeius to Obtain a Command through the Senate
Administration of the Supplies of Corn

Things had taken such a turn as naturally to suggest an understanding between Pompeius and the republican party. Whether such an approximation was to take place, and what shape the mutual relations of the two regents and of the aristocracy, which had become utterly enigmatical, were next to assume, fell necessarily to be decided, when in the autumn of 697 Pompeius came to the senate with the proposal to entrust him with extraordinary official power. He based his proposal once more on that by which he had eleven years before laid the foundations of his power, the price of bread in the capital, which had just then—as previously to the Gabinian law—reached an oppressive height. Whether it had been forced up by special machinations, such as Clodius imputed sometimes to Pompeius, sometimes to Cicero, and these in their turn charged on Clodius, cannot be determined; the continuance of piracy, the emptiness of the public chest, and the negligent and disorderly supervision of the supplies of corn by the government were already quite sufficient of themselves, even without political forestalling, to produce scarcities of bread in a great city dependent almost solely on transmarine supplies. The plan of Pompeius was to get the senate to commit to him the superintendence of the matters relating to corn throughout the whole Roman empire, and, with a view to this ultimate object, to entrust him on the one hand with the unlimited disposal of the Roman state- treasure, and on the other hand with an army and fleet, as well as a command which not only stretched over the whole Roman empire, but was superior in each province to that of the governor—in short he designed to institute an improved edition of the Gabinian law, to which the conduct of the Egyptian war just then pending(3) would therefore quite as naturally have been annexed as the conduct of the Mithradatic war to the *razzia* against the pirates. However much the opposition to the new dynasts had gained ground in recent years, the majority of the senate was still, when this matter came to be discussed in Sept. 697, under the constraint of the terror excited by Caesar. It obsequiously accepted the

project in principle, and that on the proposition of Marcus Cicero, who was expected to give, and gave, in this case the first proof of the pliability learned by him in exile. But in the settlement of the details very material portions were abated from the original plan, which the tribune of the people Gaius Messius submitted. Pompeius obtained neither free control over the treasury, nor legions and ships of his own, nor even an authority superior to that of the governors; but they contented themselves with granting to him, for the purpose of his organizing due supplies for the capital, considerable sums, fifteen adjutants, and in all affairs relating to the supply of grain full proconsular power throughout the Roman dominions for the next five years, and with having this decree confirmed by the burgesses. There were many different reasons which led to this alteration, almost equivalent to a rejection, of the original plan: a regard to Caesar, with reference to whom the most timid could not but have the greatest scruples in investing his colleague not merely with equal but with superior authority in Gaul itself; the concealed opposition of Pompeius' hereditary enemy and reluctant ally Crassus, to whom Pompeius himself attributed or professed to attribute primarily the failure of his plan; the antipathy of the republican opposition in the senate to any decree which really or nominally enlarged the authority of the regents; lastly and mainly, the incapacity of Pompeius himself, who even after having been compelled to act could not prevail on himself to acknowledge his own action, but chose always to bring forward his real design as it were in incognito by means of his friends, while he himself in his well-known modesty declared his willingness to be content with even less. No wonder that they took him at his word, and gave him the less.

Egyptian Expedition

Pompeius was nevertheless glad to have found at any rate a serious employment, and above all a fitting pretext for leaving the capital. He succeeded, moreover, in providing it with ampler and cheaper supplies,

although not without the provinces severely feeling the reflex effect. But he had missed his real object; the proconsular title, which he had a right to bear in all the provinces, remained an empty name, so long as he had not troops of his own at his disposal. Accordingly he soon afterwards got a second proposition made to the senate, that it should confer on him the charge of conducting back the expelled king of Egypt, if necessary by force of arms, to his home. But the more that his urgent need of the senate became evident, the senators received his wishes with a less pliant and less respectful spirit. It was immediately discovered in the Sibylline oracles that it was impious to send a Roman army to Egypt; whereupon the pious senate almost unanimously resolved to abstain from armed intervention. Pompeius was already so humbled, that he would have accepted the mission even without an army; but in his incorrigible dissimulation he left this also to be declared merely by his friends, and spoke and voted for the despatch of another senator. Of course the senate rejected a proposal which wantonly risked a life so precious to his country; and the ultimate issue of the endless discussions was the resolution not to interfere in Egypt at all (Jan. 698).

Attempt at an Aristocratic Restoration

Attack on Caesar's Laws

These repeated repulses which Pompeius met with in the senate and, what was worse, had to acquiesce in without retaliation, were naturally regarded—come from what side they would—by the public at large as so many victories of the republicans and defeats of the regents generally; the tide of republican opposition was accordingly always on the increase. Already the elections for 698 had gone but partially according to the minds of the dynasts; Caesar's candidates for the praetorship, Publius Vatinius and Gaius Alfius, had failed, while two decided adherents of the fallen government, Gnaeus Lentulus Marcellinus and Gnaeus Domitius Calvinus, had been elected, the former as consul, the latter as praetor. But for 699

there even appeared as candidate for the consulship Lucius Domitius Ahenobarbus, whose election it was difficult to prevent owing to his influence in the capital and his colossal wealth, and who, it was sufficiently well known, would not be content with a concealed opposition. The comitia thus rebelled; and the senate chimed in. It solemnly deliberated over an opinion, which Etruscan soothsayers of acknowledged wisdom had furnished respecting certain signs and wonders at its special request. The celestial revelation announced that through the dissension of the upper classes the whole power over the army and treasure threatened to pass to one ruler, and the state to incur loss of freedom—it seemed that the gods pointed primarily at the proposal of Gaius Messius. The republicans soon descended from heaven to earth. The law as to the domain of Capua and the other laws issued by Caesar as consul had been constantly described by them as null and void, and an opinion had been expressed in the senate as early as Dec. 697 that it was necessary to cancel them on account of their informalities. On the 6th April 698 the consular Cicero proposed in a full senate to put the consideration of the Campanian land distribution in the order of the day for the 15th May. It was the formal declaration of war; and it was the more significant, that it came from the mouth of one of those men who only show their colours when they think that they can do so with safety. Evidently the aristocracy held that the moment had come for beginning the struggle not with Pompeius against Caesar, but against the -tyrannis- generally. What would further follow might easily be seen. Domitius made no secret that he intended as consul to propose to the burgesses the immediate recall of Caesar from Gaul. An aristocratic restoration was at work; and with the attack on the colony of Capua the nobility threw down the gauntlet to the regents.

Conference of the Regents at Luca

Caesar, although receiving from day to day detailed accounts of the events in the capital and, whenever military considerations allowed, watching their progress from as near a point of his southern province as possible, had not hitherto, visibly at least interfered in them. But now war had been declared against him as well as his colleague, in fact against him especially; he was compelled to act, and he acted quickly. He happened to be in the very neighbourhood; the aristocracy had not even found it advisable to delay the rupture, till he should have again crossed the Alps. In the beginning of April 698 Crassus left the capital, to concert the necessary measures with his more powerful colleague; he found Caesar in Ravenna. Thence both proceeded to Luca, and there they were joined by Pompeius, who had departed from Rome soon after Crassus (11 April), ostensibly for the purpose of procuring supplies of grain from Sardinia and Africa. The most noted adherents of the regents, such as Metellus Nepos the proconsul of Hither Spain, Appius Claudius the proprætor of Sardinia, and many others, followed them; a hundred and twenty lictors, and upwards of two hundred senators were counted at this conference, where already the new monarchical senate was represented in contradistinction to the republican. In every respect the decisive voice lay with Caesar. He used it to re-establish and consolidate the existing joint rule on a new basis of more equal distribution of power of most importance in a military point of view, next to that of the two Gauls, were assigned to his two colleagues—that of the two Spains to Pompeius, that of Syria to Crassus; and these offices were to be secured to them by decree of the people for five years (700-704), and to be suitably provided for in a military and financial point of view. On the other hand Caesar stipulated for the prolongation of his command, which expired with the year 700, to the close of 705, as well as for the prerogative of increasing his legions to ten and of charging the pay for the troops arbitrarily levied by him on the state-chest. Pompeius and Crassus were moreover promised a second consulship for the next year (699) before they

departed for their governorships, while Caesar kept it open to himself to administer the supreme magistracy a second time after the termination of his governorship in 706, when the ten years' interval legally requisite between two consulships should have in his case elapsed. The military support, which Pompeius and Crassus required for regulating the affairs of the capital all the more that the legions of Caesar originally destined for this purpose could not now be withdrawn from Transalpine Gaul, was to be found in new legions, which they were to raise for the Spanish and Syrian armies and were not to despatch from Italy to their several destinations until it should seem to themselves convenient to do so. The main questions were thus settled; subordinate matters, such as the settlement of the tactics to be followed against the opposition in the capital, the regulation of the candidatures for the ensuing years, and the like, did not long detain them. The great master of mediation composed the personal differences which stood in the way of an agreement with his wonted ease, and compelled the most refractory elements to act in concert. An understanding befitting colleagues was reestablished, externally at least, between Pompeius and Crassus. Even Publius Clodius was induced to keep himself and his pack quiet, and to give no farther annoyance to Pompeius—not the least marvellous feat of the mighty magician.

Designs of Caesar in This Arrangement

That this whole settlement of the pending questions proceeded, not from a compromise among independent and rival regents meeting on equal terms, but solely from the good will of Caesar, is evident from the circumstances. Pompeius appeared at Luca in the painful position of a powerless refugee, who comes to ask aid from his opponent. Whether Caesar chose to dismiss him and to declare the coalition dissolved, or to receive him and to let the league continue just as it stood—Pompeius was in either view politically annihilated. If he did not in this case break with Caesar, he became the

powerless client of his confederate. If on the other hand he did break with Caesar and, which was not very probable, effected even now a coalition with the aristocracy, this alliance between opponents, concluded under pressure of necessity and at the last moment, was so little formidable that it was hardly for the sake of averting it that Caesar agreed to those concessions. A serious rivalry on the part of Crassus with Caesar was utterly impossible. It is difficult to say what motives induced Caesar to surrender without necessity his superior position, and now voluntarily to concede—what he had refused to his rival even on the conclusion of the league of 694, and what the latter had since, with the evident design of being armed against Caesar, vainly striven in different ways to attain without, nay against, Caesar's will—the second consulate and military power. Certainly it was not Pompeius alone that was placed at the head of an army, but also his old enemy and Caesar's ally throughout many years, Crassus; and undoubtedly Crassus obtained his respectable military position merely as a counterpoise to the new power of Pompeius. Nevertheless Caesar was a great loser, when his rival exchanged his former powerlessness for an important command. It is possible that Caesar did not yet feel himself sufficiently master of his soldiers to lead them with confidence to a warfare against the formal authorities of the land, and was therefore anxious not to be forced to civil war now by being recalled from Gaul; but whether civil war should come or not, depended at the moment far more on the aristocracy of the capital than on Pompeius, and this would have been at most a reason for Caesar not breaking openly with Pompeius, so that the opposition might not be emboldened by this breach, but not a reason for conceding to him what he did concede. Purely personal motives may have contributed to the result; it may be that Caesar recollected how he had once stood in a position of similar powerlessness in presence of Pompeius, and had been saved from destruction only by his—pusillanimous, it is true, rather than magnanimous—retirement; it is probable that Caesar hesitated

to break the heart of his beloved daughter who was sincerely attached to her husband—in his soul there was room for much besides the statesman. But the decisive reason was doubtless the consideration of Gaul. Caesar—differing from his biographers—regarded the subjugation of Gaul not as an incidental enterprise useful to him for the gaining of the crown, but as one on which depended the external security and the internal reorganization, in a word the future, of his country. That he might be enabled to complete this conquest undisturbed and might not be obliged to take in hand just at once the extrication of Italian affairs, he unhesitatingly gave up his superiority over his rivals and granted to Pompeius sufficient power to settle matters with the senate and its adherents. This was a grave political blunder, if Caesar had no other object than to become as quickly as possible king of Rome; but the ambition of that rare man was not confined to the vulgar aim of a crown. He had the boldness to prosecute side by side, and to complete, two labours equally vast—the arranging of the internal affairs of Italy, and the acquisition and securing of a new and fresh soil for Italian civilization. These tasks of course interfered with each other; his Gallic conquests hindered much more than helped him on his way to the throne. It was fraught to him with bitter fruit that, instead of settling the Italian revolution in 698, he postponed it to 706. But as a statesman as well as a general Caesar was a peculiarly daring player, who, confiding in himself and despising his opponents, gave them always great and sometimes extravagant odds.

The Aristocracy Submits

It was now therefore the turn of the aristocracy to make good their high gage, and to wage war as boldly as they had boldly declared it. But there is no more pitiable spectacle than when cowardly men have the misfortune to take a bold resolution. They had simply exercised no foresight at all. It seemed to have occurred to nobody that Caesar would possibly stand on his

defence, or that Pompeius and Crassus would combine with him afresh and more closely than ever. This seems incredible; but it becomes intelligible, when we glance at the persons who then led the constitutional opposition in the senate. Cato was still absent;(4) the most influential man in the senate at this time was Marcus Bibulus, the hero of passive resistance, the most obstinate and most stupid of all consulars. They had taken up arms only to lay them down, so soon as the adversary merely put his hand to the sheath; the bare news of the conferences in Luca sufficed to suppress all thought of a serious opposition and to bring the mass of the timid—that is, the immense majority of the senate—back to their duty as subjects, which in an unhappy hour they had abandoned. There was no further talk of the appointed discussion to try the validity of the Julian laws; the legions raised by Caesar on his own behalf were charged by decree of the senate on the public chest; the attempts on occasion of regulating the next consular provinces to take away both Gauls or one of them by decree from Caesar were rejected by the majority (end of May 698). Thus the corporation did public penance. In secret the individual lords, one after another, thoroughly frightened at their own temerity, came to make their peace and vow unconditional obedience—none more quickly than Marcus Cicero, who repented too late of his perfidy, and in respect of the most recent period of his life clothed himself with titles of honour which were altogether more appropriate than flattering.(5) Of course the regents agreed to be pacified; they refused nobody pardon, for there was nobody who was worth the trouble of making him an exception. That we may see how suddenly the tone in aristocratic circles changed after the resolutions of Luca became known, it is worth while to compare the pamphlets given forth by Cicero shortly before with the palinode which he caused to be issued to evince publicly his repentance and his good intentions.(6)

Settlement of the New Monarchical Rule

The regents could thus arrange Italian affairs at their pleasure and more thoroughly than before. Italy and the capital obtained practically a garrison although not assembled in arms, and one of the regents as commandant. Of the troops levied for Syria and Spain by Crassus and Pompeius, those destined for the east no doubt took their departure; but Pompeius caused the two Spanish provinces to be administered by his lieutenants with the garrison hitherto stationed there, while he dismissed the officers and soldiers of the legions which were newly raised—nominally for despatch to Spain—on furlough, and remained himself with them in Italy.

Doubtless the tacit resistance of public opinion increased, the more clearly and generally men perceived that the regents were working to put an end to the old constitution and with as much gentleness as possible to accommodate the existing condition of the government and administration to the forms of the monarchy; but they submitted, because they were obliged to submit. First of all all the more important affairs, and particularly all that related to military matters and external relations, were disposed of without consulting the senate upon them, sometimes by decree of the people, sometimes by the mere good pleasure of the rulers. The arrangements agreed on at Luca respecting the military command of Gaul were submitted directly to the burgesses by Crassus and Pompeius, those relating to Spain and Syria by the tribune of the people Gaius Trebonius, and in other instances the more important governorships were frequently filled up by decree of the people. That the regents did not need the consent of the authorities to increase their troops at pleasure, Caesar had already sufficiently shown: as little did they hesitate mutually to borrow troops; Caesar for instance received such collegiate support from Pompeius for the Gallic, and Crassus from Caesar for the Parthian, war. The Transpadanes, who possessed according to the existing constitution only Latin rights, were treated by Caesar during his administration practically as full burgesses of Rome.(7) While formerly the organization of newly-acquired territories had

been managed by a senatorial commission, Caesar organized his extensive Gallic conquests altogether according to his own judgment, and founded, for instance, without having received any farther full powers burgess-colonies, particularly Novum-Comum (Como) with five thousand colonists. Piso conducted the Thracian, Gabinius the Egyptian, Crassus the Parthian war, without consulting the senate, and without even reporting, as was usual, to that body; in like manner triumphs and other marks of honour were accorded and carried out, without the senate being asked about them. Obviously this did not arise from a mere neglect of forms, which would be the less intelligible, seeing that in the great majority of cases no opposition from the senate was to be expected. On the contrary, it was a well-calculated design to dislodge the senate from the domain of military arrangements and of higher politics, and to restrict its share of administration to financial questions and internal affairs; and even opponents plainly discerned this and protested, so far as they could, against this conduct of the regents by means of senatorial decrees and criminal actions. While the regents thus in the main set aside the senate, they still made some use of the less dangerous popular assemblies—care was taken that in these the lords of the street should put no farther difficulty in the way of the lords of the state; in many cases however they dispensed even with this empty shadow, and employed without disguise autocratic forms.

The Senate under the Monarchy Cicero and the Majority

The humbled senate had to submit to its position whether it would or not. The leader of the compliant majority continued to be Marcus Cicero. He was useful on account of his lawyer's talent of finding reasons, or at any rate words, for everything; and there was a genuine Caesarian irony in employing the man, by means of whom mainly the aristocracy had conducted their demonstrations against the regents, as the mouthpiece of

servility. Accordingly they pardoned him for his brief desire to kick against the pricks, not however without having previously assured themselves of his submissiveness in every way. His brother had been obliged to take the position of an officer in the Gallic army to answer in some measure as a hostage for him; Pompeius had compelled Cicero himself to accept a lieutenant-generalship under him, which furnished a handle for politely banishing him at any moment. Clodius had doubtless been instructed to leave him meanwhile at peace, but Caesar as little threw off Clodius on account of Cicero as he threw off Cicero on account of Clodius; and the great saviour of his country and the no less great hero of liberty entered into an antechamber-rivalry in the headquarters of Samarobriva, for the befitting illustration of which there lacked, unfortunately, a Roman Aristophanes. But not only was the same rod kept in suspense over Cicero's head, which had once already descended on him so severely; golden fetters were also laid upon him. Amidst the serious embarrassment of his finances the loans of Caesar free of interest, and the joint overseership of those buildings which occasioned the circulation of enormous sums in the capital, were in a high degree welcome to him; and many an immortal oration for the senate was nipped in the bud by the thought of Caesar's agent, who might present a bill to him after the close of the sitting. Consequently he vowed "in future to ask no more after right and honour, but to strive for the favour of the regents," and "to be as flexible as an ear-lap." They used him accordingly as—what he was good for—an advocate; in which capacity it was on various occasions his lot to be obliged to defend his very bitterest foes at a higher bidding, and that especially in the senate, where he almost regularly served as the organ of the dynasts and submitted the proposals "to which others probably consented, but not he himself"; indeed, as recognized leader of the majority of the compliant, he obtained even a certain political importance. They dealt with the other members of the governing corporation accessible

to fear, flattery, or gold in the same way as they had dealt with Cicero, and succeeded in keeping it on the whole in subjection.

Cato and the Minority

Certainly there remained a section of their opponents, who at least kept to their colours and were neither to be terrified nor to be won. The regents had become convinced that exceptional measures, such as those against Cato and Cicero, did their cause more harm than good, and that it was a lesser evil to tolerate an inconvenient republican opposition than to convert their opponents into martyrs for the republic. Therefore they allowed Cato to return (end of 698) and thenceforward in the senate and in the Forum, often at the peril of his life, to offer a continued opposition to the regents, which was doubtless worthy of honour, but unhappily was at the same time ridiculous. They allowed him on occasion of the proposals of Trebonius to push matters once more to a hand-to-hand conflict in the Forum, and to submit to the senate a proposal that the proconsul Caesar should be given over to the Usipetes and Tencteri on account of his perfidious conduct toward those barbarians.⁽⁸⁾ They were patient when Marcus Favonius, Cato's Sancho, after the senate had adopted the resolution to charge the legions of Caesar on the state-chest, sprang to the door of the senate-house and proclaimed to the streets the danger of the country; when the same person in his scurrilous fashion called the white bandage, which Pompeius wore round his weak leg, a displaced diadem; when the consular Lentulus Marcellinus, on being applauded, called out to the assembly to make diligent use of this privilege of expressing their opinion now while they were still allowed to do so; when the tribune of the people Gaius Ateius Capito consigned Crassus on his departure for Syria, with all the formalities of the theology of the day, publicly to the evil spirits. These were, on the whole, vain demonstrations of an irritated minority; yet the little party from which they issued was so far of importance, that it on the one hand fostered

and gave the watchword to the republican opposition fermenting in secret, and on the other hand now and then dragged the majority of the senate, which it had cherished at bottom quite the same sentiments with reference to the regents, into an isolated decree directed against them. For even the majority felt the need of giving vent, at least sometimes and in subordinate matters to their suppressed indignation, and especially—after the manner of those who are servile with reluctance—of exhibiting their resentment towards the great foes in rage against the small. Wherever it was possible, a gentle blow was administered to the instruments of the regents; thus Gabinius was refused the thanksgiving-festival that he asked (698); thus Piso was recalled from his province; thus mourning was put on by the senate, when the tribune of the people Gaius Cato hindered the elections for 699 as long as the consul Marcellinus belonging to the constitutional party was in office. Even Cicero, however humbly he always bowed before the regents, issued an equally envenomed and insipid pamphlet against Caesar's father-in-law. But both these feeble signs of opposition by the majority of the senate and the ineffectual resistance of the minority show only the more clearly, that the government had now passed from the senate to the regents as it formerly passed from the burgesses to the senate; and that the senate was already not much more than a monarchical council of state employed also to absorb the anti-monarchical elements. "No man," the adherents of the fallen government complained, "is of the slightest account except the three; the regents are all-powerful, and they take care that no one shall remain in doubt about it; the whole senate is virtually transformed and obeys the dictators; our generation will not live to see a change of things." They were living in fact no longer under the republic, but under monarchy.

Continued Opposition at the Elections

But if the guidance of the state was at the absolute disposal of the regents, there remained still a political domain separated in some measure

from the government proper, which it was more easy to defend and more difficult to conquer; the field of the ordinary elections of magistrates, and that of the jury-courts. That the latter do not fall directly under politics, but everywhere, and above all in Rome, come partly under the control of the spirit dominating state-affairs, is of itself clear. The elections of magistrates certainly belonged by right to the government proper of the state; but, as at this period the state was administered substantially by extraordinary magistrates or by men wholly without title, and even the supreme ordinary magistrates, if they belonged to the anti-monarchical party, were not able in any tangible way to influence the state-machinery, the ordinary magistrates sank more and more into mere puppets—as, in fact, even those of them who were most disposed to opposition described themselves frankly and with entire justice as powerless ciphers—and their elections therefore sank into mere demonstrations. Thus, after the opposition had already been wholly dislodged from the proper field of battle, hostilities might nevertheless be continued in the field of elections and of processes. The regents spared no pains to remain victors also in this field. As to the elections, they had already at Luca settled between themselves the lists of candidates for the next years, and they left no means untried to carry the candidates agreed upon there. They expended their gold primarily for the purpose of influencing the elections. A great number of soldiers were dismissed annually on furlough from the armies of Caesar and Pompeius to take part in the voting at Rome. Caesar was wont himself to guide, and watch over, the election movements from as near a point as possible of Upper Italy. Yet the object was but very imperfectly attained. For 699 no doubt Pompeius and Crassus were elected consuls, agreeably to the convention of Luca, and Lucius Domitius, the only candidate of the opposition who persevered was set aside; but this had been effected only by open violence, on which occasion Cato was wounded and other extremely scandalous incidents occurred. In the next consular elections for 700, in spite of all the exertions

of the regents, Domitius was actually elected, and Cato likewise now prevailed in the candidature for the praetorship, in which to the scandal of the whole burgesses Caesar's client Vatinius had during the previous year beaten him off the field. At the elections for 701 the opposition succeeded in so indisputably convicting the candidates of the regents, along with others, of the most shameful electioneering intrigues that the regents, on whom the scandal recoiled, could not do otherwise than abandon them. These repeated and severe defeats of the dynasts on the battle-field of the elections may be traceable in part to the unmanageableness of the rusty machinery, to the incalculable accidents of the polling, to the opposition at heart of the middle classes, to the various private considerations that interfere in such cases and often strangely clash with those of party; but the main cause lies elsewhere. The elections were at this time essentially in the power of the different clubs into which the aristocracy had grouped themselves; the system of bribery was organized by them on the most extensive scale and with the utmost method. The same aristocracy therefore, which was represented in the senate, ruled also the elections; but while in the senate it yielded with a grudge, it worked and voted here—in secret and secure from all reckoning—absolutely against the regents. That the influence of the nobility in this field was by no means broken by the strict penal law against the electioneering intrigues of the clubs, which Crassus when consul in 699 caused to be confirmed by the burgesses, is self-evident, and is shown by the elections of the succeeding years.

And in the Courts

The jury-courts occasioned equally great difficulty to the regents. As they were then composed, while the senatorial nobility was here also influential, the decisive voice lay chiefly with the middle class. The fixing of a high-rated census for jurymen by a law proposed by Pompeius in 699 is a remarkable proof that the opposition to the regents had its chief seat in the

middle class properly so called, and that the great capitalists showed themselves here, as everywhere, more compliant than the latter. Nevertheless the republican party was not yet deprived of all hold in the courts, and it was never weary of directing political impeachments, not indeed against the regents themselves, but against their prominent instruments. This warfare of prosecutions was waged the more keenly, that according to usage the duty of accusation belonged to the senatorial youth, and, as may readily be conceived, there was more of republican passion, fresh talent, and bold delight in attack to be found among these youths than among the older members of their order. Certainly the courts were not free; if the regents were in earnest, the courts ventured as little as the senate to refuse obedience. None of their antagonists were prosecuted by the opposition with such hatred—so furious that it almost passed into a proverb—as Vatinius, by far the most audacious and unscrupulous of the closer adherents of Caesar; but his master gave the command, and he was acquitted in all the processes raised against him. But impeachments by men who knew how to wield the sword of dialectics and the lash of sarcasm as did Gaius Licinius Calvus and Gaius Asinius Pollio, did not miss their mark even when they failed; nor were isolated successes wanting. They were mostly, no doubt, obtained over subordinate individuals, but even one of the most high-placed and most hated adherents of the dynasts, the consular Gabinius, was overthrown in this way. Certainly in his case the implacable hatred of the aristocracy, which as little forgave him for the law regarding the conducting of the war with the pirates as for his disparaging treatment of the senate during his Syrian governorship, was combined with the rage of the great capitalists, against whom he had when governor of Syria ventured to defend the interests of the provincials, and even with the resentment of Crassus, with whom he had stood on ceremony in handing over to him the province. His only protection against all these foes was Pompeius, and the latter had every reason to defend his ablest, boldest, and most faithful

adjutant at any price; but here, as everywhere, he knew not how to use his power and to defend his clients, as Caesar defended his; in the end of 700 the jurymen found Gabinius guilty of extortions and sent him into banishment.

On the whole, therefore, in the sphere of the popular elections and of the jury-courts it was the regents that fared worst. The factors which ruled in these were less tangible, and therefore more difficult to be terrified or corrupted than the direct organs of government and administration. The holders of power encountered here, especially in the popular elections, the tough energy of a close oligarchy—grouped in coteries—which is by no means finally disposed of when its rule is overthrown, and which is the more difficult to vanquish the more covert its action. They encountered here too, especially in the jury-courts, the repugnance of the middle classes towards the new monarchical rule, which with all the perplexities springing out of it they were as little able to remove. They suffered in both quarters a series of defeats. The election-victories of the opposition had, it is true, merely the value of demonstrations, since the regents possessed and employed the means of practically annulling any magistrate whom they disliked; but the criminal trials in which the opposition carried condemnations deprived them, in a way keenly felt, of useful auxiliaries. As things stood, the regents could neither set aside nor adequately control the popular elections and the jury-courts, and the opposition, however much it felt itself straitened even here, maintained to a certain extent the field of battle.

Literature of the Opposition

It proved, however, yet a more difficult task to encounter the opposition in a field, to which it turned with the greater zeal the more it was dislodged from direct political action. This was literature. Even the judicial opposition

was at the same time a literary one, and indeed pre-eminently so, for the orations were regularly published and served as political pamphlets. The arrows of poetry hit their mark still more rapidly and sharply. The lively youth of the high aristocracy, and still more energetically perhaps the cultivated middle class in the Italian country towns, waged the war of pamphlets and epigrams with zeal and success. There fought side by side on this field the genteel senator's son Gaius Licinius Calvus (672-706) who was as much feared in the character of an orator and pamphleteer as of a versatile poet, and the municipals of Cremona and Verona Marcus Furius Bibaculus (652-691) and Quintus Valerius Catullus (667-c. 700) whose elegant and pungent epigrams flew swiftly like arrows through Italy and were sure to hit their mark. An oppositional tone prevails throughout the literature of these years. It is full of indignant sarcasm against the "great Caesar," "the unique general," against the affectionate father-in-law and son-in-law, who ruin the whole globe in order to give their dissolute favourites opportunity to parade the spoils of the long-haired Celts through the streets of Rome, to furnish royal banquets with the booty of the farthest isles of the west, and as rivals showering gold to supplant honest youths at home in the favour of their mistresses. There is in the poems of Catullus(9) and the other fragments of the literature of this period something of that fervour of personal and political hatred, of that republican agony overflowing in riotous humour or in stern despair, which are more prominently and powerfully apparent in Aristophanes and Demosthenes.

The most sagacious of the three rulers at least saw well that it was as impossible to despise this opposition as to suppress it by word of command. So far as he could, Caesar tried rather personally to gain over the more notable authors. Cicero himself had to thank his literary reputation in good part for the respectful treatment which he especially experienced from Caesar; but the governor of Gaul did not disdain to conclude a special peace even with Catullus himself through the intervention of his father who had

become personally known to him in Verona; and the young poet, who had just heaped upon the powerful general the bitterest and most personal sarcasms, was treated by him with the most flattering distinction. In fact Caesar was gifted enough to follow his literary opponents on their own domain and to publish— as an indirect way of repelling manifold attacks— a detailed report on the Gallic wars, which set forth before the public, with happily assumed naivete, the necessity and constitutional propriety of his military operations. But it is freedom alone that is absolutely and exclusively poetical and creative; it and it alone is able even in its most wretched caricature, even with its latest breath, to inspire fresh enthusiasm. All the sound elements of literature were and remained anti-monarchical; and, if Caesar himself could venture on this domain without proving a failure, the reason was merely that even now he still cherished at heart the magnificent dream of a free commonwealth, although he was unable to transfer it either to his adversaries or to his adherents. Practical politics was not more absolutely controlled by the regents than literature by the republicans.(10)

New Exceptional Measures Resolved on

It became necessary to take serious steps against this opposition, which was powerless indeed, but was always becoming more troublesome and audacious. The condemnation of Gabinius, apparently, turned the scale (end of 700). The regents agreed to introduce a dictatorship, though only a temporary one, and by means of this to carry new coercive measures especially respecting the elections and the jury-courts. Pompeius, as the regent on whom primarily devolved the government of Rome and Italy, was charged with the execution of this resolve; which accordingly bore the impress of the awkwardness in resolution and action that characterized him, and of his singular incapacity of speaking out frankly, even where he would and could command. Already at the close of 700 the demand for a

dictatorship was brought forward in the senate in the form of hints, and that not by Pompeius himself. There served as its ostensible ground the continuance of the system of clubs and bands in the capital, which by acts of bribery and violence certainly exercised the most pernicious pressure on the elections as well as on the jury-courts and kept it in a perpetual state of disturbance; we must allow that this rendered it easy for the regents to justify their exceptional measures. But, as may well be conceived, even the servile majority shrank from granting what the future dictator himself seemed to shrink from openly asking. When the unparalleled agitation regarding the elections for the consulship of 701 led to the most scandalous scenes, so that the elections were postponed a full year beyond the fixed time and only took place after a seven months' interregnum in July 701, Pompeius found in this state of things the desired occasion for indicating now distinctly to the senate that the dictatorship was the only means of cutting, if not of loosing the knot; but the decisive word of command was not even yet spoken. Perhaps it would have still remained for long unuttered, had not the most audacious partisan of the republican opposition Titus Annius Milo stepped into the field at the consular elections for 702 as a candidate in opposition to the candidates of the regents, Quintus Metellus Scipio and Publius Plautius Hypsaeus, both men closely connected with Pompeius personally and thoroughly devoted to him.

Milo

Killing of Clodius

Milo, endowed with physical courage, with a certain talent for intrigue and for contracting debt, and above all with an ample amount of native assurance which had been carefully cultivated, had made himself a name among the political adventurers of the time, and was the greatest bully in his trade next to Clodius, and naturally therefore through rivalry at the most deadly feud with the latter. As this Achilles of the streets had been acquired

by the regents and with their permission was again playing the ultra-democrat, the Hector of the streets became as a matter of course an aristocrat! And the republican opposition, which now would have concluded an alliance with Catilina in person, had he presented himself to them, readily acknowledged Milo as their legitimate champion in all riots. In fact the few successes, which they carried off in this field of battle, were the work of Milo and of his well-trained band of gladiators. So Cato and his friends in return supported the candidature of Milo for the consulship; even Cicero could not avoid recommending one who had been his enemy's enemy and his own protector during many years; and as Milo himself spared neither money nor violence to carry his election, it seemed secured. For the regents it would have been not only a new and keenly-felt defeat, but also a real danger; for it was to be foreseen that the bold partisan would not allow himself as consul to be reduced to insignificance so easily as Domitius and other men of the respectable opposition. It happened that Achilles and Hector accidentally encountered each other not far from the capital on the Appian Way, and a fray arose between their respective bands, in which Clodius himself received a sword-cut on the shoulder and was compelled to take refuge in a neighbouring house. This had occurred without orders from Milo; but, as the matter had gone so far and as the storm had now to be encountered at any rate, the whole crime seemed to Milo more desirable and even less dangerous than the half; he ordered his men to drag Clodius forth from his lurking place and to put him to death (13 Jan. 702).

Anarchy in Rome

The street leaders of the regents' party—the tribunes of the people Titus Munatius Plancus, Quintus Pompeius Rufus, and Gaius Sallustius Crispus—saw in this occurrence a fitting opportunity to thwart in the interest of their masters the candidature of Milo and carry the dictatorship of

Pompeius. The dregs of the populace, especially the freedmen and slaves, had lost in Clodius their patron and future deliverer;(11) the requisite excitement was thus easily aroused. After the bloody corpse had been exposed for show at the orators' platform in the Forum and the speeches appropriate to the occasion had been made, the riot broke forth. The seat of the perfidious aristocracy was destined as a funeral pile for the great liberator; the mob carried the body to the senate-house, and set the building on fire. Thereafter the multitude proceeded to the front of Milo's house and kept it under siege, till his band drove off the assailants by discharges of arrows. They passed on to the house of Pompeius and of his consular candidates, of whom the former was saluted as dictator and the latter as consuls, and thence to the house of the interrex Marcus Lepidus, on whom devolved the conduct of the consular elections. When the latter, as in duty bound, refused to make arrangements for the elections immediately, as the clamorous multitude demanded, he was kept during five days under siege in his dwelling house.

Dictatorship of Pompeius

But the instigators of these scandalous scenes had overacted their part. Certainly their lord and master was resolved to employ this favourable episode in order not merely to set aside Milo, but also to seize the dictatorship; he wished, however, to receive it not from a mob of bludgeon-men, but from the senate. Pompeius brought up troops to put down the anarchy which prevailed in the capital, and which had in reality become intolerable to everybody; at the same time he now enjoined what he had hitherto requested, and the senate complied. It was merely an empty subterfuge, that on the proposal of Cato and Bibulus the proconsul Pompeius, retaining his former offices, was nominated as "consul without colleague" instead of dictator on the 25th of the intercalary month(12) (702)—a subterfuge, which admitted an appellation labouring under a double

incongruity(13) for the mere purpose of avoiding one which expressed the simple fact, and which vividly reminds us of the sagacious resolution of the waning patriciate to concede to the plebeians not the consulship, but only the consular power.(14)

Changes of in the Arrangement of Magistracies and the Jury-System

Thus in legal possession of full power, Pompeius set to work and proceeded with energy against the republican party which was powerful in the clubs and the jury-courts. The existing enactments as to elections were repeated and enforced by a special law; and by another against electioneering intrigues, which obtained retrospective force for all offences of this sort committed since 684, the penalties hitherto imposed were augmented. Still more important was the enactment, that the governorships, which were by far the more important and especially by far the more lucrative half of official life, should be conferred on the consuls and praetors not immediately on their retirement from the consulate or praetorship, but only after the expiry of other five years; an arrangement which of course could only come into effect after four years, and therefore made the filling up of the governorships for the next few years substantially dependent on decrees of senate which were to be issued for the regulation of this interval, and thus practically on the person or section ruling the senate at the moment. The jury-commissions were left in existence, but limits were put to the right of counter-plea, and—what was perhaps still more important—the liberty of speech in the courts was done away; for both the number of the advocates and the time of speaking apportioned to each were restricted by fixing a maximum, and the bad habit which had prevailed of adducing, in addition to the witnesses as to facts, witnesses to character or -laudatores-, as they were called, in favour of the accused was prohibited. The obsequious senate further decreed on the suggestion of Pompeius that the country had been placed in peril by the quarrel on the

Appian Way; accordingly a special commission was appointed by an exceptional law for all crimes connected with it, the members of which were directly nominated by Pompeius. An attempt was also made to give once more a serious importance to the office of the censors, and by that agency to purge the deeply disordered burgess-body of the worst rabble.

All these measures were adopted under the pressure of the sword. In consequence of the declaration of the senate that the country was in danger, Pompeius called the men capable of service throughout Italy to arms and made them swear allegiance for all contingencies; an adequate and trustworthy corps was temporarily stationed at the Capitol; at every stirring of opposition Pompeius threatened armed intervention, and during the proceedings at the trial respecting the murder of Clodius stationed contrary to all precedent, a guard over the place of trial itself.

Humiliation of the Republicans

The scheme for the revival of the censorship failed, because among the servile majority of the senate no one possessed sufficient moral courage and authority even to become a candidate for such an office. On the other hand Milo was condemned by the jurymen (8 April 702) and Cato's candidature for the consulship of 703 was frustrated. The opposition of speeches and pamphlets received through the new judicial ordinance a blow from which it never recovered; the dreaded forensic eloquence was thereby driven from the field of politics, and thenceforth felt the restraints of monarchy. Opposition of course had not disappeared either from the minds of the great majority of the nation or even wholly from public life—to effect that end the popular elections, the jury-courts, and literature must have been not merely restricted, but annihilated. Indeed, in these very transactions themselves, Pompeius by his unskilfulness and perversity helped the republicans to gain even under his dictatorship several triumphs which he

severely felt. The special measures, which the rulers took to strengthen their power, were of course officially characterized as enactments made in the interest of public tranquillity and order, and every burgess, who did not desire anarchy, was described as substantially concurring in them. But Pompeius pushed this transparent fiction so far, that instead of putting safe instruments into the special commission for the investigation of the last tumult, he chose the most respectable men of all parties, including even Cato, and applied his influence over the court essentially to maintain order, and to render it impossible for his adherents as well as for his opponents to indulge in the scenes of disturbance customary in the courts of this period. This neutrality of the regent was discernible in the judgments of the special court. The jurymen did not venture to acquit Milo himself; but most of the subordinate persons accused belonging to the party of the republican opposition were acquitted, while condemnation inexorably befell those who in the last riot had taken part for Clodius, or in other words for the regents, including not a few of Caesar's and of Pompeius' own most intimate friends—even Hypsaeus his candidate for the consulship, and the tribunes of the people Plancus and Rufus, who had directed the -emeute- in his interest. That Pompeius did not prevent their condemnation for the sake of appearing impartial, was one specimen of his folly; and a second was, that he withal in matters quite indifferent violated his own laws to favour his friends—appearing for example as a witness to character in the trial of Plancus, and in fact protecting from condemnation several accused persons specially connected with him, such as Metellus Scipio. As usual, he wished here also to accomplish opposite things; in attempting to satisfy the duties at once of the impartial regent and of the party-chief, he fulfilled neither the one nor the other, and was regarded by public opinion with justice as a despotic regent, and by his adherents with equal justice as a leader who either could not or would not protect his followers.

But, although the republicans were still stirring and were even refreshed by an isolated success here and there, chiefly through the blunders of Pompeius, the object which the regents had proposed to themselves in that dictatorship was on the whole attained, the reins were drawn tighter, the republican party was humbled, and the new monarchy was strengthened. The public began to reconcile themselves to the latter. When Pompeius not long after recovered from a serious illness, his restoration was celebrated throughout Italy with the accompanying demonstrations of joy which are usual on such occasions in monarchies. The regents showed themselves satisfied; as early as the 1st of August 702 Pompeius resigned his dictatorship, and shared the consulship with his client Metellus Scipio.

CHAPTER IX

Death of Crassus—Rupture between the Joint Rulers

Crassus Goes to Syria

Marcus Crassus had for years been reckoned among the heads of the "three-headed monster," without any proper title to be so included. He served as a makeweight to trim the balance between the real regents Pompeius and Caesar, or, to speak more accurately, his weight fell into the scale of Caesar against Pompeius. This part is not a too reputable one; but Crassus was never hindered by any keen sense of honour from pursuing his own advantage. He was a merchant and was open to be dealt with. What was offered to him was not much; but, when more was not to be got, he accepted it, and sought to forget the ambition that fretted him, and his chagrin at occupying a position so near to power and yet so powerless, amidst his always accumulating piles of gold. But the conference at Luca changed the state of matters also for him; with the view of still retaining the preponderance as compared with Pompeius after concessions so extensive, Caesar gave to his old confederate Crassus an opportunity of attaining in Syria through the Parthian war the same position to which Caesar had attained by the Celtic war in Gaul. It was difficult to say whether these new prospects proved more attractive to the ardent thirst for gold which had now become at the age of sixty a second nature and grew only the more intense with every newly-won million, or to the ambition which had been long

repressed with difficulty in the old man's breast and now glowed in it with restless fire. He arrived in Syria as early as the beginning of 700; he had not even waited for the expiry of his consulship to depart. Full of impatient ardour he seemed desirous to redeem every minute with the view of making up for what he had lost, of gathering in the treasures of the east in addition to those of the west, of achieving the power and glory of a general as rapidly as Caesar, and with as little trouble as Pompeius.

Expedition against Parthia Resolved on

He found the Parthian war already commenced. The faithless conduct of Pompeius towards the Parthians has been already mentioned;(1) he had not respected the stipulated frontier of the Euphrates and had wrested several provinces from the Parthian empire for the benefit of Armenia, which was now a client state of Rome. King Phraates had submitted to this treatment; but after he had been murdered by his two sons Mithradates and Orodes, the new king Mithradates immediately declared war on the king of Armenia, Artavasdes, son of the recently deceased Tigranes (about 698).(2) This was at the same time a declaration of war against Rome; therefore as soon as the revolt of the Jews was suppressed, Gabinius, the able and spirited governor of Syria, led the legions over the Euphrates. Meanwhile, however, a revolution had occurred in the Parthian empire; the grandees of the kingdom, with the young, bold, and talented grand vizier at their head, had overthrown king Mithradates and placed his brother Orodes on the throne. Mithradates therefore made common cause with the Romans and resorted to the camp of Gabinius. Everything promised the best results to the enterprise of the Roman governor, when he unexpectedly received orders to conduct the king of Egypt back by force of arms to Alexandria.(3) He was obliged to obey; but, in the expectation of soon coming back, he induced the dethroned Parthian prince who solicited aid from him to commence the war in the meanwhile at his own hand. Mithradates did so; and Seleucia and

Babylon declared for him; but the vizier captured Seleucia by assault, having been in person the first to mount the battlements, and in Babylon Mithradates himself was forced by famine to surrender, whereupon he was by his brother's orders put to death. His death was a palpable loss to the Romans; but it by no means put an end to the ferment in the Parthian empire, and the Armenian war continued. Gabinius, after ending the Egyptian campaign, was just on the eve of turning to account the still favourable opportunity and resuming the interrupted Parthian war, when Crassus arrived in Syria and along with the command took up also the plans of his predecessor. Full of high-flown hopes he estimated the difficulties of the march as slight, and the power of resistance in the armies of the enemy as yet slighter; he not only spoke confidently of the subjugation of the Parthians, but was already in imagination the conqueror of the kingdoms of Bactria and India.

Plan of the Campaign

The new Alexander, however, was in no haste. Before he carried into effect these great plans, he found leisure for very tedious and very lucrative collateral transactions. The temples of Derceto at Hierapolis Bambyce and of Jehovah at Jerusalem and other rich shrines of the Syrian province, were by order of Crassus despoiled of their treasures; and contingents or, still better, sums of money instead were levied from all the subjects. The military operations of the first summer were limited to an extensive reconnaissance in Mesopotamia; the Euphrates was crossed, the Parthian satrap was defeated at Ichnae (on the Belik to the north of Rakkah), and the neighbouring towns, including the considerable one of Nicephorium (Rakkah), were occupied, after which the Romans having left garrisons behind in them returned to Syria. They had hitherto been in doubt whether it was more advisable to march to Parthia by the circuitous route of Armenia or by the direct route through the Mesopotamian desert. The first route,

leading through mountainous regions under the control of trustworthy allies, commended itself by its greater safety; king Artavasdes came in person to the Roman headquarters to advocate this plan of the campaign. But that reconnaissance decided in favour of the march through Mesopotamia. The numerous and flourishing Greek and half-Greek towns in the regions along the Euphrates and Tigris, above all the great city of Seleucia, were altogether averse to the Parthian rule; all the Greek townships with which the Romans came into contact had now, like the citizens of Carrhae at an earlier time,(4) practically shown how ready they were to shake off the intolerable foreign yoke and to receive the Romans as deliverers, almost as countrymen. The Arab prince Abgarus, who commanded the desert of Edessa and Carrhae and thereby the usual route from the Euphrates to the Tigris, had arrived in the camp of the Romans to assure them in person of his devotedness. The Parthians had appeared to be wholly unprepared.

The Euphrates Crossed

Accordingly (701) the Euphrates was crossed (near Biradjik). To reach the Tigris from this point they had the choice of two routes; either the army might move downward along the Euphrates to the latitude of Seleucia where the Euphrates and Tigris are only a few miles distant from each other; or they might immediately after crossing take the shortest line to the Tigris right across the great Mesopotamian desert. The former route led directly to the Parthian capital Ctesiphon, which lay opposite Seleucia on the other bank of the Tigris; several weighty voices were raised in favour of this route in the Roman council of war; in particular the quaestor Gaius Cassius pointed to the difficulties of the march in the desert, and to the suspicious reports arriving from the Roman garrisons on the left bank of the Euphrates as to the Parthian warlike preparations. But in opposition to this the Arab prince Abgarus announced that the Parthians were employed in

evacuating their western provinces. They had already packed up their treasures and put themselves in motion to flee to the Hyrcanians and Scythians; only through a forced march by the shortest route was it at all possible still to reach them; but by such a march the Romans would probably succeed in overtaking and cutting up at least the rear-guard of the great army under Sillaces and the vizier, and obtaining enormous spoil. These reports of the friendly Bedouins decided the direction of the march; the Roman army, consisting of seven legions, 4000 cavalry, and 4000 slingers and archers, turned off from the Euphrates and away into the inhospitable plains of northern Mesopotamia.

The March in the Desert

Far and wide not an enemy showed himself; only hunger and thirst, and the endless sandy desert, seemed to keep watch at the gates of the east. At length, after many days of toilsome marching, not far from the first river which the Roman army had to cross, the Balissus (Belik), the first horsemen of the enemy were descried. Abgarus with his Arabs was sent out to reconnoitre; the Parthian squadrons retired up to and over the river and vanished in the distance, pursued by Abgarus and his followers. With impatience the Romans waited for his return and for more exact information. The general hoped here at length to come upon the constantly retreating foe; his young and brave son Publius, who had fought with the greatest distinction in Gaul under Caesar,(5) and had been sent by the latter at the head of a Celtic squadron of horse to take part in the Parthian war, was inflamed with a vehement desire for the fight. When no tidings came, they resolved to advance at a venture; the signal for starting was given, the Balissus was crossed, the army after a brief insufficient rest at noon was led on without delay at a rapid pace. Then suddenly the kettledrums of the Parthians sounded all around; on every side their silken gold-embroidered banners were seen waving, and their iron helmets and coats of mail

glittering in the blaze of the hot noonday sun; and by the side of the vizier stood prince Abgarus with his Bedouins.

Roman and Parthian Systems of Warfare

The Romans saw too late the net into which they had allowed themselves to be ensnared. With sure glance the vizier had thoroughly seen both the danger and the means of meeting it. Nothing could be accomplished against the Roman infantry of the line with Oriental infantry; so he had rid himself of it, and by sending a mass, which was useless in the main field of battle, under the personal leadership of king Orodes to Armenia, he had prevented king Artavasdes from allowing the promised 10,000 heavy cavalry to join the army of Crassus, who now painfully felt the want of them. On the other hand the vizier met the Roman tactics, unsurpassed of their kind, with a system entirely different. His army consisted exclusively of cavalry; the line was formed of the heavy horsemen armed with long thrusting-lances, and protected, man and horse, by a coat of mail of metallic plates or a leathern doublet and by similar greaves; the mass of the troops consisted of mounted archers. As compared with these, the Romans were thoroughly inferior in the corresponding arms both as to number and excellence. Their infantry of the line, excellent as they were in close combat, whether at a short distance with the heavy javelin or in hand-to-hand combat with the sword, could not compel an army consisting merely of cavalry to come to an engagement with them; and they found, even when they did come to a hand-to-hand conflict, an equal if not superior adversary in the iron-clad hosts of lancers. As compared with an army like this Parthian one, the Roman army was at a disadvantage strategically, because the cavalry commanded the communications; and at a disadvantage tactically, because every weapon of close combat must succumb to that which is wielded from a distance, unless the struggle becomes an individual one, man against man. The concentrated position, on which the whole Roman method of war was based, increased

the danger in presence of such an attack; the closer the ranks of the Roman column, the more irresistible certainly was its onset, but the less also could the missiles fail to hit their mark. Under ordinary circumstances, where towns have to be defended and difficulties of the ground have to be considered, such tactics operating merely with cavalry against infantry could never be completely carried out; but in the Mesopotamian desert, where the army, almost like a ship on the high seas, neither encountered an obstacle nor met with a basis for strategic dispositions during many days' march, this mode of warfare was irresistible for the very reason that circumstances allowed it to be developed there in all its purity and therefore in all its power. There everything combined to put the foreign infantry at a disadvantage against the native cavalry. Where the heavy-laden Roman foot-soldier dragged himself toilsomely through the sand or the steppe, and perished from hunger or still more from thirst amid the pathless route marked only by water-springs that were far apart and difficult to find, the Parthian horseman, accustomed from childhood to sit on his fleet steed or camel, nay almost to spend his life in the saddle, easily traversed the desert whose hardships he had long learned how to lighten or in case of need to endure. There no rain fell to mitigate the intolerable heat, and to slacken the bowstrings and leathern thongs of the enemy's archers and slingers; there amidst the deep sand at many places ordinary ditches and ramparts could hardly be formed for the camp. Imagination can scarcely conceive a situation in which all the military advantages were more on the one side, and all the disadvantages more thoroughly on the other.

To the question, under what circumstances this new style of tactics, the first national system that on its own proper ground showed itself superior to the Roman, arose among the Parthians, we unfortunately can only reply by conjectures. The lancers and mounted archers were of great antiquity in the east, and already formed the flower of the armies of Cyrus and Darius; but hitherto these arms had been employed only as secondary, and essentially to

cover the thoroughly useless Oriental infantry. The Parthian armies also by no means differed in this respect from the other Oriental ones; armies are mentioned, five-sixths of which consisted of infantry. In the campaign of Crassus, on the other hand, the cavalry for the first time came forward independently, and this arm obtained quite a new application and quite a different value. The irresistible superiority of the Roman infantry in close combat seems to have led the adversaries of Rome in very different parts of the world independently of each other—at the same time and with similar success—to meet it with cavalry and distant weapons. What as completely successful with Cassivellaunus in Britain(6) and partially successful with Vercingetorix in Gaul(7)— what was to a certain degree attempted even by Mithradates Eupator(8)— the vizier of Orodes carried out only on a larger scale and more completely. And in doing so he had special advantages: for he found in the heavy cavalry the means of forming a line; the bow which was national in the east and was handled with masterly skill in the Persian provinces gave him an effective weapon for distant combat; and lastly the peculiarities of the country and the people enabled him freely to realize his brilliant idea. Here, where the Roman weapons of close combat and the Roman system of concentration yielded for the first time before the weapons of more distant warfare and the system of deploying, was initiated that military revolution which only reached its completion with the introduction of firearms.

Battle near Carrhae

Under such circumstances the first battle between the Romans and Parthians was fought amidst the sandy desert thirty miles to the south of Carrhae (Harran) where there was a Roman garrison, and at a somewhat less distance to the north of Ichnae. The Roman archers were sent forward, but retired immediately before the enormous numerical superiority and the far greater elasticity and range of the Parthian bows. The legions, which, in

spite of the advice of the more sagacious officers that they should be deployed as much as possible against the enemy, had been drawn up in a dense square of twelve cohorts on each side, were soon outflanked and overwhelmed with the formidable arrows, which under such circumstances hit their man even without special aim, and against which the soldiers had no means of retaliation. The hope that the enemy might expend his missiles vanished with a glance at the endless range of camels laden with arrows. The Parthians were still extending their line. That the outflanking might not end in surrounding, Publius Crassus advanced to the attack with a select corps of cavalry, archers, and infantry of the line. The enemy in fact abandoned the attempt to close the circle, and retreated, hotly pursued by the impetuous leader of the Romans. But, when the corps of Publius had totally lost sight of the main army, the heavy cavalry made a stand against it, and the Parthian host hastening up from all sides closed in like a net round it. Publius, who saw his troops falling thickly and vainly around him under the arrows of the mounted archers, threw himself in desperation with his Celtic cavalry unprotected by any coats of mail on the iron-clad lancers of the enemy; but the death-despising valour of his Celts, who seized the lances with their hands or sprang from their horses to stab the enemy, performed its marvels in vain. The remains of the corps, including their leader wounded in the sword-arm, were driven to a slight eminence, where they only served for an easier mark to the enemy's archers. Mesopotamian Greeks, who were accurately acquainted with the country, adjured Crassus to ride off with them and make an attempt to escape; but he refused to separate his fate from that of the brave men whom his too-daring courage had led to death, and he caused himself to be stabbed by the hand of his shield-bearer. Following his example, most of the still surviving officers put themselves to death. Of the whole division, about 6000 strong, not more than 500 were taken prisoners; no one was able to escape. Meanwhile the attack on the main army had slackened, and the Romans were but too glad

to rest. When at length the absence of any tidings from the corps sent out startled them out of the deceitful calm, and they drew near to the scene of the battle for the purpose of learning its fate, the head of the son was displayed on a pole before his father's eyes; and the terrible onslaught began once more against the main army with the same fury and the same hopeless uniformity. They could neither break the ranks of the lancers nor reach the archers; night alone put an end to the slaughter. Had the Parthians bivouacked on the battle-field, hardly a man of the Roman army would have escaped. But not trained to fight otherwise than on horseback, and therefore afraid of a surprise, they were wont never to encamp close to the enemy; jeeringly they shouted to the Romans that they would give the general a night to bewail his son, and galloped off to return next morning and despatch the game that lay bleeding on the ground.

Retreat to Carrhae

Of course the Romans did not wait for the morning. The lieutenant-generals Cassius and Octavius—Crassus himself had completely lost his judgment—ordered the men still capable of marching to set out immediately and with the utmost silence (while the whole—said to amount to 4000—of the wounded and stragglers were left), with the view of seeking protection within the walls of Carrhae. The fact that the Parthians, when they returned on the following day, applied themselves first of all to seek out and massacre the scattered Romans left behind, and the further fact that the garrison and inhabitants of Carrhae, early informed of the disaster by fugitives, had marched forth in all haste to meet the beaten army, saved the remnants of it from what seemed inevitable destruction.

Departure from Carrhae

Surprise at Sinnaca

The squadrons of Parthian horsemen could not think of undertaking a siege of Carrhae. But the Romans soon voluntarily departed, whether compelled by want of provisions, or in consequence of the desponding precipitation of their commander-in-chief, whom the soldiers had vainly attempted to remove from the command and to replace by Cassius. They moved in the direction of the Armenian mountains; marching by night and resting by day Octavius with a band of 5000 men reached the fortress of Sinnaca, which was only a day's march distant from the heights that would give shelter, and liberated even at the peril of his own life the commander-in-chief, whom the guide had led astray and given up to the enemy. Then the vizier rode in front of the Roman camp to offer, in the name of his king, peace and friendship to the Romans, and to propose a personal conference between the two generals. The Roman army, demoralized as it was, adjured and indeed compelled its leader to accept the offer. The vizier received the consular and his staff with the usual honours, and offered anew to conclude a compact of friendship; only, with just bitterness recalling the fate of the agreements concluded with Lucullus and Pompeius respecting the Euphrates boundary,(9) he demanded that it should be immediately reduced to writing. A richly adorned horse was produced; it was a present from the king to the Roman commander-in-chief; the servants of the vizier crowded round Crassus, zealous to mount him on the steed. It seemed to the Roman officers as if there was a design to seize the person of the commander-in-chief; Octavius, unarmed as he was, pulled the sword of one of the Parthians from its sheath and stabbed the groom. In the tumult which thereupon arose, the Roman officers were all put to death; the gray-haired commander-in-chief also, like his grand-uncle,(10) was unwilling to serve as a living trophy to the enemy, and sought and found death. The multitude left behind in the camp without a leader were partly taken prisoners, partly dispersed. What the day of Carrhae had begun, the day of Sinnaca completed (June 9, 701); the two took their place side by side with the days

of the Allia, of Cannae, and of Arausio. The army of the Euphrates was no more. Only the squadron of Gaius Cassius, which had been broken off from the main army on the retreat from Carrhae, and some other scattered bands and isolated fugitives succeeded in escaping from the Parthians and Bedouins and separately finding their way back to Syria. Of above 40,000 Roman legionaries, who had crossed the Euphrates, not a fourth part returned; the half had perished; nearly 10,000 Roman prisoners were settled by the victors in the extreme east of their kingdom—in the oasis of Merv—as bondsmen compelled after the Parthian fashion to render military service. For the first time since the eagles had headed the legions, they had become in the same year trophies of victory in the hands of foreign nations, almost contemporaneously of a German tribe in the west(11) and of the Parthians in the east. As to the impression which the defeat of the Romans produced in the east, unfortunately no adequate information has reached us; but it must have been deep and lasting. King Orodes was just celebrating the marriage of his son Pacorus with the sister of his new ally, Artavasdes the king of Armenia, when the announcement of the victory of his vizier arrived, and along with it, according to Oriental usage, the cut-off head of Crassus. The tables were already removed; one of the wandering companies of actors from Asia Minor, numbers of which at that time existed and carried Hellenic poetry and the Hellenic drama far into the east, was just performing before the assembled court the -Bacchae- of Euripides. The actor playing the part of Agave, who in her Dionysiac frenzy has torn in pieces her son and returns from Cithaeron carrying his head on the thyrsus, exchanged this for the bloody head of Crassus, and to the infinite delight of his audience of half-Hellenized barbarians began afresh the well-known song:

—pheromin ex oreos elika neotomon epi melathra makarian
theiran—.

It was, since the times of the Achaemenids, the first serious victory which the Orientals had achieved over the west; and there was a deep significance in the fact that, by way of celebrating this victory, the fairest product of the western world— Greek tragedy—parodied itself through its degenerate representatives in that hideous burlesque. The civic spirit of Rome and the genius of Hellas began simultaneously to accommodate themselves to the chains of sultanism.

Consequences of the Defeat

The disaster, terrible in itself, seemed also as though it was to be dreadful in its consequences, and to shake the foundations of the Roman power in the east. It was among the least of its results that the Parthians now had absolute sway beyond the Euphrates; that Armenia, after having fallen away from the Roman alliance even before the disaster of Crassus, was reduced by it into entire dependence on Parthia; that the faithful citizens of Carrhae were bitterly punished for their adherence to the Occidentals by the new master appointed over them by the Parthians, one of the treacherous guides of the Romans, named Andromachus. The Parthians now prepared in all earnest to cross the Euphrates in their turn, and, in union with the Armenians and Arabs, to dislodge the Romans from Syria. The Jews and various other Occidentals awaited emancipation from the Roman rule there, no less impatiently than the Hellenes beyond the Euphrates awaited relief from the Parthian; in Rome civil war was at the door; an attack at this particular place and time was a grave peril. But fortunately for Rome the leaders on each side had changed. Sultan Orodes was too much indebted to the heroic prince, who had first placed the crown on his head and then cleared the land from the enemy, not to get rid of him as soon as possible by the executioner. His place as commander-in-chief of the invading army destined for Syria was filled by a prince, the king's son Pacorus, with whom on account of his youth and inexperience the prince Osaces had to be

associated as military adviser. On the other side the interim command in Syria in room of Crassus was taken up by the prudent and resolute quaestor Gaius Cassius.

Repulse of the Parthians

The Parthians were, just like Crassus formerly, in no haste to attack, but during the years 701 and 702 sent only weak flying bands, who were easily repulsed, across the Euphrates; so that Cassius obtained time to reorganize the army in some measure, and with the help of the faithful adherent of the Romans, Herodes Antipater, to reduce to obedience the Jews, whom resentment at the spoliation of the temple perpetrated by Crassus had already driven to arms. The Roman government would thus have had full time to send fresh troops for the defence of the threatened frontier; but this was left undone amidst the convulsions of the incipient revolution, and, when at length in 703 the great Parthian invading army appeared on the Euphrates, Cassius had still nothing to oppose to it but the two weak legions formed from the remains of the army of Crassus. Of course with these he could neither prevent the crossing nor defend the province. Syria was overrun by the Parthians, and all Western Asia trembled. But the Parthians did not understand the besieging of towns. They not only retreated from Antioch, into which Cassius had thrown himself with his troops, without having accomplished their object, but they were on their retreat along the Orontes allured into an ambush by Cassius' cavalry and there severely handled by the Roman infantry; prince Osaces was himself among the slain. Friend and foe thus perceived that the Parthian army under an ordinary general and on ordinary ground was not capable of much more than any other Oriental army. However, the attack was not abandoned. Still during the winter of 703-704 Pacorus lay encamped in Cyrrhestica on this side of the Euphrates; and the new governor of Syria, Marcus Bibulus, as wretched a general as he was an incapable statesman, knew no better course of action

than to shut himself up in his fortresses. It was generally expected that the war would break out in 704 with renewed fury. But instead of turning his arms against the Romans, Pacorus turned against his own father, and accordingly even entered into an understanding with the Roman governor. Thus the stain was not wiped from the shield of Roman honour, nor was the reputation of Rome restored in the east; but the Parthian invasion of Western Asia was over, and the Euphrates boundary was, for the time being at least, retained.

Impression Produced in Rome by the Defeat of Carrhae

In Rome meanwhile the periodical volcano of revolution was whirling upward its clouds of stupefying smoke. The Romans began to have no longer a soldier or a denarius to be employed against the public foe— no longer a thought for the destinies of the nations. It is one of the most dreadful signs of the times, that the huge national disaster of Carrhae and Sinnaca gave the politicians of that time far less to think and speak of than that wretched tumult on the Appian road, in which, a couple of months after Crassus, Clodius the partisan-leader perished; but it is easily conceivable and almost excusable. The breach between the two regents, long felt as inevitable and often announced as near, was now assuming such a shape that it could not be arrested. Like the boat of the ancient Greek mariners' tale, the vessel of the Roman community now found itself as it were between two rocks swimming towards each other; expecting every moment the crash of collision, those whom it was bearing, tortured by nameless anguish, into the eddying surge that rose higher and higher were benumbed; and, while every slightest movement there attracted a thousand eyes, no one ventured to give a glance to the right or the left.

The Good Understanding between the Regents Relaxed

After Caesar had, at the conference of Luca in April 698, agreed to considerable concessions as regarded Pompeius, and the regents had thus placed themselves substantially on a level, their relation was not without the outward conditions of durability, so far as a division of the monarchical power—in itself indivisible— could be lasting at all. It was a different question whether the regents, at least for the present, were determined to keep together and mutually to acknowledge without reserve their title to rank as equals. That this was the case with Caesar, in so far as he had acquired the interval necessary for the conquest of Gaul at the price of equalization with Pompeius, has been already set forth. But Pompeius was hardly ever, even provisionally, in earnest with the collegiate scheme. His was one of those petty and mean natures, towards which it is dangerous to practise magnanimity; to his paltry spirit it appeared certainly a dictate of prudence to supplant at the first opportunity his reluctantly acknowledged rival, and his mean soul thirsted after a possibility of retaliating on Caesar for the humiliation which he had suffered through Caesar's indulgence. But while it is probable that Pompeius in accordance with his dull and sluggish nature never properly consented to let Caesar hold a position of equality by his side, yet the design of breaking up the alliance doubtless came only by degrees to be distinctly entertained by him. At any rate the public, which usually saw better through the views and intentions of Pompeius than he did himself, could not be mistaken in thinking that at least with the death of the beautiful Julia—who died in the bloom of womanhood in the autumn of 700 and was soon followed by her only child to the tomb—the personal relation between her father and her husband was broken up. Caesar attempted to re-establish the ties of affinity which fate had severed; he asked for himself the hand of the only daughter of Pompeius, and offered Octavia, his sister's grand-daughter, who was now his nearest relative, in marriage to his fellow-regent; but Pompeius left his daughter to her existing husband Faustus Sulla the son of the regent, and he himself married the

daughter of Quintus Metellus Scipio. The personal breach had unmistakeably begun, and it was Pompeius who drew back his hand. It was expected that a political breach would at once follow; but in this people were mistaken; in public affairs a collegiate understanding continued for a time to subsist. The reason was, that Caesar did not wish publicly to dissolve the relation before the subjugation of Gaul was accomplished, and Pompeius did not wish to dissolve it before the governing authorities and Italy should be wholly reduced under his power by his investiture with the dictatorship. It is singular, but yet readily admits of explanation, that the regents under these circumstances supported each other; Pompeius after the disaster of Aduatuca in the winter of 700 handed over one of his Italian legions that were dismissed on furlough by way of loan to Caesar; on the other hand Caesar granted his consent and his moral support to Pompeius in the repressive measures which the latter took against the stubborn republican opposition.

Dictatorship of Pompeius

Covert Attacks by Pompeius on Caesar

It was only after Pompeius had in this way procured for himself at the beginning of 702 the undivided consulship and an influence in the capital thoroughly outweighing that of Caesar, and after all the men capable of arms in Italy had tendered their military oath to himself personally and in his name, that he formed the resolution to break as soon as possible formally with Caesar; and the design became distinctly enough apparent. That the judicial prosecution which took place after the tumult on the Appian Way lighted with unsparing severity precisely on the old democratic partisans of Caesar,(12) might perhaps pass as a mere awkwardness. That the new law against electioneering intrigues, which had retrospective effect as far as 684, included also the dubious proceedings at Caesar's candidature for the consulship,(13) might likewise be nothing more, although not a few

Caesarians thought that they perceived in it a definite design. But people could no longer shut their eyes, however willing they might be to do so, when Pompeius did not select for his colleague in the consulship his former father-in-law Caesar, as was fitting in the circumstances of the case and was in many quarters demanded, but associated with himself a puppet wholly dependent on him in his new father-in-law Scipio;(14) and still less, when Pompeius at the same time got the governorship of the two Spains continued to him for five years more, that is to 709, and a considerable fixed sum appropriated from the state-chest for the payment of his troops, not only without stipulating for a like prolongation of command and a like grant of money to Caesar, but even while labouring ulteriorly to effect the recall of Caesar before the term formerly agreed on through the new regulations which were issued at the same time regarding the holding of the governorships. These encroachments were unmistakeably calculated to undermine Caesar's position and eventually to overthrow him. The moment could not be more favourable. Caesar had conceded so much to Pompeius at Luca, only because Crassus and his Syrian army would necessarily, in the event of any rupture with Pompeius, be thrown into Caesar's scale; for upon Crassus—who since the times of Sulla had been at the deepest enmity with Pompeius and almost as long politically and personally allied with Caesar, and who from his peculiar character at all events, if he could not himself be king of Rome, would have been content with being the new king's banker—Caesar could always reckon, and could have no apprehension at all of seeing Crassus confronting him as an ally of his enemies. The catastrophe of June 701, by which army and general in Syria perished, was therefore a terribly severe blow also for Caesar. A few months later the national insurrection blazed up more violently than ever in Gaul, just when it had seemed completely subdued, and for the first time Caesar here encountered an equal opponent in the Arvernian king Vercingetorix. Once more fate had been working for Pompeius; Crassus was dead, all Gaul was in revolt,

Pompeius was practically dictator of Rome and master of the senate. What might have happened, if he had now, instead of remotely intriguing against Caesar, summarily compelled the burgesses or the senate to recall Caesar at once from Gaul! But Pompeius never understood how to take advantage of fortune. He heralded the breach clearly enough; already in 702 his acts left no doubt about it, and in the spring of 703 he openly expressed his purpose of breaking with Caesar; but he did not break with him, and allowed the months to slip away unemployed.

The Old Party Names and the Pretenders

But however Pompeius might delay, the crisis was incessantly urged on by the mere force of circumstances.

The impending war was not a struggle possibly between republic and monarchy—for that had been virtually decided years before—but a struggle between Pompeius and Caesar for the possession of the crown of Rome. But neither of the pretenders found his account in uttering the plain truth; he would have thereby driven all that very respectable portion of the burgesses, which desired the continuance of the republic and believed in its possibility, directly into the camp of his opponent. The old battle-cries raised by Gracchus and Drusus, Cinna and Sulla, used up and meaningless as they were, remained still good enough for watchwords in the struggle of the two generals contending for the sole rule; and, though for the moment both Pompeius and Caesar ranked themselves officially with the so-called popular party, it could not be for a moment doubtful that Caesar would inscribe on his banner the people and democratic progress, Pompeius the aristocracy and the legitimate constitution.

The Democracy and Caesar

Caesar had no choice. He was from the outset and very earnestly a democrat; the monarchy as he understood it differed more outwardly than in reality from the Gracchan government of the people; and he was too magnanimous and too profound a statesman to conceal his colours and to fight under any other escutcheon than his own. The immediate advantage no doubt, which this battle-cry brought to him, was trifling; it was confined mainly to the circumstance that he was thereby relieved from the inconvenience of directly naming the kingly office, and so alarming the mass of the lukewarm and his own adherents by that detested word. The democratic banner hardly yielded farther positive gain, since the ideals of Gracchus had been rendered infamous and ridiculous by Clodius; for where was there now—laying aside perhaps the Transpadanes— any class of any sort of importance, which would have been induced by the battle-cries of the democracy to take part in the struggle?

The Aristocracy and Pompeius

This state of things would have decided the part of Pompeius in the impending struggle, even if apart from this it had not been self-evident that he could only enter into it as the general of the legitimate republic. Nature had destined him, if ever any one, to be a member of an aristocracy; and nothing but very accidental and very selfish motives had carried him over as a deserter from the aristocratic to the democratic camp. That he should now revert to his Sullan traditions, was not merely befitting in the case, but in every respect of essential advantage. Effete as was the democratic cry, the conservative cry could not but have the more potent effect, if it proceeded from the right man. Perhaps the majority, at any rate the flower of the burgesses, belonged to the constitutional party; and as respected its numerical and moral strength might well be called to interfere powerfully, perhaps decisively, in the impending struggle of the pretenders. It wanted nothing but a leader. Marcus Cato, its present head, did the duty, as he

understood it, of its leader amidst daily peril to his life and perhaps without hope of success; his fidelity to duty deserves respect, but to be the last at a forlorn post is commendable in the soldier, not in the general. He had not the skill either to organize or to bring into action at the proper time the powerful reserve, which had sprung up as it were spontaneously in Italy for the party of the overthrown government; and he had for good reasons never made any pretension to the military leadership, on which everything ultimately depended. If instead of this man, who knew not how to act either as party-chief or as general, a man of the political and military mark of Pompeius should raise the banner of the existing constitution, the municipals of Italy would necessarily flock towards it in crowds, that under it they might help to fight, if not indeed for the kingship of Pompeius, at any rate against the kingship of Caesar.

To this was added another consideration at least as important. It was characteristic of Pompeius, even when he had formed a resolve, not to be able to find his way to its execution. While he knew perhaps how to conduct war but certainly not how to declare it, the Catonian party, although assuredly unable to conduct it, was very able and above all very ready to supply grounds for the war against the monarchy on the point of being founded. According to the intention of Pompeius, while he kept himself aloof, and in his peculiar way, now talked as though he would immediately depart for his Spanish provinces, now made preparations as though he would set out to take over the command on the Euphrates, the legitimate governing board, namely the senate, were to break with Caesar, to declare war against him, and to entrust the conduct of it to Pompeius, who then, yielding to the general desire, was to come forward as the protector of the constitution against demagogico- monarchical plots, as an upright man and champion of the existing order of things against the profligates and anarchists, as the duly-installed general of the senate against the Emperor of the street, and so once more to save his country. Thus Pompeius gained

by the alliance with the conservatives both a second army in addition to his personal adherents, and a suitable war-manifesto— advantages which certainly were purchased at the high price of coalescing with those who were in principle opposed to him. Of the countless evils involved in this coalition, there was developed in the meantime only one—but that already a very grave one— that Pompeius surrendered the power of commencing hostilities against Caesar when and how he pleased, and in this decisive point made himself dependent on all the accidents and caprices of an aristocratic corporation.

The Republicans

Thus the republican opposition, after having been for years obliged to rest content with the part of a mere spectator and having hardly ventured to whisper, was now brought back once more to the political stage by the impending rupture between the regents. It consisted primarily of the circle which rallied round Cato— those republicans who were resolved to venture on the struggle for the republic and against the monarchy under all circumstances, and the sooner the better. The pitiful issue of the attempt made in 698(15) had taught them that they by themselves alone were not in a position either to conduct war or even to call it forth; it was known to every one that even in the senate, while the whole corporation with a few isolated exceptions was averse to monarchy, the majority would still only restore the oligarchic government if it might be restored without danger—in which case, doubtless, it had a good while to wait. In presence of the regents on the one hand, and on the other hand of this indolent majority, which desired peace above all things and at any price, and was averse to any decided action and most of all to a decided rupture with one or other of the regents, the only possible course for the Catonian party to obtain a restoration of the old rule lay in a coalition with the less dangerous of the rulers. If Pompeius acknowledged the oligarchic constitution and offered to

fight for it against Caesar, the republican opposition might and must recognize him as its general, and in alliance with him compel the timid majority to a declaration of war. That Pompeius was not quite in earnest with his fidelity to the constitution, could indeed escape nobody; but, undecided as he was in everything, he had by no means arrived like Caesar at a clear and firm conviction that it must be the first business of the new monarch to sweep off thoroughly and conclusively the oligarchic lumber. At any rate the war would train a really republican army and really republican generals; and, after the victory over Caesar, they might proceed with more favourable prospects to set aside not merely one of the monarchs, but the monarchy itself, which was in the course of formation. Desperate as was the cause of the oligarchy, the offer of Pompeius to become its ally was the most favourable arrangement possible for it.

Their League with Pompeius

The conclusion of the alliance between Pompeius and the Catonian party was effected with comparative rapidity. Already during the dictatorship of Pompeius a remarkable approximation had taken place between them. The whole behaviour of Pompeius in the Milonian crisis, his abrupt repulse of the mob that offered him the dictatorship, his distinct declaration that he would accept this office only from the senate, his unrelenting severity against disturbers of the peace of every sort and especially against the ultra-democrats, the surprising complaisance with which he treated Cato and those who shared his views, appeared as much calculated to gain the men of order as they were offensive to the democrat Caesar. On the other hand Cato and his followers, instead of combating with their wonted sternness the proposal to confer the dictatorship on Pompeius, had made it with immaterial alterations of form their own; Pompeius had received the undivided consulship primarily from the hands of Bibulus and Cato. While the Catonian party and Pompeius had thus at least a tacit understanding as

early as the beginning of 702, the alliance might be held as formally concluded, when at the consular elections for 703 there was elected not Cato himself indeed, but—along with an insignificant man belonging to the majority of the senate—one of the most decided adherents of Cato, Marcus Claudius Marcellus. Marcellus was no furious zealot and still less a genius, but a steadfast and strict aristocrat, just the right man to declare war if war was to be begun with Caesar. As the case stood, this election, so surprising after the repressive measures adopted immediately before against the republican opposition, can hardly have occurred otherwise than with the consent, or at least under the tacit permission, of the regent of Rome for the time being. Slowly and clumsily, as was his wont, but steadily Pompeius moved onward to the rupture.

Passive Resistance of Caesar

It was not the intention of Caesar on the other hand to fall out at this moment with Pompeius. He could not indeed desire seriously and permanently to share the ruling power with any colleague, least of all with one of so secondary a sort as was Pompeius; and beyond doubt he had long resolved after terminating the conquest of Gaul to take the sole power for himself, and in case of need to extort it by force of arms. But a man like Caesar, in whom the officer was thoroughly subordinate to the statesman, could not fail to perceive that the regulation of the political organism by force of arms does in its consequences deeply and often permanently disorganize it; and therefore he could not but seek to solve the difficulty, if at all possible, by peaceful means or at least without open civil war. But even if civil war was not to be avoided, he could not desire to be driven to it at a time, when in Gaul the rising of Vercingetorix imperilled afresh all that had been obtained and occupied him without interruption from the winter of 701-702 to the winter of 702-703, and when Pompeius and the constitutional party opposed to him on principle were dominant in Italy.

Accordingly he sought to preserve the relation with Pompeius and thereby the peace unbroken, and to attain, if at all possible, by peaceful means to the consulship for 706 already assured to him at Luca. If he should then after a conclusive settlement of Celtic affairs be placed in a regular manner at the head of the state, he, who was still more decidedly superior to Pompeius as a statesman than as a general, might well reckon on outmanoeuvring the latter in the senate-house and in the Forum without special difficulty. Perhaps it was possible to find out for his awkward, vacillating, and arrogant rival some sort of honourable and influential position, in which the latter might be content to sink into a nullity; the repeated attempts of Caesar to keep himself related by marriage to Pompeius, may have been designed to pave the way for such a solution and to bring about a final settlement of the old quarrel through the succession of offspring inheriting the blood of both competitors. The republican opposition would then remain without a leader and therefore probably quiet, and peace would be preserved. If this should not be successful, and if there should be, as was certainly possible, a necessity for ultimately resorting to the decision of arms, Caesar would then as consul in Rome dispose of the compliant majority of the senate; and he could impede or perhaps frustrate the coalition of the Pompeians and the republicans, and conduct the war far more suitably and more advantageously, than if he now as proconsul of Gaul gave orders to march against the senate and its general. Certainly the success of this plan depended on Pompeius being good-natured enough to let Caesar still obtain the consulship for 706 assured to him at Luca; but, even if it failed, it would be always of advantage for Caesar to have given practical and repeated evidence of the most yielding disposition. On the one hand time would thus be gained for attaining his object meanwhile in Gaul; on the other hand his opponents would be left with the odium of initiating the rupture and consequently the civil war—which was of the utmost moment for Caesar

with reference to the majority of the senate and the party of material interests, and more especially with reference to his own soldiers.

On these views he acted. He armed certainly; the number of his legion was raised through new levies in the winter of 702-703 to eleven, including that borrowed from Pompeius. But at the same time he expressly and openly approved of Pompeius' conduct during the dictatorship and the restoration of order in the capital which he had effected, rejected the warnings of officious friends as calumnies, reckoned every day by which he succeeded in postponing the catastrophe a gain, overlooked whatever could be overlooked and bore whatever could be borne— immoveably adhering only to the one decisive demand that, when his governorship of Gaul came to an end with 705, the second consulship, admissible by republican state-law and promised to him according to agreement by his colleague, should be granted to him for the year 706.

Preparation for Attacks on Caesar

This very demand became the battle-field of the diplomatic war which now began. If Caesar were compelled either to resign his office of governor before the last day of December 705, or to postpone the assumption of the magistracy in the capital beyond the 1st January 706, so that he should remain for a time between the governorship and the consulate without office, and consequently liable to criminal impeachment—which according to Roman law was only allowable against one who was not in office— the public had good reason to prophesy for him in this case the fate of Milo, because Cato had for long been ready to impeach him and Pompeius was a more than doubtful protector.

Attempt to Keep Caesar Out of the Consulship

Now, to attain that object, Caesar's opponents had a very simple means. According to the existing ordinance as to elections, every candidate for the consulship was obliged to announce himself personally to the presiding magistrate, and to cause his name to be inscribed on the official list of candidates before the election, that is half a year before entering on office. It had probably been regarded in the conferences at Luca as a matter of course that Caesar would be released from this obligation, which was purely formal and was very often dispensed with; but the decree to that effect had not yet been issued, and, as Pompeius was now in possession of the decreative machinery, Caesar depended in this respect on the good will of his rival. Pompeius incomprehensibly abandoned of his own accord this completely secure position; with his consent and during his dictatorship (702) the personal appearance of Caesar was dispensed with by a tribunician law. When however soon afterwards the new election-ordinance⁽¹⁶⁾ was issued, the obligation of candidates personally to enrol themselves was repeated in general terms, and no sort of exception was added in favour of those released from it by earlier resolutions of the people; according to strict form the privilege granted in favour of Caesar was cancelled by the later general law. Caesar complained, and the clause was subsequently appended but not confirmed by special decree of the people, so that this enactment inserted by mere interpolation in the already promulgated law could only be looked on *de jure* as a nullity. Where Pompeius, therefore, might have simply kept by the law, he had preferred first to make a spontaneous concession, then to recall it, and lastly to cloak this recall in a manner most disloyal.

Attempt to Shorten Caesar's Governorship

While in this way the shortening of Caesar's governorship was only aimed at indirectly, the regulations issued at the same time as to the governorships sought the same object directly. The ten years for which the

governorship had been secured to Caesar, in the last instance through the law proposed by Pompeius himself in concert with Crassus, ran according to the usual mode of reckoning from 1 March 695 to the last day of February 705. As, however, according to the earlier practice, the proconsul or proprætor had the right of entering on his provincial magistracy immediately after the termination of his consulship or prætorship, the successor of Caesar was to be nominated, not from the urban magistrates of 704, but from those of 705, and could not therefore enter before 1st Jan. 706. So far Caesar had still during the last ten months of the year 705 a right to the command, not on the ground of the Pompeio-Licinian law, but on the ground of the old rule that a command with a set term still continued after the expiry of the term up to the arrival of the successor. But now, since the new regulation of 702 called to the governorships not the consuls and prætors going out, but those who had gone out five years ago or more, and thus prescribed an interval between the civil magistracy and the command instead of the previous immediate sequence, there was no longer any difficulty in straightway filling up from another quarter every legally vacant governorship, and so, in the case in question, bringing about for the Gallic provinces the change of command on the 1st March 705, instead of the 1st Jan. 706. The pitiful dissimulation and procrastinating artifice of Pompeius are after a remarkable manner mixed up, in these arrangements, with the wily formalism and the constitutional erudition of the republican party. Years before these weapons of state-law could be employed, they had them duly prepared, and put themselves in a condition on the one hand to compel Caesar to the resignation of his command from the day when the term secured to him by Pompeius' own law expired, that is from the 1st March 705, by sending successors to him, and on the other hand to be able to treat as null and void the votes tendered for him at the elections for 706. Caesar, not in a position to hinder these moves in the game, kept silence and left things to their own course.

Debates as to Caesar's Recall

Gradually therefore the slow course of constitutional procedure developed itself. According to custom the senate had to deliberate on the governorships of the year 705, so far as they went to former consuls, at the beginning of 703, so far as they went to former praetors, at the beginning of 704; that earlier deliberation gave the first occasion to discuss the nomination of new governors for the two Gauls in the senate, and thereby the first occasion for open collision between the constitutional party pushed forward by Pompeius and the senatorial supporters of Caesar. The consul Marcus Marcellus introduced a proposal to give the two provinces hitherto administered by the proconsul Gaius Caesar from the 1st March 705 to the two consulars who were to be provided with governorships for that year. The long-repressed indignation burst forth in a torrent through the sluice once opened; everything that the Catonians were meditating against Caesar was brought forward in these discussions. For them it was a settled point, that the right granted by exceptional law to the proconsul Caesar of announcing his candidature for the consulship in absence had been again cancelled by a subsequent decree of the people, and that the reservation inserted in the latter was invalid. The senate should in their opinion cause this magistrate, now that the subjugation of Gaul was ended, to discharge immediately the soldiers who had served out their time. The cases in which Caesar had bestowed burgess-rights and established colonies in Upper Italy were described by them as unconstitutional and null; in further illustration of which Marcellus ordained that a respected senator of the Caesarian colony of Comum, who, even if that place had not burgess but only Latin rights, was entitled to lay claim to Roman citizenship,(17) should receive the punishment of scourging, which was admissible only in the case of non-burgesses.

The supporters of Caesar at this time—among whom Gaius Vibius Pansa, who was the son of a man proscribed by Sulla but yet had entered on a political career, formerly an officer in Caesar's army and in this year tribune of the people, was the most notable—affirmed in the senate that both the state of things in Gaul and equity demanded not only that Caesar should not be recalled before the time, but that he should be allowed to retain the command along with the consulship; and they pointed beyond doubt to the facts, that a few years previously Pompeius had just in the same way combined the Spanish governorships with the consulate, that even at the present time, besides the important office of superintending the supply of food to the capital, he held the supreme command in Italy in addition to the Spanish, and that in fact the whole men capable of arms had been sworn in by him and had not yet been released from their oath.

The process began to take shape, but its course was not on that account more rapid. The majority of the senate, seeing the breach approaching, allowed no sitting capable of issuing a decree to take place for months; and other months in their turn were lost over the solemn procrastination of Pompeius. At length the latter broke the silence and ranged himself, in a reserved and vacillating fashion as usual but yet plainly enough, on the side of the constitutional party against his former ally. He summarily and abruptly rejected the demand of the Caesarians that their master should be allowed to conjoin the consulship and the proconsulship; this demand, he added with blunt coarseness, seemed to him no better than if a son should offer to flog his father. He approved in principle the proposal of Marcellus, in so far as he too declared that he would not allow Caesar directly to attach the consulship to the pro-consulship. He hinted, however, although without making any binding declaration on the point, that they would perhaps grant to Caesar admission to the elections for 706 without requiring his personal announcement, as well as the continuance of his governorship at the utmost to the 13th Nov. 705. But in the meantime the incorrigible procrastinator

consented to the postponement of the nomination of successors to the last day of Feb. 704, which was asked by the representatives of Caesar, probably on the ground of a clause of the Pompeio-Licinian law forbidding any discussion in the senate as to the nomination of successors before the beginning of Caesar's last year of office.

In this sense accordingly the decrees of the senate were issued (29 Sept. 703). The filling up of the Gallic governorships was placed in the order of the day for the 1st March 704; but even now it was attempted to break up the army of Caesar—just as had formerly been done by decree of the people with the army of Lucullus(18)— by inducing his veterans to apply to the senate for their discharge. Caesar's supporters effected, indeed, as far as they constitutionally could, the cancelling of these decrees by their tribunician veto; but Pompeius very distinctly declared that the magistrates were bound unconditionally to obey the senate, and that intercessions and similar antiquated formalities would produce no change. The oligarchical party, whose organ Pompeius now made himself, betrayed not obscurely the design, in the event of a victory, of revising the constitution in their sense and removing everything which had even the semblance of popular freedom; as indeed, doubtless for this reason, it omitted to avail itself of the comitia at all in its attacks directed against Caesar. The coalition between Pompeius and the constitutional party was thus formally declared; sentence too was already evidently passed on Caesar, and the term of its promulgation was simply postponed. The elections for the following year proved thoroughly adverse to him.

Counter-Arrangements of Caesar

During these party manoeuvres of his antagonists preparatory to war, Caesar had succeeded in getting rid of the Gallic insurrection and restoring the state of peace in the whole subject territory. As early as the summer of

703, under the convenient pretext of defending the frontier(19) but evidently in token of the fact that the legions in Gaul were now beginning to be no longer needed there, he moved one of them to North Italy. He could not avoid perceiving now at any rate, if not earlier, that he would not be spared the necessity of drawing the sword against his fellow- citizens; nevertheless, as it was highly desirable to leave the legions still for a time in the barely pacified Gaul, he sought even yet to procrastinate, and, well acquainted with the extreme love of peace in the majority of the senate, did not abandon the hope of still restraining them from the declaration of war in spite of the pressure exercised over them by Pompeius. He did not even hesitate to make great sacrifices, if only he might avoid for the present open variance with the supreme governing board. When the senate (in the spring of 704) at the suggestion of Pompeius requested both him and Caesar to furnish each a legion for the impending Parthian war(20) and when agreeably to this resolution Pompeius demanded back from Caesar the legion lent to him some years before, so as to send it to Syria, Caesar complied with the double demand, because neither the opportuneness of this decree of the senate nor the justice of the demand of Pompeius could in themselves be disputed, and the keeping within the bounds of the law and of formal loyalty was of more consequence to Caesar than a few thousand soldiers. The two legions came without delay and placed themselves at the disposal of the government, but instead of sending them to the Euphrates, the latter kept them at Capua in readiness for Pompeius; and the public had once more the opportunity of comparing the manifest endeavours of Caesar to avoid a rupture with the perfidious preparation for war by his opponents.

Curio

For the discussions with the senate Caesar had succeeded in purchasing not only one of the two consuls of the year, Lucius Aemilius Paullus, but above all the tribune of the people Gaius Curio, probably the most eminent

among the many profligate men of parts in this epoch;(21) unsurpassed in refined elegance, in fluent and clever oratory, in dexterity of intrigue, and in that energy which in the case of vigorous but vicious characters bestirs itself only the more powerfully amid the pauses of idleness; but also unsurpassed in his dissolute life, in his talent for borrowing— his debts were estimated at 60,000,000 sesterces (600,000 pounds)— and in his moral and political want of principle. He had previously offered himself to be bought by Caesar and had been rejected; the talent, which he thenceforward displayed in his attacks on Caesar, induced the latter subsequently to buy him up—the price was high, but the commodity was worth the money.

Debates as to the Recall of Caesar and Pompeius

Curio had in the first months of his tribunate of the people played the independent republican, and had as such thundered both against Caesar and against Pompeius. He availed himself with rare skill of the apparently impartial position which this gave him, when in March 704 the proposal as to the filling up of the Gallic governorships for the next year came up afresh for discussion in the senate; he completely approved the decree, but asked that it should be at the same time extended to Pompeius and his extraordinary commands. His arguments—that a constitutional state of things could only be brought about by the removal of all exceptional positions, that Pompeius as merely entrusted by the senate with the proconsulship could still less than Caesar refuse obedience to it, that the one-sided removal of one of the two generals would only increase the danger to the constitution— carried complete conviction to superficial politicians and to the public at large; and the declaration of Curio, that he intended to prevent any onesided proceedings against Caesar by the veto constitutionally belonging to him, met with much approval in and out of the senate. Caesar declared his consent at once to Curio's proposal and offered to resign his governorship and command at any moment on the summons of

the senate, provided Pompeius would do the same; he might safely do so, for Pompeius without his Italo-Spanish command was no longer formidable. Pompeius again for that very reason could not avoid refusing; his reply—that Caesar must first resign, and that he meant speedily to follow the example thus set—was the less satisfactory, that he did not even specify a definite term for his retirement. Again the decision was delayed for months; Pompeius and the Catonians, perceiving the dubious humour of the majority of the senate, did not venture to bring Curio's proposal to a vote. Caesar employed the summer in establishing the state of peace in the regions which he had conquered, in holding a great review of his troops on the Scheldt, and in making a triumphal march through the province of North Italy, which was entirely devoted to him; autumn found him in Ravenna, the southern frontier-town of his province.

Caesar and Pompeius Both Recalled

The vote which could no longer be delayed on Curio's proposal at length took place, and exhibited the defeat of the party of Pompeius and Cato in all its extent. By 370 votes against 20 the senate resolved that the proconsuls of Spain and Gaul should both be called upon to resign their offices; and with boundless joy the good burgesses of Rome heard the glad news of the saving achievement of Curio. Pompeius was thus recalled by the senate no less than Caesar, and while Caesar was ready to comply with the command, Pompeius positively refused obedience. The presiding consul Gaius Marcellus, cousin of Marcus Marcellus and like the latter belonging to the Catonian party, addressed a severe lecture to the servile majority; and it was, no doubt, vexatious to be thus beaten in their own camp and beaten by means of a phalanx of poltroons. But where was victory to come from under a leader, who, instead of shortly and distinctly dictating his orders to the senators, resorted in his old days a second time to the instructions of a

professor of rhetoric, that with eloquence polished up afresh he might encounter the youthful vigour and brilliant talents of Curio?

Declaration of War

The coalition, defeated in the senate, was in the most painful position. The Catonian section had undertaken to push matters to a rupture and to carry the senate along with them, and now saw their vessel stranded after a most vexatious manner on the sandbanks of the indolent majority. Their leaders had to listen in their conferences to the bitterest reproaches from Pompeius; he pointed out emphatically and with entire justice the dangers of the seeming peace; and, though it depended on himself alone to cut the knot by rapid action, his allies knew very well that they could never expect this from him, and that it was for them, as they had promised, to bring matters to a crisis. After the champions of the constitution and of senatorial government had already declared the constitutional rights of the burgesses and of the tribunes of the people to be meaningless formalities,(22) they now found themselves driven by necessity to treat the constitutional decision; of the senate itself in a similar manner and, as the legitimate government would not let itself be saved with its own consent, to save it against its will. This was neither new nor accidental; Sulla(23) and Lucullus(24) had been obliged to carry every energetic resolution conceived by them in the true interest of the government with a high hand irrespective of it, just as Cato and his friends now proposed to do; the machinery of the constitution was in fact utterly effete, and the senate was now—as the comitia had been for centuries—nothing but a worn-out wheel slipping constantly out of its track.

It was rumoured (Oct. 704) that Caesar had moved four legions from Transalpine into Cisalpine Gaul and stationed them at Placentia. This transference of troops was of itself within the prerogative of the governor;

Curio moreover palpably showed in the senate the utter groundlessness of the rumour; and they by a majority rejected the proposal of the consul Gaius Marcellus to give Pompeius on the strength of it orders to march against Caesar. Yet the said consul, in concert with the two consuls elected for 705 who likewise belonged to the Catonian party, proceeded to Pompeius, and these three men by virtue of their own plenitude of power requested the general to put himself at the head of the two legions stationed at Capua, and to call the Italian militia to arms at his discretion. A more informal authorization for the commencement of a civil war can hardly be conceived; but people had no longer time to attend to such secondary matters; Pompeius accepted it. The military preparations, the levies began; in order personally to forward them, Pompeius left the capital in December 704.

The Ultimatum of Caesar

Caesar had completely attained the object of devolving the initiative of civil war on his opponents. He had, while himself keeping on legal ground, compelled Pompeius to declare war, and to declare it not as representative of the legitimate authority, but as general of an openly revolutionary minority of the senate which overawed the majority. This result was not to be reckoned of slight importance, although the instinct of the masses could not and did not deceive itself for a moment as to the fact that the war concerned other things than questions of formal law. Now, when war was declared, it was Caesar's interest to strike a blow as soon as possible. The preparations of his opponents were just beginning and even the capital was not occupied. In ten or twelve days an army three times as strong as the troops of Caesar that were in Upper Italy could be collected at Rome; but still it was not impossible to surprise the city undefended, or even perhaps by a rapid winter campaign to seize all Italy, and to shut off the best resources of his opponents before they could make them available. The sagacious and energetic Curio, who after resigning his tribunate (10 Dec.

704) had immediately gone to Caesar at Ravenna, vividly represented the state of things to his master; and it hardly needed such a representation to convince Caesar that longer delay now could only be injurious. But, as he with the view of not giving his antagonists occasion to complain had hitherto brought no troops to Ravenna itself, he could for the present do nothing but despatch orders to his whole force to set out with all haste; and he had to wait till at least the one legion stationed in Upper Italy reached Ravenna. Meanwhile he sent an ultimatum to Rome, which, if useful for nothing else, by its extreme submissiveness still farther compromised his opponents in public opinion, and perhaps even, as he seemed himself to hesitate, induced them to prosecute more remissly their preparations against him. In this ultimatum Caesar dropped all the counter-demands which he formerly made on Pompeius, and offered on his own part both to resign the governorship of Transalpine Gaul, and to dismiss eight of the ten legions belonging to him, at the term fixed by the senate; he declared himself content, if the senate would leave him either the governorship of Cisalpine Gaul and Illyria with one, or that of Cisalpine Gaul alone with two, legions, not, forsooth, up to his investiture with the consulship, but till after the close of the consular elections for 706. He thus consented to those proposals of accommodation, with which at the beginning of the discussions the senatorial party and even Pompeius himself had declared that they would be satisfied, and showed himself ready to remain in a private position from his election to the consulate down to his entering on office. Whether Caesar was in earnest with these astonishing concessions and had confidence that he should be able to carry through his game against Pompeius even after granting so much, or whether he reckoned that those on the other side had already gone too far to find in these proposals of compromise more than a proof that Caesar regarded his cause itself as lost, can no longer be with certainty determined. The probability is, that Caesar committed the fault of playing a too bold game, far worse rather than the fault of promising

something which he was not minded to perform; and that, if strangely enough his proposals had been accepted, he would have made good his word.

Last Debate in the Senate

Curio undertook once more to represent his master in the lion's den. In three days he made the journey from Ravenna to Rome. When the new consuls Lucius Lentulus and Gaius Marcellus the younger⁽²⁵⁾ assembled the senate for the first time on 1 Jan. 705, he delivered in a full meeting the letter addressed by the general to the senate. The tribunes of the people, Marcus Antonius well known in the chronicle of scandal of the city as the intimate friend of Curio and his accomplice in all his follies, but at the same time known from the Egyptian and Gallic campaigns as a brilliant cavalry officer, and Quintus Cassius, Pompeius' former quaestor,—the two, who were now in Curio's stead managing the cause of Caesar in Rome—insisted on the immediate reading of the despatch. The grave and clear words in which Caesar set forth the imminence of civil war, the general wish for peace, the arrogance of Pompeius, and his own yielding disposition, with all the irresistible force of truth; the proposals for a compromise, of a moderation which doubtless surprised his own partisans; the distinct declaration that this was the last time that he should offer his hand for peace—made the deepest impression. In spite of the dread inspired by the numerous soldiers of Pompeius who flocked into the capital, the sentiment of the majority was not doubtful; the consuls could not venture to let it find expression. Respecting the proposal renewed by Caesar that both generals might be enjoined to resign their commands simultaneously, respecting all the projects of accommodation suggested by his letter, and respecting the proposal made by Marcus Coelius Rufus and Marcus Calpurnius that Pompeius should be urged immediately to depart for Spain, the consuls refused—as they in the capacity of presiding officers were entitled to do—

to let a vote take place. Even the proposal of one of their most decided partisans who was simply not so blind to the military position of affairs as his party, Marcus Marcellus—to defer the determination till the Italian levy en masse could be under arms and could protect the senate—was not allowed to be brought to a vote. Pompeius caused it to be declared through his usual organ, Quintus Scipio, that he was resolved to take up the cause of the senate now or never, and that he would let it drop if they longer delayed. The consul Lentulus said in plain terms that even the decree of the senate was no longer of consequence, and that, if it should persevere in its servility, he would act of himself and with his powerful friends take the farther steps necessary. Thus overawed, the majority decreed what was commanded— that Caesar should at a definite and not distant day give up Transalpine Gaul to Lucius Domitius Ahenobarbus, and Cisalpine Gaul to Marcus Servilius Nonianus, and should dismiss his army, failing which he should be esteemed a traitor. When the tribunes of Caesar's party made use of their right of veto against this resolution, not only were they, as they at least asserted, threatened in the senate-house itself by the swords of Pompeian soldiers, and forced, in order to save their lives, to flee in slaves' clothing from the capital; but the now sufficiently overawed senate treated their formally quite constitutional interference as an attempt at revolution, declared the country in danger, and in the usual forms called the whole burgesses to take up arms, and all magistrates faithful to the constitution to place themselves at the head of the armed (7 Jan. 705).

Caesar Marches into Italy

Now it was enough. When Caesar was informed by the tribunes who had fled to his camp entreating protection as to the reception which his proposals had met with in the capital, he called together the soldiers of the thirteenth legion, which had meanwhile arrived from its cantonments near Tergeste (Trieste) at Ravenna, and unfolded before them the state of things.

It was not merely the man of genius versed in the knowledge and skilled in the control of men's hearts, whose brilliant eloquence shone forth and glowed in this agitating crisis of his own and the world's destiny; nor merely the generous commander-in-chief and the victorious general, addressing soldiers, who had been called by himself to arms and for eight years had followed his banners with daily-increasing enthusiasm. There spoke, above all, the energetic and consistent statesman, who had now for nine-and-twenty years defended the cause of freedom in good and evil times; who had braved for it the daggers of assassins and the executioners of the aristocracy, the swords of the Germans and the waves of the unknown ocean, without ever yielding or wavering; who had torn to pieces the Sullan constitution, had overthrown the rule of the senate, and had furnished the defenceless and unarmed democracy with protection and with arms by means of the struggle beyond the Alps. And he spoke, not to the Clodian public whose republican enthusiasm had been long burnt down to ashes and dross, but to the young men from the towns and villages of Northern Italy, who still felt freshly and purely the mighty influence of the thought of civic freedom; who were still capable of fighting and of dying for ideals; who had themselves received for their country in a revolutionary way from Caesar the burgess-rights which the government refused to them; whom Caesar's fall would leave once more at the mercy of the -fasces-, and who already possessed practical proofs(26) of the inexorable use which the oligarchy proposed to make of these against the Transpadanes. Such were the listeners before whom such an orator set forth the facts— the thanks for the conquest of Gaul which the nobility were preparing for the general and his army; the contemptuous setting aside of the comitia; the overawing of the senate; the sacred duty of protecting with armed hand the tribunate of the people wrested five hundred years ago by their fathers arms in hand from the nobility, and of keeping the ancient oath which these had taken for themselves as for their children's children that they would man by man

stand firm even to death for the tribunes of the people.(27) And then, when he—the leader and general of the popular party—summoned the soldiers of the people, now that conciliatory means had been exhausted and concession had reached its utmost limits, to follow him in the last, the inevitable, the decisive struggle against the equally hated and despised, equally perfidious and incapable, and in fact ludicrously incorrigible aristocracy—there was not an officer or a soldier who could hold back. The order was given for departure; at the head of his vanguard Caesar crossed the narrow brook which separated his province from Italy, and which the constitution forbade the proconsul of Gaul to pass. When after nine years' absence he trod once more the soil of his native land, he trod at the same time the path of revolution. "The die was cast."

CHAPTER X

Brundisium, Ilerda, Pharsalus, and Thapsus

The Resources on Either Side

Arms were thus to decide which of the two men who had hitherto jointly ruled Rome was now to be its first sole ruler. Let us see what were the comparative resources at the disposal of Caesar and Pompeius for the waging of the impending war.

Caesar's Absolute Power within His Party

Caesar's power rested primarily on the wholly unlimited authority which he enjoyed within his party. If the ideas of democracy and of monarchy met together in it, this was not the result of a coalition which had been accidentally entered into and might be accidentally dissolved; on the contrary it was involved in the very essence of a democracy without a representative constitution, that democracy and monarchy should find in Caesar at once their highest and ultimate expression. In political as in military matters throughout the first and the final decision lay with Caesar. However high the honour in which he held any serviceable instrument, it remained an instrument still; Caesar stood, in his own party without confederates, surrounded only by military-political adjutants, who as a rule had risen from the army and as soldiers were trained never to ask the reason

and purpose of any thing, but unconditionally to obey. On this account especially, at the decisive moment when the civil war began, of all the officers and soldiers of Caesar one alone refused him obedience; and the circumstance that that one was precisely the foremost of them all, serves simply to confirm this view of the relation of Caesar to his adherents.

Labienus

Titus Labienus had shared with Caesar all the troubles of the dark times of Catilina(1) as well as all the lustre of the Gallic career of victory, had regularly held independent command, and frequently led half the army; as he was the oldest, ablest, and most faithful of Caesar's adjutants, he was beyond question also highest in position and highest in honour. As late as in 704 Caesar had entrusted to him the supreme command in Cisalpine Gaul, in order partly to put this confidential post into safe hands, partly to forward the views of Labienus in his canvass for the consulship. But from this very position Labienus entered into communication with the opposite party, resorted at the beginning of hostilities in 705 to the headquarters of Pompeius instead of those of Caesar, and fought through the whole civil strife with unparalleled bitterness against his old friend and master in war. We are not sufficiently informed either as to the character of Labienus or as to the special circumstances of his changing sides; but in the main his case certainly presents nothing but a further proof of the fact, that a military chief can reckon far more surely on his captains than on his marshals. To all appearance Labienus was one of those persons who combine with military efficiency utter incapacity as statesmen, and who in consequence, if they unhappily choose or are compelled to take part in politics, are exposed to those strange paroxysms of giddiness, of which the history of Napoleon's marshals supplies so many tragi-comic examples. He may probably have held himself entitled to rank alongside of Caesar as the second chief of the democracy; and the rejection of this claim of his may have sent him over to

the camp of his opponents. His case rendered for the first time apparent the whole gravity of the evil, that Caesar's treatment of his officers as adjutants without independence admitted of the rise of no men fitted to undertake a separate command in his camp, while at the same time he stood urgently in need of such men amidst the diffusion—which might easily be foreseen—of the impending struggle through all the provinces of the wide empire. But this disadvantage was far outweighed by that unity in the supreme leadership, which was the primary condition of all success, and a condition only to be preserved at such a cost.

Caesar's Army

This unity of leadership acquired its full power through the efficiency of its instruments. Here the army comes, first of all, into view. It still numbered nine legions of infantry or at the most 50,000 men, all of whom however had faced the enemy and two-thirds had served in all the campaigns against the Celts. The cavalry consisted of German and Noric mercenaries, whose usefulness and trustworthiness had been proved in the war against Vercingetorix. The eight years' warfare, full of varied vicissitudes, against the Celtic nation—which was brave, although in a military point of view decidedly inferior to the Italian—had given Caesar the opportunity of organizing his army as he alone knew how to organize it. The whole efficiency of the soldier presupposes physical vigour; in Caesar's levies more regard was had to the strength and activity of the recruits than to their means or their morals. But the serviceableness of an army, like that of any other machine, depends above all on the ease and quickness of its movements; the soldiers of Caesar attained a perfection rarely reached and probably never surpassed in their readiness for immediate departure at any time, and in the rapidity of their marching. Courage, of course, was valued above everything; Caesar practised with unrivalled mastery the art of stimulating martial emulation and the esprit de corps, so that the pre-

eminence accorded to particular soldiers and divisions appeared even to those who were postponed as the necessary hierarchy of valour. He weaned his men from fear by not unfrequently—where it could be done without serious danger—keeping his soldiers in ignorance of an approaching conflict, and allowing them to encounter the enemy unexpectedly. But obedience was on a parity with valour. The soldier was required to do what he was bidden, without asking the reason or the object; many an aimless fatigue was imposed on him solely as a training in the difficult art of blind obedience. The discipline was strict but not harassing; it was exercised with unrelenting vigour when the soldier was in presence of the enemy; at other times, especially after victory, the reins were relaxed, and if an otherwise efficient soldier was then pleased to indulge in perfumery or to deck himself with elegant arms and the like, or even if he allowed himself to be guilty of outrages or irregularities of a very questionable kind, provided only his military duties were not immediately affected, the foolery and the crime were allowed to pass, and the general lent a deaf ear to the complaints of the provincials on such points. Mutiny on the other hand was never pardoned, either in the instigators, or even in the guilty corps itself.

But the true soldier ought to be not merely capable, brave, and obedient, he ought to be all this willingly and spontaneously; and it is the privilege of gifted natures alone to induce the animated machine which they govern to a joyful service by means of example and of hope, and especially by the consciousness of being turned to befitting use. As the officer, who would demand valour from his troops, must himself have looked danger in the face with them, Caesar had even when general found opportunity of drawing his sword and had then used it like the best; in activity, moreover, and fatigue he was constantly far more exacting from himself than from his soldiers. Caesar took care that victory, which primarily no doubt brings gain to the general, should be associated also with personal hopes in the minds of the soldiers. We have already mentioned that he knew how to render his

soldiers enthusiastic for the cause of the democracy, so far as the times which had become prosaic still admitted of enthusiasm, and that the political equalization of the Transpadane country—the native land of most of his soldiers— with Italy proper was set forth as one of the objects of the struggle.(2) Of course material recompenses were at the same time not wanting— as well special rewards for distinguished feats of arms as general rewards for every efficient soldier; the officers had their portions, the soldiers received presents, and the most lavish gifts were placed in prospect for the triumph.

Above all things Caesar as a true commander understood how to awaken in every single component element, large or small, of the mighty machine the consciousness of its befitting application. The ordinary man is destined for service, and he has no objection to be an instrument, if he feels that a master guides him. Everywhere and at all times the eagle eye of the general rested on the whole army, rewarding and punishing with impartial justice, and directing the action of each towards the course conducive to the good of all: so that there was no experimenting or trifling with the sweat and blood of the humblest, but for that very reason, where it was necessary, unconditional devotion even to death was required. Without allowing each individual to see into the whole springs of action, Caesar yet allowed each to catch such glimpses of the political and military connection of things as to secure that he should be recognized—and it may be idealized—by the soldiers as a statesman and a general. He treated his soldiers throughout, not as his equals, but as men who are entitled to demand and were able to endure the truth, and who had to put faith in the promises and the assurances of their general, without thinking of deception or listening to rumours; as comrades through long years in warfare and victory, among whom there was hardly any one that was not known to him by name and that in the course of so many campaigns had not formed more or less of a personal relation to the general; as good companions, with whom he talked

and dealt confidentially and with the cheerful elasticity peculiar to him; as clients, to requite whose services, and to avenge whose wrongs and death, constituted in his view a sacred duty. Perhaps there never was an army which was so perfectly what an army ought to be—a machine able for its ends and willing for its ends, in the hand of a master, who transfers to it his own elasticity. Caesar's soldiers were, and felt themselves, a match for a tenfold superior force; in connection with which it should not be overlooked, that under the Roman tactics—calculated altogether for hand-to-hand conflict and especially for combat with the sword—the practised Roman soldier was superior to the novice in a far higher degree than is now the case under the circumstances of modern times.(3) But still more than by the superiority of valour the adversaries of Caesar felt themselves humbled by the unchangeable and touching fidelity with which his soldiers clung to their general. It is perhaps without a parallel in history, that when the general summoned his soldiers to follow him into the civil war, with the single exception already mentioned of Labienus, no Roman officer and no Roman soldier deserted him. The hopes of his opponents as to an extensive desertion were thwarted as ignominiously as the former attempts to break up his army like that of Lucullus.(4) Labienus himself appeared in the camp of Pompeius with a band doubtless of Celtic and German horsemen but without a single legionary. Indeed the soldiers, as if they would show that the war was quite as much their matter as that of their general, settled among themselves that they would give credit for the pay, which Caesar had promised to double for them at the outbreak of the civil war, to their commander up to its termination, and would meanwhile support their poorer comrades from the general means; besides, every subaltern officer equipped and paid a trooper out of his own purse.

Field of Caesar's Power

Upper Italy

While Caesar thus had the one thing which was needful— unlimited political and military authority and a trustworthy army ready for the fight— his power extended, comparatively speaking, over only a very limited space. It was based essentially on the province of Upper Italy. This region was not merely the most populous of all the districts of Italy, but also devoted to the cause of the democracy as its own. The feeling which prevailed there is shown by the conduct of a division of recruits from Opitergium (Oderzo in the delegation of Treviso), which not long after the outbreak of the war in the Illyrian waters, surrounded on a wretched raft by the war-vessels of the enemy, allowed themselves to be shot at during the whole day down to sunset without surrendering, and, such of them as had escaped the missiles, put themselves to death with their own hands during the following night. It is easy to conceive what might be expected of such a population. As they had already granted to Caesar the means of more than doubling his original army, so after the outbreak of the civil war recruits presented themselves in great numbers for the ample levies that were immediately instituted.

Italy

In Italy proper, on the other hand, the influence of Caesar was not even remotely to be compared to that of his opponents. Although he had the skill by dexterous manoeuvres to put the Catonian party in the wrong, and had sufficiently commended the rectitude of his cause to all who wished for a pretext with a good conscience either to remain neutral, like the majority of the senate, or to embrace his side, like his soldiers and the Transpadanes, the mass of the burgesses naturally did not allow themselves to be misled by these things and, when the commandant of Gaul put his legions in motion against Rome, they beheld—despite all formal explanations as to law—in Cato and Pompeius the defenders of the legitimate republic, in Caesar the democratic usurper. People in general moreover expected from

the nephew of Marius, the son-in-law of Cinna, the ally of Catilina, a repetition of the Marian and Cinna horrors, a realization of the saturnalia of anarchy projected by Catilina; and though Caesar certainly gained allies through this expectation— so that the political refugees immediately put themselves in a body at his disposal, the ruined men saw in him their deliverer, and the lowest ranks of the rabble in the capital and country towns were thrown into a ferment on the news of his advance,—these belonged to the class of friends who are more dangerous than foes.

Provinces

In the provinces and the dependent states Caesar had even less influence than in Italy. Transalpine Gaul indeed as far as the Rhine and the Channel obeyed him, and the colonists of Narbo as well as the Roman burgesses elsewhere settled in Gaul were devoted to him; but in the Narbonese province itself the constitutional party had numerous adherents, and now even the newly-conquered regions were far more a burden than a benefit to Caesar in the impending civil war; in fact, for good reasons he made no use of the Celtic infantry at all in that war, and but sparing use of the cavalry. In the other provinces and the neighbouring half or wholly independent states Caesar had indeed attempted to procure for himself support, had lavished rich presents on the princes, caused great buildings to be executed in various towns, and granted to them in case of need financial and military assistance; but on the whole, of course, not much had been gained by this means, and the relations with the German and Celtic princes in the regions of the Rhine and the Danube,—particularly the connection with the Noric king Voccio, so important for the recruiting of cavalry,—were probably the only relations of this sort which were of any moment for him.

The Coalition

While Caesar thus entered the struggle only as commandant of Gaul, without other essential resources than efficient adjutants, a faithful army, and a devoted province, Pompeius began it as de facto supreme head of the Roman commonwealth, and in full possession of all the resources that stood at the disposal of the legitimate government of the great Roman empire. But while his position was in a political and military point of view far more considerable, it was also on the other hand far less definite and firm. The unity of leadership, which resulted of itself and by necessity from the position of Caesar, was inconsistent with the nature of a coalition; and although Pompeius, too much of a soldier to deceive himself as to its being indispensable, attempted to force it on the coalition and got himself nominated by the senate as sole and absolute generalissimo by land and sea, yet the senate itself could not be set aside nor hindered from a preponderating influence on the political, and an occasional and therefore doubly injurious interference with the military, superintendence. The recollection of the twenty years' war waged on both sides with envenomed weapons between Pompeius and the constitutional party; the feeling which vividly prevailed on both sides, and which they with difficulty concealed, that the first consequence of the victory when achieved would be a rupture between the victors; the contempt which they entertained for each other and with only too good grounds in either case; the inconvenient number of respectable and influential men in the ranks of the aristocracy and the intellectual and moral inferiority of almost all who took part in the matter—altogether produced among the opponents of Caesar a reluctant and refractory co-operation, which formed the saddest contrast to the harmonious and compact action on the other side.

Field of Power of the Coalition

Juba of Numidia

While all the disadvantages incident to the coalition of powers naturally hostile were thus felt in an unusual measure by Caesar's antagonists, this coalition was certainly still a very considerable power. It had exclusive command of the sea; all ports, all ships of war, all the materials for equipping a fleet were at its disposal. The two Spains—as it were the home of the power of Pompeius just as the two Gauls were the home of that of Caesar—were faithful adherents to their master and in the hands of able and trustworthy administrators. In the other provinces also, of course with the exception of the two Gauls, the posts of the governors and commanders had during recent years been filled up with safe men under the influence of Pompeius and the minority of the senate. The client-states throughout and with great decision took part against Caesar and in favour of Pompeius. The most important princes and cities had been brought into the closest personal relations with Pompeius in virtue of the different sections of his manifold activity. In the war against the Marians, for instance, he had been the companion in arms of the kings of Numidia and Mauretania and had reestablished the kingdom of the former;(5) in the Mithradatic war, in addition to a number of other minor principalities spiritual and temporal, he had re-established the kingdoms of Bosphorus, Armenia, and Cappadocia, and created that of Deiotarus in Galatia;(6) it was primarily at his instigation that the Egyptian war was undertaken, and it was by his adjutant that the rule of the Lagids had been confirmed afresh.(7) Even the city of Massilia in Caesar's own province, while indebted to the latter doubtless for various favours, was indebted to Pompeius at the time of the Sertorian war for a very considerable extension of territory;(8) and, besides, the ruling oligarchy there stood in natural alliance—strengthened by various mutual relations—with the oligarchy in Rome. But these personal and relative considerations as well as the glory of the victor in three continents, which in these more remote parts of the empire far outshone that of the conqueror of Gaul, did perhaps less harm to Caesar in those quarters than the views and

designs—which had not remained there unknown—of the heir of Gaius Gracchus as to the necessity of uniting the dependent states and the usefulness of provincial colonizations. No one of the dependent dynasts found himself more imminently threatened by this peril than Juba king of Numidia. Not only had he years before, in the lifetime of his father Hiempsal, fallen into a vehement personal quarrel with Caesar, but recently the same Curio, who now occupied almost the first place among Caesar's adjutants, had proposed to the Roman burgesses the annexation of the Numidian kingdom. Lastly, if matters should go so far as to lead the independent neighbouring states to interfere in the Roman civil war, the only state really powerful, that of the Parthians, was practically already allied with the aristocratic party by the connection entered into between Pacorus and Bibulus,(9) while Caesar was far too much a Roman to league himself for party-interests with the conquerors of his friend Crassus.

Italy against Caesar

As to Italy the great majority of the burgesses were, as has been already mentioned, averse to Caesar—more especially, of course, the whole aristocracy with their very considerable following, but also in a not much less degree the great capitalists, who could not hope in the event of a thorough reform of the commonwealth to preserve their partisan jury-courts and their monopoly of extortion. Of equally anti-democratic sentiments were the small capitalists, the landholders and generally all classes that had anything to lose; but in these ranks of life the cares of the next rent-term and of sowing and reaping outweighed, as a rule, every other consideration.

The Pompeian Army

The army at the disposal of Pompeius consisted chiefly of the Spanish troops, seven legions inured to war and in every respect trustworthy; to which fell to be added the divisions of troops— weak indeed, and very

much scattered—which were to be found in Syria, Asia, Macedonia, Africa, Sicily, and elsewhere. In Italy there were under arms at the outset only the two legions recently given off by Caesar, whose effective strength did not amount to more than 7000 men, and whose trustworthiness was more than doubtful, because—levied in Cisalpine Gaul and old comrades in arms of Caesar—they were in a high degree displeased at the unbecoming intrigue by which they had been made to change camps,(10) and recalled with longing their general who had magnanimously paid to them beforehand at their departure the presents which were promised to every soldier for the triumph. But, apart from the circumstance that the Spanish troops might arrive in Italy with the spring either by the land route through Gaul or by sea, the men of the three legions still remaining from the levies of 699,(11) as well as the Italian levy sworn to allegiance in 702,(12) could be recalled from their furlough. Including these, the number of troops standing at the disposal of Pompeius on the whole, without reckoning the seven legions in Spain and those scattered in other provinces, amounted in Italy alone to ten legions(13) or about 60,000 men, so that it was no exaggeration at all, when Pompeius asserted that he had only to stamp with his foot to cover the ground with armed men. It is true that it required some interval—though but short—to render these soldiers available; but the arrangements for this purpose as well as for the carrying out of the new levies ordered by the senate in consequence of the outbreak of the civil war were already everywhere in progress. Immediately after the decisive decree of the senate (7 Jan. 705), in the very depth of winter the most eminent men of the aristocracy set out to the different districts, to hasten the calling up of recruits and the preparation of arms. The want of cavalry was much felt, as for this arm they had been accustomed to rely wholly on the provinces and especially on the Celtic contingents; to make at least a beginning, three hundred gladiators belonging to Caesar were taken from the fencing-schools of Capua and mounted—a step which however met with so general

disapproval, that Pompeius again broke up this troop and levied in room of it 300 horsemen from the mounted slave-herdmen of Apulia.

The state-treasury was at a low ebb as usual; they busied themselves in supplementing the inadequate amount of cash out of the local treasuries and even from the temple-treasures of the -municipia-.

Caesar Takes the Offensive

Under these circumstances the war opened at the beginning of January 705. Of troops capable of marching Caesar had not more than a legion—5000 infantry and 300 cavalry—at Ravenna, which was by the highway some 240 miles distant from Rome; Pompeius had two weak legions—7000 infantry and a small squadron of cavalry— under the orders of Appius Claudius at Luceria, from which, likewise by the highway, the distance was just about as great to the capital. The other troops of Caesar, leaving out of account the raw divisions of recruits still in course of formation, were stationed, one half on the Saone and Loire, the other half in Belgica, while Pompeius' Italian reserves were already arriving from all sides at their rendezvous; long before even the first of the Transalpine divisions of Caesar could arrive in Italy, a far superior army could not but be ready to receive it there. It seemed folly, with a band of the strength of that of Catilina and for the moment without any effective reserve, to assume the aggressive against a superior and hourly-increasing army under an able general; but it was a folly in the spirit of Hannibal. If the beginning of the struggle were postponed till spring, the Spanish troops of Pompeius would assume the offensive in Transalpine, and his Italian troops in Cisalpine, Gaul, and Pompeius, a match for Caesar in tactics and superior to him in experience, was a formidable antagonist in such a campaign running its regular course. Now perhaps, accustomed as he was to operate slowly and surely with superior masses, he might be disconcerted by a wholly improvised attack;

and that which could not greatly discompose Caesar's thirteenth legion after the severe trial of the Gallic surprise and the January campaign in the land of the Bellovaci,(14)—the suddenness of the war and the toil of a winter campaign—could not but disorganize the Pompeian corps consisting of old soldiers of Caesar or of ill-trained recruits, and still only in the course of formation.

Caesar's Advance

Accordingly Caesar advanced into Italy.(15) Two highways led at that time from the Romagna to the south; the Aemilio-Cassian which led from Bononia over the Apennines to Arretium and Rome, and the Popillio-Flaminian, which led from Ravenna along the coast of the Adriatic to Fanum and was there divided, one branch running westward through the Furlo pass to Rome, another southward to Ancona and thence onward to Apulia. On the former Marcus Antonius advanced as far as Arretium, on the second Caesar himself pushed forward. Resistance was nowhere encountered; the recruiting officers of quality had no military skill, their bands of recruits were no soldiers, the inhabitants of the country towns were only anxious not to be involved in a siege. When Curio with 1500 men approached Iguvium, where a couple of thousand Umbrian recruits had assembled under the praetor Quintus Minucius Thermus, general and soldiers took to flight at the bare tidings of his approach; and similar results on a small scale everywhere ensued.

Rome Evacuated

Caesar had to choose whether he would march against Rome, from which his cavalry at Arretium were already only about 130 miles distant, or against the legions encamped at Luceria. He chose the latter plan. The consternation of the opposite party was boundless. Pompeius received the news of Caesar's advance at Rome; he seemed at first disposed to defend

the capital, but, when the tidings arrived of Caesar's entrance into the Picenian territory and of his first successes there, he abandoned Rome and ordered its evacuation. A panic, augmented by the false report that Caesar's cavalry had appeared before the gates, came over the world of quality. The senators, who had been informed that every one who should remain behind in the capital would be treated as an accomplice of the rebel Caesar, flocked in crowds out at the gates. The consuls themselves had so totally lost their senses, that they did not even secure the treasure; when Pompeius called upon them to fetch it, for which there was sufficient time, they returned the reply that they would deem it safer, if he should first occupy Picenum. All was perplexity; consequently a great council of war was held in Teanum Sidicinum (23 Jan.), at which Pompeius, Labienus, and both consuls were present. First of all proposals of accommodation from Caesar were again submitted; even now he declared himself ready at once to dismiss his army, to hand over his provinces to the successors nominated, and to become a candidate in the regular way for the consulship, provided that Pompeius were to depart for Spain, and Italy were to be disarmed. The answer was, that if Caesar would immediately return to his province, they would bind themselves to procure the disarming of Italy and the departure of Pompeius by a decree of the senate to be passed in due form in the capital; perhaps this reply was intended not as a bare artifice to deceive, but as an acceptance of the proposal of compromise; it was, however, in reality the opposite. The personal conference which Caesar desired with Pompeius the latter declined, and could not but decline, that he might not by the semblance of a new coalition with Caesar provoke still more the distrust already felt by the constitutional party. Concerning the management of the war it was agreed in Teanum, that Pompeius should take the command of the troops stationed at Luceria, on which notwithstanding their untrustworthiness all hope depended; that he should advance with these into his own and Labienus' native country, Picenum; that he should personally

call the general levy there to arms, as he had done some thirty-five years ago,(16) and should attempt at the head of the faithful Picentine cohorts and the veterans formerly under Caesar to set a limit to the advance of the enemy.

Conflicts in Picenum

Everything depended on whether Picenum would hold out until Pompeius should come up to its defence. Already Caesar with his reunited army had penetrated into it along the coast road by way of Ancona. Here too the preparations were in full course; in the very northernmost Picenian town Auximum a considerable band of recruits was collected under Publius Attius Varus; but at the entreaty of the municipality Varus evacuated the town even before Caesar appeared, and a handful of Caesar's soldiers which overtook the troop not far from Auximum totally dispersed it after a brief conflict—the first in this war. In like manner soon afterwards Gaius Lucilius Hirrus with 3000 men evacuated Camerinum, and Publius Lentulus Spinther with 5000 Asculum. The men, thoroughly devoted to Pompeius, willingly for the most part abandoned their houses and farms, and followed their leaders over the frontier; but the district itself was already lost, when the officer sent by Pompeius for the temporary conduct of the defence, Lucius Vibullius Rufus—no genteel senator, but a soldier experienced in war—arrived there; he had to content himself with taking the six or seven thousand recruits who were saved away from the incapable recruiting officers, and conducting them for the time to the nearest rendezvous.

Corfinium Besieged And Captured

This was Corfinium, the place of meeting for the levies in the Albensian, Marsian and Paelignian territories; the body of recruits here assembled, of nearly 15,000 men, was the contingent of the most warlike and trustworthy

regions of Italy, and the flower of the army in course of formation for the constitutional party. When Vibullius arrived here, Caesar was still several days' march behind; there was nothing to prevent him from immediately starting agreeably to Pompeius' instructions and conducting the saved Picenian recruits along with those assembled at Corfinium to join the main army in Apulia. But the commandant in Corfinium was the designated successor to Caesar in the governorship of Transalpine Gaul, Lucius Domitius, one of the most narrow-minded and stubborn of the Roman aristocracy; and he not only refused to comply with the orders of Pompeius, but also prevented Vibullius from departing at least with the men from Picenum for Apulia. So firmly was he persuaded that Pompeius only delayed from obstinacy and must necessarily come up to his relief, that he scarcely made any serious preparations for a siege and did not even gather into Corfinium the bands of recruits placed in the surrounding towns. Pompeius however did not appear, and for good reasons; for, while he might perhaps apply his two untrustworthy legions as a reserved support for the Picenian general levy, he could not with them alone offer battle to Caesar. Instead of him after a few days Caesar came (14 Feb.). His troops had been joined in Picenum by the twelfth, and before Corfinium by the eighth, legion from beyond the Alps, and, besides these, three new legions had been formed partly from the Pompeian men that were taken prisoners or presented themselves voluntarily, partly from the recruits that were at once levied everywhere; so that Caesar before Corfinium was already at the head of an army of 40,000 men, half of whom had seen service. So long as Domitius hoped for the arrival of Pompeius, he caused the town to be defended; when the letters of Pompeius had at length undeceived him, he resolved, not forsooth to persevere at the forlorn post— by which he would have rendered the greatest service to his party— nor even to capitulate, but, while the common soldiers were informed that relief was close at hand, to make his own escape along with his officers of quality during the next

night. Yet he had not the judgment to carry into effect even this pretty scheme. The confusion of his behaviour betrayed him. A part of the men began to mutiny; the Marsian recruits, who held such an infamy on the part of their general to be impossible, wished to fight against the mutineers; but they too were obliged reluctantly to believe the truth of the accusation, whereupon the whole garrison arrested their staff and handed it, themselves, and the town over to Caesar (20 Feb.). The corps in Alba, 3000 strong, and 1500 recruits assembled in Tarracina thereupon laid down their arms, as soon as Caesar's patrols of horsemen appeared; a third division in Sulmo of 3500 men had been previously compelled to surrender.

Pompeius Goes to Brundisium

Embarkation for Greece

Pompeius had given up Italy as lost, so soon as Caesar had occupied Picenum; only he wished to delay his embarkation as long as possible, with the view of saving so much of his force as could still be saved. Accordingly he had slowly put himself in motion for the nearest seaport Brundisium. Thither came the two legions of Luceria and such recruits as Pompeius had been able hastily to collect in the deserted Apulia, as well as the troops raised by the consuls and other commissioners in Campania and conducted in all haste to Brundisium; thither too resorted a number of political fugitives, including the most respected of the senators accompanied by their families. The embarkation began; but the vessels at hand did not suffice to transport all at once the whole multitude, which still amounted to 25,000 persons. No course remained but to divide the army. The larger half went first (4 March); with the smaller division of some 10,000 men Pompeius awaited at Brundisium the return of the fleet; for, however desirable the possession of Brundisium might be for an eventual attempt to reoccupy Italy, they did not presume to hold the place permanently against Caesar. Meanwhile Caesar arrived before Brundisium; the siege began. Caesar

attempted first of all to close the mouth of the harbour by moles and floating bridges, with a view to exclude the returning fleet; but Pompeius caused the trading vessels lying in the harbour to be armed, and managed to prevent the complete closing of the harbour until the fleet appeared and the troops—whom Pompeius with great dexterity, in spite of the vigilance of the besiegers and the hostile feeling of the inhabitants, withdrew from the town to the last man unharmed—were carried off beyond Caesar's reach to Greece (17 March). The further pursuit, like the siege itself, failed for want of a fleet.

In a campaign of two months, without a single serious engagement, Caesar had so broken up an army of ten legions, that less than the half of it had with great difficulty escaped in a confused flight across the sea, and the whole Italian peninsula, including the capital with the state-chest and all the stores accumulated there, had fallen into the power of the victor. Not without reason did the beaten party bewail the terrible rapidity, sagacity, and energy of the "monster."

Military and Financial Results of the Seizure of Italy

But it may be questioned whether Caesar gained or lost more by the conquest of Italy. In a military respect, no doubt, very considerable resources were now not merely withdrawn from his opponents, but rendered available for himself; even in the spring of 705 his army embraced, in consequence of the levies en masse instituted everywhere, a considerable number of legions of recruits in addition to the nine old ones. But on the other hand it now became necessary not merely to leave behind a considerable garrison in Italy, but also to take measures against the closing of the transmarine traffic contemplated by his opponents who commanded the sea, and against the famine with which the capital was consequently threatened; whereby Caesar's already sufficiently complicated military task

was complicated further still. Financially it was certainly of importance, that Caesar had the good fortune to obtain possession of the stock of money in the capital; but the principal sources of income and particularly the revenues from the east were withal in the hands of the enemy, and, in consequence of the greatly increased demands for the army and the new obligation to provide for the starving population of the capital, the considerable sums which were found quickly melted away. Caesar soon found himself compelled to appeal to private credit, and, as it seemed that he could not possibly gain any long respite by this means, extensive confiscations were generally anticipated as the only remaining expedient.

Its Political Results

Fear of Anarchy

More serious difficulties still were created by the political relations amidst which Caesar found himself placed on the conquest of Italy. The apprehension of an anarchical revolution was universal among the propertied classes. Friends and foes saw in Caesar a second Catilina; Pompeius believed or affected to believe that Caesar had been driven to civil war merely by the impossibility of paying his debts. This was certainly absurd; but in fact Caesar's antecedents were anything but reassuring, and still less reassuring was the aspect of the retinue that now surrounded him. Individuals of the most broken reputation, notorious personages like Quintus Hortensius, Gaius Curio, Marcus Antonius,— the latter the stepson of the Catilinarian Lentulus who was executed by the orders of Cicero— were the most prominent actors in it; the highest posts of trust were bestowed on men who had long ceased even to reckon up their debts; people saw men who held office under Caesar not merely keeping dancing-girls—which was done by others also—but appearing publicly in company with them. Was there any wonder, that even grave and politically impartial men expected amnesty for all exiled criminals, cancelling of creditors'

claims, comprehensive mandates of confiscation, proscription, and murder, nay, even a plundering of Rome by the Gallic soldiery?

Dispelled by Caesar

But in this respect the "monster" deceived the expectations of his foes as well as of his friends. As soon even as Caesar occupied the first Italian town, Ariminum, he prohibited all common soldiers from appearing armed within the walls; the country towns were protected from all injury throughout and without distinction, whether they had given him a friendly or hostile reception. When the mutinous garrison surrendered Corfinium late in the evening, he in the face of every military consideration postponed the occupation of the town till the following morning, solely that he might not abandon the burgesses to the nocturnal invasion of his exasperated soldiers. Of the prisoners the common soldiers, as presumably indifferent to politics, were incorporated with his own army, while the officers were not merely spared, but also freely released without distinction of person and without the exaction of any promises whatever; and all which they claimed as private property was frankly given up to them, without even investigating with any strictness the warrant for their claims. Lucius Domitius himself was thus treated, and even Labienus had the money and baggage which he had left behind sent after him to the enemy's camp. In the most painful financial embarrassment the immense estates of his opponents whether present or absent were not assailed; indeed Caesar preferred to borrow from friends, rather than that he should stir up the possessors of property against him even by exacting the formally admissible, but practically antiquated, land tax.⁽¹⁷⁾ The victor regarded only the half, and that not the more difficult half, of his task as solved with the victory; he saw the security for its duration, according to his own expression, only in the unconditional pardon of the vanquished, and had accordingly during the whole march from Ravenna to Brundisium incessantly renewed his efforts

to bring about a personal conference with Pompeius and a tolerable accommodation.

Threats of the Emigrants

The Mass of Quiet People Gained for Caesar

But, if the aristocracy had previously refused to listen to any reconciliation, the unexpected emigration of a kind so disgraceful had raised their wrath to madness, and the wild vengeance breathed by the beaten contrasted strangely with the placability of the victor. The communications regularly coming from the camp of the emigrants to their friends left behind in Italy were full of projects for confiscations and proscriptions, of plans for purifying the senate and the state, compared with which the restoration of Sulla was child's play, and which even the moderate men of their own party heard with horror. The frantic passion of impotence, the wise moderation of power, produced their effect. The whole mass, in whose eyes material interests were superior to political, threw itself into the arms of Caesar. The country towns idolized "the uprightness, the moderation, the prudence" of the victor; and even opponents conceded that these demonstrations of respect were meant in earnest. The great capitalists, farmers of the taxes, and jurymen, showed no special desire, after the severe shipwreck which had befallen the constitutional party in Italy, to entrust themselves farther to the same pilots; capital came once more to the light, and "the rich lords resorted again to their daily task of writing their rent-rolls." Even the great majority of the senate, at least numerically speaking—for certainly but few of the nobler and more influential members of the senate were included in it—had notwithstanding the orders of Pompeius and of the consuls remained behind in Italy, and a portion of them even in the capital itself; and they acquiesced in Caesar's rule. The moderation of Caesar, well calculated even in its very semblance of excess, attained its object: the trembling anxiety of the propertied classes as to the impending

anarchy was in some measure allayed. This was doubtless an incalculable gain for the future; the prevention of anarchy, and of the scarcely less dangerous alarm of anarchy, was the indispensable preliminary condition to the future reorganization of the commonwealth.

Indignation of the Anarchist Party against Caesar
The Republican Party in Italy

But at the moment this moderation was more dangerous for Caesar than the renewal of the Cinnan and Catilinarian fury would have been; it did not convert enemies into friends, and it converted friends into enemies. Caesar's Catilinarian adherents were indignant that murder and pillage remained in abeyance; these audacious and desperate personages, some of whom were men of talent, might be expected to prove cross and untractable. The republicans of all shades, on the other hand, were neither converted nor propitiated by the leniency of the conqueror. According to the creed of the Catonian party, duty towards what they called their fatherland absolved them from every other consideration; even one who owed freedom and life to Caesar remained entitled and in duty bound to take up arms or at least to engage in plots against him. The less decided sections of the constitutional party were no doubt found willing to accept peace and protection from the new monarch; nevertheless they ceased not to curse the monarchy and the monarch at heart. The more clearly the change of the constitution became manifest, the more distinctly the great majority of the burgesses—both in the capital with its keener susceptibility of political excitement, and among the more energetic population of the country and country towns—awoke to a consciousness of their republican sentiments; so far the friends of the constitution in Rome reported with truth to their brethren of kindred views in exile, that at home all classes and all persons were friendly to Pompeius. The discontented temper of all these circles was further increased by the moral pressure, which the more decided and more notable men who shared

such views exercised from their very position as emigrants over the multitude of the humbler and more lukewarm. The conscience of the honourable man smote him in regard to his remaining in Italy; the half-aristocrat fancied that he was ranked among the plebeians, if he did not go into exile with the Domitii and the Metelli, and even if he took his seat in the Caesarian senate of nobodies. The victor's special clemency gave to this silent opposition increased political importance; seeing that Caesar abstained from terrorism, it seemed as if his secret opponents could display their disinclination to his rule without much danger.

Passive Resistance of the Senate to Caesar

Very soon he experienced remarkable treatment in this respect at the hands of the senate. Caesar had begun the struggle to liberate the overawed senate from its oppressors. This was done; consequently he wished to obtain from the senate approval of what had been done, and full powers for the continuance of the war. for this purpose, when Caesar appeared before the capital (end of March) the tribunes of the people belonging to his party convoked for him the senate (1 April). The meeting was tolerably numerous, but the more notable of the very senators that remained in Italy were absent, including even the former leader of the servile majority Marcus Cicero and Caesar's own father-in-law Lucius Piso; and, what was worse, those who did appear were not inclined to enter into Caesar's proposals. When Caesar spoke of full power to continue the war, one of the only two consulars present, Servius Sulpicius Rufus, a very timid man who desired nothing but a quiet death in his bed, was of opinion that Caesar would deserve well of his country if he should abandon the thought of carrying the war to Greece and Spain. When Caesar thereupon requested the senate at least to be the medium of transmitting his peace proposals to Pompeius, they were not indeed opposed to that course in itself, but the threats of the emigrants against the neutrals had so terrified the latter, that

no one was found to undertake the message of peace. Through the disinclination of the aristocracy to help the erection of the monarch's throne, and through the same inertness of the dignified corporation, by means of which Caesar had shortly before frustrated the legal nomination of Pompeius as generalissimo in the civil war, he too was now thwarted when making a like request. Other impediments, moreover, occurred. Caesar desired, with the view of regulating in some sort of way his position, to be named as dictator; but his wish was not complied with, because such a magistrate could only be constitutionally appointed by one of the consuls, and the attempt of Caesar to buy the consul Lentulus—of which owing to the disordered condition of his finances there was a good prospect—nevertheless proved a failure. The tribune of the people Lucius Metellus, moreover, lodged a protest against all the steps of the proconsul, and made signs as though he would protect with his person the public chest, when Caesar's men came to empty it. Caesar could not avoid in this case ordering that the inviolable person should be pushed aside as gently as possible; otherwise, he kept by his purpose of abstaining from all violent steps. He declared to the senate, just as the constitutional party had done shortly before, that he had certainly desired to regulate things in a legal way and with the help of the supreme authority; but, since this help was refused, he could dispense with it.

Provisional Arrangement of the Affairs of the Capital The Provinces

Without further concerning himself about the senate and the formalities of state law, he handed over the temporary administration of the capital to the praetor Marcus Aemilius Lepidus as city-prefect, and made the requisite arrangements for the administration of the provinces that obeyed him and the continuance of the war. Even amidst the din of the gigantic struggle, and with all the alluring sound of Caesar's lavish promises, it still made a deep

impression on the multitude of the capital, when they saw in their free Rome the monarch for the first time wielding a monarch's power and breaking open the doors of the treasury by his soldiers. But the times had gone by, when the impressions and feelings of the multitude determined the course of events; it was with the legions that the decision lay, and a few painful feelings more or less were of no farther moment.

Pompeians in Spain

Caesar hastened to resume the war. He owed his successes hitherto to the offensive, and he intended still to maintain it. The position of his antagonist was singular. After the original plan of carrying on the campaign simultaneously in the two Gauls by offensive operations from the bases of Italy and Spain had been frustrated by Caesar's aggressive, Pompeius had intended to go to Spain. There he had a very strong position. The army amounted to seven legions; a large number of Pompeius' veterans served in it, and several years of conflicts in the Lusitanian mountains had hardened soldiers and officers. Among its captains Marcus Varro indeed was simply a celebrated scholar and a faithful partisan; but Lucius Afranius had fought with distinction in the east and in the Alps, and Marcus Petreius, the conqueror of Catilina, was an officer as dauntless as he was able. While in the Further province Caesar had still various adherents from the time of his governorship there,(18) the more important province of the Ebro was attached by all the ties of veneration and gratitude to the celebrated general, who twenty years before had held the command in it during the Sertorian war, and after the termination of that war had organized it anew. Pompeius could evidently after the Italian disaster do nothing better than proceed to Spain with the saved remnant of his army, and then at the head of his whole force advance to meet Caesar. But unfortunately he had, in the hope of being able still to save the troops that were in Corfinium, tarried in Apuli so long that he was compelled to choose the nearer Brundisium as his place of

embarkation instead of the Campanian ports. Why, master as he was of the sea and Sicily, he did not subsequently revert to his original plan, cannot be determined; whether it was that perhaps the aristocracy after their short-sighted and distrustful fashion showed no desire to entrust themselves to the Spanish troops and the Spanish population, it is enough to say that Pompeius remained in the east, and Caesar had the option of directing his first attack either against the army which was being organized in Greece under Pompeius' own command, or against that which was ready for battle under his lieutenants in Spain. He had decided in favour of the latter course, and, as soon as the Italian campaign ended, had taken measures to collect on the lower Rhone nine of his best legions, as also 6000 cavalry— partly men individually picked out by Caesar in the Celtic cantons, partly German mercenaries—and a number of Iberian and Ligurian archers.

Massilia against Caesar

But at this point his opponents also had been active. Lucius Domitius, who was nominated by the senate in Caesar's stead as governor of Transalpine Gaul, had proceeded from Corfinium—as soon as Caesar had released him—along with his attendants and with Pompeius' confidant Lucius Vibullius Rufus to Massilia, and actually induced that city to declare for Pompeius and even to refuse a passage to Caesar's troops. Of the Spanish troops the two least trustworthy legions were left behind under the command of Varro in the Further province; while the five best, reinforced by 40,000 Spanish infantry— partly Celtiberian infantry of the line, partly Lusitanian and other light troops—and by 5000 Spanish cavalry, under Afranius and Petreius, had, in accordance with the orders of Pompeius transmitted by Vibullius, set out to close the Pyrenees against the enemy.

Caesar Occupies the Pyrenees

Position at Ilerda

Meanwhile Caesar himself arrived in Gaul and, as the commencement of the siege of Massilia still detained him in person, he immediately despatched the greater part of his troops assembled on the Rhone—six legions and the cavalry—along the great road leading by way of Narbo (Narbonne) to Rhode (Rosas) with the view of anticipating the enemy at the Pyrenees. The movement was successful; when Afranius and Petreius arrived at the passes, they found them already occupied by the Caesarians and the line of the Pyrenees lost. They then took up a position at Ilerda (Lerida) between the Pyrenees and the Ebro. This town lies twenty miles to the north of the Ebro on the right bank of one of its tributaries, the Sicoris (Segre), which was crossed by only a single solid bridge immediately at Ilerda. To the south of Ilerda the mountains which adjoin the left bank of the Ebro approach pretty close to the town; to the northward there stretches on both sides of the Sicoris a level country which is commanded by the hill on which the town is built. For an army, which had to submit to a siege, it was an excellent position; but the defence of Spain, after the occupation of the line of the Pyrenees had been neglected, could only be undertaken in earnest behind the Ebro, and, as no secure communication was established between Ilerda and the Ebro, and no bridge existed over the latter stream, the retreat from the temporary to the true defensive position was not sufficiently secured. The Caesarians established themselves above Ilerda, in the delta which the river Sicoris forms with the Cinga (Cinca), which unites with it below Ilerda; but the attack only began in earnest after Caesar had arrived in the camp (23 June). Under the walls of the town the struggle was maintained with equal exasperation and equal valour on both sides, and with frequent alternations of success; but the Caesarians did not attain their object—which was, to establish themselves between the Pompeian camp and the town and thereby to possess themselves of the stone bridge—and they consequently remained dependent for their communication with Gaul solely on two bridges which they had hastily constructed over the Sicoris,

and that indeed, as the river at Ilerda itself was too considerable to be bridged over, about eighteen or twenty miles farther up.

Caesar Cut Off

When the floods came on with the melting of the snow, these temporary bridges were swept away; and, as they had no vessels for the passage of the highly swollen rivers and under such circumstance the restoration of the bridges could not for the present be thought of, the Caesarian army was confined to the narrow space between the Cinca and the Sicoris, while the left bank of the Sicoris and with it the road, by which the army communicated with Gaul and Italy, were exposed almost undefended to the Pompeians, who passed the river partly by the town-bridge, partly by swimming after the Lusitanian fashion on skins. It was the season shortly before harvest; the old produce was almost used up, the new was not yet gathered, and the narrow stripe of land between the two streams was soon exhausted. In the camp actual famine prevailed—the -modius- of wheat cost 50 -denarii- (1 pound 16 shillings)—and dangerous diseases broke out; whereas on the left bank there were accumulated provisions and varied supplies, as well as troops of all sorts—reinforcements from Gaul of cavalry and archers, officers and soldiers from furlough, foraging parties returning—in all a mass of 6000 men, whom the Pompeians attacked with superior force and drove with great loss to the mountains, while the Caesarians on the right bank were obliged to remain passive spectators of the unequal conflict. The communications of the army were in the hands of the Pompeians; in Italy the accounts from Spain suddenly ceased, and the suspicious rumours, which began to circulate there, were not so very remote from the truth. Had the Pompeians followed up their advantage with some energy, they could not have failed either to reduce under their power or at least to drive back towards Gaul the mass scarcely capable of resistance which was crowded together on the left bank of the Sicoris, and to occupy

this bank so completely that not a man could cross the river without their knowledge. But both points were neglected; those bands were doubtless pushed aside with loss but neither destroyed nor completely beaten back, and the prevention of the crossing of the river was left substantially to the river itself,

Caesar Re-establishes the Communications

Thereupon Caesar formed his plan. He ordered portable boats of a light wooden frame and osier work lined with leather, after the model of those used in the Channel among the Britons and subsequently by the Saxons, to be prepared in the camp and transported in waggons to the point where the bridges had stood. On these frail barks the other bank was reached and, as it was found unoccupied, the bridge was re-established without much difficulty; the road in connection with it was thereupon quickly cleared, and the eagerly-expected supplies were conveyed to the camp. Caesar's happy idea thus rescued the army from the immense peril in which it was placed. Then the cavalry of Caesar which in efficiency far surpassed that of the enemy began at once to scour the country on the left bank of the Sicoris; the most considerable Spanish communities between the Pyrenees and the Ebro—Osca, Tarraco, Dertosa, and others—nay, even several to the south of the Ebro, passed over to Caesar's side.

Retreat of the Pompeians from Ilerda

The supplies of the Pompeians were now rendered scarce through the foraging parties of Caesar and the defection of the neighbouring communities; they resolved at length to retire behind the line of the Ebro, and set themselves in all haste to form a bridge of boats over the Ebro below the mouth of the Sicoris. Caesar sought to cut off the retreat of his opponents over the Ebro and to detain them in Ilerda; but so long as the

enemy remained in possession of the bridge at Ilerda and he had control of neither ford nor bridge there, he could not distribute his army over both banks of the river and could not invest Ilerda. His soldiers therefore worked day and night to lower the depth of the river by means of canals drawing off the water, so that the infantry could wade through it. But the preparations of the Pompeians to pass the Ebro were sooner finished than the arrangements of the Caesarians for investing Ilerda; when the former after finishing the bridge of boats began their march towards the Ebro along the left bank of the Sicoris, the canals of the Caesarians seemed to the general not yet far enough advanced to make the ford available for the infantry; he ordered only his cavalry to pass the stream and, by clinging to the rear of the enemy, at least to detain and harass them.

Caesar Follows

But when Caesar's legions saw in the gray morning the enemy's columns which had been retiring since midnight, they discerned with the sure instinct of experienced veterans the strategic importance of this retreat, which would compel them to follow their antagonists into distant and impracticable regions filled by hostile troops; at their own request the general ventured to lead the infantry also into the river, and although the water reached up to the shoulders of the men, it was crossed without accident. It was high time. If the narrow plain, which separated the town of Ilerda from the mountains enclosing the Ebro were once traversed and the army of the Pompeians entered the mountains, their retreat to the Ebro could no longer be prevented. Already they had, notwithstanding the constant attacks of the enemy's cavalry which greatly delayed their march, approached within five miles of the mountains, when they, having been on the march since midnight and unspeakably exhausted, abandoned their original plan of traversing the whole plain on the same day, and pitched their camp. Here the infantry of Caesar overtook them and encamped

opposite to them in the evening and during the night, as the nocturnal march which the Pompeians had at first contemplated was abandoned from fear of the night-attacks of the cavalry. On the following day also both armies remained immoveable, occupied only in reconnoitering the country.

The Route to the Ebro Closed

Early in the morning of the third day Caesar's infantry set out, that by a movement through the pathless mountains alongside of the road they might turn the position of the enemy and bar their route to the Ebro. The object of the strange march, which seemed at first to turn back towards the camp before Ilerda, was not at once perceived by the Pompeian officers. When they discerned it, they sacrificed camp and baggage and advanced by a forced march along the highway, to gain the crest of the ridge before the Caesarians. But it was already too late; when they came up, the compact masses of the enemy were already posted on the highway itself. a desperate attempt of the Pompeians to discover other routes to the Ebro over the steep mountains was frustrated by Caesar's cavalry, which surrounded and cut to pieces the Lusitanian troops sent forth for that purpose. Had a battle taken place between the Pompeian army— which had the enemy's cavalry in its rear and their infantry in front, and was utterly demoralized—and the Caesarians, the issue was scarcely doubtful, and the opportunity for fighting several times presented itself; but Caesar made no use of it, and, not without difficulty, restrained the impatient eagerness for the combat in his soldiers sure of victory. The Pompeian army was at any rate strategically lost; Caesar avoided weakening his army and still further envenoming the bitter feud by useless bloodshed. On the very day after he had succeeded in cutting off the Pompeians from the Ebro, the soldiers of the two armies had begun to fraternize and to negotiate respecting surrender; indeed the terms asked by the Pompeians, especially as to the sparing of their officers, had

been already conceded by Caesar, when Petreius with his escort consisting of slaves and Spaniards came upon the negotiators and caused the Caesarians, on whom he could lay hands, to be put to death. Caesar nevertheless sent the Pompeians who had come to his camp back unharmed, and persevered in seeking a peaceful solution. Ilerda, where the Pompeians had still a garrison and considerable magazines, became now the point which they sought to reach; but with the hostile army in front and the Sicoris between them and the fortress, they marched without coming nearer to their object. Their cavalry became gradually so afraid that the infantry had to take them into the centre and legions had to be set as the rearguard; the procuring of water and forage became more and more difficult; they had already to kill the beasts of burden, because they could no longer feed them. At length the wandering army found itself formally inclosed, with the Sicoris in its rear and the enemy's force in front, which drew rampart and trench around it. It attempted to cross the river, but Caesar's German horsemen and light infantry anticipated it in the occupation of the opposite bank.

Capitulation of the Pompeians

No bravery and no fidelity could longer avert the inevitable capitulation (2 Aug. 705). Caesar granted to officers and soldiers their life and liberty, and the possession of the property which they still retained as well as the restoration of what had been already taken from them, the full value of which he undertook personally to make good to his soldiers; and not only so, but while he had compulsorily enrolled in his army the recruits captured in Italy, he honoured these old legionaries of Pompeius by the promise that no one should be compelled against his will to enter Caesar's army. He required only that each should give up his arms and repair to his home. Accordingly the soldiers who were natives of Spain, about a third of the

army, were disbanded at once, while the Italian soldiers were discharged on the borders of Transalpine and Cisalpine Gaul.

Further Spain Submits

Hither Spain on the breaking up of this army fell of itself into the power of the victor. In Further Spain, where Marcus Varro held the chief command for Pompeius, it seemed to him, when he learned the disaster of Ilerda, most advisable that he should throw himself into the insular town of Gades and should carry thither for safety the considerable sums which he had collected by confiscating the treasures of the temples and the property of prominent Caesarians, the not inconsiderable fleet which he had raised, and the two legions entrusted to him. But on the mere rumour of Caesar's arrival the most notable towns of the province which had been for long attached to Caesar declared for the latter and drove away the Pompeian garrisons or induced them to a similar revolt; such was the case with Corduba, Carmo, and Gades itself. One of the legions also set out of its own accord for Hispalis, and passed over along with this town to Caesar's side. When at length even Italica closed its gates against Varro, the latter resolved to capitulate.

Siege of Massilia

About the same time Massilia also submitted. With rare energy the Massiliots had not merely sustained a siege, but had also kept the sea against Caesar; it was their native element, and they might hope to obtain vigorous support on it from Pompeius, who in fact had the exclusive command of it. But Caesar's lieutenant, the able Decimus Brutus, the same who had achieved the first naval victory in the Atlantic over the Veneti,(19) managed rapidly to equip a fleet; and in spite of the brave resistance of the enemy's crews—consisting partly of Albioecian mercenaries of the Massiliots, partly of slave-herdsmen of Domitius—he vanquished by means

of his brave marines selected from the legions the stronger Massiliot fleet, and sank or captured the greater part of their ships. When therefore a small Pompeian squadron under Lucius Nasidius arrived from the east by way of Sicily and Sardinia in the port of Massilia, the Massiliots once more renewed their naval armament and sailed forth along with the ships of Nasidius against Brutus. The engagement which took place off Tauroeis (La Ciotat to the east of Marseilles) might probably have had a different result, if the vessels of Nasidius had fought with the same desperate courage which the Massiliots displayed on that day; but the flight of the Nasidians decided the victory in favour of Brutus, and the remains of the Pompeian fleet fled to Spain. The besieged were completely driven from the sea. On the landward side, where Gaius Trebonius conducted the siege, the most resolute resistance was still continued; but in spite of the frequent sallies of the Albioecian mercenaries and the skilful expenditure of the immense stores of projectiles accumulated in the city, the works of the besiegers were at length advanced up to the walls and one of the towers fell. The Massiliots declared that they would give up the defence, but desired to conclude the capitulation with Caesar himself, and entreated the Roman commander to suspend the siege operations till Caesar's arrival. Trebonius had express orders from Caesar to spare the town as far as possible; he granted the armistice desired. But when the Massiliots made use of it for an artful sally, in which they completely burnt the one-half of the almost unguarded Roman works, the struggle of the siege began anew and with increased exasperation. The vigorous commander of the Romans repaired with surprising rapidity the destroyed towers and the mound; soon the Massiliots were once more completely invested.

Massilia Capitulates

When Caesar on his return from the conquest of Spain arrived before their city, he found it reduced to extremities partly by the enemy's attacks,

partly by famine and pestilence, and ready for the second time—on this occasion in right earnest— to surrender on any terms. Domitius alone, remembering the indulgence of the victor which he had shamefully misused, embarked in a boat and stole through the Roman fleet, to seek a third battle-field for his implacable resentment. Caesar's soldiers had sworn to put to the sword the whole male population of the perfidious city, and vehemently demanded from the general the signal for plunder. But Caesar, mindful here also of his great task of establishing Helleno-Italic civilization in the west, was not to be coerced into furnishing a sequel to the destruction of Corinth. Massilia—the most remote from the mother-country of all those cities, once so numerous, free, and powerful, that belonged to the old Ionic mariner-nation, and almost the last in which the Hellenic seafaring life had preserved itself fresh and pure, as in fact it was the last Greek city that fought at sea—Massilia had to surrender its magazines of arms and naval stores to the victor, and lost a portion of its territory and of its privileges; but it retained its freedom and its nationality and continued, though with diminished proportions in a material point of view, to be still as before intellectually the centre of Hellenic culture in that distant Celtic country which at this very time was attaining a new historical significance.

Expeditions of Caesar to the Corn-Provinces

While thus in the western provinces the war after various critical vicissitudes was thoroughly decided at length in favour of Caesar, Spain and Massilia were subdued, and the chief army of the enemy was captured to the last man, the decision of arms had also taken place on the second arena of warfare, on which Caesar had found it necessary immediately after the conquest of Italy to assume the offensive

Sardinia Occupied Sicily Occupied

We have already mentioned that the Pompeians intended to reduce Italy to starvation. They had the means of doing so in their hands. They had thorough command of the sea and laboured with great zeal everywhere—in Gades, Utica, Messana, above all in the east—to increase their fleet. They held moreover all the provinces, from which the capital drew its means of subsistence: Sardinia and Corsica through Marcus Cotta, Sicily through Marcus Cato, Africa through the self-nominated commander-in-chief Titus Attius Varus and their ally Juba king of Numidia. It was indispensably needful for Caesar to thwart these plans of the enemy and to wrest from them the corn-provinces. Quintus Valerius was sent with a legion to Sardinia and compelled the Pompeian governor to evacuate the island. The more important enterprise of taking Sicily and Africa from the enemy was entrusted to the young Gaius Curio with the assistance of the able Gaius Caninius Rebilus, who possessed experience in war. Sicily was occupied by him without a blow; Cato, without a proper army and not a man of the sword, evacuated the island, after having in his straightforward manner previously warned the Siceliots not to compromise themselves uselessly by an ineffectual resistance.

Landing of Curio in Africa

Curio left behind half of his troops to protect this island so important for the capital, and embarked with the other half—two legions and 500 horsemen—for Africa. Here he might expect to encounter more serious resistance; besides the considerable and in its own fashion efficient army of Juba, the governor Varus had formed two legions from the Romans settled in Africa and also fitted out a small squadron of ten sail. With the aid of his superior fleet, however, Curio effected without difficulty a landing between

Hadrumetum, where the one legion of the enemy lay along with their ships of war, and Utica, in front of which town lay the second legion under Varus himself. Curio turned against the latter, and pitched his camp not far from Utica, just where a century and a half before the elder Scipio had taken up his first winter-camp in Africa.(20) Caesar, compelled to keep together his best troops for the Spanish war, had been obliged to make up the Sicilo-African army for the most part out of the legions taken over from the enemy, more especially the war-prisoners of Corfinium; the officers of the Pompeian army in Africa, some of whom had served in the very legions that were conquered at Corfinium, now left no means untried to bring back their old soldiers who were now fighting against them to their first allegiance. But Caesar had not erred in the choice of his lieutenant. Curio knew as well how to direct the movements of the army and of the fleet, as how to acquire personal influence over the soldiers; the supplies were abundant, the conflicts without exception successful.

Curio Conquers at Utica

When Varus, presuming that the troops of Curio wanted opportunity to pass over to his side, resolved to give battle chiefly for the sake of affording them this opportunity, the result did not justify his expectations. Animated by the fiery appeal of their youthful leader the cavalry of Curio put to flight the horsemen of the enemy and in presence of the two armies cut down also the light infantry which had accompanied the horsemen; and emboldened by this success and by Curio's personal example, his legions advanced through the difficult ravine separating the two lines to the attack, for which the Pompeians however did not wait, but disgracefully fled back to their camp and evacuated even this in the ensuing night. The victory was so complete that Curio at once took steps to besiege Utica. When news arrived, however, that king Juba was advancing with all his forces to its relief, Curio resolved, just as Scipio had done on the arrival of Syphax, to raise the siege

and to return to Scipio's former camp till reinforcements should arrive from Sicily. Soon afterwards came a second report, that king Juba had been induced by the attacks of neighbouring princes to turn back with his main force and was sending to the aid of the besieged merely a moderate corps under Saburra. Curio, who from his lively temperament had only with great reluctance made up his mind to rest, now set out again at once to fight with Saburra before he could enter into communication with the garrison of Utica.

Curio Defeated by Juba on the Bagrahas Death of Curio

His cavalry, which had gone forward in the evening, actually succeeded in surprising the corps of Saburra on the Bagrahas during the night and inflicting much damage upon it; and on the news of this victory Curio hastened the march of the infantry, in order by their means to complete the defeat. Soon they perceived on the last slopes of the heights that sank towards the Bagrahas the corps of Saburra, which was skirmishing with the Roman horsemen; the legions coming up helped to drive it completely down into the plain. But here the combat changed its aspect. Saburra was not, as they supposed, destitute of support; on the contrary he was not much more than five miles distant from the Numidian main force. Already the flower of the Numidian infantry and 2000 Gallic and Spanish horsemen had arrived on the field of battle to support Saburra, and the king in person with the bulk of the army and sixteen elephants was approaching. After the nocturnal march and the hot conflict there were at the moment not more than 200 of the Roman cavalry together, and these as well as the infantry, extremely exhausted by fatigue and fighting, were all surrounded, in the wide plain into which they had allowed themselves to be allured, by the continually increasing hosts of the enemy. Vainly Curio endeavoured to engage in close combat; the Libyan horsemen retreated, as they were wont,

so soon as a Roman division advanced, only to pursue it when it turned. In vain he attempted to regain the heights; they were occupied and foreclosed by the enemy's horse. All was lost. The infantry was cut down to the last man. Of the cavalry a few succeeded in cutting their way through; Curio too might have probably saved himself, but he could not bear to appear alone before his master without the army entrusted to him, and died sword in hand. Even the force which was collected in the camp before Utica, and that which guarded the fleet—which might so easily have escaped to Sicily—surrendered under the impression made by the fearfully rapid catastrophe on the following day to Varus (Aug. or Sept. 705).

So ended the expedition arranged by Caesar to Sicily and Africa. It attained its object so far, since by the occupation of Sicily in connection with that of Sardinia at least the most urgent wants of the capital were relieved; the miscarriage of the conquest of Africa—from which the victorious party drew no farther substantial gain—and the loss of two untrustworthy legions might be got over. But the early death of Curio was an irreparable loss for Caesar, and indeed for Rome. Not without reason had Caesar entrusted the most important independent command to this young man, although he had no military experience and was notorious for his dissolute life; there was a spark of Caesar's own spirit in the fiery youth. He resembled Caesar, inasmuch as he too had drained the cup of pleasure to the dregs; inasmuch as he did not become a statesman because he was an officer, but on the contrary it was his political action that placed the sword in his hands; inasmuch as his eloquence was not that of rounded periods, but the eloquence of deeply-felt thought; inasmuch as his mode of warfare was based on rapid action with slight means; inasmuch as his character was marked by levity and often by frivolity, by pleasant frankness and thorough life in the moment. If, as his general says of him, youthful fire and high courage carried him into incautious acts, and if he too proudly accepted death that he might not submit to be pardoned for a pardonable fault, traits

of similar imprudence and similar pride are not wanting in Caesar's history also. We may regret that this exuberant nature was not permitted to work off its follies and to preserve itself for the following generation so miserably poor in talents, and so rapidly falling a prey to the dreadful rule of mediocrities.

Pompeius' Plan of Campaign for 705

How far these events of the war in 705 interfered with Pompeius' general plan for the campaign, and particularly what part, in that plan was assigned after the loss of Italy to the important military corps in the west, can only be determined by conjecture. That Pompeius had the intention of coming by way of Africa and Mauretania to the aid of his army fighting in Spain, was simply a romantic, and beyond doubt altogether groundless, rumour circulating in the camp of Ilerda. It is much more likely that he still kept by his earlier plan of attacking Caesar from both sides in Transalpine and Cisalpine Gaul⁽²¹⁾ even after the loss of Italy, and meditated a combined attack at once from Spain and Macedonia. It may be presumed that the Spanish army was meant to remain on the defensive at the Pyrenees till the Macedonian army in the course of organization was likewise ready to march; whereupon both would then have started simultaneously and effected a junction according to circumstances either on the Rhone or on the Po, while the fleet, it may be conjectured, would have attempted at the same time to reconquer Italy proper. On this supposition apparently Caesar had first prepared himself to meet an attack on Italy. One of the ablest of his officers, the tribune of the people Marcus Antonius, commanded there with *propraetorian* powers. The southeastern ports—Sipus, Brundisium, Tarentum—where an attempt at landing was first to be expected, had received a garrison of three legions. Besides this Quintus Hortensius, the degenerate son of the well-known orator, collected a fleet in the Tyrrhene Sea, and Publius Dolabella a second fleet in the Adriatic, which were to be

employed partly to support the defence, partly to transport the intended expedition to Greece. In the event of Pompeius attempting to penetrate by land into Italy, Marcus Licinius Crassus, the eldest son of the old colleague of Caesar, was to conduct the defence of Cisalpine Gaul, Gaius the younger brother of Marcus Antonius that of Illyricum.

Caesar's Fleet and Army in Illyricum Destroyed

But the expected attack was long in coming. It was not till the height of summer that the conflict began in Illyria. There Caesar's lieutenant Gaius Antonius with his two legions lay in the island of Curicta (Veglia in the gulf of Quarnero), and Caesar's admiral Publius Dolabella with forty ships lay in the narrow arm of the sea between this island and the mainland. The admirals of Pompeius in the Adriatic, Marcus Octavius with the Greek, Lucius Scribonius Libo with the Illyrian division of the fleet, attacked the squadron of Dolabella, destroyed all his ships, and cut off Antonius on his island. To rescue him, a corps under Basilus and Sallustius came from Italy and the squadron of Hortensius from the Tyrrhene Sea; but neither the former nor the latter were able to effect anything in presence of the far superior fleet of the enemy. The legions of Antonius had to be abandoned to their fate. Provisions came to an end, the troops became troublesome and mutinous; with the exception of a few divisions, which succeeded in reaching the mainland on rafts, the corps, still fifteen cohorts strong, laid down their arms and were conveyed in the vessels of Libo to Macedonia to be there incorporated with the Pompeian army, while Octavius was left to complete the subjugation of the Illyrian coast now denuded of troops. The Dalmatae, now far the most powerful tribe in these regions,(22) the important insular town of Issa (Lissa), and other townships, embraced the party of Pompeius; but the adherents of Caesar maintained themselves in Salonae (Spalato) and Lissus (Alessio), and in the former town not merely sustained with courage a siege, but when they were reduced to extremities,

made a sally with such effect that Octavius raised the siege and sailed off to Dyrrhachium to pass the winter there.

Result of the Campaign as a Whole

The success achieved in Illyricum by the Pompeian fleet, although of itself not inconsiderable, had yet but little influence on the issue of the campaign as a whole; and it appears miserably small, when we consider that the performances of the land and naval' forces under the supreme command of Pompeius during the whole eventful year 705 were confined to this single feat of arms, and that from the east, where the general, the senate, the second great army, the principal fleet, the immense military and still more extensive financial resources of the antagonists of Caesar were united, no intervention at all took place where it was needed in that all-decisive struggle in the west. The scattered condition of the forces in the eastern half of the empire, the method of the general never to operate except with superior masses, his cumbrous and tedious movements, and the discord of the coalition may perhaps explain in some measure, though not excuse, the inactivity of the land-force; but that the fleet, which commanded the Mediterranean without a rival, should have thus done nothing to influence the course of affairs—nothing for Spain, next to nothing for the faithful Massiliots, nothing to defend Sardinia, Sicily, Africa, or, if not to reoccupy Italy, at least to obstruct its supplies—this makes demands on our ideas of the confusion and perversity prevailing in the Pompeian camp, which we can only with difficulty meet.

The aggregate result of this campaign was corresponding. Caesar's double aggressive movement, against Spain and against Sicily and Africa, was successful, in the former case completely, in the latter at least partially; while Pompeius' plan of starving Italy was thwarted in the main by the taking away of Sicily, and his general plan of campaign was frustrated

completely by the destruction of the Spanish army; and in Italy only a very small portion of Caesar's defensive arrangements had come to be applied. Notwithstanding the painfully-felt losses in Africa and Illyria, Caesar came forth from this first year of the war in the most decided and most decisive manner as victor.

Organizations in Macedonia The Emigrants

If, however, nothing material was done from the east to obstruct Caesar in the subjugation of the west, efforts at least were made towards securing political and military consolidation there during the respite so ignominiously obtained. The great rendezvous of the opponents of Caesar was Macedonia. Thither Pompeius himself and the mass of the emigrants from Brundisium resorted; thither came the other refugees from the west: Marcus Cato from Sicily, Lucius Domitius from Massilia but more especially a number of the best officers and soldiers of the broken-up army of Spain, with its generals Afranius and Varro at their head. In Italy emigration gradually became among the aristocrats a question not of honour merely but almost of fashion, and it obtained a fresh impulse through the unfavourable accounts which arrived regarding Caesar's position before Ilerda; not a few of the more lukewarm partisans and the political trimmers went over by degrees, and even Marcus Cicero at last persuaded himself that he did not adequately discharge his duty as a citizen by writing a dissertation on concord. The senate of emigrants at Thessalonica, where the official Rome pitched its interim abode, numbered nearly 200 members including many venerable old men and almost all the consulars. But emigrants indeed they were. This Roman Coblentz displayed a pitiful spectacle in the high pretensions and paltry performances of the genteel world of Rome, their unseasonable reminiscences and still more unseasonable recriminations, their political perversities and financial

embarrassments. It was a matter of comparatively slight moment that, while the old structure was falling to pieces, they were with the most painstaking gravity watching over every old ornamental scroll and every speck of rust in the constitution; after all it was simply ridiculous, when the genteel lords had scruples of conscience as to calling their deliberative assembly beyond the sacred soil of the city the senate, and cautiously gave it the title of the "three hundred";(23) or when they instituted tedious investigations in state law as to whether and how a curiate law could be legitimately enacted elsewhere than within the ring-wall of Rome.

The Lukewarm

Far worse traits were the indifference of the lukewarm and the narrow-minded stubbornness of the ultras. The former could not be brought to act or even to keep silence. If they were asked to exert themselves in some definite way for the common good, with the inconsistency characteristic of weak people they regarded any such suggestion as a malicious attempt to compromise them still further, and either did not do what they were ordered at all or did it with half heart. At the same time of course, with their affectation of knowing better when it was too late and their over-wise impracticabilities, they proved a perpetual clog to those who were acting; their daily work consisted in criticizing, ridiculing, and bemoaning every occurrence great and small, and in unnerving and discouraging the multitude by their own sluggishness and hopelessness.

The Ultras

While these displayed the utter prostration of weakness, the ultras on the other hand exhibited in full display its exaggerated action. With them there was no attempt to conceal that the preliminary to any negotiation for peace was the bringing over of Caesar's head; every one of the attempts towards peace, which Caesar repeatedly made even now, was tossed aside without

being examined, or employed only to cover insidious attempts on the lives of the commissioners of their opponent. That the declared partisans of Caesar had jointly and severally forfeited life and property, was a matter of course; but it fared little better with those more or less neutral. Lucius Domitius, the hero of Corfinium, gravely proposed in the council of war that those senators who had fought in the army of Pompeius should come to a vote on all who had either remained neutral or had emigrated but not entered the army, and should according to their own pleasure individually acquit them or punish them by fine or even by the forfeiture of life and property. Another of these ultras formally lodged with Pompeius a charge of corruption and treason against Lucius Afranius for his defective defence of Spain. Among these deep-dyed republicans their political theory assumed almost the character of a confession of religious faith; they accordingly hated their own more lukewarm partisans and Pompeius with his personal adherents, if possible, still more than their open opponents, and that with all the dull obstinacy of hatred which is wont to characterize orthodox theologians; and they were mainly to blame for the numberless and bitter separate quarrels which distracted the emigrant army and emigrant senate. But they did not confine themselves to words. Marcus Bibulus, Titus Labienus, and others of this coterie carried out their theory in practice, and caused such officers or soldiers of Caesar's army as fell into their hands to be executed en masse; which, as may well be conceived, did not tend to make Caesar's troops fight with less energy. If the counterrevolution in favour of the friends of the constitution, for which all the elements were in existence,(24) did not break out in Italy during Caesar's absence, the reason, according to the assurance of discerning opponents of Caesar, lay chiefly in the general dread of the unbridled fury of the republican ultras after the restoration should have taken place. The better men in the Pompeian camp were in despair over this frantic behaviour. Pompeius, himself a brave soldier, spared the prisoners as far as he might and could; but he was too

pusillanimous and in too awkward a position to prevent or even to punish all atrocities of this sort, as it became him as commander-in-chief to do. Marcus Cato, the only man who at least carried moral consistency into the struggle, attempted with more energy to check such proceedings; he induced the emigrant senate to prohibit by a special decree the pillage of subject towns and the putting to death of a burgess otherwise than in battle. The able Marcus Marcellus had similar views. No one, indeed, knew better than Cato and Marcellus that the extreme party would carry out their saving deeds, if necessary, in defiance of all decrees of the senate. But if even now, when they had still to regard considerations of prudence, the rage of the ultras could not be tamed, people might prepare themselves after the victory for a reign of terror from which Marius and Sulla themselves would have turned away with horror; and we can understand why Cato, according to his own confession, was more afraid of the victory than of the defeat of his own party.

The Preparations for War

The management of the military preparations in the Macedonian camp was in the hands of Pompeius the commander-in-chief. His position, always troublesome and galling, had become still worse through the unfortunate events of 705. In the eyes of his partisans he was mainly to blame for this result. This judgment was in various respects not just. A considerable part of the misfortunes endured was to be laid to the account of the perversity and insubordination of the lieutenant-generals, especially of the consul Lentulus and Lucius Domitius; from the moment when Pompeius took the head of the army, he had led it with skill and courage, and had saved at least very considerable forces from the shipwreck; that he was not a match for Caesar's altogether superior genius, which was now recognized by all, could not be fairly made matter of reproach to him. But the result alone decided men's judgment. Trusting to the general Pompeius, the constitutional party

had broken with Caesar; the pernicious consequences of this breach recoiled upon the general Pompeius; and, though owing to the notorious military incapacity of all the other chiefs no attempt was made to change the supreme command yet confidence at any rate in the commander-in-chief was paralyzed. To these painful consequences of the defeats endured were added the injurious influences of the emigration. Among the refugees who arrived there were certainly a number of efficient soldiers and capable officers, especially those belonging to the former Spanish army; but the number of those who came to serve and fight was just as small as that of the generals of quality who called themselves proconsuls and imperators with as good title as Pompeius, and of the genteel lords who took part in active military service more or less reluctantly, was alarmingly great. Through these the mode of life in the capital was introduced into the camp, not at all to the advantage of the army; the tents of such grandees were graceful bowers, the ground elegantly covered with fresh turf, the walls clothed with ivy; silver plate stood on the table, and the wine-cup often circulated there even in broad daylight. Those fashionable warriors formed a singular contrast with Caesar's daredevils, who ate coarse bread from which the former recoiled, and who, when that failed, devoured even roots and swore that they would rather chew the bark of trees than desist from the enemy. While, moreover, the action of Pompeius was hampered by the necessity of having regard to the authority of a collegiate board personally disinclined to him, this embarrassment was singularly increased when the senate of emigrants took up its abode almost in his very headquarters and all the venom of the emigrants now found vent in these senatorial sittings. Lastly there was nowhere any man of mark, who could have thrown his own weight into the scale against all these preposterous doings. Pompeius himself was intellectually far too secondary for that purpose, and far too hesitating, awkward, and reserved. Marcus Cato would have had at least the requisite moral authority, and would not have lacked the good will to

support Pompeius with it; but Pompeius, instead of calling him to his assistance, out of distrustful jealousy kept him in the background, and preferred for instance to commit the highly important chief command of the fleet to the in every respect incapable Marcus Bibulus rather than to Cato.

The Legions of Pompeius

While Pompeius thus treated the political aspect of his position with his characteristic perversity, and did his best to make what was already bad in itself still worse, he devoted himself on the other hand with commendable zeal to his duty of giving military organization to the considerable but scattered forces of his party. The flower of his force was composed of the troops brought with him from Italy, out of which with the supplementary aid of the Illyrian prisoners of war and the Romans domiciled in Greece five legions in all were formed. Three others came from the east—the two Syrian legions formed from the remains of the army of Crassus, and one made up out of the two weak legions hitherto stationed in Cilicia. Nothing stood in the way of the withdrawal of these corps of occupation: because on the one hand the Pompeians had an understanding with the Parthians, and might even have had an alliance with them if Pompeius had not indignantly refused to pay them the price which they demanded for it—the cession of the Syrian province added by himself to the empire; and on the other hand Caesar's plan of despatching two legions to Syria, and inducing the Jews once more to take up arms by means of the prince Aristobulus kept a prisoner in Rome, was frustrated partly by other causes, partly by the death of Aristobulus. New legions were moreover raised— one from the veteran soldiers settled in Crete and Macedonia, two from the Romans of Asia Minor. To all these fell to be added 2000 volunteers, who were derived from the remains of the Spanish select corps and other similar sources; and, lastly, the contingents of the subjects. Pompeius like Caesar had disdained

to make requisitions of infantry from them; only the Epirot, Aetolian, and Thracian militia were called out to guard the coast, and moreover 3000 archers from Greece and Asia Minor and 1200 slingers were taken up as light troops.

His Cavalry

The cavalry on the other hand—with the exception of a noble guard, more respectable than militarily important, formed from the young aristocracy of Rome, and of the Apulian slave-herdsmen whom Pompeius had mounted (25)—consisted exclusively of the contingents of the subjects and clients of Rome. The flower of it consisted of the Celts, partly from the garrison of Alexandria,(26) partly the contingents of king Deiotarus who in spite of his great age had appeared in person at the head of his troops, and of the other Galatian dynasts. With them were associated the excellent Thracian horsemen, who were partly brought up by their princes Sadala and Rhascuporis, partly enlisted by Pompeius in the Macedonian province; the Cappadocian cavalry; the mounted archers sent by Antiochus king of Commagene; the contingents of the Armenians from the west side of the Euphrates under Taxiles, and from the other side under Megabates, and the Numidian bands sent by king Juba—the whole body amounted to 7000 horsemen.

Fleet

Lastly the fleet of Pompeius was very considerable. It was formed partly of the Roman transports brought from Brundisium or subsequently built, partly of the war vessels of the king of Egypt, of the Colchian princes, of the Cilician dynast Tarcondimotus, of the cities of Tyre, Rhodes, Athens, Corcyra, and generally of all the Asiatic and Greek maritime states; and it numbered nearly 500 sail, of which the Roman vessels formed a fifth. Immense magazines of corn and military stores were accumulated in

Dyrrhachium. The war-chest was well filled, for the Pompeians found themselves in possession of the principal sources of the public revenue and turned to their own account the moneyed resources of the client-princes, of the senators of distinction, of the farmers of the taxes, and generally of the whole Roman and non-Roman population within their reach. Every appliance that the reputation of the legitimate government and the much-renowned protectorship of Pompeius over kings and peoples could move in Africa, Egypt, Macedonia, Greece, Western Asia and Syria, had been put in motion for the protection of the Roman republic; the report which circulated in Italy that Pompeius was arming the Getae, Colchians, and Armenians against Rome, and the designation of "king of kings" given to Pompeius in the camp, could hardly be called exaggerations. On the whole he had command over an army of 7000 cavalry and eleven legions, of which it is true, but five at the most could be described as accustomed to war, and over a fleet of 500 sail. The temper of the soldiers, for whose provisioning and pay Pompeius manifested adequate care, and to whom in the event of victory the most abundant rewards were promised, was throughout good, in several—and these precisely the most efficient—divisions even excellent but a great part of the army consisted of newly-raised troops, the formation and training of which, however zealously it was prosecuted, necessarily required time. The force altogether was imposing, but at the same time of a somewhat motley character.

Junction of the Pompeians on the Coast of Epirus

According to the design of the commander-in-chief the army and fleet were to be in substance completely united by the winter of 705-706 along the coast and in the waters of Epirus. The admiral Bibulus had already arrived with no ships at his new headquarters, Corcyra. On the other hand the land-army, the headquarters of which had been during the summer at Berrhoea on the Haliacmon, had not yet come up; the mass of it was

moving slowly along the great highway from Thessalonica towards the west coast to the future headquarters Dyrrhachium; the two legions, which Metellus Scipio was bringing up from Syria, remained at Pergamus in Asia for winter quarters and were expected in Europe only towards spring. They were taking time in fact for their movements. For the moment the ports of Epirus were guarded, over and above the fleet, merely by their own civic defences and the levies of the adjoining districts.

Caesar against Pompeius

It thus remained possible for Caesar, notwithstanding the intervention of the Spanish war, to assume the offensive also in Macedonia; and he at least was not slow to act. He had long ago ordered the collection of vessels of war and transports in Brundisium, and after the capitulation of the Spanish army and the fall of Massilia had directed the greater portion of the select troops employed there to proceed to that destination. The unparalleled exertions no doubt, which were thus required by Caesar from his soldiers, thinned the ranks more than their conflicts had done and the mutiny of one of the four oldest legions, the ninth on its march through Placentia was a dangerous indication of the temper prevailing in the army; but Caesar's presence of mind and personal authority gained the mastery, and from this quarter nothing impeded the embarkation. But the want of ships, through which the pursuit of Pompeius had failed in March 705, threatened also to frustrate this expedition. The war-vessels, which Caesar had given orders to build in the Gallic, Sicilian, and Italian ports, were not yet ready or at any rate not on the spot; his squadron in the Adriatic had been in the previous year destroyed at Curicta;(27) he found at Brundisium not more than twelve ships of war and scarcely transports enough to convey over at once the third part of his army—of twelve legions and 10,000 cavalry—destined for Greece. The considerable fleet of the enemy exclusively commanded the Adriatic and especially all the harbours of the mainland and islands on its

eastern coast. Under such circumstances the question presents itself, why Caesar did not instead of the maritime route choose the land route through Illyria, which relieved him from all the perils threatened by the fleet and besides was shorter for his troops, who mostly came from Gaul, than the route by Brundisium. It is true that the regions of Illyria were rugged and poor beyond description; but they were traversed by other armies not long afterwards, and this obstacle can hardly have appeared insurmountable to the conqueror of Gaul. Perhaps he apprehended that during the troublesome march through Illyria Pompeius might convey his whole force over the Adriatic, whereby their parts might come at once to be changed—with Caesar in Macedonia, and Pompeius in Italy; although such a rapid change was scarcely to be expected from his slow-moving antagonist. Perhaps Caesar had decided for the maritime route on the supposition that his fleet would meanwhile be brought into a condition to command respect, and, when after his return from Spain he became aware of the true state of things in the Adriatic, it might be too late to change the plan of campaign. Perhaps — and, in accordance with Caesar's quick temperament always urging him to decision, we may even say in all probability—he found himself irresistibly tempted by the circumstance that the Epirot coast was still at the moment unoccupied but would certainly be covered in a few days by the enemy, to thwart once more by a bold stroke the whole plan of his antagonist.

Caesar Lands in Epirus

First Successes

However this may be, on the 4th Jan. 706(28) Caesar set sail with six legions greatly thinned by toil and sickness and 600 horsemen from Brundisium for the coast of Epirus. It was a counterpart to the foolhardy Britannic expedition; but at least the first throw was fortunate. The coast was reached in the middle of the Acroceraunian (Chimara) cliffs, at the

little-frequented roadstead of Paleassa (Paljassa). The transports were seen both from the harbour of Oricum (creek of Avlona) where a Pompeian squadron of eighteen sail was lying, and from the headquarters of the hostile fleet at Corcyra; but in the one quarter they deemed themselves too weak, in the other they were not ready to sail, so that the first freight was landed without hindrance. While the vessels at once returned to bring over the second, Caesar on that same evening scaled the Acroceraunian mountains. His first successes were as great as the surprise of his enemies. The Epirot militia nowhere offered resistance; the important seaport towns of Oricum and Apollonia along with a number of smaller townships were taken, and Dyrrhachium, selected by the Pompeians as their chief arsenal and filled with stores of all sorts, but only feebly garrisoned, was in the utmost danger.

Caesar Cut Off from Italy

But the further course of the campaign did not correspond to this brilliant beginning. Bibulus subsequently made up in some measure for the negligence, of which he had allowed himself to be guilty, by redoubling his exertions. He not only captured nearly thirty of the transports returning home, and caused them with every living thing on board to be burnt, but he also established along the whole district of coast occupied by Caesar, from the island Sason (Saseno) as far as the ports of Corcyra, a most careful watch, however troublesome it was rendered by the inclement season of the year and the necessity of bringing everything necessary for the guard-ships, even wood and water, from Corcyra; in fact his successor Libo—for he himself soon succumbed to the unwonted fatigues—even blockaded for a time the port of Brundisium, till the want of water again dislodged him from the little island in front of it on which he had established himself. It was not possible for Caesar's officers to convey the second portion of the army over to their general. As little did he himself succeed in the capture of

Dyrrhachium. Pompeius learned through one of Caesar's peace envoys as to his preparations for the voyage to the Epirot coast, and, thereupon accelerating his march, threw himself just at the right time into that important arsenal. The situation of Caesar was critical. Although he extended his range in Epirus as far as with his slight strength was at all possible, the subsistence of his army remained difficult and precarious, while the enemy, in possession of the magazines of Dyrrhachium and masters of the sea, had abundance of everything. With his army presumably little above 20,000 strong he could not offer battle to that of Pompeius at least twice as numerous, but had to deem himself fortunate that Pompeius went methodically to work and, instead of immediately forcing a battle, took up his winter quarters between Dyrrhachium and Apollonia on the right bank of the Apsus, facing Caesar on the left, in order that after the arrival of the legions from Pergamus in the spring he might annihilate the enemy with an irresistibly superior force. Thus months passed. If the arrival of the better season, which brought to the enemy a strong additional force and the free use of his fleet, found Caesar still in the same position, he was to all appearance lost, with his weak band wedged in among the rocks of Epirus between the immense fleet and the three times superior land army of the enemy; and already the winter was drawing to a close. His sole hope still depended on the transport fleet; that it should steal or fight its way through the blockade was hardly to be hoped for; but after the first voluntary foolhardiness this second venture was enjoined by necessity. How desperate his situation appeared to Caesar himself, is shown by his resolution—when the fleet still came not—to sail alone in a fisherman's boat across the Adriatic to Brundisium in order to fetch it; which, in reality, was only abandoned because no mariner was found to undertake the daring voyage.

Antonius Proceed to Epirus

But his appearance in person was not needed to induce the faithful officer who commanded in Italy, Marcus Antonius, to make this last effort for the saving of his master. Once more the transport fleet, with four legions and 800 horsemen on board sailed from the harbour of Brundisium, and fortunately a strong south wind carried it past Libo's galleys. But the same wind, which thus saved the fleet, rendered it impossible for it to land as it was directed on the coast of Apollonia, and compelled it to sail past the camps of Caesar and Pompeius and to steer to the north of Dyrrhachium towards Lissus, which town fortunately still adhered to Caesar.(29) When it sailed past the harbour of Dyrrhachium, the Rhodian galleys started in pursuit, and hardly had the ships of Antonius entered the port of Lissus when the enemy's squadron appeared before it. But just at this moment the wind suddenly veered, and drove the pursuing galleys back into the open sea and partly on the rocky coast. Through the most marvellous good fortune the landing of the second freight had also been successful.

Junction of Caesar's Army

Antonius and Caesar were no doubt still some four days' march from each other, separated by Dyrrhachium and the whole army of the enemy; but Antonius happily effected the perilous march round about Dyrrhachium through the passes of the Graba Balkan, and was received by Caesar, who had gone to meet him, on the right bank of the Apsus. Pompeius, after having vainly attempted to prevent the junction of the two armies of the enemy and to force the corps of Antonius to fight by itself, took up a new position at Asparagium on the river Genusus (Skumbi), which flows parallel to the Apsus between the latter and the town of Dyrrhachium, and here remained once more immoveable. Caesar felt himself now strong enough to give battle; but Pompeius declined it. On the other hand Caesar succeeded in deceiving his adversary and throwing himself unawares with his better marching troops, just as at Ilerda, between the enemy's camp and the

fortress of Dyrrhachium on which it rested as a basis. The chain of the Graba Balkan, which stretching in a direction from east to west ends on the Adriatic in the narrow tongue of land at Dyrrhachium, sends off—fourteen miles to the east of Dyrrhachium—in a south-westerly direction a lateral branch which likewise turns in the form of a crescent towards the sea, and the main chain and lateral branch of the mountains enclose between themselves a small plain extending round a cliff on the seashore.

Pompeius now took up his camp, and, although Caesar's army kept the land route to Dyrrhachium closed against him, he yet with the aid of his fleet remained constantly in communication with the town and was amply and easily provided from it with everything needful; while among the Caesarians, notwithstanding strong detachments to the country lying behind, and notwithstanding all the exertions of the general to bring about an organized system of conveyance and thereby a regular supply, there was more than scarcity, and flesh, barley, nay even roots had very frequently to take the place of the wheat to which they were accustomed.

Caesar Invests the Camp of Pompeius

As his phlegmatic opponent persevered in his inaction, Caesar undertook to occupy the circle of heights which enclosed the plain on the shore held by Pompeius, with the view of being able at least to arrest the movements of the superior cavalry of the enemy and to operate with more freedom against Dyrrhachium, and if possible to compel his opponent either to battle or to embarkation. Nearly the half of Caesar's troops was detached to the interior; it seemed almost Quixotic to propose with the rest virtually to besiege an army perhaps twice as strong, concentrated in position, and resting on the sea and the fleet. Yet Caesar's veterans by infinite exertions invested the Pompeian camp with a chain of posts sixteen miles long, and afterwards added, just as before Alesia, to this inner line a second outer one,

to protect themselves against attacks from Dyrrhachium and against attempts to turn their position which could so easily be executed with the aid of the fleet. Pompeius attacked more than once portions of these entrenchments with a view to break if possible the enemy's line, but he did not attempt to prevent the investment by a battle; he preferred to construct in his turn a number of entrenchments around his camp, and to connect them with one another by lines. Both sides exerted themselves to push forward their trenches as far as possible, and the earthworks advanced but slowly amidst constant conflicts. At the same time skirmishing went on on the opposite side of Caesar's camp with the garrison of Dyrrhachium; Caesar hoped to get the fortress into his power by means of an understanding with some of its inmates, but was prevented by the enemy's fleet. There was incessant fighting at very different points—on one of the hottest days at six places simultaneously— and, as a rule, the tried valour of the Caesarians had the advantage in these skirmishes; once, for instance, a single cohort maintained itself in its entrenchments against four legions for several hours, till support came up. No prominent success was attained on either side; yet the effects of the investment came by degrees to be oppressively felt by the Pompeians. The stopping of the rivulets flowing from the heights into the plain compelled them to be content with scanty and bad well-water. Still more severely felt was the want of fodder for the beasts of burden and the horses, which the fleet was unable adequately to remedy; numbers of them died, and it was of but little avail that the horses were conveyed by the fleet to Dyrrhachium, because there also they did not find sufficient fodder.

Caesar's Lines Broken

Caesar Once More Defeated

Pompeius could not much longer delay to free himself from his disagreeable position by a blow struck against the enemy. He was informed

by Celtic deserters that the enemy had neglected to secure the beach between his two chains of entrenchments 600 feet distant from each other by a cross-wall, and on this he formed his plan. While he caused the inner line of Caesar's entrenchments to be attacked by the legions from the camp, and the outer line by the light troops placed in vessels and landed beyond the enemy's entrenchments, a third division landed in the space left between the two lines and attacked in the rear their already sufficiently occupied defenders. The entrenchment next to the sea was taken, and the garrison fled in wild confusion; with difficulty the commander of the next trench Marcus Antonius succeeded in maintaining it and in setting a limit for the moment to the advance of the Pompeians; but, apart from the considerable loss, the outermost entrenchment along the sea remained in the hands of the Pompeians and the line was broken through. Caesar the more eagerly seized the opportunity, which soon after presented itself, of attacking a Pompeian legion, which had incautiously become isolated, with the bulk of his infantry. But the attacked offered valiant resistance, and, as the ground on which the fight took place had been several times employed for the encampment of larger and lesser divisions and was intersected in various directions by mounds and ditches, Caesar's right wing along with the cavalry entirely missed its way; instead of supporting the left in attacking the Pompeian legion, it got into a narrow trench that led from one of the old camps towards the river. So Pompeius, who came up in all haste with five legions to the aid of his troops, found the two wings of the enemy separated from each other, and one of them in an utterly forlorn position. When the Caesarians saw him advance, a panic seized them; the whole plunged into disorderly flight; and, if the matter ended with the loss of 1000 of the best soldiers and Caesar's army did not sustain a complete defeat, this was due simply to the circumstance that Pompeius also could not freely develop his force on the broken ground, and to the further fact that, fearing a stratagem, he at first held back his troops.

Consequences of Caesar's Defeats

But, even as it was, these days were fraught with mischief. Not only had Caesar endured the most serious losses and forfeited at a blow his entrenchments, the result of four months of gigantic labour; he was by the recent engagements thrown back again exactly to the point from which he had set out. From the sea he was more completely driven than ever, since Pompeius' elder son Gnaeus had by a bold attack partly burnt, partly carried off, Caesar's few ships of war lying in the port of Oricum, and had soon afterwards also set fire to the transport fleet that was left behind in Lissus; all possibility of bringing up fresh reinforcements to Caesar by sea from Brundisium was thus lost. The numerous Pompeian cavalry, now released from their confinement, poured themselves over the adjacent country and threatened to render the provisioning of Caesar's army, which had always been difficult, utterly impossible. Caesar's daring enterprise of carrying on offensive operations without ships against an enemy in command of the sea and resting on his fleet had totally failed. On what had hitherto been the theatre of war he found himself in presence of an impregnable defensive position, and unable to strike a serious blow either against Dyrrhachium or against the hostile army; on the other hand it depended now solely on Pompeius whether he should proceed to attack under the most favourable circumstances an antagonist already in grave danger as to his means of subsistence. The war had arrived at a crisis. Hitherto Pompeius had, to all appearance, played the game of war without special plan, and only adjusted his defence according to the exigencies of each attack; and this was not to be censured, for the protraction of the war gave him opportunity of making his recruits capable of fighting, of bringing up his reserves, and of bringing more fully into play the superiority of his fleet in the Adriatic. Caesar was beaten not merely in tactics but also in strategy. This defeat had not, it is true, that effect which Pompeius not without reason expected; the eminent soldierly energy of Caesar's veterans did not allow matters to come to an

immediate and total breaking up of the army by hunger and mutiny. But yet it seemed as if it depended solely on his opponent by judiciously following up his victory to reap its full fruits.

War Prospects of Pompeius Scipio and Calvinus

It was for Pompeius to assume the aggressive; and he was resolved to do so. Three different ways of rendering his victory fruitful presented themselves to him. The first and simplest was not to desist from assailing the vanquished army, and, if it departed, to pursue it. Secondly, Pompeius might leave Caesar himself and his best troops in Greece, and might cross in person, as he had long been making preparations for doing, with the main army to Italy, where the feeling was decidedly antimonarchical and the forces of Caesar, after the despatch of the best troops and their brave and trustworthy commandant to the Greek army, would not be of very much moment. Lastly, the victor might turn inland, effect a junction with the legions of Metellus Scipio, and attempt to capture the troops of Caesar stationed in the interior. The latter forthwith had, immediately after the arrival of the second freight from Italy, on the one hand despatched strong detachments to Aetolia and Thessaly to procure means of subsistence for his army, and on the other had ordered a corps of two legions under Gnaeus Domitius Calvinus to advance on the Egnatian highway towards Macedonia, with the view of intercepting and if possible defeating in detail the corps of Scipio advancing on the same road from Thessalonica. Calvinus and Scipio had already approached within a few miles of each other, when Scipio suddenly turned southward and, rapidly crossing the Haliacmon (Inje Karasu) and leaving his baggage there under Marcus Favonius, penetrated into Thessaly, in order to attack with superior force Caesar's legion of recruits employed in the reduction of the country under Lucius Cassius Longinus. But Longinus retired over the mountains towards

Ambracia to join the detachment under Gnaeus Calvisius Sabinus sent by Caesar to Aetolia, and Scipio could only cause him to be pursued by his Thracian cavalry, for Calvinus threatened his reserve left behind under Favonius on the Haliacmon with the same fate which he had himself destined for Longinus. So Calvinus and Scipio met again on the Haliacmon, and encamped there for a considerable time opposite to each other.

Caesar's Retreat from Dyrrachium to Thessaly

Pompeius might choose among these plans; no choice was left to Caesar. After that unfortunate engagement he entered on his retreat to Apollonia. Pompeius followed. The march from Dyrrhachium to Apollonia along a difficult road crossed by several rivers was no easy task for a defeated army pursued by the enemy; but the dexterous leadership of their general and the indestructible marching energy of the soldiers compelled Pompeius after four days' pursuit to suspend it as useless. He had now to decide between the Italian expedition and the march into the interior. However advisable and attractive the former might seem, and though various voices were raised in its favour, he preferred not to abandon the corps of Scipio, the more especially as he hoped by this march to get the corps of Calvinus into his hands. Calvinus lay at the moment on the Egnatian road at Heraclea Lyncestis, between Pompeius and Scipio, and, after Caesar had retreated to Apollonia, farther distant from the latter than from the great army of Pompeius; without knowledge, moreover, of the events at Dyrrhachium and of his hazardous position, since after the successes achieved at Dyrrhachium the whole country inclined to Pompeius and the messengers of Caesar were everywhere seized. It was not till the enemy's main force had approached within a few hours of him that Calvinus learned from the accounts of the enemy's advanced posts themselves the state of things. A quick departure in a southerly direction towards Thessaly withdrew him at the last moment from imminent destruction; Pompeius had to content

himself with having liberated Scipio from his position of peril. Caesar had meanwhile arrived unmolested at Apollonia. Immediately after the disaster of Dyrrhachium he had resolved if possible to transfer the struggle from the coast away into the interior, with the view of getting beyond the reach of the enemy's fleet—the ultimate cause of the failure of his previous exertions. The march to Apollonia had only been intended to place his wounded in safety and to pay his soldiers there, where his depots were stationed; as soon as this was done, he set out for Thessaly, leaving behind garrisons in Apollonia, Oricum, and Lissus. The corps of Calvinus had also put itself in motion towards Thessaly; and Caesar could effect a junction with the reinforcements coming up from Italy, this time by the land-route through Illyria—two legions under Quintus Cornificius—still more easily in Thessaly than in Epirus. Ascending by difficult paths in the valley of the Aous and crossing the mountain-chain which separates Epirus from Thessaly, he arrived at the Peneius; Calvinus was likewise directed thither, and the junction of the two armies was thus accomplished by the shortest route and that which was least exposed to the enemy. It took place at Aeginium not far from the source of the Peneius. The first Thessalian town before which the now united army appeared, Gomphi, closed its gates against it; it was quickly stormed and given up to pillage, and the other towns of Thessaly terrified by this example submitted, so soon as Caesar's legions merely appeared before the walls. Amidst these marches and conflicts, and with the help of the supplies—albeit not too ample—which the region on the Peneius afforded, the traces and recollections of the calamitous days through which they had passed gradually vanished.

The victories of Dyrrhachium had thus borne not much immediate fruit for the victors. Pompeius with his unwieldy army and his numerous cavalry had not been able to follow his versatile enemy into the mountains; Caesar like Calvinus had escaped from pursuit, and the two stood united and in full security in Thessaly. Perhaps it would have been the best course, if

Pompeius had now without delay embarked with his main force for Italy, where success was scarcely doubtful. But in the meantime only a division of the fleet departed for Sicily and Italy. In the camp of the coalition the contest with Caesar was looked on as so completely decided by the battles of Dyrrhachium that it only remained to reap the fruits of victory, in other words, to seek out and capture the defeated army. Their former over-cautious reserve was succeeded by an arrogance still less justified by the circumstances; they gave no heed to the facts, that they had, strictly speaking, failed in the pursuit, that they had to hold themselves in readiness to encounter a completely refreshed and reorganized army in Thessaly, and that there was no small risk in moving away from the sea, renouncing the support of the fleet, and following their antagonist to the battlefield chosen by himself. They were simply resolved at any price to fight with Caesar, and therefore to get at him as soon as possible and by the most convenient way. Cato took up the command in Dyrrhachium, where a garrison was left behind of eighteen cohorts, and in Corcyra, where 300 ships of war were left; Pompeius and Scipio proceeded—the former, apparently, following the Egnatian way as far as Pella and then striking into the great road to the south, the latter from the Haliacmon through the passes of Olympus—to the lower Peneius and met at Larisa.

The Armies at Pharsalus

Caesar lay to the south of Larisa in the plain—which extends between the hill-country of Cynoscephalae and the chain of Othrys and is intersected by a tributary of the Peneius, the Enipeus—on the left bank of the latter stream near the town of Pharsalus; Pompeius pitched his camp opposite to him on the right bank of the Enipeus along the slope of the heights of Cynoscephalae.⁽³⁰⁾ The entire army of Pompeius was assembled; Caesar on the other hand still expected the corps of nearly two legions formerly detached to Aetolia and Thessaly, now stationed under Quintus Fufius

Calenus in Greece, and the two legions of Cornificius which were sent after him by the land-route from Italy and had already arrived in Illyria. The army of Pompeius, numbering eleven legions or 47,000 men and 7000 horse, was more than double that of Caesar in infantry, and seven times as numerous in cavalry; fatigue and conflicts had so decimated Caesar's troops, that his eight legions did not number more than 22,000 men under arms, consequently not nearly the half of their normal amount. The victorious army of Pompeius provided with a countless cavalry and good magazines had provisions in abundance, while the troops of Caesar had difficulty in keeping themselves alive and only hoped for better supplies from the corn-harvest not far distant. The Pompeian soldiers, who had learned in the last campaign to know war and trust their leader, were in the best of humour. All military reasons on the side of Pompeius favoured the view, that the decisive battle should not be long delayed, seeing that they now confronted Caesar in Thessaly; and the emigrant impatience of the many genteel officers and others accompanying the army doubtless had more weight than even such reasons in the council of war. Since the events of Dyrrhachium these lords regarded the triumph of their party as an ascertained fact; already there was eager strife as to the filling up of Caesar's supreme pontificate, and instructions were sent to Rome to hire houses at the Forum for the next elections. When Pompeius hesitated on his part to cross the rivulet which separated the two armies, and which Caesar with his much weaker army did not venture to pass, this excited great indignation; Pompeius, it was alleged, only delayed the battle in order to rule somewhat longer over so many consulars and praetorians and to perpetuate his part of Agamemnon. Pompeius yielded; and Caesar, who under the impression that matters would not come to a battle, had just projected a mode of turning the enemy's army and for that purpose was on the point of setting out towards Scotussa, likewise arrayed his legions for battle, when he saw the Pompeians preparing to offer it to him on his bank.

The Battle

Thus the battle of Pharsalus was fought on the 9th August 706, almost on the same field where a hundred and fifty years before the Romans had laid the foundation of their dominion in the east.(31) Pompeius rested his right wing on the Enipeus; Caesar opposite to him rested his left on the broken ground stretching in front of the Enipeus; the two other wings were stationed out in the plain, covered in each case by the cavalry and the light troops. The intention of Pompeius was to keep his infantry on the defensive, but with his cavalry to scatter the weak band of horsemen which, mixed after the German fashion with light infantry, confronted him, and then to take Caesar's right wing in rear. His infantry courageously sustained the first charge of that of the enemy, and the engagement there came to a stand. Labienus likewise dispersed the enemy's cavalry after a brave but short resistance, and deployed his force to the left with the view of turning the infantry. But Caesar, foreseeing the defeat of his cavalry, had stationed behind it on the threatened flank of his right wing some 2000 of his best legionaries. As the enemy's horsemen, driving those of Caesar before them, galloped along and around the line, they suddenly came upon this select corps advancing intrepidly against them and, rapidly thrown into confusion by the unexpected and unusual infantry attack,(32) they galloped at full speed from the field of battle. The victorious legionaries cut to pieces the enemy's archers now unprotected, then rushed at the left wing of the enemy, and began now on their part to turn it. At the same time Caesar's third division hitherto reserved advanced along the whole line to the attack. The unexpected defeat of the best arm of the Pompeian army, as it raised the courage of their opponents, broke that of the army and above all that of the general. When Pompeius, who from the outset did not trust his infantry, saw the horsemen gallop off, he rode back at once from the field of battle to the camp, without even awaiting the issue of the general attack ordered by

Caesar. His legions began to waver and soon to retire over the brook into the camp, which was not accomplished without severe loss.

Its Issue

Flight of Pompeius

The day was thus lost and many an able soldier had fallen, but the army was still substantially intact, and the situation of Pompeius was far less perilous than that of Caesar after the defeat of Dyrrhachium. But while Caesar in the vicissitudes of his destiny had learned that fortune loves to withdraw herself at certain moments even from her favourites in order to be once more won back through their perseverance, Pompeius knew fortune hitherto only as the constant goddess, and despaired of himself and of her when she withdrew from him; and, while in Caesar's grander nature despair only developed yet mightier energies, the inferior soul of Pompeius under similar pressure sank into the infinite abyss of despondency. As once in the war with Sertorius he had been on the point of abandoning the office entrusted to him in presence of his superior opponent and of departing,(33) so now, when he saw the legions retire over the stream, he threw from him the fatal general's scarf, and rode off by the nearest route to the sea, to find means of embarking there. His army discouraged and leaderless—for Scipio, although recognized by Pompeius as colleague in supreme command, was yet general-in-chief only in name—hoped to find protection behind the camp-walls; but Caesar allowed it no rest; the obstinate resistance of the Roman and Thracian guard of the camp was speedily overcome, and the mass was compelled to withdraw in disorder to the heights of Crannon and Scotussa, at the foot of which the camp was pitched. It attempted by moving forward along these hills to regain Larisa; but the troops of Caesar, heeding neither booty nor fatigue and advancing by better paths in the plain, intercepted the route of the fugitives; in fact, when late in the evening the Pompeians suspended their march, their

pursuers were able even to draw an entrenched line which precluded the fugitives from access to the only rivulet to be found in the neighbourhood. So ended the day of Pharsalus. The enemy's army was not only defeated, but annihilated; 15,000 of the enemy lay dead or wounded on the field of battle, while the Caesarians missed only 200 men; the body which remained together, amounting still to nearly 20,000 men, laid down their arms on the morning after the battle only isolated troops, including, it is true, the officers of most note, sought a refuge in the mountains; of the eleven eagles of the enemy nine were handed over to Caesar. Caesar, who on the very day of the battle had reminded the soldiers that they should not forget the fellow-citizen in the foe, did not treat the captives as did Bibulus and Labienus; nevertheless he too found it necessary now to exercise some severity. The common soldiers were incorporated in the army, fines or confiscations of property were inflicted on the men of better rank; the senators and equites of note who were taken, with few exceptions, suffered death. The time for clemency was past; the longer the civil war lasted, the more remorseless and implacable it became.

The Political Effects of the Battle of Pharsalus

The East Submits

Some time elapsed, before the consequences of the 9th of August 706 could be fully discerned. What admitted of least doubt, was the passing over to the side of Caesar of all those who had attached themselves to the party vanquished at Pharsalus merely as to the more powerful; the defeat was so thoroughly decisive, that the victor was joined by all who were not willing or were not obliged to fight for a lost cause. All the kings, peoples, and cities, which had hitherto been the clients of Pompeius, now recalled their naval and military contingents and declined to receive the refugees of the beaten party; such as Egypt, Cyrene, the communities of Syria, Phoenicia, Cilicia and Asia Minor, Rhodes, Athens, and generally the whole east. In

fact Pharnaces king of the Bosphorus pushed his officiousness so far, that on the news of the Pharsalian battle he took possession not only of the town of Phanagoria which several years before had been declared free by Pompeius, and of the dominions of the Colchian princes confirmed by him, but even of the kingdom of Little Armenia which Pompeius had conferred on king Deiotarus. Almost the sole exceptions to this general submission were the little town of Megara which allowed itself to be besieged and stormed by the Caesarians, and Juba king of Numidia, who had for long expected, and after the victory over Curio expected only with all the greater certainty, that his kingdom would be annexed by Caesar, and was thus obliged for better or for worse to abide by the defeated party.

The Aristocracy after the Battle of Pharsalus

In the same way as the client communities submitted to the victor of Pharsalus, the tail of the constitutional party—all who had joined it with half a heart or had even, like Marcus Cicero and his congeners, merely danced around the aristocracy like the witches around the Brocken—approached to make their peace with the new monarch, a peace accordingly which his contemptuous indulgence readily and courteously granted to the petitioners. But the flower of the defeated party made no compromise. All was over with the aristocracy; but the aristocrats could never become converted to monarchy. The highest revelations of humanity are perishable; the religion once true may become a lie,(34) the polity once fraught with blessing may become a curse; but even the gospel that is past still finds confessors, and if such a faith cannot remove mountains like faith in the living truth, it yet remains true to itself down to its very end, and does not depart from the realm of the living till it has dragged its last priests and its last partisans along with it, and a new generation, freed from those shadows of the past and the perishing, rules over a world that has renewed its youth. So it was in Rome. Into whatever abyss of degeneracy the aristocratic rule

had now sunk, it had once been a great political system; the sacred fire, by which Italy had been conquered and Hannibal had been vanquished, continued to glow—although somewhat dimmed and dull—in the Roman nobility so long as that nobility existed, and rendered a cordial understanding between the men of the old regime and the new monarch impossible. A large portion of the constitutional party submitted at least outwardly, and recognized the monarchy so far as to accept pardon from Caesar and to retire as much as possible into private life; which, however, ordinarily was not done without the mental reservation of thereby preserving themselves for a future change of things. This course was chiefly followed by the partisans of lesser note; but the able Marcus Marcellus, the same who had brought about the rupture with Caesar,(35) was to be found among these judicious persons and voluntarily banished himself to Lesbos. In the majority, however, of the genuine aristocracy passion was more powerful than cool reflection; along with which, no doubt, self-deceptions as to success being still possible and apprehensions of the inevitable vengeance of the victor variously co-operated.

Cato

No one probably formed a judgment as to the situation of affairs with so painful a clearness, and so free from fear or hope on his own account, as Marcus Cato. Completely convinced that after the days of Ilerda and Pharsalus the monarchy was inevitable, and morally firm enough to confess to himself this bitter truth and to act in accordance with it, he hesitated for a moment whether the constitutional party ought at all to continue a war, which would necessarily require sacrifices for a lost cause on the part of many who did not know why they offered them. And when he resolved to fight against the monarchy not for victory, but for a speedier and more honourable fall, he yet sought as far as possible to draw no one into this war, who chose to survive the fall of the republic and to be reconciled to

monarchy. He conceived that, so long as the republic had been merely threatened, it was a right and a duty to compel the lukewarm and bad citizen to take part in the struggle; but that now it was senseless and cruel to compel the individual to share the ruin of the lost republic. Not only did he himself discharge every one who desired to return to Italy; but when the wildest of the wild partisans, Gnaeus Pompeius the younger, insisted on the execution of these people and of Cicero in particular: it was Cato alone who by his moral authority prevented it.

Pompeius

Pompeius also had no desire for peace. Had he been a man who deserved to hold the position which he occupied, we might suppose him to have perceived that he who aspires to a crown cannot return to the beaten track of ordinary existence, and that there is accordingly no place left on earth for one who has failed. But Pompeius was hardly too noble-minded to ask a favour, which the victor would have been perhaps magnanimous enough not to refuse to him; on the contrary, he was probably too mean to do so. Whether it was that he could not make up his mind to trust himself to Caesar, or that in his usual vague and undecided way, after the first immediate impression of the disaster of Pharsalus had vanished, he began again to cherish hope, Pompeius was resolved to continue the struggle against Caesar and to seek for himself yet another battle-field after that of Pharsalus.

Military Effects of the Battle

The Leaders Scattered

Thus, however much Caesar had striven by prudence and moderation to appease the fury of his opponents and to lessen their number, the struggle nevertheless went on without alteration. But the leading men had almost all taken part in the fight at Pharsalus; and, although they all escaped with the

exception of Lucius Domitius Ahenobarbus, who was killed in the flight, they were yet scattered in all directions, so that they were unable to concert a common plan for the continuance of the campaign. Most of them found their way, partly through the desolate mountains of Macedonia and Illyria, partly by the aid of the fleet, to Corcyra, where Marcus Cato commanded the reserve left behind. Here a sort of council of war took place under the presidency of Cato, at which Metellus Scipio, Titus Labienus, Lucius Afranius, Gnaeus Pompeius the younger and others were present; but the absence of the commander-in-chief and the painful uncertainty as to his fate, as well as the internal dissensions of the party, prevented the adoption of any common resolution, and ultimately each took the course which seemed to him the most suitable for himself or for the common cause. It was in fact in a high degree difficult to say among the many straws to which they might possibly cling which was the one that would keep longest above water.

Macedonia and Greece

Italy

The East

Egypt

Spain

Africa

Macedonia and Greece were lost by the battle of Pharsalus. It is true that Cato, who had immediately on the news of the defeat evacuated Dyrrhachium, still held Corcyra, and Rutilius Lupus the Peloponnesus, during a time for the constitutional party. For a moment it seemed also as if the Pompeians would make a stand at Patrae in the Peloponnesus; but the accounts of the advance of Calenus sufficed to frighten them from that quarter. As little was there any attempt to maintain Corcyra. On the Italian and Sicilian coasts the Pompeian squadrons despatched thither after the

victories of Dyrrhachium(36) had achieved not unimportant successes against the ports of Brundisium, Messana and Vibo, and at Messana especially had burnt the whole fleet in course of being fitted out for Caesar; but the ships that were thus active, mostly from Asia Minor and Syria, were recalled by their communities in consequence of the Pharsalian battle, so that the expedition came to an end of itself. In Asia Minor and Syria there were at the moment no troops of either party, with the exception of the Bosporan army of Pharnaces which had taken possession, ostensibly on Caesar's account, of different regions belonging to his opponents. In Egypt there was still indeed a considerable Roman army, formed of the troops left behind there by Gabinius(37) and thereafter recruited from Italian vagrants and Syrian or Cilician banditti; but it was self-evident and was soon officially confirmed by the recall of the Egyptian vessels, that the court of Alexandria by no means had the intention of holding firmly by the defeated party or of even placing its force of troops at their disposal. Somewhat more favourable prospects presented themselves to the vanquished in the west. In Spain Pompeian sympathies were so strong among the population, that the Caesarians had on that account to give up the attack which they contemplated from this quarter against Africa, and an insurrection seemed inevitable, so soon as a leader of note should appear in the peninsula. In Africa moreover the coalition, or rather Juba king of Numidia, who was the true regent there, had been arming unmolested since the autumn of 705. While the whole east was consequently lost to the coalition by the battle of Pharsalus, it might on the other hand continue the war after an honourable manner probably in Spain, and certainly in Africa; for to claim the aid of the king of Numidia, who had for a long time been subject to the Roman community, against revolutionary fellow- burgesses was for Romans a painful humiliation doubtless, but by no means an act of treason. Those again who in this conflict of despair had no further regard for right or honour, might declare themselves beyond the pale of the law, and

commence hostilities as robbers; or might enter into alliance with independent neighbouring states, and introduce the public foe into the intestine strife; or, lastly, might profess monarchy with the lips and prosecute the restoration of the legitimate republic with the dagger of the assassin.

Hostilities of Robbers and Pirates

That the vanquished should withdraw and renounce the new monarchy, was at least the natural and so far the truest expression of their desperate position. The mountains and above all the sea had been in those times ever since the memory of man the asylum not only of all crime, but also of intolerable misery and of oppressed right; it was natural for Pompeians and republicans to wage a defiant war against the monarchy of Caesar, which had ejected them, in the mountains and on the seas, and especially natural for them to take up piracy on a greater scale, with more compact organization, and with more definite aims. Even after the recall of the squadrons that had come from the east they still possessed a very considerable fleet of their own, while Caesar was as yet virtually without vessels of war; and their connection with the Dalmatae who had risen in their own interest against Caesar,(38) and their control over the most important seas and seaports, presented the most advantageous prospects for a naval war, especially on a small scale. As formerly Sulla's hunting out of the democrats had ended in the Sertorian insurrection, which was a conflict first waged by pirates and then by robbers and ultimately became a very serious war, so possibly, if there was in the Catonian aristocracy or among the adherents of Pompeius as much spirit and fire as in the Marian democracy, and if there was found among them a true sea-king, a commonwealth independent of the monarchy of Caesar and perhaps a match for it might arise on the still unconquered sea.

Parthian Alliance

Far more serious disapproval in every respect is due to the idea of dragging an independent neighbouring state into the Roman civil war and of bringing about by its means a counter-revolution; law and conscience condemn the deserter more severely than the robber, and a victorious band of robbers finds its way back to a free and well-ordered commonwealth more easily than the emigrants who are conducted back by the public foe. Besides it was scarcely probable that the beaten party would be able to effect a restoration in this way. The only state, from which they could attempt to seek support, was that of the Parthians; and as to this it was at least doubtful whether it would make their cause its own, and very improbable that it would fight out that cause against Caesar.

The time for republican conspiracies had not yet come.

Caesar Pursues Pompeius to Egypt

While the remnant of the defeated party thus allowed themselves to be helplessly driven about by fate, and even those who had determined to continue the struggle knew not how or where to do so, Caesar, quickly as ever resolving and quickly acting, laid everything aside to pursue Pompeius—the only one of his opponents whom he respected as an officer, and the one whose personal capture would have probably paralyzed a half, and that perhaps the more dangerous half, of his opponents. With a few men he crossed the Hellespont—his single bark encountered in it a fleet of the enemy destined for the Black Sea, and took the whole crews, struck as with stupefaction by the news of the battle of Pharsalus, prisoners—and as soon as the most necessary preparations were made, hastened in pursuit of Pompeius to the east. The latter had gone from the Pharsalian battlefield to Lesbos, whence he brought away his wife and his second son Sextus, and had sailed onward round Asia Minor to Cilicia and thence to Cyprus. He might have joined his partisans at Corcyra or Africa; but repugnance toward his aristocratic allies and the thought of the reception which awaited him there after the day of Pharsalus and above all after his disgraceful flight, appear to have induced him to take his own course and rather to resort to the protection of the Parthian king than to that of Cato. While he was employed in collecting money and slaves from the Roman revenue-farmers and merchants in Cyprus, and in arming a band of 2000 slaves, he received news that Antioch had declared for Caesar and that the route to the Parthians was no longer open. So he altered his plan and sailed to Egypt, where a number of his old soldiers served in the army and the situation and rich resources of the country allowed him time and opportunity to reorganize the war.

In Egypt, after the death of Ptolemaeus Auletes (May 703) his children, Cleopatra about sixteen years of age and Ptolemaeus Dionysus about ten, had ascended the throne according to their father's will jointly, and as consorts; but soon the brother or rather his guardian Pothinus had driven the sister from the kingdom and compelled her to seek a refuge in Syria, whence she made preparations to get back to her paternal kingdom. Ptolemaeus and Pothinus lay with the whole Egyptian army at Pelusium for the sake of protecting the eastern frontier against her, just when Pompeius cast anchor at the Casian promontory and sent a request to the king to allow him to land. The Egyptian court, long informed of the disaster at Pharsalus, was on the point of refusing to receive Pompeius; but the king's tutor Theodotus pointed out that, in that case Pompeius would probably employ his connections in the Egyptian army to instigate rebellion; and that it would be safer, and also preferable with regard to Caesar, if they embraced the opportunity of making away with Pompeius. Political reasonings of this sort did not readily fail of their effect among the statesmen of the Hellenic world.

Death of Pompeius

Achillas the general of the royal troops and some of the former soldiers of Pompeius went off in a boat to his vessel; and invited him to come to the king and, as the water was shallow, to enter their barge. As he was stepping ashore, the military tribune Lucius Septimius stabbed him from behind, under the eyes of his wife and son who were compelled to be spectators of the murder from the deck of their vessel, without being able to rescue or revenge (28 Sept. 706). On the same day, on which thirteen years before he had entered the capital in triumph over Mithradates,(39) the man, who for a generation had been called the Great and for years had ruled Rome, died on the desert sands of the inhospitable Casian shore by the hand of one of his old soldiers. A good officer but otherwise of mediocre gifts of intellect and

of heart, fate had with superhuman constancy for thirty years allowed him to solve all brilliant and toilless tasks; had permitted him to pluck all laurels planted and fostered by others; had brought him face to face with all the conditions requisite for obtaining the supreme power—only in order to exhibit in his person an example of spurious greatness, to which history knows no parallel. Of all pitiful parts there is none more pitiful than that of passing for more than one really is; and it is the fate of monarchy that this misfortune inevitably clings to it, for barely once in a thousand years does there arise among the people a man who is a king not merely in name, but in reality. If this disproportion between semblance and reality has never perhaps been so abruptly marked as in Pompeius, the fact may well excite grave reflection that it was precisely he who in a certain sense opened the series of Roman monarchs.

Arrival of Caesar

When Caesar following the track of Pompeius arrived in the roadstead of Alexandria, all was already over. With deep agitation he turned away when the murderer brought to his ship the head of the man, who had been his son-in-law and for long years his colleague in rule, and to get whom alive into his power he had come to Egypt. The dagger of the rash assassin precluded an answer to the question, how Caesar would have dealt with the captive Pompeius; but, while the humane sympathy, which still found a place in the great soul of Caesar side by side with ambition, enjoined that he should spare his former friend, his interest also required that he should annihilate Pompeius otherwise than by the executioner. Pompeius had been for twenty years the acknowledged ruler of Rome; a dominion so deeply rooted does not perish with the ruler's death. The death of Pompeius did not break up the Pompeians, but gave to them instead of an aged, incapable, and worn-out chief in his sons Gnaeus and Sextus two leaders, both of whom were young and active and the second was a man of decided capacity. To the

newly-founded hereditary monarchy hereditary pretendership attached itself at once like a parasite, and it was very doubtful whether by this change of persons Caesar did not lose more than he gained.

Caesar Regulates Egypt

Meanwhile in Egypt Caesar had now nothing further to do, and the Romans and the Egyptians expected that he would immediately set sail and apply himself to the subjugation of Africa, and to the huge task of organization which awaited him after the victory. But Caesar faithful to his custom—wherever he found himself in the wide empire—of finally regulating matters at once and in person, and firmly convinced that no resistance was to be expected either from the Roman garrison or from the court, being, moreover, in urgent pecuniary embarrassment, landed in Alexandria with the two amalgamated legions accompanying him to the number of 3200 men and 800 Celtic and German cavalry, took up his quarters in the royal palace, and proceeded to collect the necessary sums of money and to regulate the Egyptian succession, without allowing himself to be disturbed by the saucy remark of Pothinus that Caesar should not for such petty matters neglect his own so important affairs. In his dealing with the Egyptians he was just and even indulgent. Although the aid which they had given to Pompeius justified the imposing of a war contribution, the exhausted land was spared from this; and, while the arrears of the sum stipulated for in 695(40) and since then only about half paid were remitted, there was required merely a final payment of 10,000,000 -denarii- (400,000 pounds). The belligerent brother and sister were enjoined immediately to suspend hostilities, and were invited to have their dispute investigated and decided before the arbiter. They submitted; the royal boy was already in the palace and Cleopatra also presented herself there. Caesar adjudged the kingdom of Egypt, agreeably to the testament of Auletes, to the intermarried brother and sister Cleopatra and Ptolemaeus Dionysus, and further gave

unasked the kingdom of Cyprus—cancelling the earlier act of annexation(41)— as the appanage of the second-born of Egypt to the younger children of Auletes, Arsinoe and Ptolemaeus the younger.

Insurrection in Alexandria

But a storm was secretly preparing. Alexandria was a cosmopolitan city as well as Rome, hardly inferior to the Italian capital in the number of its inhabitants, far superior to it in stirring commercial spirit, in skill of handicraft, in taste for science and art: in the citizens there was a lively sense of their own national importance, and, if there was no political sentiment, there was at any rate a turbulent spirit, which induced them to indulge in their street riots as regularly and as heartily as the Parisians of the present day: one may conceive their feelings, when they saw the Roman general ruling in the palace of the Lagids and their kings accepting the award of his tribunal. Pothinus and the boy-king, both as may be conceived very dissatisfied at once with the peremptory requisition of old debts and with the intervention in the throne-dispute which could only issue, as it did, in favour of Cleopatra, sent—in order to pacify the Roman demands—the treasures of the temples and the gold plate of the king with intentional ostentation to be melted at the mint; with increasing indignation the Egyptians—who were pious even to superstition, and who rejoiced in the world-renowned magnificence of their court as if it were a possession of their own—beheld the bare walls of their temples and the wooden cups on the table of their king. The Roman army of occupation also, which had been essentially denationalized by its long abode in Egypt and the many intermarriages between the soldiers and Egyptian women, and which moreover numbered a multitude of the old soldiers of Pompeius and runaway Italian criminals and slaves in its ranks, was indignant at Caesar, by whose orders it had been obliged to suspend its action on the Syrian frontier, and at his handful of haughty legionaries. The tumult even at the

landing, when the multitude saw the Roman axes carried into the old palace, and the numerous cases in which his soldiers were assassinated in the city, had taught Caesar the immense danger in which he was placed with his small force in presence of that exasperated multitude. But it was difficult to return on account of the north-west winds prevailing at this season of the year, and the attempt at embarkation might easily become a signal for the outbreak of the insurrection; besides, it was not the nature of Caesar to take his departure without having accomplished his work. He accordingly ordered up at once reinforcements from Asia, and meanwhile, till these arrived, made a show of the utmost self-possession. Never was there greater gaiety in his camp than during this rest at Alexandria; and while the beautiful and clever Cleopatra was not sparing of her charms in general and least of all towards her judge, Caesar also appeared among all his victories to value most those won over beautiful women. It was a merry prelude to graver scenes. Under the leadership of Achilles and, as was afterwards proved, by the secret orders of the king and his guardian, the Roman army of occupation stationed in Egypt appeared unexpectedly in Alexandria; and as soon as the citizens saw that it had come to attack Caesar, they made common cause with the soldiers.

Caesar in Alexandria

With a presence of mind, which in some measure justifies his earlier foolhardiness, Caesar hastily collected his scattered men; seized the persons of the king and his ministers; entrenched himself in the royal residence and the adjoining theatre; and gave orders, as there was no time to place in safety the war-fleet stationed in the principal harbour immediately in front of the theatre, that it should be set on fire and that Pharos, the island with the light-tower commanding the harbour, should be occupied by means of boats. Thus at least a restricted position for defence was secured, and the way was kept open to procure supplies and reinforcements. At the same

time orders were issued to the commandant of Asia Minor as well as to the nearest subject countries, the Syrians and Nabataeans, the Cretans and the Rhodians, to send troops and ships in all haste to Egypt. The insurrection at the head of which the princess Arsinoe and her confidant the eunuch Ganymedes had placed themselves, meanwhile had free course in all Egypt and in the greater part of the capital. In the streets of the latter there was daily fighting, but without success either on the part of Caesar in gaining freer scope and breaking through to the fresh water lake of Marea which lay behind the town, where he could have provided himself with water and forage, or on the part of the Alexandrians in acquiring superiority over the besieged and depriving them of all drinking water; for, when the Nile canals in Caesar's part of the town had been spoiled by the introduction of salt water, drinkable water was unexpectedly found in wells dug on the beach.

As Caesar was not to be overcome from the landward side, the exertions of the besiegers were directed to destroy his fleet and cut him off from the sea by which supplies reached him. The island with the lighthouse and the mole by which this was connected with the mainland divided the harbour into a western and an eastern half, which were in communication with each other through two arched openings in the mole. Caesar commanded the island and the east harbour, while the mole and the west harbour were in possession of the citizens; and, as the Alexandrian fleet was burnt, his vessels sailed in and out without hindrance. The Alexandrians, after having vainly attempted to introduce fire-ships from the western into the eastern harbour, equipped with the remnant of their arsenal a small squadron and with this blocked up the way of Caesar's vessels, when these were towing in a fleet of transports with a legion that had arrived from Asia Minor; but the excellent Rhodian mariners of Caesar mastered the enemy. Not long afterwards, however, the citizens captured the lighthouse-island,(42) and from that point totally closed the narrow and rocky mouth of the east harbour for larger ships; so that Caesar's fleet was compelled to take its

station in the open roads before the east harbour, and his communication with the sea hung only on a weak thread. Caesar's fleet, attacked in that roadstead repeatedly by the superior naval force of the enemy, could neither shun the unequal strife, since the loss of the lighthouse-island closed the inner harbour against it, nor yet withdraw, for the loss of the roadstead would have debarred Caesar wholly from the sea. Though the brave legionaries, supported by the dexterity of the Rhodian sailors, had always hitherto decided these conflicts in favour of the Romans, the Alexandrians renewed and augmented their naval armaments with unwearied perseverance; the besieged had to fight as often as it pleased the besiegers, and if the former should be on a single occasion vanquished, Caesar would be totally hemmed in and probably lost.

It was absolutely necessary to make an attempt to recover the lighthouse island. The double attack, which was made by boats from the side of the harbour and by the war-vessels from the seaboard, in reality brought not only the island but also the lower part of the mole into Caesar's power; it was only at the second arch- opening of the mole that Caesar ordered the attack to be stopped, and the mole to be there closed towards the city by a transverse wall. But while a violent conflict arose here around the entrenchers, the Roman troops left the lower part of the mole adjoining the island bare of defenders; a division of Egyptians landed there unexpectedly, attacked in the rear the Roman soldiers and sailors crowded together on the mole at the transverse wall, and drove the whole mass in wild confusion into the sea. A part were taken on board by the Roman ships; the most were drowned. Some 400 soldiers and a still greater number of men belonging to the fleet were sacrificed on this day; the general himself, who had shared the fate of his men, had been obliged to seek refuge, in his ship, and when this sank from having been overloaded with men, he had to save himself by swimming to another. But, severe as was the loss suffered, it was amply

compensated by the recovery of the lighthouse-island, which along with the mole as far as the first arch-opening remained in the hands of Caesar.

Relieving Army from Asia Minor

At length the longed-for relief arrived. Mithradates of Pergamus, an able warrior of the school of Mithradates Eupator, whose natural son he claimed to be, brought up by land from Syria a motley army— the Ityraeans of the prince of the Libanus,(43) the Bedouins of Jamblichus, son of Sampsicceramus,(44) the Jews under the minister Antipater, and the contingents generally of the petty chiefs and communities of Cilicia and Syria. From Pelusium, which Mithradates had the fortune to occupy on the day of his arrival, he took the great road towards Memphis with the view of avoiding the intersected ground of the Delta and crossing the Nile before its division; during which movement his troops received manifold support from the Jewish peasants who were settled in peculiar numbers in this part of Egypt. The Egyptians, with the young king Ptolemaeus now at their head, whom Caesar had released to his people in the vain hope of allaying the insurrection by his means, despatched an army to the Nile, to detain Mithradates on its farther bank. This army fell in with the enemy even beyond Memphis at the so-called Jews'-camp, between Onion and Heliopolis; nevertheless Mithradates, trained in the Roman fashion of manoeuvring and encamping, amidst successful conflicts gained the opposite bank at Memphis. Caesar, on the other hand, as soon as he obtained news of the arrival of the relieving army, conveyed a part of his troops in ships to the end of the lake of Marea to the west of Alexandria, and marched round this lake and down the Nile to meet Mithradates advancing up the river.

Battle at the Nile

The junction took place without the enemy attempting to hinder it. Caesar then marched into the Delta, whither the king had retreated, overthrew, notwithstanding the deeply cut canal in their front, the Egyptian vanguard at the first onset, and immediately stormed the Egyptian camp itself. It lay at the foot of a rising ground between the Nile—from which only a narrow path separated it— and marshes difficult of access. Caesar caused the camp to be assailed simultaneously from the front and from the flank on the path along the Nile; and during this assault ordered a third detachment to ascend unseen the heights behind the camp. The victory was complete the camp was taken, and those of the Egyptians who did not fall beneath the sword of the enemy were drowned in the attempt to escape to the fleet on the Nile. With one of the boats, which sank overladen with men, the young king also disappeared in the waters of his native stream.

Pacificatin of Alexandria

Immediately after the battle Caesar advanced at the head of his cavalry from the land-side straight into the portion of the capital occupied by the Egyptians. In mourning attire, with the images of their gods in their hands, the enemy received him and sued for peace; and his troops, when they saw him return as victor from the side opposite to that by which he had set forth, welcomed him with boundless joy. The fate of the town, which had ventured to thwart the plans of the master of the world and had brought him within a hair's-breadth of destruction, lay in Caesar's hands; but he was too much of a ruler to be sensitive, and dealt with the Alexandrians as with the Massiliots. Caesar—pointing to their city severely devastated and deprived of its granaries, of its world-renowned library, and of other important public buildings on occasion of the burning of the fleet—exhorted the inhabitants in future earnestly to cultivate the arts of peace alone, and to heal the wounds which they had inflicted on themselves; for the rest, he contented himself with granting to the Jews settled in Alexandria the same rights

which the Greek population of the city enjoyed, and with placing in Alexandria, instead of the previous Roman army of occupation which nominally at least obeyed the kings of Egypt, a formal Roman garrison—two of the legions besieged there, and a third which afterwards arrived from Syria—under a commander nominated by himself. For this position of trust a man was purposely selected, whose birth made it impossible for him to abuse it—Rufio, an able soldier, but the son of a freedman. Cleopatra and her younger brother Ptolemaeus obtained the sovereignty of Egypt under the supremacy of Rome; the princess Arsinoe was carried off to Italy, that she might not serve once more as a pretext for insurrections to the Egyptians, who were after the Oriental fashion quite as much devoted to their dynasty as they were indifferent towards the individual dynasts; Cyprus became again a part of the Roman province of Cilicia.

Course of Things during Caesar's Absence in Alexandria

This Alexandrian insurrection, insignificant as it was in itself and slight as was its intrinsic connection with the events of importance in the world's history which took place at the same time in the Roman state, had nevertheless so far a momentous influence on them that it compelled the man, who was all in all and without whom nothing could be despatched and nothing could be solved, to leave his proper tasks in abeyance from October 706 up to March 707 in order to fight along with Jews and Bedouins against a city rabble. The consequences of personal rule began to make themselves felt. They had the monarchy; but the wildest confusion prevailed everywhere, and the monarch was absent. The Caesarians were for the moment, just like the Pompeians, without superintendence; the ability of the individual officers and, above all, accident decided matters everywhere.

Insubordination of Pharnaces

In Asia Minor there was, at the time of Caesar's departure for Egypt, no enemy. But Caesar's lieutenant there, the able Gnaeus Domitius Calvinus, had received orders to take away again from king Pharnaces what he had without instructions wrested from the allies of Pompeius; and, as Pharnaces, an obstinate and arrogant despot like his father, perseveringly refused to evacuate Lesser Armenia, no course remained but to march against him. Calvinus had been obliged to despatch to Egypt two out of the three legions left behind with him and formed out of the Pharsalian prisoners of war; he filled up the gap by one legion hastily gathered from the Romans domiciled in Pontus and two legions of Deiotarus exercised after the Roman manner, and advanced into Lesser Armenia. But the Bosporan army, tried in numerous conflicts with the dwellers on the Black Sea, showed itself more efficient than his own.

Calvinus Defeated at Nicopolis Victory of Caesar at Zela

In an engagement at Nicopolis the Pontic levy of Calvinus was cut to pieces and the Galatian legions ran off; only the one old legion of the Romans fought its way through with moderate loss. Instead of conquering Lesser Armenia, Calvinus could not even prevent Pharnaces from repossessing himself of his Pontic "hereditary states," and pouring forth the whole vials of his horrible sultanic caprices on their inhabitants, especially the unhappy Amisenes (winter of 706-707). When Caesar in person arrived in Asia Minor and intimated to him that the service which Pharnaces had rendered to him personally by having granted no help to Pompeius could not be taken into account against the injury inflicted on the empire, and that before any negotiation he must evacuate the province of Pontus and send back the property which he had pillaged, he declared himself doubtless ready to submit; nevertheless, well knowing how good reason Caesar had for hastening to the west, he made no serious preparations for the

evacuation. He did not know that Caesar finished whatever he took in hand. Without negotiating further, Caesar took with him the one legion which he brought from Alexandria and the troops of Calvinus and Deiotarus, and advanced against the camp of Pharnaces at Ziela. When the Bosporans saw him approach, they boldly crossed the deep mountain-ravine which covered their front, and charged the Romans up the hill. Caesar's soldiers were still occupied in pitching their camp, and the ranks wavered for a moment; but the veterans accustomed to war rapidly rallied and set the example for a general attack and for a complete victory (2 Aug. 707). In five days the campaign was ended—an invaluable piece of good fortune at this time, when every hour was precious.

Regulation of Asia Minor

Caesar entrusted the pursuit of the king, who had gone home by way of Sinope to Pharnaces' illegitimate brother, the brave Mithradates of Pergamus, who as a reward for the services rendered by him in Egypt received the crown of the Bosporan kingdom in room of Pharnaces. In other respects the affairs of Syria and Asia Minor were peacefully settled; Caesar's own allies were richly rewarded, those of Pompeius were in general dismissed with fines or reprimands. Deiotarus alone, the most powerful of the clients of Pompeius, was again confined to his narrow hereditary domain, the canton of the Tolistobogii. In his stead Ariobarzanes king of Cappadocia was invested with Lesser Armenia, and the tetrarchy of the Trocmi usurped by Deiotarus was conferred on the new king of the Bosporus, who was descended by the maternal side from one of the Galatian princely houses as by the paternal from that of Pontus.

War by Land and Sea in Illyria

Defeat of Gabinius

Naval Victory at Tauris

In Illyria also, while Caesar was in Egypt, incidents of a very grave nature had occurred. The Dalmatian coast had been for centuries a sore blemish on the Roman rule, and its inhabitants had been at open feud with Caesar since the conflicts around Dyrrhachium; while the interior also since the time of the Thessalian war, swarmed with dispersed Pompeians. Quintus Cornificius had however, with the legions that followed him from Italy, kept both the natives and the refugees in check and had at the same time sufficiently met the difficult task of provisioning the troops in these rugged districts. Even when the able Marcus Octavius, the victor of Curicta,(45) appeared with a part of the Pompeian fleet in these waters to wage war there against Caesar by sea and land, Cornificius not only knew how to maintain himself, resting for support on the ships and the harbour of the Iadestini (Zara), but in his turn also sustained several successful engagements at sea with the fleet of his antagonist. But when the new governor of Illyria, the Aulus Gabinius recalled by Caesar from exile,(46) arrived by the landward route in Illyria in the winter of 706-707 with fifteen cohorts and 3000 horse, the system of warfare changed. Instead of confining himself like his predecessor to war on a small scale, the bold active man undertook at once, in spite of the inclement season, an expedition with his whole force to the mountains. But the unfavourable weather, the difficulty of providing supplies, and the brave resistance of the Dalmatians, swept away the army; Gabinius had to commence his retreat, was attacked in the course of it and disgracefully defeated by the Dalmatians, and with the feeble remains of his fine army had difficulty in reaching Salonae, where he soon afterwards died. Most of the Illyrian coast towns thereupon surrendered to the fleet of Octavius; those that adhered to Caesar, such as Salonae and Epidaurus (Ragusa vecchia), were so hard pressed by the fleet at sea and by the barbarians on land, that the surrender and capitulation of the remains of the army enclosed in Salonae seemed not far distant. Then the commandant of the depot at Brundisium, the energetic

Publius Vatinius, in the absence of ships of war caused common boats to be provided with beaks and manned with the soldiers dismissed from the hospitals, and with this extemporized war-fleet gave battle to the far superior fleet of Octavius at the island of Tauris (Torcola between Lesina and Curzola)— a battle in which, as in so many cases, the bravery of the leader and of the marines compensated for the deficiencies of the vessels, and the Caesarians achieved a brilliant victory. Marcus Octavius left these waters and proceeded to Africa (spring of 707); the Dalmatians no doubt continued their resistance for years with great obstinacy, but it was nothing beyond a local mountain-warfare. When Caesar returned from Egypt, his resolute adjutant had already got rid of the danger that was imminent in Illyria.

Reorganization of the Coalition in Africa

All the more serious was the position of things in Africa, where the constitutional party had from the outset of the civil war ruled absolutely and had continually augmented their power. Down to the battle of Pharsalus king Juba had, properly speaking, borne rule there; he had vanquished Curio, and his flying horsemen and his numberless archers were the main strength of the army; the Pompeian governor Varus played by his side so subordinate a part that he even had to deliver those soldiers of Curio, who had surrendered to him, over to the king, and had to look on while they were executed or carried away into the interior of Numidia. After the battle of Pharsalus a change took place. With the exception of Pompeius himself, no man of note among the defeated party thought of flight to the Parthians. As little did they attempt to hold the sea with their united resources; the warfare waged by Marcus Octavius in the Illyrian waters was isolated, and was without permanent success. The great majority of the republicans as of the Pompeians betook themselves to Africa, where alone an honourable and constitutional warfare might still be waged against the usurper. There the

fragments of the army scattered at Pharsalus, the troops that had garrisoned Dyrrhachium, Corcyra, and the Peloponnesus, the remains of the Illyrian fleet, gradually congregated; there the second commander-in-chief Metellus Scipio, the two sons of Pompeius, Gnaeus and Sextus, the political leader of the republicans Marcus Cato, the able officers Labienus, Afranius, Petreius, Octavius and others met. If the resources of the emigrants had diminished, their fanaticism had, if possible, even increased. Not only did they continue to murder their prisoners and even the officers of Caesar under flag of truce, but king Juba, in whom the exasperation of the partisan mingled with the fury of the half-barbarous African, laid down the maxim that in every community suspected of sympathizing with the enemy the burgesses ought to be extirpated and the town burnt down, and even practically carried out this theory against some townships, such as the unfortunate Vaga near Hadrumetum. In fact it was solely owing to the energetic intervention of Cato that the capital of the province itself the flourishing Utica—which, just like Carthage formerly, had been long regarded with a jealous eye by the Numidian kings— did not experience the same treatment from Juba, and that measures of precaution merely were taken against its citizens, who certainly were not unjustly accused of leaning towards Caesar.

As neither Caesar himself nor any of his lieutenants undertook the smallest movement against Africa, the coalition had full time to acquire political and military reorganization there. First of all, it was necessary to fill up anew the place of commander-in-chief vacant by the death of Pompeius. King Juba was not disinclined still to maintain the position which he had held in Africa up to the battle of Pharsalus; indeed he bore himself no longer as a client of the Romans but as an equal ally or even as a protector, and took it upon him, for example, to coin Roman silver money with his name and device; nay, he even raised a claim to be the sole wearer of purple in the camp, and suggested to the Roman commanders that they should lay aside their purple mantle of office. Further Metellus Scipio

demanded the supreme command for himself, because Pompeius had recognized him in the Thessalian campaign as on a footing of equality, more from the consideration that he was his son-in-law than on military grounds. The like demand was raised by Varus as the governor—self-nominated, it is true—of Africa, seeing that the war was to be waged in his province. Lastly the army desired for its leader the *propraetor* Marcus Cato. Obviously it was right. Cato was the only man who possessed the requisite devotedness, energy, and authority for the difficult office; if he was no military man, it was infinitely better to appoint as commander-in-chief a non-military man who understood how to listen to reason and make his subordinates act, than an officer of untried capacity like Varus, or even one of tried incapacity like Metellus Scipio. But the decision fell at length on this same Scipio, and it was Cato himself who mainly determined that decision. He did so, not because he felt himself unequal to such a task, or because his vanity found its account rather in declining than in accepting; still less because he loved or respected Scipio, with whom he on the contrary was personally at variance, and who with his notorious inefficiency had attained a certain importance merely in virtue of his position as father-in-law to Pompeius; but simply and solely because his obstinate legal formalism chose rather to let the republic go to ruin in due course of law than to save it in an irregular way. When after the battle of Pharsalus he met with Marcus Cicero at Corcyra, he had offered to hand over the command in Corcyra to the latter—who was still from the time of his Cilician administration invested with the rank of general—as the officer of higher standing according to the letter of the law, and by this readiness had driven the unfortunate advocate, who now cursed a thousand times his laurels from the Arnanus, almost to despair; but he had at the same time astonished all men of any tolerable discernment. The same principles were applied now, when something more was at stake; Cato weighed the question to whom the place of commander-in-chief belonged, as if the matter had

reference to a field at Tusculum, and adjudged it to Scipio. By this sentence his own candidature and that of Varus were set aside. But he it was also, and he alone, who confronted with energy the claims of king Juba, and made him feel that the Roman nobility came to him not suppliant, as to the great-prince of the Parthians, with a view to ask aid at the hands of a protector, but as entitled to command and require aid from a subject. In the present state of the Roman forces in Africa, Juba could not avoid lowering his claims to some extent; although he still carried the point with the weak Scipio, that the pay of his troops should be charged on the Roman treasury and the cession of the province of Africa should be assured to him in the event of victory.

By the side of the new general-in-chief the senate of the "three hundred" again emerged. It established its seat in Utica, and replenished its thinned ranks by the admission of the most esteemed and the wealthiest men of the equestrian order.

The warlike preparations were pushed forward, chiefly through the zeal of Cato, with the greatest energy, and every man capable of arms, even the freedman and Libyan, was enrolled in the legions; by which course so many hands were withdrawn from agriculture that a great part of the fields remained uncultivated, but an imposing result was certainly attained. The heavy infantry numbered fourteen legions, of which two were already raised by Varus, eight others were formed partly from the refugees, partly from the conscripts in the province, and four were legions of king Juba armed in the Roman manner. The heavy cavalry, consisting of the Celts and Germans who arrived with Labienus and sundry others incorporated in their ranks, was, apart from Juba's squadron of cavalry equipped in the Roman style, 1600 strong. The light troops consisted of innumerable masses of Numidians riding without bridle or rein and armed merely with javelins, of a number of mounted bowmen, and a large host of archers on foot. To these

fell to be added Juba's 120 elephants, and the fleet of 55 sail commanded by Publius Varus and Marcus Octavius. The urgent want of money was in some measure remedied by a self-taxation on the part of the senate, which was the more productive as the richest African capitalists had been induced to enter it. Corn and other supplies were accumulated in immense quantities in the fortresses capable of defence; at the same time the stores were as far as possible removed from the open townships. The absence of Caesar, the troublesome temper of his legions, the ferment in Spain and Italy gradually raised men's spirits, and the recollection of the Pharsalian defeat began to give way to fresh hopes of victory.

The time lost by Caesar in Egypt nowhere revenged itself more severely than here. Had he proceeded to Africa immediately after the death of Pompeius, he would have found there a weak, disorganized, and frightened army and utter anarchy among the leaders; whereas there was now in Africa, owing more especially to Cato's energy, an army equal in number to that defeated at Pharsalus, under leaders of note, and under a regulated superintendence.

Movements in Spain

A peculiar evil star seemed altogether to preside over this African expedition of Caesar. He had, even before his embarkation for Egypt, arranged in Spain and Italy various measures preliminary and preparatory to the African war; but out of all there had sprung nothing but mischief. From Spain, according to Caesar's arrangement, the governor of the southern province Quintus Cassius Longinus was to cross with four legions to Africa, to be joined there by Bogud king of West Mauretania,(47) and to advance with him towards Numidia and Africa. But that army destined for Africa included in it a number of native Spaniards and two whole legions formerly Pompeian; Pompeian sympathies prevailed in the army as in the province,

and the unskilful and tyrannical behaviour of the Caesarian governor was not fitted to allay them. A formal revolt took place; troops and towns took part for or against the governor; already those who had risen against the lieutenant of Caesar were on the point of openly displaying the banner of Pompeius; already had Pompeius' elder son Gnaeus embarked from Africa for Spain to take advantage of this favourable turn, when the disavowal of the governor by the most respectable Caesarians themselves and the interference of the commander of the northern province suppressed just in right time the insurrection. Gnaeus Pompeius, who had lost time on the way with a vain attempt to establish himself in Mauretania, came too late; Gaius Trebonius, whom Caesar after his return from the east sent to Spain to relieve Cassius (autumn of 707), met everywhere with absolute obedience. But of course amidst these blunders nothing was done from Spain to disturb the organization of the republicans in Africa; indeed in consequence of the complications with Longinus, Bogud king of West Mauretania, who was on Caesar's side and might at least have put some obstacles in the way of king Juba, had been called away with his troops to Spain.

Military Revolt in Campania

Still more critical were the occurrences among the troops whom Caesar had caused to be collected in southern Italy, in order to his embarkation with them for Africa. They were for the most part the old legions, which had founded Caesar's throne in Gaul, Spain, and Thessaly. The spirit of these troops had not been improved by victories, and had been utterly disorganized by long repose in Lower Italy. The almost superhuman demands which the general made on them, and the effects of which were only too clearly apparent in their fearfully thinned ranks, left behind even in these men of iron a leaven of secret rancour which required only time and quiet to set their minds in a ferment. The only man who had influence over them, had been absent and almost unheard-of for a year; while the officers

placed over them were far more afraid of the soldiers than the soldiers of them, and overlooked in the conquerors of the world every outrage against those that gave them quarters, and every breach of discipline. When the orders to embark for Sicily arrived, and the soldier was to exchange the luxurious ease of Campania for a third campaign certainly not inferior to those of Spain and Thessaly in point of hardship, the reins, which had been too long relaxed and were too suddenly tightened, snapt asunder. The legions refused to obey till the promised presents were paid to them, scornfully repulsed the officers sent by Caesar, and even threw stones at them. An attempt to extinguish the incipient revolt by increasing the sums promised not only had no success, but the soldiers set out in masses to extort the fulfilment of the promises from the general in the capital. Several officers, who attempted to restrain the mutinous bands on the way, were slain. It was a formidable danger. Caesar ordered the few soldiers who were in the city to occupy the gates, with the view of warding off the justly apprehended pillage at least at the first onset, and suddenly appeared among the furious bands demanding to know what they wanted. They exclaimed: "discharge." In a moment the request was granted. Respecting the presents, Caesar added, which he had promised to his soldiers at his triumph, as well as respecting the lands which he had not promised to them but had destined for them, they might apply to him on the day when he and the other soldiers should triumph; in the triumph itself they could not of course participate, as having been previously discharged. The masses were not prepared for things taking this turn; convinced that Caesar could not do without them for the African campaign, they had demanded their discharge only in order that, if it were refused, they might annex their own conditions to their service. Half unsettled in their belief as to their own indispensableness; too awkward to return to their object, and to bring the negotiation which had missed its course back to the right channel; ashamed, as men, by the fidelity with which the Imperator kept his word even to soldiers who had forgotten

their allegiance, and by his generosity which even now granted far more than he had ever promised; deeply affected, as soldiers, when the general presented to them the prospect of their being necessarily mere civilian spectators of the triumph of their comrades, and when he called them no longer "comrades" but "burgesses,"—by this very form of address, which from his mouth sounded so strangely, destroying as it were with one blow the whole pride of their past soldierly career; and, besides all this, under the spell of the man whose presence had an irresistible power—the soldiers stood for a while mute and lingering, till from all sides a cry arose that the general would once more receive them into favour and again permit them to be called Caesar's soldiers. Caesar, after having allowed himself to be sufficiently entreated, granted the permission; but the ringleaders in this mutiny had a third cut off from their triumphal presents. History knows no greater psychological masterpiece, and none that was more completely successful.

Caesar Proceeds to Africa

Conflict at Ruspina

This mutiny operated injuriously on the African campaign, at least in so far as it considerably delayed the commencement of it. When Caesar arrived at the port of Lilybaeum destined for the embarkation the ten legions intended for Africa were far from being fully assembled there, and it was the experienced troops that were farthest behind. Hardly however had six legions, of which five were newly formed, arrived there and the necessary war-vessels and transports come forward, when Caesar put to sea with them (25 Dec. 707 of the uncorrected, about 8 Oct. of the Julian, calendar). The enemy's fleet, which on account of the prevailing equinoctial gales was drawn up on the beach at the island Aegimurus in front of the bay of Carthage, did not oppose the passage; but, the same storms scattered the fleet of Caesar in all directions, and, when he availed himself of the

opportunity of landing not far from Hadrumentum (Susa), he could not disembark more than some 3000 men, mostly recruits, and 150 horsemen. His attempt to capture Hadrumentum strongly occupied by the enemy miscarried; but Caesar possessed himself of the two seaports not far distant from each other, Ruspina (Monastir near Susa) and Little Leptis. Here he entrenched himself; but his position was so insecure, that he kept his cavalry in the ships and the ships ready for sea and provided with a supply of water, in order to re-embark at any moment if he should be attacked by a superior force. This however was not necessary, for just at the right time the ships that had been driven out of their course arrived (3 Jan. 708). On the very following day Caesar, whose army in consequence of the arrangements made by the Pompeians suffered from want of corn, undertook with three legions an expedition into the interior of the country, but was attacked on the march not far from Ruspina by the corps which Labienus had brought up to dislodge Caesar from the coast. As Labienus had exclusively cavalry and archers, and Caesar almost nothing but infantry of the line, the legions were quickly surrounded and exposed to the missiles of the enemy, without being able to retaliate or to attack with success. No doubt the deploying of the entire line relieved once more the flanks, and spirited charges saved the honour of their arms; but a retreat was unavoidable, and had Ruspina not been so near, the Moorish javelin would perhaps have accomplished the same result here as the Parthian bow at Carrhae.

Caesar's Position at Ruspina

Caesar, whom this day had fully convinced of the difficulty of the impending war, would not again expose his soldiers untried and discouraged by the new mode of fighting to any such attack, but awaited the arrival of his veteran legions. The interval was employed in providing some sort of compensation against the crushing superiority of the enemy in the weapons of distant warfare. The incorporation of the suitable men from the

fleet as light horsemen or archers in the land-army could not be of much avail. The diversions which Caesar suggested were somewhat more effectual. He succeeded in bringing into arms against Juba the Gaetulian pastoral tribes wandering on the southern slope of the great Atlas towards the Sahara; for the blows of the Marian and Sullan period had reached even to them, and their indignation against Pompeius, who had at that time made them subordinate to the Numidian kings,(48) rendered them from the outset favourably inclined to the heir of the mighty Marius of whose Jugurthine campaign they had still a lively recollection. The Mauretanian kings, Bogud in Tingis and Bocchus in Iol, were Juba's natural rivals and to a certain extent long since in alliance with Caesar. Further, there still roamed in the border-region between the kingdoms of Juba and Bocchus the last of the Catilinarians, that Publius Sittius of Nuceria,(49) who eighteen years before had become converted from a bankrupt Italian merchant into a Mauretanian leader of free bands, and since that time had procured for himself a name and a body of retainers amidst the Libyan quarrels. Bocchus and Sittius united fell on the Numidian land, and occupied the important town of Cirta; and their attack, as well as that of the Gaetulians, compelled king Juba to send a portion of his troops to his southern and western frontiers.

Caesar's situation, however, continued sufficiently unpleasant. His army was crowded together within a space of six square miles; though the fleet conveyed corn, the want of forage was as much felt by Caesar's cavalry as by those of Pompeius before Dyrrhachium. The light troops of the enemy remained notwithstanding all the exertions of Caesar so immeasurably superior to his, that it seemed almost impossible to carry offensive operations into the interior even with veterans. If Scipio retired and abandoned the coast towns, he might perhaps achieve a victory like those which the vizier of Orodes had won over Crassus and Juba over Curio, and he could at least endlessly protract the war. The simplest consideration suggested this plan of campaign; even Cato, although far from a strategist,

counselled its adoption, and offered at the same time to cross with a corps to Italy and to call the republicans there to arms— which, amidst the utter confusion in that quarter, might very well meet with success. But Cato could only advise, not command; Scipio the commander-in-chief decided that the war should be carried on in the region of the coast. This was a blunder, not merely inasmuch as they thereby dropped a plan of war promising a sure result, but also inasmuch as the region to which they transferred the war was in dangerous agitation, and a good part of the army which they opposed to Caesar was likewise in a troublesome temper. The fearfully strict levy, the carrying off of the supplies, the devastating of the smaller townships, the feeling in general that they were being sacrificed for a cause which from the outset was foreign to them and was already lost, had exasperated the native population against the Roman republicans fighting out their last struggle of despair on African soil; and the terrorist proceedings of the latter against all communities that were but suspected of indifference,(50) had raised this exasperation to the most fearful hatred. The African towns declared, wherever they could venture to do so, for Caesar; among the Gaetulians and the Libyans, who served in numbers among the light troops and even in the legions, desertion was spreading. But Scipio with all the obstinacy characteristic of folly persevered in his plan, marched with all his force from Utica to appear before the towns of Ruspina and Little Leptis occupied by Caesar, furnished Hadrumetum to the north and Thapsus to the south (on the promontory Ras Dimas) with strong garrisons, and in concert with Juba, who likewise appeared before Ruspina with all his troops not required by the defence of the frontier, offered battle repeatedly to the enemy. But Caesar was resolved to wait for his veteran legions. As these one after another arrived and appeared on the scene of strife, Scipio and Juba lost the desire to risk a pitched battle, and Caesar had no means of compelling them to fight owing to their extraordinary superiority in light cavalry. Nearly two months passed away in marches and skirmishes in the

neighbourhood of Ruspina and Thapsus, which chiefly had relation to the finding out of the concealed store-pits (silos) common in the country, and to the extension of posts. Caesar, compelled by the enemy's horsemen to keep as much as possible to the heights or even to cover his flanks by entrenched lines, yet accustomed his soldiers gradually during this laborious and apparently endless warfare to the foreign mode of fighting. Friend and foe hardly recognized the rapid general in the cautious master of fence who trained his men carefully and not unfrequently in person; and they became almost puzzled by the masterly skill which displayed itself as conspicuously in delay as in promptitude of action.

Battle at Thapsus

At last Caesar, after being joined by his last reinforcements, made a lateral movement towards Thapsus. Scipio had, as we have said, strongly garrisoned this town, and thereby committed the blunder of presenting to his opponent an object of attack easy to be seized; to this first error he soon added the second still less excusable blunder of now for the rescue of Thapsus giving the battle, which Caesar had wished and Scipio had hitherto rightly refused, on ground which placed the decision in the hands of the infantry of the line. Immediately along the shore, opposite to Caesar's camp, the legions of Scipio and Juba appeared, the fore ranks ready for fighting, the hinder ranks occupied in forming an entrenched camp; at the same time the garrison of Thapsus prepared for a sally. Caesar's camp-guard sufficed to repulse the latter. His legions, accustomed to war, already forming a correct estimate of the enemy from the want of precision in their mode of array and their ill-closed ranks, compelled—while yet the entrenching was going forward on that side, and before even the general gave the signal— a trumpeter to sound for the attack, and advanced along the whole line headed by Caesar himself, who, when he saw his men advance without waiting for his orders, galloped forward to lead them against the enemy. The right

wing, in advance of the other divisions, frightened the line of elephants opposed to it—this was the last great battle in which these animals were employed— by throwing bullets and arrows, so that they wheeled round on their own ranks. The covering force was cut down, the left wing of the enemy was broken, and the whole line was overthrown. The defeat was the more destructive, as the new camp of the beaten army was not yet ready, and the old one was at a considerable distance; both were successively captured almost without resistance. The mass of the defeated army threw away their arms and sued for quarter; but Caesar's soldiers were no longer the same who had readily refrained from battle before Ilerda and honourably spared the defenceless at Pharsalus. The habit of civil war and the rancour left behind by the mutiny asserted their power in a terrible manner on the battlefield of Thapsus. If the hydra with which they fought always put forth new energies, if the army was hurried from Italy to Spain, from Spain to Macedonia, from Macedonia to Africa, and if the repose ever more eagerly longed for never came, the soldier sought, and not wholly without cause, the reason of this state of things in the unseasonable clemency of Caesar. He had sworn to retrieve the general's neglect, and remained deaf to the entreaties of his disarmed fellow-citizens as well as to the commands of Caesar and the superior officers. The fifty thousand corpses that covered the battle-field of Thapsus, among whom were several Caesarian officers known as secret opponents of the new monarchy, and therefore cut down on this occasion by their own men, showed how the soldier procures for himself repose. The victorious army on the other hand numbered no more than fifty dead (6 April 708).

Cato in Utica

His Death

There was as little a continuance of the struggle in Africa after the battle of Thapsus, as there had been a year and a half before in the east after the

defeat of Pharsalus. Cato as commandant of Utica convoked the senate, set forth how the means of defence stood, and submitted it to the decision of those assembled whether they would yield or defend themselves to the last man— only adjuring them to resolve and to act not each one for himself, but all in unison. The more courageous view found several supporters; it was proposed to manumit on behalf of the state the slaves capable of arms, which however Cato rejected as an illegal encroachment on private property, and suggested in its stead a patriotic appeal to the slave-owners. But soon this fit of resolution in an assembly consisting in great part of African merchants passed off, and they agreed to capitulate. Thereupon when Faustus Sulla, son of the regent, and Lucius Afranius arrived in Utica with a strong division of cavalry from the field of battle, Cato still made an attempt to hold the town through them; but he indignantly rejected their demand to let them first of all put to death the untrustworthy citizens of Utica en masse, and chose to let the last stronghold of the republicans fall into the hands of the monarch without resistance rather than to profane the last moments of the republic by such a massacre. After he had— partly by his authority, partly by liberal largesses—checked so far as he could the fury of the soldiery against the unfortunate Uticans; after he had with touching solicitude furnished to those who preferred not to trust themselves to Caesar's mercy the means for flight, and to those who wished to remain the opportunity of capitulating under the most tolerable conditions, so far as his ability reached; and after having thoroughly satisfied himself that he could render to no one any farther aid, he held himself released from his command, retired to his bedchamber, and plunged his sword into his breast.

The Leaders of the Republicans Put to Death

Of the other fugitive leaders only a few escaped. The cavalry that fled from Thapsus encountered the bands of Sittius, and were cut down or captured by them; their leaders Afranius and Faustus were delivered up to

Caesar, and, when the latter did not order their immediate execution, they were slain in a tumult by his veterans. The commander-in-chief Metellus Scipio with the fleet of the defeated party fell into the power of the cruisers of Sittius and, when they were about to lay hands on him, stabbed himself. King Juba, not unprepared for such an issue, had in that case resolved to die in a way which seemed to him befitting a king, and had caused an enormous funeral pile to be prepared in the market-place of his city Zama, which was intended to consume along with his body all his treasures and the dead bodies of the whole citizens of Zama. But the inhabitants of the town showed no desire to let themselves be employed by way of decoration for the funeral rites of the African Sardanapalus; and they closed the gates against the king when fleeing from the battle-field he appeared, accompanied by Marcus Petreius, before their city. The king—one of those natures that become savage amidst a life of dazzling and insolent enjoyment, and prepare for themselves even out of death an intoxicating feast—resorted with his companion to one of his country houses, caused a copious banquet to be served up, and at the close of the feast challenged Petreius to fight him to death in single combat. It was the conqueror of Catilina that received his death at the hand of the king; the latter thereupon caused himself to be stabbed by one of his slaves. The few men of eminence that escaped, such as Labienus and Sextus Pompeius, followed the elder brother of the latter to Spain and sought, like Sertorius formerly, a last refuge of robbers and pirates in the waters and the mountains of that still half-independent land.

Regulation of Africa

Without resistance Caesar regulated the affairs of Africa. As Curio had already proposed, the kingdom of Massinissa was broken up. The most eastern portion or region of Sitifis was united with the kingdom of Bocchus king of East Mauretania,(51) and the faithful king Bogud of Tingis was

rewarded with considerable gifts. Cirta (Constantine) and the surrounding district, hitherto possessed under the supremacy of Juba by the prince Massinissa and his son Arabion, were conferred on the condottiere Publius Sittius that he might settle his half-Roman bands there;(52) but at the same time this district, as well as by far the largest and most fertile portion of the late Numidian kingdom, were united as "New Africa" with the older province of Africa, and the defence of the country along the coast against the roving tribes of the desert, which the republic had entrusted to a client-king, was imposed by the new ruler on the empire itself.

The Victory of Monarchy

The struggle, which Pompeius and the republicans had undertaken against the monarchy of Caesar, thus terminated, after having lasted for four years, in the complete victory of the new monarch. No doubt the monarchy was not established for the first time on the battle-fields of Pharsalus and Thapsus; it might already be dated from the moment when Pompeius and Caesar in league had established their joint rule and overthrown the previous aristocratic constitution. Yet it was only those baptisms of blood of the ninth August 706 and the sixth April 708 that set aside the conjoint rule so opposed to the nature of absolute dominion, and conferred fixed status and formal recognition on the new monarchy. Risings of pretenders and republican conspiracies might ensue and provoke new commotions, perhaps even new revolutions and restorations; but the continuity of the free republic that had been uninterrupted for five hundred years was broken through, and monarchy was established throughout the range of the wide Roman empire by the legitimacy of accomplished fact.

The End of the Republic

The constitutional struggle was at an end; and that it was so, was proclaimed by Marcus Cato when he fell on his sword at Utica. For many

years he had been the foremost man in the struggle of the legitimate republic against its oppressors; he had continued it, long after he had ceased to cherish any hope of victory. But now the struggle itself had become impossible; the republic which Marcus Brutus had founded was dead and never to be revived; what were the republicans now to do on the earth? The treasure was carried off, the sentinels were thereby relieved; who could blame them if they departed? There was more nobility, and above all more judgment, in the death of Cato than there had been in his life. Cato was anything but a great man; but with all that short-sightedness, that perversity, that dry prolixity, and those spurious phrases which have stamped him, for his own and for all time, as the ideal of unreflecting republicanism and the favourite of all who make it their hobby, he was yet the only man who honourably and courageously championed in the last struggle the great system doomed to destruction. Just because the shrewdest lie feels itself inwardly annihilated before the simple truth, and because all the dignity and glory of human nature ultimately depend not on shrewdness but on honesty, Cato has played a greater part in history than many men far superior to him in intellect. It only heightens the deep and tragic significance of his death that he was himself a fool; in truth it is just because Don Quixote is a fool that he is a tragic figure. It is an affecting fact, that on that world-stage, on which so many great and wise men had moved and acted, the fool was destined to give the epilogue. He too died not in vain. It was a fearfully striking protest of the republic against the monarchy, that the last republican went as the first monarch came—a protest which tore asunder like gossamer all that so-called constitutional character with which Caesar invested his monarchy, and exposed in all its hypocritical falsehood the shibboleth of the reconciliation of all parties, under the aegis of which despotism grew up. The unrelenting warfare which the ghost of the legitimate republic waged for centuries, from Cassius and Brutus down to Thrasea and Tacitus, nay, even far later, against the Caesarian monarchy—a warfare of plots and of

literature— was the legacy which the dying Cato bequeathed to his enemies. This republican opposition derived from Cato its whole attitude—stately, transcendental in its rhetoric, pretentiously rigid, hopeless, and faithful to death; and accordingly it began even immediately after his death to revere as a saint the man who in his lifetime was not unfrequently its laughing-stock and its scandal. But the greatest of these marks of respect was the involuntary homage which Caesar rendered to him, when he made an exception to the contemptuous clemency with which he was wont to treat his opponents, Pompeians as well as republicans, in the case of Cato alone, and pursued him even beyond the grave with that energetic hatred which practical statesmen are wont to feel towards antagonists opposing them from a region of ideas which they regard as equally dangerous and impracticable.

CHAPTER XI

The Old Republic and the New Monarchy

Character of Caesar

The new monarch of Rome, the first ruler over the whole domain of Romano-Hellenic civilization, Gaius Julius Caesar, was in his fifty-sixth year (born 12 July 652?) when the battle at Thapsus, the last link in a long chain of momentous victories, placed the decision as to the future of the world in his hands. Few men have had their elasticity so thoroughly put to the proof as Caesar—the sole creative genius produced by Rome, and the last produced by the ancient world, which accordingly moved on in the path that he marked out for it until its sun went down. Sprung from one of the oldest noble families of Latium—which traced back its lineage to the heroes of the Iliad and the kings of Rome, and in fact to the Venus-Aphrodite common to both nations—he spent the years of his boyhood and early manhood as the genteel youth of that epoch were wont to spend them. He had tasted the sweetness as well as the bitterness of the cup of fashionable life, had recited and declaimed, had practised literature and made verses in his idle hours, had prosecuted love-intrigues of every sort, and got himself initiated into all the mysteries of shaving, curls, and ruffles pertaining to the toilette-wisdom of the day, as well as into the still more mysterious art of always borrowing and never paying. But the flexible steel of that nature was proof against even these dissipated and flighty courses; Caesar retained

both his bodily vigour and his elasticity of mind and of heart unimpaired. In fencing and in riding he was a match for any of his soldiers, and his swimming saved his life at Alexandria; the incredible rapidity of his journeys, which usually for the sake of gaining time were performed by night—a thorough contrast to the procession-like slowness with which Pompeius moved from one place to another— was the astonishment of his contemporaries and not the least among the causes of his success. The mind was like the body. His remarkable power of intuition revealed itself in the precision and practicability of all his arrangements, even where he gave orders without having seen with his own eyes. His memory was matchless, and it was easy for him to carry on several occupations simultaneously with equal self-possession. Although a gentleman, a man of genius, and a monarch, he had still a heart. So long as he lived, he cherished the purest veneration for his worthy mother Aurelia (his father having died early); to his wives and above all to his daughter Julia he devoted an honourable affection, which was not without reflex influence even on political affairs. With the ablest and most excellent men of his time, of high and of humbler rank, he maintained noble relations of mutual fidelity, with each after his kind. As he himself never abandoned any of his partisans after the pusillanimous and unfeeling manner of Pompeius, but adhered to his friends—and that not merely from calculation—through good and bad times without wavering, several of these, such as Aulus Hirtius and Gaius Matius, gave, even after his death, noble testimonies of their attachment to him.

If in a nature so harmoniously organized any one aspect of it may be singled out as characteristic, it is this—that he stood aloof from all ideology and everything fanciful. As a matter of course, Caesar was a man of passion, for without passion there is no genius; but his passion was never stronger than he could control. He had had his season of youth, and song, love, and wine had taken lively possession of his spirit; but with him they did not penetrate to the inmost core of his nature. Literature occupied him

long and earnestly; but, while Alexander could not sleep for thinking of the Homeric Achilles, Caesar in his sleepless hours mused on the inflections of the Latin nouns and verbs. He made verses, as everybody then did, but they were weak; on the other hand he was interested in subjects of astronomy and natural science. While wine was and continued to be with Alexander the destroyer of care, the temperate Roman, after the revels of his youth were over, avoided it entirely. Around him, as around all those whom the full lustre of woman's love has dazzled in youth, fainter gleams of it continued imperishably to linger; even in later years he had love-adventures and successes with women, and he retained a certain foppishness in his outward appearance, or, to speak more correctly, the pleasing consciousness of his own manly beauty. He carefully covered the baldness, which he keenly felt, with the laurel chaplet that he wore in public in his later years, and he would doubtless have surrendered some of his victories, if he could thereby have brought back his youthful locks. But, however much even when monarch he enjoyed the society of women, he only amused himself with them, and allowed them no manner of influence over him; even his much-censured relation to queen Cleopatra was only contrived to mask a weak point in his political position.(1) Caesar was thoroughly a realist and a man of sense; and whatever he undertook and achieved was pervaded and guided by the cool sobriety which constitutes the most marked peculiarity of his genius. To this he owed the power of living energetically in the present, undisturbed either by recollection or by expectation; to this he owed the capacity of acting at any moment with collected vigour, and of applying his whole genius even to the smallest and most incidental enterprise; to this he owed the many-sided power with which he grasped and mastered whatever understanding can comprehend and will can compel; to this he owed the self-possessed ease with which he arranged his periods as well as projected his campaigns; to this he owed the "marvellous serenity" which remained steadily with him through good and evil days; to

this he owed the complete independence, which admitted of no control by favourite or by mistress, or even by friend. It resulted, moreover, from this clearness of judgment that Caesar never formed to himself illusions regarding the power of fate and the ability of man; in his case the friendly veil was lifted up, which conceals from man the inadequacy of his working. Prudently as he laid his plans and considered all possibilities, the feeling was never absent from his breast that in all things fortune, that is to say accident, must bestow success; and with this may be connected the circumstance that he so often played a desperate game with destiny, and in particular again and again hazarded his person with daring indifference. As indeed occasionally men of predominant sagacity betake themselves to a pure game of hazard, so there was in Caesar's rationalism a point at which it came in some measure into contact with mysticism.

Caesar as a Statesman

Gifts such as these could not fail to produce a statesman. From early youth, accordingly, Caesar was a statesman in the deepest sense of the term, and his aim was the highest which man is allowed to propose to himself—the political, military, intellectual, and moral regeneration of his own deeply decayed nation, and of the still more deeply decayed Hellenic nation intimately akin to his own. The hard school of thirty years' experience changed his views as to the means by which this aim was to be reached; his aim itself remained the same in the times of his hopeless humiliation and of his unlimited plenitude of power, in the times when as demagogue and conspirator he stole towards it by paths of darkness, and in those when, as joint possessor of the supreme power and then as monarch, he worked at his task in the full light of day before the eyes of the world. All the measures of a permanent kind that proceeded from him at the most various times assume their appropriate places in the great building-plan. We cannot therefore properly speak of isolated achievements of Caesar; he did nothing isolated.

With justice men commend Caesar the orator for his masculine eloquence, which, scorning all the arts of the advocate, like a clear flame at once enlightened and warmed. With justice men admire in Caesar the author the inimitable simplicity of the composition, the unique purity and beauty of the language. With justice the greatest masters of war of all times have praised Caesar the general, who, in a singular degree disregarding routine and tradition, knew always how to find out the mode of warfare by which in the given case the enemy was conquered, and which was thus in the given case the right one; who with the certainty of divination found the proper means for every end; who after defeat stood ready for battle like William of Orange, and ended the campaign invariably with victory; who managed that element of warfare, the treatment of which serves to distinguish military genius from the mere ordinary ability of an officer—the rapid movement of masses—with unsurpassed perfection, and found the guarantee of victory not in the massiveness of his forces but in the celerity of their movements, not in long preparation but in rapid and daring action even with inadequate means. But all these were with Caesar mere secondary matters; he was no doubt a great orator, author, and general, but he became each of these merely because he was a consummate statesman. The soldier more especially played in him altogether an accessory part, and it is one of the principal peculiarities by which he is distinguished from Alexander, Hannibal, and Napoleon, that he began his political activity not as an officer, but as a demagogue. According to his original plan he had purposed to reach his object, like Pericles and Gaius Gracchus, without force of arms, and throughout eighteen years he had as leader of the popular party moved exclusively amid political plans and intrigues—until, reluctantly convinced of the necessity for a military support, he, when already forty years of age, put himself at the head of an army. It was natural that he should even afterwards remain still more statesman than general—just like Cromwell, who also transformed himself from a leader of opposition into a military

chief and democratic king, and who in general, little as the prince of Puritans seems to resemble the dissolute Roman, is yet in his development as well as in the objects which he aimed at and the results which he achieved of all statesmen perhaps the most akin to Caesar. Even in his mode of warfare this improvised generalship may still be recognized; the enterprises of Napoleon against Egypt and against England do not more clearly exhibit the artillery-lieutenant who had risen by service to command than the similar enterprises of Caesar exhibit the demagogue metamorphosed into a general. A regularly trained officer would hardly have been prepared, through political considerations of a not altogether stringent nature, to set aside the best-founded military scruples in the way in which Caesar did on several occasions, most strikingly in the case of his landing in Epirus. Several of his acts are therefore censurable from a military point of view; but what the general loses, the statesman gains. The task of the statesman is universal in its nature like Caesar's genius; if he undertook things the most varied and most remote one from another, they had all without exception a bearing on the one great object to which with infinite fidelity and consistency he devoted himself; and of the manifold aspects and directions of his great activity he never preferred one to another. Although a master of the art of war, he yet from statesmanly considerations did his utmost to avert civil strife and, when it nevertheless began, to earn laurels stained as little as possible by blood. Although the founder of a military monarchy, he yet, with an energy unexampled in history, allowed no hierarchy of marshals or government of praetorians to come into existence. If he had a preference for any one form of services rendered to the state, it was for the sciences and arts of peace rather than for those of war.

The most remarkable peculiarity of his action as a statesman was its perfect harmony. In reality all the conditions for this most difficult of all human functions were united in Caesar. A thorough realist, he never

allowed the images of the past or venerable tradition to disturb him; for him nothing was of value in politics but the living present and the law of reason, just as in his character of grammarian he set aside historical and antiquarian research and recognized nothing but on the one hand the living -usus loquendi- and on the other hand the rule of symmetry. A born ruler, he governed the minds of men as the wind drives the clouds, and compelled the most heterogeneous natures to place themselves at his service—the plain citizen and the rough subaltern, the genteel matrons of Rome and the fair princesses of Egypt and Mauretania, the brilliant cavalry-officer and the calculating banker. His talent for organization was marvellous; no statesman has ever compelled alliances, no general has ever collected an army out of unyielding and refractory elements with such decision, and kept them together with such firmness, as Caesar displayed in constraining and upholding his coalitions and his legions; never did regent judge his instruments and assign each to the place appropriate for him with so acute an eye.

He was monarch; but he never played the king. Even when absolute lord of Rome, he retained the deportment of the party-leader; perfectly pliant and smooth, easy and charming in conversation, complaisant towards every one, it seemed as if he wished to be nothing but the first among his peers. Caesar entirely avoided the blunder into which so many men otherwise on an equality with him have fallen, of carrying into politics the military tone of command; however much occasion his disagreeable relations with the senate gave for it, he never resorted to outrages such as was that of the eighteenth Brumaire. Caesar was monarch; but he was never seized with the giddiness of the tyrant. He is perhaps the only one among the mighty ones of the earth, who in great matters and little never acted according to inclination or caprice, but always without exception according to his duty as ruler, and who, when he looked back on his life, found doubtless erroneous calculations to deplore, but no false step of passion to regret. There is

nothing in the history of Caesar's life, which even on a small scale(2) can be compared with those poetico-sensual ebullitions—such as the murder of Kleitos or the burning of Persepolis—which the history of his great predecessor in the east records. He is, in fine, perhaps the only one of those mighty ones, who has preserved to the end of his career the statesman's tact of discriminating between the possible and the impossible, and has not broken down in the task which for greatly gifted natures is the most difficult of all—the task of recognizing, when on the pinnacle of success, its natural limits. What was possible he performed, and never left the possible good undone for the sake of the impossible better, never disdained at least to mitigate by palliatives evils that were incurable. But where he recognized that fate had spoken, he always obeyed. Alexander on the Hypanis, Napoleon at Moscow, turned back because they were compelled to do so, and were indignant at destiny for bestowing even on its favourites merely limited successes; Caesar turned back voluntarily on the Thames and on the Rhine; and thought of carrying into effect even at the Danube and the Euphrates not unbounded plans of world-conquest, but merely well-considered frontier-regulations.

Such was this unique man, whom it seems so easy and yet is so infinitely difficult to describe. His whole nature is transparent clearness; and tradition preserves more copious and more vivid information about him than about any of his peers in the ancient world. Of such a personage our conceptions may well vary in point of shallowness or depth, but they cannot be, strictly speaking, different; to every not utterly perverted inquirer the grand figure has exhibited the same essential features, and yet no one has succeeded in reproducing it to the life. The secret lies in its perfection. In his character as a man as well as in his place in history, Caesar occupies a position where the great contrasts of existence meet and balance each other. Of mighty creative power and yet at the same time of the most penetrating judgment; no longer a youth and not yet an old man; of the highest energy of will and

the highest capacity of execution; filled with republican ideals and at the same time born to be a king; a Roman in the deepest essence of his nature, and yet called to reconcile and combine in himself as well as in the outer world the Roman and the Hellenic types of culture—Caesar was the entire and perfect man. Accordingly we miss in him more than in any other historical personage what are called characteristic features, which are in reality nothing else than deviations from the natural course of human development. What in Caesar passes for such at the first superficial glance is, when more closely observed, seen to be the peculiarity not of the individual, but of the epoch of culture or of the nation; his youthful adventures, for instance, were common to him with all his more gifted contemporaries of like position, his unpoetical but strongly logical temperament was the temperament of Romans in general. It formed part also of Caesar's full humanity that he was in the highest degree influenced by the conditions of time and place; for there is no abstract humanity—the living man cannot but occupy a place in a given nationality and in a definite line of culture. Caesar was a perfect man just because he more than any other placed himself amidst the currents of his time, and because he more than any other possessed the essential peculiarity of the Roman nation—practical aptitude as a citizen—in perfection: for his Hellenism in fact was only the Hellenism which had been long intimately blended with the Italian nationality. But in this very circumstance lies the difficulty, we may perhaps say the impossibility, of depicting Caesar to the life. As the artist can paint everything save only consummate beauty, so the historian, when once in a thousand years he encounters the perfect, can only be silent regarding it. For normality admits doubtless of being expressed, but it gives us only the negative notion of the absence of defect; the secret of nature, whereby in her most finished manifestations normality and individuality are combined, is beyond expression. Nothing is left for us but to deem those fortunate who beheld this perfection, and to gain some faint conception of it from the

reflected lustre which rests imperishably on the works that were the creation of this great nature. These also, it is true, bear the stamp of the time. The Roman hero himself stood by the side of his youthful Greek predecessor not merely as an equal, but as a superior; but the world had meanwhile become old and its youthful lustre had faded. The action of Caesar was no longer, like that of Alexander, a joyous marching onward towards a goal indefinitely remote; he built on, and out of, ruins, and was content to establish himself as tolerably and as securely as possible within the ample but yet definite bounds once assigned to him. With reason therefore the delicate poetic tact of the nations has not troubled itself about the unpoetical Roman, and on the other hand has invested the son of Philip with all the golden lustre of poetry, with all the rainbow hues of legend. But with equal reason the political life of the nations has during thousands of years again and again reverted to the lines which Caesar drew; and the fact, that the peoples to whom the world belongs still at the present day designate the highest of their monarchs by his name, conveys a warning deeply significant and, unhappily, fraught with shame.

Setting Aside of the Old Parties

If the old, in every respect vicious, state of things was to be successfully got rid of and the commonwealth was to be renovated, it was necessary first of all that the country should be practically tranquillized and that the ground should be cleared from the rubbish with which since the recent catastrophe it was everywhere strewn. In this work Caesar set out from the principle of the reconciliation of the hitherto subsisting parties or, to put it more correctly—for, where the antagonistic principles are irreconcilable, we cannot speak of real reconciliation—from the principle that the arena, on which the nobility and the populace had hitherto contended with each other, was to be abandoned by both parties, and that both were to meet together on the ground of the new monarchical constitution. First of all therefore all the

older quarrels of the republican past were regarded as done away for ever and irrevocably. While Caesar gave orders that the statues of Sulla which had been thrown down by the mob of the capital on the news of the battle of Pharsalus should be re-erected, and thus recognized the fact that it became history alone to sit in judgment on that great man, he at the same time cancelled the last remaining effects of Sulla's exceptional laws, recalled from exile those who had been banished in the times of the Cinnan and Sertorian troubles, and restored to the children of those outlawed by Sulla their forfeited privilege of eligibility to office. In like manner all those were restored, who in the preliminary stage of the recent catastrophe had lost their seat in the senate or their civil existence through sentence of the censors or political process, especially through the impeachments raised on the basis of the exceptional laws of 702. Those alone who had put to death the proscribed for money remained, as was reasonable, still under attainder; and Milo, the most daring condottiere of the senatorial party, was excluded from the general pardon.

Discontent of the Democrats

Far more difficult than the settlement of these questions which already belonged substantially to the past was the treatment of the parties confronting each other at the moment—on the one hand Caesar's own democratic adherents, on the other hand the overthrown aristocracy. That the former should be, if possible, still less satisfied than the latter with Caesar's conduct after the victory and with his summons to abandon the old standing-ground of party, was to be expected. Caesar himself desired doubtless on the whole the same issue which Gaius Gracchus had contemplated; but the designs of the Caesarians were no longer those of the Gracchans. The Roman popular party had been driven onward in gradual progression from reform to revolution, from revolution to anarchy, from anarchy to a war against property; they celebrated among themselves the

memory of the reign of terror and now adorned the tomb of Catilina, as formerly that of the Gracchi, with flowers and garlands; they had placed themselves under Caesar's banner, because they expected him to do for them what Catilina had not been able to accomplish. But as it speedily became plain that Caesar was very far from intending to be the testamentary executor of Catilina, and that the utmost which debtors might expect from him was some alleviations of payment and modifications of procedure, indignation found loud vent in the inquiry. For whom then had the popular party conquered, if not for the people? And the rabble of this description, high and low, out of pure chagrin at the miscarriage of their politico-economic Saturnalia began first to coquet with the Pompeians, and then even during Caesar's absence of nearly two years from Italy (Jan. 706-autumn 707) to instigate there a second civil war within the first.

Caelius and Milo

The praetor Marcus Caelius Rufus, a good aristocrat and bad payer of debts, of some talent and much culture, as a vehement and fluent orator hitherto in the senate and in the Forum one of the most zealous champions for Caesar, proposed to the people— without being instructed from any higher quarter to do so— a law which granted to debtors a respite of six years free of interest, and then, when he was opposed in this step, proposed a second law which even cancelled all claims arising out of loans and current house rents; whereupon the Caesarian senate deposed him from his office. It was just on the eve of the battle of Pharsalus, and the balance in the great contest seemed to incline to the side of the Pompeians; Rufus entered into communication with the old senatorian band-leader Milo, and the two contrived a counter-revolution, which inscribed on its banner partly the republican constitution, partly the cancelling of creditors' claims and the manumission of slaves. Milo left his place of exile Massilia, and called the Pompeians and the slave-herdsmen to arms in the region of Thurii; Rufus

made arrangements to seize the town of Capua by armed slaves. But the latter plan was detected before its execution and frustrated by the Capuan militia; Quintus Pedius, who advanced with a legion into the territory of Thurii, scattered the band making havoc there; and the fall of the two leaders put an end to the scandal (706).

Dolabella

Nevertheless there was found in the following year (707) a second fool, the tribune of the people, Publius Dolabella, who, equally insolvent but far from being equally gifted with his predecessor, introduced afresh his law as to creditors' claims and house rents, and with his colleague Lucius Trebellius began on that point once more—it was the last time—the demagogic war; there were serious frays between the armed bands on both sides and various street-riots, till the commandant of Italy Marcus Antonius ordered the military to interfere, and soon afterwards Caesar's return from the east completely put an end to the preposterous proceedings. Caesar attributed to these brainless attempts to revive the projects of Catilina so little importance, that he tolerated Dolabella in Italy and indeed after some time even received him again into favour. Against a rabble of this sort, which had nothing to do with any political question at all, but solely with a war against property—as against gangs of banditti—the mere existence of a strong government is sufficient; and Caesar was too great and too considerate to busy himself with the apprehensions which the Italian alarmists felt regarding these communists of that day, and thereby unduly to procure a false popularity for his monarchy.

Measures against Pompeians and Republicans

While Caesar thus might leave, and actually left, the late democratic party to the process of decomposition which had already in its case advanced almost to the utmost limit, he had on the other hand, with

reference to the former aristocratic party possessing a far greater vitality, not to bring about its dissolution— which time alone could accomplish— but to pave the way for and initiate it by a proper combination of repression and conciliation. Among minor measures, Caesar, even from a natural sense of propriety, avoided exasperating the fallen party by empty sarcasm; he did not triumph over his conquered fellow-burgesses;(3) he mentioned Pompeius often and always with respect, and caused his statue overthrown by the people to be re-erected at the senate- house, when the latter was restored, in its earlier distinguished place. To political prosecutions after the victory Caesar assigned the narrowest possible limits. No investigation was instituted into the various communications which the constitutional party had held even with nominal Caesarians; Caesar threw the piles of papers found in the enemy's headquarters at Pharsalus and Thapsus into the fire unread, and spared himself and the country from political processes against individuals suspected of high treason. Further, all the common soldiers who had followed their Roman or provincial officers into the contest against Caesar came off with impunity. The sole exception made was in the case of those Roman burgesses, who had taken service in the army of the Numidian king Juba; their property was confiscated by way of penalty for their treason. Even to the officers of the conquered party Caesar had granted unlimited pardon up to the close of the Spanish campaign of 705; but he became convinced that in this he had gone too far, and that the removal at least of the leaders among them was inevitable. The rule by which he was thenceforth guided was, that every one who after the capitulation of Ilerda had served as an officer in the enemy's army or had sat in the opposition-senate, if he survived the close of the struggle, forfeited his property and his political rights, and was banished from Italy for life; if he did not survive the close of the struggle, his property at least fell to the state; but any one of these, who had formerly accepted pardon from Caesar and was once more found in the ranks of the enemy, thereby forfeited his life. These rules were

however materially modified in the execution. The sentence of death was actually executed only against a very few of the numerous backsliders. In the confiscation of the property of the fallen not only were the debts attaching to the several portions of the estate as well as the claims of the widows for their dowries paid off, as was reasonable. But a portion of the paternal estate was left also to the children of the deceased. Lastly not a few of those, who in consequence of those rules were liable to banishment and confiscation of property, were at once pardoned entirely or got off with fines, like the African capitalists who were impressed as members of the senate of Utica. And even the others almost without exception got their freedom and property restored to them, if they could only prevail on themselves to petition Caesar to that effect; on several who declined to do so, such as the consular Marcus Marcellus, pardon was even conferred unasked, and ultimately in 710 a general amnesty was issued for all who were still unrecalled.

Amnesty

The republican opposition submitted to be pardoned; but it was not reconciled. Discontent with the new order of things and exasperation against the unwonted ruler were general. For open political resistance there was indeed no farther opportunity— it was hardly worth taking into account, that some oppositional tribunes on occasion of the question of title acquired for themselves the republican crown of martyrdom by a demonstrative intervention against those who had called Caesar king—but republicanism found expression all the more decidedly as an opposition of sentiment, and in secret agitation and plotting. Not a hand stirred when the Emperor appeared in public. There was abundance of wall-placards and sarcastic verses full of bitter and telling popular satire against the new monarchy. When a comedian ventured on a republican allusion, he was saluted with the loudest applause. The praise of Cato formed the

fashionable theme of oppositional pamphleteers, and their writings found a public all the more grateful because even literature was no longer free. Caesar indeed combated the republicans even now on their own field; he himself and his abler confidants replied to the Cato-literature with Anticatones, and the republican and Caesarian scribes fought round the dead hero of Utica like the Trojans and Hellenes round the dead body of Patroclus; but as a matter of course in this conflict—where the public thoroughly republican in its feelings was judge—the Caesarians had the worst of it. No course remained but to overawe the authors; on which account men well known and dangerous in a literary point of view, such as Publius Nigidius Figulus and Aulus Caecina, had more difficulty in obtaining permission to return to Italy than other exiles, while the oppositional writers tolerated in Italy were subjected to a practical censorship, the restraints of which were all the more annoying that the measure of punishment to be dreaded was utterly arbitrary.(4) The underground machinations of the overthrown parties against the new monarchy will be more fitly set forth in another connection. Here it is sufficient to say that risings of pretenders as well as of republicans were incessantly brewing throughout the Roman empire; that the flames of civil war kindled now by the Pompeians, now by the republicans, again burst forth brightly at various places; and that in the capital there was perpetual conspiracy against the life of the monarch. But Caesar could not be induced by these plots even to surround himself permanently with a body-guard, and usually contented himself with making known the detected conspiracies by public placards.

Bearing of Caesar towards the Parties

However much Caesar was wont to treat all things relating to his personal safety with daring indifference, he could not possibly conceal from himself the very serious danger with which this mass of malcontents

threatened not merely himself but also his creations. If nevertheless, disregarding all the warning and urgency of his friends, he without deluding himself as to the implacability of the very opponents to whom he showed mercy, persevered with marvellous composure and energy in the course of pardoning by far the greater number of them, he did so neither from the chivalrous magnanimity of a proud, nor from the sentimental clemency of an effeminate, nature, but from the correct statesmanly consideration that vanquished parties are disposed of more rapidly and with less public injury by their absorption within the state than by any attempt to extirpate them by proscription or to eject them from the commonwealth by banishment. Caesar could not for his high objects dispense with the constitutional party itself, which in fact embraced not the aristocracy merely but all the elements of a free and national spirit among the Italian burgesses; for his schemes, which contemplated the renovation of the antiquated state, he needed the whole mass of talent, culture, hereditary, and self-acquired distinction, which this party embraced; and in this sense he may well have named the pardoning of his opponents the finest reward of victory. Accordingly the most prominent chiefs of the defeated parties were indeed removed, but full pardon was not withheld from the men of the second and third rank and especially of the younger generation; they were not, however, allowed to sulk in passive opposition, but were by more or less gentle pressure induced to take an active part in the new administration, and to accept honours and offices from it. As with Henry the Fourth and William of Orange, so with Caesar his greatest difficulties began only after the victory. Every revolutionary conqueror learns by experience that, if after vanquishing his opponents he would not remain like Cinna and Sulla a mere party-chief, but would like Caesar, Henry the Fourth, and William of Orange substitute the welfare of the commonwealth for the necessarily one-sided programme of his own party, for the moment all parties, his own as well as the vanquished, unite against the new chief; and the more so, the

more great and pure his idea of his new vocation. The friends of the constitution and the Pompeians, though doing homage with the lips to Caesar, bore yet in heart a grudge either at monarchy or at least at the dynasty; the degenerate democracy was in open rebellion against Caesar from the moment of its perceiving that Caesar's objects were by no means its own; even the personal adherents of Caesar murmured, when they found that their chief was establishing instead of a state of condottieri a monarchy equal and just towards all, and that the portions of gain accruing to them were to be diminished by the accession of the vanquished. This settlement of the commonwealth was acceptable to no party, and had to be imposed on his associates no less than on his opponents. Caesar's own position was now in a certain sense more imperilled than before the victory; but what he lost, the state gained. By annihilating the parties and not simply sparing the partisans but allowing every man of talent or even merely of good descent to attain to office irrespective of his political past, he gained for his great building all the working power extant in the state; and not only so, but the voluntary or compulsory participation of men of all parties in the same work led the nation also over imperceptibly to the newly prepared ground. The fact that this reconciliation of the parties was for the moment only external and that they were for the present much less agreed in adherence to the new state of things than in hatred against Caesar, did not mislead him; he knew well that antagonisms lose their keenness when brought into such outward union, and that only in this way can the statesman anticipate the work of time, which alone is able finally to heal such a strife by laying the old generation in the grave. Still less did he inquire who hated him or meditated his assassination. Like every genuine statesman he served not the people for reward—not even for the reward of their love—but sacrificed the favour of his contemporaries for the blessing of posterity, and above all for the permission to save and renew his nation.

Caesar's Work

In attempting to give a detailed account of the mode in which the transition was effected from the old to the new state of things, we must first of all recollect that Caesar came not to begin, but to complete. The plan of a new polity suited to the times, long ago projected by Gaius Gracchus, had been maintained by his adherents and successors with more or less of spirit and success, but without wavering. Caesar, from the outset and as it were by hereditary right the head of the popular party, had for thirty years borne aloft its banner without ever changing or even so much as concealing his colours; he remained democrat even when monarch. as he accepted without limitation, apart of course from the preposterous projects of Catilina and Clodius, the heritage of his party; as he displayed the bitterest, even personal, hatred to the aristocracy and the genuine aristocrats; and as he retained unchanged the essential ideas of Roman democracy, viz. alleviation of the burdens of debtors, transmarine colonization, gradual equalization of the differences of rights among the classes belonging to the state, emancipation of the executive power from the senate: his monarchy was so little at variance with democracy, that democracy on the contrary only attained its completion and fulfilment by means of that monarchy. For this monarchy was not the Oriental despotism of divine right, but a monarchy such as Gaius Gracchus wished to found, such as Pericles and Cromwell founded—the representation of the nation by the man in whom it puts supreme and unlimited confidence. The ideas, which lay at the foundation of Caesar's work, were so far not strictly new; but to him belongs their realization, which after all is everywhere the main matter; and to him pertains the grandeur of execution, which would probably have surprised the brilliant projector himself if he could have seen it, and which has impressed, and will always impress, every one to whom it has been presented in the living reality or in the mirror of history—to whatever historical epoch or whatever shade of politics he may belong—according to

the measure of his ability to comprehend human and historical greatness, with deep and ever-deepening emotion and admiration.

At this point however it is proper expressly once for all to claim what the historian everywhere tacitly presumes, and to protest against the custom—common to simplicity and perfidy—of using historical praise and historical censure, dissociated from the given circumstances, as phrases of general application, and in the present case of construing the judgment as to Caesar into a judgment as to what is called Caesarism. It is true that the history of past centuries ought to be the instructress of the present; but not in the vulgar sense, as if one could simply by turning over the leaves discover the conjunctures of the present in the records of the past, and collect from these the symptoms for a political diagnosis and the specifics for a prescription; it is instructive only so far as the observation of older forms of culture reveals the organic conditions of civilization generally— the fundamental forces everywhere alike, and the manner of their combination everywhere different—and leads and encourages men, not to unreflecting imitation, but to independent reproduction. In this sense the history of Caesar and of Roman Imperialism, with all the unsurpassed greatness of the master-worker, with all the historical necessity of the work, is in truth a sharper censure of modern autocracy than could be written by the hand of man. According to the same law of nature in virtue of which the smallest organism infinitely surpasses the most artistic machine, every constitution however defective which gives play to the free self-determination of a majority of citizens infinitely surpasses the most brilliant and humane absolutism; for the former is capable of development and therefore living, the latter is what it is and therefore dead. This law of nature has verified itself in the Roman absolute military monarchy and verified itself all the more completely, that, under the impulse of its creator's genius and in the absence of all material complications from without, that monarchy developed itself more purely and freely than any similar state. From Caesar's time, as the sequel will

show and Gibbon has shown long ago, the Roman system had only an external coherence and received only a mechanical extension, while internally it became even with him utterly withered and dead. If in the early stages of the autocracy and above all in Caesar's own soul⁽⁵⁾ the hopeful dream of a combination of free popular development and absolute rule was still cherished, the government of the highly- gifted emperors of the Julian house soon taught men in a terrible form how far it was possible to hold fire and water in the same vessel. Caesar's work was necessary and salutary, not because it was or could be fraught with blessing in itself, but because—with the national organization of antiquity, which was based on slavery and was utterly a stranger to republican-constitutional representation, and in presence of the legitimate urban constitution which in the course of five hundred years had ripened into oligarchic absolutism— absolute military monarchy was the copestone logically necessary and the least of evils. When once the slave-holding aristocracy in Virginia and the Carolinas shall have carried matters as far as their congeners in the Sullan Rome, Caesarism will there too be legitimized at the bar of the spirit of history;⁽⁶⁾ where it appears under other conditions of development, it is at once a caricature and a usurpation. But history will not submit to curtail the true Caesar of his due honour, because her verdict may in the presence of bad Caesars lead simplicity astray and may give to roguery occasion for lying and fraud. She too is a Bible, and if she cannot any more than the Bible hinder the fool from misunderstanding and the devil from quoting her, she too will be able to bear with, and to requite, them both.

Dictatorship

The position of the new supreme head of the state appears formally, at least in the first instance, as a dictatorship. Caesar took it up at first after his return from Spain in 705, but laid it down again after a few days, and waged the decisive campaign of 706 simply as consul—this was the office his

tenure of which was the primary occasion for the outbreak of the civil war. (7) but in the autumn of this year after the battle of Pharsalus he reverted to the dictatorship and had it repeatedly entrusted to him, at first for an undefined period, but from the 1st January 709 as an annual office, and then in January or February 710(8) for the duration of his life, so that he in the end expressly dropped the earlier reservation as to his laying down the office and gave formal expression to its tenure for life in the new title of -dictator perpetuus-. This dictatorship, both in its first ephemeral and in its second enduring tenure, was not that of the old constitution, but—what was coincident with this merely in the name—the supreme exceptional office as arranged by Sulla;(9) an office, the functions of which were fixed, not by the constitutional ordinances regarding the supreme single magistracy, but by special decree of the people, to such an effect that the holder received, in the commission to project laws and to regulate the commonwealth, an official prerogative *de jure* unlimited which superseded the republican partition of powers. Those were merely applications of this general prerogative to the particular case, when the holder of power was further entrusted by separate acts with the right of deciding on war and peace without consulting the senate and the people, with the independent disposal of armies and finances, and with the nomination of the provincial governors. Caesar could accordingly *de jure* assign to himself even such prerogatives as lay outside of the proper functions of the magistracy and even outside of the province of state-powers at all;(10) and it appears almost as a concession on his part, that he abstained from nominating the magistrates instead of the Comitia and limited himself to claiming a binding right of proposal for a proportion of the praetors and of the lower magistrates; and that he moreover had himself empowered by special decree of the people for the creation of patricians, which was not at all allowable according to use and wont.

Other Magistracies and Attributions

For other magistracies in the proper sense there remained alongside of this dictatorship no room; Caesar did not take up the censorship as such, (11) but he doubtless exercised censorial rights— particularly the important right of nominating senators—after a comprehensive fashion.

He held the consulship frequently alongside of the dictatorship, once even without colleague; but he by no means attached it permanently to his person, and he gave no effect to the calls addressed to him to undertake it for five or even for ten years in succession.

Caesar had no need to have the superintendence of worship now committed to him, since he was already *-pontifex maximus-*.(12) as a matter of course the membership of the college of augurs was conferred on him, and generally an abundance of old and new honorary rights, such as the title of a "father of the fatherland," the designation of the month of his birth by the name which it still bears of Julius, and other manifestations of the incipient courtly tone which ultimately ran into utter deification. Two only of the arrangements deserve to be singled out: namely that Caesar was placed on the same footing with the tribunes of the people as regards their special personal inviolability, and that the appellation of Imperator was permanently attached to his person and borne by him as a title alongside of his other official designations.

Men of judgment will not require any proof, either that Caesar intended to engraft on the commonwealth his supreme power, and this not merely for a few years or even as a personal office for an indefinite period somewhat like Sulla's regency, but as an essential and permanent organ; or that he selected for the new institution an appropriate and simple designation; for, if it is a political blunder to create names without substantial meaning, it is scarcely a less error to set up the substance of plenary power without a name. Only it is not easy to determine what definitive formal shape Caesar

had in view; partly because in this period of transition the ephemeral and the permanent buildings are not clearly discriminated from each other, partly because the devotion of his clients which already anticipated the nod of their master loaded him with a multitude—offensive doubtless to himself—of decrees of confidence and laws conferring honours. Least of all could the new monarchy attach itself to the consulship, just on account of the collegiate character that could not well be separated from this office; Caesar also evidently laboured to degrade this hitherto supreme magistracy into an empty title, and subsequently, when he undertook it, he did not hold it through the whole year, but before the year expired gave it away to personages of secondary rank. The dictatorship came practically into prominence most frequently and most definitely, but probably only because Caesar wished to use it in the significance which it had of old in the constitutional machinery—as an extraordinary presidency for surmounting extraordinary crises. On the other hand it was far from recommending itself as an expression for the new monarchy, for the magistracy was inherently clothed with an exceptional and unpopular character, and it could hardly be expected of the representative of the democracy that he should choose for its permanent organization that form, which the most gifted champion of the opposing party had created for his own ends.

The new name of Imperator, on the other hand, appears in every respect by far more appropriate for the formal expression of the monarchy; just because it is in this application⁽¹³⁾ new, and no definite outward occasion for its introduction is apparent. The new wine might not be put into old bottles; here is a new name for the new thing, and that name most pregnantly sums up what the democratic party had already expressed in the Gabinian law, only with less precision, as the function of its chief—the concentration and perpetuation of official power (-imperium-) in the hands of a popular chief independent of the senate. We find on Caesar's coins, especially those of the last period, alongside of the dictatorship the title of

Imperator prevailing, and in Caesar's law as to political crimes the monarch seems to have been designated by this name. Accordingly the following times, though not immediately, connected the monarchy with the name of Imperator. To lend to this new office at once a democratic and religious sanction, Caesar probably intended to associate with it once for all on the one hand the tribunician power, on the other the supreme pontificate.

That the new organization was not meant to be restricted merely to the lifetime of its founder, is beyond doubt; but he did not succeed in settling the especially difficult question of the succession, and it must remain an undecided point whether he had it in view to institute some sort of form for the election of a successor, such as had subsisted in the case of the original kingly office, or whether he wished to introduce for the supreme office not merely the tenure for life but also the hereditary character, as his adopted son subsequently maintained.(14) It is not improbable that he had the intention of combining in some measure the two systems, and of arranging the succession, similarly to the course followed by Cromwell and by Napoleon, in such a way that the ruler should be succeeded in rule by his son, but, if he had no son, or the son should not seem fitted for the succession, the ruler should of his free choice nominate his successor in the form of adoption.

In point of state law the new office of Imperator was based on the position which the consuls or proconsuls occupied outside of the - pomerium-, so that primarily the military command, but, along with this, the supreme judicial and consequently also the administrative power, were included in it.(15) But the authority of the Imperator was qualitatively superior to the consular-proconsular, in so far as the former was not limited as respected time or space, but was held for life and operative also in the capital;(16) as the Imperator could not, while the consul could, be checked by colleagues of equal power; and as all the restrictions placed in course of

time on the original supreme official power— especially the obligation to give place to the -provocatio- and to respect the advice of the senate—did not apply to the Emperor.

Re-establishment of the Regal Office

In a word, this new office of Emperor was nothing else than the primitive regal office re-established; for it was those very restrictions—as respected the temporal and local limitation of power, the collegiate arrangement, and the cooperation of the senate or the community that was necessary for certain cases— which distinguished the consul from the king. (17) There is hardly a trait of the new monarchy which was not found in the old: the union of the supreme military, judicial, and administrative authority in the hands of the prince; a religious presidency over the commonwealth; the right of issuing ordinances with binding power; the reduction of the senate to a council of state; the revival of the patriciate and of the praefecture of the city. But still more striking than these analogies is the internal similarity of the monarchy of Servius Tullius and the monarchy of Caesar; if those old kings of Rome with all their plenitude of power had yet been rulers of a free community and themselves the protectors of the commons against the nobility, Caesar too had not come to destroy liberty but to fulfil it, and primarily to break the intolerable yoke of the aristocracy. Nor need it surprise us that Caesar, anything but a political antiquary, went back five hundred years to find the model for his new state; for, seeing that the highest office of the Roman commonwealth had remained at all times a kingship restricted by a number of special laws, the idea of the regal office itself had by no means become obsolete. At very various periods and from very different sides— in the decemviral power, in the Sullan regency, and in Caesar's own dictatorship—there had been during the republic a practical recurrence to it; indeed by a certain logical necessity, whenever an exceptional power seemed requisite there emerged, in contradistinction to

the usual limited -imperium-, the unlimited -imperium- which was simply nothing else than the regal power.

Lastly, outward considerations also recommended this recurrence to the former kingly position. Mankind have infinite difficulty in reaching new creations, and therefore cherish the once developed forms as sacred heirlooms. Accordingly Caesar very judiciously connected himself with Servius Tullius, in the same way as subsequently Charlemagne connected himself with Caesar, and Napoleon attempted at least to connect himself with Charlemagne. He did so, not in a circuitous way and secretly, but, as well as his successors, in the most open manner possible; it was indeed the very object of this connection to find a clear, national, and popular form of expression for the new state. From ancient times there stood on the Capitol the statues of those seven kings, whom the conventional history of Rome was wont to bring on the stage; Caesar ordered his own to be erected beside them as the eighth. He appeared publicly in the costume of the old kings of Alba. In his new law as to political crimes the principal variation from that of Sulla was, that there was placed alongside of the collective community, and on a level with it, the Emperor as the living and personal expression of the people. In the formula used for political oaths there was added to the Jovis and the Penates of the Roman people the Genius of the Emperor. The outward badge of monarchy was, according to the view universally diffused in antiquity, the image of the monarch on the coins; from the year 710 the head of Caesar appears on those of the Roman state.

There could accordingly be no complaint at least on the score that Caesar left the public in the dark as to his view of his position; as distinctly and as formally as possible he came forward not merely as monarch, but as very king of Rome. It is possible even, although not exactly probable, and at any rate of subordinate importance, that he had it in view to designate his official power not with the new name of Emperor, but directly with the old

one of King.(18) Even in his lifetime many of his enemies as of his friends were of opinion that he intended to have himself expressly nominated king of Rome; several indeed of his most vehement adherents suggested to him in different ways and at different times that he should assume the crown; most strikingly of all, Marcus Antonius, when he as consul offered the diadem to Caesar before all the people (15 Feb. 710). But Caesar rejected these proposals without exception at once. If he at the same time took steps against those who made use of these incidents to stir republican opposition, it by no means follows from this that he was not in earnest with his rejection. The assumption that these invitations took place at his bidding, with the view of preparing the multitude for the unwonted spectacle of the Roman diadem, utterly misapprehends the mighty power of the sentimental opposition with which Caesar had to reckon, and which could not be rendered more compliant, but on the contrary necessarily gained a broader basis, through such a public recognition of its warrant on the part of Caesar himself. It may have been the uncalled-for zeal of vehement adherents alone that occasioned these incidents; it may be also, that Caesar merely permitted or even suggested the scene with Antonius, in order to put an end in as marked a manner as possible to the inconvenient gossip by a declinature which took place before the eyes of the burgesses and was inserted by his command even in the calendar of the state and could not, in fact, be well revoked. The probability is that Caesar, who appreciated alike the value of a convenient formal designation and the antipathies of the multitude which fasten more on the names than on the essence of things, was resolved to avoid the name of king as tainted with an ancient curse and as more familiar to the Romans of his time when applied to the despots of the east than to their own Numa and Servius, and to appropriate the substance of the regal office under the title of Imperator.

The New Court

The New Patrician Nobility

But, whatever may have been the definitive title present to his thoughts the sovereign ruler was there, and accordingly the court established itself at once with all its due accompaniments of pomp, insipidity, and emptiness. Caesar appeared in public not in the robe of the consuls which was bordered with purple stripes, but in the robe wholly of purple which was reckoned in antiquity as the proper regal attire, and received, seated on his golden chair and without rising from it, the solemn procession of the senate. The festivals in his honour commemorative of birthday, of victories, and of vows, filled the calendar. When Caesar came to the capital, his principal servants marched forth in troops to great distances so as to meet and escort him. To be near to him began to be of such importance, that the rents rose in the quarter of the city where he dwelt. Personal interviews with him were rendered so difficult by the multitude of individuals soliciting audience, that Caesar found himself compelled in many cases to communicate even with his intimate friends in writing, and that persons even of the highest rank had to wait for hours in the antechamber. People felt, more clearly than was agreeable to Caesar himself, that they no longer approached a fellow-citizen. There arose a monarchical aristocracy, which was in a remarkable manner at once new and old, and which had sprung out of the idea of casting into the shade the aristocracy of the oligarchy by that of royalty, the nobility by the patriciate. The patrician body still subsisted, although without essential privileges as an order, in the character of a close aristocratic guild;(19) but as it could receive no new -gentes-(20) it had dwindled away more and more in the course of centuries, and in the time of Caesar there were not more than fifteen or sixteen patrician -gentes- still in existence. Caesar, himself sprung from one of them, got the right of creating new patrician -gentes- conferred on the Imperator by decree of the people, and so established, in contrast to the republican nobility, the new aristocracy of the patriciate, which most happily combined all the requisites of a monarchical aristocracy—the charm of antiquity, entire dependence on the

government, and total insignificance. On all sides the new sovereignty revealed itself.

Under a monarch thus practically unlimited there could hardly be scope for a constitution at all—still less for a continuance of the hitherto existing commonwealth based on the legal co-operation of the burgesses, the senate, and the several magistrates. Caesar fully and definitely reverted to the tradition of the regal period; the burgess-assembly remained—what it had already been, in that period— by the side of and with the king the supreme and ultimate expression of the will of the sovereign people; the senate was brought back to its original destination of giving advice to the ruler when he requested it; and lastly the ruler concentrated in his person anew the whole magisterial authority, so that there existed no other independent state-official by his side any more than by the side of the kings of the earliest times.

Legislation

Edicts

For legislation the democratic monarch adhered to the primitive maxim of Roman state-law, that the community of the people in concert with the king convoking them had alone the power of organically regulating the commonwealth; and he had his constitutive enactments regularly sanctioned by decree of the people. The free energy and the authority half-moral, half-political, which the yea or nay of those old warrior-assemblies had carried with it, could not indeed be again instilled into the so-called comitia of this period; the co-operation of the burgesses in legislation, which in the old constitution had been extremely limited but real and living, was in the new practically an unsubstantial shadow. There was therefore no need of special restrictive measures against the comitia; many years' experience had shown that every government—the oligarchy as well as the monarch—easily kept

on good terms with this formal sovereign. These Caesarian comitia were an important element in the Caesarian system and indirectly of practical significance, only in so far as they served to retain in principle the sovereignty of the people and to constitute an energetic protest against sultanism.

But at the same time—as is not only obvious of itself, but is also distinctly attested—the other maxim also of the oldest state-law was revived by Caesar himself, and not merely for the first time by his successors; viz. that what the supreme, or rather sole, magistrate commands is unconditionally valid so long as he remains in office, and that, while legislation no doubt belongs only to the king and the burgesses in concert, the royal edict is equivalent to law at least till the demission of its author.

The Senate as the State-Council of the Monarch

While the democratic king thus conceded to the community of the people at least a formal share in the sovereignty, it was by no means his intention to divide his authority with what had hitherto been the governing body, the college of senators. The senate of Caesar was to be—in a quite different way from the later senate of Augustus—nothing but a supreme council of state, which he made use of for advising with him beforehand as to laws, and for the issuing of the more important administrative ordinances through it, or at least under its name—for cases in fact occurred where decrees of senate were issued, of which none of the senators recited as present at their preparation had any cognizance. There were no material difficulties of form in reducing the senate to its original deliberative position, which it had overstepped more *de facto* than *de jure*; but in this case it was necessary to protect himself from practical resistance, for the Roman senate was as much the headquarters of the opposition to Caesar as the Attic Areopagus was of the opposition to Pericles. Chiefly for this reason the number of senators,

which had hitherto amounted at most to six hundred in its normal condition(21) and had been greatly reduced by the recent crises, was raised by extraordinary supplement to nine hundred; and at the same time, to keep it at least up to this mark, the number of quaestors to be nominated annually, that is of members annually admitted to the senate, was raised from twenty to forty.(22) The extraordinary filling up of the senate was undertaken by the monarch alone. In the case of the ordinary additions he secured to himself a permanent influence through the circumstance, that the electoral colleges were bound by law(23) to give their votes to the first twenty candidates for the quaestorship who were provided with letters of recommendation from the monarch; besides, the crown was at liberty to confer the honorary rights attaching to the quaestorship or to any office superior to it, and consequently a seat in the senate in particular, by way of exception even on individuals not qualified. The selection of the extraordinary members who were added naturally fell in the main on adherents of the new order of things, and introduced, along with -equites- of respectable standing, various dubious and plebeian personages into the proud corporation—former senators who had been erased from the roll by the censor or in consequence of a judicial sentence, foreigners from Spain and Gaul who had to some extent to learn their Latin in the senate, men lately subaltern officers who had not previously received even the equestrian ring, sons of freedmen or of such as followed dishonourable trades, and other elements of a like kind. The exclusive circles of the nobility, to whom this change in the personal composition of the senate naturally gave the bitterest offence, saw in it an intentional depreciation of the very institution itself. Caesar was not capable of such a self-destructive policy; he was as determined not to let himself be governed by his council as he was convinced of the necessity of the institute in itself. They might more correctly have discerned in this proceeding the intention of the monarch to take away from the senate its former character of an exclusive

representation of the oligarchic aristocracy, and to make it once more— what it had been in the regal period— a state-council representing all classes of persons belonging to the state through their most intelligent elements, and not necessarily excluding the man of humble birth or even the foreigner; just as those earliest kings introduced non-burgesses,(24) Caesar introduced non-Italians into his senate.

Personal Government by Caesar

While the rule of the nobility was thus set aside and its existence undermined, and while the senate in its new form was merely a tool of the monarch, autocracy was at the same time most strictly carried out in the administration and government of the state, and the whole executive was concentrated in the hands of the monarch. First of all, the Emperor naturally decided in person every question of any moment. Caesar was able to carry personal government to an extent which we puny men can hardly conceive, and which is not to be explained solely from the unparalleled rapidity and decision of his working, but has moreover its ground in a more general cause. When we see Caesar, Sulla, Gaius Gracchus, and Roman statesmen in general displaying throughout an activity which transcends our notions of human powers of working, the reason lies, not in any change that human nature has undergone since that time, but in the change which has taken place since then in the organization of the household. The Roman house was a machine, in which even the mental powers of the slaves and freedmen yielded their produce to the master; a master, who knew how to govern these, worked as it were with countless minds. It was the beau ideal of bureaucratic centralization; which our counting-house system strives indeed zealously to imitate, but remains as far behind its prototype as the modern power of capital is inferior to the ancient system of slavery. Caesar knew how to profit by this advantage; wherever any post demanded special confidence, we see him filling it up on principle—so far as other

considerations at all permit— with his slaves freedmen, or clients of humble birth. His works as a whole show what an organizing genius like his could accomplish with such an instrument; but to the question, how in detail these marvellous feats were achieved, we have no adequate answer. Bureaucracy resembles a manufactory also in this respect, that the work done does not appear as that of the individual who has worked at it, but as that of the manufactory which stamps it. This much only is quite clear, that Caesar, in his work had no helper at all who exerted a personal influence over it or was even so much as initiated into the whole plan; he was not only the sole master, but he worked also without skilled associates, merely with common labourers.

In Matters of Finance

With respect to details as a matter of course in strictly political affairs Caesar avoided, so far as was at all possible, any delegation of his functions. Where it was inevitable, as especially when during his frequent absence from Rome he had need of a higher organ there, the person destined for this purpose was, significantly enough, not the legal deputy of the monarch, the prefect of the city, but a confidant without officially-recognized jurisdiction, usually Caesar's banker, the cunning and pliant Phoenician merchant Lucius Cornelius Balbus from Gades. In administration Caesar was above all careful to resume the keys of the state-chest—which the senate had appropriated to itself after the fall of the regal power, and by means of which it had possessed itself of the government—and to entrust them only to those servants who with their persons were absolutely and exclusively devoted to him. In respect of ownership indeed the private means of the monarch remained, of course, strictly separate from the property of the state; but Caesar took in hand the administration of the whole financial and monetary system of the state, and conducted it entirely in the way in which he and the Roman grandees generally were wont to

manage the administration of their own means and substance. For the future the levying of the provincial revenues and in the main also the management of the coinage were entrusted to the slaves and freedmen of the Emperor and men of the senatorial order were excluded from it— a momentous step out of which grew in course of time the important class of procurators and the "imperial household."

In the Governorships

Of the governorships on the other hand, which, after they had handed their financial business over to the new imperial tax-receivers, were still more than they had formerly been essentially military commands, that of Egypt alone was transferred to the monarch's own retainers. The country of the Nile, in a peculiar manner geographically isolated and politically centralized, was better fitted than any other district to break off permanently under an able leader from the central power, as the attempts which had repeatedly been made by hard-pressed Italian party-chiefs to establish themselves there during the recent crisis sufficiently proved. Probably it was just this consideration that induced Caesar not to declare the land formally a province, but to leave the harmless Lagids there; and certainly for this reason the legions stationed in Egypt were not entrusted to a man belonging to the senate or, in other words, to the former government, but this command was, just like the posts of tax-receivers, treated as a menial office.⁽²⁵⁾ In general however the consideration had weight with Caesar, that the soldiers of Rome should not, like those of Oriental kings, be commanded by lackeys. It remained the rule to entrust the more important governorships to those who had been consuls, the less important to those who had been praetors; and once more, instead of the five years' interval prescribed by the law of 702,⁽²⁶⁾ the commencement of the governorship probably was in the ancient fashion annexed directly to the close of the official functions in the city. On the other hand the distribution of the

provinces among the qualified candidates, which had hitherto been arranged sometimes by decree of the people or senate, sometimes by concert among the magistrates or by lot, passed over to the monarch. And, as the consuls were frequently induced to abdicate before the end of the year and to make room for after- elected consuls (-consules suffecti-); as, moreover, the number of praetors annually nominated was raised from eight to sixteen, and the nomination of half of them was entrusted to the Imperator in the same way as that of the half of the quaestors; and, lastly, as there was reserved to the Imperator the right of nominating, if not titular consuls, at any rate titular praetors and titular quaestors: Caesar secured a sufficient number of candidates acceptable to him for filling up the governorships. Their recall remained of course left to the discretion of the regent as well as their nomination; as a rule it was assumed that the consular governor should not remain more than two years, nor the praetorian more than one year, in the province.

In the Administration of the Capital

Lastly, so far as concerns the administration of the city which was his capital and residence, the Imperator evidently intended for a time to entrust this also to magistrates similarly nominated by him. He revived the old city-lieutenancy of the regal period;(27) on different occasions he committed during his absence the administration of the capital to one or more such lieutenants nominated by him without consulting the people and for an indefinite period, who united in themselves the functions of all the administrative magistrates and possessed even the right of coining money with their own name, although of course not with their own effigy In 707 and in the first nine months of 709 there were, moreover, neither praetors nor curule aediles nor quaestors; the consuls too were nominated in the former year only towards its close, and in the latter Caesar was even consul without a colleague. This looks altogether like an attempt to revive

completely the old regal authority within the city of Rome, as far as the limits enjoined by the democratic past of the new monarch; in other words, of magistrates additional to the king himself, to allow only the prefect of the city during the king's absence and the tribunes and plebeian aediles appointed for protecting popular freedom to continue in existence, and to abolish the consulship, the censorship, the praetorship, the curule aedileship and the quaestorship.(28) But Caesar subsequently departed from this; he neither accepted the royal title himself, nor did he cancel those venerable names interwoven with the glorious history of the republic. The consuls, praetors, aediles, tribunes, and quaestors retained substantially their previous formal powers; nevertheless their position was totally altered. It was the political idea lying at the foundation of the republic that the Roman empire was identified with the city of Rome, and in consistency with it the municipal magistrates of the capital were treated throughout as magistrates of the empire. In the monarchy of Caesar that view and this consequence of it fell into abeyance; the magistrates of Rome formed thenceforth only the first among the many municipalities of the empire, and the consulship in particular became a purely titular post, which preserved a certain practical importance only in virtue of the reversion of a higher governorship annexed to it. The fate, which the Roman community had been wont to prepare for the vanquished, now by means of Caesar befell itself; its sovereignty over the Roman empire was converted into a limited communal freedom within the Roman state. That at the same time the number of the praetors and quaestors was doubled, has been already mentioned; the same course was followed with the plebeian aediles, to whom two new "corn-aediles" (-aediles Cereales-) were added to superintend the supplies of the capital. The appointment to those offices remained with the community, and was subject to no restriction as respected the consuls and perhaps also the tribunes of the people and plebeian aediles; we have already adverted to the fact, that the Emperor reserved a right of proposal binding on the electors as regards

the half of the praetors, curule aediles, and quaestors to be annually nominated. In general the ancient and hallowed palladia of popular freedom were not touched; which, of course, did not prevent the individual refractory tribune of the people from being seriously interfered with and, in fact, deposed and erased from the roll of senators.

As the Emperor was thus, for the more general and more important questions, his own minister; as he controlled the finances by his servants, and the army by his adjutants; and as the old republican state-magistracies were again converted into municipal magistracies of the city of Rome; the autocracy was sufficiently established.

The State-Hierarchy

In the spiritual hierarchy on the other hand Caesar, although he issued a detailed law respecting this portion of the state-economy, made no material alteration, except that he connected with the person of the regent the supreme pontificate and perhaps also the membership of the higher priestly colleges generally; and, partly in connection with this, one new stall was created in each of the three supreme colleges, and three new stalls in the fourth college of the banquet-masters. If the Roman state-hierarchy had hitherto served as a support to the ruling oligarchy, it might render precisely the same service to the new monarchy. The conservative religious policy of the senate was transferred to the new kings of Rome; when the strictly conservative Varro published about this time his "Antiquities of Divine Things," the great fundamental repository of Roman state-theology, he was allowed to dedicate it to the -Pontifex Maximus- Caesar. The faint lustre which the worship of Jovis was still able to impart shone round the newly-established throne; and the old national faith became in its last stages the instrument of a Caesarian papacy, which, however, was from the outset but hollow and feeble.

Regal Jurisdiction

In judicial matters, first of all, the old regal jurisdiction was re-established. As the king had originally been judge in criminal and civil causes, without being legally bound in the former to respect an appeal to the prerogative of mercy in the people, or in the latter to commit the decision of the question in dispute to jurymen; so Caesar claimed the right of bringing capital causes as well as private processes for sole and final decision to his own bar, and disposing of them in the event of his presence personally, in the event of his absence by the city-lieutenant. In fact, we find him, quite after the manner of the ancient kings, now sitting in judgment publicly in the Forum of the capital on Roman burgesses accused of high treason, now holding a judicial inquiry, in his house regarding the client princes accused of the like crime; so that the only privilege, which the Roman burgesses had as compared with the other subjects of the king, seems to have consisted in the publicity of the judicial procedure. But this resuscitated supreme jurisdiction of the kings, although Caesar discharged its duties with impartiality and care, could only from the nature of the case find practical application in exceptional cases.

Retention of the Previous Administration of Justice

For the usual procedure in criminal and civil causes the former republican mode of administering justice was substantially retained. Criminal causes were still disposed of as formerly before the different jury-commissions competent to deal with the several crimes, civil causes partly before the court of inheritance or, as it was commonly called, of the -centumviri-, partly before the single -iudices-; the superintendence of judicial proceedings was as formerly conducted in the capital chiefly by the praetors, in the provinces by the governors. Political crimes too continued even under the monarchy to be referred to a jury-commission; the new

ordinance, which Caesar issued respecting them, specified the acts legally punishable with precision and in a liberal spirit which excluded all prosecution of opinions, and it fixed as the penalty not death, but banishment. As respects the selection of the jurymen, whom the senatorial party desired to see chosen exclusively from the senate and the strict Gracchans exclusively from the equestrian order, Caesar, faithful to the principle of reconciling the parties, left the matter on the footing of the compromise-law of Cotta,(29) but with the modification— for which the way was probably prepared by the law of Pompeius of 699(30)-that the -tribuni aerarii- who came from the lower ranks of the people were set aside; so that there was established a rating for jurymen of at least 400,000 sesterces (4000 pounds), and senators and equites now divided the functions of jurymen which had so long been an apple of discord between them.

Appeal to the Monarch

The relations of the regal and the republican jurisdiction were on the whole co-ordinate, so that any cause might be initiated as well before the king's bar as before the competent republican tribunal, the latter of course in the event of collision giving way; if on the other hand the one or the other tribunal had pronounced sentence, the cause was thereby finally disposed of. To overturn a verdict pronounced by the jurymen duly called to act in a civil or in a criminal cause even the new ruler was not entitled, except where special incidents, such as corruption or violence, already according to the law of the republic gave occasion for cancelling the jurymen's sentence. On the other hand the principle that, as concerned any decree emanating merely from magistrates, the person aggrieved by it was entitled to appeal to the superior of the decreeing authority, probably obtained even now the great extension, out of which the subsequent imperial appellate jurisdiction arose; perhaps all the magistrates administering law, at least the

governors of all the provinces, were regarded so far as subordinates of the ruler, that appeal to him might be lodged from any of their decrees.

Decay of the Judicial System

Certainly these innovations, the most important of which— the general extension given to appeal—cannot even be reckoned absolutely an improvement, by no means healed thoroughly the evils from which the Roman administration of justice was suffering. Criminal procedure cannot be sound in any slave-state, inasmuch as the task of proceeding against slaves lies, if not *de jure*, at least *de facto* in the hands of the master. The Roman master, as may readily be conceived, punished throughout the crime of his serf, not as a crime, but only so far as it rendered the slave useless or disagreeable to him; slave criminals were merely drafted off somewhat like oxen addicted to goring, and, as the latter were sold to the butcher, so were the former sold to the fencing-booth. But even the criminal procedure against free men, which had been from the outset and always in great part continued to be a political process, had amidst the disorder of the last generations become transformed from a grave legal proceeding into a faction- fight to be fought out by means of favour, money, and violence. The blame rested jointly on all that took part in it, on the magistrates, the jury, the parties, even the public who were spectators; but the most incurable wounds were inflicted on justice by the doings of the advocates. In proportion as the parasitic plant of Roman forensic eloquence flourished, all positive ideas of right became broken up; and the distinction, so difficult of apprehension by the public, between opinion and evidence was in reality expelled from the Roman criminal practice. "A plain simple defendant," says a Roman advocate of much experience at this period, "may be accused of any crime at pleasure which he has or has not committed, and will be certainly condemned." Numerous pleadings in criminal causes have been preserved to us from this epoch; there is hardly one of them which makes

even a serious attempt to fix the crime in question and to put into proper shape the proof or counterproof.(31) That the contemporary civil procedure was likewise in various respects unsound, we need hardly mention; it too suffered from the effects of the party politics mixed up with all things, as for instance in the process of Publius Quinctius (671-673), where the most contradictory decisions were given according as Cinna or Sulla had the ascendancy in Rome; and the advocates, frequently non-jurists, produced here also intentionally and unintentionally abundance of confusion. But it was implied in the nature of the case, that party mixed itself up with such matters only by way of exception, and that here the quibbles of advocates could not so rapidly or so deeply break up the ideas of right; accordingly the civil pleadings which we possess from this epoch, while not according to our stricter ideas effective compositions for their purpose, are yet of a far less libellous and far more juristic character than the contemporary speeches in criminal causes. If Caesar permitted the curb imposed on the eloquence of advocates by Pompeius(32) to remain, or even rendered it more severe, there was at least nothing lost by this; and much was gained, when better selected and better superintended magistrates and jurymen were nominated and the palpable corruption and intimidation of the courts came to an end. But the sacred sense of right and the reverence for the law, which it is difficult to destroy in the minds of the multitude, it is still more difficult to reproduce. Though the legislator did away with various abuses, he could not heal the root of the evil; and it might be doubted whether time, which cures everything curable, would in this case bring relief.

Decay of the Roman Military System

The Roman military system of this period was nearly in the same condition as the Carthaginian at the time of Hannibal. The governing classes furnished only the officers; the subjects, plebeians and provincials, formed the army. The general was, financially and militarily, almost

independent of the central government, and, whether in fortune or misfortune, substantially left to himself and to the resources of his province. Civic and even national spirit had vanished from the army, and the esprit de corps was alone left as a bond of inward union. The army had ceased to be an instrument of the commonwealth; in a political point of view it had no will of its own, but it was doubtless able to adopt that of the master who wielded it; in a military point of view it sank under the ordinary miserable leaders into a disorganized useless rabble, but under a right general it attained a military perfection which the burgess-army could never reach. The class of officers especially had deeply degenerated. The higher ranks, senators and equites, grew more and more unused to arms. While formerly there had been a zealous competition for the posts of staff officers, now every man of equestrian rank, who chose to serve, was sure of a military tribuneship, and several of these posts had even to be filled with men of humbler rank; and any man of quality at all who still served sought at least to finish his term of service in Sicily or some other province where he was sure not to face the enemy. Officers of ordinary bravery and efficiency were stared at as prodigies; as to Pompeius especially, his contemporaries practised a military idolatry which in every respect compromised them. The staff, as a rule, gave the signal for desertion and for mutiny; in spite of the culpable indulgence of the commanders proposals for the cashiering of officers of rank were daily occurrences. We still possess the picture—drawn not without irony by Caesar's own hand—of the state of matters at his own headquarters when orders were given to march against Ariovistus, of the cursing and weeping, and preparing of testaments, and presenting even of requests for furlough. In the soldiery not a trace of the better classes could any longer be discovered. Legally the general obligation to bear arms still subsisted; but the levy, if resorted to alongside of enlisting, took place in the most irregular manner; numerous persons liable to serve were wholly passed over, while those once levied were retained thirty years and longer

beneath the eagles. The Roman burgess-cavalry now merely vegetated as a sort of mounted noble guard, whose perfumed cavaliers and exquisite high-bred horses only played a part in the festivals of the capital; the so-called burgess-infantry was a troop of mercenaries swept together from the lowest ranks of the burgess-population; the subjects furnished the cavalry and the light troops exclusively, and came to be more and more extensively employed also in the infantry. The posts of centurions in the legions, on which in the mode of warfare of that time the efficiency of the divisions essentially depended, and to which according to the national military constitution the soldier served his way upward with the pike, were now not merely regularly conferred according to favour, but were not unfrequently sold to the highest bidder. In consequence of the bad financial management of the government and the venality and fraud of the great majority of the magistrates, the payment of the soldiers was extremely defective and irregular.

The necessary consequence of this was, that in the ordinary course of things the Roman armies pillaged the provincials, mutinied against their officers, and ran off in presence of the enemy; instances occurred where considerable armies, such as the Macedonian army of Piso in 697,(33) were without any proper defeat utterly ruined, simply by this misconduct. Capable leaders on the other hand, such as Pompeius, Caesar, Gabinius, formed doubtless out of the existing materials able and effective, and to some extent exemplary, armies; but these armies belonged far more to their general than to the commonwealth. The still more complete decay of the Roman marine—which, moreover, had remained an object of antipathy to the Romans and had never been fully nationalized—scarcely requires to be mentioned. Here too, on all sides, everything that could be ruined at all had been reduced to ruin under the oligarchic government.

Its Reorganization by Caesar

The reorganization of the Roman military system by Caesar was substantially limited to the tightening and strengthening of the reins of discipline, which had been relaxed under the negligent and incapable supervision previously subsisting. The Roman military system seemed to him neither to need, nor to be capable of, radical reform; he accepted the elements of the army, just as Hannibal had accepted them. The enactment of his municipal ordinance that, in order to the holding of a municipal magistracy or sitting in the municipal council before the thirtieth year, three years' service on horseback—that is, as officer—or six years' service on foot should be required, proves indeed that he wished to attract the better classes to the army; but it proves with equal clearness that amidst the ever-increasing prevalence of an unwarlike spirit in the nation he himself held it no longer possible to associate the holding of an honorary office with the fulfilment of the time of service unconditionally as hitherto. This very circumstance serves to explain why Caesar made no attempt to re-establish the Roman burgess-cavalry. The levy was better arranged, the time of service was regulated and abridged; otherwise matters remained on the footing that the infantry of the line were raised chiefly from the lower orders of the Roman burgesses, the cavalry and the light infantry from the subjects. That nothing was done for the reorganization of the fleet, is surprising.

Foreign Mercenaries Adjutants of the Legion

It was an innovation—hazardous beyond doubt even in the view of its author—to which the untrustworthy character of the cavalry furnished by the subjects compelled him,(34) that Caesar for the first time deviated from the old Roman system of never fighting with mercenaries, and incorporated in the cavalry hired foreigners, especially Germans. Another innovation was the appointment of adjutants of the legion (-legati legionis-). Hitherto the

military tribunes, nominated partly by the burgesses, partly by the governor concerned, had led the legions in such a way that six of them were placed over each legion, and the command alternated among these; a single commandant of the legion was appointed by the general only as a temporary and extraordinary measure. In subsequent times on the other hand those colonels or adjutants of legions appear as a permanent and organic institution, and as nominated no longer by the governor whom they obey, but by the supreme command in Rome; both changes seem referable to Caesar's arrangements connected with the Gabinian law.⁽³⁵⁾ The reason for the introduction of this important intervening step in the military hierarchy must be sought partly in the necessity for a more energetic centralization of the command, partly in the felt want of capable superior officers, partly and chiefly in the design of providing a counterpoise to the governor by associating with him one or more colonels nominated by the Emperor.

The New Commandership-in-Chief

The most essential change in the military system consisted in the institution of a permanent military head in the person of the Emperor, who, superseding the previous unmilitary and in every respect incapable governing corporation, united in his hands the whole control of the army, and thus converted it from a direction which for the most part was merely nominal into a real and energetic supreme command. We are not properly informed as to the position which this supreme command occupied towards the special commands hitherto omnipotent in their respective spheres. Probably the analogy of the relation subsisting between the praetor and the consul or the consul and the dictator served generally as a basis, so that, while the governor in his own right retained the supreme military authority in his province, the Emperor was entitled at any moment to take it away from him and assume it for himself or his delegates, and, while the

authority of the governor was confined to the province, that of the Emperor, like the regal and the earlier consular authority, extended over the whole empire. Moreover it is extremely probable that now the nomination of the officers, both the military tribunes and the centurions, so far as it had hitherto belonged to the governor,(36) as well as the nomination of the new adjutants of the legion, passed directly into the hands of the Emperor; and in like manner even now the arrangement of the levies, the bestowal of leave of absence, and the more important criminal cases, may have been submitted to the judgment of the commander-in-chief. With this limitation of the powers of the governors and with the regulated control of the Emperor, there was no great room to apprehend in future either that the armies might be utterly disorganized or that they might be converted into retainers personally devoted to their respective officers.

Caesar's Military Plans

Defence of the Frontier

But, however decidedly and urgently the circumstances pointed to military monarchy, and however distinctly Caesar took the supreme command exclusively for himself, he was nevertheless not at all inclined to establish his authority by means of, and on, the army. No doubt he deemed a standing army necessary for his state, but only because from its geographical position it required a comprehensive regulation of the frontiers and permanent frontier garrisons. Partly at earlier periods, partly during the recent civil war, he had worked at the tranquillizing of Spain, and had established strong positions for the defence of the frontier in Africa along the great desert, and in the north-west of the empire along the line of the Rhine. He occupied himself with similar plans for the regions on the Euphrates and on the Danube. Above all he designed an expedition against the Parthians, to avenge the day of Carrhae; he had destined three years for this war, and was resolved to settle accounts with these dangerous enemies

once for all and not less cautiously than thoroughly. In like manner he had projected the scheme of attacking Burebistas king of the Getae, who was greatly extending his power on both sides of the Danube,(37) and of protecting Italy in the north-east by border-districts similar to those which he had created for it in Gaul. On the other hand there is no evidence at all that Caesar contemplated like Alexander a career of victory extending indefinitely far; it is said indeed that he had intended to march from Parthia to the Caspian and from this to the Black Sea and then along its northern shores to the Danube, to annex to the empire all Scythia and Germany as far as the Northern Ocean—which according to the notions of that time was not so very distant from the Mediterranean—and to return home through Gaul; but no authority at all deserving of credit vouches for the existence of these fabulous projects. In the case of a state which, like the Roman state of Caesar, already included a mass of barbaric elements difficult to be controlled, and had still for centuries to come more than enough to do with their assimilation, such conquests, even granting their military practicability, would have been nothing but blunders far more brilliant and far worse than the Indian expedition of Alexander. Judging both from Caesar's conduct in Britain and Germany and from the conduct of those who became the heirs of his political ideas, it is in a high degree probable that Caesar with Scipio Aemilianus called on the gods not to increase the empire, but to preserve it, and that his schemes of conquest restricted themselves to a settlement of the frontier—measured, it is true, by his own great scale—which should secure the line of the Euphrates, and, instead of the fluctuating and militarily useless boundary of the empire on the north-east, should establish and render defensible the line of the Danube.

Attempts of Caesar to Avert Military Despotism

But, if it remains a mere probability that Caesar ought not to be designated a world-conqueror in the same sense as Alexander and

Napoleon, it is quite certain that his design was not to rest his new monarchy primarily on the support of the army nor generally to place the military authority above the civil, but to incorporate it with, and as far as possible subordinate it to, the civil commonwealth. The invaluable pillars of a military state, those old and far-famed Gallic legions, were honourably dissolved just on account of the incompatibility of their esprit de corps with a civil commonwealth, and their glorious names were only perpetuated in newly-founded urban communities. The soldiers presented by Caesar with allotments of land on their discharge were not, like those of Sulla, settled together—as it were militarily—in colonies of their own, but, especially when they settled in Italy, were isolated as much as possible and scattered throughout the peninsula; it was only in the case of the portions of the Campanian land that remained for disposal, that an aggregation of the old soldiers of Caesar could not be avoided. Caesar sought to solve the difficult task of keeping the soldiers of a standing army within the spheres of civil life, partly by retaining the former arrangement which prescribed merely certain years of service, and not a service strictly constant, that is, uninterrupted by any discharge; partly by the already-mentioned shortening of the term of service, which occasioned a speedier change in the personal composition of the army; partly by the regular settlement of the soldiers who had served out their time as agricultural colonists; partly and principally by keeping the army aloof from Italy and generally from the proper seats of the civil and political life of the nation, and directing the soldier to the points, where according to the opinion of the great king he was alone, in his place—to the frontier stations, that he might ward off the extraneous foe.

Absence of Corps of Guards

The true criterion also of the military state—the development of, and the privileged position assigned to, the corps of guards—is not to be met with

in the case of Caesar. Although as respects the army on active service the institution of a special bodyguard for the general had been already long in existence,(38) in Caesar's system this fell completely into the background; his praetorian cohort seems to have essentially consisted merely of orderly officers or non-military attendants, and never to have been in the proper sense a select corps, consequently never an object of jealousy to the troops of the line. While Caesar even as general practically dropped the bodyguard, he still, less as king tolerated a guard round his person. Although constantly beset by lurking assassins and well aware of it, he yet rejected the proposal of the senate to institute a select guard; dismissed, as soon as things grew in some measure quiet, the Spanish escort which he had made use of at first in the capital; and contented himself with the retinue of lictors sanctioned by traditional usage for the Roman supreme magistrates.

Impracticableness of Ideal

However much of the idea of his party and of his youth—to found a Periclean government in Rome not by virtue of the sword, but by virtue of the confidence of the nation—Caesar had been obliged to abandon in the struggle with realities, he retained even now the fundamental idea—of not founding a military monarchy—with an energy to which history scarcely supplies a parallel. Certainly this too was an impracticable ideal—it was the sole illusion, in regard to which the earnest longing of that vigorous mind was more powerful than its clear judgment. A government, such as Caesar had in view, was not merely of necessity in its nature highly personal, and so liable to perish with the death of its author just as the kindred creations of Pericles and Cromwell with the death of their founders; but, amidst the deeply disorganized state of the nation, it was not at all credible that the eighth king of Rome would succeed even for his lifetime in ruling, as his seven predecessors had ruled, his fellow-burgesses merely by virtue of law and justice, and as little probable that he would succeed in incorporating the

standing army—after it had during the last civil war learned its power and unlearned its reverence—once more as a subservient element in civil society. To any one who calmly considered to what extent reverence for the law had disappeared from the lowest as from the highest ranks of society, the former hope must have seemed almost a dream; and, if with the Marian reform of the military system the soldier generally had ceased to be a citizen,(39) the Campanian mutiny and the battle-field of Thapsus showed with painful clearness the nature of the support which the army now lent to the law. Even the great democrat could only with difficulty and imperfectly hold in check the powers which he had unchained; thousands of swords still at his signal flew from the scabbard, but they were no longer equally ready upon that signal to return to the sheath. Fate is mightier than genius. Caesar desired to become the restorer of the civil commonwealth, and became the founder of the military monarchy which he abhorred; he overthrew the regime of aristocrats and bankers in the state, only to put a military regime in their place, and the commonwealth continued as before to be tyrannized and worked for profit by a privileged minority. And yet it is a privilege of the highest natures thus creatively to err. The brilliant attempts of great men to realize the ideal, though they do not reach their aim, form the best treasure of the nations. It was owing to the work of Caesar that the Roman military state did not become a police-state till after the lapse of several centuries, and that the Roman Emperors, however little they otherwise resembled the great founder of their sovereignty, yet employed the soldier in the main not against the citizen but against the public foe, and esteemed both nation and army too highly to set the latter as constable over the former.

Financial Administration

The regulation of financial matters occasioned comparatively little difficulty in consequence of the solid foundations which the immense

magnitude of the empire and the exclusion of the system of credit supplied. If the state had hitherto found itself in constant financial embarrassment, the fault was far from chargeable on the inadequacy of the state revenues; on the contrary these had of late years immensely increased. To the earlier aggregate income, which is estimated at 200,000,000 sesterces (2,000,000 pounds), there were added 85,000,000 sesterces (850,000 pounds) by the erection of the provinces of Bithynia-Pontus and Syria; which increase, along with the other newly opened up or augmented sources of income, especially from the constantly increasing produce of the taxes on luxuries, far outweighed the loss of the Campanian rents. Besides, immense sums had been brought from extraordinary sources into the exchequer through Lucullus, Metellus, Pompeius, Cato, and others. The cause of the financial embarrassments rather lay partly in the increase of the ordinary and extraordinary expenditure, partly in the disorder of management. Under the former head, the distribution of corn to the multitude of the capital claimed almost exorbitant sums; through the extension given to it by Cato in 691(40) the yearly expenditure for that purpose amounted to 30,000,000 sesterces (300,000 pounds) and after the abolition in 696 of the compensation hitherto paid, it swallowed up even a fifth of the state revenues. The military budget also had risen, since the garrisons of Cilicia, Syria, and Gaul had been added to those of Spain, Macedonia, and the other provinces. Among the extraordinary items of expenditure must be named in the first place the great cost of fitting out fleets, on which, for example, five years after the great razzia of 687, 34,000,000 sesterces (340,000 pounds) were expended at once. Add to this the very considerable sums which were consumed in wars and warlike preparations; such as 18,000,000 sesterces (180,000 pounds) paid at once to Piso merely for the outfit of the Macedonian army, 24,000,000 sesterces (240,000 pounds) even annually to Pompeius for the maintenance and pay of the Spanish army, and similar sums to Caesar for the Gallic legions. But considerable as were these

demands made on the Roman exchequer, it would still have been able probably to meet them, had not its administration once so exemplary been affected by the universal laxity and dishonesty of this age; the payments of the treasury were often suspended merely because of the neglect to call up its outstanding claims. The magistrates placed over it, two of the quaestors—young men annually changed—contented themselves at the best with inaction; among the official staff of clerks and others, formerly so justly held in high esteem for its integrity, the worst abuses now prevailed, more especially since such posts had come to be bought and sold.

Financial Reforms of Caesar

Leasing of the Direct Taxes Abolished

As soon however as the threads of Roman state-finance were concentrated no longer as hitherto in the senate, but in the cabinet of Caesar, new life, stricter order, and more compact connection at once pervaded all the wheels and springs of that great machine. the two institutions, which originated with Gaius Gracchus and ate like a gangrene into the Roman financial system—the leasing of the direct taxes, and the distributions of grain—were partly abolished, partly remodelled. Caesar wished not, like his predecessor, to hold the nobility in check by the banker-aristocracy and the populace of the capital, but to set them aside and to deliver the commonwealth from all parasites whether of high or lower rank; and therefore he went in these two important questions not with Gaius Gracchus, but with the oligarch Sulla. The leasing system was allowed to continue for the indirect taxes, in the case of which it was very old and—under the maxim of Roman financial administration, which was retained inviolable also by Caesar, that the levying of the taxes should at any cost be kept simple and readily manageable— absolutely could not be dispensed with. But the direct taxes were thenceforth universally either treated, like the African and Sardinian deliveries of corn and oil, as contributions in kind

to be directly supplied to the state, or converted, like the revenues of Asia Minor, into fixed money payments, in which case the collection of the several sums payable was entrusted to the tax-districts themselves.

Reform of the Distribution of Corn

The corn-distributions in the capital had hitherto been looked on as a profitable prerogative of the community which ruled and, because it ruled, had to be fed by its subjects. This infamous principle was set aside by Caesar; but it could not be overlooked that a multitude of wholly destitute burgesses had been protected solely by these largesses of food from starvation. In this aspect Caesar retained them. While according to the Sempronian ordinance renewed by Cato every Roman burgess settled in Rome had legally a claim to bread-corn without payment, this list of recipients, which had at last risen to the number of 320,000, was reduced by the exclusion of all individuals having means or otherwise provided for to 150,000, and this number was fixed once for all as the maximum number of recipients of free corn; at the same time an annual revision of the list was ordered, so that the places vacated by removal or death might be again filled up with the most needful among the applicants. By this conversion of the political privilege into a provision for the poor, a principle remarkable in a moral as well as in a historical point of view came for the first time into living operation. Civil society but slowly and gradually works its way to a perception of the interdependence of interests; in earlier antiquity the state doubtless protected its members from the public enemy and the murderer, but it was not bound to protect the totally helpless fellow-citizen from the worse enemy, want, by affording the needful means of subsistence. It was the Attic civilization which first developed, in the Solonian and post-Solonian legislation, the principle that it is the duty of the community to provide for its invalids and indeed for its poor generally and it was Caesar that first developed what in the restricted compass of Attic life had

remained a municipal matter into an organic institution of state, and transformed an arrangement, which was a burden and a disgrace for the commonwealth, into the first of those institutions—in modern times as countless as they are beneficial—where the infinite depth of human compassion contends with the infinite depth of human misery.

The Budget of Income

In addition to these fundamental reforms a thorough revision of the income and expenditure took place. The ordinary sources of income were everywhere regulated and fixed. Exemption from taxation was conferred on not a few communities and even on whole districts, whether indirectly by the bestowal of the Roman or Latin franchise, or directly by special privilege; it was obtained e. g. by all the Sicilian communities⁽⁴¹⁾ in the former, by the town of Ilion in the latter way. Still greater was the number of those whose proportion of tribute was lowered; the communities in Further Spain, for instance, already after Caesar's governorship had on his suggestion a reduction of tribute granted to them by the senate, and now the most oppressed province of Asia had not only the levying of its direct taxes facilitated, but also a third of them wholly remitted. The newly-added taxes, such as those of the communities subdued in Illyria and above all of the Gallic communities—which latter together paid annually 40,000,000 sesterces (400,000 pounds)—were fixed throughout on a low scale. It is true on the other hand that various towns such as Little Leptis in Africa, Sulci in Sardinia, and several Spanish communities, had their tribute raised by way of penalty for their conduct during the last war. The very lucrative Italian harbour-tolls abolished in the recent times of anarchy were re-established all the more readily, that this tax fell essentially on luxuries imported from the east. To these new or revived sources of ordinary income were added the sums which accrued by extraordinary means, especially in consequence of the civil war, to the victor—the booty collected in Gaul; the

stock of cash in the capital; the treasures taken from the Italian and Spanish temples; the sums raised in the shape of forced loan, compulsory present, or fine, from the dependent communities and dynasts, and the pecuniary penalties imposed in a similar way by judicial sentence, or simply by sending an order to pay, on individual wealthy Romans; and above all things the proceeds from the estate of defeated opponents. How productive these sources of income were, we may learn from the fact, that the fine of the African capitalists who sat in the opposition-senate alone amounted to 100,000,000 sesterces (1,000,000 pounds) and the price paid by the purchasers of the property of Pompeius to 70,000,000 sesterces (700,000 pounds). This course was necessary, because the power of the beaten nobility rested in great measure on their colossal wealth and could only be effectually broken by imposing on them the defrayment of the costs of the war. But the odium of the confiscations was in some measure mitigated by the fact that Caesar directed their proceeds solely to the benefit of the state, and, instead of overlooking after the manner of Sulla any act of fraud in his favourites, exacted the purchase-money with rigour even from his most faithful adherents, e. g. from Marcus Antonius.

The Budget of Expenditure

In the expenditure a diminution was in the first place obtained by the considerable restriction of the largesses of grain. The distribution of corn to the poor of the capital which was retained, as well as the kindred supply of oil newly introduced by Caesar for the Roman baths, were at least in great part charged once for all on the contributions in kind from Sardinia and especially from Africa, and were thereby wholly or for the most part kept separate from the exchequer. On the other hand the regular expenditure for the military system was increased partly by the augmentation of the standing army, partly by the raising of the pay of the legionary from 480 sesterces (5 pounds) to 900 (9 pounds) annually. Both steps were in fact

indispensable. There was a total want of any real defence for the frontiers, and an indispensable preliminary to it was a considerable increase of the army. The doubling of the pay was doubtless employed by Caesar to attach his soldiers firmly to him,(42) but was not introduced as a permanent innovation on that account. The former pay of $1\frac{1}{3}$ sesterces ($3\frac{1}{4}$ pence) per day had been fixed in very ancient times, when money had an altogether different value from that which it had in the Rome of Caesar's day; it could only have been retained down to a period when the common day-labourer in the capital earned by the labour of his hands daily on an average 3 sesterces ($7\frac{1}{2}$ pence), because in those times the soldier entered the army not for the sake of the pay, but chiefly for the sake of the—in great measure illicit—perquisites of military service. The first condition in order to a serious reform in the military system, and to the getting rid of those irregular gains of the soldier which formed a burden mostly on the provincials, was an increase suitable to the times in the regular pay; and the fixing of it at $2\frac{1}{2}$ sesterces ($6\frac{1}{2}$ pence) may be regarded as an equitable step, while the great burden thereby imposed on the treasury was a necessary, and in its consequences a beneficial, course.

Of the amount of the extraordinary expenses which Caesar had to undertake or voluntarily undertook, it is difficult to form a conception. The wars themselves consumed enormous sums; and sums perhaps not less were required to fulfil the promises which Caesar had been obliged to make during the civil war. It was a bad example and one unhappily not lost sight of in the sequel, that every common soldier received for his participation in the civil war 20,000 sesterces (200 pounds), every burgess of the multitude in the capital for his non-participation in it 300 sesterces (3 pounds) as an addition to his aliment; but Caesar, after having once under the pressure of circumstances pledged his word, was too much of a king to abate from it. Besides, Caesar answered innumerable demands of honourable liberality, and put into circulation immense sums for building more especially, which

had been shamefully neglected during the financial distress of the last times of the republic—the cost of his buildings executed partly during the Gallic campaigns, partly afterwards, in the capital was reckoned at 160,000,000 sesterces (1,600,000 pounds). The general result of the financial administration of Caesar is expressed in the fact that, while by sagacious and energetic reforms and by a right combination of economy and liberality he amply and fully met all equitable claims, nevertheless already in March 710 there lay in the public treasury 700,000,000 and in his own 100,000,000 sesterces (together 8,000,000 pounds)—a sum which exceeded by tenfold the amount of cash in the treasury in the most flourishing times of the republic.(43)

Social Condition of the Nation

But the task of breaking up the old parties and furnishing the new commonwealth with an appropriate constitution, an efficient army, and well-ordered finances, difficult as it was, was not the most difficult part of Caesar's work. If the Italian nation was really to be regenerated, it required a reorganization which should transform all parts of the great empire—Rome, Italy, and the provinces. Let us endeavour here also to delineate the old state of things, as well as the beginnings of a new and more tolerable time.

The Capital

The good stock of the Latin nation had long since wholly disappeared from Rome. It is implied in the very nature of the case, that a capital loses its municipal and even its national stamp more quickly than any subordinate community. There the upper classes speedily withdraw from urban public life, in order to find their home rather in the state as a whole than in a single city; there are inevitably concentrated the foreign settlers, the fluctuating population of travellers for pleasure or business, the mass of the indolent,

lazy, criminal, financially and morally bankrupt, and for that very reason cosmopolitan, rabble. All this preeminently applied to Rome. The opulent Roman frequently regarded his town-house merely as a lodging. When the urban municipal offices were converted into imperial magistracies; when the civic assembly became the assembly of burgesses of the empire; and when smaller self-governing tribal or other associations were not tolerated within the capital: all proper communal life ceased for Rome. From the whole compass of the widespread empire people flocked to Rome, for speculation, for debauchery, for intrigue, for training in crime, or even for the purpose of hiding there from the eye of the law.

The Populace There

These evils arose in some measure necessarily from the very nature of a capital; others more accidental and perhaps still more grave were associated with them. There has never perhaps existed a great city so thoroughly destitute of the means of support as Rome; importation on the one hand, and domestic manufacture by slaves on the other, rendered any free industry from the outset impossible there. The injurious consequences of the radical evil pervading the politics of antiquity in general—the slave-system—were more conspicuous in the capital than anywhere else. Nowhere were such masses of slaves accumulated as in the city palaces of the great families or of wealthy upstarts. Nowhere were the nations of the three continents mingled as in the slave-population of the capital—Syrians, Phrygians and other half-Hellenes with Libyans and Moors, Getae, and Iberians with the daily-increasing influx of Celts and Germans. The demoralization inseparable from the absence of freedom, and the terrible inconsistency between formal and moral right, were far more glaringly apparent in the case of the half or wholly cultivated—as it were genteel—city-slave than, in that of the rural serf who tilled the field in chains like the fettered ox. Still worse than the masses of slaves were those who had been *de jure* or simply

de facto released from slavery— a mixture of mendicant rabble and very rich parvenus, no longer slaves and not yet fully burgesses, economically and even legally dependent on their master and yet with the pretensions of free men; and these freedmen made their way above all towards the capital, where gain of various sorts was to be had and the retail traffic as well as the minor handicrafts were almost wholly in their hands. Their influence on the elections is expressly attested; and that they took a leading part in the street riots, is very evident from the ordinary signal by means of which these were virtually proclaimed by the demagogues—the closing of the shops and places of sale.

Relations of the Oligarchy to the Populace

Moreover, the government not only did nothing to counteract this corruption of the population of the capital, but even encouraged it for the benefit of their selfish policy. The judicious rule of law, which prohibited individuals condemned for a capital offence from dwelling in the capital, was not carried into effect by the negligent police. The police-supervision—so urgently required— of association on the part of the rabble was at first neglected, and afterwards⁽⁴⁴⁾ even declared punishable as a restriction inconsistent with the freedom of the people. The popular festivals had been allowed so to increase that the seven ordinary ones alone—the Roman, the Plebeian, those of the Mother of the Gods, of Ceres, of Apollo, of Flora⁽⁴⁵⁾ and of Victoria—lasted altogether sixty-two days; and to these were added the gladiatorial games and numerous other extraordinary amusements. The duty of providing grain at low prices— which was unavoidably necessary with such a proletariat living wholly from hand to mouth—was treated with the most unscrupulous frivolity, and the fluctuations in the price of bread-corn were of a fabulous and incalculable description.⁽⁴⁶⁾ Lastly, the distribution of grain formed an official invitation to the whole burgess-

proletariate who were destitute of food and indisposed for work to take up their abode in the capital.

Anarchy of the Capital

The seed sown was bad, and the harvest corresponded. The system of clubs and bands in the sphere of politics, the worship of Isis and similar pious extravagances in that of religion, had their root in this state of things. People were constantly in prospect of a dearth, and not unfrequently in utter famine. Nowhere was a man less secure of his life than in the capital; murder professionally prosecuted by banditti was the single trade peculiar to it; the alluring of the victim to Rome was the preliminary to his assassination; no one ventured into the country in the vicinity of the capital without an armed retinue. Its outward condition corresponded to this inward disorganization, and seemed a keen satire on the aristocratic government. Nothing was done for the regulation of the stream of the Tiber; excepting that they caused the only bridge, with which they still made shift,(47) to be constructed of stone at least as far as the Tiber-island. As little was anything done toward the levelling of the city of the Seven Hills, except where perhaps the accumulation of rubbish had effected some improvement. The streets ascended and descended narrow and angular, and were wretchedly kept; the footpaths were small and ill paved. The ordinary houses were built of bricks negligently and to a giddy height, mostly by speculative builders on account of the small proprietors; by which means the former became vastly rich, and the latter were reduced to beggary. Like isolated islands amidst this sea of wretched buildings were seen the splendid palaces of the rich, which curtailed the space for the smaller houses just as their owners curtailed the burgess- rights of smaller men in the state, and beside whose marble pillars and Greek statues the decaying temples, with their images of the gods still in great part carved of wood, made a melancholy figure. A police-supervision of streets, of river-banks, of fires, or of building was

almost unheard of; if the government troubled itself at all about the inundations, conflagrations, and falls of houses which were of yearly occurrence, it was only to ask from the state-theologians their report and advice regarding the true import of such signs and wonders. If we try to conceive to ourselves a London with the slave-population of New Orleans, with the police of Constantinople, with the non-industrial character of the modern Rome, and agitated by politics after the fashion of the Paris in 1848, we shall acquire an approximate idea of the republican glory, the departure of which Cicero and his associates in their sulky letters deplore.

Caesar's Treatment of Matters in the Capital

Caesar did not deplore, but he sought to help so far as help was possible. Rome remained, of course, what it was— a cosmopolitan city. Not only would the attempt to give to it once more a specifically Italian character have been impracticable; it would not have suited Caesar's plan. Just as Alexander found for his Graeco-Oriental empire an appropriate capital in the Hellenic, Jewish, Egyptian, and above all cosmopolitan, Alexandria, so the capital of the new Romano-Hellenic universal empire, situated at the meeting-point of the east and the west, was to be not an Italian community, but the denationalized capital of many nations. For this reason Caesar tolerated the worship of the newly-settled Egyptian gods alongside of Father Jovis, and granted even to the Jews the free exercise of their strangely foreign ritual in the very capital of the empire. However offensive was the motley mixture of the parasitic—especially the Helleno-Oriental—population in Rome, he nowhere opposed its extension; it is significant, that at his popular festivals for the capital he caused dramas to be performed not merely in Latin and Greek, but also in other languages, presumably in Phoenician, Hebrew, Syrian, Spanish.

Diminution of the Proletariate

But, if Caesar accepted with the full consciousness of what he was doing the fundamental character of the capital such as he found it, he yet worked energetically at the improvement of the lamentable and disgraceful state of things prevailing there. Unhappily the primary evils were the least capable of being eradicated. Caesar could not abolish slavery with its train of national calamities; it must remain an open question, whether he would in the course of time have attempted at least to limit the slave-population in the capital, as he undertook to do so in another field. As little could Caesar conjure into existence a free industry in the capital; yet the great building-operations remedied in some measure the want of means of support there, and opened up to the proletariat a source of small but honourable gain. On the other hand Caesar laboured energetically to diminish the mass of the free proletariat. The constant influx of persons brought by the corn-largesses to Rome was, if not wholly stopped,(48) at least very materially restricted by the conversion of these largesses into a provision for the poor limited to a fixed number. The ranks of the existing proletariat were thinned on the one hand by the tribunals which were instructed to proceed with unrelenting rigour against the rabble, on the other hand by a comprehensive transmarine colonization; of the 80,000 colonists whom Caesar sent beyond the seas in the few years of his government, a very great portion must have been taken from the lower ranks of the population of the capital; most of the Corinthian settlers indeed were freedmen. When in deviation from the previous order of things, which precluded the freedmen from any urban honorary office, Caesar opened to them in his colonies the doors of the senate-house, this was doubtless done in order to gain those of them who were in better positions to favour the cause of emigration. This emigration, however, must have been more than a mere temporary arrangement; Caesar, convinced like every other man of sense that the only true remedy for the misery of the proletariat consisted in a well-regulated system of colonization, and placed by the condition of the empire in a

position to realize it to an almost unlimited extent, must have had the design of permanently continuing the process, and so opening up a constant means of abating an evil which was constantly reproducing itself. Measures were further taken to set bounds to the serious fluctuations in the price of the most important means of subsistence in the markets of the capital. The newly-organized and liberally-administered finances of the state furnished the means for this purpose, and two newly-nominated magistrates, the corn-aediles(49) were charged with the special supervision of the contractors and of the market of the capital.

The Club System Restricted

The club system was checked, more effectually than was possible through prohibitive laws, by the change of the constitution; inasmuch as with the republic and the republican elections and tribunals the corruption and violence of the electioneering and judicial -collegia—and generally the political Saturnalia of the -canaille— came to an end of themselves. Moreover the combinations called into existence by the Clodian law were broken up, and the whole system of association was placed under the superintendence of the governing authorities. With the exception of the ancient guilds and associations, of the religious unions of the Jews, and of other specially excepted categories, for which a simple intimation to the senate seems to have sufficed, the permission to constitute a permanent society with fixed times of assembling and standing deposits was made dependent on a concession to be granted by the senate, and, as a rule, doubtless only after the consent of the monarch had been obtained.

Street Police

To this was added a stricter administration of criminal justice and an energetic police. The laws, especially as regards the crime of violence, were rendered more stringent; and the irrational enactment of the republican law,

that the convicted criminal was entitled to withdraw himself from a part of the penalty which he had incurred by self-banishment, was with reason set aside. The detailed regulations, which Caesar issued regarding the police of the capital, are in great part still preserved; and all who choose may convince themselves that the Emperor did not disdain to insist on the house-proprietors putting the streets into repair and paving the footpath in its whole breadth with hewn stones, and to issue appropriate enactments regarding the carrying of litters and the driving of waggons, which from the nature of the streets were only allowed to move freely through the capital in the evening and by night. The supervision of the local police remained as hitherto chiefly with the four aediles, who were instructed now at least, if not earlier, each to superintend a distinctly marked-off police district within the capital.

Buildings of the Capital

Lastly, building in the capital, and the provision connected therewith of institutions for the public benefit, received from Caesar—who combined in himself the love for building of a Roman and of an organizer—a sudden stimulus, which not merely put to shame the mismanagement of the recent anarchic times, but also left all that the Roman aristocracy had done in their best days as far behind as the genius of Caesar surpassed the honest endeavours of the Marcii and Aemilii. It was not merely by the extent of the buildings in themselves and the magnitude of the sums expended on them that Caesar excelled his predecessors; but a genuine statesmanly perception of what was for the public good distinguishes what Caesar did for the public institutions of Rome from all similar services. He did not build, like his successors, temples and other splendid structures, but he relieved the marketplace of Rome—in which the burgess-assemblies, the seats of the chief courts, the exchange, and the daily business-traffic as well as the daily idleness, still were crowded together—at least from the assemblies and the

courts by constructing for the former a new -comitium-, the Saepta Julia in the Campus Martius, and for the latter a separate place of judicature, the Forum Julium between the Capitol and Palatine. Of a kindred spirit is the arrangement originating with him, by which there were supplied to the baths of the capital annually three million pounds of oil, mostly from Africa, and they were thereby enabled to furnish to the bathers gratuitously the oil required for the anointing of the body—a measure of cleanliness and sanitary policy which, according to the ancient dietetics based substantially on bathing and anointing, was highly judicious.

But these noble arrangements were only the first steps towards a complete remodelling of Rome. Projects were already formed for a new senate-house, for a new magnificent bazaar, for a theatre to rival that of Pompeius, for a public Latin and Greek library after the model of that recently destroyed at Alexandria—the first institution of the sort in Rome—lastly for a temple of Mars, which was to surpass all that had hitherto existed in riches and glory. Still more brilliant was the idea, first, of constructing a canal through the Pomptine marshes and drawing off their waters to Tarracina, and secondly, of altering the lower course of the Tiber and of leading it from the present Ponte Molle, not through between the Campus Vaticanus and the Campus Martius, but rather round the Campus Vaticanus and the Janiculum to Ostia, where the miserable roadstead was to give place to an adequate artificial harbour. By this gigantic plan on the one hand the most dangerous enemy of the capital, the malaria of the neighbourhood would be banished; on the other hand the extremely limited facilities for building in the capital would be at once enlarged by substituting the Campus Vaticanus thereby transferred to the left bank of the Tiber for the Campus Martius, and allowing the latter spacious field to be applied for public and private edifices; while the capital would at the same time obtain a safe seaport, the want of which was so painfully felt. It

seemed as if the Emperor would remove mountains and rivers, and venture to contend with nature herself.

Much however as the city of Rome gained by the new order of things in commodiousness and magnificence, its political supremacy was, as we have already said, lost to it irrecoverably through that very change. The idea that the Roman state should coincide with the city of Rome had indeed in the course of time become more and more unnatural and preposterous; but the maxim had been so intimately blended with the essence of the Roman republic, that it could not perish before the republic itself. It was only in the new state of Caesar that it was, with the exception perhaps of some legal fictions, completely set aside, and the community of the capital was placed legally on a level with all other municipalities; indeed Caesar—here as everywhere endeavouring not merely to regulate the thing, but also to call it officially by the right name— issued his Italian municipal ordinance, beyond doubt purposely, at once for the capital and for the other urban communities. We may add that Rome, just because it was incapable of a living communal character as a capital, was even essentially inferior to the other municipalities of the imperial period. The republican Rome was a den of robbers, but it was at the same time the state; the Rome of the monarchy, although it began to embellish itself with all the glories of the three continents and to glitter in gold and marble, was yet nothing in the state but a royal residence in connection with a poor-house, or in other words a necessary evil.

Italy

Italian Agriculture

While in the capital the only object aimed at was to get rid of palpable evils by police ordinances on the greatest scale, it was a far more difficult task to remedy the deep disorganization of Italian economics. Its radical

misfortunes were those which we previously noticed in detail—the disappearance of the agricultural, and the unnatural increase of the mercantile, population— with which an endless train of other evils was associated. The reader will not fail to remember what was the state of Italian agriculture. In spite of the most earnest attempts to check the annihilation of the small holdings, farm-husbandry was scarcely any longer the predominant species of economy during this epoch in any region of Italy proper, with the exception perhaps of the valleys of the Apennines and Abruzzi. As to the management of estates, no material difference is perceptible between the Catonian system formerly set forth(50) and that described to us by Varro, except that the latter shows the traces for better and for worse of the progress of city-life on a great scale in Rome. "Formerly," says Varro, "the barn on the estate was larger than the manor-house; now it is wont to be the reverse." In the domains of Tusculum and Tibur, on the shores of Tarracina and Baiae— where the old Latin and Italian farmers had sown and reaped— there now rose in barren splendour the villas of the Roman nobles, some of which covered the space of a moderate-sized town with their appurtenances of garden-grounds and aqueducts, fresh and salt water ponds for the preservation and breeding of river and marine fishes, nurseries of snails and slugs, game-preserves for keeping hares, rabbits, stags, roes, and wild boars, and aviaries in which even cranes and peacocks were kept. But the luxury of a great city enriches also many an industrious hand, and supports more poor than philanthropy with its expenditure of alms. Those aviaries and fish-ponds of the grandees were of course, as a rule, a very costly indulgence. But this system was carried to such an extent and prosecuted with so much keenness, that e. g. the stock of a pigeon-house was valued at 100,000 sesterces (1000 pounds); a methodical system of fattening had sprung up, and the manure got from the aviaries became of importance in agriculture; a single bird-dealer was able to furnish at once 5000 fieldfares—for they knew how to rear these

also—at three denarii (2 shillings) each, and a single possessor of a fish-pond 2000 -muraenae-; and the fishes left behind by Lucius Lucullus brought 40,000 sesterces (400 pounds). As may readily be conceived, under such circumstances any one who followed this occupation industriously and intelligently might obtain very large profits with a comparatively small outlay of capital. A small bee-breeder of this period sold from his thyme-garden not larger than an acre in the neighbourhood of Falerii honey to an average annual amount of at least 10,000 sesterces (100 pounds). The rivalry of the growers of fruit was carried so far, that in elegant villas the fruit-chamber lined with marble was not unfrequently fitted up at the same time as a dining-room, and sometimes fine fruit acquired by purchase was exhibited there as of home growth. At this period the cherry from Asia Minor and other foreign fruit-trees were first planted in the gardens of Italy. The vegetable gardens, the beds of roses and violets in Latium and Campania, yielded rich produce, and the "market for dainties" (-forum cupedinis-) by the side of the Via Sacra, where fruits, honey, and chaplets were wont to be exposed for sale, played an important part in the life of the capital. Generally the management of estates, worked as they were on the planter-system, had reached in an economic point of view a height scarcely to be surpassed. The valley of Rieti, the region round the Fucine lake, the districts on the Liris and Volturnus, and indeed Central Italy in general, were as respects husbandry in the most flourishing condition; even certain branches of industry, which were suitable accompaniments of the management of an estate by means of slaves, were taken up by intelligent landlords, and, where the circumstances were favourable, inns, weaving factories, and especially brickworks were constructed on the estate. The Italian producers of wine and oil in particular not only supplied the Italian markets, but carried on also in both articles a considerable business of transmarine exportation. A homely professional treatise of this period compares Italy to a great fruit-garden; and the pictures which a

contemporary poet gives of his beautiful native land, where the well-watered meadow, the luxuriant corn-field, the pleasant vine-covered hill are fringed by the dark line of the olive-trees—where the "ornament" of the land, smiling in varied charms, cherishes the loveliest gardens in its bosom and is itself wreathed round by food-producing trees— these descriptions, evidently faithful pictures of the landscape daily presented to the eye of the poet, transplant us into the most flourishing districts of Tuscany and Terra di Lavoro. The pastoral husbandry, it is true, which for reasons formerly explained was always spreading farther especially in the south and south-east of Italy, was in every respect a retrograde movement; but it too participated to a certain degree in the general progress of agriculture; much was done for the improvement of the breeds, e. g. asses for breeding brought 60,000 sesterces (600 pounds), 100,000 (1000 pounds), and even 400,000 (4000 pounds). The solid Italian husbandry obtained at this period, when the general development of intelligence and abundance of capital rendered it fruitful, far more brilliant results than ever the old system of small cultivators could have given; and was carried even already beyond the bounds of Italy, for the Italian agriculturist turned to account large tracts in the provinces by rearing cattle and even cultivating corn.

Money-Dealing

In order to show what dimensions money-dealing assumed by the side of this estate-husbandry unnaturally prospering over the ruin of the small farmers, how the Italian merchants vying with the Jews poured themselves into all the provinces and client-states of the empire, and how all capital ultimately flowed to Rome, it will be sufficient, after what has been already said, to point to the single fact that in the money-market of the capital the regular rate of interest at this time was six per cent, and consequently money there was cheaper by a half than it was on an average elsewhere in antiquity.

Social Disproportion

In consequence of this economic system based both in its agrarian and mercantile aspects on masses of capital and on speculation, there arose a most fearful disproportion in the distribution of wealth. The often-used and often-abused phrase of a commonwealth composed of millionaires and beggars applies perhaps nowhere so completely as to the Rome of the last age of the republic; and nowhere perhaps has the essential maxim of the slave-state—that the rich man who lives by the exertions of his slaves is necessarily respectable, and the poor man who lives by the labour of his hands is necessarily vulgar—been recognized with so terrible a precision as the undoubted principle underlying all public and private intercourse.⁽⁵¹⁾ A real middle class in our sense of the term there was not, as indeed no such class can exist in any fully-developed slave-state; what appears as if it were a good middle class and is so in a certain measure, is composed of those rich men of business and landholders who are so uncultivated or so highly cultivated as to content themselves within the sphere of their activity and to keep aloof from public life. Of the men of business—a class, among whom the numerous freedmen and other upstarts, as a rule, were seized with the giddy fancy of playing the man of quality—there were not very many who showed so much judgment. A model of this sort was the Titus Pomponius Atticus frequently mentioned in the accounts of this period. He acquired an immense fortune partly from the great estate-farming which he prosecuted in Italy and Epirus, partly from his money-transactions which ramified throughout Italy, Greece, Macedonia, and Asia Minor; but at the same time he continued to be throughout the simple man of business, did not allow himself to be seduced into soliciting office or even into monetary transactions with the state, and, equally remote from the avaricious niggardliness and from the prodigal and burdensome luxury of his time—his table, for instance, was maintained at a daily cost of 100 sesterces (1 pound)—contented himself with an easy existence appropriating to itself

the charms of a country and a city life, the pleasures of intercourse with the best society of Rome and Greece, and all the enjoyments of literature and art.

More numerous and more solid were the Italian landholders of the old type. Contemporary literature preserves in the description of Sextus Roscius, who was murdered amidst the proscriptions of 673, the picture of such a rural nobleman (-*pater familias rusticanus*-); his wealth, estimated at 6,000,000 sesterces (60,000 pounds), is mainly invested in his thirteen landed estates; he attends to the management of it in person systematically and with enthusiasm; he comes seldom or never to the capital, and, when he does appear there, by his clownish manners he contrasts not less with the polished senator than the innumerable hosts of his uncouth rural slaves with the elegant train of domestic slaves in the capital. Far more than the circles of the nobility with their cosmopolitan culture and the mercantile class at home everywhere and nowhere, these landlords and the "country towns" to which they essentially gave tone (-*municipia rusticana*-) preserved as well the discipline and manners as the pure and noble language of their fathers. The order of landlords was regarded as the flower of the nation; the speculator, who has made his fortune and wishes to appear among the notables of the land, buys an estate and seeks, if not to become himself the squire, at any rate to rear his son with that view. We meet the traces of this class of landlords, wherever a national movement appears in politics, and wherever literature puts forth any fresh growth; from it the patriotic opposition to the new monarchy drew its best strength; to it belonged Varro, Lucretius, Catullus; and nowhere perhaps does the comparative freshness of this landlord-life come more characteristically to light than in the graceful Arpinate introduction to the second book of Cicero's treatise *De Legibus*—a green oasis amidst the fearful desert of that equally empty and voluminous writer.

The Poor

But the cultivated class of merchants and the vigorous order of landlords were far overgrown by the two classes that gave tone to society—the mass of beggars, and the world of quality proper. We have no statistical figures to indicate precisely the relative proportions of poverty and riches for this epoch; yet we may here perhaps again recall the expression which a Roman statesman employed some fifty years before⁽⁵²⁾—that the number of families of firmly-established riches among the Roman burgesses did not amount to 2000. The burgess-body had since then become different; but clear indications attest that the disproportion between poor and rich had remained at least as great. The increasing impoverishment of the multitude shows itself only too plainly in their crowding to the corn-largesses and to enlistment in the army; the corresponding increase of riches is attested expressly by an author of this generation, when, speaking of the circumstances of the Marian period, he describes an estate of 2,000,000 sesterces (20,000 pounds) as "riches according to the circumstances of that day"; and the statements which we find as to the property of individuals lead to the same conclusion. The very rich Lucius Domitius Ahenobarbus promised to twenty thousand soldiers four -iugera- of land each, out of his own property; the estate of Pompeius amounted to 70,000,000 sesterces (700,000 pounds); that of Aesopus the actor to 20,000,000 (200,000 pounds); Marcus Crassus, the richest of the rich, possessed at the outset of his career, 7,000,000 (70,000 pounds), at its close, after lavishing enormous sums on the people, 170,000,000 sesterces (1,700,000 pounds). The effect of such poverty and such riches was on both sides an economic and moral disorganization outwardly different, but at bottom of the same character. If the common man was saved from starvation only by support from the resources of the state, it was the necessary consequence of this mendicant misery—although it also reciprocally appears as a cause of it—that he addicted himself to the beggar's laziness and to the beggar's good cheer. The

Roman plebeian was fonder of gazing in the theatre than of working; the taverns and brothels were so frequented, that the demagogues found their special account in gaining the possessors of such establishments over to their interests. The gladiatorial games—which revealed, at the same time that they fostered, the worst demoralization of the ancient world—had become so flourishing that a lucrative business was done in the sale of the programmes for them; and it was at this time that the horrible innovation was adopted by which the decision as to the life or death of the vanquished became dependent, not on the law of duel or on the pleasure of the victor, but on the caprice of the onlooking public, and according to its signal the victor either spared or transfixed his prostrate antagonist. The trade of fighting had so risen or freedom had so fallen in value, that the intrepidity and the emulation, which were lacking on the battle fields of this age, were universal in the armies of the arena and, where the law of the duel required, every gladiator allowed himself to be stabbed mutely and without shrinking; that in fact free men not unfrequently sold themselves to the contractors for board and wages as gladiatorial slaves. The plebeians of the fifth century had also suffered want and famine, but they had not sold their freedom; and still less would the jurisconsults of that period have lent themselves to pronounce the equally immoral and illegal contract of such a gladiatorial slave "to let himself be chained, scourged, burnt or killed without opposition, if the laws of the institution should so require" by means of unbecoming juristic subtleties as a contract lawful and actionable.

Extravagance

In the world of quality such things did not occur, but at bottom it was hardly different, and least of all better. In doing nothing the aristocrat boldly competed with the proletarian; if the latter lounged on the pavement, the former lay in bed till far on in the day. Extravagance prevailed here as unbounded as it was devoid of taste. It was lavished on politics and on the

theatre, of course to the corruption of both; the consular office was purchased at an incredible price—in the summer of 700 the first voting-division alone was paid 10,000,000 sesterces (100,000 pounds)—and all the pleasure of the man of culture in the drama was spoilt by the insane luxury of decoration. Rents in Rome appear to have been on an average four times as high as in the country-towns; a house there was once sold for 15,000,000 sesterces (150,000 pounds). The house of Marcus Lepidus (consul in 676) which was at the time of the death of Sulla the finest in Rome, did not rank a generation afterwards even as the hundredth on the list of Roman palaces. We have already mentioned the extravagance practised in the matter of country-houses; we find that 4,000,000 sesterces (40,000 pounds) were paid for such a house, which was valued chiefly for its fishpond; and the thoroughly fashionable grandee now needed at least two villas—one in the Sabine or Alban mountains near the capital, and a second in the vicinity of the Campanian baths—and in addition if possible a garden immediately outside of the gates of Rome. Still more irrational than these villa-palaces were the palatial sepulchres, several of which still existing at the present day attest what a lofty pile of masonry the rich Roman needed in order that he might die as became his rank. Fanciers of horses and dogs too were not wanting; 24,000 sesterces (240 pounds) was no uncommon price for a showy horse. They indulged in furniture of fine wood—a table of African cypress-wood cost 1,000,000 sesterces (10,000 pounds); in dresses of purple stuffs or transparent gauzes accompanied by an elegant adjustment of their folds before the mirror—the orator Hortensius is said to have brought an action of damages against a colleague because he ruffled his dress in a crowd; in precious stones and pearls, which first at this period took the place of the far more beautiful and more artistic ornaments of gold—it was already utter barbarism, when at the triumph of Pompeius over Mithradates the image of the victor appeared wrought wholly of pearls, and when the sofas and the shelves in the dining-hall were

silver-mounted and even the kitchen-utensils were made of silver. In a similar spirit the collectors of this period took out the artistic medallions from the old silver cups, to set them anew in vessels of gold. Nor was there any lack of luxury also in travelling. "When the governor travelled," Cicero tells us as to one of the Sicilian governors, "which of course he did not in winter, but only at the beginning of spring— not the spring of the calendar but the beginning of the season of roses— he had himself conveyed, as was the custom with the kings of Bithynia, in a litter with eight bearers, sitting on a cushion of Maltese gauze stuffed with rose-leaves, with one garland on his head, and a second twined round his neck, applying to his nose a little smelling bag of fine linen, with minute meshes, filled with roses; and thus he had himself carried even to his bed chamber."

Table Luxury

But no sort of luxury flourished so much as the coarsest of all— the luxury of the table. The whole villa arrangements and the whole villa life had ultimate reference to dining; not only had they different dining-rooms for winter and summer, but dinner was served in the picture-gallery, in the fruit-chamber, in the aviary, or on a platform erected in the deer-park, around which, when the bespoken "Orpheus" appeared in theatrical costume and blew his flourish, the duly-trained roes and wild boars congregated. Such was the care bestowed on decoration; but amidst all this the reality was by no means forgotten. Not only was the cook a graduate in gastronomy, but the master himself often acted as the instructor of his cooks. The roast had been long ago thrown into the shade by marine fishes and oysters; now the Italian river-fishes were utterly banished from good tables, and Italian delicacies and Italian wines were looked on as almost vulgar. Now even at the popular festivals there were distributed, besides the Italian Falerian, three sorts of foreign wine—Sicilian, Lesbian, Chian, while a generation before it had been sufficient even at great banquets to send

round Greek wine once; in the cellar of the orator Hortensius there was found a stock of 10,000 jars (at 33 quarts) of foreign wine. It was no wonder that the Italian wine-growers began to complain of the competition of the wines from the Greek islands. No naturalist could ransack land and sea more zealously for new animals and plants, than the epicures of that day ransacked them for new culinary dainties.(53) The circumstance of the guest taking an emetic after a banquet, to avoid the consequences of the varied fare set before him, no longer created surprise. Debauchery of every sort became so systematic and aggravated that it found its professors, who earned a livelihood by serving as instructors of the youth of quality in the theory and practice of vice.

Debt

It will not be necessary to dwell longer on this confused picture, so monotonous in its variety; and the less so, that the Romans were far from original in this respect, and confined themselves to exhibiting a copy of the Hellenic-Asiatic luxury still more exaggerated and stupid than their model. Plutus naturally devours his children as well as Kronos; the competition for all these mostly worthless objects of fashionable longing so forced up prices, that those who swam with the stream found the most colossal estate melt away in a short time, and even those, who only for credit's sake joined in what was most necessary, saw their inherited and firmly- established wealth rapidly undermined. The canvass for the consulship, for instance, was the usual highway to ruin for houses of distinction; and nearly the same description applies to the games, the great buildings, and all those other pleasant, doubtless, but expensive pursuits. The princely wealth of that period is only surpassed by its still more princely liabilities; Caesar owed about 692, after deducting his assets, 25,000,000 sesterces (250,000 pounds); Marcus Antonius, at the age of twenty-four 6,000,000 sesterces (60,000 pounds), fourteen years afterwards 40,000,000 (400,000 pounds);

Curio owed 60,000,000 (600,000 pounds); Milo 70,000,000 (700,000 pounds). That those extravagant habits of the Roman world of quality rested throughout on credit, is shown by the fact that the monthly interest in Rome was once suddenly raised from four to eight per cent, through the borrowing of the different competitors for the consulship. Insolvency, instead of leading in due time to a meeting of creditors or at any rate to a liquidation which might at least place matters once more on a clear footing, was ordinarily prolonged by the debtor as much as possible; instead of selling his property and especially his landed estates, he continued to borrow and to present the semblance of riches, till the crash only became the worse and the winding-up yielded a result like that of Milo, in which the creditors obtained somewhat above four per cent of the sums for which they ranked. Amidst this startlingly rapid transition from riches to bankruptcy and this systematic swindling, nobody of course gained so much as the cool banker, who knew how to give and refuse credit. The relations of debtor and creditor thus returned almost to the same point at which they had stood in the worst times of the social crises of the fifth century; the nominal landowners held virtually by sufferance of their creditors; the debtors were either in servile subjection to their creditors, so that the humbler of them appeared like freedmen in the creditor's train and those of higher rank spoke and voted even in the senate at the nod of their creditor-lord; or they were on the point of declaring war on property itself, and either of intimidating their creditors by threats or getting rid of them by conspiracy and civil war. On these relations was based the power of Crassus; out of them arose the insurrections—whose motto was "a clear sheet"—of Cinna(54) and still more definitely of Catilina, of Coelius, of Dolabella entirely resembling the battles between those who had and those who had not, which a century before agitated the Hellenic world.(55) That amidst so rotten an economic condition every financial or political crisis should occasion the most dreadful confusion, was to be expected from the nature of the case; we need

hardly mention that the usual phenomena—the disappearance of capital, the sudden depreciation of landed estates, innumerable bankruptcies, and an almost universal insolvency—made their appearance now during the civil war, just as they had done during the Social and Mithradatic wars.(56)

Immortality

Under such circumstances, as a matter of course, morality and family life were treated as antiquated things among all ranks of society. To be poor was not merely the sorest disgrace and the worst crime, but the only disgrace and the only crime: for money the statesman sold the state, and the burgess sold his freedom; the post of the officer and the vote of the jurymen were to be had for money; for money the lady of quality surrendered her person as well as the common courtesan; falsifying of documents and perjuries had become so common that in a popular poet of this age an oath is called "the plaster for debts." Men had forgotten what honesty was; a person who refused a bribe was regarded not as an upright man, but as a personal foe. The criminal statistics of all times and countries will hardly furnish a parallel to the dreadful picture of crimes—so varied, so horrible, and so unnatural—which the trial of Aulus Cluentius unrolls before us in the bosom of one of the most respected families of an Italian country town.

Friendship

But while at the bottom of the national life the slime was thus constantly accumulating more and more deleteriously and deeply, so much the more smooth and glittering was the surface, overlaid with the varnish of polished manners and universal friendship. All the world interchanged visits; so that in the houses of quality it was necessary to admit the persons presenting themselves every morning for the levee in a certain order fixed by the master or occasionally by the attendant in waiting, and to give audience only to the more notable one by one, while the rest were more summarily

admitted partly in groups, partly en masse at the close—a distinction which Gaius Gracchus, in this too paving the way for the new monarchy, is said to have introduced. The interchange of letters of courtesy was carried to as great an extent as the visits of courtesy; "friendly" letters flew over land and sea between persons who had neither personal relations nor business with each other, whereas proper and formal business-letters scarcely occur except where the letter is addressed to a corporation. In like manner invitations to dinner, the customary new year's presents, the domestic festivals, were divested of their proper character and converted almost into public ceremonials; even death itself did not release the Roman from these attentions to his countless "neighbours," but in order to die with due respectability he had to provide each of them at any rate with a keepsake. Just as in certain circles of our mercantile world, the genuine intimacy of family ties and family friendships had so totally vanished from the Rome of that day that the whole intercourse of business and acquaintance could be garnished with forms and flourishes which had lost all meaning, and thus by degrees the reality came to be superseded by that spectral shadow of "friendship," which holds by no means the least place among the various evil spirits brooding over the proscriptions and civil wars of this age.

Women

An equally characteristic feature in the brilliant decay of this period was the emancipation of women. In an economic point of view the women had long since made themselves independent;(57) in the present epoch we even meet with solicitors acting specially for women, who officiously lend their aid to solitary rich ladies in the management of their property and their lawsuits, make an impression on them by their knowledge of business and law, and thereby procure for themselves ampler perquisites and legacies than other loungers on the exchange. But it was not merely from the economic guardianship of father or husband that women felt themselves

emancipated. Love-intrigues of all sorts were constantly in progress. The ballet-dancers (-mimae-) were quite a match for those of the present day in the variety of their pursuits and the skill with which they followed them out; their primadonnas, Cytheris and the like, pollute even the pages of history. But their, as it were, licensed trade was very materially injured by the free art of the ladies of aristocratic circles. Liaisons in the first houses had become so frequent, that only a scandal altogether exceptional could make them the subject of special talk; a judicial interference seemed now almost ridiculous. An unparalleled scandal, such as Publius Clodius produced in 693 at the women's festival in the house of the Pontifex Maximus, although a thousand times worse than the occurrences which fifty years before had led to a series of capital sentences,(58) passed almost without investigation and wholly without punishment. The watering-place season—in April, when political business was suspended and the world of quality congregated in Baiae and Puteoli— derived its chief charm from the relations licit and illicit which, along with music and song and elegant breakfasts on board or on shore, enlivened the gondola voyages. There the ladies held absolute sway; but they were by no means content with this domain which rightfully belonged to them; they also acted as politicians, appeared in party conferences, and took part with their money and their intrigues in the wild coterie-doings of the time. Any one who beheld these female statesmen performing on the stage of Scipio and Cato and saw at their side the young fop—as with smooth chin, delicate voice, and mincing gait, with headdress and neckerchiefs, frilled robe, and women's sandals he copied the loose courtesan— might well have a horror of the unnatural world, in which the sexes seemed as though they wished to change parts. What ideas as to divorce prevailed in the circles of the aristocracy may be discerned in the conduct of their best and most moral hero Marcus Cato, who did not hesitate to separate from his wife at the request of a friend desirous to marry her, and as little scrupled on the death of this friend to

marry the same wife a second time. Celibacy and childlessness became more and more common, especially among the upper classes. While among these marriage had for long been regarded as a burden which people took upon them at the best in the public interest,(59) we now encounter even in Cato and those who shared Cato's sentiments the maxim to which Polybius a century before traced the decay of Hellas,(60) that it is the duty of a citizen to keep great wealth together and therefore not to beget too many children. Where were the times, when the designation "children-producer" (-proletarius-) had been a term of honour for the Roman?

Depopulation of Italy

In consequence of such a social condition the Latin stock in Italy underwent an alarming diminution, and its fair provinces were overspread partly by parasitic immigrants, partly by sheer desolation. A considerable portion of the population of Italy flocked to foreign lands. Already the aggregate amount of talent and of working power, which the supply of Italian magistrates and Italian garrisons for the whole domain of the Mediterranean demanded, transcended the resources of the peninsula, especially as the elements thus sent abroad were in great part lost for ever to the nation. For the more that the Roman community grew into an empire embracing many nations, the more the governing aristocracy lost the habit of looking on Italy as their exclusive home; while of the men levied or enlisted for service a considerable portion perished in the many wars, especially in the bloody civil war, and another portion became wholly estranged from their native country by the long period of service, which sometimes lasted for a generation. In like manner with the public service, speculation kept a portion of the landholders and almost the whole body of merchants all their lives or at any rate for a long time out of the country, and the demoralising itinerant life of trading in particular estranged the latter altogether from civic existence in the mother country and from the various

conditions of family life. As a compensation for these, Italy obtained on the one hand the proletariat of slaves and freedmen, on the other hand the craftsmen and traders flocking thither from Asia Minor, Syria, and Egypt, who flourished chiefly in the capital and still more in the seaport towns of Ostia, Puteoli, and Brundisium.(61) In the largest and most important part of Italy however, even such a substitution of impure elements for pure; but the population was visibly on the decline. Especially was this true of the pastoral districts such as Apulia, the chosen land of cattle-breeding, which is called by contemporaries the most deserted part of Italy, and of the region around Rome, where the Campagna was annually becoming more desolate under the constant reciprocal action of the retrograde agriculture and the increasing malaria. Labici, Gabii, Bovillae, once cheerful little country towns, were so decayed, that it was difficult to find representatives of them for the ceremony of the Latin festival. Tusculum, although still one of the most esteemed communities of Latium, consisted almost solely of some genteel families who lived in the capital but retained their native Tusculan franchise, and was far inferior in the number of burgesses entitled to vote even to small communities in the interior of Italy. The stock of men capable of arms in this district, on which Rome's ability to defend herself had once mainly depended, had so totally vanished, that people read with astonishment and perhaps with horror the accounts of the annals—sounding fabulous in comparison with things as they stood—respecting the Aequian and Volscian wars. Matters were not so bad everywhere, especially in the other portions of Central Italy and in Campania; nevertheless, as Varro complains, "the once populous cities of Italy," in general "stood desolate."

Italy under the Oligarchy

It is a dreadful picture—this picture of Italy under the rule of the oligarchy. There was nothing to bridge over or soften the fatal contrast between the world of the beggars and the world of the rich. The more clearly and painfully this contrast was felt on both sides—the giddier the height to which riches rose, the deeper the abyss of poverty yawned—the more frequently, amidst that changeful world of speculation and playing at hazard, were individuals tossed from the bottom to the top and again from the top to the bottom. The wider the chasm by which the two worlds were externally divided, the more completely they coincided in the like annihilation of family life—which is yet the germ and core of all nationality—in the like laziness and luxury, the like unsubstantial economy, the like unmanly dependence, the like corruption differing only in its tariff, the like criminal demoralization, the like longing to begin the war with property. Riches and misery in close league drove the Italians out of Italy, and filled the peninsula partly with swarms of slaves, partly with awful silence. It is a terrible picture, but not one peculiar to Italy; wherever the government of capitalists in a slave-state has fully developed itself, it has desolated God's fair world in the same way as rivers glisten in different colours, but a common sewer everywhere looks like itself, so the Italy of the Ciceronian epoch resembles substantially the Hellas of Polybius and still more decidedly the Carthage of Hannibal's time, where in exactly similar fashion the all-powerful rule of capital ruined the middle class, raised trade and estate-farming to the highest prosperity, and ultimately led to a—hypocritically whitewashed—moral and political corruption of the nation. All the arrant sins that capital has been guilty of against nation and civilization in the modern world, remain as far inferior to the abominations of the ancient capitalist-states as the free man, be he ever so poor, remains

superior to the slave; and not until the dragon-seed of North America ripens, will the world have again similar fruits to reap.

Reforms of Caesar

These evils, under which the national economy of Italy lay prostrate, were in their deepest essence irremediable, and so much of them as still admitted of remedy depended essentially for its amendment on the people and on time; for the wisest government is as little able as the more skilful physician to give freshness to the corrupt juices of the organism, or to do more in the case of the deeper-rooted evils than to prevent those accidents which obstruct the remedial power of nature in its working. The peaceful energy of the new rule even of itself furnished such a preventive, for by its means some of the worst excrescences were done away, such as the artificial pampering of the proletariat, the impunity of crimes, the purchase of offices, and various others. But the government could do something more than simply abstain from harm. Caesar was not one of those over-wise people who refuse to embank the sea, because forsooth no dike can defy some sudden influx of the tide. It is better, if a nation and its economy follow spontaneously the path prescribed by nature; but, seeing that they had got out of this path, Caesar applied all his energies to bring back by special intervention the nation to its home and family life, and to reform the national economy by law and decree.

Measures against Absentees from Italy

Measures for the Elevation of the Family

With a view to check the continued absence of the Italians from Italy and to induce the world of quality and the merchants to establish their homes in their native land, not only was the term of service for the soldiers shortened, but men of senatorial rank were altogether prohibited from taking up their abode out of Italy except when on public business, while the other Italians

of marriageable age (from the twentieth to the fortieth year) were enjoined not to be absent from Italy for more than three consecutive years. In the same spirit Caesar had already, in his first consulship on founding the colony of Capua kept specially in view fathers who had several children; (62) and now as Imperator he proposed extraordinary rewards for the fathers of numerous families, while he at the same time as supreme judge of the nation treated divorce and adultery with a rigour according to Roman ideas unparalleled.

Laws Respecting Luxury

Nor did he even think it beneath his dignity to issue a detailed law as to luxury—which, among other points, cut down extravagance in building at least in one of its most irrational forms, that of sepulchral monuments; restricted the use of purple robes and pearls to certain times, ages, and classes, and totally prohibited it in grown-up men; fixed a maximum for the expenditure of the table; and directly forbade a number of luxurious dishes. Such ordinances doubtless were not new; but it was a new thing that the "master of morals" seriously insisted on their observance, superintended the provision-markets by means of paid overseers, and ordered that the tables of men of rank should be examined by his officers and the forbidden dishes on them should be confiscated. It is true that by such theoretical and practical instructions in moderation as the new monarchical police gave to the fashionable world, hardly more could be accomplished than the compelling luxury to retire somewhat more into concealment; but, if hypocrisy is the homage which vice pays to virtue, under the circumstances of the times even a semblance of propriety established by police measures was a step towards improvement not to be despised.

The Debt Crisis

The measures of Caesar for the better regulation of Italian monetary and agricultural relations were of a graver character and promised greater results. The first question here related to temporary enactments respecting the scarcity of money and the debt-crisis generally. The law called forth by the outcry as to locked-up capital—that no one should have on hand more than 60,000 sesterces (600 pounds) in gold and silver cash—was probably only issued to allay the indignation of the blind public against the usurers; the form of publication, which proceeded on the fiction that this was merely the renewed enforcing of an earlier law that had fallen into oblivion, shows that Caesar was ashamed of this enactment, and it can hardly have passed into actual application. A far more serious question was the treatment of the pending claims for debt, the complete remission of which was vehemently demanded from Caesar by the party which called itself by his name. We have already mentioned, that he did not yield to this demand;(63) but two important concessions were made to the debtors, and that as early as 705. First, the interest in arrear was struck off,(64) and that which was paid was deducted from the capital. Secondly, the creditor was compelled to accept the moveable and immoveable property of the debtor in lieu of payment at the estimated value which his effects had before the civil war and the general depreciation which it had occasioned. The latter enactment was not unreasonable; if the creditor was to be looked on de facto as the owner of the property of his debtor to the amount of the sum due to him, it was doubtless proper that he should bear his share in the general depreciation of the property. On the other hand the cancelling of the payments of interest made or outstanding— which practically amounted to this, that the creditors lost, besides the interest itself, on an average 25 per cent of what they were entitled to claim as capital at the time of the issuing of the law—was in fact nothing else than a partial concession of that cancelling of creditors' claims springing out of loans, for which the democrats had clamoured so vehemently; and, however bad may have been the conduct of the usurers, it

is not possible thereby to justify the retrospective abolition of all claims for interest without distinction. In order at least to understand this agitation we must recollect how the democratic party stood towards the question of interest. The legal prohibition against taking interest, which the old plebeian opposition had extorted in 412,(65) had no doubt been practically disregarded by the nobility which controlled the civil procedure by means of the praetorship, but had still remained since that period formally valid; and the democrats of the seventh century, who regarded themselves throughout as the continuers of that old agitation as to privilege and social position,(66) had maintained the illegality of payment of interest at any time, and even already practically enforced that principle, at least temporarily, in the confusion of the Marian period.(67) It is not credible that Caesar shared the crude views of his party on the interest question; the fact, that, in his account of the matter of liquidation he mentions the enactment as to the surrender of the property of the debtor in lieu of payment but is silent as to the cancelling of the interest, is perhaps a tacit self-reproach. But he was, like every party-leader, dependent on his party and could not directly repudiate the traditional maxims of the democracy in the question of interest; the more especially when he had to decide this question, not as the all-powerful conqueror of Pharsalus, but even before his departure for Epirus. But, while he permitted perhaps rather than originated this violation of legal order and of property, it is certainly his merit that that monstrous demand for the annulling of all claims arising from loans was rejected; and it may perhaps be looked on as a saving of his honour, that the debtors were far more indignant at the—according to their view extremely unsatisfactory—concession given to them than the injured creditors, and made under Caelius and Dolabella those foolish and (as already mentioned) speedily frustrated attempts to extort by riot and civil war what Caesar refused to them.

New Ordinance as to Bankruptcy

But Caesar did not confine himself to helping the debtor for the moment; he did what as legislator he could, permanently to keep down the fearful omnipotence of capital. First of all the great legal maxim was proclaimed, that freedom is not a possession commensurable with property, but an eternal right of man, of which the state is entitled judicially to deprive the criminal alone, not the debtor. It was Caesar, who, perhaps stimulated in this case also by the more humane Egyptian and Greek legislation, especially that of Solon,(68) introduced this principle—diametrically opposed to the maxims of the earlier ordinances as to bankruptcy—into the common law, where it has since retained its place undisputed. According to Roman law the debtor unable to pay became the serf of his creditor.(69) The Poetelian law no doubt had allowed a debtor, who had become unable to pay only through temporary embarrassments, not through genuine insolvency, to save his personal freedom by the cession of his property;(70) nevertheless for the really insolvent that principle of law, though doubtless modified in secondary points, had been in substance retained unaltered for five hundred years; a direct recourse to the debtor's estate only occurred exceptionally, when the debtor had died or had forfeited his burgess-rights or could not be found. It was Caesar who first gave an insolvent the right—on which our modern bankruptcy regulations are based—of formally ceding his estate to his creditors, whether it might suffice to satisfy them or not, so as to save at all events his personal freedom although with diminished honorary and political rights, and to begin a new financial existence, in which he could only be sued on account of claims proceeding from the earlier period and not protected in the liquidation, if he could pay them without renewed financial ruin.

Usury Laws

While thus the great democrat had the imperishable honour of emancipating personal freedom in principle from capital, he attempted

moreover to impose a police limit on the excessive power of capital by usury-laws. He did not affect to disown the democratic antipathy to stipulations for interest. For Italian money-dealing there was fixed a maximum amount of the loans at interest to be allowed in the case of the individual capitalist, which appears to have been proportioned to the Italian landed estate belonging to each, and perhaps amounted to half its value. Transgressions of this enactment were, after the fashion of the procedure prescribed in the republican usury-laws, treated as criminal offence and sent before a special jury-commission. If these regulations were successfully carried into effect, every Italian man of business would be compelled to become at the same time an Italian landholder, and the class of capitalists subsisting merely on their interest would disappear wholly from Italy. Indirectly too the no less injurious category of insolvent landowners who practically managed their estates merely for their creditors was by this means materially curtailed, inasmuch as the creditors, if they desired to continue their lending business, were compelled to buy for themselves. From this very fact besides it is plain that Caesar wished by no means simply to renew that naive prohibition of interest by the old popular party, but on the contrary to allow the taking of interest within certain limits. It is very probable however that he did not confine himself to that injunction—which applied merely to Italy—of a maximum amount of sums to be lent, but also, especially with respect to the provinces, prescribed maximum rates for interest itself. The enactments—that it was illegal to take higher interest than 1 per cent per month, or to take interest on arrears of interest, or in fine to make a judicial claim for arrears of interest to a greater amount than a sum equal to the capital—were, probably also after the Graeco-Egyptian model,(71) first introduced in the Roman empire by Lucius Lucullus for Asia Minor and retained there by his better successors; soon afterwards they were transferred to other provinces by edicts of the governors, and ultimately at least part of them was provided with the force of law in all

provinces by a decree of the Roman senate of 704. The fact that these Lucullan enactments afterwards appear in all their compass as imperial law and have thus become the basis of the Roman and indeed of modern legislation as to interest, may also perhaps be traced back to an ordinance of Caesar.

Elevation of Agriculture

Hand in hand with these efforts to guard against the ascendancy of capital went the endeavours to bring back agriculture to the path which was most advantageous for the commonwealth. For this purpose the improvement of the administration of justice and of police was very essential. While hitherto nobody in Italy had been sure of his life and of his moveable or immoveable property, while Roman condottieri for instance, at the intervals when their gangs were not helping to manage the politics of the capital, applied themselves to robbery in the forests of Etruria or rounded off the country estates of their paymasters by fresh acquisitions, this sort of club-law was now at an end; and in particular the agricultural population of all classes must have felt the beneficial effects of the change. The plans of Caesar for great works also, which were not at all limited to the capital, were intended to tell in this respect; the construction, for instance, of a convenient high-road from Rome through the passes of the Apennines to the Adriatic was designed to stimulate the internal traffic of Italy, and the lowering the level of the Fucine lake to benefit the Marsian farmers. But Caesar also sought by more direct measures to influence the state of Italian husbandry. The Italian graziers were required to take at least a third of their herdsmen from freeborn adults, whereby brigandage was checked and at the same time a source of gain was opened to the free proletariat.

Distribution of Land

In the agrarian question Caesar, who already in his first consulship had been in a position to regulate it,(72) more judicious than Tiberius Gracchus, did not seek to restore the farmer-system at any price, even at that of a revolution—concealed under juristic clauses—directed against property; by him on the contrary, as by every other genuine statesman, the security of that which is property or is at any rate regarded by the public as property was esteemed as the first and most inviolable of all political maxims, and it was only within the limits assigned by this maxim that he sought to accomplish the elevation of the Italian small holdings, which also appeared to him as a vital question for the nation. Even as it was, there was much still left for him in this respect to do. Every private right, whether it was called property or entitled heritable possession, whether traceable to Gracchus or to Sulla, was unconditionally respected by him. On the other hand, Caesar, after he had in his strictly economical fashion— which tolerated no waste and no negligence even on a small scale— instituted a general revision of the Italian titles to possession by the revived commission of Twenty,(73) destined the whole actual domain land of Italy (including a considerable portion of the real estates that were in the hands of spiritual guilds but legally belonged to the state) for distribution in the Gracchan fashion, so far, of course, as it was fitted for agriculture; the Apulian summer and the Samnite winter pastures belonging to the state continued to be domain; and it was at least the design of the Imperator, if these domains should not suffice, to procure the additional land requisite by the purchase of Italian estates from the public funds. In the selection of the new farmers provision was naturally made first of all for the veteran soldiers, and as far as possible the burden, which the levy imposed on the mother country, was converted into a benefit by the fact that Caesar gave the proletarian, who was levied from it as a recruit, back to it as a farmer; it is remarkable also that the desolate Latin communities, such as Veii and Capena, seem to have been preferentially provided with new colonists. The regulation of Caesar that

the new owners should not be entitled to alienate the lands received by them till after twenty years, was a happy medium between the full bestowal of the right of alienation, which would have brought the larger portion of the distributed land speedily back into the hands of the great capitalists, and the permanent restrictions on freedom of dealing in land which Tiberius Gracchus(74) and Sulla (75) had enacted, both equally in vain.

Elevation of the Municipal System

Lastly while the government thus energetically applied itself to remove the diseased, and to strengthen the sound, elements of the Italian national life, the newly-regulated municipal system— which had but recently developed itself out of the crisis of the Social war in and alongside of the state-economy(76)—was intended to communicate to the new absolute monarchy the communal life which was compatible with it, and to impart to the sluggish circulation of the noblest elements of public life once more a quickened action. The leading principles in the two municipal ordinances issued in 705 for Cisalpine Gaul and in 709 for Italy,(77) the latter of which remained the fundamental law for all succeeding times, are apparently, first, the strict purifying of the urban corporations from all immoral elements, while yet no trace of political police occurs; secondly, the utmost restriction of centralization and the utmost freedom of movement in the communities, to which there was even now reserved the election of magistrates and an— although limited—civil and criminal jurisdiction. The general police enactments, such as the restrictions on the right of association,(78) came, it is true, into operation also here.

Such were the ordinances, by which Caesar attempted to reform the Italian national economy. It is easy both to show their insufficiency, seeing that they allowed a multitude of evils still to exist, and to prove that they operated in various respects injuriously by imposing restrictions, some of

which were very severely felt, on freedom of dealing. It is still easier to show that the evils of the Italian national economy generally were incurable. But in spite of this the practical statesman will admire the work as well as the master-workman. It was already no small achievement that, where a man like Sulla, despairing of remedy, had contented himself with a mere formal reorganization, the evil was seized in its proper seat and grappled with there; and we may well conclude that Caesar with his reforms came as near to the measure of what was possible as it was given to a statesman and a Roman to come. He could not and did not expect from them the regeneration of Italy; but he sought on the contrary to attain this in a very different way, for the right apprehension of which it is necessary first of all to review the condition of the provinces as Caesar found them.

Provinces

The provinces, which Caesar found in existence, were fourteen in number:

seven European—the Further and the Hither Spain, Transalpine Gaul, Italian Gaul with Illyricum, Macedonia with Greece, Sicily, Sardinia with Corsica; five Asiatic—Asia, Bithynia and Pontus, Cilicia with Cyprus, Syria, Crete; and two African—Cyrene and Africa. To these Caesar added three new ones by the erection of the two new governorships of Lugdunese Gaul and Belgica⁽⁷⁹⁾ and by constituting Illyricum a province by itself.⁽⁸⁰⁾

Provincial Administration of the Oligarchy

In the administration of these provinces oligarchic misrule had reached a point which, notwithstanding various noteworthy performances in this line, no second government has ever attained at least in the west, and which according to our ideas it seems no longer possible to surpass. Certainly the responsibility for this rests not on the Romans alone. Almost everywhere

before their day the Greek, Phoenician, or Asiatic rule had already driven out of the nations the higher spirit and the sense of right and of liberty belonging to better times. It was doubtless bad, that every accused provincial was bound, when asked, to appear personally in Rome to answer for himself; that the Roman governor interfered at pleasure in the administration of justice and the management of the dependent communities, pronounced capital sentences, and cancelled transactions of the municipal council; and that in case of war he treated the militia as he chose and often infamously, as e. g. when Cotta at the siege of the Pontic Heraclea assigned to the militia all the posts of danger, to spare his Italians, and on the siege not going according to his wish, ordered the heads of his engineers to be laid at his feet. It was doubtless bad, that no rule of morality or of criminal law bound either the Roman administrators or their retinue, and that violent outrages, rapes, and murders with or without form of law were of daily occurrence in the provinces. But these things were at least nothing new; almost everywhere men had long been accustomed to be treated like slaves, and it signified little in the long run whether a Carthaginian overseer, a Syrian satrap, or a Roman proconsul acted as the local tyrant. Their material well-being, almost the only thing for which the provincials still cared, was far less disturbed by those occurrences, which although numerous in proportion to the many tyrants yet affected merely isolated individuals, than by the financial exactions pressing heavily on all, which had never previously been prosecuted with such energy.

The Romans now gave in this domain fearful proof of their old master of money-matters. We have already endeavoured to describe the Roman system of provincial oppression in its modest and rational foundations as well as in its growth and corruption as a matter of course, the latter went on increasing. The ordinary taxes became far more oppressive from the inequality of their distribution and from the preposterous system of levying them than from their high amount. As to the burden of quartering troops,

Roman statesmen themselves expressed the opinion that a town suffered nearly to the same extent when a Roman army took up winter quarters in it as when an enemy took it by storm. While the taxation in its original character had been an indemnification for the burden of military defence undertaken by Rome, and the community paying tribute had thus a right to remain exempt from ordinary service, garrison-service was now—as is attested e. g. in the case of Sardinia—for the most part imposed on the provincials, and even in the ordinary armies, besides other duties, the whole heavy burden of the cavalry-service was devolved on them. The extraordinary contributions demanded—such as, the deliveries of grain for little or no compensation to benefit the proletariat of the capital; the frequent and costly naval armaments and coast- defences in order to check piracy; the task of supplying works of art, wild beasts, or other demands of the insane Roman luxury in the theatre and the chase; the military requisitions in case of war— were just as frequent as they were oppressive and incalculable. A single instance may show how far things were carried. During the three years' administration of Sicily by Gaius Verres the number of farmers in Leontini fell from 84 to 32, in Motuca from 187 to 86, in Herbita from 252 to 120, in Agyrium from 250 to 80; so that in four of the most fertile districts of Sicily 59 per cent of the landholders preferred to let their fields lie fallow than to cultivate them under such government. And these landholders were, as their small number itself shows and as is expressly stated, by no means small farmers, but respectable planters and in great part Roman burgesses!

In the Client-States

In the client-states the forms of taxation were somewhat different, but the burdens themselves were if possible still worse, since in addition to the exactions of the Romans there came those of the native courts. In Cappadocia and Egypt the farmer as well as the king was bankrupt; the

former was unable to satisfy the tax-collector, the latter was unable to satisfy his Roman creditor. Add to these the exactions, properly so called, not merely of the governor himself, but also of his "friends," each of whom fancied that he had as it were a draft on the governor and a title accordingly to come back from the province a made man. The Roman oligarchy in this respect completely resembled a gang of robbers, and followed out the plundering of the provincials in a professional and business-like manner; capable members of the gang set to work not too nicely, for they had in fact to share the spoil with the advocates and the jurymen, and the more they stole, they did so the more securely. The notion of honour in theft too was already developed; the big robber looked down on the little, and the latter on the mere thief, with contempt; any one, who had been once for a wonder condemned, boasted of the high figure of the sums which he was proved to have exacted. Such was the behaviour in the provinces of the successors of those men, who had been accustomed to bring home nothing from their administration but the thanks of the subjects and the approbation of their fellow-citizens.

The Roman Capitalists in the Provinces

But still worse, if possible, and still less subject to any control was the havoc committed by the Italian men of business among the unhappy provincials. The most lucrative portions of the landed property and the whole commercial and monetary business in the provinces were concentrated in their hands. The estates in the transmarine regions, which belonged to Italian grandees, were exposed to all the misery of management by stewards, and never saw their owners; excepting possibly the hunting-parks, which occur as early as this time in Transalpine Gaul with an area amounting to nearly twenty square miles. Usury flourished as it had never flourished before. The small landowners in Illyricum, Asia, and Egypt managed their estates even in Varro's time in great part practically as the

debtor-slaves of their Roman or non-Roman creditors, just as the plebeians in former days for their patrician lords. Cases occurred of capital being lent even to urban communities at four per cent per month. It was no unusual thing for an energetic and influential man of business to get either the title of envoy(81) given to him by the senate or that of officer by the governor, and, if possible, to have men put at his service for the better prosecution of his affairs; a case is narrated on credible authority, where one of these honourable martial bankers on account of a claim against the town of Salamis in Cyprus kept its municipal council blockaded in the town-house, until five of the members had died of hunger.

Robberies and Damage by War

To these two modes of oppression, each of which by itself was intolerable and which were always becoming better arranged to work into each other's hands, were added the general calamities, for which the Roman government was also in great part, at least indirectly, responsible. In the various wars a large amount of capital was dragged away from the country and a larger amount destroyed sometimes by the barbarians, sometimes by the Roman armies. Owing to the worthlessness of the Roman land and maritime police, brigands and pirates swarmed every where. In Sardinia and the interior of Asia Minor brigandage was endemic; in Africa and Further Spain it became necessary to fortify all buildings constructed outside of the city-enclosures with walls and towers. The fearful evil of piracy has been already described in another connection.(82) The panaceas of the prohibitive system, with which the Roman governor was wont to interpose when scarcity of money or dearth occurred, as under such circumstances they could not fail to do— the prohibition of the export of gold or grain from the province— did not mend the matter. The communal affairs were almost everywhere embarrassed, in addition to the general distress, by local disorders and frauds of the public officials.

The Conditions of the Provinces Generally

Where such grievances afflicted communities and individuals not temporarily but for generations with an inevitable, steady, and yearly-increasing oppression, the best regulated public or private economy could not but succumb to them, and the most unspeakable misery could not but extend over all the nations from the Tagus to the Euphrates. "All the communities," it is said in a treatise published as early as 684, "are ruined"; the same truth is specially attested as regards Spain and Narbonese Gaul, the very provinces which, comparatively speaking, were still in the most tolerable economic position. In Asia Minor even towns like Samos and Halicarnassus stood almost empty; legal slavery seemed here a haven of rest compared with the torments to which the free provincial succumbed, and even the patient Asiatic had become, according to the descriptions of Roman statesmen themselves, weary of life. Any one who desires to fathom the depths to which man can sink in the criminal infliction, and in the no less criminal endurance, of all conceivable injustice, may gather together from the criminal records of this period the wrongs which Roman grandees could perpetrate and Greeks, Syrians, and Phoenicians could suffer. Even the statesmen of Rome herself publicly and frankly conceded that the Roman name was unutterably odious through all Greece and Asia; and, when the burgesses of the Pontic Heraclea on one occasion put to death the whole of the Roman tax-collectors, the only matter for regret was that such things did not occur oftener.

Caesar and the Provinces

The Optimates scoffed at the new master who went in person to inspect his "farms" one after the other; in reality the condition of the several provinces demanded all the earnestness and all the wisdom of one of those rare men, who redeem the name of king from being regarded by the nations

as merely a conspicuous example of human insufficiency. The wounds inflicted had to be healed by time; Caesar took care that they might be so healed, and that there should be no fresh inflictions.

The Caesarian Magistrates

The system of administration was thoroughly remodelled. The Sullan proconsuls and proprætors had been in their provinces essentially sovereign and practically subject to no control; those of Caesar were the well-disciplined servants of a stern master, who from the very unity and life-tenure of his power sustained a more natural and more tolerable relation to the subjects than those numerous, annually changing, petty tyrants. The governorships were no doubt still distributed among the annually-retiring two consuls and sixteen prætors, but, as the Emperor directly nominated eight of the latter and the distribution of the provinces among the competitors depended solely on him,(83) they were in reality bestowed by the Emperor. The functions also of the governors were practically restricted. The superintendence of the administration of justice and the administrative control of the communities remained in their hands; but their command was paralyzed by the new supreme command in Rome and its adjutants associated with the governor,(84) and the raising of the taxes was probably even now committed in the provinces substantially to imperial officials,(85) so that the governor was thenceforward surrounded with an auxiliary staff which was absolutely dependent on the Emperor in virtue either of the laws of the military hierarchy or of the still stricter laws of domestic discipline. While hitherto the proconsul and his quaestor had appeared as if they were members of a gang of robbers despatched to levy contributions, the magistrates of Caesar were present to protect the weak against the strong; and, instead of the previous worse than useless control of the equestrian or senatorian tribunals, they had to answer for themselves at the bar of a just and unyielding monarch. The law as to exactions, the

enactments of which Caesar had already in his first consulate made more stringent, was applied by him against the chief commandants in the provinces with an inexorable severity going even beyond its letter; and the tax-officers, if indeed they ventured to indulge in an injustice, atoned for it to their master, as slaves and freedmen according to the cruel domestic law of that time were wont to atone.

Regulation of Burdens

The extraordinary public burdens were reduced to the right proportion and the actual necessity; the ordinary burdens were materially lessened. We have already mentioned the comprehensive regulation of taxation;(86) the extension of the exemptions from tribute, the general lowering of the direct taxes, the limitation of the system of -decumae- to Africa and Sardinia, the complete setting aside of middlemen in the collection of the direct taxes, were most beneficial reforms for the provincials. That Caesar after the example of one of his greatest democratic predecessors, Sertorius,(87) wished to free the subjects from the burden of quartering troops and to insist on the soldiers erecting for themselves permanent encampments resembling towns, cannot indeed be proved; but he was, at least after he had exchanged the part of pretender for that of king, not the man to abandon the subject to the soldier; and it was in keeping with his spirit, when the heirs of his policy created such military camps, and then converted them into towns which formed rallying-points for Italian civilization amidst the barbarian frontier districts.

Influence on the Capitalist System

It was a task far more difficult than the checking of official irregularities, to deliver the provincials from the oppressive ascendancy of Roman capital. Its power could not be directly broken without applying means which were still more dangerous than the evil; the government could for the time being

abolish only isolated abuses— as when Caesar for instance prohibited the employment of the title of state-envoy for financial purposes—and meet manifest acts of violence and palpable usury by a sharp application of the general penal laws and of the laws as to usury, which extended also to the provinces;(88) but a more radical cure of the evil was only to be expected from the reviving prosperity of the provincials under a better administration. Temporary enactments, to relieve the insolvency of particular provinces, had been issued on several occasions in recent times. Caesar himself had in 694 when governor of Further Spain assigned to the creditors two thirds of the income of their debtors in order to pay themselves from that source. Lucius Lucullus likewise when governor of Asia Minor had directly cancelled a portion of the arrears of interest which had swelled beyond measure, and had for the remaining portion assigned to the creditors a fourth part of the produce of the lands of their debtors, as well as a suitable proportion of the profits accruing to them from house-rents or slave-labour. We are not expressly informed that Caesar after the civil war instituted similar general liquidations of debt in the provinces; yet from what has just been remarked and from what was done in the case of Italy,(89) it can hardly be doubted that Caesar likewise directed his efforts towards this object, or at least that it formed part of his plan.

While thus the Imperator, as far as lay within human power, relieved the provincials from the oppressions of the magistrates and capitalists of Rome, it might at the same time be with certain expected from the government to which he imparted fresh vigour, that it would scare off the wild border-peoples and disperse the freebooters by land and sea, as the rising sun chases away the mist. However the old wounds might still smart, with Caesar there appeared for the sorely-tortured subjects the dawn of a more tolerable epoch, the first intelligent and humane government that had appeared for centuries, and a policy of peace which rested not on cowardice

but on strength. Well might the subjects above all mourn along with the best Romans by the bier of the great liberator.

The Beginning of the Helleno-Italic State

But this abolition of existing abuses was not the main matter in Caesar's provincial reform. In the Roman republic, according to the view of the aristocracy and democracy alike, the provinces had been nothing but—what they were frequently called—country-estates of the Roman people, and they were employed and worked out as such. This view had now passed away. The provinces as such were gradually to disappear, in order to prepare for the renovated Helleno-Italic nation a new and more spacious home, of whose several component parts no one existed merely for the sake of another but all for each and each for all; the new existence in the renovated home, the fresher, broader, grander national life, was of itself to overbear the sorrows and wrongs of the nation for which there was no help in the old Italy. These ideas, as is well known, were not new. The emigration from Italy to the provinces that had been regularly going on for centuries had long since, though unconsciously on the part of the emigrants themselves, paved the way for such an extension of Italy. The first who in a systematic way guided the Italians to settle beyond the bounds of Italy was Gaius Gracchus, the creator of the Roman democratic monarchy, the author of the Transalpine conquests, the founder of the colonies of Carthage and Narbo. Then the second statesman of genius produced by the Roman democracy, Quintus Sertorius, began to introduce the barbarous Occidentals to Latin civilization; he gave to the Spanish youth of rank the Roman dress, and urged them to speak Latin and to acquire the higher Italian culture at the training institute founded by him in Osca. When Caesar entered on the government, a large Italian population—though, in great part, lacking stability and concentration—already existed in all the provinces and client-states. To say nothing of the formally Italian towns in Spain and southern

Gaul, we need only recall the numerous troops of burgesses raised by Sertorius and Pompeius in Spain, by Caesar in Gaul, by Juba in Numidia, by the constitutional party in Africa, Macedonia, Greece, Asia Minor, and Crete; the Latin lyre—ill-tuned doubtless— on which the town-poets of Corduba as early as the Sertorian war sang the praises of the Roman generals; and the translations of Greek poetry valued on account of their very elegance of language, which the earliest extra-Italian poet of note, the Transalpine Publius Terentius Varro of the Aude, published shortly after Caesar's death.

On the other hand the interpenetration of the Latin and Hellenic character was, we might say, as old as Rome. On occasion of the union of Italy the conquering Latin nation had assimilated to itself all the other conquered nationalities, excepting only the Greek, which was received just as it stood without any attempt at external amalgamation. Wherever the Roman legionary went, the Greek schoolmaster, no less a conqueror in his own way, followed; at an early date we find famous teachers of the Greek language settled on the Guadalquivir, and Greek was as well taught as Latin in the institute of Osca. The higher Roman culture itself was in fact nothing else than the proclamation of the great gospel of Hellenic manners and art in the Italian idiom; against the modest pretension of the civilizing conquerors to proclaim it first of all in their own language to the barbarians of the west the Hellene at least could not loudly protest. Already the Greek every where— and, most decidedly, just where the national feeling was purest and strongest, on the frontiers threatened by barbaric denationalization, e. g. in Massilia, on the north coast of the Black Sea, and on the Euphrates and Tigris—descried the protector and avenger of Hellenism in Rome; and in fact the foundation of towns by Pompeius in the far east resumed after an interruption of centuries the beneficent work of Alexander.

The idea of an Italo-Hellenic empire with two languages and a single nationality was not new—otherwise it would have been nothing but a blunder; but the development of it from floating projects to a firmly-grasped conception, from scattered initial efforts to the laying of a concentrated foundation, was the work of the third and greatest of the democratic statesmen of Rome.

The Ruling Nations

The Jews

The first and most essential condition for the political and national levelling of the empire was the preservation and extension of the two nations destined to joint dominion, along with the absorption as rapidly as possible of the barbarian races, or those termed barbarian existing by their side. In a certain sense we might no doubt name along with Romans and Greeks a third nationality, which vied with them in ubiquity in the world of that day, and was destined to play no insignificant part in the new state of Caesar. We speak of the Jews. This remarkable people, yielding and yet tenacious, was in the ancient as in the modern world everywhere and nowhere at home, and everywhere and nowhere powerful. The successors of David and Solomon were of hardly more significance for the Jews of that age than Jerusalem for those of the present day; the nation found doubtless for its religious and intellectual unity a visible rallying-point in the petty kingdom of Jerusalem, but the nation itself consisted not merely of the subjects of the Hasmonaeans, but of the innumerable bodies of Jews scattered through the whole Parthian and the whole Roman empire. Within the cities of Alexandria especially and of Cyrene the Jews formed special communities administratively and even locally distinct, not unlike the "Jews' quarters" of our towns, but with a freer position and superintended by a "master of the people" as superior judge and administrator. How numerous even in Rome the Jewish population was already before Caesar's

time, and how closely at the same time the Jews even then kept together as fellow-countrymen, is shown by the remark of an author of this period, that it was dangerous for a governor to offend the Jews, in his province, because he might then certainly reckon on being hissed after his return by the populace of the capital. Even at this time the predominant business of the Jews was trade; the Jewish trader moved everywhere with the conquering Roman merchant then, in the same way as he afterwards accompanied the Genoese and the Venetian, and capital flowed in on all hands to the Jewish, by the side of the Roman, merchants. At this period too we encounter the peculiar antipathy of the Occidentals towards this so thoroughly Oriental race and their foreign opinions and customs. This Judaism, although not the most pleasing feature in the nowhere pleasing picture of the mixture of nations which then prevailed, was nevertheless a historical element developing itself in the natural course of things, which the statesman could neither ignore nor combat, and which Caesar on the contrary, just like his predecessor Alexander, with correct discernment of the circumstances, fostered as far as possible. While Alexander, by laying the foundation of Alexandrian Judaism, did not much less for the nation than its own David by planning the temple of Jerusalem, Caesar also advanced the interests of the Jews in Alexandria and in Rome by special favours and privileges, and protected in particular their peculiar worship against the Roman as well as against the Greek local priests. The two great men of course did not contemplate placing the Jewish nationality on an equal footing with the Hellenic or Italo-Hellenic. But the Jew who has not like the Occidental received the Pandora's gift of political organization, and stands substantially in a relation of indifference to the state; who moreover is as reluctant to give up the essence of his national idiosyncrasy, as he is ready to clothe it with any nationality at pleasure and to adapt himself up to a certain degree to foreign habits—the Jew was for this very reason as it were made for a state, which was to be built on the ruins of a hundred living polities and to

be endowed with a somewhat abstract and, from the outset, toned-down nationality. Even in the ancient world Judaism was an effective leaven of cosmopolitanism and of national decomposition, and to that extent a specially privileged member in the Caesarian state, the polity of which was strictly speaking nothing but a citizenship of the world, and the nationality of which was at bottom nothing but humanity.

Hellenism

But the Latin and Hellenic nationalities continued to be exclusively the positive elements of the new citizenship. The distinctively Italian state of the republic was thus at an end; but the rumour that Caesar was ruining Italy and Rome on purpose to transfer the centre of the empire to the Greek east and to make Ilion or Alexandria its capital, was nothing but a piece of talk—very easy to be accounted for, but also very silly—of the angry nobility. On the contrary in Caesar's organizations the Latin nationality always retained the preponderance; as is indicated in the very fact that he issued all his enactments in Latin, although those destined for the Greek-speaking countries were at the same time issued in Greek. In general he arranged the relations of the two great nations in his monarchy just as his republican predecessors had arranged them in the united Italy; the Hellenic nationality was protected where it existed, the Italian was extended as far as circumstances permitted, and the inheritance of the races to be absorbed was destined for it. This was necessary, because an entire equalizing of the Greek and Latin elements in the state would in all probability have in a very short time occasioned that catastrophe which Byzantinism brought about several centuries later; for the Greek element was superior to the Roman not merely in all intellectual aspects, but also in the measure of its predominance, and it had within Italy itself in the hosts of Hellenes and half-Hellenes who migrated compulsorily or voluntarily to Italy an endless number of apostles apparently insignificant, but whose influence could not

be estimated too highly. To mention only the most conspicuous phenomenon in this respect, the rule of Greek lackeys over the Roman monarchs is as old as the monarchy. The first in the equally long and repulsive list of these personages is the confidential servant of Pompeius, Theophanes of Mytilene, who by his power over his weak master contributed probably more than any one else to the outbreak of the war between Pompeius and Caesar. Not wholly without reason he was after his death treated with divine honours by his countrymen; he commenced, forsooth, the -valet de chambre- government of the imperial period, which in a certain measure was just a dominion of the Hellenes over the Romans. The government had accordingly every reason not to encourage by its fostering action the spread of Hellenism at least in the west. If Sicily was not simply relieved of the pressure of the -decumae- but had its communities invested with Latin rights, which was presumably meant to be followed in due time by full equalization with Italy, it can only have been Caesar's design that this glorious island, which was at that time desolate and had as to management passed for the greater part into Italian hands, but which nature has destined to be not so much a neighbouring land to Italy as rather the finest of its provinces, should become altogether merged in Italy. But otherwise the Greek element, wherever it existed, was preserved and protected. However political crises might suggest to the Emperor the demolition of the strong pillars of Hellenism in the west and in Egypt, Massilia and Alexandria were neither destroyed nor denationalized.

Latinizing

On the other hand the Roman element was promoted by the government through colonization and Latinizing with all vigour and at the most various points of the empire. The principle, which originated no doubt from a bad combination of formal law and brute force, but was inevitably necessary in order to freedom in dealing with the nations destined to destruction—that

all the soil in the provinces not ceded by special act of the government to communities or private persons was the property of the state, and the holder of it for the time being had merely an heritable possession on sufferance and revocable at any time—was retained also by Caesar and raised by him from a democratic party-theory to a fundamental principle of monarchical law.

Cisalpine Gaul

Gaul, of course, fell to be primarily dealt with in the extension of Roman nationality. Cisalpine Gaul obtained throughout— what a great part of the inhabitants had long enjoyed— political equalization with the leading country by the admission of the Transpadane communities into the Roman burgess-union, which had for long been assumed by the democracy as accomplished,(90) and was now (705) finally accomplished by Caesar. Practically this province had already completely Latinized itself during the forty years which had elapsed since the bestowal of Latin rights. The exclusives might ridicule the broad and gurgling accent of the Celtic Latin, and miss "an undefined something of the grace of the capital" in the Insubrian or Venetian, who as Caesar's legionary had conquered for himself with his sword a place in the Roman Forum and even in the Roman senate-house. Nevertheless Cisalpine Gaul with its dense chiefly agricultural population was even before Caesar's time in reality an Italian country, and remained for centuries the true asylum of Italian manners and Italian culture; indeed the teachers of Latin literature found nowhere else out of the capital so much encouragement and approbation.

The Province of Narbo

While Cisalpine Gaul was thus substantially merged in Italy, the place which it had hitherto occupied was taken by the Transalpine province, which had been converted by the conquests of Caesar from a frontier into

an inland province, and which by its vicinity as well as by its climate was fitted beyond all other regions to become in due course of time likewise an Italian land. Thither principally, according to the old aim of the transmarine settlements of the Roman democracy, was the stream of Italian emigration directed. There the ancient colony of Narbo was reinforced by new settlers, and four new burgess-colonies were instituted at Baeterrae (Beziers) not far from Narbo, at Arelate (Aries) and Arausio (Orange) on the Rhone, and at the new seaport Forum Julii (Frejus); while the names assigned to them at the same time preserved the memory of the brave legions which had annexed northern Gaul to the empire.(91) The townships not furnished with colonists appear, at least for the most part, to have been led on toward Romanization in the same way as Transpadane Gaul in former times(92) by the bestowal of Latin urban rights; in particular Nemausus (Nimes), as the chief place of the territory taken from the Massiliots in consequence of their revolt against Caesar,(93) was converted from a Massiliot village into a Latin urban community, and endowed with a considerable territory and even with the right of coinage.(94) While Cisalpine Gaul thus advanced from the preparatory stage to full equality with Italy, the Narbonese province advanced at the same time into that preparatory stage; just as previously in Cisalpine Gaul, the most considerable communities there had the full franchise, the rest Latin rights.

Northern Gaul

In the other non-Greek and non-Latin regions of the empire, which were still more remote from the influence of Italy and the process of assimilation, Caesar confined himself to the establishment of several centres for Italian civilization such as Narbo had hitherto been in Gaul, in order by their means to pave the way for a future complete equalization. Such initial steps can be pointed out in all the provinces of the empire, with the exception of the poorest and least important of all, Sardinia. How Caesar proceeded in

Northern Gaul, we have already set forth;(95) the Latin language there obtained throughout official recognition, though not yet employed for all branches of public intercourse, and the colony of Noviodunum (Nyon) arose on the Lemane lake as the most northerly town with an Italian constitution.

Spain

In Spain, which was presumably at that time the most densely peopled country of the Roman empire, not merely were Caesarian colonists settled in the important Hellenic-Iberian seaport town of Emporiae by the side of the old population; but, as recently-discovered records have shown, a number of colonists probably taken predominantly from the proletariat of the capital were provided for in the town of Urso (Osuna), not far from Seville in the heart of Andalusia, and perhaps also in several other townships of this province. The ancient and wealthy mercantile city of Gades, whose municipal system Caesar even when praetor had remodelled suitably to the times, now obtained from the Emperor the full rights of the Italian -municipia-(705) and became—what Tusculum had been in Italy(96)—the first extra-Italian community not founded by Rome which was admitted into the Roman burgess-union. Some years afterwards (709) similar rights were conferred also on some other Spanish communities, and Latin rights presumably on still more.

Carthage

In Africa the project, which Gaius Gracchus had not been allowed to bring to an issue, was now carried out, and on the spot where the city of the hereditary foes of Rome had stood, 3000 Italian colonists and a great number of the tenants on lease and sufferance resident in the Carthaginian territory were settled; and the new "Venus-colony," the Roman Carthage, thrived with amazing rapidity under the incomparably favourable

circumstances of the locality. Utica, hitherto the capital and first commercial town in the province, had already been in some measure compensated beforehand, apparently by the bestowal of Latin rights, for the revival of its superior rival. In the Numidian territory newly annexed to the empire the important Cirta and the other communities assigned to the Roman condottiere Publius Sittius for himself and his troops(97) obtained the legal position of Roman military colonies. The stately provincial towns indeed, which the insane fury of Juba and of the desperate remnant of the constitutional party had converted into ruins, did not revive so rapidly as they had been reduced to ashes, and many a ruinous site recalled long afterwards this fatal period; but the two new Julian colonies, Carthage and Cirta, became and continued to be the centres of Africano-Roman civilization.

Corinth

The East

In the desolate land of Greece, Caesar, besides other plans such as the institution of a Roman colony in Buthrotum (opposite Corfu), busied himself above all with the restoration of Corinth. Not only was a considerable burgess-colony conducted thither, but a plan was projected for cutting through the isthmus, so as to avoid the dangerous circumnavigation of the Peloponnesus and to make the whole traffic between Italy and Asia pass through the Corintho- Saronic gulf. Lastly even in the remote Hellenic east the monarch called into existence Italian settlements; on the Black Sea, for instance, at Heraclea and Sinope, which towns the Italian colonists shared, as in the case of Emporiae, with the old inhabitants; on the Syrian coast, in the important port of Berytus, which like Sinope obtained an Italian constitution; and even in Egypt, where a Roman station was established on the lighthouse-island commanding the harbour of Alexandria.

Extension of the Italian Municipal Constitution to the Provinces

Through these ordinances the Italian municipal freedom was carried into the provinces in a manner far more comprehensive than had been previously the case. The communities of full burgesses—that is, all the towns of the Cisalpine province and the burgess-colonies and burgess-municipia—scattered in Transalpine Gaul and elsewhere— were on an equal footing with the Italian, in so far as they administered their own affairs, and even exercised a certainly limited jurisdiction; while on the other hand the more important processes came before the Roman authorities competent to deal with them—as a rule the governor of the province.(98) The formally autonomous Latin and the other emancipated communities—thus including all those of Sicily and of Narbonese Gaul, so far as they were not burgess-communities, and a considerable number also in the other provinces—had not merely free administration, but probably unlimited jurisdiction; so that the governor was only entitled to interfere there by virtue of his— certainly very arbitrary—administrative control. No doubt even earlier there had been communities of full burgesses within the provinces of governors, such as Aquileia, and Narbo, and whole governors' provinces, such as Cisalpine Gaul, had consisted of communities with Italian constitution; but it was, if not in law, at least in a political point of view a singularly important innovation, that there was now a province which as well as Italy was peopled solely by Roman burgesses,(99) and that others promised to become such.

Italy and the Provinces Reduced to One Level

With this disappeared the first great practical distinction that separated Italy from the provinces; and the second—that ordinarily no troops were stationed in Italy, while they were stationed in the provinces—was likewise in the course of disappearing; troops were now stationed only where there

was a frontier to be defended, and the commandants of the provinces in which this was not the case, such as Narbo and Sicily, were officers only in name. The formal contrast between Italy and the provinces, which had at all times depended on other distinctions,(100) continued certainly even now to subsist, for Italy was the sphere of civil jurisdiction and of consuls and praetors, while the provinces were districts under the jurisdiction of martial law and subject to proconsuls and propraeors; but the procedure according to civil and according to martial law had for long been practically coincident, and the different titles of the magistrates signified little after the one Imperator was over all.

In all these various municipal foundations and ordinances— which are traceable at least in plan, if not perhaps all in execution, to Caesar—a definite system is apparent. Italy was converted from the mistress of the subject peoples into the mother of the renovated Italo-Hellenic nation. The Cisalpine province completely equalized with the mother-country was a promise and a guarantee that, in the monarchy of Caesar just as in the healthier times of the republic, every Latinized district might expect to be placed on an equal footing by the side of its elder sisters and of the mother herself. On the threshold of full national and political equalization with Italy stood the adjoining lands, the Greek Sicily and the south of Gaul, which was rapidly becoming Latinized. In a more remote stage of preparation stood the other provinces of the empire, in which, just as hitherto in southern Gaul Narbo had been a Roman colony, the great maritime cities—Emporiae, Gades, Carthage, Corinth, Heraclea in Pontus, Sinope, Berytus, Alexandria— now became Italian or Helleno-Italian communities, the centres of an Italian civilization even in the Greek east, the fundamental pillars of the future national and political levelling of the empire. The rule of the urban community of Rome over the shores of the Mediterranean was at an end; in its stead came the new Mediterranean state, and its first act was to atone for the two greatest outrages which that urban

community had perpetrated on civilization. While the destruction of the two greatest marts of commerce in the Roman dominions marked the turning-point at which the protectorate of the Roman community degenerated into political tyrannizing over, and financial exaction from, the subject lands, the prompt and brilliant restoration of Carthage and Corinth marked the foundation of the new great commonwealth which was to train up all the regions on the Mediterranean to national and political equality, to union in a genuine state. Well might Caesar bestow on the city of Corinth in addition to its far-famed ancient name the new one of "Honour to Julius" (-Lavs Jvli-).

Organization of the New Empire

While thus the new united empire was furnished with a national character, which doubtless necessarily lacked individuality and was rather an inanimate product of art than a fresh growth of nature, it further had need of unity in those institutions which express the general life of nations—in constitution and administration, in religion and jurisprudence, in money, measures, and weights; as to which, of course, local diversities of the most varied character were quite compatible with essential union. In all these departments we can only speak of the initial steps, for the thorough formation of the monarchy of Caesar into an unity was the work of the future, and all that he did was to lay the foundation for the building of centuries. But of the lines, which the great man drew in these departments, several can still be recognized; and it is more pleasing to follow him here, than in the task of building from the ruins of the nationalities.

Census of the Empire

As to constitution and administration, we have already noticed elsewhere the most important elements of the new unity—the transition of the sovereignty from the municipal council of Rome to the sole master of the

Mediterranean monarchy; the conversion of that municipal council into a supreme imperial council representing Italy and the provinces; above all, the transference—now commenced— of the Roman, and generally of the Italian, municipal organization to the provincial communities. This latter course—the bestowal of Latin, and thereafter of Roman, rights on the communities ripe for full admission to the united state—gradually of itself brought about uniform communal arrangements. In one respect alone this process could not be waited for. The new empire needed immediately an institution which should place before the government at a glance the principal bases of administration—the proportions of population and property in the different communities— in other words an improved census. First the census of Italy was reformed. According to Caesar's ordinance(101)—which probably, indeed, only carried out the arrangements which were, at least as to principle, adopted in consequence of the Social war— in future, when a census took place in the Roman community, there were to be simultaneously registered by the highest authority in each Italian community the name of every municipal burgess and that of his father or manumitter, his district, his age, and his property; and these lists were to be furnished to the Roman censor early enough to enable him to complete in proper time the general list of Roman burgesses and of Roman property. That it was Caesar's intention to introduce similar institutions also in the provinces is attested partly by the measurement and survey of the whole empire ordered by him, partly by the nature of the arrangement itself; for it in fact furnished the general instrument appropriate for procuring, as well in the Italian as in the non-Italian communities of the state, the information requisite for the central administration. Evidently here too it was Caesar's intention to revert to the traditions of the earlier republican times, and to reintroduce the census of the empire, which the earlier republic had effected — essentially in the same way as Caesar effected the Italian— by analogous extension of the institution of the urban censorship with its set terms and

other essential rules to all the subject communities of Italy and Sicily.(102) This had been one of the first institutions which the torpid aristocracy allowed to drop, and in this way deprived the supreme administrative authority of any view of the resources in men and taxation at its disposal and consequently of all possibility of an effective control.(103) The indications still extant, and the very connection of things, show irrefragably that Caesar made preparations to renew the general census that had been obsolete for centuries.

Religion of the Empire

We need scarcely say that in religion and in jurisprudence no thorough levelling could be thought of; yet with all toleration towards local faiths and municipal statutes the new state needed a common worship corresponding to the Italo-Hellenic nationality and a general code of law superior to the municipal statutes. It needed them; for de facto both were already in existence. In the field of religion men had for centuries been busied in fusing together the Italian and Hellenic worships partly by external adoption, partly by internal adjustment of their respective conceptions of the gods; and owing to the pliant formless character of the Italian gods, there had been no great difficulty in resolving Jupiter into Zeus, Venus into Aphrodite, and so every essential idea of the Latin faith into its Hellenic counterpart. The Italo-Hellenic religion stood forth in its outlines ready-made; how much in this very department men were conscious of having gone beyond the specifically Roman point of view and advanced towards an Italo-Hellenic quasi-nationality, is shown by the distinction made in the already-mentioned theology of Varro between the "common" gods, that is, those acknowledged by Romans and Greeks, and the special gods of the Roman community.

Law of the Empire

So far as concerns the field of criminal and police law, where the government more directly interferes and the necessities of the case are substantially met by a judicious legislation, there was no difficulty in attaining, in the way of legislative action, that degree of material uniformity which certainly was in this department needful for the unity of the empire. In the civil law again, where the initiative belongs to commercial intercourse and merely the formal shape to the legislator, the code for the united empire, which the legislator certainly could not have created, had been already long since developed in a natural way by commercial intercourse itself. The Roman urban law was still indeed legally based on the embodiment of the Latin national law contained in the Twelve Tables. Later laws had doubtless introduced various improvements of detail suited to the times, among which the most important was probably the abolition of the old inconvenient mode of commencing a process through standing forms of declaration by the parties⁽¹⁰⁴⁾ and the substitution of an instruction drawn up in writing by the presiding magistrate for the single juryman (formula): but in the main the popular legislation had only piled upon that venerable foundation an endless chaos of special laws long since in great part antiquated and forgotten, which can only be compared to the English statute-law. The attempts to impart to them scientific shape and system had certainly rendered the tortuous paths of the old civil law accessible, and thrown light upon them;⁽¹⁰⁵⁾ but no Roman Blackstone could remedy the fundamental defect, that an urban code composed four hundred years ago with its equally diffuse and confused supplements was now to serve as the law of a great state.

The New Urban Law or the Edict

Commercial intercourse provided for itself a more thorough remedy. The lively intercourse between Romans and non-Romans had long ago developed in Rome an international private law (-ius gentium-;⁽¹⁰⁶⁾), that

is to say, a body of maxims especially relating to commercial matters, according to which Roman judges pronounced judgment, when a cause could not be decided either according to their own or any other national code and they were compelled—setting aside the peculiarities of Roman, Hellenic, Phoenician and other law—to revert to the common views of right underlying all dealings. The formation of the newer law attached itself to this basis. In the first place as a standard for the legal dealings of Roman burgesses with each other, it de facto substituted for the old urban law, which had become practically useless, a new code based in substance on a compromise between the national law of the Twelve Tables and the international law or so-called law of nations. The former was essentially adhered to, though of course with modifications suited to the times, in the law of marriage, family, and inheritance; whereas in all regulations which concerned dealings with property, and consequently in reference to ownership and contracts, the international law was the standard; in these matters indeed various important arrangements were borrowed even from local provincial law, such as the legislation as to usury,(107) and the institution of -hypotheca-. Through whom, when, and how this comprehensive innovation came into existence, whether at once or gradually, whether through one or several authors, are questions to which we cannot furnish a satisfactory answer. We know only that this reform, as was natural, proceeded in the first instance from the urban court; that it first took formal shape in the instructions annually issued by the -praetor urbanus-, when entering on office, for the guidance of the parties in reference to the most important maxims of law to be observed in the judicial year then beginning (-edictum annum- or -perpetuum praetoris urbani de iuris dictione-); and that, although various preparatory steps towards it may have been taken in earlier times, it certainly only attained its completion in this epoch. The new code was theoretic and abstract, inasmuch as the Roman view of law had therein divested itself of such of its

national peculiarities as it had become aware of; but it was at the same time practical and positive, inasmuch as it by no means faded away into the dim twilight of general equity or even into the pure nothingness of the so-called law of nature, but was applied by definite functionaries for definite concrete cases according to fixed rules, and was not merely capable of, but had already essentially received, a legal embodiment in the urban edict. This code moreover corresponded in matter to the wants of the time, in so far as it furnished the more convenient forms required by the increase of intercourse for legal procedure, for acquisition of property, and for conclusion of contracts. Lastly, it had already in the main become subsidiary law throughout the compass of the Roman empire, inasmuch as — while the manifold local statutes were retained for those legal relations which were not directly commercial, as well as for local transactions between members of the same legal district—dealings relating to property between subjects of the empire belonging to different legal districts were regulated throughout after the model of the urban edict, though not applicable *de jure* to these cases, both in Italy and in the provinces. The law of the urban edict had thus essentially the same position in that age which the Roman law has occupied in our political development; this also is, so far as such opposites can be combined, at once abstract and positive; this also recommended itself by its (compared with the earlier legal code) flexible forms of intercourse, and took its place by the side of the local statutes as universal subsidiary law. But the Roman legal development had an essential advantage over ours in this, that the denationalized legislation appeared not, as with us, prematurely and by artificial birth, but at the right time and agreeably to nature.

Caesar's Project of Codification

Such was the state of the law as Caesar found it. If he projected the plan for a new code, it is not difficult to say what were his intentions. This code

could only comprehend the law of Roman burgesses, and could be a general code for the empire merely so far as a code of the ruling nation suitable to the times could not but of itself become general subsidiary law throughout the compass of the empire. In criminal law, if the plan embraced this at all, there was needed only a revision and adjustment of the Sullan ordinances. In civil law, for a state whose nationality was properly humanity, the necessary and only possible formal shape was to invest that urban edict, which had already spontaneously grown out of lawful commerce, with the security and precision of statute-law. The first step towards this had been taken by the Cornelian law of 687, when it enjoined the judge to keep to the maxims set forth at the beginning of his magistracy and not arbitrarily to administer other law (108)—a regulation, which may well be compared with the law of the Twelve Tables, and which became almost as significant for the fixing of the later urban law as that collection for the fixing of the earlier. But although after the Cornelian decree of the people the edict was no longer subordinate to the judge, but the judge was by law subject to the edict; and though the new code had practically dispossessed the old urban law in judicial usage as in legal instruction—every urban judge was still free at his entrance on office absolutely and arbitrarily to alter the edict, and the law of the Twelve Tables with its additions still always outweighed formally the urban edict, so that in each individual case of collision the antiquated rule had to be set aside by arbitrary interference of the magistrates, and therefore, strictly speaking, by violation of formal law. The subsidiary application of the urban edict in the court of the -praetor peregrinus- at Rome and in the different provincial judicatures was entirely subject to the arbitrary pleasure of the individual presiding magistrates. It was evidently necessary to set aside definitely the old urban law, so far as it had not been transferred to the newer, and in the case of the latter to set suitable limits to its arbitrary alteration by each individual urban judge, possibly also to regulate its subsidiary application by the side of the local

statutes. This was Caesars design, when he projected the plan for his code; for it could not have been otherwise. The plan was not executed; and thus that troublesome state of transition in Roman jurisprudence was perpetuated till this necessary reform was accomplished six centuries afterwards, and then but imperfectly, by one of the successors of Caesar, the Emperor Justinian.

Lastly, in money, measures, and weights the substantial equalization of the Latin and Hellenic systems had long been in progress. It was very ancient so far as concerned the definitions of weight and the measures of capacity and of length indispensable for trade and commerce,(109) and in the monetary system little more recent than the introduction of the silver coinage.(110) But these older equations were not sufficient, because in the Hellenic world itself the most varied metrical and monetary systems subsisted side by side; it was necessary, and formed part doubtless of Caesar's plan, now to introduce everywhere in the new united empire, so far as this had not been done already, Roman money, Roman measures, and Roman weights in such a manner that they alone should be reckoned by in official intercourse, and that the non-Roman systems should be restricted to local currency or placed in a—once for all regulated—ratio to the Roman. (111) The action of Caesar, however, can only be pointed out in two of the most important of these departments, the monetary system and the calendar.

Gold Coin as Imperial Currency

The Roman monetary system was based on the two precious metals circulating side by side and in a fixed relation to each other, gold being given and taken according to weight,(112) silver in the form of coin; but practically in consequence of the extensive transmarine intercourse the gold far preponderated over the silver. Whether the acceptance of Roman silver money was not even at an earlier period obligatory throughout the empire,

is uncertain; at any rate uncoined gold essentially supplied the place of imperial money throughout the Roman territory, the more so as the Romans had prohibited the coining of gold in all the provinces and client- states, and the -denarius- had, in addition to Italy, de jure or de facto naturalized itself in Cisalpine Gaul, in Sicily, in Spain and various other places, especially in the west.(113) but the imperial coinage begins with Caesar. Exactly like Alexander, he marked the foundation of the new monarchy embracing the civilized world by the fact that the only metal forming an universal medium obtained the first place in the coinage. The greatness of the scale on which the new Caesarian gold piece (20 shillings 7 pence according to the present value of the metal) was immediately coined, is shown by the fact that in a single treasure buried seven years after Caesar's death 80,000 of these pieces were found together. It is true that financial speculations may have exercised a collateral influence in this respect.(114) as to the silver money, the exclusive rule of the Roman -denarius- in all the west, for which the foundation had previously been laid, was finally established by Caesar, when he definitively closed the only Occidental mint that still competed in silver currency with the Roman, that of Massilia. The coining of silver or copper small money was still permitted to a number of Occidental communities; three-quarter -denarii- were struck by some Latin communities of southern Gaul, half -denarii- by several cantons in northern Gaul, copper small coins in various instances even after Caesar's time by communes of the west; but this small money was throughout coined after the Roman standard, and its acceptance moreover was probably obligatory only in local dealings. Caesar does not seem any more than the earlier government to have contemplated the regulation with a view to unity of the monetary system of the east, where great masses of coarse silver money—much of which too easily admitted of being debased or worn away—and to some extent even, as in Egypt, a copper coinage akin to our paper money were in circulation, and the Syrian commercial cities would have felt very

severely the want of their previous national coinage corresponding to the Mesopotamian currency. We find here subsequently the arrangement that the -denarius- has everywhere legal currency and is the only medium of official reckoning,(115) while the local coins have legal currency within their limited range but according to a tariff unfavourable for them as compared with the -denarius-.(116) This was probably not introduced all at once, and in part perhaps may have preceded Caesar; but it was at any rate the essential complement of the Caesarian arrangement as to the imperial coinage, whose new gold piece found its immediate model in the almost equally heavy coin of Alexander and was doubtless calculated especially for circulation in the east.

Reform of the Calendar

Of a kindred nature was the reform of the calendar. The republican calendar, which strangely enough was still the old decemviral calendar—an imperfect adoption of the -octaeteris- that preceded Meton (117)—had by a combination of wretched mathematics and wretched administration come to anticipate the true time by 67 whole days, so that e. g. the festival of Flora was celebrated on the 11th July instead of the 28th April. Caesar finally removed this evil, and with the help of the Greek mathematician Sosigenes introduced the Italian farmer's year regulated according to the Egyptian calendar of Eudoxus, as well as a rational system of intercalation, into religious and official use; while at the same time the beginning of the year on the 1st March of the old calendar was abolished, and the date of the 1st January—fixed at first as the official term for changing the supreme magistrates and, in consequence of this, long since prevailing in civil life—was assumed also as the calendar-period for commencing the year. Both changes came into effect on the 1st January 709, and along with them the use of the Julian calendar so named after its author, which long after the fall of the monarchy of Caesar remained the regulative standard of the civilized

world and in the main is so still. By way of explanation there was added in a detailed edict a star-calendar derived from the Egyptian astronomical observations and transferred—not indeed very skilfully—to Italy, which fixed the rising and setting of the stars named according to days of the calendar.(118) In this domain also the Roman and Greek worlds were thus placed on a par.

Caesar and His Works

Such were the foundations of the Mediterranean monarchy of Caesar. For the second time in Rome the social question had reached a crisis, at which the antagonisms not only appeared to be, but actually were, in the form of their exhibition, insoluble and, in the form of their expression, irreconcilable. On the former occasion Rome had been saved by the fact that Italy was merged in Rome and Rome in Italy, and in the new enlarged and altered home those old antagonisms were not reconciled, but fell into abeyance. Now Rome was once more saved by the fact that the countries of the Mediterranean were merged in it or became prepared for merging; the war between the Italian poor and rich, which in the old Italy could only end with the destruction of the nation, had no longer a battle-field or a meaning in the Italy of three continents. The Latin colonies closed the gap which threatened to swallow up the Roman community in the fifth century; the deeper chasm of the seventh century was filled by the Transalpine and transmarine colonizations of Gaius Gracchus and Caesar. For Rome alone history not merely performed miracles, but also repeated its miracles, and twice cured the internal crisis, which in the state itself was incurable, by regenerating the state. There was doubtless much corruption in this regeneration; as the union of Italy was accomplished over the ruins of the Samnite and Etruscan nations, so the Mediterranean monarchy built itself on the ruins of countless states and tribes once living and vigorous; but it was a corruption out of which sprang a fresh growth, part of which remains

green at the present day. What was pulled down for the sake of the new building, was merely the secondary nationalities which had long since been marked out for destruction by the levelling hand of civilization. Caesar, wherever he came forward as a destroyer, only carried out the pronounced verdict of historical development; but he protected the germs of culture, where and as he found them, in his own land as well as among the sister nation of the Hellenes. He saved and renewed the Roman type; and not only did he spare the Greek type, but with the same self-relying genius with which he accomplished the renewed foundation of Rome he undertook also the regeneration of the Hellenes, and resumed the interrupted work of the great Alexander, whose image, we may well believe, never was absent from Caesar's soul. He solved these two great tasks not merely side by side, but the one by means of the other. The two great essentials of humanity—general and individual development, or state and culture—once in embryo united in those old Graeco-Italians feeding their flocks in primeval simplicity far from the coasts and islands of the Mediterranean, had become dissevered when these were parted into Italians and Hellenes, and had thenceforth remained apart for many centuries. Now the descendant of the Trojan prince and the Latin king's daughter created out of a state without distinctive culture and a cosmopolitan civilization a new whole, in which state and culture again met together at the acme of human existence in the rich fulness of blessed maturity and worthily filled the sphere appropriate to such an union.

The outlines have thus been set forth, which Caesar drew for this work, according to which he laboured himself, and according to which posterity—for many centuries confined to the paths which this great man marked out—endeavoured to prosecute the work, if not with the intellect and energy, yet on the whole in accordance with the intentions, of the illustrious master. Little was finished; much even was merely begun. Whether the plan was complete, those who venture to vie in thought with such a man may decide;

we observe no material defect in what lies before us—every single stone of the building enough to make a man immortal, and yet all combining to form one harmonious whole. Caesar ruled as king of Rome for five years and a half, not half as long as Alexander; in the intervals of seven great campaigns, which allowed him to stay not more than fifteen months altogether(119) in the capital of his empire, he regulated the destinies of the world for the present and the future, from the establishment of the boundary-line between civilization and barbarism down to the removal of the pools of rain in the streets of the capital, and yet retained time and composure enough attentively to follow the prize-pieces in the theatre and to confer the chaplet on the victor with improvised verses. The rapidity and self-precision with which the plan was executed prove that it had been long meditated thoroughly and all its parts settled in detail; but, even thus, they remain not much less wonderful than the plan itself. The outlines were laid down and thereby the new state was defined for all coming time; the boundless future alone could complete the structure. So far Caesar might say, that his aim was attained; and this was probably the meaning of the words which were sometimes heard to fall from him—that he had "lived enough." But precisely because the building was an endless one, the master as long as he lived restlessly added stone to stone, with always the same dexterity and always the same elasticity busy at his work, without ever overturning or postponing, just as if there were for him merely a to-day and no to-morrow. Thus he worked and created as never did any mortal before or after him; and as a worker and creator he still, after wellnigh two thousand years, lives in the memory of the nations—the first, and withal unique, Emperor Caesar.

CHAPTER XII

Religion, Culture, Literature, and Art

State Religion

In the development of religion and philosophy no new element appeared during this epoch. The Romano-Hellenic state-religion and the Stoic state-philosophy inseparably combined with it were for every government—oligarchy, democracy or monarchy—not merely a convenient instrument, but quite indispensable for the very reason that it was just as impossible to construct the state wholly without religious elements as to discover any new state-religion fitted to take the place of the old. So the besom of revolution swept doubtless at times very roughly through the cobwebs of the augural bird-lore;(1) nevertheless the rotten machine creaking at every joint survived the earthquake which swallowed up the republic itself, and preserved its insipidity and its arrogance without diminution for transference to the new monarchy. As a matter of course, it fell more and more into disfavour with all those who preserved their freedom of judgment. Towards the state-religion indeed public opinion maintained an attitude essentially indifferent; it was on all sides recognized as an institution of political convenience, and no one specially troubled himself about it with the exception of political and antiquarian literati. But towards its philosophical sister there gradually sprang up among the unprejudiced public that hostility, which the empty and yet perfidious hypocrisy of set

phrases never fails in the long run to awaken. That a presentiment of its own worthlessness began to dawn on the Stoa itself, is shown by its attempt artificially to infuse into itself some fresh spirit in the way of syncretism. Antiochus of Ascalon (flourishing about 675), who professed to have patched together the Stoic and Platonic-Aristotelian systems into one organic unity, in reality so far succeeded that his misshapen doctrine became the fashionable philosophy of the conservatives of his time and was conscientiously studied by the genteel dilettanti and literati of Rome. Every one who displayed any intellectual vigour, opposed the Stoa or ignored it. It was principally antipathy towards the boastful and tiresome Roman Pharisees, coupled doubtless with the increasing disposition to take refuge from practical life in indolent apathy or empty irony, that occasioned during this epoch the extension of the system of Epicurus to a larger circle and the naturalization of the Cynic philosophy of Diogenes in Rome. However stale and poor in thought the former might be, a philosophy, which did not seek the way to wisdom through an alteration of traditional terms but contented itself with those in existence, and throughout recognized only the perceptions of sense as true, was always better than the terminological jingle and the hollow conceptions of the Stoic wisdom; and the Cynic philosophy was of all the philosophical systems of the times in so far by much the best, as its system was confined to the having no system at all and sneering at all systems and all systematizers. In both fields war was waged against the Stoa with zeal and success; for serious men, the Epicurean Lucretius preached with the full accents of heartfelt conviction and of holy zeal against the Stoical faith in the gods and providence and the Stoical doctrine of the immortality of the soul; for the great public ready to laugh, the Cynic Varro hit the mark still more sharply with the flying darts of his extensively-read satires. While thus the ablest men of the older generation made war on the Stoa, the younger generation again, such as Catullus, stood

in no inward relation to it at all, and passed a far sharper censure on it by completely ignoring it.

The Oriental Religions

But, if in the present instance a faith no longer believed in was maintained out of political convenience, they amply made up for this in other respects. Unbelief and superstition, different hues of the same historical phenomenon, went in the Roman world of that day hand in hand, and there was no lack of individuals who in themselves combined both—who denied the gods with Epicurus, and yet prayed and sacrificed before every shrine. Of course only the gods that came from the east were still in vogue, and, as the men continued to flock from the Greek lands to Italy, so the gods of the east migrated in ever-increasing numbers to the west. The importance of the Phrygian cultus at that time in Rome is shown both by the polemical tone of the older men such as Varro and Lucretius, and by the poetical glorification of it in the fashionable Catullus, which concludes with the characteristic request that the goddess may deign to turn the heads of others only, and not that of the poet himself.

Worship of Mithra

A fresh addition was the Persian worship, which is said to have first reached the Occidental through the medium of the pirates who met on the Mediterranean from the east and from the west; the oldest seat of this cultus in the west is stated to have been Mount Olympus in Lycia. That in the adoption of Oriental worships in the west such higher speculative and moral elements as they contained were generally allowed to drop, is strikingly evinced by the fact that Ahuramazda, the supreme god of the pure doctrine of Zarathustra, remained virtually unknown in the west, and adoration there was especially directed to that god who had occupied the first place in the

old Persian national religion and had been transferred by Zarathustra to the second—the sun-god Mithra.

Worship of Isis

But the brighter and gentler celestial forms of the Persian religion did not so rapidly gain a footing in Rome as the wearisome mystical host of the grotesque divinities of Egypt—Isis the mother of nature with her whole train, the constantly dying and constantly reviving Osiris, the gloomy Sarapis, the taciturn and grave Harpocrates, the dog-headed Anubis. In the year when Clodius emancipated the clubs and conventicles (696), and doubtless in consequence of this very emancipation of the populace, that host even prepared to make its entry into the old stronghold of the Roman Jupiter in the Capitol, and it was with difficulty that the invasion was prevented and the inevitable temples were banished at least to the suburbs of Rome. No worship was equally popular among the lower orders of the population in the capital: when the senate ordered the temples of Isis constructed within the ring-wall to be pulled down, no labourer ventured to lay the first hand on them, and the consul Lucius Paullus was himself obliged to apply the first stroke of the axe(704); a wager might be laid, that the more loose any woman was, the more piously she worshipped Isis. That the casting of lots, the interpretation of dreams, and similar liberal arts supported their professors, was a matter of course. The casting of horoscopes was already a scientific pursuit; Lucius Tarutius of Firmum, a respectable and in his own way learned man, a friend of Varro and Cicero, with all gravity cast the nativity of kings Romulus and Numa and of the city of Rome itself, and for the edification of the credulous on either side confirmed by means of his Chaldaean and Egyptian wisdom the accounts of the Roman annals.

The New Pythagoreanism

Nigidius Figulus

But by far the most remarkable phenomenon in this domain was the first attempt to mingle crude faith with speculative thought, the first appearance of those tendencies, which we are accustomed to describe as Neo-Platonic, in the Roman world. Their oldest apostle there was Publius Nigidius Figulus, a Roman of rank belonging to the strictest section of the aristocracy, who filled the praetorship in 696 and died in 709 as a political exile beyond the bounds of Italy. With astonishing copiousness of learning and still more astonishing strength of faith he created out of the most dissimilar elements a philosophico-religious structure, the singular outline of which he probably developed still more in his oral discourses than in his theological and physical writings. In philosophy, seeking deliverance from the skeletons of the current systems and abstractions, he recurred to the neglected fountain of the pre-Socratic philosophy, to whose ancient sages thought had still presented itself with sensuous vividness. The researches of physical science—which, suitably treated, afford even now so excellent a handle for mystic delusion and pious sleight of hand, and in antiquity with its more defective insight into physical laws lent themselves still more easily to such objects—played in this case, as may readily be conceived, a considerable part. His theology was based essentially on that strange medley, in which Greeks of a kindred spirit had intermingled Orphic and other very old or very new indigenous wisdom with Persian, Chaldaean, and Egyptian secret doctrines, and with which Figulus incorporated the quasi-results of the Tuscan investigation into nothingness and of the indigenous lore touching the flight of birds, so as to produce further harmonious confusion. The whole system obtained its consecration—political, religious, and national—from the name of Pythagoras, the ultra-conservative statesman whose supreme principle was "to promote order and to check disorder," the miracle-worker and necromancer, the primeval sage

who was a native of Italy, who was interwoven even with the legendary history of Rome, and whose statue was to be seen in the Roman Forum. As birth and death are kindred with each other, so—it seemed—Pythagoras was to stand not merely by the cradle of the republic as friend of the wise Numa and colleague of the sagacious mother Egeria, but also by its grave as the last protector of the sacred bird-lore. But the new system was not merely marvellous, it also worked marvels; Nigidius announced to the father of the subsequent emperor Augustus, on the very day when the latter was born, the future greatness of his son; nay the prophets conjured up spirits for the credulous, and, what was of more moment, they pointed out to them the places where their lost money lay. The new-and-old wisdom, such as it was, made a profound impression on its contemporaries; men of the highest rank, of the greatest learning, of the most solid ability, belonging to very different parties—the consul of 705, Appius Claudius, the learned Marcus Varro, the brave officer Publius Vatinius— took part in the citation of spirits, and it even appears that a police interference was necessary against the proceedings of these societies. These last attempts to save the Roman theology, like the kindred efforts of Cato in the field of politics, produce at once a comical and a melancholy impression; we may smile at the creed and its propagators, but still it is a grave matter when even able men begin to addict themselves to absurdity.

Training of Youth

Sciences of General Culture at This Period

The training of youth followed, as may naturally be supposed, the course of bilingual humane culture chalked out in the previous epoch, and the general culture also of the Roman world conformed more and more to the forms established for that purpose by the Greeks. Even the bodily exercises advanced from ball-playing, running, and fencing to the more artistically-developed Greek gymnastic contests; though there were not yet any public

institutions for gymnastics, in the principal country-houses the palaestra was already to be found by the side of the bath-rooms. The manner in which the cycle of general culture had changed in the Roman world during the course of a century, is shown by a comparison of the encyclopaedia of Cato(2) with the similar treatise of Varro "concerning the school-sciences." As constituent elements of non-professional culture, there appear in Cato the art of oratory, the sciences of agriculture, of law, of war, and of medicine; in Varro—according to probable conjecture—grammar, logic or dialectics, rhetoric, geometry, arithmetic, astronomy, music, medicine, and architecture. Consequently in the course of the seventh century the sciences of war, jurisprudence, and agriculture had been converted from general into professional studies. On the other hand in Varro the Hellenic training of youth appears already in all its completeness: by the side of the course of grammar, rhetoric, and philosophy, which had been introduced at an earlier period into Italy, we now find the course which had longer remained distinctively Hellenic, of geometry, arithmetic, astronomy, and music.(3) That astronomy more especially, which ministered, in the nomenclature of the stars, to the thoughtless erudite dilettantism of the age and, in its relations to astrology, to the prevailing religious delusions, was regularly and zealously studied by the youth in Italy, can be proved also otherwise; the astronomical didactic poems of Aratus, among all the works of Alexandrian literature, found earliest admittance into the instruction of Roman youth. To this Hellenic course there was added the study of medicine, which was retained from the older Roman instruction, and lastly that of architecture—indispensable to the genteel Roman of this period, who instead of cultivating the ground built houses and villas.

Greek Instruction

Alexandrinism

In comparison with the previous epoch the Greek as well as the Latin training improved in extent and in scholastic strictness quite as much as it declined in purity and in refinement. The increasing eagerness after Greek lore gave to instruction of itself an erudite character. To explain Homer or Euripides was after all no art; teachers and scholars found their account better in handling the Alexandrian poems, which, besides, were in their spirit far more congenial to the Roman world of that day than the genuine Greek national poetry, and which, if they were not quite so venerable as the Iliad, possessed at any rate an age sufficiently respectable to pass as classics with schoolmasters. The love-poems of Euphorion, the "Causes" of Callimachus and his "Ibis," the comically obscure "Alexandra" of Lycophron contained in rich abundance rare vocables (-glossae-) suitable for being extracted and interpreted, sentences laboriously involved and difficult of analysis, prolix digressions full of mystic combinations of antiquated myths, and generally a store of cumbersome erudition of all sorts. Instruction needed exercises more and more difficult; these productions, in great part model efforts of schoolmasters, were excellently adapted to be lessons for model scholars. Thus the Alexandrian poems took a permanent place in Italian scholastic instruction, especially as trial-themes, and certainly promoted knowledge, although at the expense of taste and of discretion. The same unhealthy appetite for culture moreover impelled the Roman youths to derive their Hellenism as much as possible from the fountain-head. The courses of the Greek masters in Rome sufficed only for a first start; every one who wished to be able to converse heard lectures on Greek philosophy at Athens, and on Greek rhetoric at Rhodes, and made a literary and artistic tour through Asia Minor, where most of the old art-treasures of the Hellenes were still to be found on the spot, and the cultivation of the fine arts had been continued, although after a mechanical fashion; whereas Alexandria, more distant and more celebrated as the seat

of the exact sciences, was far more rarely the point whither young men desirous of culture directed their travels.

Latin Instruction

The advance in Latin instruction was similar to that of Greek. This in part resulted from the mere reflex influence of the Greek, from which it in fact essentially borrowed its methods and its stimulants. Moreover, the relations of politics, the impulse to mount the orators' platform in the Forum which was imparted by the democratic doings to an ever-widening circle, contributed not a little to the diffusion and enhancement of oratorical exercises; "wherever one casts his eyes," says Cicero, "every place is full of rhetoricians." Besides, the writings of the sixth century, the farther they receded into the past, began to be more decidedly regarded as classical texts of the golden age of Latin literature, and thereby gave a greater preponderance to the instruction which was essentially concentrated upon them. Lastly the immigration and spreading of barbarian elements from many quarters and the incipient Latinizing of extensive Celtic and Spanish districts, naturally gave to Latin grammar and Latin instruction a higher importance than they could have had, so long as Latium only spoke Latin; the teacher of Latin literature had from the outset a different position in Comum and Narbo than he had in Praeneste and Ardea. Taken as a whole, culture was more on the wane than on the advance. The ruin of the Italian country towns, the extensive intrusion of foreign elements, the political, economic, and moral deterioration of the nation, above all, the distracting civil wars inflicted more injury on the language than all the schoolmasters of the world could repair. The closer contact with the Hellenic culture of the present, the more decided influence of the talkative Athenian wisdom and of the rhetoric of Rhodes and Asia Minor, supplied to the Roman youth just the very elements that were most pernicious in Hellenism. The propagandist mission which Latium undertook among the Celts, Iberians, and Libyans—

proud as the task was— could not but have the like consequences for the Latin language as the Hellenizing of the east had had for the Hellenic. The fact that the Roman public of this period applauded the well arranged and rhythmically balanced periods of the orator, and any offence in language or metre cost the actor dear, doubtless shows that the insight into the mother tongue which was the reflection of scholastic training was becoming the common possession of an ever- widening circle. But at the same time contemporaries capable of judging complain that the Hellenic culture in Italy about 690 was at a far lower level than it had been a generation before; that opportunities of hearing pure and good Latin were but rare, and these chiefly from the mouth of elderly cultivated ladies; that the tradition of genuine culture, the good old Latin mother wit, the Lucilian polish, the cultivated circle of readers of the Scipionic age were gradually disappearing. The circumstance that the term -urbanitas-, and the idea of a polished national culture which it expressed, arose during this period, proves, not that it was prevalent, but that it was on the wane, and that people were keenly alive to the absence of this -urbanitas- in the language and the habits of the Latinized barbarians or barbarized Latins. Where we still meet with the urbane tone of conversation, as in Varro's Satires and Cicero's Letters, it is an echo of the old fashion which was not yet so obsolete in Reate and Arpinum as in Rome.

Germes of State Training-Schools

Thus the previous culture of youth remained substantially unchanged, except that—not so much from its own deterioration as from the general decline of the nation—it was productive of less good and more evil than in the preceding epoch. Caesar initiated a revolution also in this department. While the Roman senate had first combated and then at the most had simply tolerated culture, the government of the new Italo-Hellenic empire, whose essence in fact was -humanitas-, could not but adopt measures to stimulate

it after the Hellenic fashion. If Caesar conferred the Roman franchise on all teachers of the liberal sciences and all the physicians of the capital, we may discover in this step a paving of the way in some degree for those institutions in which subsequently the higher bilingual culture of the youth of the empire was provided for on the part of the state, and which form the most significant expression of the new state of -humanitas-; and if Caesar had further resolved on the establishment of a public Greek and Latin library in the capital and had already nominated the most learned Roman of the age, Marcus Varro, as principal librarian, this implied unmistakeably the design of connecting the cosmopolitan monarchy with cosmopolitan literature.

Language

The Vulgarism of Asia Minor

The development of the language during this period turned on the distinction between the classical Latin of cultivated society and the vulgar language of common life. The former itself was a product of the distinctively Italian culture; even in the Scipionic circle "pure Latin" had become the cue, and the mother tongue was spoken, no longer in entire naivete, but in conscious contradistinction to the language of the great multitude. This epoch opens with a remarkable reaction against the classicism which had hitherto exclusively prevailed in the higher language of conversation and accordingly also in literature—a reaction which had inwardly and outwardly a close connection with the reaction of a similar nature in the language of Greece. Just about this time the rhetor and romance-writer Hegesias of Magnesia and the numerous rhetors and literati of Asia Minor who attached themselves to him began to rebel against the orthodox Atticism. They demanded full recognition for the language of life, without distinction, whether the word or the phrase originated in Attica or in Caria and Phrygia; they themselves spoke and wrote not for the taste of

learned cliques, but for that of the great public. There could not be much objection to the principle; only, it is true, the result could not be better than was the public of Asia Minor of that day, which had totally lost the taste for chasteness and purity of production, and longed only after the showy and brilliant. To say nothing of the spurious forms of art that sprang out of this tendency—especially the romance and the history assuming the form of romance—the very style of these Asiatics was, as may readily be conceived, abrupt and without modulation and finish, minced and effeminate, full of tinsel and bombast, thoroughly vulgar and affected; "any one who knows Hegesias," says Cicero, "knows what silliness is."

Roman Vulgarism

Hortensius

Reaction

The Rhodian School

Yet this new style found its way also into the Latin world. When the Hellenic fashionable rhetoric, after having at the close of the previous epoch obtruded into the Latin instruction of youth,(4) took at the beginning of the present period the final step and mounted the Roman orators' platform in the person of Quintus Hortensius (640-704), the most celebrated pleader of the Sullan age, it adhered closely even in the Latin idiom to the bad Greek taste of the time; and the Roman public, no longer having the pure and chaste culture of the Scipionic age, naturally applauded with zeal the innovator who knew how to give to vulgarism the semblance of an artistic performance. This was of great importance. As in Greece the battles of language were always waged at first in the schools of the rhetoricians, so in Rome the forensic oration to a certain extent even more than literature set the standard of style, and accordingly there was combined, as it were of right, with the leadership of the bar the prerogative of giving the tone to the fashionable mode of speaking and writing. The Asiatic vulgarism of

Hortensius thus dislodged classicism from the Roman platform and partly also from literature. But the fashion soon changed once more in Greece and in Rome. In the former it was the Rhodian school of rhetoricians, which, without reverting to all the chaste severity of the Attic style, attempted to strike out a middle course between it and the modern fashion: if the Rhodian masters were not too particular as to the internal correctness of their thinking and speaking, they at least insisted on purity of language and style, on the careful selection of words and phrases, and the giving thorough effect to the modulation of sentences.

Ciceronianism

In Italy it was Marcus Tullius Cicero (648-711) who, after having in his early youth gone along with the Hortensian manner, was brought by hearing the Rhodian masters and by his own more matured taste to better paths, and thenceforth addicted himself to strict purity of language and the thorough periodic arrangement and modulation of his discourse. The models of language, which, in this respect he followed, he found especially in those circles of the higher Roman society which had suffered but little or not at all from vulgarism; and, as was already said, there were still such, although they were beginning to disappear. The earlier Latin and the good Greek literature, however considerable was the influence of the latter more especially on the rhythm of his oratory, were in this matter only of secondary moment: this purifying of the language was by no means a reaction of the language of books against that of conversation, but a reaction of the language of the really cultivated against the jargon of spurious and partial culture. Caesar, in the department of language also the greatest master of his time, expressed the fundamental idea of Roman classicism, when he enjoined that in speech and writing every foreign word should be avoided, as rocks are avoided by the mariner; the poetical and the obsolete word of the older literature was rejected as well as the rustic phrase

or that borrowed from the language of common life, and more especially the Greek words and phrases which, as the letters of this period show, had to a very great extent found their way into conversational language. Nevertheless this scholastic and artificial classicism of the Ciceronian period stood to the Scipionic as repentance to innocence, or the French of the classicists under Napoleon to the model French of Moliere and Boileau; while the former classicism had sprung out of the full freshness of life, the latter as it were caught just in right time the last breath of a race perishing beyond recovery. Such as it was, it rapidly diffused itself. With the leadership of the bar the dictatorship of language and taste passed from Hortensius to Cicero, and the varied and copious authorship of the latter gave to this classicism—what it had hitherto lacked—extensive prose texts. Thus Cicero became the creator of the modern classical Latin prose, and Roman classicism attached itself throughout and altogether to Cicero as a stylist; it was to the stylist Cicero, not to the author, still less to the statesman, that the panegyrics—extravagant yet not made up wholly of verbiage—applied, with which the most gifted representatives of classicism, such as Caesar and Catullus, loaded him.

The New Roman Poetry

They soon went farther. What Cicero did in prose, was carried out in poetry towards the end of the epoch by the new Roman school of poets, which modelled itself on the Greek fashionable poetry, and in which the man of most considerable talent was Catullus. Here too the higher language of conversation dislodged the archaic reminiscences which hitherto to a large extent prevailed in this domain, and as Latin prose submitted to the Attic rhythm, so Latin poetry submitted gradually to the strict or rather painful metrical laws of the Alexandrines; e. g. from the time of Catullus, it is no longer allowable at once to begin a verse and to close a sentence

begun in the verse preceding with a monosyllabic word or a dissyllabic one not specially weighty.

Grammatical Science

At length science stepped in, fixed the law of language, and developed its rule, which was no longer determined on the basis of experience, but made the claim to determine experience. The endings of declension, which hitherto had in part been variable, were now to be once for all fixed; e. g. of the genitive and dative forms hitherto current side by side in the so-called fourth declension (-senatus- and -senatui-, -senatu-, and -senatu-) Caesar recognized exclusively as valid the contracted forms (-us and -u). In orthography various changes were made, to bring the written more fully into correspondence with the spoken language; thus the -u in the middle of words like -maxumus- was replaced after Caesar's precedent by -i; and of the two letters which had become superfluous, -k and -q, the removal of the first was effected, and that of the second was at least proposed. The language was, if not yet stereotyped, in the course of becoming so; it was not yet indeed unthinkingly dominated by rule, but it had already become conscious of it. That this action in the department of Latin grammar derived generally its spirit and method from the Greek, and not only so, but that the Latin language was also directly rectified in accordance with Greek precedent, is shown, for example, by the treatment of the final -s, which till towards the close of this epoch had at pleasure passed sometimes as a consonant, sometimes not as one, but was treated by the new- fashioned poets throughout, as in Greek, as a consonantal termination. This regulation of language is the proper domain of Roman classicism; in the most various ways, and for that very reason all the more significantly, the rule is inculcated and the offence against it rebuked by the coryphaei of classicism, by Cicero, by Caesar, even in the poems of Catullus; whereas the older generation expresses itself with natural keenness of feeling respecting the

revolution which had affected the field of language as remorselessly as the field of politics.(5) But while the new classicism—that is to say, the standard Latin governed by rule and as far as possible placed on a parity with the standard Greek— which arose out of a conscious reaction against the vulgarity intruding into higher society and even into literature, acquired literary fixity and systematic shape, the latter by no means evacuated the field. Not only do we find it naively employed in the works of secondary personages who have drifted into the ranks of authors merely by accident, as in the account of Caesar's second Spanish war, but we shall meet it also with an impress more or less distinct in literature proper, in the mime, in the semi-romance, in the aesthetic writings of Varro; and it is a significant circumstance, that it maintains itself precisely in the most national departments of literature, and that truly conservative men, like Varro, take it into protection. Classicism was based on the death of the Italian language as monarchy on the decline of the Italian nation; it was completely consistent that the men, in whom the republic was still living, should continue to give to the living language its rights, and for the sake of its comparative vitality and nationality should tolerate its aesthetic defects. Thus then the linguistic opinions and tendencies of this epoch are everywhere divergent; by the side of the old-fashioned poetry of Lucretius appears the thoroughly modern poetry of Catullus, by the side of Cicero's well-modulated period stands the sentence of Varro intentionally disdaining all subdivision. In this field likewise is mirrored the distraction of the age.

Literary Effort

Greek Literati in Rome

In the literature of this period we are first of all struck by the outward increase, as compared with the former epoch, of literary effort in Rome. It was long since the literary activity of the Greeks flourished no more in the free atmosphere of civic independence, but only in the scientific institutions

of the larger cities and especially of the courts. Left to depend on the favour and protection of the great, and dislodged from the former seats of the Muses(6) by the extinction of the dynasties of Pergamus (621), Cyrene (658), Bithynia (679), and Syria (690) and by the waning splendour of the court of the Lagids—moreover, since the death of Alexander the Great, necessarily cosmopolitan and at least quite as much strangers among the Egyptians and Syrians as among the Latins— the Hellenic literati began more and more to turn their eyes towards Rome. Among the host of Greek attendants with which the Roman of quality at this time surrounded himself, the philosopher, the poet, and the memoir-writer played conspicuous parts by the side of the cook, the boy-favourite, and the jester. We meet already literati of note in such positions; the Epicurean Philodemus, for instance, was installed as domestic philosopher with Lucius Piso consul in 696, and occasionally edified the initiated with his clever epigrams on the coarse-grained Epicureanism of his patron. From all sides the most notable representatives of Greek art and science migrated in daily-increasing numbers to Rome where literary gains were now more abundant than anywhere else. Among those thus mentioned as settled in Rome we find the physician Asclepiades whom king Mithradates vainly endeavoured to draw away from it into his service; the universalist in learning, Alexander of Miletus, termed Polyhistor; the poet Parthenius from Nicaea in Bithynia; Posidonius of Apamea in Syria equally celebrated as a traveller, teacher, and author, who at a great age migrated in 703 from Rhodes to Rome; and various others. A house like that of Lucius Lucullus was a seat of Hellenic culture and a rendezvous for Hellenic literati almost like the Alexandrian Museum; Roman resources and Hellenic connoisseurship had gathered in these halls of wealth and science an incomparable collection of statues and paintings of earlier and contemporary masters, as well as a library as carefully selected as it was magnificently fitted up, and every person of culture and especially every Greek was welcome there—the master of the

house himself was often seen walking up and down the beautiful colonnade in philological or philosophical conversation with one of his learned guests. No doubt these Greeks brought along with their rich treasures of culture their preposterousness and servility to Italy; one of these learned wanderers for instance, the author of the "Art of Flattery," Aristodemus of Nysa (about 700) recommended himself to his masters by demonstrating that Homer was a native of Rome!

Extent of the Literary Pursuits of the Romans

In the same measure as the pursuits of the Greek literati prospered in Rome, literary activity and literary interest increased among the Romans themselves. Even Greek composition, which the stricter taste of the Scipionic age had totally set aside, now revived. The Greek language was now universally current, and a Greek treatise found a quite different public from a Latin one; therefore Romans of rank, such as Lucius Lucullus, Marcus Cicero, Titus Atticus, Quintus Scaevola (tribune of the people in 700), like the kings of Armenia and Mauretania, published occasionally Greek prose and even Greek verses. Such Greek authorship however by native Romans remained a secondary matter and almost an amusement; the literary as well as the political parties of Italy all coincided in adhering to their Italian nationality, only more or less pervaded by Hellenism. Nor could there be any complaint at least as to want of activity in the field of Latin authorship. There was a flood of books and pamphlets of all sorts, and above all of poems, in Rome. Poets swarmed there, as they did only in Tarsus or Alexandria; poetical publications had become the standing juvenile sin of livelier natures, and even then the writer was reckoned fortunate whose youthful poems compassionate oblivion withdrew from criticism. Any one who understood the art, wrote without difficulty at a sitting his five hundred hexameters in which no schoolmaster found anything to censure, but no reader discovered anything to praise. The

female world also took a lively part in these literary pursuits; the ladies did not confine themselves to dancing and music, but by their spirit and wit ruled conversation and talked excellently on Greek and Latin literature; and, when poetry laid siege to a maiden's heart, the beleaguered fortress not seldom surrendered likewise in graceful verses. Rhythms became more and more the fashionable plaything of the big children of both sexes; poetical epistles, joint poetical exercises and competitions among good friends, were of common occurrence, and towards the end of this epoch institutions were already opened in the capital, at which unfledged Latin poets might learn verse-making for money. In consequence of the large consumption of books the machinery for the manufacture of copies was substantially perfected, and publication was effected with comparative rapidity and cheapness; bookselling became a respectable and lucrative trade, and the bookseller's shop a usual meeting-place of men of culture. Reading had become a fashion, nay a mania; at table, where coarser pastimes had not already intruded, reading was regularly introduced, and any one who meditated a journey seldom forgot to pack up a travelling library. The superior officer was seen in the camp-tent with the obscene Greek romance, the statesman in the senate with the philosophical treatise, in his hands. Matters accordingly stood in the Roman state as they have stood and will stand in every state where the citizens read "from the threshold to the closet." The Parthian vizier was not far wrong, when he pointed out to the citizens of Seleucia the romances found in the camp of Crassus and asked them whether they still regarded the readers of such books as formidable opponents.

The Classicists and the Moderns

The literary tendency of this age was varied and could not be otherwise, for the age itself was divided between the old and the new modes. The same tendencies which came into conflict on the field of politics, the national-

Italian tendency of the conservatives, the Helleno-Italian or, if the term be preferred, cosmopolitan tendency of the new monarchy, fought their battles also on the field of literature. The former attached itself to the older Latin literature, which in the theatre, in the school, and in erudite research assumed more and more the character of classical. With less taste and stronger party tendencies than the Scipionic epoch showed, Ennius, Pacuvius, and especially Plautus were now exalted to the skies. The leaves of the Sibyl rose in price, the fewer they became; the relatively greater nationality and relatively greater productiveness of the poets of the sixth century were never more vividly felt than in this epoch of thoroughly developed Epigonism, which in literature as decidedly as in politics looked up to the century of the Hannibalic warriors as to the golden age that had now unhappily passed away beyond recall. No doubt there was in this admiration of the old classics no small portion of the same hollowness and hypocrisy which are characteristic of the conservatism of this age in general; and here too there was no want of trimmers. Cicero for instance, although in prose one of the chief representatives of the modern tendency, revered nevertheless the older national poetry nearly with the same antiquarian respect which he paid to the aristocratic constitution and the augural discipline; "patriotism requires," we find him saying, "that we should rather read a notoriously wretched translation of Sophocles than the original." While thus the modern literary tendency cognate to the democratic monarchy numbered secret adherents enough even among the orthodox admirers of Ennius, there were not wanting already bolder judges, who treated the native literature as disrespectfully as the senatorial politics. Not only did they resume the strict criticism of the Scipionic epoch and set store by Terence only in order to condemn Ennius and still more the Ennianists, but the younger and bolder men went much farther and ventured already—though only as yet in heretical revolt against literary orthodoxy—to call Plautus a rude jester and Lucilius a bad verse-smith. This modern

tendency attached itself not to the native authorship, but rather to the more recent Greek literature or the so-called Alexandrinism.

The Greek Alexandrinism

We cannot avoid saying at least so much respecting this remarkable winter-garden of Hellenic language and art, as is requisite for the understanding of the Roman literature of this and the later epochs. The Alexandrian literature was based on the decline of the pure Hellenic idiom, which from the time of Alexander the Great was superseded in daily life by an inferior jargon deriving its origin from the contact of the Macedonian dialect with various Greek and barbarian tribes; or, to speak more accurately, the Alexandrian literature sprang out of the ruin of the Hellenic nation generally, which had to perish, and did perish, in its national individuality in order to establish the universal monarchy of Alexander and the empire of Hellenism. Had Alexander's universal empire continued to subsist, the former national and popular literature would have been succeeded by a cosmopolitan literature Hellenic merely in name, essentially denationalized and called into life in a certain measure by royal patronage, but at all events ruling the world; but, as the state of Alexander was unhinged by his death, the germs of the literature corresponding to it rapidly perished. Nevertheless the Greek nation with all that it had possessed—with its nationality, its language, its art—belonged to the past. It was only in a comparatively narrow circle not of men of culture—for such, strictly speaking, no longer existed—but of men of erudition that the Greek literature was still cherished even when dead; that the rich inheritance which it had left was inventoried with melancholy pleasure or arid refinement of research; and that, possibly, the living sense of sympathy or the dead erudition was elevated into a semblance of productiveness. This posthumous productiveness constitutes the so-called Alexandrinism. It is essentially similar to that literature of scholars, which, keeping aloof from

the living Romanic nationalities and their vulgar idioms, grew up during the fifteenth and sixteenth centuries among a cosmopolitan circle of erudite philologues—as an artificial aftergrowth of the departed antiquity; the contrast between the classical and the vulgar Greek of the period of the Diadochi is doubtless less strongly marked, but is not, properly speaking, different from that between the Latin of Manutius and the Italian of Macchiavelli.

The Roman Alexandrinism

Italy had hitherto been in the main disinclined towards Alexandrinism. Its season of comparative brilliance was the period shortly before and after the first Punic war; yet Naevius, Ennius, Pacuvius and generally the whole body of the national Roman authors down to Varro and Lucretius in all branches of poetical production, not excepting even the didactic poem, attached themselves, not to their Greek contemporaries or very recent predecessors, but without exception to Homer, Euripides, Menander and the other masters of the living and national Greek literature. Roman literature was never fresh and national; but, as long as there was a Roman people, its authors instinctively sought for living and national models, and copied, if not always to the best purpose or the best authors, at least such as were original. The Greek literature originating after Alexander found its first Roman imitators—for the slight initial attempts from the Marian age(7) can scarcely be taken into account—among the contemporaries of Cicero and Caesar; and now the Roman Alexandrinism spread with singular rapidity. In part this arose from external causes. The increased contact with the Greeks, especially the frequent journeys of the Romans into the Hellenic provinces and the assemblage of Greek literati in Rome, naturally procured a public even among the Italians for the Greek literature of the day, for the epic and elegiac poetry, epigrams, and Milesian tales current at that time in Greece. Moreover, as we have already stated(8) the Alexandrian poetry had its

established place in the instruction of the Italian youth; and thus reacted on Latin literature all the more, since the latter continued to be essentially dependent at all times on the Hellenic school-training. We find in this respect even a direct connection of the new Roman with the new Greek literature; the already-mentioned Parthenius, one of the better known Alexandrian elegists, opened, apparently about 700, a school for literature and poetry in Rome, and the excerpts are still extant in which he supplied one of his pupils of rank with materials for Latin elegies of an erotic and mythological nature according to the well-known Alexandrian receipt. But it was by no means simply such accidental occasions which called into existence the Roman Alexandrinism; it was on the contrary a product—perhaps not pleasing, but thoroughly inevitable—of the political and national development of Rome. On the one hand, as Hellas resolved itself into Hellenism, so now Latium resolved itself into Romanism; the national development of Italy outgrew itself, and was merged in Caesar's Mediterranean empire, just as the Hellenic development in the eastern empire of Alexander. On the other hand, as the new empire rested on the fact that the mighty streams of Greek and Latin nationality, after having flowed in parallel channels for many centuries, now at length coalesced, the Italian literature had not merely as hitherto to seek its groundwork generally in the Greek, but had also to put itself on a level with the Greek literature of the present, or in other words with Alexandrinism. With the scholastic Latin, with the closed number of classics, with the exclusive circle of classic-reading -urbani-, the national Latin literature was dead and at an end; there arose instead of it a thoroughly degenerate, artificially fostered, imperial literature, which did not rest on any definite nationality, but proclaimed in two languages the universal gospel of humanity, and was dependent in point of spirit throughout and consciously on the old Hellenic, in point of language partly on this, partly on the old Roman popular, literature. This was no improvement. The Mediterranean monarchy of

Caesar was doubtless a grand and— what is more—a necessary creation; but it had been called into life by an arbitrary superior will, and therefore there was nothing to be found in it of the fresh popular life, of the overflowing national vigour, which are characteristic of younger, more limited, and more natural commonwealths, and which the Italian state of the sixth century had still been able to exhibit. The ruin of the Italian nationality, accomplished in the creation of Caesar, nipped the promise of literature. Every one who has any sense of the close affinity between art and nationality will always turn back from Cicero and Horace to Cato and Lucretius; and nothing but the schoolmaster's view of history and of literature— which has acquired, it is true, in this department the sanction of prescription—could have called the epoch of art beginning with the new monarchy pre-eminently the golden age. But while the Romano-Hellenic Alexandrinism of the age of Caesar and Augustus must be deemed inferior to the older, however imperfect, national literature, it is on the other hand as decidedly superior to the Alexandrinism of the age of the Diadochi as Caesar's enduring structure to the ephemeral creation of Alexander. We shall have afterwards to show that the Augustan literature, compared with the kindred literature of the period of the Diadochi, was far less a literature of philologues and far more an imperial literature than the latter, and therefore had a far more permanent and far more general influence in the upper circles of society than the Greek Alexandrinism ever had.

Dramatic Literature

Tragedy and Comedy Disappear

Nowhere was the prospect more lamentable than in dramatic literature. Tragedy and comedy had already before the present epoch become inwardly extinct in the Roman national literature. New pieces were no longer performed. That the public still in the Sullan age expected to see such, appears from the reproductions— belonging to this epoch—of Plautine

comedies with the titles and names of the persons altered, with reference to which the managers well added that it was better to see a good old piece than a bad new one. From this the step was not great to that entire surrender of the stage to the dead poets, which we find in the Ciceronian age, and to which Alexandrinism made no opposition. Its productiveness in this department was worse than none. Real dramatic composition the Alexandrian literature never knew; nothing but the spurious drama, which was written primarily for reading and not for exhibition, could be introduced by it into Italy, and soon accordingly these dramatic iambics began to be quite as prevalent in Rome as in Alexandria, and the writing of tragedy in particular began to figure among the regular diseases of adolescence. We may form a pretty accurate idea of the quality of these productions from the fact that Quintus Cicero, in order homoeopathically to beguile the weariness of winter quarters in Gaul, composed four tragedies in sixteen days.

The Mime

Laberius

In the "picture of life" or mime alone the last still vigorous product of the national literature, the Atellan farce, became engrafted with the ethological offshoots of Greek comedy, which Alexandrinism cultivated with greater poetical vigour and better success than any other branch of poetry. The mime originated out of the dances in character to the flute, which had long been usual, and which were performed sometimes on other occasions, e. g. for the entertainment of the guests during dinner, but more especially in the pit of the theatre during the intervals between the acts. It was not difficult to form out of these dances—in which the aid of speech had doubtless long since been occasionally employed—by means of the introduction of a more organized plot and a regular dialogue little comedies, which were yet essentially distinguished from the earlier comedy and even from the farce

by the facts, that the dance and the lasciviousness inseparable from such dancing continued in this case to play a chief part, and that the mime, as belonging properly not to the boards but to the pit, threw aside all ideal scenic effects, such as masks for the face and theatrical buskins, and—what was specially important—admitted of the female characters being represented by women. This new mime, which first seems to have come on the stage of the capital about 672, soon swallowed up the national harlequinade, with which it indeed in the most essential respects coincided, and was employed as the usual interlude and especially as afterpiece along with the other dramatic performances.(9) The plot was of course still more indifferent, loose, and absurd than in the harlequinade; if it was only sufficiently chequered, the public did not ask why it laughed, and did not remonstrate with the poet, who instead of untying the knot cut it to pieces. The subjects were chiefly of an amorous nature, mostly of the licentious sort; for example, poet and public without exception took part against the husband, and poetical justice consisted in the derision of good morals. The artistic charm depended wholly, as in the *Atellana*, on the portraiture of the manners of common and low life; in which rural pictures are laid aside for those of the life and doings of the capital, and the sweet rabble of Rome—just as in the similar Greek pieces the rabble of Alexandria—is summoned to applaud its own likeness. Many subjects are taken from the life of tradesmen; there appear the— here also inevitable—"Fuller," then the "Ropemaker," the "Dyer," the "Salt-man," the "Female Weavers," the "Rascal"; other pieces give sketches of character, as the "Forgetful," the "Braggart," the "Man of 100,000 sesterces";(10) or pictures of other lands, the "Etruscan Woman," the "Gauls," the "Cretan," "Alexandria"; or descriptions of popular festivals, as the "Compitalia," the "Saturnalia," "Anna Perenna," the "Hot Baths"; or parodies of mythology, as the "Voyage to the Underworld," the "Arvernian Lake." Apt nicknames and short commonplaces which were easily retained and applied were welcome; but

every piece of nonsense was of itself privileged; in this preposterous world Bacchus is applied to for water and the fountain-nymph for wine. Isolated examples even of the political allusions formerly so strictly prohibited in the Roman theatre are found in these mimes.⁽¹¹⁾ As regards metrical form, these poets gave themselves, as they tell us, "but moderate trouble with the versification"; the language abounded, even in the pieces prepared for publication, with vulgar expressions and low newly-coined words. The mime was, it is plain, in substance nothing but the former farce; with this exception, that the character-masks and the standing scenery of Atella as well as the rustic impress are dropped, and in their room the life of the capital in its boundless liberty and licence is brought on the stage. Most pieces of this sort were doubtless of a very fugitive nature and made no pretension to a place in literature; but the mimes of Laberius, full of pungent delineation of character and in point of language and metre exhibiting the hand of a master, maintained their ground in it; and even the historian must regret that we are no longer permitted to compare the drama of the republican death-struggle in Rome with its great Attic counterpart.

Dramatic Spectacles

With the worthlessness of dramatic literature the increase of scenic spectacles and of scenic pomp went hand in hand. Dramatic representations obtained their regular place in the public life not only of the capital but also of the country towns; the former also now at length acquired by means of Pompeius a permanent theatre (699;⁽¹²⁾), and the Campanian custom of stretching canvas over the theatre for the protection of the actors and spectators during the performance, which in ancient times always took place in the open air, now likewise found admission to Rome (676). As at that time in Greece it was not the—more than pale-Pleiad of the Alexandrian dramatists, but the classic drama, above all the tragedies of Euripides, which amidst the amplest development of scenic resources kept

the stage, so in Rome at the time of Cicero the tragedies of Ennius, Pacuvius, and Accius, and the comedies of Plautus were those chiefly produced. While the latter had been in the previous period supplanted by the more tasteful but in point of comic vigour far inferior Terence, Roscius and Varro, or in other words the theatre and philology, co-operated to procure for him a resurrection similar to that which Shakespeare experienced at the hands of Garrick and Johnson; but even Plautus had to suffer from the degenerate susceptibility and the impatient haste of an audience spoilt by the short and slovenly farces, so that the managers found themselves compelled to excuse the length of the Plautine comedies and even perhaps to make omissions and alterations. The more limited the stock of plays, the more the activity of the managing and executive staff as well as the interest of the public was directed to the scenic representation of the pieces. There was hardly any more lucrative trade in Rome than that of the actor and the dancing-girl of the first rank. The princely estate of the tragic actor Aesopus has been already mentioned;(13) his still more celebrated contemporary Roscius(14) estimated his annual income at 600,000 sesterces (6000 pounds)(15) and Dionysia the dancer estimated hers at 200,000 sesterces (2000 pounds). At the same time immense sums were expended on decorations and costume; now and then trains of six hundred mules in harness crossed the stage, and the Trojan theatrical army was employed to present to the public a tableau of the nations vanquished by Pompeius in Asia. The music which accompanied the delivery of the inserted choruses likewise obtained a greater and more independent importance; as the wind sways the waves, says Varro, so the skilful flute-player sways the minds of the listeners with every modulation of melody. It accustomed itself to the use of quicker time, and thereby compelled the player to more lively action. Musical and dramatic connoisseurship was developed; the -habitué- recognized every tune by the first note, and knew the texts by heart; every fault in the music or recitation was severely censured by the audience. The

state of the Roman stage in the time of Cicero vividly reminds us of the modern French theatre. As the Roman mime corresponds to the loose tableaux of the pieces of the day, nothing being too good and nothing too bad for either the one or the other, so we find in both the same traditionally classic tragedy and comedy, which the man of culture is in duty bound to admire or at least to applaud. The multitude is satisfied, when it meets its own reflection in the farce, and admires the decorative pomp and receives the general impression of an ideal world in the drama; the man of higher culture concerns himself at the theatre not with the piece, but only with its artistic representation. Moreover the Roman histrionic art oscillated in its different spheres, just like the French, between the cottage and the drawing-room. It was nothing unusual for the Roman dancing-girls to throw off at the finale the upper robe and to give a dance in undress for the benefit of the public; but on the other hand in the eyes of the Roman Talma the supreme law of his art was, not the truth of nature, but symmetry.

Metrical Annals

In recitative poetry metrical annals after the model of those of Ennius seem not to have been wanting; but they were perhaps sufficiently criticised by that graceful vow of his mistress of which Catullus sings—that the worst of the bad heroic poems should be presented as a sacrifice to holy Venus, if she would only bring back her lover from his vile political poetry to her arms.

Lucretius

Indeed in the whole field of recitative poetry at this epoch the older national-Roman tendency is represented only by a single work of note, which, however, is altogether one of the most important poetical products of Roman literature. It is the didactic poem of Titus Lucretius Carus (655-699) "Concerning the Nature of Things," whose author, belonging to the best

circles of Roman society, but taking no part in public life whether from weakness of health or from disinclination, died in the prime of manhood shortly before the outbreak of the civil war. As a poet he attached himself decidedly to Ennius and thereby to the classical Greek literature. Indignantly he turns away from the "hollow Hellenism" of his time, and professes himself with his whole soul and heart to be the scholar of the "chaste Greeks," as indeed even the sacred earnestness of Thucydides has found no unworthy echo in one of the best-known sections of this Roman poem. As Ennius draws his wisdom from Epicharmus and Euhemerus, so Lucretius borrows the form of his representation from Empedocles, "the most glorious treasure of the richly gifted Sicilian isle"; and, as to the matter, gathers "all the golden words together from the rolls of Epicurus," "who outshines other wise men as the sun obscures the stars." Like Ennius, Lucretius disdains the mythological lore with which poetry was overloaded by Alexandrinism, and requires nothing from his reader but a knowledge of the legends generally current.(16) In spite of the modern purism which rejected foreign words from poetry, Lucretius prefers to use, as Ennius had done, a significant Greek word in place of a feeble and obscure Latin one. The old Roman alliteration, the want of due correspondence between the pauses of the verse and those of the sentence, and generally the older modes of expression and composition, are still frequently found in Lucretius' rhythms, and although he handles the verse more melodiously than Ennius, his hexameters move not, as those of the modern poetical school, with a lively grace like the rippling brook, but with a stately slowness like the stream of liquid gold. Philosophically and practically also Lucretius leans throughout on Ennius, the only indigenous poet whom his poem celebrates. The confession of faith of the singer of Rudiae(17)—

-Ego deum genus esse semper dixi et dicam caelitum,
Sed eos non curare opinor, quid agat humanum genus:-—

describes completely the religious standpoint of Lucretius, and not unjustly for that reason he himself terms his poem as it were the continuation of Ennius:—

-Ennius ut noster cecinit, qui primus amoeno
Detulit ex Helicone perenni fronde coronam,
Per gentis Italas hominum quae clara clueret-.

Once more—and for the last time—the poem of Lucretius is resonant with the whole poetic pride and the whole poetic earnestness of the sixth century, in which, amidst the images of the formidable Carthaginian and the glorious Scipiad, the imagination of the poet is more at home than in his own degenerate age.(18) To him too his own song "gracefully welling up out of rich feeling" sounds, as compared with the common poems, "like the brief song of the swan compared with the cry of the crane";—with him too the heart swells, listening to the melodies of its own invention, with the hope of illustrious honours—just as Ennius forbids the men to whom he "gave from the depth of the heart a foretaste of fiery song," to mourn at his, the immortal singer's, tomb.

It is a remarkable fatality, that this man of extraordinary talents, far superior in originality of poetic endowments to most if not to all his contemporaries, fell upon an age in which he felt himself strange and forlorn, and in consequence of this made the most singular mistake in the selection of a subject. The system of Epicurus, which converts the universe into a great vortex of atoms and undertakes to explain the origin and end of the world as well as all the problems of nature and of life in a purely mechanical way, was doubtless somewhat less silly than the conversion of myths into history which was attempted by Euhemerus and after him by Ennius; but it was not an ingenious or a fresh system, and the task of poetically unfolding this mechanical view of the world was of such a nature

that never probably did poet expend life and art on a more ungrateful theme. The philosophic reader censures in the Lucretian didactic poem the omission of the finer points of the system, the superficiality especially with which controversies are presented, the defective division, the frequent repetitions, with quite as good reason as the poetical reader frets at the mathematics put into rhythm which makes a great part of the poem absolutely unreadable. In spite of these incredible defects, before which every man of mediocre talent must inevitably have succumbed, this poet might justly boast of having carried off from the poetic wilderness a new chaplet such as the Muses had not yet bestowed on any; and it was by no means merely the occasional similitudes, and the other inserted descriptions of mighty natural phenomena and yet mightier passions, which acquired for the poet this chaplet. The genius which marks the view of life as well as the poetry of Lucretius depends on his unbelief, which came forward and was entitled to come forward with the full victorious power of truth, and therefore with the full vigour of poetry, in opposition to the prevailing hypocrisy or superstition.

-Humana ante oculos foede cum vita iaceret
In terris oppressa gravi sub religione,
Quae caput a caeli regionibus ostendebat
Horribili super aspectu mortalibus instans,
Primum Graius homo mortalis tendere contra
Est oculos ausus primusque obsistere contra.
Ergo vivida vis animi pervicit, et extra
Processit longe flammantia moenia mundi
Atque omne immensum peragravit mente animoque-.

The poet accordingly was zealous to overthrow the gods, as Brutus had overthrown the kings, and "to release nature from her stern lords." But it was not against the long ago enfeebled throne of Jovis that these flaming

words were hurled; just like Ennius, Lucretius fights practically above all things against the wild foreign faiths and superstitions of, the multitude, the worship of the Great Mother for instance and the childish lightning-lore of the Etruscans. Horror and antipathy towards that terrible world in general, in which and for which the poet wrote, suggested his poem. It was composed in that hopeless time when the rule of the oligarchy had been overthrown and that of Caesar had not yet been established, in the sultry years during which the outbreak of the civil war was awaited with long and painful suspense. If we seem to perceive in its unequal and restless utterance that the poet daily expected to see the wild tumult of revolution break forth over himself and his work, we must not with reference to his view of men and things forget amidst what men, and in prospect of what things, that view had its origin. In the Hellas of the epoch before Alexander it was a current saying, and one profoundly felt by all the best men, that the best thing of all was not to be born, and the next best to die. Of all views of the world possible to a tender and poetically organized mind in the kindred Caesarian age this was the noblest and the most ennobling, that it is a benefit for man to be released from a belief in the immortality of the soul and thereby from the evil dread of death and of the gods which malignantly steals over men like terror creeping over children in a dark room; that, as the sleep of the night is more refreshing than the trouble of the day, so death, eternal repose from all hope and fear, is better than life, as indeed the gods of the poet themselves are nothing, and have nothing, but an eternal blessed rest; that the pains of hell torment man, not after life, but during its course, in the wild and unruly passions of his throbbing heart; that the task of man is to attune his soul to equanimity, to esteem the purple no higher than the warm dress worn at home, rather to remain in the ranks of those that obey than to press into the confused crowd of candidates for the office of ruler, rather to lie on the grass beside the brook than to take part under the golden ceiling of the rich in emptying his countless dishes. This

philosophico-practical tendency is the true ideal essence of the Lucretian poem and is only overlaid, not choked, by all the dreariness of its physical demonstrations. Essentially on this rests its comparative wisdom and truth. The man who with a reverence for his great predecessors and a vehement zeal, to which this century elsewhere knew no parallel, preached such doctrine and embellished it with the charm of art, may be termed at once a good citizen and a great poet. The didactic poem concerning the Nature of Things, however much in it may challenge censure, has remained one of the most brilliant stars in the poorly illuminated expanse of Roman literature; and with reason the greatest of German philologues chose the task of making the Lucretian poem once more readable as his last and most masterly work.

The Hellenic Fashionable Poetry

Lucretius, although his poetical vigour as well as his art was admired by his cultivated contemporaries, yet remained—of late growth as he was—a master without scholars. In the Hellenic fashionable poetry on the other hand there was no lack at least of scholars, who exerted themselves to emulate the Alexandrian masters. With true tact the more gifted of the Alexandrian poets avoided larger works and the pure forms of poetry—the drama, the epos, the lyric; the most pleasing and successful performances consisted with them, just as with the new Latin poets, in "short- winded" tasks, and especially in such as belonged to the domains bordering on the pure forms of art, more especially to the wide field intervening between narrative and song. Multifarious didactic poems were written. Small half-heroic, half-erotic epics were great favourites, and especially an erudite sort of love-elegy peculiar to this autumnal summer of Greek poetry and characteristic of the philological source whence it sprang, in which the poet more or less arbitrarily interwove the description of his own feelings, predominantly sensuous, with epic shreds from the cycle of Greek legend.

Festal lays were diligently and artfully manufactured; in general, owing to the want of spontaneous poetical invention, the occasional poem preponderated and especially the epigram, of which the Alexandrians produced excellent specimens. The poverty of materials and the want of freshness in language and rhythm, which inevitably cleave to every literature not national, men sought as much as possible to conceal under odd themes, far-fetched phrases, rare words, and artificial versification, and generally under the whole apparatus of philologico-antiquarian erudition and technical dexterity. Such was the gospel which was preached to the Roman boys of this period, and they came in crowds to hear and to practise it; already (about 700) the love-poems of Euphorion and similar Alexandrian poetry formed the ordinary reading and the ordinary pieces for declamation of the cultivated youth.(19) The literary revolution took place; but it yielded in the first instance with rare exceptions only premature or unripe fruits. The number of the "new-fashioned poets" was legion, but poetry was rare and Apollo was compelled, as always when so many throng towards Parnassus, to make very short work. The long poems never were worth anything, the short ones seldom. Even in this literary age the poetry of the day had become a public nuisance; it sometimes happened that one's friend would send home to him by way of mockery as a festal present a pile of trashy verses fresh from the bookseller's shop, whose value was at once betrayed by the elegant binding and the smooth paper. A real public, in the sense in which national literature has a public, was wanting to the Roman Alexandrians as well as to the Hellenic; it was thoroughly the poetry of a clique or rather cliques, whose members clung closely together, abused intruders, read and criticised among themselves the new poems, sometimes also quite after the Alexandrian fashion celebrated the successful productions in fresh verses, and variously sought to secure for themselves by clique-praises a spurious and ephemeral renown. A notable teacher of Latin literature, himself poetically active in this new direction, Valerius

Cato appears to have exercised a sort of scholastic patronage over the most distinguished men of this circle and to have pronounced final decision on the relative value of the poems. As compared with their Greek models, these Roman poets evince throughout a want of freedom, sometimes a schoolboy dependence; most of their products must have been simply the austere fruits of a school poetry still occupied in learning and by no means yet dismissed as mature. Inasmuch as in language and in measure they adhered to the Greek patterns far more closely than ever the national Latin poetry had done, a greater correctness and consistency in language and metre were certainly attained; but it was at the expense of the flexibility and fulness of the national idiom. As respects the subject-matter, under the influence partly of effeminate models, partly of an immoral age, amatory themes acquired a surprising preponderance little conducive to poetry; but the favourite metrical compendia of the Greeks were also in various cases translated, such as the astronomical treatise of Aratus by Cicero, and, either at the end of this or more probably at the commencement of the following period, the geographical manual of Eratosthenes by Publius Varro of the Aude and the physico-medicinal manual of Nicander by Aemilius Macer. It is neither to be wondered at nor regretted that of this countless host of poets but few names have been preserved to us; and even these are mostly mentioned merely as curiosities or as once upon a time great; such as the orator Quintus Hortensius with his "five hundred thousand lines" of tiresome obscenity, and the somewhat more frequently mentioned Laevius, whose -*Erotopaegnia*- attracted a certain interest only by their complicated measures and affected phraseology. Even the small epic *Smyrna* by Gaius Helvius Cinna (d. 710?), much as it was praised by the clique, bears both in its subject—the incestuous love of a daughter for her father—and in the nine years' toil bestowed on it the worst characteristics of the time.

Catullus

Those poets alone of this school constitute an original and pleasing exception, who knew how to combine with its neatness and its versatility of form the national elements of worth still existing in the republican life, especially in that of the country-towns. To say nothing here of Laberius and Varro, this description applies especially to the three poets already mentioned above(20) of the republican opposition, Marcus Furius Libaculus (652-691), Gaius Licinius Calvus (672-706) and Quintus Valerius Catullus (667-c. 700). Of the two former, whose writings have perished, we can indeed only conjecture this; respecting the poems of Catullus we can still form a judgment. He too depends in subject and form on the Alexandrians. We find in his collection translations of pieces of Callimachus, and these not altogether the very good, but the very difficult. Among the original pieces, we meet with elaborately-turned fashionable poems, such as the over-artificial Galliambics in praise of the Phrygian Mother; and even the poem, otherwise so beautiful, of the marriage of Thetis has been artistically spoiled by the truly Alexandrian insertion of the complaint of Ariadne in the principal poem. But by the side of these school-pieces we meet with the melodious lament of the genuine elegy, the festal poem in the full pomp of individual and almost dramatic execution, above all, the freshest miniature painting of cultivated social life, the pleasant and very unreserved amatory adventures of which half the charm consists in prattling and poetizing about the mysteries of love, the delightful life of youth with full cups and empty purses, the pleasures of travel and of poetry, the Roman and still more frequently the Veronese anecdote of the town, and the humorous jest amidst the familiar circle of friends. But not only does Apollo touch the lyre of the poet, he wields also the bow; the winged dart of sarcasm spares neither the tedious verse-maker nor the provincial who corrupts the language, but it hits none more frequently and more sharply than the potentates by whom the liberty of the people is endangered. The short-lined and merry metres, often enlivened by a graceful refrain, are of finished art and yet free from

the repulsive smoothness of the manufactory. These poems lead us alternately to the valleys of the Nile and the Po; but the poet is incomparably more at home in the latter. His poems are based on Alexandrian art doubtless, but at the same time on the self-consciousness of a burgess and a burgess in fact of a rural town, on the contrast of Verona with Rome, on the contrast of the homely municipal with the high-born lords of the senate who usually maltreat their humble friends—as that contrast was probably felt more vividly than anywhere else in Catullus' home, the flourishing and comparatively vigorous Cisalpine Gaul. The most beautiful of his poems reflect the sweet pictures of the Lago di Garda, and hardly at this time could any man of the capital have written a poem like the deeply pathetic one on his brother's death, or the excellent genuinely homely festal hymn for the marriage of Manlius and Aurunculeia. Catullus, although dependent on the Alexandrian masters and standing in the midst of the fashionable and clique poetry of that age, was yet not merely a good scholar among many mediocre and bad ones, but himself as much superior to his masters as the burgess of a free Italian community was superior to the cosmopolitan Hellenic man of letters. Eminent creative vigour indeed and high poetic intentions we may not look for in him; he is a richly gifted and graceful but not a great poet, and his poems are, as he himself calls them, nothing but "pleasantries and trifles." Yet when we find not merely his contemporaries electrified by these fugitive songs, but the art-critics of the Augustan age also characterizing him along with Lucretius as the most important poet of this epoch, his contemporaries as well as their successors were completely right. The Latin nation has produced no second poet in whom the artistic substance and the artistic form appear in so symmetrical perfection as in Catullus; and in this sense the collection of the poems of Catullus is certainly the most perfect which Latin poetry as a whole can show.

Poems in Prose

Romances

Lastly, poetry in a prose form begins in this epoch. The law of genuine naive as well as conscious art, which had hitherto remained unchangeable—that the poetical subject-matter and the metrical setting should go together—gave way before the intermixture and disturbance of all kinds and forms of art, which is one of the most significant features of this period. As to romances indeed nothing farther is to be noticed, than that the most famous historian of this epoch, Sisenna, did not esteem himself too good to translate into Latin the much-read Milesian tales of Aristides—licentious fashionable novels of the most stupid sort.

Varro's Aesthetic Writings

A more original and more pleasing phenomenon in this debateable border-land between poetry and prose was the aesthetic writings of Varro, who was not merely the most important representative of Latin philologico-historical research, but one of the most fertile and most interesting authors in belles-lettres. Descended from a plebeian gens which had its home in the Sabine land but had belonged for the last two hundred years to the Roman senate, strictly reared in antique discipline and decorum,(21) and already at the beginning of this epoch a man of maturity, Marcus Terentius Varro of Reate (638-727) belonged in politics, as a matter of course, to the institutional party, and bore an honourable and energetic part in its doings and sufferings. He supported it, partly in literature—as when he combated the first coalition, the "three-headed monster," in pamphlets; partly in more serious warfare, where we found him in the army of Pompeius as commandant of Further Spain.(22) When the cause of the republic was lost, Varro was destined by his conqueror to be librarian of the library which was to be formed in the capital. The troubles of the following period drew the

old man once more into their vortex, and it was not till seventeen years after Caesar's death, in the eighty-ninth year of his well-occupied life, that death called him away.

Varros' Models

The aesthetic writings, which have made him a name, were brief essays, some in simple prose and of graver contents, others humorous sketches the prose groundwork of which was inlaid with various poetical effusions. The former were the "philosophico- historical dissertations" (-logistorici-), the latter the Menippean Satires. In neither case did he follow Latin models, and the -Satura- of Varro in particular was by no means based on that of Lucilius. In fact the Roman -Satura- in general was not properly a fixed species of art, but only indicated negatively the fact that the "multifarious poem" was not to be included under any of the recognized forms of art; and accordingly the -Satura- poetry assumed in the hands of every gifted poet a different and peculiar character. It was rather in the pre-Alexandrian Greek philosophy that Varro found the models for his more severe as well as for his lighter aesthetic works; for the graver dissertations, in the dialogues of Heraclides of Heraclea on the Black Sea (d. about 450), for the satires, in the writings of Menippus of Gadara in Syria (flourishing about 475). The choice was significant. Heraclides, stimulated as an author by Plato's philosophic dialogues, had amidst the brilliance of their form totally lost sight of the scientific contents and made the poetico-fabulistic dress the main matter; he was an agreeable and largely-read author, but far from a philosopher. Menippus was quite as little a philosopher, but the most genuine literary representative of that philosophy whose wisdom consisted in denying philosophy and ridiculing philosophers the cynical wisdom of Diogenes; a comic teacher of serious wisdom, he proved by examples and merry sayings that except an upright life everything is vain in earth and heaven, and nothing more vain than the disputes of so-called sages. These

were the true models for Varro, a man full of old Roman indignation at the pitiful times and full of old Roman humour, by no means destitute withal of plastic talent but as to everything which presented the appearance not of palpable fact but of idea or even of system, utterly stupid, and perhaps the most unphilosophical among the unphilosophical Romans.(23) But Varro was no slavish pupil. The impulse and in general the form he derived from Heraclides and Menippus; but his was a nature too individual and too decidedly Roman not to keep his imitative creations essentially independent and national.

Varro's Philosophico-Historical Essays

For his grave dissertations, in which a moral maxim or other subject of general interest is handled, he disdained, in his framework to approximate to the Milesian tales, as Heraclides had done, and so to serve up to the reader even childish little stories like those of Abaris and of the maiden reawakened to life after being seven days dead. But seldom he borrowed the dress from the nobler myths of the Greeks, as in the essay "Orestes or concerning Madness"; history ordinarily afforded him a worthier frame for his subjects, more especially the contemporary history of his country, so that these essays became, as they were called -laudationes- of esteemed Romans, above all of the Coryphaei of the constitutional party. Thus the dissertation "concerning Peace" was at the same time a memorial of Metellus Pius, the last in the brilliant series of successful generals of the senate; that "concerning the Worship of the Gods" was at the same time destined to preserve the memory of the highly-respected Optimate and Pontifex Gaius Curio; the essay "on Fate" was connected with Marius, that "on the Writing of History" with Sisenna the first historian of this epoch, that "on the Beginnings of the Roman Stage" with the princely giver of scenic spectacles Scaurus, that "on Numbers" with the highly-cultured Roman banker Atticus. The two philosophico-historical essays "Laelius or

concerning Friendship," "Cato or concerning Old Age," which Cicero wrote probably after the model of those of Varro, may give us some approximate idea of Varro's half-didactic, half-narrative, treatment of these subjects.

Varros' Menippean Satires

The Menippean satire was handled by Varro with equal originality of form and contents; the bold mixture of prose and verse is foreign to the Greek original, and the whole intellectual contents are pervaded by Roman idiosyncrasy—one might say, by a savour of the Sabine soil. These satires like the philosophico-historical essays handle some moral or other theme adapted to the larger public, as is shown by the several titles—*Columnae Herculis*-, —*peri doxeis*—; —*Euren ei Lopas to Poma, peri gegameikoton*—, —*Est Modus Matulae*-, —*peri metheis*—; —*Papiapapae*-, —*peri egkomios*—. The plastic dress, which in this case might not be wanting, is of course but seldom borrowed from the history of his native country, as in the satire —*Serranus*-, —*peri archairesion*—. The Cynic- world of Diogenes on the other hand plays, as might be expected, a great part; we meet with the —*Kounistor*—, the —*Kounorreiton*—, the —*Ippokouon*, the —*'Oudrokouon*—, the —*Kounodidaskalikon*— and others of a like kind. Mythology is also laid under contribution for comic purposes; we find a —*Prometheus Liber*-, an —*Ajax Stramenticius*-, a —*Hercules Socraticus*-, a —*Sesqueulixes*- who had spent not merely ten but fifteen years in wanderings. The outline of the dramatic or romantic framework is still discoverable from the fragments in some pieces, such as the —*Prometheus Liber*-, the —*Sexagessis*-, —*Manius*-; it appears that Varro frequently, perhaps regularly, narrated the tale as his own experience; e. g. in the —*Manius*- the *dramatis personae* go to Varro and discourse to him "because he was known to them as a maker of books." as to the poetical value of this dress we are no longer allowed to form any certain judgment; there still occur in our fragments several very charming sketches full of wit and liveliness— thus in the —*Prometheus Liber*- the hero

after the loosing of his chains opens a manufactory of men, in which Goldshoe the rich (-Chrysosandalos-) bespeaks for himself a maiden, of milk and finest wax, such as the Milesian bees gather from various flowers, a maiden without bones and sinews, without skin or hair, pure and polished, slim, smooth, tender, charming. The life-breath of this poetry is polemics—not so much the political warfare of party, such as Lucilius and Catullus practised, but the general moral antagonism of the stern elderly man to the unbridled and perverse youth, of the scholar living in the midst of his classics to the loose and slovenly, or at any rate in point of tendency reprobate, modern poetry,(24) of the good burgess of the ancient type to the new Rome in which the Forum, to use Varro's language, was a pigsty and Numa, if he turned his eyes towards his city, would see no longer a trace of his wise regulations. In the constitutional struggle Varro did what seemed to him the duty of a citizen; but his heart was not in such party-doings—"why," he complains on one occasion, "do ye call me from my pure life into the filth of your senate-house?" He belonged to the good old time, when the talk savoured of onions and garlic, but the heart was sound. His polemic against the hereditary foes of the genuine Roman spirit, the Greek philosophers, was only a single aspect of this old-fashioned opposition to the spirit of the new times; but it resulted both from the nature of the Cynical philosophy and from the temperament of Varro, that the Menippean lash was very specially plied round the cars of the philosophers and put them accordingly into proportional alarm—it was not without palpitation that the philosophic scribes of the time transmitted to the "severe man" their newly-issued treatises. Philosophizing is truly no art. With the tenth part of the trouble with which a master rears his slave to be a professional baker, he trains himself to be a philosopher; no doubt, when the baker and the philosopher both come under the hammer, the artist of pastry goes off a hundred times dearer than the sage. Singular people, these philosophers! One enjoins that corpses be buried in honey—it is a fortunate circumstance

that his desire is not complied with, otherwise where would any honey-wine be left? Another thinks that men grow out of the earth like cresses. A third has invented a world-borer (—Kosmotorounei—) by which the earth will some day be destroyed.

-Postremo, nemo aegrotus quicquam somniat
Tam infandum, quod non aliquis dicat philosophus-.

It is ludicrous to observe how a Long-beard—by which is meant an etymologizing Stoic—cautiously weighs every word in goldsmith's scales; but there is nothing that surpasses the genuine philosophers' quarrel—a Stoic boxing-match far excels any encounter of athletes. In the satire - Marcopolis-, —peri archeis—, when Marcus created for himself a Cloud-Cuckoo-Home after his own heart, matters fared, just as in the Attic comedy, well with the peasant, but ill with the philosopher; the -Celer- — -di'-enos- -leimatos-logos—, son of Antipater the Stoic, beats in the skull of his opponent— evidently the philosophic -Dilemma—with the mattock.

With this morally polemic tendency and this talent for embodying it in caustic and picturesque expression, which, as the dress of dialogue given to the books on Husbandry written in his eightieth year shows, never forsook him down to extreme old age, Varro most happily combined an incomparable knowledge of the national manners and language, which is embodied in the philological writings of his old age after the manner of a commonplace-book, but displays itself in his Satires in all its direct fulness and freshness. Varro was in the best and fullest sense of the term a local antiquarian, who from the personal observation of many years knew his nation in its former idiosyncrasy and seclusion as well as in its modern state of transition and dispersion, and had supplemented and deepened his direct knowledge of the national manners and national language by the most comprehensive research in historical and literary archives. His partial

deficiency in rational judgment and learning— in our sense of the words— was compensated for by his clear intuition and the poetry which lived within him. He sought neither after antiquarian notices nor after rare antiquated or poetical words;(25) but he was himself an old and old-fashioned man and almost a rustic, the classics of his nation were his favourite and long-familiar companions; how could it fail that many details of the manners of his forefathers, which he loved above all and especially knew, should be narrated in his writings, and that his discourse should abound with proverbial Greek and Latin phrases, with good old words preserved in the Sabine conversational language, with reminiscences of Ennius, Lucilius, and above all of Plautus? We should not judge as to the prose style of these aesthetic writings of Varro's earlier period by the standard of his work on Language written in his old age and probably published in an unfinished state, in which certainly the clauses of the sentence are arranged on the thread of the relative like thrushes on a string; but we have already observed that Varro rejected on principle the effort after a chaste style and Attic periods, and his aesthetic essays, while destitute of the mean bombast and the spurious tinsel of vulgarism, were yet written after an unclassic and even slovenly fashion, in sentences rather directly joined on to each other than regularly subdivided. The poetical pieces inserted on the other hand show not merely that their author knew how to mould the most varied measures with as much mastery as any of the fashionable poets, but that he had a right to include himself among those to whom a god has granted the gift of "banishing cares from the heart by song and sacred poesy."(26) the sketches of Varro no more created a school than the didactic poem of Lucretius; to the more general causes which prevented this there falls to be added their thoroughly individual stamp, which was inseparable from the greater age, from the rusticity, and even from the peculiar erudition of their author. But the grace and humour of the Menippean satires above all, which seem to have been in number and

importance far superior to Varro's graver works, captivated his contemporaries as well as those in after times who had any relish for originality and national spirit; and even we, who are no longer permitted to read them, may still from the fragments preserved discern in some measure that the writer "knew how to laugh and how to jest in moderation." And as the last breath of the good spirit of the old burgess-times ere it departed, as the latest fresh growth which the national Latin poetry put forth, the Satires of Varro deserved that the poet in his poetical testament should commend these his Menippean children to every one "who had at heart the prosperity of Rome and of Latium"; and they accordingly retain an honourable place in the literature as in the history of the Italian people.(27)

Historical Composition

Sisenna

The critical writing of history, after the manner in which the Attic authors wrote the national history in their classic period and in which Polybius wrote the history of the world, was never properly developed in Rome. Even in the field most adapted for it—the representation of contemporary and of recently past events—there was nothing, on the whole, but more or less inadequate attempts; in the epoch especially from Sulla to Caesar the not very important contributions, which the previous epoch had to show in this field—the labours of Antipater and Asellius—were barely even equalled. The only work of note belonging to this field, which arose in the present epoch, was the history of the Social and Civil Wars by Lucius Cornelius Sisenna (praetor in 676). Those who had read it testify that it far excelled in liveliness and readableness the old dry chronicles, but was written withal in a style thoroughly impure and even degenerating into puerility; as indeed the few remaining fragments exhibit a paltry painting of horrible details,(28) and a number of words newly coined or derived from the language of conversation. When it is added that the author's model and,

so to speak, the only Greek historian familiar to him was Clitarchus, the author of a biography of Alexander the Great oscillating between history and fiction in the manner of the semi- romance which bears the name of Curtius, we shall not hesitate to recognize in Sisenna's celebrated historical work, not a product of genuine historical criticism and art, but the first Roman essay in that hybrid mixture of history and romance so much a favourite with the Greeks, which desires to make the groundwork of facts life-like and interesting by means of fictitious details and thereby makes it insipid and untrue; and it will no longer excite surprise that we meet with the same Sisenna also as translator of Greek fashionable romances.(29)

Annals of the City

That the prospect should be still more lamentable in the field of the general annals of the city and even of the world, was implied in the nature of the case. The increasing activity of antiquarian research induced the expectation that the current narrative would be rectified from documents and other trustworthy sources; but this hope was not fulfilled. The more and the deeper men investigated, the more clearly it became apparent what a task it was to write a critical history of Rome. The difficulties even, which opposed themselves to investigation and narration, were immense; but the most dangerous obstacles were not those of a literary kind. The conventional early history of Rome, as it had now been narrated and believed for at least ten generations; was most intimately mixed up with the civil life of the nation; and yet in any thorough and honest inquiry not only had details to be modified here and there, but the whole building had to be overturned as much as the Franconian primitive history of king Pharamund or the British of king Arthur. An inquirer of conservative views, such as was Varro for instance, could have no wish to put his hand to such a work; and if a daring freethinker had undertaken it, an outcry would have been raised by all good citizens against this worst of all revolutionaries, who was preparing

to deprive the constitutional party even of their past. Thus philological and antiquarian research deterred from the writing of history rather than conducted towards it. Varro and the more sagacious men in general evidently gave up the task of annals as hopeless; at the most they arranged, as did Titus Pomponius Atticus, the official and gentile lists in unpretending tabular shape—a work by which the synchronistic Graeco-Roman chronology was finally brought into the shape in which it was conventionally fixed for posterity. But the manufacture of city-chronicles of course did not suspend its activity; it continued to supply its contributions both in prose and verse to the great library written by ennui for ennui, while the makers of the books, in part already freedmen, did not trouble themselves at all about research properly so called. Such of these writings as are mentioned to us—not one of them is preserved—seem to have been not only of a wholly secondary character, but in great part even pervaded by interested falsification. It is true that the chronicle of Quintus Claudius Quadrigarius (about 676?) was written in an old-fashioned but good style, and studied at least a commendable brevity in the representation of the fabulous period. Gaius Licinius Macer (d. as late praetor in 688), father of the poet Calvus,⁽³⁰⁾ and a zealous democrat, laid claim more than any other chronicler to documentary research and criticism, but his *-libri lintei-* and other matters peculiar to him are in the highest degree suspicious, and an interpolation of the whole annals in the interest of democratic tendencies—an interpolation of a very extensive kind, and which has passed over in part to the later annalists—is probably traceable to him.

Valerius Antias

Lastly, Valerius Antias excelled all his predecessors in prolixity as well as in puerile story-telling. The falsification of numbers was here systematically carried out down even to contemporary history, and the primitive history of Rome was elaborated once more from one form of insipidity to another; for

instance the narrative of the way in which the wise Numa according to the instructions of the nymph Egeria caught the gods Faunus and Picus; with wine, and the beautiful conversation thereupon held by the same Numa with the god Jupiter, cannot be too urgently recommended to all worshippers of the so-called legendary history of Rome in order that, if possible, they may believe these things—of course, in substance. It would have been a marvel if the Greek novel-writers of this period had allowed such materials, made as if for their use, to escape them. In fact there were not wanting Greek literati, who worked up the Roman history into romances; such a composition, for instance, was the Five Books "Concerning Rome" of the Alexander Polyhistor already mentioned among the Greek literati living in Rome,(31) a preposterous mixture of vapid historical tradition and trivial, principally erotic, fiction. He, it may be presumed, took the first steps towards filling up the five hundred years, which were wanting to bring the destruction of Troy and the origin of Rome into the chronological connection required by the fables on either side, with one of those lists of kings without achievements which are unhappily familiar to the Egyptian and Greek chroniclers; for, to all appearance, it was he that launched into the world the kings Aventinus and Tiberinus and the Alban gens of the Silvii, whom the following times accordingly did not neglect to furnish in detail with name, period of reigning, and, for the sake of greater definiteness, also a portrait.

Thus from various sides the historical romance of the Greeks finds its way into Roman historiography; and it is more than probable that not the least portion of what we are accustomed nowadays to call tradition of the Roman primitive times proceeds from sources of the stamp of Amadis of Gaul and the chivalrous romances of Fouque—an edifying consideration, at least for those who have a relish for the humour of history and who know how to appreciate the comical aspect of the piety still cherished in certain circles of the nineteenth century for king Numa.

Universal History Nepos

A novelty in the Roman literature of this period is the appearance of universal history or, to speak more correctly, of Roman and Greek history conjoined, alongside of the native annals. Cornelius Nepos from Ticinum (c. 650-c. 725) first supplied an universal chronicle (published before 700) and a general collection of biographies—arranged according to certain categories—of Romans and Greeks distinguished in politics or literature or of men at any rate who exercised influence on the Roman or Greek history. These works are of a kindred nature with the universal histories which the Greeks had for a considerable time been composing; and these very Greek world-chronicles, such as that of Kastor son-in-law of the Galatian king Deiotarus, concluded in 698, now began to include in their range the Roman history which previously they had neglected. These works certainly attempted, just like Polybius, to substitute the history of the Mediterranean world for the more local one; but that which in Polybius was the result of a grand and clear conception and deep historical feeling was in these chronicles rather the product of the practical exigencies of school and self-instruction. These general chronicles, text-books for scholastic instruction or manuals for reference, and the whole literature therewith connected which subsequently became very copious in the Latin language also, can hardly be reckoned as belonging to artistic historical composition; and Nepos himself in particular was a pure compiler distinguished neither by spirit nor even merely by symmetrical plan.

The historiography of this period is certainly remarkable and in a high degree characteristic, but it is as far from pleasing as the age itself. The interpenetration of Greek and Latin literature is in no field so clearly apparent as in that of history; here the respective literatures become earliest equalized in matter and form, and the conception of Helleno-Italic history

as an unity, in which Polybius was so far in advance of his age, was now learned even by Greek and Roman boys at school. But while the Mediterranean state had found a historian before it had become conscious of its own existence, now, when that consciousness had been attained, there did not arise either among the Greeks or among the Romans any man who was able to give to it adequate expression. "There is no such thing," says Cicero, "as Roman historical composition"; and, so far as we can judge, this is no more than the simple truth. The man of research turns away from writing history, the writer of history turns away from research; historical literature oscillates between the schoolbook and the romance. All the species of pure art—epos, drama, lyric poetry, history—are worthless in this worthless world; but in no species is the intellectual decay of the Ciceronian age reflected with so terrible a clearness as in its historiography.

Literature Subsidiary to History

Caesar's Report

The minor historical literature of this period displays on the other hand, amidst many insignificant and forgotten productions, one treatise of the first rank—the *Memoirs of Caesar*, or rather the *Military Report* of the democratic general to the people from whom he had received his commission. The finished section, and that which alone was published by the author himself, describing the Celtic campaigns down to 702, is evidently designed to justify as well as possible before the public the formally unconstitutional enterprise of Caesar in conquering a great country and constantly increasing his army for that object without instructions from the competent authority; it was written and given forth in 703, when the storm broke out against Caesar in Rome and he was summoned to dismiss his army and answer for his conduct.⁽³²⁾ The author of this vindication writes, as he himself says, entirely as an officer and carefully avoids extending his military report to the hazardous departments of political

organization and administration. His incidental and partisan treatise cast in the form of a military report is itself a piece of history like the bulletins of Napoleon, but it is not, and was not intended to be, a historical work in the true sense of the word; the objective form which the narrative assumes is that of the magistrate, not that of the historian. But in this modest character the work is masterly and finished, more than any other in all Roman literature. The narrative is always terse and never scanty, always simple and never careless, always of transparent vividness and never strained or affected. The language is completely pure from archaisms and from vulgarisms—the type of the modern -urbanitas-. In the Books concerning the Civil War we seem to feel that the author had desired to avoid war and could not avoid it, and perhaps also that in Caesar's soul, as in every other, the period of hope was a purer and fresher one than that of fulfilment; but over the treatise on the Gallic war there is diffused a bright serenity, a simple charm, which are no less unique in literature than Caesar is in history.

Correspondence

Of a kindred nature were the letters interchanged between the statesmen and literati of this period, which were carefully collected and published in the following epoch; such as the correspondence of Caesar himself, of Cicero, Calvus and others. They can still less be numbered among strictly literary performances; but this literature of correspondence was a rich storehouse for historical as for all other research, and the most faithful mirror of an epoch in which so much of the worth of past times and so much spirit, cleverness, and talent were evaporated and dissipated in trifling.

News-Sheet

A journalist literature in the modern sense was never formed in Rome; literary warfare continued to be confined to the writing of pamphlets and,

along with this, to the custom generally diffused at that time of annotating the notices destined for the public in places of resort with the pencil or the pen. On the other hand subordinate persons were employed to note down the events of the day and news of the city for the absent men of quality; and Caesar as early as his first consulship took fitting measures for the immediate publication of an extract from the transactions of the senate. From the private journals of those Roman penny-a-liners and these official current reports there arose a sort of news-sheet for the capital (-acta diurna-), in which the resume of the business discussed before the people and in the senate, and births, deaths, and such like were recorded. This became a not unimportant source for history, but remained without proper political as without literary significance.

Speeches

Decline of Political Oratory

To subsidiary historical literature belongs of right also the composition of orations. The speech, whether written down or not, is in its nature ephemeral and does not belong to literature; but it may, like the report and the letter, and indeed still more readily than these, come to be included, through the significance of the moment and the power of the mind from which it springs, among the permanent treasures of the national literature. Thus in Rome the records of orations of a political tenor delivered before the burgesses or the jurymen had for long played a great part in public life; and not only so, but the speeches of Gaius Gracchus in particular were justly reckoned among the classical Roman writings. But in this epoch a singular change occurred on all hands. The composition of political speeches was on the decline like political speaking itself. The political speech in Rome, as generally in the ancient polities, reached its culminating point in the discussions before the burgesses; here the orator was not fettered, as in the senate, by collegiate considerations and burdensome

forms, nor, as in the judicial addresses, by the interests—in themselves foreign to politics—of the accusation and defence; here alone his heart swelled proudly before the whole great and mighty Roman people hanging on his lips. But all this was now gone. Not as though there was any lack of orators or of the publishing of speeches delivered before the burgesses; on the contrary political authorship only now waxed copious, and it began to become a standing complaint at table that the host incommoded his guests by reading before them his latest orations. Publius Clodius had his speeches to the people issued as pamphlets, just like Gaius Gracchus; but two men may do the same thing without producing the same effect. The more important leaders even of the opposition, especially Caesar himself, did not often address the burgesses, and no longer published the speeches which they delivered; indeed they partly sought for their political fugitive writings another form than the traditional one of -contiones-, in which respect more especially the writings praising and censuring Cato(33) are remarkable. This is easily explained. Gaius Gracchus had addressed the burgesses; now men addressed the populace; and as the audience, so was the speech. No wonder that the reputable political author shunned a dress which implied that he had directed his words to the crowd assembled in the market-place of the capital.

Rise of A Literature of Pleadings

Cicero

While the composition of orations thus declined from its former literary and political value in the same way as all branches of literature which were the natural growth of the national life, there began at the same time a singular, non-political, literature of pleadings. Hitherto the Romans had known nothing of the idea that the address of an advocate as such was destined not only for the judges and the parties, but also for the literary edification of contemporaries and posterity; no advocate had written down

and published his pleadings, unless they were possibly at the same time political orations and in so far were fitted to be circulated as party writings, and this had not occurred very frequently. Even Quintus Hortensius (640-704), the most celebrated Roman advocate in the first years of this period, published but few speeches and these apparently only such as were wholly or half political. It was his successor in the leadership of the Roman bar, Marcus Tullius Cicero (648-711) who was from the outset quite as much author as forensic orator; he published his pleadings regularly, even when they were not at all or but remotely connected with politics. This was a token, not of progress, but of an unnatural and degenerate state of things. Even in Athens the appearance of non-political pleadings among the forms of literature was a sign of debility; and it was doubly so in Rome, which did not, like Athens, by a sort of necessity produce this malformation from the exaggerated pursuit of rhetoric, but borrowed it from abroad arbitrarily and in antagonism to the better traditions of the nation. Yet this new species of literature came rapidly into vogue, partly because it had various points of contact and coincidence with the earlier authorship of political orations, partly because the unpoetic, dogmatical, rhetorizing temperament of the Romans offered a favourable soil for the new seed, as indeed at the present day the speeches of advocates and even a sort of literature of law-proceedings are of some importance in Italy.

His Character

Thus oratorical authorship emancipated from politics was naturalized in the Roman literary world by Cicero. We have already had occasion several times to mention this many-sided man. As a statesman without insight, idea, or purpose, he figured successively as democrat, as aristocrat, and as a tool of the monarchs, and was never more than a short-sighted egotist. Where he exhibited the semblance of action, the questions to which his action applied had, as a rule, just reached their solution; thus he came forward in the trial

of Verres against the senatorial courts when they were already set aside; thus he was silent at the discussion on the Gabinian law, and acted as a champion of the Manilian law; thus he thundered against Catilina when his departure was already settled, and so forth. He was valiant in opposition to sham attacks, and he knocked down many walls of pasteboard with a loud din; no serious matter was ever, either in good or evil, decided by him, and the execution of the Catilinarians in particular was far more due to his acquiescence than to his instigation. In a literary point of view we have already noticed that he was the creator of the modern Latin prose;(34) his importance rests on his mastery of style, and it is only as a stylist that he shows confidence in himself. In the character of an author, on the other hand, he stands quite as low as in that of a statesman. He essayed the most varied tasks, sang the great deeds of Marius and his own petty achievements in endless hexameters, beat Demosthenes off the field with his speeches, and Plato with his philosophic dialogues; and time alone was wanting for him to vanquish also Thucydides. He was in fact so thoroughly a dabbler, that it was pretty much a matter of indifference to what work he applied his hand. By nature a journalist in the worst sense of that term—abounding, as he himself says, in words, poor beyond all conception in ideas—there was no department in which he could not with the help of a few books have rapidly got up by translation or compilation a readable essay. His correspondence mirrors most faithfully his character. People are in the habit of calling it interesting and clever; and it is so, as long as it reflects the urban or villa life of the world of quality; but where the writer is thrown on his own resources, as in exile, in Cilicia, and after the battle of Pharsalus, it is stale and empty as was ever the soul of a feuilletonist banished from his familiar circles. It is scarcely needful to add that such a statesman and such a -litterateur- could not, as a man, exhibit aught else than a thinly varnished superficiality and heart-lessness. Must we still describe the orator? The great author is also a great man; and in the great orator more especially

conviction or passion flows forth with a clearer and more impetuous stream from the depths of the breast than in the scantily-gifted many who merely count and are nothing. Cicero had no conviction and no passion; he was nothing but an advocate, and not a good one. He understood how to set forth his narrative of the case with piquancy of anecdote, to excite, if not the feeling, at any rate the sentimentality of his hearers, and to enliven the dry business of legal pleading by cleverness or witticisms mostly of a personal sort; his better orations, though they are far from coming up to the free gracefulness and the sure point of the most excellent compositions of this sort, for instance the *Memoirs of Beaumarchais*, yet form easy and agreeable reading. But while the very advantages just indicated will appear to the serious judge as advantages of very dubious value, the absolute want of political discernment in the orations on constitutional questions and of juristic deduction in the forensic addresses, the egotism forgetful of its duty and constantly losing sight of the cause while thinking of the advocate, the dreadful barrenness of thought in the Ciceronian orations must revolt every reader of feeling and judgment.

Ciceronianism

If there is anything wonderful in the case, it is in truth not the orations, but the admiration which they excited. As to Cicero every unbiassed person will soon make up his mind: Ciceronianism is a problem, which in fact cannot be properly solved, but can only be resolved into that greater mystery of human nature—language and the effect of language on the mind. Inasmuch as the noble Latin language, just before it perished as a national idiom, was once more as it were comprehensively grasped by that dexterous stylist and deposited in his copious writings, something of the power which language exercises, and of the piety which it awakens, was transferred to the unworthy vessel. The Romans possessed no great Latin prose-writer; for Caesar was, like Napoleon, only incidentally an author. Was it to be

wondered at that, in the absence of such an one, they should at least honour the genius of the language in the great stylist? And that, like Cicero himself, Cicero's readers also should accustom themselves to ask not what, but how he had written? Custom and the schoolmaster then completed what the power of language had begun.

Opposition to Ciceronianism Calvus and His Associates

Cicero's contemporaries however were, as may readily be conceived, far less involved in this strange idolatry than many of their successors. The Ciceronian manner ruled no doubt throughout a generation the Roman advocate-world, just as the far worse manner of Hortensius had done; but the most considerable men, such as Caesar, kept themselves always aloof from it, and among the younger generation there arose in all men of fresh and living talent the most decided opposition to that hybrid and feeble rhetoric. They found Cicero's language deficient in precision and chasteness, his jests deficient in liveliness, his arrangement deficient in clearness and articulate division, and above all his whole eloquence wanting in the fire which makes the orator. Instead of the Rhodian eclectics men began to recur to the genuine Attic orators especially to Lysias and Demosthenes, and sought to naturalize a more vigorous and masculine eloquence in Rome. Representatives of this tendency were, the solemn but stiff Marcus Junius Brutus (669-712); the two political partisans Marcus Caelius Rufus (672-706;(35)) and Gaius Scribonius Curio (d. 705(36);)—both as orators full of spirit and life; Calvus well known also as a poet (672-706), the literary coryphaeus of this younger group of orators; and the earnest and conscientious Gaius Asinius Pollio (678-757). Undeniably there was more taste and more spirit in this younger oratorical literature than in the Hortensian and Ciceronian put together; but we are not able to judge how far, amidst the storms of the revolution which rapidly swept away the

whole of this richly-gifted group with the single exception of Pollio, those better germs attained development. The time allotted to them was but too brief. The new monarchy began by making war on freedom of speech, and soon wholly suppressed the political oration. Thenceforth the subordinate species of the pure advocate-pleading was doubtless still retained in literature; but the higher art and literature of oratory, which thoroughly depend on political excitement, perished with the latter of necessity and for ever.

The Artificial Dialogue Applied to the Professional Sciences Cicero's Dialogues

Lastly there sprang up in the aesthetic literature of this period the artistic treatment of subjects of professional science in the form of the stylistic dialogue, which had been very extensively in use among the Greeks and had been already employed also in isolated cases among the Romans.(37) Cicero especially made various attempts at presenting rhetorical and philosophical subjects in this form and making the professional manual a suitable book for reading. His chief writings are the -De Oratore- (written in 699), to which the history of Roman eloquence (the dialogue -Brutus-, written in 708) and other minor rhetorical essays were added by way of supplement; and the treatise -De Republica- (written in 700), with which the treatise -De Legibus- (written in 702?) after the model of Plato is brought into connection. They are no great works of art, but undoubtedly they are the works in which the excellences of the author are most, and his defects least, conspicuous. The rhetorical writings are far from coming up to the didactic chasteness of form and precision of thought of the Rhetoric dedicated to Herennius, but they contain instead a store of practical forensic experience and forensic anecdotes of all sorts easily and tastefully set forth, and in fact solve the problem of combining didactic instruction with amusement. The treatise -De Republica- carries out, in a singular mongrel

compound of history and philosophy, the leading idea that the existing constitution of Rome is substantially the ideal state-organization sought for by the philosophers; an idea indeed just as unphilosophical as unhistorical, and besides not even peculiar to the author, but which, as may readily be conceived, became and remained popular. The scientific groundwork of these rhetorical and political writings of Cicero belongs of course entirely to the Greeks, and many of the details also, such as the grand concluding effect in the treatise *-De Republica-* the Dream of Scipio, are directly borrowed from them; yet they possess comparative originality, inasmuch as the elaboration shows throughout Roman local colouring, and the proud consciousness of political life, which the Roman was certainly entitled to feel as compared with the Greeks, makes the author even confront his Greek instructors with a certain independence. The form of Cicero's dialogue is doubtless neither the genuine interrogative dialectics of the best Greek artificial dialogue nor the genuine conversational tone of Diderot or Lessing; but the great groups of advocates gathering around Crassus and Antonius and of the older and younger statesmen of the Scipionic circle furnish a lively and effective framework, fitting channels for the introduction of historical references and anecdotes, and convenient resting-points for the scientific discussion. The style is quite as elaborate and polished as in the best-written orations, and so far more pleasing than these, since the author does not often in this field make a vain attempt at pathos.

While these rhetorical and political writings of Cicero with a philosophic colouring are not devoid of merit, the compiler on the other hand completely failed, when in the involuntary leisure of the last years of his life (709-710) he applied himself to philosophy proper, and with equal peevishness and precipitation composed in a couple of months a philosophical library. The receipt was very simple. In rude imitation of the popular writings of Aristotle, in which the form of dialogue was employed chiefly for the setting forth and criticising of the different older systems,

Cicero stitched together the Epicurean, Stoic, and Syncretist writings handling the same problem, as they came or were given to his hand, into a so-called dialogue. And all that he did on his own part was, to supply an introduction prefixed to the new book from the ample collection of prefaces for future works which he had beside him; to impart a certain popular character, inasmuch as he interwove Roman examples and references, and sometimes digressed to subjects irrelevant but more familiar to the writer and the reader, such as the treatment of the deportment of the orator in the -De Officiis-; and to exhibit that sort of bungling, which a man of letters, who has not attained to philosophic thinking or even to philosophic knowledge and who works rapidly and boldly, shows in the reproduction of dialectic trains of thought. In this way no doubt a multitude of thick tomes might very quickly come into existence—"They are copies," wrote the author himself to a friend who wondered at his fertility; "they give me little trouble, for I supply only the words and these I have in abundance." Against this nothing further could be said; but any one who seeks classical productions in works so written can only be advised to study in literary matters a becoming silence.

Professional Sciences.

Latin Philology

Varro

Of the sciences only a single one manifested vigorous life, that of Latin philology. The scheme of linguistic and antiquarian research within the domain of the Latin race, planned by Silo, was carried out especially by his disciple Varro on the grandest scale. There appeared comprehensive elaborations of the whole stores of the language, more especially the extensive grammatical commentaries of Figulus and the great work of Varro -De Lingua Latina-; monographs on grammar and the history of the language, such as Varro's writings on the usage of the Latin language, on

synonyms, on the age of the letters, on the origin of the Latin tongue; scholia on the older literature, especially on Plautus; works of literary history, biographies of poets, investigations into the earlier drama, into the scenic division of the comedies of Plautus, and into their genuineness. Latin archaeology, which embraced the whole older history and the ritual law apart from practical jurisprudence, was comprehended in Varro's "Antiquities of Things Human and Divine," which was and for all times remained the fundamental treatise on the subject (published between 687 and 709). The first portion, "Of Things Human," described the primeval age of Rome, the divisions of city and country, the sciences of the years, months, and days, lastly, the public transactions at home and in war; in the second half, "Of Things Divine," the state-theology, the nature and significance of the colleges of experts, of the holy places, of the religious festivals, of sacrificial and votive gifts, and lastly of the gods themselves were summarily unfolded. Moreover, besides a number of monographs—e. g. on the descent of the Roman people, on the Roman gentes descended from Troy, on the tribes—there was added, as a larger and more independent supplement, the treatise "Of the Life of the Roman People"—a remarkable attempt at a history of Roman manners, which sketched a picture of the state of domestic life, finance, and culture in the regal, the early republican, the Hannibalic, and the most recent period. These labours of Varro were based on an empiric knowledge of the Roman world and its adjacent Hellenic domain more various and greater in its kind than any other Roman either before or after him possessed—a knowledge to which living observation and the study of literature alike contributed. The eulogy of his contemporaries was well deserved, that Varro had enabled his countrymen—strangers in their own world—to know their position in their native land, and had taught the Romans who and where they were. But criticism and system will be sought for in vain. His Greek information seems to have come from somewhat confused sources, and there are traces

that even in the Roman field the writer was not free from the influence of the historical romance of his time. The matter is doubtless inserted in a convenient and symmetrical framework, but not classified or treated methodically; and with all his efforts to bring tradition and personal observation into harmony, the scientific labours of Varro are not to be acquitted of a certain implicit faith in tradition or of an unpractical scholasticism.(38) The connection with Greek philology consists in the imitation of its defects more than of its excellences; for instance, the basing of etymologies on mere similarity of sound both in Varro himself and in the other philologues of this epoch runs into pure guesswork and often into downright absurdity.(39) In its empiric confidence and copiousness as well as in its empiric inadequacy and want of method the Varronian vividly reminds us of the English national philology, and just like the latter, finds its centre in the study of the older drama. We have already observed that the monarchical literature developed the rules of language in contradistinction to this linguistic empiricism.(40) It is in a high degree significant that there stands at the head of the modern grammarians no less a man than Caesar himself, who in his treatise on Analogy (given forth between 696 and 704) first undertook to bring free language under the power of law.

The Other Professional Sciences

Alongside of this extraordinary stir in the field of philology The small amount of activity in the other sciences is surprising. What appeared of importance in philosophy—such as Lucretius' representation of the Epicurean system in the poetical child-dress of the pre-Socratic philosophy, and the better writings of Cicero— produced its effect and found its audience not through its philosophic contents, but in spite of such contents solely through its aesthetic form; the numerous translations of Epicurean writings and the Pythagorean works, such as Varro's great treatise on the

Elements of Numbers and the still more copious one of Figulus concerning the Gods, had beyond doubt neither scientific nor formal value.

Even the professional sciences were but feebly cultivated. Varro's Books on Husbandry written in the form of dialogue are no doubt more methodical than those of his predecessors Cato and Saserna— on which accordingly he drops many a side glance of censure— but have on the whole proceeded more from the study than, like those earlier works, from living experience. Of the juristic labours of Varro and of Servius Sulpicius Rufus (consul in 703) hardly aught more can be said, than that they contributed to the dialectic and philosophical embellishment of Roman jurisprudence. And there is nothing farther here to be mentioned, except perhaps the three books of Gaius Matius on cooking, pickling, and making preserves— so far as we know, the earliest Roman cookery-book, and, as the work of a man of rank, certainly a phenomenon deserving of notice. That mathematics and physics were stimulated by the increased Hellenistic and utilitarian tendencies of the monarchy, is apparent from their growing importance in the instruction of youth (41) and from various practical applications; under which, besides the reform of the calendar,(42) may perhaps be included the appearance of wall-maps at this period, the technical improvements in shipbuilding and in musical instruments, designs and buildings like the aviary specified by Varro, the bridge of piles over the Rhine executed by the engineers of Caesar, and even two semicircular stages of boards arranged for being pushed together, and employed first separately as two theatres and then jointly as an amphitheatre. The public exhibition of foreign natural curiosities at the popular festivals was not unusual; and the descriptions of remarkable animals, which Caesar has embodied in the reports of his campaigns, show that, had an Aristotle appeared, he would have again found his patron-prince. But such literary performances as are mentioned in this department are essentially associated with Neopythagoreanism, such as the comparison of Greek and Barbarian, i. e. Egyptian, celestial

observations by Figulus, and his writings concerning animals, winds, and generative organs. After Greek physical research generally had swerved from the Aristotelian effort to find amidst individual facts the law, and had more and more passed into an empiric and mostly uncritical observation of the external and surprising in nature, natural science when coming forward as a mystical philosophy of nature, instead of enlightening and stimulating, could only still more stupefy and paralyze; and in presence of such a method it was better to rest satisfied with the platitude which Cicero delivers as Socratic wisdom, that the investigation of nature either seeks after things which nobody can know, or after such things as nobody needs to know.

Art

Architecture

If, in fine, we cast a glance at art, we discover here the same unpleasing phenomena which pervade the whole mental life of this period. Building on the part of the state was virtually brought to a total stand amidst the scarcity of money that marked the last age of the republic. We have already spoken of the luxury in building of the Roman grandees; the architects learned in consequence of this to be lavish of marble—the coloured sorts such as the yellow Numidian (*Giallo antico*) and others came into vogue at this time, and the marble-quarries of Luna (Carrara) were now employed for the first time—and began to inlay the floors of the rooms with mosaic work, to panel the walls with slabs of marble, or to paint the compartments in imitation of marble—the first steps towards the subsequent fresco-painting. But art was not a gainer by this lavish magnificence.

Arts of Design

In the arts of design connoisseurship and collecting were always on the increase. It was a mere affectation of Catonian simplicity, when an advocate

spoke before the jurymen of the works of art "of a certain Praxiteles"; every one travelled and inspected, and the trade of the art-ciceroni, or, as they were then called, the -exegetae-, was none of the worst. Ancient works of art were formally hunted after—statues and pictures less, it is true, than, in accordance with the rude character of Roman luxury, artistically wrought furniture and ornaments of all sorts for the room and the table. As early as that age the old Greek tombs of Capua and Corinth were ransacked for the sake of the bronze and earthenware vessels which had been placed in the tomb along with the dead. for a small statuette of bronze 40,000 sesterces (400 pounds) were paid, and 200,000 (2000 pounds) for a pair of costly carpets; a well-wrought bronze cooking machine came to cost more than an estate. In this barbaric hunting after art the rich amateur was, as might be expected, frequently cheated by those who supplied him; but the economic ruin of Asia Minor in particular so exceedingly rich in artistic products brought many really ancient and rare ornaments and works of art into the market, and from Athens, Syracuse, Cyzicus, Pergamus, Chios, Samos, and other ancient seats of art, everything that was for sale and very much that was not migrated to the palaces and villas of the Roman grandees. We have already mentioned what treasures of art were to be found within the house of Lucullus, who indeed was accused, perhaps not unjustly, of having gratified his interest in the fine arts at the expense of his duties as a general. The amateurs of art crowded thither as they crowd at present to the Villa Borghese, and complained even then of such treasures being confined to the palaces and country-houses of the men of quality, where they could be seen only with difficulty and after special permission from the possessor. The public buildings on the other hand were far from filled in like proportion with famous works of Greek masters, and in many cases there still stood in the temples of the capital nothing but the old images of the gods carved in wood. As to the exercise of art there is virtually nothing to report; there is hardly mentioned by name from this period any Roman sculptor or painter

except a certain Arellius, whose pictures rapidly went off not on account of their artistic value, but because the cunning reprobate furnished, in his pictures of the goddesses faithful portraits of his mistresses for the time being.

Dancing and Music

The importance of music and dancing increased in public as in domestic life. We have already set forth how theatrical music and the dancing-piece attained to an independent standing in the development of the stage at this period;(43) we may add that now in Rome itself representations were very frequently given by Greek musicians, dancers, and declaimers on the public stage— such as were usual in Asia Minor and generally in the whole Hellenic and Hellenizing world.(44) To these fell to be added the musicians and dancing-girls who exhibited their arts to order at table and elsewhere, and the special choirs of stringed and wind instruments and singers which were no longer rare in noble houses. But that even the world of quality itself played and sang with diligence, is shown by the very adoption of music into the cycle of the generally recognized subjects of instruction;(45) as to dancing, it was, to say nothing of women, made matter of reproach even against consulars that they exhibited themselves in dancing performances amidst a small circle.

Incipient Influence of the Monarchy

Towards the end of this period, however, there appears with the commencement of the monarchy the beginning of a better time also in art. We have already mentioned the mighty stimulus which building in the capital received, and building throughout the empire was destined to receive, through Caesar. Even in the cutting of the dies of the coins there appears about 700 a remarkable change; the stamping, hitherto for the most

part rude and negligent, is thenceforward managed with more delicacy and care.

Conclusion

We have reached the end of the Roman republic. We have seen it rule for five hundred years in Italy and in the countries on the Mediterranean; we have seen it brought to ruin in politics and morals, religion and literature, not through outward violence but through inward decay, and thereby making room for the new monarchy of Caesar. There was in the world, as Caesar found it, much of the noble heritage of past centuries and an infinite abundance of pomp and glory, but little spirit, still less taste, and least of all true delight in life. It was indeed an old world; and even the richly-gifted patriotism of Caesar could not make it young again. The dawn does not return till after the night has fully set in and run its course. But yet with him there came to the sorely harassed peoples on the Mediterranean a tolerable evening after the sultry noon; and when at length after a long historical night the new day dawned once more for the peoples, and fresh nations in free self-movement commenced their race towards new and higher goals, there were found among them not a few, in which the seed sown by Caesar had sprung up, and which owed, as they still owe, to him their national individuality.

Notes for Chapter I

1. IV. VII. Bestowal of Latin Rights on the Italian Celts, 527

2. It is a significant trait, that a distinguished teacher of literature, the freedman Staberius Eros, allowed the children of the proscribed to attend

his course gratuitously.

3. IV. X. Proscription-Lists

4. IV. IX. Pompeius

5. IV. IV. Administration under the Restoration

6. IV. IV. Livius Drusus

7. IV. IX. Government of Cinna

8. IV. IX. Pompeius

9. IV. IX. Sertorius Embarks

10. IV. VII. Strabo, IV. IX. Dubious Attitude of Strabo

11. IV. IX. Carbo Assailed on Three Sides of Etruria

12. IV. VII. Rejection of the Proposals for an Accomodation

13. IV. X. Reorganization of the Senate

14. It is usual to set down the year 654 as that of Caesar's birth, because according to Suetonius (Caes. 88), Plutarch (Caes. 69), and Appian (B. C. ii. 149) he was at his death (15 March 710) in his 56th year; with which also the statement that he was 18 years old at the time of the Sullan proscription (672; Veil. ii. 41) nearly accords. But this view is utterly inconsistent with the facts that Caesar filled the aedileship in 689, the praetorship in 692, and the consulship in 695, and that these offices could, according to the *-leges annales-*, be held at the very earliest in the 37th-38th, 40th-41st, and 43rd-44th years of a man's life respectively. We cannot conceive why Caesar should have filled all the curule offices two years before the legal time, and

still less why there should be no mention anywhere of his having done so. These facts rather suggest the conjecture that, as his birthday fell undoubtedly on July 12, he was born not in 654, but in 652; so that in 672 he was in his 20th-21st year, and he died not in his 56th year, but at the age of 57 years 8 months. In favour of this latter view we may moreover adduce the circumstance, which has been strangely brought forward in opposition to it, that Caesar "-paene puer-" was appointed by Marius and Cinna as Flamen of Jupiter (Veil. ii. 43); for Marius died in January 668, when Caesar was, according to the usual view, 13 years 6 months old, and therefore not "almost," as Velleius says, but actually still a boy, and most probably for this very reason not at all capable of holding such a priesthood. If, again, he was born in July 652, he was at the death of Marius in his sixteenth year; and with this the expression in Velleius agrees, as well as the general rule that civil positions were not assumed before the expiry of the age of boyhood. Further, with this latter view alone accords the fact that the -denarii- struck by Caesar about the outbreak of the civil war are marked with the number LII, probably the year of his life; for when it began, Caesar's age was according to this view somewhat over 52 years. Nor is it so rash as it appears to us who are accustomed to regular and official lists of births, to charge our authorities with an error in this respect. Those four statements may very well be all traceable to a common source; nor can they at all lay claim to any very high credibility, seeing that for the earlier period before the commencement of the -acta diurna- the statements as to the natal years of even the best known and most prominent Romans, e. g. as to that of Pompeius, vary in the most surprising manner. (Comp. Staatsrecht, I. 8 p. 570.)

In the Life of Caesar by Napoleon III (B. 2, ch. 1) it is objected to this view, first, that the -lex annalis- would point for Caesar's birth-year not to 652, but to 651; secondly and especially, that other cases are known where it was not attended to. But the first assertion rests on a mistake; for, as the

example of Cicero shows, the *-lex annalis-* required only that at the entering on office the 43rd year should be begun, not that it should be completed. None of the alleged exceptions to the rule, moreover, are pertinent. When Tacitus (Ann. xi. 22) says that formerly in conferring magistracies no regard was had to age, and that the consulate and dictatorship were entrusted to quite young men, he has in view, of course, as all commentators acknowledge, the earlier period before the issuing of the *-leges annales—*the consulship of M. Valerius Corvus at twenty-three, and similar cases. The assertion that Lucullus received the supreme magistracy before the legal age is erroneous; it is only stated (Cicero, Acad. pr. i. 1) that on the ground of an exceptional clause not more particularly known to us, in reward for some sort of act performed by him, he had a dispensation from the legal two years' interval between the aedileship and praetorship—in reality he was aedile in 675, probably praetor in 677, consul in 680. That the case of Pompeius was a totally different one is obvious; but even as to Pompeius, it is on several occasions expressly stated (Cicero, de Imp. Pomp, ax, 62; Appian, iii. 88) that the senate released him from the laws as to age. That this should have been done with Pompeius, who had solicited the consulship as a commander-in-chief crowned with victory and a triumphator, at the head of an army and after his coalition with Crassus also of a powerful party, we can readily conceive. But it would be in the highest degree surprising, if the same thing should have been done with Caesar on his candidature for the minor magistracies, when he was of little more importance than other political beginners; and it would be, if possible, more surprising still, that, while there is mention of that—in itself readily understood—exception, there should be no notice of this more than strange deviation, however naturally such notices would have suggested themselves, especially with reference to Octavianus consul at 21 (comp., e. g., Appian, iii. 88). When from these irrelevant examples the inference is drawn, "that the law was little observed in Rome, where distinguished men

were concerned," anything more erroneous than this sentence was never uttered regarding Rome and the Romans. The greatness of the Roman commonwealth, and not less that of its great generals and statesmen, depends above all things on the fact that the law held good in their case also.

15. IV. IX. Spain

16. At least the outline of these organizations must be assigned to the years 674, 675, 676, although the execution of them doubtless belonged, in great part, only to the subsequent years.

17 IV. IX. The Provinces

18. The following narrative rests substantially on the account of Licinianus, which, fragmentary as it is at this very point, still gives important information as to the insurrection of Lepidus.

19. Under the year 676 Licinianus states (p. 23, Pertz; p. 42, Bonn); [Lepidus?] -[le]gem frumentari[am] nullo resistente l[argi]tus est, ut annon[ae] quinque modi popu[lo da]rentur-. According to this account, therefore, the law of the consuls of 681 Marcus Terentius Lucullus and Gaius Cassius Varus, which Cicero mentions (in Verr. iii. 70, 136; v. 21, 52), and to which also Sallust refers (Hist. iii. 61, 19 Dietsch), did not first reestablish the five -modii-, but only secured the largesses of grain by regulating the purchases of Sicilian corn, and perhaps made various alterations of detail. That the Sempronian law (IV. III. Alterations on the Constitution By Gaius Gracchus) allowed every burgess domiciled in Rome to share in the largesses of grain, is certain. But the later distribution of grain was not so extensive as this, for, seeing that the monthly corn of the Roman burgesses amounted to little more than 33,000 -medimni- = 198,000 -modii- (Cic. Verr. iii. 30, 72), only some 40,000 burgesses at that time received grain, whereas the number of burgesses domiciled in the capital was certainly far more considerable. This arrangement probably proceeded from the Octavian law, which introduced instead of the extravagant Sempronian amount "a moderate largess, tolerable for the state and necessary for the common people" (Cic. de Off. ii. 21, 72, Brut. 62, 222);

and to all appearance it is this very law that is the -lex frumentaria- mentioned by Licinianus. That Lepidus should have entered into such a proposal of compromise, accords with his attitude as regards the restoration of the tribunate. It is likewise in keeping with the circumstances that the democracy should find itself not at all satisfied by the regulation, brought about in this way, of the distribution of grain (Sallust, l. c.). The amount of loss is calculated on the basis of the grain being worth at least double (IV. III. Alterations on the Constitution By Gaius Gracchus); when piracy or other causes drove up the price of grain, a far more considerable loss must have resulted.

20. From the fragments of the account of Licinianus (p. 44, Bonn) it is plain that the decree of the senate, -uti Lepidus et Catulus decretis exercitibus maturrime proficiscerentur- (Sallust, Hist. i. 44 Dietsch), is to be understood not of a despatch of the consuls before the expiry of their consulship to their proconsular provinces, for which there would have been no reason, but of their being sent to Etruria against the revolted Faesulans, just as in the Catilinarian war the consul Gaius Antonius was despatched to the same quarter. The statement of Philippus in Sallust (Hist. i. 48, 4) that Lepidus -ob seditionem provinciam cum exercitu adeptus est-, is entirely in harmony with this view; for the extraordinary consular command in Etruria was just as much a -provincia- as the ordinary proconsular command in Narbonese Gaul.

21. III. IV. Hannibal's Passage of the Alps

22. In the recently found fragments of Sallust, which appear to belong to the campaign of 679, the following words relate to this incident: -Romanus [exer]citus (of Pompeius) frumenti gra[tia r]emotus in Vascones i... [it]emque Sertorius mon... e, cuius multum in[terer]it, ne ei perinde Asiae [iter et Italiae intercluderetur].

Notes for Chapter II

1. IV. VIII. New Difficulties

2. IV. VIII. Preliminaries of Delium, IV. VIII. Peace at Dardanus

3. IV. IX. Fresh Difficulties with Mithradates

4. IV. I. Cilicia

5. IV. I. Piracy

6. IV. I. Crete

7. The foundation of the kingdom of Edessa is placed by native chronicles in 620 (IV. I. The Parthian Empire), but it was not till some time after its rise that it passed into the hands of the Arabic dynasty bearing the names of Abgarus and Mannus, which we afterwards find there. This dynasty is obviously connected with the settlement of many Arabs by Tigranes the Great in the region of Edessa, Callirrhoe, Carrhae (Plin. H. N. v. 20, 85; ax, 86; vi. 28, 142); respecting which Plutarch also (Luc. 21) states that Tigranes, changing the habits of the tent-Arabs, settled them nearer to his kingdom in order by their means to possess himself of the trade. We may presumably take this to mean that the Bedouins, who were accustomed to open routes for traffic through their territory and to levy on these routes fixed transit-dues (Strabo, xvi. 748), were to serve the great-king as a sort of toll-supervisors, and to levy tolls for him and themselves at the passage of the Euphrates. These "Osrhoenian Arabs" (-Orei Arabes-), as Pliny calls them, must also be the Arabs on Mount Amanus, whom Afranius subdued (Plut. Pomp. 39).

8. The disputed question, whether this alleged or real testament proceeded from Alexander I (d. 666) or Alexander II (d. 673), is usually decided in favour of the former alternative. But the reasons are inadequate; for Cicero (de L. Agr. i. 4, 12; 15, 38; 16, 41) does not say that Egypt fell to Rome in 666, but that it did so in or after this year; and while the circumstance that Alexander I died abroad, and Alexander II in Alexandria, has led some to infer that the treasures mentioned in the testament in question as lying in Tyre must have belonged to the former, they have overlooked that Alexander II was killed nineteen days after his arrival in Egypt (Letronne, *Inscr. de l'Egypte*, ii. 20), when his treasure might still very well be in Tyre. On the other hand the circumstance that the second Alexander was the last genuine Lagid is decisive, for in the similar acquisitions of Pergamus, Cyrene, and Bithynia it was always by the last scion of the legitimate ruling family that Rome was appointed heir. The ancient constitutional law, as it applied at least to the Roman client- states, seems to have given to the reigning prince the right of ultimate disposal of his kingdom not absolutely, but only in the absence of -agnati- entitled to succeed. Comp. Gutschmid's remark in the German translation of S. Sharpe's *History of Egypt*, ii. 17.

Whether the testament was genuine or spurious, cannot be ascertained, and is of no great moment; there are no special reasons for assuming a forgery.

9. IV. IX. Fresh Difficulties with Mithradates

10. IV. VIII. Cyrene Roman

11. V. I. Collapse of the Power of Sertorius

12. IV. IV. The Provinces

13. IV. VIII. Lucullus and the Fleet on the Asiatic Coast

14. IV. VIII. Flaccus Arrives in Asia

15. III. V. Attitude of the Romans, III. VI. The African Expedition of Scipio

16. That Tigranocerta was situated in the region of Mardln some two days' march to the west of Nisibis, has been proved by the investigation instituted on the spot by Sachau ("-Ueber die Lage von Tigranokerta-," Abh. der Berliner Akademie, 1880), although the more exact fixing of the locality proposed by Sachau is not beyond doubt. On the other hand, his attempt to clear up the campaign of Lucullus encounters the difficulty that, on the route assumed in it, a crossing of the Tigris is in reality out of the question.

17. Cicero (De Imp. Pomp. 9, 23) hardly means any other than one of the rich temples of the province Elymais, whither the predatory expeditions of the Syrian and Parthian kings were regularly directed (Strabo, xvi. 744; Polyb, xxxi. 11. 1 Maccab. 6, etc.), and probably this as the best known; on no account can the allusion be to the temple of Comana or any shrine at all in the kingdom of Pontus.

18. V. II. Preparations of Mithradates, 328, 334

19. V. II. Invasion of Pontus by Lucullus

20. V. II. Roman Preparations

21. V. I. Want of Leaders

22. V. II. Maritime War

23. IV. I. Crete

24. IV. II. The First Sicilian Slave War, IV. IV. Revolts of the Slaves

25. These enactments gave rise to the conception of robbery as a separate crime, while the older law comprehended robbery under theft.

26. V. II. The Pirates in the Mediterranean

27. As the line was thirty-five miles long (Sallust, Hist, iv, 19, Dietsch; Plutarch, Crass. 10), it probably passed not from Squillace to Pizzo, but more to the north, somewhere near Castrovillari and Cassano, over the peninsula which is here in a straight line about twenty-seven miles broad.

28. That Crassus was invested with the supreme command in 682, follows from the setting aside of the consuls (Plutarch, Crass. 10); that the winter of 682-683 was spent by the two armies at the Bruttian wall, follows from the "snowy night" (Plut. l. c).

Notes for Chapter III

1. IV. X. Assignations to the Soldiers

2. V. I. Pompeius

3. IV. X. Abolition of the Gracchan Institutions

4. V. II. The Insurrection Takes Shape

5. V. III. Attacks on the Senatorial Tribunals

6. V. I. Insurrection of Lepidus

7. IV. X. Co-optation Restored in the Priestly Colleges

8. V. II. Mutiny of the Soldiers

9. IV. IV. Marius Commander-in-Chief

10. The extraordinary magisterial power (-pro consule-, -pro praetore-, -pro quaestore-) might according to Roman state-law originate in three ways. Either it arose out of the principle which held good for the non-urban magistracy, that the office continued up to the appointed legal term, but the official authority up to the arrival of the successor, which was the oldest, simplest, and most frequent case. Or it arose in the way of the appropriate organs—especially the comitia, and in later times also perhaps the senate—nominating a chief magistrate not contemplated in the constitution, who was otherwise on a parity with the ordinary magistrate, but in token of the extraordinary nature of his office designated himself merely "instead of a praetor" or "of a consul." To this class belong also the magistrates nominated in the ordinary way as quaestors, and then extraordinarily furnished with praetorian or even consular official authority (-quaestores pro praetore- or -pro consule-); in which quality, for example, Publius Lentulus Marcellinus went in 679 to Cyrene (Sallust, Hist. ii. 39 Dietsch), Gnaeus Piso in 689 to Hither Spain (Sallust, Cat. 19), and Cato in 696 to Cyprus (Vell. ii. 45). Or, lastly, the extraordinary magisterial authority was based on the right of delegation vested in the supreme magistrate. If he left the bounds of his province or otherwise was hindered from administering his office, he was entitled to nominate one of those about him as his substitute, who was then called -legatus pro praetore- (Sallust, Jug. 36, 37, 38), or, if the choice fell on the quaestor, -quaestor pro praetore- (Sallust, Jug. 103). In like manner he was entitled, if he had no quaestor, to cause the quaestorial duties to be discharged by one of his train, who was then called -legatus pro quaestore-, a name which is to be met with, perhaps for the first

time, on the Macedonian tetradrachms of Sura, lieutenant of the governor of Macedonia, 665-667. But it was contrary to the nature of delegation and therefore according to the older state-law inadmissible, that the supreme magistrate should, without having met with any hindrance in the discharge of his functions, immediately upon his entering on office invest one or more of his subordinates with supreme official authority; and so far the -legati pro praetore-of the proconsul Pompeius were an innovation, and already similar in kind to those who played so great a part in the times of the Empire.

11. V. III. Attempts to Restore the Tribunician Power

12. According to the legend king Romulus was torn in pieces by the senators.

13. IV. II. Further Plans of Gracchus

Notes for Chapter IV

1. V. III. Senate, Equites, and Populares

2. V. II. Metellus Subdues Crete

3. [Literally "twenty German miles"; but the breadth of the island does not seem in reality half so much.—Tr.]

4. V. II. Renewal of the War

5. Pompeius distributed among his soldiers and officers as presents 384,000,000 sesterces (=16,000 talents, App. Mithr. 116); as the officers received 100,000,000 (Plin. H. N. xxxvii. 2, 16) and each of the common

soldiers 6000 sesterces (Plin., App.), the army still numbered at its triumph about 40,000 men.

6. V. II. Sieges of the Pontic Cities

7. V. II. All the Armenian Conquests Pass into the Hands of the Romans

8. V. II. Syria under Tigranes

9. V. II. Syria under Tigranes

10. IV. I. The Jews

11. V. II. Siege and Battle of Tigranocerta

12. Thus the Sadducees rejected the doctrine of angels and spirits and the resurrection of the dead. Most of the traditional points of difference between Pharisees and Sadducees relate to subordinate questions of ritual, jurisprudence, and the calendar. It is a characteristic fact, that the victorious Pharisees have introduced those days, on which they definitively obtained the superiority in particular controversies or ejected heretical members from the supreme consistory, into the list of the memorial and festival days of the nation.

13. V. II. All the Armenian Conquests Pass into the Hands of the Romans

14. V. II. Beginning of the Armenian War, V. II. All the Armenian Conquests Pass into the Hands of the Romans

15. Pompeius spent the winter of 689-690 still in the neighbourhood of the Caspian Sea (Dio, xxxvii. 7). In 690 he first reduced the last strongholds still offering resistance in the kingdom of Pontus, and then moved slowly, regulating matters everywhere, towards the south. That the organization of

Syria began in 690 is confirmed by the fact that the Syrian provincial era begins with this year, and by Cicero's statement respecting Commagene (Ad Q. fr. ii. 12, 2; comp. Dio, xxxvii. 7). During the winter of 690-691 Pompeius seems to have had his headquarters in Antioch (Joseph, xiv. 3, 1, 2, where the confusion has been rectified by Niese in the *Hermes*, xi. p. 471).

16. III. V. New Warlike Preparations in Rome

17. III. IV. War Party and Peace Party in Carthage

18. Orosius indeed (vi. 6) and Dio (xxxvii. 15), both of them doubtless following Livy, make Pompeius get to Petra and occupy the city or even reach the Red Sea; but that he, on the contrary, soon after receiving the news of the death of Mithradates, which came to him on his march towards Jerusalem, returned from Syria to Pontus, is stated by Plutarch (Pomp. 41, 42) and is confirmed by Floras (i. 39) and Josephus (xiv. 3, 3, 4). If king Aretas figures in the bulletins among those conquered by Pompeius, this is sufficiently accounted for by his withdrawal from Jerusalem at the instigation of Pompeius.

19. V. II. Renewal of the War, V. IV. Variance between Mithradates and Tigranes

20. This view rests on the narrative of Plutarch (Pomp. 36) which is supported by Strabo's (xvi. 744) description of the position of the satrap of Elymais. It is an embellishment of the matter, when in the lists of the countries and kings conquered by Pompeius Media and its king Darius are enumerated (Diodorus, Fr, Vat. p. 140; Appian, Mithr. 117); and from this there has been further concocted the war of Pompeius with the Medes (Veil. ii. 40; Appian, Mithr. 106, 114) and then even his expedition to Ecbatana (Oros. vi. 5). A confusion with the fabulous town of the same name on

Carmel has hardly taken place here; it is simply that intolerable exaggeration—apparently originating in the grandiloquent and designedly ambiguous bulletins of Pompeius—which has converted his razzia against the Gaetulians (p. 94) into a march to the west coast of Africa (Plut. Pomp. 38), his abortive expedition against the Nabataeans into a conquest of the city of Petra, and his award as to the boundaries of Armenia into a fixing of the boundary of the Roman empire beyond Nisibis.

21. The war which this Antiochus is alleged to have waged with Pompeius (Appian, Mithr. 106, 117) is not very consistent with the treaty which he concluded with Lucullus (Dio, xxxvi. 4), and his undisturbed continuance in his sovereignty; presumably it has been concocted simply from the circumstance, that Antiochus of Commagene figured among the kings subdued by Pompeius.

22. To this Cicero's reproach presumably points (De Off. iii. 12, 49): - *piratas immunes habemus, socios vectigales*;- in so far, namely, as those pirate-colonies probably had the privilege of immunity conferred on them by Pompeius, while, as is well known, the provincial communities dependent on Rome were, as a rule, liable to taxation.

23. IV. VIII. Pontus

24. V. IV. Battle at Nicopolis

25. V. II. Defeat of the Romans in Pontus at Ziela

26. V. IV. Pompeius Take the Supreme Command against Mithradates

27. IV. VIII. Weak Counterpreparations of the Romans ff.

28. V. II. Egypt not Annexed

29. V. IV. Urban Communities

Notes for Chapter V

1. V. III. Renewal of the Censorship

2. IV. VI. Political Projects of Marius

3. IV. X. Co-optation Restored in the Priestly Colleges

4. IV. VII. The Sulpician Laws

5. IV. X. Permanent and Special -Quaestiones-

6. IV. VI. And Overpowered

7. IV. VII. Bestowal of Latin Rights on the Italian Celts

8. Any one who surveys the whole state of the political relations of this period will need no special proofs to help him to see that the ultimate object of the democratic machinations in 688 et seq. was not the overthrow of the senate, but that of Pompeius. Yet such proofs are not wanting. Sallust states that the Gabinio- Manilian laws inflicted a mortal blow on the democracy (Cat. 39); that the conspiracy of 688-689 and the Servilian rogation were specially directed against Pompeius, is likewise attested (Sallust Cat. 19; Val. Max. vi. 2, 4; Cic. de Lege Agr. ii. 17, 46). Besides the attitude of Crassus towards the conspiracy alone shows sufficiently that it was directed against Pompeius.

9. V. V. Transpadanes

10. Plutarch, Crass. 13; Cicero, de Lege agr. ii. 17, 44. To this year (689) belongs Cicero's oration -de rege Alexandrino-, which has been incorrectly assigned to the year 698. In it Cicero refutes, as the fragments clearly show, the assertion of Crassus, that Egypt had been rendered Roman property by the testament of king Alexander. This question of law might and must have been discussed in 689; but in 698 it had been deprived of its significance through the Julian law of 695. In 698 moreover the discussion related not to the question to whom Egypt belonged, but to the restoration of the king driven out by a revolt, and in this transaction which is well known to us Crassus played no part. Lastly, Cicero after the conference of Luca was not at all in a position seriously to oppose one of the triumvirs.

11. V. IV. Pompeius Proceeds to Colchis

12. V. III. Attacks on the Senatorial Tribunals, V. III. Renewal of the Censorship

13. The -Ambrani- (Suet. Caes. 9) are probably not the Ambrones named along with the Cimbri (Plutarch, Mar. 19), but a slip of the pen for -Arverni-.

14. This cannot well be expressed more naively than is done in the memorial ascribed to his brother (de pet. cons. i, 5; 13, 51, 53; in 690); the brother himself would hardly have expressed his mind publicly with so much frankness. In proof of this unprejudiced persons will read not without interest the second oration against Rullus, where the "first democratic consul," gulling the friendly public in a very delectable fashion, unfolds to it the "true democracy."

15. His epitaph still extant runs: -Cn. Calpurnius Cn. f. Piso quaestor pro. ex s. c. provinciam Hispaniam citeriorem optinuit-.

16. V. V. Failure of the First Plans of Conspiracy

17. V. III. Continued Subsistence of the Sullan Constitution

18. IV. XII. Priestly Colleges

19. IV. VII. Economic Crisis

20. V. V. Rehabilitation of Saturninus and Marius

21. Such an apology is the -Catilina- of Sallust, which was published by the author, a notorious Caesarian, after the year 708, either under the monarchy of Caesar or more probably under the triumvirate of his heirs; evidently as a treatise with a political drift, which endeavours to bring into credit the democratic party— on which in fact the Roman monarchy was based—and to clear Caesar's memory from the blackest stain that rested on it; and with the collateral object of whitewashing as far as possible the uncle of the triumvir Marcus Antonius (comp. e. g. c. 59 with Dio, xxxvii. 39). The Jugurtha of the same author is in an exactly similar way designed partly to expose the pitifulness of the oligarchic government, partly to glorify the Coryphaeus of the democracy, Gaius Marius. The circumstance that the adroit author keeps the apologetic and inculpatory character of these writings of his in the background, proves, not that they are not partisan treatises, but that they are good ones.

22. V. XII. Greek Literati in Rome

Notes for Chapter VI

1. V. IV. Aggregate Results

2. The impression of the first address, which Pompeius made to the burgesses after his return, is thus described by Cicero (ad Att. i. 14): -prima contio Pompei non iucunda miseris (the rabble), inanis improbis (the democrats), beatis (the wealthy) non grata, bonis (the aristocrats) non gravis; itaque frigatebat-.

3. IV. X. Regulating of the Qualifications for Office

4. V. V. New Projects of the Conspirators

5. V. VI. Pompeius without Influence

6. IV. IX. Government of Cinna, IV. X. Punishments Inflicted on Particular Communities

7. IV. XII. Oriental Religions in Italy

8. V. V. Transpadanes

9. IV. X. Cisalpine Gaul Erected into a Province

10. V. IV. Cyprus Annexed

11. IV. VI. Violent Proceedings in the Voting

12. V. IV. Cyprus Annexed

Notes for Chapter VII

1. IV. I. The Callaeci Conquered

2. IV. IX. Spain

3. V. I. Renewed Outbreak of the Spanish Insurrection

4. V. I. Pompeius in Gaul

5. V. I. Indefinite and Perilous Character of the Sertorian War

6. V. V. Conviction and Arrest of the Conspirators in the Capital

7. V. I. Pompeius Puts and End to the Insurrection

8. IV. II. Scipio Aemilianus

9. There was found, for instance, at Vaison in the Vocontian canton an inscription written in the Celtic language with the ordinary Greek alphabet. It runs thus: —segouaros ouilloneos tooutious namausatis eiorou beileisamisosin nemeiton—. The last word means "holy."

10. An immigration of Belgic Celts to Britain continuing for a considerable time seems indicated by the names of English tribes on both banks of the Thames borrowed from Belgic cantons; such as the Atrebates, the Belgae, and even the Britanni themselves, which word appears to have been transferred from the Brittones settled on the Somme below Amiens first to an English canton and then to the whole island. The English gold coinage was also derived from the Belgic and originally identical with it.

11. The first levy of the Belgic cantons exclusive of the Remi, that is, of the country between the Seine and the Scheldt and eastward as far as the vicinity of Rheims and Andernach, from 9000 to 10,000 square miles, is reckoned at about 300,000 men; in accordance with which, if we regard the proportion of the first levy to the whole men capable of bearing arms specified for the Bellovaci as holding good generally, the number of the

Belgae capable of bearing arms would amount to 500,000 and the whole population accordingly to at least 2,000,000. The Helvetii with the adjoining peoples numbered before their migration 336,000; if we assume that they were at that time already dislodged from the right bank of the Rhine, their territory may be estimated at nearly 1350 square miles. Whether the serfs are included in this, we can the less determine, as we do not know the form which slavery assumed amongst the Celts; what Caesar relates (i. 4) as to the slaves, clients, and debtors of Orgetorix tells rather in favour of, than against, their being included.

That, moreover, every such attempt to make up by combinations for the statistical basis, in which ancient history is especially deficient, must be received with due caution, will be at once apprehended by the intelligent reader, while he will not absolutely reject it on that account.

12. "In the interior of Transalpine Gaul on the Rhine," says Scrofa in Varro, *De R. R.* i. 7, 8, "when I commanded there, I traversed some districts, where neither the vine nor the olive nor the fruit-tree appears, where they manure the fields with white Pit-chalk, where they have neither rock—nor sea-salt, but make use of the saline ashes of certain burnt wood instead of salt." This description refers probably to the period before Caesar and to the eastern districts of the old province, such as the country of the Allobroges; subsequently Pliny (*H. N.* xvii. 6, 42 seq.) describes at length the Gallo-Britannic manuring with marl.

13. "The Gallic oxen especially are of good repute in Italy, for field labour forsooth; whereas the Ligurian are good for nothing." (Varro, *De R. R.* ii. 5, 9). Here, no doubt, Cisalpine Gaul is referred to, but the cattle-husbandry there doubtless goes back to the Celtic epoch. Plautus already mentions the "Gallic ponies" (-Gallici canterii-, *Aul.* iii. 5. 21). "It is not every race that is suited for the business of herdsmen; neither the Bastulians

nor the Turdulians" (both in Andalusia) "are fit for it; the Celts are the best, especially as respects beasts for riding and burden (-iumenta-)" (Varro, De R. R. ii. 10, 4).

14. We are led to this conclusion by the designation of the trading or "round" as contrasted with the "long" or war vessel, and the similar contrast of the "oared ships" (—epikopoi veies—) and the "merchantmen" (—olkades—, Dionys. iii. 44); and moreover by the smallness of the crew in the trading vessels, which in the very largest amounted to not more than 200 men (Rhein. Mus. N. F. xi. 625), while in the ordinary galley of three decks there were employed 170 rowers (III. II. The Romans Build A Fleet). Comp. Movers, Phoen. ii. 3, 167 seq.

15. IV. V. Transalpine Relations of Rome

16. IV. V. Defeat of Longinus

17. IV. V. Transalpine Relations of Rome

18. This remarkable word must have been in use as early as the sixth century of Rome among the Celts in the valley of the Po; for Ennius is already acquainted with it, and it can only have reached the Italians at so early a period from that quarter. It is not merely Celtic, however, but also German, the root of our "Amt," as indeed the retainer-system itself is common to the Celts and the Germans. It would be of great historical importance to ascertain whether the word—and so also the thing—came to the Celts from the Germans, or to the Germans from the Celts. If, as is usually supposed, the word is originally German and primarily signified the servant standing in battle "against the back" (-and-= against, -bak- = back) of his master, this is not wholly irreconcilable with the singularly early occurrence of this word among the Celts. According to all analogy the right to keep -ambacti-, that is, —doouloi misthotoi—, cannot have belonged to

the Celtic nobility from the outset, but must only have developed itself gradually in antagonism to the older monarchy and to the equality of the free commons. If thus the system of -ambacti- among the Celts was not an ancient and national, but a comparatively recent institution, it is—looking to the relation which had subsisted for centuries between the Celts and Germans, and which is to be explained farther on—not merely possible but even probable that the Celts, in Italy as in Gaul, employed Germans chiefly as those hired servants-at- arms. The "Swiss guard" would therefore in that case be some thousands of years older than people suppose. Should the term by which the Romans, perhaps after the example of the Celts, designate the Germans as a nation—the name -Germani—be really of Celtic origin, this obviously accords very well with that hypothesis.—No doubt these assumptions must necessarily give way, should the word -ambactus- be explained in a satisfactory way from a Celtic root; as in fact Zeuss (Gramm. p. 796), though doubtfully, traces it to -ambi- = around and -aig- = -agere-, viz. one moving round or moved round, and so attendants, servants. The circumstance that the word occurs also as a Celtic proper name (Zeuss, p. 77), and is perhaps preserved in the Cambrian -amaeth- = peasant, labourer (Zeuss, p. 156), cannot decide the point either way,

19. From the Celtic words -guerg- = worker and -breth- = judgment.

20. IV. V. Transalpine Relations of Rome

21. The position which such a federal general occupied with reference to his troops, is shown by the accusation of high treason raised against Vercingetorix (Caesar, B. G. vii. 20).

22. IV. V. The Cimbri

23. II. IV. The Celts Assail the Etruscans in Northern Italy

24. V. VII. Art and Science

25. Caesar's Suebi thus were probably the Chatti; but that designation certainly belonged in Caesar's time, and even much later, also to every other German stock which could be described as a regularly wandering one. Accordingly if, as is not to be doubted, the "king of the Suebi" in Mela (iii. i) and Pliny (H. N. ii. 67, 170) was Ariovistus, it by no means therefore follows that Ariovistus was a Chatten. The Marcomani cannot be demonstrated as a distinct people before Marbod; it is very possible that the word up to that point indicates nothing but what it etymologically signifies—the land, or frontier, guard. When Caesar (i, 51) mentions Marcomani among the peoples fighting in the army of Ariovistus, he may in this instance have misunderstood a merely appellative designation, just as he has decidedly done in the case of the Suebi.

26. IV. V. The Tribes at the Sources of the Rhine and Along the Danube

27. IV. V. The Tribes at the Sources of the Rhine and Along the Danube

28. IV. V. Teutones in the Province of Gaul

29. The arrival of Ariovistus in Gaul has been placed, according to Caesar, i. 36, in 683, and the battle of Admagetobriga (for such was the name of the place now usually, in accordance with a false inscription, called Magetobriga), according to Caesar i. 35 and Cicero Ad. Att. i. 19, in 693.

30. V. VII. Wars and Revolts There

31. That we may not deem this course of things incredible, or even impute to it deeper motives than ignorance and laziness in statesmen, we shall do well to realize the frivolous tone in which a distinguished senator

like Cicero expresses himself in his correspondence respecting these important Transalpine affairs.

32. IV. V. Inroad of the Helvetii into Southern Gaul

33. According to the uncorrected calendar. According to the current rectification, which however here by no means rests on sufficiently trustworthy data, this day corresponds to the 16th of April of the Julian calendar.

34. IV. V. The Cimbri, Teutones, and Helvetii Unite

35. -Julia Equestris-, where the last surname is to be taken as in other colonies of Caesar the surnames of sextanorum, decimanorum, etc. It was Celtic or German horsemen of Caesar, who, of course with the bestowal of the Roman or, at any rate, Latin franchise, received land-allotments there.

36. Goler (Caesars gall. Krieg, p. 45, etc.) thinks that he has found the field of battle at Cernay not far from Muhlhausen, which, on the whole, agrees with Napoleon's (Precis, p. 35) placing of the battle-field in the district of Belfort. This hypothesis, although not certain, suits the circumstances of the case; for the fact that Caesar required seven days' march for the short space from Besancon to that point, is explained by his own remark (i. 41) that he had taken a circuit of fifty miles to avoid the mountain paths; and the whole description of the pursuit continued as far as the Rhine, and evidently not lasting for several days but ending on the very day of the battle, decides—the authority of tradition being equally balanced—in favour of the view that the battle was fought five, not fifty, miles from the Rhine. The proposal of Rustow (-Einleitung zu Caesars Comm-. p. 117) to transfer the field of battle to the upper Saar rests on a misunderstanding. The corn expected from the Sequani, Leuci, Lingones was not to come to the Roman army in the course of their march against Ariovistus, but to be

delivered at Besancon before their departure, and taken by the troops along with them; as is clearly apparent from the fact that Caesar, while pointing his troops to those supplies, comforts them at the same time with the hope of corn to be brought in on the route. From Besancon Caesar commanded the region of Langres and Epinal, and, as may be well conceived, preferred to levy his requisitions there rather than in the exhausted districts from which he came.

37. This seems the simplest hypothesis regarding the origin of these Germanic settlements. That Ariovistus settled those peoples on the middle Rhine is probable, because they fight in his army (Caes. i. 51) and do not appear earlier; that Caesar left them in possession of their settlements is probable, because he in presence of Ariovistus declared himself ready to tolerate the Germans already settled in Gaul (Caes. i. 35, 43), and because we find them afterwards in these abodes. Caesar does not mention the directions given after the battle concerning these Germanic settlements, because he keeps silence on principle regarding all the organic arrangements made by him in Gaul.

38. IV. V. The Cimbri, Teutones, and Helvetii Unite

39. III. II. The Romans Build a Fleet

40. V. I. Pompeius in Gaul

41. V. VII. The Germans on the Lower Rhine

42. The nature of the case as well as Caesar's express statement proves that the passages of Caesar to Britain were made from ports of the coast between Calais and Boulogne to the coast of Kent. A more exact determination of the localities has often been attempted, but without success. All that is recorded is, that on the first voyage the infantry

embarked at one port, the cavalry at another distant from the former eight miles in an easterly direction (iv. 22, 23, 28), and that the second voyage was made from that one of those two ports which Caesar had found most convenient, the (otherwise not further mentioned) Portus Itius, distant from the British coast 30 (so according to the MSS. of Caesar v. 2) or 40 miles (=320 stadia, according to Strabo iv. 5, 2, who doubtless drew his account from Caesar). From Caesar's words (iv. 21) that he had chosen "the shortest crossing," we may doubtless reasonably infer that he crossed not the Channel but the Straits of Calais, but by no means that he crossed the latter by the mathematically shortest line. It requires the implicit faith of local topographers to proceed to the determination of the locality with such data in hand—data of which the best in itself becomes almost useless from the variation of the authorities as to the number; but among the many possibilities most may perhaps be said in favour of the view that the Itian port (which Strabo l. c. is probably right in identifying with that from which the infantry crossed in the first voyage) is to be sought near Ambleteuse to the west of Cape Gris Nez, and the cavalry-harbour near Ecale (Wissant) to the east of the same promontory, and that the landing took place to the east of Dover near Walmer Castle.

43. That Cotta, although not lieutenant-general of Sabinus, but like him legate, was yet the younger and less esteemed general and was probably directed in the event of a difference to yield, may be inferred both from the earlier services of Sabinus and from the fact that, where the two are named together (iv. 22, 38; v. 24, 26, 52; vi. 32; otherwise in vi. 37) Sabinus regularly takes precedence, as also from the narrative of the catastrophe itself. Besides we cannot possibly suppose that Caesar should have placed over a camp two officers with equal authority, and have made no arrangement at all for the case of a difference of opinion. the five cohorts are not counted as part of a legion (comp. vi. 32, 33) any more than the twelve cohorts at the Rhine bridge (vi. 29, comp. 32, 33), and appear to

have consisted of detachments of other portions of the army, which had been assigned to reinforce this camp situated nearest to the Germans.

44. V. VII. Subjugation of the Belgae

45. IV. V. War with the Allobroges and Arverni

46. V. VII. Cantonal Constitution

47. This, it is true, was only possible, so long as offensive weapons chiefly aimed at cutting and stabbing. In the modern mode of warfare, as Napoleon has excellently explained, this system has become inapplicable, because with our offensive weapons operating from a distance the deployed position is more advantageous than the concentrated. In Caesar's time the reverse was the case.

48. This place has been sought on a rising ground which is still named Gergoie, a league to the south of the Arvernian capital Nemetum, the modern Clermont; and both the remains of rude fortress-walls brought to light in excavations there, and the tradition of the name which is traced in documents up to the tenth century, leave no room for doubt as to the correctness of this determination of the locality. Moreover it accords, as with the other statements of Caesar, so especially with the fact that he pretty clearly indicates Gergovia as the chief place of the Arverni (vii. 4). We shall have accordingly to assume, that the Arvernians after their defeat were compelled to transfer their settlement from Gergovia to the neighbouring less strong Nemetum.

49. The question so much discussed of late, whether Alesia is not rather to be identified with Alaise (25 kilometres to the south of Besancon, dep. Doubs), has been rightly answered in the negative by all judicious inquirers.

50. This is usually sought at Capdenac not far from Figeac; Goler has recently declared himself in favour of Luzech to the west of Cahors, a site which had been previously suggested.

51. This indeed, as may readily be conceived, is not recorded by Caesar himself, but an intelligible hint on this subject is given by Sallust (Hist. i. 9 Kritz), although he too wrote as a partisan of Caesar. Further proofs are furnished by the coins.

52. Thus we read on a -semis- which a Vergobretus of the Lexovii (Lisieux, dep. Calvados) caused to be struck, the following inscription: - Cisiambos Cattos vercobreto; simissos (sic) publicos Lixovio-. The often scarcely legible writing and the incredibly wretched stamping of these coins are in excellent harmony with their stammering Latin.

53. V. VII. Caesar and Ariovistus

54. V. VII. The Helvetii Sent Back to Their Original Abodes

55. V. VII. Beginning of the Struggle

56. IV. V. Taurisci

Notes for Chapter VIII

1. This is the meaning of -cantorum convitio contiones celebrare- (Cic. pro Sest. 55, 118).

2. V. VI. Clodius

3. IV. V. The Victory and the Parties

4. Cato was not yet in Rome when Cicero spoke on 11th March 698 in favour of Sestius (Pro Sest. 28, 60) and when the discussion took place in the senate in consequence of the resolutions of Luca respecting Caesar's legions (Plut. Caes. 21); it is not till the discussions at the beginning of 699 that we find him once more busy, and, as he travelled in winter (Plut. Cato Min. 38), he thus returned to Rome in the end of 698. He cannot therefore, as has been mistakenly inferred from Asconius (p. 35, 53), have defended Milo in Feb. 698.

5. -Me asinum germanum fuisse- (Ad Att. iv. 5, 3).

6. This palinode is the still extant oration on the Provinces to be assigned to the consuls of 699. It was delivered in the end of May 698. The pieces contrasting with it are the orations for Sestius and against Vatinius and that upon the opinion of the Etruscan soothsayers, dating from the months of March and April, in which the aristocratic regime is glorified to the best of his ability and Caesar in particular is treated in a very cavalier tone. It was but reasonable that Cicero should, as he himself confesses (Ad Att. iv. 5, 1), be ashamed to transmit even to intimate friends that attestation of his resumed allegiance.

7. This is not stated by our authorities. But the view that Caesar levied no soldiers at all from the Latin communities, that is to say from by far the greater part of his province, is in itself utterly incredible, and is directly refuted by the fact that the opposition-party slightly designates the force levied by Caesar as "for the most part natives of the Transpadane colonies" (Caes. B. C. iii. 87); for here the Latin colonies of Strabo (Ascon. in Pison. p. 3; Sueton. Caes. 8) are evidently meant. Yet there is no trace of Latin cohorts in Caesar's Gallic army; on the contrary according to his express statements all the recruits levied by him in Cisalpine Gaul were added to the

legions or distributed into legions. It is possible that Caesar combined with the levy the bestowal of the franchise; but more probably he adhered in this matter to the standpoint of his party, which did not so much seek to procure for the Transpadanes the Roman franchise as rather regarded it as already legally belonging to them (iv. 457). Only thus could the report spread, that Caesar had introduced of his own authority the Roman municipal constitution among the Transpadane communities (Cic. Ad Att. v. 3, 2; Ad Fam. viii. 1, 2). This hypothesis too explains why Hirtius designates the Transpadane towns as "colonies of Roman burgesses" (B. G. viii. 24), and why Caesar treated the colony of Comum founded by him as a burgess-colony (Sueton. Caes. 28; Strabo, v. 1, p. 213; Plutarch, Caes. 29), while the moderate party of the aristocracy conceded to it only the same rights as to the other Transpadane communities, viz. Latin rights, and the ultras even declared the civic rights conferred on the settlers as altogether null, and consequently did not concede to the Comenses the privileges attached to the holding of a Latin municipal magistracy (Cic. Ad Att. v. 11, 2; Appian, B. C. ii. 26). Comp. Hermes, xvi. 30.

8. V. VII. Fresh Violations of the Rhine-Boundary by the Germans

9. The collection handed down to us is full of references to the events of 699 and 700 and was doubtless published in the latter year; the most recent event, which it mentions, is the prosecution of Vatinius (Aug. 700). The statement of Hieronymus that Catullus died in 697-698 requires therefore to be altered only by a few years. From the circumstance that Vatinius "swears falsely by his consulship," it has been erroneously inferred that the collection did not appear till after the consulate of Vatinius (707); it only follows from it that Vatinius, when the collection appeared, might already reckon on becoming consul in a definite year, for which he had every reason as early as 700; for his name certainly stood on the list of candidates agreed on at Luca (Cicero, Ad. Att. iv. 8 b. 2).

10. The well-known poem of Catullus (numbered as xxix.) was written in 699 or 700 after Caesar's Britannic expedition and before the death of Julia:

-Quis hoc potest videre, quis potest pati, Nisi impudicus et vorax et aleo,
Mamurram habere quod comata Gallia Habebat ante et ultima Britannia-?
etc.

Mamurra of Formiae, Caesar's favourite and for a time during the Gallic wars an officer in his army, had, presumably a short time before the composition of this poem, returned to the capital and was in all likelihood then occupied with the building of his much-talked-of marble palace furnished with lavish magnificence on the Caelian hill. The Iberian booty mentioned in the poem must have reference to Caesar's governorship of Further Spain, and Mamurra must even then, as certainly afterwards in Gaul, have been found at Caesar's headquarters; the Pontic booty presumably has reference to the war of Pompeius against Mithradates, especially as according to the hint of the poet it was not merely Caesar that enriched Mamurra.

More innocent than this virulent invective, which was bitterly felt by Caesar (Suet. Caes. 73), is another nearly contemporary poem of the same author (xi.) to which we may here refer, because with its pathetic introduction to an anything but pathetic commission it very cleverly quizzes the general staff of the new regents—the Gabiniuses, Antoniuses, and such like, suddenly advanced from the lowest haunts to headquarters. Let it be remembered that it was written at a time when Caesar was fighting on the Rhine and on the Thames, and when the expeditions of Crassus to Parthia and of Gabinius to Egypt were in preparation. The poet, as if he too expected one of the vacant posts from one of the regents, gives to two of his clients their last instructions before departure:

-Furi et Aureli, comites Catulli-, etc.

11. V. VIII. Clodius

12. In this year the January with 29 and the February with 23 days were followed by the intercalary month with 28, and then by March.

13. -Consul- signifies "colleague" (i. 318), and a consul who is at the same time proconsul is at once an actual consul and a consul's substitute.

14. II. III. Military Tribunes with Consular Powers

Notes for Chapter IX

1. iv. 434

2. Tigranes was still living in February 698 (Cic. pro Sest. 27, 59); on the other hand Artavasdes was already reigning before 700 (Justin, xlii. 2, 4; Plut. Crass. 49).

3. V. IV. Ptolemaeus in Egypt Recognized, but Expelled by His Subjects

4. V. IV. Military Pacification of Syria

5. V. VII. Repulse of the Helvetii, V. VII. Expeditions against the Maritime Cantons

6. V. VII. Cassivellaunus

7. V. VII. The Carnutes ff.

8. V. II. Renewal of the War

9. V. IV. Difficulty with the Parthians
10. IV. I. War against Aristonicus
11. V. VII. Insurrection
12. V. VIII. Humiliation of the Republicans
13. V. VIII. Changes in the Arrangement of Magistrates and the Jury-System
14. V. VIII. Humiliation of the Republicans
15. V. VIII. The Aristocracy Submits ff.
16. V. VIII. Changes in the Arrangement of Magistrates and the Jury-System
17. V. VIII. The Senate under the Monarchy
18. V. II. Mutiny of the Soldiers, V. III. Reappearance of Pompeius
19. V. VII. Alpine Peoples
20. V. IX. Dictatorship of Pompeius
21. -Homo ingeniosissime nequam- (Vellei. ii. 48).
22. V. IX. Debates as to Caesar's Recall
23. IV. X. The Restoration
24. V. II. Beginning of the Armenian War

25. To be distinguished from the consul having the same name of 704; the latter was a cousin, the consul of 705 a brother, of the Marcus Marcellus who was consul in 703.

26. V. IX. Debates ss to Caesar's Recall ff.

27. II. II. Intercession

Notes for Chapter X

1. V. V. Transpadanes

2. V. V. Transpadanes

3. A centurion of Caesar's tenth legion, taken prisoner, declared to the commander-in-chief of the enemy that he was ready with ten of his men to make head against the best cohort of the enemy (500 men; Dell. Afric. 45). "In the ancient mode of fighting," to quote the opinion of Napoleon I, "a battle consisted simply of duels; what was only correct in the mouth of that centurion, would be mere boasting in the mouth of the modern soldier." Vivid proofs of the soldierly spirit that pervaded Caesar's army are furnished by the Reports—appended to his Memoirs—respecting the African and the second Spanish wars, of which the former appears to have had as its author an officer of the second rank, while the latter is in every respect a subaltern camp-journal.

4. V. IX. Debates as to Caesar's Recall

5. IV. IX. Fresh Difficulties with Mithradates

6. V. IV. The New Relations of the Romans in the East, V. IV. Galatia
7. V. IV. Ptolemaeus in Egypt Recognized, but Expelled by His Subjects
8. V. VII. Wars and Revolts There
9. V. IX. Repulse of the Parthians
10. V. IX. Counter-Arrangements of Caesar
11. V. VIII. Settlement of the New Monarchial Rule
12. V. VIII. Changes in the Arrangement of Magistracies and the Jury-System
13. This number was specified by Pompeius himself (Caesar, B.C. i. 6), and it agrees with the statement that he lost in Italy about 60 cohorts or 30,000 men, and took 25,000 over to Greece (Caesar, B.C. iii. 10).
14. V. VII. With the Bellovaci
15. The decree of the senate was passed on the 7th January; on the 18th it had been already for several days known in Rome that Caesar had crossed the boundary (Cic. ad Att. vii. 10; ix. 10, 4); the messenger needed at the very least three days from Rome to Ravenna. According to this the setting out of Caesar falls about the 12th January, which according to the current reduction corresponds to the Julian 24 Nov. 704.
16. IV. IX. Pompeius
17. IV. XI. Italian Revenues
18. V. VII. Caesar in Spain

19. V. VII. Venetian War ff.

20. III. VI. Scipio Driven Back to the Coast

21. V. X. Caesar Takes the Offensive

22. V. VII. Illyria

23. As according to formal law the "legal deliberative assembly" undoubtedly, just like the "legal court," could only take place in the city itself or within the precincts, the assembly representing the senate in the African army called itself the "three hundred" (Bell. Afric. 88, 90; Appian, ii. 95), not because it consisted of 300 members, but because this was the ancient normal number of senators (i. 98). It is very likely that this assembly recruited its ranks by equites of repute; but, when Plutarch makes the three hundred to be Italian wholesale dealers (Cato Min. 59, 61), he has misunderstood his authority (Bell. Afr. 90). Of a similar kind must have been the arrangement as to the quasi-senate already in Thessalonica.

24. V. X. Indignation of the Anarchist Party against Caesar

25. V. X. The Pompeian Army

26. V. IV. And Brought Back by Gabinius

27. V. X. Caesar's Fleet and Army in Illyricum Destroyed

28. According to the rectified calendar on the 5th Nov. 705.

29. V. X. Result of the Campaign as a Whole

30. The exact determination of the field of battle is difficult. Appian (ii. 75) expressly places it between (New) Pharsalus (now Fersala) and the Enipeus. Of the two streams, which alone are of any importance in the

question, and are undoubtedly the Apidanus and Enipeus of the ancients—the Sofadhitiko and the Fersaliti—the former has its sources in the mountains of Thaumaci (Dhomoko) and the Dolopian heights, the latter in mount Othrys, and the Fersaliti alone flows past Pharsalus; now as the Enipeus according to Strabo (ix. p. 432) springs from mount Othrys and flows past Pharsalus, the Fersaliti has been most justly pronounced by Leake (Northern Greece, iv. 320) to be the Enipeus, and the hypothesis followed by Goler that the Fersaliti is the Apidanus is untenable. With this all the other statements of the ancients as to the two rivers agree. Only we must doubtless assume with Leake, that the river of Vlokho formed by the union of the Fersaliti and the Sofadhitiko and going to the Peneius was called by the ancients Apidanus as well as the Sofadhitiko; which, however, is the more natural, as while the Sofadhitiko probably has, the Fersaliti has not, constantly water (Leake, iv. 321). Old Pharsalus, from which the battle takes its name, must therefore have been situated between Fersala and the Fersaliti. Accordingly the battle was fought on the left bank of the Fersaliti, and in such a way that the Pompeians, standing with their faces towards Pharsalus, leaned their right wing on the river (Caesar, B. C. iii. 83; Frontinus, Strat. ii. 3, 22). The camp of the Pompeians, however, cannot have stood here, but only on the slope of the heights of Cynoscephalae, on the right bank of the Enipeus, partly because they barred the route of Caesar to Scotussa, partly because their line of retreat evidently went over the mountains that were to be found above the camp towards Larisa; if they had, according to Leake's hypothesis (iv. 482), encamped to the east of Pharsalus on the left bank of the Enipeus, they could never have got to the northward through this stream, which at this very point has a deeply cut bed (Leake, iv. 469), and Pompeius must have fled to Lamia instead of Larisa. Probably therefore the Pompeians pitched their camp on the right bank of the Fersaliti, and passed the river both in order to fight and in order, after the battle, to regain their camp, whence they then moved up the slopes of

Crannon and Scotussa, which culminate above the latter place in the heights of Cynoscephalae. This was not impossible. the Enipeus is a narrow slow-flowing rivulet, which Leake found two feet deep in November, and which in the hot season often lies quite dry (Leake, i. 448, and iv. 472; comp. Lucan, vi. 373), and the battle was fought in the height of summer. Further the armies before the battle lay three miles and a half from each other (Appian, B. C. ii. 65), so that the Pompeians could make all preparations and also properly secure the communication with their camp by bridges. Had the battle terminated in a complete rout, no doubt the retreat to and over the river could not have been executed, and doubtless for this reason Pompeius only reluctantly agreed to fight here. The left wing of the Pompeians which was the most remote from the base of retreat felt this; but the retreat at least of their centre and their right wing was not accomplished in such haste as to be impracticable under the given conditions. Caesar and his copyists are silent as to the crossing of the river, because this would place in too clear a light the eagerness for battle of the Pompeians apparent otherwise from the whole narrative, and they are also silent as to the conditions of retreat favourable for these.

31. III. VIII. Battle of Cynoscephalae

32. With this is connected the well-known direction of Caesar to his soldiers to strike at the faces of the enemy's horsemen. the infantry—which here in an altogether irregular way acted on the offensive against cavalry, who were not to be reached with the sabres—were not to throw their -pila-, but to use them as hand- spears against the cavalry and, in order to defend themselves better against these, to thrust at their faces (Plutarch, Pomp. 69, 71; Caes. 45; Appian, ii. 76, 78; Flor. ii. 12; Oros. vi. 15; erroneously Frontinus, iv. 7, 32). The anecdotal turn given to this instruction, that the Pompeian horsemen were to be brought to run away by the fear of receiving scars in their faces, and that they actually galloped off "holding their hands

before their eyes" (Plutarch), collapses of itself; for it has point only on the supposition that the Pompeian cavalry had consisted principally of the young nobility of Rome, the "graceful dancers"; and this was not the case (p. 224). At the most it may be, that the wit of the camp gave to that simple and judicious military order this very irrational but certainly comic turn.

33. V. I. Indefinite and Perilous Character of the Sertorian War

34. [I may here state once for all that in this and other passages, where Dr. Mommsen appears incidentally to express views of religion or philosophy with which I can scarcely be supposed to agree, I have not thought it right—as is, I believe, sometimes done in similar cases—to omit or modify any portion of what he has written. The reader must judge for himself as to the truth or value of such assertions as those given in the text. —Tr.]

35. V. IX. Passive Resistance of Caesar

36. V. X. The Armies at Pharsalus

37. V. IV. And Brought Back by Gabinius

38. V. X. Caesar's Fleet and Army in Illyricum Destroyed

39. V. IV. Aggregate Results

40. V. IV. Ptolemaeus in Egypt Recognized, but Expelled by His Subjects

41. V. IV. Cyprus Annexed

42. The loss of the lighthouse-island must have fallen out, where there is now a chasm (B. A. 12), for the island was in fact at first in Caesar's power

(B. C. iii. 12; B. A. 8). The mole, must have been constantly in the power of the enemy, for Caesar held intercourse with the island only by ships.

43. V. IV. Robber-Chiefs

44. V. IV. Robber-Chiefs

45. V. X. Caesar's Fleet and Army in Illyricum Destroyed

46. V. VIII. And in the Courts

47. Much obscurity rests on the shape assumed by the states in northwestern Africa during this period. After the Jugurthine war Bocchus king of Mauretania ruled probably from the western sea to the port of Saldae, in what is now Morocco and Algiers (IV. IV. Reorganization of Numidia); the princes of Tingis (Tangiers)—probably from the outset different from the Mauretanian sovereigns—who occur even earlier (Plut. Serf. 9), and to whom it may be conjectured that Sallust's Leptasta (Hist. ii. 31 Kritz) and Cicero's Mastanesosus (In Vat. 5, 12) belong, may have been independent within certain limits or may have held from him as feudatories; just as Syphax already ruled over many chieftains of tribes (Appian, Pun. 10), and about this time in the neighbouring Numidia Cirta was possessed, probably however under Juba's supremacy, by the prince Massinissa (Appian, B. C. iv. 54). About 672 we find in Bocchus' stead a king called Bocut or Bogud (iv. 92; Orosius, v. 21, 14), the son of Bocchus. From 705 the kingdom appears divided between king Bogud who possesses the western, and king Bocchus who possesses the eastern half, and to this the later partition of Mauretania into Bogud's kingdom or the state of Tingis and Bocchus' kingdom or the state of Iol (Caesarea) refers (Plin. H. N. v. 2, 19; comp. Bell. Afric. 23).

48. IV. IX. Fresh Difficulties with Mithradates

49. V. V. Resumption of the Conspiracy

50. V. X. Reorganization of the Coalition In Africa

51. IV. IV. Reorganization of Numidia

52. The inscriptions of the region referred to preserve numerous traces of this colonization. The name of the Sittii is there unusually frequent; the African township Milev bears as Roman the name -colonia Sarnensis-(C. I. L. viii. p. 1094) evidently from the Nucerian river-god Sarnus (Sueton. Rhet. 4).

Notes for Chapter XI

1. V. X. Insurrection in Alexandria

2. The affair with Laberius, told in the well-known prologue, has been quoted as an instance of Caesar's tyrannical caprices, but those who have done so have thoroughly misunderstood the irony of the situation as well as of the poet; to say nothing of the -naivete- of lamenting as a martyr the poet who readily pockets his honorarium.

3. The triumph after the battle of Munda subsequently to be mentioned probably had reference only to the Lusitanians who served in great numbers in the conquered army.

4. Any one who desires to compare the old and new hardships of authors will find opportunity of doing so in the letter of Caecina (Cicero, Aa. Fam. vi. 7).

5. V. VI. Second Coalition of Pompeius, Crassus, and Caesar

6. When this was written—in the year 1857—no one could foresee how soon the mightiest struggle and most glorious victory as yet recorded in human annals would save the United States from this fearful trial, and secure the future existence of an absolute self-governing freedom not to be permanently kept in check by any local Caesarism.

7. V. IX. Preparation for Attacks on Caesar

8. On the 26th January 710 Caesar is still called dictator IIII (triumphal table); on the 18th February of this year he was already -dictator perpetuus- (Cicero, Philip, ii. 34, 87). Comp. Staatsrecht, ii. 3 716.

9. IV. X. Executions

10. The formulation of that dictatorship appears to have expressly brought into prominence among other things the "improvement of morals"; but Caesar did not hold on his own part an office of this sort (Staatsrecht, ii. 3 705).

11. Caesar bears the designation of -imperator- always without any number indicative of iteration, and always in the first place after his name (Staatsrecht, ii. 3 767, note 1).

12. V. V. Rehabilitation of Saturninus and Marius

13. During the republican period the name Imperator, which denotes the victorious general, was laid aside with the end of the campaign; as a permanent title it first appears in the case of Caesar.

14. That in Caesar's lifetime the -imperium- as well as the supreme pontificate was rendered by a formal legislative act hereditary for his agnate

descendants—of his own body or through the medium of adoption—was asserted by Caesar the Younger as his legal title to rule. As our traditional accounts stand, the existence of such a law or resolution of the senate must be decidedly called in question; but doubtless it remains possible that Caesar intended the issue of such a decree. (Comp, Staatsrecht, ii. 3 787, 1106.)

15. The widely-spread opinion, which sees in the imperial office of Emperor nothing but the dignity of general of the empire tenable for life, is not warranted either by the signification of the word or by the view taken by the old authorities. -Imperium- is the power of command, -Imperator- is the possessor of that power; in these words as in the corresponding Greek terms —kratos—, —autokrator— so little is there implied a specific military reference, that it is on the contrary the very characteristic of the Roman official power, where it appears purely and completely, to embrace in it war and process—that is, the military and the civil power of command—as one inseparable whole. Dio says quite correctly (liii. 17; comp, xliii. 44; lii. 41) that the name Emperor was assumed by the emperors "to indicate their full power instead of the title of king and dictator (—pros deilosin teis autotelous sphon exousias, anti teis basileos tou te diktatoros epikleiseos—); for these other older titles disappeared in name, but in reality the title of Emperor gives the same prerogatives (—to de dei ergon auton tei tou autokratoros proseigoria bebaountai—), for instance the right of levying soldiers, imposing taxes, declaring war and concluding peace, exercising the supreme authority over burgess and non-burgess in and out of the city and punishing any one at any place capitally or otherwise, and in general of assuming the prerogatives connected in the earliest times with the supreme imperium." It could not well be said in plainer terms, that Emperor is nothing at all but a synonym for rex, just as imperare coincides with regere.

16. When Augustus in constituting the principate resumed the Caesarian imperium, this was done with the restriction that it should be limited as to space and in a certain sense also as to time; the proconsular power of the emperors, which was nothing but just this imperium, was not to come into application as regards Rome and Italy (Staatsrecht, ii. 8 854). On this element rests the essential distinction between the Caesarian imperium and the Augustan principate, just as on the other hand the real equality of the two institutions rests on the imperfection with which even in principle and still more in practice that limit was realized.

17. II. I. Collegiate Arrangements

18. On this question there may be difference of opinion, whereas the hypothesis that it was Caesar's intention to rule the Romans as Imperator, the non-Romans as Rex, must be simply dismissed. It is based solely on the story that in the sitting of the senate in which Caesar was assassinated a Sibylline utterance was brought forward by one of the priests in charge of the oracles, Lucius Cotta, to the effect that the Parthians could only be vanquished by a "king," and in consequence of this the resolution was adopted to commit to Caesar regal power over the Roman provinces. This story was certainly in circulation immediately after Caesar's death. But not only does it nowhere find any sort of even indirect confirmation, but it is even expressly pronounced false by the contemporary Cicero (De Div. ii. 54, 119) and reported by the later historians, especially by Suetonius (79) and Dio (xliv. 15) merely as a rumour which they are far from wishing to guarantee; and it is under such circumstances no better accredited by the fact of Plutarch (Caes. 60, 64; Brut. 10) and Appian (B. C. ii. 110) repeating it after their wont, the former by way of anecdote, the latter by way of causal explanation. But the story is not merely unattested; it is also intrinsically impossible. Even leaving out of account that Caesar had too much intellect and too much political tact to decide important questions of

state after the oligarchic fashion by a stroke of the oracle-machinery, he could never think of thus formally and legally splitting up the state which he wished to reduce to a level.

19. II. III. Union of the Plebeians

20. II. I. The New Community

21. IV. X. Abolition of the Censorial Supervision of the Senate

22. According to the probable calculation formerly assumed (iv. 113), this would yield an average aggregate number of from 1000 to 1200 senators.

23. This certainly had reference merely to the elections for the years 711 and 712 (Staatsrecht, ii. a 730); but the arrangement was doubtless meant to become permanent.

24. I. V. The Senate as State-Council, II. I. Senate

25. V. X. Pacification of Alexandria

26. V. VIII. Changes in the Arrangement of Magistracies and the Jury-System

27. I. V. The King

28. Hence accordingly the cautious turns of expression on the mention of these magistracies in Caesar's laws; -cum censor aliusve quis magistratus Romae populi censum aget (L. Jul. mun. l. 144); praetor isve quei Romae iure deicundo praerit (L. Rubr. often); quaestor urbanus queive aerario praerit- (L. Jul. mun. l. 37 et al.).

29. V. III. New Arrangement as to Jurymen

30. V. VIII. And in the Courts

31. -Plura enim multo-, says Cicero in his treatise *De Oratore* (ii. 42, 178), primarily with reference to criminal trials, -homines iudicant odio aut amore aut cupiditate aut iracundia aut dolore aut laetitia aut spe aut timore aut errore aut aliqua permotione mentis, quam veritate aut praescripto aut iuris norma aliqua aut iudicii formula aut legibus-. On this accordingly are founded the further instructions which he gives for advocates entering, on their profession.

32. V. VIII. And in the Courts

33. V. VII. Macedonia ff.

34. V. VII. The Gallic Plan of War

35. V. III. Overthrow of the Senatorial Rule, and New Power of Pompeius

36. With the nomination of a part of the military tribunes by the burgesses (III. XI. Election of Officers in the *Comitia*) Caesar—in this also a democrat—did not meddle.

37. V. VII. The New Dacian Kingdom

38. IV. VI. Political Significance of the Marian Military Reform

39. IV. VI. Political Significance of the Marian Military Reform

40. V. V. Total Defeat of the Democratic Party

41. Varro attests the discontinuance of the Sicilian -decumae- in a treatise published after Cicero's death (*De R. R.* 2 praef.) where he names—as the corn—provinces whence Rome derives her subsistence—only Africa and

Sardinia, no longer Sicily. The -Latinitas-, which Sicily obtained, must thus doubtless have included this immunity (comp. Staatsrecht, iii. 684).

42. V. X. Field of Caesar's Power

43. III. XI. Italian Subjects

44. V. VIII. Clodius

45. III. XIII. Increase of Amusements

46. In Sicily, the country of production, the -modius- was sold within a few years at two and at twenty sesterces; from this we may guess what must have been the fluctuations of price in Rome, which subsisted on transmarine corn and was the seat of speculators.

47. IV. XII. The Finances and Public Buildings

48. It is a fact not without interest that a political writer of later date but much judgment, the author of the letters addressed in the name of Sallust to Caesar, advises the latter to transfer the corn-distribution of the capital to the several -municipia-. There is good sense in the admonition; as indeed similar ideas obviously prevailed in the noble municipal provision for orphans under Trajan.

49. V. XI. The State-Hierarchy

50. III. XII. The Management of the Land and Its Capital

51. The following exposition in Cicero's treatise *De officiis* (i. 42) is characteristic: -Iam de artificiis et quaestibus, qui liberales habendi, qui sordidi sint, kaec fere accepimus. Primum improbantur ii quaestus, qui in odia hominum incurrunt, ut portitorum, ut feneratorum. Illiberales autem et

sordidi quaestus mercenariorum omnium, quorum operae, nonaries emuntur. Est autem in illis ipsa merces auctoramentum servitutis. Sordidi etiam putandi, qui mercantur a mercatoribus quod statim vendant, nihil enim proficiant, nisi admodum mentiantur. Nec vero est quidquam turpius vanitate. Opificesque omnes in sordida arte versantur; nec enim quidquam ingenuum habere potest officina. Minimeque artes eae probandae, quae ministrae sunt voluptatum,

"Cetarii, lanii, coqui, fartores, piscatores,"

ut ait Terentius. Adde huc, si placet, unguentarios, saltatores, totumque ludum talarium. Quibus autem artibus aut prudentia maior inest, aut non mediocris utilitas quaeritur, ut medicina, ut architectura, ut doctrina rerum honestarum, eae sunt iis, quorum ordini conveniunt, honestae. Mercatura autem, si tenuis est, sordida putanda est; sin magna et copiosa, multa undique apportans, multaque sine vanitate impertiens, non est admodum vituperanda; atque etiam, si satiata quaestu, vel contenta potius; ut saepe ex alto in portum, ex ipso portu in agros se possessionesque contulerit, videtur optimo iure posse laudari. Omnium autem rerum, ex quibus aliquid acquiritur, nihil est agricultura melius, nihil uberius, nihil dulcius, nihil homine libero dignius-. According to this the respectable man must, in strictness, be a landowner; the trade of a merchant becomes him only so far as it is a means to this ultimate end; science as a profession is suitable only for the Greeks and for Romans not belonging to the ruling classes, who by this means may purchase at all events a certain toleration of their personal presence in genteel circles. It is a thoroughly developed aristocracy of planters, with a strong infusion of mercantile speculation and a slight shading of general culture.

52. IV. IV. Administration under the Restoration

53. We have still (Macrobius, Hi, 13) the bill of fare of the banquet which Mucius Lentulus Niger gave before 691 on entering on his pontificate, and of which the pontifices—Caesar included—the Vestal Virgins, and some other priests and ladies nearly related to them partook. Before the dinner proper came sea-hedgehogs; fresh oysters as many as the guests wished; large mussels; sphondyli; fieldfares with asparagus; fattened fowls; oyster and mussel pasties; black and white sea-acorns; sphondyli again; glycimarides; sea-nettles; becaficoes; roe-ribs; boar's-ribs; fowls dressed with flour; becaficoes; purple shell-fish of two sorts. The dinner itself consisted of sow's udder; boar's-head; fish-pasties; boar-pasties; ducks; boiled teals; hares; roasted fowls; starch-pastry; Pontic pastry.

These are the college-banquets regarding which Varro (De R. R. iii. 2, 16) says that they forced up the prices of all delicacies. Varro in one of his satires enumerates the following as the most notable foreign delicacies: peacocks from Samos; grouse from Phrygia; cranes from Melos; kids from Ambracia; tunny fishes from Chalcedon; muraenas from the Straits of Gades; bleak-fishes (? -aselli-) from Pessinus; oysters and scallops from Tarentum; sturgeons (?) from Rhodes; -scarus—fishes (?) from Cilicia; nuts from Thasos; dates from Egypt; acorns from Spain.

54. IV. VII. Economic Crisis, IV. IX. Death of Cinna

55. III. X. Greek National Party

56. IV. XI. Capitalist Oligarchy

57. III. XIII. Luxury

58. IV. XII. Practical Use Made of Religion

59. III. XIII. Cato's Family Life, iv. 186 f.

60. IV. I. Achaean War

61. IV. XII. Mixture of Peoples

62. V. VI. Caesar's Agrarian Law

63. V. XI. Dolabella

64. This is not stated by our authorities, but it necessarily follows from the permission to deduct the interest paid by cash or assignation (-si quid usurae nomine numeratum aut perscriptum fuisset-; Sueton. Caes. 42), as paid contrary to law, from the capital.

65. II. III. Laws Imposing Taxes

66. V. V. Preparations of the Anarchists in Etruria

67. IV. VII. Economic Crisis

68. The Egyptian royal laws (Diodorus, i. 79) and likewise the legislation of Solon (Plutarch, Sol. 13, 15) forbade bonds in which the loss of the personal liberty of the debtor was made the penalty of non-payment; and at least the latter imposed on the debtor in the event of bankruptcy no more than the cession of his whole assets.

69. I. XI. Manumission

70. II. III. Continued Distress

71. At least the latter rule occurs in the old Egyptian royal laws (Diodorus, i. 79). On the other hand the Solonian legislation knows no restrictions on interest, but on the contrary expressly allows interest to be fixed of any amount at pleasure.

72. V. VI. Caesar's Agrarian Law

73. V. VI. Caesar's Agrarian Law

74. IV. II. Tribune of Gracchus, IV. II. The Domain Question Viewed in Itself, IV. IV. The Domain Question under the Restoration

75. IV. XII. Carneades at Rome, V. III. Continued Subsistence of the Sullan Constitution

76. IV. X. The Roman Municipal System

77. Of both laws considerable fragments still exist.

78. V. XI. Diminution of the Proletariate

79. V. VII. Gaul Subdued

80. As according to Caesar's ordinance annually sixteen *propraetors* and two *proconsuls* divided the governorships among them, and the latter remained two years in office (p. 344), we might conclude that he intended to bring the number of provinces in all up to twenty. Certainty is, however, the less attainable as to this, seeing that Caesar perhaps designedly instituted fewer offices than candidatures.

81. This is the so-called "free embassy" (*-libera legatio-*), namely an embassy without any proper public commission entrusted to it.

82. V. II. Piracy

83. V. XI. In The Administration of the Capital

84. V. XI. Foreign Mercenaries

85. V. IX. In the Governorships

86. V. XI. Financial Reforms of Caesar

87. V. I. Organizations of Sertorius

88. V. XI. Robberies and Damage by War

89. V. XI. The Roman Capitalists in the Provinces

90. V. I. Transpadanes, V. VIII. Settlement of the New Monarchial Rule

91. Narbo was called the colony of the Decimani, Baeterrae of the Septimani, Forum Julii of the Octavani, Arelate of the Sextani, Arausio of the Secundani. The ninth legion is wanting, because it had disgraced its number by the mutiny of Placentia (p. 246). That the colonists of these colonies belonged to the legions from which they took their names, is not stated and is not credible; the veterans themselves were, at least the great majority of them, settled in Italy (p. 358). Cicero's complaint, that Caesar "had confiscated whole provinces and districts at a blow" (De Off. ii. 7, 27; comp. Philipp. xiii. 15, 31, 32) relates beyond doubt, as its close connection with the censure of the triumph over the Massiliots proves, to the confiscations of land made on account of these colonies in the Narbonese province and primarily to the losses of territory imposed on Massilia.

92. IV. VII. Bestowal of Latin Rights on the Italian Celts

93. V. XI. Other Magistracies and Attributions

94. We are not expressly informed from whom the Latin rights of the non-colonized townships of this region and especially of Nemausus proceeded. But as Caesar himself (B. C. i. 35) virtually states that Nemausus up to 705 was a Massiliot village; as according to Livy's account

(Dio, xli. 25; Flor. ii. 13; Oros. vi. 15) this very portion of territory was taken from the Massiliots by Caesar; and lastly as even on pre-Augustan coins and then in Strabo the town appears as a community of Latin rights, Caesar alone can have been the author of this bestowal of Latinity. As to Ruscino (Roussillon near Perpignan) and other communities in Narbonese Gaul which early attained a Latin urban constitution, we can only conjecture that they received it contemporarily with Nemausus.

95. V. VII. Indulgence toward Existing Arrangements

96. II. V. Crises within the Romano-Latin League

97. V. X. The Leaders of the Republicans Put to Death

98. That no community of full burgesses had more than limited jurisdiction, is certain. But the fact, which is distinctly apparent from the Caesarian municipal ordinance for Cisalpine Gaul, is a surprising one—that the processes lying beyond municipal competency from this province went not before its governor, but before the Roman praetor; for in other cases the governor is in his province quite as much representative of the praetor who administers justice between burgesses as of the praetor who administers justice between burgess and non-burgess, and is thoroughly competent to determine all processes. Beyond doubt this is a remnant of the arrangement before Sulla, under which in the whole continental territory as far as the Alps the urban magistrates alone were competent, and thus all the processes there, where they exceeded municipal competency, necessarily came before the praetors in Rome. In Narbo again, Gades, Carthage, Corinth, the processes in such a case went certainly to the governor concerned; as indeed even from practical considerations the carrying of a suit to Rome could not well be thought of.

99. It is difficult to see why the bestowal of the Roman franchise on a province collectively, and the continuance of a provincial administration for it, should be usually conceived as contrasts excluding each other. Besides, Cisalpine Gaul notoriously obtained the -civitas- by the Roscian decree of the people of the 11th March 705, while it remained a province as long as Caesar lived and was only united with Italy after his death (Dio, xlviii. 12); the governors also can be pointed out down to 711. The very fact that the Caesarian municipal ordinance never designates the country as Italy, but as Cisalpine Gaul, ought to have led to the right view.

100. IV. II. The First Sicilian Slave War

101. The continued subsistence of the municipal census-authorities speaks for the view, that the local holding of the census had already been established for Italy in consequence of the Social war (Staatsrecht, ii. 8 368); but probably the carrying out of this system was Caesar's work.

102. II. VII. Intermediate Functionaries, III. III. Autonomy

103. III. XI. Supervision of the Senate Over the Provinces and Their Governors

104. I. XI. Character of the Roman Law

105. IV. XIII. Philology

106. I. XI. Clients and Foreigners

107. V. XI. Usury Laws

108. V. V. Transpadanes

109. I. XIV. Italian Measures ff.

110. III. XII. Coins and Moneys

111. Weights recently brought to light at Pompeii suggest the hypothesis that at the commencement of the imperial period alongside of the Roman pound the Attic mina (presumably in the ratio of 3: 4) passed current as a second imperial weight (Hermes, xvi. 311).

112. The gold pieces, which Sulla (iv. 179) and contemporarily Pompeius caused to be struck, both in small quantity, do not invalidate this proposition; for they probably came to be taken solely by weight just like the golden Phillippei which were in circulation even down to Caesar's time. They are certainly remarkable, because they anticipate the Caesarian imperial gold just as Sulla's regency anticipated the new monarchy.

113. IV. XI. Token-Money

114. It appears, namely, that in earlier times the claims of the state-creditors payable in silver could not be paid against their will in gold according to its legal ratio to silver; whereas it admits of no doubt, that from Caesar's time the gold piece had to be taken as a valid tender for 100 silver sesterces. This was just at that time the more important, as in consequence of the great quantities of gold put into circulation by Caesar it stood for a time in the currency of trade 25 per cent below the legal ratio.

115. There is probably no inscription of the Imperial period, which specifies sums of money otherwise than in Roman coin.

116. Thus the Attic -drachma-, although sensibly heavier than the -denarius-, was yet reckoned equal to it; the -tetradrachmon- of Antioch, weighing on an average 15 grammes of silver, was made equal to 3 Roman -denarii-, which only weigh about 12 grammes; the -cistophorus- of Asia Minor was according to the value of silver above 3, according to the legal

tariff = $2 \frac{1}{2}$ -denarii-; the Rhodian half -drachma- according to the value of silver = $\frac{3}{4}$, according to the legal tariff = $\frac{5}{8}$ of a -denarius-, and so on.

117. III. III. Illyrian Piracy

118. The identity of this edict drawn up perhaps by Marcus Flavius (Macrob. Sat. i. 14, 2) and the alleged treatise of Caesar, De Stellis, is shown by the joke of Cicero (Plutarch, Caes. 59) that now the Lyre rises according to edict.

We may add that it was known even before Caesar that the solar year of 365 days 6 hours, which was the basis of the Egyptian calendar, and which he made the basis of his, was somewhat too long. the most exact calculation of the tropical year which the ancient world was acquainted with, that of Hipparchus, put it at 365 d. 5 h. 52' 12"; the true length is 365 d. 5 h. 48' 48".

119. Caesar stayed in Rome in April and Dec. 705, on each occasion for a few days; from Sept. to Dec. 707; some four months in the autumn of the year of fifteen months 708, and from Oct. 709 to March 710.

Notes for Chapter XII

1. V. VIII. Clodius

2. III. XIV. Cato's Encyclopedia

3. These form, as is well known, the so-called seven liberal arts, which, with this distinction between the three branches of discipline earlier

naturalized in Italy and the four subsequently received, maintained their position throughout the middle ages.

4. IV. XII. Latin Instruction

5. Thus Varro (De R. R. i. 2) says: -ab aeditimo, ut dicere didicimus a patribus nostris; ut corrigimur ab recentibus urbanis, ab aedituo-.

6. The dedication of the poetical description of the earth which passes under the name of Scymnus is remarkable in reference to those relations. After the poet has declared his purpose of preparing in the favourite Menandrian measure a sketch of geography intelligible for scholars and easy to be learned by heart, he dedicates—as Apollodorus dedicated his similar historical compendium to Attalus Philadelphus king of Pergamus

—athanaton aponemonta dexan Attalo teis pragmateias epigraphein eileiphoti— —

his manual to Nicomedes III king (663?-679) of Bithynia:

—ego d' akouon, dioti ton non basileon monos basilikein chreistoteita prosphereis peiran epethumeis autos ep' emautou labein kai paragenesthai kai ti basileus est' idein, dio tei prothesei sumboulon exelexamein ... ton Apollena ton Didumei... ou dei schedon malista kai pepeismenos pros sein kata logon eika (koinein gar schedon tois philomathousin anadedeichas) estian—.

7. IV. XIII. Historical Composition

8. V. XII. Greek Instruction

9. Cicero testifies that the mime in his time had taken the place of the Atellana (Ad Fam. ix. 16); with this accords the fact, that the -mimi- and -

mimae- first appear about the Sullan epoch (Ad Her. i. 14, 24; ii. 13, 19; Atta Fr. 1 Ribbeck; Plin. H. N. vii. 43, 158; Plutarch, Sull. 2, 36). The designation -mimus-, however, is sometimes inaccurately applied to the comedian generally. Thus the -mimus- who appeared at the festival of Apollo in 542-543 (Festus under -salva res est-; comp. Cicero, De Orat. ii. 59, 242) was evidently nothing but an actor of the -palliata-, for there was at this period no room in the development of the Roman theatre for real mimes in the later sense.

With the *mimus* of the classical Greek period—prose dialogues, in which -genre- pictures, particularly of a rural kind, were presented—the Roman *mimus* had no especial relation.

10. With the possession of this sum, which constituted the qualification for the first voting-class and subjected the inheritance to the Voconian law, the boundary line was crossed which separated the men of slender means (-*tenuiores*-) from respectable people. Therefore the poor client of Catullus (xxiii. 26) beseeches the gods to help him to this fortune.

11. In the "Descensus ad Inferos" of Laberius all sorts of people come forward, who have seen wonders and signs; to one there appeared a husband with two wives, whereupon a neighbour is of opinion that this is still worse than the vision, recently seen by a soothsayer in a dream, of six aediles. Caesar forsooth desired— according to the talk of the time—to introduce polygamy in Rome (Suetonius, Caes. 82) and he nominated in reality six aediles instead of four. One sees from this that Laberius understood how to exercise the fool's privilege and Caesar how to permit the fool's freedom.

12. V. VIII. Attempts of the Regents to Check It

13. V. XI. The Poor

14. IV. XIII. Dramatic Arrangements

15. He obtained from the state for every day on which he acted 1000 - denarii- (40 pounds) and besides this the pay for his company. In later years he declined the honorarium for himself.

16. Such an individual apparent exception as Panchaea the land of incense (ii. 417) is to be explained from the circumstance that this had passed from the romance of the Travels of Euhemerus already perhaps into the poetry of Ennius, at any rate into the poems of Lucius Manlius (iv. 242; Plin. H. N. x. a, 4) and thence was well known to the public for which Lucretius wrote.

17. III. XIV. Moral Effect of Tragedy

18. This naively appears in the descriptions of war, in which the seastorms that destroy armies, and the hosts of elephants that trample down those who are on their own side—pictures, that is, from the Punic wars—appear as if they belong to the immediate present. Comp. ii. 41; v. 1226, 1303, 1339.

19. "No doubt," says Cicero (Tusc. iii. 19, 45) in reference to Ennius, "the glorious poet is despised by our reciters of Euphorion." "I have safely arrived," he writes to Atticus (vii. 2 init.), "as a most favourable north wind blew for us across from Epirus. This spondaic line you may, if you choose, sell to one of the new-fashioned poets as your own" (-ita belle nobis flavit ab Epiro lenissimus Onchesmites. Hunc- —spondeiazonta— -si cui voles —ton neoteron— pro tuo vendito-).

20. V. VIII. Literature of the Opposition

21. "For me when a boy," he somewhere says, "there sufficed a single rough coat and a single under-garment, shoes without stockings, a horse without a saddle; I had no daily warm bath, and but seldom a river-bath." On account of his personal valour he obtained in the Piratic war, where he commanded a division of the fleet, the naval crown.

22. V. X. The Pompeians in Spain

23. There is hardly anything more childish than Varro's scheme of all the philosophies, which in the first place summarily declares all systems that do not propose the happiness of man as their ultimate aim to be nonexistent, and then reckons the number of philosophies conceivable under this supposition as two hundred and eighty-eight. The vigorous man was unfortunately too much a scholar to confess that he neither could nor would be a philosopher, and accordingly as such throughout life he performed a blind dance- not altogether becoming—between the Stoa, Pythagoreanism, and Diogenism.

24. On one occasion he writes, "-Quintiforis Clodii foria ac poemata ejus gargaridians dices; O fortuna, O fors fortuna-!" And elsewhere, "-Cum Quintipor Clodius tot comoedias sine ulla fecerit Musa, ego unum libellum non 'edolem' ut ait Ennius?-" This not otherwise known Clodius must have been in all probability a wretched imitator of Terence, as those words sarcastically laid at his door "O fortuna, O fors fortuna!" are found occurring in a Terentian comedy.

The following description of himself by a poet in Varro's
—Onos Louras—,

-Pacuvi discipulus dicor, porro is fuit Enni,
Ennius Musarum; Pompilius clueor-

might aptly parody the introduction of Lucretius (p. 474), to whom Varro as a declared enemy of the Epicurean system cannot have been well disposed, and whom he never quotes.

25. He himself once aptly says, that he had no special fondness for antiquated words, but frequently used them, and that he was very fond of poetical words, but did not use them.

26. The following description is taken from the -Marcipor- ("Slave of Marcus"):

-Repente noctis circiter meridie
Cum pictus aer fervidis late ignibus
Caeli chorean astricen ostenderet,
Nubes aquali, frigido velo leves
Caeli cavernas aureas subduxerant,
Aquam vomentes inferam mortalibus.
Ventique frigido se ab axe eruperant,
Phrenetici septentrionum filii,
Secum ferentes tegulas, ramos, syrus.
At nos caduci, naufragi, ut ciconiae
Quarum bipennis fulminis plumas vapor
Perussit, alte maesti in terram cecidimus-.

In the —'Anthropopolis— we find the lines:

-Non fit thesauris, non auro pectus solutum;
Non demunt animis curas ac religiones
Persarum montes, non atria diviti' Crassi-.

But the poet was successful also in a lighter vein. In the -Est Modus Matulae- there stood the following elegant commendation of wine:—

-Vino nihil iucundius quisquam bibit.
Hoc aegritudinem ad medendam invenerunt,
Hoc hilaritatis dulce seminarium.
Hoc continet coagulum convivium-.

And in the —Kosmotonounei— the wanderer returning home thus concludes his address to the sailors:

-Delis habenas animae leni,
Dum nos ventus flamine sudo
Suavem ad patriam perducit-.

27. The sketches of Varro have so uncommon historical and even poetical significance, and are yet, in consequence of the fragmentary shape in which information regarding them has reached us, known to so few and so irksome to study, that we may be allowed to give in this place a resume of some of them with the few restorations indispensable for making them readable.

The satire Manius (Early Up!) describes the management of a rural household. "Manius summons his people to rise with the sun, and in person conducts them to the scene of their work. The youths make their own bed, which labour renders soft to them, and supply themselves with water-jar and lamp. Their drink is the clear fresh spring, their fare bread, and onions as relish. Everything prospers in house and field. The house is no work of art; but an architect might learn symmetry from it. Care is taken of the field, that it shall not be left disorderly and waste, or go to ruin through slovenliness and neglect; in return the grateful Ceres wards off damage from the produce, that the high-piled sheaves may gladden the heart of the husbandman. Here hospitality still holds good; every one who has but imbibed mother's milk is welcome. the bread-pantry and wine-vat and the store of sausages on the rafters, lock and key are at the service of the

traveller, and piles of food are set before him; contented sits the sated guest, looking neither before nor behind, dozing by the hearth in the kitchen. the warmest double-wool sheepskin is spread as a couch for him.

"Here people still as good burgesses obey the righteous law, which neither out of envy injures the innocent, nor out of favour pardons the guilty. Here they speak no evil against their neighbours. Here they trespass not with their feet on the sacred hearth, but honour the gods with devotion and with sacrifices, throw for the house-spirit his little bit of flesh into his appointed little dish, and when the master of the household dies, accompany the bier with the same prayer with which those of his father and of his grandfather were borne forth."

In another satire there appears a "Teacher of the Old" (—Gerontodidaskalos—), of whom the degenerate age seems to stand more urgently in need than of the teacher of youth, and he explains how "once everything in Rome was chaste and pious," and now all things are so entirely changed. "Do my eyes deceive me, or do I see slaves in arms against their masters?—Formerly every one who did not present himself for the levy, was sold on the part of the state into slavery abroad; now the censor who allows cowardice and everything to pass is called [by the aristocracy, III. XI. Separation Of the Orders in the Theatre; IV. X. Shelving of the Censorship, V. III. Renewal of the Censorship; V. VIII. Humiliations of the Republicans] a great citizen, and earns praise because he does not seek to make himself a name by annoying his fellow-citizens.— Formerly the Roman husbandman had his beard shaven once every week; now the rural slave cannot have it fine enough.—Formerly one saw on the estates a corn-granary, which held ten harvests, spacious cellars for the wine-vats and corresponding wine-presses; now the master keeps flocks of peacocks, and causes his doors to be inlaid with African cypress-wood.—Formerly the housewife turned the spindle with the hand and kept at the same time the

pot on the hearth in her eye, that the pottage might not be singed; now," it is said in another satire, "the daughter begs her father for a pound of precious stones, and the wife her husband for a bushel of pearls.—Formerly a newly-married husband was silent and bashful; now the wife surrenders herself to the first coachman that comes.— Formerly the blessing of children was woman's pride; now if her husband desires for himself children, she replies: Knowest thou not what Ennius says?

""-Ter sub armis malim vitam cernere Quam semel modo parere—.—'

"Formerly the wife was quite content, when the husband once or twice in the year gave her a trip to the country in the uncushioned waggon;" now, he could add (comp. Cicero, Pro Mil. 21, 55), "the wife sulks if her husband goes to his country estate without her, and the travelling lady is attended to the villa by the fashionable host of Greek menials and the choir." —In a treatise of a graver kind, "Catus or the Training of Children," Varro not only instructs the friend who had asked him for advice on that point, regarding the gods who were according to old usage to be sacrificed to for the children's welfare, but, referring to the more judicious mode of rearing children among the Persians and to his own strictly spent youth, he warns against over-feeding and over-sleeping, against sweet bread and fine fare—the whelps, the old man thinks, are now fed more judiciously than the children—and likewise against the enchantresses' charms and blessings, which in cases of sickness so often take the place of the physician's counsel. He advises to keep the girls at embroidery, that they may afterwards understand how to judge properly of embroidered and textile work, and not to allow them to put off the child's dress too early; he warns against carrying boys to the gladiatorial games, in which the heart is early hardened and cruelty learned.—In the "Man of Sixty Years" Varro appears as a Roman Epimenides who had fallen asleep when a boy of ten and waked up again after half a century. He is astonished to find instead of his smooth-

shorn boy's head an old bald pate with an ugly snout and savage bristles like a hedgehog; but he is still more astonished at the change in Rome. Lucrine oysters, formerly a wedding dish, are now everyday fare; for which, accordingly, the bankrupt glutton silently prepares the incendiary torch. While formerly the father disposed of his boy, now the disposal is transferred to the latter: he disposes, forsooth, of his father by poison. The Comitium had become an exchange, the criminal trial a mine of gold for the jurymen. No law is any longer obeyed save only this one, that nothing is given for nothing. All virtues have vanished; in their stead the awakened man is saluted by impiety, perfidy, lewdness, as new denizens. "Alas for thee, Marcus, with such a sleep and such an awakening!"— The sketch resembles the Catilinarian epoch, shortly after which (about 697) the old man must have written it, and there lay a truth in the bitter turn at the close; where Marcus, properly reprov'd for his unseasonable accusations and antiquarian reminiscences, is— with a mock application of a primitive Roman custom—dragged as a useless old man to the bridge and thrown into the Tiber. There was certainly no longer room for such men in Rome.

28. "The innocent," so ran a speech, "thou draggest forth, trembling in every limb, and on the high margin of the river's bank in the dawn of the morning" [thou causest them to be slaughtered]. Several such phrases, that might be inserted without difficulty in a commonplace novel, occur.

29. V. XII. Poems in Prose

30. V. XII. Catullus

31. V. XII. Greek Literati in Rome

32. That the treatise on the Gallic war was published all at once, has been long conjectured; the distinct proof that it was so, is furnished by the mention of the equalization of the Boii and the Haedui already in the first

book (c. 28) whereas the Boii still occur in the seventh (c. 10) as tributary subjects of the Haedui, and evidently only obtained equal rights with their former masters on account of their conduct and that of the Haedui in the war against Vercingetorix. On the other hand any one who attentively follows the history of the time will find in the expression as to the Milonian crisis (vii. 6) a proof that the treatise was published before the outbreak of the civil war; not because Pompeius is there praised, but because Caesar there approves the exceptional laws of 702.(p. 146) This he might and could not but do, so long as he sought to bring about a peaceful accommodation with Pompeius,(p. 175) but not after the rupture, when he reversed the condemnations that took place on the basis of those laws injurious for him. (p. 316) Accordingly the publication of this treatise has been quite rightly placed in 703.

The tendency of the work we discern most distinctly in the constant, often—most decidedly, doubtless, in the case of the Aquitanian expedition (III. XI. The Censorship A Prop of the Nobility)— not successful, justification of every single act of war as a defensive measure which the state of things had rendered inevitable. That the adversaries of Caesar censured his attacks on the Celts and Germans above all as unprovoked, is well known (Sueton. Caes. 24).

33. V. XI. Amnesty

34. V. XII. The New Roman Poetry

35. V. XI. Caelius and Milo

36. V. IX. Curio, V. X. Death of Curio

37. IV. XIII. Sciences

38. A remarkable example is the general exposition regarding cattle in the treatise on Husbandry (ii. 1) with the nine times nine subdivisions of the doctrine of cattle-rearing, with the "incredible but true" fact that the mares at Olisipo (Lisbon) become pregnant by the wind, and generally with its singular mixture of philosophical, historical, and agricultural notices.

39. Thus Varro derives -facere- from -facies-, because he who makes anything gives to it an appearance, -volpes-, the fox, after Stilo from -volare pedibus- as the flying-footed; Gaius Trebatius, a philosophical jurist of this age, derives -sacellum- from -sacra cella-, Figulus -frater- from -fere alter- and so forth. This practice, which appears not merely in isolated instances but as a main element of the philological literature of this age, presents a very great resemblance to the mode in which till recently comparative philology was prosecuted, before insight into the organism of language put a stop to the occupation of the empirics.

40. V. XII. Grammatical Science

41. V. XI. Sciences of General Culture at This Period

42. V. XI. Reform of the Calendar

43. V. XII. Dramatic Spectacles

44. Such "Greek entertainments" were very frequent not merely in the Greek cities of Italy, especially in Naples (Cic. pro Arch. 5, 10; Plut. Brut. 21), but even now also in Rome (iv. 192; Cic. Ad Fam. vii. 1, 3; Ad Att. xvi. 5, 1; Sueton. Caes. 39; Plut. Brut. 21). When the well-known epitaph of Licinia Eucharis fourteen years of age, which probably belongs to the end of this period, makes this "girl well instructed and taught in all arts by the Muses themselves" shine as a dancer in the private exhibitions of noble houses and appear first in public on the Greek stage (-modo nobilium ludos

decoravi choro, et Graeca in scaena prima populo apparui-), this doubtless can only mean that she was the first girl that appeared on the public Greek stage in Rome; as generally indeed it was not till this epoch that women began to come forward publicly in Rome (p. 469).

These "Greek entertainments" in Rome seem not to have been properly scenic, but rather to have belonged to the category of composite exhibitions—primarily musical and declamatory—such as were not of rare occurrence in subsequent times also in Greece (Welcker, *Griech. Trag.*, p. 1277). This view is supported by the prominence of flute-playing in Polybius (xxx. 13) and of dancing in the account of Suetonius regarding the armed dances from Asia Minor performed at Caesar's games and in the epitaph of Eucharis; the description also of the -citharoedus- (Ad Her. iv. 47, 60; comp. Vitruv. v. 5, 7) must have been derived from such "Greek entertainments." The combinations of these representations in Rome with Greek athletic combats is significant (Polyb. l. c.; Liv. xxxix. 22). Dramatic recitations were by no means excluded from these mixed entertainments, since among the players whom Lucius Anicius caused to appear in 587 in Rome, tragedians are expressly mentioned; there was however no exhibition of plays in the strict sense, but either whole dramas, or perhaps still more frequently pieces taken from them, were declaimed or sung to the flute by single artists. This must accordingly have been done also in Rome; but to all appearance for the Roman public the main matter in these Greek games was the music and dancing, and the text probably had little more significance for them than the texts of the Italian opera for the Londoners and Parisians of the present day. Those composite entertainments with their confused medley were far better suited for the Ionian public, and especially for exhibitions in private houses, than proper scenic performances in the Greek language; the view that the latter also took place in Rome cannot be refuted, but can as little be proved.

45. V. XI. Sciences of General Culture at This Period

End of Book IV

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TABLE OF CALENDAR EQUIVALENTS

A.U.C.*	B.C.		B.C.		A.U.C.	
					000 753	
753	000	025	728	750	003	050
703	725	028	075	678	700	053
100	653	675	078	125	628	650
103	150	603	625	128	175	578
600	153	200	553	575	178	225
528	550	203	250	503	525	228
275	478	500	253	300	453	475
278	325	428	450	303	350	303
425	328	375	378	400	353	400
353	375	378	425	328	475	278
300	453	500	253	275	478	525
228	250	503	550	203	225	528
575	178	200	553	600	153	175
578	625	128	150	603	650	103
125	628	675	078	100	653	700
053	075	678	725	028	050	703
750	003	025	728	753	000	000
753	000	025	728	750	003	050

*A. U. C. - Ab Urbe Condita (from the founding of the City of Rome)

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